# Casey Planning Scheme

PLANNING SCHEME

# 00 PURPOSE AND VISION

02/09/2025
VC283

This section sets out the purpose of this planning scheme, and the vision and strategic direction for Victoria and the municipality.

## ACKNOWLEDGEMENT OF COUNTRY

The Victorian Government acknowledges Traditional Owners in Victoria as the custodians of Country. We acknowledge their extraordinary strength and resilience in the face of historical and ongoing social, economic and legal injustices, maintaining their connection to Country.

We pay our respects to Elders past and present, whose knowledge and wisdom have ensured the continuation of spiritual and cultural practices. We also acknowledge the diversity of First Peoples' communities in Victoria.

We acknowledge that the long-lasting, far-reaching and intergenerational consequences of colonisation and dispossession continue to exist today and continue to cause harm. Colonisation has left entrenched systemic and structural racism and suffering, including through the laws and policies of the Colony of Victoria, which specifically excluded First Peoples and their laws, lores, customs, languages and cultures. The Victorian Government has a responsibility to transform its systems and service delivery so First Peoples have decision-making power over matters that directly affect them.

To address this exclusion, the Victorian Government commits to ongoing engagement with Traditional Owners and First Peoples to restore and strengthen their rights in this planning scheme.

# 01 PURPOSES AND VISION FOR VICTORIA

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## 01.01 PURPOSES OF THIS PLANNING SCHEME

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- To provide a clear and consistent framework within which decisions about the use and development of land can be made.
- To express state, regional, local and community expectations for areas and land uses.
- To provide for the implementation of State, regional and local policies affecting land use and development.
- To support responses to climate change.

## 01.02 VISION FOR VICTORIA

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### THE PEOPLE'S PANEL VISION FOR VICTORIA

By 2050 Victoria will be a vibrant, accessible and connected community, valued for its diverse cultures, sustainable environmental practices and respect for the First Peoples of Victoria.

Building a state which provides choices and opportunities for current and future generations of Victorians in quality housing, transport, employment, environment and connectivity, will require input from community, government, local businesses and industry alike.

We will create a society that caters to the unique needs of all Victorians, nurturing individual health through physical and cultural recreation.

# 02 MUNICIPAL PLANNING STRATEGY

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## 02.01 CONTEXT

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Covering an area of 396.79 square kilometres, the City of Casey has a population of 369,453 (ABS 2021 Census) and is located in Melbourne's south-east region. Casey forms part of the Casey-Cardinia Growth Area and is characterised by five distinctive geographical regions:

- **Established Areas**: The residential and commercial part of Casey, which follows the Princes Highway and South Gippsland Highway corridors.
- **Growth Areas**: The urban growth area; characterised by strong building activity and rapid population growth.
- **Casey Foothills**: The foothills of the Dandenong Ranges; including areas used for grazing, horse agistment and passive recreation, with some rural-residential and village locales. It also contains part of the Southern Ranges Green Wedge.
- **Casey Farm**: Areas to the south of Casey outside the Urban Growth Boundary. Mainly used for market gardening, flower growing and grazing. It also contains part of the Western Port Green Wedge.
- **Casey Coast**: The Western Port coastal environs located in the southern part of the Western Port Green Wedge, with extensive and internationally significant coastal reserves that also form a link between the popular tourist destinations of the Mornington Peninsula and Phillip Island.

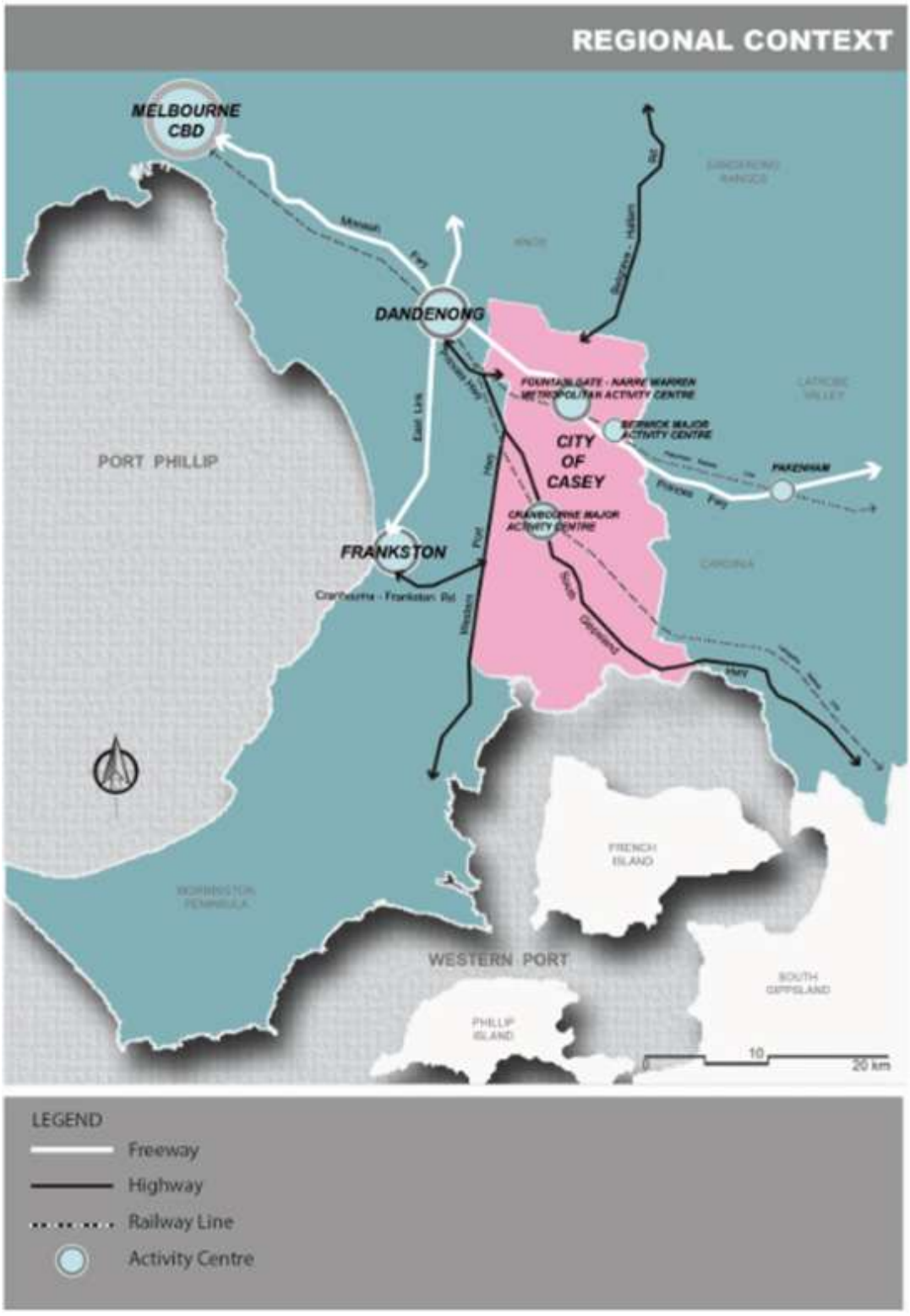
Prior to European settlement, the Boonwurrung and Bunurong peoples were the traditional inhabitants of the Casey area. As a result, several indigenous sites of significance are located throughout the municipality, particularly within coastal areas and near creeks and waterholes.

Like many of metropolitan Melbourne's outer municipalities, Casey is experiencing significant growth and development pressure. New housing is the major growth catalyst which will benefit over time from major new and upgraded transport and other infrastructure.

Pressures brought about by rapid urban development mean that careful consideration needs to be given to the protection of Casey's resources, natural ecosystems and heritage places (pre and post contact). Included are the Western Port coastal environs listed under the Ramsar Convention on Wetlands of International Importance, the Cranbourne Gardens and Churchill National Park. Most of these areas fall within the Southern Ranges, Western Port and South East Green Wedges that are set out under Plan Melbourne.

Casey's local economy has significant regional competitive advantages including significant population and housing growth, a Metropolitan Activity Centre at Fountain Gate-Narre Warren CBD, tertiary education facilities, potential for the development of a strong commercial sector, tourism and eco-tourism opportunities, a productive and diverse rural sector, a strong equine sector, extractive industrial resources, and locational advantages as a gateway to Gippsland and to the Melbourne metropolitan area.

## Regional context plan



## 02.02 VISION

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The City of Casey's *Long-Term Community Vision 2031* articulates the community's vision for the municipality, which is to *become a more connected, bold and resilient community*.

The land use and development related Strategic Objectives to achieve this vision as expressed in the *City of Casey Council Plan 2021-25* are to:

- *Deliver sustainable infrastructure and activate places.*
- *Grow Casey's current and emerging economies.*
- *Foster environmentally sustainable practices and work towards being climate ready.*

# 02.03 STRATEGIC DIRECTIONS

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## 02.03-1 Settlement

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Casey's image is one of suburban areas centred around key activity centres, framed by a backdrop of open, green and fertile pasture land, an environmentally significant coastline in the south and wooded foothills in the north. Pressures from urban development could erode this image. Casey's rapid growth, size and geographical diversity have added a layer of complexity to its planning and careful management is needed to allow Casey to grow while protecting its valued attributes.

Strategic directions:

- Use and develop land generally in accordance with the *Area specific strategic framework plans* at Clause 02.04-7.
- Protect existing or create new urban breaks between settlements while retaining their natural features and functions, including open space and bushland areas:
  - Between Narre Warren and Hallam.
  - Within the Hallam Valley Floodplain.
  - Within the Cardinia Creek Parklands.
  - Under the major electricity transmission lines between Hampton Park and Narre Warren South and between Cranbourne and Cranbourne West.

### Established Areas

Casey's established areas contain the suburbs of Endeavour Hills (urban area), Doveton and Eumemmerring, Hallam, Narre Warren, Narre Warren South, Hampton Park, Lynbrook and Lyndhurst, Cranbourne and Berwick. These areas benefit from existing services, facilities and transport connections that makes them ideal for supporting urban consolidation. They also benefit from a defined leafy and 'green-treed' character. This combination of characteristics makes the established suburbs attractive places to live while balancing the needs between supporting urban consolidation and maintaining the valued characteristics of these areas.

Strategic directions:

- Encourage urban consolidation in established areas that maintains the individual characteristics of each area.
- Focus activity into identified activity centres and community places to create a sense of place, create physical community landmarks and focal points, and reinforce community identity.
- Ensure development makes a commensurate contribution to local physical and community infrastructure needed to service the development.

### Growth Areas

Casey's growth areas are located in the Urban Growth Zones of Cranbourne East, West and North; Berwick South; Clyde and Clyde North; Botanic Ridge; and Junction Village.

These growth areas extend into farming land used for intensive agricultural purposes. The transition of this land from farming to urban uses will require careful management.

Strategic directions:

- Manage existing agricultural areas designated for future urban development so that 'right to farm' principles are protected in the medium term whilst the area transitions to urban land.
- Encourage the early delivery of infrastructure in planned growth areas to support residents.

- Plan new subdivisions to ensure a range of lot sizes are provided throughout Casey's growth areas.
- Discourage the use and development of land in growth areas that could prejudice future use and development outcomes, including through compromising future urban structure or the compatibility of current and future land uses.

### Casey Foothills

The Casey Foothills area is important for its hilly terrain which offers topographical and scenic relief to the otherwise low-lying built-up areas of Casey. Its visual qualities contribute to a positive image of the municipality as a desirable place to live. The part of the Foothills containing the Southern Ranges Green Wedge is protected for its environmental and landscape qualities to ensure the special rural character is not compromised.

Strategic directions:

- Protect the low-density, open rural character of the Casey Foothills.
- Protect and enhance the scenic values of the Casey Foothills including its:
  - Valued rural landscape and character.
  - Exposed hilltops and ridge lines.
  - Vegetation.
- Maintain a clear village boundary around Harkaway to retain the perception of a non-suburban area completely around the village.
- Maintain a clear village boundary around Narre Warren North to retain the perception of a non-suburban area completely around the township.

### Casey Farm

Casey Farm features a mix of productive farmland with intensive agriculture and other rural activities, and large-lot rural residential and village and township living.

The Pearcedale Township is the commercial and residential hub of the Casey Farm area.

Strategic directions:

- Manage rural areas so that 'right to farm' principles are protected as the primary long-term planning objective including protecting farming areas from urban incursion.
- Encourage use and development that supports Pearcedale Township in its role as a commercial and residential hub.
- Discourage any intensification of Pearcedale Township unless it:
  - Is part of an overall Township plan.
  - Does not detrimentally impact on the amenity and productivity of the surrounding Rural Living and Agricultural Production Precinct as shown on the map at Clause 11.01-1L-02.
  - Does not exceed the capacity of existing infrastructure systems.
  - Does not detrimentally impact the surrounding environment.

### Casey Coast

Casey Coast, on the shores of Western Port, is an internationally significant area noted for its environmental attributes and habitats. The area is also characterised by sustainable farming and four coastal villages.

Tooradin will be a busy recreation and eco-tourism centre servicing the Casey coastal communities and its visitors, in contrast to the smaller, serene villages of Warneet, Blind Bight and Cannons Creek.

Strategic directions:

- Allow infill development only for Tooradin within its current township boundaries.
- Avoid the growth, expansion or intensification (including subdivision) of Cannon's Creek, Warneet, and Blind Bight due to infrastructure and environmental constraints.
- Protect high quality agricultural land east of Sawtells Inlet and north of the South Gippsland Highway.
- Maintain the landscape character free of commercial development along the South Gippsland Highway between Baxter-Tooraddin Road and Lyalls Inlet.
- Enhance the open, coastal, rural landscape character of the land south of Baxter-Tooradin Road.

### Green Wedges

The green wedge areas comprise the rural areas outside the Urban Growth Boundary. Part of the Casey Foothills in the north contains a section of the Southern Ranges Green Wedge, and Casey Farm and Casey Coast in the south contains the Western Port Green Wedge. They make a valuable contribution to the identity and prosperity of Casey and provide important resources for agriculture, biodiversity and other non-urban purposes such as recreation and tourism.

These areas are experiencing increased pressure to accommodate urban uses that are having challenges locating within the Urban Growth Boundary. It is important that non-agricultural uses are sited and designed to avoid the loss of valuable agricultural land, poor servicing and adverse impacts on landscape and environmental qualities.

Proper management is critical for the protection and conservation of the green wedges to ensure the continued sustainability of these areas and ensure their valued qualities are not eroded.

Strategic directions:

- Protect the green wedges from urban use or development, except where it complements its primary values of agriculture, biodiversity, rural character, maintenance of viable settlements, and tourism.
- Protect and facilitate agricultural and horticultural industry in the green wedges.
- Protect and enhance each green wedge's unique and attractive landscapes and landforms.
- Support local tourism based on the strengths and assets of each green wedge.

### Activity Centres

Casey is served by a range of activity centres varying in size from local convenience activity centres through to a Metropolitan Activity Centre. The six largest centres are as follows (listed in order of size):

- Fountain Gate-Narre Warren CBD Metropolitan Activity Centre.
- Cranbourne Major Activity Centre.
- Berwick Major Activity Centre.
- Hampton Park Major Activity Centre.
- Casey Central Major Activity Centre.
- Endeavour Hills Major Activity Centre.

Fountain Gate-Narre Warren CBD is the urban focal point for the northern part of the municipality, with the Cranbourne Major Activity Centre forming the focal point in the south. It is expected that the role of these two centres in providing high-level regional services will increase over the next decade as links with the Cardinia Employment Corridor and Gippsland along the highway and rail corridors continue to grow.

Expectations are that the Casey Central Major Activity Centre will grow and increase in prominence overtime with the increasing growth area population. The other Major Activity Centres will continue to develop and intensify, servicing each catchment.

Development of existing activity centres plays a critical part in increasing employment in Casey with a large proportion of the residential population leaving the municipality each day for work.

Strategic directions:

- Direct retail, commercial and non-retail use and development into a network of activity centres consistent with the *Activity centre hierarchy plan* at 02.04-3 and Table 1 at Clause 11.03-1L.
- Ensure that the Fountain Gate-Narre Warren CBD Metropolitan Activity Centre provides higher order activities and a diverse range of employment opportunities for the region, and acts as a community hub and a focus for residential infill development.
- Ensure that Major Activity Centres provide a broad mix of higher-order activities, including entertainment uses, to attract a significant level of visitation.
- Ensure Medium Neighbourhood Activity Centres and Local Neighbourhood Activity Centres provide a broad mix of activities to provide for day-to-day and weekly retail and service needs at a neighbourhood level.

## 02.03-2 Environmental and landscape values

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### Biodiversity

Casey's bushland (comprising of indigenous and remnant vegetation) and creek corridors, provide habitat for a broad range of flora and fauna, including rare species listed under Commonwealth legislation and protected by international treaties. Biolink corridors provide critical linkages for the survival of threatened species, such as the Southern Brown Bandicoot and the Dwarf Galaxias.

Areas in Casey with significant biodiversity values are identified on the *Areas with significant biodiversity values plan* in Clause 02.04-5.

Past land use practices, such as agriculture, have resulted in habitat loss and fragmentation, particularly in rural and suburban areas.

The protection and restoration of Casey's biological and habitat diversity is fundamental in achieving a healthy environment and way of life for current and future generations. The challenge is to realise this goal within the framework of Casey's continuing rapid development.

While the most extensive and highest quality vegetation remnants and fauna habitats are on public land, private land also includes rare and threatened flora and fauna populations and vegetation types, particularly in the green wedges.

Strategic directions:

- Protect and enhance areas of biodiversity significance, including biolink corridors and habitat features.
- Protect and enhance indigenous and remnant vegetation.
- Enhance habitat connectivity across Casey through habitat links and open space areas.
- Facilitate the development of vegetated corridors along Casey's waterways.

- Encourage development to respond to the need to increase bushland and habitat in suburban and rural areas.
- Protect and enhance biodiversity and habitats within the green wedges, especially for rare or endangered flora and fauna.

### Coast and foreshore

The Western Port coastal area is one of 42 Wetlands of International Significance in Australia. The Casey Coast, on the shores of Western Port, is an internationally significant area that is noted for its environmental attributes, particularly its biodiversity and wide range of habitats for coastal plants and animals. These habitats feature salt marshes, mangroves, inter-tidal mudflats and seagrass beds.

Strategic directions:

- Protect the internationally significant coastal flora, fauna and the marine environment.
- Facilitate the long-term environmental restoration of the Casey Coast.

### Waterways

Water management is critical to the conservation of biodiversity, ecosystem function, water treatment and stream health.

The major waterways and waterbodies in Casey include Cardinia, Dandenong and Eumemmerring Creeks, Watson Inlets, the Hallam Valley Main Drain, Eastern Contour Drain, Tooradin/Dalmore outfalls and Western Port Bay.

The majority of Casey's waterways are in poor to moderate condition and there is an opportunity to improve the health of waterways for the benefit of the environment and community.

Strategic direction:

- Protect and enhance the health of waterways and bays.

### Landscapes

Casey's environment and landscape are characterised by extensive areas of land with high agricultural, natural landscape, geologic, cultural heritage or environmental value.

The varied landscapes found throughout Casey help to provide definition and character to its communities.

They range from the foothills region in the north with its steep topography and scattered remnant vegetation to grassy plains featuring remnant River Red Gum trees and gently undulating topography. Further south, the landscape gives way to sandy soils and a flourishing agricultural industry with scattered stands of remnant vegetation leading to the coastal areas with their internationally recognised costal ecosystems.

Strategic directions:

- Protect and enhance Casey's significant landscapes and natural features.
- Enhance the natural and environmental qualities of Cardinia Creek Valley and protect it from further loss of its natural values.

## 02.03-3 Environmental risks and amenity

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### Climate change impacts

The effects of climate change (such as extreme weather events, urban heat island effect and the like) can negatively impact and threaten the protection and enhancement of biodiversity and the ability to achieve a healthy environment and way of life for current and future generations.

The low-lying areas along the Western Port coast, including the villages of Cannons Creek, Tooradin and Warneet, are sensitive to the impacts of climate change from rising sea levels.

Strategic directions:

- Encourage and support revegetation and increased tree canopy coverage to reduce urban heat island effects and to support biodiversity.
- Protect life and property from the impacts of sea level rise.

### Bushfire and flooding

Increased incidences of bushfire and flooding are occurring as the result of climate change. Protection measures under the Casey Planning Scheme assist in the protection of life, property and the environment from the threat of bushfire or flood.

Strategic directions:

- Ensure strategic and settlement planning and development decisions prioritise the protection of human life and minimise the risk to property from bushfire.
- Ensure development minimises the risk to life and property from flooding.

### Amenity protection

Residential areas can benefit from co-located complementary non-residential uses for the convenience they offer. However, care must be taken in designing and siting non-residential uses to avoid loss of amenity to residents or undermining the role of activity centres.

While most business and community services are best located in activity centres, there are some instances where it is appropriate to locate non-residential uses in out-of-centre residential areas.

There is a need to protect industries such as poultry farms and quarries from the potential encroachment of incompatible uses, while also preserving the amenity of nearby residential properties.

Strategic directions:

- Ensure the location, siting and development of non-residential uses in residential areas does not detrimentally affect the amenity of existing residential areas or the operation of activity centres.
- Protect residential amenity where residential areas interface with commercial and industrial land.
- Maintain buffers from residential to industrial areas, including existing quarry, landfill, poultry/broiler farms and other uses with adverse off-site amenity impacts until such time as the activities creating the need for the buffers cease to operate and the off-site amenity impacts have been addressed and the land within the buffer areas is safe for the intended use or development.

### Waste disposal and resource recovery facility protection

Casey contains State significant waste and resource recovery facilities that are essential in meeting the needs of the State and Metropolitan Melbourne.

Locating waste disposal or resource-recovery facilities in appropriate areas of the metropolitan region is challenging. Council has a role in the protection of existing sites, the planning for future sites and the facilitation of sustainable waste management technologies. A balance must be struck between this and the use and development of land within proximity of these facilities.

Strategic directions:

- Minimise land use conflict that may occur with uses located within proximity to waste and resource recovery facilities.
- Protect waste and resource recovery facilities and their buffers from encroachment of incompatible land uses.

## 02.03-4 Natural resource management

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Casey has a strong agricultural base that includes horticulture and animal husbandry, with a particular focus on market gardens, dog breeding and the equine industry. Most of these industries are in the south and east of the municipality.

There is also the presence of valuable natural resources such as clay, sand and rock that need to be protected for future use or extraction.

Strategic directions:

- Ensure the ongoing protection and sustainable use of agricultural land.
- Protect future options to extract sand and stone resources in Extractive Industry Interest Areas.

## 02.03-5 Built environment and heritage

19/06/2025
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Good design in both the public and private realm fosters a sense of community pride and inclusion and assists in supporting health and wellbeing in the community.

Casey's built form is characterised by a suburban environment, punctuated by activity centres and framed by a non-urban area that consists of landscapes of agricultural, natural, cultural and heritage significance. Council aims to manage new and infill development to retain and enhance Casey's green, treed character and valued characteristics of its local areas.

Trees and landscaping play an important role in enhancing the image and identity of Casey's suburban areas, townships and non-urban areas, and provide links between all these areas.

Casey's Aboriginal cultural heritage has provided the foundation upon which its rich cultural diversity and built heritage has developed. The significant natural, cultural and built heritage places need protection from adverse impacts of deterioration, and inappropriate use and development. Casey faces the significant challenge of protecting and integrating its most valued heritage into a rapidly developing urban area.

Strategic directions:

- Maintain and enhance the individual and distinctive character of Casey's townships, villages and suburban areas.
- Encourage the establishment of a treed landscape with leafy streetscapes, open spaces and properties.
- Site and design residential development to allow for the establishment of landscaping to respect the green-treed image of Casey and extend that to Casey's growth areas.
- Protect and maintain Aboriginal cultural and post-contact heritage places for present and future generations.
- Protect the significance of growth area heritage places through their conservation and adaptive re-use.

### Environmentally sustainable design

Council is committed to improving the sustainability of the built environment. Environmentally sustainable design should be incorporated during the planning of a development to achieve outcomes that may otherwise be compromised if these matters are only considered as part of building approval. It also may reduce difficulties or extra costs associated with retro-fitting development.

Strategic direction:

- Encourage development to incorporate environmentally sustainable design principles.

## 02.03-6 Housing

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Casey is experiencing significant population increase associated with large numbers of young families moving into new residential estates. There are also a number of established suburbs with maturing populations. The ethnic mix, household type, income levels, education levels and other socio-economic characteristics vary widely across the municipality.

Housing in Casey should provide for the needs and preferences of dynamic and evolving communities. In particular, there is a need for housing diversity to cater for more single and dual person households into the future.

Locations for housing change have been identified to direct residential development to areas suited to accommodate increased housing. More intensive development should be directed to substantial change areas with easy access to existing services, high frequency transport options, and activity centres. Moderate levels of development are to be directed to incremental change areas that have convenient access to activity centres and are close to strategic transport routes.

Minimal change areas are those with established heritage and neighbourhood character values or that are more remote from public transport and services. These areas are least suited to housing change.

Strategic directions:

- Direct more intensive residential development to metropolitan and major activity centres and to substantial change areas.
- Direct moderate levels of residential development to neighbourhood and local activity centres and to incremental change areas.
- Discourage more intense residential development from locating in minimal change areas.
- Ensure diverse housing types and lot sizes are provided to meet the needs of a diverse and changing community.

## 02.03-7 Economic development

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### Economic diversity and employment

Casey has enjoyed strong job growth, mainly driven by population serving industries such as health, education, retail trade and construction. Tourism and hospitality are also key contributors to Casey's economy. While these sectors drive the economy, population growth has continued to exceed the rate of the local job market resulting in an employment self-containment below the metropolitan average. There is a need for diversity and innovation to support Casey's economy and increase local employment opportunities, including in the tourism and eco-tourism sector.

Part of this diversification includes the creation of technology precincts based around tertiary education and related facilities. The Berwick Health and Education Precinct presents the opportunity to create at least 10,000 such jobs alone in a high-density technology precinct based around the Federation University, Chisholm TAFE and the St John of God and Casey Hospitals.

As employment land supply in the City of Greater Dandenong becomes constrained, it is essential that the City of Casey has well-connected, timely and sufficient supply of employment land to allow for seamless business growth across the region.

Strategic directions:

- Encourage local employment opportunities in response to rapid growth and to reduce the need of Casey residents to seek work outside the municipality.
- Facilitate the growth of strategic and emerging technology sectors that provide for economic diversity and local employment opportunities.

- Support land use and development for tourism and eco-tourism.
- Provide a focus for major health and education facilities in the Berwick Health and Education Precinct complemented by specialty retail, hospitality and high-density residential uses.

#### Industrial areas

Over time, vacant industrial zoned land in Casey has been rezoned to allow for residential and other urban land uses. This process has resulted in the need to maintain an adequate supply of industrial land to support investment and local employment opportunities.

Industrial areas in Casey are often located close to residential areas and sensitive uses such as schools. Industries with noxious off-site emissions or significant safety risks should be sited and designed to minimise off-site impacts.

Strategic directions:

- Ensure that there is sufficient industrial land to support industrial investment.
- Avoid the location of industrial uses with adverse amenity potential close to residential areas and sensitive uses.

## 02.03-8 Transport

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Casey's current transport patterns and lack of transport alternatives are not sustainable. The City is growing rapidly and transport infrastructure has not kept pace with population growth. With growth predicted to continue, more car trips are being added to the network. This exacerbates car dependence resulting in negative social, environmental and health impacts, compounded by poor active transport access in many parts of the municipality.

Active transport infrastructure provides access to affordable transport, physical fitness and recreation. Council is committed to facilitating sustainable transport modes as a viable alternative to the car.

Strategic directions:

- Facilitate the development of a multi-mode transport network in Casey that links community places and other key destinations and supports a mode-shift to more active transport.
- Support development that provides facilities and infrastructure for active transport such as walking and cycling, and increased use of public transport.
- Support the upgrading of regional transport routes to improve access to the wider region.
- Facilitate the delivery of public transport and active transport infrastructure to growth areas.

## 02.03-9 Infrastructure

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#### Integrated water management

Impervious areas generate a large volume of excess stormwater runoff into waterways such as Port Phillip Bay and Western Port Bay. Stormwater runoff carries pollutants that can have detrimental effects on waterways. Casey's population growth and development will lead to an increase of impervious area and pressure on already low drinking water supplies.

Strategic directions:

- Reduce stormwater impacts on waterways through stormwater management and integrated water management practices.
- Minimise the inefficient use of potable water supply.

### Open space

Council recognises the benefits that open space provides for the health and wellbeing of its residents and liveability of Casey. In new residential areas the development process does not always deliver the quality and quantity of open space that Council believes is required to deliver the desired range of community benefits. There is also increased pressure on public open space in established residential areas of Casey due to further infill residential development.

Recreational trails, including equestrian trails, are inclusive places that allow residents of all ages to move across passive and active open spaces through a connected network.

Strategic directions:

- Develop a network of quality open spaces that provide for the diverse recreational, cultural, environmental and aesthetic needs of the community.
- Improve the connectivity of open spaces to make it easier to access existing open space.
- Facilitate the development of a recreational trail network to meet the community's recreational and access needs.

### High pressure gas transmission pipelines

The Morwell-Dandenong Pipeline, Longford-Dandenong Pipeline and Clyde North Lateral Pipeline are high pressure gas transmission pipelines licensed under the *Pipelines Act 2005*. Changes to land use and development in the vicinity of the pipeline must be carefully considered to ensure risks to human life and the functional operation of the pipeline are not impacted.

Strategic directions:

- Protect high pressure gas transmission pipelines from encroachment of development that would compromise their efficient functioning and safety.
- Manage land use and development in the vicinity of high pressure gas transmission pipelines to minimise risks to human life and the functional operation of the pipelines.

## 02.03-10 Gaming

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Casey has an established gambling industry. While gaming venues provide opportunities for entertainment, recreation, employment and socialising, Council recognises that gaming can cause financial and social harm. It is important to achieve a balance of lifestyle choices for the community.

Strategic directions:

- Discourage the further growth of gaming in vulnerable communities especially those with below average SEIFA scores.
- Promote alternative forms of recreational activities in Casey, including entertainment opportunities that support the growth of the night-time economies and provide a choice of activities.
- Discourage gaming machines from locating in strip shopping centres.

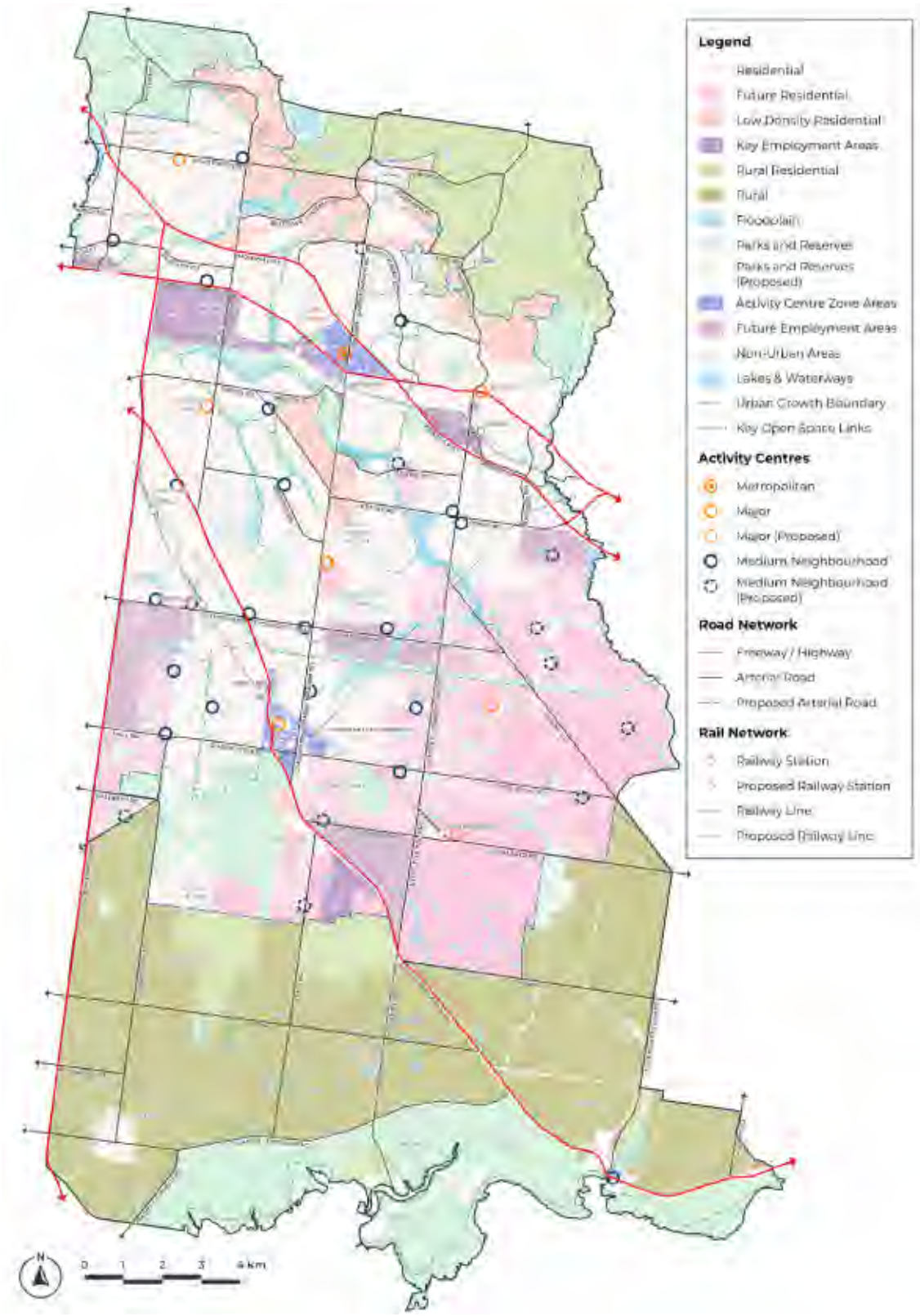
## 02.04 STRATEGIC FRAMEWORK PLANS

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The plans contained in Clause 02.04 are to be read in conjunction with the strategic directions in Clause 02.03.

## 02.04-1 Strategic Framework Plan

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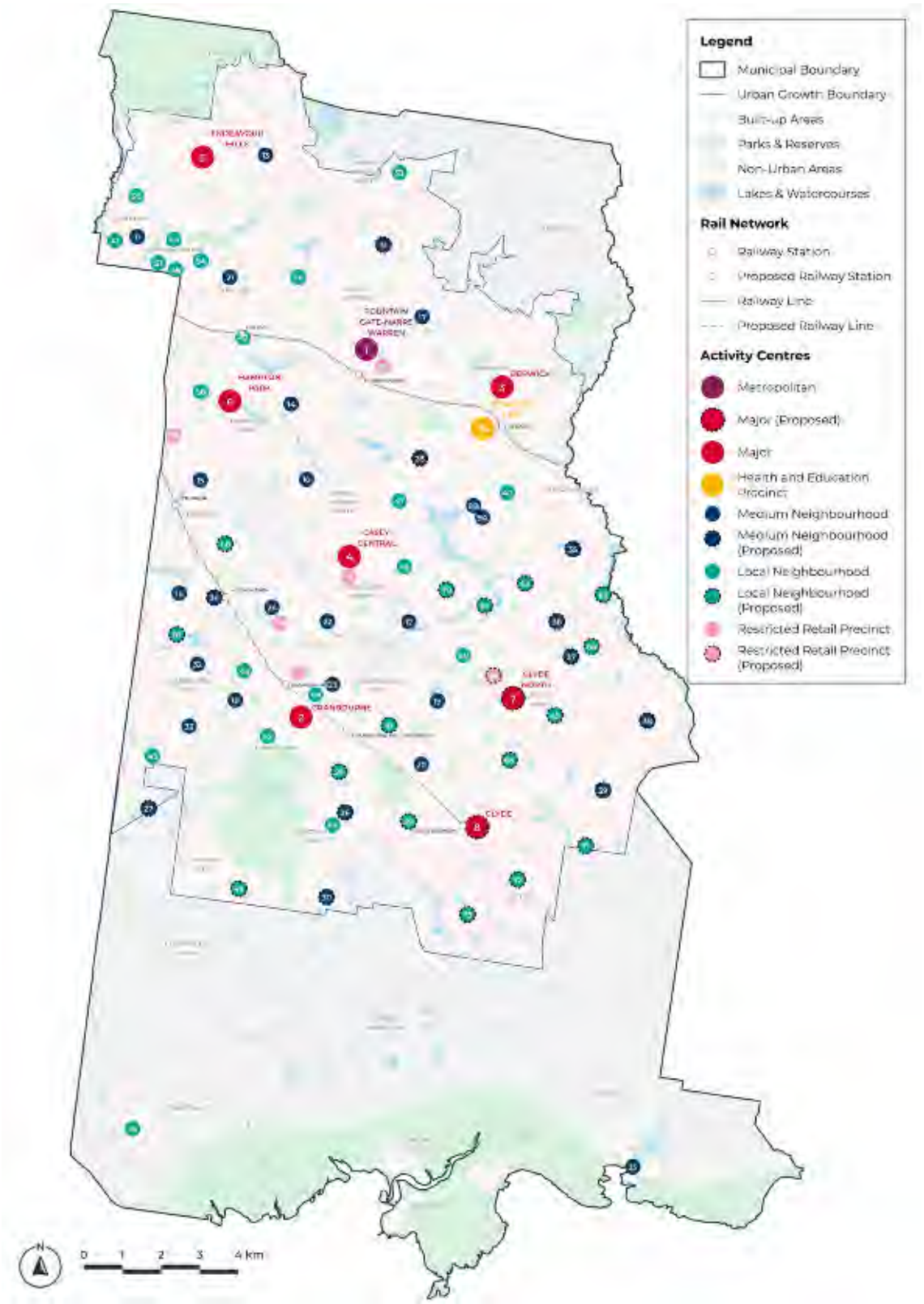
## 02.04-2 Casey's local regions

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## 02.04-3 Activity centre hierarchy plan

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| Metropolitan | | Local Neighbourhood | |
|---|---|---|---|
| 1 | Fountain Gate-Narre Warren | 40 | Bemersyde Drive |
| **Major** | | 41 | Box St |
| 2 | Cranbourne | 42 | Camms Rd |
| 3 | Berwick | 43 | Clarinda Park |
| 4 | Casey Central | 44 | Doveton Avenue |
| 5 | Endeavour Hills | 45 | Eve |
| 6 | Hampton Park | 46 | Freeway Sports |
| **Major Proposed** | | 47 | Greaves Rd |
| 7 | Clyde North | 48 | Hallam Station |
| 8 | Clyde | 49 | Hotham St |
| **Health and Education Precinct** | | 50 | Linden Place |
| 74 | Berwick HEP | 51 | Llewellyn Place |
| **Medium Neighbourhood** | | 52 | Lurline St |
| 9a | Eden Rise | 53 | Main St |
| 9b | Berwick Springs | 54 | Marshall Place |
| 10 | Amberly Park | 55 | Pearcedale |
| 11 | Autumn Place | 56 | Saffron Drive |
| 12 | Avenue Village | 57 | The Arcade |
| 13 | Heatherton Rd | 58 | Somerville Rd |
| 14 | Kirkwood Crescent | 60 | Berwick-Cranbourne Rd |
| 15 | Lynbrook Village | **Local Neighbourhood (Proposed)** | |
| 16 | Marriot Waters | 29 | Western Local Ctr |
| 17 | Parkhill Plaza | 59 | Ballarto Rd (Casey Fields S. PSP) |
| 18 | Sandhurst Centre | 61 | Central Trunk Boulevard |
| 19 | Selandra Rise | 62 | Grice's Rd |
| 20 | Shopping on Clyde | 63 | Northeast Local |
| 21 | Spring Square | 64 | Southeast Local |
| 22 | Springhill | 65 | Hardy's Road Local |
| 23 | The Hunt Club | 66 | South Gippsland Highway |
| 24 | Thompson Parkway | 67 | Springbrook Drive |
| 25 | Tooradin Village | 68 | Tuckers Rd |
| 32 | Central Parkway | 69 | Western Small |
| 33 | Hall and Evans Rd | 70 | Wheelers Park Drive |

| Medium Neighbourhood (Proposed) | | 71 | Ballarto Rd (Cardinia Creek PSP) |
|---|---|---|---|
| 26 | Adrian St | 72 | Future Growth Area Centre (indicative) |
| 27 | Cranbourne-Frankston Rd | 73 | Future Growth Area Centre (Indicative) |
| 28 | Centre Rd | 81 | Cranbourne East |
| 30 | Eastern Local on Craig Rd | **Restricted Retail Precinct** | |
| 31 | Ernst Wanke Rd | 75 | Casey Central RRP |
| 34 | Merinda Park | 76 | Cranbourne Town Centre RRP |
| 35 | Minta Farm | 77 | Fountain Gate-Narre Warren RRP |
| 36 | Soldiers Rd | 78 | Home RRP |
| 37 | St. Germain | 79 | Lynbrook Business RRP |
| 38 | Alexander Boulevard | **Restricted Retail Precinct (Proposed)** | |
| 39 | Patterson's Rd | 80 | Hardy's Rd RRP |

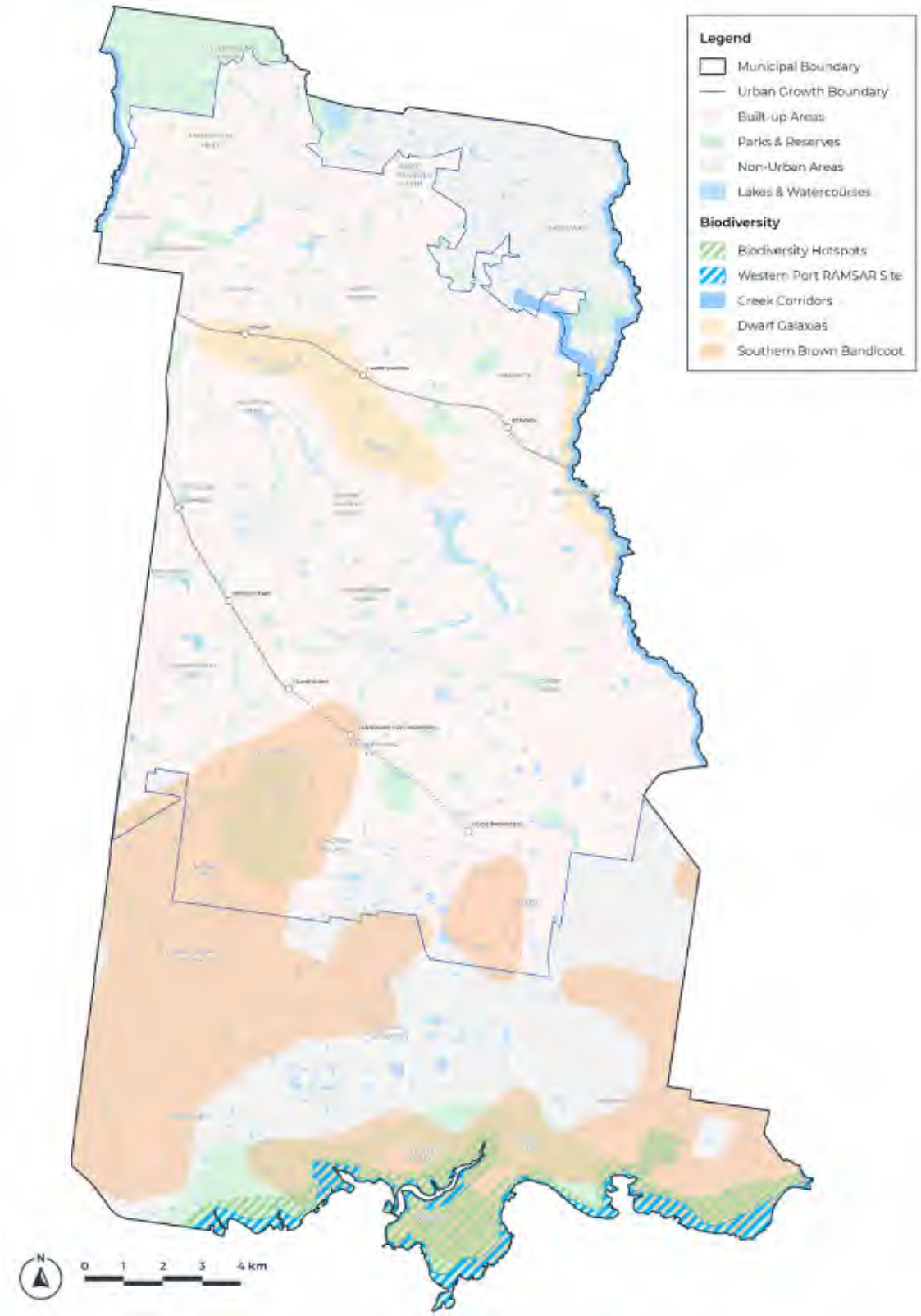
## 02.04-4 Residential settlement framework plan

08/05/2026
C304case



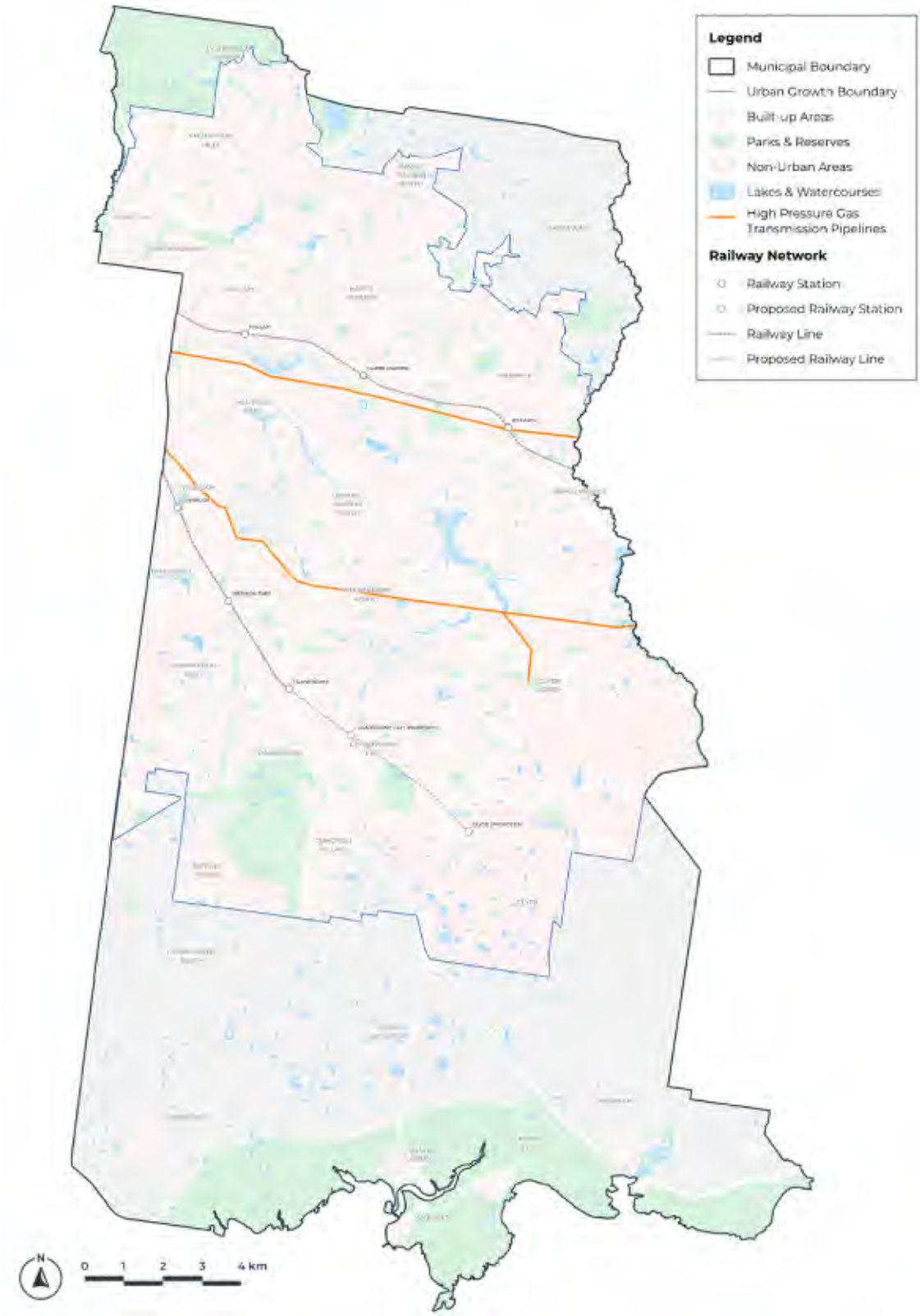
## 02.04-5 Areas with significant biodiversity values plan

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C284case



## 02.04-6 High pressure gas transmission pipelines plan

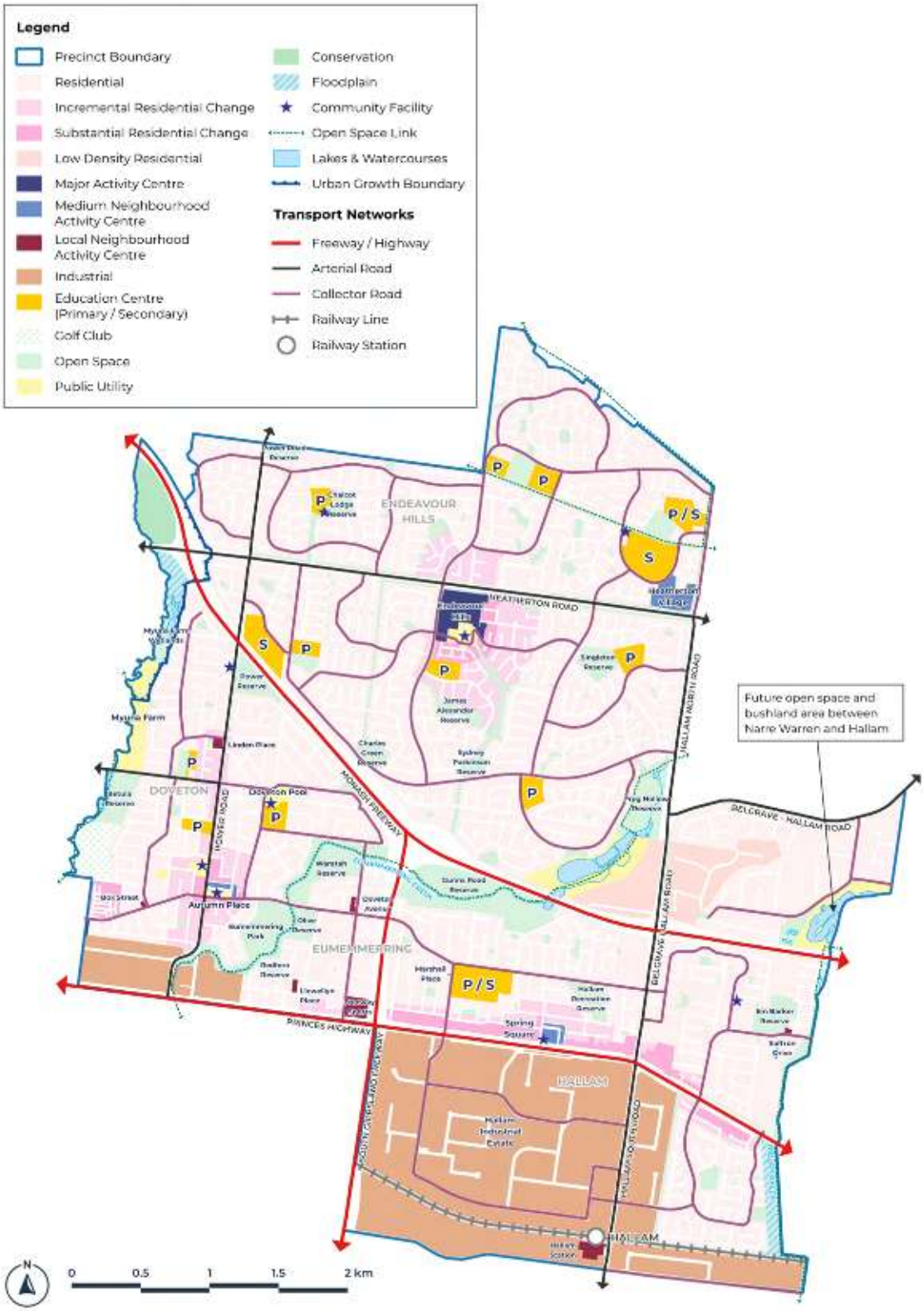
19/06/2025
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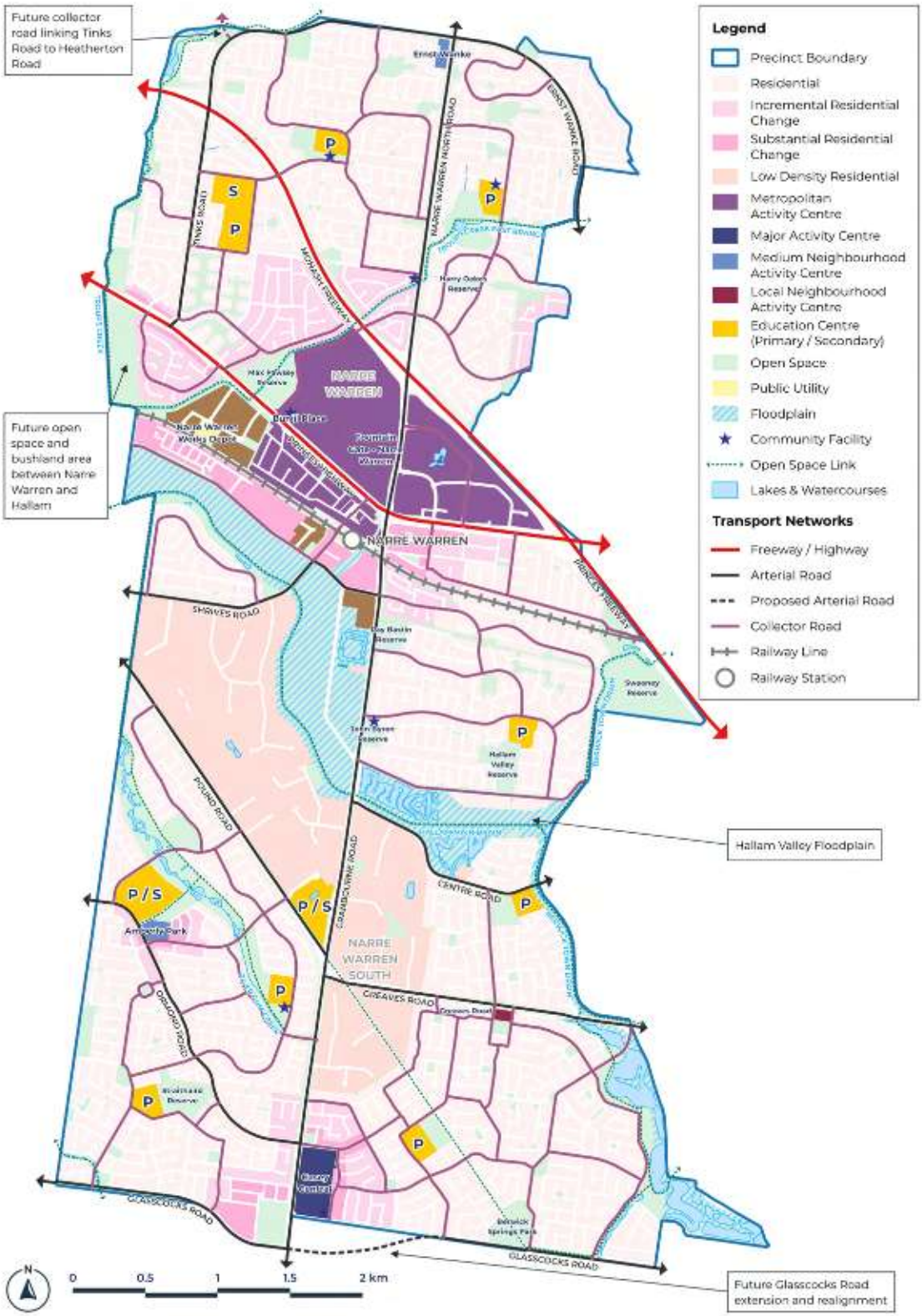
## 02.04-7 Area specific strategic framework plans

19/06/2025
C284case

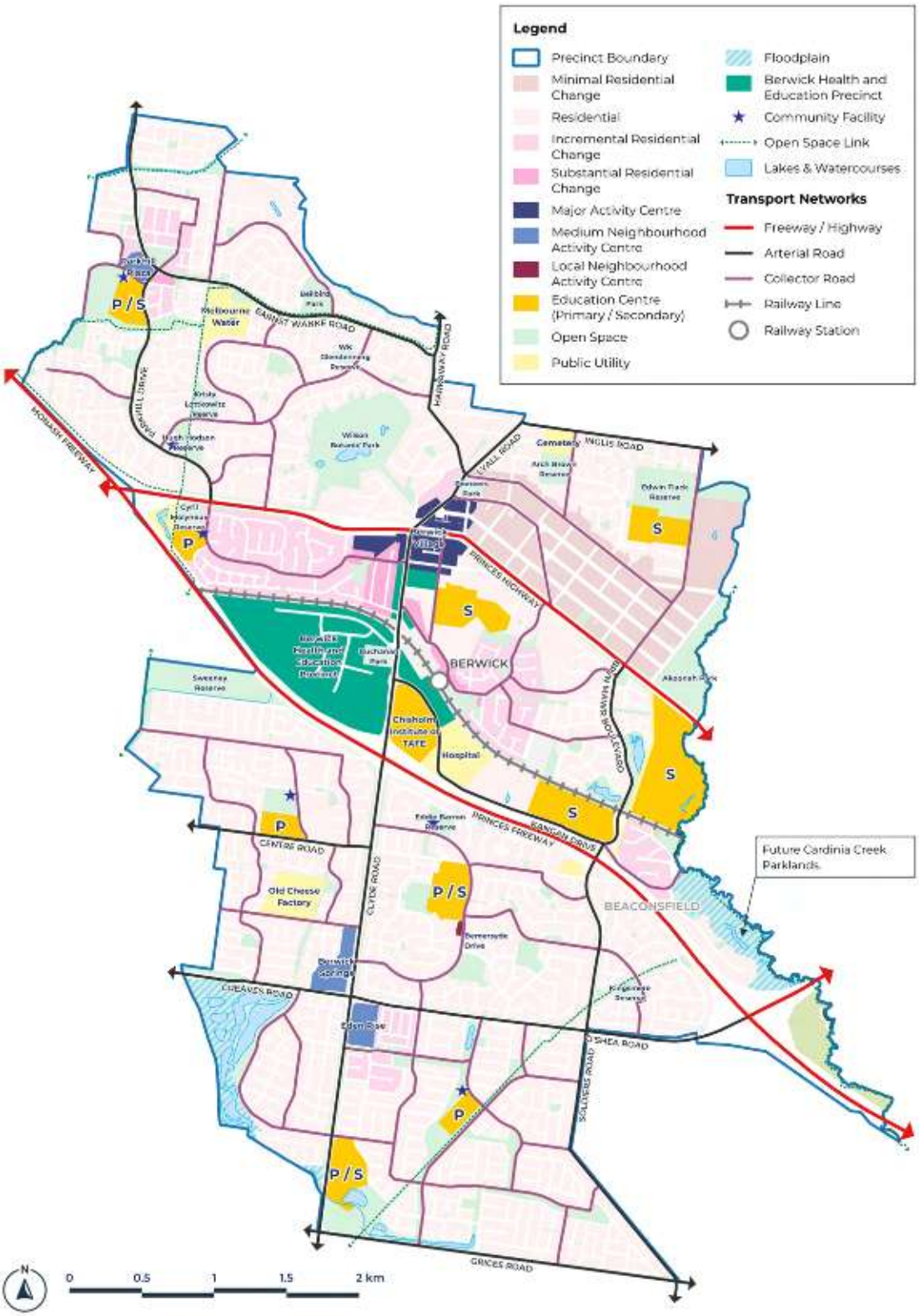
### Casey Established Area 1 - Endeavour Hills, Doveton and Hallam



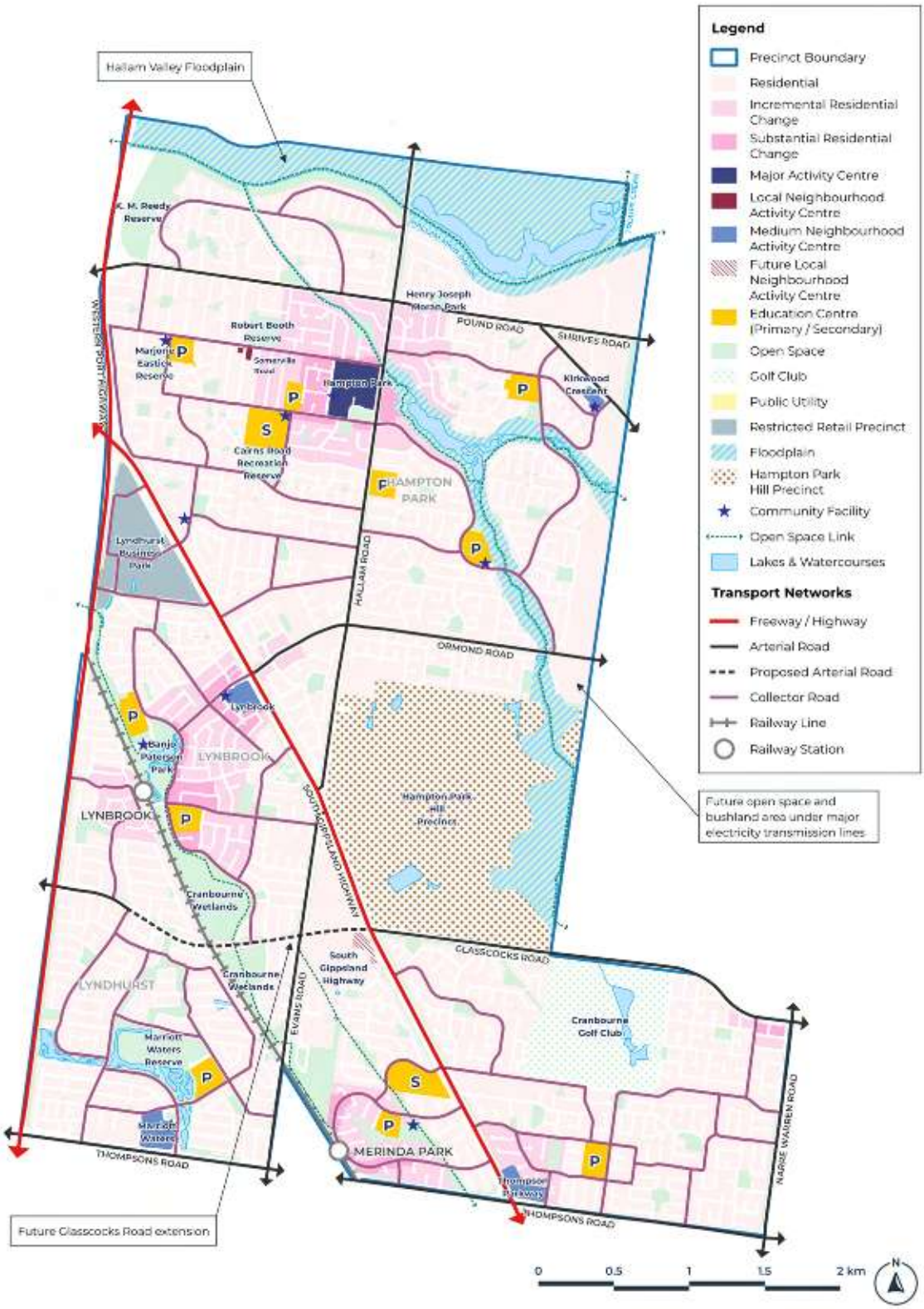
## Casey Established Area 2 - Narre Warren and Narre Warren South



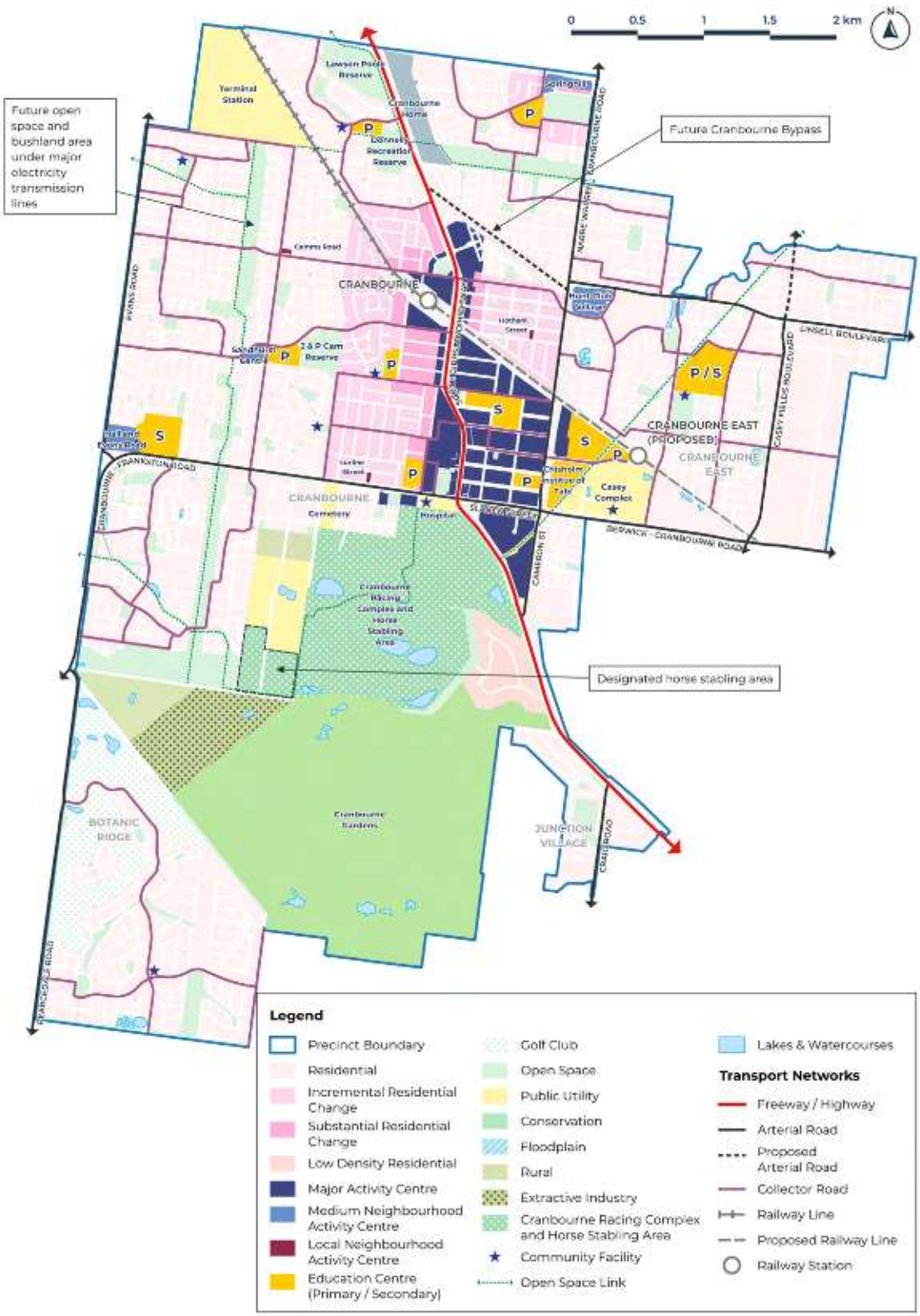
## Casey Established Area 3 - Berwick



## Casey Established Area 4 - Hampton Park, Lyndhurst and Lynbrook



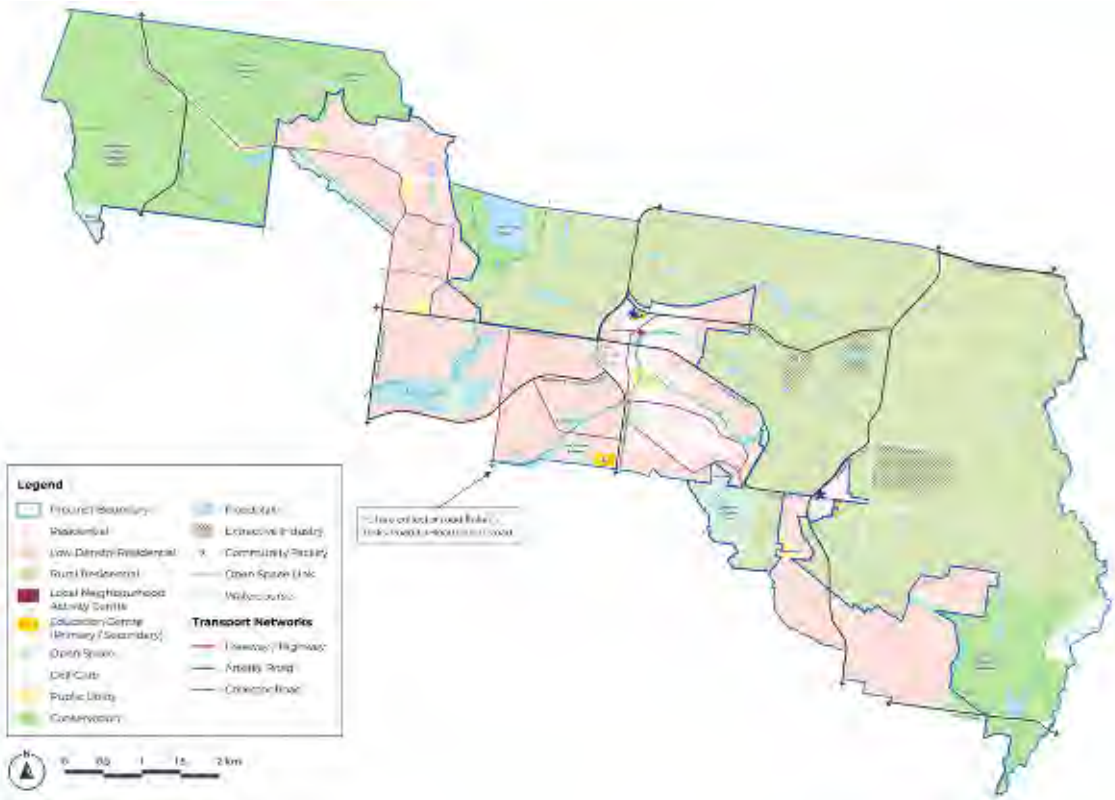
## Casey Established Area 5 - Cranbourne and Botanic Ridge



## Growth Areas



## Casey Foothills



## Casey Farm



## Casey Coast


Legend
Precinct Boundary
Residential
Rural Residential
Township
Education Centre (National)
Public Utility
Open Space
Conservation
Rural
Airfield
Community Facility
Open Space / Link
Lakes & Watercourses
Transport Networks
Freeway / Highway
Arterial Road
Collector Road

# 10 PLANNING POLICY FRAMEWORK

31/07/2018
VC148

# 11 SETTLEMENT

02/09/2025
VC283

Planning is to anticipate and respond to the needs of existing and future communities through provision of zoned and serviced land for housing, employment, recreation and open space, commercial and community facilities and infrastructure.

Planning is to contribute towards:

- Housing for all Victorians.
- Accessible jobs and services.
- Great places, suburbs and towns.
- Sustainable environments.
- Self-determination and caring for Country.

Planning is to recognise the need for, and as far as practicable contribute towards:

- Health, wellbeing and safety.
- Diversity of choice.
- Adaptation in response to changing technology.
- Economic viability.
- A high standard of environmental sustainability, urban design and amenity.
- Climate change adaptation and mitigation.
- Prevention of land, water, air and noise pollution.
- Protecting, conserving and improving biodiversity, waterways and other natural resources.
- Accessibility.
- Land use and transport integration.
- Waste minimisation and resource recovery.

Planning is to prevent environmental, human health and amenity problems created by siting incompatible land uses close together.

Planning is to facilitate sustainable development that takes full advantage of existing settlement patterns and investment in transport, utility, social, community and commercial infrastructure and services.

## 11.01 VICTORIA

31/07/2018
VC148

## 11.01-1S Settlement

02/09/2025
VC283

### Objective

To facilitate the sustainable growth and development of Victoria and deliver choice and opportunity for all Victorians through a network of settlements.

### Strategies

Plan for the delivery of 2.24 million homes across Victoria by 2051.

Develop sustainable communities through a settlement framework that:

- Offers a range of housing choices.
- Provides convenient access to jobs, services, infrastructure and community facilities.
- Takes into account regional and municipal contexts and frameworks.

Focus investment and growth in:

- Melbourne Central City.
- Metropolitan Activity Centres and Suburban Rail Loop Precincts in Metropolitan Melbourne.
- Priority Precincts (including the Suburban Rail Loop East Precincts).
- Major regional cities of Ballarat, Bendigo and Geelong.
- Regional cities of Horsham, Latrobe City, Mildura, Shepparton, Wangaratta, Warrnambool and Wodonga.

Manage the expansion of settlements by:

- Creating and reinforcing settlement boundaries. Where no settlement boundary is identified, limit the expansion of a settlement to the extent of existing urban zoned land.
- Promoting and capitalising on opportunities for urban renewal and infill redevelopment.
- Limiting urban sprawl and directing growth into existing settlements.
- Ensuring land that may be required for future urban expansion is not compromised.

Provide for growth in population and development of facilities and services across a regional or sub-regional network in accordance with housing targets.

Plan for development and investment opportunities that make best use of existing and planned transport infrastructure.

Coordinate transport, communications and economic linkages between settlements through the identification of servicing priorities.

Strengthen transport links on national networks for the movement of commodities.

Deliver networks of high-quality integrated settlements, suburbs and towns that:

- Are great places with a strong identity and sense of place.
- Are inclusive, prosperous, liveable and sustainable.
- Comprise a form and density that supports healthy, active and sustainable transport.
- Are based around compact existing or planned activity centres to maximise accessibility to facilities and services.
- Concentrate retail, office-based employment, community facilities and services in central locations.

Facilitate environmentally resilient settlements by:

- Integrating the management of water resources into the urban environment in a way that supports water security, public health, environment and amenity outcomes.

- Minimising exposure to natural hazards.
- Contributing to net zero greenhouse gas emissions through renewable energy infrastructure and energy efficient urban layout and urban design.
- Supporting metropolitan and regional climate change adaption and mitigation measures.
- Supporting cooling and greening measures for urban areas.

### Policy guidelines

Consider as relevant:

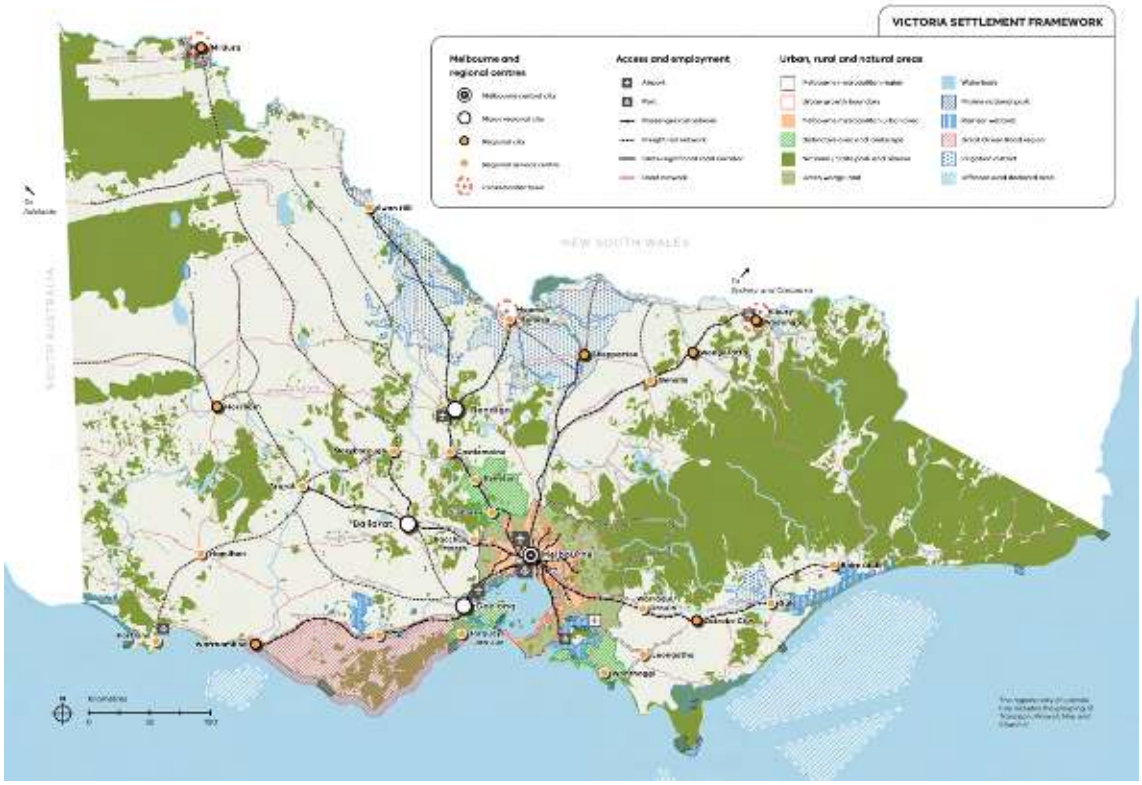
- Any settlement boundary identified in a document incorporated into this planning scheme.

### Policy documents

Consider as relevant:

- *Plan for Victoria* (Department of Transport and Planning, 2025)
- *Victoria's housing Statement - The Decade Ahead 2024-2034* (Department of Premier and Cabinet, 2023)

### Victoria Settlement Framework Plan



## 11.01-1R Settlement - Metropolitan Melbourne

02/09/2025
VC283

### Strategies

Maintain a permanent urban growth boundary around Melbourne to create a more consolidated, sustainable city and protect the values of non-urban land.

Focus investment and growth in:

- Melbourne Central City.
- Employment and Innovation Areas.
- Metropolitan Activity Centres.
- Priority Precincts, including Suburban Rail Loop Precincts.
- Activity Centres - Housing Choice and Stations.
- State-Significant Industrial Precincts.
- Transport Gateways.
- Health and Education Precincts.

Facilitate substantial growth and change in employment, health and education precincts to help meet the needs of Melbourne's rapidly growing population.

Develop a series of Priority Precincts that provide for an expanded Melbourne central city to support jobs and housing choice across Metropolitan Melbourne.

Develop Employment and Innovation Areas centred around medical, research and tertiary institutions that foster the development of emerging industries.

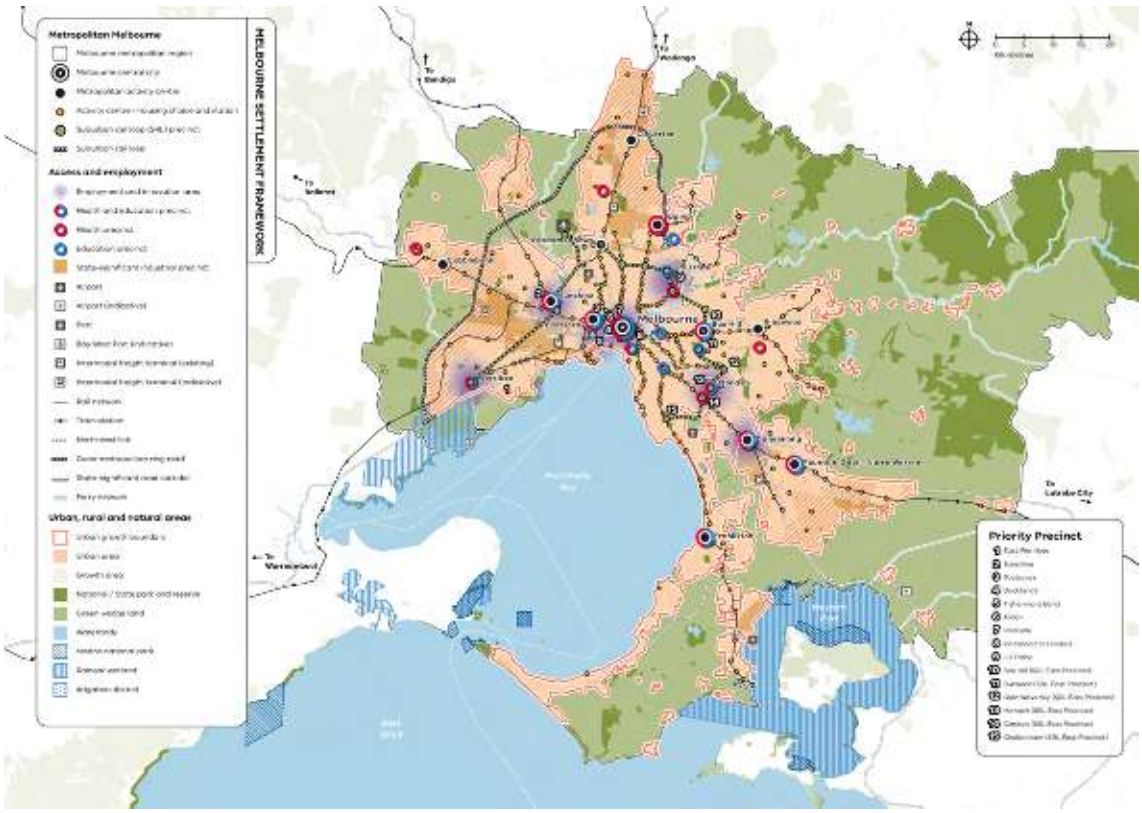
Create mixed use neighbourhoods at varying densities, including through the development of urban-renewal precincts and Activity Centres - Housing Choice and Stations.

Develop Metropolitan Activity Centres as:

- Higher-order centres providing a diverse range of jobs, activities and housing for catchments well-served by public transport.
- Major locations for service delivery, including of government, health, justice and education services. It also provides many retail and commercial opportunities.

Support a network of activity centres of varying size, role and function.

## Melbourne Settlement Framework Plan



## 11.01-1R Green wedges - Metropolitan Melbourne

31/07/2018
VC148

### Objective

To protect the green wedges of Metropolitan Melbourne from inappropriate development.

### Strategies

Promote and encourage the key features and related values of each green wedge area.

Support development in the green wedge that provides for environmental, economic and social benefits.

Consolidate new residential development in existing settlements and in locations where planned services are available and green wedge values are protected.

Plan and protect major state infrastructure and resource assets, such as airports and ports with their associated access corridors, water supply dams, water catchments and waste management and recycling facilities.

Protect important productive agricultural areas such as Werribee South, the Maribyrnong River flats, the Yarra Valley, Westernport and the Mornington Peninsula.

Support existing and potential agribusiness activities, forestry, food production and tourism.

Protect areas of environmental, landscape and scenic value such as biodiversity assets, national and state parks, Ramsar wetlands and coastal areas.

Protect significant resources of stone, sand and other mineral resources for extraction purposes.

Provide opportunities for renewable energy generation.

### Policy documents

Consider as relevant:

- *Upper Yarra Valley and Dandenong Ranges Region - Regional Strategy Plan* (1996)

## 11.01-1L-01 Non-agricultural uses in green wedge areas

19/06/2025
C284case

### Policy application

This policy applies to all land in a Green Wedge, Green Wedge A and Rural Conservation Zone, where a permit is required to establish a non-agricultural use.

### Objectives

To ensure Green Wedge areas are used predominantly for sustainable agricultural production and related purposes and discourage the intrusion of urban uses.

To ensure that development does not detract from the environmental, landscape and scenic values of Green Wedge areas.

To reduce car dependency in Casey by consolidating non-agricultural uses in walkable urban and township areas.

### Strategies

Ensure non-agricultural uses do not reduce the amount of or adversely impact on productive agricultural land.

Ensure non-agricultural uses do not adversely affect or prejudice the operation of existing and/or future agricultural activities on the site or nearby land.

Avoid creating clusters of non-agricultural uses, unless they are located adjacent to, or on the periphery of, an urban or township area.

Locate non-agricultural uses, except those uses that operate in conjunction with related agricultural activities on the land:

- adjacent to or on the periphery of an urban or township area, and
- along sealed roads capable of carrying anticipated traffic volumes and designated public transport routes, particularly arterial and collector roads.

Avoid industrial or warehouse uses other than a rural industry or rural store, except where there is a clear link between the proposed use and agricultural production.

Ensure the scale, design and appearance of any new buildings associated with a non-agricultural use are complementary to the character and function of the surrounding area.

Layout, design and operate non-agricultural use and developments in a manner that causes minimal loss of amenity, privacy and convenience to people living in nearby dwellings, having regard to traffic, car parking, access, built form and overall site layout.

Connect development to reticulated water, sewerage, power and stormwater, where available.

### Policy guidelines

Consider as relevant:

- Where a site is currently used for, or has the capability of being used for productive agricultural purposes and is proposed to be developed in part for a non-agricultural use, that:
  - The balance of the site can still be used in a productive and sustainable manner.
  - The non-agricultural use will support the retention of existing or future agricultural activities on the land.

## 11.01-1L-02 Western Port Green Wedge

08/05/2026
C304case

### Policy application

This policy applies to all land on the *Western Port Green Wedge plan* forming part of this Clause, except Pearcedale township.

### Objective

To protect the Western Port Green Wedge from use and development that would compromise its agricultural, environmental, cultural, visual and scenic significance and values.

### All precincts strategies

Connect development to reticulated water, sewerage, power and stormwater, where available.

Ensure that wastewater systems (both septic and sewer) are designed and maintained to protect the Western Port environment, including that of the Ramsar wetlands.

Design development to respect the environmental, cultural, visual and scenic significance of the green wedge.

### Intensive Horticulture and Food Production Precinct strategies (Precinct 1)

Support agriculture and soil-based horticulture as the primary activities in this precinct.

Support tourism uses that are directly connected to agriculture including farm gate sales of crops and goods produced on site, cellar door sales and ancillary farm stay accommodation.

Discourage non-rural uses particularly primary and secondary schools and places of worship.

### Urban Growth Boundary Interface Precinct strategies (Precinct 2)

Locate non-rural uses, particularly primary and secondary schools and places of worship in Cranbourne South and, specifically within part of the Precinct bounded by Cranbourne-Frankston Road, Pearcedale Road and Browns Road due to the precinct's proximity to the Urban Growth Boundary and already fragmented smaller parcel sizes.

Support environmentally sustainable agriculture and horticulture.

Support use and development for animal breeding and training for the horse racing industry.

Design development to retain the rural character of the precinct.

Protect and enhance native vegetation cover to provide habitat and movement corridors for native fauna, without exacerbating bushfire risk.

### Rural Living and Agricultural Production Precinct strategies (Precinct 3)

Discourage urban uses particularly primary and secondary schools and places of worship.

Support environmentally sustainable agriculture.

Encourage animal breeding and training for the greyhound and horse racing industries.

Protect and enhance native vegetation cover to provide habitat and movement corridors for native fauna, without exacerbating bushfire risk.

Design development to retain the rural character of the precinct.

### Coast Precinct strategies (Precinct 4)

Ensure development respects and maintains the existing residential, rural and bush character of the coastal townships and villages.

Avoid expansion or intensification of the coastal villages.

Encourage horticulture and agriculture uses where they:

- Are undertaken in an environmentally sensitive manner.
- Address constraints imposed by predicted climate change and resulting changed physical conditions and circumstances.
- Are conducted on land which is located outside of environmentally sensitive coastal areas and outside of land containing coastal acid sulphate soils.

Encourage tourism related use and development that does not detrimentally impact on the surrounding environment and is located and sited to be resilient to any altered physical conditions resulting from the predicted effects of climate change.

Avoid subdivision of land outside of coastal villages.

Discourage non-rural uses particularly primary and secondary schools and places of worship.

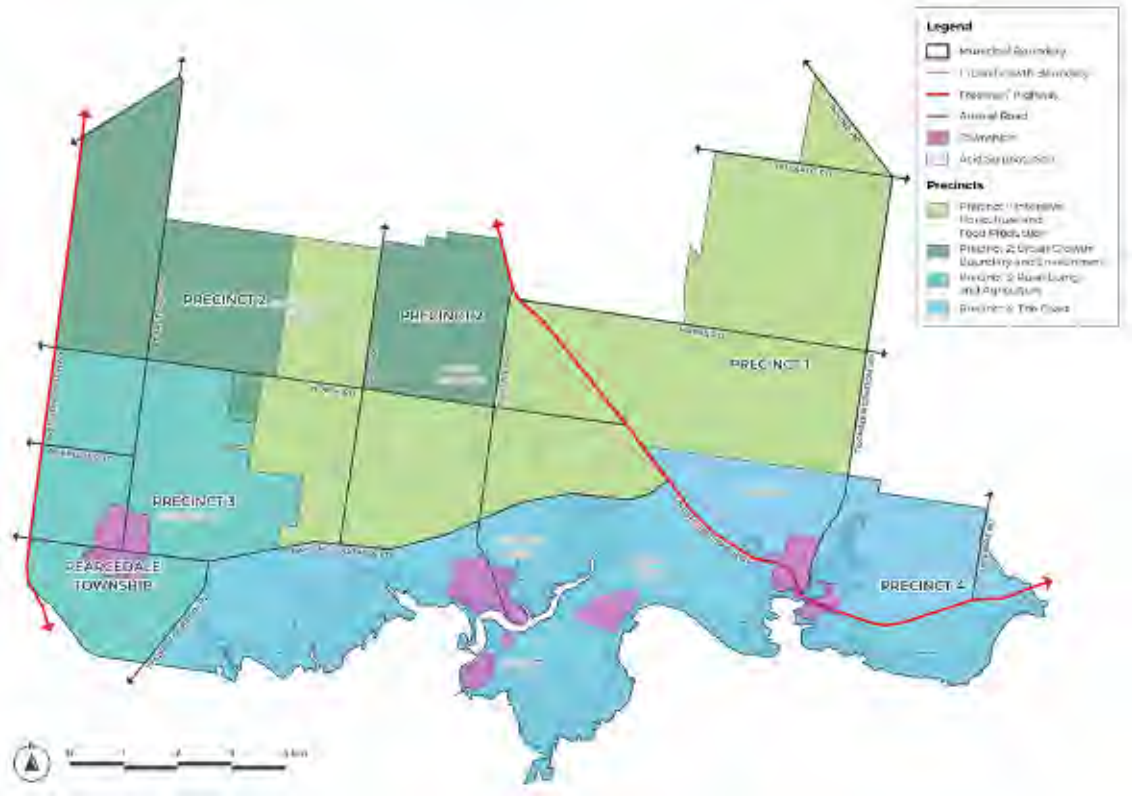
Site and design development so it does not disturb Coastal Acid Sulphate Soils to avoid detrimental impacts on the environment and biodiversity.

### Policy document

Consider as relevant:

- *Western Port Green Wedge Management Plan* (City of Casey, 2019)

### Western Port Green Wedge plan



## 11.02 MANAGING GROWTH

31/07/2018
VC148

## 11.02-1S Development capacity

02/09/2025
VC283

### Objective

To ensure sufficient development opportunities are available to meet the needs of current and future Victorians.

### Strategies

Ensure that sufficient land is available to meet forecast demand and the needs of current and future Victorians for commercial, retail, recreational, institutional and other community needs.

Ensure that at least a 15 year supply of land and development capacity is available to meet housing targets.

Plan to accommodate housing targets and provide clear direction on the locations where growth should occur and ensure sufficient realisable capacity in planning schemes.

Ensure ongoing development opportunities and supporting infrastructure are available to support sustainable urban development.

Planning for urban growth should consider:

- Opportunities to consolidate, redevelop and intensify existing urban areas with good access to jobs and services.
- The liveability of neighbourhoods and delivery of quality urban landscapes.
- The limits of land capability and natural hazards and environmental quality.
- Service limitations and the costs of providing infrastructure.

Maintain access to productive natural resources and an adequate supply of well-located land for energy generation, infrastructure and industry.

Restrict rural residential development that would compromise future development at higher densities.

### Policy guidelines

Consider as relevant:

- Victorian Government population projections and land supply estimates.

### Policy documents

Consider as relevant:

- *Plan for Victoria* (Department of Transport and Planning, 2025)
- *Melbourne Industrial and Commercial Land Use Plan* (Department of Environment, Land, Water and Planning, 2020)
- *Industrial and Commercial Land Classifications* (Department of Transport and Planning, 2025)

## 11.02-2S Structure planning

02/09/2025
VC283

### Objective

To facilitate the fair, orderly, economic and sustainable use and development of urban areas.

### Strategies

Give clear direction on preferred locations for investment.

Ensure effective planning and management of the land use and development of an area through the preparation of relevant plans.

Undertake comprehensive planning for existing areas undergoing transition and new areas to support sustainable communities that offer high-quality, frequent and safe local and regional public transport and a range of local activities for living, working and recreation.

Undertake the preparation of a hierarchy of structure plans or precinct structure plans that:

- Address the strategic and physical context of the location, including increased physical risks associated with climate change.
- Provide the broad planning framework for an area as well as the more detailed planning requirements for neighbourhoods and precincts, where appropriate.
- Deliver sufficient development capacity for residential development to ensure housing targets can be met.
- Deliver sufficient development capacity for industrial and commercial development to ensure an appropriate supply of land to meet local demand.

Structure plans should:

- Protect and enhance areas of natural and cultural significance.
- Address environmental risk and amenity.
- Support the effective management of natural resources.
- Deliver a quality built environment.
- Support the delivery of a diverse range of lot sizes and housing typologies.
- Deliver housing and population densities that make local services and transport viable.
- Support economic development.
- Facilitate the development of walkable neighbourhoods.
- Facilitate the use of active and sustainable transport modes.
- Facilitate the logical and efficient provision of infrastructure.
- Facilitate the use of existing infrastructure and services.
- Encourage renewable energy generation, storage and distribution.
- Incorporate integrated water management and urban greening.

### Policy document

Consider as relevant:

- *Precinct Structure Planning Guidelines: New Communities in Victoria* (Victorian Planning Authority, 2021).

## 11.02-3S Sequencing of development

02/09/2025
VC283

### Objective

To manage the sequence of development in areas of growth so that services are available from early in the life of new communities.

### Strategies

Define preferred development sequences in areas of growth to better coordinate infrastructure planning and funding.

Use staging plans to align the delivery of public infrastructure and services with housing and employment.

Ensure that new land is released in areas of growth in a timely fashion to facilitate coordinated and cost-efficient provision of local and regional infrastructure.

Require new development to make a financial contribution to the provision of infrastructure such as community facilities, public transport and roads.

Improve the coordination and timing of infrastructure and service delivery in areas of growth.

Support opportunities to co-locate facilities.

Ensure that planning for water supply, sewerage and drainage works receives high priority in early planning for areas of growth.

### Policy documents

Consider as relevant:

- *North Growth Corridor Plan* (Victoria Planning Authority, 2012)
- *West Growth Corridor Plan* (Victoria Planning Authority, 2012)
- *Sunbury Growth Corridor Plan* (Victoria Planning Authority, 2012)
- *South East Growth Corridor Plan* (Victoria Planning Authority, 2012)
- *Precinct Structure Planning Guidelines: New Communities in Victoria* (Victorian Planning Authority, 2021)
- *Ministerial Direction No. 12 – Urban Growth Areas*

# 11.03 PLANNING FOR PLACES

31/07/2018
VC148

## 11.03-1S Activity centres and precincts

16/04/2026
VC300

### Objective

To encourage the concentration of major retail, residential, commercial, administrative, entertainment and cultural developments into activity centres with good public transport services.

### Strategies

Build up the central activity areas of Major regional cities, Metropolitan activity centres, Priority Precincts, Suburban Rail Loop Precincts and Activity Centres - Housing Choice and Stations as a focus for high-quality development, activity and living that:

- Are a focus for business, shopping, working, leisure and community facilities.
- Provide different types of housing, including forms of higher density housing.
- Are connected by transport.
- Maximise choices in services, employment and social interaction.

Undertake strategic planning for the use and development of land in and around Major regional cities, Metropolitan activity centres, Priority Precincts, Suburban Rail Loop Precincts and Activity Centres - Housing Choice and Stations and their residential catchments.

Encourage a diversity of housing types at higher densities in and around Major regional cities, Metropolitan activity centres, Priority Precincts, Suburban Rail Loop Precincts and Activity Centres - Housing Choice and Stations and their residential catchments.

Reduce the number of private motorised trips by concentrating activities that generate high numbers of (non-freight) trips in highly accessible activity centres.

Improve access by walking, cycling and public transport to services and facilities.

Support the continued growth and diversification of activity centres to give communities access to a wide range of goods and services, provide local employment and support local economies.

Improve the social, economic and environmental performance and amenity of activity centres.

### Policy documents

Consider as relevant:

- *Urban Design Guidelines for Victoria* (Department of Environment, Land, Water and Planning, 2017)
- *Apartment Design Guidelines for Victoria* (Department of Environment, Land, Water and Planning, 2021)
- *Precinct Structure Planning Guidelines: New Communities in Victoria* (Victorian Planning Authority, 2021)
- *Mid-Rise Design Guide* (Department of Transport and Planning, 2026)

## 11.03-1R Activity centres and precincts - Metropolitan Melbourne

02/09/2025
VC283

### Strategies

Support the development and growth of Metropolitan activity centres and Suburban Rail Loop Precincts by ensuring they:

- Are able to accommodate significant growth for a broad range of land uses.
- Are supported with appropriate infrastructure.
- Are hubs for public transport services.
- Offer good connectivity for a regional catchment.
- Provide high levels of amenity.

Plan the activity centres network to support thriving, productive and sustainable communities through:

- The delivery of new homes to meet housing target at appropriate Activity Centres - Housing Choice and Stations.
- Activity Centres – Housing Choice and Stations as a focus for facilities and services.
- Moderated housing growth at other designated activity centres (those not identified as Activity centres – Housing Choice and Stations or Metropolitan activity centres).

Support new activity centres within convenient walking distance of homes in the design of new subdivisions and in areas where services are not in walking distance.

Locate significant new education, justice, community, administrative and health facilities that attract users from large geographic areas in or on the edge of Metropolitan Activity Centres or activity centres with good public transport.

Locate new small scale education, health and community facilities that meet local needs in or around activity centres.

## 11.03-1L Activity centres and centre hierarchy in Casey

19/06/2025
C284case

### Activity centres strategies

Support diverse retailing formats, particularly discount department stores in Major Activity Centres and 'mini-major' stores where there is a demonstrated need in Major and Medium Neighbourhood Activity Centres.

Support a night-time economy in activity centres with late-trading businesses, such as restaurants, bars, nightclubs, live music venues and a range of evening events for all ages.

Ensure that nightclubs, hotels and bars are sited, designed and operated so that there is no unreasonable amenity impact on the surrounding area.

Discourage subdivision that results in fragmented ownership that limits the capacity of the centre to be expanded or redeveloped in the future.

Discourage supermarkets and other non-restricted retail uses from establishing in restricted retail precincts and other designated employment areas outside Metropolitan, Major and Neighbourhood Activity Centres.

Discourage the development of supermarkets where they are not part of an integrated component of the activity centre with other retail or commercial development.

Support the growth of existing and proposed neighbourhood activity centres in growth areas and undeveloped infill areas to provide places for social interaction and safe pedestrian movement, and the early establishment of anchor uses including supermarkets or large offices to provide a foundation for the activity centre to build on.

Support temporary treatments and uses for unused land in activity centres that help activate the centre prior to development, including food stalls, food trucks, community gardens, pop-up markets, or other low-cost temporary land uses and public open space concepts.

Encourage a greater amount of non-retail space to increase the density and diversity of employment in activity centres.

Design development with flexible floor plans and ceiling heights to provide a range of options for non-retail commercial activity and to allow for future adaptation of land uses.

Support development of a variety of work spaces including co-working spaces, serviced offices, flexible floor spaces and the like that cater for varying sized businesses including those businesses that have the potential to grow.

### Activity centres policy guidelines

Consider as relevant:

- Facilitating the provision of non-retail floor space across activity centres, having regard to the floor area targets set out in Table 1 below.

**Table 1: Floor area targets for activity centres**

| Centre typology | Non-retail floor space target |
|---|---|
| **Major Activity Centre** | Approximately 30 per cent non-retail floor area |
| **Medium Neighbourhood Activity Centre** | Approximately 25 per cent non-retail floor area |
| **Local Neighbourhood Activity Centre** | Approximately 25 per cent non-retail floor area |

- Encouraging development of over 1,000 square metres to include non-retail floorspace to contribute to achieving the target set out in Table 1 unless the physical constraints of the land or other factors make it impractical, or it is unnecessary as the centre already provides more non-retail floorspace than is set out in the Table 1.

### Restricted retail strategies

Direct restricted retail use and development into designated restricted retail precincts and Metropolitan or Major Activity Centres.

Maintain designated restricted retail precincts as a focus of restricted retail uses with a small amount of complementary hospitality uses.

Ensure that the design of restricted retail development is not out of scale with surrounding development and is sensitive to interfaces with adjoining residential land.

### Activity centre hierarchy objective

To support a hierarchical network of activity centres in Casey to meet the needs of the community.

### Activity centre hierarchy strategy

Support use and development that is generally consistent with the type, role and scale of activity centres identified in Table 2 and the *Activity centre hierarchy plan* at Clause 02.04-3.

### Activity centre hierarchy policy guidelines

Consider as relevant:

- The role of activity centres as set out in Table 2 below.

**Table 2: Role of activity centres**

| Centre type | Role |
|---|---|
| **Metropolitan Activity Centre** | Higher order activities that play a key regional role in the metropolitan economy, providing a diverse range of employment opportunities for the region.<br>A broad mix of high-order activities, including entertainment uses, to attract a significant level of visitation.<br>Approximately 40 per cent non-retail commercial, institutional and community uses floor area for the whole of the centre.<br>Strong focus on commercial uses, health and education facilities.<br>Strong focus on high density residential uses.<br>Buildings of at least three storeys, except where there is an interface with residential areas, or a development plan or similar has been prepared that provides further guidance.<br>Department stores and multiple discount department stores.<br>Easily accessible connections to the Principal Public Transport Network.<br>Multiple supermarkets of various sizes.<br>Strong focus on specialty retail and hospitality uses.<br>Some restricted retail uses. |

| Centre type | Role |
|---|---|
| **Major Activity Centre** | A broad mix of higher-order activities, including entertainment uses, to attract a significant level of visitation.<br>Approximately 30 per cent non-retail commercial, institutional and community uses floor area for the whole of the centre.<br>A strong focus on specialty retail and hospitality/entertainment uses.<br>Medium focus on commercial uses.<br>Some health and education facilities.<br>Total floorspace for non-residential uses generally between 20,000 square metres and 100,000 square metres.<br>Building heights of at least two storeys, except where a development plan or similar has been prepared that provides further guidance.<br>Strong focus on high density residential uses.<br>Easily accessible connections to the Principal Public Transport Network.<br>Multiple supermarkets of various sizes.<br>Multiple discount department stores.<br>Some restricted retail uses. |
| **Medium Neighbourhood Activity Centre** | A broad mix of activities to provide for day-to-day and weekly retail and service needs at a neighbourhood level.<br>Approximately 25 per cent non-retail commercial and community uses floor area for the whole of the centre.<br>A strong focus on supermarkets, with a mix of full-line and small format supermarkets.<br>Medium focus on specialty retail and hospitality uses.<br>Medium focus on commercial uses.<br>Total floorspace for non-residential uses generally between 5,000 square metres and 20,000 square metres.<br>Buildings of at least two storeys.<br>Focus on medium density residential uses. |
| **Local Neighbourhood Activity Centre** | A broad mix of activities to provide for day-to-day and weekly retail and service needs at a neighbourhood level.<br>Approximately 25 per cent non-retail commercial and community uses floor area for the whole of the centre. |

| Centre type | Role |
|---|---|
| | Strong focus on convenience retailing and medium density housing.<br>Small format supermarket.<br>Some specialty retail and hospitality uses.<br>Some commercial uses.<br>Total floorspace for non-residential uses of up to 5,000 square metres.<br>Focus on medium density residential uses. |
| **Health and Education Precinct** | A strong focus on major health and education facilities and commercial uses.<br>Some specialty retail and hospitality uses, particularly where they service the health and education facilities of the precinct.<br>Complementary high density residential uses |
| **Restricted Retail Precinct** | A strong focus on restricted retail uses.<br>Small amount of hospitality uses that support the restricted retail businesses. |

### Policy document

Consider as relevant:

- *City of Casey Activity Centres Strategy* (City of Casey, 2020)

## 11.03-2S Growth areas

02/09/2025
VC283

### Objective

To locate urban growth close to transport corridors and services and provide efficient and effective infrastructure to create sustainability benefits while protecting primary production, major sources of raw materials and valued environmental areas.

### Strategies

Concentrate urban expansion into growth areas that are served by high-capacity public transport.

Implement the strategic directions in the growth corridor plans.

Deliver residential densities in the growth areas of Melbourne and Major regional cities of an average of at least:

- 30 dwellings per net developable hectare in locations within walkable distance of existing and proposed activity centres, train stations, major transport routes and public open spaces.
- 20 dwellings per net developable hectare in other growth area locations.

Provide housing diversity and choice through a mix of housing types, particularly in areas suitable for higher residential densities.

Deliver accessible, integrated and adaptable community infrastructure, including a high-quality network of public open space with opportunities for passive and active recreation.

Plan for the timely and adequate provision of public transport and local and regional infrastructure and services, in line with a preferred sequence of land release.

Provide for significant amounts of local employment opportunities and in some areas, provide large scale industrial or other more regional employment generators.

Create a network of mixed-use activity centres that are high quality, well designed and create a sense of place.

Provide a diversity of housing type and distribution.

Retain unique characteristics of established areas impacted by growth.

Protect and manage natural resources and areas of heritage, cultural and environmental significance.

Create well planned, easy to maintain high amenity, environmentally resilient and safe public realms that contribute to a sense of place, support cooling and greening, reduce opportunities for crime, improve perceptions of safety and increase levels of community participation.

Develop and implement plans for growth areas that will:

- Include objectives for each growth area.
- Identify the long term pattern of urban growth.
- Identify the location of broad urban development types, for example activity centre, residential, employment, freight centres and mixed use employment.
- Identify the boundaries of individual communities, landscape values and, as appropriate, the need for discrete urban breaks and how land uses in these breaks will be managed.
- Identify transport networks and options for investigation, such as future railway lines and stations, freight activity centres, freeways and arterial roads.
- Identify the location of open space to be retained for recreation, and/or biodiversity protection and/or flood risk reduction purposes guided and directed by regional biodiversity conservation strategies.

- Show significant waterways as opportunities for creating linear trails, along with areas required to be retained for biodiversity protection and/or flood risk reduction purposes.
- Identify appropriate uses for constrained areas, including quarry buffers.

Develop precinct structure plans consistent with the *Precinct Structure Planning Guidelines: New Communities in Victoria* (Victorian Planning Authority, 2021) to:

- Establish a sense of place and community.
- Create greater housing choice, diversity and affordable places to live.
- Create highly accessible and vibrant activity centres.
- Provide for local employment and business activity.
- Provide better transport choices.
- Respond to climate change and increase environmental sustainability.
- Deliver accessible, integrated and adaptable community infrastructure.
- Deliver 30 per cent tree canopy cover within the public realm and in open spaces (excluding areas dedicated to biodiversity or native vegetation conservation).

### Policy documents

Consider as relevant:

- *North Growth Corridor Plan* (Victorian Planning Authority, 2012)
- *West Growth Corridor Plan* (Victorian Planning Authority, 2012)
- *Sunbury Growth Corridor Plan* (Victorian Planning Authority, 2012)
- *South East Growth Corridor Plan* (Victorian Planning Authority, 2012)
- *Precinct Structure Planning Guidelines: New Communities in Victoria* (Victorian Planning Authority, 2021)
- *Ministerial Direction No. 12 – Urban Growth Areas*

## 11.03-3S Peri-urban areas

02/09/2025
VC283

### Objective

To manage growth in peri-urban areas to protect and enhance their identified valued attributes.

### Strategies

Identify and protect areas that are strategically important for the environment, biodiversity, landscape, open space, water, agriculture, energy, recreation, tourism, environment, cultural heritage, infrastructure, extractive and other natural resources.

Enhance the character, identity, attractiveness and amenity of peri-urban towns.

Prevent dispersed settlement and provide for non-urban breaks between urban areas.

Ensure development is linked to the timely and viable provision of physical and social infrastructure.

Improve connections to regional and metropolitan transport services.

## 11.03-4S Coastal settlement

02/09/2025
VC283

### Objective

To plan for sustainable coastal development.

### Strategies

Plan and manage coastal population growth and increased visitation so that impacts do not cause unsustainable use of coastal resources.

Support a network of diverse coastal settlements that provide for a broad range of housing types, economic opportunities and services.

Minimise linear urban sprawl along the coastal edge and ribbon development in rural landscapes.

Protect areas between settlements for non-urban use.

Limit development in identified coastal hazard areas, on ridgelines, primary coastal dune systems, shorelines of estuaries, wetlands and low-lying coastal areas, or where coastal processes may be detrimentally impacted.

Encourage the restructure of old and inappropriate subdivisions to reduce development impacts on the environment.

Ensure a sustainable water supply, stormwater management and sewerage treatment for all development.

Minimise the quantity and enhance the quality of stormwater discharge from new development into the ocean, bays and estuaries.

Prevent the development of new residential canal estates.

### Policy documents

Consider as relevant:

- *Marine and Coastal Policy* (Department of Environment, Land, Water and Planning, 2020)
- *Marine and Coastal Strategy* (Department of Environment, Land, Water and Planning, 2022)
- *Siting and Design Guidelines for Structures on the Victorian Coast*(Department of Environment, Land, Water and Planning, 2020)

## 11.03-5S Distinctive areas and landscapes

13/02/2026
VC245

### Objective

To recognise the importance of distinctive areas and landscapes to the people of Victoria and protect and enhance the valued attributes of identified or declared distinctive areas and landscapes.

### Strategies

Recognise the unique features and special characteristics of these areas and landscapes.

Implement the strategic directions of approved Localised Planning Statements and Statements of Planning Policy.

Integrate policy development, implementation and decision-making for declared areas under Statements of Planning policy.

Recognise the important role these areas play in the state as tourist destinations.

Protect the identified key values and activities of these areas.

Enhance conservation of the environment, including the unique habitats, ecosystems and biodiversity of these areas.

Support use and development where it enhances the valued characteristics of these areas.

Avoid use and development that could undermine the long-term natural or non-urban use of land in these areas.

Protect areas that are important for food production.

### Policy documents

Consider as relevant:

- *Bellarine Peninsula Statement of Planning Policy* (Victorian Government, 2023)
- *Macedon Ranges Statement of Planning Policy* (Victorian Government, 2019)
- *Mornington Peninsula Localised Planning Statement* (Victorian Government, 2014)
- *Surf Coast Statement of Planning Policy* (Victorian Government, 2022)
- *Yarra Ranges Localised Planning Statement* (Victorian Government, 2017)

## 11.03-6S Regional and local places

31/07/2018
VC148

### Objective

To facilitate integrated place-based planning.

### Strategies

Integrate relevant planning considerations to provide specific direction for the planning of sites, places, neighbourhoods and towns.

Consider the distinctive characteristics and needs of regional and local places in planning for future land use and development.

## 12 ENVIRONMENTAL AND LANDSCAPE VALUES

10/06/2022
VC216

Planning should help to protect the health of ecological systems and the biodiversity they support (including ecosystems, habitats, species and genetic diversity) and conserve areas with identified environmental and landscape values.

Planning must implement environmental principles for ecologically sustainable development that have been established by international and national agreements. Foremost amongst the national agreements is the Intergovernmental Agreement on the Environment, which sets out key principles for environmental policy in Australia. Other agreements include the National Strategy for Ecologically Sustainable Development, National Greenhouse Strategy, the National Water Quality Management Strategy, Australia's Strategy for Nature 2019-2030, the National Forest Policy Statement and National Environment Protection Measures.

Planning should protect, restore and enhance sites and features of nature conservation, biodiversity, geological or landscape value.

## 12.01 BIODIVERSITY

31/07/2018
VC148

## 12.01-1S Protection of biodiversity

30/10/2025
VC291

### Objective

To protect and enhance Victoria's biodiversity.

### Strategies

Use biodiversity information to identify important areas of biodiversity, including key habitat for rare or threatened species and communities, and strategically valuable biodiversity sites.

Strategically plan for the protection and conservation of Victoria's important areas of biodiversity.

Ensure that decision making takes into account the impacts of land use and development on Victoria's biodiversity, including consideration of:

- Cumulative impacts.
- Fragmentation of habitat.
- The spread of pest plants, animals and pathogens into natural ecosystems.

Avoid impacts of land use and development on important areas of biodiversity.

Consider impacts of any change in land use or development that may affect the biodiversity value of national parks and conservation reserves or nationally and internationally significant sites; including wetlands and wetland wildlife habitat designated under the Convention on Wetlands of International Importance (the Ramsar Convention) and sites utilised by species listed under the Japan-Australia Migratory Birds Agreement (JAMBA), the China-Australia Migratory Birds Agreement (CAMBA), or the Republic of Korea-Australia Migratory Bird Agreement (ROKAMBA).

Assist in the identification, protection and management of important areas of biodiversity.

Assist in the establishment, protection and re-establishment of links between important areas of biodiversity, including through a network of green spaces and large-scale native vegetation corridor projects.

Support land use and development that contributes to protecting and enhancing habitat for indigenous plants and animals in urban areas.

### Policy guidelines

Consider as relevant:

- State biodiversity information maintained by the Department of Energy, Environment and Climate Action.

### Policy documents

Consider as relevant:

- *Any applicable biodiversity strategies, including the relevant Regional Catchment Strategy (prepared under Part 4 of the Catchment and Land Protection Act 1994)*
- *Biodiversity Conservation Strategy for Melbourne's Growth Corridors* (Department of Environment and Primary Industries, 2013)
- *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025)
- *Protecting Victoria's Environment – Biodiversity 2037* (Department of Environment, Land, Water and Planning, 2017)
- *Victorian Waterway Management Strategy* (Department of Environment and Primary Industries, 2013)

## 12.01-1L Protection of biodiversity

19/06/2025
C284case

### Strategies

Facilitate the development of habitat links across Casey, as identified in the *Areas with significant biodiversity values plan* in Clause 02.04-5.

Link disjointed remnant vegetation across the municipality, including the Cranbourne Gardens, and establish regional links to remnant vegetation in Frankston North.

Site and design coastal infrastructure to avoid the fragmentation of Ramsar-listed coastal environments.

Enhance bushland and habitat in suburban and rural areas by encouraging development to:

- Provide significant new planting.
- Facilitate the natural regeneration and retention of existing vegetation.

Encourage development to retain trees, particularly remnant and indigenous vegetation, and increase canopy tree cover.

Maintain and enhance roadside vegetation.

Encourage the revegetation of creek corridors and biolinks using indigenous vegetation to extend and improve these environmental habitats.

Protect and enhance the habitat of the Southern Brown Bandicoot, which is listed as nationally endangered under the *Environment Protection and Biodiversity Conservation Act 1999*, within and beyond the Cranbourne Gardens, including providing habitat linkages with the surrounding area where practicable.

Protect the Cranbourne Wetlands (Barnbam Swamp) as an ecosystem of regional and State ecological significance.

## 12.01-2S Native vegetation management

04/02/2026
VC265

### Objective

To ensure that there is no net loss to biodiversity as a result of the removal, destruction or lopping of native vegetation.

### Strategies

Ensure decisions that involve, or will lead to, the removal, destruction or lopping of native vegetation, apply the three-step approach in accordance with the *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025):

- Avoid the removal, destruction or lopping of native vegetation.
- Minimise impacts from the removal, destruction or lopping of native vegetation that cannot be avoided.
- Provide an offset to compensate for the biodiversity impact from the removal, destruction or lopping of native vegetation.

### Policy guidelines

Consider as relevant:

- State biodiversity information maintained by the Department of Energy, Environment and Climate Action.

### Policy documents

Consider as relevant:

- *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025)
- *Assessor's handbook – applications to remove, destroy or lop native vegetation* (Department of Energy, Environment, and Climate Action, 2025)

## 12.01-2L Native vegetation offset planting

19/06/2025
C284case

### Strategy

Ensure offset planting is undertaken on sites with the same or similar vegetation type and within Casey wherever possible.

# 12.02 MARINE AND COASTAL ENVIRONMENT

06/09/2021
VC171

## 12.02-1S Protection of the marine and coastal environment

20/03/2023
VC229

### Objective

To protect and enhance the marine and coastal environment.

### Strategies

Manage privately-owned foreshore consistently with the adjoining public land.

Protect coastal and foreshore environments and improve public access and recreation facilities around Port Phillip Bay and Western Port by focusing development in areas already developed or in areas that can tolerate more intensive use.

Enhance the ecological values of the ecosystems in the marine and coastal environment.

Protect and enhance the overall extent and condition of native habitats and species diversity distributions across public and private land in the marine and coastal environment.

Encourage revegetation of cleared land abutting coastal reserves.

Minimise direct, cumulative and synergistic effects on ecosystems and habitats.

Maintain the natural drainage patterns, water quality and biodiversity in and adjacent to coastal estuaries, wetlands and waterways.

Maintain and enhance water and soil quality by minimising disturbance of sediments.

Avoid disturbance of coastal acid sulfate soils.

Protect and enhance natural features, landscapes, seascapes and public visual corridors.

Plan for marine development and infrastructure to be sensitive to marine national parks and environmental assets.

Protect the heritage values, the aesthetic quality of locations, cultural links with maritime activities, sea country and sense of place.

### Policy guidelines

Consider as relevant:

- Any applicable Regional and Strategic Partnership Product, environmental management plan or coastal and marine management plan approved under the *Marine and Coastal Act 2018* or *National Parks Act 1975*

### Policy documents

Consider as relevant:

- *Coastal Spaces Landscape Assessment Study* (Department of Sustainability and Environment, 2006)
- *Marine and Coastal Policy* (Department of Environment, Land, Water and Planning, 2020)
- *Marine and Coastal Strategy* (Department of Environment, Land, Water and Planning, 2022)
- *Siting and Design Guidelines for Structures on the Victorian Coast* (Department of Environment, Land, Water and Planning, 2020)
- *Victorian Best Practice Guidelines for Assessing and Managing Coastal Acid Sulfate Soils* (Department of Environment, Land, Water and Planning, 2010)
- *Victorian Coastal Acid Sulfate Soils Strategy* (Department of Sustainability and Environment, 2009)

## 12.02-2S Marine and coastal Crown land

20/03/2023
VC229

### Objective

To ensure the use and development of marine and coastal Crown land is ecologically sustainable, minimises impacts on cultural and environmental values, and improves public benefit for current and future generations.

### Strategies

Design, locate and maintain buildings and structures to effectively manage:

- Any increase in exposure to coastal hazard risk, including rates of sea level rise, erosion, accretion or inundation.
- Exposure to public health and safety risks.
- Any detrimental impacts (in particular increased hazard risk) on neighbouring Crown or private land.
- Adverse effects on the environment and associated uses and values.
- Impact on marine and coastal functions and processes.

Ensure the siting and design of development on marine and coastal Crown land:

- Facilitates shared infrastructure and the use of land for more than one use.
- Uses materials and finishes that are sympathetic to the coastal environment.
- Is durable in the long term.
- Minimises the environmental footprint.

Ensures that use and development on or adjacent to marine and coastal Crown land:

- Maintains safe, equitable public access.
- Improves public benefit.
- Demonstrates need and has a coastal dependency.
- Minimises loss of public open space.

### Policy guidelines

Consider as relevant:

- Any applicable Victorian Environmental Assessment Council recommendations
- The purpose for which land is reserved under the *Crown Land (Reserves) Act 1978*
- Any relevant environmental management plan or coastal and marine management plan approved under the *Marine and Coastal Act 2018* or *National Parks Act 1975*

### Policy documents

Consider as relevant:

- *Marine and Coastal Policy* (Department of Environment, Land, Water and Planning, 2020)
- *Marine and Coastal Strategy* (Department of Environment, Land, Water and Planning, 2022)
- *Siting and Design Guidelines for Structures on the Victorian Coast* (Department of Environment, Land, Water and Planning, 2020)

## 12.03 WATER BODIES AND WETLANDS

31/07/2018
VC148

## 12.03-1S River and riparian corridors, waterways, lakes, wetlands and billabongs

20/01/2026
VC278

### Policy Application

This policy applies to land in proximity to a waterway, including all land within 200 metres from the centreline of a waterway.

### Objective

To protect and enhance waterway systems including river and riparian corridors, waterways, lakes, wetlands and billabongs.

### Strategies

Protect the environmental, cultural and landscape values of all waterway systems as significant economic, environmental and cultural assets.

Conserve waterway systems and the landscapes and environmental values surrounding them by:

- Protecting ecological values, indigenous vegetation, terrestrial and aquatic habitats.
- Encouraging biodiversity.
- Recognising that waterways are a connected system from source to mouth, including tributaries, confluences, wetlands and billabongs creating a living entity.

Ensure waterway corridors are of adequate width to allow for the natural systems and functions of the environment and landscape to occur while incorporating potential impacts from climate change.

Sensitively design and site development to maintain and enhance the waterway system and the surrounding landscape setting, environmental assets, and ecological and hydrological systems.

Address the impacts of use and development on drought and flooding events at a catchment and site scale to protect the health and natural function of waterway systems and their surrounding landscape and environment.

Protect geomorphology, bank stability and flood management capacity to strengthen the environmental value and health of waterway systems by:

- Retaining, enhancing and re-establishing indigenous riparian vegetation along waterway systems, ensuring it responds to the bushfire hazard of a location.
- Enhancing and re-establishing both terrestrial and aquatic habitats and their linkages along and surrounding waterway systems.
- Limiting earthworks in proximity to waterway systems to minimise alterations to geomorphology, natural drainage, natural flows, volumes and water quality.
- Facilitating the restoration of waterway systems through the removal of weeds, invasive species and pests.

Enhance a sense of place and landscape identity by:

- Conserving areas of identified Victorian Aboriginal cultural heritage significance relating to waterway systems.
- Retaining and re-establishing vegetation, including grasslands and canopy trees, surrounding waterway systems to enhance and connect to the landscape setting, ensuring it responds to the bushfire hazard of a location.
- Protecting existing topographic features and maintaining a sense of naturalness through sensitive design and siting.
- Recognising the cultural values, aesthetic qualities and identity of waterway systems.

Retain and enhance the recreation and amenity values along waterway systems by:

- Planning for surrounding green spaces as recreation and tourism resources without adversely impacting environmental values and flood management capacity.
- Protecting and enhancing parklands for their economic, social and environmental values.
- Protecting and enhancing public access to waterway systems and surrounding parklands.
- Enhancing existing and providing new green links, pedestrian and cycle connections and open space.
- Discouraging privatisation of spaces that interface with or provide access to waterway systems.
- Avoiding overshadowing of waterway systems, their banks and adjacent public open space.
- Promoting safety by maximising visibility and passive surveillance and providing good connections and access.

Design and site development to maintain and enhance the natural environment of waterway systems by:

- Minimising the visual intrusion of development on the natural landscape views from major roads, bridge crossings, public open space, recreation trails and within waterway systems themselves.
- Ensuring development is visually subordinate to the local landscape setting, including through the use of vegetation to filter views of development and avoiding overshadowing.
- Ensuring development adjacent to waterways adopts high quality materials and respectful design and siting.
- Avoiding impeding the natural flow of waterways and future flood events.
- Directing growth to established settlements where water and wastewater can be managed.

### Policy guidelines

Consider as relevant:

- Locating earthworks, including dams, a minimum of 50 metres from waterway systems.
- Locating development a minimum of 50 metres from the banks of waterway systems.
- The Aboriginal cultural heritage sensitivity and impacts of development within a 200 metre distance from the centreline of a waterway system.
- The views of floodplain and waterway managers.
- Any regional catchment strategy and related plans approved under the *Catchment and Land Protection Act 1994*.

### Policy documents

Consider as relevant:

- *Melbourne Water's Guidelines for Approval of Jetties* (Melbourne Water, 2011)
- *Healthy Waterways Strategy* (Melbourne Water, 2018)
- *Integrated Water Management Framework for Victoria* (Department of Environment, Land, Water and Planning, 2017)
- *Victorian Waterway Management Strategy* (Department of Environment and Primary Industries, 2013).

## 12.04 ALPINE AREAS

31/07/2018
VC148

## 12.04-1S Sustainable development in alpine areas

20/03/2023
VC229

### Objective

To facilitate sustainable use and development of Alpine areas for year-round use and activity.

### Strategies

Protect and manage significant environmental features and ecosystems, taking into account the sensitive and fragile nature of the alpine environment.

Ensure that the use and development of land is managed to minimise the disturbance of indigenous flora and fauna and sensitive landscapes.

Ensure that there is a mixture of use and development to cater for users of alpine areas in all seasons.

Recognise the distinct environments, infrastructure needs and capabilities to support different activities of each alpine resort and other alpine areas.

Provide for the development of consolidated alpine villages, including a diverse range of employment, social and economic opportunities.

Promote development for active recreation solely at Falls Creek, Lake Mountain, Mt Buffalo, Mt Baw Baw, Mt Buller and Mt Hotham.

Promote intensive residential and commercial development at Falls Creek, Mt Baw Baw, Mt Buller and Mt Hotham.

Maintain Mt Stirling as an all-season nature based tourist, recreational and educational resource.

Ensure that the sustainable long term planning and management of Victoria's six alpine resorts is consistent with the strategic directions contained in the *Alpine Resorts Strategic Plan 2020-2025 Responding to a Changing Climate* (Victorian Government, Alpine Resorts Co-ordinating Council, 2019).

Develop, monitor and regularly review the Alpine Resort Environmental Management Plans and Comprehensive Development Plans for each alpine resort, recognising their unique characteristics, constraints and opportunities.

Encourage best practice in design that responds to the alpine character of the area.

Ensure heritage places are protected and conserved, including Aboriginal cultural heritage and post contact heritage places.

Ensure that increases in skier, pedestrian and vehicular activity in the resorts do not compromise public safety or the accessibility and capacity of ski fields, services, commercial activity and development of trailheads.

Implement approved plans, manage development and work with Alpine Resort Management Boards to effectively operate alpine resorts and protect alpine resources.

Ensure that the use and development of land responds to potential environmental risks and contributes to maintaining or improving the environmental quality of alpine environments.

### Policy guidelines

Consider as relevant:

- Any applicable approved Victorian Environmental Assessment Council recommendations.
- Any approved management plan or guideline endorsed by the Minister for Environment or Minister for Water.

### Policy documents

Consider as relevant:

- *Alpine Resorts Strategic Plan 2020-2025 Responding to a Changing Climate* (Victorian Government, Alpine Resorts Co-ordinating Council, 2019)
- The Memorandum of Understanding in relation to the Co-operative Management of the Australian Alps National Parks, agreed to by the member states and territories of Victoria, Australian Capital Territory and New South Wales

## 12.05 SIGNIFICANT ENVIRONMENTS AND LANDSCAPES

31/07/2018
VC148

## 12.05-1S Environmentally sensitive areas

31/07/2018
VC148

### Objective

To protect and conserve environmentally sensitive areas.

### Strategies

Protect environmentally sensitive areas with significant recreational value from development that would diminish their environmental conservation or recreational values. These areas include the Dandenong and Macedon Ranges, the Upper Yarra Valley, Western Port and Port Phillip Bay and their foreshores, the Mornington Peninsula, the Yarra and Maribyrnong Rivers and the Merri Creek, the Grampians, the Gippsland Lakes and its foreshore, the coastal areas and their foreshores, Alpine areas and nominated urban conservation areas, historic buildings and precincts.

## 12.05-2S Landscapes

31/07/2018
VC148

### Objective

To protect and enhance significant landscapes and open spaces that contribute to character, identity and sustainable environments.

### Strategies

Ensure significant landscape areas such as forests, the bays and coastlines are protected.

Ensure development does not detract from the natural qualities of significant landscape areas.

Improve the landscape qualities, open space linkages and environmental performance in significant landscapes and open spaces, including green wedges, conservation areas and non-urban areas.

Recognise the natural landscape for its aesthetic value and as a fully functioning system.

Ensure important natural features are protected and enhanced.

# 12.06 SUSTAINABLE ENVIRONMENT

02/09/2025
VC283

## 12.06-1S Urban forests

02/09/2025
VC283

### Objective

To protect and enhance tree canopy in urban areas.

### Strategies

Contribute to achieving an overall 30 per cent tree canopy target for urban areas by:

- Encouraging the retention of existing canopy trees.
- Promoting the planting of new canopy trees:
  - Within the public realm and open space (excluding areas dedicated to biodiversity or native vegetation conservation).
  - On private land.

Ensuring that canopy tree species are appropriate for the locality, available space, growing conditions and future climate conditions.

### Policy documents

Consider as relevant:

- *Trees for Cooler and Greener Streetscapes Planning and Design Guidelines* (Department of Environment, Land, Water and Planning, 2019)

## 13 ENVIRONMENTAL RISKS AND AMENITY

01/07/2021
VC203

Planning should strengthen the resilience and safety of communities by adopting a best practice environmental management and risk management approach.

Planning should identify, prevent and minimise the risk of harm to the environment, human health, and amenity through:

- Land use and development compatibility.
- Effective controls to prevent or mitigate significant impacts.

Planning should identify and manage the potential for the environment and environmental changes to impact on the economic, environmental or social wellbeing of society.

Planning should ensure development and risk mitigation does not detrimentally interfere with important natural processes.

Planning should prepare for and respond to the impacts of climate change.

# 13.01 CLIMATE CHANGE IMPACTS

31/07/2018
VC148

## 13.01-1S Natural hazards and climate change

05/09/2025
VC268

### Objective

To minimise the impacts of natural hazards and adapt to the impacts of climate change through risk-based planning.

### Strategies

Respond to the risks associated with climate change in planning and management decision making processes.

Identify at risk areas using the best available data and climate change science.

Integrate strategic land use planning with emergency management decision making.

Direct population growth and development to low risk locations.

Develop adaptation response strategies for existing settlements in risk areas to accommodate change over time.

Ensure planning controls allow for risk mitigation and climate change adaptation strategies to be implemented.

Site and design development to minimise risk to life, health, property, the natural environment and community infrastructure from natural hazards.

### Policy guidelines

Consider as relevant:

- Climate change data and information maintained by the Department of Energy, Environment and Climate Action.
- Adaptation action plans prepared under Division 2 of Part 5 of the *Climate Action Act 2017*.

### Policy documents

Consider as relevant:

- Climate science report prepared under Part 6 of the *Climate Action Act 2017*

## 13.01-2S Coastal inundation and erosion

05/09/2025
VC268

### Objective

To plan for and manage coastal hazard risk and climate change impacts.

### Strategies

Plan for sea level rise of not less than 0.8 metres by 2100 and allow for the combined effects of tides, storm surges, coastal processes and local conditions such as topography and geology when assessing risks and coastal impacts associated with climate change.

Ensure that land subject to hazards is identified and appropriately managed to ensure that future use and development is not at risk.

Avoid use and development in areas vulnerable to coastal inundation and erosion.

Respond to marine and coastal processes in the context of the coastal compartment type.

Assess the effectiveness, costs, benefits, impacts (direct, cumulative and synergistic) and path dependency of available adaptation options in the following order:

1. non-intervention
2. avoid
3. nature-based methods
4. accommodate
5. retreat
6. protect

Ensure that development or protective works that seek to respond to coastal hazard risks avoid detrimental impacts on coastal processes.

### Policy guidelines

Consider as relevant:

- Any applicable Victorian Environmental Assessment Council recommendations.
- Any applicable Regional and Strategic Partnership Product, environmental management plan or coastal and marine management plan approved under the *Marine and Coastal Act 2018* or *National Parks Act 1975*.
- Any coastal erosion advice required under section 75 of the *Marine and Coastal Act 2018*.
- Local coastal hazard assessments and localised projections.

### Policy documents

Consider as relevant:

- Any applicable adaptation action plan prepared under the *Climate Action Act 2017*
- *Guidelines for Coastal Catchment Management Authorities: Assessing Development in relation to Sea Level Rise* (June, 2012)
- *Marine and Coastal Policy* (Department of Environment, Land, Water and Planning, 2020)
- *Marine and Coastal Strategy* (Department of Environment, Land, Water and Planning, 2022)
- *Planning for Sea Level Rise Guidelines, Port Phillip and Westernport Region* (Melbourne Water, 2017)
- *Siting and Design Guidelines for Structures on the Victorian Coast* (Department of Environment, Land, Water and Planning, 2020)
- *The Victorian Coastal Hazard Guide* (Department of Sustainability and Environment, 2012)

## 13.01-3S Urban heat

02/09/2025
VC283

### Objectives

To reduce urban heat and minimise impacts of urban heat on human health and wellbeing.

### Strategies

Support development that contributes to cooler urban environments.

Support cooling design responses in urban areas through the:

- Planting and maintenance of canopy trees and other vegetation.
- Use of integrated water management.
- Provision of shading of pedestrian walkways.
- Use of permeable surfaces and low heat absorbing surface materials, such as green roofs and walls.

Encourage use of alternative water resources such as recycled water, stormwater and rainwater to support canopy tree and vegetation growth.

### Policy documents

Consider as relevant:

- *Trees for Cooler and Greener Streetscapes Planning and Design Guidelines* (Department of Environment, Land, Water and Planning, 2019)

# 13.02 BUSHFIRE

31/07/2018
VC148

## 13.02-1S Bushfire planning

16/06/2026
VC312

### Policy application

This policy must be applied to all planning and decision making under the Act relating to land:

- in a bushfire prone area;
- in a Bushfire Management Overlay; or
- proposed to be used or developed in a way that may create a bushfire hazard.

### Objective

To strengthen the resilience of settlements and communities to bushfire through risk-based planning that prioritises the protection of human life.

### Strategies

Give priority to the protection of human life by:

- Prioritising the protection of human life over all other policy considerations.
- Directing population growth and development to low risk locations and ensuring the availability of, and reliable access to, areas where human life can be better protected from the effects of bushfire.
- Reducing the vulnerability of communities to bushfire through the consideration of bushfire risk in decision making at all stages of the planning process.

Identify bushfire hazard and undertake appropriate risk assessment by:

- Applying the best available science to identify vegetation, topographic and climatic conditions that create a bushfire hazard.
- Considering the best available information about bushfire hazard, including the bushfire prone area map.
- Applying the Bushfire Management Overlay to land where the extent of vegetation can create an extreme bushfire hazard.
- Considering and assessing the bushfire hazard on the basis of:
  - Landscape conditions - meaning conditions in the landscape within 20 kilometres (and potentially up to 75 kilometres) of the site.
  - Local and neighbourhood conditions - meaning conditions in the area within approximately 5 kilometres of the site.
  - The site and conditions within 150 metres.
- Consulting with emergency management agencies and the relevant fire authority early in the process to receive their recommendations and implement appropriate bushfire protection measures.
- Ensuring that strategic planning documents, planning scheme amendments, planning permit applications and development plan approvals properly assess bushfire risk and include appropriate bushfire protection measures.
- Not approving development where a landowner or proponent has not satisfactorily demonstrated that the relevant policies have been addressed, performance measures satisfied or bushfire protection measures can be adequately implemented.

Plan to strengthen the resilience of settlements and communities through settlement growth, land use and development that prioritises the protection of human life by:

- Assessing the bushfire hazard at different spatial scales (landscape, local and neighbourhood and site), the likely fire behaviour, bushfire risk and the potential for local and neighbourhood-scale destruction.
- Directing population growth and development to low-risk locations, being those where:
  - The risk from large bushfires in the wider landscape can be managed including the risk associated with higher levels of ember attack.
  - On completion, development will not be exposed to high levels of radiant heat, which is no more than 12.5 kilowatts/square metre for locations subject to strategic planning or the preparation of a planning scheme amendment.
  - There is reliable access to areas of land where human life can be better protected from the effects of bushfire.
  - Bushfire protection measures can be provided to manage the on-going risk from bushfire.
- Ensuring alternative low-risk locations for settlement growth on a regional, municipal, settlement, local and neighbourhood basis have been assessed to ensure the proposed location for growth prioritises human life.
- Ensuring the bushfire risk to existing and future residents, property and community infrastructure will not increase as a result of future land use and development.
- Achieving no net increase in risk to existing and future residents, property and community infrastructure, through the implementation of bushfire protection measures and where possible reducing bushfire risk overall.
- Not preparing, adopting or approving a plan that will result in the introduction or intensification of development in an area that has, or will have on completion, a radiant heat exposure of more than 12.5 kilowatts/square metre in the event of a bushfire. In this strategy, 'plan' means a strategic plan, policy statement, and amendment to a planning scheme, including an amendment to the Planning Policy Framework, or a plan approved under a provision of the planning scheme.

Ensure settlement growth and development approvals can implement bushfire protection measures without unacceptable biodiversity impacts by discouraging settlement growth and development in bushfire affected areas that are important areas of biodiversity.

When assessing a planning permit application for a use or development that will result in people congregating in large numbers:

- consider the risk of bushfire to people, property and community infrastructure;
- require the implementation of appropriate bushfire protection measures to address the identified bushfire risk; and
- ensure development can implement bushfire protection measures without unacceptable biodiversity impacts.

### Policy guidelines

Consider as relevant:

- Any applicable approved state, regional and municipal fire prevention plan.

### Policy documents

Consider as relevant:

- *AS 3959-2018 Construction of buildings in bushfire-prone areas* (Standards Australia, 2018)
- *Design guidelines for settlement planning at the bushfire interface* (Department of Environment, Land, Water and Planning, 2020)
- The bushfire prone area map.

# 13.03 FLOODPLAINS

31/07/2018
VC148

## 13.03-1S Floodplain management

20/03/2023
VC229

### Objective

To assist the protection of:

- Life, property and community infrastructure from flood hazard, including coastal inundation, riverine and overland flows.
- The natural flood carrying capacity of rivers, streams and floodways.
- The flood storage function of floodplains and waterways.
- Floodplain areas of environmental significance or of importance to river, wetland or coastal health.

### Strategies

Identify land affected by flooding, including land inundated by the 1 in 100 year flood event (1 per cent Annual Exceedance Probability) or as determined by the floodplain management authority in planning schemes.

Avoid intensifying the impact of flooding through inappropriately located use and development.

Plan for the cumulative impacts of use and development on flood behaviour.

Locate emergency and community facilities (including hospitals, ambulance stations, police stations, fire stations, residential aged care facilities, communication facilities, transport facilities, community shelters, child care centres and schools) outside the 1 in 100 year (1 per cent Annual Exceedance Probability) floodplain and, where possible, at levels above the height of the probable maximum flood.

Locate use and development that involve the storage or disposal of environmentally hazardous industrial and agricultural chemicals or wastes and other dangerous goods (including intensive animal industries and sewage treatment plants) outside floodplains unless site design and management is such that potential contact between such substances and floodwaters is prevented, without affecting the flood carrying and flood storage functions of the floodplain.

Ensure land use on floodplains minimises the risk of waterway contamination occurring during floods and floodplains are able to function as temporary storage to moderate peak flows and minimise downstream impacts.

### Policy guidelines

Consider as relevant:

- Regional catchment strategies and special area plans approved by the Minister for Environment or Minister for Water.
- Any floodplain management manual or guideline of policy and practice, or catchment management, river health, wetland or floodplain management strategy adopted by the relevant responsible floodplain management authority.
- Any best practice environmental management guidelines for stormwater adopted by the Environment Protection Authority.

### Policy documents

Consider as relevant:

- *Victorian Floodplain Management Strategy* (Department of Environment, Land, Water and Planning, 2016)

# 13.04 SOIL DEGRADATION

31/07/2018
VC148

## 13.04-1S Contaminated and potentially contaminated land

04/05/2022
VC210

### Objective

To ensure that contaminated and potentially contaminated land is used and developed safely.

### Strategies

Ensure contaminated or potentially contaminated land is or will be suitable for the proposed use, prior to the commencement of any use or development.

Protect a sensitive use (residential use, childcare centre, kindergarten, pre-school centre, primary school, even if ancillary to another use), children's playground or secondary school from the effects of contamination.

Facilitate the remediation of contaminated land to make the land suitable for future intended use or development.

### Policy guideline

Consider as relevant the potential for contamination to impact the proposed use or development through an assessment that is proportionate to the risk, including:

- An assessment in accordance with the *National Environment Protection (Assessment of Site Contamination) Measure* (National Environment Protection Council, 1999)
- A preliminary risk screen assessment or environmental audit under Part 8.3 of the *Environment Protection Act 2017*.

### Policy documents

Consider as relevant:

- *Ministerial Direction No. 1 - Potentially Contaminated Land*
- *National Environment Protection (Assessment of Site Contamination) Measure* (National Environment Protection Council, 1999)

## 13.04-2S Erosion and landslip

31/07/2018
VC148

### Objective

To protect areas prone to erosion, landslip or other land degradation processes.

### Strategies

Identify areas subject to erosion or instability in planning schemes and when considering the use and development of land.

Prevent inappropriate development in unstable areas or areas prone to erosion.

Promote vegetation retention, planting and rehabilitation in areas prone to erosion and land instability.

### Policy guidelines

Consider as relevant:

- Any applicable regional catchment strategy.
- Any special area plan approved under the *Catchment and Land Protection Act 1994*.

## 13.04-2L Erosion management

19/06/2025
C284case

### Policy application

This policy applies to development on land where the bank or slope has a gradient of 1:4 or greater.

### Strategy

Implement erosion prevention methods that:

- Discourage waterflow over the top of banks and slopes including through measures such as the redirecting of water flow using a drainage swale.
- Encourage the stabilisation and revegetation of the bank and slope face including through measures such as hydro mulching, stabilisation matting, turf and the like.
- Incorporate the use of terracing or retaining walls.

### Policy document

Consider as relevant:

- *City of Casey Landscape Policy* (City of Casey, 2010)

## 13.04-3S Salinity

31/07/2018
VC148

### Objective

To minimise the impact of salinity and rising water tables on land uses, buildings and infrastructure in rural and urban areas and areas of environmental significance and reduce salt load in rivers.

### Strategies

Identify areas subject to salinity in the preparation of planning schemes and land use planning decisions.

Promote vegetation retention and replanting in aquifer recharge areas contributing to groundwater salinity problems.

Prevent inappropriate development in areas affected by groundwater salinity.

### Policy guidelines

Consider as relevant:

- Any applicable regional catchment strategy and any associated implementation plan or strategy (particularly salinity management plans and regional vegetation plans).
- Any special area plan approved under the *Catchment and Land Protection Act 1994*.

### Policy documents

Consider as relevant:

- *Salinity Information Kit: Volume 1 - A Local Government Planning Guide for Dryland Salinity* (Department of Conservation and Natural Resources, 1995)

# 13.05 NOISE

31/07/2018
VC148

## 13.05-1S Noise management

10/06/2022
VC216

### Objective

To assist the management of noise effects on sensitive land uses.

### Strategy

Ensure that development is not prejudiced and community amenity and human health is not adversely impacted by noise emissions.

Minimise the impact on human health from noise exposure to occupants of sensitive land uses (residential use, child care centre, school, education centre, residential aged care centre or hospital) near the transport system and other noise emission sources through suitable building siting and design (including orientation and internal layout), urban design and land use separation techniques as appropriate to the land use functions and character of the area.

### Policy guidelines

Consider as relevant:

- The noise requirements in accordance with the Environment Protection Regulations under the *Environment Protection Act 2017*.

### Policy documents

Consider as relevant:

- *Environment Protection Regulations under the Environment Protection Act 2017*
- *Noise Limit and Assessment Protocol for the Control of Noise from Commercial, Industrial and Trade Premises and Entertainment Venues* (Publication 1826, Environment Protection Authority, May 2021)
- *Environment Reference Standard* (Gazette No. S 245, 26 May 2021)
- *Passenger Rail Infrastructure Noise Policy* (Victorian Government, 2013)
- *VicTrack Rail Development Interface Guidelines* (VicTrack, 2019)

# 13.06 AIR QUALITY

31/07/2018
VC148

## 13.06-1S Air quality management

14/01/2025
VC237

### Objective

To assist the protection and improvement of air quality.

### Strategies

Ensure that land use planning and transport infrastructure provision contribute to improved air quality by:

- Integrating transport and land use planning to improve transport accessibility and connections.
- Locating key developments that generate high volumes of trips in the Central City, Metropolitan Activity Centres and Major Activity Centres.
- Providing infrastructure for walking, cycling and public transport.

Ensure, wherever possible, that there is suitable separation between land uses that pose a human health risk or reduce amenity due to air pollutants, and sensitive land uses (residential use, child care centre, school, education centre, residential aged care centre or hospital).

Minimise air pollutant exposure to occupants of sensitive land uses near the transport system through suitable siting, layout and design responses.

### Policy documents

Consider as relevant:

- *Separation Distance Guideline* (Environment Protection Authority, August 2024)
- *Landfill Buffer Guideline* (Environment Protection Authority, August 2024)
- *Environment Reference Standard* (Gazette No. S 245, 26 May 2021)

# 13.07 AMENITY, HUMAN HEALTH AND SAFETY

26/05/2020
VC175

## 13.07-1S Land use compatibility

14/01/2025
VC237

### Objective

To protect community amenity, human health and safety while facilitating appropriate commercial, industrial, infrastructure or other uses with potential adverse off-site impacts.

### Strategies

- Ensure that use or development of land is compatible with adjoining and nearby land uses
- Avoid locating incompatible uses in areas that may be impacted by adverse off-site impacts from commercial, industrial and other uses.
- Avoid or otherwise minimise adverse off-site impacts from commercial, industrial and other uses through land use separation, siting, building design and operational measures.
- Protect commercial, industrial and other employment generating uses from encroachment by use or development that would compromise the ability of those uses to function safely and effectively.

### Policy documents

Consider as relevant:

- *Separation Distance Guideline* (Environment Protection Authority, August 2024)
- *Landfill Buffer Guideline* (Environment Protection Authority, August 2024)

## 13.07-1L-01 Non-residential uses in residential areas

19/06/2025
C284case

### Policy application

This policy applies to the use and development of land in a residential zone, and land that is designated for future residential development in the Urban Growth Zone, Activity Centre Zone, and Comprehensive Development Zone.

### General strategies

Avoid a concentration of non-residential uses where it would detract from the primary function of the area for residential purposes.

Avoid locating non-residential uses in residential and future residential areas where the use would be more compatibly located in an industrial or commercial area.

Encourage the re-purposing of an existing non-residential building for a new non-residential use.

Support non-residential uses in residential and future residential areas where the use:

- Is located on the periphery of an activity centre and the use supports the centre's role in the activity centre network.
- Provides goods and services that are necessary for residents.
- Is located along roads capable of carrying anticipated traffic volumes, and not in cul-de-sacs.
- Is accessible for public transport users, pedestrians and bicycle users.
- Minimises adverse impacts on the surrounding road network and other infrastructure.
- Does not isolate a single dwelling or a collection of dwellings from the surrounding residential area.
- Does not compromise the role and function of centres in the activity centre network.
- Does not compromise opportunities for future residential development, particularly on large infill sites.

Site and design non-residential uses and development to protect the amenity of adjoining residential sites.

Encourage non-residential development to be landscaped consistently with the surrounding area, including providing screening between car parking and adjoining properties.

Locate entry and exit points to avoid vehicular headlight glare affecting residential properties.

Discourage non-residential development from locating on properties fronting service roads due to the impact on nearby residential areas and arterial roads, and the potential for 'ribboning' along such roads.

Site and design new buildings for non-residential uses to:

- Be capable of being converted to a dwelling.
- Have setbacks, heights and a site coverage consistent with planning requirements applied to the site for residential development.

Locate and design car parking so that it does not visually dominate the streetscape.

Site and design development for a non-residential use in the Low Density Residential Zone to preserve the neighbourhood character by providing:

- A total landscaped area greater than the land area used for car parking.
- Fencing that is consistent with the predominant fencing style in the area.

### Child care centres strategy

Design child care centres to minimise the noise impacts of outdoor play areas on neighbouring habitable rooms and outdoor living areas.

### Medical centres strategies

Locate large multi-practice medical centres in or near activity centres.

Discourage medical centres, particularly centres with an attached retail pharmacy component, from locating in areas where they will impact residential amenity.

### Display homes strategies

Encourage display homes to be located at the entrance to residential estates or fronting major collector roads.

Locate car parking areas in highly visible locations adjoining display homes.

Design and construct car parking areas with an appropriate all-weather surface.

### Places of assembly strategy

Locate places of assembly on land that adjoins, or has access to, a road in the Transport Zone 2 or Transport Zone 3.

### Convenience shops strategy

Site and design convenience shops to promote the activation of street frontages through reduced setbacks to a road, street or laneway for the activated section of the building.

### Vehicle stores strategies

Avoid establishing vehicle stores unless it will not adversely impact on residential amenity.

Locate vehicle stores on sites that adjoin, or have access to, a road in a Transport Zone 2 or Transport Zone 3 to minimise impacts on nearby residential streets.

Ensure all vehicles and associated equipment can be stored or parked within a building with no part of the use carried on outside the building.

Locate vehicle store buildings:

- Toward the rear of the site, or in a location that is not visually obtrusive when viewed from outside of the site.
- To be offset from habitable room windows of dwellings on adjoining land to mitigate off-site impacts of the use.

Discourage the on-site repair of vehicles being stored on the site.

### Policy guidelines

Consider as relevant:

- Directing child care centres catering for more than 40 children to locations adjoining or having access to a road in a Transport Zone 2 or Transport Zone 3.
- Locating car parking at the side or rear of the property with a sealed surface and stormwater drainage, except for display homes.
- Limiting the storage or parking of vehicles associated with a vehicle store (including any commercial vehicle used in association with a dwelling on the same land) to no more than two.
- Providing a 2 metre wide landscape strip between the non-residential use and all property boundaries to screen adjoining properties and improve the visual appearance from the street.
- Limiting the hours of operation of display homes to 9.00 a.m. and 6.00 p.m. seven days a week.

- Limiting the hours of operation of medical centres to:
  - 8.00 a.m. and 9.00 p.m. Monday to Saturday.
  - 9.00 a.m. and 1.00 p.m. Sunday.
- Limiting the hours of operation of convenience shops to 7.00 a.m. and 9.00 p.m. seven days a week.
- Limiting the hours of operation of vehicle stores to:
  - 7:00 a.m. and 7:00 p.m. Monday to Friday
  - 9:00 a.m. and 7:00 p.m. on Saturdays.

## 13.07-1L-02 Landfill buffers

19/06/2025
C284case

### Objective

To avoid locating incompatible land uses or development in landfill buffers that may be impacted by adverse off-site amenity impacts from operating or closed landfill sites.

### Strategies

Avoid the intensification or establishment of incompatible land uses or development within the buffer of:

- Operating landfill sites, including the Hallam Road landfill in Hampton Park.
- Closed landfill sites that still present a risk of land use or development conflict, including landfill gas risks.

Avoid the intensification of incompatible land uses or development in buffers around landfills shown in the *Landfill plan* in this Clause.

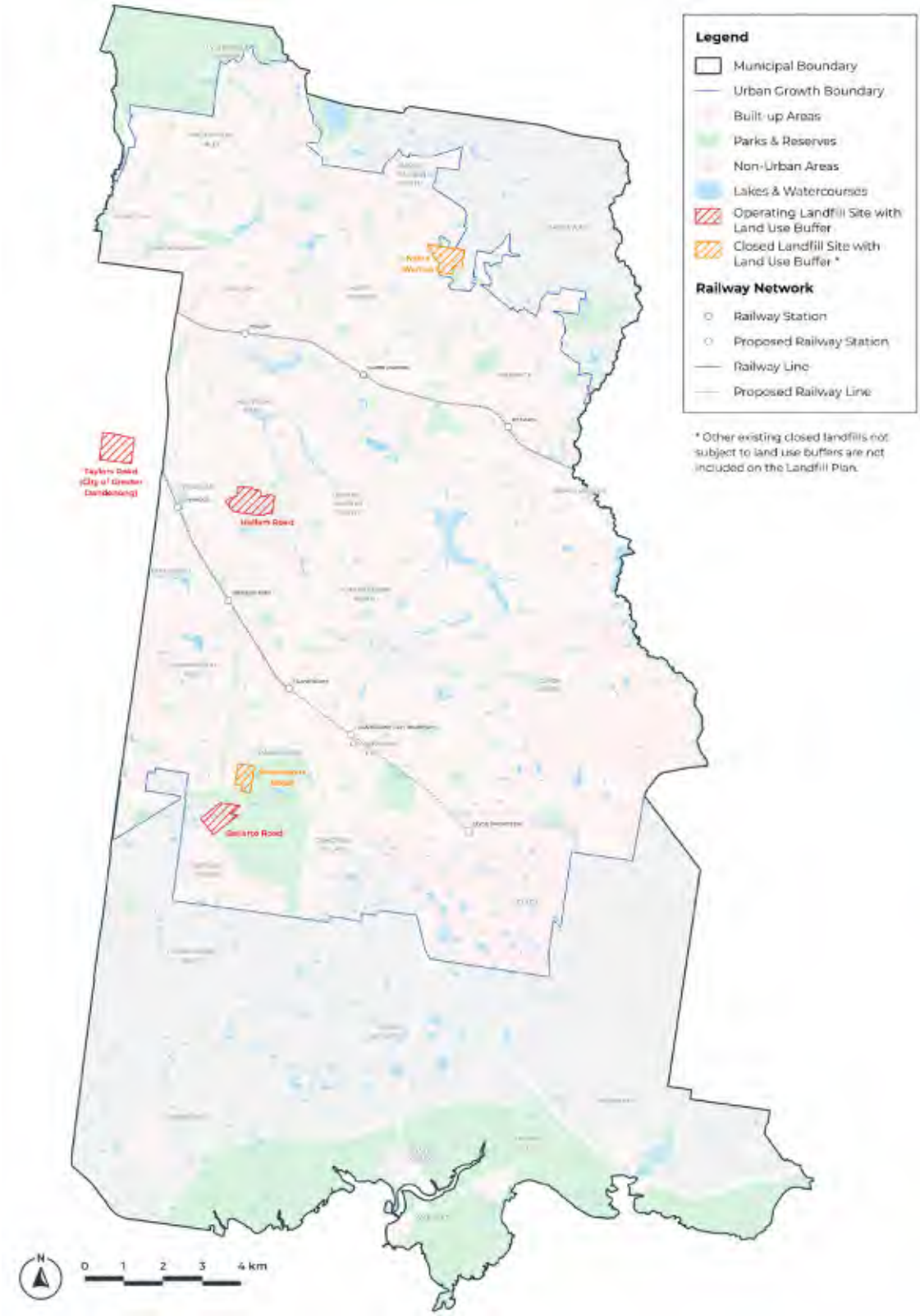
Support compatible land uses and development in buffers to prevent the underutilisation of land, where the use or development is complementary to the landfill.

### Policy guideline

Consider as relevant:

- Any applicable direction or guidelines set out by the Environment Protection Authority Victoria in determining the buffer extent.

## Landfill plan



## 13.07-2S Major hazard facilities

26/10/2018
VC152

### Objective

To minimise the potential for human and property exposure to risk from incidents that may occur at a major hazard facility and to ensure the ongoing viability of major hazard facilities.

### Strategies

Ensure major hazard facilities are sited, designed and operated to minimise risk to surrounding communities and the environment.

Consider the risks associated with increasing the intensity of use and development within the threshold distance of an existing major hazard facility.

Apply appropriate threshold distances from sensitive land uses for new major hazard facilities and between major hazard facilities.

Protect registered or licenced major hazard facilities as defined under Regulation 5 of the Occupational Health and Safety Regulations 2017 from encroachment of sensitive land uses.

## 13.07-3S Live music

01/07/2025
VC286

### Objective

To encourage, create and protect opportunities for the enjoyment of live music.

### Strategies

Identify areas where live music venues are encouraged or where there are clusters of live music venues.

Implement measures to ensure live music venues can co-exist with nearby residential and other noise sensitive land uses.

### Policy guidelines

Consider as relevant:

- The social, economic and cultural benefits to the community of:
  - Retaining an existing live music venue.
  - The development of new live music entertainment venues.
  - Clustering live music venues.

## 14 NATURAL RESOURCE MANAGEMENT

31/07/2018
VC148

Planning is to assist in the conservation and wise use of natural resources including energy, water, land, stone and minerals to support both environmental quality and sustainable development.

Planning should ensure agricultural land is managed sustainably, while acknowledging the economic importance of agricultural production.

# 14.01 AGRICULTURE

31/07/2018
VC148

## 14.01-1S Protection of agricultural land

20/03/2023
VC229

### Objective

To protect the state's agricultural base by preserving productive farmland.

### Strategies

Identify areas of productive agricultural land, including land for primary production and intensive agriculture.

Consider state, regional and local, issues and characteristics when assessing agricultural quality and productivity.

Avoid permanent removal of productive agricultural land from the state's agricultural base without consideration of the economic importance of the land for the agricultural production and processing sectors.

Protect productive farmland that is of strategic significance in the local or regional context.

Protect productive agricultural land from unplanned loss due to permanent changes in land use.

Prevent inappropriately dispersed urban activities in rural areas.

Protect strategically important agricultural and primary production land from incompatible uses.

Limit new housing development in rural areas by:

- Directing housing growth into existing settlements.
- Discouraging development of isolated small lots in the rural zones from use for dwellings or other incompatible uses.
- Encouraging consolidation of existing isolated small lots in rural zones.

Identify areas of productive agricultural land by consulting with the Department of Energy, Environment and Climate Action and using available information.

In considering a proposal to use, subdivide or develop agricultural land, consider the:

- Desirability and impacts of removing the land from primary production, given its agricultural productivity.
- Impacts on the continuation of primary production on adjacent land, with particular regard to land values and the viability of infrastructure for such production.
- Compatibility between the proposed or likely development and the existing use of the surrounding land.
- The potential impacts of land use and development on the spread of plant and animal pests from areas of known infestation into agricultural areas.
- Land capability.

Avoid the subdivision of productive agricultural land from diminishing the long-term productive capacity of the land.

Give priority to the re-structure of inappropriate subdivisions where they exist on productive agricultural land.

Balance the potential off-site effects of a use or development proposal (such as degradation of soil or water quality and land salinisation) against the benefits of the proposal.

## 14.01-1R Protection of agricultural land - Metropolitan Melbourne

31/07/2018
VC148

### Strategy

Protect agricultural land in Metropolitan Melbourne's green wedges and peri-urban areas to avoid the permanent loss of agricultural land in those locations.

## 14.01-2S Sustainable agricultural land use

21/09/2018
VC150

### Objective

To encourage sustainable agricultural land use.

### Strategies

Ensure agricultural and productive rural land use activities are managed to maintain the long-term sustainable use and management of existing natural resources.

Support the development of innovative and sustainable approaches to agricultural and associated rural land use practices.

Support adaptation of the agricultural sector to respond to the potential risks arising from climate change.

Encourage diversification and value-adding of agriculture through effective agricultural production and processing, rural industry and farm-related retailing.

Assist genuine farming enterprises to embrace opportunities and adjust flexibly to market changes.

Support agricultural investment through the protection and enhancement of appropriate infrastructure.

Facilitate ongoing productivity and investment in high value agriculture.

Facilitate the establishment and expansion of cattle feedlots, pig farms, poultry farms and other intensive animal industries in a manner consistent with orderly and proper planning and protection of the environment.

Ensure that the use and development of land for animal keeping or training is appropriately located and does not detrimentally impact the environment, the operation of surrounding land uses and the amenity of the surrounding area.

### Policy documents

Consider as relevant:

- *Victorian Code for Cattle Feedlots* (Department of Agriculture, Energy and Minerals, 1995)
- *Victorian Code for Broiler Farms* (Department of Primary Industries, 2009, plus 2018 amendments)
- *Apiary Code of Practice* (Department of Planning and Community Development, 2011)
- *Planning Guidelines for Land Based Aquaculture in Victoria* (Department of Primary Industries, No. 21, 2005)
- *Victorian Low Density Mobile Outdoor Poultry Farm Planning Permit Guidelines* (Department of Economic Development, Jobs, Transport and Resources, June 2018)
- *Victorian Low Density Mobile Outdoor Pig Farm Planning Permit Guidelines* (Department of Economic Development, Jobs, Transport and Resources, June 2018)

## 14.01-3S Forestry and timber production

20/03/2023
VC229

### Objective

To facilitate the establishment, management and harvesting of plantations and the harvesting of timber from native forests.

### Strategies

Identify areas that may be suitably used and developed for plantation timber production.

Promote the establishment of softwood and hardwood plantations on predominantly cleared land, as well as other areas that are subject to or contributing to land and water degradation.

Ensure protection of water quality and soil.

Ensure timber production in native forests is conducted in a sustainable manner.

Conduct timber production (except agroforestry, windbreaks and commercial plantations of 5 hectares or less) in accordance with the *Code of Practice for Timber Production 2014 (as amended 2022)* (Department of Environment, Land, Water and Planning, 2022).

Ensure Victoria's greenhouse sinks are protected and enhanced by controlling land clearing, containing the growth of urban areas and supporting revegetation programs.

### Policy documents

Consider as relevant:

- *Code of Practice for Timber Production 2014 (as amended 2022)* (Department of Environment, Land, Water and Planning, 2022)

# 14.02 WATER

31/07/2018
VC148

## 14.02-1S Catchment planning and management

28/04/2026
VC232

### Objective

To assist the protection and restoration of catchments, waterways, estuaries, bays, water bodies, groundwater, and the marine environment.

### Strategies

Ensure the continued availability of clean, high-quality drinking water by protecting water catchments and water supply facilities.

Consider the impacts of catchment management on downstream water quality and freshwater, coastal and marine environments.

Retain natural drainage corridors with vegetated buffer zones at least 50 metres wide along each side of a waterway to:

- Maintain the natural drainage function, stream habitat and wildlife corridors and landscape values,
- Minimise erosion of stream banks and verges, and
- Reduce polluted surface runoff from adjacent land uses.

Undertake measures to minimise the quantity and retard the flow of stormwater from developed areas.

Require appropriate measures to filter sediment and wastes from stormwater prior to its discharge into waterways, including the preservation of floodplain or other land for wetlands and retention basins.

Ensure that development at or near waterways provide for the protection and enhancement of the environmental qualities of waterways and their instream uses.

Ensure land use and development minimises nutrient contributions to water bodies and the potential for the development of algal blooms.

Require appropriate measures to restrict sediment discharges from construction sites.

Ensure planning is coordinated with the activities of catchment management authorities.

Ensure that water quality infrastructure is designed to minimise risk of harm to surface waters and groundwater.

### Policy guidelines

Consider as relevant:

- Any regional catchment strategy and related plans approved under the *Catchment and Land Protection Act 1994*.
- Any applicable implementation strategy approved by a catchment management authority or waterway management authority.
- Any special area or management plan under the *Heritage Rivers Act 1992*.
- Any action statement or management plan prepared under the *Flora and Fauna Guarantee Act 1988*.

### Policy documents

Consider as relevant:

- *Murray River Regional Environmental Plan No 2 (REP2) of New South Wales*
- *Marine and Coastal Policy* (Department of Environment, Land, Water and Planning, 2020)

- *Planning Permit Applications in Special Water Supply Catchment Areas* (Department of Energy, Environment and Climate Action, 2024)
- *Urban stormwater management guidance* (Environment Protection Authority - Publication 1739.1, 2021)

## 14.02-2S Water quality

22/11/2024
VC263

### Objective

To protect water quality.

### Strategies

Protect reservoirs, water mains and local storage facilities from potential contamination.

Ensure that land use activities potentially discharging contaminated runoff or wastes to waterways are sited and managed to minimise such discharges and to protect the quality of surface water and groundwater resources, rivers, streams, wetlands, estuaries and marine environments.

Discourage incompatible land use activities in areas subject to flooding, severe soil degradation, groundwater salinity or geotechnical hazards where the land cannot be sustainably managed to ensure minimum impact on downstream water quality or flow volumes.

Prevent the establishment of incompatible land uses in aquifer recharge or saline discharge areas and in potable water catchments.

Ensure that the siting, design, operation and rehabilitation of landfills avoids impacts on groundwater and surface water.

Avoid detrimental impacts on groundwater resources and minimise risk of harm to human health and the environment from proposed land use or development.

### Policy documents

Consider as relevant:

- *Civil Construction, Building and Demolition Guide* (Publication 1834, Environment Protection Authority, November 2020)
- *Environment Reference Standard* (Gazette No. S 245, 26 May 2021)
- *Planning Permit Applications in Special Water Supply Catchment Areas* (Department of Energy, Environment and Climate Action, 2024)

## 14.02-3S Protection of declared irrigation districts

04/02/2026
VC265

### Objective

To plan and manage for sustainable change within irrigation districts declared under Part 6A of the *Water Act 1989*.

### Strategies

Identify and plan for the future needs of communities to adapt and adjust to strategic land use change within an irrigation district.

Ensure the future viability of an irrigation district by preventing non-agricultural use of land in a declared irrigation district where the land is serviced, or was serviced as at 17 September 2019, by rural water corporation irrigation infrastructure, unless the rural water corporation infrastructure has been, or is planned to be, decommissioned.

Ensure non-agricultural land use does not undermine the integrity of irrigation infrastructure and complements existing and future agricultural production.

Ensure land use change within an irrigation district does not negate the potential opportunities for a rural water corporation to make adjustments to the footprint of an irrigation district that are identified under an approved plan or strategy.

Ensure land use change does not limit the ability of future investment in irrigation infrastructure that achieves the intended benefits of minimising water loss, and improved irrigation service efficiency to the farm gate and overall agricultural production.

### Policy documents

Consider as relevant:

- *Water for Victoria* (Department of Environment, Land, Water and Planning, 2016)
- *Central and Gippsland Region Sustainable Water Strategy* (Department of Energy, Environment and Climate Action, 2022)
- *Northern Region Sustainable Water Strategy* (Department of Sustainability and Environment, 2009)
- *Western Region Sustainable Water Strategy* (Department of Sustainability and Environment, 2011)
- *Victorian Government White Paper, Securing Our Water Future Together – Our Water, Our Future* (Department of Sustainability and Environment, 2004)

# 14.03 EARTH AND ENERGY RESOURCES

31/07/2018
VC148

## 14.03-1S Resource exploration and extraction

19/08/2021
VC196

### Objective

To encourage exploration and extraction of natural resources in accordance with acceptable environmental standards.

### Strategies

Provide for the long-term protection of natural resources in Victoria.

Protect the opportunity for exploration and extraction of natural resources where this is consistent with overall planning considerations and acceptable environmental practice.

Recognise the possible need to provide infrastructure, including transport networks, for the exploration and extraction of natural resources.

Ensure planning schemes do not impose conditions on the use or development of land that are inconsistent with the *Mineral Resources (Sustainable Development) Act 1990,* the *Greenhouse Gas Geological Sequestration Act 2008,* the *Geothermal Energy Resources Act 2005,* or the *Petroleum Act 1998*.

Develop and maintain buffers around mining and extractive industry activities.

Ensure planning permit applications clearly define buffer areas appropriate to the nature of the proposed extractive uses, which are to be owned or controlled by the proponent of an extractive industry.

Determine buffer areas between extractive activities and sensitive land uses on the following considerations:

- Appropriate limits on effects can be met at the sensitive locations using practical and available technology.
- Whether a change of land use in the vicinity of the extractive industry is proposed.
- Use of land within the buffer areas is not limited by adverse effects created by the extractive activities.
- Performance standards identified under the relevant legislation.
- Types of activities within land zoned for public use.

Identify and protect extractive industry resources within Strategic Extractive Resource Areas, based on their current or potential contribution to state supply, access to supporting transport networks and proximity to demand markets.

Facilitate the use and development of Strategic Extractive Resource Areas for extractive industries and other compatible land uses.

Protect the brown coal resource in Central Gippsland by ensuring that:

- Changes in use and development of land overlying coal resources, as generally defined in *Framework for the Future* (Minister for Industry, Technology and Resources and Minister for Planning and Environment, 1987) and the *Land Over Coal and Buffer Area Study* (Ministry for Planning and Environment, 1988), do not compromise the winning or processing of coal.
- Coal-related development is adequately separated from residential or other sensitive uses and main transport corridors by buffer areas to minimise adverse effects such as noise, dust, fire, earth subsidence and visual intrusion.
- Use and development within the buffer areas are compatible with use and development adjacent to these areas.
- Ensure that the use and development of land for extractive industry responds to potential environmental risks and maintains or improves the quality of the air, land, acoustic and water environments.

### Policy documents

Consider as relevant:

- *Mineral Resources (Sustainable Development) Act 1990*
- *Greenhouse Gas Geological Sequestration Act 2008*
- *Geothermal Energy Resources Act 2005*
- *Petroleum Act 1998*
- *Melbourne Supply Area - Extractive Industry Interest Areas Review* (Geological Survey of Victoria Technical Record, 2003/2)
- *Ballarat Supply Area - Extractive Industry Interest Areas* (Geological Survey of Victoria Technical Record, 1997/3)
- *Bendigo Supply Area - Extractive Industry Interest Areas* (Geological Survey of Victoria Technical Record, 1998/6)
- *Geelong Supply Area - Extractive Industry Interest Areas* (Geological Survey of Victoria Technical Record, 1999/2)
- *La Trobe Supply Area - Extractive Industry Interest Areas* (Geological Survey of Victoria Technical Record, 1999/4)
- *Strategic Extractive Resource Areas Pilot Project Report* (Victorian Government, 2020)

## 14.03-1L Resource exploration and extraction

19/06/2025
C284case

### Strategy

Manage existing extractive industry sites for both their extractive or filling potential as well as for their future potential use once operations cease.

# 15 BUILT ENVIRONMENT AND HERITAGE

02/09/2025
VC283

Planning is to recognise the role of urban design, building design, heritage and energy and resource efficiency in delivering liveable and sustainable cities, towns and neighbourhoods.

Planning should ensure all land use and development appropriately responds to its surrounding landscape and character, valued built form and cultural context.

Planning should protect places and sites with significant heritage, architectural, aesthetic, natural, scientific and cultural value.

Planning should incorporate measures to protect culturally significant heritage places in locations exposed to climate related hazards.

Planning must support the establishment and maintenance of communities by delivering functional, accessible, safe and diverse physical and social environments, through the appropriate location of use and development and through high quality buildings and urban design.

Planning should promote excellence in the built environment and create places that:

- Are enjoyable, engaging, and comfortable to be in.
- Support human health and community wellbeing.
- Accommodate people of all abilities, ages and cultures.
- Contribute positively to local character and sense of place.
- Reflect the particular characteristics and cultural identity of the community.
- Celebrate, acknowledge and protect cultural heritage.
- Enhance the function, amenity and safety of the public realm.

Planning should promote development that is environmentally sustainable and minimise detrimental impacts on the built and natural environment.

Planning should facilitate development that:

- Is adapted and resilient to climate related hazards.
- Supports the transition to net zero greenhouse gas emissions.
- Minimises waste generation and supports resource recovery.
- Conserves potable water.
- Supports the use of, and access to, low emission forms of transport.
- Protects and enhances natural values.
- Minimises off-site detrimental impacts on people and the environment.

# 15.01 BUILT ENVIRONMENT

31/07/2018
VC148

## 15.01-1S Urban design

02/09/2025
VC283

### Objective

To create urban environments that are safe, healthy, functional and enjoyable and that contribute to a sense of place and cultural identity.

### Strategies

Require development to respond to its context in terms of character, cultural identity and heritage, natural features, surrounding landscape and climate.

Ensure development contributes to community and cultural life by improving the quality of living and working environments, facilitating accessibility and providing for inclusiveness.

Ensure the interface between the private and public realm protects and enhances personal safety.

Ensure development supports public realm amenity and safe access to walking and cycling environments and public transport.

Ensure that the design and location of publicly accessible private spaces, including car parking areas, forecourts and walkways, is of a high standard, creates a safe environment for users and enables easy and efficient use.

Ensure that development provides landscaping that supports the amenity, attractiveness and safety of the public realm.

Ensure that development, including signs, minimises detrimental impacts on amenity, on the natural and built environment and on the safety and efficiency of roads.

Promote good urban design along and abutting transport corridors.

### Policy documents

Consider as relevant:

- *Urban Design Guidelines for Victoria* (Department of Environment, Land, Water and Planning, 2017)

## 15.01-1R Urban design - Metropolitan Melbourne

31/07/2018
VC148

### Objective

To create a distinctive and liveable city with quality design and amenity.

### Strategies

Support the creation of well-designed places that are memorable, distinctive and liveable.

Integrate place making practices into road space management.

Strengthen Melbourne's network of boulevards.

Create new boulevards in urban-growth areas and selected existing road corridors across Melbourne.

Provide spaces and facilities that encourage and support the growth and development of Melbourne's cultural precincts and creative industries.

## 15.01-1L-01 Design of activity centres

19/06/2025
C284case

### Policy application

This policy applies to all activity centres other than the Fountain Gate-Narre Warren CBD Metropolitan Activity Centre and Cranbourne Major Activity Centre.

### Strategy

Encourage development, unless otherwise provided for in an approved Development Plan or Precinct Structure Plan, to:

- Provide continuity of pedestrian movement and an activated public realm in the activity centre core.
- Locate vehicle and loading access movements at the periphery and rear of the activity centre core.
- Activate building facades on street frontages in retail and commercial mixed-use areas through entrances and extensive glazing at all levels.
- Provide car parking in a way that does not dominate the streetscape.
- Provide continuity of weather protection and amenity along street frontages through consistent awnings.
- Provide a human scale built form at the street interface.
- Be sited and designed so that public open spaces, footpaths and communal spaces receive sunlight.

## 15.01-1L-02 Signs

19/06/2025
C284case

### Policy application

This policy applies to the development of land for signs.

### General strategies

Design signs to display simple, clear messages that are easy to read.

Design signs to be of a height and area proportional to the scale of development on the site.

Encourage signs for individual occupancies in joint occupancy buildings to be of a uniform size, shape and presentation.

Encourage business identification signs to be attached to or integrated into the building façade, for properties in the Fountain Gate-Narre Warren CBD Metropolitan Activity Centre that abut the Monash Freeway, Princes Highway or Narre Warren North Road and have their main entrance or front of the building directed away from these road frontages.

Discourage high-wall signs, panel signs, promotion signs and sky signs.

Discourage the use of A-frame signs and other temporary signs, including bunting.

Discourage signs on the windows of commercial and retail premises that detract from the use of the windows for the display of goods.

Ensure light spill from internally illuminated and floodlit signs does not detrimentally affect the character and amenity of the surrounding area.

Avoid signs that project above parapet lines.

Ensure signs do not obscure land forms, vegetation or buildings that contribute to the existing character of the area.

Avoid signs in Berwick Village that dominate or detract from the visual amenity of the low-scale, garden village style and character of the streetscape.

### Industrial areas strategy

Encourage the use of a sign at the entry of an industrial estate or a directory board to identify the name of the estate and its occupancies.

### Rural areas strategy

Limit signs to those necessary for advertising the property or business, including directional signs.

### Car sales strategy

Encourage signs displayed as a backdrop on walls or fences at the rear of an open car yard to:

- Be in proportion to the size of the yard and adjoining buildings.
- Not exceed the height of adjoining fascia/wall signs.

### General policy guidelines

Consider as relevant:

- Limiting signs on a premises to business identification signs only.
- Limiting pole signs to a maximum of one per site.
- Discouraging signs that exceed 7 metres in height.
- Integrating signs for individual occupancies in multi-occupancy premises to be on a single sign that is less than 7 metres in height.

### Commercial and retail areas policy guidelines

- Limiting business identification signs on each premises to no more than:
  - One sign located under the-verandah.
  - One sign on the verandah fascia.
  - One sign on the parapet wall.
- Limiting business identification signs on the windows of premises to no more than 25 per cent of the glazed area/panel.
- Limiting business identification signs on premises in Berwick Village to a total display area of no more than 8 square metres.
- Limiting signs to no more than one business identification sign per business for properties in the Fountain Gate-Narre Warren CBD Metropolitan Activity Centre that abut the Monash Freeway, Princes Highway or Narre Warren North Road and have their main entrance or front of the building directed away from these road frontages.

### Industrial areas policy guidelines

- Limiting signs to two business identification signs on each premises.
- Limiting signs on each premises to no more than one pole sign and one fascia/wall sign per road abuttal that primarily displays the company name/logo and nature of the business.

### Residential areas policy guidelines

- Limiting business identification signs for freestanding non-residential developments on land over 1,000 square metres to no more than one pole sign and one fascia or wall sign per elevation visible from the road, that primarily display the company name or logo and nature of business.
- Limiting business identification signs for non-residential developments on land under 1,000 square metres to not exceed 1.8 metres in height and 2 square metres in total area.

### Rural areas policy guidelines

- Limiting signs for non-agricultural developments to two per site, which may include one double-sided freestanding sign and one sign located on an associated building.
- Limiting signs to primarily relate to the advertising of tourism-oriented businesses.

### Service stations policy guidelines

- Discouraging pole signs from displaying information other than the company name/logo, petrol prices and the name/logo of other tenants.
- Discouraging canopy fascia signs from displaying information other than the company name where the fascia has a maximum height of 900 millimetres.
- Limiting petrol price boards to one per road abuttal.
- Limiting signs for associated activities occupying a separate freestanding building on the same site, such as a car wash or workshop, to one fascia/wall sign per building.

### Car sales policy guideline

- Limiting signs to no more than two signs per elevation visible from the road.

## 15.01-1L-03 Urban and landscape design

19/06/2025
C284case

### General strategies

Maintain and enhance the treed landscape setting of Casey's suburban areas and its townships and villages through:

- Extensive tree planting.
- Landscaped setbacks.
- Maintaining views and links through to open space and non-urban areas.
- Encouraging the planting of shade trees for functionality and amenity.
- Protecting existing street trees.

Design and site development in environmentally sensitive areas, such as the Casey Foothills and Casey Coast, to respect surrounding development and the natural environment in terms of:

- Roof treatment.
- Height and massing of buildings.
- Colours and finishes, using natural and muted colours and non-reflective materials.

Maximise opportunities for natural surveillance of public spaces in the design and layout of development.

Encourage the integration of community art and urban design projects in development.

### Landscape strategies

Encourage landscaping that:

- Responds to the site's environmental conditions, irrigation, water restriction and long term maintenance requirements.
- Supports water conservation, including the use of plant species that minimise water consumption.
- Provides habitat for local native fauna.
- Assists in crime prevention in areas that can pose a security risk, particularly areas directly adjacent to showrooms and car parks.

Encourage the retention and protection of existing trees, particularly mature trees, that help preserve the established landscape character of the area.

Encourage the use of plant species of varying heights, including groundcovers, shrubs and trees that enhance and respect the landscape character of the area.

Encourage vegetative screen buffers where proposed development will have a visual impact on the landscape, in particular car parks, large sheds, industrial sites, acoustic fencing, substations and the like.

Encourage the use of pavement that is permeable to allow water to permeate the subsoil, particularly in locations that are not heavily used or are not for vehicles.

Design utilities to minimise impact on existing and proposed landscaping.

### Car parking and accessway strategies

Site and design car parking areas to:

- Protect adjoining garden beds from any potential damage by separating all landscaped areas from vehicular areas through a kerb, small wall or other effective physical barrier.
- Provide sun protection for parked cars, including through canopy tree planting.

- Enhance visual amenity by maximising landscaping, including around the car parking bays.
- Be free draining, preferably directing runoff to areas of high infiltration rather than kerb and channel.
- Use durable surface materials particularly bitumen, concrete or pavers.

Discourage siting car parking within the landscaped setback along the street frontage, where it would detract from the amenity of the streetscape.

Site design and driveways to:

- Avoid long, straight and visually unappealing driveways.
- Provide privacy screening between driveways and buildings to reduce headlight glare.
- Incorporate splays in the landscaping along the driveway to provide areas for canopy tree planting for shade.

### Policy guidelines

Consider as relevant:

- Where an existing tree is damaged or removed by proposed building works, replacing the tree with one of similar size and aesthetic value.
- Encouraging landscaping that achieves a density of 85 percent coverage at twelve months from planting date.
- Providing car parking areas with a minimum of one canopy tree for every four linear car parking spaces with understorey planting to garden beds.
- Where cut-outs for tree planting are provided within car parking areas, providing a minimum 1 square metre planting area at ground level.
- Protecting landscaping in garden beds that adjoin car parking through the installation of a fixed durable edge restraint that is at least 150 millimetres in height, particularly pavers, concrete or treated timber.
- A minimum planting offset of 600 millimetres from the back of kerb in car parking areas to avoid damage to plants from exhausts or vehicle overhang.
- Where more than three rows of carparking are proposed, providing a landscaped traffic island between the two abutting rows to break up the expanse of car parking.
- Encouraging the use of paving:
  - Between parking areas and the principal entries of buildings.
  - In refuse bin enclosures and letter box areas.
  - In drying areas.
  - In the rear courtyards of dwellings where access to the courtyard is only via the dwelling.
- Setting back driveways from side boundaries a minimum 600 millimetres to allow effective planting, including trees, to reduce visual impact and offer privacy for users.

### Policy document

Consider as relevant:

- *City of Casey Landscape Policy* (City of Casey, 2010)

## 15.01-2S Building design

16/04/2026
VC300

### Objective

To achieve building design and siting outcomes that contribute positively to the local context, enhance the public realm and support environmentally sustainable development.

### Strategies

Ensure a comprehensive site analysis forms the starting point of the design process and provides the basis for the consideration of height, scale, massing and energy performance of new development.

Ensure development responds and contributes to the strategic and cultural context of its location.

Minimise the detrimental impact of development on neighbouring properties, the public realm and the natural environment.

Improve the energy performance of buildings through siting and design measures that encourage:

- Passive design responses that minimise the need for heating, cooling and lighting.
- On-site renewable energy generation and storage technology.
- Use of low embodied energy materials.

Restrict the provision of reticulated natural gas in new dwelling development.

Ensure the layout and design of development supports resource recovery, including separation, storage and collection of waste, mixed recycling, glass, organics and e-waste.

Encourage use of recycled and reusable materials in building construction and undertake adaptive reuse of buildings, where practical.

Encourage water efficiency and the use of rainwater, stormwater and recycled water.

Minimise stormwater discharge through site layout and landscaping measures that support on-site infiltration and stormwater reuse.

Ensure the form, scale, and appearance of development enhances the function and amenity of the public realm.

Ensure buildings and their interface with the public realm support personal safety, perceptions of safety and property security.

Ensure development is designed to protect and enhance valued landmarks, views and vistas.

Ensure development considers and responds to transport movement networks and provides safe access and egress for pedestrians, cyclists and vehicles.

Encourage development to retain existing vegetation.

Ensure development provides landscaping that responds to its site context, enhances the built form, creates safe and attractive spaces and supports cooling and greening of urban areas.

### Policy documents

Consider as relevant:

- *Urban Design Guidelines for Victoria* (Department of Environment, Land, Water and Planning, 2017)
- *Apartment Design Guidelines for Victoria* (Department of Environment, Land, Water and Planning, 2021)
- *Waste Management and Recycling in Multi-unit Developments* (Sustainability Victoria, 2019)
- *Mid-Rise Design Guide* (Department of Transport and Planning, 2026)

## 15.01-2L-01 Residential landscape design

19/06/2025
C284case

### Strategies

Site and design residential development that adjoins parkland or a reserve so that it:

- Maximises views to the parkland or reserve through the installation of windows, the orientation of balconies at upper levels, transparent fencing or reduced fence height.
- Provides a frontage and access point where possible.
- Provides canopy trees along the boundaries to enhance the site's amenity.

Site and design residential development that adjoins bushland so that it:

- Encourages fauna into the development site by installing compatible native flora.
- Incorporates the use of permeable fences to allow fauna movement between properties and open space, where possible.

Site and design residential development that adjoins existing or proposed bicycle or pedestrian paths to encourage direct access onto the path.

Site and design common areas within multi-dwelling developments so that they are separated from adjacent dwellings and accessways by landscaping comprising of trees, shrubs and/or lawns.

Encourage the use of trees and shrubs to screen the private open space of dwellings from views from adjacent dwellings, common areas and accessways.

Encourage screen planting along all side and rear boundaries and around bin enclosures.

Design screen planting along property boundaries to be incorporated into mass-planted garden beds tiered with trees, shrubs and groundcovers.

Discourage the use of high screen fencing without landscaped planting.

### Policy guidelines

Consider as relevant:

- Providing garden beds that have a minimum width of:
  - 1500 millimetres where buildings are more than 3 metres from the property boundary.
  - 1000 millimetres where buildings are between 1.5 metres and 3 metres from the property boundary.
  - 600 millimetres where buildings are less than 1.5m from the property boundary.

### Policy document

Consider as relevant:

- *City of Casey Landscape Policy* (City of Casey, 2010)

## 15.01-2L-02 Industrial building design

19/06/2025
C284case

### Building design strategies

Minimise building bulk and visual amenity impacts on the streetscape by siting office and reception areas forward of any high-wall construction where it fronts a road.

Avoid the construction of blank walls that have no visual relief and would be visible from any public area.

### Car parking strategies

Ensure sufficient areas are made available for car parking, goods loading and vehicle manoeuvring.

Discourage development that relies on excessive on-street parking for employees and visitors.

Encourage locating:

- Visitor car parking spaces adjacent to office areas.
- Employee car parking spaces to the rear of the site, where the site is on a larger allotment.

### Storage strategies

Site areas intended for the storage of industrial waste, goods or machinery behind the building line.

Screen areas intended for the storage of industrial waste, goods or machinery from any street or neighbouring property.

### Landscaping and open space strategies

Encourage the provision of public open space or landscaped buffers along residential interfaces or where the land abuts other sensitive land uses.

Support the use of the land's topography and landscaping treatments to minimise the visual impact of the development, particularly parked vehicles or storage areas for industrial waste, goods or machinery.

Provide safe and convenient pedestrian access to and from the car park, street frontage and building entrance, including through connected footpaths.

### Fencing strategies

Design security fencing to:

- Minimise visual impact through its type and colour.
- Be visually compatible with the development.
- Be set back from any road abutting the site, so that it is either within or behind a landscape buffer.

### Policy guidelines

Consider as relevant:

- Supporting the use of brick, masonry or coloured/painted concrete construction, for any building facing a road.
- Designing car parking areas and accessways with an all-weather sealed surface (such as concrete or asphalt) and to be clearly defined on the ground, and drained.
- Limiting vehicle access points to one per site in order to maximise landscape or nature strip areas and to minimise opportunities for vehicular conflicts with pedestrians. A greater number of access points may be allowed provided they do not collectively comprise more than 40 percent of the street frontage.

- Encouraging the provision of an onsite industrial waste container area having minimum dimensions of 3 metres by 5 metres that is readily accessible for servicing or removal.
- Providing a landscaped buffer with a minimum width of 5 metres around development, including car parking and all street frontages.
- Encouraging at least 35 percent of the frontage setback to be mass planted with mulched garden beds to enhance the visual appearance of the development when viewed from the road.
- Encouraging planting in the front setback to include a minimum of one tree and an additional one tree for every eight lineal metres of street frontage.

## 15.01-2L-03 Environmentally sustainable development

08/05/2026
C304case

### Policy application

This policy applies to residential and non-residential development, excluding subdivision, in accordance with the thresholds detailed in this policy.

### Objective

To achieve best practice in environmentally sustainable development from the design stage through to construction and operation.

### General strategies

Facilitate development that minimises environmental impacts.

Encourage environmentally sustainable development that:

- Is consistent with the type and scale of the development.
- Responds to site opportunities and constraints.
- Adopts best practice through a combination of methods, processes and locally available technology that demonstrably minimise environmental impacts.

### Energy performance strategy

Reduce both energy use and energy peak demand through design measures such as:

- Building orientation.
- Shading to glazed surfaces.
- Optimising glazing to exposed surfaces.
- Inclusion of or space allocation for renewable technologies.

### Integrated water management strategies

Reduce total operating potable water use through appropriate design measures such as water efficient fixtures, appliances, equipment, irrigation and landscaping.

Encourage the appropriate use of alternative water sources (including greywater, rainwater and stormwater).

Incorporate best practice water sensitive urban design to improve the quality of stormwater runoff and reduce impacts on water systems and water bodies.

### Indoor environment quality strategies

Achieve a healthy indoor environment quality, including thermal comfort and access to fresh air and daylight, prioritising passive design over mechanical heating, ventilation, cooling and lighting.

Reduce indoor air pollutants by encouraging use of low-toxicity materials.

Minimise noise levels and noise transfer within and between buildings and associated external areas.

### Transport strategies

Design development to promote the use of walking, cycling and public transport, in that order; and minimise car dependency.

Promote the use of low emissions vehicle technologies and supporting infrastructure.

### Waste management strategies

Promote waste avoidance, reuse and recycling during the design, construction and operation stages of development.

Encourage use of durable and reuseable building materials.

Ensure sufficient space is allocated for future change in waste management needs, including (where possible) composting and green waste facilities.

### Urban ecology strategies

Protect and enhance biodiversity by incorporating natural habitats and planting indigenous vegetation.

Reduce urban heat island effects through building design, landscape design, water sensitive urban design and the retention and provision of canopy and significant trees.

Encourage the provision of space for productive gardens, particularly in larger residential developments.

### Policy guidelines

Consider as relevant:

### Residential

A Sustainable Design Assessment (including an assessment using BESS, STORM or other methods) for development of:

- 2 - 9 dwellings.
- A building used for accommodation other than dwellings with a gross floor area between 100 square metres and 1000 square metres.

A Sustainability Management Plan (including an assessment using BESS/Green star, STORM/MUSIC or other methods) and a Green Travel Plan for development of:

- 10 or more dwellings.
- A building used for accommodation other than dwellings with a gross floor area of 1000 square metres or more.

### Non-residential

A Sustainable Design Assessment (including an assessment using BESS and STORM/MUSIC or other methods) for development of:

- A non-residential building with a gross floor area between 300 square metres and 1000 square metres.
- An extension to an existing non-residential building creating between 300 square metres and 1000 square metres of additional gross floor area (excluding outbuildings).

A Sustainability Management Plan (including an assessment using BESS/Green star, STORM/MUSIC or other methods) and a Green Travel Plan for development of:

- A non-residential building with a gross floor area of 1000 square metres or more.
- An extension to an existing non-residential building creating 1000 square metres or more of additional gross floor area (excluding outbuildings).

### Mixed use

Applicable assessments for the residential and non-residential components of the development.

### ESD tools

The following tools to support a Sustainable Design Assessment or Sustainability Management Plan:

- *Sustainable Design Assessment in the Planning Process* (IMAP, 2015)
- *Built Environment Sustainability Scorecard 'BESS'* (Council Alliance for a Sustainable Built Environment 'CASBE')
- *Green Star* (Green Building Council of Australia)
- *Model for Urban Stormwater Improvement Conceptualisation 'MUSIC'* (Melbourne Water)
- *Nationwide House Energy Rating Scheme 'NatHERS'* (Department of Climate Change and Energy Efficiency)
- *Stormwater Treatment Objective - Relative Measure 'STORM'* (Melbourne Water)
- *Urban Stormwater Best Practice Environmental Management Guidelines* (Victorian Stormwater Committee, 1999)
- *Waste Management and Recycling in Multi-Unit Developments - Better Practice Guide* (Sustainability Victoria, 2018).

### Commencement

This policy does not apply to applications received by the responsible authority before 19 June 2025.

### Expiry

This policy will expire when it is superseded by a comparable provision of the Victoria Planning Provisions.

## 15.01-3S Subdivision design

01/01/2024
VC250

### Objective

To ensure the design of subdivisions achieves attractive, safe, accessible, diverse and sustainable neighbourhoods.

### Strategies

In the development of new residential areas and in the redevelopment of existing areas, subdivision should be designed to create liveable and sustainable communities by:

- Creating compact neighbourhoods that have walkable distances between activities.
- Developing activity centres in appropriate locations with a mix of uses and services and access to public transport.
- Creating neighbourhood centres that include services to meet day to day needs.
- Creating urban places with a strong sense of place that are functional, safe and attractive.
- Providing a range of lot sizes to suit a variety of dwelling and household types to meet the needs and aspirations of different groups of people.
- Creating landscaped streets and a network of open spaces to meet a variety of needs with links to regional parks where possible.
- Protecting and enhancing habitat for native flora and fauna, and providing opportunities for people to experience nature in urban areas.
- Facilitating an urban structure where neighbourhoods are clustered to support larger activity centres served by high quality public transport.
- Reduce car dependency by allowing for:
  - Convenient and safe public transport.
  - Safe and attractive spaces and networks for walking and cycling.
  - Subdivision layouts that allow easy movement within and between neighbourhoods.
  - A convenient and safe road network.
- Minimising exposure of sensitive uses to air and noise pollution from the transport system.
- Being accessible to people with disabilities.
- Creating an urban structure that:
  - Responds to climate related hazards.
  - Incorporates integrated water management, including sustainable irrigation of open space.
  - Minimises peak demand on the electricity network.
  - Supports energy efficiency and solar energy generation through urban layout and lot orientation.
  - Supports waste minimisation and increased resource recovery.
- Providing utilities and services that support the uptake of renewable energy technologies, such as microgrids and energy storage systems, including batteries.
- Providing all-electric lots.

### Policy documents

Consider as relevant:

- *Urban Design Guidelines for Victoria* (Department of Environment, Land, Water and Planning, 2017)

## 15.01-3L Landscape design for subdivisions

19/06/2025
C284case

### Strategies

Provide street tree planting as part of all subdivisions.

Design and site roads so that they:

- Follow the shape of the terrain.
- Do not cut across skylines.
- Do not leave large areas of exposed earth following cut and fill operations.
- Include the separation of traffic lanes where excessive cut and fill operations are required.

Encourage subdivision layouts to maximise views of the natural landscape including by:

- Preserving existing views.
- Enhancing existing views through planting that screens adjacent buildings.
- Creating views into and out of the subdivision through tree planting that frames vistas and enhance visual amenity of the locality.
- Facilitating the establishment of viewing platforms, such as from a local promontory or wetland with interconnecting bicycle paths or walking trails.

Ensure landscaping proposed in subdivisions can be maintained in the long term and minimise maintenance requirements.

### Policy document

Consider as relevant:

- *City of Casey Landscape Policy* (City of Casey, 2010)

## 15.01-4S Healthy neighbourhoods

02/09/2025
VC283

### Objective

To achieve neighbourhoods that foster healthy and active living and community wellbeing.

### Strategies

Design neighbourhoods that foster community interaction and make it easy for people of all ages and abilities to live healthy lifestyles and engage in regular physical activity by providing:

- Connected, safe, pleasant and attractive walking and cycling networks that enable and promote walking and cycling as a part of daily life.
- Streets with direct, safe and convenient access to destinations.
- Conveniently located public spaces for active recreation and leisure.
- Accessibly located public transport stops.
- Amenities and protection to support physical activity in all weather conditions.

Create 20 minute neighbourhoods, that give people the ability to meet most of their everyday needs within a 20 minute walk, cycle or local public transport trip from their home.

### Policy documents

Consider as relevant:

- *Urban Design Guidelines for Victoria* (Department of Environment, Land, Water and Planning, 2017)

## 15.01-4L Healthy and social urban environments

19/06/2025
C284case

### Strategies

Encourage development that includes multiple occupancies to incorporate communal gardens, urban agriculture or other facilities that can be used by occupants to grow food.

Encourage development that includes multiple occupancies to include communal spaces that facilitate social interaction.

Encourage development, where it interfaces with the public realm, to incorporate opportunities for social interaction between public and private spaces into its design.

## 15.01-5S Neighbourhood character

09/10/2020
VC169

### Objective

To recognise, support and protect neighbourhood character, cultural identity, and sense of place.

### Strategies

Support development that respects the existing neighbourhood character or contributes to a preferred neighbourhood character.

Ensure the preferred neighbourhood character is consistent with medium and higher density housing outcomes in areas identified for increased housing.

Ensure development responds to its context and reinforces a sense of place and the valued features and characteristics of the local environment and place by respecting the:

- Pattern of local urban structure and subdivision.
- Underlying natural landscape character and significant vegetation.
- Neighbourhood character values and built form that reflect community identity.

## 15.01-6S Design for rural areas

31/07/2018
VC148

### Objective

To ensure development respects valued areas of rural character.

### Strategies

Ensure that the siting, scale and appearance of development protects and enhances rural character.

Protect the visual amenity of valued rural landscapes and character areas along township approaches and sensitive tourist routes by ensuring new development is sympathetically located.

Site and design development to minimise visual impacts on surrounding natural scenery and landscape features including ridgelines, hill tops, waterways, lakes and wetlands.

## 15.02 [NO CONTENT]

10/06/2022
VC216

## 15.02-1S [NO CONTENT]

10/06/2022
VC216

# 15.03 HERITAGE

31/07/2018
VC148

## 15.03-1S Heritage conservation

02/09/2025
VC283

### Objective

To ensure the conservation of places of heritage significance.

### Strategies

Identify, assess and document places of natural and cultural heritage significance as a basis for their inclusion in the planning scheme.

Provide for the protection of natural heritage sites and man-made resources.

Provide for the conservation and enhancement of those places that are of aesthetic, archaeological, architectural, cultural, scientific or social significance.

Encourage appropriate development that respects places with identified heritage values.

Retain those elements that contribute to the importance of the heritage place.

Encourage the conservation and restoration of contributory elements of a heritage place.

Ensure an appropriate setting and context for heritage places is maintained or enhanced.

Support adaptive reuse of heritage buildings where their use has become redundant.

Consider whether it is appropriate to require the restoration or reconstruction of a heritage building in a Heritage Overlay that has been unlawfully or unintentionally demolished in order to retain or interpret the cultural heritage significance of the building, streetscape or area.

### Policy guidelines

Consider as relevant:

- The findings and recommendations of the Victorian Heritage Council.

### Policy documents

- The Burra Charter: The Australia ICOMOS Charter for Places of Cultural Significance (Australia ICOMOS Incorporated, 2013).

## 15.03-1L Heritage in Casey

19/06/2025
C284case

### Policy application

This policy applies to all land affected by a Heritage Overlay.

### General strategies

Retain a heritage place or a contributory element to a heritage place in its original location unless:

- The location is not an important component of the cultural significance of the heritage place.
- The relocation is the only reasonable means of ensuring the survival of the heritage place.

Avoid use or development of a heritage place where it adversely affects the heritage significance of the place.

Prevent the development of land on which there is or was a heritage building that has been unlawfully demolished (whole or in part) or fallen into disrepair unless the development is for or includes the reconstruction or reinstatement of or the repair of the heritage building.

### General policy guidelines

Consider as relevant:

- The most recent statement of significance if there is more than one statement of significance for a heritage place. If there is a statement of significance at both the individual and precinct level for a heritage place, then both should be taken into account.

### Conservation strategies

Encourage the use of traditional methods and materials in the conservation and restoration of the heritage place.

Encourage the removal of alterations, additions and works that detract from the significance of the heritage place.

Support adaptive re-use of the heritage place where it facilitates the long-term use of the site and the commercial viability of any restoration and ongoing maintenance works.

Encourage restoration and reconstruction of the heritage place where:

- The works reveal culturally significant aspects of the heritage place.
- The heritage place is incomplete through damage or alteration.
- The works are able to reproduce an earlier state of the fabric.

### Demolition strategies

Avoid the demolition of a heritage place in its entirety.

Avoid the demolition of significant fabric and contributory elements of a heritage place.

Avoid the demolition of a heritage place, whole or in part, on the basis of poor structural or aesthetic condition or low heritage integrity whether this is the result of deterioration, neglect or for any other reason.

Allow partial demolition of heritage places only where:

- The demolition allows for the conservation of the heritage place.
- The removal of significant fabric is recorded to allow for future reconstruction.
- The removed fabric is reinstated when circumstances permit.

### Demolition policy guidelines

Consider as relevant:

- Avoiding permitting demolition unless replacement buildings or works are approved.
- Where demolition of significant fabric is permitted, recording the fabric prior to demolition using such measures as archival photographs or other suitable recording methods.

### Subdivision strategies

Ensure the subdivision of a heritage place retains sufficient area on the lot containing the heritage building to:

- Reflect its original historic setting including retaining contributory elements, vegetation, landscaping or vehicle access.
- Ensure that any surrounding development resulting from the subdivision does not visually overwhelm or disguise the heritage place.

Avoid subdivision, unless buildings or works have been approved for the proposed lots or there are building envelopes that:

- Allow for the retention of the setting and context that are characteristic of the heritage place, including outbuildings, vehicle access, gardens and landscaping.
- Will not adversely affect the significance of the heritage place.

### Alterations and additions strategies

Support alterations or additions to a heritage place that:

- Ensure the retention and ongoing use of the heritage place.
- Do not diminish the significance of the heritage place.

Avoid using harsh or abrasive treatments that may cause damage to finishes including the sandblasting of render, masonry or timber surfaces.

Avoid painting previously unpainted surfaces.

### Alterations and additions policy guidelines

Consider as relevant:

- Undertaking alterations and additions to a heritage place in accordance with accepted conservation standards such as those outlined in *The Burra Charter: The Australia ICOMOS Charter for Places of Cultural Significance* (ICOMOS, 2013).

### Landscaping and protected trees strategies

Retain or restore original hard and soft landscape elements of contributory significance to a heritage place.

Design new hard and soft landscape treatments to respect the heritage significance of the place.

Where tree controls apply in the Schedule to Clause 43.01:

- Ensure development or changes in the immediate conditions adjacent to a tree avoids any detrimental impact on the structural integrity and health of that tree.
- Encourage the replacement of any tree that is proposed to be removed due to poor health or dangerous condition with a new tree that is the same species and advanced in height.

### Landscaping and protected trees policy guidelines

Consider as relevant:

- Where the protected trees to be removed are environmental weeds replacing them with a non-weed species that is comparable in appearance including foliage colour and growth.
- Where protected trees are to be removed replacing them with advanced trees with a minimum height of 2 metres at planting in 40 litre containers.

### Signs strategies

Encourage the retention of historic painted signs.

Encourage alterations and additions to a heritage place to conserve signs with heritage significance.

Design and locate signs to:

- Be simple and complementary to the heritage place.
- Be in traditional locations including building fascia or below verandahs so that the signs do not detract from or compromise the heritage values of the place.
- Minimise visual clutter.
- Avoid obscuring or destroying any features of heritage significance.
- Be attached to buildings in such a way as to minimise damage to the fabric of a heritage building.

### Policy documents

Consider as relevant:

- *Casey Heritage Study (Post European Contact)* (City of Casey in association with Context Pty Ltd, 2004)
- *Heritage Handbook: Practical Guidelines For Owners of Historic Buildings* (City of Casey, 2022)

## 15.03-2S Aboriginal cultural heritage

31/07/2018
VC148

### Objective

To ensure the protection and conservation of places of Aboriginal cultural heritage significance.

### Strategies

Identify, assess and document places of Aboriginal cultural heritage significance, in consultation with relevant Registered Aboriginal Parties, as a basis for their inclusion in the planning scheme.

Provide for the protection and conservation of pre-contact and post-contact Aboriginal cultural heritage places.

Ensure that permit approvals align with the recommendations of any relevant Cultural Heritage Management Plan approved under the *Aboriginal Heritage Act 2006.*

### Policy guidelines

Consider as relevant:

- The findings and recommendations of the Aboriginal Heritage Council.
- The findings and recommendations of the Victorian Heritage Council for post-contact Aboriginal heritage places.

### Policy documents

Consider as relevant:

- *Aboriginal Heritage Act 2006*

# 16 HOUSING

31/07/2018
VC148

Planning should provide for housing diversity, and ensure the efficient provision of supporting infrastructure.

Planning should ensure the long term sustainability of new housing, including access to services, walkability to activity centres, public transport, schools and open space.

Planning for housing should include the provision of land for affordable housing.

# 16.01 RESIDENTIAL DEVELOPMENT

31/07/2018
VC148

## 16.01-1S Housing supply

16/04/2026
VC300

### Objective

To facilitate well-located, integrated and diverse housing that meets community needs.

### Strategies

Plan to accommodate housing targets specified in this clause by ensuring zones and overlays deliver sufficient realisable development capacity.

Ensure that an appropriate quantity, quality and type of housing is provided, including aged care facilities and other housing suitable for older people, supported accommodation for people with disability, rooming houses, student accommodation and social housing.

Increase the proportion of housing in urban areas with good access to opportunities and services (including under-utilised urban land) and reduce the share of new dwellings in greenfield, fringe and dispersed development areas.

Encourage higher density housing development on sites that are well located in relation to jobs, services and public transport.

Identify opportunities for increased residential densities to help consolidate urban areas.

Facilitate diverse housing that offers choice and meets changing household needs by widening housing diversity through a mix of housing types.

Encourage the development of well-designed housing that:

- Provides a high level of internal and external amenity.
- Incorporates universal design and adaptable internal dwelling design.

Support opportunities for a range of income groups to choose housing in well-serviced locations.

Plan for growth areas to provide for a mix of housing types through a variety of lot sizes, including higher housing densities in and around activity centres.

### Policy documents

Consider as relevant:

- *Homes for Victorians - Affordability, Access and Choice* (Victorian Government, 2017)
- *Apartment Design Guidelines for Victoria* (Department of Environment, Land, Water and Planning, 2021)
- *Mid-Rise Design Guide* (Department of Transport and Planning, 2026)

**Table 1 - Metropolitan Melbourne Housing Targets**

| | Housing Target | Greenfield Area Target | Established Area Target |
|---|---|---|---|
| **Growth Municipalities** | | | |
| Mitchell | 66,000 | 56,000 | 10,000 |
| Cardinia | 30,000 | 21,000 | 9,000 |
| Casey | 87,000 | 58,500 | 28,500 |
| Hume | 79,000 | 53,500 | 25,500 |
| Melton | 109,000 | 104,000 | 5,000 |
| Whittlesea | 72,000 | 43,000 | 29,000 |

| | | | |
|---|---|---|---|
| Wyndham | 99,000 | 74,000 | 25,000 |
| **Inner Melbourne** | | | |
| Melbourne | 119,500 | - | 119,500 |
| Port Phillip | 55,000 | - | 55,000 |
| Stonnington | 50,000 | - | 50,000 |
| Yarra | 44,000 | - | 44,000 |
| **Middle Melbourne** | | | |
| Banyule | 45,500 | - | 45,500 |
| Bayside | 30,000 | - | 30,000 |
| Boroondara | 65,500 | - | 65,500 |
| Darebin | 69,000 | - | 69,000 |
| Glen Eira | 63,500 | - | 63,500 |
| Hobsons Bay | 22,500 | - | 22,500 |
| Kingston | 51,500 | - | 51,500 |
| Manningham | 28,500 | - | 28,500 |
| Maribyrnong | 48,000 | - | 48,000 |
| Merri-bek | 69,000 | - | 69,000 |
| Monash | 69,500 | - | 69,500 |
| Moonee Valley | 47,500 | - | 47,500 |
| Whitehorse | 76,500 | - | 76,500 |
| **Outer Melbourne** | | | |
| Brimbank | 59,500 | - | 59,500 |
| Frankston | 33,000 | - | 33,000 |
| Greater Dandenong | 52,500 | - | 52,500 |
| Knox | 43,000 | - | 43,000 |
| Maroondah | 39,500 | - | 39,500 |
| Mornington Peninsula | 24,000 | - | 24,000 |
| Nillumbik | 6,500 | - | 6,500 |
| Yarra Ranges | 25,000 | - | 25,000 |

**Table 2 - Regional Victoria Housing Targets**

| | Housing Target | Greenfield Area Target | Established Area Target |
|---|---|---|---|

| | | | |
|---|---|---|---|
| **Barwon** | | | |
| Colac Otway | 3,700 | - | - |
| Greater Geelong | 128,600 | 51,100 | 77,500 |
| Queenscliffe | 400 | - | - |
| Surf Coast | 8,000 | - | - |
| **Central Highlands** | | | - |
| Ararat | 1,000 | - | - |
| Ballarat | 46,900 | 18,900 | 28,000 |
| Golden Plains | 12,500 | - | - |
| Hepburn | 3,150 | - | - |
| Moorabool | 20,000 | - | - |
| Pyrenees | 1,300 | - | - |
| **Gippsland** | | | - |
| Bass Coast | 19,250 | - | - |
| Baw Baw | 25,700 | - | - |
| East Gippsland | 11,000 | - | - |
| Latrobe | 13,000 | - | - |
| South Gippsland | 8,000 | - | - |
| Wellington | 8,000 | - | - |
| **Goulburn** | | | |
| Greater Shepparton | 15,250 | - | - |
| Mitchell | 66,000 | 56,000 | 10,000 |
| Moira | 4,500 | - | - |
| Murrindindi | 3,350 | - | - |
| Strathbogie | 2,400 | - | - |
| **Great South Coast** | | | |
| Corangamite | 1,400 | - | - |
| Glenelg | 1,400 | - | - |
| Moyne | 2,900 | - | - |
| Southern Grampians | 1,250 | - | - |
| Warrnambool | 7,200 | - | - |
| **Loddon Campaspe** | | | |

| | | | |
|---|---|---|---|
| Campaspe | 4,500 | - | - |
| Central Goldfields | 1,700 | - | - |
| Greater Bendigo | 37,000 | 11,000 | 26,000 |
| Loddon | 550 | - | - |
| Macedon Ranges | 13,200 | - | - |
| Mount Alexander | 4,500 | - | - |
| **Mallee** | | | |
| Buloke | 150 | - | - |
| Gannawarra | 850 | - | - |
| Mildura | 8,500 | - | - |
| Swan Hill | 2,100 | - | - |
| **Ovens Murray** | | | |
| Alpine | 1,250 | - | - |
| Benalla | 1,700 | - | - |
| Indigo | 3,100 | - | - |
| Mansfield | 3,900 | - | - |
| Towong | 550 | - | - |
| Wangaratta | 6,000 | - | - |
| Wodonga | 15,200 | - | - |
| **Wimmera Southern Mallee** | | | |
| Hindmarsh | 250 | - | - |
| Horsham | 3,300 | - | - |
| Northern Grampians | 750 | - | - |
| West Wimmera | 200 | - | - |
| Yarriambiack | 300 | - | - |

## 16.01-1R Housing supply - Metropolitan Melbourne

04/02/2026
VC265

### Strategies

Create development opportunities to meet housing targets, population growth and create a sustainable city by developing housing and mixed use development opportunities in locations that are:

- In and around the Central City.
- Metropolitan activity centres and their residential catchments.
- Priority Precincts, including Suburban Rail Loop East Precincts.
- Activity centres - Housing Choice and Stations.
- Areas for residential growth.
- Areas for greyfield renewal, particularly through opportunities for land consolidation.
- Established areas close to existing services, jobs and public transport.
- Neighbourhood activity centres - especially those with good public transport connections.
- Areas near existing and proposed railway stations that can support transit-oriented development.

Identify areas that offer opportunities for more medium and high density housing near employment and transport in Metropolitan Melbourne.

Provide certainty about the scale of growth by prescribing appropriate height and site coverage provisions for different areas.

Allow for a range of minimal, incremental and high change residential areas that balance the need to protect valued areas with the need to ensure choice and growth in housing.

Create mixed use neighbourhoods at varying densities that offer more choice in housing.

## 16.01-1L Housing supply in Casey

19/06/2025
C284case

### Strategies

Encourage higher-density housing within walking distance of activity centres and public transport.

Encourage diverse housing and lot sizes to cater for different household types within walking distance of activity centres and public transport, and in the substantial and incremental housing change areas as identified in the *Residential settlement framework plan* at Clause 02.04-4, particularly for single and dual person households.

Encourage consolidation of adjoining lots in the Residential Growth Zone to achieve the preferred intensity and scale of development and to facilitate efficient use of site.

Support and facilitate affordable housing in the Cranbourne Major Activity Centre including through negotiated affordable housing agreements with landowners, including section 173 agreements under the *Planning and Environment Act 1987*.

### Policy guidelines

Consider as relevant:

- Encouraging higher-density housing within 800 metres of metropolitan and major activity centres or a train station.
- Encouraging higher-density housing within 400 metres of a neighbourhood activity centre or a strategic bus route.
- Designing development to include a greater choice of dwellings with one or two bedrooms.

## 16.01-2S Housing affordability

02/09/2025
VC283

### Objective

To deliver affordable housing in areas with good access to opportunities and services.

### Strategies

Improve housing affordability by:

- Ensuring housing supply continues to be sufficient to meet demand.
- Increasing choice in housing type, tenure and cost to meet the needs of households as they move through life cycle changes and to support diverse communities.
- Promoting good housing and urban design to minimise negative environmental impacts and keep costs down for residents and the wider community.
- Encouraging a significant proportion of new development to be affordable for households on very low to moderate incomes.

Increase the supply of well-located affordable housing by:

- Facilitating a mix of private, affordable and social housing in suburbs, growth areas, activity centres and urban renewal precincts.
- Ensuring the redevelopment and renewal of public housing stock better meets community needs.

Facilitate the delivery of social housing by identifying surplus government land suitable for housing.

### Policy documents

Consider as relevant:

- *Homes for Victorians - Affordability, Access and Choice* (Victorian Government, 2017)

## 16.01-3S Rural residential development

09/10/2020
VC169

### Objective

To identify land suitable for rural residential development.

### Strategies

Manage development in rural areas to protect agriculture and avoid inappropriate rural residential development.

Encourage the consolidation of new housing in existing settlements where investment in physical and community infrastructure and services has already been made.

Demonstrate need and identify locations for rural residential development through a housing and settlement strategy.

Ensure planning for rural residential development avoids or significantly reduces adverse economic, social and environmental impacts by:

- Maintaining the long-term sustainable use and management of existing natural resource attributes in activities including agricultural production, water, mineral and energy resources.
- Protecting existing landscape values and environmental qualities such as water quality, native vegetation, biodiversity and habitat.
- Minimising or avoiding property servicing costs carried by local and state governments.
- Maintaining an adequate buffer distance between rural residential development and animal production.

Ensure land is not zoned for rural residential development if it will encroach on high quality productive agricultural land or adversely impact on waterways or other natural resources.

Discourage development of small lots in rural zones for residential use or other incompatible uses.

Encourage consolidation of existing isolated small lots in rural zones.

Ensure land is only zoned for rural residential development where it:

- Is located close to existing towns and urban centres, but not in areas that will be required for fully serviced urban development.
- Can be supplied with electricity, water and good quality road access.

## 16.01-4S Community care accommodation

04/11/2022
VC226

### Objective

To facilitate the establishment of community care accommodation and support their location being kept confidential.

### Strategies

Planning schemes should not require a planning permit for or prohibit the use of land in a residential area for community care accommodation provided no more than 20 clients are accommodated and the use is funded by, or carried out by or on behalf of, a government department or public authority, including a public authority established for a public purpose under a Commonwealth Act.

Facilitate the confidential establishment of community care accommodation through appropriate permit, notice and review exemptions.

## 16.01-5S Residential aged care facilities

09/10/2020
VC169

### Objective

To facilitate the development of well-designed and appropriately located residential aged care facilities.

### Strategies

Recognise that residential aged care facilities contribute to housing diversity and choice, and are an appropriate use in a residential area.

Recognise that residential aged care facilities are different to dwellings in their purpose and function, and will have a different built form (including height, scale and mass).

Ensure local housing strategies, precinct structure plans and activity centre structure plans provide for residential aged care facilities.

Ensure that residential aged care facilities are located in residential areas, activity centres and urban renewal precincts, close to services and public transport.

Encourage planning for housing that:

- Delivers an adequate supply of land or redevelopment opportunities for residential aged care facilities.
- Enables older people to live in appropriate housing in their local community.

Provide for a mix of housing for older people with appropriate access to care and support services.

Ensure that proposals to establish residential aged care facilities early in the life of a growth area are in locations that will have early access to services and public transport.

Ensure that residential aged care facilities are designed to respond to the site and its context.

Promote a high standard of urban design and architecture in residential aged care facilities.

### Policy guidelines

Consider as relevant:

- The Commonwealth Government's Responsible ratios for the provision of aged care places under the *Aged Care Act 1997*.

# 17 ECONOMIC DEVELOPMENT

31/07/2018
VC148

Planning is to provide for a strong and innovative economy, where all sectors are critical to economic prosperity.

Planning is to contribute to the economic wellbeing of the state and foster economic growth by providing land, facilitating decisions and resolving land use conflicts, so that each region may build on its strengths and achieve its economic potential.

## 17.01 EMPLOYMENT

31/07/2018
VC148

## 17.01-1S Diversified economy

31/07/2018
VC148

### Objective

To strengthen and diversify the economy.

### Strategies

Protect and strengthen existing and planned employment areas and plan for new employment areas.

Facilitate regional, cross-border and inter-regional relationships to harness emerging economic opportunities.

Facilitate growth in a range of employment sectors, including health, education, retail, tourism, knowledge industries and professional and technical services based on the emerging and existing strengths of each region.

Improve access to jobs closer to where people live.

Support rural economies to grow and diversify.

## 17.01-1R Diversified economy - Metropolitan Melbourne

02/09/2025
VC283

### Strategies

Support the Central City to become Australia's largest commercial and residential centre by 2050, by planning for office, retail, residential, education, health, entertainment and cultural activity spaces.

Plan for the redevelopment of Priority Precincts and Urban-Renewal Precincts in and around the Central City to deliver high-quality, distinct and diverse neighbourhoods offering a mix of uses.

Provide a mix of uses within Suburban Rail Loop Precincts and prioritise higher density development.

Avoid development in Suburban Rail Loop Precincts that would impede opportunities for significant future growth.

Facilitate the development of Employment and Innovation Areas by ensuring they:

- Have a high level of amenity to attract businesses and workers.
- Are supported by good public transport services and integrated walking and cycling paths.
- Maximise investment opportunities for the location of knowledge intensive firms and jobs.

Support the employment and servicing role of Health and Education Precincts by:

- Focussing on improving access, particularly public transport access.
- Encouraging co-location of facilities to better utilise existing infrastructure.
- Supporting and facilitating growth of associated businesses and industries.
- Reinforcing their specialised economic functions while also providing opportunities for ancillary retail, commercial, accommodation and supporting services.

Support diverse employment generating uses, including offices, innovation and creative industries in identified areas within regionally significant industrial precincts, where compatible with adjacent uses and well connected to transport networks.

Consider how land use change proposals can respond to local and regional employment demand or identify how it can be accommodated elsewhere.

Plan for industrial land in suitable locations to support employment and investment opportunities.

Facilitate investment in Melbourne's outer areas to increase local access to employment.

## 17.01-1R Diversified economy - Metropolitan Melbourne - Southern Metro Region

03/03/2023
VC215

Support the development of higher-order, knowledge-based jobs and businesses in growth areas in mixed use precincts that directly support local economic activity and employment.

## 17.01-1L Diversified economy

19/06/2025
C284case

### Strategies

Support use and development in the following strategic and emerging sectors:

- Construction technologies.
- Wholesale trade.
- Manufacturing:
  - Food and fibre products.
  - Defence technologies.
  - Space technologies.
  - Machinery and equipment.
  - Medical technologies and pharmaceuticals.
- Retail, transport distribution and logistics and postal.
- Administration and support services.
- Professional, scientific, and technical services.
- Visitor economy, including arts, sports, cultural events and racing.
- Creative industries.
- International education.
- Digital technologies.

Support the development of new industry and business parks in Cranbourne West to provide a diverse range of employment opportunities, including large-lot traditional and advanced manufacturing to take advantage of access to Western Port Highway.

Encourage a diverse, densely developed business and employment corridor in the non-residential areas along the road and rail corridor from Dandenong to Pakenham.

## 17.01-2S Innovation and research

04/10/2018
VC149

### Objective

To create opportunities for innovation and the knowledge economy within existing and emerging industries, research and education.

### Strategies

Encourage the expansion and development of logistics and communications infrastructure.

Support the development of business clusters.

Support the development of enterprise precincts that build the critical mass of employment in an area, leverage the area's public and private sector economic competitive strengths and assets, and cater to a diversity of employment types and scales.

Promote an accessible, well-connected, high-amenity and collaborative physical environment that is conducive to innovation and to creative activities.

Encourage the provision of infrastructure that helps people to be innovative and creative, learn new skills and start new businesses in locations identified to accommodate employment and economic growth.

Support well-located, appropriate and low-cost premises for not-for-profit or start-up enterprises.

Improve access to community-based information and training through further developing libraries as community learning centres.

# 17.02 COMMERCIAL

31/07/2018
VC148

## 17.02-1S Business

15/03/2024
VC256

### Objective

To encourage development that meets the community's needs for retail, entertainment, office and other commercial services.

### Strategies

Plan for an adequate supply of commercial land in appropriate locations.

Ensure commercial facilities are aggregated and provide net community benefit in relation to their viability, accessibility and efficient use of infrastructure.

Locate commercial facilities in existing or planned activity centres.

Provide new convenience shopping facilities to provide for the needs of the local population in new residential areas and within, or immediately adjacent to, existing commercial centres.

Provide small scale shopping opportunities that meet the needs of local residents and workers in convenient locations.

Provide outlets of trade-related goods or services directly serving or ancillary to industry that have adequate on-site car parking.

Locate cinema based entertainment facilities within or on the periphery of existing or planned activity centres.

Apply a five year time limit for commencement to any planning permit for a shopping centre or shopping centre expansion of more than 1000 square metres leasable floor area.

Regulate the use and development of land for a sex services premises in commercial and mixed use areas in the same way as for other types of shop.

Ensure that planning for the use and development of land for a sex services premises and home based business is consistent with decriminalisation of sex work and provides for the reduction of discrimination against, and harm to, sex workers.

## 17.02-2S Out-of-centre development

31/07/2018
VC148

### Objective

To manage out-of-centre development.

### Strategies

Discourage proposals for expansion of single use retail, commercial and recreational facilities outside activity centres.

Give preference to locations in or on the border of an activity centre for expansion of single use retail, commercial and recreational facilities.

Discourage large sports and entertainment facilities of metropolitan, state or national significance in out-of-centre locations unless they are on the Principal Public Transport Network and in locations that are highly accessible to their catchment of users.

Ensure that out-of-centre proposals are only considered where the proposed use or development is of net benefit to the community in the region served by the proposal or provides small scale shopping opportunities that meet the needs of local residents and workers in convenient locations.

## 17.02-2L Out-of-centre development

19/06/2025
C284case

### Objective

To ensure new retail and commercial use and development outside of designated activity centres results in a net community benefit and does not compromise the activity centre hierarchy.

### Strategy

Support out of centre use and development only in instances where the use or development:

- Addresses a gap in the activity centre network.
- Results in improved accessibility and convenience for pedestrians, cyclists and public transport users.
- Is of a scale, design and appearance that is complementary to the existing or preferred character of the area.
- Causes minimal loss of amenity, privacy and convenience to residents of surrounding dwellings.
- Delivers a net community benefit.

### Policy guidelines

Consider as relevant:

- The delivery of net community benefit to include:
  - Promoting single-destination, multi-purpose trips.
  - Delivering high quality urban design outcomes.
  - Providing equitable access to services, maximising pedestrian, public transport and bicycle access and usage.
  - Meeting the needs of the demographics of the local area, including age, ethnicity, socio-economic advantage and religion.
  - Achieving environmentally sustainable development.

## 17.03 INDUSTRY

31/07/2018
VC148

## 17.03-1S Industrial land supply

14/01/2025
VC237

### Objective

To ensure availability of land for industry.

### Strategies

Provide an adequate supply of industrial land in appropriate locations including sufficient stocks of large sites for strategic investment.

Identify land for industrial development in urban growth areas where:

- Good access for employees, freight and road transport is available.
- Appropriate buffer areas can be provided between the proposed industrial land and nearby sensitive land uses.

Protect and carefully plan existing industrial areas to, where possible, facilitate further industrial development.

Preserve locally significant industrial land for industrial or employment generating uses, unless long-term demand for these uses can be demonstrably met elsewhere.

Avoid non-industrial land uses that will prejudice the availability of land in identified industrial areas for future industrial use.

### Policy documents

Consider as relevant:

- *Separation Distance Guideline* (Environment Protection Authority, August 2024)
- *Landfill Buffer Guideline* (Environment Protection Authority, August 2024)

## 17.03-1L Industrial land use and supply

19/06/2025
C284case

### Strategies

Discourage the fragmentation of industrial land.

Encourage a range of industrial lot sizes to meet the diverse needs of industry.

Ensure larger industrial lots are provided or retained along main roads to meet the needs of uses requiring good road access, a large site and prominent exposure.

Ensure all industrial lots are provided with services including reticulated underground electricity and roads that are suitable for use by industrial traffic.

Discourage locating non-industrial uses, including commercial and recreational uses, in industrial zones, unless the non-industrial use:

- Serves the convenience needs of industrial uses.
- Is ancillary to industrial uses.
- Forms part of an integrated development that is predominantly industrial in nature.
- Has an intensity of activity or building scale that is incompatible with the purposes of non-industrial zones.

Discourage the location and development of small factory or 'factoryette-style' developments on larger sites abutting arterial roads, to preserve opportunities for large industries.

### Policy guidelines

Consider as relevant:

- Limiting the size of new lots abutting the following roads to a minimum area of:
  - Princes Highway: 2 hectares.
  - Hallam South Road and Berwick-Cranbourne Road: 0.4 hectare.
- Designing lots to have a minimum area of 1000 square metres, a minimum frontage of 20 metres and a minimum depth of 35 metres.
- Encouraging lots to be of a size that enables all articulated vehicles up to 19 metres long to enter and exit the site in a forward direction.

## 17.03-2S Sustainable industry

14/01/2025
VC237

### Objective

To facilitate the sustainable operation of industry.

### Strategies

Ensure that industrial activities requiring substantial threshold distances are located in the core of industrial areas.

Encourage activities with minimal threshold requirements to locate towards the perimeter of the industrial area.

Minimise inter-industry conflict and encourage like industries to locate within the same area.

Protect industrial activity in industrial zones from the encroachment of commercial, residential and other sensitive uses that would adversely affect industry viability.

Encourage industrial uses that meet appropriate standards of safety and amenity to locate within activity centres.

Support the retention of small-scale industries servicing established urban areas through appropriate zoning.

Provide adequate separation and buffer areas between sensitive uses and offensive or dangerous industries and quarries to ensure that residents are not affected by adverse environmental effects, nuisance or exposure to hazards.

Encourage manufacturing and storage industries that generate significant volumes of freight to locate close to air, rail and road freight terminals.

### Policy documents

Consider as relevant:

- *Separation Distance Guideline* (Environment Protection Authority, August 2024)
- *Landfill Buffer Guideline* (Environment Protection Authority, August 2024)

## 17.03-3S Significant industrial land

02/09/2025
VC283

### Objective

To protect significant industrial land.

### Strategies

Protect state significant industrial precincts from incompatible land uses to allow for future growth. State significant industrial precincts include but are not limited to:

- Southern Industrial Precinct - Dandenong South.
- Northern Industrial Precinct - Campbellfield, Somerton and Thomastown.
- Western Industrial Precinct - Laverton North and Derrimut.
- Officer / Pakenham Industrial Precinct.
- Port of Hastings Industrial Precinct.

Ensure sufficient availability of strategically located land for major industrial development, particularly for industries and storage facilities that require significant threshold distances from sensitive or incompatible uses.

Protect heavy industrial areas from inappropriate development and maintain adequate buffer distances from sensitive or incompatible uses.

### Policy documents

Consider as relevant:

- *Melbourne Industrial and Commercial Land Use Plan* (Department of Environment, Land, Water and Planning, 2020)
- *Industrial and Commercial Land Classifications* (Department of Transport and Planning, 2025)

## 17.03-3R Regionally significant industrial land - Metropolitan Melbourne

02/09/2025
VC283

### Strategies

Protect industrial land of regional significance and facilitate continual growth in freight, logistics and manufacturing investment.

Support the transition from manufacturing land uses to other employment uses in strategically identified areas well connected to transport networks, especially in Suburban Rail Loop Precincts.

## 17.03-3R Regionally significant industrial land - Metropolitan Melbourne - Southern Metro Region

02/09/2025
VC283

### Strategy

Protect industrial land at Clayton South, Moorabbin, Moorabbin Airport, Braeside, Carrum Downs, Seaford, Cranbourne West and Casey Fields South by:

- Retaining existing industrial zoned land predominately for industrial uses.
- Limiting encroachment by incompatible and non-industrial uses that would fragment this land and compromise business growth and operation.

Prioritise higher employment generation within Suburban Rail Loop precincts.

# 17.04 TOURISM

31/07/2018
VC148

## 17.04-1S Facilitating tourism

31/07/2018
VC148

### Objective

To encourage tourism development to maximise the economic, social and cultural benefits of developing the state as a competitive domestic and international tourist destination.

### Strategies

Encourage the development of a range of well-designed and sited tourist facilities, including integrated resorts, accommodation, host farm, bed and breakfast and retail opportunities.

Seek to ensure that tourism facilities have access to suitable transport.

Promote tourism facilities that preserve, are compatible with and build on the assets and qualities of surrounding activities and attractions.

Create innovative tourism experiences.

Encourage investment that meets demand and supports growth in tourism.

### Policy guidelines

Consider as relevant:

- Any applicable regional tourism development strategy.

### Policy documents

Consider as relevant:

- *Tourism Investment Guidelines – Your Guide to Tourism Investment in Victoria* (Tourism Victoria, 2008)

## 17.04-1R Tourism in Metropolitan Melbourne

31/07/2018
VC148

### Objective

To maintain and develop Metropolitan Melbourne as a desirable tourist destination.

### Strategies

Maintain Metropolitan Melbourne's position as a global, national and local destination in its own right and as a gateway to regional Victoria by:

- Developing city precincts and promenades.
- Revitalising the retail core of the Central City.
- Supporting artistic and cultural life.
- Improving public facilities, amenities and access.
- Maintaining city safety.
- Providing information and leisure services.
- Improving transport infrastructure.

## 17.04-1L Facilitating tourism in Casey

19/06/2025
C284case

### Strategies

Encourage tourism and eco-tourism use and development, particularly in the non-urban areas, ensuring that the design and development of tourist-related facilities reflects the rural, scenic and environmental attributes of the locality.

Encourage tourism activities in non-urban areas, particularly those that support and enhance local agriculture, outdoor recreation facilities or rural industry.

Encourage use and development that supports tourism in Casey including:

- Developing the Cranbourne Gardens as a major eco-tourism destination.
- Developing Bunjil Place as a destination for arts and culture.
- Supporting Tooradin as an eco-tourism precinct and centre for boating.
- Upgrading the significant racing and associated tourism facilities at the Cranbourne Racecourse and Training Complex.
- Supporting use and development of horse-related activities.

Discourage the establishment of uses that are incompatible with horse stabling activities within the Cranbourne racing complex and horse stabling area identified on the *Casey Established Area 5 - Cranbourne and Botanic Ridge plan* at Clause 02.04-7.

Ensure new horse stabling facilities, including the upgrade or expansion of existing facilities do not adversely affect adjoining residential areas.

## 17.04-2S Coastal and maritime tourism and recreation

20/03/2023
VC229

### Objective

To encourage a diverse range of strategically located and well-designed coastal and maritime tourism and recreational opportunities that strengthen people's connection with the marine and coastal environment.

### Strategies

Support safe and sustainable recreation and tourism development including ecotourism, tourism and major maritime events that:

- Responds to identified demand.
- Minimises impact on environmental and cultural values.
- Minimises impact on other users.
- Minimises direct and cumulative impacts.
- Maintains public safety.
- Responds to the carrying capacity of the site.
- Minimises exposure to coastal hazard risks and risks posed by climate change.

Ensure a diverse range of accommodation options and coastal experiences are provided for and maintained.

Ensure sites and facilities are accessible to all.

Ensure tourism development, within non-urban areas, demonstrates a tourist accommodation need and supports a nature-based approach.

Ensure development is of an appropriate scale, use and intensity relative to its location and minimises impacts on the surrounding natural, visual, environmental and coastal character.

Develop a network of maritime precincts around Port Phillip and Western Port that serve both local communities and visitors.

Maintain and expand boating and recreational infrastructure around the bays in maritime precincts at Frankston, Geelong, Hastings, Hobsons Bay, Mordialloc, Mornington, Patterson River, Portarlington, Queenscliff, St Kilda, Stony Point/Cowes and Wyndham.

Support a sustainable network of facilities for recreational boating and water-based activities that respond to:

- Identified demand.
- Use and safety considerations.
- The carrying capacity of the location.
- Coastal processes.
- Environmental values.

Strategically plan and operate ports to complement each other in the context of the broader economy, transport networks and the maritime and coastal environments within which they are regulated.

Provide public access to recreational facilities and activities on land and water.

### Policy guidelines

Consider as relevant:

- *Coastal Spaces Landscape Assessment Study* (Department of Sustainability and Environment, 2006)
- *Gippsland Boating Coastal Action Plan 2013 - Gippsland Coastal Board*

- *Recreational Boating Facilities Framework July 2014 - Central Coastal Board*
- *Western Boating Coastal Action Plan 2010 - Western Coastal Board*

### Policy documents

Consider as relevant:

- *Marine and Coastal Policy* (Department of Environment, Land, Water and Planning, 2020)
- *Marine and Coastal Strategy* (Department of Environment, Land, Water and Planning, 2022)
- *Siting and Design Guidelines on the Victorian Coast* (Department of Environment, Land, Water and Planning, 2020)

# 18 TRANSPORT

09/12/2021
VC204

Planning should ensure a safe, integrated and sustainable transport system that:

- Provides access to social and economic opportunities to support individual and community wellbeing.
- Facilitates economic prosperity.
- Actively contributes to environmental sustainability.
- Facilitates network-wide efficient, coordinated and reliable movements of people and goods.
- Supports health and wellbeing.

## 18.01 LAND USE AND TRANSPORT

09/12/2021
VC204

## 18.01-1S Land use and transport integration

04/02/2026
VC265

### Objective

To facilitate access to social, cultural and economic opportunities by effectively integrating land use and transport.

### Strategies

Plan and develop a transport system that facilitates:

- Social and economic inclusion for all people and builds community wellbeing.
- The best use of existing social and economic infrastructure.
- A reduction in the distances people have to travel to access jobs and services.
- Better access to, and greater mobility within, local communities.
- Network-wide efficiency and coordinated operation.

Plan land use and development to:

- Protect existing transport infrastructure from encroachment or detriment that would impact on the current or future function of the asset.
- Protect transport infrastructure that is in delivery from encroachment or detriment that would impact on the construction or future function of the asset.
- Protect planned transport infrastructure from encroachment or detriment that would impact deliverability or future operation.
- Protect identified potential transport infrastructure from being precluded by land use and development.

Plan land use and development to allow for the ongoing improvement and development of the State Transport System in the short and long term.

Plan movement networks and adjoining land uses to minimise disruption to residential communities and their amenity.

Plan the timely delivery of transport infrastructure and services to support changing land use and associated transport demands.

Plan improvements to public transport, walking and cycling networks to coordinate with the ongoing development and redevelopment of urban areas.

Plan the use of land adjacent to the transport system having regard to the current and future development and operation of the transport system.

Reserve land for strategic transport infrastructure to ensure the transport system can be developed efficiently to meet changing transport demands.

Support urban development that makes jobs and services more accessible:

- In accordance with forecast demand.
- By taking advantage of all available modes of transport.

Protect existing and facilitate new walking and cycling access to public transport.

Locate major government and private sector investments in Major regional cities, Regional Cities and Regional service centres on major transport corridors to maximise the access and mobility of communities.

Design neighbourhoods to:

- Better support active living.
- Increase the share of trips made using sustainable transport modes.

- Respond to the safety needs of all users.

Design the transport system and adjacent areas to achieve visual outcomes that are responsible to local context with particular reference to:

- Landscaping.
- The placement of signs.
- Providing buffer zones and resting places.

### Policy documents

Consider as relevant:

- *Movement and Place in Victoria* (Department of Transport, February 2019)
- *Delivering the Goods, Creating Victorian Jobs: Victorian Freight Plan* (Department of Economic Development, Jobs, Transport and Resources, July 2018)

## 18.01-2S Transport system

02/09/2025
VC283

### Objective

To facilitate the efficient, coordinated and reliable movement of people and goods by developing an integrated and efficient transport system.

### Strategies

Plan and develop a transport system integrated across all movement networks that:

- Facilitates the efficient, coordinated and reliable movement of people and goods at all times.
- Optimises transport system capacity.
- Improves connectivity and facilitates the growth and development of regional Victoria.
- Improves connectivity between Victoria's Major regional cities, Regional cities, Regional service centres and metropolitan Melbourne.
- Ensures sufficient capacity for the movement of passengers into and out of Victoria at Principal Transport Gateways.
- Improves how goods are moved to local, interstate and overseas markets.
- Maximises access to residential areas, employment, markets, services and recreation.
- Improves local transport options to support 20-minute neighbourhoods in Melbourne's suburbs and Victoria's regional cities and towns.
- Is legible and enables easy access and movement between modes.

Plan movement networks that share the same space to do so in a way that balances the needs of the different users of the transport system.

Plan and develop the State Transport System comprising the:

- Principal Bicycle Network: Existing and future high quality cycling routes that provide access to major destinations and facilitate cycling for transport, sport, recreation and fitness.
- Principal Public Transport Network: Existing and future high quality public transport routes in the Melbourne metropolitan area.
- Regional Rail Network: Existing and future passenger rail routes in regional Victoria.
- Principal Road Network: Declared arterial roads and freeways under the *Road Management Act 2004*.
- Principal Freight Network: Existing and future corridors and precincts where the movement of high volumes of freight are concentrated or of strategic value.
- Principal Transport Gateways: Existing and future ports, airports and interstate terminals that serve as key locations for moving passengers and freight into, out of and around Victoria.

Facilitate delivery of:

- Declared major transport projects and their ancillary projects that are of economic, social or environmental significance to the State of Victoria.
- Transport projects that improve the State Transport System.

### Policy documents

Consider as relevant:

- *Movement and Place in Victoria* (Department of Transport, February 2019)

## State Transport System – Metropolitan Melbourne Plan



## State Transport System – Regional Victoria Plan



## 18.01-3S Sustainable and safe transport

09/12/2021
VC204

### Objective

To facilitate an environmentally sustainable transport system that is safe and supports health and wellbeing.

### Strategies

Plan and develop the transport system to:

- Maximise the efficient use of resources including infrastructure, land, services and energy.
- Prepare for and adapt to climate change impacts.
- Prioritise the use of sustainable personal transport.
- Protect, conserve and improve the natural environment by supporting forms of transport, energy use and transport technologies that have the least environmental impact.
- Avoid, minimise and offset harm to the environment by:
  - Protecting biodiversity.
  - Reducing transport-related greenhouse gas emissions.

Plan the transport system to be safe by:

- Developing safe transport infrastructure.
- Optimising accessibility, emergency access, service and amenity.
- Separating pedestrians, bicycles and motor vehicles, where practicable.
- Reducing the need for cyclists to mix with other road users.
- Supporting road users to make safe choices through design and wayfinding techniques.
- Prioritising transport safety when designing high-speed roads and intersections.

Support forms of transport and energy use that have the greatest benefit for, and least negative impact on, health and wellbeing.

Design the transport system to be accessible to all users.

Design new suburbs to respond to the safety, health and wellbeing needs of all road users.

Design development to promote walking, cycling and the use of public transport, in that order, and minimise car dependency.

### Policy documents

Consider as relevant:

- *Victorian Road Safety Strategy 2021-2030* (Department of Transport, 2021)

## 18.01-3R Sustainable and safe transport - Metropolitan Melbourne

09/12/2021
VC204

### Strategies

Improve local travel options for walking and cycling to support 20 minute neighbourhoods.

## 18.02 MOVEMENT NETWORKS

31/07/2018
VC148

## 18.02-1S Walking

09/12/2021
VC204

### Objective

To facilitate an efficient and safe walking network and increase the proportion of trips made by walking.

### Strategies

Plan and develop walking networks to:

- Provide pedestrian routes that are safe, direct and comfortable to use.
- Enable walking as a part of everyday life.
- Enable people to meet more of their needs locally and rely less on their cars.
- Be accessible to vehicles that use footpaths, including wheelchairs, prams and scooters.
- Accommodate emerging forms of low-emission, low-speed personal transport.

Develop principal pedestrian networks for local areas that link with the transport system.

Provide walking infrastructure in all major transport projects.

Design walking routes to be comfortable by providing shelter from the sun through canopy trees, verandahs and other structures.

Design direct, comfortable and connected walking infrastructure to and between key destinations including activity centres, public transport interchanges, employment areas, urban renewal precincts and major attractions.

### Policy documents

Consider as relevant:

- *Guidelines for developing Principal Pedestrian Networks* (Department of Economic Development, Jobs, Transport and Resources, 2015)

## 18.02-2S Cycling

02/09/2025
VC283

### Objective

To facilitate an efficient and safe bicycle network and increase the proportion of trips made by cycling.

### Strategies

Plan and develop cycling networks to:

- Provide routes that are safe, comfortable, low-stress and well connected.
- Enable cycling as a part of everyday life.
- Enable people to meet more of their needs locally by cycling and to rely less on their cars.
- Accommodate emerging forms of low emission, low and moderate speed personal transport.

Protect and develop the Principal Bicycle Network to provide high-quality cycling routes that are direct and connected, to and between key destinations including activity centres, public transport interchanges, employment areas, urban renewal precincts and major attractions.

Develop Strategic Cycling Corridors by:

- Integrating them with stations and major interchanges on the public transport network that serve places of state significance.
- Integrating them with the central city, Employment and Innovation Areas, major activity centres and other destinations of metropolitan or state significance.
- Facilitating safer, lower stress and more direct journeys using a combination of cycleways, cycle paths and shared streets.
- Providing the most direct route practical.
- Designing transport corridors to prioritise cycling links and cyclists.

Protect Strategic Cycling Corridors from encroachment by development and incompatible interface treatments such as cross overs.

Support increased cycling by providing:

- Cycling routes and cycling infrastructure early in new developments and in in all major transport projects.
- Cycle parking and related end of trip facilities to meet demand at education, recreation, transport, shopping, commercial, public transport interchanges and community facilities, significant trip generating developments and other major attractions.
- Facilities for cyclists, particularly storage, at public transport interchanges and rail stations.
- Vegetation to shade cycling routes.

### Policy documents

Consider as relevant:

- *Principal Bicycle Network* (VicRoads, 2012)
- *Strategic Cycling Corridors* (Department of Transport, 2021)
- *Victorian Cycling Strategy 2018-28* (Transport for Victoria)

## 18.02-2L Active transport

19/06/2025
C284case

### Strategies

Facilitate the delivery of path infrastructure, including in new communities, that provides a viable alternative to driving and:

- Connects to services and facilities in Casey.
- Forms part of or connects to wider regional or state networks.

Facilitate the development of cycling and walking paths, including shared paths, to improve access to activity centres, train stations and schools as shown on the *Active transport implementation plan* in this Clause.

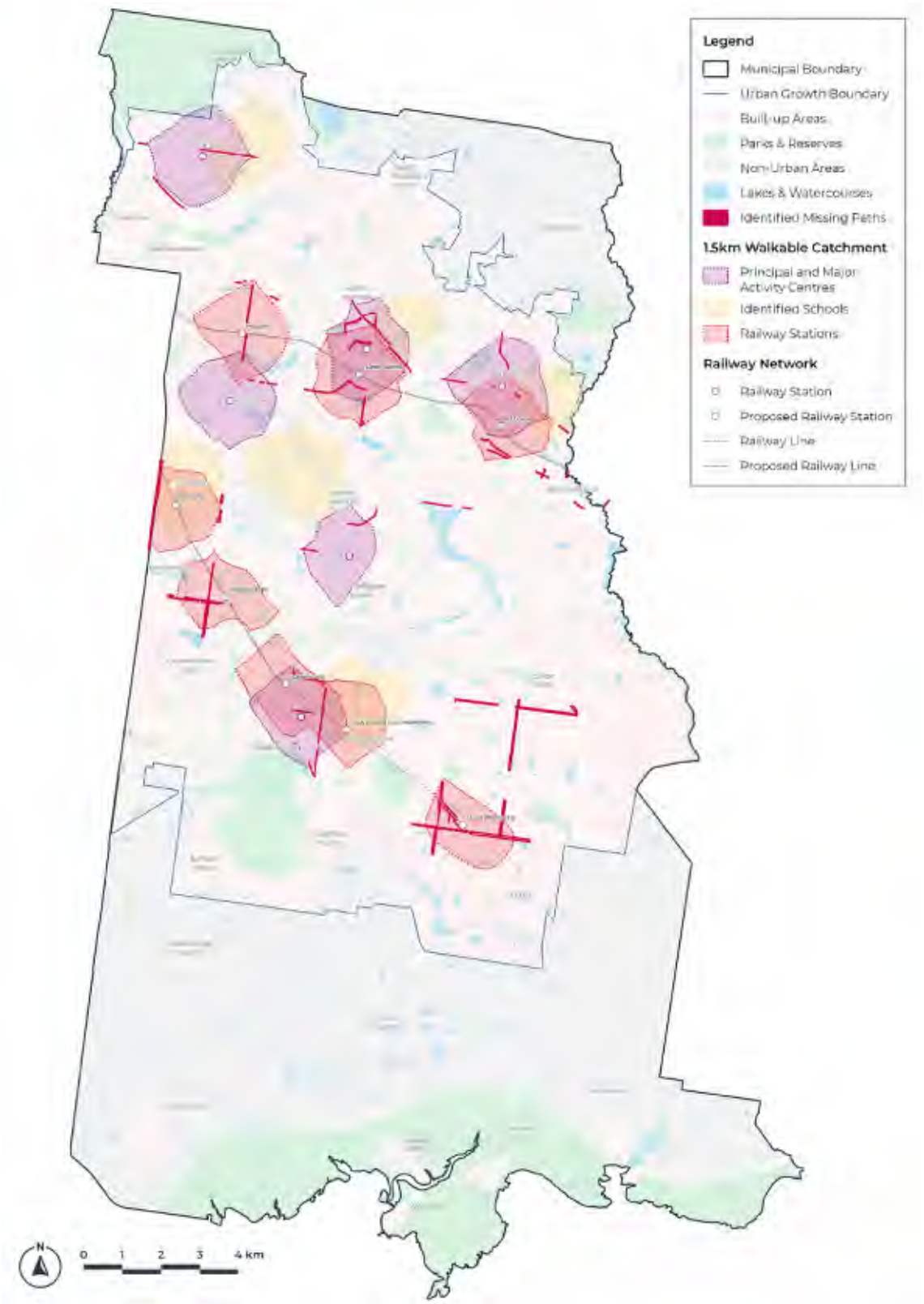
Design bicycle and pedestrian paths so that they are separated from vehicular traffic.

### Policy documents

Consider as relevant:

- *Streets Ahead Integrated Transport Strategy* (City of Casey, 2017)
- *Walk and Ride in Casey 2019-2041* (City of Casey, 2019)

## Active transport implementation plan



## 18.02-3S Public transport

18/12/2025
VC277

### Objective

To facilitate an efficient and safe public transport network and increase the proportion of trips made by public transport.

### Strategies

Plan and develop public transport to:

- Connect activity centres, job-rich areas and outer suburban areas.
- Enable people to not have to rely on cars for personal transport.
- Integrate bus and tram networks and stops and public transport interchanges in new development areas, including key urban renewal precincts and outer-suburban areas.
- Integrate with land use and development in outer suburban and growth areas.

Protect and develop the Principal Public Transport Network and Regional Rail Network to facilitate:

- High quality public transport services that support increased diversity and density of development, particularly at interchanges, activity centres and where Principal Public Transport Network routes intersect.
- Modern commuter-style public transport services that link Melbourne with the regional growth areas of Geelong, Bendigo, Ballarat, Seymour and Traralgon.
- Service improvements to other regional and rural areas.
- A metro-style rail system that provides a very high frequency of service in the Melbourne metropolitan area.
- A new high quality orbital rail (Suburban Rail Loop) through Melbourne's middle suburbs.
- A balance between the rail usage needs of public transport and freight.

Facilitate public transport infrastructure in all major transport projects.

Allocate adequate land and infrastructure to support public transport provision in activity centres, transport interchanges and major commercial, retail and community facilities.

Locate higher density and increased development on or close to the Principal Public Transport Network in a way that does not compromise the efficiency of the Principal Public Transport Network.

Support development that facilitates the delivery and operation of public transport services.

### Policy documents

Consider as relevant:

- *Car Parking Requirement Maps* (Department of Transport and Planning, December 2025)
- *Principal Public Transport Network* (State Government of Victoria, 2017)
- *VicTrack Rail Development Interface Guidelines* (VicTrack, 2019)
- *Public Transport Guidelines for Land Use Development* (Department of Transport, 2008)

## 18.02-3L Cranbourne Rail Line

19/06/2025
C284case

### Strategies

Facilitate development that enables the duplication and extension of the Cranbourne Rail Line.

## 18.02-3R Principal Public Transport Network

09/12/2021
VC204

### Strategies

Facilitate high-quality public transport access to job-rich areas.

Maximise the use of existing infrastructure and increase the diversity and density of development along the Principal Public Transport Network, particularly at interchanges, activity centres and where principal public transport routes intersect.

Identify and plan for new Principal Public Transport Network routes.

Support the Principal Public Transport Network with a comprehensive network of local public transport.

Plan for local bus services to provide for connections to the Principal Public Transport Network.

Improve the operation of the Principal Public Transport Network by providing for:

- A metro-style rail system.
- Extended tram lines and the establishment of a light rail system.
- Road space management measures including transit lanes, clearways, stops and interchanges.

## 18.02-4S Roads

18/12/2025
VC277

### Objective

To facilitate an efficient and safe road network that integrates all movement networks and makes best use of existing infrastructure.

### Strategies

Plan and develop the road network to:

- Ensure people are safe on and around roads.
- Improve people's perceptions of safety on and around roads.
- Improve road connections for all road users.
- Facilitate the use of public transport, cycling and walking.
- Integrate new and emerging technologies into road design, including the increasing connectivity and automation of vehicles.
- Accommodate the expansion of the High Productivity Freight Vehicle Network, and oversize and overmass vehicles.

Protect and develop the Principal Road Network to:

- Provide high mobility for through traffic and the efficient movement of freight by facilitating adequate movement capacity and speeds.
- Improve cross-town arterial links in outer suburbs and growth areas, including circumferential and radial movement to facilitate access to jobs and services.
- Limit access points to high-volume, high-speed roads by utilising urban design techniques such as service roads and internal connector roads.
- Improve high-capacity on-road public transport.

Develop declared freeways to:

- Link Melbourne with major regional cities, major interstate locations and other key locations important to the economy along major national and state transport corridors.
- Connect and provide access to Principal Transport Gateways and freight-generating areas.
- Improve connections to Employment and Innovation Areas.
- Connect dispersed major residential areas with key destinations and lower density employment areas.
- Avoid private access, except for service centres.

Provide for grade separation at railway crossings, except with the approval of the Minister for Transport and Infrastructure.

Improve Melbourne's distinctive, established boulevards by developing a connected, contemporary network of boulevards within the urban growth boundary.

Design road space to complement land use and meet business and community needs through the provision of wider footpaths, bicycle lanes, transit lanes (for buses and commercial passenger vehicles) and freight routes, in line with the designated role of the road.

Design roads to facilitate the safe movement of people and goods while providing places for people to interact and gather in high pedestrian areas like activity centres, around schools and around community facilities.

Plan an adequate supply of car parking that is designed and located to:

- Protect the role and function of nearby roads.

- Enable the efficient movement and delivery of goods.
- Facilitate the use of public transport.
- Maintain journey times and the reliability of the on-road public transport network.
- Protect residential areas from the effects of road congestion created by on-street parking.
- Enable easy and efficient use.
- Achieve a high standard of urban design.
- Protect the amenity of the locality, including the amenity of pedestrians and other road users.
- Create a safe environment, particularly at night.

Allocate land for car parking considering:

- The existing and potential modes of access including public transport.
- The demand for off-street car parking.
- Road capacity.
- The potential for demand-management of car parking.

Consolidate car parking facilities to improve efficiency.

Design public car parks to incorporate electric charging facilities to support the use of low-emission vehicles.

### Policy documents

Consider as relevant:

- *Car Parking Requirement Maps* (Department of Transport and Planning, December 2025)
- *Victorian Road Safety Strategy 2021-2030* (Department of Transport, 2021)
- *Movement and Place in Victoria* (Department of Transport, February 2019)

## 18.02-4L Roads in Casey

19/06/2025
C284case

### Strategies

Facilitate the development of a:

- Main road network that avoids six-lane divided arterial roads acting as a barrier between communities.
- Road network in Casey's growth areas that supports accessible public transport.

Discourage development that would compromise the ability for future transport corridors to be delivered in alignment with strategic land use plans.

Ensure development provides public road connections through to adjoining areas and estates, including cycling and pedestrian connections, particularly in new communities.

Facilitate the development of the following new roads as shown on the *Area specific framework plans* at Clause 02.04-7:

- The Cranbourne Bypass to assist in reducing through traffic in the Cranbourne Major Activity Centre.
- The extension of Glasscocks Road between Dandenong-Hastings Road/Western Port Highway and South Gippsland Highway, ultimately linking Dandenong-Hastings Road/Western Port Highway with Berwick-Cranbourne/Clyde Roads.
- The realignment of Glasscocks Road to the south to allow for an expansion of the Casey Central Major Activity Centre.
- A collector road linking Tinks Road to Heatherton Road.

### Policy guidelines

Consider as relevant:

- Facilitating a main road network comprising of a grid with a main road connection every 800 metres.
- Facilitating a road network in Casey's growth areas comprising of a grid with a road connection every 400 metres.

## 18.02-5S Freight

09/12/2021
VC204

### Objective

To facilitate an efficient, coordinated, safe and sustainable freight and logistics system that enhances Victoria's economic prosperity and liveability.

### Strategies

Plan and develop Victoria's freight and logistics system to:

- Support the movement of freight within Victoria's freight and logistics system.
- Improve freight efficiency and capacity.
- Manage negative impacts of freight generating activities on urban amenity, the development of urban areas, and on the efficient operation of movement networks.
- Prioritise new technologies that enhance road and rail safety, optimise the metropolitan road network, better manage congestion and reduce supply chain costs.
- Accommodate High Productivity Freight Vehicles, and oversize and overmass vehicles.
- Increase the capacity of the rail network to carry larger volumes of freight.

Protect and develop the Principal Freight Network, including freight movement corridors and freight places, and Principal Transport Gateways, by:

- Facilitating the movement of high volumes of freight and freight of strategic value.
- Linking areas of production and manufacturing to national and international gateways and export markets.
- Increasing the capacity of Principal Transport Gateways and supporting their use and development as important locations for employment and economic activity.
- Designing the Principal Freight Network to adapt to commodity, market and operating changes.
- Managing encroachment from incompatible land use and development that would undermine its ability to operate.

Support the development of freight and logistics precincts in strategic locations within and adjacent to Principal Transport Gateways and along the Principal Freight Network movement corridors by:

- Allocating land for complementary uses and employment-generating activities, such as distribution and warehousing.
- Reserving and appropriately zoning land for interstate freight terminals to support development that allows for the direct and immediate delivery of goods to market.
- Allocating land to allow high-volume freight customers to locate adjacent to interstate freight terminals, including the Western Interstate Freight Terminal and the Beveridge Interstate Freight Terminal.

### Policy documents

Consider as relevant:

- *Principal Freight Network* (Department of Transport, 2021)
- *Principal Transport Gateways* (Department of Transport, 2021)
- *Delivering the Goods, Creating Victorian Jobs: Victorian Freight Plan* (Department of Economic Development, Jobs, Transport and Resources, July 2018)

## Principal Transport Gateways



## 18.02-5R Freight links - Metropolitan Melbourne

09/12/2021
VC204

### Strategy

Ensure suitable sites are provided for intermodal freight terminals at key locations around Metropolitan Melbourne, particularly for the Beveridge Interstate Freight Terminal and the Western Interstate Freight Terminal.

## 18.02-6S Ports

09/12/2021
VC204

### Planning for ports objective

To support the effective and competitive operation of Victoria's commercial trading ports at local, national and international levels, and to facilitate their ongoing sustainable operation and development.

### Planning for ports strategies

Provide for the ongoing development of ports at Melbourne, Geelong, Hastings and Portland in accordance with approved Port Development Strategies.

Identify and protect key transport corridors linking ports to the broader transport network.

Manage any impacts of a commercial trading port and any related industrial development on nearby sensitive uses to minimise the impact of vibration, light spill, noise and air emissions from port activities.

### Planning for port environs objective

To plan for and manage land near commercial trading ports so that development and use are compatible with port operations and provide reasonable amenity expectations.

### Planning for port environs strategies

Protect commercial trading ports from encroachment of sensitive and incompatible land uses in the port environs.

Plan for and manage land in the port environs to accommodate uses that depend upon, or gain significant economic advantage from, proximity to the port's operations.

Ensure that industrially zoned land within the environs of a commercial trading port is maintained and continues to support the role of the port as a critical freight and logistics precinct.

Identify and protect key transport corridors linking ports to the broader transport network.

Ensure any new use or development within the environs of a commercial trading port does not prejudice the efficient and curfew-free operations of the port.

Ensure that the use and intensity of development does not expose people to unacceptable health or safety risks and consequences associated with an existing major hazard facility.

Ensure that any use or development within port environs:

- Is consistent with policies for the protection of the environment.
- Takes into account planning for the port.

### Policy documents

Consider as relevant:

- *Statement of Planning Policy No 1 - Western Port* (1970-varied 1976)
- *2018 Port Development Strategy* (Port of Hastings Development Authority, December 2018)
- *Port of Geelong Port Development Strategy 2018* (Victorian Regional Channels Authority, 2018)
- *2050 Port Development Strategy, 2020 edition* (Port of Melbourne, 2020)
- *Port of Portland – Port Development Strategy* (Port of Portland, 2019)

## 18.02-7S Airports and airfields

18/05/2022
VC218

### Objective

To strengthen the role of Victoria's airports and airfields within the state's economic and transport infrastructure, guide their siting and expansion, and safeguard their ongoing, safe and efficient operation.

### Strategies

Protect airports and airfields from incompatible land use and development.

Prevent land use or development that poses risks to the safety or efficiency of an airport or airfield, including any of the following risks:

- Building-generated windshear and turbulence.
- Increased risk of wildlife strike.
- Pilot distraction from lighting.
- Intrusion into protected airspace.
- Interference with communication, navigation and surveillance facilities.
- Increased risk to public safety at the end of runways.

Minimise the detrimental effects of aircraft noise when planning for areas around airports and airfields.

Limit the intensification of noise-sensitive land uses, and avoid zoning or overlay changes that allow noise-sensitive land use and development, where ultimate capacity or long-range noise modelling indicates an area is within a 20 Australian Noise Exposure Forecast (ANEF) contour or higher.

Avoid zoning or overlay changes that allow noise-sensitive land uses outside the Urban Growth Boundary, and encourage measures to reduce the impact of aircraft noise in planning for areas within the Urban Growth Boundary, where ultimate capacity or long-range noise modelling indicates an area is within 'number above' contours (N Contours) representing:

- 20 or more daily events greater than 70 dB(A).
- 50 or more daily events of greater than 65 dB(A).
- 100 or more daily events greater than 60 dB(A).
- 6 events or more between the hours of 11pm to 6am greater than 60 dB(A).

Ensure land use and development at airports and airfields contributes to the aviation needs of the state and the efficient and functional operation of the airport or airfield.

Ensure land use and development at airports complements the role of the airport including as listed below:

- Melbourne Airport – major domestic and international airport with no curfew, 24-hour access, freight capability and an adjoining employment precinct.
- Avalon Airport – domestic and international airport with no curfew, 24-hour access, freight capability and an adjoining employment precinct.
- Essendon Fields Airport – a general aviation airport that is an important regional and state aviation asset with specialised functions, including executive charter, emergency aviation services, freight, logistics and an adjoining employment precinct.

- Moorabbin Airport – a general aviation airport that is an important regional and state aviation asset supporting the state's aviation industry and access to regional Victoria.
- Point Cook Airfield – an operating airport complementary to Moorabbin Airport.

Plan for areas around airports and airfields so that land use or development does not prejudice future airport or airfield operations or expansions in accordance with an approved strategy or master plan for that airport or airfield.

Preserve long-term options for a new general aviation airport south-east of metropolitan Melbourne by ensuring urban land use and development does not infringe on possible sites, buffer zones or flight paths.

Avoid the location of new airports and airfields in areas that have greater long-term value to the community for other purposes.

Ensure that in the planning of airports and airfields, land use decisions are integrated, appropriate land use buffers are in place and provision is made for associated businesses that service airports.

Plan the location of airports and airfields, nearby existing and potential development, and the land-based transport system required to serve them, as an integrated operation.

Plan the visual amenity and impact of any land use or development on the approaches to an airport or airfield to be consistent with the status of the airport or airfield.

#### Policy documents

Consider as relevant:

- *National Airports Safeguarding Framework* (as agreed by Commonwealth, State and Territory Ministers at the meeting of the Standing Council on Transport and Infrastructure on 18 May 2012)
- *Avalon Airport Master Plan* (Avalon Airport Australia Pty Ltd, 2015)
- *Avalon Airport Strategy* (Department of Business and Employment/Aerospace Technologies of Australia, 1993) and its associated Aircraft Noise Exposure Concepts
- *Melbourne Airport Strategy* (Government of Victoria/Federal Airports Corporation, approved 1990) and its associated *Final Environmental Impact Statement*

## 18.02-7R Melbourne Airport

20/03/2023
VC229

#### Strategies

Protect the curfew-free status of Melbourne Airport and ensure any new use or development does not prejudice its operation or optimum usage.

#### Policy documents

Consider as relevant:

- *Melbourne Airport Master Plan 2022* (Australia Pacific Airports (Melbourne) Pty Ltd)
- *Melbourne Airport Strategy* (Government of Victoria/Federal Airports Corporation, approved 1990) and its associated *Final Environmental Impact Statement*

# 19 INFRASTRUCTURE

10/06/2022
VC216

Planning for development of social and physical infrastructure should enable it to be provided in a way that is efficient, equitable, accessible and timely.

Planning is to recognise social needs by providing land for a range of accessible community resources, such as education, cultural, health and community support (mental health, aged care, disability, youth and family services) facilities.

Planning should ensure that the growth and redevelopment of settlements is planned in a manner that allows for the logical and efficient provision and maintenance of infrastructure, including the setting aside of land for the construction of future transport routes.

Planning should facilitate efficient use of existing infrastructure and human services. Providers of infrastructure, whether public or private bodies, are to be guided by planning policies and should assist strategic land use planning.

Planning should minimise the impact of use and development on the operation of major infrastructure of national, state and regional significance, including communication networks and energy generation and distribution systems.

Infrastructure planning should avoid, minimise and offset environmental impacts, and incorporate resilience to natural hazards, including future climate change risks.

Planning authorities should consider the use of development and infrastructure contributions in the funding of infrastructure.

## 19.01 ENERGY

31/07/2018
VC148

## 19.01-1S Energy supply

05/09/2025
VC268

### Objective

To facilitate appropriate development of energy supply infrastructure.

### Strategies

Support the development of energy generation, storage, transmission, and distribution infrastructure to transition to a low-carbon economy.

Develop appropriate infrastructure to meet community demand for energy services.

Ensure energy generation, storage, transmission and distribution infrastructure and projects are resilient to the impacts of climate change.

Facilitate the production and distribution of zero emission gases and fuels.

Support energy infrastructure projects in locations that minimise land use conflicts, including in any renewable energy zones declared under section 63 of the *National Electricity (Victoria) Act 2005*.

Support energy infrastructure projects in locations that take advantage of existing and planned resources and infrastructure networks.

Facilitate energy infrastructure projects that help diversify local economies and improve sustainability and social outcomes.

Facilitate renewable energy generation and storage to meet on-site energy needs.

### Policy guidelines

Consider as relevant:

- The long-term emissions reduction target specified in section 6 of Part 2 of the *Climate Action Act 2017*.
- Interim emissions reduction targets determined under Division 2 of Part 2 of the *Climate Action Act 2017*.
- Adaptation action plans prepared under Division 2 of Part 5 of the *Climate Action Act 2017*.

### Policy documents

Consider as relevant:

- *2025 Victorian Transmission Plan* (VicGrid, 2025)

## 19.01-2S Renewable energy

05/09/2025
VC268

### Objective

To support the provision and use of renewable energy in a manner that ensures appropriate siting and design considerations are met.

### Strategies

Facilitate renewable energy development in appropriate locations, including in any renewable energy zones declared under section 63 of the *National Electricity (Victoria) Act 2005*.

Protect renewable energy infrastructure against competing and incompatible uses.

Set aside suitable land for future renewable energy infrastructure.

Consider the economic, social and environmental benefits to the broader community of renewable energy generation while also considering the need to minimise the effects of a proposal on the local community and environment.

Support wind energy facilities in locations with consistently strong winds over the year.

### Policy documents

Consider as relevant:

- *Policy and Planning Guidelines for Development of Wind Energy Facilities in Victoria* (Department of Environment, Land, Water and Planning, November 2021)
- *Solar Energy Facilities Design and Development Guideline* (Department of Environment, Land, Water and Planning, October 2022)
- *Victoria's Climate Change Strategy* (Department of Environment, Land, Water and Planning, May 2021)
- *Community Engagement and Benefit Sharing in Renewable Energy Development in Victoria* (Department of Environment, Land, Water and Planning, July 2021)
- *2025 Victorian Transmission Plan* (VicGrid, 2025)

## 19.01-2R Renewable energy - Metropolitan Melbourne

31/07/2018
VC148

### Strategy

Facilitate the uptake of renewable energy technologies on a site-by-site and neighbourhood level during the master planning of new communities and in green wedge and peri-urban areas.

## 19.01-3S Pipeline infrastructure

31/07/2018
VC148

### Objective

To ensure that gas, oil and other substances are safely delivered to users and to and from port terminals at minimal risk to people, other critical infrastructure and the environment.

### Strategies

Plan for the development of pipeline infrastructure subject to the *Pipelines Act 2005*.

Recognise existing transmission-pressure gas pipelines in planning schemes and protect from further encroachment by residential development or other sensitive land uses, unless suitable additional protection of pipelines is provided.

Plan new pipelines along routes with adequate buffers to residences, zoned residential land and other sensitive land uses and with minimal impacts on waterways, wetlands, flora and fauna, erosion prone areas and other environmentally sensitive sites.

Provide for environmental management during construction and on-going operation of pipeline easements.

## 19.02 COMMUNITY INFRASTRUCTURE

31/07/2018
VC148

## 19.02-1S Health facilities

31/07/2018
VC148

### Objective

To assist the integration of health facilities with local and regional communities.

### Strategies

Facilitate the location of health and health-related facilities (including acute health, aged care, disability services and community care facilities) taking into account demographic trends, the existing and future demand requirements and the integration of services into communities.

Plan public and private developments together, where possible, including some degree of flexibility in use.

Locate hospitals and other large health facilities in designated health precincts and areas highly accessible to public and private transport.

Provide adequate car parking for staff and visitors of health facilities.

## 19.02-1R Health precincts - Metropolitan Melbourne

31/07/2018
VC148

### Strategies

Facilitate health and community wellbeing precincts through the co-location of:

- Hospitals, allied health services and not-for-profit health providers at the regional level.
- General practitioners, community health facilities, allied health services and not-for-profit health providers at the neighbourhood level.

Create health precincts in new suburbs in or close to town centres.

Ensure health precincts are well serviced by community services.

## 19.02-2S Education facilities

29/09/2022
VC222

### Objective

To assist the integration of education and early childhood facilities with local and regional communities.

### Strategies

Consider demographic trends, existing and future demand requirements and the integration of facilities into communities in planning for the location of education and early childhood facilities.

Locate childcare, kindergarten and primary school facilities to maximise access by public transport and safe walking and cycling routes.

Ensure childcare, kindergarten and primary school and secondary school facilities provide safe vehicular drop-off zones.

Facilitate the establishment and expansion of primary and secondary education facilities to meet the existing and future education needs of communities.

Recognise that primary and secondary education facilities are different to dwellings in their purpose and function and can have different built form (including height, scale and mass).

Locate secondary school and tertiary education facilities in designated education precincts and areas that are highly accessible to public transport.

Locate tertiary education facilities within or adjacent to activity centres.

Ensure streets and accessways adjoining education and early childhood facilities are designed to encourage safe bicycle and pedestrian access.

Consider the existing and future transport network and transport connectivity.

Develop libraries as community based learning centres.

Co-locate a kindergarten facility with all new Victorian Government primary schools.

## 19.02-2R Education precincts - Metropolitan Melbourne

31/07/2018
VC148

### Strategy

Ensure education precincts are well serviced by community services.

## 19.02-2L Education facilities

19/06/2025
C284case

### Strategy

Encourage the master-planning of education facilities to:

- Provide access and car parking on-site.
- Support the development of a broad range of education options with a focus on knowledge-based sectors.

### Policy guideline

Consider as relevant:

- Locating education facilities on sites with three road frontages, with the fourth side adjoining parklands.

## 19.02-3S Cultural facilities

31/07/2018
VC148

### Objective

To develop a strong cultural environment and increase access to arts, recreation and other cultural facilities.

### Strategies

Encourage a wider range of arts, cultural and entertainment facilities including cinemas, restaurants, nightclubs and live theatres in the Central City and at Metropolitan Activity Centres.

Reinforce the existing major precincts for arts, sports and major events of state wide appeal.

Establish new facilities at locations well served by public transport.

## 19.02-3R Cultural facilities - Metropolitan Melbourne

31/07/2018
VC148

### Strategies

Maintain and strengthen Melbourne's distinctiveness as a leading cultural and sporting city with world-class facilities.

## 19.02-4S Social and cultural infrastructure

31/07/2018
VC148

### Objective

To provide fairer distribution of and access to, social and cultural infrastructure.

### Strategies

Identify and address gaps and deficiencies in social and cultural infrastructure, including additional regionally significant cultural and sporting facilities.

Encourage the location of social and cultural infrastructure in activity centres.

Ensure social infrastructure is designed to be accessible.

Ensure social infrastructure in growth areas, is delivered early in the development process and in the right locations.

Plan and design community places and buildings so they can adapt as the population changes and different patterns of work and social life emerge.

Support innovative ways to maintain equitable service delivery to settlements that have limited or no capacity for further growth, or that experience population decline.

Identify and protect land for cemeteries and crematoria.

## 19.02-5S Emergency services

31/07/2018
VC148

### Objective

To ensure suitable locations for police, fire, ambulance and other emergency services.

### Strategies

Ensure police, fire, ambulance and other emergency services are provided for in or near activity centres.

Locate emergency services together in newly developing areas.

## 19.02-6S Open space

31/07/2018
VC148

### Objective

To establish, manage and improve a diverse and integrated network of public open space that meets the needs of the community.

### Strategies

Plan for regional and local open space networks for both recreation and conservation of natural and cultural environments.

Ensure that open space networks:

- Are linked, including through the provision of walking and cycling trails.
- Are integrated with open space from abutting subdivisions.
- Incorporate, where possible, links between major parks and activity areas, along waterways and natural drainage corridors, connecting places of natural and cultural interest.
- Maintain public accessibility on public land immediately adjoining waterways and coasts.

Create opportunities to enhance open space networks within and between settlements.

Ensure that land is set aside and developed in residential areas for local recreational use and to create pedestrian and bicycle links to commercial and community facilities.

Ensure that land use and development adjoining regional open space networks, national parks and conservation reserves complements the open space in terms of visual and noise impacts, preservation of vegetation and treatment of waste water to reduce turbidity and pollution.

Improve the quality and distribution of open space and ensure long-term protection.

Protect large regional parks and significant conservation areas.

Ensure land identified as critical to the completion of open space links is transferred for open space purposes.

Ensure that where there is a reduction of open space due to a change in land use or occupation, additional or replacement parkland of equal or greater size and quality is provided.

Ensure that urban open space provides for nature conservation, recreation and play, formal and informal sport, social interaction, opportunities to connect with nature and peace and solitude.

Accommodate community sports facilities in a way that is not detrimental to other park activities.

Ensure open space provision is fair and equitable with the aim of providing access that meets the needs of all members of the community, regardless of age, gender, ability or a person's location.

Develop open space to maintain wildlife corridors and greenhouse sinks.

Provide new parkland in growth areas and in areas that have an undersupply of parkland.

Encourage the preparation of management plans or explicit statements of management objectives for urban parks.

Ensure exclusive occupation of parkland by community organisations is restricted to activities consistent with management objectives of the park to maximise broad community access to open space.

Ensure the provision of buildings and infrastructure is consistent with the management objectives of the park.

Ensure public access is not prevented by developments along stream banks and foreshores.

Ensure public land immediately adjoining waterways and coastlines remains in public ownership.

Plan open space areas for multiple uses, such as community gardens, sports and recreation, active transport routes, wildlife corridors and flood storage basins.

## 19.02-6R Open space - Metropolitan Melbourne

14/04/2025
VC281

### Objective

To strengthen the integrated metropolitan open space network.

### Strategies

Develop a network of local open spaces that are accessible and of high-quality and include opportunities for new local open spaces through planning for urban redevelopment projects.

Ensure major open space corridors are protected and enhanced.

Develop open space networks in growth areas and in the surrounding region of Metropolitan Melbourne, where existing open space is limited and demand is growing, including:

- Cardinia Creek Parklands.
- Cranbourne Regional Park.
- Kororoit Creek Corridor.
- Quarry Hills Regional Park.
- Chain of Parks - Sandbelt.
- Sunbury Regional Park - Jacksons Creek Valley.
- Toolern Creek Regional Park.
- Werribee Township Regional Park.

Create continuous open space links and trails along the:

- Frankston parklands (linking existing parks from Carrum to Mornington).
- Maribyrnong River parklands.
- Merri Creek parklands (extending to Craigieburn).
- Western Coastal parklands (linking Point Gellibrand, Point Cook and Werribee).
- Birrarung (Yarra River) parklands (extending from Warrandyte to the Port Phillip Bay).

Provide long term planning protection to meet demand for future open space along the Plenty Gorge parklands, Yarra Valley parklands, Cardinia Creek parklands, Heatherton/Dingley 'Sandbelt' parklands and Dandenong Valley parklands.

Protect the metropolitan water's edge parklands from intrusion and encroachment of development that impacts on open space and their natural landscape setting.

Continue development of the Birrarung (Yarra River) Inner City reach, identified in clause 12.03-1R Map 1, as a focus for sport, entertainment and leisure.

Support establishing community gardens and productive streetscapes.

### Policy documents

Consider as relevant:

- *Open Space for Everyone: Open Space Strategy for Metropolitan Melbourne 2021* (Department of Environment, Land, Water and Planning, 2021)
- *Maribyrnong River – Vision for Recreational and Tourism Development* (Melbourne Parks and Waterways, 1996)
- *Maribyrnong River Valley Design Guidelines* (Department of Planning and Community Development, 2010)

## 19.02-6L-01 Public open space

19/06/2025
C284case

### Function of public open space strategies

Provide for an equitable distribution of public open space at the regional, district and local level throughout the municipality as shown on the *Casey open space network plan* in this Clause.

Provide a network of diverse open spaces that perform one or more of the following functions:

- Nature reserves - provide areas dedicated to protecting environmental values including habitat for flora and fauna and connecting people with nature.
- Trails and Waterways - including along waterways or open space corridors that provide linkages across the open space network to connect people with places.
- Social and family recreation - provide opportunities for a range of age groups typically catering for play, picnics, casual ball games, trail activities and environmental qualities.
- Sport - provide for organised sport.

Ensure public open spaces are fit for their intended purpose and are designed to meet their designated function.

Co-locate public open space with adjacent encumbered land where the encumbered land is useable and can add value to the site for recreation.

Encourage new open space to complement the existing range of recreation opportunities in an area rather than duplicate them.

Discourage sporting and social and family recreation reserves on land that is:

- Used to drain or carry flood waters from the land unless provision is made for the creation of a natural wetland system.
- A buffer to a transport corridor, a drainage reserve or a hill slope.
- Affected by hazards such as a powerline easement.

### Function of public open space policy guidelines

Consider as relevant:

- Providing district level social and family recreation open spaces within 1 kilometre of dwellings in urban areas with a minimum size of 2 hectares, unless located in an activity centre.
- Providing district level sporting recreation open spaces within 1 kilometre of dwellings in urban areas with a minimum size of 10 hectares, ideally located off a collector road and on a public transport route.
- Providing local level social and family recreation open spaces near dwellings in urban areas where people do not need to cross a major road or railway for access, and one in every township with a minimum size of:
  - 1.5 hectares in urban areas designated for medium or high-density housing.
  - 1.0 hectares for stand-alone spaces.
  - 0.6 hectares if the space is connected to another open space such as along a waterway.
  - 0.3 hectares in an industrial or commercial precinct.
- Providing local level sporting recreation open spaces within 1 kilometre of dwellings in urban areas and one in every township with a minimum size of 5 hectares.
- Locating playing fields on land with a gradient no steeper than 2 percent.

- Ensuring local level social and family recreation open spaces of 0.6 hectares or greater in area are at least 70 metres long and 70 metres wide.
- Discouraging sporting recreation open spaces on land that is less than 10 metres wide, including access links to parkland and maintenance corridors.

### Design of public open space strategies

Site and design open space to:

- Provide a range of recreation opportunities.
- Encourage equitable access, including through:
  - Siting open space near bicycle paths, footpaths or local facilities.
  - Designing the open space to have safe and convenient access to bicycle and pedestrian access.
  - Ensuring main roads do not restrict access to the open space.
- Provide land with the potential to protect habitat for local fauna and flora with access links to adjoining open space areas.
- Encourage parks with a nature- based activity, such as bird watching, to provide an area of remnant native habitat.

Use public open space areas to protect natural features including remnant vegetation, habitat, mature treed landscapes and topography.

Plan open space areas to:

- Incorporate features of local environmental and cultural significance, including large canopy trees, pre and post-contact heritage, and natural features.
- Enhance features of local environmental and cultural significance as key focal points throughout the municipality.
- Be provided in excess of minimum entitlements when being set aside to protect significant natural features.
- Be developed early in new estates to preserve existing natural features that contribute significantly to the image and quality of new estates and ensure that the ongoing recreational needs of residents are progressively met.

Minimise the encroachment of community buildings and schools into existing public open space.

Design and site development surrounding social and family recreation and sporting open spaces to promote casual surveillance of the site.

Design and develop public open spaces to high standards of usability, sustainability, attractiveness, sensitivity to site, cost-effective maintenance and safety for users.

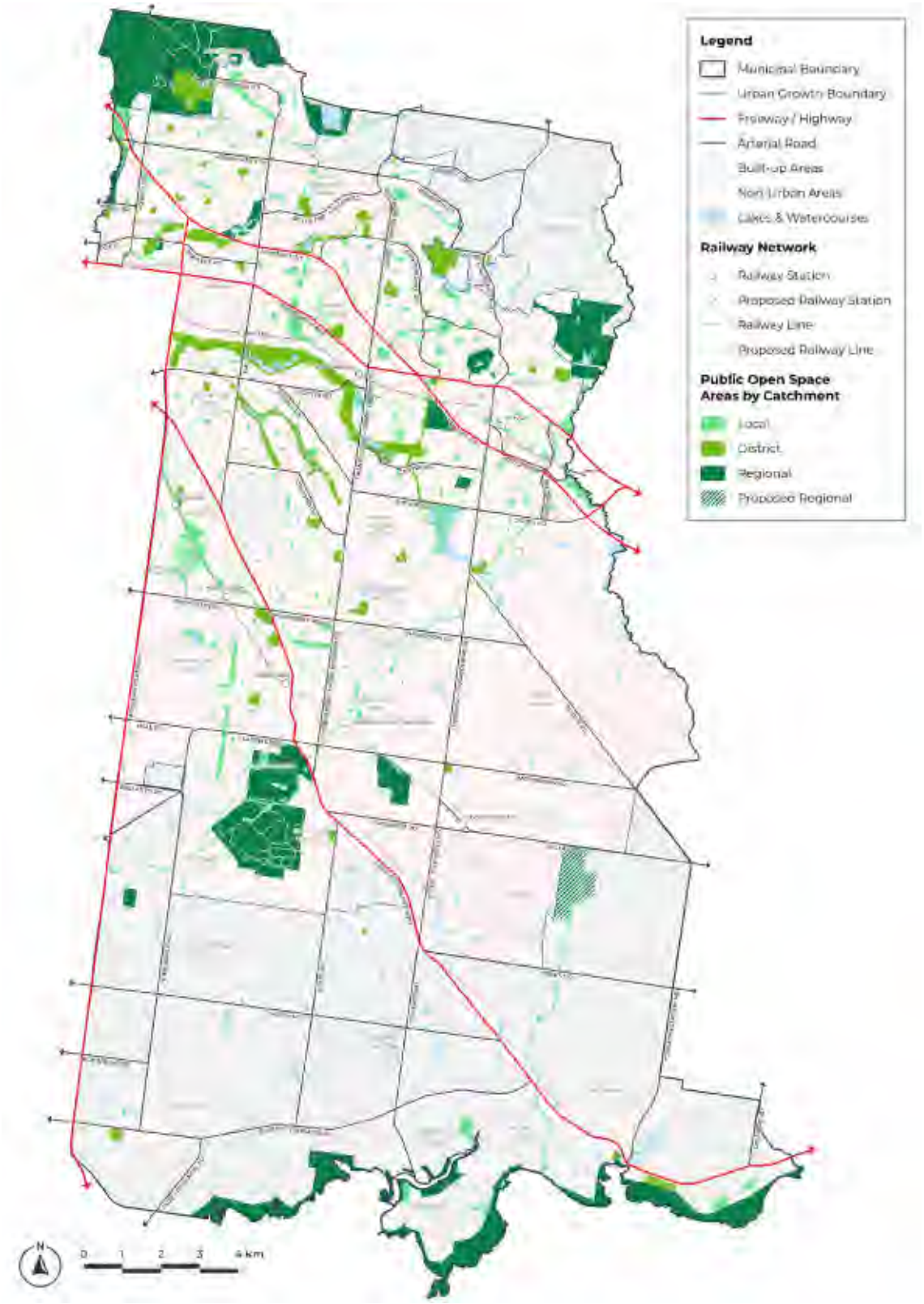
Limit impacts of servicing and other infrastructure on the biodiversity and visual values of public open spaces.

### Policy documents

Consider as relevant:

- *Open Space Strategy* (City of Casey, 2015)
- *City of Casey Landscape Policy* (City of Casey, 2010)

## Casey open space network plan



## 19.02-6L-02 Public open space contributions

19/06/2025
C284case

### Policy application

This policy applies to the subdivision of land where a public open space contribution is required.

### Objective

To identify where land contributions for public open space may be sought in preference to monetary contributions and vice versa.

### Strategies

Provide land contributions in preference to monetary contributions unless any of the following apply:

- The subdivision does not allow sufficient land to be taken as open space to meet Clause 19.02-6L-01 and the schedule to Clause 53.01.
- The site is in an area where a good range of public open spaces performing a range of recreational functions are already available.
- Specific embellishments or enhanced quality open spaces are needed as a priority.
- Contributions are needed for a regional recreational resource that serves the new residential development.

Ensure land that is counted towards a public open space contribution is unencumbered land that is fit for purpose.

### Policy guidelines

Consider as relevant:

- Encumbered open space is land with a primary purpose that is not for open space, including but not limited to land:
  - Affected or occupied by a servicing easement including water, drainage, sewer, high voltage power lines or gas.
  - Subject to flooding.
  - Subject to landslip or has a slope greater than 1:3.
  - That contains waterways, retarding basins or wetlands.
  - That would ordinarily be protected from development due to the need to conserve flora, fauna or heritage values.
  - That may be contaminated.
  - Located on a roof top or basement or that does not provide clear sky above.
  - Located on common property managed by an owners' corporation.
- Unencumbered open space is land with a primary purpose for open space that:
  - Is unaffected or unoccupied by servicing easements including water, drainage, sewer, high voltage power lines or gas.
  - Is not subject to flooding.
  - Is not subject to landslip and/or has a slope of less than 1:3.
  - Does not contain waterways, retarding basins or wetlands.
  - Would not ordinarily be excluded from development due to the need to conserve flora, fauna or heritage values.

- Is not contaminated.
- Is not located on a roof top or above a basement and provides clear sky above.
- Is not located on common property managed by an owners' corporation.

**Policy document**

Consider as relevant:

- *Open Space Strategy* (Casey City Council, 2015)

## 19.02-6L-03 Recreational and equestrian trails

19/06/2025
C284case

### Objective

To develop a comprehensive recreational and equestrian trail network across Casey.

### Strategies

Discourage development that would compromise the ability to deliver trails as identified on the *Recreational and equestrian trails plan* in this Clause.

Direct the development of recreational trails along creeks, wetlands, drainage reserves, railway corridors and within parklands in preference to other locations.

Facilitate the development of an equestrian network and accessible facilities that meet the community's recreational needs.

Encourage and facilitate the development of recreational trails including:

- The Great Casey Trail
- Eumemmerring Creek to Lysterfield Lake
- Royal Botanic Gardens Victoria (Cranbourne Gardens) to Cardinia Creek Parkland
- Royal Botanic Gardens Victoria (Cranbourne Gardens) to the Pines Flora and Fauna Reserve
- Cardinia Creek Parkland Trail
- The Casey Coastal Trail
- Rail Trails including the Great Southern Rail Trail.

Facilitate the development of increased equestrian trail connections:

- In the Cardinia Creek Parklands.
- Within the north and south trail networks of Casey.
- To key existing and future equestrian facilities, such as Casey's public equestrian centres, Iven's Recreation Reserve and Morning Mist Recreation Reserve, Akoonah Park, Police Paddocks, Kurll Park and Lysterfield Lake.

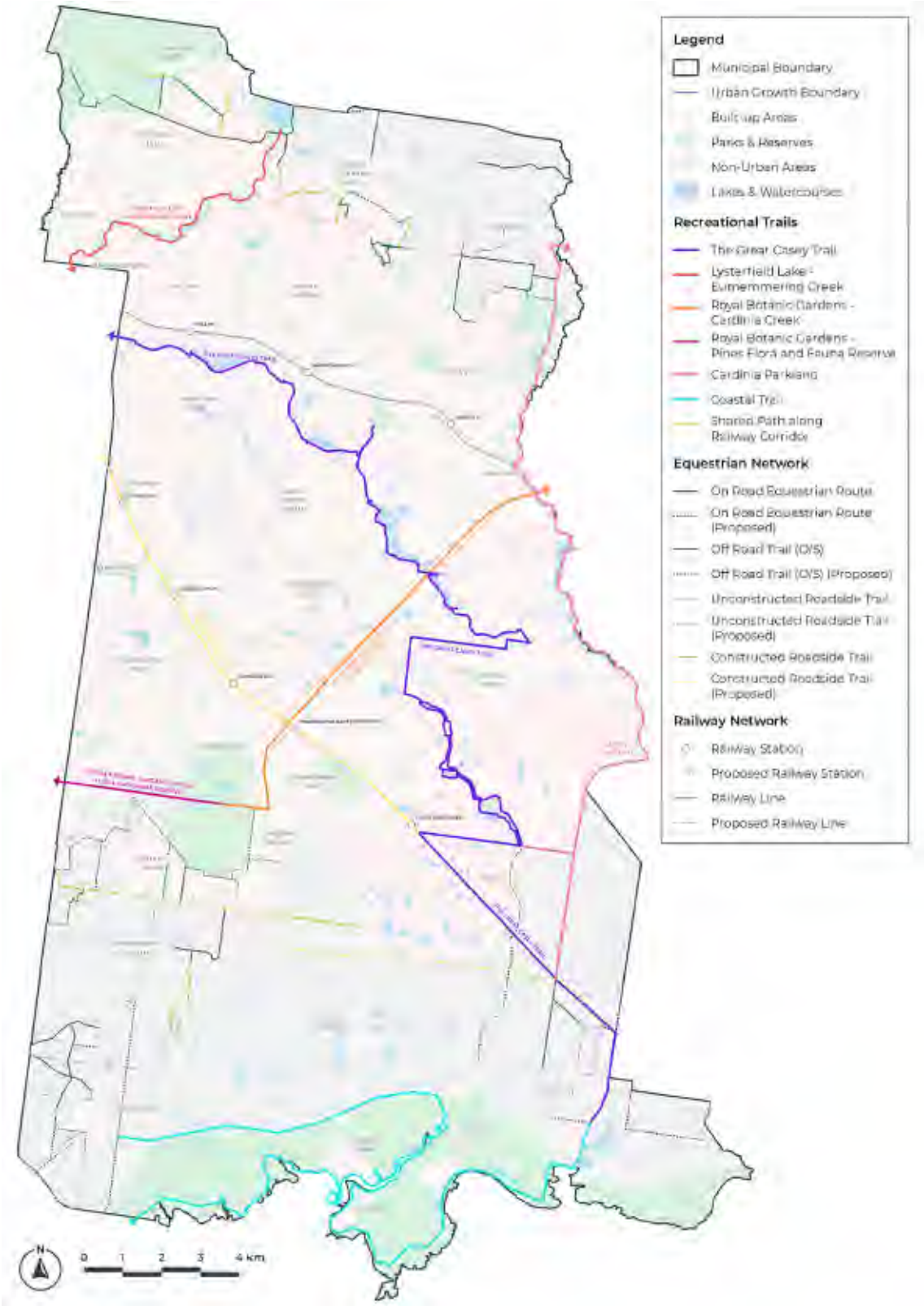
Maintain and enhance existing equestrian facilities and access to these facilities.

### Policy Documents

Consider as relevant

- *Walk and Ride in Casey 2019-2041* (City of Casey, 2019)
- *Equestrian Strategy* (Simply Great Leisure, 2011)

## Recreational and equestrian trails plan



# 19.03 DEVELOPMENT INFRASTRUCTURE

31/07/2018
VC148

## 19.03-1S Development and infrastructure contributions plans

24/01/2020
VC160

### Objective

To facilitate the timely provision of planned infrastructure to communities through the preparation and implementation of development contributions plans and infrastructure contributions plans.

### Strategies

Prepare development contributions plans and infrastructure contributions plans, under the *Planning and Environment Act 1987*, to manage contributions towards infrastructure.

Collect development contributions on the basis of approved development and infrastructure contributions plans.

Require annual reporting by collecting and development agencies to monitor the collection and expenditure of levies and the delivery of infrastructure.

### Policy documents

Consider as relevant:

- *Development Contributions Guidelines* (Department of Sustainability and Environment, 2003 -as amended 2007)
- *Infrastructure Contributions Plan Guidelines* (Department of Environment, Land, Water and Planning, November 2019)
- *Ministerial Direction on the Preparation and Content of Development Contribution Plans and Reporting Requirements for Development Contributions Plans*
- *Ministerial Direction on the Preparation and Content of Infrastructure Contribution Plans and Reporting Requirements for Infrastructure Contributions Plans*

## 19.03-2S Infrastructure design and provision

09/10/2020
VC169

### Objective

To provide timely, efficient and cost-effective development infrastructure that meets the needs of the community.

### Strategies

Provide an integrated approach to the planning and engineering design of new subdivision and development.

Integrate developments with infrastructure and services, whether they are in existing suburbs, growth areas or regional towns.

## 19.03-3S Integrated water management

04/02/2026
VC265

### Objective

To sustainably manage water supply and demand, water resources, wastewater, drainage and stormwater through an integrated water management approach.

### Strategies

Plan and coordinate integrated water management, bringing together stormwater, wastewater, drainage, water supply, water treatment and re-use, to:

- Take into account the catchment context.
- Protect downstream environments, waterways and bays.
- Manage and use potable water efficiently.
- Reduce pressure on Victoria's drinking water supplies.
- Minimise drainage, water or wastewater infrastructure and operational costs.
- Minimise flood risks.
- Provide urban environments that are more resilient to the effects of climate change.

Integrate water into the landscape to facilitate cooling, local habitat improvements and provision of attractive and enjoyable spaces for community use.

Facilitate use of alternative water sources such as rainwater, stormwater, recycled water and run-off from irrigated farmland.

Ensure that development protects and improves the health of water bodies including creeks, rivers, wetlands, estuaries and bays by:

- Minimising stormwater quality and quantity related impacts.
- Filtering sediment and waste from stormwater prior to discharge from a site.
- Managing industrial and commercial toxicants in an appropriate way.
- Requiring appropriate measures to mitigate litter, sediment and other discharges from construction sites.

Manage stormwater quality and quantity through a mix of on-site measures and developer contributions at a scale that will provide greatest net community benefit.

Provide for sewerage at the time of subdivision or ensure lots created by the subdivision are capable of adequately treating and retaining all domestic wastewater within the boundaries of each lot.

Ensure land is set aside for water management infrastructure at the subdivision design stage.

Minimise the potential impacts of water, sewerage and drainage assets on the environment.

Protect significant water, sewerage and drainage assets from encroaching sensitive and incompatible uses.

Protect areas with potential to recycle water for forestry, agriculture or other uses that can use treated effluent of an appropriate quality.

Ensure that the use and development of land identifies and appropriately responds to potential environmental risks, and contributes to maintaining or improving the environmental quality of water and groundwater.

### Policy guidelines

Consider as relevant:

- Any applicable Sustainable Water Strategy endorsed under Division 1B of Part 3 of the *Water Act 1989*.

### Policy documents

Consider as relevant:

- *Water for Victoria - Water Plan* (Victorian Government, 2016)
- *Environment Reference Standard* (Gazette No. S 245, 26 May 2021)
- *Urban stormwater management guidance* (Environment Protection Authority - Publication 1739.1, 2021)
- *Planning Permit Applications in Special Water Supply Catchment Areas* (Department of Energy, Environment and Climate Action, 2024)
- *Victorian guideline for water recycling* (Environment Protection Authority - Publication 1910, March 2021)
- *Technical information for the Victorian guideline for water recycling* (Environment Protection Authority - Publication 1911, March 2021)

## 19.03-3L Integrated water management and water sensitive urban design

19/06/2025
C284case

### Strategies

Minimise the impacts of stormwater runoff from development to surrounding land, particularly land in the Green Wedge, rural and semi-rural areas, and Low Density Residential Zone.

Provide on-site stormwater detention or retention in development where:

- The development would increase the impervious area of the site.
- The existing drainage system is unable to accommodate the increased stormwater discharge from the site.

Site and design on-site stormwater detention systems so that they are integrated into the architectural design of the development.

Encourage the use of water sensitive urban design systems in development and design them to:

- Achieve multiple stormwater benefits, including stormwater treatment, stormwater retention, and water conservation.
- Protect and enhance the environment and cultural heritage.
- Mitigate the impacts of climate change.
- Provide open space and be a feature for the community, where possible.

Design water sensitive urban design systems to be adequately maintained on an ongoing basis.

Provide rainwater tanks in residential and commercial development unless the development is connected to a recycled water system.

Maximise site permeability in development, including through measures such as incorporating permeable paving and rain gardens, to improve stormwater treatment and minimise runoff.

Direct surface run-off towards areas of high infiltration such as garden beds, unless ponding may interfere with pedestrian access or threaten flooding of buildings in which case runoff should be directed into grated pits.

### Policy guidelines

Consider as relevant:

- Where development increases the impervious area and stormwater discharge of the site, allowing the development to not provide on-site stormwater detention where:
  - The downstream drainage system has been upgraded to accommodate the increase in runoff from the site for all storm events.
  - The provision of on-site stormwater detention would not assist in reducing any adverse impacts of flooding on downstream roads, properties or watercourses.

### Policy documents

Consider as relevant:

- *Water Sensitive Urban Design Guidelines South Eastern Councils* (Melbourne Water, 2013)
- *On-site Stormwater Detention Policy* (City of Casey, 2018)

## 19.03-4S Telecommunications

04/11/2022
VC226

### Objective

To facilitate the orderly development, extension and maintenance of telecommunications infrastructure.

### Strategies

Facilitate the upgrading and maintenance of telecommunications facilities.

Ensure that modern telecommunications facilities are widely accessible and that the telecommunications needs of business, domestic, entertainment and community services are met.

Encourage the continued deployment of telecommunications facilities that are easily accessible by:

- Increasing and improving access for all sectors of the community to the telecommunications network.
- Supporting access to transport and other public corridors for the deployment of telecommunications networks in order to encourage infrastructure investment and reduce investor risk.

Ensure a balance between the provision of telecommunications facilities and the need to protect the environment from adverse impacts arising from telecommunications infrastructure.

Co-locate telecommunications facilities wherever practical.

Planning should have regard to national implications of a telecommunications network and the need for consistency in infrastructure design and placement.

## 19.03-4R Telecommunications - Metropolitan Melbourne

26/10/2018
VC154

### Strategy

Support the provision of high-quality telecommunications infrastructure in Melbourne's employment, urban renewal and growth areas through early planning for fibre-ready facilities and wireless infrastructure.

## 19.03-5S Waste and resource recovery

28/04/2026
VC232

### Objective

To reduce waste and maximise resource recovery to reduce reliance on landfills and minimise environmental, amenity and public health impacts.

### Strategies

Ensure future waste and resource recovery infrastructure needs are identified and planned for to safely and sustainably manage all waste streams and maximise opportunities for resource recovery.

Ensure the long-term viability of waste and resource recovery infrastructure is secured through the use of defined buffer areas that protect against encroachment from incompatible land uses.

Ensure waste and resource recovery facilities are sited, designed, built and operated so as to minimise impacts on surrounding communities and the environment.

Enable waste and resource recovery facilities to be located in proximity to other related facilities and to materials' end-market destinations, to reduce the impacts of waste transportation and improve the economic viability of resource recovery.

Site, design, manage and rehabilitate waste disposal facilities to prevent or minimise contamination of groundwater and surface waters, litter, odour, dust and noise.

Integrate waste and resource recovery infrastructure planning with land use and transport planning.

Encourage technologies that increase recovery and treatment of resources to produce high value, marketable end products.

Encourage development that facilitates sustainable waste and resource recovery, including facilities for Victoria’s container deposit scheme.

### Policy documents

Consider as relevant:

- *Victorian Recycling Infrastructure Plan* (Department of Energy, Environment and Climate Action, October 2024)
- *Management and Storage of Combustible Recyclable and Waste Materials - Guideline* (Publication 1667, Environment Protection Authority, October 2018)
- *Best Practice Environmental Management Guideline (Siting, Design, Operation and Rehabilitation of Landfills)* (Environment Protection Authority, 2015)
- *Designing, Constructing and Operating Composting Facilities* (Publication 1588, Environment Protection Authority, June 2015)
- *Separation Distance Guideline* (Environment Protection Authority, August 2024)
- *Landfill Buffer Guideline* (Environment Protection Authority, August 2024)
- *Waste Management and Recycling in Multi-unit Developments. Better Practice Guide* (Sustainability Victoria, 2019)
- *Recycling Victoria a New Economy* (Department of Environment, Land, Water and Planning, February 2020*)*

## 30 ZONES

19/01/2006
VC37

This section sets out the zones which apply in this scheme.

## 31 [NO CONTENT]

31/07/2018
VC148

# 32 RESIDENTIAL ZONES

19/01/2006
VC37

## 32.03 LOW DENSITY RESIDENTIAL ZONE

31/07/2018
VC148

Shown on the planning scheme map as **LDRZ** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide for low-density residential development on lots which, in the absence of reticulated sewerage, can treat and retain all wastewater.

## 32.03-1 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence. |
| **Community care accommodation** | Must meet the requirements of Clause 52.22-2. |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 2 animals. |
| **Dwelling (other than Bed and breakfast)** | Must be the only dwelling on the lot.<br>Must meet the requirements of Clause 32.03-2. |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Medical centre** | The gross floor area of all buildings must not exceed 250 square metres.<br>The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Racing dog husbandry** | Must be no more than 2 animals. |
| **Railway** | |
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Must meet the requirements of Clause 32.03-2.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Accommodation (other than Community care accommodation, Dwelling and Small second dwelling)** | |
| **Agriculture (other than Animal production, Apiculture, Domestic animal husbandry and Racing dog husbandry)** | |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Car wash** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Convenience restaurant** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Convenience shop** | |
| **Domestic animal boarding** | |
| **Domestic animal husbandry (other than Domestic animal boarding) – if the Section 1 condition is not met** | Must be no more than 5 animals. |
| **Dwelling (other than Bed and breakfast) – if the Section 1 condition is not met** | Must result in no more than two dwellings on the lot.<br>Must meet the requirements of Clause 32.03-2. |
| **Food and drink premises (other than Convenience restaurant)** | |
| **Grazing animal production** | |
| **Leisure and recreation (other than Informal outdoor recreation and Motor racing track)** | |
| **Market** | |
| **Place of assembly (other than Amusement parlour, Carnival, Cinema based entertainment facility, Circus and Nightclub)** | |
| **Plant nursery** | |
| **Service station** | The site must either:<br>▪ Adjoin a commercial zone or industrial zone.<br>▪ Adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3.<br>The site must not exceed either: |

| Use | Condition |
|---|---|
| | ▪ 3000 square metres.<br>▪ 3600 square metres if it adjoins on two boundaries a road in a Transport Zone 2 or a Transport Zone 3. |
| **Store** | Must be in a building, not a dwelling, and used to store equipment, goods, or motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 – Prohibited

| Use |
|---|
| **Amusement parlour** |
| **Animal production (other than Grazing animal production)** |
| **Cinema based entertainment facility** |
| **Extractive industry** |
| **Industry (other than Automated collection point and Car wash)** |
| **Motor racing track** |
| **Nightclub** |
| **Office (other than Medical centre)** |
| **Retail premises (other than Convenience shop, Food and drink premises, Market and Plant nursery)** |
| **Saleyard** |
| **Small second dwelling - if the Section 1 condition is not met** |
| **Transport terminal** |
| **Warehouse (other than Store)** |

## 32.03-2 Use for one or two dwellings, or a small second dwelling

14/12/2023
VC253

A lot used for one or two dwellings or a small second dwelling must meet the following requirements:

- Each dwelling or small second dwelling must be connected to reticulated sewerage, if available. If reticulated sewerage is not available, all wastewater from each dwelling must be treated and retained within the lot in accordance with the requirements in the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system.

- Each dwelling or small second dwelling must be connected to a reticulated potable water supply or have an alternative potable water supply, with appropriate storage capacity.
- Each dwelling or small second dwelling must be connected to a reticulated electricity supply or have an alternative energy supply.

## 32.03-3 Subdivision

14/12/2023
VC253

### Permit requirement

A permit is required to subdivide land.

Each lot must be at least the area specified for the land in a schedule to this zone. Any area specified must be at least:

- 0.4 hectare for each lot where reticulated sewerage is not connected. If no area is specified each lot must be at least 0.4 hectare.
- 0.2 hectare for each lot with connected reticulated sewerage. If no area is specified each lot must be at least 0.2 hectare.

A permit may be granted to create lots smaller than 0.4 hectare if the subdivision:

- Excises land which is required for a road or a utility installation.
- Provides for the re-subdivision of existing lots and the number of lots is not increased.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>- The area of either lot is reduced by less than 15 percent.<br>- The general direction of the common boundary does not change. | Clause 59.01 |

## 32.03-4 Buildings and works

20/04/2026
VC307

A permit is required to construct or carry out any of the following:

- A building or works associated with a use in Section 2 of clause 32.03-1.
- An outbuilding which has dimensions greater than those specified in a schedule to this zone.

This does not apply to structural changes to a dwelling provided the size of the dwelling is not increased or the number of dwellings is not increased.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct a building or construct or carry out works where:<br>▪ The building or works are not associated with a dwelling, primary school or secondary school and have an estimated cost of up to $150,000; or<br>▪ The building or works are associated with a primary school or secondary school and have an estimated cost of up to $700,000; and<br>▪ The requirements in the following standards of Clause 54 are met, where the land adjoins land in a residential zone used for residential purposes:<br>– clause 54.02-3 Side and rear setbacks.<br>– clause 54.02-4 Walls on boundaries.<br>– clause 54.04-1 Daylight to existing windows.<br>– clause 54.04-2 Existing north-facing windows.<br>– clause 54.04-3 Overshadowing secluded open space.<br>– clause 54.04-4 Overlooking.<br>– clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | Clause 59.04 |

### Transitional provisions

Clauses 32.03-4, 54 and 59.04 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.03-5 Application requirements

01/07/2021
VC203

### Subdivision

An application must be accompanied by a site analysis, documenting the site in terms of land form, vegetation coverage and the relationship with surrounding land, and a report explaining how the proposed subdivision has responded to the site analysis. The report must:

- In the absence of reticulated sewerage, include a Land Capability Assessment on the risks to human health and the environment of an on-site wastewater management system constructed, installed or altered on the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017*.
- Show for each lot:
  - A building envelope and driveway to the envelope.
  - Existing vegetation.
  - In the absence of reticulated sewerage, an effluent disposal area.
- Show how the proposed subdivision relates to the existing or likely use and development of adjoining and nearby land.
- If a staged subdivision, show how the balance of the land may be subdivided.

## 32.03-6 Decision guidelines

01/01/2024
VC250

### General

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.

### Subdivision

- The protection and enhancement of the natural environment and character of the area including the retention of vegetation and faunal habitat and the need to plant vegetation along waterways, gullies, ridgelines and property boundaries.
- The availability and provision of utility services, including sewerage, water, drainage, electricity and telecommunications.
- In the absence of reticulated sewerage:
  - The capability and suitability of the lot to treat and retain all wastewater as determined by a Land Capability Assessment on the risks to human health and the environment of an on-site wastewater management system constructed, installed, or altered on the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017*.
  - The benefits of restricting the size of lots to generally no more than 2 hectares to enable lots to be efficiently maintained without the need for agricultural techniques and equipment.
- The relevant standards of Clauses 56.07-1 to 56.07-4.

## 32.03-7 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 3.

29/11/2019
C198case

# SCHEDULE 1 TO CLAUSE 32.03 LOW DENSITY RESIDENTIAL ZONE

Shown on the planning scheme map as **LDRZ1.**

## 1.0 Subdivision requirements

29/11/2019
C198case

| | Land | Area (hectares) |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 0.4 hectares |

## 2.0 Outbuilding permit requirements

29/11/2019
C198case

| Dimensions above which a permit is required to construct an outbuilding (square metres) |
|---|
| None specified |

29/11/2019
C198case

## SCHEDULE 2 TO CLAUSE 32.03 LOW DENSITY RESIDENTIAL ZONE

Shown on the planning scheme map as **LDRZ2.**

### 1.0 Subdivision requirements

29/11/2019
C198case

| | Land | Area (hectares) |
|---|---|---|
| Minimum subdivision area (hectares) | All land | ▪ 0.4 hectares where reticulated sewerage is not connected to lots<br>▪ 0.2 hectares where reticulated sewerage is connected to lots |

### 2.0 Outbuilding permit requirements

29/11/2019
C198case

| Dimensions above which a permit is required to construct an outbuilding (square metres) |
|---|
| 120 square metres |

## 32.04 MIXED USE ZONE

31/07/2018
VC148

Shown on the planning scheme map as **MUZ** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide for a range of residential, commercial, industrial and other uses which complement the mixed-use function of the locality.

To provide for housing at higher densities.

To encourage development that responds to the existing or preferred neighbourhood character of the area.

To facilitate the use, development and redevelopment of land in accordance with the objectives specified in a schedule to this zone.

## 32.04-1 Objectives

15/07/2013
VC100

A schedule to this zone may contain objectives to be achieved for the area.

## 32.04-2 Table of uses

14/01/2025
VC237

### Section 1 – Permit not required

| Use | Condition |
|---|---|
| **Art gallery** | |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence. |
| **Community care accommodation** | Must meet the requirements of Clause 52.22-2. |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 2 animals. |
| **Dwelling (other than Bed and breakfast)** | |
| **Food and drink premises** | The leasable floor area must not exceed 150 square metres. |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Medical centre** | The gross floor area must not exceed 250 square metres. |
| **Museum** | |
| **Office (other than Medical centre)** | The leasable floor area must not exceed 250 square metres. |

| Use | Condition |
|---|---|
| **Place of worship** | The gross floor area of all buildings must not exceed 250 square metres. |
| **Racing dog husbandry** | Must be no more than 2 animals. |
| **Railway** | |
| **Residential aged care facility** | |
| **Rooming house** | Must meet the requirements of Clause 52.23-2. |
| **Shop (other than Adult sex product shop)** | The leasable floor area must not exceed 150 square metres. |
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Accommodation (other than Community care accommodation, Dwelling, Residential aged care facility, Rooming house and Small second dwelling)** | |
| **Agriculture (other than Animal production, Apiculture, Domestic animal husbandry and Racing dog husbandry)** | |
| **Container deposit scheme centre** | |
| **Domestic animal boarding** | |
| **Domestic animal husbandry (other than Domestic animal boarding) – if the Section 1 condition is not met** | Must be no more than 5 animals. |
| **Grazing animal production** | |
| **Industry (other than Materials recycling and Transfer station)** | Must not be a purpose listed in the table to Clause 53.10. |
| **Leisure and recreation (other than Informal outdoor recreation)** | |
| **Place of assembly (other than Art gallery, Carnival, Circus, Museum and Place of worship)** | |
| **Retail premises (other than Food and drink premises and Shop)** | |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | Must not be a purpose listed in the table to Clause 53.10. |

| Use | Condition |
|---|---|
| **Warehouse** | Must not be a purpose listed in the table to Clause 53.10. |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Adult sex product shop** |
| **Animal production (other than Grazing animal production)** |
| **Extractive industry** |
| **Materials recycling** |
| **Small second dwelling – if the Section 1 condition is not met** |
| **Transfer station (other than Automated collection point and Container deposit scheme centre)** |

## 32.04-3 Use for industry, service station and warehouse

31/07/2018
VC148

### Amenity of the neighbourhood

The use of land for an industry, service station or warehouse must not adversely affect the amenity of the neighbourhood, including through:

- The transport of materials or goods to or from the land.
- The appearance of any stored materials or goods.
- Traffic generated by the use.
- Emissions from the land.

## 32.04-4 Subdivision

16/10/2025
VC288

### Permit requirement

A permit is required to subdivide land.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### Clause 56 requirement

An application to subdivide land, other than an application to subdivide land into lots each containing an existing dwelling or car parking space, must meet the requirements of Clause 56 and:

- Must meet all of the objectives included in the clauses specified in the following table.
- Should meet all of the standards included in the clauses specified in the following table.

| Class of subdivision | Objectives and standards to be met |
|---|---|
| 60 or more lots | All except clause 56.03-5. |

| Class of subdivision | Objectives and standards to be met |
|---|---|
| 16 – 59 lots | All except clauses 56.03-1 to 56.03-3, 56.03-5, 56.06-1 and 56.06-3. |
| 3 – 15 lots | All except clauses 56.02-1, 56.03-1 to 56.03-4, 56.03-5 (unless the land is in the Neighbourhood Character Overlay), 56.05-2, 56.06-1, 56.06-3 and 56.06-6. |
| 2 lots | Clauses 56.03-5 (only if the land is in the Neighbourhood Character Overlay), 56.04-2, 56.04-5, 56.06-8 and 56.07-4. |

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Subdivide land to realign the common boundary between two lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within five years prior to the application for a permit for subdivision. | Clause 59.02 |
| Subdivide land into two lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land:<br>– Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | Clause 59.02 |
| Subdivide land into two lots if:<br>▪ A permit has been issued under a provision of a residential zone to construct up to two dwellings on the land and the permit has not expired.<br>▪ Each lot will contain either:<br>– one existing dwelling; or<br>– one dwelling permitted to be constructed in accordance with the permit. | Clause 59.02 |
| Subdivide land into two lots for residential development if:<br>▪ The subdivision creates at least one vacant lot. | Clause 59.11 |

| Class of application | Provision |
|---|---|
| ▪ The land does not contain native vegetation if it has an area of 0.4 hectares or more.<br>▪ The land is not located in an Environmental Audit Overlay, Neighbourhood Character Overlay or an area that is a designated bushfire prone area as determined under section 192A of the *Building Act 1993*. | |

## 32.04-5 Construction and extension of one dwelling on a lot

08/09/2025
VC282

### Permit requirement

A permit is required to construct or extend one dwelling on a lot of less than 300 square metres.

A development must meet the requirements of Clause 54.

### No permit required

No permit is required to:

- Construct or carry out works normal to a dwelling.
- Construct or extend an out-building (other than a garage or carport) on a lot provided the gross floor area of the out-building does not exceed 10 square metres and the maximum building height is not more than 3 metres above ground level.
- Make structural changes to a dwelling provided the size of the dwelling is not increased or the number of dwellings is not increased.

### VicSmart applications

Subject to clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct or extend a dwelling on a lot less than 300 square metres if the development meets the following standards of Clause 54:<br>▪ clause 54.02-1 Street setback.<br>▪ clause 54.02-2 Building height.<br>▪ clause 54.02-3 Side and rear setbacks.<br>▪ clause 54.02-4 Walls on boundaries.<br>▪ clause 54.02-5 Site coverage.<br>▪ clause 54.02-6 Tree canopy.<br>▪ clause 54.02-7 Front fences.<br>▪ clause 54.04-1 Daylight to existing windows.<br>▪ clause 54.04-2 Existing north-facing windows.<br>▪ clause 54.04-3 Overshadowing secluded open space.<br>▪ clause 54.04-4 Overlooking.<br>▪ clause 54.05-2 Overshadowing domestic solar energy systems. | Clause 54 |

| Class of application | Provision |
|---|---|
| If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | |

### Transitional provisions

Clauses 32.04-5, 54 and 59.14 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.04-6 Construction and extension of a small second dwelling on a lot

08/09/2025
VC282

### Permit requirement

A permit is required to construct or extend a small second dwelling on a lot less than 300 square metres.

A development must meet the requirements of Clause 54.

VicSmart applications

Subject to clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct or extend a small second dwelling on a lot less than 300 square metres if the development meets the following standards of Clause 54:<br>▪ clause 54.02-1 Street setback<br>▪ clause 54.02-2 Building height<br>▪ clause 54.02-3 Side and rear setbacks<br>▪ clause 54.02-4 Walls on boundaries<br>▪ clause 54.02-5 Site coverage<br>▪ clause 54.02-6 Tree canopy<br>▪ clause 54.02-8 Building setback for small second dwellings<br>▪ clause 54.03-5 Safety and accessibility for small second dwellings<br>▪ clause 54.04-1 Daylight to existing windows<br>▪ clause 54.04-2 Existing north-facing windows<br>▪ clause 54.04-3 Overshadowing secluded open space<br>▪ clause 54.04-4 Overlooking<br>▪ clause 54.05-2 Overshadowing domestic solar energy systems<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | Clause 54 |

### Transitional provisions

Clauses 32.04-6, 54 and 59.14 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.04-7 Construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings

16/04/2026
VC300

### Permit requirement

A permit is required to:

- Construct a dwelling if there is at least one dwelling existing on the lot.
- Construct two or more dwellings on a lot.
- Extend a dwelling if there are two or more dwellings on the lot.
- Construct or extend a dwelling if it is on common property.
- Construct or extend a residential building.

A permit is required to construct or extend a front fence within 3 metres of a street if:

- The fence is associated with two or more dwellings on a lot or a residential building, and
- The fence exceeds the maximum height specified in clause 55.02-8.

A development of three storeys or less, excluding a basement, must meet the requirements of clause 55.

A development of four to six storeys, excluding a basement, must meet the requirements of clause 57.

An apartment development of seven storeys or more, excluding a basement, must meet the requirements of clause 58.

### Transitional provisions

Clause 55 of this scheme, as in force immediately before the approval date of Amendment VC136, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 58 does not apply to:

- An application for a planning permit lodged before the approval date of Amendment VC136.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before the approval date of Amendment VC136.

Clauses 55 and 58 of this scheme, as in force immediately before the approval date of Amendment VC174, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 55 of this planning scheme, as in force immediately before the approval date of Amendment VC267, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clauses 32.04-7, 57 and 58 of this planning scheme, as in force immediately before the commencement of Amendment VC300, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct one dwelling if there is no more than one dwelling existing on a lot, extend a dwelling if there are two dwellings on a lot, or construct two dwellings on a lot, if the development meets the following standards of clause 55:<br>▪ clause 55.02-1 Street setback<br>▪ clause 55.02-2 Building height<br>▪ clause 55.02-3 Side and rear setbacks<br>▪ clause 55.02-4 Walls on boundaries<br>▪ clause 55.02-5 Site coverage<br>▪ clause 55.02-6 Access<br>▪ clause 55.02-7 Tree canopy<br>▪ clause 55.02-8 Front fences<br>▪ clause 55.04-1 Daylight to existing windows<br>▪ clause 55.04-2 Existing north-facing windows<br>▪ clause 55.04-3 Overshadowing secluded open space<br>▪ clause 55.04-4 Overlooking<br>▪ clause 55.05-2 Overshadowing domestic solar energy systems<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the clause 55 standard, the requirement in the schedule to the zone applies and must be met. | Clause 55 |
| Construct or extend a front fence within 3 metres of a street if the fence is associated with two or more dwellings on a lot or a residential building. | Clause 59.03 |

## 32.04-8 Requirements of clause 54, clause 55 and clause 57

16/04/2026
VC300

A schedule to this zone may specify the requirements of:

- Standards A2-1, A2-5, A2-7 and A3-2 of clause 54 of this scheme.
- Standards B2-1, B2-5, B2-8 and B3-5 of clause 55 of this scheme.
- Standards E2-1, E2-4 and E2-7 of clause 57 of this scheme.

If a requirement is not specified in a schedule to this zone, the requirement set out in the relevant standard of clause 54, clause 55 or clause 57 applies.

## 32.04-9 Residential aged care facility

14/12/2023
VC253

### Permit requirements

A permit is required to construct a building or construct or carry out works for a residential aged care facility.

A development must meet the requirements of Clause 53.17 - Residential aged care facility.

## 32.04-10 Buildings and works associated with a Section 2 use

20/04/2026
VC307

A permit is required to construct a building or construct or carry out works for a use in Section 2 of Clause 32.04-2.

### VicSmart applications

Subject to clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct a building or construct or carry out works where:<br>▪ The building or works are not associated with a dwelling, primary school or secondary school and have an estimated cost of up to $150,000; or<br>▪ The building or works are associated with a primary school or secondary school and have an estimated cost of up to $700,000; and<br>▪ The requirements in the following standards of Clause 54 are met, where the land adjoins land in a residential zone used for residential purposes:<br>– clause 54.02-3 Side and rear setbacks.<br>– clause 54.02-4 Walls on boundaries.<br>– clause 54.04-1 Daylight to existing windows.<br>– clause 54.04-2 Existing north-facing windows.<br>– clause 54.04-3 Overshadowing secluded open space.<br>– clause 54.04-4 Overlooking.<br>– clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | Clause 59.04 |

### Transitional provisions

Clauses 32.04-10, 54 and 59.04 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.04-11 Buildings on lots that abut another residential zone

02/04/2025
VC276

Any buildings or works constructed on a lot that abuts land which is in a General Residential Zone, Neighbourhood Residential Zone, Residential Growth Zone, or Township Zone must meet the requirements of Clauses 55.02-3, 55.02-4, 55.04-1, 55.04-3, 55.04-4 and 55.05-2 along that boundary.

This does not apply to a building or works for a residential aged care facility.

## 32.04-12 Maximum building height requirement

14/12/2023
VC253

A building must not be constructed that exceeds the maximum building height specified in a schedule to this zone.

A building may exceed the maximum building height specified in a schedule to this zone if:

- It replaces an immediately pre-existing building and the new building does not exceed the building height of the pre-existing building.
- There are existing buildings on both abutting allotments that face the same street and the new building does not exceed the building height of the lower of the existing buildings on the abutting allotments.
- It is on a corner lot abutted by lots with existing buildings and the new building does not exceed the building height of the lower of the existing buildings on the abutting allotments.
- It is constructed pursuant to a valid building permit that was in effect prior to the introduction of this provision.
- It is a residential aged care facility and the maximum building height in the schedule to the zone is less than 16 metres.

An extension to an existing building may exceed the maximum building height specified in a schedule to this zone if it does not exceed the building height of the existing building.

A building may exceed the maximum building height by up to 1 metre if the slope of the natural ground level, measured at any cross section of the site of the building wider than 8 metres, is greater than 2.5 degrees.

The maximum building height requirement in this zone or a schedule to this zone applies whether or not a planning permit is required for the construction of a building.

### Building height if land is subject to inundation

If the land is in a Special Building Overlay, Land Subject to Inundation Overlay or is land liable to inundation the maximum building height specified in the zone or schedule to the zone is the vertical distance from the minimum floor level determined by the relevant drainage authority or floodplain management authority to the roof or parapet at any point.

## 32.04-13 Application requirements

14/01/2025
VC237

### General

Any application requirements specified in a schedule to this zone.

### Use for industry and warehouse

Unless the circumstances do not require, an application to use land for an industry or warehouse must be accompanied by the following information:

- The purpose of the use and the types of activities to be carried out.
- The type and quantity of materials and goods to be stored, processed or produced.

- Whether a Development Licence, Operating Licence, Permit or Registration is required from the Environment Protection Authority.
- Whether a notification under the Occupational Health and Safety Regulations 2017 is required, a licence under the *Dangerous Goods Act 1985* is required, or a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022 is exceeded.
- How land not required for immediate use is to be maintained.
- The likely effects, if any, on the neighbourhood, including noise levels, traffic, air-borne emissions, emissions to land and water, light spill, glare, solar access and hours of operation (including the hours of delivery and dispatch of materials and goods).

**Buildings and works associated with a Section 2 use**

An application to construct a building or construct or carry out works must be accompanied by the following information, as appropriate:

- A site analysis and descriptive statement explaining how the proposal responds to the site and its context.
- Plans drawn to scale and dimensioned which show:
  - The layout of proposed buildings and works.
  - An elevation of the building design and height.
  - Setbacks to property boundaries.
  - All proposed access and pedestrian areas.
  - All proposed driveway, car parking and loading areas.
  - Existing vegetation and proposed landscape areas.
  - The location of easements and services.

## 32.04-14 Exemption from notice and review

16/04/2026
VC300

**Subdivision**

An application for subdivision is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

**Construction and extension of one dwelling on a lot**

An application under clause 32.04-5 is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 54.02-1, 54.02-2, 54.02-3, 54.02-4, 54.02-5, 54.02-6, 54.02-7, 54.04 and 54.05-2 are met.

**Construction and extension of a small second dwelling on a lot**

An application under clause 32.04-6 is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 54.02-1, 54.02-2, 54.02-3, 54.02-4, 54.02-5, 54.02-6, 54.02-8, 54.03-5, 54.04 and 54.05-2 are met.

**Construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings**

An application under clause 32.04-7 for a development of three storeys or less, excluding a basement, is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 55.02, 55.04-1, 55.04-2, 55.04-3, 55.04-4 and 55.05-2 are met.

An application under clause 32.04-7 for a development of four to six storeys, excluding a basement, is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 57.02 and 57.04 are met.

### Other applications

A schedule to this zone may specify that an application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 32.04-15 Decision guidelines

16/04/2026
VC300

### General

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The objectives set out in a schedule to this zone.
- Any other decision guidelines specified in a schedule to this zone.
- The impact of overshadowing on existing rooftop solar energy systems on dwellings on adjoining lots in a Housing Choice and Transport Zone, Mixed Use Zone or Residential Growth Zone.

### Use for industry, service station and warehouse

- The effect that existing uses on adjoining or nearby land may have on the proposed use.
- The design of buildings, including provision for solar access.
- The availability and provision of utility services.
- The effect of traffic to be generated by the use.
- The interim use of those parts of the land not required for the proposed use.
- Whether the use is compatible with adjoining and nearby land uses.
- For non-residential uses, the proposed hours of operation, noise and any other likely off-site amenity impacts.

### Subdivision

- The pattern of subdivision and its effect on the spacing of buildings.
- For subdivision of land for residential development, the objectives and standards of clause 56.

### Construction and extension of one dwelling on a lot and a small second dwelling

- The applicable objectives, standards and decision guidelines of clause 54.

### Construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings

- For two or more dwellings on a lot, dwellings on common property and residential buildings of three storeys or less, excluding a basement, the objectives, standards and decision guidelines of clause 55.
- For two or more dwellings on a lot, dwellings on common property and residential buildings of four to six storeys, excluding a basement, the objectives, standards and decision guidelines of clause 57.
- For an apartment development of seven storeys or more, excluding a basement, the objectives, standards and decisions guidelines of clause 58.

## 32.04-16 Signs

14/12/2023
VC253

Sign requirements are at Clause 52.05. This zone is in Category 3 unless a schedule to this zone specifies a different category.

02/12/2022
C259case

# SCHEDULE TO CLAUSE 32.04 MIXED USE ZONE

Shown on the planning scheme map as **MUZ**.

**CASEY MIXED USE AREAS**

## 1.0 Objectives

02/12/2022
C259case

None specified.

## 2.0 Clause 54, Clause 55 and Clause 57 requirements

17/04/2026
VC308

| | Standard | Requirement |
|---|---|---|
| **Minimum street setback** | A2-1 | None specified |
| | B2-1 | None specified |
| | E2-1 | None specified |
| **Site coverage** | A2-5 | None specified |
| | B2-5 | None specified |
| | E2-4 | None specified |
| **Private open space** | A3-2 | None specified |
| | B3-5 | None specified |
| **Front fences** | A2-7 and B2-8 | None specified |
| | E2-7 | None specified |

## 3.0 Maximum building height requirement

02/12/2022
C259case

None specified.

## 4.0 Exemption from notice and review

02/12/2022
C259case

None specified.

## 5.0 Application requirements

02/12/2022
C259case

None specified.

## 6.0 Decision guidelines

02/12/2022
C259case

None specified.

## 7.0 Signs

02/12/2022
C259case

None specified.

## 32.05 TOWNSHIP ZONE

31/03/2025
VC267

Shown on the planning scheme map as **TZ** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide for residential development and a range of commercial, industrial and other uses in small towns.

To encourage development that is responsive to the neighbourhood character of the area.

To allow educational, recreational, religious, community and a limited range of other non-residential uses to serve local community needs in appropriate locations.

## 32.05-1 Neighbourhood character objectives

27/03/2017
VC110

A schedule to this zone may contain the neighbourhood character objectives to be achieved for the area.

## 32.05-2 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence. |
| **Community care accommodation** | Must meet the requirements of Clause 52.22-2. |
| **Domestic animal husbandry** | Must be no more than 2 animals. |
| **Dwelling (other than Bed and breakfast)** | Must meet the requirements of Clause 32.05-3. |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Medical centre** | The gross floor area of all buildings must not exceed 250 square metres. |
| **Place of worship** | The gross floor area of all buildings must not exceed 250 square metres. |
| **Racing dog husbandry** | Must be no more than 2 animals. |
| **Railway** | |
| **Residential aged care facility** | |
| **Rooming house** | Must meet the requirements of Clause 52.23-2. |

| Use | Condition |
|---|---|
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Must meet the requirements of Clause 32.05-3.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 – Permit required

| Use | Condition |
|---|---|
| **Accommodation (other than Community care accommodation, Dwelling, Residential aged care facility, Rooming house and Small second dwelling)** | |
| **Agriculture (other than Animal production, Apiculture, Domestic animal husbandry and Racing dog husbandry)** | |
| **Domestic animal husbandry (other than Domestic animal boarding) – if the Section 1 condition is not met** | Must be no more than 5 animals. |
| **Grazing animal production** | |
| **Industry (other than Transfer station and Refuse disposal)** | Must not be a purpose listed in the table to Clause 53.10. |
| **Leisure and recreation (other than Informal outdoor recreation and Motor racing track)** | |
| **Office (other than Medical centre)** | |
| **Place of assembly (other than Carnival, Circus and Place of worship)** | |
| **Retail premises (other than Adult sex product shop)** | |
| **Transfer station (other than Automated collection point)** | Must meet the threshold distance requirements in the table to Clause 53.10. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | Must not be a purpose listed in the table to Clause 53.10. |
| **Warehouse** | Must not be a purpose listed in the table to Clause 53.10. |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| Adult sex product shop |
| Animal production (other than Grazing animal production) |
| Dwelling – if the Section 1 condition is not met |
| Extractive industry |
| Motor racing track |
| Refuse disposal |
| Saleyard |
| Small second dwelling – if the Section 1 condition is not met |

## 32.05-3 Use for a dwelling or a small second dwelling

14/12/2023
VC253

A lot used for a dwelling or small second dwelling must meet the following requirements:

- Each dwelling or small second dwelling must be connected to reticulated sewerage, if available. If reticulated sewerage is not available, all wastewater from each dwelling must be treated and retained within the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system.
- Each dwelling or small second dwelling must be connected to a reticulated potable water supply or have an alternative potable water supply, with appropriate storage capacity.
- Each dwelling or small second dwelling must be connected to a reticulated electricity supply or have an alternative energy supply.

## 32.05-4 Use for industry and warehouse

27/03/2017
VC110

### Amenity of the neighbourhood

The use of land for an industry or warehouse must not adversely affect the amenity of the neighbourhood, including through:

- The transport of materials or goods to or from the land.
- The appearance of any stored materials or goods.
- Traffic generated by the use.
- Emissions from the land.

## 32.05-5 Subdivision

16/10/2025
VC288

### Permit requirement

A permit is required to subdivide land.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### Clause 56 requirement

An application to subdivide land, other than an application to subdivide land into lots each containing an existing dwelling or car parking space, must meet the requirements of Clause 56 and:

- Must meet all of the objectives included in the clauses specified in the following table.
- Should meet all of the standards included in the clauses specified in the following table.

| Class of subdivision | Objectives and standards to be met |
|---|---|
| 16 or more lots | Clauses 56.02-1, 56.03-5, 56.04-2 to 56.04-5, 56.05-1, 56.05-2, 56.06-2, 56.06-4, 56.06-5, 56.06-7, 56.06-8 and 56.07-1 to 56.09-4. |
| 3 – 15 lots | Clauses 56.03-5 (only if the land is in the Neighbourhood Character Overlay), 56.04-2 to 56.04-5, 56.05-1, 56.06-2, 56.06-4, 56.06-5, 56.06-7 and 56.06-8 to 56.09-4. |
| 2 lots | Clauses 56.03-5 (only if the land is in the Neighbourhood Character Overlay), 56.04-2, 56.04-5, 56.06-8 and 56.07-4. |

Each lot must be provided with reticulated sewerage, if available. If reticulated sewerage is not available, the application must be accompanied by:

- In the absence of reticulated sewerage, include a Land Capability Assessment on the risks to human health and the environment of an on-site wastewater management system constructed, installed or altered on the lot in accordance with the Environment Protection Regulations under the *Environment Protection Act 2017*.
- A plan which shows a building envelope and effluent disposal area for each lot.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Subdivide land to realign the common boundary between two lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within five years prior to the application for a permit for subdivision. | Clause 59.02 |
| Subdivide land into two lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land: | Clause 59.02 |

| Class of application | Provision |
|---|---|
| – Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | |
| Subdivide land into two lots if:<br>▪ A permit has been issued under a provision of a residential zone to construct up to two dwellings on the land and the permit has not expired.<br>▪ Each lot will contain either:<br>– one existing dwelling; or<br>– one dwelling permitted to be constructed in accordance with the permit. | Clause 59.02 |
| Subdivide land into two lots for residential development if:<br>▪ The subdivision creates at least one vacant lot.<br>▪ The land does not contain native vegetation if it has an area of 0.4 hectares or more.<br>▪ The land is not located in an Environmental Audit Overlay, Neighbourhood Character Overlay or an area that is a designated bushfire prone area as determined under section 192A of the *Building Act 1993*.<br>▪ The land is connected to reticulated sewerage. | Clause 59.11 |

## 32.05-6 Construction and extension of one dwelling on a lot

08/09/2025
VC282

### Permit requirement

A permit is required to construct or extend one dwelling on a lot less than 300 square metres.

A permit is required to construct or extend a front fence within 3 metres of a street if the fence is associated with one dwelling on a lot less than 300 square metres and the fence exceeds the maximum height specified in Clause 54.02-7.

A development must meet the requirements of Clause 54.

### No permit required

No permit is required to:

- Construct or carry out works normal to a dwelling.
- Construct or extend an out-building (other than a garage or carport) on a lot provided the gross floor area of the out-building does not exceed 10 square metres and the maximum building height is not more than 3 metres above ground level.
- Make structural changes to a dwelling provided the size of the dwelling is not increased or the number of dwellings is not increased.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct or extend a dwelling on a lot less than 300 square metres if the development meets the following standards of Clause 54:<br>▪ clause 54.02-1 Street setback.<br>▪ clause 54.02-2 Building height.<br>▪ clause 54.02-3 Side and rear setbacks.<br>▪ clause 54.02-4 Walls on boundaries.<br>▪ clause 54.02-5 Site coverage<br>▪ clause 54.02-6 Tree canopy.<br>▪ clause 54.02-7 Front fences.<br>▪ clause 54.04-1 Daylight to existing windows.<br>▪ clause 54.04-2 Existing north-facing windows.<br>▪ clause 54.04-3 Overshadowing secluded open space.<br>▪ clause 54.04-4 Overlooking.<br>▪ clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | Clause 54 |
| Construct or extend a front fence within 3 metres of a street if the fence is associated with one dwelling on a lot less than 300 square metres. | Clause 59.03 |

### Transitional provisions

Clauses 32.05-6, 54 and 59.14 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.05-7 Construction and extension of a small second dwelling on a lot

08/09/2025
VC282

### Permit requirement

A permit is required to construct a building, construct or carry out works for a small second dwelling on a lot of less than 300 square metres.

A development must meet the requirements of Clause 54.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct or extend a small second dwelling on a lot less than 300 square metres if the development meets the following standards of Clause 54: | Clause 54 |

| Class of application | Provision |
|---|---|
| ▪ clause 54.02-1 Street setback.<br>▪ clause 54.02-2 Building height.<br>▪ clause 54.02-3 Side and rear setbacks.<br>▪ clause 54.02-4 Walls on boundaries.<br>▪ clause 54.02-5 Site coverage.<br>▪ clause 54.02-6 Tree canopy.<br>▪ clause 54.02-8 Building setback for small second dwellings.<br>▪ clause 54.03-5 Safety and accessibility for small second dwellings.<br>▪ clause 54.04-1 Daylight to existing windows.<br>▪ clause 54.04-2 Existing north-facing windows.<br>▪ clause 54.04-3 Overshadowing secluded open space.<br>▪ clause 54.04-4 Overlooking.<br>▪ clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | |

### Transitional provisions

Clauses 32.05-7, 54 and 59.14 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.05-8 Construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings

16/04/2026
VC300

### Permit requirement

A permit is required to:

- Construct a dwelling if there is at least one dwelling existing on the lot.
- Construct two or more dwellings on a lot.
- Extend a dwelling if there are two or more dwellings on the lot.
- Construct or extend a dwelling if it is on common property.
- Construct or extend a residential building.

A permit is required to construct or extend a front fence within 3 metres of a street if:

- The fence is associated with two or more dwellings on a lot or a residential building, and
- The fence exceeds the maximum height specified in clause 55.02-8.

A development of three storeys or less, excluding a basement, must meet the requirements of clause 55.

A development of four to six storeys, excluding a basement, within the urban growth boundary in metropolitan Melbourne, must meet the requirements of clause 57.

An apartment development of seven storeys or more, excluding a basement, must meet the requirements of clause 58.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct one dwelling if there is no more than one dwelling existing on a lot, extend a dwelling if there are two dwellings on a lot, or construct two dwellings on a lot, if the development meets the following standards of clause 55:<br>▪ clause 55.02-1 Street setback<br>▪ clause 55.02-2 Building height<br>▪ clause 55.02-3 Side and rear setbacks<br>▪ clause 55.02-4 Walls on boundaries<br>▪ clause 55.02-5 Site coverage<br>▪ clause 55.02-6 Access<br>▪ clause 55.02-7 Tree canopy<br>▪ clause 55.02-8 Front fences<br>▪ clause 55.04-1 Daylight to existing windows<br>▪ clause 55.04-2 Existing north-facing windows<br>▪ clause 55.04-3 Overshadowing secluded open space<br>▪ clause 55.04-4 Overlooking<br>▪ clause 55.05-2 Overshadowing domestic solar energy systems<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the clause 55 standard, the requirement in the schedule to the zone applies and must be met. | Clause 55 |
| Construct or extend a front fence within 3 metres of a street if the fence is associated with two or more dwellings on a lot or a residential building. | Clause 59.03 |

### Transitional provisions

Clause 55 of this scheme, as in force immediately before the approval date of Amendment VC136, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 58 does not apply to:

- An application for a planning permit lodged before the approval date of Amendment VC136.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before the approval date of Amendment VC136.

Clauses 55 and 58 of this scheme, as in force immediately before the approval date of Amendment VC174, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 55 of this planning scheme, as in force immediately before the approval date of Amendment VC267, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clauses 32.05-8, 57 and 58 of this planning scheme, as in force immediately before the commencement of Amendment VC300, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.05-9 Requirements of clause 54, clause 55 and clause 57

16/04/2026
VC300

A schedule to this zone may specify the requirements of:

- Standards A2-1, A2-5, A2-7 and A3-2 of clause 54 of this scheme.
- Standards B2-1, B2-5, B2-8 and B3-5 of clause 55 of this scheme.
- Standards E2-1, E2-4 and E2-7 of clause 57 of this scheme.

If a requirement is not specified in a schedule to this zone, the requirement set out in the relevant standard of clause 54, clause 55 or clause 57 applies.

## 32.05-10 Residential aged care facility

01/01/2024
VC250

### Permit requirements

A permit is required to construct a building or construct or carry out works for a residential aged care facility.

A development must meet the requirements of Clause 53.17 - Residential aged care facility.

## 32.05-11 Buildings and works associated with a Section 2 use

20/04/2026
VC307

A permit is required to construct a building or construct or carry out works for a use in Section 2 of Clause 32.05-2.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct a building or construct or carry out works where:<br>▪ The building or works are not associated with a dwelling, primary school or secondary school and have an estimated cost of up to $150,000; or | Clause 59.04 |

| Class of application | Provision |
|---|---|
| ▪ The building or works are associated with a primary school or secondary school and have an estimated cost of up to $700,000; and<br>▪ The requirements in the following standards of Clause 54 are met, where the land adjoins land in a residential zone used for residential purposes:<br>– clause 54.02-3 Side and rear setbacks.<br>– clause 54.02-4 Walls on boundaries.<br>– clause 54.04-1 Daylight to existing windows.<br>– clause 54.04-2 Existing north-facing windows.<br>– clause 54.04-3 Overshadowing secluded open space.<br>– clause 54.04-4 Overlooking.<br>– clause 54.05-2 Overshadowing domestic solar energy systems<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | |

**Transitional provisions**

Clauses 32.05-11, 54 and 59.04 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.05-12 Maximum building height requirement for a dwelling, small second dwelling or residential building

14/12/2023
VC253

A building must not be constructed for use as a dwelling, small second dwelling or a residential building that exceeds the maximum building height specified in a schedule to this zone.

If no maximum building height is specified in a schedule to this zone, the requirement set out in the relevant standard of Clause 54 and Clause 55 applies.

A building may exceed the maximum building height specified in a schedule to this zone if:

- It replaces an immediately pre-existing building and the new building does not exceed the building height of the pre-existing building.
- There are existing buildings on both abutting allotments that face the same street and the new building does not exceed the building height of the lower of the existing buildings on the abutting allotments.
- It is on a corner lot abutted by lots with existing buildings and the new building does not exceed the building height of the lower of the existing buildings on the abutting allotments.
- It is constructed pursuant to a valid building permit that was in effect prior to the introduction of this provision.

An extension to an existing building may exceed the maximum building height specified in a schedule to this zone if it does not exceed the building height of the existing building.

A building may exceed the maximum building height by up to 1 metre if the slope of the natural ground level, measured at any cross section of the site of the building wider than 8 metres, is greater than 2.5 degrees.

The maximum building height requirement in a schedule to this zone applies whether or not a planning permit is required for the construction of a building.

### Building height if land is subject to inundation

If the land is in a Special Building Overlay, Land Subject to Inundation Overlay or is land liable to inundation the maximum building height specified in the zone or schedule to the zone is the vertical distance from the minimum floor level determined by the relevant drainage authority or floodplain management authority to the roof or parapet at any point.

## 32.05-13 Application requirements

14/01/2025
VC237

### Use for industry and warehouse

Unless the circumstances do not require, an application to use land for an industry or warehouse must be accompanied by the following information:

- The purpose of the use and the types of activities to be carried out.
- The type and quantity of materials and goods to be stored, processed or produced.
- Whether a Development Licence, Operating Licence, Permit or Registration is required from the Environment Protection Authority.
- Whether a notification under the Occupational Health and Safety Regulations 2017 is required, a licence under the *Dangerous Goods Act 1985* is required, or a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022 is exceeded.
- How land not required for immediate use is to be maintained.
- The likely effects, if any, on the neighbourhood, including noise levels, traffic, air-borne emissions, emissions to land and water, light spill, glare, solar access and hours of operation (including the hours of delivery and despatch of materials and goods).
- Any other application requirements specified in a schedule to this zone.

## 32.05-14 Exemption from review

16/04/2026
VC300

### Construction and extension of one dwelling on a lot

An application under clause 32.05-6 is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 54.02-1, 54.02-2, 54.02-3, 54.02-4, 54.02-5, 54.02-6, 54.02-7, 54.04 and 54.05-2 are met.

### Construction and extension of a small second dwelling on a lot

An application under clause 32.05-7 is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 54.02-1, 54.02-2, 54.02-3, 54.02-4, 54.02-5, 54.02-6, 54.02-8, 54.03-5, 54.04 and 54.05-2 are met.

### Construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings

An application under clause 32.05-8 for a development of three storeys or less, excluding a basement, is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 55.02, 55.04-1, 55.04-2, 55.04-3, 55.04-4 and 55.05-2 are met.

An application under clause 32.05-8 for a development of four to six storeys, excluding a basement, within the urban growth boundary in metropolitan Melbourne is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 57.02 and 57.04 are met.

## 32.05-15 Decision guidelines

16/04/2026
VC300

Before deciding on an application to use land or construct a building or construct or carry out works, in addition to the decision guidelines in clause 65, the responsible authority must consider, as appropriate:

### General

- The Municipal Planning Strategy and the Planning Policy Framework.
- The objectives set out in a schedule to this zone.
- The protection and enhancement of the character of the town and surrounding area including the retention of vegetation.
- The availability and provision of utility services, including sewerage, water, drainage, electricity and telecommunications.
- In the absence of reticulated sewerage, a Land Capability Assessment on the risks to human health and the environment of an on-site wastewater management system constructed, installed or altered on the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017*.
- The design, height, setback and appearance of the proposed buildings and works including provision for solar access.
- The need for a verandah along the front or side of commercial buildings to provide shelter for pedestrians.
- Provision of car and bicycle parking and loading bay facilities and landscaping.
- The effect that existing uses on adjoining or nearby land may have on the proposed use.
- The scale and intensity of the use and development.
- The safety, efficiency and amenity effects of traffic to be generated by the proposal.
- The impact of overshadowing on existing rooftop solar energy systems on dwellings on adjoining lots in a General Residential Zone, Housing Choice and Transport Zone, Mixed Use Zone, Neighbourhood Residential Zone, Residential Growth Zone or Township Zone.
- Any other decision guidelines specified in a schedule to this zone.

### Use for industry and warehouse

Before deciding on an application to use land for an industry or warehouse, in addition to the decision guidelines in clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The effect that existing uses on adjoining or nearby land may have on the proposed use.
- The design of buildings, including provision for solar access.
- The availability and provision of utility services.
- The effect of traffic to be generated by the use.
- The interim use of those parts of the land not required for the proposed use.
- Any other decision guidelines specified in a schedule to this zone.

### Subdivision

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The pattern of subdivision and its effect on the spacing of buildings.

- For subdivision of land for residential development, the objectives and standards of clause 56.
- Any other decision guidelines specified in a schedule to this zone.

**Construction and extension of one dwelling on a lot and a small second dwelling**

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The applicable objectives, standards and decision guidelines of clause 54.
- Any other decision guidelines specified in a schedule to this zone.

**Construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings**

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- For two or more dwellings on a lot, dwellings on common property and residential buildings of three storeys or less, excluding a basement, the objectives, standards and decision guidelines of clause 55.
- For two or more dwellings on a lot, dwellings on common property and residential buildings of four to six storeys, excluding a basement, the objectives, standards and decision guidelines of clause 57.
- For an apartment development of seven storeys or more, excluding a basement, the objectives, standards and decisions guidelines of clause 58.
- Any other decision guidelines specified in a schedule to this zone.

## 32.05-16 Signs

31/03/2025
VC267

Sign requirements are at Clause 52.05. This zone is in Category 3.

02/12/2022
C259case

# SCHEDULE TO CLAUSE 32.05 TOWNSHIP ZONE

Shown on the planning scheme map as **TZ**.

**CASEY TOWNSHIPS**

## 1.0 Neighbourhood character objectives

02/12/2022
C259case

None specified.

## 2.0 Clause 54, Clause 55 and Clause 57 requirements

17/04/2026
VC308

| | Standard | Requirement |
|---|---|---|
| **Minimum street setback** | A2-1 | None specified |
| | B2-1 | None specified |
| | E2-1 | None specified |
| **Site coverage** | A2-5 | None specified |
| | B2-5 | None specified |
| | E2-4 | None specified |
| **Private open space** | A3-2 | None specified |
| | B3-5 | None specified |
| **Front fences** | A2-7 and B2-8 | None specified |
| | E2-7 | None specified |

## 3.0 Maximum building height requirement for a dwelling, small second dwelling or residential building

26/04/2024
VC252

None specified.

## 4.0 Application requirements

26/04/2024
VC252

None specified.

## 5.0 Decision guidelines

26/04/2024
VC252

None specified.

## 32.07 RESIDENTIAL GROWTH ZONE

31/07/2018
VC148

Shown on the planning scheme map as **RGZ** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide housing at increased densities in buildings up to and including four storey buildings.

To encourage a diversity of housing types in locations offering good access to services and transport including activity centres and town centres.

To encourage a scale of development that provides a transition between areas of more intensive use and development and other residential areas.

To ensure residential development achieves design objectives specified in a schedule to this zone.

To allow educational, recreational, religious, community and a limited range of other non-residential uses to serve local community needs in appropriate locations.

## 32.07-1 Design objectives

27/03/2017
VC110

A schedule to this zone must contain the design objectives to be achieved for the area.

## 32.07-2 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence. |
| **Community care accommodation** | Must meet the requirements of Clause 52.22-2. |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 2 animals. |
| **Dwelling (other than Bed and breakfast)** | |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Medical centre** | The gross floor area of all buildings must not exceed 250 square metres. |
| **Place of worship** | The gross floor area of all buildings must not exceed 250 square metres.<br>The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |

| Use | Condition |
|---|---|
| **Racing dog husbandry** | Must be no more than 2 animals. |
| **Railway** | |
| **Residential aged care facility** | |
| **Rooming house** | Must meet the requirements of Clause 52.23-2. |
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 – Permit required

| Use | Condition |
|---|---|
| **Accommodation (other than Community care accommodation, Dwelling, Residential aged care facility, Rooming house and Small second dwelling)** | |
| **Agriculture (other than Animal production, Animal training, Apiculture, Domestic animal husbandry, Horse husbandry and Racing dog husbandry)** | |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Car wash** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Convenience restaurant** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Convenience shop** | |
| **Domestic animal husbandry (other than Domestic animal boarding) – if the Section 1 condition is not met** | Must be no more than 5 animals. |
| **Food and drink premises (other than Convenience restaurant and Take away food premises)** | |
| **Grazing animal production** | |
| **Leisure and recreation (other than Informal outdoor recreation and Motor racing track)** | |
| **Market** | |

| Use | Condition |
|---|---|
| **Office (other than Medical centre)** | The land must be located within 100 metres of a commercial zone.<br>The land must have the same street frontage as the land in the commercial zone.<br>The leasable floor area must not exceed 250 square metres. |
| **Place of assembly (other than Amusement parlour, Carnival, Cinema based entertainment facility, Circus, Nightclub and Place of worship)** | |
| **Plant nursery** | |
| **Retail premises (other than Food and drink premises, Market, Plant nursery and Shop)** | The use must be associated with a use or development to which clause 53.23 (Significant residential development with affordable housing) applies. |
| **Service station** | The site must either:<br>▪ Adjoin a commercial zone or industrial zone.<br>▪ Adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3.<br>The site must not exceed either:<br>▪ 3000 square metres.<br>▪ 3600 square metres if it adjoins on two boundaries a road in a Transport Zone 2 or a Transport Zone 3. |
| **Shop (other than Adult sex product shop, Bottle shop and Convenience shop)** | The land must be located within 100 metres of a commercial zone or Mixed Use Zone.<br>The land must have the same street frontage as the land in the commercial zone or Mixed Use Zone. |
| **Store** | Must be in a building, not a dwelling, and used to store equipment, goods, or motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Take away food premises** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 – Prohibited

| Use |
|---|
| **Adult sex product shop** |

| Use |
|---|
| **Amusement parlour** |
| **Animal production (other than Grazing animal production)** |
| **Animal training** |
| **Bottle shop** |
| **Cinema based entertainment facility** |
| **Domestic animal boarding** |
| **Extractive industry** |
| **Horse husbandry** |
| **Industry (other than Automated collection point and Car wash)** |
| **Motor racing track** |
| **Nightclub** |
| **Saleyard** |
| **Small second dwelling – if the Section 1 condition is not met** |
| **Transport terminal** |
| **Warehouse (other than Store)** |

## 32.07-3 Subdivision

16/10/2025
VC288

### Permit requirement

A permit is required to subdivide land.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### Clause 56 requirement

An application to subdivide land, other than an application to subdivide land into lots each containing an existing dwelling or car parking space, must meet the requirements of Clause 56 and:

- Must meet all of the objectives included in the clauses specified in the following table.
- Should meet all of the standards included in the clauses specified in the following table.

| Class of subdivision | Objectives and standards to be met |
|---|---|
| 60 or more lots | All except clause 56.03-5. |
| 16 – 59 lots | All except clauses 56.03-1 to 56.03-3, 56.03-5, 56.06-1 and 56.06-3. |
| 3 – 15 lots | All except clauses 56.02-1, 56.03-1 to 56.03-4, 56.03-5 (unless the land is in the Neighbourhood Character Overlay), 56.05-2, 56.06-1, 56.06-3 and 56.06-6. |

| Class of subdivision | Objectives and standards to be met |
|---|---|
| 2 lots | Clauses 56.03-5 (only if the land is in the Neighbourhood Character Overlay), 56.04-2, 56.04-5, 56.06-8 and 56.07-4. |

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Subdivide land to realign the common boundary between two lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within five years prior to the application for a permit for subdivision. | Clause 59.02 |
| Subdivide land into two lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land:<br>– Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | Clause 59.02 |
| Subdivide land into two lots if:<br>▪ A permit has been issued under a provision of a residential zone to construct up to two dwellings on the land and the permit has not expired.<br>▪ Each lot will contain either:<br>– one existing dwelling; or<br>– one dwelling permitted to be constructed in accordance with the permit. | Clause 59.02 |
| Subdivide land into two lots for residential development if:<br>▪ The subdivision creates at least one vacant lot.<br>▪ The land does not contain native vegetation if it has an area of 0.4 hectares or more.<br>▪ The land is not located in an Environmental Audit Overlay, Neighbourhood Character Overlay or an area that is a designated bushfire prone area as determined under section 192A of the *Building Act 1993.* | Clause 59.11 |

## 32.07-4 Construction and extension of one dwelling on a lot

08/09/2025
VC282

### Permit requirement

A permit is required to construct or extend one dwelling on a lot less than 300 square metres.

A development must meet the requirements of Clause 54.

### No permit required

No permit is required to:

- Construct or carry out works normal to a dwelling.
- Construct or extend an out-building (other than a garage or carport) on a lot provided the gross floor area of the out-building does not exceed 10 square metres and the maximum building height is not more than 3 metres above ground level.
- Make structural changes to a dwelling provided the size of the dwelling is not increased or the number of dwellings is not increased.

### VicSmart applications

Subject to clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct or extend a dwelling on a lot less than 300 square metres if the development meets the following standards of Clause 54:<br>▪ clause 54.02-1 Street setback.<br>▪ clause 54.02-2 Building height.<br>▪ clause 54.02-3 Side and rear setbacks.<br>▪ clause 54.02-4 Walls on boundaries.<br>▪ clause 54.02-5 Site coverage<br>▪ clause 54.02-6 Tree canopy.<br>▪ clause 54.02-7 Front fences.<br>▪ clause 54.04-1 Daylight to existing windows.<br>▪ clause 54.04-2 Existing north-facing windows.<br>▪ clause 54.04-3 Overshadowing secluded open space.<br>▪ clause 54.04-4 Overlooking.<br>▪ clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | Clause 54 |

### Transitional provisions

Clauses 32.07-4, 54 and 59.14 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.07-5 Construction and extension of a small second dwelling on a lot

08/09/2025
VC282

### Permit requirement

A permit is required to construct or extend a small second dwelling on a lot of less than 300 square metres.

A development must meet the requirements of Clause 54.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct or extend a small second dwelling on a lot less than 300 square metres if the development meets the following standards of Clause 54:<br>▪ clause 54.02-1 Street setback.<br>▪ clause 54.02-2 Building height.<br>▪ clause 54.02-3 Side and rear setbacks.<br>▪ clause 54.02-4 Walls on boundaries.<br>▪ clause 54.02-5 Site coverage.<br>▪ clause 54.02-6 Tree canopy.<br>▪ clause 54.02-8 Building setback for small second dwellings.<br>▪ clause 54.03-5 Safety and accessibility for small second dwellings.<br>▪ clause 54.04-1 Daylight to existing windows.<br>▪ clause 54.04-2 Existing north-facing windows.<br>▪ clause 54.04-3 Overshadowing secluded open space.<br>▪ clause 54.04-4 Overlooking.<br>▪ clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | Clause 54 |

### Transitional provisions

Clauses 32.07-5, 54 and 59.14 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.07-6 Construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings

16/04/2026
VC300

### Permit requirement

A permit is required to:

- Construct a dwelling if there is at least one dwelling existing on the lot.

- Construct two or more dwellings on a lot.
- Extend a dwelling if there are two or more dwellings on the lot.
- Construct or extend a dwelling if it is on common property.
- Construct or extend a residential building.

A permit is required to construct or extend a front fence within 3 metres of a street if:

- The fence is associated with two or more dwellings on a lot or a residential building, and
- The fence exceeds the maximum height specified in clause 55.02-8.

A development of three storeys or less, excluding a basement, must meet the requirements of clause 55.

A development of four to six storeys, excluding a basement, must meet the requirements of clause 57.

An apartment development of seven storeys or more, excluding a basement, must meet the requirements of clause 58.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct one dwelling if there is no more than one dwelling existing on a lot, extend a dwelling if there are two dwellings on a lot, or construct two dwellings on a lot, if the development meets the following standards of clause 55:<br>▪ clause 55.02-1 Street setback<br>▪ clause 55.02-2 Building height<br>▪ clause 55.02-3 Side and rear setbacks<br>▪ clause 55.02-4 Walls on boundaries<br>▪ clause 55.02-5 Site coverage<br>▪ clause 55.02-6 Access<br>▪ clause 55.02-7 Tree canopy<br>▪ clause 55.02-8 Front fences<br>▪ clause 55.04-1 Daylight to existing windows<br>▪ clause 55.04-2 Existing north-facing windows<br>▪ clause 55.04-3 Overshadowing secluded open space<br>▪ clause 55.04-4 Overlooking<br>▪ clause 55.05-2 Overshadowing domestic solar energy systems<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the clause 55 standard, the requirement in the schedule to the zone applies and must be met. | Clause 55 |
| Construct or extend a front fence within 3 metres of a street if the fence is associated with two or more dwellings on a lot or a residential building. | Clause 59.03 |

### Transitional provisions

Clause 55 of this scheme, as in force immediately before the approval date of Amendment VC136, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 58 does not apply to:

- An application for a planning permit lodged before the approval date of Amendment VC136.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before the approval date of Amendment VC136.

Clauses 55 and 58 of this scheme, as in force immediately before the approval date of Amendment VC174, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 55 of this planning scheme, as in force immediately before the approval date of Amendment VC267, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clauses 32.07-6, 57 and 58 of this planning scheme, as in force immediately before the commencement of Amendment VC300, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.07-7 Requirements of clause 54, clause 55 and clause 57

16/04/2026
VC300

A schedule to this zone may specify the requirements of:

- Standards A2-1, A2-5, A2-7 and A3-2 of clause 54 of this scheme.
- Standards B2-1, B2-5, B2-8 and B3-5 of clause 55 of this scheme.
- Standards E2-1, E2-4 and E2-7 of clause 57 of this scheme.

If a requirement is not specified in a schedule to this zone, the requirement set out in the relevant standard of clause 54, clause 55 or clause 57 applies.

## 32.07-8 Residential aged care facility

14/12/2023
VC253

### Permit requirements

A permit is required to construct a building or construct or carry out works for a residential aged care facility.

A development must meet the requirements of Clause 53.17 - Residential aged care facility.

## 32.07-9 Buildings and works associated with a Section 2 use

20/04/2026
VC307

A permit is required to construct a building or construct or carry out works for a use in Section 2 of Clause 32.07-2.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct a building or construct or carry out works where:<br>▪ The building or works are not associated with a dwelling, primary school or secondary school and have an estimated cost of up to $150,000; or<br>▪ The building or works are associated with a primary school or secondary school and have an estimated cost of up to $700,000; and<br>▪ The requirements in the following standards of Clause 54 are met, where the land adjoins land in a residential zone used for residential purposes:<br>– clause 54.02-3 Side and rear setbacks.<br>– clause 54.02-4 Walls on boundaries.<br>– clause 54.04-1 Daylight to existing windows.<br>– clause 54.04-2 Existing north-facing windows.<br>– clause 54.04-3 Overshadowing secluded open space.<br>– clause 54.04-4 Overlooking.<br>– clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | Clause 59.04 |

### Transitional provisions

Clauses 32.07-9, 54 and 59.04 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.07-10 Maximum building height requirement for a dwelling, small second dwelling or residential building

16/04/2026
VC300

A building must not be constructed for use as a dwelling, small second dwelling or a residential building that exceeds the maximum building height specified in a schedule to this zone.

If no maximum building height is specified in a schedule to this zone, the building height should not exceed 13.5 metres.

This building height requirement replaces the maximum building height specified in clauses 54.02-2 and 55.02-2.

A building may exceed the maximum building height specified in a schedule to this zone if:

- It replaces an immediately pre-existing building and the new building does not exceed the building height of the pre-existing building.

- There are existing buildings on both abutting allotments that face the same street and the new building does not exceed the building height of the lower of the existing buildings on the abutting allotments.
- It is on a corner lot abutted by lots with existing buildings and the new building does not exceed the building height of the lower of the existing buildings on the abutting allotments.
- It is constructed pursuant to a valid building permit that was in effect prior to the introduction of this provision.

An extension to an existing building may exceed the maximum building height specified in a schedule to this zone if it does not exceed the building height of the existing building.

A building may exceed the maximum building height by up to 1 metre if the slope of the natural ground level, measured at any cross section of the site of the building wider than 8 metres, is greater than 2.5 degrees.

The maximum building height requirement in this zone or a schedule to this zone applies whether or not a planning permit is required for the construction of a building.

#### Building height if land is subject to inundation

If the land is in a Special Building Overlay, Land Subject to Inundation Overlay or is land liable to inundation the maximum building height specified in the zone or schedule to the zone is the vertical distance from the minimum floor level determined by the relevant drainage authority or floodplain management authority to the roof or parapet at any point.

## 32.07-11 Buildings on lots that abut another residential zone

08/09/2025
VC282

Any buildings or works constructed on a lot that abuts land which is in a General Residential Zone, Neighbourhood Residential Zone, or Township Zone must meet the requirements of Clauses 55.02-3, 55.02-4, 55.04-1, 55.04-3, 55.04-4 and 55.05-2 along that boundary.

## 32.07-12 Application requirements

16/04/2026
VC300

An application must be accompanied by the following information, as appropriate:

- For a development of one dwelling on a lot or a small second dwelling on a lot, the site description and design response as required in clause 54.
- For a development of two or more dwellings on a lot, dwellings on common property and residential buildings of three storeys or less, excluding a basement, the site description and design response as required in clause 55.
- For a development of two or more dwellings on a lot, dwellings on common property and residential buildings of four to six storeys, excluding a basement, the site description and design response as required in clause 57.
- For an apartment development of seven storeys or more, excluding a basement, an urban context report and design response as required in clause 58.
- For an application for subdivision, a site and context description and design response as required in clause 56.
- Plans drawn to scale and dimensioned which show:
  - Site shape, size, dimensions and orientation.
  - The siting and use of existing and proposed buildings.
  - Adjacent buildings and uses.
  - The building form and scale.
  - Setbacks to property boundaries.

- The likely effects, if any, on adjoining land, including noise levels, traffic, the hours of delivery and despatch of goods and materials, hours of operation and light spill, solar access and glare.
- Any other application requirements specified in a schedule to this zone.

If in the opinion of the responsible authority an application requirement is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement.

## 32.07-13 Exemption from notice and review

16/04/2026
VC300

### Subdivision

An application to subdivide land is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### Construction and extension of one dwelling on a lot

An application under clause 32.07-4 is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 54.02-1, 54.02-2, 54.02-3, 54.02-4, 54.02-5, 54.02-6, 54.02-7, 54.04 and 54.05-2 are met.

### Construction and extension of a small second dwelling on a lot

An application under clause 32.07-5 is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 54.02-1, 54.02-2, 54.02-3, 54.02-4, 54.02-5, 54.02-6, 54.02-8, 54.03-5, 54.04 and 54.05-2 are met.

### Construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings

An application under clause 32.07-6 for a development of three storeys or less, excluding a basement, is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 55.02, 55.04-1, 55.04-2, 55.04-3, 55.04-4 and 55.05-2 are met.

An application under clause 32.07-6 for a development of four to six storeys, excluding a basement, is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 57.02 and 57.04 are met.

## 32.07-14 Decision guidelines

16/04/2026
VC300

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider, as appropriate:

### General

- The Municipal Planning Strategy and the Planning Policy Framework.
- The purpose of this zone.
- The objectives set out in a schedule to this zone.
- Any other decision guidelines specified in a schedule to this zone.
- The impact of overshadowing on existing rooftop solar energy systems on dwellings on adjoining lots in a Housing Choice and Transport Zone, Mixed Use Zone or Residential Growth Zone.

### Subdivision

- The pattern of subdivision and its effect on the spacing of buildings.
- For subdivision of land for residential development, the objectives and standards of clause 56.

**Dwellings, small second dwellings and residential buildings**

- For the construction of one dwelling on a lot, whether the development is an under-utilisation of the lot.
- For the construction and extension of one dwelling on a lot and a small second dwelling, the applicable objectives, standards and decision guidelines of clause 54.
- For the construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings of three storeys or less, excluding a basement, the objectives, standards and decision guidelines of clause 55.
- For the construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings of four to six storeys, excluding a basement, the objectives, standards and decision guidelines of clause 57.
- For the construction and extension of an apartment development of seven storeys or more, excluding a basement, the objectives, standards and decisions guidelines of clause 58.

**Non-residential use and development**

- Whether the use or development is compatible with residential use.
- Whether the use generally serves local community needs.
- The scale and intensity of the use and development.
- The design, height, setback and appearance of the proposed buildings and works.
- The proposed landscaping.
- The provision of car and bicycle parking and associated accessways.
- Any proposed loading and refuse collection facilities.
- The safety, efficiency and amenity effects of traffic to be generated by the proposal.

## 32.07-15 Signs

14/12/2023
VC253

Sign requirements are at Clause 52.05. This zone is in Category 3.

02/12/2022
C259case

# SCHEDULE 1 TO CLAUSE 32.07 RESIDENTIAL GROWTH ZONE

Shown on the planning scheme map as **RGZ1**.

**RESIDENTIAL GROWTH ZONE**

## 1.0 Design objectives

02/12/2022
C259case

None specified.

## 2.0 Requirements of Clause 54, Clause 55 and Clause 57

17/04/2026
VC308

| | Standard | Requirement |
|---|---|---|
| **Minimum street setback** | A2-1 | None specified |
| | B2-1 | None specified |
| | E2-1 | None specified |
| **Site coverage** | A2-5 | None specified |
| | B2-5 | None specified |
| | E2-4 | None specified |
| **Private open space** | A3-2 | None specified |
| | B3-5 | None specified |
| **Front fences** | A2-7 and B2-8 | None specified |
| | E2-7 | None specified |

## 3.0 Maximum building height requirement for a dwelling, small second dwelling or residential building

26/04/2024
VC252

None specified.

## 4.0 Application requirements

02/12/2022
C259case

None specified.

## 5.0 Decision guidelines

02/12/2022
C259case

None specified.

29/11/2019
C198case

## SCHEDULE 2 TO CLAUSE 32.07 RESIDENTIAL GROWTH ZONE

Shown on the planning scheme map as **RGZ2.**

### AREAS ADJACENT TO ACTIVITY CENTRES, TRAIN STATIONS AND STRATEGIC BUS ROUTES

## 1.0 Design objectives

29/11/2019
C198case

To encourage contemporary, well-articulated and designed multi-dwelling and apartment developments with smaller, well-landscaped front setbacks.

To encourage consolidation of adjoining lots to facilitate contemporary dwelling design that makes efficient use of land.

To encourage a diversity of dwelling sizes and built form outcomes.

## 2.0 Requirements of Clause 54, Clause 55 and Clause 57

17/04/2026
VC308

| | Standard | Requirement |
|---|---|---|
| **Minimum street setback** | A2-1 | Walls of buildings are set back from the front street at least 5 metres or in accordance with the table in Standard A2-1, whichever is the lesser.<br>Side street setback requirements specified in the tables to Standard A2-1 continue to apply. |
| | B2-1 | Walls of buildings are set back from the front street at least 5 metres or in accordance with the table in Standard B2-1, whichever is the lesser.<br>Side street setback requirements specified in the table to Standard B2-1 continue to apply. |
| | E2-1 | None specified |
| **Site coverage** | A2-5 | None specified |
| | B2-5 | None specified |
| | E2-4 | None specified |
| **Private open space** | A3-2 | None specified |
| | B3-5 | None specified |
| **Front fences** | A2-7 and B2-8 | None specified |
| | E2-7 | None specified |

## 3.0 Maximum building height requirement for a dwelling, small second dwelling or residential building

26/04/2024
VC252

None specified.

## 4.0 Application requirements

29/11/2019
C198case

None specified.

## 5.0 Decision guidelines

29/11/2019
C198case

The following decision guidelines apply to an application for a permit under Clause 32.07, in addition to those specified in Clause 32.07 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether there is an opportunity for the consolidation of lots to make effective and efficient use and development of the land.
- Whether the site layout and building massing provides for the equitable and efficient development of adjoining lots.

# 32.08 GENERAL RESIDENTIAL ZONE

31/03/2025
VC267

Shown on the planning scheme map as **GRZ**, **R1Z**, **R2Z** or **R3Z** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To encourage development that is responsive to the neighbourhood character of the area.

To encourage a diversity of housing types and housing growth particularly in locations offering good access to services and transport.

To allow educational, recreational, religious, community and a limited range of other non-residential uses to serve local community needs in appropriate locations.

## 32.08-1 Neighbourhood character objectives

27/03/2017
VC110

A schedule to this zone may contain neighbourhood character objectives to be achieved for the area.

## 32.08-2 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence. |
| **Community care accommodation** | Must meet the requirements of Clause 52.22-2. |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 2 animals. |
| **Dwelling (other than Bed and breakfast)** | |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Medical centre** | The gross floor area of all buildings must not exceed 250 square metres.<br>Must not require a permit under Clause 52.06-3.<br>The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Place of worship** | The gross floor area of all buildings must not exceed 250 square metres. |

| Use | Condition |
|---|---|
| | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Racing dog husbandry** | Must be no more than 2 animals. |
| **Railway** | |
| **Residential aged care facility** | |
| **Rooming house** | Must meet the requirements of Clause 52.23-2. |
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Accommodation (other than Community care accommodation, Dwelling, Residential aged care facility, Rooming house and Small second dwelling)** | |
| **Agriculture (other than Animal production, Animal training, Apiculture, Domestic animal husbandry, Horse husbandry and Racing dog husbandry)** | |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Car wash** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Convenience restaurant** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Convenience shop** | |
| **Domestic animal husbandry (other than Domestic animal boarding) – if the Section 1 condition is not met** | Must be no more than 5 animals. |
| **Food and drink premises (other than Convenience restaurant and Take away food premises)** | |
| **Grazing animal production** | |
| **Leisure and recreation (other than Informal outdoor recreation and Motor racing track)** | |
| **Market** | |

| Use | Condition |
|---|---|
| **Office (other than Medical centre)** | The use must be associated with a use or development to which clause 53.23 (Significant residential development with affordable housing) applies. |
| **Place of assembly (other than Amusement parlour, Carnival, Cinema based entertainment facility, Circus, Nightclub and Place of worship)** | |
| **Plant nursery** | |
| **Retail premises (other than Convenience shop, Food and drink premises, Market and Plant nursery)** | The use must be associated with a use or development to which clause 53.23 (Significant residential development with affordable housing) applies. |
| **Service station** | The site must either:<br>▪ Adjoin a commercial zone or industrial zone.<br>▪ Adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3.<br>The site must not exceed either:<br>▪ 3000 square metres.<br>▪ 3600 square metres if it adjoins on two boundaries a road in a Transport Zone 2 or a Transport Zone 3. |
| **Store** | Must be in a building, not a dwelling, and used to store equipment, goods, or motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Take away food premises** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 – Prohibited

| Use |
|---|
| **Amusement parlour** |
| **Animal production (other than Grazing animal production)** |
| **Animal training** |
| **Cinema based entertainment facility** |
| **Domestic animal boarding** |
| **Extractive industry** |

| Use |
|---|
| **Horse husbandry** |
| **Industry (other than Automated collection point and Car wash)** |
| **Motor racing track** |
| **Nightclub** |
| **Saleyard** |
| **Small second dwelling – if the Section 1 condition is not met** |
| **Transport terminal** |
| **Warehouse (other than Store)** |

## 32.08-3 Subdivision

16/10/2025
VC288

### Permit requirement

A permit is required to subdivide land.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### Minimum garden area requirement

An application to subdivide land that would create a vacant lot less than 400 square metres capable of development for a dwelling or residential building, must ensure that each vacant lot created less than 400 square metres contains at least 25 percent as garden area. This does not apply to a lot created by an application to subdivide land where that lot is created in accordance with:

- An approved precinct structure plan or an equivalent strategic plan;
- An incorporated plan or approved development plan; or
- A permit for development.

### Clause 56 requirement

An application to subdivide land, other than an application to subdivide land into lots each containing an existing dwelling or car parking space, must meet the requirements of Clause 56 and:

- Must meet all of the objectives included in the clauses specified in the following table.
- Should meet all of the standards included in the clauses specified in the following table.

| Class of subdivision | Objectives and standards to be met |
|---|---|
| 60 or more lots | All except clause 56.03-5. |
| 16 – 59 lots | All except clauses 56.03-1 to 56.03-3, 56.03-5, 56.06-1 and 56.06-3. |
| 3 – 15 lots | All except clauses 56.02-1, 56.03-1 to 56.03-4, 56.03-5 (unless the land is in the Neighbourhood Character Overlay), 56.05-2, 56.06-1, 56.06-3 and 56.06-6. |
| 2 lots | Clauses 56.03-5 (only if the land is in the Neighbourhood Character Overlay), 56.04-2, 56.04-5, 56.06-8 and 56.07-4. |

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Subdivide land to realign the common boundary between two lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within five years prior to the application for a permit for subdivision. | Clause 59.02 |
| Subdivide land into two lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land:<br>– Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | Clause 59.02 |
| Subdivide land into two lots if:<br>▪ A permit has been issued under a provision of a residential zone to construct up to two dwellings on the land and the permit has not expired.<br>▪ Each lot will contain either:<br>– one existing dwelling; or<br>– one dwelling permitted to be constructed in accordance with the permit. | Clause 59.02 |
| Subdivide land into two lots for residential development if:<br>▪ The subdivision creates at least one vacant lot.<br>▪ The land does not contain native vegetation if it has an area of 0.4 hectares or more.<br>▪ The land is not located in an Environmental Audit Overlay, Neighbourhood Character Overlay or an area that is a designated bushfire prone area as determined under section 192A of the *Building Act 1993*. | Clause 59.11 |

## 32.08-4 Construction or extension of a dwelling, small second dwelling or residential building

14/12/2023
VC253

### Minimum garden area requirement

An application to construct or extend a dwelling, small second dwelling or residential building on a lot must provide a minimum garden area as set out in the following table:

| Lot size | Minimum percentage of a lot set aside as garden area |
|---|---|
| 400 - 500 sqm | 25% |
| Above 500 - 650 sqm | 30% |
| Above 650 sqm | 35% |

This does not apply to:

- An application to construct or extend a dwelling, small second dwelling or residential building if specified in a schedule to this zone as exempt from the minimum garden area requirement;
- An application to construct or extend a dwelling, small second dwelling or residential building on a lot if:
  - The lot is designated as a medium density housing site in an approved precinct structure plan or an approved equivalent strategic plan;
  - The lot is designated as a medium density housing site in an incorporated plan or approved development plan; or
- An application to alter or extend an existing building that did not comply with the minimum garden area requirement of Clause 32.08-4 on the approval date of Amendment VC110.

## 32.08-5 Construction and extension of one dwelling on a lot

08/09/2025
VC282

### Permit requirement

A permit is required to construct or extend one dwelling on a lot less than 300 square metres.

A permit is required to construct or extend a front fence within 3 metres of a street if the fence is associated with one dwelling on a lot less than 300 square metres and the fence exceeds the maximum height specified in clause 54.02-7.

A development must meet the requirements of Clause 54.

### No permit required

No permit is required to:

- Construct or carry out works normal to a dwelling.
- Construct or extend an out-building (other than a garage or carport) on a lot provided the gross floor area of the out-building does not exceed 10 square metres and the maximum building height is not more than 3 metres above ground level.
- Make structural changes to a dwelling provided the size of the dwelling is not increased or the number of dwellings is not increased.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct or extend a dwelling on a lot less than 300 square metres if the development meets the following standards of Clause 54:<br>- clause 54.02-1 Street setback.<br>- clause 54.02-2 Building height. | Clause 54 |

| Class of application | Provision |
|---|---|
| ▪ clause 54.02-3 Side and rear setbacks.<br>▪ clause 54.02-4 Walls on boundaries.<br>▪ clause 54.02-5 Site coverage<br>▪ clause 54.02-6 Tree canopy.<br>▪ clause 54.02-7 Front fences.<br>▪ clause 54.04-1 Daylight to existing windows.<br>▪ clause 54.04-2 Existing north-facing windows.<br>▪ clause 54.04-3 Overshadowing secluded open space.<br>▪ clause 54.04-4 Overlooking.<br>▪ clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | |
| Construct or extend a front fence within 3 metres of a street if the fence is associated with one dwelling on a lot less than 300 square metres. | Clause 59.03 |

### Transitional provisions

Clauses 32.08-5, 54 and 59.14 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.08-6 Construction and extension of a small second dwelling on a lot

08/09/2025
VC282

### Permit requirement

A permit is required to construct or extend a small second dwelling on a lot of less than 300 square metres.

A development must meet the requirements of Clause 54.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct or extend a small second dwelling on a lot less than 300 square metres if the development meets the following standards of Clause 54:<br>▪ clause 54.02-1 Street setback.<br>▪ clause 54.02-2 Building height.<br>▪ clause 54.02-3 Side and rear setbacks.<br>▪ clause 54.02-4 Walls on boundaries. | Clause 54 |

| Class of application | Provision |
|---|---|
| ▪ clause 54.02-5 Site coverage.<br>▪ clause 54.02-6 Tree canopy.<br>▪ clause 54.02-8 Building setback for small second dwellings.<br>▪ clause 54.03-5 Safety and accessibility for small second dwellings.<br>▪ clause 54.04-1 Daylight to existing windows.<br>▪ clause 54.04-2 Existing north-facing windows.<br>▪ clause 54.04-3 Overshadowing secluded open space.<br>▪ clause 54.04-4 Overlooking.<br>▪ clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | |

### Transitional provisions

Clauses 32.08-6, 54 and 59.14 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.08-7 Construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings

16/04/2026
VC300

### Permit requirement

A permit is required to:

- Construct a dwelling if there is at least one dwelling existing on the lot.
- Construct two or more dwellings on a lot.
- Extend a dwelling if there are two or more dwellings on the lot.
- Construct or extend a dwelling if it is on common property.
- Construct or extend a residential building.

A permit is required to construct or extend a front fence within 3 metres of a street if:

- The fence is associated with two or more dwellings on a lot or a residential building, and
- The fence exceeds the maximum height specified in clause 55.02-8.

A development of three storeys or less, excluding a basement, must meet the requirements of clause 55.

An apartment development of seven storeys or more, excluding a basement, must meet the requirements of clause 58.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct one dwelling if there is no more than one dwelling existing on a lot, extend a dwelling if there are two dwellings on a lot, or construct two dwellings on a lot, if the development meets the following standards of clause 55:<br>▪ clause 55.02-1 Street setback<br>▪ clause 55.02-2 Building height<br>▪ clause 55.02-3 Side and rear setbacks<br>▪ clause 55.02-4 Walls on boundaries<br>▪ clause 55.02-5 Site coverage<br>▪ clause 55.02-6 Access<br>▪ clause 55.02-7 Tree canopy<br>▪ clause 55.02-8 Front fences<br>▪ clause 55.04-1 Daylight to existing windows<br>▪ clause 55.04-2 Existing north-facing windows<br>▪ clause 55.04-3 Overshadowing secluded open space<br>▪ clause 55.04-4 Overlooking<br>▪ clause 55.05-2 Overshadowing domestic solar energy systems<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the clause 55 standard, the requirement in the schedule to the zone applies and must be met. | Clause 55 |
| Construct or extend a front fence within 3 metres of a street if the fence is associated with two or more dwellings on a lot or a residential building. | Clause 59.03 |

### Transitional provisions

Clause 55 of this scheme, as in force immediately before the approval date of Amendment VC136, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 58 does not apply to:

- An application for a planning permit lodged before the approval date of Amendment VC136.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before the approval date of Amendment VC136.

Clauses 55 and 58 of this scheme, as in force immediately before the approval date of Amendment VC174, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 55 of this planning scheme, as in force immediately before the approval date of Amendment VC267, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clauses 32.08-7, 57 and 58 of this planning scheme, as in force immediately before the commencement of Amendment VC300, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.08-8 Requirements of Clause 54 and Clause 55

08/09/2025
VC282

A schedule to this zone may specify the requirements of:

- Standards A2-1, A2-5, A2-7 and A3-2 of Clause 54 of this scheme.
- Standards B2-1, B2-5, B2-8 and B3-5 of Clause 55 of this scheme.

If a requirement is not specified in a schedule to this zone, the requirement set out in the relevant standard of Clause 54 or Clause 55 applies.

## 32.08-9 Residential aged care facility

14/12/2023
VC253

### Permit requirements

A permit is required to construct a building or construct or carry out works for a residential aged care facility.

A development must meet the requirements of Clause 53.17 - Residential aged care facility.

## 32.08-10 Buildings and works associated with a Section 2 use

20/04/2026
VC307

A permit is required to construct a building or construct or carry out works for a use in Section 2 of Clause 32.08-2.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct a building or construct or carry out works where:<br>▪ The building or works are not associated with a dwelling, primary school or secondary school and have an estimated cost of up to $150,000; or<br>▪ The building or works are associated with a primary school or secondary school and have an estimated cost of up to $700,000; and<br>▪ The requirements in the following standards of Clause 54 are met, where the land adjoins land in a residential zone used for residential purposes:<br>– clause 54.02-3 Side and rear setbacks.<br>– clause 54.02-4 Walls on boundaries.<br>– clause 54.04-1 Daylight to existing windows.<br>– clause 54.04-2 Existing north-facing windows. | Clause 59.04 |

| Class of application | Provision |
|---|---|
| – clause 54.04-3 Overshadowing secluded open space.<br>– clause 54.04-4 Overlooking.<br>– clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | |

**Transitional provisions**

Clauses 32.08-10, 54 and 59.04 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.08-11 Maximum building height requirement for a dwelling, small second dwelling or residential building

14/12/2023
VC253

A building must not be constructed for use as a dwelling, small second dwelling or a residential building that:

- exceeds the maximum building height specified in a schedule to this zone; or
- contains more than the maximum number of storeys specified in a schedule to this zone.

If no maximum building height or maximum number of storeys is specified in a schedule to this zone:

- the building height must not exceed 11 metres; and
- the building must contain no more than 3 storeys at any point.

A building may exceed the applicable maximum building height or contain more than the applicable maximum number of storeys if:

- It replaces an immediately pre-existing building and the new building does not exceed the building height or contain a greater number of storeys than the pre-existing building.
- There are existing buildings on both abutting allotments that face the same street and the new building does not exceed the building height or contain a greater number of storeys than the lower of the existing buildings on the abutting allotments.
- It is on a corner lot abutted by lots with existing buildings and the new building does not exceed the building height or contain a greater number of storeys than the lower of the existing buildings on the abutting allotments.
- It is constructed pursuant to a valid building permit that was in effect prior to the introduction of this provision.

An extension to an existing building may exceed the applicable maximum building height or contain more than the applicable maximum number of storeys if it does not exceed the building height of the existing building or contain a greater number of storeys than the existing building.

A building may exceed the maximum building height by up to 1 metre if the slope of the natural ground level, measured at any cross section of the site of the building wider than 8 metres, is greater than 2.5 degrees.

A basement is not a storey for the purposes of calculating the number of storeys contained in a building.

The maximum building height and maximum number of storeys requirements in this zone or a schedule to this zone apply whether or not a planning permit is required for the construction of a building.

### Building height if land is subject to inundation

If the land is in a Special Building Overlay, Land Subject to Inundation Overlay or is land liable to inundation the maximum building height specified in the zone or schedule to the zone is the vertical distance from the minimum floor level determined by the relevant drainage authority or floodplain management authority to the roof or parapet at any point.

## 32.08-12 Application requirements

16/04/2026
VC300

An application must be accompanied by the following information, as appropriate:

- For a development of one dwelling on a lot or a small second dwelling on a lot, the site description and design response as required in clause 54.
- For a development of two or more dwellings on a lot, dwellings on common property and residential buildings of three storeys or less, excluding a basement, the site description and design response as required in clause 55.
- For a development of two or more dwellings on a lot, dwellings on common property and residential buildings of four to six storeys, excluding a basement, the site description and design response as required in clause 57.
- For an apartment development of seven storeys or more, excluding a basement, an urban context report and design response as required in clause 58.
- For an application for subdivision, a site and context description and design response as required in clause 56.
- Plans drawn to scale and dimensioned which show:
  - Site shape, size, dimensions and orientation.
  - The siting and use of existing and proposed buildings.
  - Adjacent buildings and uses.
  - The building form and scale.
  - Setbacks to property boundaries.
- The likely effects, if any, on adjoining land, including noise levels, traffic, the hours of delivery and despatch of goods and materials, hours of operation and light spill, solar access and glare.
- Any other application requirements specified in a schedule to this zone.

If in the opinion of the responsible authority an application requirement is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement.

## 32.08-13 Exemption from notice and review

17/04/2026
VC308

### Subdivision

An application to subdivide land into lots each containing an existing dwelling or car parking space is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### Construction and extension of one dwelling on a lot

An application under clause 32.08-5 is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 54.02-1, 54.02-2, 54.02-3, 54.02-4, 54.02-5, 54.02-6, 54.02-7, 54.04 and 54.05-2 are met.

### Construction and extension of a small second dwelling on a lot

An application under clause 32.08-6 is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 54.02-1, 54.02-2, 54.02-3, 54.02-4, 54.02-5, 54.02-6, 54.02-8, 54.03-5, 54.04 and 54.05-2 are met.

### Construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings

An application under clause 32.08-7 for a development of three storeys or less, excluding a basement, is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 55.02, 55.04-1, 55.04-2, 55.04-3, 55.04-4 and 55.05-2 are met.

## 32.08-14 Decision guidelines

16/04/2026
VC300

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider, as appropriate:

### General

- The Municipal Planning Strategy and the Planning Policy Framework.
- The purpose of this zone.
- The objectives set out in a schedule to this zone.
- Any other decision guidelines specified in a schedule to this zone.
- The impact of overshadowing on existing rooftop solar energy systems on dwellings on adjoining lots in a General Residential Zone, Housing Choice and Transport Zone, Mixed Use Zone, Neighbourhood Residential Zone, Residential Growth Zone or Township Zone.

### Subdivision

- The pattern of subdivision and its effect on the spacing of buildings.
- For subdivision of land for residential development, the objectives and standards of clause 56.

### Dwellings, small second dwellings and residential buildings

- For the construction and extension of one dwelling on a lot and a small second dwelling, the applicable objectives, standards and decision guidelines of clause 54.
- For the construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings of three storeys or less, excluding a basement, the objectives, standards and decision guidelines of clause 55.
- For the construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings of four to six storeys, excluding a basement, the objectives, standards and decision guidelines of clause 57.
- For the construction and extension of an apartment development of seven storeys or more, excluding a basement, the objectives, standards and decisions guidelines of clause 58.

### Non-residential use and development

- Whether the use or development is compatible with residential use.
- Whether the use generally serves local community needs.
- The scale and intensity of the use and development.
- The design, height, setback and appearance of the proposed buildings and works.
- The proposed landscaping.

- The provision of car and bicycle parking and associated accessways.
- Any proposed loading and refuse collection facilities.
- The safety, efficiency and amenity effects of traffic to be generated by the proposal.

## 32.08-15 Signs

14/12/2023
VC253

Sign requirements are at Clause 52.05. This zone is in Category 3.

## 32.08-16 Transitional provisions

14/12/2023
VC253

The minimum garden area requirements of Clause 32.08-4 and the maximum building height and number of storeys requirements of Clause 32.08-9 introduced by Amendment VC110 do not apply to:

- A planning permit application for the construction or extension of a dwelling or residential building lodged before the approval date of Amendment VC110.
- Where a planning permit is not required for the construction or extension of a dwelling or residential building:
  - A building permit issued for the construction or extension of a dwelling or residential building before the approval date of Amendment VC110.
  - A building surveyor has been appointed to issue a building permit for the construction or extension of a dwelling or residential building before the approval date of Amendment VC110. A building permit must be issued within 12 months of the approval date of Amendment VC110.
  - A building surveyor is satisfied, and certifies in writing, that substantial progress was made on the design of the construction or extension of a dwelling or residential building before the approval date of Amendment VC110. A building permit must be issued within 12 months of the approval date of Amendment VC110.

The minimum garden area requirement of Clause 32.08-3 introduced by Amendment VC110 does not apply to a planning permit application to subdivide land for a dwelling or a residential building lodged before the approval date of Amendment VC110.

02/12/2022
C259case

## SCHEDULE 1 TO CLAUSE 32.08 GENERAL RESIDENTIAL ZONE

Shown on the planning scheme map as **GRZ1**.

**GENERAL RESIDENTIAL ZONE**

### 1.0 Neighbourhood character objectives

02/12/2022
C259case

None specified.

### 2.0 Construction or extension of a dwelling, small second dwelling or residential building - minimum garden area requirement

26/04/2024
VC252

| Is the construction or extension of a dwelling, small second dwelling or residential building exempt from the minimum garden area requirement? |
|---|
| No |

### 3.0 Requirements of Clause 54 and Clause 55

08/09/2025
VC282

| | Standard | Requirement |
|---|---|---|
| **Minimum street setback** | A2-1 | None specified |
| | B2-1 | None specified |
| **Site coverage** | A2-5 | None specified |
| | B2-5 | None specified |
| **Private open space** | A3-2 | None specified |
| | B3-5 | None specified |
| **Front fence height** | A2-7 and B2-8 | None specified |

### 4.0 Maximum building height requirement for a dwelling, small second dwelling or residential building

26/04/2024
VC252

None specified.

### 5.0 Application requirements

26/04/2024
VC252

None specified.

### 6.0 Decision guidelines

26/04/2024
VC252

None specified.

29/11/2019
C198case

## SCHEDULE 2 TO CLAUSE 32.08 GENERAL RESIDENTIAL ZONE

Shown on the planning scheme map as **GRZ2**.

**AREAS CLOSE TO ACTIVITY CENTRES, TRAIN STATIONS AND STRATEGIC BUS ROUTES**

### 1.0 Neighbourhood character objectives

29/11/2019
C198case

To encourage a new neighbourhood character of contemporary, well-articulated and designed residential development, including units, townhouses and apartments with smaller, well landscaped front setbacks.

To ensure development is sympathetic and responsive to its surroundings and provides an appropriate transition to lower-scale residential areas.

### 2.0 Construction or extension of a dwelling, small second dwelling or residential building - minimum garden area requirement

26/04/2024
VC252

| Is the construction or extension of a dwelling, small second dwelling or residential building exempt from the minimum garden area requirement? |
|---|
| No |

### 3.0 Requirements of Clause 54 and Clause 55

08/09/2025
VC282

| | Standard | Requirement |
|---|---|---|
| **Minimum street setback** | A2-1 | Walls of buildings are set back from the front street at least 5 metres or in accordance with the table in Standard A2-1, whichever is the lesser.<br>Side street setback requirements specified in the tables to Standard A2-1 continue to apply. |
| | B2-1 | Walls of buildings are set back from the front street at least 5 metres or in accordance with the table in Standard B2-1, whichever is the lesser.<br>Side street setback requirements specified in the table to Standard B2-1 continue to apply. |
| **Site coverage** | A2-5 | None specified |
| | B2-5 | None specified |
| **Private open space** | A3-2 | None specified |
| | B3-5 | None specified |
| **Front fence height** | A2-7 and B2-8 | None specified |

### 4.0 Maximum building height requirement for a dwelling, small second dwelling or residential building

26/04/2024
VC252

A building used as a dwelling, small second dwelling or a residential building must not exceed a height of 11.5 metres and 3 storeys.

### 5.0 Application requirements

26/04/2024
VC252

None specified.

## 6.0 Decision guidelines

26/04/2024
VC252

The following decision guidelines apply to an application for a permit under Clause 32.08, in addition to those specified in Clause 32.08 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether the site layout and building massing ensures reasonable amenity for future residents in regards to privacy, solar access, noise, ventilation, secluded private open spaces and communal open spaces.
- Whether an appropriate transition to adjoining lower-scale residential areas is achieved.

# 32.09 NEIGHBOURHOOD RESIDENTIAL ZONE

31/03/2025
VC267

Shown on the planning scheme map as **NRZ** with a number (if shown).

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To recognise areas of predominantly single and double storey residential development.

To manage and ensure that development is responsive to the identified neighbourhood character, heritage, environmental or landscape characteristics.

To allow educational, recreational, religious, community and a limited range of other non-residential uses to serve local community needs in appropriate locations.

## 32.09-1 Neighbourhood character objectives

27/03/2017
VC110

A schedule to this zone must contain the neighbourhood, heritage, environment or landscape character objectives to be achieved for the area.

## 32.09-2 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence. |
| **Community care accommodation** | Must meet the requirements of Clause 52.22-2. |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 2 animals. |
| **Dwelling (other than Bed and breakfast)** | |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Medical centre** | The gross floor area of all buildings must not exceed 250 square metres.<br>Must be located in an existing building.<br>The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3.<br>Must not require a permit under Clause 52.06-3. |
| **Place of worship** | The gross floor area of all buildings must not exceed 250 square metres. |

| Use | Condition |
|---|---|
| | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3.<br>Must not require a permit under Clause 52.06-3. |
| **Racing dog husbandry** | Must be no more than 2 animals. |
| **Railway** | |
| **Residential aged care facility** | |
| **Rooming house** | Must meet the requirements of Clause 52.23-2. |
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling. |
| **Tramway** | |
| **Any use listed in clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Accommodation (other than Community care accommodation, Dwelling, Residential aged care facility, Rooming house and Small second dwelling)** | |
| **Agriculture (other than Animal production, Animal training, Apiculture, Domestic animal husbandry, Horse husbandry and Racing dog husbandry)** | |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Car wash** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Convenience restaurant** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Convenience shop** | The leasable floor area must not exceed 80 square metres. |
| **Domestic animal husbandry (other than Domestic animal boarding) – if the Section 1 condition is not met** | Must be no more than 5 animals. |
| **Food and drink premises (other than Convenience restaurant and Take away food premises)** | |
| **Grazing animal production** | |

| Use | Condition |
|---|---|
| **Leisure and recreation (other than Informal outdoor recreation and Motor racing track)** | |
| **Market** | |
| **Office (other than Medical centre)** | The use must be associated with a use or development to which clause 53.23 (Significant residential development with affordable housing) applies. |
| **Place of assembly (other than Amusement parlour, Carnival, Cinema based entertainment facility, Circus, Nightclub and Place of worship)** | |
| **Plant nursery** | |
| **Retail premises (other than Convenience shop, Food and drink premises, Market and Plant nursery)** | The use must be associated with a use or development to which clause 53.23 (Significant residential development with affordable housing) applies. |
| **Service station** | The site must either:<br>▪ Adjoin a commercial zone or industrial zone.<br>▪ Adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3.<br>The site must not exceed either:<br>▪ 3000 square metres.<br>▪ 3600 square metres if it adjoins on two boundaries a road in a Transport Zone 2 or a Transport Zone 3. |
| **Store** | Must be in a building, not a dwelling, and used to store equipment, goods, or motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Take away food premises** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 – Prohibited

| Use |
|---|
| **Amusement parlour** |
| **Animal production (other than Grazing animal production)** |
| **Animal training** |

| Use |
|---|
| **Cinema based entertainment facility** |
| **Domestic animal boarding** |
| **Extractive industry** |
| **Horse husbandry** |
| **Industry (other than Automated collection point and Car wash)** |
| **Motor racing track** |
| **Nightclub** |
| **Saleyard** |
| **Small second dwelling - if the Section 1 condition is not met** |
| **Transport terminal** |
| **Warehouse (other than Store)** |

## 32.09-3 Subdivision

16/10/2025
VC288

### Permit requirement

A permit is required to subdivide land.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### Minimum garden area requirement

An application to subdivide land that would create a vacant lot less than 400 square metres capable of development for a dwelling or residential building, must ensure that each vacant lot created less than 400 square metres contains at least 25 percent as garden area. This does not apply to a lot created by an application to subdivide land where that lot is created in accordance with:

- An approved precinct structure plan or an equivalent strategic plan;
- An incorporated plan or approved development plan; or
- A permit for development.

### Minimum lot size requirement

A schedule to this zone may specify a minimum lot size to subdivide land. Each lot must be at least the area specified for the land, except where an application to subdivide land is made to create lots each containing an existing dwelling or car parking space, where an application for the existing dwelling or car parking space was made or approved before the approval date of the planning scheme amendment that introduced this clause 32.09 into the planning scheme.

### Clause 56 requirement

An application to subdivide land, other than an application to subdivide land into lots each containing an existing dwelling or car parking space, must meet the requirements of Clause 56 and:

- Must meet all of the objectives included in the clauses specified in the following table.
- Should meet all of the standards included in the clauses specified in the following table.

| Class of subdivision | Objectives and standards to be met |
|---|---|
| 60 or more lots | All except clause 56.03-5. |
| 16 – 59 lots | All except clauses 56.03-1 to 56.03-3, 56.03-5, 56.06-1 and 56.06-3. |
| 3 – 15 lots | All except clauses 56.02-1, 56.03-1 to 56.03-4, 56.03-5 (unless the land is in the Neighbourhood Character Overlay), 56.05-2, 56.06-1, 56.06-3 and 56.06-6. |
| 2 lots | Clauses 56.03-5 (only if the land is in the Neighbourhood Character Overlay), 56.04-2, 56.04-5, 56.06-8 and 56.07-4. |

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Subdivide land to realign the common boundary between two lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within five years prior to the application for a permit for subdivision. | Clause 59.02 |
| Subdivide land into two lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land:<br>– Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | Clause 59.02 |
| Subdivide land into two lots if:<br>▪ A permit has been issued under a provision of a residential zone to construct up to two dwellings on the land and the permit has not expired.<br>▪ Each lot will contain either:<br>– one existing dwelling; or<br>– one dwelling permitted to be constructed in accordance with the permit. | Clause 59.02 |
| Subdivide land into two lots for residential development if:<br>▪ The subdivision creates at least one vacant lot. | Clause 59.11 |

| Class of application | Provision |
|---|---|
| ▪ The land does not contain native vegetation if it has an area of 0.4 hectares or more.<br>▪ The land is not located in an Environmental Audit Overlay, Neighbourhood Character Overlay or an area that is a designated bushfire prone area as determined under section 192A of the *Building Act 1993*. | |

## 32.09-4 Construction or extension of a dwelling, small second dwelling or residential building

14/12/2023
VC253

### Minimum garden area requirement

An application to construct or extend a dwelling, small second dwelling or residential building on a lot must provide a minimum garden area as set out in the following table:

| Lot size | Minimum percentage of a lot set aside as garden area |
|---|---|
| 400 - 500 sqm | 25% |
| Above 500 - 650 sqm | 30% |
| Above 650 sqm | 35% |

This does not apply to:

- An application to construct or extend a dwelling, small second dwelling or residential building on a lot if:
  - The lot is designated as a medium density housing site in an approved precinct structure plan or an approved equivalent strategic plan;
  - The lot is designated as a medium density housing site in an incorporated plan or approved development plan; or
- An application to alter or extend an existing building that did not comply with the minimum garden area requirement of Clause 32.09-4 on the approval date of Amendment VC110.

## 32.09-5 Construction and extension of one dwelling on a lot

08/09/2025
VC282

### Permit requirement

A permit is required to construct or extend one dwelling on a lot less than 300 square metres.

A permit is required to construct or extend a front fence within 3 metres of a street if the fence is associated with one dwelling on a lot less than 300 square metres and the fence exceeds the maximum height specified in clause 54.02-7.

A development must meet the requirements of Clause 54.

### No permit required

No permit is required to:

- Construct or carry out works normal to a dwelling.
- Construct or extend an out-building (other than a garage or carport) on a lot provided the gross floor area of the out-building does not exceed 10 square metres and the maximum building height is not more than 3 metres above ground level.
- Make structural changes to a dwelling provided the size of the dwelling is not increased or the number of dwellings is not increased.

### VicSmart applications

Subject to clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct or extend a dwelling on a lot less than 300 square metres if the development meets the following standards of Clause 54:<br>▪ clause 54.02-1 Street setback.<br>▪ clause 54.02-2 Building height.<br>▪ clause 54.02-3 Side and rear setbacks.<br>▪ clause 54.02-4 Walls on boundaries.<br>▪ clause 54.02-5 Site coverage<br>▪ clause 54.02-6 Tree canopy.<br>▪ clause 54.02-7 Front fences.<br>▪ clause 54.04-1 Daylight to existing windows.<br>▪ clause 54.04-2 Existing north-facing windows.<br>▪ clause 54.04-3 Overshadowing secluded open space.<br>▪ clause 54.04-4 Overlooking.<br>▪ clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | Clause 54 |
| Construct or extend a front fence within 3 metres of a street if the fence is associated with one dwelling on a lot less than 300 square metres. | Clause 59.03 |

### Transitional provisions

Clauses 32.09-5, 54 and 59.14 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.09-6 Construction and extension of a small second dwelling on a lot

08/09/2025
VC282

### Permit requirement

A permit is required to construct or extend a small second dwelling on a lot of less than 300 square metres.

A development must meet the requirements of Clause 54.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct or extend a small second dwelling on a lot less than 300 square metres if the development meets the following standards of Clause 54:<br>▪ clause 54.02-1 Street setback.<br>▪ clause 54.02-2 Building height.<br>▪ clause 54.02-3 Side and rear setbacks.<br>▪ clause 54.02-4 Walls on boundaries.<br>▪ clause 54.02-5 Site coverage.<br>▪ clause 54.02-6 Tree canopy.<br>▪ clause 54.02-8 Building setback for small second dwellings.<br>▪ clause 54.03-5 Safety and accessibility for small second dwellings.<br>▪ clause 54.04-1 Daylight to existing windows.<br>▪ clause 54.04-2 Existing north-facing windows.<br>▪ clause 54.04-3 Overshadowing secluded open space.<br>▪ clause 54.04-4 Overlooking.<br>▪ clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | Clause 54 |

### Transitional provisions

Clauses 32.09-6, 54 and 59.14 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.09-7 Construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings

16/04/2026
VC300

### Permit requirement

A permit is required to:

- Construct a dwelling if there is at least one dwelling existing on the lot.
- Construct two or more dwellings on a lot.
- Extend a dwelling if there are two or more dwellings on the lot.
- Construct or extend a dwelling if it is on common property.
- Construct or extend a residential building.

A permit is required to construct or extend a front fence within 3 metres of a street if:

- The fence is associated with two or more dwellings on a lot or a residential building, and
- The fence exceeds the maximum height specified in clause 55.02-8.

A development of three storeys or less, excluding a basement, must meet the requirements of clause 55.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct one dwelling if there is no more than one dwelling existing on a lot, extend a dwelling if there are two dwellings on a lot, or construct two dwellings on a lot, if the development meets the following standards of clause 55:<br>▪ clause 55.02-1 Street setback<br>▪ clause 55.02-2 Building height<br>▪ clause 55.02-3 Side and rear setbacks<br>▪ clause 55.02-4 Walls on boundaries<br>▪ clause 55.02-5 Site coverage<br>▪ clause 55.02-6 Access<br>▪ clause 55.02-7 Tree canopy<br>▪ clause 55.02-8 Front fences<br>▪ clause 55.04-1 Daylight to existing windows<br>▪ clause 55.04-2 Existing north-facing windows<br>▪ clause 55.04-3 Overshadowing secluded open space<br>▪ clause 55.04-4 Overlooking<br>▪ clause 55.05-2 Overshadowing domestic solar energy systems<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the clause 55 standard, the requirement in the schedule to the zone applies and must be met. | Clause 55 |
| Construct or extend a front fence within 3 metres of a street if the fence is associated with two or more dwellings on a lot or a residential building. | Clause 59.03 |

### Transitional provisions

Clause 55 of this scheme, as in force immediately before the approval date of Amendment VC136, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 55 of this scheme, as in force immediately before the approval date of Amendment VC174, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 55 of this planning scheme, as in force immediately before the approval date of Amendment VC267, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clauses 32.09-7, 57 and 58 of this planning scheme, as in force immediately before the commencement of Amendment VC300, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.09-8 Requirements of Clause 54 and Clause 55

08/09/2025
VC282

A schedule to this zone may specify the requirements of:

- Standards A2-1, A2-5, A2-7 and A3-2 of Clause 54 of this scheme.
- Standards B2-1, B2-5, B2-8 and B3-5 of Clause 55 of this scheme.

If a requirement is not specified in a schedule to this zone, the requirement set out in the relevant standard of Clause 54 or Clause 55 applies.

## 32.09-9 Residential aged care facility

15/03/2024
VC256

### Permit requirements

A permit is required to construct a building or construct or carry out works for a residential aged care facility.

A development must meet the requirements of Clause 53.17 - Residential aged care facility.

## 32.09-10 Buildings and works associated with a Section 2 use

20/04/2026
VC307

A permit is required to construct a building or construct or carry out works for a use in Section 2 of clause 32.09-2.

### VicSmart applications

Subject to clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct a building or construct or carry out works where:<br>▪ The building or works are not associated with a dwelling, primary school or secondary school and have an estimated cost of up to $150,000; or<br>▪ The building or works are associated with a primary school or secondary school and have an estimated cost of up to $700,000; and<br>▪ The requirements in the following standards of Clause 54 are met, where the land adjoins land in a residential zone used for residential purposes:<br>– clause 54.02-3 Side and rear setbacks.<br>– clause 54.02-4 Walls on boundaries.<br>– clause 54.04-1 Daylight to existing windows.<br>– clause 54.04-2 Existing north-facing windows. | Clause 59.04 |

| Class of application | Provision |
|---|---|
| – clause 54.04-3 Overshadowing secluded open space.<br>– clause 54.04-4 Overlooking.<br>– clause 54.05-2 Overshadowing domestic solar energy systems.<br>If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard, the requirement in the schedule to the zone applies and must be met. | |

**Transitional provisions**

Clauses 32.09-10, 54 and 59.04 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 32.09-11 Maximum building height requirement for a dwelling, small second dwelling or residential building

14/12/2023
VC253

A building must not be constructed for use as a dwelling, small second dwelling or a residential building that:

- exceeds the maximum building height specified in a schedule to this zone; or
- contains more than the maximum number of storeys specified in a schedule to this zone.

If no maximum building height or maximum number of storeys is specified in a schedule to this zone:

- the building height must not exceed 9 metres; and
- the building must contain no more than 2 storeys at any point.

A building may exceed the applicable maximum building height or contain more than the applicable maximum number of storeys if:

- It replaces an immediately pre-existing building and the new building does not exceed the building height or contain a greater number of storeys than the pre-existing building.
- There are existing buildings on both abutting allotments that face the same street and the new building does not exceed the building height or contain a greater number of storeys than the lower of the existing buildings on the abutting allotments.
- It is on a corner lot abutted by lots with existing buildings and the new building does not exceed the building height or contain a greater number of storeys than the lower of the existing buildings on the abutting allotments.
- It is constructed pursuant to a valid building permit that was in effect prior to the introduction of this provision.

An extension to an existing building may exceed the applicable maximum building height or contain more than the applicable maximum number of storeys if it does not exceed the building height of the existing building or contain a greater number of storeys than the existing building.

A building may exceed the maximum building height by up to 1 metre if the slope of the natural ground level, measured at any cross section of the site of the building wider than 8 metres, is greater than 2.5 degrees.

A basement is not a storey for the purposes of calculating the number of storeys contained in a building.

The maximum building height and maximum number of storeys requirements in this zone or a schedule to this zone apply whether or not a planning permit is required for the construction of a building.

#### Building height if land is subject to inundation

If the land is in a Special Building Overlay, Land Subject to Inundation Overlay or is land liable to inundation the maximum building height specified in the zone or schedule to the zone is the vertical distance from the minimum floor level determined by the relevant drainage authority or floodplain management authority to the roof or parapet at any point.

## 32.09-12 Application requirements

16/04/2026
VC300

An application must be accompanied by the following information, as appropriate:

- For a development of one dwelling on a lot or a small second dwelling on a lot, the site description and design response as required in clause 54.
- For a development of two or more dwellings on a lot, dwellings on common property and residential buildings of three storeys or less, excluding a basement, the site description and design response as required in clause 55.
- For a development of two or more dwellings on a lot, dwellings on common property and residential buildings of four to six storeys, excluding a basement, the site description and design response as required in clause 57.
- For an apartment development of seven storeys or more, excluding a basement, an urban context report and design response as required in clause 58.
- For an application for subdivision, a site and context description and design response as required in clause 56.
- Plans drawn to scale and dimensioned which show:
  - Site shape, size, dimensions and orientation.
  - The siting and use of existing and proposed buildings.
  - Adjacent buildings and uses, including siting and dimensioned setbacks.
  - The building form and scale.
  - Setbacks to property boundaries.
- The likely effects, if any, on adjoining land, including noise levels, traffic, the hours of delivery and despatch of goods and materials, hours of operation and light spill, solar access and glare.
- Any other application requirements specified in a schedule to this zone.

If in the opinion of the responsible authority an application requirement is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement.

## 32.09-13 Exemption from notice and review

16/04/2026
VC300

#### Subdivision

An application to subdivide land into lots each containing an existing dwelling or car parking space is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

#### Construction and extension of one dwelling on a lot

An application under clause 32.09-5 is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 54.02-1, 54.02-2, 54.02-3, 54.02-4, 54.02-5, 54.02-6, 54.02-7, 54.04 and 54.05-2 are met.

### Construction and extension of a small second dwelling on a lot

An application under clause 32.09-6 is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 54.02-1, 54.02-2, 54.02-3, 54.02-4, 54.02-5, 54.02-6, 54.02-8, 54.03-5, 54.04 and 54.05-2 are met.

### Construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings

An application under clause 32.09-7 for a development of three storeys or less, excluding a basement, is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if all the applicable standards under clauses 55.02, 55.04-1, 55.04-2, 55.04-3, 55.04-4 and 55.05-2 are met.

## 32.09-14 Decision guidelines

16/04/2026
VC300

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider, as appropriate:

### General

- The Municipal Planning Strategy and the Planning Policy Framework.
- The purpose of this zone.
- The objectives set out in the schedule to this zone.
- Any other decision guidelines specified in a schedule to this zone.
- The impact of overshadowing on existing rooftop solar energy systems on dwellings on adjoining lots in a General Residential Zone, Housing Choice and Transport Zone, Mixed Use Zone, Neighbourhood Residential Zone, Residential Growth Zone or Township Zone.

### Subdivision

- The pattern of subdivision and its effect on the spacing of buildings.
- For subdivision of land for residential development, the objectives and standards of clause 56.

### Dwellings, small second dwellings and residential buildings

- For the construction and extension of one dwelling on a lot and a small second dwelling, the applicable objectives, standards and decision guidelines of clause 54.
- For the construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings of three storeys or less, excluding a basement, the objectives, standards and decision guidelines of clause 55.
- For the construction and extension of two or more dwellings on a lot, dwellings on common property and residential buildings of four to six storeys, excluding a basement, the objectives, standards and decision guidelines of clause 57.
- For the construction and extension of an apartment development of seven storeys or more, excluding a basement, the objectives, standards and decisions guidelines of clause 58.

### Non-residential use and development

In the local neighbourhood context:

- Whether the use or development is compatible with residential use.
- Whether the use generally serves local community needs.
- The scale and intensity of the use and development.
- The design, height, setback and appearance of the proposed buildings and works.

- The proposed landscaping.
- The provision of car and bicycle parking and associated accessways.
- Any proposed loading and refuse collection facilities.
- The safety, efficiency and amenity effects of traffic to be generated by the proposal.

## 32.09-15 Signs

14/12/2023
VC253

Sign requirements are at Clause 52.05. This zone is in Category 3.

## 32.09-16 Transitional provisions

14/12/2023
VC253

The minimum garden area requirements of Clause 32.09-4 and the maximum building height and number of storeys requirements of Clause 32.09-9 introduced by Amendment VC110 do not apply to:

- A planning permit application for the construction or extension of a dwelling or residential building lodged before the approval date of Amendment VC110.
- Where a planning permit is not required for the construction or extension of a dwelling or residential building:
  - A building permit issued for the construction or extension of a dwelling or residential building before the approval date of Amendment VC110.
  - A building surveyor has been appointed to issue a building permit for the construction or extension of a dwelling or residential building before the approval date of Amendment VC110. A building permit must be issued within 12 months of the approval date of Amendment VC110.
  - A building surveyor is satisfied, and certifies in writing, that substantial progress was made on the design of the construction or extension of a dwelling or residential building before the approval date of Amendment VC110. A building permit must be issued within 12 months of the approval date of Amendment VC110.

The minimum garden area requirement of Clause 32.09-3 introduced by Amendment VC110 does not apply to a planning permit application to subdivide land for a dwelling or a residential building lodged before the approval date of Amendment VC110.

29/11/2019
C198case

# SCHEDULE 1 TO CLAUSE 32.09 NEIGHBOURHOOD RESIDENTIAL ZONE

Shown on the planning scheme map as **NRZ1**.

**BERWICK TOWNSHIP GRID**

## 1.0 Neighbourhood character objectives

29/11/2019
C198case

To provide a mix of building forms and styles with consistent, spacious setbacks that retains the dominance of the landscape setting.

To provide appropriate front, side and rear setbacks and garden areas with adequate space for landscaping, including canopy trees, so that built form is recessive to the landscape.

To provide dwelling entrances oriented towards the street providing a sense of address.

To provide vegetated front setbacks with no front fencing or the use of low, visually permeable front boundary treatments which enhance the spaciousness and strong avenue planting of the streetscapes.

## 2.0 Minimum subdivision area

29/11/2019
C198case

The minimum lot size for subdivision is 600 square metres.

## 3.0 Requirements of Clause 54 and Clause 55

08/09/2025
VC282

| | Standard | Requirement |
|---|---|---|
| **Minimum street setback** | A2-1 | None specified |
| | B2-1 | None specified |
| **Site coverage** | A2-5 | None specified |
| | B2-5 | None specified |
| **Private open space** | A3-2 | None specified |
| | B3-5 | None specified |
| **Front fence height** | A2-7 and B2-8 | None specified |

## 4.0 Maximum building height requirement for a dwelling, small second dwelling or residential building

26/04/2024
VC252

None specified.

## 5.0 Application requirements

26/04/2024
VC252

None specified.

## 6.0 Decision guidelines

26/04/2024
VC252

The following decision guidelines apply to an application for a permit under Clause 32.09, in addition to those specified in Clause 32.09 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether the layout and appearance of areas set aside for car parking, including garages, car ports and hard stand areas, are sensitively designed and sited.

20/05/2021
C231case

# SCHEDULE 2 TO CLAUSE 32.09 NEIGHBOURHOOD RESIDENTIAL ZONE

Shown on the planning scheme map as **NRZ2**.

**MINIMAL CHANGE AREAS**

## 1.0 Neighbourhood character objectives

20/05/2021
C231case

None specified.

## 2.0 Minimum subdivision area

20/05/2021
C231case

None specified.

## 3.0 Requirements of Clause 54 and Clause 55

08/09/2025
VC282

| | Standard | Requirement |
|---|---|---|
| **Minimum street setback** | A2-1 | None specified |
| | B2-1 | None specified |
| **Site coverage** | A2-5 | None specified |
| | B2-5 | None specified |
| **Private open space** | A3-2 | None specified |
| | B3-5 | None specified |
| **Front fence height** | A2-7 and B2-8 | None specified |

## 4.0 Maximum building height requirement for a dwelling, small second dwelling or residential building

26/04/2024
VC252

None specified.

## 5.0 Application requirements

26/04/2024
VC252

None specified.

## 6.0 Decision guidelines

26/04/2024
VC252

None specified.

# 33 INDUSTRIAL ZONES

19/01/2006
VC37

## 33.01 INDUSTRIAL 1 ZONE

31/07/2018
VC148

Shown on the planning scheme map as **IN1Z**.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide for manufacturing industry, the storage and distribution of goods and associated uses in a manner which does not affect the safety and amenity of local communities.

## 33.01-1 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Convenience shop** | |
| **Crop raising** | |
| **Grazing animal production** | |
| **Home based business** | |
| **Industry (other than Materials recycling and Transfer station)** | Must not be a purpose listed in the table to Clause 53.10 with no threshold distance specified.<br>The land must be at least the following distances from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution:<br>▪ The threshold distance, for a purpose listed in the table to Clause 53.10.<br>▪ 30 metres, for a purpose not listed in the table to Clause 53.10.<br>Must not:<br>▪ Exceed a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022.<br>▪ Require a notification under the Occupational Health and Safety Regulations 2017.<br>▪ Require a licence under the Dangerous Goods (Explosives) Regulations 2011.<br>▪ Require a licence under the Dangerous Goods (HCDG) Regulations 2016.<br>Must not adversely affect the amenity of the neighbourhood, including through the:<br>▪ Transport of materials, goods or commodities to or from the land.<br>▪ Appearance of any stored goods or materials.<br>▪ Emission of noise, artificial light, vibration, odour, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil. |

| Use | Condition |
|---|---|
| **Informal outdoor recreation** | |
| **Mail centre** | |
| **Railway** | |
| **Service station** | The land must be at least 30 metres from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution.<br>Must not adversely affect the amenity of the neighbourhood, including through the:<br>▪ Transport of materials, goods or commodities to or from the land.<br>▪ Appearance of any stored goods or materials.<br>Emission of noise, artificial light, vibration, odour, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil. |
| **Shipping container storage** | Must not be a purpose listed in the table to Clause 53.10 with no threshold distance specified.<br>The land must be at least the following distances from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution:<br>▪ The threshold distance, for a purpose listed in the table to Clause 53.10.<br>▪ 100 metres, for a purpose not listed in the table to Clause 53.10.<br>Must not:<br>▪ Exceed a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022.<br>▪ Require a notification under the Occupational Health and Safety Regulations 2017.<br>▪ Require a licence under the Dangerous Goods (Explosives) Regulations 2011.<br>▪ Require a licence under the Dangerous Goods (HCDG) Regulations 2016.<br>The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3.<br>Shipping containers must be setback at least 9 metres from a road in a Transport Zone 2 or a Transport Zone 3.<br>The height of shipping container stacks must not exceed 6 containers or 16 metres, whichever is the lesser.<br>Must not adversely affect the amenity of the neighbourhood, including through the:<br>▪ Transport of materials, goods or commodities to or from the land.<br>▪ Appearance of any stored goods or materials.<br>▪ Emission of noise, artificial light, vibration, odour, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil. |

| Use | Condition |
|---|---|
| **Take away food premises** | |
| **Tramway** | |
| **Warehouse (other than Mail centre and Shipping container storage)** | Must not be a purpose listed in the table to Clause 53.10 with no threshold distance specified.<br>The land must be at least the following distances from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution:<br>▪ The threshold distance, for a purpose listed in the table to Clause 53.10.<br>▪ 30 metres, for a purpose not listed in the table to Clause 53.10.<br>Must not:<br>▪ Exceed a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022.<br>▪ Require a notification under the Occupational Health and Safety Regulations 2017.<br>▪ Require a licence under the Dangerous Goods (Explosives) Regulations 2011.<br>▪ Require a licence under Dangerous Goods (HCDG) Regulations 2016.<br>Must not adversely affect the amenity of the neighbourhood, including through the:<br>▪ Transport of materials, goods or commodities to or from the land.<br>▪ Appearance of any stored goods or materials.<br>▪ Emission of noise, artificial light, vibration, odour, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil. |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Adult sex product shop** | Must be at least 200 metres (measured by the shortest route reasonably accessible on foot) from a residential zone or land used for a hospital, primary school or secondary school or land in a Public Acquisition Overlay to be acquired for a hospital, primary school or secondary school. |
| **Agriculture (other than Apiculture, Crop raising, Grazing animal production, Intensive animal production, Pig farm and Poultry farm)** | |
| **Caretaker's house** | |
| **Container deposit scheme centre** | |

| Use | Condition |
|---|---|
| **Education centre** | Must not be a primary or secondary school. |
| **Leisure and recreation (other than Informal outdoor recreation)** | |
| **Materials recycling** | The land must be at least 30 metres from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone or land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution. |
| **Office** | The leasable floor area must not exceed the amount specified in the schedule to this zone. |
| **Place of assembly (other than Carnival, Cinema based entertainment facility and Circus)** | |
| **Restricted retail premises** | |
| **Retail premises (other than Shop and Take away food premises)** | |
| **Sex services premises** | |
| **Transfer station (other than Automated collection point and Container deposit scheme centre)** | The land must be at least 30 metres from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone or land used for a hospital, an education centre a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution. |
| **Utility installation (other than Minor utility installation and Telecommunications facility).** | Any gas holder, or sewerage or refuse treatment or disposal works, must be at least 30 metres from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution. |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Accommodation (other than Caretaker's house)** |
| **Cinema based entertainment facility** |
| **Hospital** |
| **Intensive animal production** |

| Use |
| --- |
| **Pig farm** |
| **Poultry farm** |
| **Shop (other than Adult sex product shop, Convenience shop, Restricted retail premises and Sex services premises)** |

## 33.01-2 Use of land

14/01/2025
VC237

### Application requirements

An application to use land for an industry or warehouse must be accompanied by the following information, as appropriate:

- The purpose of the use and the types of processes to be utilised.
- The type and quantity of goods to be stored, processed or produced.
- How land not required for immediate use is to be maintained.
- Whether a Development Licence, Operating Licence, Permit or Registration is required from the Environment Protection Authority.
- Whether a notification under the Occupational Health and Safety Regulations 2017 is required, a licence under the *Dangerous Goods Act 1985* is required, or a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022 is exceeded.
- The likely effects, if any, on the neighbourhood, including:
  - Noise levels.
  - Air-borne emissions.
  - Emissions to land or water.
  - Traffic, including the hours of delivery and despatch.
  - Light spill or glare.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The effect that the use may have on nearby existing or proposed residential areas or other uses which are sensitive to industrial off-site effects, having regard to any comments or directions of the referral authorities.
- The effect that nearby industries may have on the proposed use.
- The drainage of the land.
- The availability of and connection to services.
- The effect of traffic to be generated on roads.
- The interim use of those parts of the land not required for the proposed use.

## 33.01-3 Subdivision

31/07/2018
VC148

### Permit requirement

A permit is required to subdivide land.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within 5 years prior to the application for a permit for subdivision. | Clause 59.02 |
| Subdivide land into 2 lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land:<br>– Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | Clause 59.02 |

### Exemption from notice and review

An application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act. This exemption does not apply to land within 30 metres of land (not a road) which is in a residential zone or land used for a hospital or an education centre or land in a Public Acquisition Overlay to be acquired for a hospital or an education centre.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any natural or cultural values on or near the land.
- Streetscape character.
- Landscape treatment.

- Interface with non-industrial areas.

## 33.01-4 Buildings and works

20/04/2026
VC307

### Permit requirement

A permit is required to construct a building or construct or carry out works.

This does not apply to:

- A building or works which rearrange, alter or renew plant if the area or height of the plant is not increased.
- A building or works which are used for crop raising or informal outdoor recreation.
- A rainwater tank with a capacity of more than 10,000 litres if the following requirements are met:
  - The rainwater tank is not located within the building's setback from a street (other than a lane).
  - The rainwater tank is no higher than the existing building on the site.
  - The rainwater tank is not located in an area that is provided for car parking, loading, unloading or accessway.
- A building or works which are used for grazing animal production, except for permanent or fixed feeding infrastructure for seasonal or supplementary feeding constructed within 100 metres of:
  - A waterway, wetland or designated flood plain.
  - A dwelling not in the same ownership.
  - A residential or urban growth zone.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works with an estimated cost of up to $1,400,000 where the land is not:<br>▪ Within 30 metres of land (not a road) which is in a residential zone.<br>▪ Used for a purpose listed in the table to Clause 53.10.<br>▪ Used for an Adult sex product shop. | Clause 59.04 |

### Application requirements

An application to construct a building or construct or carry out works must be accompanied by the following information, as appropriate:

- A plan drawn to scale which shows:
  - The boundaries and dimensions of the site.
  - Adjoining roads.
  - Relevant ground levels.

  - The layout of existing and proposed buildings and works.
  - Driveways and vehicle parking and loading areas.
  - Proposed landscape areas.
  - External storage and waste treatment areas.
- Elevation drawings to scale which show the colour and materials of all buildings and works.
- Construction details of all drainage works, driveways and vehicle parking and loading areas.
- A landscape layout which includes the description of vegetation to be planted, the surfaces to be constructed, a site works specification and the method of preparing, draining, watering and maintaining the landscape area.

### Exemption from notice and review

An application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act. This exemption does not apply to an application for a building or works within 30 metres of land (not a road) which is in a residential zone or land used for a hospital or an education centre or land in a Public Acquisition Overlay to be acquired for a hospital or an education centre.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any natural or cultural values on or near the land.
- Streetscape character.
- Built form.
- Landscape treatment.
- Interface with non-industrial areas.
- Parking and site access.
- Loading and service areas.
- Outdoor storage.
- Lighting.
- Stormwater discharge.

### Maintenance

All buildings and works must be maintained in good order and appearance to the satisfaction of the responsible authority.

## 33.01-5 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 2.

02/12/2022
C259case

# SCHEDULE TO CLAUSE 33.01 INDUSTRIAL 1 ZONE

## 1.0 Maximum leasable floor area requirements

02/12/2022
C259case

| Land | Maximum leasable floor area for Office (square metres) |
|---|---|
| None specified | None specified |

## 33.03 INDUSTRIAL 3 ZONE

31/07/2018
VC148

Shown on the planning scheme map as **IN3Z**.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide for industries and associated uses in specific areas where special consideration of the nature and impacts of industrial uses is required or to avoid inter-industry conflict.

To provide a buffer between the Industrial 1 Zone or Industrial 2 Zone and local communities, which allows for industries and associated uses compatible with the nearby community.

To allow limited retail opportunities including convenience shops, small scale supermarkets and associated shops in appropriate locations.

To ensure that uses do not affect the safety and amenity of adjacent, more sensitive land uses.

## 33.03-1 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Convenience shop** | |
| **Crop raising** | |
| **Grazing animal production** | |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Mail centre** | |
| **Railway** | |
| **Service industry** | Must not be a purpose listed in the table to Clause 53.10 with no threshold distance specified.<br>The land must be at least the following distances from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution:<br>▪ The threshold distance, for a purpose listed in the table to Clause 53.10.<br>▪ 30 metres, for a purpose not listed in the table to Clause 53.10.<br>Must not:<br>▪ Exceed a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022. |

| Use | Condition |
|---|---|
| | ▪ Require a notification under the Occupational Health and Safety Regulations 2017.<br>▪ Require a licence under the Dangerous Goods (Explosives) Regulations 2011.<br>▪ Require a licence under Dangerous Goods (HCDG) Regulations 2016. |
| **Service station** | The land must be at least 30 metres from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution. |
| **Shop (other than Adult sex product shop, Convenience shop, Restricted retail premises and Supermarket)** | Must adjoin, or be on the same lot as, a supermarket when the use commences.<br>The combined leasable floor area for all shops adjoining or on the same lot as the supermarket must not exceed 500 square metres.<br>The site must adjoin, or be within 30 metres of, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Supermarket** | The leasable floor area must not exceed 1800 square metres.<br>The site must adjoin, or be within 30 metres of, a road in a Transport Zone 2 or a Transport Zone 3.<br>Must be on land within an urban growth boundary and in metropolitan Melbourne. |
| **Take away food premises** | |
| **Tramway** | |
| **Warehouse (other than Fuel depot, Mail centre or Shipping container storage)** | Must not be a purpose listed in the table to Clause 53.10 with no threshold distance specified.<br>The land must be at least the following distances from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution:<br>▪ The threshold distance, for a purpose listed in the table to Clause 53.10.<br>▪ 30 metres, for a purpose not listed in the table to Clause 53.10.<br>Must not:<br>▪ Exceed a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022.<br>▪ Require a notification under the Occupational Health and Safety Regulations 2017.<br>▪ Require a licence under the Dangerous Goods (Explosives) Regulations 2011.<br>▪ Require a licence under the Dangerous Goods (HCDG) Regulations 2016. |

| Use | Condition |
|---|---|
| | Must not adversely affect the amenity of the neighbourhood, including through the:<br>▪ Transport of materials, goods or commodities to or from the land.<br>▪ Appearance of any stored goods or materials.<br>▪ Emission of noise, artificial light, vibration, odour, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Adult sex product shop** | Must be at least 200 metres (measured by the shortest route reasonably accessible on foot) from a residential zone or land used for a hospital, primary school or secondary school or land in a Public Acquisition Overlay to be acquired for a hospital, primary school or secondary school. |
| **Agriculture (other than Apiculture, Crop raising, Grazing animal production, Intensive animal production, Pig farm and Poultry farm)** | |
| **Caretaker's house** | |
| **Education centre** | Must not be a primary or secondary school. |
| **Industry (other than Automated collection point and Service industry)** | |
| **Leisure and recreation (other than Informal outdoor recreation, Major sports and recreation facility, and Motor racing track)** | |
| **Office** | The leasable floor area must not exceed the amount specified in the schedule to this zone. |
| **Place of assembly (other than Carnival, Cinema based entertainment facility and Circus)** | |
| **Restricted retail premises** | |
| **Retail premises (other than Shop and Take away food premises)** | |
| **Sex services premises - if the Section 1 conditions for a shop are not met** | |

| Use | Condition |
|---|---|
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Accommodation (other than Caretaker's house)** |
| **Cinema based entertainment facility** |
| **Hospital** |
| **Intensive animal production** |
| **Major sports and recreation facility** |
| **Motor racing track** |
| **Pig farm** |
| **Poultry farm** |
| **Shop (other than Adult sex product shop, Convenience shop, Restricted retail premises, Sex services premises and Supermarket) – if the Section 1 conditions are not met** |
| **Supermarket – if the section 1 conditions are not met** |

## 33.03-2 Use of land

14/01/2025
VC237

### Amenity of the neighbourhood

A use must not adversely affect the amenity of the neighbourhood, including through the:

- Transport of materials, goods or commodities to or from the land.
- Appearance of any stored goods or materials.
- Emission of noise, artificial light, vibration, odour, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil.

### Application requirements

An application to use land for an industry or warehouse must be accompanied by the following information, as appropriate:

- The purpose of the use and the types of processes to be utilised.
- The type and quantity of goods to be stored, processed or produced.
- How land not required for immediate use is to be maintained.
- Whether a Development Licence, Operating Licence, Permit or Registration is required from the Environment Protection Authority.

- Whether a notification under the Occupational Health and Safety Regulations 2017 is required, a licence under the *Dangerous Goods Act 1985* is required, or a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022 is exceeded.
- The likely effects, if any, on the neighbourhood, including:
  - Noise levels.
  - Air-borne emissions.
  - Emissions to land or water.
  - Traffic, including the hours of delivery and despatch.
  - Light spill or glare.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The effect that the use may have on nearby existing or proposed residential areas or other uses which are sensitive to industrial off-site effects, having regard to any comments or directions of the referral authorities.
- The effect that nearby industries may have on the proposed use.
- The drainage of the land.
- The availability of and connection to services.
- The effect of traffic to be generated on roads.
- The interim use of those parts of the land not required for the proposed use.
- The effect on nearby industries.

## 33.03-3 Subdivision

31/07/2018
VC148

### Permit requirement

A permit is required to subdivide land.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme. | Clause 59.02 |

| Class of application | Information requirements and decision guidelines |
|---|---|
| ▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within 5 years prior to the application for a permit for subdivision. | |
| Subdivide land into 2 lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land:<br>– Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | Clause 59.02 |

### Exemption from notice and review

An application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act. This exemption does not apply to land within 30 metres from land (not a road) which is in a residential zone or land used for a hospital or an education centre or land in a Public Acquisition Overlay to be acquired for a hospital or an education centre.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any natural or cultural values on or near the land.
- Streetscape character.
- Landscape treatment.
- Interface with non-industrial areas.

## 33.03-4 Buildings and works

20/04/2026
VC307

### Permit requirement

A permit is required to construct a building or construct or carry out works.

This does not apply to:

- A building or works which rearrange, alter or renew plant if the area or height of the plant is not increased.
- A building or works which are used for crop raising or informal outdoor recreation.
- A rainwater tank with a capacity of more than 10,000 litres if the following requirements are met:
  - The rainwater tank is not located within the building's setback from a street (other than a lane).

  - The rainwater tank is no higher than the existing building on the site.
  - The rainwater tank is not located in an area that is provided for car parking, loading, unloading or accessway.
- A building or works which are used for grazing animal production, except for permanent or fixed feeding infrastructure for seasonal or supplementary feeding constructed within 100 metres of:
  - A waterway, wetland or designated flood plain.
  - A dwelling not in the same ownership.
  - A residential or urban growth zone.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works with an estimated cost of up to $1,400,000 where the land is not:<br>▪ Within 30 metres of land (not a road) which is in a residential zone.<br>▪ Used for a purpose listed in the table to Clause 53.10.<br>▪ Used for an Adult sex product shop. | Clause 59.04 |

### Application requirements

An application to construct a building or construct or carry out works must be accompanied by the following information, as appropriate:

- A plan drawn to scale which shows:
  - The boundaries and dimensions of the site.
  - Adjoining roads.
  - Relevant ground levels.
  - The layout of existing and proposed buildings and works.
  - Driveways and vehicle parking and loading areas.
  - Proposed landscape areas.
  - External storage and waste treatment areas.
  - Mechanisms to mitigate noise, odour and other adverse amenity impacts of, and on, nearby industries.
- Elevation drawings to scale which show the colour and materials of all buildings and works.
- Construction details of all drainage works, driveways and vehicle parking and loading areas.
- A landscape layout which includes the description of vegetation to be planted, the surfaces to be constructed, a site works specification and the method of preparing, draining, watering and maintaining the landscape area.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any natural or cultural values on or near the land.
- Streetscape character.
- Built form.
- Landscape treatment.
- Interface with non-industrial areas.
- Parking and site access.
- Loading and service areas.
- Outdoor storage.
- Lighting.
- Stormwater discharge.
- The effect on nearby industries.
- The effect of nearby industries.

### Maintenance

All buildings and works must be maintained in good order and appearance to the satisfaction of the responsible authority.

## 33.03-5 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 2.

02/12/2022
C259case

# SCHEDULE TO CLAUSE 33.03 INDUSTRIAL 3 ZONE

## 1.0 Maximum leasable floor area requirements

02/12/2022
C259case

| Land | Maximum leasable floor area for Office (square metres) |
|---|---|
| None specified | None specified |

# 34 COMMERCIAL ZONES

15/07/2013
VC100

## 34.01 COMMERCIAL 1 ZONE

31/07/2018
VC148

Shown on the planning scheme map as **B1Z**, **B2Z**, **B5Z** or **C1Z**.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To create vibrant mixed use commercial centres for retail, office, business, entertainment and community uses.

To provide for residential uses at densities complementary to the role and scale of the commercial centre.

### Operation

A schedule may apply under this zone to a planning scheme outside of metropolitan Melbourne. That schedule may:

- specify the maximum leasable floor area for office
- specify the maximum leasable floor area for shop (other than restricted retail premises).

## 34.01-1 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Accommodation (other than Community care accommodation, Corrective institution, Rooming house and Small second dwelling)** | Any frontage at ground floor level must not exceed 2 metres (other than a bed and breakfast and caretaker's house). |
| **Art and craft centre** | |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Child care centre** | Any frontage at ground floor level must not exceed 2 metres and access must not be shared with a dwelling (other than a caretaker's house). |
| **Cinema** | |
| **Cinema based entertainment facility** | |
| **Community care accommodation** | Any frontage at ground floor level must not exceed 2 metres.<br>Must meet the requirements of Clause 52.22-2. |
| **Education centre (other than Child care centre)** | |
| **Exhibition centre** | |
| **Home based business** | |
| **Informal outdoor recreation** | |

| Use | Condition |
|---|---|
| **Office** | The leasable floor area for all offices must not exceed any amount specified in the schedule to this zone. |
| **Place of worship** | The gross floor area of all buildings must not exceed 250 square metres. |
| **Railway** | |
| **Retail premises (other than Shop)** | |
| **Rooming house** | Any frontage at ground floor level must not exceed 2 metres.<br>Must meet the requirements of Clause 52.23-2. |
| **Shop (other than Adult sex product shop)** | The leasable floor area for all shops must not exceed any amount specified in the schedule to this zone. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Adult sex product shop** | Must be at least 200 metres (measured by the shortest route reasonably accessible on foot) from a residential zone or, land used for a hospital, primary school or secondary school or land in a Public Acquisition Overlay to be acquired for a hospital, primary school or secondary school. |
| **Agriculture (other than Animal production and Apiculture)** | |
| **Container deposit scheme centre** | |
| **Grazing animal production** | |
| **Industry (other than Automated collection point and Container deposit scheme centre)** | Must not be a purpose listed in the table to Clause 53.10. |
| **Leisure and recreation facility (other than Informal outdoor recreation, Major sports and recreation facility and Motor racing track)** | |
| **Place of assembly (other than Carnival, Cinema, Cinema based entertainment facility, Circus, Exhibition centre and Place of worship)** | |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | Must not be a purpose listed in the table to Clause 53.10. |
| **Warehouse** | Must not be a purpose listed in the table to Clause 53.10. |

| Use | Condition |
|---|---|
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Animal production (other than Grazing animal production)** |
| **Corrective institution** |
| **Major sports and recreation facility** |
| **Motor racing track** |
| **Small second dwelling** |

## 34.01-2 Use of land

15/07/2013
VC100

A use must not detrimentally affect the amenity of the neighbourhood, including through the:

- Transport of materials, goods or commodities to or from the land.
- Appearance of any building, works or materials.
- Emission of noise, artificial light, vibration, smell, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil.

## 34.01-3 Subdivision

31/07/2018
VC148

A permit is required to subdivide land.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within 5 years prior to the application for a permit for subdivision. | Clause 59.02 |
| Subdivide land into 2 lots if: | Clause 59.02 |

| Class of application | Information requirements and decision guidelines |
|---|---|
| ▪ The construction of a building or the construction or carrying out of works on the land:<br>– Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | |

## 34.01-4 Buildings and works

20/04/2026
VC307

A permit is required to construct a building or construct or carry out works.

This does not apply to:

- The installation of an automatic teller machine.
- An alteration to an existing building façade provided:
  - The alteration does not include the installation of an external roller shutter.
  - At least 80 per cent of the building facade at ground floor level is maintained as an entry or window with clear glazing.
- An awning that projects over a road if it is authorised by the relevant public land manager.

An apartment development must meet the requirements of Clause 58.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works with an estimated cost of up to $700,000 where the land is not:<br>▪ Within 30 metres of land (not a road) which is in a residential zone.<br>▪ Used for a purpose listed in the table to Clause 53.10.<br>▪ Used for an Adult sex product shop. | Clause 59.04 |

### Transitional provisions

Clause 58 does not apply to:

- An application for a planning permit lodged before the approval date of Amendment VC136.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before the approval date of Amendment VC136.

### Maintenance

All buildings and works must be maintained in good order and appearance to the satisfaction of the responsible authority.

## 34.01-5 Site description and design response

08/09/2025
VC282

An application for any of the following must be accompanied by a site description and a design response as described in Clause 54.01, 55.01 or 57.01, as appropriate:

- Construction or extension of one dwelling on a lot of less than 300 square metres.
- Construction of a dwelling if there is at least one dwelling existing on the lot.
- Construction of two or more dwellings on a lot.
- Extension of a dwelling if there are two or more dwellings on the lot.
- Construction or extension of a dwelling on common property.
- Construction or extension of a residential building.

Clause 34.01-5 does not apply to an apartment development.

## 34.01-6 Application requirements

14/01/2025
VC237

### Use

An application to use land must be accompanied by the following information, as appropriate:

- The purpose of the use and the types of activities which will be carried out.
- The likely effects, if any, on adjoining land, including noise levels, traffic, the hours of delivery and despatch of goods and materials, hours of operation and light spill, solar access and glare.
- The means of maintaining land not required for immediate use.
- If an industry or warehouse:
  - The type and quantity of goods to be stored, processed or produced.
  - Whether a Development Licence, Operating Licence, Permit or Registration is required from the Environment Protection Authority.
  - Whether a notification under the Occupational Health and Safety Regulations 2017 is required, a licence under the *Dangerous Goods Act 1985* is required, or a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022 is exceeded.
  - The likely effects on adjoining land, including air-borne emissions and emissions to land and water.

### Buildings and works

An application to construct a building or construct or carry out works must be accompanied by the following information, as appropriate:

- A plan drawn to scale which shows:
  - The boundaries and dimensions of the site.
  - Adjoining roads.
  - The location, height and purpose of buildings and works on adjoining land.
  - Relevant ground levels.
  - The layout of existing and proposed buildings and works.
  - All driveway, car parking and loading areas.
  - Proposed landscape areas.
  - All external storage and waste treatment areas.
  - Areas not required for immediate use.

- Elevation drawings to scale showing the colour and materials of all buildings and works.
- Construction details of all drainage works, driveways, vehicle parking and loading areas.
- A landscape layout which includes the description of vegetation to be planted, the surfaces to be constructed, site works specification and method of preparing, draining, watering and maintaining the landscape area.

An application to construct or extend an apartment development, or to construct or extend a dwelling in or forming part of an apartment development, must be accompanied by an urban context report and design response as required in Clause 58.01.

## 34.01-7 Exemption from notice and review

31/07/2018
VC148

An application to subdivide land or construct a building or construct or carry out works is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act. This exemption does not apply to land within 30 metres of land (not a road) which is in a residential zone, land used for a hospital or an education centre or land in a Public Acquisition Overlay to be acquired for a hospital or an education centre.

## 34.01-8 Decision guidelines

08/09/2025
VC282

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

### General

- The Municipal Planning Strategy and the Planning Policy Framework.
- The interface with adjoining zones, especially the relationship with residential areas.

### Use

- The effect that existing uses may have on the proposed use.
- The drainage of the land.
- The availability of and connection to services.
- The effect of traffic to be generated on roads.
- The interim use of those parts of the land not required for the proposed use.

### Subdivision

- Provision for vehicles providing for supplies, waste removal and emergency services and public transport.
- The effect the subdivision will have on the potential of the area to accommodate the uses which will maintain or enhance its competitive strengths.

### Building and works

- The movement of pedestrians and cyclists, and vehicles providing for supplies, waste removal, emergency services and public transport.
- The provision of car parking.
- The streetscape, including the conservation of buildings, the design of verandahs, access from the street front, protecting active frontages to pedestrian areas, the treatment of the fronts and backs of buildings and their appurtenances, illumination of buildings or their immediate spaces and the landscaping of land adjoining a road.
- The storage of rubbish and materials for recycling.

- Defining the responsibility for the maintenance of buildings, landscaping and paved areas.
- Consideration of the overlooking and overshadowing as a result of building or works affecting adjoining land in a General Residential Zone, Housing Choice and Transport Zone, Neighbourhood Residential Zone, Residential Growth Zone or Township Zone.
- The impact of overshadowing on existing rooftop solar energy systems on dwellings on adjoining lots in a General Residential Zone, Housing Choice and Transport Zone, Mixed Use Zone, Neighbourhood Residential Zone, Residential Growth Zone or Township Zone.
- The availability of and connection to services.
- The design of buildings to provide for solar access.
- The objectives, standards and decision guidelines of Clause 54, Clause 55 and Clause 57. This does not apply to an apartment development.
- For an apartment development, the objectives, standards and decision guidelines of Clause 58.

### Transitional provisions

The objectives, standards and decision guidelines of Clause 55 of this scheme, as in force immediately before the approval date of Amendment VC136, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clauses 55 and 58 of this scheme, as in force immediately before the approval date of Amendment VC174, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 55 of this planning scheme, as in force immediately before the approval date of Amendment VC267, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 54 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 34.01-9 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 1.

02/12/2022
C259case

# SCHEDULE TO CLAUSE 34.01 COMMERCIAL 1 ZONE

## 1.0

02/12/2022
C259case

## Maximum leasable floor area requirements

| Land | Maximum leasable floor area for Office (square metres) | Maximum leasable floor area for Shop (other than Restricted retail premises) (square metres) |
|---|---|---|
| None specified | None specified | None specified |

## 34.02 COMMERCIAL 2 ZONE

31/07/2018
VC148

Shown on the planning scheme map as **B3Z**, **B4Z** or **C2Z**.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To encourage commercial areas for offices, appropriate manufacturing and industries, bulky goods retailing, other retail uses, and associated business and commercial services.

To ensure that uses do not affect the safety and amenity of adjacent, more sensitive uses.

## 34.02-1 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Art and craft centre** | |
| **Art gallery** | |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Cinema** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Cinema based entertainment facility** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Food and drink premises** | The leasable floor area must not exceed 100 square metres. |
| **Industry (other than Materials recycling and Transfer station)** | Must not be a purpose listed in the table to Clause 53.10 with no threshold specified.<br>The land must be at least the following distances from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution:<br>▪ The threshold distance, for a purpose listed in the table to Clause 53.10.<br>▪ 30 metres, for a purpose not listed in the table to Clause 53.10.<br>Must not:<br>▪ Exceed a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022.<br>▪ Require a notification under the Occupational Health and Safety Regulations 2017.<br>▪ Require a licence under the Dangerous Goods (Explosives) Regulations 2011.<br>▪ Require a licence under the Dangerous Goods (HCDG) Regulations 2016. |
| **Informal outdoor recreation** | |

| Use | Condition |
|---|---|
| **Mail centre** | |
| **Museum** | |
| **Office** | |
| **Postal agency** | |
| **Railway** | |
| **Restricted retail premises** | |
| **Shop (other than Adult sex product shop, Restricted retail premises and Supermarket)** | Must adjoin, or be on the same land as, a supermarket when the use commences.<br>The combined leasable floor area for all shops adjoining or on the same land as the supermarket must not exceed 500 square metres.<br>The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Supermarket** | The leasable floor area must not exceed 1800 square metres.<br>The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3.<br>Must be on land within the City of Greater Geelong or within an urban growth boundary in metropolitan Melbourne. |
| **Trade supplies** | |
| **Tramway** | |
| **Warehouse (other than Mail centre)** | Must not be a purpose listed in the table to Clause 53.10 with no threshold distance specified.<br>The land must be at least the following distances from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or corrective institution:<br>▪ The threshold distance, for a purpose listed in the table to Clause 53.10.<br>▪ 30 metres, for a purpose not listed in the table to Clause 53.10.<br>Must not:<br>▪ Exceed a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022.<br>▪ Require a notification under the Occupational Health and Safety Regulations 2017.<br>▪ Require a licence under the Dangerous Goods (Explosives) Regulations 2011.<br>▪ Require a licence under the Dangerous Goods (HCDG) Regulations 2016. |

| Use | Condition |
|---|---|
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Adult sex product shop** | Must be at least 200 metres (measured by the shortest route reasonably accessible on foot) from a residential zone, land used for a hospital, primary school or secondary school or land in a Public Acquisition Overlay to be acquired for a hospital, primary school or secondary school. |
| **Agriculture (other than Animal production and Apiculture)** | |
| **Caretaker's house** | |
| **Container deposit scheme centre** | |
| **Education centre** | |
| **Grazing animal production** | |
| **Leisure and recreation (other than Informal outdoor recreation, Major sports and recreation facility and Motor racing track)** | |
| **Materials recycling** | |
| **Place of assembly (other than Art gallery, Carnival, Cinema, Cinema based entertainment facility, Circus and Museum)** | |
| **Residential hotel** | |
| **Retail premises (other than Food and drink premises, Postal agency, Restricted retail premises, Supermarket and Trade supplies)** | |
| **Supermarket – if the Section 1 conditions are not met** | The leasable floor area must not exceed 1800 square metres unless on land within the City of Greater Geelong or within an urban growth boundary in metropolitan Melbourne.<br>The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Transfer station (other than Automated collection point and Container deposit scheme centre)** | The land must be at least 30 metres from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution. |

| Use | Condition |
|---|---|
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Accommodation (other than Caretaker's house and Residential hotel)** |
| **Animal production (other than Grazing animal production)** |
| **Hospital** |
| **Major sports and recreation facility** |
| **Motor racing track** |

## 34.02-2 Use of land

15/07/2013
VC100

A use must not detrimentally affect the amenity of the neighbourhood, including through the:

- Transport of materials, goods or commodities to or from the land.
- Appearance of any building, works or materials.
- Emission of noise, artificial light, vibration, smell, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil.

## 34.02-3 Subdivision

31/07/2018
VC148

A permit is required to subdivide land.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within 5 years prior to the application for a permit for subdivision. | Clause 59.02 |

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land into 2 lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land:<br>– Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | Clause 59.02 |

## 34.02-4 Buildings and works

20/04/2026
VC307

A permit is required to construct a building or construct or carry out works.

This does not apply to:

- The installation of an automatic teller machine.
- An alteration to an existing building façade provided:
  - The alteration does not include the installation of an external roller shutter.
  - At least 80 per cent of the building facade at ground floor level is maintained as an entry or window with clear glazing.
- An awning that projects over a road if it is authorised by the relevant public land manager.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works with an estimated cost of up to $700,000 where the land is not:<br>▪ Within 30 metres of land (not a road) which is in a residential zone.<br>▪ Used for a purpose listed in the table to Clause 53.10.<br>▪ Used for an Adult sex product shop. | Clause 59.04 |

### Maintenance

All buildings and works must be maintained in good order and appearance to the satisfaction of the responsible authority.

## 34.02-5 Application requirements

14/01/2025
VC237

### Use

An application to use land must be accompanied by the following information, as appropriate:

- The purpose of the use and the types of activities which will be carried out.

- The likely effects, if any, on adjoining land, including noise levels, traffic, the hours of delivery and despatch of goods or materials, hours of operation and light spill, solar access and glare.
- The means of maintaining areas not required for immediate use.
- If an industry or warehouse:
  - The type and quantity of goods to be stored, processed or produced.
  - Whether a Development Licence, Operating Licence, Permit or Registration is required from the Environment Protection Authority.
  - Whether a notification under the Occupational Health and Safety Regulations 2017 is required, a licence under the *Dangerous Goods Act 1985* is required, or a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022 is exceeded.
  - The likely effects on adjoining land, including air-borne emissions and emissions to land and water.

**Building and works**

An application to construct a building or construct or carry out works must be accompanied by the following information, as appropriate:

- A plan drawn to scale which shows:
  - The boundaries and dimensions of the site.
  - Adjoining roads.
  - The location, height and purpose of buildings and works on adjoining land.
  - Relevant ground levels.
  - The layout of existing and proposed buildings and works.
  - All driveway, car parking and loading areas.
  - Proposed landscape areas.
  - All external storage and waste treatment areas.
  - Areas not required for immediate use.
- Elevation drawings to scale showing the colour and materials of all buildings and works.
- Construction details of all drainage works, driveways, vehicle parking and loading areas.
- A landscape layout which includes the description of vegetation to be planted, the surfaces to be constructed, site works specification and method of preparing, draining, watering and maintaining the landscape area.

## 34.02-6 Exemption from notice and review

31/07/2018
VC148

An application to subdivide land or construct a building or construct or carry out works is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act. This exemption does not apply to land within 30 metres of land (not a road) which is in a residential zone, land used for a hospital or an education centre or land in a Public Acquisition Overlay to be acquired for a hospital or an education centre.

## 34.02-7 Decision guidelines

31/07/2018
VC148

### General

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The interface with adjoining zones, especially the relationship with residential areas.

### Use

- The effect that existing uses may have on the proposed use.
- The drainage of the land.
- The availability of and connection to services.
- The effect of traffic to be generated on roads.
- The interim use of those parts of the land not required for the proposed use.
- If an industry or warehouse, the effect that the use may have on nearby existing or proposed residential areas or other uses which are sensitive to industrial off-site effects, having regard to any comments or directions of the referral authorities.

### Subdivision

- The effect the subdivision will have on the potential of the area to accommodate the uses which will maintain or enhance its competitive strengths.
- Any natural or cultural values on or near the land.
- Streetscape character.
- Landscape treatment.

### Building and works

- The movement of pedestrians and cyclists, and vehicles providing for supplies, waste removal, emergency services and public transport.
- The provision of car parking.
- The streetscape, including the conservation of buildings, the design of verandahs, access from the street front, protecting active frontages to pedestrian areas, the treatment of the fronts and backs of buildings and their appurtenances, illumination of buildings or their immediate spaces and landscaping of land adjoining a road.
- Defining the responsibility for the maintenance of buildings, landscaping and paved areas.
- The availability of and connection to services.
- Any natural or cultural values on or nearby the land.
- Outdoor storage, lighting, and stormwater discharge.
- The design of buildings to provide for solar access.

## 34.02-8 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 1.

# 35 RURAL ZONES

19/01/2006
VC37

## 35.03 RURAL LIVING ZONE

31/07/2018
VC148

Shown on the planning scheme map as **RLZ** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide for residential use in a rural environment.

To provide for agricultural land uses which do not adversely affect the amenity of surrounding land uses.

To protect and enhance the natural resources, biodiversity and landscape and heritage values of the area.

To encourage use and development of land based on comprehensive and sustainable land management practices and infrastructure provision.

## 35.03-1 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Community care accommodation** | Must meet the requirements of Clause 52.22-2.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 2 animals. |
| **Dwelling (other than Bed and breakfast)** | The lot must be at least the area specified in a schedule to this zone. If no area is specified, the lot must be at least 2 hectares.<br>Must be the only dwelling on the lot.<br>Must meet the requirements of Clause 35.03-2.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Poultry farm** | Must be no more than 100 poultry (not including emus or ostriches). |

| Use | Condition |
|---|---|
| | Must be no more than 10 emus and ostriches. |
| **Racing dog husbandry** | Must be no more than 2 animals. |
| **Railway** | |
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling.<br>Must meet the requirements of Clause 35.03-2.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Accommodation (other than Community care accommodation, Dwelling and Small second dwelling)** | |
| **Agriculture (other than Domestic animal husbandry, Apiculture, Intensive animal production, Poultry farm, Racing dog husbandry and Timber production)** | |
| **Bar** | The site must not have direct access to a rural freeway. |
| **Broiler farm - if the Section 1 condition to Poultry farm is not met** | Must be no more than 10,000 chickens. |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Convenience shop** | The leasable floor area must not exceed 80 square metres.<br>The site must not have direct access to a rural freeway. |
| **Domestic animal boarding** | |
| **Dwelling (other than Bed and breakfast) - if the Section 1 condition is not met** | Must meet the requirements of Clause 35.03-2. |
| **Freeway service centre** | Must meet the requirements of Clause 53.05. |

| Use | Condition |
|---|---|
| **Hotel** | The site must not have direct access to a rural freeway. |
| **Leisure and recreation (other than Informal outdoor recreation and Motor racing track)** | |
| **Market** | |
| **Medical centre** | |
| **Place of assembly (other than Amusement parlour, Carnival, Cinema based entertainment facility, Circus and Nightclub)** | |
| **Plant nursery** | |
| **Postal agency** | |
| **Primary produce sales** | |
| **Racing dog husbandry – if the Section 1 condition is not met** | Must meet the requirements of Clause 53.12. |
| **Restaurant** | The site must not have direct access to a rural freeway. |
| **Rural industry (other than Abattoir and Sawmill)** | |
| **Service station** | The site must either:<br>▪ Adjoin a commercial zone or industrial zone.<br>▪ Adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3.<br>The site must not exceed either:<br>▪ 3000 square metres.<br>▪ 3600 square metres if it adjoins on two boundaries a road in a Transport Zone 2 or a Transport Zone 3.<br>The site must not have direct access to a rural freeway. |
| **Store** | Must be in a building, not a dwelling, and used to store equipment, goods, or motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Timber production** | Must meet the requirements of Clause 53.11. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Abattoir** |
| **Amusement parlour** |
| **Cinema based entertainment facility** |
| **Industry (other than Automated collection point and Rural Industry)** |
| **Intensive animal production** |
| **Motor racing track** |
| **Nightclub** |
| **Office (other than Medical centre)** |
| **Retail premises (other than Bar, Convenience shop, Hotel, Market, Plant nursery, Postal agency, Primary produce sales and Restaurant)** |
| **Saleyard** |
| **Sawmill** |
| **Small second dwelling – if the Section 1 condition is not met** |
| **Transport terminal** |
| **Warehouse (other than Store)** |

## 35.03-2 Use of land for a dwelling or small second dwelling

14/12/2023
VC253

A lot used for a dwelling or small second dwelling must meet the following requirements:

- Access to the dwelling or small second dwelling must be provided via an all-weather road with dimensions adequate to accommodate emergency vehicles.
- Each dwelling or small second dwelling must be connected to reticulated sewerage, if available. If reticulated sewerage is not available, all wastewater from each dwelling must be treated and retained within the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system.
- The dwelling or small second dwelling must be connected to a reticulated potable water supply or have an alternative potable water supply with adequate storage for domestic use as well as for fire fighting purposes.
- The dwelling or small second dwelling must be connected to a reticulated electricity supply or have an alternative energy source.

## 35.03-3 Subdivision

14/12/2023
VC253

A permit is required to subdivide land.

Each lot must be at least the area specified for the land in a schedule to this zone. If no area is specified, each lot must be at least 2 hectares.

A permit may be granted to create smaller lots if any of the following apply:

- The subdivision is the re-subdivision of existing lots and the number of lots is not increased.

- The number of lots is no more than the number the land could be subdivided into in accordance with a schedule to this zone.
- The subdivision is by a public authority or utility service provider to create a lot for a utility installation.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>- Each new lot is at least the area specified for the land in the zone or the schedule to the zone.<br>- The area of either lot is reduced by less than 15 percent.<br>- The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into 2 lots where each new lot is at least the area specified for the land in the zone or the schedule to the zone. | Clause 59.12 |

## 35.03-4 Buildings and works

20/04/2026
VC307

A permit is required to construct or carry out any of the following:

- A building or works associated with a use in Section 2 of Clause 35.03-1. This does not apply to:
  - An alteration or extension to an existing dwelling provided the floor area of the alteration or extension is not more than the area specified in a schedule to this zone or, if no area is specified, 200 square metres. Any area specified must be more than 200 square metres.
  - An out-building associated with an existing dwelling provided the floor area of the out-building is not more than the area specified in a schedule to this zone or, if no area is specified, 250 square metres. Any area specified must be more than 250 square metres.
  - An alteration or extension to an existing building used for agriculture provided the floor area of the alteration or extension is not more than the area specified in the schedule to this zone or, if no area is specified, 250 square metres. Any area specified must be more than 250 square metres. The building must not be used to keep, board, breed or train animals.
  - A rainwater tank.
- Earthworks specified in a schedule to this zone, if on land specified in a schedule.
- A building which is within any of the following setbacks:
  - The setback from a Transport Zone 2 or land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority and the purpose of the acquisition is for a road, specified in the schedule to this zone or, if no setback is specified, 30 metres.
  - The setback from any other road or boundary specified in the schedule to this zone.
  - The distance from a dwelling not in the same ownership specified in the schedule to this zone.

  - 30 metres from a small second dwelling not in the same ownership.
  - 100 metres from a waterway, wetlands or designated flood plain or, the distance specified in the schedule to this zone. Any distance specified must be less than 100 metres.
- A building or works associated with accommodation located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works with an estimated cost of up to $350,000 where:<br>▪ The land is not used for Domestic animal husbandry, Pig farm, Poultry farm, Poultry hatchery, Racing dog husbandry or Rural industry.<br>▪ The land is not within 30 metres of land (not a road) which is in a residential zone.<br>▪ The building or works are not associated with accommodation located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.<br>Any works must not be earthworks specified in the schedule to the zone. | Clause 59.13 |

## 35.03-5 Decision guidelines

22/03/2022
VC219

Before deciding on an application to use or subdivide land, construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

### General issues

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any Regional Catchment Strategy and associated plan applying to the land.
- The capability of the land to accommodate the proposed use or development.
- Whether the site is suitable for the use or development and whether the proposal is compatible with adjoining and nearby land uses.
- The potential for accommodation to be adversely affected by vehicular traffic, noise, blasting, dust and vibration from an existing or proposed extractive industry operation if it is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990.*

### Agricultural issues

- The capacity of the site to sustain the agricultural use.

- Any integrated land management plan prepared for the site.
- The potential for the future expansion of the use or development and the impact of this on adjoining and nearby agricultural and other land uses.

### Environmental issues

- The impact on the natural physical features and resources of the area and in particular any impact caused by the proposal on soil and water quality and by the emission of noise, dust and odours.
- The impact of the use or development on the flora, fauna and landscape features of the locality.
- The need to protect and enhance the biodiversity of the area, including the need to retain vegetation and faunal habitat and the need to revegetate land including riparian buffers along waterways, gullies, ridgelines, property boundaries and saline discharge and recharge area.
- The location of on-site effluent disposal areas to minimise the impact of nutrient loads on waterways and native vegetation.

### Design and siting issues

- The impact of the siting, design, height, bulk, colours and materials to be used, on the natural environment, major roads, vistas and water features and the measures to be undertaken to minimise any adverse impacts.
- The impact on the character and appearance of the area or features of architectural, historic or scientific significance or of natural scenic beauty or importance.
- The location and design of existing and proposed infrastructure including roads, gas, water, drainage, telecommunications and sewerage facilities.
- Whether the use or development will require traffic management measures.
- The need to locate and design buildings used for accommodation to avoid or reduce the impact from vehicular traffic, noise, blasting, dust and vibration from an existing or proposed extractive industry operation if it is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

## 35.03-6 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 3.

02/12/2022
C259case

## SCHEDULE 2 TO CLAUSE 35.03 RURAL LIVING ZONE

Shown on the planning scheme map as **RLZ2.**

### 1.0 Subdivision and other requirements

02/12/2022
C259case

| | Land | Area/Dimensions/Distance |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 2 hectares |
| Minimum area for which no permit is required to use land for a Dwelling (hectares) | All land | 2 hectares |
| Maximum floor area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to construct an out-building associated with an existing dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to alter or extend an existing building used for Agriculture (square metres) | None specified | None specified |
| Minimum setback from a road (metres) | None specified | None specified |
| Minimum setback from a boundary (metres) | None specified | None specified |
| Minimum setback from a dwelling not in the same ownership (metres) | None specified | None specified |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

## 35.04 GREEN WEDGE ZONE

31/07/2018
VC148

Shown on the planning scheme map as **GWZ** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide for the use of land for agriculture.

To recognise, protect and conserve green wedge land for its agricultural, environmental, historic, landscape, recreational and tourism opportunities, and mineral and stone resources.

To encourage use and development that is consistent with sustainable land management practices.

To encourage sustainable farming activities and provide opportunity for a variety of productive agricultural uses.

To protect, conserve and enhance the cultural heritage significance and the character of open rural and scenic non-urban landscapes.

To protect and enhance the biodiversity of the area.

## 35.04-1 Table of uses

16/06/2026
VC312

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Abattoir** | Must be used in conjunction with Animal production on the same land or contiguous land in the same ownership.<br>Must not have a gross floor area more than 200 square metres.<br>Must not slaughter or process animals, including birds, at a designed throughput of greater than 120 tonnes of product per year.<br>Must not exceed a wastewater design or actual flow rate of greater than 5,000 litres per day.<br>Must not be within 100 metres of a dwelling in separate ownership.<br>The land must be at least 100 metres from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone, Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution.<br>Must not be a purpose listed in the table to Clause 53.10 with no threshold distance specified. |
| **Agriculture (other than Animal production, Apiculture, Domestic animal husbandry, Racing dog husbandry, Rice growing and Timber production)** | |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence. |

| Use | Condition |
|---|---|
| | At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 5 animals. |
| **Grazing animal production** | |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Poultry farm** | Must be no more than 100 poultry (not including emus or ostriches).<br>Must be no more than 10 emus and ostriches. |
| **Primary produce sales** | Must not be within 100 metres of a dwelling in separate ownership.<br>The area used for the display and sale of primary produce must not exceed 50 square metres. |
| **Racing dog husbandry** | Must be no more than 5 animals. |
| **Railway** | |
| **Rural store** | Must be used in conjunction with Agriculture.<br>Must be in a building, not a dwelling and have a gross floor area of less than 100 square metres.<br>Must be the only Rural store on the lot. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Animal production (other than Cattle feedlot, Grazing animal production and Poultry farm)** | |
| **Broiler farm - if the Section 1 condition to Poultry farm is not met** | Must meet the requirements of Clause 53.09. |
| **Camping and caravan park** | |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Cattle feedlot** | Must meet the requirements of Clause 53.08.<br>The site must be located outside a catchment area listed in Appendix 2 of the Victorian Code for Cattle Feedlots – August 1995. |

| Use | Condition |
|---|---|
| **Domestic animal boarding** | |
| **Dwelling (other than Bed and breakfast)** | Must be the only dwelling on the lot. This does not apply to the replacement of an existing dwelling if the existing dwelling is removed or altered (so it can no longer be used as a dwelling) within one month of the occupation of the replacement dwelling.<br>Must meet the requirements of Clause 35.04-2. |
| **Exhibition centre** | |
| **Freezing and cool storage** | The goods stored must be agricultural produce, or products used in agriculture. |
| **Function centre** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>The number of patrons present at any time must not exceed the number specified in a schedule to the zone or 150 patrons, whichever is the lesser.<br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 40 hectares. |
| **Group accommodation** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry, or Winery.<br>The number of dwellings must not exceed the number specified in a schedule to the zone or 40 dwellings, whichever is the lesser.<br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 40 hectares. |
| **Hall** | |
| **Host farm** | |
| **Indoor recreation facility** | Must be for equestrian based leisure, recreation or sport. |
| **Leisure and recreation (other than Indoor recreation facility, Informal outdoor recreation, Major sports and recreation facility and Motor racing track)** | |
| **Major sports and recreation facility** | Must be for outdoor leisure, recreation or sport. |
| **Manufacturing sales** | Must be an incidental part of Rural industry. |
| **Market** | |
| **Materials recycling** | Must be used in conjunction with Refuse disposal or Transfer station.<br>Must not include the collecting, dismantling, storing, recycling or selling of used or scrap construction and demolition materials. |
| **Milk depot** | |

| Use | Condition |
|---|---|
| **Place of assembly (other than Carnival, Cinema based entertainment facility, Circus, Exhibition centre, Function centre, Hall, Nightclub and Place of worship)** | Must not be used for more than 10 days in a calendar year. |
| **Place of worship** | |
| **Plant nursery** | |
| **Primary school** | |
| **Racing dog husbandry – if the Section 1 condition is not met** | Must meet the requirements of Clause 53.12. |
| **Refuse disposal** | |
| **Research and development centre** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 40 hectares. |
| **Research centre** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 40 hectares. |
| **Residential building (other than Residential hotel)** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>Must be used to provide accommodation for persons away from their normal place of residence.<br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 40 hectares. |
| **Residential hotel** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>The number of bedrooms must not exceed the number specified in a schedule to the zone or 80 bedrooms, whichever is the lesser.<br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 40 hectares. |
| **Restaurant** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>The number of patrons present must not exceed the number specified in a schedule to the zone or 150 patrons, whichever is the lesser. |

| Use | Condition |
|---|---|
| | If used in conjunction with Function centre, the total number of patrons present at any time must not exceed the number specified in a schedule to the zone or 150 patrons, whichever is the lesser.<br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 40 hectares. |
| **Restricted place of assembly** | Must not be used for more than 30 days in a calendar year. |
| **Rice growing** | |
| **Rural industry (other than Abattoir)** | |
| **Secondary school** | |
| **Solid fuel depot** | |
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling.<br>Must meet the requirements of Clause 35.04-2. |
| **Timber production** | Must meet the requirements of Clause 53.11. |
| **Transfer station (other than Automated collection point)** | Must not include the collecting, storing or processing of used or scrap construction and demolition materials. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Vehicle store** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Accommodation (other than Camping and caravan park, Dwelling, Group accommodation, Host farm, Residential building and Small second dwelling)** |
| **Cinema based entertainment facility** |
| **Display home centre** |
| **Education centre (other than Primary school and Secondary school)** |
| **Freeway service centre** |
| **Funeral parlour** |
| **Hospital** |

| Use |
|---|
| **Industry (other than Materials recycling, Refuse disposal, Transfer station, Research and development centre and Rural industry)** |
| **Motor racing track** |
| **Office** |
| **Nightclub** |
| **Retail premises (other than Manufacturing sales, Market, Plant nursery, Primary produce sales and Restaurant)** |
| **Service station** |
| **Warehouse (other than Freezing and cool storage, Milk depot, Rural store, Solid fuel depot and Vehicle store)** |

## 35.04-2 Use of land for a dwelling or small second dwelling

14/12/2023
VC253

A lot used for a dwelling or small second dwelling must meet the following requirements:

- Access to the dwelling or small second dwelling must be provided via an all-weather road with dimensions adequate to accommodate emergency vehicles.
- The dwelling or small second dwelling must be connected to reticulated sewerage, if available. If reticulated sewerage is not available, all wastewater from the dwelling must be treated and retained within the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system.
- The dwelling or small second dwelling must be connected to a reticulated potable water supply or have an alternative potable water supply with adequate storage for domestic use as well as for fire fighting purposes.
- The dwelling or small second dwelling must be connected to a reticulated electricity supply or have an alternative energy source.

## 35.04-3 Subdivision

14/12/2023
VC253

A permit is required to subdivide land.

Each lot must be at least the area specified for the land in a schedule to this zone. If no area is specified, each lot must be at least 40 hectares.

A permit may be granted to create smaller lots if any of the following apply:

- The subdivision is the re-subdivision of existing lots, the number of lots is not increased, and the number of dwellings that the land could be used for does not increase.
- The subdivision is by a public authority or utility service provider to create a lot for a utility installation.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>▪ Each new lot is at least the area specified for the land in the zone or the schedule to the zone.<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into 2 lots where each new lot is at least the area specified for the land in the zone or the schedule to the zone. | Clause 59.12 |

## 35.04-4 Long term lease or licence for accommodation

05/09/2013
VC103

A permit is required to lease or license a portion of a lot for a period of more than 10 years if the portion is to be leased or licensed for the purpose of Accommodation.

Each portion of a lot leased or licensed for the purpose of Accommodation must be at least the minimum subdivision area specified for the land in a schedule to this zone. If no area is specified, each portion of a lot leased or licensed for the purpose of Accommodation must be at least 40 hectares.

## 35.04-5 Buildings and works

20/04/2026
VC307

A permit is required to construct or carry out any of the following:

- A building or works associated with a use in Section 2 of Clause 35.04-1. This does not apply to:
  - An alteration or extension to an existing dwelling with a floor area of no more than the area specified in a schedule to this zone or, if no area is specified, 50 square metres.
  - An alteration or extension to a small second dwelling.
  - An alteration or extension to an existing building used for agriculture with a floor area of no more than the area specified in a schedule to this zone or, if no area is specified, 100 square metres. The building must not be used to keep, board, breed or train animals.
  - A rainwater tank.
- Earthworks specified in a schedule to this zone, if on land specified in a schedule.
- A building which is within any of the following setbacks:
  - 100 metres from a Transport Zone 2 or land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority and the purpose of the acquisition is for a road.
  - 40 metres from a Transport Zone 3 or land in a Public Acquisition Overlay for a road if the Head, Transport for Victoria is not the acquiring authority.
  - 20 metres from any other road.
  - 5 metres from any other boundary.
  - 100 metres from a dwelling or small second dwelling not in the same ownership.
  - 100 metres from a waterway, wetlands or designated flood plain.
- Permanent or fixed feeding infrastructure for season or supplementary feeding for grazing animal production constructed within 100 metres of:

- A waterway, wetland or designated flood plain.
- A dwelling not in the same ownership.
- A residential or urban growth zone.

- A building or works associated with accommodation located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

**VicSmart applications**

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works with an estimated cost of up to $350,000 where:<br>▪ The land is not used for Domestic animal husbandry, Intensive animal production, Pig farm, Poultry farm, Poultry hatchery, Racing dog husbandry or Rural industry.<br>▪ The land is not within 30 metres of land (not a road) which is in a residential zone.<br>▪ The building or works are not associated with accommodation located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.<br>Any works must not be earthworks specified in the schedule to the zone. | Clause 59.13 |

## 35.04-6 Decision guidelines

22/03/2022
VC219

Before deciding on an application to use or subdivide land, lease or license a portion of a lot for a period of more than 10 years if the portion is to be leased or licensed for the purpose of Accommodation, construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

**General issues**

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any Regional Catchment Strategy and associated plan applying to the land.
- The capability of the land to accommodate the proposed use or development.
- How the use or development relates to rural land use, rural diversification, natural resource management, natural or cultural heritage management, recreation or tourism.
- Whether the site is suitable for the use or development and the compatibility of the proposal with adjoining land uses.
- Whether the use or development is essential to the health, safety or well-being of the State or area but is not appropriate to locate in an urban area because of the effect it may have on existing or proposed urban areas or the effect that existing or proposed urban areas may have on the proposed use or development.

- The need to minimise adverse impacts on the character and appearance of the area or features of architectural, scientific or cultural heritage significance, or of natural scenic beauty.
- The potential for accommodation to be adversely affected by vehicular traffic, noise, blasting, dust and vibration from an existing or proposed extractive industry operation if it is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990.*

**Rural issues**

- The maintenance of agricultural production and the impact on the rural economy.
- The environmental capacity of the site to sustain the rural enterprise.
- The need to prepare an integrated land management plan.
- The impact on the existing and proposed rural infrastructure.
- The potential for the future expansion of the use or development and the impact of this on adjoining and nearby agriculture and other land uses.
- The protection and retention of land for future sustainable agricultural activities.

**Environmental issues**

- The impact of the use or development on the flora and fauna on the site and its surrounds.
- The need to protect and enhance the biodiversity of the area, including the retention of vegetation and faunal habitat and the need to revegetate land including riparian buffers along waterways, gullies, ridgelines, property boundaries and saline discharge and recharge area.
- How the use or development relates to sustainable land management and the need to prepare an integrated land management plan.
- The location of on site effluent disposal areas to minimise impact of nutrient loads on waterways and native vegetation.

**Design and siting issues**

- The need to minimise any adverse impacts of siting, design, height, bulk, and colours and materials to be used, on landscape features, major roads and vistas.
- The location and design of existing and proposed infrastructure services which minimises the visual impact on the landscape.
- The need to minimise adverse impacts on the character and appearance of the area or features of archaeological, historic or scientific significance or of natural scenic beauty or importance.
- The need to locate and design buildings used for accommodation to avoid or reduce the impact from vehicular traffic, noise, blasting, dust and vibration from an existing or proposed extractive industry operation if it is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

**Primary school or secondary school issues**

- Access being provided via an all-weather road with dimensions adequate to accommodate emergency vehicles and not rely on local residential streets for access.
- Access by public transport, or if public transport is not available or adequate, transport may be provided by the school. Where transport is provided by the school the parking of buses should be accommodated on site.

- Connection to reticulated sewerage if available or if not available, the wastewater must be treated and retained on-site in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system.
- In the absence of reticulated sewerage, a Land Capability Assessment on the risks to human health and the environment of an on-site wastewater management system constructed, installed or altered on the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017*.
- Connection to a reticulated potable water supply or an alternative potable water supply with adequate storage for school use as well as for fire fighting purposes.
- Connection to a reticulated electricity supply or an alternative energy source.

## 35.04-7 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 3.

02/12/2022
C259case

## SCHEDULE 1 TO CLAUSE 35.04 GREEN WEDGE ZONE

Shown on the planning scheme map as **GWZ1.**

### 1.0 Subdivision and other requirements

02/12/2022
C259case

| | Land | Area/Dimensions/Number |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 2 hectares |
| Function centre (number of patrons) | None specified | None specified |
| Group accommodation<br>(number of dwellings) | None specified | None specified |
| Residential hotel (number of bedrooms) | None specified | None specified |
| Restaurant (number of patrons) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing building used for agriculture (square metres). | None specified | None specified |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

02/12/2022
C259case

## SCHEDULE 2 TO CLAUSE 35.04 GREEN WEDGE ZONE

Shown on the planning scheme map as **GWZ2.**

### 1.0 Subdivision and other requirements

02/12/2022
C259case

| | Land | Area/Dimensions/Number |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 4 hecatres |
| Function centre (number of patrons) | None specified | None specified |
| Group accommodation<br>(number of dwellings) | None specified | None specified |
| Residential hotel (number of bedrooms) | None specified | None specified |
| Restaurant (number of patrons) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing building used for agriculture (square metres). | None specified | None specified |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

02/12/2022
C259case

## SCHEDULE 3 TO CLAUSE 35.04 GREEN WEDGE ZONE

Shown on the planning scheme map as **GWZ3.**

### 1.0 Subdivision and other requirements

02/12/2022
C259case

| | Land | Area/Dimensions/Number |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 8 hectares |
| Function centre (number of patrons) | None specified | None specified |
| Group accommodation<br>(number of dwellings) | None specified | None specified |
| Residential hotel (number of bedrooms) | None specified | None specified |
| Restaurant (number of patrons) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing building used for agriculture (square metres). | None specified | None specified |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

02/12/2022
C259case

## SCHEDULE 4 TO CLAUSE 35.04 GREEN WEDGE ZONE

Shown on the planning scheme map as **GWZ4.**

### 1.0 Subdivision and other requirements

02/12/2022
C259case

| | Land | Area/Dimensions/Number |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 12 hectares |
| Function centre (number of patrons) | None specified | None specified |
| Group accommodation<br>(number of dwellings) | None specified | None specified |
| Residential hotel (number of bedrooms) | None specified | None specified |
| Restaurant (number of patrons) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing building used for agriculture (square metres). | None specified | None specified |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

02/12/2022
C259case

## SCHEDULE 5 TO CLAUSE 35.04 GREEN WEDGE ZONE

Shown on the planning scheme map as **GWZ5.**

### 1.0 Subdivision and other requirements

02/12/2022
C259case

| | Land | Area/Dimensions/Number |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 20 hectares |
| Function centre (number of patrons) | None specified | None specified |
| Group accommodation<br>(number of dwellings) | None specified | None specified |
| Residential hotel (number of bedrooms) | None specified | None specified |
| Restaurant (number of patrons) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing building used for agriculture (square metres). | None specified | None specified |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

02/12/2022
C259case

## SCHEDULE 6 TO CLAUSE 35.04 GREEN WEDGE ZONE

Shown on the planning scheme map as **GWZ6.**

### 1.0 Subdivision and other requirements

02/12/2022
C259case

| | Land | Area/Dimensions/Number |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 40 hectares |
| Function centre (number of patrons) | None specified | None specified |
| Group accommodation<br>(number of dwellings) | None specified | None specified |
| Residential hotel (number of bedrooms) | None specified | None specified |
| Restaurant (number of patrons) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing building used for agriculture (square metres). | None specified | None specified |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

## 35.05 GREEN WEDGE A ZONE

31/07/2018
VC148

Shown on the planning scheme map as **GWAZ** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide for the use of land for agriculture.

To protect, conserve and enhance the biodiversity, natural resources, scenic landscapes and heritage values of the area.

To ensure that use and development promotes sustainable land management practices and infrastructure provision.

To protect, conserve and enhance the cultural heritage significance and the character of rural and scenic non-urban landscapes.

To recognise and protect the amenity of existing rural living areas.

## 35.05-1 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Agriculture (other than Animal production, Apiculture, Domestic animal husbandry, Racing dog husbandry, Rice growing and Timber production)** | |
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 2 animals. |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Poultry farm** | Must be no more than 100 poultry (not including emus or ostriches).<br>Must be no more than 10 emus and ostriches. |
| **Primary produce sales** | Must not be within 100 metres of a dwelling in separate ownership.<br>The area used for the display and sale of primary produce must not exceed 50 square metres. |
| **Racing dog husbandry** | Must be no more than 2 animals. |

| Use | Condition |
|---|---|
| **Railway** | |
| **Rural store** | Must be used in conjunction with Agriculture.<br>Must be in a building, not a dwelling and have a gross floor area of less than 100 square metres.<br>Must be the only Rural store on the lot. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Animal production (other than Intensive animal production and Poultry farm)** | |
| **Broiler farm - if the Section 1 condition to Poultry farm is not met** | Must be no more than 10,000 chickens. |
| **Camping and caravan park** | |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Domestic animal boarding** | |
| **Dwelling (other than Bed and breakfast)** | Must be the only dwelling on the lot. This does not apply to the replacement of an existing dwelling if the existing dwelling is removed or altered (so it can no longer be used as a dwelling) within one month of the occupation of the replacement dwelling.<br>Must meet the requirements of Clause 35.05-2. |
| **Exhibition centre** | |
| **Freezing and cool storage** | The goods stored must be agricultural produce, or products used in agriculture.<br>Must be in a building, not a dwelling, and used to store equipment, goods, or motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Function centre** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>The number of patrons present at any time must not exceed the number specified in a schedule to the zone or 150 patrons, whichever is the lesser.<br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 8 hectares. |

| Use | Condition |
|---|---|
| **Group accommodation** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry, or Winery.<br><br>The number of dwellings must not exceed the number specified in a schedule to the zone or 40 dwellings, whichever is the lesser.<br><br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 8 hectares. |
| **Hall** | |
| **Host farm** | |
| **Indoor recreation facility** | Must be for equestrian based leisure, recreation or sport. |
| **Leisure and recreation (other than Informal outdoor recreation, Indoor recreation facility, Major sports and recreation facility and Motor racing track)** | |
| **Major sports and recreation facility** | Must be for outdoor leisure, recreation or sport. |
| **Market** | |
| **Place of worship** | |
| **Plant nursery** | |
| **Primary school** | |
| **Racing dog husbandry - if the Section 1 condition is not met** | Must meet the requirements of Clause 53.12. |
| **Research centre** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br><br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 8 hectares. |
| **Residential building (other than Residential hotel)** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br><br>Must be used to provide accommodation for persons away from their normal place of residence.<br><br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 8 hectares. |
| **Restaurant** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br><br>The number of patrons present must not exceed the number specified in a schedule to the zone or 150 patrons, whichever is the lesser. |

| Use | Condition |
|---|---|
| | If used in conjunction with Function centre, the total number of patrons present at any time must not exceed the number specified in a schedule to the zone or 150 patrons, whichever is the lesser.<br>The lot on which the use is conducted must be at least the minimum subdivision area specified in a schedule to this zone. If no area is specified, the lot must be at least 8 hectares. |
| **Restricted place of assembly** | Must not be used for more than 30 days in a calendar year. |
| **Rural industry (other than Abattoir and Sawmill)** | |
| **Rice growing** | |
| **Rural store – if the Section 1 condition is not met** | Must be in a building, not a dwelling, and used to store equipment, goods, or motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Secondary school** | |
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling.<br>Must meet the requirements of Clause 35.05-2. |
| **Timber production** | Must meet the requirements of Clause 53.11. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Vehicle store** | Must be in a building not a dwelling and used to store motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Abattoir** |
| **Accommodation (other than Camping and caravan park, Dwelling, Group accommodation, Host farm, Residential building and Small second dwelling)** |
| **Display home centre** |
| **Education centre (other than Primary school and Secondary school)** |
| **Freeway service centre** |
| **Funeral parlour** |

| Use |
|---|
| **Hospital** |
| **Industry (other than Rural industry)** |
| **Intensive animal production** |
| **Motor racing track** |
| **Office** |
| **Place of assembly (other than Carnival, Circus, Exhibition centre, Function centre, Hall, Place of worship and Restricted place of assembly)** |
| **Retail premises (other than Market, Plant nursery, Primary produce sales and Restaurant)** |
| **Saleyard** |
| **Sawmill** |
| **Service station** |
| **Transport terminal** |
| **Warehouse (other than Freezing and cool storage, Rural store and Vehicle store)** |

## 35.05-2 Use of land for a dwelling or small second dwelling

14/12/2023
VC253

A lot used for a dwelling or small second dwelling must meet the following requirements:

- Access to the dwelling or small second dwelling must be provided via an all-weather road with dimensions adequate to accommodate emergency vehicles.
- The dwelling or small second dwelling must be connected to reticulated sewerage, if available. If not available, all wastewater must be treated and retained within the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017* for the construction, installation or alteration of an on-site wastewater management system.
- The dwelling or small second dwelling must be connected to a reticulated potable water supply or have an alternative potable water supply with adequate storage for domestic use as well as for fire fighting purposes.
- The dwelling or small second dwelling must be connected to a reticulated electricity supply or have an alternative energy source.

## 35.05-3 Subdivision

14/12/2023
VC253

A permit is required to subdivide land.

Each lot must be at least the area specified for the land in a schedule to this zone. If no area is specified, each lot must be at least 8 hectares.

A permit may be granted to create smaller lots if any of the following apply:

- The subdivision is the re-subdivision of existing lots, the number of lots is not increased, and the number of dwellings that the land could be used for does not increase.
- The subdivision is by a public authority or utility service provider to create a lot for a utility installation.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>▪ Each new lot is at least the area specified for the land in the zone or the schedule to the zone.<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into 2 lots where each new lot is at least the area specified for the land in the zone or the schedule to the zone. | Clause 59.12 |

## 35.05-4 Long term lease or licence for accommodation

05/09/2013
VC103

A permit is required to lease or license a portion of a lot for a period of more than 10 years if the portion is to be leased or licensed for the purpose of Accommodation.

Each portion of a lot leased or licensed for the purpose of Accommodation must be at least the minimum subdivision area specified for the land in a schedule to this zone. If no area is specified, each portion of a lot leased or licensed for the purpose of Accommodation must be at least 8 hectares.

## 35.05-5 Buildings and works

20/04/2026
VC307

A permit is required to construct or carry out any of the following:

- A building or works associated with a use in Section 2 of Clause 35.05-1. This does not apply to:
  - An alteration or extension to an existing dwelling with a floor area of no more than the area specified in a schedule to this zone or, if no area is specified, 50 square metres.
  - An alteration or extension to a small second dwelling.
  - A rainwater tank.
- Earthworks specified in a schedule to this zone, if on land specified in a schedule.
- A building which is within any of the following setbacks:
  - 30 metres from a Transport Zone 2 or land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority and the purpose of the acquisition is for a road.
  - 20 metres from a Transport Zone 3 or land in a Public Acquisition Overlay for a road if the Head, Transport for Victoria is not the acquiring authority.
  - 10 metres from any other road.

- 5 metres from any other boundary.
- 30 metres from a dwelling or small second dwelling not in the same ownership.
- 100 metres from a waterway, wetlands or designated flood plain.

- A building or works associated with accommodation located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works with an estimated cost of up to $350,000 where:<br>▪ The land is not used for Domestic animal husbandry, Pig farm, Poultry farm, Poultry hatchery, Racing dog husbandry or Rural industry.<br>▪ The land is not within 30 metres of land (not a road) which is in a residential zone.<br>▪ The building or works are not associated with accommodation located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.<br>Any works must not be earthworks specified in the schedule to the zone. | Clause 59.13 |

## 35.05-6 Decision guidelines

14/12/2023
VC253

Before deciding on an application to use or subdivide land, lease or license a portion of a lot for a period of more than 10 years if the portion is to be leased or licensed for the purpose of Accommodation, construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

### General issues

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any Regional Catchment Strategy and associated plan applying to the land.
- The capability of the land to accommodate the proposed use or development, addressing site quality attributes including soil type, soil fertility, soil structure, soil permeability, aspect, contour and drainage patterns.
- How the use or development relates to agricultural land use, rural diversification and natural resource management.
- Whether the site is suitable for the use or development and whether the proposal will have an adverse impact on surrounding land uses.
- The need to protect the amenity of existing residents.

- The need to minimise adverse impacts on the character and appearance of the area or features of architectural, scientific or cultural heritage significance, or of natural scenic beauty or importance.
- The potential for accommodation to be adversely affected by vehicular traffic, noise, blasting, dust and vibration from an existing or proposed extractive industry operation if it is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990.*

**Rural issues**

- The maintenance of agricultural production and the impact on the local rural economy.
- The need to prepare an integrated land management plan.
- The impact on the existing and proposed rural infrastructure.
- The potential for the future expansion of the use or development and the impact of this on adjoining and nearby agricultural and other land uses.
- Protection and retention of land for future sustainable agricultural activities.

**Environmental issues**

- The impact of the use or development on the flora and fauna on the site and its surrounds.
- An assessment of the likely environmental impact on the natural physical features and resources of the area and in particular any impact caused by the proposal on soil and water quality and by the emission of effluent, noise, dust and odours.
- The need to protect and enhance the biodiversity of the area, including the retention of vegetation and fauna habitat and the revegetation of land including riparian buffers along waterways, gullies, ridge lines, property boundaries and saline recharge and discharge areas.
- How the use or development relates to sustainable land management and the need to prepare a sustainable land management plan.
- The location of on site effluent disposal areas to minimise impact of nutrient loads on waterways and native vegetation.

**Design and siting issues**

- The need to minimise adverse impacts of the siting, design, height, bulk, colours and materials to be used on major roads, landscape features and vistas.
- The location and design of existing and proposed infrastructure services including gas, water, drainage, telecommunications and sewerage facilities which minimise the visual impact on the landscape.
- The location and design of existing and proposed roads and their impact on the landscape and whether the use or development will require traffic management programs.
- The need to locate and design buildings used for accommodation to avoid or reduce the impact from vehicular traffic, noise, blasting, dust and vibration from an existing or proposed extractive industry operation if it is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

**Primary school or secondary school issues**

- Access being provided via an all-weather road with dimensions adequate to accommodate emergency vehicles and not rely on local residential streets for access.

- Access by public transport, or if public transport is not available or adequate, transport may be provided by the school. Where transport is provided by the school the parking of buses should be accommodated on site.
- Connection to a reticulated sewerage system if available or if not available, the wastewater must be treated and retained on-site in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site waste water management system.
- In the absence of reticulated sewerage, a Land Capability Assessment on the risks to human health and the environment of an on-site wastewater management system constructed, installed or altered on the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017*.
- Connection to a reticulated potable water supply or an alternative potable water supply with adequate storage for school use as well as for fire fighting purposes.
- Connection to a reticulated electricity supply or an alternative energy source.

## 35.05-7 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 3.

02/12/2022
C259case

## SCHEDULE 1 TO CLAUSE 35.05 GREEN WEDGE A ZONE

Shown on the planning scheme map as **GWAZ1.**

### 1.0 Subdivision and other requirements

02/12/2022
C259case

| | Land | Area/Dimensions/Number |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 1 hectare |
| Function centre (number of patrons) | None specified | None specified |
| Group accommodation (number of dwellings) | None specified | None specified |
| Residential building (number of bedrooms) | None specified | None specified |
| Restaurant (number of patrons) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

02/12/2022
C259case

## SCHEDULE 2 TO CLAUSE 35.05 GREEN WEDGE A ZONE

Shown on the planning scheme map as **GWAZ2.**

### 1.0 Subdivision and other requirements

02/12/2022
C259case

| | Land | Area/Dimensions/Number |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 2 hectares |
| Function centre (number of patrons) | None specified | None specified |
| Group accommodation (number of dwellings) | None specified | None specified |
| Residential building (number of bedrooms) | None specified | None specified |
| Restaurant (number of patrons) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

02/12/2022
C259case

## SCHEDULE 4 TO CLAUSE 35.05 GREEN WEDGE A ZONE

Shown on the planning scheme map as **GWAZ4.**

### 1.0 Subdivision and other requirements

02/12/2022
C259case

| | Land | Area/Dimensions/Number |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 8 hectares |
| Function centre (number of patrons) | None specified | None specified |
| Group accommodation (number of dwellings) | None specified | None specified |
| Residential building (number of bedrooms) | None specified | None specified |
| Restaurant (number of patrons) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

02/12/2022
C259case

## SCHEDULE 5 TO CLAUSE 35.05 GREEN WEDGE A ZONE

Shown on the planning scheme map as **GWAZ5.**

### 1.0 Subdivision and other requirements

02/12/2022
C259case

| | Land | Area/Dimensions/Number |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 2.4 hectares |
| Function centre (number of patrons) | None specified | None specified |
| Group accommodation (number of dwellings) | None specified | None specified |
| Residential building (number of bedrooms) | None specified | None specified |
| Restaurant (number of patrons) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

02/12/2022
C259case

## SCHEDULE 6 TO CLAUSE 35.05 GREEN WEDGE A ZONE

Shown on the planning scheme map as **GWAZ6.**

### 1.0 Subdivision and other requirements

02/12/2022
C259case

| | Land | Area/Dimensions/Number |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 0.92 hectares |
| Function centre (number of patrons) | None specified | None specified |
| Group accommodation (number of dwellings) | None specified | None specified |
| Residential building (number of bedrooms) | None specified | None specified |
| Restaurant (number of patrons) | None specified | None specified |
| Minimum area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

## 35.06 RURAL CONSERVATION ZONE

31/07/2018
VC148

Shown on the planning scheme map as **RCZ** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To conserve the values specified in a schedule to this zone.

To protect and enhance the natural environment and natural processes for their historic, archaeological and scientific interest, landscape, faunal habitat and cultural values.

To protect and enhance natural resources and the biodiversity of the area.

To encourage development and use of land which is consistent with sustainable land management and land capability practices, and which takes into account the conservation values and environmental sensitivity of the locality.

To provide for agricultural use consistent with the conservation of environmental and landscape values of the area.

To conserve and enhance the cultural significance and character of open rural and scenic non urban landscapes.

## 35.06-1 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 2 animals. |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Poultry farm** | Must be no more than 100 poultry (not including emus or ostriches).<br>Must be no more than 10 emus and ostriches. |
| **Racing dog husbandry** | Must be no more than 2 animals. |
| **Railway** | |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Agriculture (other than Apiculture, Domestic animal husbandry, Intensive animal production, Poultry farm, Racing dog husbandry, Rice growing and Timber production)** | |
| **Broiler farm - if the Section 1 condition to Poultry farm is not met** | Must be no more than 10,000 chickens. |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Domestic animal boarding** | |
| **Dwelling (other than Bed and breakfast)** | Must be the only dwelling on the lot. This does not apply to the replacement of an existing dwelling if the existing dwelling is removed or altered (so it can no longer be used as a dwelling) within one month of the occupation of the replacement dwelling.<br>Must meet the requirements of Clause 35.06-2. |
| **Emergency services facility** | |
| **Freezing and cool storage** | |
| **Group accommodation** | |
| **Host farm** | |
| **Landscape gardening supplies** | |
| **Market** | |
| **Primary produce sales** | |
| **Primary school** | |
| **Racing dog husbandry - if the Section 1 condition is not met** | Must meet the requirements of Clause 53.12. |
| **Recreational boat facility** | |
| **Renewable energy facility (other than Wind energy facility)** | Must meet the requirements of Clause 53.13. |
| **Residential hotel** | |
| **Restaurant** | |
| **Rural industry (other than Abattoir and Sawmill)** | |
| **Rural store** | |
| **Secondary school** | |

| Use | Condition |
|---|---|
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling.<br>Must meet the requirements of Clause 35.06-2. |
| **Timber production** | Must meet the requirements of Clause 53.11. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Wind energy facility** | Must meet the requirements of Clause 52.32. |
| **Winery** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Abattoir** |
| **Accommodation (other than Bed and breakfast, Dwelling, Group accommodation, Host farm, Residential hotel and Small second dwelling)** |
| **Amusement parlour** |
| **Education centre (other than Primary school and Secondary school)** |
| **Industry (other than Rural industry)** |
| **Intensive animal production** |
| **Office** |
| **Leisure and recreation (other than Informal outdoor recreation)** |
| **Place of assembly (other than Carnival and Circus)** |
| **Retail premises (other than Landscape gardening supplies, Market, Primary produce sales and Restaurant)** |
| **Rice growing** |
| **Sawmill** |
| **Transport terminal** |
| **Warehouse (other than Freezing and cool storage and Rural store)** |

## 35.06-2 Use of land for a dwelling or small second dwelling

14/12/2023
VC253

A lot used for a dwelling or small second dwelling must meet the following requirements:

- Access to the dwelling or small second dwelling must be provided via an all-weather road with dimensions adequate to accommodate emergency vehicles.
- The dwelling or small second dwelling must be connected to reticulated sewerage if available. If reticulated sewerage is not available, all wastewater from the dwelling must be treated and retained within the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system.
- The dwelling or small second dwelling must be connected to a reticulated potable water supply or have an alternative potable water supply with adequate storage for domestic use as well as for fire fighting purposes.
- The dwelling or small second dwelling must be connected to a reticulated electricity supply or have an alternative energy source.

## 35.06-3 Subdivision

14/12/2023
VC253

A permit is required to subdivide land.

Each lot must be at least the area specified for the land in a schedule to this zone. If no area is specified, each lot must be at least 40 hectares.

A permit may be granted to create smaller lots if any of the following apply:

- The subdivision is the re-subdivision of existing lots, the number of lots is not increased, and the number of dwellings that the land could be used for does not increase.
- The subdivision is by a public authority or utility service provider to create a lot for a utility installation.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>▪ Each new lot is at least the area specified for the land in the zone or the schedule to the zone.<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into 2 lots where each new lot is at least the area specified for the land in the zone or the schedule to the zone. | Clause 59.12 |

## 35.06-4 Long term lease or licence for accommodation

05/09/2013
VC103

A permit is required to lease or license a portion of a lot for a period of more than 10 years if the portion is to be leased or licensed for the purpose of Accommodation.

Each portion of a lot leased or licensed for the purpose of Accommodation must be at least the area specified as the minimum subdivision area for the land in a schedule to this zone. If no area is specified, each portion of a lot leased or licensed for the purpose of Accommodation must be at least 40 hectares.

This provision only applies to land in Metropolitan Melbourne.

## 35.06-5 Buildings and works

20/04/2026
VC307

A permit is required to construct or carry out any of the following:

- A building or works associated with a use in Section 2 of Clause 35.06-1. This does not apply to:
  - An alteration or extension to an existing dwelling provided the floor area of the alteration or extension does not exceed the area specified in a schedule to this zone or, if no area is specified, 100 square metres. Any area specified must be more than 100 square metres.
  - An alteration or extension to a small second dwelling.
  - An out-building associated with an existing dwelling provided the floor area of the out-building does not exceed the area specified in a schedule to this zone or, if no area is specified, 100 square metres. Any area specified must be more than 100 square metres.
  - An alteration or extension to an existing building used for agriculture provided the floor area of the alteration or extension does not exceed the area specified in a schedule to this zone or, if no area is specified, 100 square metres. Any area specified must be more than 100 square metres. The building must not be used to keep, board, breed or train animals.
  - A rainwater tank.
- Earthworks specified in a schedule to this zone, if on land specified in a schedule.
- A building which is within any of the following setbacks:
  - 100 metres from a Transport Zone 2 or land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority and the purpose of the acquisition is for a road.
  - 40 metres from a Transport Zone 3 or land in a Public Acquisition Overlay for a road if the Head, Transport for Victoria is not the acquiring authority.
  - 20 metres from any other road.
  - 5 metres from any other boundary.
  - 100 metres from a dwelling or small second dwelling not in the same ownership.
  - 100 metres from a waterway, wetlands or designated flood plain.
- A building or works associated with accommodation located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works with an estimated cost of up to $350,000 where:<br>▪ The land is not used for Domestic animal husbandry, Pig farm, Poultry farm, Poultry hatchery, Racing dog husbandry or Rural industry.<br>▪ The land is not within 30 metres of land (not a road) which is in a residential zone.<br>▪ The building or works are not associated with accommodation located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.<br>Any works must not be earthworks specified in the schedule to the zone. | Clause 59.13 |

## 35.06-6 Decision guidelines

22/03/2022
VC219

Before deciding on an application to use or subdivide land, lease or license a portion of a lot for a period of more than 10 years if the portion is to be leased or licensed for the purpose of Accommodation, construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

### General issues

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any Regional Catchment Strategy and associated plan applying to the land.
- The capability of the land to accommodate the proposed use or development.
- How the use or development conserves the values identified for the land in a schedule.
- Whether use or development protects and enhances the environmental, agricultural and landscape qualities of the site and its surrounds.
- Whether the site is suitable for the use or development and the compatibility of the proposal with adjoining land uses.

### Rural issues

- The environmental capacity of the site to sustain the rural enterprise.
- The need to prepare an integrated land management plan.
- The impact on the existing and proposed infrastructure.
- Whether the use or development will have an adverse impact on surrounding land uses.

### Environmental issues

- An assessment of the likely environmental impact on the biodiversity and in particular the flora and fauna of the area.
- The protection and enhancement of the natural environment of the area, including the retention of vegetation and faunal habitats and the need to revegetate land including riparian buffers along waterways, gullies, ridgelines, property boundaries and saline discharge and recharge areas.

- How the use and development relates to sustainable land management and the need to prepare an integrated land management plan which addresses the protection and enhancement of native vegetation and waterways, stabilisation of soil and pest plant and animal control.
- The location of on site effluent disposal areas to minimise the impact of nutrient loads on waterways and native vegetation.

**Accommodation issues**

- Whether the dwelling will result in the loss or fragmentation of productive agricultural land.
- Whether the dwelling will be adversely affected by agricultural activities on adjacent and nearby land due to dust, noise, odour, use of chemicals and farm machinery, traffic and hours of operation.
- Whether the dwelling will adversely affect the operation and expansion of adjoining and nearby agricultural uses.
- The potential for accommodation to be adversely affected by vehicular traffic, noise, blasting, dust and vibration from an existing or proposed extractive industry operation if it is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990.*

**Design and siting issues**

- The need to minimise any adverse impacts of siting, design, height, bulk, and colours and materials to be used, on landscape features, major roads and vistas.
- The location and design of existing and proposed infrastructure services which minimises the visual impact on the landscape.
- The need to minimise adverse impacts on the character and appearance of the area or features of archaeological, historic or scientific significance or of natural scenic beauty or importance.
- The location and design of roads and existing and proposed infrastructure services to minimise the visual impact on the landscape.
- The need to locate and design buildings used for accommodation to avoid or reduce the impact from vehicular traffic, noise, blasting, dust and vibration from an existing or proposed extractive industry operation if it is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990.*

## 35.06-7 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 4.

02/12/2022
C259case

## SCHEDULE TO CLAUSE 35.06 RURAL CONSERVATION ZONE

Shown on the planning scheme map as **RCZ.**

### CONSERVATION VALUES

To maintain the biodiversity of these ecologically sensitive areas and conserve the valued environment, landscapes and landforms.

## 1.0 Subdivision and other requirements

02/12/2022
C259case

| | Land | Area/Dimensions/Number |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 40 hectares |
| Maximum floor area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to construct an out-building associated with a dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to alter or extend an existing building used for agriculture (square metres). | None specified | None specified |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

## 35.07 FARMING ZONE

31/07/2018
VC148

Shown on the planning scheme map as **FZ** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide for the use of land for agriculture.

To encourage the retention of productive agricultural land.

To ensure that non-agricultural uses, including dwellings, do not adversely affect the use of land for agriculture.

To encourage the retention of employment and population to support rural communities.

To encourage use and development of land based on comprehensive and sustainable land management practices and infrastructure provision.

To provide for the use and development of land for the specific purposes identified in a schedule to this zone.

## 35.07-1 Table of uses

12/05/2026
VC309

### Section 1 – Permit not required

| Use | Condition |
|---|---|
| **Abattoir** | Must be used in conjunction with Animal production on the same land or contiguous land in the same ownership.<br>Must not have a gross floor area more than 200 square metres.<br>Must not slaughter or process animals, including birds, at a designed throughput of greater than 120 tonnes of product per year.<br>Must not exceed a wastewater design or actual flow rate of greater than 5,000 litres per day.<br>Must not be within 100 metres of a dwelling in separate ownership.<br>The land must be at least 100 metres from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone, Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution.<br>Must not be a purpose listed in the table to Clause 53.10 with no threshold distance specified. |
| **Agriculture (other than Animal production, Apiculture, Domestic animal husbandry, Racing dog husbandry, Rice growing and Timber production)** | |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |

| Use | Condition |
|---|---|
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence.<br><br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence.<br><br>Must be located more than one kilometre from the nearest title boundary of land subject to:<br>▪ A permit for a wind energy facility; or<br>▪ An application for a permit for a wind energy facility; or<br>▪ An incorporated document approving a wind energy facility; or<br>▪ A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*.<br><br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Cattle feedlot** | Must meet the requirements of Clause 53.08.<br><br>The total number of cattle to be housed in the cattle feedlot must be 1000 or less.<br><br>The site must be located outside a special water supply catchment under the *Catchment and Land Protection Act 1994*.<br><br>The site must be located outside a catchment area listed in Appendix 2 of the Victorian Code for Cattle Feedlots – August 1995. |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 5 animals. |
| **Dwelling (other than Bed and breakfast)** | Must be the only dwelling on the lot.<br><br>The lot must be at least the area specified in a schedule to this zone. If no area is specified, the lot must be at least 40 hectares.<br><br>Must meet the requirements of Clause 35.07-2.<br><br>Must be located more than one kilometre from the nearest title boundary of land subject to:<br>▪ A permit for a wind energy facility; or<br>▪ An application for a permit for a wind energy facility; or<br>▪ An incorporated document approving a wind energy facility; or<br>▪ A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*.<br><br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Grazing animal production** | |
| **Home based business** | |

| Use | Condition |
|---|---|
| **Informal outdoor recreation** | |
| **Poultry farm** | Must be no more than 100 poultry (not including emus or ostriches).<br>Must be no more than 10 emus and ostriches. |
| **Primary produce sales** | Must not be within 100 metres of a dwelling in separate ownership.<br>The area used for the display and sale of primary produce must not exceed 50 square metres. |
| **Racing dog husbandry** | Must be no more than 5 animals. |
| **Railway** | |
| **Rural industry (other than Abattoir and Sawmill)** | Must not have a gross floor area more than 200 square metres.<br>Must not be within 100 metres of a dwelling in separate ownership.<br>Must not be a purpose listed in the table to Clause 53.10 with no threshold distance specified.<br>Must not manufacture mud bricks that contain hemp.<br>The land must be at least the following distances from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution:<br>▪ The threshold distance, for a purpose listed in the table to Clause 53.10.<br>▪ 30 metres, for a purpose not listed in the table to Clause 53.10.<br>Must not:<br>▪ Exceed a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022.<br>▪ Require a notification under the Occupational Health and Safety Regulations 2017.<br>▪ Require a licence under the Dangerous Goods (Explosives) Regulations 2011.<br>▪ Require a licence under the Dangerous Goods (HCDG) Regulations 2016. |
| **Rural store** | Must be used in conjunction with Agriculture.<br>Must be in a building, not a dwelling and have a gross floor area of less than 100 square metres.<br>Must be the only Rural store on the lot. |
| **Rural worker accommodation** | The number of persons accommodated at any time must not be more than 10.<br>Must be used in conjunction with Agriculture on the same land or contiguous land in the same ownership.<br>Must be used exclusively for accommodating workers engaged on the same land or contiguous land in the same ownership.<br>Must be the only accommodation other than a dwelling on the same land or contiguous land in the same ownership. |

| Use | Condition |
|---|---|
| | Must be on the same lot as an existing dwelling.<br>The lot must be at least the area specified in a schedule to this zone for which no permit is required to use land for a dwelling. If no area is specified, the lot must be at least 40 hectares.<br>Must meet the requirements of Clause 35.07-2.<br>Must be located more than one kilometre from the nearest title boundary of land subject to:<br>▪ A permit for a wind energy facility; or<br>▪ An application for a permit for a wind energy facility; or<br>▪ An incorporated document approving a wind energy facility; or<br>▪ A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling.<br>Must meet the requirements of Clause 35.07-2.<br>Must be located more than one kilometre from the nearest title boundary of land subject to:<br>▪ A permit for a wind energy facility; or<br>▪ An application for a permit for a wind energy facility; or<br>▪ An incorporated document approving a wind energy facility; or<br>▪ A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Timber production** | Must meet the requirements of Clause 53.11.<br>The plantation area must not exceed any area specified in a schedule to this zone. Any area specified must be at least 40 hectares.<br>The total plantation area (existing and proposed) on contiguous land which was in the same ownership on or after 28 October 1993 must not exceed any scheduled area.<br>The plantation must not be within 100 metres of:<br>▪ Any dwelling in separate ownership.<br>▪ Any land zoned for residential, commercial or industrial use.<br>▪ Any site specified on a permit which is in force which permits a dwelling to be constructed. |

| Use | Condition |
|---|---|
| | The plantation must not be within 20 metres of a powerline whether on private or public land, except with the consent of the relevant electricity supply or distribution authority. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet requirements of Clause 62.01. |

### Section 2 – Permit required

| Use | Condition |
|---|---|
| **Animal production (other than Cattle feedlot, Grazing animal production and Poultry farm)** | |
| **Broiler farm - if the Section 1 condition to Poultry farm is not met** | Must meet the requirements of Clause 53.09. |
| **Camping and caravan park** | |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Cattle feedlot – if the Section 1 condition is not met** | Must meet the requirements of Clause 53.08.<br>The site must be located outside a catchment area listed in Appendix 2 of the Victorian Code for Cattle Feedlots – August 1995. |
| **Cemetery** | |
| **Crematorium** | |
| **Domestic animal boarding** | |
| **Dwelling (other than Bed and breakfast) – if the Section 1 condition is not met** | Must meet the requirements of Clause 35.07-2. |
| **Emergency services facility** | |
| **Freeway service centre** | Must meet the requirements of Clause 53.05. |
| **Group accommodation** | |
| **Host farm** | |
| **Industry (other than Automated collection point and Rural industry)** | |
| **Landscape gardening supplies** | |
| **Leisure and recreation (other than Informal outdoor recreation)** | |

| Use | Condition |
|---|---|
| **Manufacturing sales** | |
| **Market** | |
| **Place of assembly (other than Amusement parlour, Carnival, Cinema based entertainment facility, Circus and Nightclub)** | |
| **Primary school** | |
| **Racing dog husbandry – if the Section 1 condition is not met** | Must meet the requirements of Clause 53.12. |
| **Renewable energy facility (other than Wind energy facility)** | Must meet the requirements of Clause 53.13. |
| **Residential hotel** | |
| **Restaurant** | |
| **Rice growing** | |
| **Rural worker accommodation – if the Section 1 condition is not met** | Must meet the requirements of Clause 35.07-2. |
| **Sawmill** | |
| **Secondary school** | |
| **Timber production – if the Section 1 condition is not met** | Must meet the requirements of Clause 53.11. |
| **Trade supplies** | |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Warehouse (other than Rural store)** | |
| **Wind energy facility** | Must meet the requirements of Clause 52.32. |
| **Winery** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 – Prohibited

| Use |
|---|
| **Accommodation (other than Bed and breakfast, Camping and caravan park, Dwelling, Group accommodation, Host farm, Residential hotel, Rural worker accommodation and Small second dwelling)** |
| **Amusement parlour** |
| **Cinema based entertainment facility** |
| **Education centre (other than Primary school and Secondary school)** |

| Use |
|---|
| **Nightclub** |
| **Office** |
| **Retail premises (other than Market, Landscape gardening supplies, Manufacturing sales, Primary produce sales, Restaurant and Trade supplies)** |
| **Small second dwelling – if the Section 1 condition is not met** |

## 35.07-2 Use of land for a dwelling, small second dwelling or rural worker accommodation

14/12/2023
VC253

A lot used for a dwelling, small second dwelling or rural worker accommodation must meet the following requirements:

- Access to the dwelling, small second dwelling or rural worker accommodation must be provided via an all-weather road with dimensions adequate to accommodate emergency vehicles.
- Each dwelling, small second dwelling or rural worker accommodation must be connected to reticulated sewerage, if available. If reticulated sewerage is not available all wastewater from each dwelling must be treated and retained within the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system.
- The dwelling, small second dwelling or rural worker accommodation must be connected to a reticulated potable water supply or have an alternative potable water supply with adequate storage for domestic use as well as for fire fighting purposes.
- The dwelling, small second dwelling or rural worker accommodation must be connected to a reticulated electricity supply or have an alternative energy source.

## 35.07-3 Subdivision

06/02/2026
VC271

A permit is required to subdivide land.

Each lot must be at least the area specified for the land in a schedule to this zone. If no area is specified, each lot must be at least 40 hectares.

A permit may be granted to create smaller lots if any of the following apply:

- The subdivision is to create a lot for an existing dwelling. The subdivision must be a two lot subdivision.
- The subdivision is the re-subdivision of existing lots and the number of lots is not increased.
- The subdivision is by a public authority or utility service provider to create a lot for a utility installation.
- The subdivision is to create a lot for a utility installation used to:
  - transmit or distribute electricity; or
  - store electricity if the installed capacity is 1 megawatt or greater.

A permit cannot be granted which would allow a separate lot to be created for land containing a small second dwelling.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>▪ Each new lot is at least the area specified for the land in the zone or the schedule to the zone.<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change.<br>▪ The land is not used for Rural worker accommodation | Clause 59.01 |
| Subdivide land into 2 lots where each new lot is at least the area specified for the land in the zone or the schedule to the zone where the land is not used for Rural worker accommodation. | Clause 59.12 |

## 35.07-4 Buildings and works

20/04/2026
VC307

A permit is required to construct or carry out any of the following:

- A building or works associated with a use in Section 2 of Clause 35.07-1. This does not apply to:
  - An alteration or extension to an existing dwelling provided the floor area of the alteration or extension is not more than the area specified in a schedule to this zone or, if no area is specified, 200 square metres. Any area specified must be more than 200 square metres.
  - An out-building associated with an existing dwelling provided the floor area of the out-building is not more than the area specified in a schedule to this zone or, if no area is specified, 250 square metres. Any area specified must be more than 250 square metres.
  - An alteration or extension to an existing building used for agriculture provided the floor area of the alteration or extension is not more than the area specified in a schedule to this zone or, if no area is specified, 250 square metres. Any area specified must be more than 250 square metres. The building must not be used to keep, board, breed or train animals.
  - A rainwater tank.
- Earthworks specified in a schedule to this zone, if on land specified in a schedule.
- A building which is within any of the following setbacks:
  - The setback from a Transport Zone 2 or land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority and the purpose of the acquisition is for a road specified in a schedule to this zone or, if no setback is specified, 50 metres.
  - The setback from any other road or boundary specified in a schedule to this zone.
  - The setback from a dwelling not in the same ownership specified in a schedule to this zone.
  - 100 metres from a small second dwelling not in the same ownership.
  - 100 metres from a waterway, wetlands or designated flood plain or, the distance specified in the schedule to this zone. Any distance specified must be less than 100 metres.
- Permanent or fixed feeding infrastructure for seasonal or supplementary feeding for grazing animal production constructed within 100 metres of:
  - A waterway, wetland or designated flood plain.
  - A dwelling or small second dwelling not in the same ownership.
  - A residential or urban growth zone.

- A building or works associated with accommodation located within one kilometre from the nearest title boundary of land subject to:
  - A permit for a wind energy facility; or
  - An application for a permit for a wind energy facility; or
  - An incorporated document approving a wind energy facility; or
  - A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*.
- A building or works associated with accommodation located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works associated with a Section 1 use in the Table of uses of the zone with an estimated cost of up to $700,000.<br>Any works must not be earthworks specified in the schedule to the zone. | Clause 59.13 |
| Construct a building or construct or carry out works associated with a Section 2 use in the Table of uses of the zone with an estimated cost of up to $700,000 where:<br>▪ The land is not used for Domestic animal husbandry, Intensive animal production, Pig farm, Poultry farm, Poultry hatchery, Racing dog husbandry, Rural industry or Rural worker accommodation.<br>▪ The land is not within 30 metres of land (not a road) which is in a residential zone.<br>▪ The building or works are not associated with accommodation located within one kilometre from the nearest title boundary of land subject to:<br>– A permit for a wind energy facility; or<br>– An application for a permit for a wind energy facility; or<br>– An incorporated document approving a wind energy facility; or<br>– A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*.<br>▪ The building or works are not associated with accommodation located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.<br>Any works must not be earthworks specified in the schedule to the zone. | Clause 59.13 |

## 35.07-5 Application requirements for dwellings

19/01/2006
VC37

An application to use a lot for a dwelling must be accompanied by a written statement which explains how the proposed dwelling responds to the decision guidelines for dwellings in the zone.

## 35.07-6 Decision guidelines

22/03/2022
VC219

Before deciding on an application to use or subdivide land, construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

### General issues

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any Regional Catchment Strategy and associated plan applying to the land.
- The capability of the land to accommodate the proposed use or development, including the disposal of effluent.
- How the use or development relates to sustainable land management.
- Whether the site is suitable for the use or development and whether the proposal is compatible with adjoining and nearby land uses.
- How the use and development makes use of existing infrastructure and services.

### Agricultural issues and the impacts from non-agricultural uses

- Whether the use or development will support and enhance agricultural production.
- Whether the use or development will adversely affect soil quality or permanently remove land from agricultural production.
- The potential for the use or development to limit the operation and expansion of adjoining and nearby agricultural uses.
- The capacity of the site to sustain the agricultural use.
- The agricultural qualities of the land, such as soil quality, access to water and access to rural infrastructure.
- Any integrated land management plan prepared for the site.
- Whether Rural worker accommodation is necessary having regard to:
  - The nature and scale of the agricultural use.
  - The accessibility to residential areas and existing accommodation, and the remoteness of the location.
- The duration of the use of the land for Rural worker accommodation.

### Accommodation issues

- Whether the dwelling will result in the loss or fragmentation of productive agricultural land.
- Whether the dwelling will be adversely affected by agricultural activities on adjacent and nearby land due to dust, noise, odour, use of chemicals and farm machinery, traffic and hours of operation.
- Whether the dwelling will adversely affect the operation and expansion of adjoining and nearby agricultural uses.
- The potential for the proposal to lead to a concentration or proliferation of dwellings in the area and the impact of this on the use of the land for agriculture.
- The potential for accommodation to be adversely affected by noise and shadow flicker impacts if it is located within one kilometre from the nearest title boundary of land subject to:
  - A permit for a wind energy facility; or
  - An application for a permit for a wind energy facility; or

  - An incorporated document approving a wind energy facility; or
  - A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*.
- The potential for accommodation to be adversely affected by vehicular traffic, noise, blasting, dust and vibration from an existing or proposed extractive industry operation if it is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990.*

**Environmental issues**

- The impact of the proposal on the natural physical features and resources of the area, in particular on soil and water quality.
- The impact of the use or development on the flora and fauna on the site and its surrounds.
- The need to protect and enhance the biodiversity of the area, including the retention of vegetation and faunal habitat and the need to revegetate land including riparian buffers along waterways, gullies, ridgelines, property boundaries and saline discharge and recharge area.
- The location of on-site effluent disposal areas to minimise the impact of nutrient loads on waterways and native vegetation.

**Design and siting issues**

- The need to locate buildings in one area to avoid any adverse impacts on surrounding agricultural uses and to minimise the loss of productive agricultural land.
- The impact of the siting, design, height, bulk, colours and materials to be used, on the natural environment, major roads, vistas and water features and the measures to be undertaken to minimise any adverse impacts.
- The impact on the character and appearance of the area or features of architectural, historic or scientific significance or of natural scenic beauty or importance.
- The location and design of existing and proposed infrastructure including roads, gas, water, drainage, telecommunications and sewerage facilities.
- Whether the use and development will require traffic management measures.
- The need to locate and design buildings used for accommodation to avoid or reduce noise and shadow flicker impacts from the operation of a wind energy facility if it is located within one kilometre from the nearest title boundary of land subject to:
  - A permit for a wind energy facility; or
  - An application for a permit for a wind energy facility; or
  - An incorporated document approving a wind energy facility; or
  - A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*.
- The need to locate and design buildings used for accommodation to avoid or reduce the impact from vehicular traffic, noise, blasting, dust and vibration from an existing or proposed extractive industry operation if it is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

## 35.07-7 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 4.

02/12/2022
C259case

## SCHEDULE 1 TO CLAUSE 35.07 FARMING ZONE

Shown on the planning scheme map as **FZ1.**

### 1.0 Subdivision and other requirements

02/12/2022
C259case

| | Land | Area/Dimensions/Distance |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 12 hectares |
| Minimum area for which no permit is required to use land for a dwelling (hectares) | None specified | None specified |
| Maximum area for which no permit is required to use land for timber production (hectares) | None specified | None specified |
| Maximum floor area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to construct an out-building associated with a dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to alter or extend an existing building used for agriculture (square metres) | None specified | None specified |
| Minimum setback from a road (metres). | A Transport Zone 2 or land in a Public Acquisition Overlay if:<br>▪ The Head, Transport for Victoria is the acquiring authority; and<br>▪ The purpose of the acquisition is for a road. | 100 metres |
| | A Transport Zone 3 or land in a Public Acquisition Overlay if:<br>▪ The Head, Transport for Victoria is not the acquiring authority; and<br>▪ The purpose of the acquisition is for a road. | 40 metres |
| | Any other road | 20 metres |
| Minimum setback from a boundary (metres). | Any other boundary | 5 metres |
| Minimum setback from a dwelling not in the same ownership (metres). | Any dwelling not in the same ownership | 100 metres |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

02/12/2022
C259case

## SCHEDULE 2 TO CLAUSE 35.07 FARMING ZONE

Shown on the planning scheme map as **FZ2.**

### 1.0 Subdivision and other requirements

02/12/2022
C259case

| | Land | Area/Dimensions/Distance |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 40 hectares |
| Minimum area for which no permit is required to use land for a dwelling (hectares) | None specified | None specified |
| Maximum area for which no permit is required to use land for timber production (hectares) | None specified | None specified |
| Maximum floor area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to construct an out-building associated with a dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to alter or extend an existing building used for agriculture (square metres) | None specified | None specified |
| Minimum setback from a road (metres). | A Transport Zone 2 or land in a Public Acquisition Overlay if:<br>▪ The Head, Transport for Victoria is the acquiring authority; and<br>▪ The purpose of the acquisition is for a road. | 100 metres |
| | A Transport Zone 3 or land in a Public Acquisition Overlay if:<br>▪ The Head, Transport for Victoria is not the acquiring authority; and<br>▪ The purpose of the acquisition is for a road. | 40 metres |
| | Any other road | 20 metres |
| Minimum setback from a boundary (metres). | Any other boundary | 5 metres |
| Minimum setback from a dwelling not in the same ownership (metres). | Any dwelling not in the same ownership | 100 metres |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

02/12/2022
C259case

## SCHEDULE 3 TO CLAUSE 35.07 FARMING ZONE

Shown on the planning scheme map as **FZ3.**

### 1.0 Subdivision and other requirements

02/12/2022
C259case

| | Land | Area/Dimensions/Distance |
|---|---|---|
| Minimum subdivision area (hectares) | All land | 8 hectares |
| Minimum area for which no permit is required to use land for a dwelling (hectares) | None specified | None specified |
| Maximum area for which no permit is required to use land for timber production (hectares) | None specified | None specified |
| Maximum floor area for which no permit is required to alter or extend an existing dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to construct an out-building associated with a dwelling (square metres) | None specified | None specified |
| Maximum floor area for which no permit is required to alter or extend an existing building used for agriculture (square metres) | None specified | None specified |
| Minimum setback from a road (metres). | A Transport Zone 2 or land in a Public Acquisition Overlay if:<br>▪ The Head, Transport for Victoria is the acquiring authority; and<br>▪ The purpose of the acquisition is for a road. | 100 metres |
| | A Transport Zone 3 or land in a Public Acquisition Overlay if:<br>▪ The Head, Transport for Victoria is not the acquiring authority; and<br>▪ The purpose of the acquisition is for a road. | 40 metres |
| | Any other road | 20 metres |
| Minimum setback from a boundary (metres). | Any other boundary | 5 metres |
| Minimum setback from a dwelling not in the same ownership (metres). | Any dwelling not in the same ownership | 100 metres |

| Permit requirement for earthworks | Land |
|---|---|
| Earthworks which change the rate of flow or the discharge point of water across a property boundary | All land |
| Earthworks which increase the discharge of saline groundwater | All land |

# 36 PUBLIC LAND ZONES

19/01/2006
VC37

## 36.01 PUBLIC USE ZONE

31/07/2018
VC148

Shown on the planning scheme map as **PUZ** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To recognise public land use for public utility and community services and facilities.

To provide for associated uses that are consistent with the intent of the public land reservation or purpose.

## 36.01-1 Table of uses

14/11/2022
VC227

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Railway** | |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |
| **Any other use** | The use must be for the purpose described in the table to Clause 36.01-6 which corresponds to the notation on the planning scheme map.<br>The use must be carried out by or on behalf of the public land manager. |

### Section 2 - Permit required

| Use | Condition |
|---|---|

### Section 3 - Prohibited

| Use |
|---|
| **Nil** |

## 36.01-2 Permit requirement

19/01/2006
VC37

A permit is required to:

- Construct a building or construct or carry out works for any use in Section 2 of Clause 36.01-1. This does not apply to navigational beacons and aids.
- Subdivide land.

## 36.01-3 Application requirements

19/01/2006
VC37

An application for a permit by a person other than the relevant public land manager must be accompanied by the written consent of the public land manager, indicating that the public land manager consents generally or conditionally either:

- To the application for permit being made.
- To the application for permit being made and to the proposed use or development.

## 36.01-4 Decision guidelines

31/07/2018
VC148

Before deciding on an application to use or subdivide land, construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The comments of any Minister or public land manager having responsibility for the care or management of the land or adjacent land.
- Whether the development is appropriately located and designed, including in accordance with any relevant use, design or siting guidelines.

## 36.01-5 Permit not required

19/01/2006
VC37

A permit is not required to use land, or to construct a building or construct or carry out works on land, listed in a schedule to this zone, provided any condition in the schedule is complied with.

## 36.01-6 Table of public land use

14/01/2025
VC237

| Shown on the planning scheme map | Purpose of public land use |
|---|---|
| **PUZ1** | Service & Utility |
| **PUZ2** | Education |
| **PUZ3** | Health & Community |
| **PUZ5** | Cemetery/Crematorium |
| **PUZ6** | Local Government |
| **PUZ7** | Other public use |

## 36.01-7 Signs

20/01/2022
VC205

Sign requirements are at Clause 52.05. This zone is in Category 4 unless a different requirement is specified in the schedule to this zone.

Where a Transport Zone 2 or a Transport Zone 3 is the nearest adjoining zone, a permit is required to display a sign.

02/12/2022
C259case

# SCHEDULE TO CLAUSE 36.01 PUBLIC USE ZONE

## 1.0 Permit exemptions and conditions

02/12/2022
C259case

| Public land | Use or development | Conditions |
|---|---|---|
| Casey Hospital Lot 8 PS 439639X (Vol 10514, Fol 782) | Hospital, Residential building, Medical centre, Function centre, Food and drink premises, Shop | 1. Use of the land must be carried out in association with the use of the site as a hospital.<br>2. On site car parking must be conveniently located and provided at a rate to meet the needs of the use to the satisfaction of the responsible authority. |

## 2.0 Sign requirements

02/12/2022
C259case

| Land | Sign Category |
|---|---|
| The Arcade<br>Pt CA 21A, 21C, 21D, The Arcade, Junction Village | Category 2 |
| Autumn Place<br>Lot 31 LP 54282 (No. 29), Autumn Place, Doveton | Category 2 |
| Spring Square<br>LP 54909 (No. 4), Princes Domain Drive, Hallam | Category 2 |
| The Complex<br>Pt. CP 152597 (No. 65), Berwick/Cranbourne Road, Cranbourne East | Category 2 |
| All other land zoned PUZ2 | Category 3 |
| All other land zoned PUZ6 | Category 3 |
| All other land zoned PUZ7 | Category 3 |
| Casey Hospital<br>Lot 8 PS 439639X (Vol 10514, Fol 782) | Category 2 |
| Station Street, Cranbourne<br>Part of Lot 1 on Title Plan 562217Y (Vol 01732, Fol 204) | Category 2 |
| Patrick Northeast Reserve<br>Pt Lot 2, LP 113148 (No. 250-340), Princes Highway, Narre Warren | Category 2 |

## 36.02 PUBLIC PARK AND RECREATION ZONE

31/07/2018
VC148

Shown on the planning scheme map as **PPRZ**.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To recognise areas for public recreation and open space.

To protect and conserve areas of significance where appropriate.

To provide for commercial uses where appropriate.

## 36.02-1 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Informal outdoor recreation** | |
| **Open sports ground** | Must be conducted by or on behalf of the public land manager.<br>Must not be on coastal Crown land under the *Marine and Coastal Act 2018*. |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |
| **Contractor's depot**<br>**Heliport**<br>**Office**<br>**Retail premises**<br>**Store**<br>**Any other use not in Section 3** | Must be either of the following:<br>A use conducted by or on behalf of a public land manager, Parks Victoria or the Great Ocean Road Coast and Parks Authority, under the relevant provisions of the *Local Government Act 2020*, the *Reference Areas Act 1978*, the *National Parks Act 1975*, the *Fisheries Act 1995*, the *Wildlife Act 1975*, the *Forest Act 1958*, the *Water Industry Act 1994*, the *Water Act 1989*, the *Marine Safety Act 2010*, the *Port Management Act 1995*, or the *Crown Land (Reserves) Act 1978*.<br>A use specified in an Incorporated plan in a schedule to this zone. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Contractor's depot - if the Section 1 condition is not met** | Must be associated with the public land use. |
| **Heliport - if the Section 1 condition is not met** | Must be associated with the public land use. |
| **Office - if the Section 1 condition is not met** | Must be associated with the public land use. |
| **Retail premises - if the Section 1 condition is not met** | Must be associated with the public land use. |

| Use | Condition |
|---|---|
| **Store - if the Section 1 condition is not met** | Must be associated with the public land use. |

**Section 3 - Prohibited**

| Use |
|---|
| **Cinema based entertainment facility** |
| **Corrective institution** |
| **Display home centre** |
| **Funeral parlour** |
| **Industry (other than Automated collection point)** |
| **Saleyard** |
| **Transport terminal (other than Heliport)** |
| **Veterinary centre** |
| **Warehouse (other than Store)** |

## 36.02-2 Permit requirement

14/01/2025
VC237

A permit is required to:

- Construct a building or construct or carry out works. This does not apply to:
  - Pathways, trails, seating, picnic tables, drinking taps, shelters, barbeques, rubbish bins, security lighting, irrigation, drainage or underground infrastructure.
  - Playground equipment or sporting equipment, provided these facilities do not occupy more than 10 square metres of parkland.
  - Navigational beacons and aids.
  - Planting or landscaping.
  - Fencing that is 1 metre or less in height above ground level.
  - A building or works shown in an Incorporated plan which applies to the land.
  - A building or works carried out by or on behalf of a public land manager, Parks Victoria or the Great Ocean Road Coast and Parks Authority, under the *Local Government Act 2020*, the *Reference Areas Act 1978*, the *National Parks Act 1975*, the *Fisheries Act 1995*, the *Wildlife Act 1975*, the *Forest Act 1958*, the *Water Industry Act 1994*, the *Water Act 1989*, the *Marine Safety Act 2010*, the *Port Management Act 1995* or the *Crown Land (Reserves) Act 1978*.
- Subdivide land.

## 36.02-3 Application requirements

19/01/2006
VC37

An application for a permit by a person other than the relevant public land manager must be accompanied by the written consent of the public land manager, indicating that the public land manager consents generally or conditionally either:

- To the application for permit being made.

- To the application for permit being made and to the proposed use or development.

## 36.02-4 Exemption from notice and review

31/07/2018
VC148

An application to subdivide land which is consistent with an Incorporated plan is exempt from the notice requirements of section 52(1) (a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 36.02-5 Decision guidelines

31/07/2018
VC148

Before deciding on an application to use or subdivide land, construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The comments of any public land manager or other relevant land manager having responsibility for the care or management of the land or adjacent land.
- Whether the development is appropriately located and designed, including in accordance with any relevant use, design or siting guidelines.

## 36.02-6 Incorporated plan

19/01/2006
VC37

An Incorporated plan is a plan which shows the way the land is to be used and developed. An Incorporated plan may include the following information:

- Recognition of existing use and how the area is to be developed.
- The building envelope of any proposed buildings.
- Details of any proposed buildings or works.
- The location of pedestrian or vehicle access points or car parking areas.
- The location of any areas for specific uses or a schedule of specific uses which are allowed without permit.
- Topographic details including any proposed cut and fill.
- The location of existing and proposed features.
- The location of existing native and other vegetation and any proposed landscaping works or areas of vegetation to be added or removed.
- The identification of sites of flora or fauna significance (including, in particular, any potentially threatened species or significant habitat) or other places of cultural heritage or scientific value.

The Incorporated plan must be consistent with the intent of the public land reservation under any Act and make reference to relevant policies and guidelines.

An Incorporated plan may be prepared in parts or stages.

## 36.02-7 Use and development of land identified in a schedule

19/01/2006
VC37

Land identified in a schedule to this zone may be used and developed in accordance with the schedule or the specific controls contained in an incorporated document corresponding to the land, provided any condition in the schedule or incorporated document is complied with.

## 36.02-8 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 4 unless a different requirement is specified in the schedule to this zone.

02/12/2022
C259case

# SCHEDULE TO CLAUSE 36.02 PUBLIC PARK AND RECREATION ZONE

## 1.0 Permit exemptions and conditions

02/12/2022
C259case

| Public land | Use or development | Conditions |
|---|---|---|
| None specified | None specified | None specified |

## 2.0 Sign requirements

02/12/2022
C259case

| Land | Sign Category |
|---|---|
| Cranbourne Racecourse<br>Lot 1, CA 21B (No. 1410), South Gippsland Highway,<br>Cranbourne | Category 2 |
| All other land | Category 3 |

## 3.0 Use and development of land specified in an Incorporated Plan

02/12/2022
C259case

None specified.

## 36.03 PUBLIC CONSERVATION AND RESOURCE ZONE

31/07/2018
VC148

Shown on the planning scheme map as **PCRZ**.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To protect and conserve the natural environment and natural processes for their historic, scientific, landscape, habitat or cultural values.

To provide facilities which assist in public education and interpretation of the natural environment with minimal degradation of the natural environment or natural processes.

To provide for appropriate resource based uses.

## 36.03-1 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Apiculture** | Must meet the requirements of the Apiary Code of Practice, May 2011. |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Boat launching facility**<br>**Camping and caravan park**<br>**Caretaker's house**<br>**Car park**<br>**Informal outdoor recreation**<br>**Interpretation centre**<br>**Jetty**<br>**Kiosk**<br>**Marine dredging**<br>**Mooring pole**<br>**Open sports ground**<br>**Pier**<br>**Pontoon**<br>**Road**<br>**Utility installation (other than Telecommunications facility)** | Must be either of the following:<br>▪ A use conducted by or on behalf of a public land manager, Parks Victoria or the Great Ocean Road Coast and Parks Authority, under the relevant provisions of the *Local Government Act 2020*, the *Reference Areas Act 1978*, the *National Parks Act 1975*, the *Fisheries Act 1995*, the *Wildlife Act 1975*, the *Forests Act 1958*, the *Water Industry Act 1994*, the *Water Act 1989*, the *Marine Safety Act 2010*, the *Port Management Act 1995* or the *Crown Land (Reserves) Act 1978*.<br>▪ Specified in an Incorporated plan in a schedule to this zone. |
| **Any use listed in Clause 62.01 (other than Apiculture)** | |

| Use | Condition |
|---|---|
| **Any other use not in Section 2 or 3** | ▪ Must be a use conducted by or on behalf of a public land manager, Parks Victoria or the Great Ocean Road Coast and Parks Authority, under the relevant provisions of the *Local Government Act 2020*, the *Reference Areas Act 1978*, the *National Parks Act 1975*, the *Fisheries Act 1995*, the *Wildlife Act 1975*, the *Forests Act 1958*, the *Water Industry Act 1994*, the *Water Act 1989*, the *Marine Safety Act 2010*, the *Port Management Act 1995* or the *Crown Land (Reserves) Act 1978*. |

**Section 2 - Permit required**

| Use | Condition |
|---|---|
| **Emergency services facility** | |
| **Renewable energy facility (other than Wind energy facility)** | Must not be located on land reserved under the *National Parks Act 1975*.<br>Must meet the requirements of Clause 53.13. |
| **Wind energy facility** | Must not be located on land described in a schedule to the *National Parks Act 1975*. This does not apply where the Wind energy facility is principally used to supply electricity to a facility used in conjunction with conservation, recreation, administration or accommodation use of the land.<br>Must meet the requirements of Clause 52.32. |

**Section 3 - Prohibited**

| Use |
|---|
| **The use in Section 1 described as 'Any other use not in Section 2 or 3' – if the Section 1 condition is not met** |

## 36.03-2 Permit requirement

14/01/2025
VC237

A permit is required to:

- Construct a building or construct or carry out works. This does not apply to:
  - A building or works shown in an Incorporated plan which applies to the land.
  - A building or works specified in Clause 62.02-1 or 62.02-2 carried out by or on behalf of a public authority or municipal council, if the public authority or municipal council is carrying out functions, powers or duties conferred by or under the *Local Government Act 2020*, the *Reference Areas Act 1978*, the *National Parks Act 1975*, the *Fisheries Act 1995*, the *Wildlife Act 1975*, the *Forests Act 1958*, the *Water Industry Act 1994*, the *Water Act 1989*, the *Marine Safety Act 2010*, the *Port Management Act 1995* or the *Crown Land (Reserves) Act 1978*.
  - A building or works carried out by or on behalf of a public land manager, Parks Victoria or the Great Ocean Road Coast and Parks Authority, under the *Local Government Act 2020*, the *Reference Areas Act 1978*, the *National Parks Act 1975*, the *Fisheries Act 1995*, the

*Wildlife Act 1975*, the *Forests Act 1958*, the *Water Industry Act 1994*, the *Water Act 1989*, the *Marine Safety Act 2010*, the *Port Management Act 1995,* the *Crown Land (Reserves) Act 1978*, or the *Road Management Act 2004*.

- Subdivide land.

## 36.03-3 Application requirements

20/03/2023
VC229

An application for a permit by a person other than the relevant public land manager must be accompanied by the written consent of the public land manager, indicating that the public land manager consents generally or conditionally either:

- To the application for permit being made.
- To the application for permit being made and to the proposed use or development.

Where there is no public land manager, an application for a permit must be accompanied by the written consent of the Secretary to the Department of Energy, Environment and Climate Action.

## 36.03-4 Exemption from notice and review

31/07/2018
VC148

An application to subdivide land which is consistent with an Incorporated plan is exempt from the notice requirements of section 52(1) (a), (b), and (d), the decision requirements of sections 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 36.03-5 Referral of applications

18/06/2010
VC62

An application to use or develop land for the purpose of an emergency services facility must be referred under Section 55 of the Act to the person or body specified as the referral authority in Clause 66.03.

## 36.03-6 Decision guidelines

31/07/2018
VC148

Before deciding on an application to use or subdivide land, construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The comments of any public land manager or other relevant land manager having responsibility for the care or management of the land or adjacent land.
- Whether the development is appropriately located and designed, including in accordance with any relevant use, design or siting guidelines.

## 36.03-7 Incorporated plan

18/06/2010
VC62

An Incorporated plan is a plan which shows the way the land is to be used and developed. An Incorporated plan may include the following information:

- Recognition of existing use and how the area is to be developed.
- The building envelope of any proposed buildings.
- Details of proposed buildings or works.
- The location of pedestrian or vehicle access points or car parking areas.
- The location of any areas for specific uses and a schedule of specific uses which are allowed without permit.
- Topographic details including any proposed cut and fill.
- The location of existing and proposed features.

- The location of existing native or other vegetation and any proposed landscaping works or areas of vegetation to be added or removed.
- The identification of sites of flora or fauna significance (including, in particular, any potentially threatened species or significant habitat) or other places of cultural, heritage or scientific value.

The Incorporated plan must be consistent with the intent of the public land reservation under any Act and make reference to relevant policies and guidelines.

An Incorporated plan may be prepared in parts or stages.

## 36.03-8 Use and development of land identified in a schedule

18/06/2010
VC62

Land identified in a schedule to this zone may be used and developed in accordance with the schedule or the specific controls contained in an incorporated document corresponding to the land, provided any condition in the schedule or incorporated document is complied with.

## 36.03-9 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 4 unless a different requirement is specified in the schedule to this zone.

02/12/2022
C259case

# SCHEDULE TO CLAUSE 36.03 PUBLIC CONSERVATION AND RESOURCE ZONE

## 1.0 Permit exemptions and conditions

02/12/2022
C259case

| Public land | Use or development | Conditions |
|---|---|---|
| None specified | None specified | None specified |

## 2.0 Sign requirements

02/12/2022
C259case

| Land | Sign Category |
|---|---|
| Cranbourne Botanical Gardens<br>Lot 3/1 LP 210254/ PS 302281, Lot A PS 346783<br>CA 22A, 22B, 23B, (No. 1000) Ballarto Road,<br>Cranbourne South | Category 3 |
| Dandenong Police Paddocks<br>100 Police Road, Endeavour Hills | Category 3 |
| Churchill National Park<br>112 Churchill Park Drive, Lysterfield | Category 3 |
| Lysterfield Park<br>Pt Lots 6, 7, 8 & 21, LP P9682, Lots 22, 17-20, Pt CA 17, 19, 2 (No. 15), Reservoir Road, Narre Warren North | Category 3 |
| Churchill Park Golf Club<br>Pt. CA 9, 10, 11 & 12, Sec D (No. 113), Churchill Park Drive, Endeavour Hills | Category 3 |
| Cardinia Creek Conservation Corridor | Category 3 |

## 3.0 Use and development of land specified in an Incorporated Plan

02/12/2022
C259case

None specified.

## 36.04 TRANSPORT ZONE

20/01/2022
VC205

Shown on the planning scheme map as **TRZ** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide for an integrated and sustainable transport system.

To identify transport land use and land required for transport services and facilities.

To provide for the use and development of land that complements, or is consistent with, the transport system or public land reservation.

To ensure the efficient and safe use of transport infrastructure and land comprising the transport system.

## 36.04-1 Table of uses

15/03/2024
VC256

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Railway** | |
| **Railway station** | The combined leasable floor area for the selling of food, drink and other convenience goods and services must not exceed 800 square metres. |
| **Tramway** | |
| **Transport terminal (other than Railway station)** | The use must be carried out by or on behalf of a relevant transport manager. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | The use must be carried out by or on behalf of a relevant transport manager. |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |
| **Any other use** | The use must be for a transport purpose and carried out by or on behalf of a relevant transport manager. |

### Section 2 - Permit required

| Use | Condition |
|---|---|

### Section 3 - Prohibited

| Use |
|---|
| **Nil** |

## 36.04-2 Permit requirement

20/01/2022
VC205

A permit is required to:

- Construct a building or construct or carry out works for any use in Section 2 of Clause 36.04-1. This does not apply to navigational beacons and aids.
- Subdivide land.

## 36.04-3 Application requirements

20/01/2022
VC205

An application by a person other than a relevant transport manager on land shown on a planning scheme map as TRZ1 or TRZ2 must be accompanied by the written consent of the Head, Transport for Victoria, indicating that the Head, Transport for Victoria consents generally or conditionally to either:

- The application being made.
- The application being made and to the proposed use or development.

## 36.04-4 Table of transport uses

20/01/2022
VC205

| Shown on the planning scheme map | Purpose of transport use |
|---|---|
| **TRZ1** | State transport infrastructure |
| **TRZ2** | Principal road network |
| **TRZ3** | Significant municipal road |
| **TRZ4** | Other transport use |

## 36.04-5 Decision guidelines

20/01/2022
VC205

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The effect of the proposal on the development, operation and safety of the transport system.
- Whether the development is appropriately located and designed, including in accordance with any relevant use, design or siting guidelines.

## 36.04-6 Signs

12/02/2024
VC254

Sign requirements are at Clause 52.05.

A permit is required to construct or put up for display a sign:

- over a road carriageway or over land within 600 millimetres of a carriageway.
- on land in a Transport Zone 1, if a Transport Zone 2 or Transport Zone 3 is the adjoining zone.

For all other land in this zone, the sign category which applies is the category which applies to the adjoining zone nearest to the land. If land is equidistant from two or more adjoining zones, the least restrictive category applies.

# 37 SPECIAL PURPOSE ZONES

19/01/2006
VC37

## 37.01 SPECIAL USE ZONE

31/07/2018
VC148

Shown on the planning scheme map as **SUZ** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To recognise or provide for the use and development of land for specific purposes as identified in a schedule to this zone.

## 37.01-1 Table of uses

19/01/2006
VC37

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Any use in Section 1 of the schedule to this zone** | Must comply with any condition in Section 1 of the schedule to this zone |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Any use in Section 2 of the schedule to this zone** | Must comply with any condition in Section 2 of the schedule to this zone. |
| **Any other use not in Section 1 or 3 of the schedule to this zone** | |

### Section 3 - Prohibited

| Use |
|---|
| **Any use in Section 3 of the schedule to this zone** |

## 37.01-2 Use of land

31/07/2018
VC148

Any requirement in the schedule to this zone must be met.

### Application requirements

An application to use land must be accompanied by any information specified in the schedule to this zone.

### Exemption from notice and review

The schedule to this zone may specify that an application is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any guidelines in the schedule to this zone.

## 37.01-3 Subdivision

14/12/2023
VC253

### Permit requirement

A permit is required to subdivide land.

Any requirement in the schedule to this zone must be met.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within 5 years prior to the application for a permit for subdivision. | Clause 59.02 |
| Subdivide land into 2 lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land:<br>– Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | Clause 59.02 |

### Application requirements

An application to subdivide land must be accompanied by any information specified in the schedule to this zone.

### Exemption from notice and review

The schedule to this zone may specify that an application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any guidelines in the schedule to this zone.

## 37.01-4 Buildings and works

20/04/2026
VC307

### Permit requirement

A permit is required to construct a building or construct or carry out works unless the schedule to this zone specifies otherwise.

Any requirement in the schedule to this zone must be met.

An apartment development must meet the requirements of Clause 58.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works with an estimated cost of up to $700,000 and the land is not:<br>▪ Within 30 metres of land (not a road) which is in a residential zone.<br>▪ Used for a purpose listed in the table to Clause 53.10. | Clause 59.04 |

### Transitional provisions

Clause 58 does not apply to:

- An application for a planning permit lodged before the approval date of Amendment VC136.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before the approval date of Amendment VC136.

Clause 58 of this scheme, as in force immediately before the approval date of Amendment VC174, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

### Application requirements

An application to construct a building or construct or carry out works must be accompanied by any information specified in the schedule to this zone.

An application to construct or extend an apartment development, or to construct or extend a dwelling in or forming part of an apartment development, must be accompanied by an urban context report and design response as required in Clause 58.01.

### Exemption from notice and review

The schedule to this zone may specify that an application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- For an apartment development, the objectives, standards and decision guidelines of Clause 58.
- Any guidelines in the schedule to this zone.

## 37.01-5 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 3 unless a schedule to this zone specifies a different category.

02/12/2022
C259case

# SCHEDULE 1 TO CLAUSE 37.01 SPECIAL USE ZONE

Shown on the planning scheme map as **SUZ1.**

## EARTH AND ENERGY RESOURCES INDUSTRY

### Purpose

To recognise or provide for the use and development of land for earth and energy resources industry.

To encourage interim use of the land compatible with the use and development of nearby land.

To encourage land management practice and rehabilitation that minimises adverse impact on the use and development of nearby land.

## 1.0 Table of uses

01/12/2023
VC217

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point**<br>**Extensive animal husbandry**<br>**Home occupation**<br>**Informal outdoor recreation**<br>**Minor utility installation**<br>**Railway**<br>**Tramway** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01 |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Agriculture (other than Animal keeping, Animal training, Apiculture, Extensive animal husbandry, Horse stables, and Intensive animal husbandry)** | |
| **Animal keeping (other than Animal boarding)** | Must be no more than four animals. |
| **Caretaker's house**<br>**Dependent person's unit** | |
| **Industry (other than Materials recycling, Refuse disposal, and Transfer station)** | Must not be a purpose listed in the table to Clause 53.10. |
| **Landscape gardening supplies**<br>**Leisure and recreation (other than Informal outdoor recreation)**<br>**Manufacturing sales**<br>**Materials recycling**<br>**Place of assembly (other than Amusement parlour and Nightclub)** | |

| Use | Condition |
|---|---|
| **Refuse disposal** | |
| **Transfer station (other than Automated collection point)** | |
| **Utility installation (other than Minor utility installation)** | |
| **Warehouse** | Must not be a purpose listed in the table to Clause 53.10. |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Accommodation (other than Caretaker's house and Dependent person's unit)** |
| **Amusement parlour** |
| **Animal boarding** |
| **Animal training** |
| **Cinema based entertainment facility** |
| **Horse stables** |
| **Intensive animal husbandry** |
| **Nightclub** |
| **Office** |
| **Retail premises (other than Landscape gardening supplies and Manufacturing sales)** |
| **Saleyard** |
| **Service station** |
| **Transport terminal** |
| **Veterinary centre** |

## 2.0 Use of land

02/12/2022
C259case

None specified.

## 3.0 Subdivision

02/12/2022
C259case

None specified.

## 4.0 Buildings and works

02/12/2022
C259case

### Permit requirement

The requirement for a permit does not apply to the construction of a building or the construction or carrying out of works which are a modification necessary to comply with a direction or licence under the *Dangerous Goods Act 1985* or a Waste Discharge Licence, Works Approval or Pollution Abatement Notice under the *Environment Protection Act 1970*.

## 5.0 Signs

02/12/2022
C259case

None specified.

02/12/2022
C259case

## SCHEDULE 3 TO CLAUSE 37.01 SPECIAL USE ZONE

Shown on the planning scheme map as **SUZ3.**

**HILLCREST CHRISTIAN COLLEGE**

### Purpose

To provide for land to be used and developed as an education centre.

To ensure that the development of an education centre takes place in an orderly and proper manner and does not cause a loss of amenity to the neighbourhood.

## 1.0 Table of uses

02/12/2022
C259case

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Agriculture (other than Animal keeping, Intensive animal husbandry, Rice growing and Timber production)** | |
| **Animal keeping (other than Animal boarding)** | Must be no more than 5 animals. |
| **Apiculture** | Must meet the requirements of the Apiary Code of Practice, May 1997. |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and Clause 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Bed and breakfast** | No more than 6 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence. |
| **Cattle feedlot** | Must meet the requirements of Clause 53.08.<br>The total number of cattle to be housed in the cattle feedlot must be 1000 or less.<br>The site must be located outside a special water supply catchment under the *Catchment and Land Protection Act 1994*.<br>The site must be located outside a catchment area listed in Appendix 2 of the Victorian Code for Cattle Feedlots - August 1995. |
| **Carnival**<br>**Circus** | Must meet the requirements of A 'Good Neighbour' Code of practice for a Circus or Carnival, October 1997. |
| **Dependent person's unit** | Must be the only dependent person's unit on the lot.<br>Must meet the requirements of Clause 2.0 in this schedule. |

| Use | Condition |
|---|---|
| **Dwelling (other than Bed and breakfast)** | Must be the only dwelling on the lot.<br>The lots must be at least 40 hectares.<br>Must meet the requirements of Clause 2.0 in this schedule. |
| **Geothermal energy extraction** | Must meet the requirements of Clause 52.08-1. |
| **Home occupation**<br>**Informal outdoor recreation**<br>**Mineral exploration** | |
| **Mining** | Must meet the requirements of Clause 52.08-1. |
| **Minor utility installation**<br>**Natural systems**<br>**Railway**<br>**Road** | |
| **Search for stone** | Must not be costeaning or bulk sampling. |
| **Telecommunications facility** | Buildings and works must meet the requirements of Clause 52.19. |
| **Timber production** | Must meet the requirements of Clause 53.11.<br>The plantation must not be within 100 metres of:<br>▪ Any dwelling in separate ownership.<br>▪ Any land zoned for residential, business or industrial use.<br>▪ Any site specified on a permit which is in force which permits a dwelling to be constructed.<br>The plantation must not be within 20 metres of a powerline whether on private or public land, except with the consent of the relevant electricity supply or distribution authority. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01 |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Animal boarding** | |
| **Broiler farm** | Must meet the requirements of Clause 53.09. |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |

| Use | Condition |
|---|---|
| **Cattle feedlot - if the Section 1 condition is not met** | Must meet the requirements of Clause 53.08.<br>The site must be located outside a catchment area listed in Appendix 2 of the Victorian Code for Cattle Feedlots - August 1995. |
| **Cemetery**<br>**Community market**<br>**Crematorium** | |
| **Dependent person's unit - if the Section 1 condition is not met**<br>**Dwelling (other than Bed and breakfast) - if the Section 1 condition is not met** | Must meet the requirements of Clause 2.0 in this schedule. |
| **Education centre** | Must meet the requirements of Clause 2.0 in this schedule. |
| **Emergency services facility** | |
| **Freeway service centre** | Must meet the requirements of Clause 53.05. |
| **Freezing and cool storage** | |
| **Group accommodation** | Must be used in conjunction with Agriculture, Outdoor recreation facility, Rural industry, or Winery.<br>Must be no more than 6 dwellings. |
| **Host farm**<br>**Intensive animal husbandry (other than Broiler farm and Cattle feedlot)**<br>**Interpretation centre**<br>**Leisure and recreation (other than Informal outdoor recreation and Motor racing track)**<br>**Manufacturing sales**<br>**Mineral, stone, or soil extraction (other than Mineral exploration, Mining, and Search for stone)** | |
| **Place of assembly (other than Carnival and Circus)** | Must not be used for more than 10 days in a calendar year. |
| **Primary produce sales** | |
| **Residential hotel**<br>**Restaurant** | Must be used in conjunction with Agriculture, Outdoor recreation facility, Rural industry, or Winery. |
| **Rice growing**<br>**Rural industry**<br>**Rural store**<br>**Saleyard** | |

| Use | Condition |
|---|---|
| **Store (other than Freezing and cool storage and Rural store)** | Must be in a building, not a dwelling, and used to storey equipment, goods, or motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Timber production - if the Section 1 condition is not met** | Must meet the requirements of Clause 53.11. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Wind energy facility** | |
| **Winery** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Accommodation (other than Dependent person's unit, Dwelling, Group accommodation, Host farm and Residential hotel)** |
| **Industry (other than Automated collection point and Rural industry)** |
| **Motor racing track** |
| **Retail premises (other than Community market, Manufacturing sales, Primary produce sales and Restaurant)** |
| **Warehouse (other than Store)** |

## 2.0 Use of land

02/12/2022
C259case

A lot used for a dwelling or education centre must meet the following requirements:

- Access to the dwelling or education centre must be provided via an all-weather road with dimensions adequate to accommodate emergency vehicles.
- The dwelling or education centre must be connected to a reticulated sewerage system or, if not available, the waste water must be treated and retained on site in accordance with the State Environment Protection Policy (Waters of Victoria) under the *Environment Protection Act 1970*.
- The dwelling or education centre must be connected to a reticulated potable water supply or have an alternative potable water supply with adequate storage for domestic use as well as for fire fighting purposes.
- The dwelling or education centre must be connected to a reticulated electricity supply or have an alternative energy source.

These requirements also apply to a dependent person's unit.

### Exemption from notice and review

An application to use land for the purposes of an education centre is exempt from the notice and review requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 3.0 Subdivision

02/12/2022
C259case

A permit is required to subdivide land.

Each lot must be at least 40 hectares.

A permit may be granted to create smaller lots if any of the following apply:

- The subdivision is to create a lot for an existing dwelling. The subdivision must be a two lot subdivision. An agreement under Section 173 of the Act must be entered into with the owner of each lot created which ensures that the land may not be further subdivided so as to create a smaller lot for an existing dwelling. The agreement must be registered on title.
- The subdivision is the re-subdivision of existing lots and the number of lots is not increased. An agreement under Section 173 of the Act must be entered into with the owner of each lot created which ensures that the land may not be further subdivided so as to increase the number of lots. The agreement must be registered on title.
- The subdivision is by a public authority or utility service provider to create a lot for a utility installation.
- The subdivision is for the purpose of creating a road.

A permit to subdivide land must be generally in accordance with the approved Hillcrest Christian College Master Plan and the incorporated Clyde North Precinct Structure Plan (September 2011).

## 4.0 Buildings and works

02/12/2022
C259case

A permit is required to construct or carry out any of the following:

- A building or works associated with a use in Section 2 of Clause 1.0 of this schedule.

This does not apply to:

- An alteration or extension to an existing dwelling with a floor area of no more than 50 square metres.
- An alteration or extension to an existing building used for agriculture with a floor area of no more than 100 square metres. The building must not be used to keep, board, breed or train animals.
- Earthworks which change the rate of flow or the discharge point of water across a property boundary.
- Earthworks which increase the discharge of saline groundwater.
- A building which is within any of the following setbacks:
  - 100 metres from a Transport Zone 2 or land in a Public Acquisition Overlay if:
    - The Head, Transport for Victoria is the acquiring authority; and
    - The purpose for the acquisition is for a road.
  - 40 metres from a Transport Zone 3 or land in a Public Acquisition Overlay if:
    - The Head, Transport for Victoria is not the acquiring authority; and
    - The purpose for the acquisition is for a road.
  - 20 metres from all other roads.
  - 100 metres from a dwelling not in the same ownership.
  - 100 metres from a waterway, wetlands or designated flood plain.

A permit to construct a building or construct or carry out works must be generally in accordance with the approved Hillcrest Christian College Master Plan and the incorporated Clyde North Precinct Structure Plan (September 2011).

The responsible authority may grant a permit to construct a building or construct or carry out works prior to the approval of a master plan provided that the responsible authority is satisfied that the proposed building or works are of a minor nature and the issue of a permit will not prejudice the preparation or approval of a master plan for the site or achievement of the objectives of the Clyde North Precinct Structure Plan (September 2011).

The Hillcrest Christian College Master Plan must include:

- A plan drawn to scale showing the extent of the site and the location of the proposed buildings and works.
- The proposed purpose of each building.
- The maximum number of full time students that will attend the education centre.
- The typical height of each building.
- A general description of the materials to be used in the construction of the buildings.
- A connector road generally in accordance with the incorporated Clyde North Precinct Structure Plan (September 2011).
- The location of vehicular access to and from the site.
- The location of on-site car parking and internal access roads.
- The location of major pedestrian paths on the site.
- A statement of any works required to ensure appropriate safe access to the site.
- The location of any proposed signage visible from the road frontage.
- The type of fencing around the perimeter of the site.
- A landscape concept plan indicating vegetation to be retained and the general theme for the overall landscaping of the site.
- A description of the physical services to be provided for the site.
- An indication of the likely staging and timing of development.

The Hillcrest Christian College Master Plan must be advertised and publicly displayed at the Municipal Offices for a minimum of 14 days.

The responsible authority may not approve the Hillcrest Christian College Master Plan until after the completion of public display of the Master Plan.

When considering the approval of the Hillcrest Christian College Master Plan, the responsible authority must have regard to:

- The effect of the proposed buildings and works on the amenity of the area.
- Long-term strategic planning policy that identifies the land and the surrounding land for future urban development.
- The safe and efficient movement of vehicular traffic to and from the site.
- The adequacy of on-site car parking areas for the convenient use of parents, staff and visitors to the school.
- The movement of pedestrians and cyclists.
- The provision of appropriate landscaping of the site.
- Comments received during the exhibition of the Master Plan.

The Hillcrest Christian College Master Plan may be amended to the satisfaction of the responsible authority. If, in the opinion of the responsible authority, the proposed amendment is significant in nature, then the amendment is subject to the advertising and public display requirements of this clause.

### Exemption from notice and appeal

An application to construct a building or construct or carry out works that is generally in accordance with the approved Hillcrest Christian College Master Plan and the incorporated Clyde North Precinct Structure Plan (September 2011) is exempt from the notice and review requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 5.0 Application requirements for dwellings

An application to use a lot for a dwelling must be accompanied by a written statement which explains how the proposed dwelling responds to the decision guidelines for dwellings in the zone.

## 6.0 Decision guidelines

Before deciding on an application to use or subdivide land, construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

### General issues

- The Planning Policy Framework, Municipal Planning Strategy and local planning policies.
- Any Regional Catchment Strategy and associated plan applying to the land.
- The capability of the land to accommodate the proposed use or development, including the disposal of effluent.
- How the use or development related to sustainable land management.
- Whether the site is suitable for the use or development and whether the proposal is compatible with adjoining and nearby land uses.

### Dwelling issues

- Whether the dwelling will result in the loss or fragmentation of productive agricultural land.
- Whether the dwelling is reasonably required for the operation of the agricultural activity conducted on the land.
- Whether the dwelling will be adversely affected by agricultural activities on adjacent and nearby land due to dust, noise odour, use of chemicals and farm machinery, traffic and hours of operation.
- Whether the dwelling will adversely affect the operation and expansion of adjoining and nearby agricultural uses.
- The potential for the proposal to lead to a concentration or proliferation of dwellings in the area and the impact of this on the use of the land for agriculture.

### Environmental issues

- The impact of the proposal on the natural physical features and resources of the area, in particular on soil and water quality.
- The impact of the use or development on the flora and fauna on the site and its surrounds.

- The need to protect and enhance the biodiversity of the area, including the retention of vegetation and faunal habitat and the need to revegetate land including riparian buffers along waterways, gullies, ridgelines, property boundaries and saline discharge and recharge areas.
- The location of on-site effluent disposal areas to minimise the impact of nutrient loads on waterways and native vegetation.

### Design and siting issues

- The need to locate buildings in one area to avoid any adverse impacts on surrounding agricultural uses and minimise the loss of productive agricultural land.
- The impact of the siting, design, height, bulk, colours and materials to be used, on the natural environment, major roads, vistas and water features and the measures to be undertaken to minimise any adverse impacts.
- The impact on the character and appearance of the area or features of architectural, historic or scientific significance or of natural scenic beauty or importance.
- The location and design of existing and proposed infrastructure including roads, gas, water, drainage, telecommunications and sewerage facilities.
- Whether the use and development will require traffic management measures.
- The integration of the development with the surrounding Clyde North precinct.

### Education centre issues

- The approved Hillcrest Christian College Master Plan for the site.

## 7.0 Signs

02/12/2022
C259case

None specified.

02/12/2022
C259case

# SCHEDULE 4 TO CLAUSE 37.01 SPECIAL USE ZONE

Shown on the planning scheme map as **SUZ4.**

## THOMPSONS ROAD PRECINCT STRUCTURE PLAN - ELECTRICITY EASEMENT

### Purpose

To manage the transition of non-urban land into urban land in accordance with a precinct structure plan.

To provide for a range of uses and the development of land generally in accordance with a precinct structure plan.

### Precinct structure plan provisions

A precinct structure plan applies to land when the precinct structure plan is incorporated in this scheme.

## 1.0 Table of uses

02/12/2022
C259case

Any requirement in the Table of uses and any requirement specified in this schedule or the precinct structure plan applying to the land must be met.

A permit granted must be generally in accordance with the precinct structure plan applying to the land.

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point**<br>**Convenience shop**<br>**Crop raising**<br>**Extensive animal husbandry**<br>**Home occupation**<br>**Informal outdoor recreation**<br>**Mail centre**<br>**Minor utility installation**<br>**Railway** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Service station** | The land must be at least 30 metres from land (not a road) which is in a residential zone, Capital City Zone or Docklands Zone, land used for a hospital or an education centre or land in a Public Acquisition Overlay to be acquired for a hospital or an education centre. |
| **Shop (other than Adult sex product shop, Convenience shop, Restricted retail premises and Supermarket)** | Must adjoin, or be on the same lot as, a supermarket when the use commences.<br>The combined leasable floor area for all shops adjoining or on the same lot as the supermarket must not exceed 500 square metres.<br>The site must adjoin, or be within 30 metres of, a road in a Transport Zone 2 or a Transport Zone 3. |

| Use | Condition |
|---|---|
| **Supermarket** | The leasable floor area must not exceed 1800 square metres.<br>The site must adjoin, or be within 30 metres of, a road in a Transport Zone 2 or a Transport Zone 3.<br>Must be on land within an urban growth boundary and in metropolitan Melbourne. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01 |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Adult sex product shop** | Must be at least 200 metres (measured by the shortest route reasonably accessible on foot) from a residential zone, land used for a hospital, primary school or secondary school or land in a Public Acquisition Overlay to be acquired for a hospital, primary school or secondary school. |
| **Agriculture (other than Apiculture, Crop raising, Extensive animal husbandry and Intensive animal husbandry)**<br>**Caretaker's house** | |
| **Education centre** | Must not be a primary or secondary school. |
| **Industry (other than Automated collection point)**<br>**Leisure and recreation (other than Informal outdoor recreation, Major sports and recreation facility and Motor racing track)**<br>**Office**<br>**Place of assembly (other than Carnival and Circus)**<br>**Restricted retail premises**<br>**Retail premises (other than Shop)**<br>**Utility installation (other than Minor utility installation and Telecommunications facility)**<br>**Warehouse (other than Mail centre)** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Accommodation (other than Caretaker's house)** |
| **Cinema based entertainment facility** |

| Use |
|---|
| **Hospital** |
| **Intensive animal husbandry** |
| **Major sports and recreation facility** |
| **Motor racing track** |
| **Shop (other than Adult sex product shop, Convenience shop, Restricted retail premises and Supermarket) – if the Section 1 conditions are not met** |
| **Supermarket – if the Section 1 conditions are not met** |

## 2.0 Use of land

02/12/2022
C259case

None specified.

## 3.0 Subdivision

02/12/2022
C259case

A permit granted must:

- Be generally in accordance with the precinct structure plan applying to the land.
- Include any conditions or requirements specified in the precinct structure plan.

## 4.0 Buildings and works

02/12/2022
C259case

A permit is not required to construct a building or construct or carry out works for:

- A building or works which rearrange, alter or renew plant if the area or height of the plant is not increased.
- A building or works which are used for crop raising, extensive animal husbandry or informal outdoor recreation.
- A rainwater tank with a capacity of more than 4500 litres if the following requirements are met:
  - The rainwater tank is not located within the building's setback from a street (other than a lane).
  - The rainwater tank is no higher than the existing building on the site.
  - The rainwater tank is not located in an area that is provided for car parking, loading, unloading or accessway.

A permit granted must:

- Be generally in accordance with the precinct structure plan applying to the land.
- Include any conditions or requirements specified in the the precinct structure plan.

## 5.0 Exemption from notice and review

An application under any provision of this scheme which is generally in accordance with the precinct structure plan applying to the land is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 6.0 Signs

02/12/2022
C259case

Sign requirements are at Clause 52.05. All land located within this Schedule to this zone is in Category 3.

02/12/2022
C259case

# SCHEDULE 5 TO CLAUSE 37.01 SPECIAL USE ZONE

Shown on the planning scheme map as **SUZ5.**

## CONSERVATION AREAS FOR MELBOURNE'S GROWTH CORRIDORS

### Purpose

To give effect to the *Biodiversity Conservation Strategy for Melbourne's Growth Corridors* (Department of Environment and Primary Industries, June 2013) and any approved Precinct Structure Plan that applies to the land that is incorporated in this planning scheme.

To protect land important for the conservation of populations of Growling Grass Frog including land that may be required for:

- Habitat construction or enhancement and associated buffers.
- Works to provide appropriate hydrolocical regimes and water quality for the Growling Grass Frog.
- Habitat connectivity between populations of Growling Grass Frog.
- The improvement of water condition or ecological function for the Growling Grass Frog.
- Effective implementation of conservation management, weed control, restoration or access for management or maintenance.

To encourage and provide for works and the management of land to protect and enhance the biodiversity values of the land, including restoration, regeneration and revegetation with indigenous species, conserve populations of Growling Grass Frog and provide scientific opportunities.

To provide for use, development and management of land that:

- Is compatible with the long-term maintenance and conservation of the land.
- Is compatible with the conservation outcomes identified in the *Biodiversity Conservation Strategy for Melbourne's Growth Corridors* (Department of Environment and Primary Industries, June 2013).
- Will not have a detrimental impact on the biodiversity and other environmental values of the land.

To protect land important to provide habitat connectivity for native flora and fauna.

To provide for the long-term preservation and conservation of ecological communities, habitat, flora and fauna and genetic diversity.

To protect and enhance ecological communities, populations and habitat of matters of national environmental significance listed under the *Environment Protection and Biodiversity Conservation Act 1999* (Cth).

To protect and enhance Native vegetation and habitat for threatened flora and fauna listed under the *Flora and Fauna Guarantee Act 1988*.

### Precinct structure plan provisions

A precinct structure plan applies to land when the precinct structure plan is incorporated in this scheme.

### Use of land

Any requirement in the Table of uses and any requirement specified in this schedule must be met.

A permit granted must be generally in accordance with the precinct structure plan applying to the land.

## 1.0 Table of uses

28/04/2026
VC232

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of clause 52.13--3 and Clause 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Natural systems** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01 |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Apiculture**<br>**Agriculture (other than Animal keeping, Intensive animal husbandry, and Timber production)**<br>**Animal keeping (other than Animal boarding)** | |
| **Bed and breakfast** | Must be an existing dwelling.<br>No more than 6 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence. |
| **Carnival** | |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Circus**<br>**Community market** | |
| **Dependent person's unit** | Must be the only dependent person's unit on the lot. |
| **Emergency services facility** | |
| **Freezing and cool storage** | The goods stored must be agricultural produce, or products used in agriculture on or adjacent to the land. |
| **Group accommodation** | Must be used in conjunction with Agriculture, Rural industry, or winery.<br>Must be no more than 6 dwellings.<br>The lot on which the use is conducted must be at least 40 hectares. |

| Use | Condition |
|---|---|
| | Must be restricted to the footprint of existing buildings, gardens and environs and existing agricultural use of the land. |
| **Home occupation** | |
| **Host farm** | Must be an existing dwelling.<br>Must be in conjunction with the existing use of the land. |
| **Informal outdoor recreation**<br>**Interpretation centre**<br>**Market**<br>**Minor utility installation**<br>**Open sports ground**<br>**Recreational boat facility**<br>**Primary produce sales**<br>**Railway** | |
| **Restaurant** | Must be used in conjunction with Agriculture, Rural industry, or Winery.<br>The number of patrons present must not exceed 50 patrons.<br>The lot on which the use is conducted must be at least 40 hectares.<br>Must be restricted to the footprint of existing buildings, gardens and environs and existing agricultural use of the land. |
| **Road** | Must comply with the requirement of clause 5 of this schedule |
| **Rural industry** | Must relate to produce produced on or adjacent to the land |
| **Rural store** | Must relate to produce produced on or adjacent to the land |
| **Telecommunication facility**<br>**Utility installation (other than Minor utility installation)**<br>**Tramway**<br>**Winery** | |
| **Any other use not in Section 1 or 3** | |

## Section 3 - Prohibited

| Use |
| --- |
| Abattoir |
| Accommodation (other than Dependent person's unit, Group accommodation, Host farm, and Residential hotel) |
| Animal boarding |
| Apiculture |
| Art and craft centre |
| Broiler farm |
| Cemetery |
| Child care centre |
| Cinema based entertainment facility |
| Cremetorium |
| Dwelling |
| Display home |
| Earth and energy resources industry |
| Education centre |
| Emergency services facilities |
| Freeway service centre |
| Funeral parlour |
| Hospital |
| Helicopter landing site |
| Industry (other than Automated collection point and Rural industry) |
| Intensive animal husbandry |
| Leisure and recreation (other than Informal outdoor recreation and Open sports ground) |
| Office |
| Place of assembly (other than Carnival and Circus) |
| Renewable energy facility |
| Research centre |
| Residential hotel |
| Retail premises (other than Market, Primary produce sales and Restaurant) |
| Rice growing |
| Saleyard |
| Sawmill |
| Service station |
| Timber production |
| Transport terminal |
| Veterinary centre |

| Use |
| --- |
| Warehouse (other than Freezing and cool storage, and Rural store) |

## 2.0 Application requirements

All applications must be accompanied by the following information to the satisfaction of the responsible authority:

- A written statement demonstrating how the proposal will ensure that there is no net loss of habitat for ecological communities and listed species in accordance with the *Biodiversity Conservation Strategy for Melbourne's Growth Corridors* (Department of Environment and Primary Industries, June 2013).
- A written statement showing how the proposal meets the requirements of:
  - Any precinct structure plan applying to the land; and
  - Any Conservation Management Plan approved for the land by the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*); and
  - Any agreement under section 69 of the *Conservation Forests and Lands Act 1987* relevant to the land; and
  - Melbourne Water where the proposal is within 100 metres of a waterway.
  - An Environmental Management Plan.

## 3.0 Use of land

02/12/2022
C259case

### Use of land for a dwelling

A lot used for a dwelling must meet the following requirements:

- Access to the dwelling must be provided via an all-weather road with dimensions adequate to accommodate emergency vehicles.
- The dwelling must be connected to a reticulated sewerage system or if not available, the waste water must be treated and retained on-site in accordance with the State Environment Protection Policy (Waters of Victoria) under the *Environment Protection Act 1970*.
- The dwelling must be connected to a reticulated potable water supply or have an alternative potable water supply with adequate storage for domestic use as well as for fire fighting purposes.
- The dwelling must be connected to a reticulated electricity supply or have an alternative energy source.

These requirements also apply to a dependent person's unit.

## 4.0 Subdivision

02/12/2022
C259case

A permit is required to subdivide land.

Each lot must be at least 40 hectares.

A permit may be granted to create smaller lots if any of the following apply:

- The subdivision is the re-subdivision of existing lots, the number of lots is not increased, and the number of dwellings that the land could be used for does not increase. An agreement under Section 173 of the Act must be entered into with the owner of each lot created which ensures

that the land may not be further subdivided so as to increase the number of lots. The agreement must be registered on title. The requirement to enter into an agreement only applies to a lot which could be further subdivided in accordance with this scheme.

- The subdivision is by a public authority or utility service provider to create a lot for a utility installation.

A permit granted must be generally in accordance with the precinct structure plan applying to the land.

## 5.0 Buildings and works

28/04/2026
VC232

A permit is required to construct or carry out any of the following:

- A building or works associated with a use in Section 2 of Clause 35.06-1. This does not apply to:
  - An alteration or extension to an existing dwelling provided the floor area of the alteration or extension does not exceed the area specified in a schedule to this zone or, if no area is specified, 50 square metres. Any area specified must be more than 50 square metres.
  - An out-building associated with an existing dwelling provided the floor area of the out-building does not exceed the area specified in a schedule to this zone or, if no area is specified, 50 square metres. Any area specified must be more than 50 square metres.
  - An alteration or extension to an existing building used for agriculture provided the floor area of the alteration of extension does not exceed the area specified in a schedule to this zone or, if no area is specified, 50 square metres. Any area specified must be more than 50 square metres. The building must not be used to keep, board, breed or train animals.
  - A rainwater tank.
- Earthworks.
- Roadworks or bicycle trails. The construction of a road or bicycle trail must not commence until a Construction Environmental Management Plan for the relevant works has been approved to the satisfaction of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*).
- A building which is within any of the following setbacks:
  - 100 metres from a Transport Zone 2 or land in a Public Acquisition Overlay if:
    - The Head, Transport for Victoria is the acquiring authority; and
    - The purpose of the acquisition is for a road.
  - 40 metres from a Transport Zone 3 or land in a Public Acquisition Overlay if:
    - The Head, Transport for Victoria is not the acquiring authority; and
    - The purpose of the acquisition is for a road.
  - 20 metres from any other road.
  - 5 metres from any other boundary.
  - 100 metres from a dwelling not in the same ownership.
  - 100 metres from a waterway, wetlands or designated flood plain.

A permit granted must be generally in accordance with the precinct structure plan applying to the land.

## 6.0 Referral of applications

An application to develop land must be referred in accordance with section 55 of the Act to the referral authority specified in clause 66.04 or a schedule to that clause.

## 7.0 Exemption from notice and review

An application under this overlay is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 8.0 Decision guidelines

### General issues

- The capability of the land to accommodate the proposed use or development.
- How the use or development conserves the values identified for the land in a precinct structure plan applying to the land.
- Whether use or development protects and enhances the environmental, agricultural and landscape qualities of the site and its surrounds.
- Whether the site is suitable for the use or development and the compatibility of the proposal with adjoining land uses.

### Environmental issues

- An assessment of the likely environmental impact on the biodiversity and in particular the flora and fauna of the area.
- The protection and enhancement of the natural environment of the area, including the retention of vegetation and faunal habitats and the need to revegetate land including riparian buffers along waterways, gullies, ridgelines, property boundaries and saline discharge and recharge areas.
- Whether the proposal will result in a net loss of habitat for mattes of national environmental significance described in the *Biodiversity Conservation Strategy for Melbourne's Growth Corridors* (Department of Environment and Primary Industries, 2013).
- Whether the proposal is appropriate having regard to biodiversity values of the land recorded in the time stamped data set NV2011_TS_GA (Department of Environment and Primary Industries) and the *Biodiversity Conservation Strategy for Melbourne's Growth Corridors* (Department of Environment and Primary Industries, 2013).

### Design and siting issues

- The need to minimise any adverse impacts of siting, design, height, bulk, and colours and materials to be used, on landscape features, major roads and vistas.
- The location and design of existing and proposed infrastructure services which minimises the visual impact on the landscape.
- The need to minimise adverse impacts on the character and appearance of the area or features of archaeological, historic or scientific significance or of natural scenic beauty or importance.
- The location and design of roads and existing and proposed infrastructure services to minimise the visual impact on the landscape.

## 9.0 Signs

02/12/2022
C259case

Sign requirements are at Clause 52.05. All land located within this Schedule to this zone is in Category 4.

11/06/2020
C265case

# SCHEDULE 6 TO CLAUSE 37.01 SPECIAL USE ZONE

Shown on the planning scheme map as **SUZ6**.

## CRANBOURNE RACING COMPLEX AND SURROUNDS

### Purpose

To provide for the use and development of the land for racing industry related purposes.

To provide for the use and development of the land for community, entertainment and tourism uses and events.

To provide for the protection, retention, enhancement and maintenance of native vegetation and sensitive ecological corridors.

To ensure that the combination of uses, their hours of operation and the form of any development do not prejudice the amenity of surrounding areas.

To provide for the use and development of the land adjacent to the Cranbourne Training Centre for horse stabling purposes.

To provide for the use and development of land in accordance with the *Cranbourne Racing Complex and Surrounds Investment and Development Plan.*

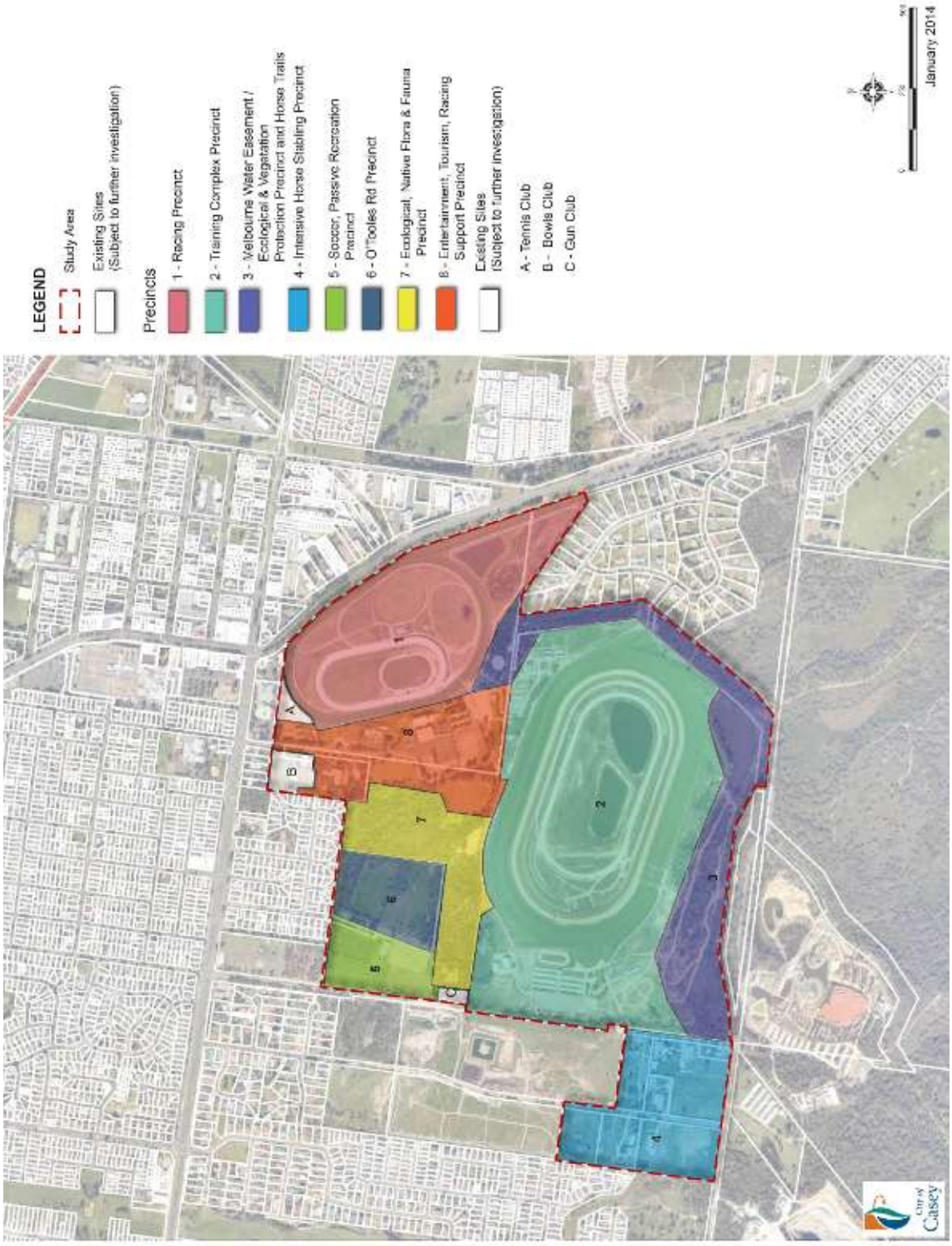
## 1.0 Cranbourne Racing Complex and Surrounds Precinct Plan

11/06/2020
C265case

Map 1 to Schedule 6 to Clause 37.01 shows the precincts of the Cranbourne Racing Complex and Surrounds.

## Map 1 to Schedule 6 to Clause 37.01

## Cranbourne Racing Complex and Surrounds Precinct Plan



## 2.0 Table of uses

01/12/2023
VC217

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Animal husbandry (other than Animal boarding, Apiculture, and Intensive animal husbandry)** | Must be located in Precincts 1, 2, 4 and 6. |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Informal outdoor recreation** | |
| **Horse stables** | Must not be within 30 metres of land in a residential zone.<br>Must be located in Precincts 2, 4 and 6. |
| **Leisure and recreation (other than Major sports and recreation facility and Motor racing track)** | |
| **Major sports and recreation facility** | Must be in Precincts 1 and 2. |
| **Market** | |
| **Open sports ground** | |
| **Saleyard** | Must be located in Precincts 1 and 2. |
| **Veterinary centre** | Must be in Precincts 1, 2,4 and 8. |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Accommodation (other than Corrective Institution, Dependent person's unit, Dwelling, and Residential hotel)** | |
| **Agriculture (other than Animal boarding, Animal husbandry, Animal keeping, Animal training, Apiculture, and Intensive animal husbandry)** | |
| **Dependent persons unit** | Must be the only dependent person's unit on the lot.<br>Must meet the requirements of Clause 4.<br>Must be located in Precincts 4 and 6. |
| **Dwelling** | Must be the only dwelling on the lot.<br>Must meet the requirements of Clause 4.<br>Must be located in Precincts 4 and 6. |
| **Equestrian supplies** | |

| Use | Condition |
|---|---|
| **Food and drink premises** | |
| **Function centre** | |
| **Gambling premises** | |
| **Indoor recreation facility** | |
| **Industry (other than Automated collection point)** | Must be in association with the racing and equestrian industries. |
| **Intensive animal husbandry (other than Broiler farm and Cattle feedlot)** | Must be in association with the racing and equestrian industries. |
| **Place of assembly (other than Function centre and Drive-in theatre)** | |
| **Residential hotel** | |
| **Utility installation** | |
| **Warehouse** | Must be in association with the racing and equestrian industries. |
| **Any other use not in Section 1 or 3** | |

### Section 3 – Prohibited

| Use |
|---|
| **Adult sex product shop** |
| **Animal boarding** |
| **Apiculture** |
| **Broiler farm** |
| **Cattle feedlot** |
| **Cemetery** |
| **Crematorium** |
| **Corrective institution** |

## 3.0 Development of Land

20/08/2015
C166

A permit is not required to construct a building or carry out works for a use in Section 1 of the Table of Uses, provided that the building or works:

- are not located within 500 metres of a closed or operational landfill; and
- are not to be constructed or carried out within 30 metres of land in a residential zone.

Any permit to use or subdivide land, or construct a building or carry out works, must be generally in accordance with the relevant provisions of the *Cranbourne Racing Complex and Surrounds Investment and Development Plan*.

## 4.0 Use for one or two dwellings or a dependent person's unit

20/08/2015
C166

A lot may be used for one or two dwellings or a dependent person's unit provided the following requirements are met:

- Each dwelling must be connected to reticulated sewerage, if available. If reticulated sewerage is not available, all wastewater from each dwelling must be treated and retained within the lot in accordance with the State Environment Protection Policy (Waters of Victoria) under the Environment Protection Act 1970.
- Each dwelling must be connected to a reticulated potable water supply or have an alternative potable water supply, with appropriate storage capacity, to the satisfaction of the responsible authority.
- Each dwelling must be connected to a reticulated electricity supply or have an alternative energy supply to the satisfaction of the responsible authority.
- The owner enters into an agreement with the responsible authority under section 173 of the Planning and Environment Act 1987 (Unless previously provided under Clause 5.0) that provides for or requires that:
  - any dwelling or building used for accommodation in Precinct 4 must be used in conjunction with Horse Stables or be associated with the use of the Cranbourne Racing and Training Complex.

## 5.0 Subdivision

20/08/2015
C166

An application to subdivide land must meet the following requirements:

Each lot must be:

- 0.4 hectare for each lot where reticulated sewerage is not connected.
- 0.2 hectare for each lot with connected reticulated sewerage.

A permit may be granted to create smaller lots if the subdivision:

- Excises land which is required for a road or a utility installation.
- Provides for the re-subdivision of existing lots and the number of lots is not increased.

Any permit issued is subject to a condition requiring the owner to enter into an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987* that provides for or requires that:

- any dwelling or building used for accommodation in Precinct 4 must be used in conjunction with Horse Stables or be associated with the use of the Cranbourne Racing and Training Complex.

## 6.0 Exemption from notice and review

20/08/2015
C166

Any application that is generally in accordance with the approved Cranbourne Racing Complex and Surrounds Investment and Development Plan is exempt from the notice and review requirement of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 7.0 Applications on land reserved under the Crown Land (Reserves) Act 1978

20/08/2015
C166

An application for a permit by a person other than the relevant public land manager on land which is permanently or temporary reserved for any purpose under the *Crown Land (Reserves) Act 1978* must be accompanied by the written consent of the public land manager, indicating that the public land manager consents generally or conditionally either:

- To the application for the permit being made.

- To the application for the permit being made and to the proposed use or development.

## 8.0 Application requirements

11/06/2020
C265case

Before deciding on an application, the responsible authority must consider, as appropriate:

- A traffic management plan including:
  - The location of vehicular access to and from the site.
  - The location of on-site car parking and internal access roads.
  - The location of major pedestrian paths on the site.
  - A statement of any works required to ensure appropriate safe access to the site
  - An assessment of the impact the proposal would have on any arterial road intersections.
- An Environmental and Pest Management Plan prepared and approved to the satisfaction of the responsible authority including:
  - The impact of the use or development on the flora and fauna on the site and its surrounds and methods to avoid, minimise or mitigate those impacts.
  - The need to protect and enhance the biodiversity of the area, including the retention of native vegetation and fauna habitat and the re-vegetation of important areas of habitat and integration of native vegetation into landscaping of the site.
  - Avoidance and mitigation of impacts to the Southern Brown Bandicoot ecological community and habitat.
  - An assessment of the likely environmental impact on the natural physical features and resources of the area and in particular any impact caused by the proposal on soil and water quality and by the emission of effluent, noise, dust and odours.
  - Water sensitive urban design including methods for water collection and reuse.
  - The management of any impacts on adjoining land associated with the horse racing and training facilities including noise, dust, traffic, hours of operation, night-lighting, light spill, effect on the privacy of adjoining properties, solar access, and glare.
  - The management of impacts, if any, during the construction and carrying out of works, including dust, noise, litter, traffic and other amenity impacts.
- A landscape concept plan indicating vegetation to be retained and the general theme for the overall landscaping of the site including linkages to the Cranbourne Gardens.
- A description of the physical services to be provided for the site.

Any application to use or subdivide land, construct a building or construct or carry out work within 500 metres of a closed or operational landfill must meet (as appropriate) the *Best Practice Environmental Management Guideline (Siting, Design Operation and Rehabilitation of Landfills),* Environment Protection Authority, Publication 788.2( 2014)) in relation to potential migration of landfill gas.

## 9.0 Decision guidelines

11/06/2020
C265case

Before deciding on an application to use or subdivide land, construct a building or construct or carry out works, the responsible authority must consider, as appropriate:

- The location and extent of any buildings and works with respect to the natural environment, landscape values, vistas and water features and the measures to be undertaken to minimise any adverse impacts.

- The comments of any public land manager or other relevant land manager having responsibility for the care and management of the land or adjacent land.
- The impact of any development on the surrounding area.
- The design of buildings works and landscape treatment.
- The need to minimise any adverse impacts of siting, design, height, bulk, and colours and materials to be used on the surrounding area.
- The adequacy of car parking supply and layout.
- The safe and efficient movement of vehicular traffic to and from the site.
- The movement of pedestrians and cyclists.
- The objectives and guidelines of the Cranbourne Racing Complex and Surrounds Investment and Development Plan.
- The views of adjoining landowners and stakeholders, including the Cranbourne Gardens.
- The relevant policies and requirements of the Environment Protection Authority, including but not limited to separation distances, noise, music, waste water, and sediment and soil pollution.

## 10.0 Signs

11/06/2020
C265case

Sign requirements are at Clause 52.05. This zone is included in Category 2.

17/01/2019
C221Pt1

# SCHEDULE 7 TO CLAUSE 37.01 SPECIAL USE ZONE

Shown on the planning scheme map as **SUZ7**.

## CARDINIA CREEK SOUTH PRECINCT STRUCTURE PLAN – ELECTRICITY EASEMENT

### Purpose

To manage the transition of non-urban land into urban land in accordance with the *Cardinia Creek South Precinct Structure Plan*.

To provide for a range of uses and the development of land generally in accordance with the *Cardinia Creek South Precinct Structure Plan*.

## 1.0 Table of uses

01/12/2023
VC217

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Informal outdoor recreation** | |
| **Car park**<br>**Open sports ground** | Must be a use conducted by or on behalf of a public land manager |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01 |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Cinema based entertainment facility** |
| **Corrective institution** |
| **Display home** |
| **Funeral parlour** |
| **Industry (other than Automated collection point)** |
| **Saleyard** |
| **Transport terminal (other than Heliport)** |
| **Veterinary centre** |
| **Warehouse (other than Store)** |

## 2.0 Use of land

17/01/2019
C221Pt1

A permit granted must:

- Be generally in accordance with the *Cardinia Creek South Precinct Structure Plan*.
- Include any conditions or requirements specified in the *Cardinia Creek South Precinct Structure Plan*.

An application for the use of land which is generally in accordance with the *Cardinia Creek South Precinct Structure Plan* is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 3.0 Subdivision

17/01/2019
C221Pt1

A permit granted must:

- Be generally in accordance with the *Cardinia Creek South Precinct Structure Plan*.
- Include any conditions or requirements specified in the *Cardinia Creek South Precinct Structure Plan*.

An application for the subdivision of land which is generally in accordance with the *Cardinia Creek South Precinct Structure Plan* is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 4.0 Buildings and works

17/01/2019
C221Pt1

No permit is required to construct a building or construct or carry out works for the following:

- Pathways, trails, seating, picnic tables, drinking taps, shelters, barbeques, rubbish bins, security lighting, irrigation, drainage or underground infrastructure.
- Playground equipment or sporting equipment, provided these facilities do not occupy more than 10 square metres of parkland.
- Planting or landscaping.
- Fencing that is 1 metre or less in height above ground level.
- A building or works shown in an incorporated plan which applies to the land.
- A building or works carried out by or on behalf of a public land manager.

The following requirements apply to construct a building or construct or carry out works:

- A permit granted must be generally in accordance with the *Cardinia Creek South Precinct Structure Plan*.
- A permit granted must include any conditions or requirments specified in the *Cardinia Creek South Precinct Structure Plan*.

An application to construct a building or construct or carry out works which is generally in accordance with the *Cardinia Creek South Precinct Structure Plan* is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 5.0 Signs

17/01/2019
C221Pt1

Sign requirements are at Clause 52.05. All land located within this schedule to the Special Use Zone is in Category 3.

13/03/2026
C296case

# SCHEDULE 8 TO CLAUSE 37.01 SPECIAL USE ZONE

Shown on the planning scheme map as **SUZ8.**

## CROSKELL (EMPLOYMENT) PRECINCT STRUCTURE PLAN – ELECTRICITY AND VICTORIAN DESALINATION PROJECT (VDP) EASEMENT

### Purpose

To manage the transition of non-urban land into urban land generally in accordance with the *Croskell (Employment) Precinct Structure Plan, October 2025*.

To provide for the use and development of land generally in accordance with the incorporated *Croskell (Employment) Precinct Structure Plan, October 2025*.

To protect state significant Victorian Desalination Project (VDP) assets within easement.

## 1.0 Table of uses

13/03/2026
C296case

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| Automated collection point | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| Informal outdoor recreation<br>Open sports ground | Must be a use conducted by or on behalf of a public land manager. |
| Any use listed in Clause 62.01 | Must meet the requirements of Clause 62.01 |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| Any other use not in Section 1 or 3 | |

### Section 3 - Prohibited

| Use |
|---|
| Accommodation |
| Cinema |
| Cinema based entertainment facility |
| Display home centre |
| Funeral parlour |
| Saleyard |
| Sex service premises |
| Transport terminal (other than Heliport) |
| Veterinary Centre |

## 2.0 Use of land

13/03/2026
C296case

A permit granted must:

- Be generally in accordance with the incorporated *Croskell (Employment) Precinct Structure Plan* applying to the land.
- Include any conditions or requirements specified in the incorporated *Croskell (Employment) Precinct Structure Plan* applying to the land.

### Application requirements

The following application requirements apply to an application for a permit under Clause 37.01, in addition to those in Clause 37.01 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- A response to the relevant objectives, requirements and guidelines specified in the incorporated *Croskell (Employment) Precinct Structure Plan.*

### Exemption from notice and review

An application for the use of the land which is generally in accordance with the incorporated *Croskell (Employment) Precinct Structure Plan* is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 3.0 Subdivision

13/03/2026
C296case

A permit granted must:

- Be generally in accordance with the incorporated *Croskell (Employment) Precinct Structure Plan* applying to the land.
- Include any conditions or requirements specified in the incorporated *Croskell (Employment) Precinct Structure Plan* applying to the land.

### Application requirements

The following application requirements apply to an application for a permit under Clause 37.01, in addition to those in Clause 37.01 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- A response to the relevant objectives, requirements and guidelines specified in the incorporated *Croskell (Employment) Precinct Structure Plan.*

### Exemption from notice and review

An application for subdivision of land which is generally in accordance with the incorporated *Croskell (Employment) Precinct Structure Plan* is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 4.0 Buildings and works

13/03/2026
C296case

A permit granted must:

- Be generally in accordance with the incorporated *Croskell (Employment) Precinct Structure Plan* applying to the land.
- Include any conditions or requirements specified in the incorporated *Croskell (Employment) Precinct Structure Plan* applying to the land.

### Application requirements

The following application requirements apply to an application for a permit under Clause 37.01, in addition to those in Clause 37.01 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- A response to the relevant objectives, requirements and guidelines specified in the incorporated *Croskell (Employment) Precinct Structure Plan.*

### Exemption from notice and review

An application to construct a building or construct or carry out works of land which is generally in accordance with the incorporated *Croskell (Employment) Precinct Structure Plan* is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 5.0 Signs

13/03/2026
C296case

Sign requirements are at Clause 52.05. All land located within this schedule to the Special Use Zone is in Category 3.

## 37.02 COMPREHENSIVE DEVELOPMENT ZONE

31/07/2018
VC148

Shown on the planning scheme map as **CDZ** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To provide for a range of uses and the development of land in accordance with a comprehensive development plan incorporated in this scheme.

## 37.02-1 Table of uses

19/01/2006
VC37

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Any use in Section 1 of the schedule to this zone** | Must comply with any condition in Section 1 of the schedule to this zone. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Any use in Section 2 of the schedule to this zone** | Must comply with any condition in Section 2 of the schedule to this zone. |
| **Any other use not in Section 1 or 3 of the schedule to this zone** | |

### Section 3 - Prohibited

| Use |
|---|
| **Any use in Section 3 of the schedule to this zone** |

## 37.02-2 Use of land

31/07/2018
VC148

Any requirement in the schedule to this zone must be met.

### Application requirements

An application to use land must be accompanied by any information specified in the schedule to this zone.

### Exemption from notice and review

The schedule to this zone may specify that an application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any guidelines in the schedule to this zone.

## 37.02-3 Subdivision

15/03/2024
VC256

### Permit requirement

A permit is required to subdivide land.

An application to subdivide land for residential development, other than an application to subdivide land into lots each containing an existing dwelling or car parking space, must meet the requirements of Clause 56 and:

- Must meet all of the objectives included in the clauses specified in the following table.
- Should meet all of the standards included in the clauses specified in the following table.

| Class of subdivision | Objectives and standards to be met |
|---|---|
| 60 or more lots | All except Clause 56.03-5. |
| 16 – 59 lots | All except Clauses 56.03-1 to 56.03-3, 56.03-5, 56.06-1 and 56.06-3. |
| 3 – 15 lots | All except Clauses 56.02-1, 56.03-1 to 56.03-4, 56.05-2, 56.06-1, 56.06-3 and 56.06-6. |
| 2 lots | Clauses 56.03-5, 56.04-2, 56.04-3, 56.04-5, 56.06-8 to 56.09-2. |

Any requirement in the schedule to this zone must be met.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>- The area of either lot is reduced by less than 15 percent.<br>- The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>- The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>- An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within 5 years prior to the application for a permit for subdivision. | Clause 59.02 |
| Subdivide land into 2 lots if:<br>- The construction of a building or the construction or carrying out of works on the land: | Clause 59.02 |

| Class of application | Information requirements and decision guidelines |
|---|---|
| – Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | |

### Application requirements

An application to subdivide land must be accompanied by any information specified in the schedule to this zone.

### Exemption from notice and review

The schedule to this zone may specify that an application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The objectives and standards of Clause 56.
- Any guidelines in the schedule to this zone.

## 37.02-4 Buildings and works

20/04/2026
VC307

### Permit requirement

A permit is required to construct a building or construct or carry out works unless the schedule to this zone specifies otherwise.

Any requirement in the schedule to this zone must be met.

An apartment development must meet the requirements of Clause 58.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works with an estimated cost of up to $700,000 and the land is not:<br>▪ Within 30 metres of land (not a road) which is in a residential zone.<br>▪ Used for a purpose listed in the table to Clause 53.10. | Clause 59.04 |

### Transitional provisions

Clause 58 does not apply to:

- An application for a planning permit lodged before the approval date of Amendment VC136.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before the approval date of Amendment VC136.

Clause 58 of this scheme, as in force immediately before the approval date of Amendment VC174, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

### Application requirements

An application to construct a building or construct or carry out works must be accompanied by any information specified in the schedule to this zone.

An application to construct or extend an apartment development, or to construct or extend a dwelling in or forming part of an apartment development, must be accompanied by an urban context report and design response as required in Clause 58.01.

### Exemption from notice and review

An application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if it is generally consistent with the comprehensive development plan.

The schedule to this zone may specify that other applications are also exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- For an apartment development, the objectives, standards and decision guidelines of Clause 58.
- Any guidelines in the schedule to this zone.

## 37.02-5 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 3 unless a schedule to this zone specifies a different category.

02/12/2022
C259case

# SCHEDULE 1 TO CLAUSE 37.02 COMPREHENSIVE DEVELOPMENT ZONE

Shown on the planning scheme map as **CDZ1**.

## LYNDHURST NEIGHBOURHOOD ACTIVITY CENTRE COMPREHENSIVE DEVELOPMENT PLAN

### Land

This Schedule applies to the land in the Lyndhurst Neighbourhood Activity Centre located on at the north-west corner of Thompsons Road and Marriott Boulevard, Lyndhurst.

### Purpose

To provide for the use and development of land generally in accordance with the Lyndhurst Neighbourhood Activity Centre Comprehensive Development Plan.

To complement the residential development provided as part of the Lynbrook and Lyndhurst Development Plan.

To provide for the integrated planning, development or subdivision of residential areas in and adjacent to the Lyndhurst Neighbourhood Activity Centre with a mix of community, education, retail, residential and recreational activities.

## 1.0 Table of uses

01/12/2023
VC217

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Apiculture** | Must meet the requirements of the Apiary Code of Practice, May 1997. |
| **Automated collection point**<br>**Betting agency**<br>**Caretaker's house** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Carnival** | Must meet the requirements of 'A Good Neighbour' Code of Practice for a Circus or Carnival, October 1997. |
| **Circus** | Must meet the requirements of 'A Good Neighbour' Code of Practice for a Circus or Carnival, October 1997. |
| **Dwelling** | Must not be located within the buffer for uses with adverse amenity potential.<br>Must be in the higher density residential area as shown in Figure 1 of the Lyndhurst Neighbourhood Activity Centre Comprehensive Development Plan.<br>Within the area identified as core retail in Figure 1 of the Lyndhurst Neighbourhood Activity Centre Comprehensive Development Plan the frontage at ground floor level must not exceed 2 metres. |
| **Electoral office** | May be used for only 4 months before an election and 2 weeks after an election. |

| Use | Condition |
|---|---|
| **Food and drink premises (other than Convenience restaurant, Hotel, Restaurant and Tavern)** | Must be located within the area identified as core retail in Figure 1 of the Lyndhurst Neighbourhood Activity Centre Comprehensive Development Plan. |
| **Home occupation**<br>**Informal outdoor recreation**<br>**Mineral exploration**<br>**Minor utility installation**<br>**Natural systems** | |
| **Office (other than Electoral office)** | Must be located within the area identified as core retail in Figure 1 of the Lyndhurst Neighbourhood Activity Centre Comprehensive Development Plan.<br>and<br>Any frontage at ground floor level must not exceed 2 metres and access must not be shared with a dwelling (other than a caretaker's house), unless the office is a bank, real estate agency, travel agency, medical centre, or any other office where the floor space adjoining the frontage is a customer service area accessible to the public; |
| **Postal agency**<br>**Railway**<br>**Restaurant**<br>**Road** | |
| **Search for stone** | Must not be costeaning or bulk sampling. |
| **Shop (other than Adult sex product shop)** | Must be located within the area identified as core retail in Figure 1 of the Lyndhurst Neighbourhood Activity Centre Comprehensive Development Plan. |
| **Telecommunications facility** | Buildings and works must meet the requirements of Clause 52.19. |
| **Take away food premises** | The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01 |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Accommodation**<br>**Agriculture (other than Apiculture, Intensive animal husbandry)**<br>**Bed and breakfast** | |

| Use | Condition |
|---|---|
| **Child care centre** | |
| **Leisure and recreation (other than Informal outdoor recreation, Major sports and recreation facility, and Motor racing track)** | |
| **Mineral, stone, or soil extraction (other than Extractive industry, Mineral exploration, Mining, and Search for stone)** | |
| **Place of assembly** | |
| **Retail premises (other than Betting agency, Food and drink premises, Postal agency, and Shop)** | |
| **Service station** | The site must either be in the area identified as highway related uses in Figure 1 of the Lyndhurst Neighbourhood Activity Centre Comprehensive Development Plan.<br>The site must not exceed either:<br>▪ 3000 square metres.<br>▪ 3600 square metres if it adjoins on two boundaries a road in a Transport Zone 2 or a Transport Zone 3. |
| **Store** | Must be in a building, not a dwelling, and used to store equipment, goods, or motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Tavern** | |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Adult sex product shop** |
| **Animal boarding** |
| **Animal training** |
| **Cinema based entertainment facility** |
| **Corrective institution** |
| **Extractive industry** |
| **Horse stables** |
| **Industry (other than Automated collection point and Car wash)** |
| **Intensive animal husbandry** |
| **Major sports and recreation facility** |

| Use |
| --- |
| **Motor racing track** |
| **Saleyard** |
| **Transport terminal** |
| **Warehouse (other than Store)** |

## 2.0 Urban Design Framework

A permit must not be granted to use or subdivide land, or to construct a building or construct and carry out works until an Urban Design Framework for the whole of the land subject to this schedule has been prepared to the satisfaction of the responsible authority.

A permit must be generally in accordance with the approved Urban Design Framework.

The Urban Design Framework must not be prepared in stages.

The Urban Design Framework may be amended with the approval of the responsible authority.

The responsible authority may grant a permit to use, subdivide land, or to construct a building or construct and carry out works prior to the approval of an Urban Design Framework if it is satisfied that the proposal will not affect the outcomes for the land sought by the Comprehensive Development Plan.

The Urban Design Framework must:

- Be generally in accordance with the Lyndhurst Neighbourhood Activity Centre Comprehensive Development Plan.
- Address the role of the centre as defined in the Casey Activity Centre Strategy (Draft 2009).
- Set out the form and function of the activity centre including the proposed use and development of each part of the activity centre in the short and longer term.
- Include a traffic impact assessment report to the satisfaction of VicRoads.
- Show:
  - A Main Street Based Centre.
  - A highly permeable street block structure.
  - Minimum heights in the main street core.
  - A substantial multi-purpose urban space with a taller enclosed building perimeter.
  - A mixture of uses both vertically and horizontally to facilitate a wide range of uses.
  - A compact urban core which maximises developable area / plot ratio, mix and intensity of activity and housing within walkable distance of the main street heart.
  - Community and business services in the main street which integrates a community centre space and business incubator as appropriate.
  - Multi-purpose, mixed-use buildings in the main street.
  - Individual tenancies through subdivision to facilitate evolution and change in the centre over time.
- Set out how the design responds to feedback received from consultation with infrastructure agencies or landowners within the centre.
- Set out how it has responded to any activity centre, safer design or other relevant design guidelines incorporated or referenced in the planning scheme.

- Show the relationship to existing and proposed development surrounding the activity centre.
- Set out building design guidelines to ensure appropriate interface with streets and other public spaces.
- Set out the design of streets including street design and widths, pedestrian access and areas, car parking, paving materials and street furniture.
- Show arrangements for access to the activity centre from adjoining arterial roads to the satisfaction of the relevant roads authority.
- Set out the location of community facilities and public spaces.
- Include an overall landscape concept for the activity centre.
- Include guidelines to improve environmental sustainability including integrated water management and energy conservation.
- Set out provisions for car parking including the location and design of car parking areas and car parking rates for proposed uses within the activity centre.
- Set out how public transport will be integrated with the activity centre including the provision of suitable bus access, routes and stops in accordance with the Public Transport Guidelines for Land Use and Development to the satisfaction of the Director of Public Transport.
- Set out design guidelines for the provision of signs.
- Set out arrangements for the provision of service areas for deliveries and waste disposal including access for larger vehicles and measures to minimise the impact on the amenity of the activity centre and adjoining neighbourhoods.
- Show how opportunities for housing are incorporated as a core component of the activity centre.

The responsible authority may waive or reduce a requirement of this clause if it is satisfied that it is not relevant to the assessment of the application or has been previously satisfied.

## 3.0 Use of land

02/12/2022
C259case

### Amenity of the neighbourhood

A use must not detrimentally affect the amenity of the neighbourhood, including through the:

- Transport of materials, goods or commodities to or from the land.
- Appearance of any building, works or materials.
- Emission of noise, artificial light, vibration, smell, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil.

### Application requirements

The following application requirements apply to an application for a permit under Clause 37.02, in addition to those specified in Clause 37.02 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- The purpose of the use and the types of activities which will be carried out.
- The likely effects, if any, on adjoining land, including noise levels, traffic, the hours of delivery and despatch of goods and materials, hours of operation and light spill, solar access and glare.
- The means of maintaining land not required for immediate use.

### Decision guidelines

The following decision guidelines apply to an application for a permit under Clause 37.02, in addition to those specified in Clause 37.02 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The requirements of this Schedule, the Planning Policy Framework, and the Lyndhurst Neighbourhood Activity Centre Comprehensive Development Plan at Clause 72.04 and the approved Urban Design Framework.
- The effect that existing uses may have on the proposed use.
- The effect of traffic to be generated on roads.
- The interim use of those parts of the land not required for the proposed use.

## 4.0 Subdivision

02/12/2022
C259case

### Permit requirement

A permit is required to subdivide land.

### Decision guidelines

The following decision guidelines apply to an application for a permit under Clause 37.02, in addition to those specified in Clause 37.02 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The requirements of this Schedule, the Planning Policy Framework, the Lyndhurst Neighbourhood Activity Centre Comprehensive Development Plan at Clause 72.04 and the approved urban design framework.
- Provision for vehicles providing for supplies, waste removal and emergency services and public transport.
- The interface with adjoining zones, especially the relationship with residential areas.
- The effect the subdivision will have on the potential of the area to accommodate the uses which will maintain or enhance its competitive strengths.

## 5.0 Buildings and works

02/12/2022
C259case

### Permit requirement

A permit is required to construct a building or construct or carry out works.

This does not apply to:

- The internal rearrangement of a building if the floor area is not increased.
- The installation of an automatic teller machine.
- An alteration to an existing building façade provided:
  - The alteration does not include the installation of an external roller shutter.
  - At least 80 per cent of the building façade at ground floor is maintained as an entry or window with clear glazing.
- An awning that projects over a road if it is authorised by the relevant public land manager.

### Application requirements

The following application requirements apply to an application for a permit under Clause 37.02, in addition to those specified in Clause 37.02 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- A plan drawn to scale which shows:
  - The boundaries and dimensions of the site.
  - Adjoining roads.

  - The location, height and purpose of buildings and works on adjoining land.
  - Relevant ground levels.
  - The layout of existing and proposed buildings and works.
  - All driveway, car parking and loading areas.
  - Proposed landscape areas.
  - All external storage and waste treatment areas.
  - Areas not required for immediate use.
- Identification of proposed bus routes and bus stop locations to the satisfaction of the Department of Transport.
- Elevation drawings to scale showing the colour and materials of all buildings and works.
- Construction details of all drainage works, driveways, vehicle parking and loading areas.
- A landscape layout which includes the description of vegetation to be planted, the surfaces to be constructed, site works specification and method of preparing, draining, watering and maintaining the landscape area.
- A traffic impact assessment for the land.

**Decision guidelines**

The following decision guidelines apply to an application for a permit under Clause 37.02, in addition to those specified in Clause 37.02 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The requirements of this Schedule, the Planning Policy Framework, the Lyndhurst Neighbourhood Activity Centre Comprehensive Development Plan at Clause 72.04 and the approved urban design framework.
- The movement of pedestrians and cyclists, and vehicles providing for supplies, waste removal, emergency services and public transport.
- The provision of car parking.
- The interface with adjoining zones, especially the relationship with residential areas.
- The streetscape, including the conservation of buildings, the design of verandahs, access from the street front, protecting active frontages to pedestrian areas, the treatment of the fronts and backs of buildings and their appurtenances, illumination of buildings or their immediate spaces and the landscaping of land adjoining a road.
- The storage of rubbish and materials for recycling.
- Defining the responsibility for the maintenance of buildings, landscaping and paved areas.
- The availability of and connection to services.
- The design of buildings to provide for solar access.
- The objectives, standards and decision guidelines of Clause 54 and Clause 55. This does not apply to a development of four or more storeys, excluding a basement.

**Maintenance**

All buildings and works must be maintained in good order and appearance to the satisfaction of the responsible authority.

## 6.0 Neighbourhood and site description and design response

An application for any of the following must be accompanied by a neighbourhood and site description and a design response as described in Clause 54.01:

- Construction or extension of one dwelling on a lot of less than 300 square metres.
- Construction of a dwelling if there is at least one dwelling existing on the lot.
- Construction of two or more dwellings on a lot.
- Extension of a dwelling if there are two or more dwellings on the lot.
- Construction or extension of a dwelling on common property.
- Construction or extension of a residential building.

### Satisfactory neighbourhood and site description and design response before notice and decision

The responsible authority must inform the applicant in writing:

- Before notice of an application is given, or
- If notice of an application is not required to be given, before deciding the application, that the neighbourhood and site description meets the requirements of Clause 54.01 and is satisfactory or does not meet the requirements of Clause 54.01 and is not satisfactory.

If the responsible authority decides that the neighbourhood and site description is not satisfactory, it may require more information from the applicant under Section 54 of the Act.

The responsible authority must not decide an application until it is satisfied that the neighbourhood and site description meets the requirements of Clause 54.01 and is satisfactory.

This does not apply if the responsible authority refuses an application under Section 52(1A) of the Act.

## 7.0 Signs

02/12/2022
C259case

Sign requirements are at Clause 52.05. All land located within this Schedule to this zone is in Category 1.

## 8.0 Exemption from notice and review

An application under any provision of this scheme which is generally in accordance with the Lyndhurst Neighbourhood Activity Centre Comprehensive Development Plan is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

*Notes:* *Refer to the Planning Policy Framework, including the Municipal Planning Strategy, for strategies and policies which may affect the use and development of land.*
*Other requirements may also apply. These can be found at Particular Provisions.*

06/05/2021
C207pt1case

# SCHEDULE 2 TO CLAUSE 37.02 COMPREHENSIVE DEVELOPMENT ZONE

Shown on the planning scheme map as **CDZ2**.

## BERWICK HEALTH AND EDUCATION PRECINCT COMPREHENSIVE DEVELOPMENT PLAN

### Land

This schedule applies to land within the Berwick Heath and Education Precinct, located north of the Princess Freeway and south of the Gippsland rail corridor, and adjoining Clyde Road generally south of Mansfield Street and Langmore Lane as shown on Map 1 to this schedule.

### Map 1 to Schedule 2 to Clause 37.02




### Purpose

To facilitate the integrated use and development of the State significant health and education precinct.

To support the growth and clustering of educational, research and medical uses within proximity to transport and services.

To provide for a range of retail, commercial and other employment generating uses which complement the mixed use function of the precinct.

To provide for ancillary residential uses including accommodation for workers and students, in appropriate locations.

To ensure development delivers a high quality public realm and maximises pedestrian access.

## 1.0 Table of uses

15/03/2024
VC256

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Accommodation (other than Camping and caravan park, Community care accommodation, Corrective institution, Dependent person's unit and Residential aged care facility)** | Must be in the Mixed Use, Lifestyle Retail or the Health and Education sub-precinct.<br>In the Health and Education sub-precinct, must be student housing.<br>Any frontage at ground floor level must not exceed 2 metres.<br>Must not be within 50 metres of the Longford-Dandenong pipeline shown on Plan 9 of the *Berwick Health and Education Precinct, Comprehensive Development Plan, April 2021.* |
| **Amusement parlour** | Must be in the Lifestyle Retail sub-precinct. |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Caretaker's house** | Must be in the Lifestyle Retail sub-precinct. |
| **Child care centre** | Must not be in the Business and Enterprise or Corporate Centre sub-precinct.<br>The gross floor area must not exceed 250 square metres.<br>Must not be within 50 metres of the Longford-Dandenong pipeline shown on Plan 9 of the *Berwick Health and Education Precinct, Comprehensive Development Plan, April 2021.* |
| **Community care accommodation** | |
| **Convenience shop** | |
| **Education centre (other than Child care centre)** | Must not be in the Business and Enterprise sub-precinct.<br>Must not be within 50 metres of the Longford-Dandenong pipelines shown on Plan 9 of the *Berwick Health and Education Precinct, Comprehensive Development Plan, April 2021.* |
| **Emergency services facility** | |
| **Exhibition centre**<br>**Function centre** | Must be in the Mixed Use, Lifestyle Retail or Corporate Centre sub-precinct. |
| **Home based business** | Must meet requirements of Clause 52.11. |
| **Hospital** | |

| Use | Condition |
|---|---|
| **Indoor recreation facility** | Must be in the Mixed Use or Lifestyle Retail sub-precinct.<br>The gross floor area of all buildings must not exceed 500 square metres. |
| **Medical centre** | |
| **Office** | |
| **Place of worship** | Must be in the Mixed Use or Lifestyle Retail sub-precinct.<br>The gross floor area of all buildings must not exceed 250 square metres. |
| **Research and development centre**<br>**Research centre** | Must not be in the Mixed Use or Lifestyle Retail sub-precinct. |
| **Residential aged care facility** | Must be in the Health and Education sub-precinct.<br>Must not be within 50 metres of the Longford-Dandenong pipeline shown on Plan 9 of the *Berwick Health and Education Precinct, Comprehensive Development Plan, April 2021.* |
| **Restricted recreation facility** | Must be in the Mixed Use or Lifestyle Retail sub-precinct.<br>The gross floor area must not exceed 500 square metres. |
| **Retail premises (other than Bar, Gaming premises, Hotel and Supermarket)** | Must be in the Mixed Use and Lifestyle Retail sub-precinct.<br>Must be located south of the rail line.<br>Must not be within 50 metres of the Longford-Dandenong pipeline shown on Plan 9 of the *Berwick Health and Education Precinct, Comprehensive Development Plan, April 2021.* |
| **Supermarket** | Must be in the Lifestyle Retail sub-precinct.<br>Must be located south of the rail line.<br>The leasable floor area must not exceed 1,500 square metres.<br>Must not be the only use in the building. |
| **Tramway** | |
| **Warehouse** | Must be in the Business and Enterprise sub-precinct.<br>Must not be a use listed in Clause 53.10. |
| **Veterinary centre** | The gross floor area must not exceed 500 square metres.<br>Animals kept on the premises must be accommodated indoors. |

| Use | Condition |
|---|---|
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01 |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Accommodation (other than Dwelling) – if the section 1 condition is not met** | Must be in the Mixed Use or Lifestyle Retail sub-precinct. |
| **Agriculture (other than Intensive animal production)** | |
| **Amusement parlour – if the section 1 condition is not met** | Must be in the Mixed Use sub-precinct. |
| **Bar** | Must be in the Mixed Use or Lifestyle Retail sub-precinct. |
| **Child care centre – if the section 1 condition is not met** | Must not be in the Business and Enterprise sub-precinct. |
| **Cinema** | Must be in the Lifestyle Retail or Mixed Use sub-precinct. |
| **Dependent person's unit** | Must be the only dependent person's unit on the lot. |
| **Dwelling – if the Section 1 conditions are not met** | Must be in the Mixed Use or Lifestyle Retail sub-precinct.<br>Must be located in a building of four storeys or greater. |
| **Hotel** | Must not be in the Corporate Centre sub-precinct. |
| **Industry (other than Automated collection point, Materials recycling, Refuse disposal, Research and development centre, Rural industry, Service Industry)** | Must be in the Business and Enterprise sub-precinct.<br>Must not be a use listed in Clause 53.10. |
| **Minor sport and recreation facility (other than Indoor recreation facility and Restricted recreation facility)** | |
| **Nightclub** | Must be in the Mixed Use or Lifestyle Retail sub-precinct. |
| **Place of assembly (other than Amusement parlour, Carnival, Cinema, Circus, Drive-in theatre, Exhibition centre, Function centre, Nightclub and Place of worship)** | |
| **Primary school – if the section 1 condition is not met** | Must not be in the Business and Enterprise sub-precinct. |
| **Residential hotel** | Must not be in the Corporate Centre sub-precinct. |
| **Service industry** | |

| Use | Condition |
|---|---|
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Camping and caravan park** |
| **Cemetery** |
| **Corrective institution** |
| **Drive-in theatre** |
| **Freeway service centre** |
| **Gambling premises (other than Gaming premises)** |
| **Intensive animal production** |
| **Leisure and recreation (other than Minor sports and recreation facility)** |
| **Materials recycling** |
| **Refuse disposal** |
| **Rural industry** |
| **Saleyard** |
| **Winery** |

## 2.0 Use of land

06/05/2021
C207pt1case

### Requirements

An application to use land must be generally in accordance with the *Berwick Health and Education Precinct Comprehensive Development Plan, April 2021.*

A permit is not required to use land for a public purpose, provided the use is carried out by, or on behalf of, the public land manager.

A use must not detrimentally affect the amenity of the neighbourhood, including through the:

- Transport of materials, goods or commodities to or from the land.
- Appearance of any building, works or materials.
- Emission of noise, artificial light, vibration, smell, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil.

### Application requirements

The following application requirements apply to an application for a permit under Clause 37.02, in addition to those specified in Clause 37.02 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- A description of the proposed use and the types of activities which will be carried out.

- An assessment detailing how the proposed use is compatible with the purpose of the zone and consistent with the *Berwick Health and Education Precinct Comprehensive Development Plan, April 2021*.
- The likely effects of the use, if any, on adjoining land, including noise levels, traffic, the hours of delivery and dispatch of goods and materials, hours of operation and light spill, solar access and glare.

An application to use land at 9-11, 13-15, 16-18 Enterprise Avenue, Berwick or 7 Intrepid Street, Berwick for Accommodation, Child care centre, Primary school or Secondary school must be accompanied by a preliminary site investigation prepared by an environmental professional with qualifications consistent with Schedule B9 of the *National Environment Protection (Assessment of Site Contamination) Measure 1999* (as amended 2013), to the satisfaction of the responsible authority. The investigation must:

- Be compliant with the provisions for a preliminary site investigation in Schedule B2 of the *National Environment Protection (Assessment of Site Contamination) Measure 1999* (as amended 2013) and other Australian Standards or EPA guidance.
- Make an unequivocal statement that:
  - The site is not likely to be contaminated to a level which would pose a significant risk to the environment or human health under the proposed use/development scenario. No further assessment is required, or
  - The site is contaminated, or there is likelihood of contamination, that would pose a risk to the proposed use/development scenario. There is sufficient information to derive a risk-based remediation or management strategy, or
  - The site is contaminated, or there is likelihood of contamination, that would pose a risk to the proposed use/development scenario. The site requires further investigation and therefore an environmental audit is required.

### Exemption from notice and review

An application to use land which is generally consistent with the *Berwick Health and Education Comprehensive Development Plan, April 2021* is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### Decision guidelines

The following decision guidelines apply to an application for a permit under Clause 37.02, in addition to those specified in Clause 37.02 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The *Berwick Health and Education Precinct Comprehensive Development Plan, April 2021*.
- The impact of the use on the amenity of adjoining land in a residential zone.
- The effect that existing uses may have on the proposed use.

## 3.0 Subdivision

06/05/2021
C207pt1case

### Requirements

An application to subdivide land must be generally in accordance with the *Berwick Health and Education Precinct Comprehensive Development Plan, April 2021*.

Prior to the certification of the first plan of subdivision for Lot 1 on Plan of Subdivision 725948, the owner of that lot must enter into an agreement under section 173 of the Act with the responsible authority which provides for the infrastructure required to be provided as part of the development. The agreement must give effect to the Precinct Infrastructure Plan in the *Berwick*

*Health and Education Comprehensive Development Plan, April 2021* and specify the timing and responsibility for delivery of projects required to support the proposed future development of the land.

### Application requirements

The following application requirements apply to an application for a permit under Clause 37.02, in addition to those specified in Clause 37.02 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- Information that demonstrates how the subdivision makes provision for roads, laneways and open spaces shown in the *Berwick Health and Education Precinct Comprehensive Development Plan, April 2021*.

An application to subdivide land at 9-11, 13-15, 16-18 Enterprise Avenue, Berwick or 7 Intrepid Street, Berwick must be accompanied by a preliminary site investigation prepared by an environmental professional with qualifications consistent with Schedule B9 of the *National Environment Protection (Assessment of Site Contamination) Measure 1999* (as amended 2013), to the satisfaction of the responsible authority. The investigation must:

- Be compliant with the provisions for a preliminary site investigation in Schedule B2 of the *National Environment Protection (Assessment of Site Contamination) Measure 1999* (as amended 2013) and other Australian Standards or EPA guidance.
- Make an unequivocal statement that:
  - The site is not likely to be contaminated to a level which would pose a significant risk to the environment or human health under the proposed use/development scenario. No further assessment is required, or
  - The site is contaminated, or there is likelihood of contamination, that would pose a risk to the proposed use/development scenario. There is sufficient information to derive a risk-based remediation or management strategy, or
  - The site is contaminated, or there is likelihood of contamination, that would pose a risk to the proposed use/development scenario. The site requires further investigation and therefore an environmental audit is required.

### Exemption from notice and review

An application to subdivide land which is generally in accordance with the *Berwick Health and Education Precinct Comprehensive Development Plan, April 2021*, is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### Decision guidelines

The following decision guidelines apply to an application for a permit under Clause 37.02, in addition to those specified in Clause 37.02 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The *Berwick Health and Education Precinct Comprehensive Development Plan, April 2021*.

## 4.0 Buildings and works

06/05/2021
C207pt1case

### Permit requirement

A permit is not required to construct a building or construct or carry out works associated with a use of land for a public purpose, provided the buildings or works are carried out by, or on behalf of, the public land manager.

### Requirements

An application to construct a building or construct or carry out works must be generally in accordance with the *Berwick Health and Education Precinct Comprehensive Development Plan, April 2021*.

Prior to the commencement of any building or works, including demolition, on land within 50 metres of the Longford-Dandenong transmission pipeline shown on Plan 9 of the *Berwick Health & Education Comprehensive Development Plan, April 2021*, a Construction Management Plan must be submitted to and approved by the responsible authority. The plan must:

- Prohibit the use of rippers or horizontal directional drills.
- Set out measures to ensure the protection of the pipeline during construction
- Be endorsed by the operator of the pipeline.
- Include any other relevant matter.

### Application requirements

The following application requirements apply to an application for a permit under Clause 37.02, in addition to those specified in Clause 37.02 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- An assessment that details how the proposed development is consistent with the *Berwick Health and Education Precinct Comprehensive Development Plan, April 2021*.

An application to construct a building or construct or carry out works associated with the use of land at 9-11, 13-15, 16-18 Enterprise Avenue, Berwick or 7 Intrepid St, Berwick for Accommodation, Child care centre, Primary school or Secondary school must be accompanied by a preliminary site investigation prepared by an environmental professional with qualifications consistent with Schedule B9 of the *National Environment Protection (Assessment of Site Contamination) Measure 1999* (as amended 2013), to the satisfaction of the responsible authority. The investigation must:

- Be compliant with the provisions for a preliminary site investigation in Schedule B2 of the *National Environment Protection (Assessment of Site Contamination) Measure 1999* (as amended 2013) and other Australian Standards or EPA guidance.
- Make an unequivocal statement that:
  - The site is not likely to be contaminated to a level which would pose a significant risk to the environment or human health under the proposed use/development scenario. No further assessment is required, or
  - The site is contaminated, or there is likelihood of contamination, that would pose a risk to the proposed use/development scenario. There is sufficient information to derive a risk-based remediation or management strategy, or
  - The site is contaminated, or there is likelihood of contamination, that would pose a risk to the proposed use/development scenario. The site requires further investigation and therefore an environmental audit is required.

### Decision guidelines

The following decision guidelines apply to an application for a permit under Clause 37.02, in addition to those specified in Clause 37.02 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The *Berwick Health and Education Precinct Comprehensive Development Plan, April 2021*.

- The impact of the proposed development on adjoining land in a residential zone.
- For development in the Health and Education sub-precinct, the design treatment at the interface with the Business and Enterprise sub-precinct.

## 5.0 Signs

19/06/2025
C284case

Sign requirements are at Clause 52.05. All land is in Category 2.

## 37.03 URBAN FLOODWAY ZONE

01/07/2021
VC203

Shown on the planning scheme map as **UFZ**.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify waterways, major floodpaths, drainage depressions and high hazard areas within urban areas which have the greatest risk and frequency of being affected by flooding.

To ensure that any development maintains the free passage and temporary storage of floodwater, minimises flood damage and is compatible with flood hazard, local drainage conditions and the minimisation of soil erosion, sedimentation and silting.

To reflect any declarations under Division 4 of Part 10 of the *Water Act, 1989*.

To protect water quality and waterways as natural resources by managing urban stormwater, protecting water supply catchment areas and managing saline discharges to minimise the risks to the environmental quality of water and groundwater.

## 37.03-1 Table of uses

14/01/2025
VC237

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Informal outdoor recreation** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Agriculture (other than Animal production and Apiculture)** | |
| **Grazing animal production** | |
| **Leisure and recreation (other than Informal outdoor recreation, Indoor recreation facility, and Motor racing track)** | |
| **Road** | |
| **Utility installation (other than Telecommunications facility)** | |
| **Any use listed in Clause 62.01 if any requirement is not met** | |

### Section 3 - Prohibited

| Use |
|---|
| **Animal production (other than Grazing animal production)** |
| **Indoor recreation facility** |
| **Motor racing track** |
| **Any other use not in Section 1 or 2** |

## 37.03-2 Buildings and works

17/02/2022
VC200

A permit is required to construct a building or construct or carry out works, including:

- A fence.
- Roadworks, if the water flowpath is redirected or obstructed.
- Bicycle pathways and trails, if the water flowpath is redirected or obstructed.
- Public toilets.
- A domestic swimming pool or spa and associated mechanical and safety equipment if associated with one dwelling on a lot.
- A pergola or verandah, including an open-sided pergola or verandah to a dwelling with a finished floor level not more than 800mm above ground level and a maximum building height of 3 metres above ground level.
- A deck, including a deck to a dwelling with a finished floor level not more than 800mm above ground level.
- A non-domestic disabled access ramp.

This does not apply to:

- Roadworks or bicycle paths and trails constructed or carried out by or on behalf of the Head, Transport for Victoria, to the satisfaction of the relevant floodplain management authority.
- Flood mitigation works carried out by the responsible authority or floodplain management authority.
- The following works in accordance with plans prepared to the satisfaction of the responsible authority:
  - The laying of underground sewerage, water and gas mains, oil pipelines, underground telephone lines and underground power lines provided they do not alter the topography of the land.
  - The erection of telephone or power lines provided they do not involve the construction of towers or poles.
- Post and wire and post and rail fencing.

## 37.03-3 Subdivision

14/12/2023
VC253

A permit is required to subdivide land. A permit may only be granted to subdivide land if the following apply:

- The subdivision does not create any new lots, which are entirely within this zone. This does not apply if the subdivision creates a lot, which by agreement between the owner and the relevant floodplain management authority, is to be transferred to an authority for a public purpose.
- The subdivision is the resubdivision of existing lots and the number of lots is not increased, unless a local floodplain development plan incorporated into this scheme specifically provides otherwise.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

## 37.03-4 Application requirements

31/07/2018
VC148

### General

An application must be accompanied by any information specified in the schedule to this zone.

### Local floodplain development plan

If a local floodplain development plan has been developed for the area and has been incorporated into this scheme, an application must be consistent with the plan.

### Flood risk report

If a local floodplain development plan for the area has not been incorporated into this scheme, an application must be accompanied by a flood risk report to the satisfaction of the responsible authority. The flood risk report must consider the following, where applicable:

- The existing use and development of the land.
- Whether the proposed use or development could be located on flood-free land or land with a lesser flood hazard outside this zone.
- The susceptibility of the development to flooding and flood damage.
- The potential flood risk to life, health and safety associated with the development. Flood risk factors to consider include:
  - The frequency, duration, extent, depth and velocity of flooding of the site and accessway.
  - The flood warning time available.
  - The danger to the occupants of the development, other floodplain residents and emergency personnel if the site or accessway is flooded.
- The effect of the development on redirecting or obstructing floodwater, stormwater or drainage water and the effect of the development on reducing flood storage and increasing flood levels and flow velocities.
- The effects of the development on environmental values such as natural habitat, stream stability, erosion, water quality and sites of scientific significance.

## 37.03-5 Referral of applications

19/01/2006
VC37

An application must be referred to the relevant floodplain management authority under Section 55 of the Act unless in the opinion of the responsible authority the proposal satisfies requirements or conditions previously agreed in writing between the responsible authority and the floodplain management authority.

## 37.03-6 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The local floodplain development plan or flood risk report.
- Any comments of the relevant floodplain management authority.
- Any other matters specified in the schedule to this zone.

## 37.03-7 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 4 unless the schedule to this zone specifies a different category.

02/12/2022
C259case

# SCHEDULE TO CLAUSE 37.03 URBAN FLOODWAY ZONE

## 1.0 Application requirements

02/12/2022
C259case

None specified.

## 2.0 Decision guidelines

02/12/2022
C259case

None specified.

## 3.0 Signs

02/12/2022
C259case

| Land | Sign Category |
|---|---|
| All land | Category 4 |

## 37.07 URBAN GROWTH ZONE

31/07/2018
VC148

Shown on the planning scheme map as **UGZ** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To manage the transition of non-urban land into urban land in accordance with a precinct structure plan.

To provide for a range of uses and the development of land generally in accordance with a precinct structure plan.

To contain urban use and development to areas identified for urban development in a precinct structure plan.

To provide for the continued non-urban use of the land until urban development in accordance with a precinct structure plan occurs.

To ensure that, before a precinct structure plan is applied, the use and development of land does not prejudice the future urban use and development of the land.

### Application of provisions

#### Part A – No precinct structure plan applies

The provisions of Clauses 37.07-1 to 37.07-8 apply if no precinct structure plan applies to the land.

#### Part B – Precinct structure plan applies

The provisions of Clauses 37.07-9 to 37.07-16 apply if a precinct structure plan applies to the land.

### Precinct structure plan provisions

A precinct structure plan applies to land when the precinct structure plan is incorporated in this scheme.

## 37.07-1 Part A – Provisions For Land Where No Precinct Structure Plan Applies

14/01/2025
VC237

### Table of uses

#### Section 1 – Permit not required

| Use | Condition |
|---|---|
| **Agriculture (other than Animal production, Apiculture, Domestic animal husbandry, Racing dog husbandry, Rice growing and Timber production)** | |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Bed and breakfast** | No more than 10 persons may be accommodated away from their normal place of residence.<br>At least 1 car parking space must be provided for each 2 persons able to be accommodated away from their normal place of residence. |

| Use | Condition |
|---|---|
| **Dwelling (other than Bed and breakfast)** | Must be the only dwelling on the lot.<br>The lot must be at least 40 hectares.<br>Must meet the requirements of Clause 37.07-2. |
| **Grazing animal production** | |
| **Home based business** | |
| **Informal outdoor recreation** | |
| **Poultry farm** | Must be no more than 100 poultry (not including emus or ostriches).<br>Must be no more than 10 emus and ostriches. |
| **Primary produce sales** | Must not be within 100 metres of a dwelling in separate ownership.<br>The area used for the display and sale of primary produce must not exceed 50 square metres. |
| **Railway** | |
| **Rural industry (other than Abattoir and Sawmill)** | Must not have a gross floor area more than 200 square metres.<br>Must not be within 100 metres of a dwelling in separate ownership.<br>Must not be a purpose shown listed in the table to Clause 53.10 with no threshold distance specified.<br>The land must be at least the following distances from land (not a road) which is in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education cente or a corrective institution:<br>▪ The threshold distance, for a purpose listed in the table to Clause 53.10.<br>▪ 30 metres, for a purpose not listed in the table to Clause 53.10.<br>Must not:<br>▪ Exceed a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022.<br>▪ Require a notification under the Occupational Health and Safety Regulations 2017.<br>▪ Require a licence under the Dangerous Goods (Explosives) Regulations 2011.<br>▪ Require a licence under the Dangerous Goods (HCDG) Regulations 2016. |
| **Rural store** | Must be used in conjunction with Agriculture.<br>Must be in a building, not a dwelling, and have a gross floor area of less than 100 square metres.<br>Must be the only Rural store on the lot. |

| Use | Condition |
|---|---|
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling.<br>Must meet the requirements of Clause 37.07-2. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01 |

### Section 2 – Permit required

| Use | Condition |
|---|---|
| **Abattoir** | |
| **Animal production (other than Grazing animal production, Intensive animal production and Poultry farm)** | |
| **Broiler farm - if the Section 1 condition to Poultry farm is not met** | Must be no more than 10,000 chickens. |
| **Camping and caravan park** | |
| **Car park** | Must be used in conjunction with another use in Section 1 or 2. |
| **Cemetery** | |
| **Crematorium** | |
| **Display home centre** | |
| **Domestic animal boarding** | |
| **Domestic animal husbandry (other than Domestic animal boarding)** | Must be no more than 5 animals. |
| **Dwelling (other than Bed and breakfast) – if the Section 1 conditions are not met** | Must be no more than 2 dwellings on the lot.<br>Must meet the requirements of Clause 37.07-2. |
| **Education centre (other than child care centre)** | |
| **Emergency services facility** | |
| **Freeway service centre** | Must meet the requirements of Clause 53.05. |
| **Industry (other than Automated collection point and Rural Industry)** | |
| **Racing dog husbandry** | Must be no more than 5 animals. |
| **Trade supplies** | |

| Use | Condition |
|---|---|
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |
| **Veterinary centre** | |
| **Warehouse (other than Rural store)** | |
| **Winery** | |
| **Any other use not in Section 1 or 3** | |

### Section 3 - Prohibited

| Use |
|---|
| **Accommodation (other than Bed and breakfast, Camping and caravan park, Dwelling, Group accommodation, Host farm, Residential hotel and Small second dwelling)** |
| **Amusement parlour** |
| **Child care centre** |
| **Cinema based entertainment facility** |
| **Intensive animal production** |
| **Nightclub** |
| **Office (other than Medical centre and Real estate agency)** |
| **Renewable energy facility** |
| **Retail premises (other than Landscape gardening supplies, Manufacturing sales, Market, Primary produce sales, Restaurant and Trade supplies)** |
| **Saleyard** |
| **Small second dwelling - if the Section 1 condition is not met** |
| **Timber production** |

## 37.07-2 Use of land for a dwelling or small second dwelling

14/12/2023
VC253

A lot used for a dwelling or small second dwelling must meet the following requirements:

- Access to the dwelling or small second dwelling must be provided via an all-weather road with dimensions adequate to accommodate emergency vehicles.
- Each dwelling or small second dwelling must be connected to reticulated sewerage, if available. If reticulated sewerage is not available, all wastewater from each dwelling must be treated and retained within the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system.

- The dwelling or small second dwelling must be connected to a reticulated potable water supply or have an alternative potable water supply with adequate storage for domestic use as well as for fire fighting purposes.
- The dwelling or small second dwelling must be connected to a reticulated electricity supply or have an alternative energy source.

## 37.07-3 Subdivision

14/12/2023
VC253

A permit is required to subdivide land.

Each lot must be at least 40 hectares.

A permit may be granted to create smaller lots if any of the following apply:

- The subdivision is to create a lot for an existing dwelling. The subdivision must be a two lot subdivision.
- The subdivision is the re-subdivision of existing lots and the number of lots is not increased.
- The subdivision is by a public authority or utility service provider to create a lot for a utility installation.

A permit cannot be granted which would allow a separate lot to be created for land containing a small second dwelling.

## 37.07-4 Buildings and works

14/12/2023
VC253

A permit is required to construct or carry out any of the following:

- A building or works associated with a use in Section 2 of Clause 37.07-1. This does not apply to:
  - An alteration or extension to an existing dwelling provided the floor area of the alteration or extension is no more than 100 square metres.
  - An out-building associated with an existing dwelling provided the floor area of the out-building is not more than 100 square metres.
  - An alteration or extension to an existing building used for agriculture provided the floor area of the alteration or extension is no more than 200 square metres. The building must not be used to keep, board, breed or train animals.
- Earthworks which change the rate of flow or the discharge point of water across a property boundary.
- Earthworks which increase the discharge of saline water.
- A building which is within any of the following setbacks:
  - 100 metres from a road in a Transport Zone 2 or land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority; and the purpose of the acquisition is for a road.
  - 40 metres from a road in a Transport Zone 3 or land in a Public Acquisition Overlay if the Head, Transport for Victoria is not the acquiring authority.
  - 20 metres from any other road.
  - 5 metres from any other boundary.

- 100 metres from a dwelling or small second dwelling not in the same ownership.
- 100 metres from a waterway, wetlands or designated flood plain.

- Permanent or fixed feeding infrastructure for seasonal or supplementary feeding for grazing animal production constructed within 100 metres of:
  - A waterway, wetland or designated flood plain.
  - A dwelling or small second dwelling not in the same ownership.
  - A residential zone or urban growth zone where a precinct structure plan applies.

## 37.07-5 Referral of applications

08/08/2019
VC159

An application of the kind listed below must be referred in accordance with section 55 of the Act to the referral authority specified in Clause 66.03.

- An application to use or develop land for any of the following:
  - Display home centre.
  - Education centre.
  - Hospital.
  - Industry.
  - Medical centre.
  - Place of worship.
  - Real estate agency.
  - Warehouse.
- An application to subdivide land to create a lot smaller than 40 hectares in area.

## 37.07-6 Environmental audit

04/05/2022
VC210

Before a pre-school centre, primary school or secondary school commences on potentially contaminated land, or before the construction or carrying out of buildings and works in association with a pre-school centre, primary school or secondary school commences on potentially contaminated land:

- A preliminary risk screen assessment statement in accordance with the *Environment Protection Act 2017* must be issued stating that an environmental audit is not required for the use or proposed use; or
- An environmental audit statement under Part 8.3 of the *Environment Protection Act 2017* must be issued stating that the land is suitable for the use or proposed use; or
- A certificate of environmental audit must be issued for the land in accordance with Part IXD of the *Environment Protection Act 1970*; or
- A statement of environmental audit must be issued for the land in accordance with Part IXD of the *Environment Protection Act 1970* stating that the environmental conditions of the land are suitable for the use or proposed use.

The requirement for a preliminary risk screen assessment statement, an environmental audit statement, a certificate of environmental audit or a statement of environmental audit in this provision does not apply to the construction or carrying out of buildings and works, if:

- The buildings and works are associated with an existing pre-school centre, primary school or secondary school, included in Clause 62.02-1 or 62.02-2, and the soil is not disturbed;

- The buildings and works are required by the Environment Protection Authority or an environmental auditor appointed under the *Environment Protection Act 2017* to make the site suitable for use; or
- The buildings and works are reasonably required by an environmental auditor appointed under the *Environment Protection Act 2017* or the *Environment Protection Act 1970* to undertake a preliminary risk screen assessment or environmental audit.

## 37.07-7 Decision guidelines

31/07/2018
VC148

Before deciding on an application to use or subdivide land, construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The effect on the future urban development and use of the land, and adjacent or nearby land, having regard to:
  - Any relevant Growth Corridor Framework Plan.
  - Any precinct structure plan being prepared for the area.
  - Any comments or directions of the referral authority.
- Whether the proposal will prejudice the logical, efficient and orderly future urban development of the land, including the development of roads, public transport and other infrastructure.
- The capability of the land to accommodate the proposed use or development, including the disposal of effluent.
- How the use or development relates to sustainable land management.
- Whether the site is suitable for the use or development.
- The impact of the siting, design, height, bulk, colours and materials to be used on the natural environment, major roads, vistas and water features, future urban use of the land, and the measures to be undertaken to minimise any adverse impacts.
- The impact on the character and appearance of the area or features of architectural, historic or scientific significance or of natural scenic beauty or importance.
- The location and design of existing and proposed infrastructure including roads, public transport, walking and cycling networks, gas, water, drainage, telecommunications and sewerage facilities.
- Whether the use and development will require new or upgraded infrastructure, including traffic management measures.

## 37.07-8 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. The zone is in Category 3.

Despite the provisions of Clause 52.05-13, a permit may be granted, for a period of not more than 5 years, to display a sign that promotes the sale of land or dwellings.

## 37.07-9 Part B – Provisions For Land Where A Precinct Structure Plan Applies

14/01/2025
VC237

### Use of land

Any requirement in the Table of uses and any requirement specified in the schedule to this zone must be met.

A permit granted must be generally in accordance with the precinct structure plan applying to the land.

### Table of uses

#### Section 1 – Permit not required

| Use | Condition |
|---|---|
| **Any use in Section 1 of a zone applied by the schedule to this zone** | Must comply with any condition opposite the use in Section 1 of the applied zone.<br>Must comply with any condition or requirement specified in the schedule to this zone or in the precinct structure plan. |
| **Any use specified in the schedule to this zone as a use for which a permit is not required** | Must comply with any condition or requirement specified in the schedule to this zone or in the precinct structure plan. |

#### Section 2 – Permit required

| Use | Condition |
|---|---|
| **Any use in Section 2 of a zone applied by the schedule to this zone** | Must comply with any condition opposite the use in Section 2 of the applied zone.<br>Must comply with any condition or requirement specified in the schedule to this zone or in the precinct structure plan. |
| **Any use specified in the schedule to this zone as a use for which a permit is required** | Must comply with any condition or requirement specified in the schedule to this zone or in the precinct structure plan. |
| **Any other use not in Section 1 or 3** | |

#### Section 3 – Prohibited

| Use |
|---|
| **Any use in Section 3 of a zone applied by the schedule to this zone** |
| **Any use specified in the schedule to this zone as a use which is prohibited** |

## 37.07-10 Subdivision of land

14/12/2023
VC253

A permit is required to subdivide land. Any requirement in the schedule to this zone or the precinct structure plan must be met.

A permit granted must:

- Be generally in accordance with the precinct structure plan applying to the land.
- Include any conditions or requirements specified in the schedule to this zone or the precinct structure plan.

A permit cannot be granted which would allow a separate lot to be created for land containing a small second dwelling.

## 37.07-11 Buildings and works

23/09/2011
VC77

If the schedule to this zone specifies:

- That the provisions of a zone apply to the development of land, the provisions of the zone apply to land in the circumstances specified in the schedule.

- Provisions relating to the development of land, those provisions apply to land in the circumstances specified in the schedule.

If the schedule to this zone specifies that a permit is required to construct a building or construct or carry out works, a permit granted must:

- Be generally in accordance with the precinct structure plan applying to the land.
- Include any conditions or requirements specified in the schedule to this zone or the precinct structure plan.

## 37.07-12 Application requirements

10/06/2008
VC48

An application to use or subdivide land, construct a building or construct or carry out works, must be accompanied by any information specified in the schedule to this zone.

## 37.07-13 Exemption from notice and review

25/05/2017
VC133

An application under any provision of this scheme which is generally in accordance with the precinct structure plan applying to the land is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act, unless the schedule to this zone specifies otherwise.

## 37.07-14 Decision guidelines

31/07/2018
VC148

Before deciding on an application to use or subdivide land, construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any relevant Growth Area Framework Plan.
- The precinct structure plan applying to the land, including the vision and objectives of the precinct structure plan.
- Any guidelines in the schedule to this zone.

## 37.07-15 Inconsistencies between specific and applied zone provisions

10/06/2008
VC48

If there is an inconsistency between the specific provisions specified in the schedule to this zone and the provisions of a zone applied by the schedule to this zone, the specific provisions prevail to the extent of any inconsistency.

## 37.07-16 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in the category specified in the schedule to this zone or, if no category is specified, Category 3.

02/12/2022
C259case

# SCHEDULE 1 TO CLAUSE 37.07 URBAN GROWTH ZONE

Shown on the planning scheme map as **UGZ1**.

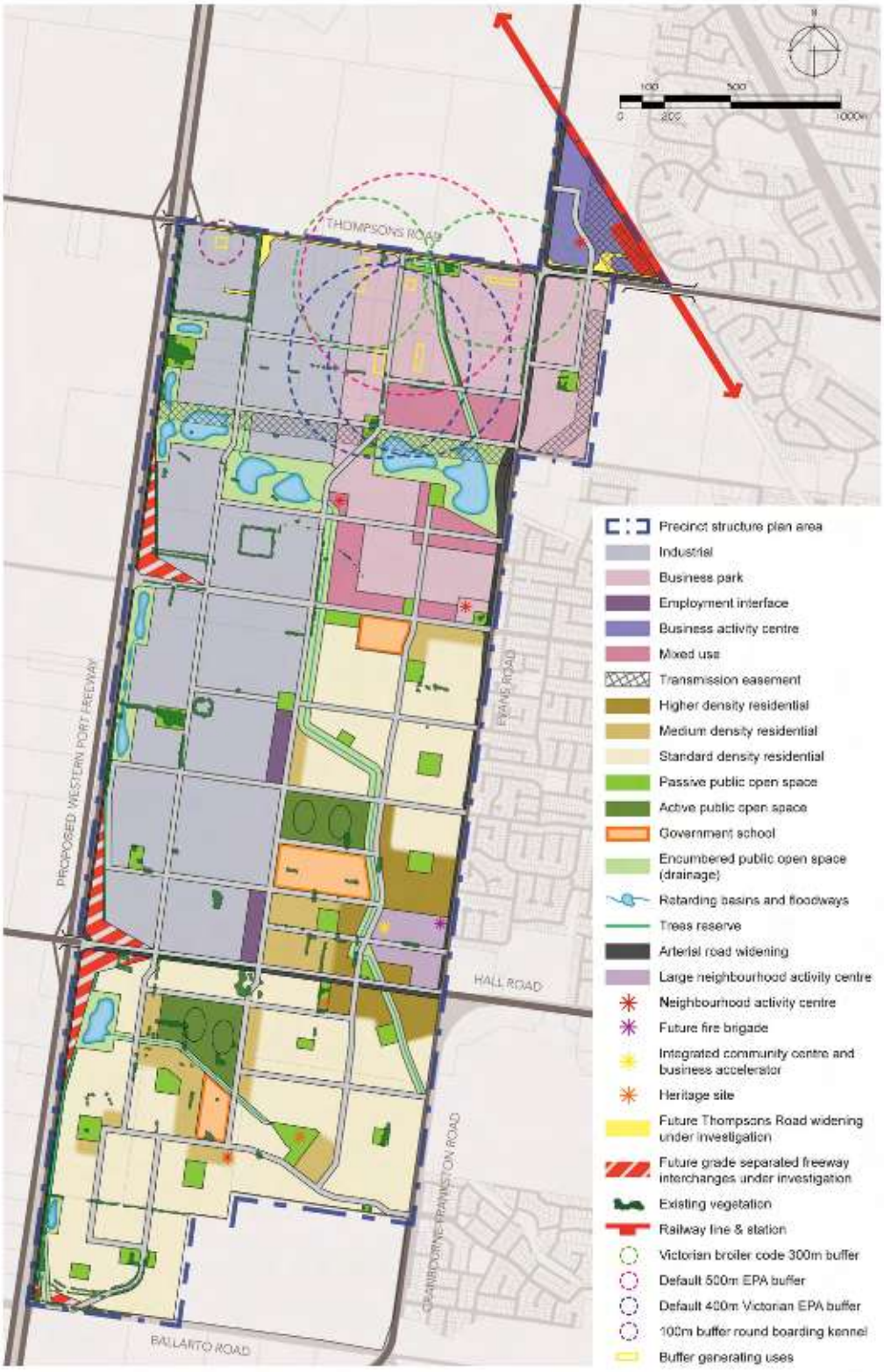
## CRANBOURNE WEST PRECINCT STRUCTURE PLAN

## 1.0 The Plan

02/12/2022
C259case

Plan 1 to Schedule 1 to Clause 37.07 shows the Future Urban Structure for the *Cranbourne West Precinct Structure Plan*. It is a reproduction from Plan 5 in the *Cranbourne West Precinct Structure Plan*.

**Plan 1 to Schedule 1 of Clause 37.07 - Cranbourne West Future Urban Structure**




## 2.0 Use and development

02/12/2022
C259case

## 2.1 The Land

02/12/2022
C259case

The use and development provisions specified in this schedule apply to land inside the 'precinct structure plan area' on Plan 1 and zoned as Urban Growth Schedule 1. Where land is not zoned Urban Growth Zone the provisions of this Schedule do not apply.

## 2.2 Applied zone provisions

02/12/2022
C259case

The provisions of the following zones in this scheme apply to the use and subdivision of land, construction of a building, and construction and carrying out of works, by reference to Table 1 of this schedule.

**Table 1: Applied zone provisions**

| Land use or development (carried out or proposed) generally in accordance with the precinct structure plan applying to the land | Applied zone provisions |
|---|---|
| **Residential**<br>**(any density)** | Clause 32.08 – General Residential Zone |
| **Industrial / Employment interface / Business park** | Clause 34.02 – Commercial 2 Zone |
| **Neighbourhood Activity Centre (other than specified in this table)** | Clause 34.01 – Commercial 1 Zone |
| **Neighbourhood Activity Centre (on central trunk boulevard collector in Mixed Use) / Mixed use / Business Activity Centre** | Clause 32.04 – Mixed Use Zone |
| **Arterial Road widening** | Clause 36.04 – Transport Zone 3 once the land is in public ownership |

## 2.3 Specific provisions – Use of land

02/12/2022
C259case

**Table 2: Use**

| Use | Condition or requirement |
|---|---|
| **Industry (excluding Service Industry)** | Must not be located on a lot which is within 35 metres of land in an applied residential zone unless the land in the applied residential zone is to be developed for open space or drainage purposes in accordance with the *Cranbourne West Precinct Structure Plan*. |
| **Shop where the applied zone is Commercial 1 Zone** | A permit is required to use land for a shop if the combined leasable floor area of all shops exceeds the following areas (square metres) for the relevant centre as described in the *Cranbourne West Precinct Structure Plan*:<br>▪ 8000 – Large Neighbourhood Activity Centre<br>▪ 5000 – Neighbourhood Activity Centre at the intersection of Central Parkway / Evans Road<br>▪ 3000 – Neighbourhood Activity Centre in the southern residential precinct |

## 2.4 Specific provisions - Subdivision

02/12/2022
C259case

None specified.

## 2.5 Specific provisions - Buildings and works

28/11/2024
GC206

### Construction of single dwellings on small lots

A permit is not required to construct one dwelling on a lot of between 250 and 300 square metres where an approved building envelope (as defined in Part 5 of the Building Regulations 2018) applies to the lot.

A permit is not required to construct a front fence within 3 metres of a street on a lot of between 250 and 300 square metres provided that the Front Fence Height Standard in Table A2 of Clause 54.06-2 is met.

Or

A permit is not required to construct or extend one dwelling on a lot of less than 300 square metres, if either of the following apply:

- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) incorporated into this planning scheme.
- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) incorporated into this planning scheme.

### 2.6 Specific provisions – Resolution of Doubt

If any doubt arises as to whether a provision specified in this schedule applies to land, a permit may be granted for any use or development if the responsible authority is satisfied that the use or development is in accordance with the *Cranbourne West Precinct Structure Plan*.

### 2.7 Specific provisions - Use and development of future public land

A permit is not required to use or develop land shown in the *Cranbourne West Precinct Structure Plan* as local park, local sports reserve or community facilities provided the development is carried out generally in accordance with the *Cranbourne West Precinct Structure Plan* and with the prior written consent of the responsible authority.

## 3.0 Application requirements

02/12/2022
C259case

### 3.1 General

Any planning permit application must be accompanied by:

- A detailed flora and fauna survey that identifies the location of flora and fauna within or adjoining the site and proposed management required to mitigate the impacts of the development on significant species to the satisfaction of the Department of Sustainability and Environment. Amongst investigation of all other species the survey should also specifically target Dwarf Galaxias and the Growling Grass Frog. This requirement cannot be waived or reduced.
- A Native Vegetation Plan, where required, to the approval of the Department of Sustainability and Environment that identifies vegetation to be retained, vegetation to be removed, and offsets to be secured in the long term. The Native Vegetation Plan must be in line with the three step approach to achieve net gain of Victoria's Native Vegetation Framework and where native vegetation is to be removed it must include an Offset Plan.
- A hydrogeological assessment of groundwater conditions and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater conditions on the development and the impact of development on groundwater.
- A site assessment of the potential for contaminated land as a result of previous land uses.
- A Transport Impact Assessment Report to the satisfaction of the relevant roads authority (be it VicRoads or Council).
- An Infrastructure Plan which addresses the following:

- the provision, staging and timing of stormwater drainage works;
- what land may be affected or required for the provision of infrastructure works;
- the provision, staging and timing of roadworks internal and external to the land consistent with any relevant traffic report or assessment;
- the landscaping of any land;
- the provision of public open space and land for any community facilities;
- what, if any, infrastructure set out in the *Cranbourne West Development Contributions Plan* is sought to be provided as "works in lieu" subject to the consent of the Collecting Agency; and,
- any other matter required by the responsible authority.

- Detailed plans or reports relating to the proposed development. The plans and or reports must show and explain how the proposal responds to the vision and requirements of the *Cranbourne West Precinct Structure Plan* and outline how the proposal integrates with adjoining land and other areas within the Precinct Structure Plan area.

An application for residential subdivision must also be accompanied by Subdivision and Housing Design Guidelines, prepared to the satisfaction of the responsible authority, which demonstrate how the proposal responds to and achieves the objectives and planning and design guidelines in the 'Housing' element of the *Cranbourne West Precinct Structure Plan* incorporated in this scheme.

If in the opinion of the responsible authority a requirement for information is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement unless a specific provision states that the requirement cannot be waived or reduced.

### 3.2 Neighbourhood Activity Centre

In addition to the relevant requirements of Section 3.1, unless the responsible authority agrees, a permit for the use, subdivision or other development of the land which is designated as a Large or Small Neighbourhood Activity Centre in the *Cranbourne West Precinct Structure Plan* must not be granted until an Urban Design Framework for the Neighbourhood Activity Centre has been prepared to the satisfaction of the responsible authority. The Urban Design Framework must address or include, as appropriate, any requirements set out in the *Cranbourne West Precinct Structure Plan* and this schedule.

A permit for the use, subdivision or other development of land which is designated as a Large or Small Neighbourhood Activity Centre in the *Cranbourne West Precinct Structure Plan* must be generally in accordance with and implement the approved Urban Design Framework.

The Urban Design Framework may be amended with the approval of the responsible authority.

## 4.0 Conditions and requirements for permits

28/11/2024
GC206

A planning permit must require that:

#### Land for community facilities, public open space and road widening

- Land required for community facilities as set out in the *Cranbourne West Precinct Structure Plan* or the *Cranbourne West Development Contributions Plan* must be transferred to or vested in Council at no cost to Council unless the land is funded by the *Cranbourne West Development Contributions Plan*.

- Land required for public open space as a local or district park as set out in the *Cranbourne West Precinct Structure Plan* or the *Cranbourne West Development Contributions Plan* must be transferred to or vested in Council at no cost to Council unless the land is funded by the *Cranbourne West Development Contributions Plan*.
- Land required for road widening must be transferred to or vested as 'road' in the Roads Corporation (in the case of land for arterial roads under the *Road Management Act 2004*) or in Casey City Council (in the case of other roads) at no cost unless that road or road widening land is funded by the *Cranbourne West Development Contributions Plan* or unless that land is included within a Public Acquisition Overlay in the scheme. For the purpose of this clause road widening includes the widening of the road reserve required to provide right of way flaring for the ultimate design of any intersection with an existing or proposed arterial road to the satisfaction of the Roads Corporation.

**Stormwater management**

- An agreement or agreements must be established regarding the ongoing management of any proposed wetland or water body areas located on public land to the satisfaction of the responsible authority. The agreement may require the owner to contribute to the cost of that ongoing management for a period of up to 3 years after the practical completion of the works for that wetland or water body. The agreement or agreements must be executed prior to the issue of a Statement of Compliance in respect of the land containing that wetland or water body.

**Stormwater Facilities**

- Unless an alternative arrangement is in place through a Drainage Scheme, land required for drainage purposes must be transferred to the relevant drainage authority at no cost to the relevant drainage authority. Land required for drainage purposes and transferred to relevant drainage authority (including Casey City Council) must not be credited as open space required to satisfy the requirements of Clause 53.01 of the planning scheme.
- All land required for drainage related purposes, including wetlands and drainage corridors must be landscaped in accordance with a landscape plan to be approved to the satisfaction of the responsible authority. The landscape plan must be informed by any relevant provisions of the *Cranbourne West Precinct Structure Plan*.

**Tree reserves**

- Where a tree reserve is required to be created, the tree reserve must be shown as vesting in Casey City Council by a registered plan of subdivision at no cost to Council.

**Equalisation of open space in the Employment Area**

- Where the area of any land shown as Public Open Space in the Employment Area within the *Cranbourne West Precinct Structure Plan* is less than 3.75 per cent in respect of any particular land parcel within that Employment Area, the shortfall in the public open space contribution up to 3.75 per cent must be paid in cash to the responsible authority calculated as a percentage of the site value of that land in the subdivision prior to the issue of a Statement of Compliance in respect of a plan of subdivision containing that land.
- Where the area of any land shown as Public Open Space in the Employment Area within the *Cranbourne West Precinct Structure Plan* exceeds 3.75 per cent in respect of any particular land parcel, the owner of that land will be entitled to a payment. Council and the Owner must agree on the timing and method of payment or the timing and method must be to the satisfaction of the responsible authority. The amount of the payment is to be calculated by reference to a percentage of the site value where the percentage is to be equal the difference between 3.75 per cent and the actual amount of land shown as Public Open Space.

**Condition – Subdivision permits that allow the creation of a lot less than 300 square metres**

Before the issue of a certificate of compliance for the subdivision (or a stage of the subdivision) a building envelope plan for each lot between 250 square metres and 300 square metres to the satisfaction of the responsible authority must be submitted to and approved by the responsible authority.

If an approved building envelope applies to a lot between 250 – 300 square metres under section 2.5 of this schedule a planning permit must contain a condition that requires the approved building envelopes must be applied as a restriction on the plan of subdivision or be applied through an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987* that is recorded on the title to the land. The restriction or the agreement must provide for:

- The building envelope to apply to each relevant lot.
- All buildings to conform to the building envelope on the relevant lot.
- The construction of a building outside of a building envelope only with the consent of the responsible authority.
- A building envelope to cease to apply to any building on the lot affected by the envelope after the issue of a certificate of occupancy for the whole of a dwelling on the land.

Where the building envelope is to be applied to the land through an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987*, the building envelope plan may be approved after the plan of subdivision is certified.

Or

A permit issued before 31 December 2026 which allows for the subdivision of land to create a lot of less than 300 square metres, must include the following condition:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan must be approved and endorsed by the responsible authority, that identifies the lots to which:

– type A or type B of the *Small Lot Housing Code* (Victorian Planning Authority, 2019) applies; or

– type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies.

to the satisfaction of the responsible authority.

A permit issued on or after 31 December 2026, other than an amendment of a permit issued before 31 December 2026 under section 72 of the Act , which allows for the subdivision of land to create a lot of less than 300 square metres, must include the following condition:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan that identifies the lots to which type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies, must be approved and endorsed by the responsible authority.

## 5.0 Exemption from notice and review

02/12/2022 C259case

None specified.

## 6.0 Decision guidelines

02/12/2022 C259case

None specified.

## 7.0 Signs

02/12/2022 C259case

Sign requirements for the land shown as Employment Interface in Plan 1 to this schedule are in Category 3 of clause 52.05.

All other land is subject to the advertising requirements which apply under the applied zones.

If there is no applied zone identified for the land the sign requirements for the land are at Category 3 of Clause 52.05.

02/12/2022
C259case

# SCHEDULE 2 TO CLAUSE 37.07 URBAN GROWTH ZONE

Shown on the planning scheme map as **UGZ2**.

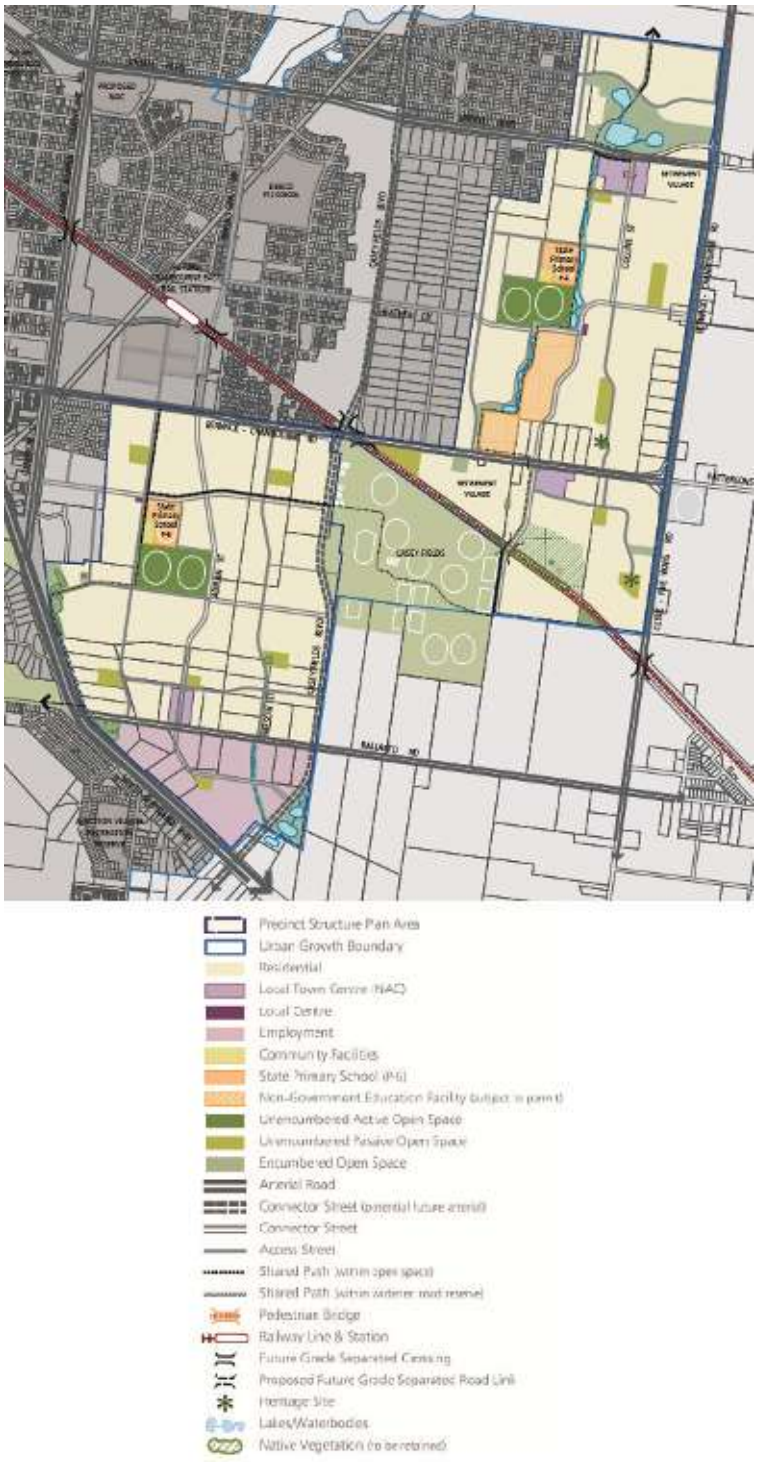
## CRANBOURNE EAST PRECINCT STRUCTURE PLAN

## 1.0 The Plan

02/12/2022
C259case

Plan 1 shows the future urban structure for the Cranbourne East Precinct. It is a reproduction of Plan 5 in the *Cranbourne East Precinct Structure Plan*.

### Plan 1 to Schedule 2 to Clause 37.07



## 2.0 Use and development

11/02/2016
C182

## 2.1 Applied zone provisions

02/12/2022
C259case

The provisions of the following zones in this scheme apply to the use and subdivision of land construction of a building, construction and carrying out of works.

**Table 1: Applied zone provisions**

| Land use/development (carried out or proposed) generally in accordance with the precinct structure plan applying to the land (refer plan 1) | Applied zone provisions |
|---|---|
| **Employment Land** | Commercial 2 Zone |
| **Local town centre and local centre** | Commercial 1 Zone |
| **Any lot wholly contained within 200 metres distance from any part of the local town centre abutting Linsell Boulevard, Clyde North** | Mixed Use Zone |
| **All other land in the precinct** | General Residential Zone |

## 2.2 Specific provisions – Use of land

02/12/2022
C259case

The following provisions apply to the use of land.

**Table 2: Use**

| Use | Requirement |
|---|---|
| **Office where the applied zone is Mixed Use Zone** | A permit is not required if the office is in the same building as a dwelling. |
| **Shop (other than Adult sex product shop) where the applied zone is General Residential Zone** | A permit may be granted to use land for a shop provided the leasable floor area of the shop does not exceed 100 square metres. |
| **Office where the applied zone is General Residential Zone** | A permit may be granted to use land for an office provided the leasable floor area of the office does not exceed 100 square metres. |
| **Shop where the applied zone is Commercial 1 Zone** | A permit is required to use land for a shop if the combined leasable floor area of all shops exceeds the following areas (square metres) for the relevant centre as described in the *Cranbourne East Precinct Structure Plan*:<br>▪ 8000 – Selandra Rise local town centre;<br>▪ 5000 – Morison Road local town centre;<br>▪ 5000 – Adrian Street local town centre;<br>▪ 500 – Local centre. |
| **Office where the applied zone is Commercial 1 Zone** | A permit is required to use land for an office if the combined leasable floor area of all offices exceeds the following areas (square metres) for the relevant centre as described in the *Cranbourne East Precinct Structure Plan*:<br>▪ 2000 – Selandra Rise local town centre; |

| Use | Requirement |
|---|---|
| | ▪ 2000 – Morison Road local town centre;<br>▪ 2000 – Adrian Street local town centre;<br>▪ 500 – Local centre. |

## 2.3 Specific provisions – Construction of single dwellings on small lots

28/11/2024
GC206

A permit is not required to construct one dwelling on a lot of between 250 and 300 square metres where an approved building envelope (as defined in Part 5 of the Building Regulations 2018) applies to the lot.

A permit is not required to construct a front fence within 3 metres of a street on a lot of between 250 and 300 square metres provided that the Front Fence Height Standard in Table A2 to Clause 54.06-2 is met.

Or

A permit is not required to construct or extend one dwelling on a lot of less than 300 square metres, if either of the following apply:

- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) incorporated into this planning scheme.
- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) incorporated into this planning scheme.

## 2.4 Specific provisions – Master plan for education centres

21/05/2010
C119

A permit must not be granted to use or subdivide land, construct a building or construct or carry out works for an education centre until a master plan has been prepared to the satisfaction of the responsible authority. The master plan must show:

- The location of all buildings, car parking areas, access driveways, playing fields and other works associated with the education centre.
- The staging of development.

The master plan may be amended to the satisfaction of the responsible authority.

## 2.5 Specific provisions – Resolution of doubt

21/05/2010
C119

If any doubt arises as to whether a provision specified in this schedule applies to land, a permit may be granted for any use or development if the responsible authority is satisfied that the use or development is generally in accordance with the Cranbourne East Precinct Structure Plan.

## 2.6 Specific provisions – Offset plans before subdivision or buildings and works

21/11/2019
C272case

Where an incorporated Native Vegetation Precinct Plan applying to the land specifies that vegetation is to be removed, destroyed or lopped on the land, a planning permit must not be granted to use or subdivide the land or to construct a building or carry out works until an Offset Plan, in accordance with the Native Vegetation Precinct Plan applying to the land, has been prepared to the satisfaction of the Department of Sustainability and Environment and approved by the responsible authority.

### 2.7 Specific provisions - Use and development of future public land

A permit is not required to use or develop land shown in the *Cranbourne East Precinct Structure Plan* as local park, local sports reserve or community facilities provided the development is carried out generally in accordance with the *Cranbourne East Precinct Structure Plan* and with the prior written consent of the responsible authority.

## 3.0 Application requirements

02/12/2022
C259case

### Subdivision

An application for subdivision must be accompanied by a site and context description as detailed in Clause 56.01. In addition to the requirements of Clause 56.01 the site analysis and design response must show or address the following to the satisfaction of the responsible authority:

- Any design response or guidelines adopted for the area by the Casey City Council.
- A hydrogeological assessment of the groundwater conditions on the site and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater conditions on the development and the impact of the development on groundwater.
- A table setting out the amount of land allocated to the proposed uses and expected population, dwelling and employment yields.
- An Infrastructure Plan which addresses the following:
  - what land may be affected or required for the provision of infrastructure works;
  - the provision, staging and timing of stormwater drainage works;
  - the provision, staging and timing of roadworks internal and external to the land consistent with any relevant traffic report or assessment;
  - what, if any, infrastructure set out in the Development Contributions Plan applying to the land is sought to be provided as "works in lieu" subject to the consent of Casey City Council; and
  - the provision of public open space and land for any community facilities.

An application which proposes to transfer a heritage building into public ownership must be accompanied by a Structural Engineering. Assessment that provides details of the condition of the building and any works required to bring the building to a standard which complies with relevant building regulations to the satisfaction of the responsible authority.

If the responsible authority decides that a requirement of the site and context description is not relevant to the assessment of an application, the responsible authority may waive or reduce the requirement.

If the responsible authority decides that the site and context description is not satisfactory, it may require more information from the applicant under Section 54 of the Act.

### Neighbourhood activity centres and Employment Centre

If the land is shown as a local town centre on Plan 1 a permit must not be granted to use or subdivide land, or to construct a building or construct and carry out works until an urban design framework for the activity centre or employment centre has been prepared to the satisfaction of the responsible authority.

A permit may be granted to subdivide land or to construct a building or construct and carry out works prior to the approval of an urban design framework if, in the opinion of the responsible authority, the grant of the permit will not prejudice the achievement of the objectives and planning and design guidelines for the activity centre or employment centre set out in the incorporated precinct structure plan applying to the land.

The responsible authority may allow an urban design framework to be prepared in stages.

The urban design framework may be amended to the satisfaction of the responsible authority.

The is requirement does not apply to the local town centre shown in the *Cranbourne East Precinct Structure Plan* abutting Linsell Boulevard, Clyde North.

## 4.0 Referral of applications

13/10/2022
C287case

An application to subdivide land, or construct a building or carry out works (where the value of those works is in excess of $500,000) on land in the local town centre abutting Linsell Boulevard (Selandra Rise local town centre) must be referred in accordance with section 55 of the Act to the Victorian Planning Authority.

## 5.0 Conditions and requirements for permits

28/11/2024
GC206

**Condition – Subdivision permits that allow the creation of a lot less than 300 square metres**

Before the issue of a certificate of compliance for the subdivision (or a stage of the subdivision) a building envelope plan for each lot between 250 square metres and 300 square metres to the satisfaction of the responsible authority must be submitted to and approved by the responsible authority.

If an approved building envelope applies to a lot between 250 – 300 square metres under section 2.3 of this schedule a planning permit must contain a condition that requires the approved building envelopes must be applied as a restriction on the plan of subdivision or be applied through an agreement with the responsible authority under Section 173 of the Planning and Environment Act 1987 that is recorded on the title to the land. The restriction or the agreement must provide for:

- The building envelope to apply to each relevant lot
- All buildings to conform to the building envelope on the relevant lot
- The construction of a building outside of a building envelope only with the consent of the responsible authority.
- A building envelope to cease to apply to any building on the lot affected by the envelope after the issue of a certificate of occupancy for the whole of a dwelling on the land.

Where the building envelope is to be applied to the land through an agreement with the responsible authority under Section 173 of the Planning and Environment Act 1987, the building envelope plan may be approved after the plan of subdivision is certified.

Or

A permit issued before 31 December 2026 which allows for the subdivision of land to create a lot of less than 300 square metres, must include the following condition:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan must be approved and endorsed by the responsible authority, that identifies the lots to which:

– type A or type B of the *Small Lot Housing Code* (Victorian Planning Authority, 2019) applies; or

– type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies.

to the satisfaction of the responsible authority.

A permit issued on or after 31 December 2026, other than an amendment of a permit issued before 31 December 2026 under section 72 of the Act , which allows for the subdivision of land to create a lot of less than 300 square metres, must include the following condition:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan that identifies the lots to which type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies, must be approved and endorsed by the responsible authority.

**Conditions for subdivision or building and works permits where a Native Vegetation Precinct Plan applying to the land has identified the removal, destruction, lopping, retention or offset of native vegetation**

Any permit granted for subdivision, buildings or works, on land where a Native Vegetation Precinct Plan has identified the removal, destruction or lopping of native vegetation must contain the following conditions:

- Any native vegetation to be removed must be clearly marked on site.
- Prior to the destruction, removal or lopping of a tree, the tree must be examined by a suitably qualified zoologist for the presence of fauna in hollows or external nests. If native fauna species are located, they must be salvaged and relocated to the nearest suitable habitat in consultation with the Department of Sustainability and Environment.

Any permit granted for subdivision, buildings or works, on land where a Native Vegetation Precinct Plan has identified the retention or offset of native vegetation must contain the following conditions:

- A highly visible vegetation protection fence must be erected at a distance from the trunk of twice the canopy radius for each scattered tree and at least 2 metres patches of native vegetation. A sign must be prominently displayed on the fence identifying it as a vegetation protection fence.
- Any earthworks (including placement of fill and temporary or permanent stockpiling of soil) must be designed to ensure that native vegetation not be detrimentally affected through machinery movements or impacts on soil quality, water run-off and landform changes.

**Conditions for subdivision or building and works permits where land is required for community facilities and public open space**

Land required for community facilities or public open space (as a local or district park) as set out in the Cranbourne East Precinct Structure Plan or the Cranbourne East Precinct Structure Plan Development Contributions Plan must be transferred to or vested in Council at no cost to Council unless the land is funded by the Cranbourne East Precinct Structure Plan Development Contributions Plan.

**Requirement for subdivision permits**

If any part of the land is identified in the incorporated Cranbourne East Precinct Structure Plan as being required for unencumbered public open space that land must be transferred to Council subject to equalisation in accordance with the equalisation provisions in the incorporated Cranbourne East Precinct Structure Plan Development Contributions Plan.

## 6.0 Signs

02/12/2022
C259case

Land is in the category specified in the applied zone. If there is no applied zone the land is in Category 3.

Despite the provisions of Clause 52.05, a permit may be granted, for a period of not more than 5 years, to display a sign that promotes the sale of land or dwellings.

A permit may be granted for a business identification sign of no more 2 square metres on land where the applied zone is General Residential Zone provided:

- The application for a permit is lodged concurrently with an application for buildings and works for an office on the same land.
- The sign is not illuminated.
- No fittings or wiring are visible from adjacent streets or properties.

02/12/2022
C259case

# SCHEDULE 3 TO CLAUSE 37.07 URBAN GROWTH ZONE

Shown on the planning scheme map as **UGZ3**.

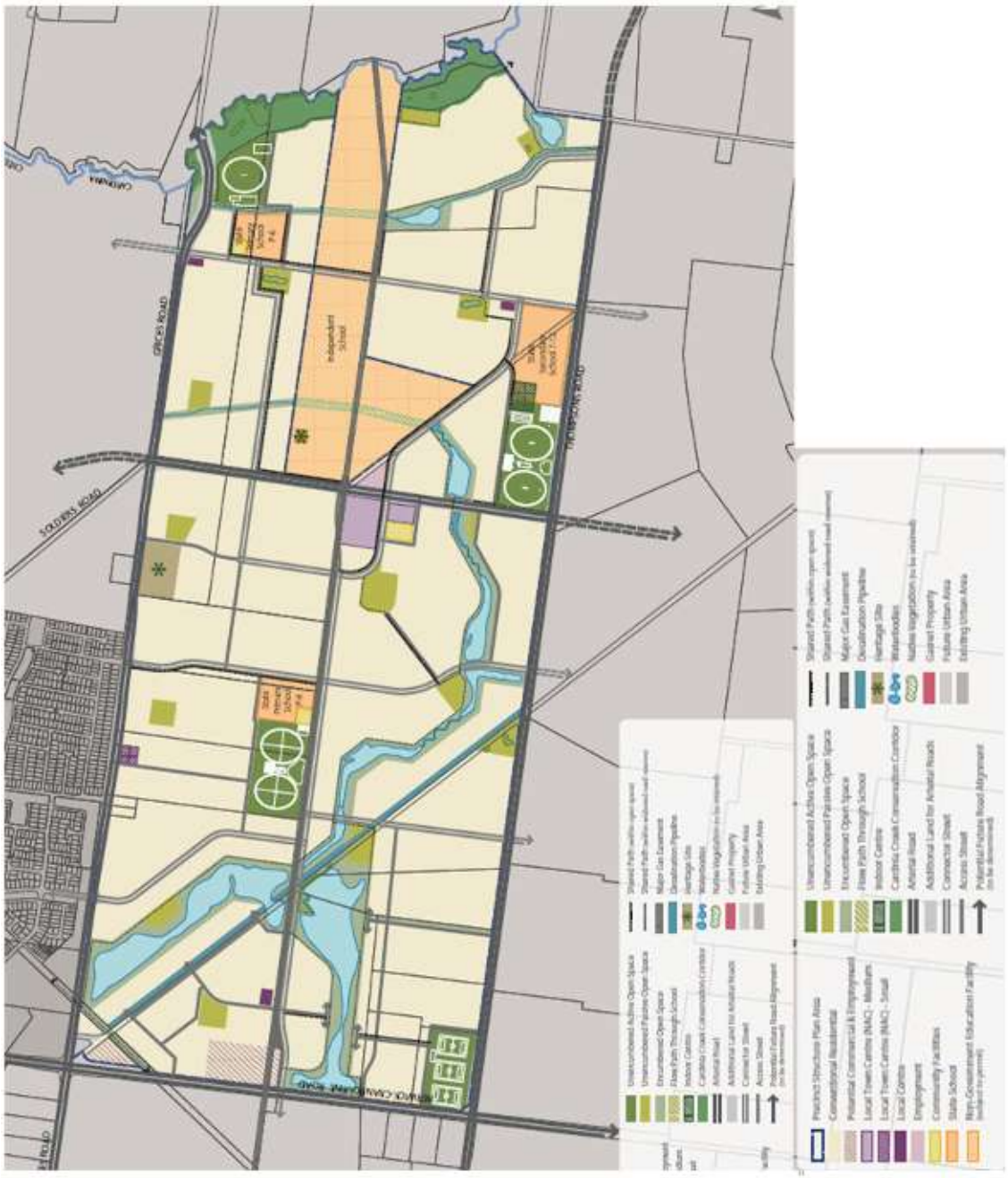
## CLYDE NORTH PRECINCT STRUCTURE PLAN

## 1.0 The Plan

02/12/2022
C259case

Plan 1 to Schedule 3 to Clause 37.07 shows the Future Urban Structure for the *Clyde North Precinct Structure Plan*. It is a reproduction of Plan 5 in the *Clyde North Precinct Structure Plan*.

### Plan 1 to Schedule 3 to Clause 37.07



## 2.0 Use and development

02/12/2022
C259case

### 2.1 The Land

02/12/2022
C259case

The use and development provisions specified in this schedule apply to the land as shown as Clyde North Precinct Structure Plan Area in Plan 1 of this Schedule and zoned as Urban Growth Zone 3.

### 2.2 Applied zone provisions

02/12/2022
C259case

The provisions of the following zones in this scheme apply to the use and subdivision of land, the construction of a building and the construction and carrying out of works, as set out in Table 1.

**Table 1: Applied zone provisions**

| Land use/development (carried out or proposed) generally in accordance with the precinct structure plan applying to the land | Applied zone provisions |
|---|---|
| Employment | **Clause 34.01 – Commercial 1 Zone** |
| Local Town Centre and Local Centre | **Clause 34.01 – Commercial 1 Zone** |
| Cardinia Creek Conservation Corridor | **Clause 36.03 – Public Conservation and Resource Zone** |
| All other land in the precinct | **Clause 32.08 – General Residential Zone** |

The precise boundary of the Commercial 1 Zone for local centres will be determined by the designation of land in a relevant plan of subdivision as a local centre to the satisfaction of the responsible authority.

The precise boundary of the Commercial 1 Zone associated with each Local Town Centre will be determined by the Urban Design Framework Plan approved under Clause 3.0 of this schedule.

The precise boundary of the Public Conservation and Recreation Zone will be determined by the final Cardinia Creek Master Plan.

### 2.3 Specific provisions – Use of land

02/12/2022
C259case

The following provisions apply to the use of land.

**Table 2: Use**

| Use | Requirement |
|---|---|
| **Shop where the applied zone is Commercial 1 Zone** | A permit is required to use land for a shop if the combined leasable floor area of all shops exceeds:<br>▪ 8000 square metres for the land shown as a large neighbourhood activity centre in the incorporated *Clyde North Precinct Structure Plan*.<br>▪ 2000 square metres for the land shown as a small neighbourhood activity centre in the incorporated *Clyde North Precinct Structure Plan*.<br>▪ 1000 square metres for the land shown as a local neighbourhood activity centre in the incorporated *Clyde North Precinct Structure Plan*. |
| **Office where the applied zone is Commercial 1 Zone** | A permit is required to use land for an office if the combined leasable floor area of all office exceeds: |

| Use | Requirement |
|---|---|
| | ▪ 4000 square metres for the land shown as the large neighbourhood activity centre in the incorporated *Clyde North Precinct Structure Plan*. |
| **Office where the applied zone is General Residential Zone** | A permit may be granted to use land for an office if the leasable floor area does not exceed 100 square metres. |
| **Trade Supplies where the applied zone is General Residential Zone** | A permit may be granted to use land for a trade supplies centre if the land is located within the area shown as potential employment and commercial on Plan 1 of this schedule. |

## 2.4 Specific provisions - Subdivision

02/12/2022
C259case

None specified.

## 2.5 Specific provisions - Buildings and works

28/11/2024
GC206

### Construction of single dwellings on small lots

A permit is not required to construct one dwelling on a lot of between 250 square metres and 300 square metres where an approved building envelope (as defined in Part 4 of the Building Regulations 2006) applies to the lot.

A permit is not required to construct a front fence within 3 metres of a street on a lot of between 250 and 300 square metres provided that the front fence height in Table A2 at Clause 54.06-2 is met.

Or

A permit is not required to construct or extend one dwelling on a lot of less than 300 square metres, if either of the following apply:

- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) incorporated into this planning scheme.
- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) incorporated into this planning scheme.

## 2.6 Specific provisions - Use and development of future public land

A permit is not required to use or develop land shown in the *Clyde North Precinct Structure Plan* as local park, local sports reserve or community facilities provided the development is carried out generally in accordance with the *Clyde North Precinct Structure Plan* and with the prior written consent of the responsible authority.

## 3.0 Application requirements

02/12/2022
C259case

### Subdivision Applications - General

An application for subdivision must be accompanied by a site and context description as detailed in Clause 56.01. In addition to the requirements of Clause 56.01, the site and context description must show or address the following to the satisfaction of the responsible authority:

- An application may reference the *Clyde North Precinct Structure Plan,* the Clyde North Native Vegetation Precinct Plan *or* the *Clyde North Development Contributions Plan* to describe relevant elements of the site and its context where appropriate.
- Any design response or guidelines adopted for the area by Casey City Council.
- A table setting out the amount of land allocated to the proposed uses and expected population, dwelling and employment yields.
- The anticipated overall staging of the subdivision.
- An application for a residential subdivision of 10 lots or more must be accompanied by Subdivision and Housing Design Guidelines, prepared to the satisfaction of the responsible authority, in accordance with the *Clyde North Precinct Structure Plan* incorporated in this scheme.
- A hydrogeological assessment of groundwater conditions on the site and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater conditions on the development and the impact of development on groundwater.
- The incorporation of tree Nos. 1884, 1885 and 1920 (as described in the *Arboricultural Assessments: Clyde North, C21 Business Park and Cranbourne North (stage 2) Precincts, prepared by Treelogic Pty Ltd, Dec 2008*) into the public realm, if applicable to the subject land.
- A Transport Impact Assessment Report to the satisfaction of the relevant roads authority (be it VicRoads or Council).
- On land southwest of Pound Road, a site assessment of the land by a suitably qualified environmental professional including:
  - detail of the nature of the previous and existing land use/activities on the land;
  - an assessment of the potential level and nature of contamination on the land; and
  - advice on whether the environmental condition of the land is suitable for the proposed use/s and whether an environmental audit of all, or part, of the land is recommended having regard to the Potentially Contaminated Land General Practice Note June 2005 (DSE).

**Subdivision Applications – Public Infrastructure Plan**

An application must be accompanied by a Public Infrastructure Plan which addresses the following:

- What land may be affected or required for the provision of infrastructure works.
- The provision, staging and timing of stormwater drainage works.
- The provision, staging and timing of roadworks internal and external to the land consistent with any relevant traffic report or assessment.
- The landscaping of any land.
- What if any infrastructure set out in the Development Contributions Plan applying to the land is sought to be provided as "works in lieu" subject to the consent of Casey City Council.
- The provision of public open space and land for any community facilities.
- Any other matter relevant to the provision of public infrastructure required by the responsible authority.

If in the opinion of the responsible authority an application requirement is not relevant to the assessment of an application, the responsible authority may waive or reduce the requirement.

**Subdivision Applications – Land Adjacent to Waterways**

An application for subdivision of any land adjacent to the waterways must be accompanied by a plan showing:

- Waterway management easements or reserves generally in accordance with PSP Plan 14 Cardinia Creek Masterplan to the satisfaction of Melbourne Water.
- All land to be set aside for drainage works to the satisfaction of Melbourne Water.

### Neighbourhood activity centre urban design frameworks

If the land is shown as a local town centre on Plan 1 a permit must not be granted to use or subdivide land, or to construct a building or construct and carry out works until an Urban Design Framework for the activity centre has been prepared to the satisfaction of the responsible authority.

A permit may be granted to subdivide land or to construct a building or construct and carry out works prior to the approval of an urban design framework if, in the opinion of the responsible authority, the grant of the permit will not prejudice the achievement of the objectives and planning and design guidelines for the activity centre set out in the incorporated precinct structure plan.

The responsible authority may allow an urban design framework to be prepared in stages.

The Urban Design Framework may be amended to the satisfaction of the responsible authority.

## 4.0 Conditions and requirements for permits

28/11/2024
GC206

### General requirements

A planning permit must include a condition or conditions which ensure that any requirements or conditions set out in the *Clyde North Precinct Structure Plan* and the Clyde North Native Vegetation Precinct Plan are implemented as part of the planning permit or the plans endorsed under the planning permit.

Any permit issued for land affected by a conservation management plan:

- Must be consistent with any conservation management plan applying to the land.
- Must require any relevant conservation actions, as set out in an approved conservation management plan, to be carried out to the satisfaction of the responsible authority.

Prior to the issue of a Statement of Compliance for the first stage of a development, the owner must, if required, enter into an agreement, or agreements, under Section 173 of the Act which specifies the infrastructure required to be provided as part of the development. The agreement must give effect to the approved Public Infrastructure Plan.

### Environmental assessment of potentially contaminated land

If an application for a permit includes a site assessment recommending an environmental audit of all or part of the land, then the permit must contain conditions that for that part of the land recommended for the audit;

- Either:
  - A certificate of environmental audit issued for the relevant land in accordance with Part 1XD of the Environmental Protection Act 1970, or
  - A statement by an environmental auditor appointed under the Environment Protection Act 1970, in accordance with Part 1XD of that Act that the environmental conditions of the relevant land are suitable for a sensitive use (with or without conditions on the use of the site);

must be provided to the responsible authority before any building on the relevant land is occupied; and

- If a statement by an environmental auditor is provided rather than a certificate of environmental audit and the statement indicates that the environmental conditions of the relevant land are suitable for a sensitive use subject to conditions, the owner of the land must enter into an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987* before any building on the relevant land is occupied to provide for;
  - ongoing compliance with all conditions in the Statement by the Environmental Auditor;
  - the responsible authority's reasonable legal costs and expenses of drafting/reviewing and registering the agreement to be borne by the owner of the relevant land.

**Condition – Subdivision permits that allow the creation of a lot less than 300 square metres**

A permit issued before 31 December 2026 to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan must be approved and endorsed by the responsible authority, that identifies the lots to which:

– type A or type B of the *Small Lot Housing Code* (Victorian Planning Authority, 2019) applies; or

– type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies

to the satisfaction of the responsible authority.

A permit issued on or after 31 December 2026, other than an amendment of a permit under section 72 of the Act issued before 31 December 2026, to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan that identifies the lots to which type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies must be approved and endorsed by the responsible authority, to the satisfaction of the responsible authority.

Before a plan is certified for a subdivision (or a relevant stage of a subdivision) where building envelopes are proposed, each lot between 250 square metres and 300 square metres in area must contain a building envelope (in accordance with Part 4 of the Building Regulations) to the satisfaction of the responsible authority.

If an approved building envelope applies to a lot between 250-300 square metres under section 2.5 of this schedule a planning permit must contain a condition that requires the approved building envelopes must be applied as a restriction on the plan of subdivision or be applied through an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987* that is registered on the title to the land. The restriction or the agreement must provide for:

- The building envelope to apply to each relevant lot.
- All buildings to conform to the building envelope on the relevant lot.
- The construction of a building outside of a building envelope only with the consent of the responsible authority.

A building envelope to cease to apply to any building on the lot affected by the envelope after the issue of a certificate of occupancy for the whole of a dwelling on the land.

Where the building envelope is to be applied to the land through an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987*, the building envelope plan may be approved after the plan of subdivision is certified.

**Condition for permits on land identified on Plan 12a in the Clyde North Precinct Structure Plan - Conservation Management Plan**

The Clyde North PSP Cardinia Creek: Threatened Fauna Conservation Management Plan, approved by the Department of Sustainability and Environment and endorsed by the Responsible Authority must be implemented to the satisfaction of the Secretary to the Department of Sustainability and Environment, Melbourne Water, and the Responsible Authority. Implementation requires that any specified actions relevant to the site must be carried out in accordance with the approved Conservation Management Plan.

Before the statement of compliance is issued under the *Subdivision Act 1988* the applicant or owner must make a financial contribution to Melbourne Water in accordance with Section 5.2 Funding of the Clyde North PSP Cardinia Creek: Threatened Fauna Conservation Management Plan.

**Conditions for permits - subdivision, buildings and works which will result in removal of dams, drainage lines and vegetation**

- Prior to the commencement of works: a Salvage Plan for threatened species including Southern Toadlet, Glossy Grass Skink and Growling Grass Frog must be prepared to the satisfaction of the Secretary to the Department of Sustainability and Environment and the approval of the responsible authority.
- The approved Salvage Plan must be implemented to the satisfaction of the Secretary to the Department of Sustainability and Environment and the responsible authority.

**Conditions for subdivision or building and works permits where land is required for community facilities, public open space and road widening**

Land required for community facilities, as set out in the *Clyde North Precinct Structure Plan* or the *Clyde North Precinct Structure Plan Development Contributions Plan*, must be transferred to or vested in Council at no cost to Council unless the land is funded by the *Clyde North Precinct Structure Plan Development Contributions Plan*.

Land required for public open space as a local or district park, as set out in the *Clyde North Precinct Structure Plan* or the *Clyde North Precinct Structure Plan Development Contributions Plan*, must be transferred to or vested in Council at no cost to Council unless the land is funded by the *Clyde North Precinct Structure Plan Development Contributions Plan*.

Land required for road widening including right of way flaring for the ultimate design of any intersection within an existing or proposed arterial road must be referred to or vested in Council or VicRoads at no cost to the acquiring agency unless funded by the *Clyde North Precinct Structure Plan Development Contributions Plan*.

**Conditions for subdivision of land adjacent to the waterways**

- That waterway management easements or reserves shown on the plan of subdivision are vested in Melbourne Water.
- The plan of subdivision to show all land to be set aside for drainage works.

**Requirement for subdivision permits**

Land required for unencumbered public open space must be transferred to Council subject to equalisation in accordance with the equalisation provisions in the incorporated *Clyde North Precinct Structure Plan Development Contributions Plan*.

## 5.0 Exemption from notice and review

02/12/2022
C259case

None specified.

## 6.0 Decision guidelines

02/12/2022
C259case

None specified.

## 7.0 Signs

02/12/2022
C259case

Land is in the category specified in the applied zone. If there is no applied zone the land is in Category 3.

### Land and home sales signs

Despite the provisions of Clause 52.05, signs promoting the sale of land or homes on the land (or on adjoining land in the same ownership) may be displayed without a permit provided:

- The display area for each sign does not exceed 10 square metres.

Only one sign is displayed per road frontage. Where the property has a road frontage of more than 150 metres multiple signs may be erected provided there is a minimum of 150 metres distance between each sign, with a total of not more than 4 signs per frontage.

- The sign is not animated, scrolling, electronic or internally illuminated sign.
- The sign is not displayed longer than 21 days after the sale (not settlement) of the last lot.
- The sign is setback a minimum of 750 millimetres from the property boundary.

A permit may be granted to display a sign promoting the sale of land or homes on the land (or on adjoining land in the same ownership) with an area greater than 10 square metres.

17/08/2017
C227

# SCHEDULE 4 TO CLAUSE 37.07 URBAN GROWTH ZONE

Shown on the planning scheme map as **UGZ4**.

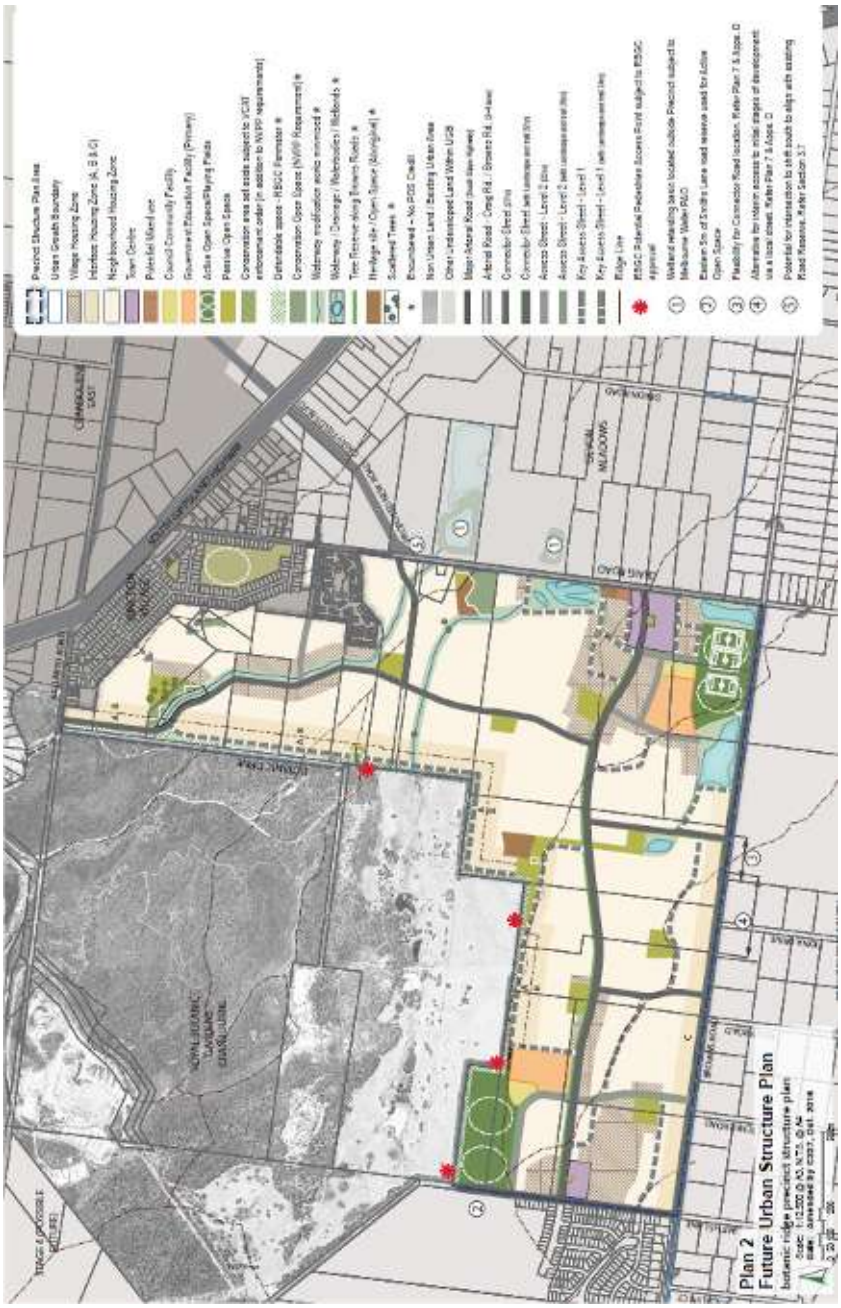
## BOTANIC RIDGE PRECINCT STRUCTURE PLAN

## 1.0 The Plan

11/06/2020
C265case

Plan 1 to Schedule 4 to Clause 37.07 shows the Future Urban Structure for Botanic Ridge. It is a reproduction of Plan 2 in the *Botanic Ridge Precinct Structure Plan*.

### Plan 1 to Schedule 4 to Clause 37.07



## 2.0 Use and development

11/02/2016
C182

## 2.1 The Land

11/06/2020
C265case

The use and development provisions specified in this schedule apply to the land shown as 'Precinct Structure Plan Area' in Plan 1 of this schedule and shown as UGZ4 on the planning scheme maps.

*Note: If land shown on Plan 1 is not zoned UGZ, the provisions of this zone do not apply.*

## 2.2 Applied zone provisions

01/08/2013
C200

The provisions of the following zones in this scheme apply to the use and subdivision of land, the construction of a building, and the construction or carrying out of works as set out in Table 1.

**Table 1: Applied zone provisions**

| Land use or development (carried out or proposed) generally in accordance with the precinct structure plan applying to the land | Applied zone provisions |
|---|---|
| **Town centre** | Clause 34.01 – Commercial 1 Zone |
| **All other land** | Clause 32.08 – General Residential Zone |

## 2.3 Specific provisions – Use of land

01/08/2013
C200

The following provisions apply to the use of land.

**Table 2: Use**

| Use | Requirement |
|---|---|
| **Shop where the applied zone is Commercial 1 Zone** | A permit is required to use land for a shop if the combined leasable floor area of all shops exceeds:<br>▪ 8700 square metres for land shown as the Eastern local town centre in the incorporated *Botanic Ridge Precinct Structure Plan*.<br>▪ 3000 square metres for land shown as the Western small local town centre in the incorporated *Botanic Ridge Precinct Structure Plan.* |

## 2.4 Specific provisions – Use and development of future public land

07/03/2013
C133

A permit is not required to use or develop land shown in the *Botanic Ridge Precinct Structure Plan* as open space (active or passive) or community facilities provided the use or development is carried out generally in accordance with the *Botanic Ridge Precinct Structure Plan* and with the prior written consent of Casey City Council.

## 2.5 Specific provisions – Amenity and appearance of dwellings within the applied General Residential Zone

01/08/2013
C200

External lighting on a dwelling or within a lot must be baffled and angled so that light is cast toward the ground and / or so that it does not spill onto adjoining properties or public spaces.

Services normal to a dwelling and water tanks must be finished in a non-reflective, muted colour and must not, as far as is practicable, be visible from the street (other than a lane) or a public park.

## 2.6 Specific provisions - Residential design controls for residential subdivision

24/06/2020
GC150

The *residential design controls* in the incorporated *Botanic Ridge Precinct Structure Plan* must be met by a residential subdivision or a development of a dwelling on a residential lot, as relevant, to the satisfaction of the responsible authority.

A permit may be granted to vary a *residential design control*.

Where a *residential design control* relating to subdivision conflicts with an objective or standard of Clause 56 of this scheme, the *residential design controls* prevail.

Where a *residential design control* relating to the development of a dwelling conflicts with an objective or standard of Clause 54 or 55 of this scheme, the *residential design controls* prevail.

These provisions do not apply to a development that accords with the incorporated *Small Lot Housing Code (Victorian Planning Authority, November 2019)*.

## 2.7 Specific provisions - Construction of single dwellings on small lots

28/11/2024
GC206

A permit is not required to construct one dwelling on a lot of between 250 square metres and 300 square metres where an approved building envelope (as defined in Part 5 of the Building Regulations 2018) applies to the lot.

A permit is not required to construct a front fence within 3 metres of a street on a lot of between 250 and 300 square metres provided that the front fence height in Table A2 at Clause 54.06-2 is met.

Or

A permit is not required to construct or extend one dwelling on a lot of less than 300 square metres, if either of the following apply:

- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) incorporated into this planning scheme.
- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) incorporated into this planning scheme.

## 2.8 Specific provisions - Referral of applications to the Director of Public Transport

07/03/2013
C133

Clause 52.36 requires referral of specified applications to the Director of Public Transport. Clause 52.36-1 exempts an application from the referral requirement where the application is consistent with an adopted Structure Plan that has been prepared in consultation with and endorsed by the Public Transport Division of the Department of Transport.

For the purpose of Clause 52.36-1 of this planning scheme, a development is consistent with the *Botanic Ridge Precinct Structure Plan* where the following requirements are met:

- A road nominated on *Plan 8 – Public Transport and Walking Trails* in the *Botanic Ridge Precinct Structure Plan* as a potential bus route is constructed (including any partial construction where relevant) in accordance with its corresponding cross section in the *Botanic Ridge Precinct Structure Plan*; and
- Any roundabouts or other road management devices on potential bus routes are constructed to accommodate ultra low floor buses in accordance with the Public Transport Guidelines for Land Use and Development; and
- Prior to the issue of a Statement of Compliance for any subdivision stage bus stop hard stands with direct and safe pedestrian access to a pedestrian path must be constructed unless otherwise agreed by the Director of Public Transport:

- In accordance with the Public Transport Guidelines for Land Use and Development; and
- Compliant with the *Disability Discrimination Act* – Disability Standards for Accessible Public Transport 2002; and
- At locations approved by the Director of Public Transport, at no cost to the Director of Public Transport and to the satisfaction of the Director of Public Transport.

A responsible authority may address any of the above matters through planning permit conditions.

## 3.0 Application requirements

07/03/2013
C133

### 3.1 Residential subdivision – Site and context description and design response

11/06/2020
C265case

Where a site and context description under Clause 56.01-1 of this scheme is required to be submitted, the following applies:

- The site and context description may reference the *Botanic Ridge Precinct Structure Plan*, the *Botanic Ridge Native Vegetation Precinct Plan* or the *Botanic Ridge Development Contributions Plan* to describe relevant present or future features of the site as listed in Clause 56.01-1.
- Where Clause 56.01-1 requires a site and context description to show 'significant views to and from the site', significant views must include, but are not limited to, views to and from the Cranbourne Gardens and views to and from land to the south of Browns Road.

An application for subdivision must address the requirements of Clause 56 of the Casey Planning Scheme. In addition to any requirement in 56.01-2 a subdivision design response must include:

- A land budget table, to the same format and methodology as those within this PSP, setting out the amount of land allocated to the proposed uses and expected population and dwelling yields.
- View-shed cross-sections from the 'Trig Point lookout' within the Cranbourne Gardens to the extent of the development. This material may be supported by plan based / 3D imagery.

### 3.2 Development applications in a local town centre

11/06/2020
C265case

An application to construct a building or construct or carry out works on land in a local town centre must be accompanied by:

- A levels and grading plan for the site and immediate surrounds showing the existing and proposed levels.
- Material that demonstrates how the design and layout of the town centre ensures protection of view-sheds from the nearby Cranbourne Gardens.
- Design guidelines for the provision and integration of signs.
- Guidelines on environmental sustainability including integrated water management and energy conservation.
- Material demonstrating how medium and higher density housing and future commercial expansion can be incorporated into the centre over time.

An application to subdivide land, construct a building or construct or carry out works on land in a local town centre by should be accompanied by a Sustainability Management Plan which demonstrates how the following considerations have been incorporated into the design of the Town Centre:

- Energy efficient design and construction methods for the development of all buildings.
- Water Sensitive Urban Design to maximise re-use of stormwater, support landscaping and improve water infiltration into the ground, is encouraged

- Demonstration that a high level of access, mobility and safe pedestrian movement is being delivered for the Town Centre.
- Appropriate mix of shade and shelter through a combination of landscape treatment and built form features.
- Natural ventilation of all buildings to reduce the reliance on machinery for heating and cooling.
- Passive solar orientation and building design.
- Waste collection designed to maximise opportunities for recycling and reuse.
- Solar energy for water and space heating, electricity generation and internal and external lighting.
- How in ways other than those listed above, the design of built form reduces greenhouse gas emissions associated with the occupation and the ongoing use of buildings.

## 3.3 Miscellaneous

07/03/2013
C133

An application for subdivision must be accompanied by a Public Infrastructure Plan which addresses the following:

- The provision, staging and timing of stormwater drainage works, including temporary outfall provisions, to the satisfaction of Melbourne Water.
- What land may be affected or required for the provision of infrastructure works.
- The provision, staging and timing of road works internal and external to the land consistent with any relevant traffic report or assessment.
- The landscaping of any land.
- The provision of public open space and land for any community facilities.
- What, if any, infrastructure set out in the development contributions plan applying to the land is sought to be provided as "works in lieu" subject to the consent of the collecting agency.
- Any other matter relevant to the provision of public infrastructure required by the responsible authority.

An application for subdivision must be accompanied by an assessment of surface and subsurface water conditions on the site and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater conditions on the development and the impact of the development on groundwater.

An application that proposes to create or change access to Browns Road or Craig Road must be accompanied by a Traffic Impact Assessment Report (TIAR). The TIAR, including functional layout plans and a feasibility / concept road safety audit must be to the satisfaction of Council.

An application to use or develop land at 60 Botanic Drive or 45 Craig Road for a sensitive use must be accompanied by an environmental site assessment of the land by a suitably qualified environmental professional to the satisfaction of the responsible authority which provides information including:

- Detailed assessment of the matters outlined as potential contaminants on the land documented in ‘Report for Botanic Ridge Precinct Structure Plan, Environmental Contamination Assessment, January 2010’ by GHD.
- Clear advice on whether the environmental condition of the land is suitable for the proposed use/s and whether an environmental audit of all, or part, of the land is recommended having regard to the *Potentially Contaminated Land General Practice Note June 2005*, DSE.
- Recommended remediation actions for any potentially contaminated land.

## 4.0 Conditions and requirements for permits

28/11/2024
GC206

### 4.1 Housing

**Condition – Subdivision permits that allow the creation of a lot less than 300 square metres**

A permit issued before 31 December 2026 to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan must be approved and endorsed by the responsible authority, that identifies the lots to which:

– type A or type B of the *Small Lot Housing Code* (Victorian Planning Authority, 2019) applies; or

– type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies

to the satisfaction of the responsible authority.

A permit issued on or after 31 December 2026, other than an amendment of a permit under section 72 of the Act issued before 31 December 2026, to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan that identifies the lots to which type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies must be approved and endorsed by the responsible authority, to the satisfaction of the responsible authority.

Before the issue of a certificate of compliance for the subdivision (or a stage of the subdivision) a building envelope plan for each lot between 250 square metres and 300 square metres to the satisfaction of the responsible authority must be submitted to and approved by the responsible authority.

If an approved building envelope applies to a lot between 250 – 300 square metres under section 2.7 of this schedule a planning permit must contain a condition that requires the approved building envelopes must be applied as a restriction on the plan of subdivision or be applied through an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987* that is recorded on the title to the land. The restriction or the agreement must provide for:

- The building envelope to apply to each relevant lot.
- All buildings to conform to the building envelope on the relevant lot.
- The construction of a building outside of a building envelope only with the consent of the responsible authority.
- A building envelope to cease to apply to any building on the lot affected by the envelope after the issue of a certificate of occupancy for the whole of a dwelling on the land.

Where the building envelope is to be applied to the land through an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987*, the building envelope plan may be approved after the plan of subdivision is certified.

**60 Botanic Drive and 45 Craig Road, Junction Village – conditions for a permit allowing use or development for a sensitive use**

Before the development associated with the subdivision starts, (this requirement does not apply to bore holes and excavation associated with an environmental site assessment), an environmental site assessment of the land by a suitably qualified environmental professional must be undertaken which provides the following information:

- The nature of the previous and existing land use/activities on the land.

- An assessment of the potential level and nature of contamination on the land.
- Advice on whether the environmental condition of the land is suitable for the proposed use/s and whether an environmental audit of all or part of the land is recommended having regard to the Potentially Contaminated Land General Practice Note June 2005, (DSE).

If an environmental site assessment recommends an environmental audit of all or part of the land, then:

- Before the commencement of any use for a sensitive purpose; or
- Before any buildings or works; or
- Before the certification of a plan of subdivision

whichever is the earlier in respect of all or that part of the land as the case may, the following must be provided to the responsible authority, either:

A Certificate of Environmental Audit issued for the relevant land in accordance with Part 1XD of the *Environment Protection Act 1970*, or

A Statement of Environmental Audit issued for the relevant land in accordance with Part 1XD of the *Environment Protection Act 1970* stating that the environmental conditions of the relevant land are suitable for a sensitive use (with or without conditions on the use of the site).

If a Statement of Environmental Audit is provided rather than a Certificate of Environmental Audit and the Statement of Environmental Audit indicates that the environmental conditions of the relevant land are suitable for a sensitive use subject to conditions, the owner of the land must enter into an agreement with the responsible authority under section 173 of the *Planning and Environment Act 1987* before the construction of any building on the relevant land providing for the:

- Implementation and on-going compliance with all conditions in the Statement of Environmental Audit; and
- The payment of the responsible authority's legal costs and expenses of drafting/reviewing and registering the agreement by the owner of the relevant land.

## 4.2 Employment and activity centres

The boundary of a local centre with the applied Commercial 1 Zone must be shown on a plan of subdivision as a local centre to the satisfaction of the responsible authority.

## 4.3 Community facilities

Land required for community facilities as set out in the *Botanic Ridge Precinct Structure Plan* or the *Botanic Ridge Development Contributions Plan* must be transferred to or vested in Council at no cost to Council unless the land is funded by the *Botanic Ridge Development Contributions Plan*.

## 4.4 Open space and natural systems

### Environment notifications and prohibitions

Any permit issued for residential subdivision must include the following condition:

The owner must enter into an agreement under section 173 of the Act with the responsible authority to provide for:

- Notification that Casey City Council publishes a list of native plant species suitable to the local environment at Botanic Ridge and a statement that Casey City Council encourages the use of these native plants in private gardens to complement the adjacent Cranbourne Gardens environment.

- Notification that intermittent environmental burn regimes within the Cranbourne Gardens may affect the amenity of the lot.
- The owner to covenant that they will not do the following on the lot:
  - Keep cats or exotic bees.
  - Plant or raise listed environmental weeds.

The agreement must be registered on the title to every lot created by the subdivision. The preparation and execution of an agreement must be at no cost to the responsible authority.

**Notification of bushfire risk and vegetation management advice**

Any permit issued for subdivision of land within 150 metres of the bushfire hazard shown on Plan 5 and the relevant cross section in the incorporated Botanic Ridge Precinct Structure Plan must include the following condition:

The owner must enter into an agreement under section 173 of the Act with the responsible authority to provide for notification to the owner of the lot on which the agreement is registered that:

- The Cranbourne Gardens is a potential bushfire hazard; and
- Any vegetation on the lot should be managed for the purpose of providing defendable space; and
- Guidance on defendable space can be obtained from the relevant fire authority.

The agreement must be registered on the title to every lot created by the subdivision that is within, or partly within 150 metres of the relevant bushfire hazard.

The preparation and execution of the agreement must be at no cost to the responsible authority.

**Transfer of municipal reserves**

Land described in the Botanic Ridge Precinct Structure Plan as:

- 'Defendable space – Cranbourne Gardens Perimeter' on Plan 5; and
- public open space (as a local or district park); and
- tree reserve,

must be transferred to or vested in Council at no cost to Council.

**Southern Brown Bandicoot conservation – habitat creation**

Any permit for residential subdivision must include the following conditions:

Before works commence on land identified as Southern Brown Bandicoot Connectivty on Plan 5 of the Botanic Ridge Precinct Structure Plan a detailed Southern Brown Bandicoot Connectivity Landscape Plan (SBBCLP) must be submitted to and approved by the Secretary to the Department of Environment Land, Water and Planning ('DELWP'). The plan must show:

- Areas of habitat to be created and enhanced for Southern Brown Bandicoot connectivity, including suitable plant species, landscape design and sensitive location of infrastructure,
- Landscaping wholly within the relevant reserves shown within 'Southern Brown Bandicoot connectivity',
- How the primary and other functions of the relevant reserve are to be maintained to the satisfaction of the public land manager,
- Any relevant pedestrian, bicycle or vehicle connectivity,

- Integration with existing or planned landscaping on adjacent properties or anticipates potential habitat development on adjacent properties, and
- Landscape works that do not result in an unacceptable increase in bushfire threat to adjacent land use and development.

Works and landscaping on an approved SBBCLP must be carried out to the satisfaction of the Secretary to DELWP.

**Southern Brown Bandicoot conservation – safe passage under roads**

A permit for residential subdivision must include the following condition:

In addition to the approval of any other relevant roads authority (including the anticipated public land manager for the relevant road reserve) roads that cross Southern Brown Bandicoot connectivity corridors including those shown on Plan 7 in the PSP may require additional culverts intended specifically for passage of Southern Brown Bandicoots and that do not have a primary hydraulic function.

Detailed design drawings for this infrastructure must be submitted to and approved by the Secretary to the Department of Environment Land, Water and Planning ('Secretary to the DELWP') prior to commencing construction.

Incorporation of SBB transit infrastructure must not adversely impact on the performance of the road reserve for vehicles, bicycles and / or pedestrians.

*Notes:* *Southern Brown Bandicoot plans described above are in addition to the approval of any other relevant public land manager, including the anticipated public land manager, for the relevant reserve.*
*Refer Table 9 in the PSP for guidance on the lead agency and funding of additional works for Southern Brown Bandicoot habitat.*

**Protecting and offsetting native vegetation**

Any:

- Works carried out in respect of any subdivision;
- Construction of buildings and associated works; and
- Removal, lopping or destruction of native vegetation on the land as authorised by the Native Vegetation Precinct Plan (NVPP) applying to the land,

must be carried out in accordance with all of the requirements set out in the incorporated NVPP applying to the land to the satisfaction of the responsible authority.

Only the native vegetation which is identified for removal in the incorporated NVPP applying to the land may be removed, lopped or destroyed without a permit.

Before the removal, destruction or lopping of any native vegetation within any property (identified by the PSP Property Number on Map 1 of the *Botanic Ridge NVPP*) the owner of the land from which the native vegetation is being removed must provide offsets consistent with the incorporated NVPP by either:

- Providing an allocated credit extract issued by the Department of Sustainability and Environment; or
- Preparing and submitting an Offset Plan to the satisfaction of the Department of Sustainability and Environment and have the Offset Plan approved by the responsible authority.

Where an Offset Plan is approved:

- Before the removal, destruction or lopping of any native vegetation, the owner of the land from which the native vegetation is being removed must provide on-title security for the Offset Site to the satisfaction of Department of Sustainability and Environment that provides for the implementation of the Offset Plan and pay the reasonable costs of the preparation, execution and registration of any on-title agreement; and
- Offsets must be initiated within 12 months of approval of the Offset Plan or before the removal of Very High Conservation Significance vegetation, whichever is earlier, and be implemented according to the schedule of works in the Offset Plan to the satisfaction of the responsible authority.

### 4.5 Transport and movement

Prior to the certification of a plan of subdivision, the plan of subdivision must show the land affected by the widening of the road reserve which is required to provide road widening and/or right of way flaring for the ultimate design of any adjacent intersection.

The land required for road flaring must be transferred to or vested as 'road' in the Roads Corporation (in the case of land for arterial roads under the *Road Management Act 2004*) or in Casey City Council (in the case of other roads) at no cost unless that road or road widening land is funded by the *Botanic Ridge Development Contributions Plan*.

## 5.0 Exemption from notice and review

11/06/2020
C265case

None specified.

## 6.0 Decision guidelines

11/06/2020
C265case

None specified.

## 7.0 Signs

11/06/2020
C265case

The following sign categories in this scheme apply by reference to Plan 1 of this Schedule.

**Table 3: Signs**

| Land shown on Plan 1 of this schedule | Sign category |
|---|---|
| **Town centre** | Category 1 |
| **Potential mixed use** | Category 2 |
| **Housing (all types)** | Category 3 |
| **All other land** | Category 4 |

### Land and home sales signs

Despite the provisions of Clause 52.05, signs promoting the sale of land or homes on the land (or on adjoining land in the same ownership) may be displayed without a permit provided:

- The display area for each sign does not exceed 10 square metres.
- Only one sign is displayed per road frontage. Where the property has a road frontage of more than 150 metres multiple signs may be erected provided there is a minimum of 150 metres distance between each sign, with a total of not more than 4 signs per frontage.
- The sign is not animated, scrolling, electronic or internally illuminated.
- The sign is not displayed longer than 21 days after the sale (not settlement) of the last lot.

- The sign is set back a minimum of 750 millimetres from the property boundary.

A permit may be granted to display a sign promoting the sale of land or homes on the land (or on adjoining land in the same ownership) with an area greater than 10 square metres.

*Note: On 11 September 2014 an approval under the Environment Protection and Biodiversity Conservation Act 1999 (EPBC Act) was issued by the Commonwealth Minister for Environment, Heritage and Water. The approval applies to all actions associated with urban development in the southeast growth corridors in the expanded Melbourne 2010 Urban Growth Boundary as described in page 4 in the Biodiversity Conservation Strategy for Melbourne's Growth Corridors (Department of Environment and Primary Industries, 2013). The Commonwealth approval has effect until 31 December 2060. The approval is subject to conditions specified at Annexure 1 of the approval.*

*Provided the conditions of the EPBC Act approval are satisfied individual assessment and approval under the EPBC Act is not required.*

02/12/2022
C259case

# SCHEDULE 5 TO CLAUSE 37.07 URBAN GROWTH ZONE

Shown on the planning scheme map as **UGZ5**.

## CRANBOURNE NORTH STAGE 2 PRECINCT STRUCTURE PLAN

## 1.0 The Plan

02/12/2022
C259case

Plan 1 to Schedule 5 to Clause 37.07 shows the Future Urban Structure for the *Cranbourne North Stage 2 Precinct Structure Plan*. It is a reproduction of Plan 5 in the *Cranbourne North Stage 2 Precinct Structure Plan*.

### Plan 1 to Schedule 5 to Clause 37.07




## 2.0 Use and development

02/12/2022
C259case

## 2.1 The Land

02/12/2022
C259case

The use and development provisions specified in this schedule apply to the land as shown as Cranbourne North Stage 2 Precinct Structure Plan Area in Plan 1 of this Schedule and zoned as Urban Growth Zone 5.

## 2.2 Applied zone provisions

02/12/2022
C259case

The provisions of the following zones in this scheme apply to the use and subdivision of land, construction of a building, and construction and carrying out of works, by reference to Plan 1 of this schedule.

**Table 1: Applied zone provisions**

| Land use/development (carried out or proposed) generally in accordance with the precinct structure plan applying to the land | Applied zone provisions |
|---|---|
| **Local Town Centre/Local Centre** | Clause 34.01 – Commercial 1 Zone |
| **All other land in the precinct** | Clause 32.08 – General Residential Zone |

The precise boundary of the Commercial 1 Zone for the local centre will be determined by the designation of land in a relevant plan of subdivision as a local centre to the satisfaction of the responsible authority.

The precise boundary of the Commercial 1 Zone associated with the Local Town Centre will be determined by the designation of land in a relevant plan of subdivision as a local centre to the satisfaction of the responsible authority.

## 2.3 Specific provisions – Use of land

02/12/2022
C259case

The following provisions apply to the use of land.

**Table 2: Use**

| Use | Requirement |
|---|---|
| **Office where the applied zone is General Residential Zone** | A permit may be granted to use land for an office if the leasable floor area does not exceed 100 square metres. |
| **Shop where the applied zone is Commercial 1 Zone** | A permit is required to use land for a shop if the combined leasable floor area of all shops exceeds:<br>5400 square metres for the land shown as the Local Town Centre in the incorporated Cranbourne North Stage 2 Precinct Structure Plan.<br>1000 square metres for the land shown as the Local Centre in the incorporated Cranbourne North Stage 2 Precinct Structure Plan. |

## 2.4 Specific provisions - Subdivision

02/12/2022
C259case

None specified.

## 2.5 Specific provisions - Buildings and works

28/11/2024
GC206

### Construction of single dwellings on small lots

A permit is not required to construct one dwelling on a lot of between 250 square metres and 300 square metres where an approved building envelope (as defined in Part 5 of the Building Regulations 2018) applies to the lot.

A permit is not required to construct a front fence within 3 metres of a street on a lot of between 250 and 300 square metres provided that the Front Fence Height Standard in Table A2 to Clause 54.06-2 is met.

Or

A permit is not required to construct or extend one dwelling on a lot of less than 300 square metres, if either of the following apply:

- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) incorporated into this planning scheme.
- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) incorporated into this planning scheme.

### 2.6 Specific provisions - Use and development of future public land

A permit is not required to use or develop land shown in the *Cranbourne North Stage 2 Precinct Structure Plan* as local park, local sports reserve or community facilities provided the development is carried out generally in accordance with the *Cranbourne North Stage 2 Precinct Structure Plan* and with the prior written consent of the responsible authority.

## 3.0 Application requirements

02/12/2022
C259case

### Subdivision Applications - General

An application for subdivision must be accompanied by a site and context description as detailed in Clause 56.01. In addition to the requirements of Clause 56.01, the site and context description must show or address the following to the satisfaction of the responsible authority:

- Any design response or guidelines adopted for the area by Casey City Council.
- A table setting out the amount of land allocated to the proposed uses and expected population, dwelling and employment yields.
- The anticipated overall staging of the subdivision.
- A hydrogeological assessment of groundwater conditions on the site and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater conditions on the development and the impact of development on groundwater.
- A Transport Impact Assessment Report to the satisfaction of the relevant roads authority (be it VicRoads or Council).

### Subdivision Applications – Public Infrastructure Plan

An application must be accompanied by a Public Infrastructure Plan which addresses the following:

- What land may be affected or required for the provision of infrastructure works.
- The provision, staging and timing of stormwater drainage works.
- The provision, staging and timing of roadworks internal and external to the land consistent with any relevant traffic report or assessment.
- The landscaping of any land.
- What if any infrastructure set out in the Development Contributions Plan applying to the land is sought to be provided as "works in lieu" subject to the consent of Casey City Council.
- The provision of public open space and land for any community facilities.

- Any other matter relevant to the provision of public infrastructure required by the responsible authority.
- Where the developer does not facilitate the construction of the connector street bridge and associated works, the owner of the land must enter into a Section 173 Agreement to provide for the construction of the bridge and associated works, to the satisfaction of the Responsible Authority.

If in the opinion of the responsible authority an application requirement is not relevant to the assessment of an application, the responsible authority may waive or reduce the requirement.

## 4.0 Conditions and requirements for permits

28/11/2024
GC206

### General requirements

A planning permit must include a condition or conditions which ensure that any requirements or conditions set out in the *Cranbourne North Stage 2 Precinct Structure Plan* and the Cranbourne North Stage 2 Native Vegetation Precinct Plan are implemented as part of the planning permit or the plans endorsed under the planning permit.

Prior to the issue of a Statement of Compliance for the first stage of a development, the owner must, if required, enter into an agreement, or agreements, under Section 173 of the Act which specifies the infrastructure required to be provided as part of the development. The agreement must give affect to the approved Public Infrastructure Plan.

### Condition – Subdivision permits that allow the creation of a lot less than 300 square metres

A permit issued before 31 December 2026 to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan must be approved and endorsed by the responsible authority, that identifies the lots to which:

– type A or type B of the *Small Lot Housing Code* (Victorian Planning Authority, 2019) applies; or

– type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies

to the satisfaction of the responsible authority.

A permit issued on or after 31 December 2026, other than an amendment of a permit under section 72 of the Act issued before 31 December 2026, to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan that identifies the lots to which type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies must be approved and endorsed by the responsible authority, to the satisfaction of the responsible authority.

Before a plan is certified for a subdivision (or a relevant stage of a subdivision) where building envelopes are proposed, each lot between 250 square metres and 300 square metres in area must contain a building envelope (in accordance with Part 5 of the Building Regulations 2018) to the satisfaction of the responsible authority.

If an approved building envelope applies to a lot between 250 – 300 square metres under section 2.5 of this schedule a planning permit must contain a condition that requires the approved building envelopes must be applied as a restriction on the plan of subdivision or be applied through an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987* that is registered on the title to the land. The restriction or the agreement must provide for:

- The building envelope to apply to each relevant lot
- All buildings to conform to the building envelope on the relevant lot

- The construction of a building outside of a building envelope only with the consent of the responsible authority.
- A building envelope to cease to apply to any building on the lot affected by the envelope after the issue of a certificate of occupancy for the whole of a dwelling on the land.

Where the building envelope is to be applied to the land through an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987*, the building envelope plan may be approved after the plan of subdivision is certified.

**Conditions for subdivision or building and works permits where land is required for community facilities, public open space and road widening**

Land required for community facilities, as set out in the *Cranbourne North Stage 2 Precinct Structure Plan* or the *Cranbourne North Stage 2 Precinct Structure Plan Development Contributions Plan*, must be transferred to or vested in Council at no cost to Council unless the land is funded by the *Cranbourne North Precinct Structure Plan Development Contributions Plan*.

Land required for public open space as a local or district park, as set out in the *Cranbourne North Stage 2 Precinct Structure Plan* or the *Cranbourne North Precinct Structure Plan Development Contributions Plan*, must be transferred to or vested in Council at no cost to Council unless the land is funded by the *Cranbourne North Precinct Structure Plan Development Contributions Plan*.

Land required for road widening including right of way flaring for the ultimate design of any intersection within an existing or proposed arterial road must be referred to or vested in Council at no cost to the acquiring agency unless funded by the *Cranbourne North Precinct Structure Plan Development Contributions Plan*.

**Construction of connector road bridge between properties 9 and 11 in the Cranbourne North Stage 2 Precinct Structure Plan**

Unless arrangements for the construction of the connector road bridge shown in the *Cranbourne North Stage 2 Precinct Structure Plan* have been made to the satisfaction of the responsible authority, a permit for subdivision of land shown as property 9 or property 11 must provide for the construction of the bridge or include a requirement that the owner of the land under permit enter into an agreement under Section 173 of the *Planning and Environment Act 1987* to contribute towards the construction of the bridge.

**Environmental remediation at 1085, 1095 or 1135 Glasscocks Road**

Prior to the commencement of any use for a sensitive purpose or prior to any buildings or works or the certification of a subdivision, whichever is earlier, of or in respect of all or that part of the land as the case may be, the following must be provided to the responsible authority, either:

- A certificate of environmental audit issued for the relevant land in accordance with Part 1XD of the *Environmental Protection Act 1970*, or
- A statement by an environmental auditor appointed under the *Environment Protection Act 1970*, in accordance with Part 1XD of that Act that the environmental conditions of the relevant land are suitable for a sensitive use (with or without condition on the use of the site).

If a statement by an environmental auditor is provided rather than a certificate of environment audit and the statement indicates that the environment conditions of the relevant land are suitable for a sensitive use subject to conditions, the owner of the land must enter into an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987* before any building on the relevant land is occupied to provide for:

- Ongoing compliance with all conditions in the State by the Environmental Auditor; and
- The responsible authority's reasonable legal costs and expenses of drafting/reviewing and registering the agreement.

## 5.0 Exemption from notice and review

02/12/2022
C259case

An application to use land for a convenience shop or office, on land where the applied zone is General Residential Zone, is not exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 6.0 Decision guidelines

02/12/2022
C259case

None specified.

## 7.0 Signs

02/12/2022
C259case

Land is in the category specified in the applied zone. If there is no applied zone the land is in Category 3.

A permit may be granted for a business identification sign of no more 2 square metres on land where the applied zone is General Residential Zone provided:

- The application for a permit is lodged concurrently with an application for buildings and works for an office on the same land.
- The sign is not illuminated
- No fittings or wiring are visible from adjacent streets or properties.

### Land and home sales signs

Despite the provisions of Clause 52.05, signs promoting the sale of land or homes on the land (or on adjoining land in the same ownership) may be displayed without a permit provided:

- The display area for each sign does not exceed 10 square metres.
- Only one sign is displayed per road frontage. Where the property has a road frontage of more than 150 metres multiple signs may be erected provided there is a minimum of 150 metres distance between each sign, with a total of not more than 4 signs per frontage.
- The sign is not animated, scrolling, electronic or internally illuminated sign.
- The sign is not displayed longer than 21 days after the sale (not settlement) of the last lot.
- The sign is setback a minimum of 750 millimetres from the property boundary.

A permit may be granted to display a sign promoting the sale of land or homes on the land (or on adjoining land in the same ownership) with an area greater than 10 square metres.

02/12/2022
C259case

# SCHEDULE 6 TO CLAUSE 37.07 URBAN GROWTH ZONE

Shown on the planning scheme map as **UGZ6**.

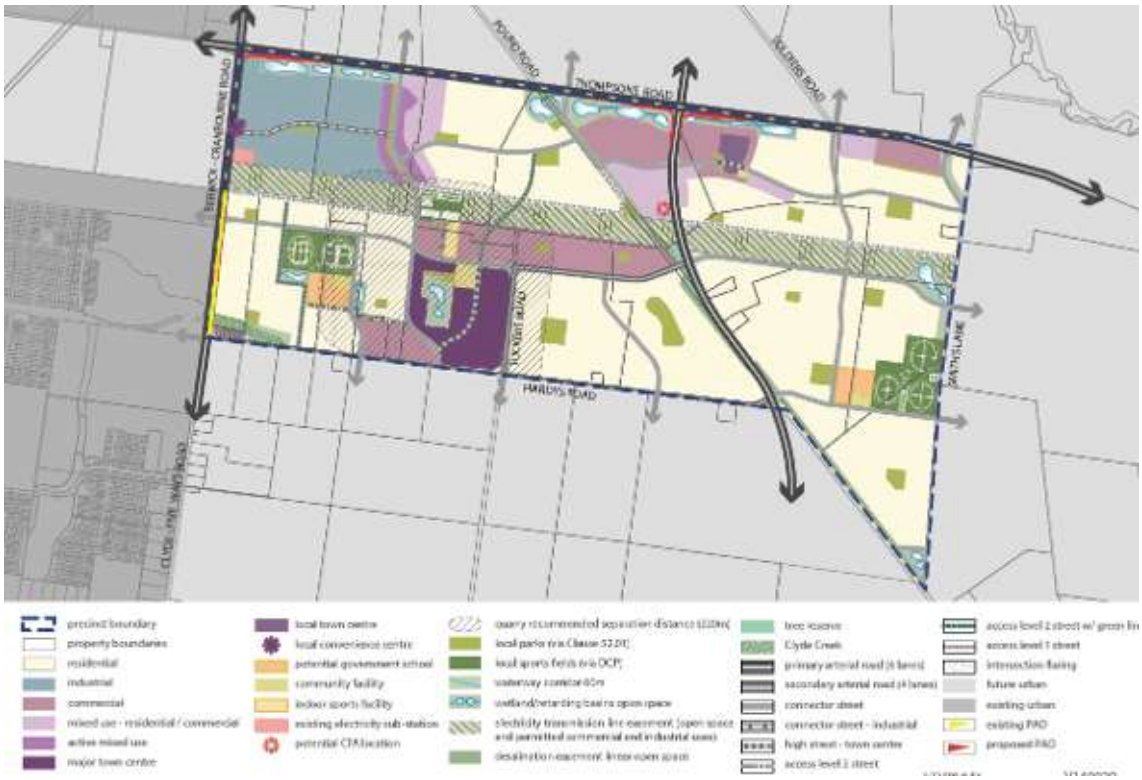
## THOMPSONS ROAD PRECINCT STRUCTURE PLAN

## 1.0 The Plan

02/12/2022
C259case

Plan 1 shows the future urban structure proposed in the *Thompsons Road Precinct Structure Plan*. It is a reproduction of Plan 2 in the *Thompsons Road Precinct Structure Plan*.

### Plan 1 to Schedule 6 to Clause 37.07




## 2.0 Use and development

02/12/2022
C259case

## 2.1 The Land

02/12/2022
C259case

The use and development provisions specified in this schedule apply to the land within the 'precinct boundary' on Plan 1 and shown as UGZ6 on the planning scheme maps.

## 2.2 Applied zone provisions

02/12/2022
C259case

The provisions of the following zones in this scheme apply to the use and subdivision of land, construction of a building, and construction and carrying out of works, by reference to Plan 1 of this schedule.

### Table 1: Applied zone provisions

| Land use/development (carried out or proposed) generally in accordance with the precinct structure plan applying to the land | Applied zone provisions |
|---|---|
| **Major town centre**<br>**Local town centre**<br>**Convenience centre** | Clause 34.01 – Commercial 1 Zone |

| | |
|---|---|
| **Commercial area**<br>**Active mixed use** | Clause 34.02 – Commercial 2 Zone |
| **Industrial area** | Clause 33.01 – Industrial 1 Zone |
| **Mixed use – residential/commercial** | Clause 32.04 – Mixed Use Zone |
| **Arterial Road** | Clause 36.04 – Transport Zone 2 |
| **Connector Street** | Clause 36.04 – Transport Zone 3 |
| **All other land** | Clause 32.07 – Residential Growth Zone 1 |

### 2.3 Reference to a planning scheme zone is a reference to an applied zone

A reference to a planning scheme zone in an applied zone must be read as if it were a reference to an applied zone under this schedule.

*Note: e.g. The General Residential Zone specifies 'Car wash' as a Section 2 Use with the condition, 'The site must adjoin, or have access to, a road in a Transport Zone 2 or Transport Zone 3.' In this instance the condition should be read as, 'The site must adjoin, or have access to, a road in a Transport Zone 2 or Transport Zone 3 or an applied Transport Zone 2 or Transport Zone 3 in the Urban Growth Zone schedule applying to the land'.*

### 2.4 Specific provisions – Use and development of future public land

A permit is not required to use or develop land shown in the *Thompsons Road Precinct Structure Plan* as open space (active or passive) or community facilities provided the use or development is carried out generally in accordance with the *Thompsons Road Precinct Structure Plan* and with the prior written consent of City of Casey.

### 2.5 Specific provisions – Use of land

02/12/2022
C259case

**Table 2: Use**

| Use | Requirement |
|---|---|
| **Shop in the major town centre, town centre and convenience centre** | A permit is required to use land for a shop if the combined leasable floor area of all shops exceeds:<br>▪ 60,000 square metres for land shown as a major town centre in the incorporated *Thompsons Road Precinct Structure Plan*.<br>▪ 8,000 square metres for land shown as a local town centre in the incorporated *Thompsons Road Precinct Structure Plan*.<br>▪ 1,500 square metres for land shown as a convenience centre in the incorporated *Thompsons Road Precinct Structure Plan*. |
| **Hospital where the applied zone is Commercial 2 Zone** | A permit is not required to use land for a hospital if proposed on land described as 'Health Facilities Stage 2' on Plan 5 of the *Thompsons Road Precinct Structure Plan.* |
| **Accommodation (other than Corrective institution) where the applied zone is Commercial 2 Zone** | A permit may be granted to use land for accommodation if the land is located within the 'Active Mixed Use' land shown on Plan 2 of the *Thompsons Road Precinct Structure Plan* and any frontage at ground floor level does not exceed 2 metres (other than a bed and breakfast and caretaker's house). |

| Use | Requirement |
|---|---|
| **Office where the applied zone is Mixed Use Zone** | A permit is not required to use land for an office. |
| **Dwelling where the applied zone is Mixed Use Zone** | A permit is required to use land for a dwelling. |

## 2.6 Specific provisions - Subdivision

02/12/2022
C259case

None specified.

## 2.7 Specific provisions - Buildings and works

28/04/2026
VC232

### Construction of single dwellings on small lots

A permit is not required to construct or extend one dwelling on a lot of less than 300 square metres, if either of the following apply:

- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) incorporated into this planning scheme.
- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) incorporated into this planning scheme.

Or;

A permit is not required to construct one dwelling on a lot of between 250 and 300 square metres where an approved building envelope (as defined in Part 5 of the Building Regulations 2018) applies to the lot.

A permit is required to construct a front fence within 3 metres of a street unless the Front Fence Height Standard in Table A2 to Clause 54.06-2 is met.

## 2.8 Specific provisions – Referral of applications – Thompsons Road Major Town Centre

An application to subdivide land, or construct a building or carry out works (where the value of those works is in excess of $500,000) on land in the Thompsons Road Major Town Centre and within the local town centre must be referred in accordance with section 55 of the Act to the referral authority specified in clause 66.04 or a schedule to that clause.

## 2.9 Specific provisions – Referral of applications – Hardys Road Quarry

An application to develop land for a sensitive use within 220 metres of the property boundary of the land containing the Hardys Road Quarry, 415 Tuckers Road and 105 Hardys Road, Clyde North subject to Work Authority 190 (WA190) under the *Mineral Resources (Sustainable Development Act 1990)*, must be referred tin accordance with section 55 of the Act to the referral authority specified in clause 66.04 or a schedule to that clause. The referral authority may restrict or prevent development within 220 metres of the Work Authority 190 boundary whilst Work Authority is current.

## 3.0 Application requirements

02/12/2022
C259case

If in the opinion of the responsible authority an application requirement listed below is not relevant to the assessment of an application, the responsible authority may waive or reduce the requirement.

### 3.1 Subdivision - residential development

In addition to any requirement in 56.01-2, a subdivision design response must include:

- A land budget table in the same format and methodology as those within the Precinct Structure Plan applying to the land, setting out the amount of land allocated to the proposed uses and expected population and dwelling yields;
- A demonstration of how the property will contribute to the achievement of the residential density outcomes in the precinct structure plan applying to the land;
- A demonstration of lot size diversity by including a colour-coded lot size plan, reflecting the lot size categories and colours outlined in Table 2 – Lot Size and Housing Type Guide in the *Thompsons Road Precinct Structure Plan*; and
- A demonstration of how the subdivision will contribute to the delivery of a diversity of housing.

### 3.2 Public Infrastructure Plan

An application must be accompanied by a Public Infrastructure Plan which addresses the following:

- A stormwater management strategy that makes provision for the staging and timing of stormwater drainage works, including temporary outfall provisions, to the satisfaction of Melbourne Water;
- What land may be affected or required for the provision of infrastructure works;
- The provision, staging and timing of stormwater drainage works;
- The provision, staging and timing of road works internal and external to the land consistent with any relevant traffic report or assessment;
- The landscaping of any land;
- What if any infrastructure set out in the Clyde Development Contributions Plan is sought to be provided as "works in lieu" subject to the written consent of City of Casey;
- The provision of public open space and land for any community facilities; and
- Any other matter relevant to the provision of public infrastructure required by the responsible authority.

### 3.3 Traffic Impact Assessment

An application that proposes to create or change access to a primary or secondary arterial road must be accompanied by a Traffic Impact Assessment Report (TIAR). The TIAR, including functional layout plans and a feasibility / concept road safety audit, must be to the satisfaction of VicRoads or City of Casey, as required.

### 3.4 Environmental Site Assessment

An application to subdivide land, use or develop land for a sensitive use (residential use, child care centre, pre-school centre or primary school) must be accompanied by an environmental site assessment of the land by a suitably qualified environmental professional to the satisfaction of the responsible authority which takes account of 'Preliminary environmental contamination assessment - Clyde Creek & Thompsons Road, Clyde (PSP 53 & PSP 54)' (Beveridge Williams, January 2013) and provides information including:

- Further detailed assessment of potential contaminants on the relevant land;
- Clear advice on whether the environmental condition of the land is suitable for the proposed use/s and whether an environmental audit of all, or part, of the land is recommended having regard to the *Potentially Contaminated Land General Practice Note June 2005* (DSE);
- Further detailed assessment of surface and subsurface water conditions and geotechnical characteristics on the relevant land and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater conditions and geology on the development and the impact of the development on surface and subsurface water; and
- Recommended remediation actions for any potentially contaminated land.

### 3.5 Groundwater Assessment

An application to subdivide land, use or develop land must be accompanied by hydrogeological assessment of groundwater conditions on the site and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater conditions on the development and the impact of development on groundwater.

## 4.0 Conditions and requirements for permits

28/11/2024
GC206

**Condition – Subdivision permits that allow the creation of a lot less than 300 square metres**

A permit issued before 31 December 2026 to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan must be approved and endorsed by the responsible authority, that identifies the lots to which:

– type A or type B of the *Small Lot Housing Code* (Victorian Planning Authority, 2019) applies; or

– type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies

to the satisfaction of the responsible authority.

A permit issued on or after 31 December 2026, other than an amendment of a permit under section 72 of the Act issued before 31 December 2026, to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan that identifies the lots to which type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies must be approved and endorsed by the responsible authority, to the satisfaction of the responsible authority.

**For other applications refer to the Precinct Structure Plan applying to the land.**

## 5.0 Exemption from notice and review

02/12/2022
C259case

None specified.

## 6.0 Decision guidelines

02/12/2022
C259case

Before deciding on an application to use land for a shop on land shown as a town centre in the incorporated *Thompsons Road Precinct Structure Plan* the responsible authority must consider:

- The local catchment and PSP catchment demand for the proposed increase of retail floor area; and
- The affect on existing and future major town centres within Clyde and Clyde North.

## 7.0 Signs

02/12/2022
C259case

The sign category for the land is the category specified in the zone applied zone to the land at Clause 2.2 of this schedule.

### 7.1 Land and home sales signs

Despite the provisions of Clause 52.05, signs promoting the sale of land or homes on the land (or on adjoining land in the same ownership) may be displayed without a permit provided:

- The display area for each sign does not exceed 10 square metres;
- Only one sign is displayed per road frontage. Where the property has a road frontage of more than 150 metres multiple signs may be erected provided there is a minimum of 150 metres distance between each sign, with a total of not more than 4 signs per frontage;
- The sign is not animated, scrolling, electronic or internally illuminated sign;
- The sign is not displayed longer than 21 days after the sale (not settlement) of the last lot; and
- The sign is setback a minimum of 750 millimetres from the property boundary.

A permit may be granted to display a sign promoting the sale of land or homes on the land (or on adjoining land in the same ownership) with an area greater than 10 square metres.

02/12/2022
C259case

# SCHEDULE 7 TO CLAUSE 37.07 URBAN GROWTH ZONE

Shown on the planning scheme map as **UGZ7**.

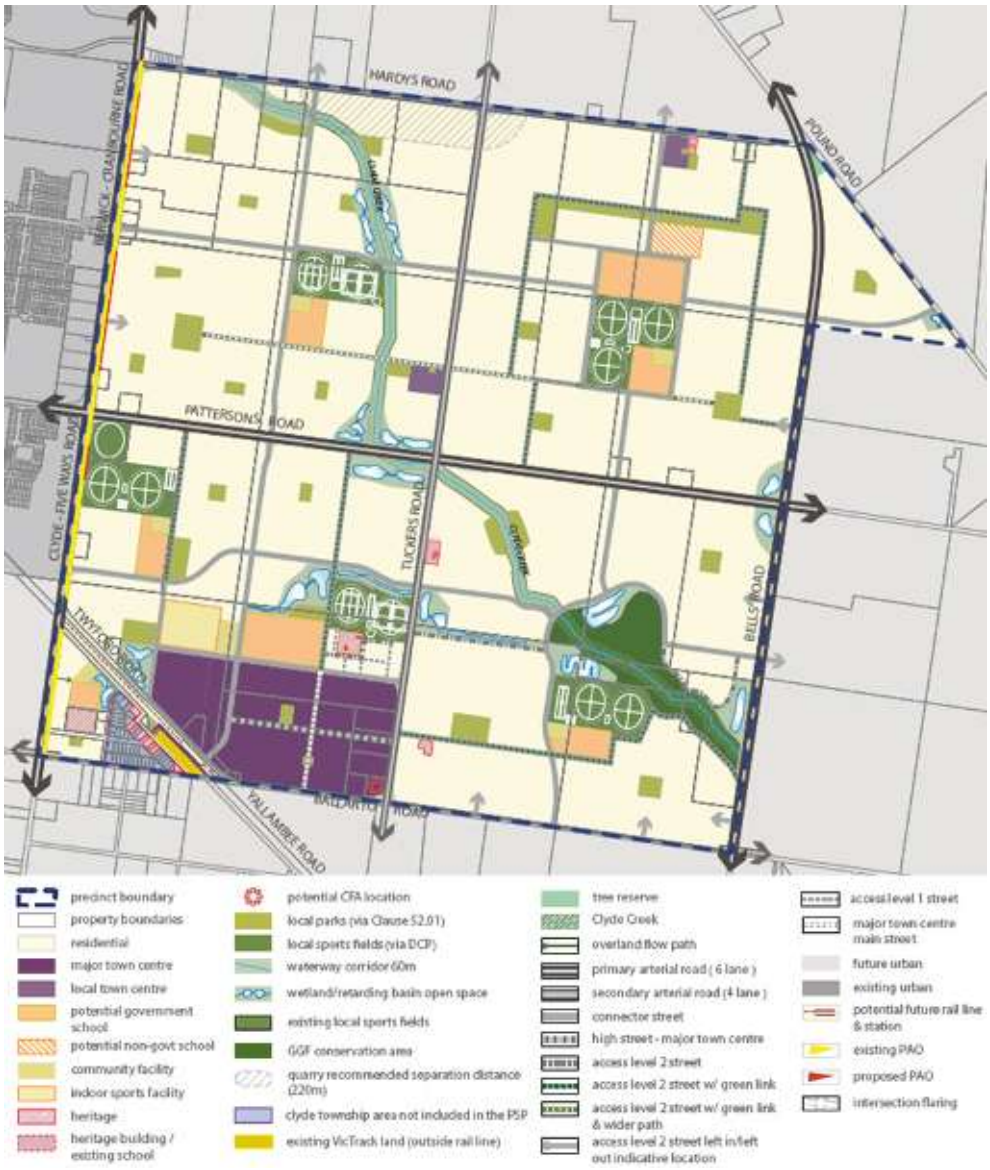
## CLYDE CREEK PRECINCT STRUCTURE PLAN

## 1.0 The Plan

02/12/2022
C259case

Plan 1 shows the future urban structure proposed in the *Clyde Creek Precinct Structure Plan*. It is a reproduction of Plan 2 in the *Clyde Creek Precinct Structure Plan*.

### Plan 1 to Schedule 7 to Clause 37.07




## 2.0 Use and development

02/12/2022
C259case

## 2.1 The Land

02/12/2022
C259case

The use and development provisions specified in this schedule apply to the land within the 'precinct boundary' on Plan 1 and shown as UGZ7 on the planning scheme maps.

## 2.2 Applied zone provisions

02/12/2022
C259case

The provisions of the following zones in this scheme apply to the use and subdivision of land, construction of a building, and construction and carrying out of works, by reference to Plan 1 of this schedule.

**Table 1: Applied zone provisions**

| Land use or development (carried out or proposed) generally in accordance with the precinct structure plan applying to the land | Applied zone provisions |
|---|---|
| **Major Town Centre**<br>**Local Town Centre**<br>**Convenience Centre** | Clause 34.01 – Commercial 1 Zone |
| **Arterial Road** | Clause 36.04 – Transport Zone 2 |
| **Connector Street** | Clause 36.04 – Transport Zone 3 |
| **All other land** | Clause 32.07 – Residential Growth Zone 1 |

### 2.3 Reference to a planning scheme zone is a reference to an applied zone

A reference to a planning scheme zone in an applied zone must be read as if it were a reference to an applied zone under this schedule.

*Note: e.g. The General Residential Zone specifies 'Car wash' as a Section 2 Use with the condition, 'The site must adjoin, or have access to, a road in a Transport Zone 2 or Transport Zone 3.' In this instance the condition should be read as, 'The site must adjoin, or have access to, a road in a Transport Zone 2 or Transport Zone 3 or an applied Transport Zone 2 or Transport Zone 3 in the Urban Growth Zone schedule applying to the land'.*

### 2.4 Specific provision – Use and development of future public land

A permit is not required to use or develop land shown in the *Clyde Creek Precinct Structure Plan* as open space (active or passive) or community facilities provided the use or development is carried out generally in accordance with the *Clyde Creek Precinct Structure Plan* and with the prior written consent of City of Casey.

## 2.5 Specific provisions – Use of land

02/12/2022
C259case

**Table 2: Use**

| Use | Requirement |
|---|---|
| **Shop where the applied zone is Commercial 1 Zone** | A permit is required to use land for a shop if the combined leasable floor area of all shops exceeds:<br>▪ 50,000 square metres for land shown as a major town centre in the incorporated *Clyde Creek Precinct Structure Plan*.<br>▪ 5,000 square metres for land shown as the Hardys Road local town centre in the incorporated *Clyde Creek Precinct Structure Plan*.<br>▪ 5,000 square metres for land shown as the Tuckers Road local town centre in the incorporated *Clyde Creek Precinct Structure Plan*. |

| Use | Requirement |
|---|---|
| **Primary School** | A permit is not required to use land for a Primary school on land shown as Potential Non Government Primary School. A permit is not required to use land for a Primary school on land shown as Potential Non Government Primary School. |

## 2.6 Specific provisions - Subdivision

02/12/2022
C259case

None specified.

## 2.7 Specific provisions - Buildings and works

28/04/2026
VC232

### Construction of single dwellings on small lots

A permit is not required to construct or extend one dwelling on a lot of less than 300 square metres, if either of the following apply:

- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) incorporated into this planning scheme.
- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) incorporated into this planning scheme.

Or;

A permit is not required to construct one dwelling on a lot of between 250 and 300 square metres where an approved building envelope (as defined in Part 5 of the Building Regulations 2018) applies to the lot.

A permit is required to construct a front fence within 3 metres of a street unless the Front Fence Height Standard in Table A2 to Clause 54.06-2 is met.

### Buildings and works for a school

A permit is required to construct a building or construct or carry out works associated with a Primary School or Secondary School on land shown as a non government school unless exempt under Clauses 62.02-1 and 62.02-2.

## 2.8 Specific provisions – Major Town Centre Urban Design Framework

Except with the consent of the responsible authority and the Victorian Planning Authority, a permit must not be granted to use or subdivide land, or construct a building and carry out works on land shown as the Clyde Major Town Centre until an urban design framework for the centre has been prepared to the satisfaction of the responsible authority and the Victorian Planning Authority.

An urban design framework approved under this schedule must be generally in accordance with the precinct structure plan applying to the land.

An application for use and/or development on land shown as the Clyde Major Town Centre must be consistent with any urban design framework approved under this schedule.

A permit may be granted to subdivide land or to construct a building or construct and carry out works prior to the approval of an urban design framework if, in the opinion of the Responsible Authority, the permit is consistent with the requirements for the urban design framework and the permit implements the objectives for the Major Town Centre as set out in the *Clyde Creek Precinct Structure Plan*.

The responsible authority may allow an urban design framework to be prepared in stages.

The Urban Design Framework may be amended to the satisfaction of the responsible authority and the Victorian Planning Authority.

### 2.9 Specific provision – Referral of applications – Clyde Major Town Centre

An application to subdivide land, or construct a building or carry out works (where the value of those works is in excess of $500,000) on land in the Clyde Major Town Centre and within the local town centres must be referred in accordance with section 55 of the Act to the referral authority specified in clause 66.04 or a schedule to that clause.

### 2.10 Specific provisions – Referral of applications – Hardys Road Quarry

An application to develop land for a sensitive use within 220 metres of the property boundary of the land containing the Hardys Road Quarry, 415 Tuckers Road and 105 Hardys Road, Clyde North subject to Work Authority 190 (WA190) under the *Mineral Resources (Sustainable Development Act 1990*), must be referred in accordance with section 55 of the Act to the referral authority specified in clause 66.04 or a schedule to that clause. The referral authority may restrict or prevent development within 220 metres of the Work Authority 190 boundary whilst Work Authority is current. The application must be referred to the Program Manager - Planning in the Earth Resources Regulation Branch at the Department of State Development, Business and Innovation.

## 3.0 Application requirements

02/12/2022
C259case

If in the opinion of the responsible authority an application requirement listed below is not relevant to the assessment of an application, the responsible authority may waive or reduce the requirement.

### 3.1 Subdivision - residential development

In addition to any requirement in 56.01-2, a subdivision design response must include:

- A land budget table in the same format and methodology as those within the precinct structure plan applying to the land, setting out the amount of land allocated to the proposed uses and expected population and dwelling yields;
- A demonstration of how the property will contribute to the achievement of the residential density outcomes in the Precinct Structure Plan applying to the land;
- A demonstration of lot size diversity by including a colour-coded lot size plan, reflecting the lot size categories and colours outlined in Table 2 – Lot Size and Housing Type Guide in the *Clyde Creek Precinct Structure Plan;* and
- A demonstration of how the subdivision will contribute to the delivery of a diversity of housing.

### 3.2 Public Infrastructure Plan

An application must be accompanied by a Public Infrastructure Plan which addresses the following:

- A stormwater management strategy that makes provision for the staging and timing of stormwater drainage works, including temporary outfall provisions, to the satisfaction of Melbourne Water;
- What land may be affected or required for the provision of infrastructure works;
- The provision, staging and timing of stormwater drainage works;
- The provision, staging and timing of road works internal and external to the land consistent with any relevant traffic report or assessment;

- The landscaping of any land;
- What if any infrastructure set out in the Clyde Development Contributions Plan is sought to be provided as "works in lieu" subject to the written consent of City of Casey;
- The provision of public open space and land for any community facilities; and
- Any other matter relevant to the provision of public infrastructure required by the responsible authority.

### 3.3 Traffic Impact Assessment

An application that proposes to create or change access to a primary or secondary arterial road must be accompanied by a Traffic Impact Assessment Report (TIAR). The TIAR, including functional layout plans and a feasibility / concept road safety audit, must be to the satisfaction of VicRoads or City of Casey, as required.

### 3.4 Environmental Site Assessment

An application to subdivide land, use or develop land for a sensitive use (residential use, child care centre, pre-school centre or primary school) must be accompanied by an environmental site assessment of the land by a suitably qualified environmental professional to the satisfaction of the responsible authority which takes account of 'Preliminary environmental contamination assessment - Clyde Creek & Thompsons Road, Clyde (PSP 53 & PSP 54)' (Beveridge Williams, January 2013) and provides information including:

- Further detailed assessment of potential contaminants on the relevant land;
- Clear advice on whether the environmental condition of the land is suitable for the proposed use/s and whether an environmental audit of all, or part, of the land is recommended having regard to the *Potentially Contaminated Land General Practice Note June 2005* (DSE);
- Further detailed assessment of surface and subsurface water conditions and geotechnical characteristics on the relevant land and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater conditions and geology on the development and the impact of the development on surface and subsurface water; and
- Recommended remediation actions for any potentially contaminated land.

### 3.5 Groundwater Assessment

An application to subdivide land, use or develop land must be accompanied by hydrogeological assessment of groundwater conditions on the site and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater conditions on the development and the impact of development on groundwater.

## 4.0 Conditions and requirements for permits

28/11/2024
GC206

**Condition – Subdivision permits that allow the creation of a lot less than 300 square metres**

A permit issued before 31 December 2026 to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan must be approved and endorsed by the responsible authority, that identifies the lots to which:

– type A or type B of the *Small Lot Housing Code* (Victorian Planning Authority, 2019) applies; or

– type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies

to the satisfaction of the responsible authority.

A permit issued on or after 31 December 2026, other than an amendment of a permit under section 72 of the Act issued before 31 December 2026, to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan that identifies the lots to which type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies must be approved and endorsed by the responsible authority, to the satisfaction of the responsible authority.

For other applications refer to the Precinct Structure Plan applying to the land.

## 5.0 Exemption from notice and review

02/12/2022
C259case

None specified.

## 6.0 Decision guidelines

02/12/2022
C259case

Before deciding on an application to use land for a shop on land shown as a town centre in the incorporated *Clyde Creek Precinct Structure Plan* the responsible authority must consider:

- The local catchment and PSP catchment demand for the proposed increase of retail floor area; and
- The affect on existing and future major town centres within Clyde and Clyde North.

## 7.0 Signs

02/12/2022
C259case

The sign category for the land is the category specified in the zone applied zone to the land at Clause 2.2 of this schedule.

### 7.1 Land and home sales signs

Despite the provisions of Clause 52.05, signs promoting the sale of land or homes on the land (or on adjoining land in the same ownership) may be displayed without a permit provided:

- The display area for each sign does not exceed 10 square metres;
- Only one sign is displayed per road frontage. Where the property has a road frontage of more than 150 metres multiple signs may be erected provided there is a minimum of 150 metres distance between each sign, with a total of not more than 4 signs per frontage;
- The sign is not animated, scrolling, electronic or internally illuminated sign;
- The sign is not displayed longer than 21 days after the sale (not settlement) of the last lot; and
- The sign is setback a minimum of 750 millimetres from the property boundary.

A permit may be granted to display a sign promoting the sale of land or homes on the land (or on adjoining land in the same ownership) with an area greater than 10 square metres.

02/12/2022
C259case

# SCHEDULE 8 TO CLAUSE 37.07 URBAN GROWTH ZONE

Shown on the planning scheme map as **UGZ8**.

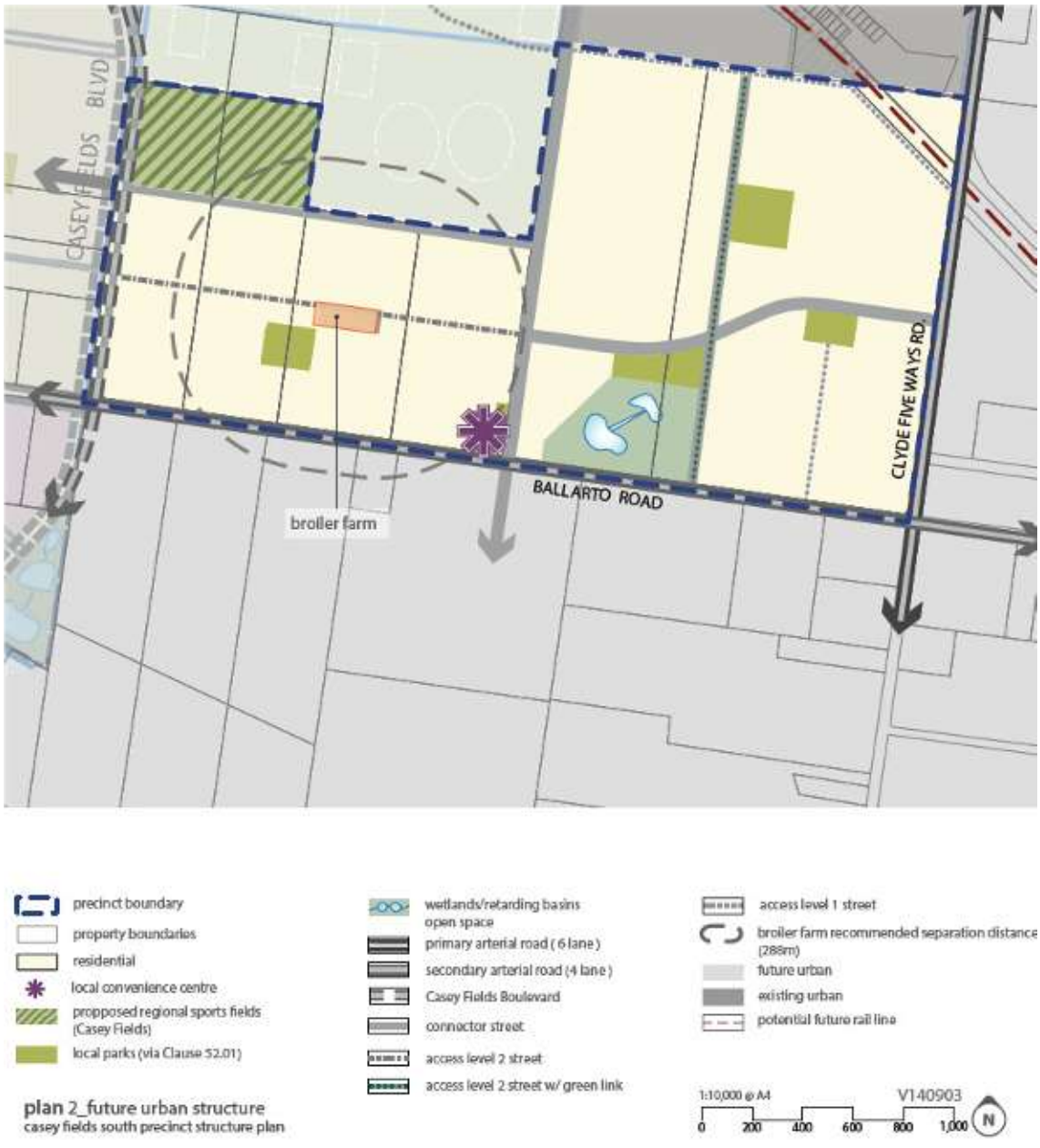
## CASEY FIELDS SOUTH RESIDENTIAL PRECINCT STRUCTURE PLAN

## 1.0 The Plan

02/12/2022
C259case

Plan 1 shows the future urban structure proposed in the *Casey Fields South Residential Precinct Structure Plan*. It is a reproduction of Plan 2 in the *Casey Fields South Residential Precinct Structure Plan*.

**Plan 1 to Schedule 8 to Clause 37.07**




plan 2_future urban structure
casey fields south precinct structure plan

## 2.0 Use and development

02/12/2022
C259case

## 2.1 The Land

02/12/2022
C259case

The use and development provisions specified in this schedule apply to the land within 'precinct boundary' on Plan 1 and shown as UGZ8 on the planning scheme maps.

## 2.2 Applied zone provisions

02/12/2022
C259case

The provisions of the following zones in this scheme apply to the use and subdivision of land, construction of a building, and construction and carrying out of works, by reference to Plan 1 of this schedule.

**Table 1: Applied zone provisions**

| Land use or development (carried out or proposed) generally in accordance with the precinct structure plan applying to the land (Refer Plan 1) | Applied zone provisions |
|---|---|
| **Convenience centre** | Clause 34.01 – Commercial 1 Zone |
| **Arterial Road** | Clause 36.04 – Transport Zone 2 |
| **Connector road** | Clause 36.04 – Transport Zone 3 |
| **All other land** | Clause 32.07 – Residential Growth Zone 1 |

### 2.3 Reference to a planning scheme zone is a reference to an applied zone

A reference to a planning scheme zone in an applied zone must be read as if it were a reference to an applied zone under this schedule.

*Note: e.g. The General Residential Zone specifies 'Car wash' as a Section 2 Use with the condition, 'The site must adjoin, or have access to, a road in a Transport Zone 2 or Transport Zone 3.' In this instance the condition should be read as, 'The site must adjoin, or have access to, a road in a Transport Zone 2 or Transport Zone 3 or an applied Transport Zone 2 or Transport Zone 3 in the Urban Growth Zone schedule applying to the land'.*

### 2.4 Specific provisions – Use and development of future public land

A permit is not required to use or develop land shown in the *Casey Fields South Residential Precinct Structure Plan* as open space (active or passive) or community facilities provided the use or development is carried out generally in accordance with the *Casey Fields South Residential Precinct Structure Plan* and with the prior written consent of City of Casey.

## 2.5 Specific provisions – Use of land

02/12/2022
C259case

None specified.

## 2.6 Specific provisions - Subdivision

02/12/2022
C259case

None specified.

## 2.7 Specific provisions - Buildings and works

28/11/2024
GC206

**Construction of single dwellings on small lots**

A permit is not required to construct or extend one dwelling on a lot of less than 300 square metres, if either of the following apply:

- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) incorporated into this planning scheme.
- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies and the

development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) incorporated into this planning scheme.

Or;

A permit is not required to construct one dwelling on a lot of between 250 and 300 square metres where an approved building envelope (as defined in Part 5 of the Building Regulations 2018) applies to the lot.

A permit is required to construct a front fence within 3 metres of a street unless the Front Fence Height Standard in Table A2 to Clause 54.06-2 is met.

### 2.8 Land adjacent to Broiler Farm, 1385 Ballarto Road, Cranbourne East

An application to use or develop land for a sensitive use within 288 metres of the broiler farm at 1385 Ballarto Road, Cranbourne East must be accompanied by a risk assessment prepared by a suitably experienced and qualified person. The risk assessment must acknowledge the existing broiler farm operations and assess the adverse amenity impacts of the broiler facility on the future use or development of the land for a sensitive use within the buffer designated in the *Casey Fields South Residential Precinct Structure Plan*.

## 3.0 Application requirements

02/12/2022
C259case

If in the opinion of the responsible authority an application requirement listed below is not relevant to the assessment of an application, the responsible authority may waive or reduce the requirement.

### 3.1 Subdivision - residential development

In addition to any requirement in 56.01-2, a subdivision design response must include:

- A land budget table in the same format and methodology as those within the precinct structure plan applying to the land, setting out the amount of land allocated to the proposed uses and expected population and dwelling yields;
- A demonstration of how the property will contribute to the achievement of the residential density outcomes in the Precinct Structure Plan applying to the land;
- A demonstration of lot size diversity by including a colour-coded lot size plan, reflecting the lot size categories and colours outlined in Table 2 – Lot Size and Housing Type Guide in the *Casey Fields South Residential Precinct Structure Plan*; and
- A demonstration of how the subdivision will contribute to the delivery of a diversity of housing.

### 3.2 Public Infrastructure Plan

An application must be accompanied by a Public Infrastructure Plan which addresses the following:

- A stormwater management strategy that makes provision for the staging and timing of stormwater drainage works, including temporary outfall provisions, to the satisfaction of Melbourne Water;
- What land may be affected or required for the provision of infrastructure works;
- The provision, staging and timing of stormwater drainage works;
- The provision, staging and timing of road works internal and external to the land consistent with any relevant traffic report or assessment;
- The landscaping of any land;
- What if any infrastructure set out in the *Clyde Development Contributions Plan* is sought to be provided as "works in lieu" subject to the written consent of City of Casey;

- The provision of public open space and land for any community facilities; and
- Any other matter relevant to the provision of public infrastructure required by the responsible authority.

### 3.3 Traffic Impact Assessment

An application that proposes to create or change access to a primary or secondary arterial road must be accompanied by a Traffic Impact Assessment Report (TIAR). The TIAR, including functional layout plans and a feasibility / concept road safety audit, must be to the satisfaction of VicRoads or City of Casey, as required.

### 3.4 Environmental Site Assessment

An application to subdivide land, use or develop land for a sensitive use (residential use, child care centre, pre-school centre or primary school) must be accompanied by an environmental site assessment of the land by a suitably qualified environmental professional to the satisfaction of the responsible authority which takes account of 'Preliminary environmental contamination assessment – 1345 – 1425 Ballarto Road and 365 – 385 Clyde-Five Ways Road, Clyde' (Beveridge Williams, October 2012) and provides information including:

- Further detailed assessment of potential contaminants on the relevant land;
- Clear advice on whether the environmental condition of the land is suitable for the proposed use/s and whether an environmental audit of all, or part, of the land is recommended having regard to the *Potentially Contaminated Land General Practice Note June 2005* (DSE);
- Further detailed assessment of surface and subsurface water conditions and geotechnical characteristics on the relevant land and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater conditions and geology on the development and the impact of the development on surface and subsurface water; and
- Recommended remediation actions for any potentially contaminated land.

### 3.5 Groundwater Assessment

An application to subdivide land, use or develop land must be accompanied by hydrogeological assessment of groundwater conditions on the site and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater conditions on the development and the impact of development on groundwater.

## 4.0 Conditions and requirements for permits

28/11/2024
GC206

**Condition – Subdivision permits that allow the creation of a lot less than 300 square metres**

A permit issued before 31 December 2026 to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan must be approved and endorsed by the responsible authority, that identifies the lots to which:

– type A or type B of the *Small Lot Housing Code* (Victorian Planning Authority, 2019) applies; or

– type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies

to the satisfaction of the responsible authority.

A permit issued on or after 31 December 2026, other than an amendment of a permit under section 72 of the Act issued before 31 December 2026, to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan that identifies the lots to which type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies must be approved and endorsed by the responsible authority, to the satisfaction of the responsible authority.

For other applications refer to the Precinct Structure Plan applying to the land.

## 5.0 Exemption from notice and review

02/12/2022
C259case

In accordance with section 52(1)(c) of the Act notice of application to use or develop land for a sensitive use within 288 metres of the broiler farm at 1385 Ballarto Road, Cranbourne East must be given to the owner/operator of the broiler farm at 1385 Ballarto Road, Cranbourne East.

## 6.0 Decision guidelines

02/12/2022
C259case

None specified.

## 7.0 Signs

02/12/2022
C259case

The sign category for the land is the category specified in the zone applied zone to the land at Clause 2.2 of this schedule.

### 7.1 Land and home sales signs

Despite the provisions of Clause 52.05, signs promoting the sale of land or homes on the land (or on adjoining land in the same ownership) may be displayed without a permit provided:

- The display area for each sign does not exceed 10 square metres;
- Only one sign is displayed per road frontage. Where the property has a road frontage of more than 150 metres multiple signs may be erected provided there is a minimum of 150 metres distance between each sign, with a total of not more than 4 signs per frontage;
- The sign is not animated, scrolling, electronic or internally illuminated sign;
- The sign is not displayed longer than 21 days after the sale (not settlement) of the last lot; and
- The sign is setback a minimum of 750 millimetres from the property boundary.

A permit may be granted to display a sign promoting the sale of land or homes on the land (or on adjoining land in the same ownership) with an area greater than 10 square metres.

02/12/2022
C259case

# SCHEDULE 9 TO CLAUSE 37.07 URBAN GROWTH ZONE

Shown on the planning scheme map as **UGZ9**.

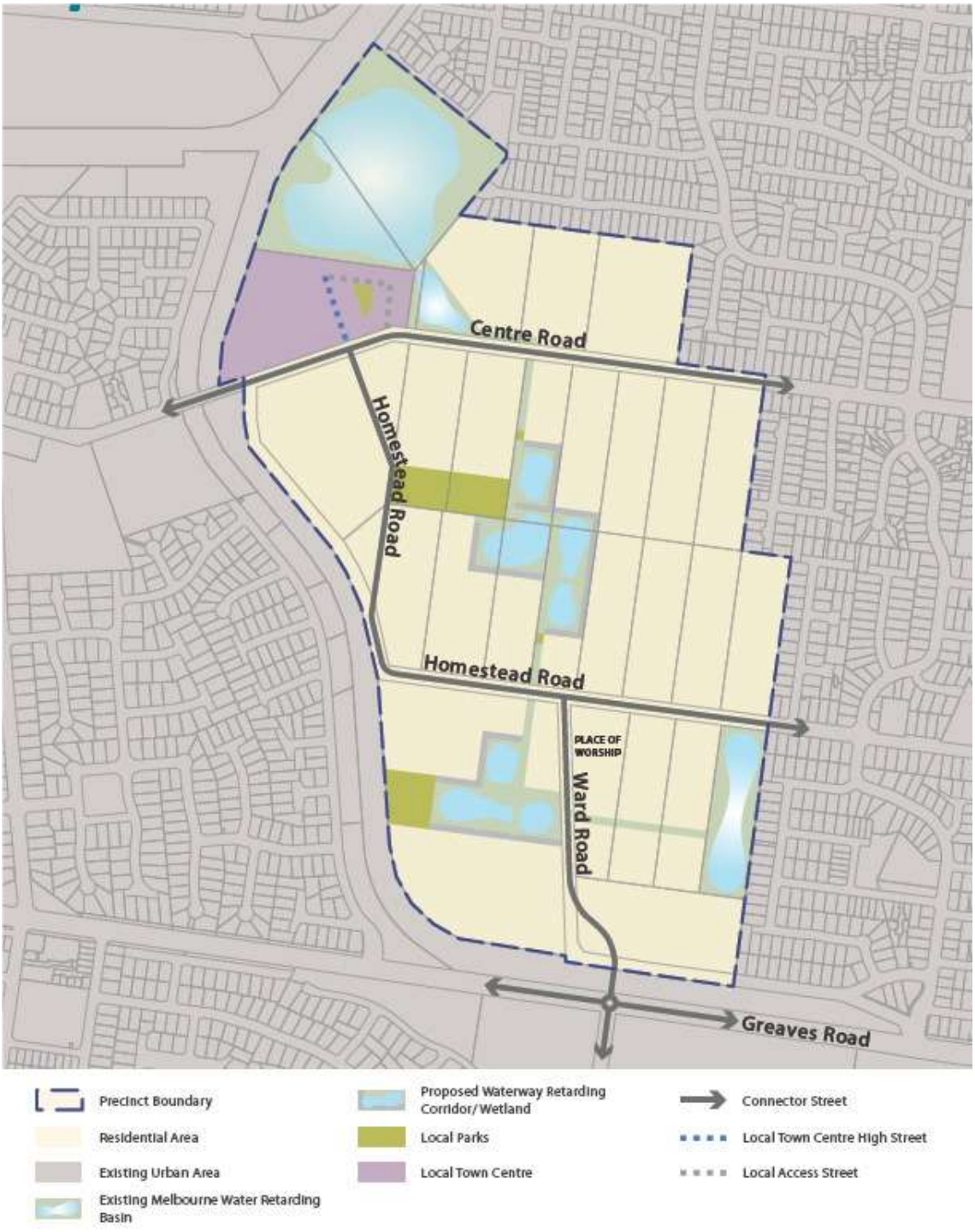
## BERWICK WATERWAYS PRECINCT STRUCTURE PLAN

## 1.0 The Plan

02/12/2022
C259case

Plan 1 to Schedule 9 to Clause 37.07 shows the Future Urban Structure for Berwick Waterways. It is a reproduction of Plan 2 in the *Berwick Waterways Precinct Structure Plan*.

### Plan 1 to Schedule 9 to Clause 37.07



## 2.0 Use and development

02/12/2022
C259case

### 2.1 The Land

02/12/2022
C259case

The use and development provisions specified in this schedule apply to the land shown as 'Precinct Structure Plan Area' in Plan 1 of this schedule and shown as UGZ9 on the planning scheme maps.

*Note: If land shown on Plan 1 is not zoned UGZ, the provisions of this zone do not apply.*

### 2.2 Applied zone provisions

02/12/2022
C259case

The provisions of the following zones in this scheme apply to the use and subdivision of land, construction of a building, and construction and carrying out of works, by reference to Plan 1 of this schedule.

**Table 1: Applied zone provisions**

| Land use or development (carried out or proposed) generally in accordance with the precinct structure plan applying to the land | Applied zone provisions |
|---|---|
| **Local town centre** | Clause 34.01 – Commercial 1 Zone |
| **Greaves Road** | Clause 36.04 – Transport Zone 2 |
| **Centre Road**<br>**Connector Street** | Clause 36.04 – Transport Zone 3 |
| **All other land** | Clause 32.07s1 – Residential Growth Zone 1 |

### 2.3 Reference to a planning scheme zone is a reference to an applied zone

A reference to a planning scheme zone in an applied zone must be read as if it were a reference to an applied zone under this schedule.

*Note: e.g. The Residential Growth Zone specifies 'Car wash' as a Section 2 Use with the condition, 'The site must adjoin, or have access to, a road in a Transport Zone 2 or Transport Zone 3.' In this instance the condition should be read as, 'The site must adjoin, or have access to, a road in an applied Transport Zone 2 or Transport Zone 3 or an applied Transport Zone 2 or Transport Zone 3 in the Urban Growth Zone schedule applying to the land'.*

### 2.4 Specific provisions – Use and development of future public land

A permit is not required to use or develop land shown in the *Berwick Waterways Precinct Structure Plan* for a local park provided the use or development is carried out generally in accordance with the *Berwick Waterways Precinct Structure Plan* and with the prior written consent of the responsible authority.

### 2.5 Specific provisions – Use of land

02/12/2022
C259case

None specified.

### 2.6 Specific provisions - Subdivision

02/12/2022
C259case

None specified.

## 2.7 Specific provisions - Buildings and works

28/11/2024
GC206

### Construction of single dwellings on small lots

A permit is not required to construct one dwelling on a lot of between 250 square metres and 300 square metres where an approved building envelope (as defined in Part 5 of the Building Regulations 2018) applies to the lot.

A permit is not required to construct a front fence within 3 metres of a street on a lot of between 250 and 300 square metres provided that the Front Fence Height Standard in Table A2 to Clause 54.06-2 is met.

Or

A permit is not required to construct or extend one dwelling on a lot of less than 300 square metres, if either of the following apply:

- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) incorporated into this planning scheme.
- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) incorporated into this planning scheme.

## 3.0 Application requirements

02/12/2022
C259case

### 3.1 Residential subdivision

#### Land budget, housing, diversity and density

In addition to any requirement in 56.01-2, a subdivision design response must include:

- A land budget table in the same format and methodology as those within the precinct structure plan applying to the land, setting out the amount of land allocated to the proposed uses and expected population and dwelling yields.
- A demonstration of how the property will contribute to the achievement of the residential density outcomes in the precinct structure plan applying to the land.
- A demonstration of lot size diversity by including a colour-coded lot size plan, reflecting the lot size categories and colours outlined in Table 2.

#### Flood mitigation plan & Integrated water cycle management plans

An application to develop land must be accompanied by a flood mitigation plan showing:

- The location and form of flood storage capacity required in association with the proposed development of the whole of the land in the *Berwick Waterways Precinct Structure Plan* area and how the proposed development facilitates or is consistent with achieving the required form of flood storage capacity;
- Flood storage capacity provided downstream of the development, free draining and capable of emptying within a timeframe sufficient to provide capacity for likely flood events;
- A proposed outfall for flood and storm waters;
- How flood waters are to be conveyed to the outfall;

- How the plan implements the flood mitigation provisions in the *Berwick Waterways Precinct Structure Plan*;
- Evidence of how land required to accommodate retarding basins, waterways and related infrastructure is to be secured and transferred to Melbourne Water concurrent with development of the land.

Subdivision applications must be accompanied by an integrated water management plan showing:

- Proposed integrated water cycle management system;
- Waterways and integrated water management design enables land to be used for multiple recreation and environmental purposes;
- Overland flow paths, piping within road reserves and how these will be connected and integrated across property / parcel boundaries;
- Containment of water in road reserves to Melbourne Water freeboard requirements for overland flow paths.

These requirements may be combined into a single plan.

**Public infrastructure plan**

An application for subdivision must be accompanied by a Public Infrastructure Plan which addresses the following unless otherwise agreed by the responsible authority:

- A stormwater management strategy that makes provision for the staging and timing of stormwater drainage works, including temporary outfall provisions, to the satisfaction of Melbourne Water.
- What land may be affected or required for the provision of infrastructure works
- The provision, staging and timing of road works internal and external to the land consistent with any relevant traffic report or assessment
- The landscaping of any land
- The provision of public open space and land for any community facilities
- What, if any, infrastructure set out in the development contributions plan applying to the land is sought to be provided as "works in lieu" subject to the consent of the collecting agency
- Any other matter relevant to the provision of public infrastructure required by the responsible authority.

**Assessment of traffic impacts of new intersection**

An application that proposes to create or change access to Centre Road or Greaves Road must be accompanied by a Traffic Impact Assessment Report (TIAR). The TIAR, including functional layout plans and a feasibility / concept road safety audit, must be to the satisfaction of VicRoads in the case of Greaves Road or Casey City Council in the case of Centre Road unless otherwise agreed by the responsible authority and the relevant road manager.

**Potentially contaminated land**

An application to use or develop land must be accompanied by an environmental site assessment of the land by a suitably qualified environmental professional to the satisfaction of the responsible authority which provides information including:

- Takes account of the report *Geotechnical and Preliminary Environmental Contamination Assessment: Precinct Structure Plan No. 09 Berwick Waterways* by Aecom, 28 January 2011.
- Further detailed assessment of potential contaminants on the relevant land.
- Clear advice on whether the environmental condition of the land is suitable for the proposed use/s and whether an environmental audit of all, or part, of the land is recommended having regard to the Potentially Contaminated Land General Practice Note June 2005 (DSE).

- Further detailed assessment of surface and subsurface water conditions and geotechnical characteristics on the relevant land and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater conditions and geology on the development and the impact of the development on surface and subsurface water.
- Recommended remediation actions for any potentially contaminated land.

## 4.0 Conditions and requirements for permits

28/11/2024
GC206

### Condition – Subdivision permits that allow the creation of a lot less than 300 square metres

A permit issued before 31 December 2026 to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan must be approved and endorsed by the responsible authority, that identifies the lots to which:

– type A or type B of the *Small Lot Housing Code* (Victorian Planning Authority, 2019) applies; or

– type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies

to the satisfaction of the responsible authority.

A permit issued on or after 31 December 2026, other than an amendment of a permit under section 72 of the Act issued before 31 December 2026, to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan that identifies the lots to which type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies must be approved and endorsed by the responsible authority, to the satisfaction of the responsible authority.

For other applications see the precinct structure plan applying to the land.

## 5.0 Exemption from notice and review

02/12/2022
C259case

None specified.

## 6.0 Decision guidelines

02/12/2022
C259case

None specified.

## 7.0 Signs

02/12/2022
C259case

The sign category for the land is the category specified in the zone applied zone to the land at Clause 2.2 of this schedule.

### 7.1 Land and home sales signs

Despite the provisions of Clause 52.05, signs promoting the sale of land or homes on the land (or on adjoining land in the same ownership) may be displayed without a permit provided:

- The display area for each sign does not exceed 10 square metres.
- Only one sign is displayed per road frontage. Where the property has a road frontage of more than 150 metres multiple signs may be erected provided there is a minimum of 150 metres distance between each sign, with a total of not more than 4 signs per frontage.
- The sign is not animated, scrolling, electronic or internally illuminated sign.

- The sign is not displayed longer than 21 days after the sale (not settlement) of the last lot.
- The sign is setback a minimum of 750 millimetres from the property boundary.

A permit may be granted to display a sign promoting the sale of land or homes on the land (or on adjoining land in the same ownership) with an area greater than 10 square metres.

02/12/2022
C259case

## SCHEDULE 10 TO CLAUSE 37.07 URBAN GROWTH ZONE

Shown on the planning scheme map as **UGZ10**.

### CASEY CENTRAL TOWN CENTRE PRECINCT STRUCTURE PLAN

## 1.0 The Plan

02/12/2022
C259case

Plan 1 to Schedule 10 to Clause 37.07 shows the Future Urban Structure for Casey Central Town Centre. It is a reproduction of Plan 3 in the *Casey Central Town Centre Precinct Structure Plan*.

**Plan 1 to Schedule 10 to Clause 37.07**




## 2.0 Use and development

02/12/2022
C259case

### 2.1 The Land

02/12/2022
C259case

The use and development provisions specified in this schedule apply to the land shown as 'Precinct Structure Plan Area' in Plan 1 of this schedule and shown as UGZ10 on the planning scheme maps.

*Note: If land shown on Plan 1 is not zoned UGZ, the provisions of this zone do not apply.*

## 2.2 Applied zone provisions

02/12/2022
C259case

The provisions of the following zones in this scheme apply to the use and subdivision of land, construction of a building, and construction and carrying out of works, by reference to Plan 1 of this schedule.

**Table 1: Applied zone provisions**

| Land use or development (carried out or proposed) generally in accordance with the precinct structure plan applying to the land | Applied zone provisions |
|---|---|
| **Lifestyle retail**<br>**Transitional retail** | Clause 34.01 – Commercial 1 Zone |
| **Corporate centre** | Clause 34.02 – Commercial 2 Zone |
| **Glasscocks Road** | Clause 36.04 – Transport Zone 2 |
| **Mixed use** | Clause 32.04 – Mixed Use Zone |
| **Medium density residential** | Clause 32.08s1 – General Residential Zone 1 |
| **All other land** | Clause 32.07s1 – Residential Growth Zone 1 |

### 2.3 Reference to a planning scheme zone is a reference to an applied zone

A reference to a planning scheme zone in an applied zone must be read as if it were a reference to an applied zone under this schedule.

*Note: e.g. The Residential Growth Zone specifies 'Car wash' as a Section 2 Use with the condition, 'The site must adjoin, or have access to, a road in a Transport Zone 2 or Transport Zone 3.' In this instance the condition should be read as, 'The site must adjoin, or have access to, a road in an applied Transport Zone 2 or Transport Zone 3 or an applied Transport Zone 2 or Transport Zone 3 in the Urban Growth Zone schedule applying to the land'.*

### 2.4 Specific provisions – Use and development of future public land

A permit is not required to use or develop land shown in the *Casey Central Town Centre Precinct Structure Plan* as open space (other than open space within a gas easement) provided the use or development is carried out generally in accordance with the *Casey Central Town Centre Precinct Structure Plan* and with the prior written consent of the responsible authority.

## 2.5 Specific provisions – Use of land

02/12/2022
C259case

**Table 2: Use**

| Use | Condition |
|---|---|
| **Dwelling where the applied zone is**<br>**Mixed Use Zone** | A permit is required to use land for a dwelling. |
| **Office where the applied zone is**<br>**Mixed Use Zone** | A permit is not required to use land for an office. |

| Use | Condition |
|---|---|
| **Supermarket where the applied zone is Commercial 1 Zone** | A permit is required to use land for a supermarket if the combined leasable floor area of all supermarkets exceeds 1,500 square metres on land shown as 'transitional retail' and 'lifestyle retail' in the incorporated *Casey Central Precinct Structure Plan*. |
| **Corrective institution** | Prohibited within 55 metres of the gas easement. |
| **Child care centre** | |
| **Hospital** | |
| **Medical centre** | |
| **Residential aged care facility** | |
| **Retirement village** | |
| **Education centre** | |

## 2.6 Specific provisions - Subdivision

02/12/2022
C259case

None specified.

## 2.7 Specific provisions - Buildings and works

28/11/2024
GC206

### Construction of single dwellings on small lots

A permit is not required to construct or extend one dwelling on a lot of less than 300 square metres, if either of the following apply:

- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) incorporated into this planning scheme.
- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) incorporated into this planning scheme.

Or;

A permit is not required to construct one dwelling on a lot of between 250 and 300 square metres where an approved building envelope (as defined in Part 5 of the Building Regulations 2018) applies to the lot.

A permit is required to construct a front fence within 3 metres of a street unless the Front Fence Height Standard at Table A2 to Clause 54.06-2 is met.

## 2.8 Specific provisions – Construction management plan required whether or not a permit is required

Prior to the commencement of any works, including demolition, within the gas easement or within 55 metres of the gas easement as shown on Plan 1 of this schedule, a Construction Management Plan (CMP) must be submitted to and approved by the responsible authority. The plan must:

- Be endorsed by the owner/operator of the high pressure gas pipeline;
- Specify details of the construction methodology;

- Prohibit the use of rippers and horizontal directional drills within the easement or towards the easement unless otherwise agreed by the operator of the gas transmission pipeline;
- Prohibit vertical drilling within easement;
- Prohibit deep excavation within the gas easement, unless with prior agreement of the owner/operator of the high pressure gas pipeline;
- Prohibit heavy vehicles (over 8 tonne per axle) from accessing the gas easement other than by a fully constructed road, unless with prior agreement with the operator of the gas transmission pipeline;
- Require a concrete slab to be installed over the pipeline for the width of any road crossing; and
- Include any other relevant matter to the satisfaction of the responsible authority.

The construction management plan must be implemented to the satisfaction of the responsible authority.

The construction management plan may be amended to the satisfaction of the responsible authority.

### 2.9 Specific provisions – Referral of applications – Lifestyle and Transitional retail areas and Corporate Centre areas

An application to subdivide land, or construct a building or carry out works (where the value of those works is in excess of $500,000) on land in the Lifestyle and Transitional retail areas and Corporate Centre areas shown on Plan 1 of this schedule must be referred in accordance with section 55 of the *Planning and Environment Act 1987* to the Victorian Planning Authority.

## 3.0 Application requirements

02/12/2022
C259case

If in the opinion of the responsible authority an application requirement listed below is not relevant to the assessment of an application, the responsible authority may waive or reduce the requirement.

### 3.1 Subdivision - residential development

In addition to any requirement in 56.01-2, a subdivision design response must include:

- A land budget table in the same format and methodology as those within the precinct structure plan applying to the land, setting out the amount of land allocated to the proposed uses and expected population and dwelling yields;
- A demonstration of how the property will contribute to the achievement of the residential density outcomes in the precinct structure plan applying to the land;
- A demonstration of lot size diversity by including a colour-coded lot size plan, reflecting the lot size categories and colours outlined in Table 3 – Lot Size and Housing Type Guide in the *Casey Central Town Centre Precinct Structure Plan*; and
- A demonstration of how the subdivision will contribute to the delivery of a diversity of housing.

#### Public infrastructure plan

An application for subdivision must be accompanied by a Public Infrastructure Plan which addresses the following:

- A stormwater management strategy that makes provision for the staging and timing of stormwater drainage works, including temporary outfall provisions, to the satisfaction of Melbourne Water;
- What land may be affected or required for the provision of infrastructure works;
- The provision, staging and timing of road works internal and external to the land consistent with any relevant traffic report or assessment;

- The landscaping of any land;
- What, if any, infrastructure set out in the development contributions plan applying to the land is sought to be provided as "works in lieu" subject to the written consent of the collecting agency;
- The provision of public open space and land for any community facilities; and
- Any other matter relevant to the provision of public infrastructure required by the responsible authority.

### 3.2 Traffic Impact Assessment

An application that proposes to create or change access to Narre Warren - Cranbourne Road or Glasscocks Road must be accompanied by a Traffic Impact Assessment Report (TIAR). The TIAR, including functional layout plans and a feasibility / concept road safety audit, must be to the satisfaction of VicRoads in the case of Narre Warren - Cranbourne Road or City of Casey in the case of Glasscocks Road unless otherwise agreed by the responsible authority and the relevant road manager.

### 3.3 Environmental Wind Assessment

An application that proposes construction of a building in excess of 40 metres in height must be accompanied by a desktop environmental wind assessment by a suitably qualified wind engineer to ensure appropriate ground level wind conditions are achieved. The assessment must be to the satisfaction of the responsible authority.

### 3.4 Environmental Site Assessment

- An application to subdivide land or to use or develop land for a sensitive use (residential use, child care centre, pre-school centre or primary school) must be accompanied by an environmental site assessment of the land by a suitably qualified environmental professional to the satisfaction of the responsible authority which takes account of the report titled '*Casey Central Phase 1 Environmental Site Assessment*' (GHD, May 2006) and provides information including:
- Further detailed assessment of potential contaminants on the relevant land;
- Clear advice on whether the environmental condition of the land is suitable for the proposed use/s and whether an environmental audit of all, or part, of the land is recommended having regard to the *Potentially Contaminated Land General Practice Note June 2005,* (DSE);
- Further detailed assessment of surface and subsurface water conditions and geotechnical characteristics on the relevant land and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater conditions and geology on the development and the impact of the development on surface and subsurface water;
- Recommended remediation actions for any potentially contaminated land.

## 4.0 Conditions and requirements for permits

28/11/2024
GC206

### 4.1 General requirements

A planning permit must include a condition or conditions which ensure that any requirements or conditions set out in the *Casey Central Precinct Structure Plan* are implemented as part of the planning permit or the plans endorsed under the planning permit.

Prior to commencement of the first stage of a development or prior to issue of a Statement of Compliance for subdivision within the precinct, the owner must, if required, enter into an agreement, or agreements, under Section 173 of the *Planning and Environment Act 1987* which specifies the infrastructure required to be provided as part of the development. The agreement must give effect to the approved Public Infrastructure Plan and amongst other matters specify the timing and responsibility for delivery of the fully directional signalized intersection of The Strand and Glasscocks Road.

### 4.2 Subdivision permits that allow for the creation of a lot less than 300 square metres

A permit issued before 31 December 2026 to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan must be approved and endorsed by the responsible authority, that identifies the lots to which:

– type A or type B of the *Small Lot Housing Code* (Victorian Planning Authority, 2019) applies; or

– type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies

to the satisfaction of the responsible authority.

A permit issued on or after 31 December 2026, other than an amendment of a permit under section 72 of the Act issued before 31 December 2026, to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan that identifies the lots to which type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies must be approved and endorsed by the responsible authority, to the satisfaction of the responsible authority.

### 4.3 Use or develop land for a sensitive purpose

Any permit for the subdivision, use or development of land for a sensitive use must include any conditions necessary, in the opinion of the responsible authority, to implement any remediation actions recommended in the Environmental Site Assessment accompanying the application.

### 4.4 Subdivision or building and works permits where land is required for road widening

Land required for road widening including flaring for the ultimate design of any intersection within an existing or proposed arterial road must be transferred to or vested in Council at no extra cost to the acquiring agency unless funded by the *Cranbourne North Precinct Structure Plan Development Contributions Plan.*

### 4.5 Subdivision or building and works permits where land is required for public open space

Land required for public open space as a local park as set out in the *Casey Central Town Centre Precinct Structure Plan* or the *Cranbourne North Precinct Structure Plan Development Contributions Plan*, must be transferred to or vested in Council at no cost unless the land is funded by the *Cranbourne North Precinct Structure Plan Development Contributions Plan*.

### 4.6 Public Transport Victoria

Unless otherwise agreed by Public Transport Victoria, prior to the issue of a Statement of Compliance for any subdivision stage, bus stops must be constructed, at full cost to the permit holder, as follows:

- Generally in the location identified by Public Transport Victoria;
- In accordance with the *Public Transport Guidelines for Land Use and Development* with a concrete hard stand area, and in activity centres a shelter must also be constructed;
- Be compliant with the *Disability Discrimination Act – Disability Standards for Accessible Public Transport 2002*; and
- Be provided with direct and safe pedestrian access to a pedestrian path.

All to the satisfaction of Public Transport Victoria and the responsible authority.

### 4.7 Salvage and translocation

Any permit for subdivision must contain the following condition:

The *Salvage and Translocation Protocol for Melbourne's Growth Corridors, 2014 (Melbourne Strategic Assessment) (Department of Environment and Primary Industries)* must be implemented in the carrying out of development to the satisfaction of the Secretary to the Department of Environment, Land, Water and Planning.

## 5.0 Exemption from notice and review

02/12/2022
C259case

None specified.

## 6.0 Decision guidelines

02/12/2022
C259case

None specified.

## 7.0 Signs

02/12/2022
C259case

The sign category for the land is the category specified in the zone applied zone to the land at Clause 2.2 of this schedule.

### 7.1 Land and home sales signs

Despite the provisions of Clause 52.05, signs promoting the sale of land or homes on the land (or on adjoining land in the same ownership) may be displayed without a permit provided:

- The display area for each sign does not exceed 10 square metres.
- Only one sign is displayed per road frontage. Where the property has a road frontage of more than 150 metres multiple signs may be erected provided there is a minimum of 150 metres distance between each sign, with a total of not more than 4 signs per frontage.
- The sign is not animated, scrolling, electronic or internally illuminated sign.
- The sign is not displayed longer than 21 days after the sale (not settlement) of the last lot.
- The sign is setback a minimum of 750 millimetres from the property boundary.

A permit may be granted to display a sign promoting the sale of land or homes on the land (or on adjoining land in the same ownership) with an area greater than 10 square metres.

02/12/2022
C259case

# SCHEDULE 11 TO CLAUSE 37.07 URBAN GROWTH ZONE

Shown on the planning scheme map as **UGZ11**.

## BROMPTON LODGE PRECINCT STRUCTURE PLAN

## 1.0 The Plan

02/12/2022
C259case

Plan 1 shows the future urban structure proposed in the *Brompton Lodge Precinct Structure Plan*. It is a reproduction of Plan 2 in the *Brompton Lodge Precinct Structure Plan*.

**Plan 1 to Schedule 11 to Clause 37.07**




## 2.0 Use and development

02/12/2022
C259case

## 2.1 The Land

02/12/2022
C259case

The use and development provisions specified in this schedule apply to the land within the 'precinct boundary' on Plan 1 and shown as UGZ11 on the planning scheme maps.

*Note: If land shown on Plan 1 is not zoned UGZ, the provisions of this zone do not apply.*

## 2.2 Applied zone provisions

02/12/2022
C259case

The provisions of the following zones in this scheme apply to the use and subdivision of land, construction of a building, and construction and carrying out of works, by reference to Plan 1 of this schedule.

**Table 1: Applied zone provisions**

| Land use or development (carried out or proposed) generally in accordance with the precinct structure plan applying to the land | Applied zone provisions |
|---|---|
| **Local Town Centre** | Clause 34.01 – Commercial 1 Zone |

| | |
|---|---|
| **Walkable catchment for higher density residential opportunities** | Clause 32.07 – Residential Growth Zone |
| **All other land** | Clause 32.08 – General Residential Zone |

### 2.3 Specific provision - Reference to a planning scheme zone is a reference to an applied zone

A reference to a planning scheme zone in an applied zone must be read as if it were a reference to an applied zone under this schedule.

*Note: e.g. The General Residential Zone specifies 'Car wash' as a Section 2 Use with the condition, 'The site must adjoin, or have access to, a road in a Transport Zone 2 or Transport Zone 3.' In this instance the condition should be read as, 'The site must adjoin, or have access to, a road in a Transport Zone 2 or Transport Zone 3 or an applied Transport Zone 2 or Transport Zone 3 in the Urban Growth Zone schedule applying to the land'.*

### 2.4 Specific provision – Use and development of future public land

A permit is not required to use or develop land shown in the *Brompton Lodge Precinct Structure Plan* as local park or community facilities provided the use or development is carried out generally in accordance with the *Brompton Lodge Precinct Structure Plan* and with the prior written consent of City of Casey.

## 2.5 Specific provisions – Use of land

02/12/2022
C259case

The following provisions apply to the use of land.

**Table 2: Use**

| Use | Requirement |
|---|---|
| **Shop where the applied zone is Commercial 1 Zone** | A permit is required to use land for a shop if the combined leasable floor area of all shops exceeds 6,280 square metres. |

## 2.6 Specific provisions - Subdivision

02/12/2022
C259case

None specified.

## 2.7 Specific provisions - Buildings and works

28/11/2024
GC206

### Construction of single dwellings on small lots

A permit is not required to construct or extend one dwelling on a lot of less than 300 square metres, if either of the following apply:

- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) incorporated into this planning scheme.
- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) incorporated into this planning scheme.

Or;

A permit is not required to construct one dwelling on a lot of between 250 and 300 square metres where an approved building envelope (as defined in Part 5 of the Building Regulations 2018) applies to the lot.

A permit is required to construct a front fence within 3 metres of a street unless the Front Fence Height Standard in Table A2 to Clause 54.06-2 is met.

### 2.8 Specific provisions –Referral of applications – Sand extraction area - Department of Economic Development, Jobs, Transport and Resources (DEDJTR)

An application to develop land for a sensitive use within the land containing the former sand extraction area, at 655 Cranbourne-Frankston Road, Cranbourne South (Lot 1 TP958208K, and 980-1020 Dandenong–Hastings Road, Cranbourne (Lot 1 TP371251 and Lot 2 PS331597), subject to Work Authority 121 (WA121) under the *Mineral Resources (Sustainable Development) Act 1990)*, must be referred to the Department of Economic Development, Jobs, Transport and Resources (DEDJTR).

### 2.9 Specific provision – Referral of applications – Local Town Centre

An application to subdivide land, or construct a building or carry out works (where value to those works in in excess of $500,000) on land identified in Plan 4 in the incorporated *Brompton Lodge Precicnt Structure Plan* as 'Local Town Centre' must be referred in accordance with section 55 of the *Planning and Environment Act 1987* to the Victorian Planning Authority.

## 3.0 Application requirements

02/12/2022
C259case

If in the opinion of the responsible authority an application requirement listed below is not relevant to the assessment of an application, the responsible authority may waive or reduce the requirement.

### 3.1 Subdivision - residential development

In addition to any requirement in 56.01-2, a subdivision design response must include:

- A land budget table in the same format and methodology as those within the precinct structure plan applying to the land, setting out the amount of land allocated to the proposed uses and expected population and dwelling yields;
- A demonstration of how the property will contribute to the achievement of the residential density outcomes in the Precinct Structure Plan applying to the land;
- A demonstration of lot size diversity by including a colour-coded lot size plan, reflecting the lot size categories and colours outlined in Table 2 – Lot Size and Housing Type Guide in the *Brompton Lodge Precinct Structure Plan*; and
- A demonstration of how the subdivision will contribute to the delivery of a diversity of housing.
- A risk assessment prepared by a suitably experienced and qualified consultant that acknowledges the existing and future land use at the sand extraction area and provides sufficient confidence that a sensitive use can be safely developed within 250 metres of the extraction area. The application and risk assessment must be referred to DEDJTR.
- A Conservation Management Plan (CMP) detailing the implementation of the Mitigation Measures for the Dwarf Galaxias habitat, by the Department of Environment, Land, Water and Planning for approval by the Responsible Authority. In addition to addressing the technical and environmental requirements of the CMP, the plan must include details of the timing of works for the construction of new habitat and the monitoring program and parameters for the translocation of existing fish from the existing habitat to the new habitat, confirm the:
- Responsibility for the costs of construction and relocation.

- Responsibility for the ongoing maintenance responsibilities.
- The funding mechanism for ongoing maintenance by the owners in the estate.
- Detailed construction details relative to the civil design requirements of the land surrounding the existing and proposed habitat areas.

### 3.2 Public Infrastructure Plan

An application for subdivision and or use and development of land must be accompanied by a Public Infrastructure Plan which addresses the following:

- A stormwater management strategy that makes provision for the staging and timing of stormwater drainage works, including temporary outfall provisions, to the satisfaction of Melbourne Water and the Responsible Authority. The stormwater management strategy must include details of the proposed funding mechanism for waterway management by the future owners above and beyond any responsibilities of the authorities;
- What land may be affected or required for the provision of infrastructure works;
- The provision, staging and timing of stormwater drainage works;
- The provision, staging and timing of road works internal and external to the land consistent with any relevant traffic report or assessment;
- The landscaping of any land;
- What if any infrastructure set out in the *Brompton Lodge Development Contributions Plan* is sought to be provided as "works in lieu" subject to the written consent of City of Casey;
- The provision of public open space and land for any community facilities; and
- Any other matter relevant to the provision of public infrastructure required by the responsible authority.

### 3.3 Traffic Impact Assessment

An application that proposes to create or change access to a primary or secondary arterial road must be accompanied by a Traffic Impact Assessment Report (TIAR). The TIAR, including functional layout plans and a feasibility / concept road safety audit, must be to the satisfaction of VicRoads or City of Casey, as required.

### 3.4 Use or develop land for a sensitive purpose – Environmental Site Assessment – 765 & 785 Cranbourne-Frankston Road, Cranbourne South

An application for subdivision and or use and development of land at 765 and 785 Cranbourne-Frankston Road, Cranbourne South (Lot 1 LP86054 and Lot 5 PS613876) must be accompanied by a Phase 2 Environmental Site Assessment, including:

- Indicative sampling to be carried out at 765 Cranbourne-Frankston Road, Cranbourne (Lot 1 LP86054) South for potential contamination ranked as ‘medium’ and ‘high’ in the Phase 1 Environmental Site Assessment and Geotechnical Desktop Investigation, *Brompton Lodge Precinct Structure Plan* (Coffey, April 2015);
- Soil assessment to be carried out at 785 Cranbourne-Frankston Road, Cranbourne South (Lot 5 PS613876) for potential contamination ranked as ‘medium’ and ‘high’ in the Phase 1 Environmental Site Assessment and Geotechnical Desktop Investigation, *Brompton Lodge Precinct Structure Plan* (Coffey, April 2015); and
- Clear advice on whether the environmental condition of the land is suitable for the proposed use/s and whether an environmental audit of all, or part, of the land is recommended having regard to the *Potentially Contaminated Land General Practice Note June 2005*, (DSE).

### 3.5 Groundwater Assessment – 765 & 785 Cranbourne–Frankston Road, Cranbourne South and 980-1020 Dandenong–Hastings Road, Cranbourne

An application for subdivision and or use and development of land at 765 & 785 Cranbourne-Frankston Road, Cranbourne South (Lot 1 LP86054 and Lot 5 PS613876) and 980-1020 Dandenong-Hastings Road, Cranbourne (Lot 1 TP371251 and Lot 2 PS331597), must be accompanied by a site specific geotechnical investigation that assesses the existing groundwater conditions and makes recommendations to protect the proposed development from the impacts of ground water on site.

### 3.6 Acoustic report

An acoustic report, prepared by a qualified acoustic engineer, demonstrating how the proposed subdivision would comply with the relevant noise regulations, particularly in relation to noise from Western Port Highway, and what measures are recommended to be implemented to ensure compliance with noise regulations.

## 4.0 Conditions and requirements for permits

28/11/2024
GC206

### 4.1 Conditions for subdivision permits that allow for the creation of a lot of less than 300 square metres

A permit issued before 31 December 2026 to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan must be approved and endorsed by the responsible authority, that identifies the lots to which:

– type A or type B of the *Small Lot Housing Code* (Victorian Planning Authority, 2019) applies; or

– type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies

to the satisfaction of the responsible authority.

A permit issued on or after 31 December 2026, other than an amendment of a permit under section 72 of the Act issued before 31 December 2026, to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan that identifies the lots to which type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies must be approved and endorsed by the responsible authority, to the satisfaction of the responsible authority.

Or;

If construction of a single dwelling on a lot between 250 and 300 square metres in area is to be provided via a building envelope that is not the *Small Lot Housing Code (Victorian Planning Authority, November 2019)*, any permit for subdivision that allows the creation of a lot between 250 and 300 square metres must contain the following conditions:

- Before a plan is certified for a subdivision (or a relevant stage of a subdivision) where building envelopes are proposed, each lot between 250 square metres and 300 square metres in area must contain a building envelope (in accordance with Part 5 of the Building Regulations 2018) to the satisfaction of the responsible authority.
- The approved building envelopes must be applied as a restriction on the plan of subdivision or be applied through an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987* that is registered on the title to the land. The restriction or the agreement must provide for:

- The building envelope to apply to each relevant lot
- All buildings to conform to the building envelope on the relevant lot
- The construction of a building outside of a building envelope only with the consent of the responsible authority
- A building envelope to cease to apply to any building on the lot affected by the envelope after the issue of a certificate of occupancy for the whole of a dwelling on the land.

Where the building envelope is to be applied to the land through an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987* the building envelope plan may be approved after the plan of subdivision is certified.

## 4.2 Conditions for Public Transport

Unless otherwise agreed to by Public Transport Victoria, prior to the issue of a statement of compliance for any subdivision stage, bus stops must be constructed, at full cost to the permit holder as follows:

- Generally in the location identified by Public Transport Victoria
- In accordance with the Public Transport *Guidelines for Land Use and Development* with a concrete hard stand area, and in activity centres a shelter must also be constructed
- Be compliant with the *Disability Discrimination Act – Disability Standards for Accessible Public Transport 2002*; and
- Be provided with direct and safe pedestrian access to a pedestrian path.

All to the satisfaction of Public Transport Victoria and the Responsible Authority.

## 4.3 Conditions for subdivision or buildings and works permits

### Where land is required for road widening

Land required for road widening including right of way flaring for the ultimate design of any intersection within an existing or proposed local road must be transferred to or vested in Council at no cost to the acquiring agency unless funded by the *Brompton Lodge Development Contributions Plan*.

### Where land is required for public open space

Land required for public open space as a local park as set out in *Brompton Lodge Precinct Structure Plan* or the *Brompton Lodge Development Contributions Plan,* must be transferred to or vested in Council at no cost to Council unless the land is funded by the *Brompton Lodge Development Contributions Plan*.

### Section 173 agreement

### Conservation Management Plan

A planning permit for subdivision, buildings or works within the PSP area must include conditions necessary to implement the approved conservation management plan for the Dwarf Galaxias conservation area in the incorporated *Brompton Lodge Precinct Structure Plan*. A permit must include the following conditions:

- The certification of the plan of subdivision must not be issued and buildings or works must not commence until a Conservation Management Plan for the relevant works has been approved to the satisfaction of the Department of Environment, Land, Water and Planning and Responsible Authority, unless otherwise agreed by the Department of Environment, Land, Water and Planning and Responsible Authority.

- All works must be in accordance with the approved Conservation Management Plan, to the satisfaction of the Department of Environment, Land, Water and Planning and Responsible Authority.
- All works and translocation activities must be completed prior to the issue of a statement of compliance unless otherwise approved in writing by the Responsible Authority.
- Conditions securing the delivery and maintenance of the conservation area by section 173 agreement or an alternate mechanism to the satisfaction of the Responsible Authority.

**Salvage and translocation**

- The Salvage and Translocation Protocol for Melbourne's Growth Corridors (Department of Environment and Primary Industries, 2014) must be implemented in the carrying out of development to the satisfaction of the Secretary to the Department of Environment, Land Water and Planning.

**Site Management Plan**

- Before the commencement of works for any stage of subdivision a Site Management Plan that addresses bushfire risk during, and where necessary, after construction must be submitted to and approved by the responsible authority. The plan must specify, amongst other things:
  - The staging of development and the likely bushfire risks at each stage;
  - An area of land between the development edge and non-urban areas consistent with the separation distances specified in AS3959-2009, where bushfire risk is managed;
  - The measures to be undertaken by the developer to reduce the risk from fire within any surrounding rural or undeveloped landscape and protect residents and property from the threat of fire;
  - How adequate opportunities for access and egress will be provided for early residents, construction workers and emergency vehicles.

The plan must be carried out to the satisfaction of the responsible authority.

### 4.4 Condition to use or develop land for a sensitive purpose – Environmental Site Assessment – 765 & 785 Cranbourne–Frankston Road, Cranbourne South and 980-1020 Dandenong–Hastings Road, Cranbourne

Before a plan subdivision is certified under the *Subdivision Act 1988*, the recommendations of the Phase 2 Environmental Site Assessment submitted with an application for 765 & 785 Cranbourne–Frankston Road, Cranbourne South (Lot 1 LP86054 and Lot 5 PS613876) and 980-1020 Dandenong–Hastings Road, Cranbourne (Lot 1 TP371251 and Lot 2 PS331597) must be carried out to the satisfaction of the responsible authority.

Upon receipt of the further testing report the owner must comply with any further requirements made the responsible authority after having regard to the guidance set out in the General Practice Note on the Potentially Contaminated Land June 2005 (DSE). The plan of subdivision must not be certified until the responsible authority is satisfied that the land is suitable for the intended use.

### 4.5 Condition to use or develop land for a sensitive purpose – 655 Cranbourne–Frankston Road, Cranbourne South and 980-1020 Dandenong–Hastings Road, Cranbourne

A planning permit for subdivision or buildings or works at 655 Cranbourne–Frankston Road, Cranbourne South (Lot 1 TP 958208K) and 980-1020 Dandenong–Hastings Road, Cranbourne (Lot 1 TP371251 and Lot 2 PS331597) must include the following conditions:

- The salvage and translocation of Dwarf Galaxias species must be undertaken prior to the remediation of any works associated with the Work Authority 121 (WA121), except where works are required for maintenance of the pits for the purposes of public safety prior to the translocation of the Dwarf Galaxias and this must be undertaken to the satisfaction of the Department of Environment, Land, Water and Planning and the Responsible Authority.
- Before a plan of subdivision is certified under the *Subdivision Act 1988* and before the commencement of any works, the land at 655 Cranbourne-Frankston Road, Cranbourne South (Lot 1 TP958208K) and 980-1020 Dandenong–Hastings Road, Cranbourne (Lot 1 TP371251 and Lot 2 PS331597), which is subject to a Work Authority, must be rehabilitated to the satisfaction of the Responsible Authority and the Department of Economic Development, Jobs, Transport and Resources.

## 5.0 Exemption from notice and review

02/12/2022
C259case

None specified.

## 6.0 Decision guidelines

02/12/2022
C259case

Before deciding on an application to use land for a shop in a town centre, in addition to the decision guidelines at Clause 37.07-14, the Responsible Authority must consider, as appropriate:

- The local catchment and PSP catchment demand for the additional floor area; and
- The effect on existing and future major town centres within Casey.

## 7.0 Signs

02/12/2022
C259case

Despite the provisions of Clause 52.05, signs promoting the sale of land or homes on the land (or on adjoining land in the same ownership) may be displayed without a permit provided:

- The display area for each sign does not exceed 10 square metres;
- Only one sign is displayed per road frontage. Where the property has a road frontage of more than 150 metres multiple signs may be erected provided there is a minimum of 150 metres distance between each sign, with a total of not more than 4 signs per frontage;
- The sign is not animated, scrolling, electronic or internally illuminated sign;
- The sign is not displayed longer than 21 days after the sale (not settlement) of the last lot; and
- The sign is setback a minimum of 750 millimetres from the property boundary.

A permit may be granted to display a sign promoting the sale of land or homes on the land (or on adjoining land in the same ownership) with an area greater than 10 square metres.

17/01/2019
C221Pt1

# SCHEDULE 12 TO CLAUSE 37.07 URBAN GROWTH ZONE

Shown on the planning scheme map as **UGZ12**.

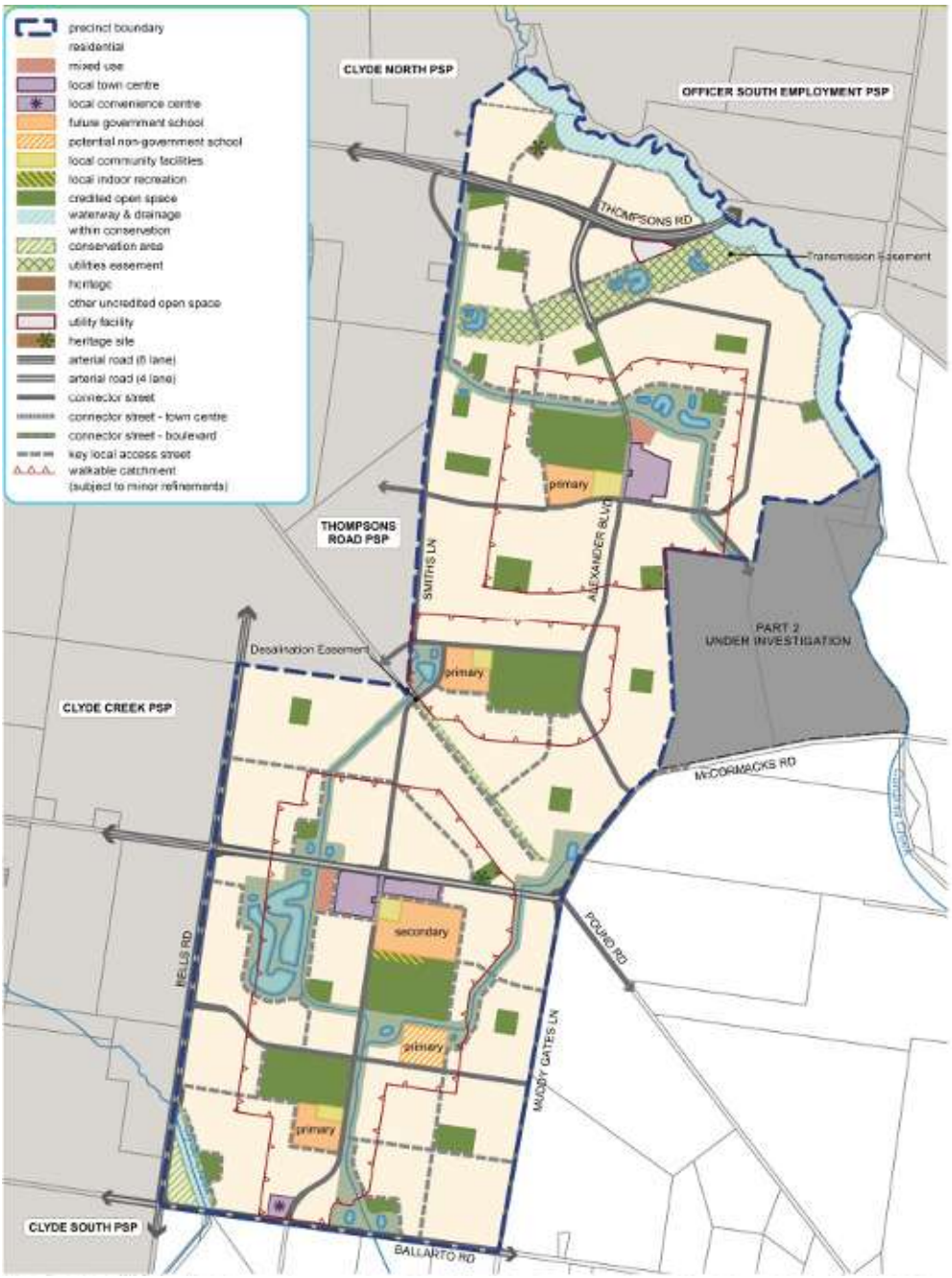
## CARDINIA CREEK SOUTH PRECINCT STRUCTURE PLAN

## 1.0 The Plan

17/01/2019
C221Pt1

Plan 1 shows the future urban structure of the *Cardinia Creek South Precinct Structure Plan*. It is a reproduction of Plan 2 in the *Cardinia Creek South Precinct Structure Plan*.

### Plan 1 to Schedule 12 to Clause 37.07



## 2.0 Use and development

17/01/2019
C221Pt1

### 2.1 The Land

17/01/2019
C221Pt1

The use and development provisions specified in this schedule apply to the land as shown within the 'precinct boundary' on Plan 1 of this schedule and shown as UGZ12 on the planning scheme maps.

*Note: If land shown on Plan 1 is not zoned UGZ, the provisions of this zone do not apply.*

### 2.2 Applied zone provisions

20/01/2022
VC205

Table 1 allocates the land use/development shown on Plan 1 of this schedule with a corresponding zone from this scheme

Where the use/development in the left column is carried out or proposed generally in accordance with the incorporated *Cardinia Creek South Precinct Structure Plan*, the use, subdivision, construction of a building and construction and carrying out of works provisions of the corresponding zone in the right column apply.

A reference to a planning scheme zone in an applied zone must be read as if it were a reference to an applied zone under this schedule.

*Note: e.g. The General Residential Zone specifies 'Car wash' as a Section 2 Use with the condition, 'The site must adjoin, or have access to, a road in a Transport Zone 2 or Transport Zone 3.' In this instance the condition should be read as, 'The site must adjoin, or have access to, a road in a Transport Zone 2 or Transport Zone 3 or an applied Transport Zone 2 or Transport Zone 3 in the Urban Growth Zone schedule applying to the land'.*

**Table 1: Applied zone provisions**

| | |
|---|---|
| Residential on a lot wholly within walkable catchment boundary (once subdivided) | Clause 32.07 – Residential Growth Zone |
| Mixed use | Clause 32.04 – Mixed Use Zone |
| Local Town Centre / Local Convenience Centre | Clause 34.01 – Commercial 1 Zone |
| Connector Street | Clause 36.04 – Transport Zone 3 |
| Arterial Road | Clause 36.04 – Transport Zone 2 |
| All other land | Clause 32.08 – General Residential Zone |

### 2.3 Specific provisions – Use of land

17/01/2019
C221Pt1

**Section 1 - Permit not required**

| Use | Condition |
|---|---|
| **Child care centre** | On land shown as community facilities in the *Cardinia Creek South Precinct Structure Plan* and with the prior written consent of the responsible authority. |
| **Primary school**<br>**Secondary school** | On land shown as Potential Non-Government School in the *Cardinia Creek South Precinct Structure Plan*. |

| Use | Condition |
|---|---|
| **Minor sports and recreation facility** | On land shown as local park or local sports reserve on Plan 5 in the *Cardinia Creek South Precinct Structure Plan* and with the prior written consent of the responsible authority. |
| **Shop where the applied zone is Commercial 1 Zone** | The combined leasable floor area of all shops does not exceed:<br>▪ 8,000 square metres for land shown as retail in the Alexander Boulevard Town Centre in the Cardinia Creek South Precinct Structure Plan.<br>▪ 8,000 square metres for land shown as retail in the Pattersons Road Town Centre in the Cardinia Creek South Precinct Structure Plan.<br>1,500 square metres for land shown as retail in the Ballarto Road Local Convenience Centre in the *Cardinia Creek South Precinct Structure Plan*. |
| **Any use listed in Clause 62.01** | Must meet requirements of Clause 62.01. |

**Section 2 - Permit required**

| Use | Condition |
|---|---|
| **Any use not in Section 1 or Section 3** | |

**Section 3 – Prohibited**

| Use |
|---|
| None Specified |

## 2.4 Specific provisions - Subdivision

17/01/2019
C221Pt1

None specified.

## 2.5 Specific provisions - Buildings and works

28/11/2024
GC206

### Dwellings on a lot less than 300 square metres

A permit is not required to construct or extend one dwelling on a lot of less than 300 square metres, if one of the following apply:

- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) incorporated into this planning scheme; or
- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) incorporated into this planning scheme; or
- One dwelling on a lot of between 250 and 300 square metres where an approved building envelope (as defined in Part 5 of the Building Regulations 2018) applies to the lot.

A permit is required to:

- Construct a front fence within 3 metres of a street, on a lot less than 300 square metres, if the fence exceeds the maximum height specified in Clause 54.06-2.

### Buildings and works for a school

A permit is required to:

- Construct a building or construct or carry out works associated with a Primary School or Secondary School on land shown as 'potential non-government school' unless exempt under Clauses 62.02-1 and 62.02-2.

### Development of future public land

A permit is not required to construct a building or construct or carry out works:

- On land shown in the *Cardinia Creek South Precinct Structure Plan* as local park, local sports reserve or community facilities provided the development is carried out generally in accordance with the *Cardinia Creek South Precinct Structure Plan* and with the prior written consent of the responsible authority.

## 3.0 Application requirements

14/07/2022
VC213

The following application requirements apply to an application for a permit under Clause 37.07, in addition to those specified in Clause 37.07 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

### Subdivision - Residential development

In addition to the requirements of Clause 56.01-2, a subdivision design response for a residential subdivision must include, to the satisfaction of the responsible authority:

- A land budget table in the same format and methodology as those within the precinct structure plan applying to the land, setting out the amount of land allocated to the proposed uses and expected population, dwelling and employment yields;
- A demonstration of how the property will contribute to the achievement of the residential density outcomes in the precinct structure plan applying to the land;
- A demonstration of lot size diversity by including a colour coded lot size plan, reflecting the lot size categories and colours outlines in Table 2 - Lot Size and Housing Type Guide in the *Cardinia Creek South Precinct Structure Plan*;
- A mobility plan that demonstrates how the local street and movement network integrates with adjacent urban development or is capable of integrating with future development on adjacent land parcels;
- An arboricultural report identifying all trees on the site and a tree retention plan identifying how the application responds to Plan 4 – Image and Character and any tree protection requirements and guidelines within the *Cardinia Creek South Precinct Structure Plan;*
- Potential bus route and bus stop locations prepared in consultation with Public Transport Victoria;
- Subdivision and Housing Design Guidelines, prepared to satisfaction of the responsible authority, which demonstrates how the proposal:
  - Responds to and achieves the objectives and planning and design requirements and guidelines within the "Housing" section of the Cardinia Creek South Precinct Structure Plan incorporated into this scheme; and,
  - Where adjoining Thompsons Road, must respond to the role of Thompsons Road as part of the Principal Freight Network and manages the impacts of freight movements on urban amenity.
- A Site Management Plan that addresses bushfire risk during, and where necessary, after construction, which is approved by the Country Fire Authority. The plan must specify, amongst other things:

- The staging of development and the likely bushfire risks at each stage;
- An area of land between the development edge and non-urban areas consistent with the separation distances specified in AS3959-2009, where bushfire risk is managed to enable the development, on completion, to achieve a BAL-12.5 rating under AS3959-2009;
- The measures to be undertaken by the developer to reduce the risk from fire within any surrounding rural or undeveloped landscape and protect residents and property from the threat of fire;
- How adequate opportunities for access and egress will be provided for early residents, construction workers and emergency vehicles.

**Public Infrastructure Plan**

An application to subdivide land, or construct a building or construct or carry out works must be accompanied by a Public Infrastructure Plan which addresses the following:

- A Stormwater Management Strategy that assesses the existing surface and subsurface drainage conditions on the site, addresses the provision, staging and timing of stormwater drainage works, including temporary outfall provisions, to the satisfaction of the responsible authority and Melbourne Water.
- What land may be affected by or required for the provision of infrastructure works.
- The provision, staging and timing of stormwater drainage works.
- The provision, staging and timing of road works internal and external to the land consistent with any relevant traffic report or assessment.
- The landscaping of any land.
- What, if any, infrastructure set out in the Precinct Infrastructure Plan in the incorporated *Cardinia Creek South Precinct Structure Plan* is sought to be provided as "works in lieu" subject to the consent of the collecting agency.
- The provision of public open space and land for any community facilities.
- Any other matter relevant to the provision of public infrastructure required by the responsible authority.

**Traffic Impact Assessment**

An application that proposes to create or change access to a primary or secondary arterial road must be accompanied by a Traffic Impact Assessment Report (TIAR). The TIAR, including functional layout plans and a feasibility/concept road safety audit, must be to the satisfaction of VicRoads or the responsible authority, as required.

**Heritage Conservation Management Plans and Heritage Assessment**

An application to use, develop or subdivide land containing an identified Heritage Place must be accompanied by a Heritage Conservation Management Plan. The Heritage Conservation Management Plan must include a statement of significance/cultural value, appropriate site boundaries where subdivision is proposed, required restoration works, a schedule identifying essential urgent restoration works and potential future restoration works, an interpretive reuse plan, and interpretive signage, to the satisfaction of the responsible authority.

**Groundwater Assessment**

An application to use, develop or subdivide land must be accompanied by a hydrogeological assessment of groundwater conditions on the site and the potential impacts on the proposed development, including any measures required to mitigate the impacts of groundwater conditions on the development and the impact of development on groundwater, to the satisfaction of the responsible authority.

### Salvage and translocation

All applications for subdivision of land identified as 'Potential Salvage Operations' by the MSA Map Share tool must be accompanied by evidence that a salvage enquiry form has been submitted to the Department of Environment, Land, Water, and Planning.

## 4.0 Conditions and requirements for permits

28/11/2024
GC206

### Condition - Subdivision permits that allow the creation of a lot of less than 300 square metres

A permit issued before 31 December 2026 to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan must be approved and endorsed by the responsible authority, that identifies the lots to which:

– type A or type B of the *Small Lot Housing Code* (Victorian Planning Authority, 2019) applies; or

– type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies

to the satisfaction of the responsible authority.

A permit issued on or after 31 December 2026, other than an amendment of a permit under section 72 of the Act issued before 31 December 2026, to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan that identifies the lots to which type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies must be approved and endorsed by the responsible authority, to the satisfaction of the responsible authority.

### Condition - Salvage and translocation

Prior to the commencement of development, a salvage inquiry form must be submitted to the Secretary to the Department of Environment, Land, Water, and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) (Secretary), and where required the Secretary must be permitted to access the land to conduct salvage operations, in accordance with the requirements of the *Salvage and Translocation Protocol for Melbourne's Growth Corridors 2018* (Department of Environment, Land, Water and Planning, 2018).

### Condition - Construction environmental management plans

A planning permit to subdivide land, construct a building, or construct or carry out works on or within 50 metres of land shown as a conservation area in the incorporated *Cardinia Creek South Precinct Structure Plan* must include the following condition:

Before works start, a Construction Environmental Management Plan consistent with *DELWP requirements for Construction Environmental Management Plans under the Melbourne Strategic Assessment* (Department of Environment, Land, Water and Planning, November 2020) must be submitted to and approved by the Secretary to the Department of Environment, Land, Water, and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) and the responsible authority, demonstrating how the conservation area will be protected during works.

Once approved the plan will form part of the permit and must be implemented to the satisfaction of the Secretary and the responsible authority.

**Condition - Fencing of conservation areas**

A permit granted to subdivide land where works are required to carry out the subdivision, or a permit granted to construct a building or carry out works, on land including or abutting a conservation area as shown in the *Cardinia Creek South Precinct Structure Plan*, must include the following condition:

Prior to the commencement of development, a conservation area fencing plan must be submitted to and approved by the Secretary to the Department of Environment, Land, Water, and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) (Secretary) to ensure the conservation area is adequately protected. The fencing plan must contain the following:

- The boundaries of any conservation area, and the location of any scattered tree and the boundaries of any patch of native vegetation within the conservation area.;
- The location and alignment of temporary protection fencing showing the following minimum distance from the element to be protected:

**Table 2**

| Element | Distance |
|---|---|
| Conservation area | 0.5 metres |
| Scattered tree | 12 x diameter at a height of 1.3 metres |
| Patch of native vegetation | 2 metres |

- The timing of installation and removal of temporary protection fencing.
- The timing of installation of permanent fencing.
- Location and details of ongoing maintenance vehicle access points.
- The type of temporary and permanent fencing including materials, heights and spacing of uprights.
- Frequency of inspections and rectification works for temporary protection fencing.

Once approved the plan will form part of the permit and must be implemented to the satisfaction of the Secretary to the Department of Environment, Land, Water and Planning and the responsible authority.

Stockpiles, fill, machinery, vehicle parking, excavation and construction activity of any kind must not be bought into, or be undertaken within, the area to be fenced, except with the prior written consent from the Secretary.

**Condition - Correct alignment of protective fencing**

Buildings and works must not commence until written evidence that protection fencing has been erected in accordance with the approved Conservation Area Fencing Plan is provided by a suitably qualified land surveyor to the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) (Secretary), and the Secretary confirms it is satisfied by the evidence.

**Condition – Land management plan for conservation area**

A permit to subdivide land containing a conservation area as shown in the *Cardinia Creek South Precinct Structure Plan* must include the following condition:

Prior to the commencement of development, a land management plan for the conservation area land must be prepared by a suitably qualified consultant, submitted to, and approved by the Secretary to the Department of Environment, Land, Water, and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) (Secretary). The land management plan must outline

how the biodiversity values for the land identified in the *Biodiversity Conservation Strategy for Melbourne's Growth Corridors* (Department of Environment and Primary Industries, 2013) will be maintained, managed, and improved, including:

- How environmental weeds will be managed up until the securing of the conservation area.
- How any revegetation will be undertaken in coordination with weed management activities to prevent re-colonisation of weed species.
- How rubbish and hazards will be removed, and any contaminated material managed up until the securing of the conservation area.

Once approved the plan will form part of the permit and must be implemented to the satisfaction of the Secretary and the responsible authority.

**Condition - Security of conservation land**

A permit to subdivide land containing a 'conservation area' as shown in the *Cardinia Creek South Precinct Structure Plan* must include the following condition:

The owner of the land must, as part of the plan of subdivision (or the first plan of subdivision submitted for registration, in the case of any staged subdivision), create the 'conservation area' as a separate lot or reserve. The boundaries of the lot or reserve on the plan of subdivision are subject to the prior satisfaction of the Secretary to the Department of Environment, Land, Water and Planning as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987* (Secretary). The owner must further secure the conservation area, by causing that lot or reserve to be vested, transferred, or protected in perpetuity in one of the following ways:

- Prior to a statement of compliance being issued for the plan of subdivision (or, in the case of a staged subdivision, the plan of subdivision or masterplan which implements the first stage of the subdivision), enter into an agreement under section 173 of the *Planning and Environment Act 1987* by which the owner agrees to transfer ownership of the conservation area to, or to vest the conservation area in, the Minister responsible for section 5 of the *Crown Land (Reserves) Act 1978*, the Council or Melbourne Water. The transfer or vesting must either be for no or nominal consideration. The Secretary and the person or body to whom the land is to be transferred or vested must also be a party to the agreement. The terms of the agreement must include that the owner pays the reasonable costs of the other parties to the agreement that were incurred for the preparation, execution, and registration of the agreement. The owner must cause the agreement to be registered prior to lodgement of the plan of subdivision for registration; or
- Prior to a statement of compliance being issued for the plan of subdivision (or, in the case of a staged subdivision, the plan of subdivision or masterplan which implements the first stage of the subdivision), enter into an agreement with the Secretary under section 69 of the *Conservation, Forests and Lands Act 1987*, which provides for the conservation and management of the conservation area by or on behalf of the owner in perpetuity. The terms of the agreement must include that the owner pays the reasonable costs of the Secretary incurred for the preparation, execution, and registration of the agreement. The owner must cause the agreement to be registered prior to lodgement of the plan of subdivision for registration.

The requirement to include the above condition does not apply if the permit applicant provides the responsible authority with a statement in writing from the Secretary, as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*, that the condition is not required because the Secretary is satisfied that either:

- the land containing the conservation area is expected to be further subdivided and a further planning permit will be required for that subdivision (to which the above condition requirement will apply); or
- the conservation area has been or will be otherwise secured in perpetuity.

**Condition - Subdivision permits where bus stops are required**

- Unless otherwise agreed by Public Transport Victoria, prior to the issue of a Statement of Compliance for any subdivision stage, bus stops must be constructed, at full cost to the permit holder, as follows:
  - Generally in the location identified by Public Transport Victoria;
  - In accordance with the Public Transport Guidelines for Land Use and Development with a concrete hard stand area and access path;
  - Be compliant with the Disability Discrimination Act – Disability Standards for Accessible Public Transport 2002; and
  - Be provided with direct and safe pedestrian access to a pedestrian path.

All to the satisfaction of Public Transport Victoria and the responsible authority.

**Conditions - Subdivision permits where land is required for road widening**

Any permit for subdivision must contain the following condition:

- Prior to the certification of a plan of subdivision, the plan of subdivision must show the land affected by the widening of the road reserve which is required to provide road widening and/or right of way flaring for the ultimate design of any adjacent intersection.

**Condition - Public Infrastructure Plan**

Any permit for subdivision must contain the following condition:

- Prior to the certification of a plan of subdivision or at such other time which is agreed between Council and the owner, if required by the responsible authority or the owner, the owner must enter into an agreement or agreements under section 173 of the *Planning and Environment Act 1987* which provides for:
  - The implementation of the Public Infrastructure Plan approved under this permit.

**Requirement - Subdivision or buildings and works permits where land is required for community facilities, public open space or road widening**

Any permit for subdivision or buildings and works must contain a condition or conditions ensuring:

- The costs associated with effecting the transfer or vesting of land required for community facilities, public open space or road widening (including right of way flaring for the ultimate design of any intersection within an existing or proposed arterial road) must be borne by the permit holder; and
- Land required for community facilities, public open space or road widening (including right of way flaring for the ultimate design of any intersection within an existing or proposed arterial road) must be transferred to or vested in the relevant public agency with any designation (e.g. road, reserve or lot) nominated by the relevant agency.

**Requirement – Use, subdivision or buildings and works permits where land contains an identified Heritage Place**

- Any permit for the use, development or subdivision of land containing an identified Heritage Place must contain a condition requiring the Heritage Conservation Management Plan approved as part of the permit to be secured via an appropriate legal mechanism such as an agreement pursuant to section 173 of the *Planning and Environment Act 1987* to the satisfaction of the responsible authority

## 5.0 Exemption from notice and review

17/01/2019
C221Pt1

None specified.

## 6.0 Decision guidelines

17/01/2019
C221Pt1

The following decision guidelines apply to an application for a permit under Clause 37.07, in addition to those specified in Clause 37.07 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- When deciding on an application to create floorspace in excess of any cap in a town centre, the local catchment and PSP catchment demand for additional floor space; and
- The effect on existing and future major town centres within City of Casey.

## 7.0 Signs

17/01/2019
C221Pt1

Sign requirements for this land is the category specified in the zone applied to the land at Clause 2.2 of this schedule.

17/01/2019
C228

# SCHEDULE 14 TO CLAUSE 37.07 URBAN GROWTH ZONE

Shown on the planning scheme map as **UGZ14**.

## MINTA FARM PRECINCT STRUCTURE PLAN

## 1.0 The Plan

24/06/2021
C282case

Plan 1 shows the Future Urban Structure proposed in the *Minta Farm Precinct Structure Plan*. It is a reproduction of Plan 3 in the *Minta Farm Precinct Structure Plan.*

### Plan 1 to Schedule 14 to Clause 37.07



## 2.0 Use and development

17/01/2019
C228

### 2.1 The Land

02/12/2022
C259case

The use and development provisions specified in this schedule apply to the land within the 'precinct boundary' on Plan 1 and shown as UGZ14 on the planning scheme maps. This schedule must be read in conjunction with the *Minta Farm Precinct Structure Plan*.

*Note: If land shown on Plan 1 is not zoned UGZ, the provisions of this zone do not apply.*

### 2.2 Applied zone provisions

20/01/2022
VC205

Table 1 allocates the land use/development shown on Plan 1 of this schedule with a corresponding zone from this scheme

Where the use/development in the left column is carried out or proposed generally in accordance with the incorporated *Minta Farm Precinct Structure Plan*, the use, subdivision, construction of a building and construction and carrying out of works provisions of the corresponding zone in the right column apply.

A reference to a planning scheme zone in an applied zone must be read as if it were a reference to an applied zone under this schedule

**Table 1: Applied zone provisions**

| | |
|---|---|
| Mixed Use sub-precinct | Clause 32.04 – Mixed Use Zone |
| Residential on a lot wholly within a walkable catchment | Clause 32.07 – Residential Growth Zone |
| Arterial road | Clause 36.04 – Transport Zone 2 |
| Credited open space located within the Commercial and Office sub-precinct or the Innovation and Technology Business sub-precinct | Clause 36.04 – Public Park and Recreation Zone |
| Local Town Centre | Clause 34.01 – Commercial 1 Zone |
| Commercial and Office sub-precinct | Clause 34.02 – Commercial 2 Zone |
| Innovation and Technology Business sub-precinct | Clause 34.02 – Commercial 2 Zone |
| All other land | Clause 32.08 – General Residential Zone |

### 2.3 Specific provisions – Use of land

02/12/2022
C259case

**Section 1 - Permit not required**

| Use | Condition |
|---|---|
| **Shop (other than Adult sex product shop) where the applied zone is Commercial 1** | The combined leasable floor area of all shops must not exceed 13,000 square metres. |
| **Supermarket where the applied zone is Commercial 2 Zone** | The leasable floor area must not exceed 500sqm. |
| **Any use listed in Clause 62.01** | Must meet the requirements of Clause 62.01. |
| **Any use listed in Section 1 in the Table of uses of the applicable applied zone** | |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Industry where the applied zoned is Commercial 2 Zone** | The use must be located within the Commercial and Office sub-precinct. |
| **Residential aged care facility where the applied zone is Mixed Use Zone** | |
| **Restricted retail premises where the applied zone is Commercial 2 Zone.** | |
| **Any other use not in Section 1 or 3 in the Table of uses in the applicable applied zone** | |

### Section 3 – Prohibited

| Use |
|---|
| **Any use listed in Section 3 in the Table of uses of the applicable applied zone** |

## 2.4 Specific provisions - Subdivision

17/01/2019
C228

### Construction of the north-south arterial road

A planning permit must not be issued for any subdivision that results in a combined total of more than 1,000 residential lots in the incorporated *Minta Farm Precinct Structure Plan* area, until:

- Interim construction of the north-south arterial road is completed between the Beaconsfield interchange (north) and Grices Road (south); and
- All land required for ultimate carriageway of the north-south arterial road within the precinct is vested in the relevant public authority.

Unless an agreement to implement these matters is entered into under Section 173 of the Act with the responsible authority.

## 2.5 Specific provision – Buildings and works

28/11/2024
GC206

### Dwellings on a lot less than 300 square metres

A permit is not required to construct or extend one dwelling on a lot of less than 300 square metres, if either of the following apply:

- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) incorporated into this planning scheme.
- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) incorporated into this planning scheme.

## 2.6 Specific provision - Urban Design Framework

21/11/2019
C272case

Except with the consent of the responsible authority and the Victorian Planning Authority, a permit must not be granted to use or subdivide land, or construct a building or construct and carry out works on land identified as 'Urban Design Framework area' Plan 6 in the incorporated *Minta Farm Precinct Structure Plan,* until an urban design framework for the area has been prepared to the satisfaction of the responsible authority and the Victorian Planning Authority.

An urban design framework approved under this schedule must be generally in accordance with the precinct structure plan applying to the land.

An application for use and/or development on land identified as 'Urban Design Framework area' on Plan 6 in the incorporated *Minta Farm Precinct Structure Plan* must be consistent with any urban design framework approved under this schedule.

A permit may be granted to subdivide land or to construct a building or construct and carry out works prior to the approval of an urban design framework for the relevant area if, in the opinion of the responsible authority, the permit is consistent with the requirements for the urban design framework and the permit implements the objectives in the *Minta Farm Precinct Structure Plan.*

The responsible authority may allow an urban design framework to be prepared in stages.

The urban design framework may be amended to the satisfaction of the responsible authority and the Victorian Planning Authority.

## 2.7 Specific provision - Use and development of future public land

A permit is not required to use or develop land shown in the *Minta Farm Precinct Structure Plan* as local park, local sports reserve or community facilities provided the development is carried out generally in accordance with the *Minta Farm Precinct Structure Plan* and with the prior written consent of the responsible authority.

## 3.0 Application requirements

02/12/2022
C259case

The following application requirements apply to an application for a permit under Clause 37.07, in addition to those specified in Clause 37.07 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

### Subdivision – Residential development

In addition to any requirement in 56.01-2, a subdivision design response must include:

- A land budget table in the same format and methodology as those within the precinct structure plan applying to the land, setting out the amount of land allocated to the proposed uses and expected population and dwelling yields;
- A demonstration of how the property will contribute to the achievement of the residential density outcomes in the *Minta Farm Precinct Structure Plan* applying to the land;
- A demonstration of lot size diversity by including a colour-coded lot size plan, reflecting the lot size categories and colours outlined in *Table 2 – Lot Size and Indicative Housing Type* in the *Minta Farm Precinct Structure Plan*;
- A written statement that sets out how the proposal implements the objectives and planning and design requirements and guidelines in accordance with the incorporated *Minta Farm Precinct Structure Plan*.
- A mobility plan that demonstrates how the local street and movement network integrates with adjacent urban development or is capable of integrating with future development on adjacent land parcels;

- An assessment, prepared by a suitably qualified professional, of the existing surface and subsurface drainage conditions on the site, including any potential impacts on the proposed development. The assessment must include any measures required to mitigate the impacts of the development on groundwater and drainage;
- A demonstration of how the subdivision will contribute to the delivery of a diversity of housing;
- An arboricultural report identifying all trees on the site and a tree retention plan identifying how the application responds to *Plan 8 – Native Vegetation Retention and Removal* and any tree protection requirements and guidelines in the *Minta Farm Precinct Structure Plan*;
- Potential bus route and bus stop locations prepared in consultation with Public Transport Victoria;
- Subdivision and Housing Design Guidelines, prepared to satisfaction of the responsible authority, which demonstrates how the proposal responds to and achieves the objectives and planning and design requirements and guidelines within the "Image, Character, Housing and Heritage" section of the *Minta Farm Precinct Structure Plan* incorporated into this scheme;
- Where relevant, demonstration of how the subdivision will respond sensitively to the heritage significance of the Myer House (Heritage Overlay - HO209) and its surrounding area.
- A response demonstrating how the subdivision responds to existing topography.
- A Site Management Plan that addresses bushfire risk during, and where necessary, after construction, to the satisfaction of the Country Fire Authority and the Responsible Authority. The plan must specify, amongst other things:
  - The staging of development and the likely bushfire risks at each stage;
  - An area of land between the development edge and non-urban areas consistent with the separation distances specified in AS3959-2009, where bushfire risk is managed to enable the development, on completion, to achieve a BAL-12.5 rating under AS3959-2009;
  - The land management measures to be undertaken by the developer to reduce the risk from fire within any surrounding rural or undeveloped landscape to protect residents and property from the threat of grassfire and bushfire; and
  - How adequate opportunities for access and egress will be provided for early residents, construction workers and emergency vehicles.

**Subdivision – Innovation and technology business sub-precinct and commercial and office sub-precinct.**

An application for subdivision in the innovation and technology business sub-precinct and commercial and office sub-precinct must include:

- A land budget table in the same format and methodology as those within the precinct structure plan applying to the land, setting out the amount of land allocated to the proposed uses and expected job yield.
- A demonstration of how the property will contribute to the achievement of the employment/job creation yields in the *Minta Farm Precinct Structure Plan* applying to the land.
- A written statement that sets out how the proposal implements the objectives and planning and design requirements and guidelines in accordance with the incorporated *Minta Farm Precinct Structure Plan*.
- A mobility plan that demonstrates how the local street and movement network integrates with adjacent urban development or is capable of integrating with future development on adjacent land parcels.

### Urban Design Framework

An application to construct a building or construct or carry out works in the urban design framework area, identified in Plan 6 of the *Minta Farm Precinct Structure Plan*, must be accompanied by a design response that provides an assessment against the Urban Design Framework approved under this schedule.

### Local Town Centres

An application to use, subdivide land, construct a building or construct or carry out works for a Local Town Centre must also include the following information, as appropriate, to the satisfaction of the responsible authority:

- A design response report and plans that:
  - Address the Local Town Centre requirements, the Local Town Centre Guidelines and the relevant Local Town Centre Concept Plan in the *Minta Farm Precinct Structure Plan*;
  - Address any relevant design guidelines prepared by the Victorian Government or Casey City Council;
  - Demonstrate how the proposal relates to existing or approved development in the area;
  - Demonstrate site responsive architecture and urban design;
  - Demonstrate how the proposal will contribute to the urban character of the Local Town Centre;
  - Explain how the proposal responds to feedback received following consultation with relevant infrastructure agencies.
  - Include environmental sustainability initiatives including integrated water management and energy conservation;
  - Include provisions for car parking including the location and design of car parking areas and car parking rates for proposed uses within the centre;
  - Address the provision of signs;
  - Include arrangements for the provision of service areas and for deliveries and waste disposal including access for larger vehicles and measures to minimise the impact on the amenity of the centre and adjoining neighbourhoods; and
  - Demonstrate how opportunities for medium and higher density housing and future commercial expansion can be incorporated into the centre (including on future upper levels and through future car park redevelopments).
- An overall landscape concept/master plan for the centre including a design of the urban plaza.

### Public Infrastructure Plan

An application for subdivision and/or use and development of land must be accompanied by a Public Infrastructure Plan which addresses the following:

- What land may be affected or required for the provision of infrastructure works;
- The provision, staging and timing of road works internal and external to the land consistent with any relevant traffic report or assessment;
- What, if any, infrastructure set out in the infrastructure contributions plan applying to the land is sought to be provided as "works in lieu" subject to the consent of the collecting agency;
- The provision of public open space and land for any community facilities; and
- Any other matter relevant to the provision of public infrastructure required by the responsible authority.

### Traffic Impact Assessment

An application that proposes to create or change access to a primary or secondary arterial road must be accompanied by a Traffic Impact Assessment Report (TIAR). The TIAR, including functional layout plans and a feasibility and/or concept road safety audit, must be to the satisfaction of VicRoads or Casey City Council, as required.

### Subdivide, Use or Develop Land for a Sensitive Use – Environmental Site Assessment

An application to subdivide land or use or develop land for a sensitive use (residential use, child care centre, pre-school centre or primary school) must be accompanied by an Environmental Site Assessment of the land prepared by a suitably qualified environmental professional to the satisfaction of the responsible authority, which takes account of the report titled '*Stage 1 and 2 – Desktop Environmental, Hydrogeological and Geotechnical Assessment (SKM, 17 February 2011)*' and includes the following information:

- Further detailed assessment of potential contaminants on the relevant land;
- Clear advice on whether the environmental condition of the land is suitable for the proposed use/s and whether an environmental audit of all, or part, of the land is recommended having regard to the *Potentially Contaminated Land General Practice Note June 2005, DSE*;
- Further detailed assessment of surface and subsurface water conditions and geotechnical characteristics on the relevant land and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater conditions and geology on the development and the impact of the development on surface and subsurface water; and
- Recommended remediation actions for any potentially contaminated land.

### Heritage Places

An application to subdivide land or to construct a building or construct and carry out works on land containing an identified heritage place(s) must:

- Address the proposed future use or adaptive reuse of the affected heritage place(s);
- Include a Heritage Conservation Management Plan for the heritage place(s) to the satisfaction of the responsible authority; and
- Include the provision of sufficient space around the heritage building to allow its adaptive reuse to comply with other planning requirements, such as car parking and landscaping.

## 4.0 Conditions and requirements for permits

28/11/2024
GC206

### Condition – Subdivision permits that allow the creation of a lot less than 300 square metres

A permit issued before 31 December 2026 to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan must be approved and endorsed by the responsible authority, that identifies the lots to which:

– type A or type B of the *Small Lot Housing Code* (Victorian Planning Authority, 2019) applies; or

– type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies

to the satisfaction of the responsible authority.

A permit issued on or after 31 December 2026, other than an amendment of a permit under section 72 of the Act issued before 31 December 2026, to subdivide land to create a lot of less than 300 square metres must include the following conditions:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan that identifies the lots to which type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies must be approved and endorsed by the responsible authority, to the satisfaction of the responsible authority.

**Requirement– Subdivision and Housing Design Guidelines**

The specific built form requirements arising out of the design guidelines prepared as part of the application for subdivision for lots adjacent to the eastern boundary of the precinct must be implemented via a restriction on title or any other alternative deemed satisfactory by the responsible authority.

**Conditions – Biodiversity and Threatened Species**

Any permit for subdivision must contain the following conditions:

**Condition - Fencing of conservation areas**

A permit granted to subdivide land where works are required to carry out the subdivision, or a permit granted to construct a building or carry out works, on land including or abutting a conservation area as shown in the *Minta Farm Precinct Structure Plan*, must include the following condition:

Prior to the commencement of development, a conservation area fencing plan must be submitted to and approved by the Secretary to the Department of Environment, Land, Water, and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) (Secretary) to ensure the conservation area is adequately protected. The fencing plan must contain the following:

- The boundaries of any conservation area, and the location of any scattered tree and the boundaries of any patch of native vegetation within the conservation area.
- The location and alignment of temporary protection fencing showing the following minimum distance from the element to be protected:

**Table 2**

| Element | Distance |
|---|---|
| Conservation area | 0.5 metres |
| Scattered tree | 12 x Diameter at a height of 1.3 metres |
| Patch of native vegetation | 2 metres |

- The timing of installation and removal of temporary protection fencing.
- The timing of installation of permanent fencing.
- Location and details of ongoing maintenance vehicle access points.
- The type of temporary and permanent fencing including materials, heights and spacing of uprights.
- Frequency of inspections and rectification works for temporary protection fencing.

Once approved the plan will form part of the permit and must be implemented to the satisfaction of the Secretary to the Department of Environment, Land, Water and Planning and the responsible authority.

Stockpiles, fill, machinery, vehicle parking, excavation and construction activity of any kind must not be bought into, or be undertaken within, the area to be fenced, except with the prior written consent from the Secretary.

**Condition – Correct alignment of protective fencing**

Buildings and works must not commence until written evidence that protection fencing has been erected in accordance with the approved Conservation Area Fencing Plan is provided by a suitably qualified land surveyor to the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) (Secretary), and the Secretary confirms it is satisfied by the evidence.

**Condition – Land management plan for conservation area**

A permit to subdivide land containing a conservation area as shown in the *Minta Farm Precinct Structure Plan* must include the following condition:

Prior to the commencement of development, a land management plan for the conservation area land must be prepared by a suitably qualified consultant, submitted to, and approved by the Secretary to the Department of Environment, Land, Water, and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) (Secretary). The land management plan must outline how the biodiversity values for the land identified in the *Biodiversity Conservation Strategy for Melbourne's Growth Corridors* (Department of Environment and Primary Industries, 2013) will be maintained, managed, and improved, including:

- How environmental weeds will be managed up until the securing of the conservation area.
- How any revegetation will be undertaken in coordination with weed management activities to prevent re-colonisation of weed species.
- How rubbish and hazards will be removed, and any contaminated material managed up until the securing of the conservation area.

Once approved the plan will form part of the permit and must be implemented to the satisfaction of the Secretary and the responsible authority.

**Conditions – Security of conservation land**

A permit to subdivide land containing a 'conservation area' as shown in the *Minta Farm Precinct Structure Plan* must include the following condition:

The owner of the land must, as part of the plan of subdivision (or the first plan of subdivision submitted for registration, in the case of any staged subdivision), create the 'conservation area' as a separate lot or reserve. The boundaries of the lot or reserve on the plan of subdivision are subject to the prior satisfaction of the Secretary to the Department of Environment, Land, Water and Planning as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987* (Secretary). The owner must further secure the conservation area, by causing that lot or reserve to be vested, transferred, or protected in perpetuity in one of the following ways:

- Prior to a statement of compliance being issued for the plan of subdivision (or, in the case of a staged subdivision, the plan of subdivision or masterplan which implements the first stage of the subdivision), enter into an agreement under section 173 of the *Planning and Environment Act 1987* by which the owner agrees to transfer ownership of the conservation area to, or to vest the conservation area in, the Minister responsible for section 5 of the *Crown Land (Reserves) Act 1978*, the Council or Melbourne Water. The transfer or vesting must either be for no or nominal consideration. The Secretary and the person or body to whom the land is to be transferred or vested must also be a party to the agreement. The terms of the agreement must include that the owner pays the reasonable costs of the other parties to the agreement that were incurred for the preparation, execution, and registration of the agreement. The owner must

cause the agreement to be registered prior to lodgement of the plan of subdivision for registration; or

- Prior to a statement of compliance being issued for the plan of subdivision (or, in the case of a staged subdivision, the plan of subdivision or masterplan which implements the first stage of the subdivision), enter into an agreement with the Secretary under section 69 of the *Conservation, Forests and Lands Act 1987*, which provides for the conservation and management of the conservation area by or on behalf of the owner in perpetuity. The terms of the agreement must include that the owner pays the reasonable costs of the Secretary incurred for the preparation, execution, and registration of the agreement. The owner must cause the agreement to be registered prior to lodgement of the plan of subdivision for registration.

The requirement to include the above condition does not apply if the permit applicant provides the responsible authority with a statement in writing from the Secretary, as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*, that the condition is not required because the Secretary is satisfied that either:

- the land containing the conservation area is expected to be further subdivided and a further planning permit will be required for that subdivision (to which the above condition requirement will apply); or
- the conservation area has been or will be otherwise secured in perpetuity.

**Condition – Construction environmental management plans**

A planning permit to subdivide land, construct a building, or construct or carry out works on or within 50 metres of land shown as a conservation area in the incorporated *Minta Farm Precinct Structure Plan* must include the following condition:

Before works start, a Construction Environmental Management Plan consistent with *DELWP requirements for Construction Environmental Management Plans under the Melbourne Strategic Assessment* (Department of Environment, Land, Water and Planning, November 2020) must be submitted to and approved by the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the Conservation, Forests and Lands Act 1987) and the responsible authority, demonstrating how the conservation area will be protected during works.

Once approved the plan will form part of the permit and must be implemented to the satisfaction of the Secretary and the responsible authority.

**Condition – Public transport**

- Unless otherwise agreed by Public Transport Victoria, prior to the issue of Statement of Compliance for any subdivision stage, bus stop hard stands with direct and safe pedestrian access to a pedestrian path must be constructed:
  - In accordance with the Public Transport Guidelines for Land Use and Development; and compliant with the Disability Discrimination Act – Disability Standards for Accessible Public Transport 2002.
  - At locations approved by Public Transport Victoria, at no cost to Public Transport Victoria, and to the satisfaction of Public Transport Victoria.

**Conditions – Subdivision or buildings and works permits where land is required for community facilities, public open space or road widening**

A permit for subdivision or buildings and works, where land is required for community facilities, public open space or road widening must include the following conditions:

- The costs associated with effecting the transfer or vesting of land required for community facilities, public open space or road widening must be borne by the permit holder.
- Land required for community facilities, public open space or road widening must be transferred to or vested in the relevant public agency with any designation (e.g. road, reserve or lot) nominated by the relevant agency.

#### Condition – Use or Develop Land for a Sensitive Use

- Before a plan of subdivision is certified under the *Subdivision Act 1988*, the recommendations of the Phase 2 Environmental Site Assessment submitted must be carried out to the satisfaction of the responsible authority.
- Upon receipt of the Phase 2 Environmental Site Assessment the owner must comply with any further requirements made by the responsible authority after having regard to the guidance set out in the General Practice Note on *Potentially Contaminated Land June 2005 (DSE)*. The plan of subdivision must not be certified until the responsible authority is satisfied that the land is suitable for the intended use.

#### Requirement – Management of bushfire risk during subdivisional works

A permit for subdivision that contains a condition requiring a construction management plan must ensure that the relevant plan addresses any potential bushfire risks arising from the land during construction and must include a statement from a suitably qualified professional that the proposed bushfire risk management measures are appropriate.

## 5.0 Exemption from notice and review

02/12/2022
C259case

None specified.

## 6.0 Decision guidelines

02/12/2022
C259case

None specified.

## 7.0 Signs

02/12/2022
C259case

The sign category for this land is the category specified in the zone applied to the land at Clause 2.2 of this schedule.

#### Land and home sales signs

Despite the provisions of Clause 52.05, signs promoting the sale of land or homes on the land (or on adjoining land in the same ownership) may be displayed without a permit provided:

- The display area for each sign does not exceed 10 square metres;
- Only one sign is displayed per road frontage. Where the property has a road frontage of more than 150 metres, multiple signs may be erected provided there is a minimum of 150 metres distance between each sign, with a total of not more than 4 signs per frontage;
- The sign is not animated, scrolling, electronic or internally illuminated sign;
- The sign is not displayed longer than 21 days after the sale (not settlement) of the last lot; and
- The sign is setback a minimum of 750 millimetres from the property boundary.

A permit may be granted to display a sign promoting the sale of land or homes on the land (or on adjoining land in the same ownership) with an area greater than 10 square metres.

If the sign does not meet all of the requirements listed above, it must comply with the provisions of Clause 52.05.

13/03/2026
C296case

# SCHEDULE 15 TO CLAUSE 37.07 URBAN GROWTH ZONE

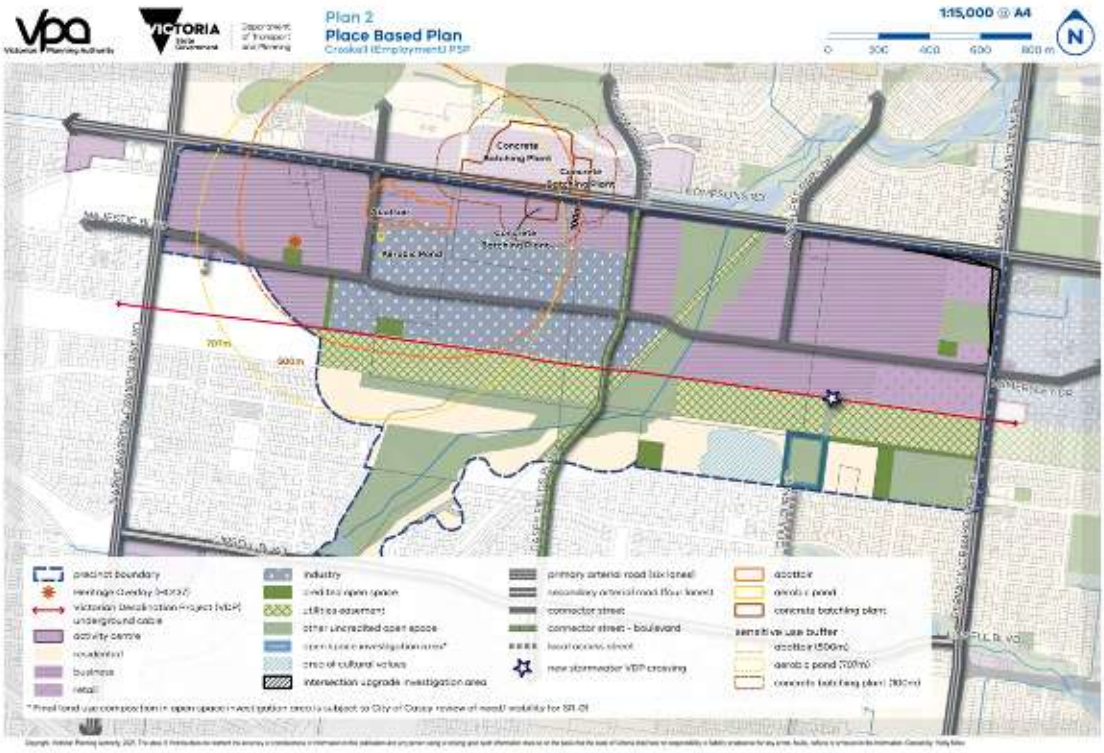
Shown on the planning scheme map as **UGZ15**.

## CROSKELL (EMPLOYMENT) PRECINCT STRUCTURE PLAN

## 1.0 The Plan

13/03/2026
C296case

Plan 1 shows the future urban structure proposed in the *Croskell (Employment) Precinct Structure Plan, October 2025*.




## 2.0 Use and development

13/03/2026
C296case

## 2.1 The Land

13/03/2026
C296case

The use and development provisions specified in this schedule apply to the land within the 'precinct boundary' on Plan 1 and shown as UGZ15 on the planning scheme maps. This schedule must be read in conjunction with the *Croskell (Employment) Precinct Structure Plan* (PSP).

*Note: If land shown on Plan 1 is not zoned UGZ15, the provisions of this schedule do not apply.*

## 2.2 Applied zone provisions

13/03/2026
C296case

Table 1 allocates the land use/development shown on Plan 1 of this schedule with a corresponding zone from this scheme.

Where the use/development in the left column is carried out or proposed generally in accordance with the *Croskell (Employment) Precinct Structure Plan*, the use, subdivision, construction of a building and construction and carrying out of works provisions of the corresponding zone in the right column apply.

A reference to a planning scheme zone in an applied zone must be read as if it were a reference to an applied zone under this schedule.

*Note: e.g. The General Residential Zone specifies 'Place of worship' as a Section 1 Use with the condition, 'The site must adjoin, or have access to, a road in a Transport Zone.' In this instance the condition should be read as, 'The site must adjoin, or have access to, a road in a Transport Zone or an applied Transport Zone in the Urban Growth Zone schedule applying to the land'.*

**Table 1: Applied zone provisions**

| Land shown on plan 1 of this schedule | Applied zone provisions |
|---|---|
| Residential<br>All other land | Clause 32.08 – General Residential Zone |
| Land shown on plan 1 of this schedule | Applied zone provisions |
| Industry | Clause 33.03 – Industrial 3 Zone |
| Land shown on plan 1 of this schedule | Applied zone provisions |
| Business / Retail<br>Other uncredited open space north of utilities easement | Clause 34.02 – Commercial 2 Zone |
| Land shown on plan 1 of this schedule | Applied zone provisions |
| Arterial Road | Clause 36.04 – Transport Zone 2 |

## 2.3 Specific provisions – Use of land

13/03/2026
C296case

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| Art Gallery<br>Museum<br>where the applied zone is Commercial 2 | Must not be on land shown within the Abattoir, Aerobic Pond and Concrete Batching Plant sensitive use buffers in Plan 1 of this Schedule |
| Bed and breakfast<br>Community care accommodation<br>Dwelling<br>Residential aged care facility<br>Rooming house<br>Small second dwelling<br>where the applied zone is General Residential Zone | Must not be on land shown within the Abattoir and Aerobic Pond sensitive use buffers in Plan 1 of this Schedule |
| Place of worship where the applied zone is General Residential Zone | Must not be on land shown within the Abattoir and Aerobic Pond sensitive use buffers in Plan 1 of this Schedule |
| Shop (other than Adult sex product shop) where the applied zone is Commercial 2 Zone | The combined leasable floor area of all shops in the precinct does not exceed: |

| Use | Condition |
|---|---|
| | ▪ 10,000 square metres for land shown as Business in the Croskell (Employment) Precinct Structure Plan.<br>▪ 25,000 square metres for land shown as Retail in the Croskell (Employment) Precinct Structure Plan. |
| Any use listed in Clause 62.01 | Must meet requirements of Clause 62.01. |

**Section 2 - Permit Required**

| Use | Condition |
|---|---|
| Cinema or Cinema-based entertainment facility where the applied zone is Commercial 2 Zone | |
| Any other use not in Section 1 or 3 in the Table of uses in the applicable applied zone | |

**Section 3 - Prohibited**

| Use |
|---|
| Any use listed in Section 3 in the Table of uses of the applicable applied zone |

## 2.4 Specific provisions - Subdivision

13/03/2026
C296case

None specified.

## 2.5 Specific provisions - Buildings and works

13/03/2026
C296case

**Buildings and works for future local parks and community facilities**

A permit is not required to construct a building or construct or carry out works for a local park, sport reserve or community facility provided the use or development is carried out generally in accordance with the *Croskell (Employment) Precinct Structure Plan* and with the prior written consent of Casey City Council.

**Buildings and works for a dwelling or small second dwelling within the Abattoir and Aerobic Pond sensitive use buffers**

A permit is not required to construct or extend a dwelling or a small second dwelling under the provisions of Clause 32.08-10 on land within the Sensitive Use Buffer - Abattoir and Aerobic Pond shown on Plan 1 of this Schedule, if the following apply:

- The lot has been created by a subdivision that has assessed the likelihood of offensive odour from the abattoir and aerobic pond through an Odour Environmental Risk Assessment prepared in accordance with the requirements of this Schedule and a planning permit granted for the use of the land as either a dwelling or small second dwelling, and
- There is a restriction registered on the plan of subdivision identifying the lot has been assessed by an Odour Environmental Risk Assessment and a planning permit granted for the use of the land as either a dwelling or small second dwelling.

### Dwellings on a lot less than 300 square metres

A permit is not required to construct or extend one dwelling on a lot of less than 300 square metres, if either of the following apply:

- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2019) incorporated into this planning scheme.
- There is a restriction registered on the plan of subdivision identifying the lot as a lot to which the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies and the development complies with the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) incorporated into this planning scheme.

## 3.0 Application requirements

13/03/2026
C296case

The following application requirements apply to an application for a permit under Clause 37.07, in addition to those specified in Clause 37.07 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority.

If in the opinion of the responsible authority an application requirement listed below is not relevant to the assessment of an application (except for a Preliminary Risk Screen Assessment) the responsible authority may waive or reduce the requirement.

### General Development

- A written statement that sets out how the application implements the *Croskell (Employment) Precinct Structure Plan.*
- A land use budget setting out the amount of land allocated to the proposed uses and expected population, dwelling and employment yields.
- A plan showing access arrangements for properties adjacent to all existing and future arterial roads.
- A hydrogeological assessment of the groundwater conditions on the site and the potential impacts on the proposed development including any measures required to mitigate the impacts of groundwater on the development and the impact of the development on groundwater.
- A Drainage and Integrated Water Management Plan.
- A Stormwater Management Plan, including Integrated Water Management Plan, that assesses the existing surface and subsurface drainage conditions on the site, addresses the provision, staging and timing of stormwater drainage works, including any proposed temporary outfall provisions, to the satisfaction of Casey City Council and Melbourne Water.
- A Landscape Master Plan that:
  - Shows natural features including trees and other significant vegetation, habitat for protected species, drainage lines, water courses, wetlands, ridgelines, hill tops and features of geomorphic significance;
  - Recognises and responds to sodic or dispersive soils;
  - Shows recreation facilities to be provided within public open space;
  - Shows storm water facilities that are compliant with the relevant approved drainage strategy;
  - Identifies vegetation to be retained and removed and any re-vegetation
  - Specifies tree species which are suitable to the local climate and soil conditions; and

  - Demonstrates how integrated water management and water sensitive design outcomes are to be implemented.

- Where relevant, demonstration of how the subdivision will respond sensitively to the heritage significance of the Springmont (Heritage Overlay – HO137) and its surrounding area.

**Residential Subdivision and Development**

In addition to the requirements listed under general subdivision and those requirements of Clause 56.01-2, a subdivision design response for subdivision of 10 lots or more must be accompanied by the information listed below.

An application for the construction of 10 or more dwellings on a lot must be accompanied by the same information:

- Subdivision and Housing Design Guidelines, in accordance with the *Croskell (Employment) Precinct Structure Plan*, that demonstrates how the proposal responds to and achieves the objectives and planning and design requirements and guidelines within the viable densities section of the PSP.
- A demonstration of how the application will contribute to the achievement of the residential density outcomes in Table 3 of the *Croskell (Employment) Precinct Structure Plan.*
- Written statement outlining how the proposal will contribute to the delivery of affordable housing in the precinct, including proposed delivery mechanisms.

**Public Infrastructure Plan**

An application to subdivide land, or to construct a building or construct and carry out works on land must be accompanied by a Public Infrastructure Plan which addresses the following:

- What land may be affected or required for the provision of infrastructure works;
- The provision, staging and timing of road works internal and external to the land consistent with any relevant traffic report or assessment;
- What, if any, infrastructure set out in the infrastructure contributions plan applying to the land is sought to be provided as "works in lieu" subject to the consent of the collecting agency;
- The provision of public open space and land for any community facilities; and
- Any other matter relevant to the provision of public infrastructure required by the responsible authority.

A Public Infrastructure Plan must be consistent with any Traffic Impact Assessment approved under this schedule.

**Traffic Impact Assessment**

An application that proposes to create or change access to a primary or secondary arterial road must be accompanied by a Traffic Impact Assessment Report (TIAR). The TIAR, including functional layout plans and a feasibility and/or concept road safety audit, must be to the satisfaction of the relevant road management authority, as required.

**Retail Impact Assessment**

An application to use land for a Shop where the combined leasable floor area of all shops exceeds the figure shown in the land use table at 2.3 of this schedule must be accompanied by a retail economic impact assessment prepared by a suitably qualified professional.

### Acoustic Assessment Report

Any application to use or subdivide land, or to construct a building or construct and carry out works on land for Accommodation, Education centre (other than Tertiary institution and Employment training centre) or Hospital, must be accompanied by an Acoustic Assessment Report prepared by a qualified acoustic engineer or other suitably skilled person to the satisfaction of the responsible authority which:

- Applies the following noise objectives:
  - Not greater than 35 dB LAeq,8h when measured within a sleeping area between 10pm and 6am.
  - Not greater than 40 dB LAeq,16h when measured within a living area between 6am and 10pm.
  - For areas other than sleeping and living areas, not greater than the median value of the range of recommended designed sound levels.
- Noise levels should be assessed:
  - Considering the cumulative noise from all sources impacting on the proposal including road traffic noise and industry noise, as well as other potential noise sources; and
  - In unfurnished rooms with a finished floor and the windows closed and be based on average external noise levels measured as part of a noise level assessment.
- Identifies lots and/or buildings requiring mitigation from noise from all sources impacting on the proposal, including road traffic noise and industry noise. If lots and/or buildings requiring acoustic mitigation are identified, the report should include recommendations for any noise attenuation measures required to meet the applicable noise level objectives. These recommendations should prioritise measures that benefit both outdoor and indoor spaces, and should address:
  - Noise compatible design for buildings, with siting, orientation, and internal layout, to be considered prior to setting building envelope performance requirements.
  - Potential noise character (tonality, impulsiveness or intermittency);
  - Noise with high energy in the low frequency range;
  - Transient or variable noise; and
  - Vibration.

This requirement does not apply if the permit applicant provides, to the satisfaction of the responsible authority, a statement in writing, supported by verifiable evidence, from a qualified acoustic engineer or other suitably skilled person to the satisfaction of the responsible authority that, having regard to Clause 13.05, the proposed development is not prejudiced and community amenity and human health is not adversely impacted by noise emissions, and that no noise attenuation measures are required.

### Bushfire Management Plan

An application to subdivide land adjacent to a Bushfire Hazard Area shown on Plan 10 Bushfire of the *Croskell (Employment) Precinct Structure Plan* must be accompanied by a Bushfire Management Plan that demonstrates how the application will address bushfire risk at the site. The plan must be prepared in accordance with the relevant requirements and guidelines of the *Croskell (Employment) Precinct Structure Plan*, unless otherwise agreed in writing by the Responsible Authority and relevant fire authority. The plan must include:

- The design and layout of the subdivision, including lot layout, road design and access points, both vehicular and pedestrian;

- The location of any bushfire hazard areas;
- The details of any bushfire protection measures required for individual lots;
- The identification of any areas to form the setback between a bushfire hazard and built form;
- The details of any vegetation management in any area of defendable space including, information on how vegetation will be managed and when the vegetation management will occur i.e. annually, quarterly, during the fire danger period; and
- Notation that indicated what authority is responsible for managing vegetation within open space areas.

The responsible authority and fire authority may waive this requirement if a plan has been approved for the land.

**Heritage Places**

An application to use or subdivide land, or to construct a building or construct and carry out works on land containing an identified heritage place(s) must:

- Address the proposed future use or adaptive reuse of the affected heritage place(s);
- Include a Heritage Conservation Management Plan for the heritage place(s) to the satisfaction of the responsible authority; and
- Include the provision of sufficient space around the heritage building to allow its adaptive reuse to comply with other planning requirements, such as car parking and landscaping.

**Applications within Sensitive Use Buffer - Concrete Batching Plant**

While land at 1550 and 1575 Thompsons Road, Cranbourne East are used for the purpose of a concrete batching plant, an application to use or subdivide land, or to construct a building or construct and carry out works on land for a sensitive use (including accommodation, education centre, place of assembly or public open space) located within the Sensitive Use Buffer - Concrete Batching Plant as shown on Plan 1 of this Schedule must be accompanied by an assessment prepared by a suitably experienced and qualified environmental consultant, which demonstrates that a variation to the Recommended separation distance for industrial residual air emissions (EPA Separation Distance Guideline August 2024) is justified and provides sufficient confidence that land can be appropriately developed for sensitive uses.

**Applications within Sensitive Use Buffer – Abattoir and Aerobic Pond**

While land at 1500 Thompsons Road, Cranbourne East is used for the purpose of an abattoir, an application to use or subdivide land, or to construct a building or construct and carry out works on land for a sensitive use (including accommodation, education centre, place of assembly or public open space) located within the Sensitive Use Buffer - Abattoir and Aerobic Pond shown on Plan 1 of this Schedule must be accompanied by an Odour Environmental Risk Assessment prepared by a suitably experienced and qualified person to the satisfaction of the responsible authority, in consultation with the Environment Protection Authority. The Odour Environmental Risk Assessment must be prepared in accordance with *EPA Publication 1883 Guidance for assessing odour (June 2022)* and *EPA Publication 1881 Guidance for field odour surveillance (May 2021)* (or any updated versions of these publications) and acknowledge abattoir operations and assess the risk of offence odour from the abattoir and aerobic pond on the proposed sensitive use of the land.

**Preliminary Risk Screen Assessment**

An application to subdivide land or to use land for a sensitive use (residential use, childcare centre, kindergarten, pre-school centre, primary school, even if ancillary to another use) or children's playground or secondary school, or construct or carry out buildings and works associated with these uses, and where identified as having a potential risk of contamination on Plan 1 of the *Croskell (Employment) Precinct Structure Plan* and described in Table 2 must be accompanied by either:

- A preliminary risk screen assessment statement issued in accordance with the *Environment Protection Act 2017* stating that an environmental audit is not required for the proposal; or
- An environmental audit statement issued under Part 8.3 of the *Environment Protection Act 2017* stating that the land is suitable for the proposal; or
- A certificate of environmental audit for the land issued in accordance with Part IXD of the Environment Protection Act 1970; or
- A statement of environmental audit for the land issued in accordance with Part IXD of the Environment Protection Act 1970 stating that the environmental conditions of the land are suitable for the proposal.

If an environmental audit statement under Part 8.3 of the *Environmental Protection Act 2017* has been issued stating that the land is suitable for the proposal, a condition must be included on the planning permit consistent with section 4.0 of this schedule.

Where a preliminary risk screen assessment (or environmental audit) has already been undertaken for the land, a further preliminary risk screen assessment (or environmental audit) may not be required, if the previous preliminary risk screen assessment (or environmental audit) has considered the relevant land uses.

This requirement does not apply to the construction or carrying out of buildings and works if:

- The buildings and works are associated with an existing sensitive use, secondary school or children's playground, included in Clause 62.02-1 or 62.02-2, and the soil is not disturbed;
- The buildings and works are required by the Environment Protection Authority Victoria or an environmental auditor appointed under the *Environment Protection Act 2017* to make the site suitable for use; or
- The buildings and works are reasonably required by the environmental auditor appointed under the *Environment Protection Act 2017* or the *Environment Protection Act 1970* to undertake a preliminary risk screen assessment or environmental audit.

This application requirement does not apply to buildings and works associated with a residential use established before the approval date of Amendment C296case or to any lot where the Environmental Audit Overlay applies.

**Table 2: Preliminary Risk Screen Assessment**

| Address | Legal Description |
|---|---|
| 1450 Thompsons Road Cranbourne East | Lot 2 PS729806 |
| 1454 Thompsons Road Cranbourne East | Lot 1 LP217543 |
| 1660 Thompsons Road Cranbourne East | Lot 10 PS729806 |
| 1670 Thompsons Road Cranbourne East | Lot 11 PS729806 |
| 80S Linsell Boulevard Cranbourne East | Lot C PS704181 |

**Preliminary Site Investigation**

An application to use, subdivide land (or, in the case of a staged subdivision, the plan of subdivision or masterplan which implements the first stage of the subdivision), construct a building or construct or carry out works associated with the use of the land for a Minor sports and recreation facility, Retail premises, Office, Agriculture, Informal outdoor recreation, Industry or Warehouse on land described in Table 3 must be accompanied by a Preliminary Site Investigation (PSI) prepared by a suitably qualified environmental consultant in accordance with the *National Environment Protection (Assessment of Site Contamination) Measure* (National Environment Protection Council, 1999) to the satisfaction of the responsible authority.

The PSI must make a recommendation as to:

- The likelihood of contamination and its potential to affect the planning proposal.
- Whether a risk-based remediation or management strategy can be derived or further investigation (such as an audit) is recommended.

**Table 3: Preliminary Site Investigation**

| Address | Legal Description |
|---|---|
| 1460 Thompsons Road Cranbourne East | Lot 3 PS729806 |
| 1468 Thompsons Road Cranbourne East | Lot 4 PS729806 |
| 1500 Thompsons Road Cranbourne East | Lot 5 PS729806 |
| 1500 Thompsons Road Cranbourne East | Lot 1 TP113854 |
| 1550 Thompsons Road Cranbourne East<br>1550T Thompsons Road Cranbourne East | Lot 7 PS729806 |
| 1520 Thompsons Road Cranbourne East | Lot 6 PS729806 |
| 1568 Thompsons Road Cranbourne East | Lot 9 PS729806 |
| 1580 Thompsons Road Cranbourne East<br>1580a Thompsons Road Cranbourne East<br>1580b Thompsons Road Cranbourne East | Lot 8 PS729806 |
| 37 Brocker Street Clyde North | Lot 1 PS706792 |
| 35 Brocker Street Clyde North | Lot 2 PS718150 |
| 585I Berwick-Cranbourne Road Clyde North | Lot Res 1 PS706792 |
| 90I Donohue Street Clyde North | Lot Res 2 PS706792 |

### Arboricultural Report

An application to subdivide land, or to construct a building or construct and carry out works on land and described in Table 4, must be accompanied by an Arboricultural Report identifying all trees on the site and a tree retention plan identifying how the application responds to tree protection requirements and guidelines within the *Croskell (Employment) Precinct Structure Plan*.

**Table 4: Arboricultural Report**

| Address | Legal Description |
|---|---|
| 1500 Thompsons Road Cranbourne East | Lot 5 PS729806 |
| 1500 Thompsons Road Cranbourne East | Lot 1 TP113854 |
| 1550T Thompsons Road Cranbourne East | Lot 7 PS729806 |

## 4.0 Conditions and requirements for permits

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C296case

The following conditions and requirements apply to a permit issued pursuant to this schedule, as appropriate, to the satisfaction of the responsible authority.

If in the opinion of the responsible authority (or for any condition or requirement expressed as requiring approval / endorsement by, or being required to the satisfaction of an agency, in the opinion of that agency and the responsible authority) a condition or requirement listed below, other than condition relating to Environmental Audit requirements, is not required, the responsible authority may waive or reduce the condition or requirement.

**Conditions – Subdivision permits that allow for the creation of a lot of less than 300 square metres**

A permit issued before 31 December 2026 which allows for the subdivision of land to create a lot of less than 300 square metres, must include the following condition:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan must be approved and endorsed by the responsible authority, that identifies the lots to which:
  - type A or type B of the *Small Lot Housing Code* (Victorian Planning Authority, 2019) applies; or
  - type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies to the satisfaction of the responsible authority.

A permit issued on or after 31 December 2026, other than an amendment of a permit issued before 31 December 2026 under section 72 of the Act, which allows for the subdivision of land to create a lot of less than 300 square metres, must include the following condition:

- Before the plan of subdivision is certified under the *Subdivision Act 1988*, a plan that identifies the lots to which type A, type B or type C of the *Small Lot Housing Code* (Victorian Planning Authority, November 2024) applies, must be approved and endorsed by the responsible authority.

**Conditions – Management of bushfire risk during subdivision works**

Prior to the commencement of works in an area adjacent to a Bushfire Hazard Area shown on Plan 10 of the *Croskell (Employment) Precinct Structure Plan*, a Site Management Plan prepared by a suitably qualified professional that addresses bushfire risk during, and where necessary, after construction must be approved by the Responsible Authority. The plan must specify:

- The staging of development and the likely bushfire risks at each stage;
- An area of land between the development edge and non urban areas consistent with the separation distances specified in AS3959-2018 or shown on any approved Bushfire Management Plan, where bushfire risk is managed to enable the development, on completion, to achieve a BAL-12.5 construction standard in accordance with AS3959- 2018;
- The land management measures to be undertaken by the developer to reduce the risk from fire within any surrounding rural or undeveloped landscape to protect residents and property from the threat of fire;
- How adequate opportunities for access and egress will be provided for early residents, construction workers and emergency vehicles.

All to the satisfaction of the Responsible Authority.

**Condition – Public transport**

Unless otherwise agreed by Head, Transport for Victoria, before a Statement of Compliance is issued for any subdivision stage, bus stop hard stands with direct and safe pedestrian access to a pedestrian path must be constructed:

- In accordance with the Public Transport Guidelines for Land Use and Development; and compliant with the Disability Discrimination Act – Disability Standards for accessible Public Transport 2002.
- At locations approved by Public Transport Victoria, at no cost to Public Transport Victoria, and to the satisfaction of Head, Transport for Victoria.

**Condition – Road network**

Any permit for subdivision or buildings and works requiring road widening must contain the following conditions:

- Prior to the certification of a plan of subdivision, the plan of subdivision must show the land affected by the widening of the road reserve which is required to provide road widening and/or right of way flaring for the ultimate design of any adjacent intersection.
- Land required for road widening including right of way flaring for the ultimate design of any intersection within an existing or proposed arterial road must be transferred to or vested in council at no cost to the acquiring agency unless funded by the *Croskell (Employment) Infrastructure Contributions Plan*.

**Conditions – Subdivision or buildings and works permits where land is required for community facilities, public open space, or road widening**

A permit for subdivision or buildings and works, where land is required for community facilities, public open space or road widening must include the following conditions:

- The costs associated with effecting the transfer or vesting of land required for community facilities, public open space or road widening must be borne by the permit holder.
- Land required for community facilities, public open space or road widening must be transferred to or vested in the relevant public agency with any designation (e.g. road, reserve or lot) nominated by the relevant agency.

**Condition – Public Infrastructure Plan**

Any permit for subdivision must contain the following condition:

- Prior to the certification of a plan of subdivision or at such other time which is agreed between the council and the owner, if required by the responsible authority or the owner, the owner must enter into an agreement or agreements under section 173 of the Planning and Environment Act 1987 which provide for:
  - The implementation of the Public Infrastructure Plan approved under this permit.
  - The timing of any payments to be made to a person in respect of any infrastructure project having regard to the availability of funds in the Infrastructure Contributions Plan.

**Condition – Environmental Audit**

Any permit to subdivide land, or to use land for a sensitive use (residential use, childcare centre, kindergarten, pre-school centre, primary school, even if ancillary to another use) or children's playground or secondary school, or to construct or carry out buildings and works associated with these uses, and where an environmental audit statement under Part 8.3 of the *Environment Protection Act 2017* has been issued stating that the land is suitable for the use or proposed use subject to recommendations:

- The recommendations that relate to the use and development of the land must be complied with to the satisfaction of the responsible authority before the use or development commences; and
- Written confirmation of compliance with any recommendations in the environmental audit statement must be provided by a suitably qualified environmental professional (with the costs borne by the applicant) to the satisfaction of the responsible authority. Compliance sign-off must be in accordance with any requirements in the environmental audit statement recommendations regarding verifications of works.

Where recommendations of the Environmental Audit Statement require significant ongoing maintenance and/or monitoring, the applicant must enter into an agreement with the responsible authority under section 173 of the *Planning and Environment Act 1987*. The section 173 agreement must be executed on the title of the relevant land prior to the grant of a permit to develop the land,

unless otherwise agreed to by the responsible authority. The applicant must meet all costs associated with the drafting and execution of the agreement, including those incurred by the responsible authority.

**Condition – Stormwater Management Plan**

A permit to subdivide land, or to construct a building or construct or carry out works on land must include the following condition:

- Unless otherwise agreed by the Responsible Authority and Melbourne Water, before certification of the plan of subdivision, or the commencement of development the Stormwater Management Plan must be approved by Melbourne Water and endorsed by the Responsible Authority.

**Condition – Land Management Plan**

A permit to develop land identified in Plan 1 of this schedule as 'Culturally Sensitive Area' must include the following conditions if the City of Casey or any other public agency agree in writing to become the acquiring authority for the land:

Land Management Plan

Unless otherwise agreed by the Responsible Authority, prior to the certification of a plan of subdivision, or, the commencement of development, a Land Management Plan for the Culturally Sensitive Area identified in Plan 1 of this schedule must be prepared by a suitably qualified professional to the satisfaction of the Responsible Authority. The Land Management Plan must detail ongoing vegetation and weed management actions and be to the satisfaction of the Bunurong Land Council Aboriginal Corporation.

Once approved the Land Management Plan will be endorsed and form part of the permit.

Implementation of Land Management Plan

Unless otherwise agreed by the Responsible Authority, before a statement of compliance for a plan of subdivision is issued, or, the occupation of development, the owner must enter into an agreement with the Responsible Authority under Section 173 of the Planning and Environment Act 1987. The agreement must provide for:

- Implementation of the endorsed Land Management Plan; and
- The timeframe for the transfer to or vesting of the Culturally Sensitive Area.

The owner and/or developer must pay the Responsible Authority's reasonable costs for the preparation, review, execution and registration of the Section 173 Agreement.

**Requirement – Acoustic Report**

Any permit to use or subdivide land, or to construct a building or construct and carry out works on land where an acoustic assessment report has identified that mitigation from noise sources is required, must implement any recommendations of the acoustic assessment report submitted with the application and include any conditions necessary, in the opinion of the responsible authority, to implement noise attenuation measurers.

All to the satisfaction of the responsible authority.

## 5.0 Exemption from notice and review

13/03/2026
C296case

None specified.

## 6.0 Decision guidelines

13/03/2026
C296case

The following decision guidelines apply to an application for a permit under Clause 37.07, in addition to those specified in Clause 37.07 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

### Affordable Housing

Before deciding on an application to develop or subdivide land for dwellings, the responsible authority must consider, as appropriate:

- Whether the proposed subdivision application contributes towards the provision of affordable housing
- The Ministerial Notice under 3AA(2) of the Act, as amended from time to time.

### Noise impacts

Before deciding on a permit application under this schedule the responsible authority must consider, as appropriate:

- If Accommodation, Hospital or Education centre (other than Tertiary Institution and Employment Training Centre) is proposed, whether the proposal minimises the impact on human health and amenity from noise exposure near the transport system and other noise emission sources having regard to:
  - the impact of potential noise sources have been mitigated through siting, orientation design, layout, and location; and whether this reduces the need for acoustic treatment of buildings or compromises the useability of the building by its occupant;
  - Any building façade treatments that are required to mitigate noise impacts; and
  - Any relevant recommendations of an Acoustic Assessment Report for the application.

### Retail impact assessment

Before deciding on an application to create Shop floorspace above the square metres permitted 'as of right' for the Business, and Retail land shown on Plan 1 of this schedule, the responsible authority must consider, as appropriate:

- The local catchment and PSP catchment demand for the additional floor area; and
- The effect on existing nearby centres.

### Sensitive Use Buffer – Concrete Batching Plant

Before deciding on an application for a sensitive use, or development associated with a sensitive use, within the Sensitive Use Buffer - Concrete Batching Plant shown on Plan 1 of this Schedule, in addition to the decision guidelines in Clause 37.07-14 and Clause 65, the responsible authority must consider, as appropriate:

- Any effect that emissions of noise, vibration, odour, and dust may have on the proposed use or development.
- The risk of harm from dust based on the size of the dust source, the type of dust emission, the frequency, intensity and duration of the dust emission and the level of dust control implemented as demonstrated by an appropriate risk assessment.
- If operations have ceased.

### Sensitive Use Buffer – Abattoir and Aerobic Pond

Before deciding on an application for a sensitive use, or development associated with a sensitive use, within the Sensitive Use Buffer - Abattoir and Aerobic Pond shown on Plan 1 of this Schedule, in addition to the decision guidelines in Clause 37.07-14 and Clause 65, the responsible authority must consider, as appropriate:

- Any effect that emissions of odour from the abattoir may have on the proposed use or development.

- The risk of harm from odour based on the type of odour emission, and the frequency, intensity and duration of the odour emission and the level of odour emission control implemented as demonstrated by an appropriate risk assessment.
- If there are likely to be odour levels arising from the abattoir which would have a detrimental impact on the amenity of the sensitive use.
- If operations have ceased.

## 7.0 Signs

13/03/2026
C296case

None specified.

## 37.08 ACTIVITY CENTRE ZONE

31/07/2018
VC148

Shown on the planning scheme map as **ACZ** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To encourage a mixture of uses and the intensive development of the activity centre:

- As a focus for business, shopping, working, housing, leisure, transport and community facilities.
- To support sustainable urban outcomes that maximise the use of infrastructure and public transport.

To deliver a diversity of housing at higher densities to make optimum use of the facilities and services.

To create through good urban design an attractive, pleasant, walkable, safe and stimulating environment.

To facilitate use and development of land in accordance with the Development Framework for the activity centre.

## 37.08-1 Operation

17/09/2009
VC59

A schedule to this zone comprises the Development Framework for the activity centre.

A schedule to this zone must contain:

- A framework plan for the activity centre.
- A statement of the activity centre land use and development objectives to be achieved.

A schedule to this zone may contain:

- Centre-wide provisions.
- Precinct provisions.

## 37.08-2 Table of uses

17/09/2009
VC59

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Any use in Section 1 of the schedule to this zone** | Must comply with any condition in Section 1 of the schedule to this zone. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Any use in Section 2 of the schedule to this zone** | Must comply with any condition in Section 2 of the schedule to this zone. |

### Section 3 - Prohibited

| Use |
|---|
| **Any use in Section 3 of the schedule to this zone** |

## 37.08-3 Use of land

17/09/2009
VC59

Any requirement in the schedule to this zone must be met.

## 37.08-4 Subdivision

14/12/2023
VC253

A permit is required to subdivide land.

Any requirement in the schedule to this zone must be met.

A permit must not be granted which would allow a separate lot to be created for land containing a small second dwelling.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Subdivide land to realign the common boundary between 2 lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within 5 years prior to the application for a permit for subdivision. | Clause 59.02 |
| Subdivide land into 2 lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land:<br>– Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | Clause 59.02 |

## 37.08-5 Buildings and works

20/04/2026
VC307

A permit is required to construct a building or construct or carry out works unless the schedule to this zone specifies otherwise.

An apartment development must meet the requirements of Clause 58.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a building or construct or carry out works with an estimated cost of up to $700,000 and the land is not:<br>▪ Within 30 metres of land (not a road) which is in a residential zone.<br>▪ Used for a purpose listed in the table to Clause 53.10. | Clause 59.04 |

### Transitional provisions

Clause 58 does not apply to:

- An application for a planning permit lodged before the approval date of Amendment VC136.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before the approval date of Amendment VC136.

## 37.08-6 Design and development

17/09/2009
VC59

A schedule to this zone may include requirements relating to:

- Building setbacks.
- Building height.
- Building materials.
- Access.
- Landscaping.
- Public realm.
- Any other requirements or guidelines relating to the design or built form of new development.

A permit may be granted to construct a building or construct or carry out works which is not in accordance with any design and development requirement in the schedule to this zone unless the schedule to this zone specifies otherwise.

## 37.08-7 Application requirements

14/01/2025
VC237

### Use

An application to use land must be accompanied by the following information, as appropriate:

- A description of the proposed use and the types of activities which will be carried out and any proposed staging of use and activities on the land.
- Plans drawn to scale and dimensioned which show:
  - The siting and use of buildings.
  - Areas not required for immediate use.
  - Adjacent buildings and uses.
- The likely effects, if any, on adjoining land, including noise levels, traffic, the hours of delivery and despatch of goods and materials, hours of operation and light spill, solar access, glare, air-borne emissions and emissions to land and water.
- If an industry or warehouse:
  - The type and quantity of goods to be stored, processed or produced.

  - Whether a Development Licence, Operating Licence, Permit or Registration is required from the Environment Protection Authority.
  - Whether a notification under the Occupational Health and Safety Regulations 2017 is required, a licence under the *Dangerous Goods Act 1985* is required, or a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2022 is exceeded.
- Any other information specified in the schedule to this zone.

**Subdivision**

An application to subdivide land must be accompanied by the following information, as appropriate:

- Plans drawn to scale and dimensioned which show:
  - Site shape, size, dimensions and orientation.
  - The pattern of subdivision of the surrounding area.
  - Easements.
  - Location of drainage and other utilities.
  - Street frontage features such as poles, street trees and kerb crossovers.
  - Access points.
  - Any natural features.
- Any other information specified in the schedule to this zone.

**Buildings and works**

An application to construct a building or construct or carry out works must be accompanied by the following information, as appropriate:

- Plans drawn to scale and dimensioned which show:
  - The boundaries and dimensions of the site.
  - Adjoining roads.
  - The location, height and use of buildings and works on adjoining land.
  - Levels of the site and the difference in levels between the site and surrounding properties to a defined point at the site boundaries or to Australian Height Datum (AHD).
  - Any contaminated soils and filled areas, where known.
  - The layout of existing and proposed buildings and works.
  - The internal layout and use of the proposed development.
  - All access and pedestrian areas.
  - All driveway, car parking and loading areas.
  - Existing vegetation and proposed landscape areas.
  - All external storage and waste treatment areas.
  - The location of easements and services.
- Elevation plans drawn to scale and dimensioned which show:
  - The building form and scale.

  - Setbacks to property boundaries.
  - Finished floor levels and building heights to a defined point at the site boundaries or to Australian Height Datum (AHD).
- Shadow diagrams based on the equinox shown for existing conditions and the proposed development.
- A schedule of finishes for the proposed development detailing materials and colours of external surfaces including walls, roofs and fences.
- A written statement providing an assessment of the proposal against the relevant sections of the Planning Policy Framework, Activity Centre Zone and any relevant overlays.
- An assessment of the characteristics of the area including:
  - Any environmental features such as vegetation, topography and significant views.
  - Street design and landscape.
  - The pattern of development.
  - Building form, scale and rhythm.
  - Architectural style, building details and materials.
  - Connection to the public realm.
  - Any significant noise, odour, fume and vibration sources to and/or from the development.
- A landscape plan which includes the description of vegetation to be planted, the surfaces to be constructed, site works specification and method of preparing, draining, watering and maintaining the landscape area.
- Construction details of all drainage works, driveways, vehicle parking and loading areas.
- An urban context report and design response as required in Clause 58.01 for an application to construct or extend an apartment development, or to construct or extend a dwelling in or forming part of an apartment development.
- Any other information specified in the schedule to this zone.

## 37.08-8 Exemption from notice and review

31/07/2018
VC148

An application under Clauses 37.08-2, 37.08-4, 37.08-5 or 37.08-6 is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act unless the schedule to this zone specifies otherwise.

A schedule to this zone may specify an application in respect of land in an Activity Centre Zone under any other specified provision of this scheme is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 37.08-9 Decision guidelines

08/09/2025
VC282

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

### General

- The Municipal Planning Strategy and the Planning Policy Framework.
- The development framework plan set out in the schedule to this zone.
- The land use and development objectives set out in the schedule to this zone.

- The extent that the layout and design of the new use or development minimises the potential for off-site impacts, including from noise, fumes, odour or vibrations, ensuring that:
  - existing uses are not compromised by a new development, or
  - a new development is designed to address amenity impacts from existing uses.
- Any requirements set out in the schedule to this zone.
- Any other decision guidelines specified in the schedule to this zone.

**Access**

- Movements systems through and around the site including the movement of pedestrians and cyclists, and vehicles providing for supplies, waste removal, emergency services and public transport.
- The provision of car parking, loading of vehicles and access to parking spaces and loading bays.

**Use**

- The interim use of those parts of the land not required for the proposed use.
- Whether the use is compatible with adjoining and nearby land uses.

**Subdivision**

- The pattern of subdivision and its effect on the spacing of buildings.
- For subdivision of land for residential development, the objectives and standards of Clause 56.

**Design and built form**

- The design, scale, height, setback, appearance and material of the proposed buildings and works.
- The provision for solar access to the building and on the public realm.
- The design of the public realm.
- The relationship between the proposed building and the public realm.
- The streetscape, including the conservation of buildings, the design of verandas, access from the street front, provision of active frontages to pedestrian areas, the treatment of the fronts and backs of buildings and their appurtenances, illumination of buildings or their immediate spaces and the landscaping of land adjoining a road.
- The interface with adjoining zones, especially the relationship with residential zones.
- The objectives, standards and decision guidelines of Clause 54. Clause 55 and Clause 57. This does not apply to an apartment development.
- For an apartment development, the objectives, standards and decision guidelines of Clause 58.
- The storage of rubbish and materials for recycling.

**Transitional provisions**

The objectives, standards and decision guidelines of Clause 55 of this scheme, as in force immediately before the approval date of Amendment VC136, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clauses 55 and 58 of this scheme, as in force immediately before the approval date of Amendment VC174, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 55 of this planning scheme, as in force immediately before the approval date of Amendment VC267, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

Clause 54 of this planning scheme, as in force immediately before the commencement of Amendment VC282, continue to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 37.08-10 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05. This zone is in Category 1 unless a schedule to this zone specifies a different category.

## 37.08-11 Other provisions of the scheme

17/09/2009
VC59

The schedule to this zone may specify that other provisions of the scheme do not apply.

28/11/2023
C275case

# SCHEDULE 1 TO CLAUSE 37.08 ACTIVITY CENTRE ZONE

Shown on the planning scheme map as **ACZ1**.

## CRANBOURNE MAJOR ACTIVITY CENTRE

## 1.0

28/11/2023
C275case

## Cranbourne Major Activity Centre Framework Plan



## 2.0 Land use and development objectives to be achieved

28/11/2023
C275case

### Use

- To encourage uses which support the centre to be an active, attractive and safe place for the community to live, work and socialise.
- To support uses which generate activation throughout the day and night in the non-residential precincts of the centre.
- To recognise the important role the centre plays in providing community services.

### Built form

- To facilitate high quality building design and ensure development incorporates building materials which are durable and low maintenance.
- To minimise the impact of non-residential development adjoining residential areas through acoustic protection and landscape buffers.
- To encourage commercial uses at ground level along street frontages in non-residential precincts.
- To avoid large freestanding signs and signs becoming a dominant feature in the streetscape by ensuring they are well-designed and integrated into the built form where possible.
- To avoid high and visually impermeable fencing along streets, laneways and public areas and where this cannot be avoided ensure fencing is attenuated with landscaping.
- To encourage development adjoining gateways and secondary gateway nodes that provides a sense of arrival, acts as a focal point and positively contributes to creating a contemporary character.
- To avoid the underdevelopment of land which would limit its future development potential.

### Access and movement

- To support east-west connections within the centre to increase and prioritise active transport modes and accessibility to the residential area to the west.
- To support Lyall Street as the primary east-west active and public transport link between the mixed-use commercial core and the Casey Complex and surrounds.
- To ensure redevelopment of large sites improves accessibility by including pedestrian accessways.

### Environment, landscape and open space

- To encourage high quality landscape design.
- To support development that incorporates water sensitive urban design and integrated water management including landscape design.
- To improve the pedestrian environment by shading footpaths with awnings and tree canopy cover and incorporating vegetation into building design.
- To create buildings which maximise natural light and ventilation and require minimal heating and cooling.
- To encourage green infrastructure such as water re-use, tree planting, vegetation incorporated into building design and water-sensitive urban design.
- To enhance the landscape character of the centre by drawing on surrounding features such as the Cranbourne Gardens, Avenue of Honour, Cranbourne Racecourse and Recreation Reserve, boulevards and wide tree-lined streets and incorporate this into the design of public and private open space.

## 3.0 Table of uses

08/05/2026
C304case

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Accommodation (other than Camping and caravan park, Corrective institution, Dependent person's unit, Group accommodation, Host farm and Residential building)** | Must be in Precinct 1, 3 or 4.<br>In Precinct 1 or 4 any frontage at ground floor level must not exceed 2 metres. |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square meters. |
| **Cinema**<br>**Cinema-based entertainment facility** | Must be in Precinct 1 or 2.<br>In Precinct 2, the site must have access to, or adjoin, a road in a Transport Zone. |
| **Exhibition centre** | Must be in Precinct 1 or 4. |
| **Food and drink premises** | Must be in Precinct 1, 2 or 4.<br>In Precinct 2 or 4 the leasable floor area must not exceed 100 square metres. |
| **Industry (other than Automated collection point, Materials recycling, Refuse disposal, Research and development centre, Rural industry, Service industry and Transfer station)** | Must be in Precinct 2.<br>Must not be a purpose listed in the table to Clause 53.10 except boiler makers, bakery, small goods production and joinery.<br>The land must be at least the following distances from land (not a road) which is in Precinct 1, 2 or 4, a residential zone, land used for a hospital, an education centre or a corrective institution or land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution:<br>▪ The threshold distance, for a purpose listed in the table to Clause 53.10.<br>▪ 30 metres, for a purpose not listed in the table to Clause 53.10.<br>Must not:<br>▪ Exceed a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2012.<br>▪ Require a notification under the Occupational Health and Safety Regulations 2017.<br>▪ Require a license under the Dangerous Goods (explosives) Regulations 2011.<br>▪ Require a license under the Dangerous Goods (HCDG) Regulations 2016. |
| **Informal outdoor recreation** | |
| **Major sport and recreation facility** | Must be in Precinct 4. |

| Use | Condition |
|---|---|
| **Medical centre** | In Precinct 1, 2 or 4 any frontage at ground floor level must not exceed 2 metres except where the floor space adjoining the frontage is a customer service area accessible to the public.<br><br>In Precinct 3 the gross floor area of all buildings must not exceed 250 square metres. |
| **Office (other than medical centre)** | Must be in Precinct 1 or 4.<br><br>Any frontage at ground floor level must not exceed 2 metres, unless the office is a bank, real estate agency, travel agency, or other office where the space adjoining the frontage is a customer service area accessible to the public. |
| **Place of worship** | Must be in Precinct 1 or 3.<br><br>The gross floor area of all buildings must not exceed 250 square metres.<br><br>In Precinct 3 the site must adjoin, or have access to, a road in a Transport Zone. |
| **Postal agency** | In Precinct 3:<br><br>▪ The land must be located within 100 metres of land in Precinct 1, 2 or 4 and have the same street frontage as that land.<br><br>▪ The leasable floor area must not exceed 250 square metres. |
| **Racing dog husbandry** | Must be in Precinct 3.<br><br>Must be no more than 2 animals. |
| **Research and development centre** | Must be in Precinct 1, 2 or 4.<br><br>Any frontage at ground floor level must not exceed 2 metres except where the floor space adjoining the frontage is a customer service area accessible to the public. |
| **Restricted retail premises**<br><br>**Retail premises (other than Food and drink premises, Gambling premises, Motor vehicle, boat or caravan sales, Postal agency and Shop)** | Must be in Sub-precinct 1B or Precinct 2. |
| **Service industry (other than motor repairs)** | Must be in Precinct 2.<br><br>Must not be a purpose listed in the table to Clause 53.10. |
| **Shop** | Must not be in Precinct 3.<br><br>In Precinct 4 the combined leasable floor area must not exceed 250 square metres.<br><br>In Precinct 2:<br><br>▪ Must adjoin, or be on the same land as, a supermarket when the use commences. |

| Use | Condition |
|---|---|
| | ▪ The combined leasable floor area for all shops adjoining or on the same land as the supermarket must not exceed 500 square metres.<br>▪ The site must adjoin, or have access to, a road in a Transport Zone. |
| **Supermarket** | Must be in Precinct 1.<br>The leasable floor area must not exceed 4000 square metres. |
| **Any use listed in Clause 62.01** | Must meet requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Adult sex product shop** | Must be in Precinct 1 or 2.<br>Must be at least 200 metres (measured by the shortest route reasonably accessible on foot) from Precinct 3 or a residential zone, land used for a hospital, primary school or secondary school or land in a Public Acquisition Overlay to be acquired for a hospital, primary school or secondary school. |
| **Agriculture (other than Animal production, Animal training, Domestic animal husbandry, Horse husbandry, Racing dog husbandry, Rice growing and Timber production)** | |
| **Bar** | Must be in Precinct 1, 2 or 4. |
| **Bottle shop** | Must be in Precinct 1 or 2.<br>In Precinct 2, the site must adjoin, or have access to, a road in a Transport Zone. |
| **Camping and caravan park** | Must be in Precinct 1 or 4.<br>Must be in conjunction with a food and drink premises. |
| **Car park** | Must be in conjunction with another use in Section 1 or 2. |
| **Car wash** | In Precinct 3 or 4 must have access to a road in a Transport Zone. |
| **Caretaker's house** | |
| **Cinema**<br>**Cinema-based entertainment facility** | Must be in Precinct 2 or 4. |
| **Dependent person's unit** | Must be in Precinct 1, 3 or 4. |
| **Domestic animal boarding** | Must be in Precinct 1, 2 or 4. |

| Use | Condition |
|---|---|
| **Domestic animal husbandry (other than Domestic animal boarding)** | In Precinct 3 must be no more than 5 animals. |
| **Dry cleaning** | Must be in Precinct 1, 2 or 4. |
| **Dwelling (other than Caretaker's house)**<br>**Education centre (other than Employment training centre and Tertiary institution)** | Must be in Precinct 1, 3 or 4. |
| **Exhibition centre** | Must be in Precinct 3. |
| **Extractive industry** | Must be in Precinct 1, 2 or 4. |
| **Employment training centre**<br>**Food and drink premises (other than Bar and Hotel)** | In Precinct 3:<br>▪ The land must be located within 100 metres of land in Precinct 1, 2 or 4 and have the same street frontage as that land.<br>▪ The leasable floor area must not exceed 250 square metres. |
| **Gambling premises** | Must be in Precinct 1. |
| **Hotel** | Must be in Precinct 1, 2 or 4. |
| **Industry (other than Automated collection point, Materials recycling, Refuse disposal, Research and development centre, Rural industry, Service industry and Transfer station)** | Must be in Precinct 1 or 4.<br>Must not be a purpose listed in the table to Clause 53.10. |
| **Landscape gardening supplies** | Must be in Precinct 1 or 4. |
| **Leisure and recreation (other than Informal outdoor recreation, Major sports and recreation facility and Motor racing track)**<br>**Mail centre** | |
| **Major sport and recreation facility** | Must not be in Precinct 1, 2 or 3. |
| **Manufacturing sales**<br>**Market** | Must be in Precinct 1 and 4. |
| **Materials recycling**<br>**Motor repairs** | Must be in Precinct 2. |
| **Motor vehicle, boat or caravan sales** | Must be in Precinct 2 or Sub-precinct 1B. |
| **Office (other than Medical centre)** | In Precinct 3:<br>▪ The land must be located within 100 metres of land in Precinct 1, 2 or 4 and have the same street frontage as that land.<br>▪ The leasable floor area must not exceed 250 square metres. |

| Use | Condition |
|---|---|
| **Place of assembly (other than Cinema, Cinema-based entertainment facility, Exhibition centre and Place of worship)** | Must be in Precinct 1, 2 or 4. |
| **Place of worship** | In Precinct 2 the site must adjoin, or have access to, a road in a Transport Zone. |
| **Racing dog husbandry** | In Precinct 3 must be no more than 5 animals. |
| **Residential building (other than Residential hotel)** | Must be in Precinct 1, 3 or 4. |
| **Residential hotel** | Must be in Precinct 1, 2 or 4. |
| **Research and development centre** | In Precinct 3:<br>▪ The land must be located within 100 metres of land in Precinct 1, 2 or 4 and have the same street frontage as that land.<br>▪ The leasable floor area must not exceed 250 square metres. |
| **Restricted retail premises** | Must not be in Precinct 3. |
| **Service station** | The site must not exceed 3,000 square metres.<br>In Precinct 3:<br>▪ The land must adjoin Precinct 1 or 2; or<br>▪ The land must adjoin or have access to, a road in a Transport Zone. |
| **Store** | In Precinct 3 must be a building, not a dwelling, and used to store equipment, goods, or motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot. |
| **Supermarket** | Must be in Precinct 1, 2 or 4.<br>In Precinct 2 or 4 the leasable floor area must not exceed 1,800 square metres. |
| **Tertiary institution** | In Precinct 3:<br>▪ The land must be located within 100 metres of land in Precinct 1, 2 or 4 and have the same street frontage as that land.<br>▪ The leasable floor area must not exceed 250 square metres. |
| **Trade supplies** | Must not be in Precinct 3. |
| **Transport terminal** | Must be in Precinct 1, 2 or 4. |
| **Utility installation (other than Minor utility installation and Telecommunications facility)** | |

| Use | Condition |
|---|---|
| **Warehouse (other than Mail centre)** | Must be in Precinct 1, 2 or 4.<br>Must not be a purpose listed in the table to Clause 53.10. |
| **Any other use not in Section 1 or 3** | |

**Section 3 – Prohibited**

| Use |
|---|
| **Animal production (other than Grazing animal production)** |
| **Animal training** |
| **Corrective institution** |
| **Horse husbandry** |
| **Host farm** |
| **Motor racing track** |
| **Refuse disposal** |
| **Rice growing** |
| **Rural industry** |
| **Sale yard** |
| **Transfer station** |
| **Timber production** |

## 4.0 Centre-wide provisions

28/11/2023
C275case

## 4.1 Use of land

28/11/2023
C275case

A permit is not required to use land for the purpose of local government, provided the use is conducted by or on behalf of the public land manager.

## 4.2 Subdivision

28/11/2023
C275case

In Precinct 3, an application to subdivide land, other than an application to subdivide land into lots each containing an existing dwelling or car parking spaces, must meet the requirements of Clause 56.

## 4.3 Buildings and works

28/11/2023
C275case

No permit is required to construct a building or construct or carry out works for the following:

- The installation of an automatic teller machine.
- The alteration of an existing building facade provided:
  - The alteration does not include the installation of an external roller shutter.
  - At least 80% of the building facade at ground floor is maintained as an entry or windows with clear glazing and the alteration does not include obstructing views into a premises including through the application of a film, covering or screening which is less than 75% visually transparent on or near any clear glazing which forms part of the facade.

- An awning which projects over a road, if it is authorised by the relevant public land manager.
- Buildings and works for the purpose of local government, provided the use is conducted by or on behalf of the public land manager.
- Construct or carry out works normal to a dwelling.
- Construct or extend an outbuilding (other than a garage or car port) associated with a dwelling provided the gross floor area does not exceed 10 square metres, the maximum building height is not greater than 3 metres above natural ground level and the gross floor area of all out buildings on the lot do no exceed 40 square metres.
- Extend one dwelling on a lot more than 300 square metres. This exemption does not apply to:
  - Extend a dwelling more than 40 square metres
  - Extend a dwelling if it is on common property
- Construct or extend a front fence within 3 metres of a street if the fence is associated with two or more dwellings on a lot or a residential building and the fence does not exceed the maximum height specified in Clause 55.06-2.

## 4.4 Design and development

28/11/2023
C275case

The following design and development requirements apply to an application to construct a building or construct or carry out works:

### Dwellings and residential buildings

On a lot less than 300 square metres, a development must meet the requirements of Clause 54 if it proposes to:

- Construct or extend one dwelling on a lot.
- Construct or extend a front fence within 3 metres of street if the fence is associated with one dwelling.

A development up to four storeys, excluding a basement, must meet the requirements of Clause 55 if it proposes to:

- Construct a dwelling if there is at least one dwelling existing on the lot.
- Construct two or more dwellings on a lot.
- Extend a dwelling if there are two or more dwellings on the lot.
- Construct or extend a dwelling if it is on common property.
- Construct or extend a residential building.
- Construct or extend a front fence within 3 metres of a street if:
  - The fence is associated with two or more dwellings on a lot or a residential building.
  - The fence exceeds the maximum fence height specified in Clause 55.06-2.

### Building height

Buildings and works should not exceed the preferred maximum building height specified in Clause 5 of this schedule. This does not apply to:

- Service equipment including plant rooms, lift overruns, solar collectors and other such equipment provided all the following requirements are met:
  - The equipment does not exceed the preferred maximum building height by more than 2 metres.
  - No more than 50 percent of the roof is occupied by the equipment.

- The equipment is located to avoid additional overshadowing of adjoining properties and public space.
- The equipment is designed to be concealed within the built form, where practical, or is screened and finished in a non-reflective material and colour to the satisfaction of the responsible authority.

- Where the slope at natural ground level, measured at any cross section of the site of the building wider than 8 metres, is greater than 2.5 degrees and the preferred maximum building height is not exceeded by 1 metre.

**Building setbacks**

Buildings and works should be setback from the front, side and rear property boundaries as specified in the precinct provisions in Clause 5 of this Schedule.

Buildings and works such as verandahs, architectural features, balconies, shades, screens and artworks may be constructed up to one metre within the setback areas specified in the precinct provisions in Clause 5 of this Schedule.

Where no side or rear setback is specified in Clause 5 of this Schedule or Clause 54, 55 or 58 do not apply, buildings and works should be sufficiently setback to reasonably preserve the future development potential and provide for the reasonable amenity of adjoining properties having regard to solar access, daylight access, air circulation and walls on boundaries.

**Access and mobility**

Development and buildings and works should be designed to provide equitable access for people of all abilities including by providing accessible entries at the principle front entry.

**Site layout**

Development should be sited to make the most efficient use of land within the activity centre and oriented to maximise passive design opportunities.

# 5.0 Precinct provisions

28/11/2023
C275case

## 5.1 Precinct 1 – Mixed-use commercial core

### 5.1-1 Precinct map



### 5.1-2 Precinct Objectives

- To support housing above ground floor retail or commercial uses, particularly near Cranbourne Railway Station, except for sub-precinct 1B.
- To support development which prioritises pedestrian movement in and around Greg Clydesdale Square and secondary plaza spaces (around Bakewell Street and Lyall Street) so that they become more active, pleasant, safe and attractive community spaces.
- To encourage development which improves connectivity between High Street and the residential area to the west.

### 5.1-3 Precinct requirements

| | |
|---|---|
| **Preferred maximum building height** | 20 metres |
| **Preferred front setback** | 3 metres including landscaping where a permit is required for an accommodation use at ground level<br>0 metres for all other development |
| **Preferred street wall height** | 11 metres |
| **Preferred setback above street wall** | 3 metres |
| **Preferred side and rear setback** | 3 metres where a sensitive interface is identified or for land adjoining a residential zone |

### 5.1-4 Precinct guidelines

- Buildings and works of 1,000 square metres or greater at Cranbourne Park Shopping Centre or at an existing at-grade car park should result in a net benefit to the activity centre by improving the appearance of adjoining streetscapes where works interface with a street and may include active transport links and amenities, and facade activation.
- Ensure that development near Cranbourne Railway Station supports new active transport links to the railway station.
- Encourage building design which improves passive surveillance opportunities adjoining public areas such as parks, squares and plaza spaces.
- Buildings and works at Cranbourne Park Shopping Centre should improve pedestrian accessibility to the residential areas to the west.

### 5.1-5 Any other requirements

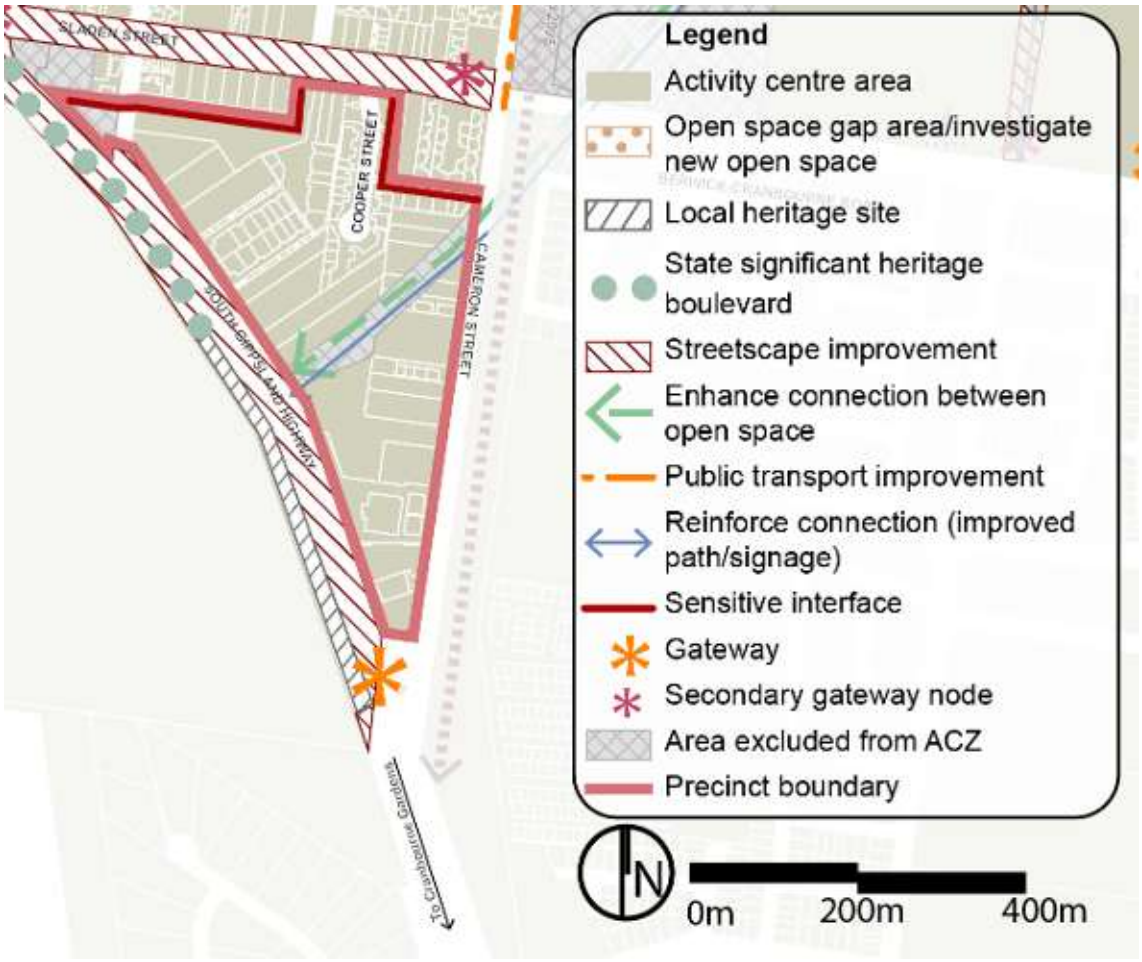
- Where no vegetation can be provided in a ground floor front setback, incorporate vegetation into the building facade design.
- Ensure buildings are appropriately set back from sensitive interfaces and include a landscape buffer which is at least 1 metre wide and capable of achieving adequate levels of solar access.

## 5.2 Precinct 2 - Employment and services

### 5.2-1 Precinct map

#### 5.2-1 Precinct map






## 5.2-2 Precinct objectives

- To support non-retail employment uses.
- To support a transition from industrial to commercial uses.
- To improve the interface with residential and sensitive land uses.
- To minimise off-site amenity impacts through siting, landscaping and building design.
- To create attractive streetscapes through landscaped front setbacks and attractive building design.

## 5.2-3 Precinct requirements

| | |
|---|---|
| **Preferred maximum building height** | 14 metres |
| **Preferred front setback** | 3 metres including a landscaped area which would allow tree planting |
| **Preferred street wall height** | 11 metres |
| **Preferred setback above street wall** | 3 metres |
| **Preferred side and rear setback** | 3 metres including a landscaped area of at least 1 metre for land adjoining Precinct 3.<br>None specified for all other land. |

### 5.2-3 Precinct guidelines

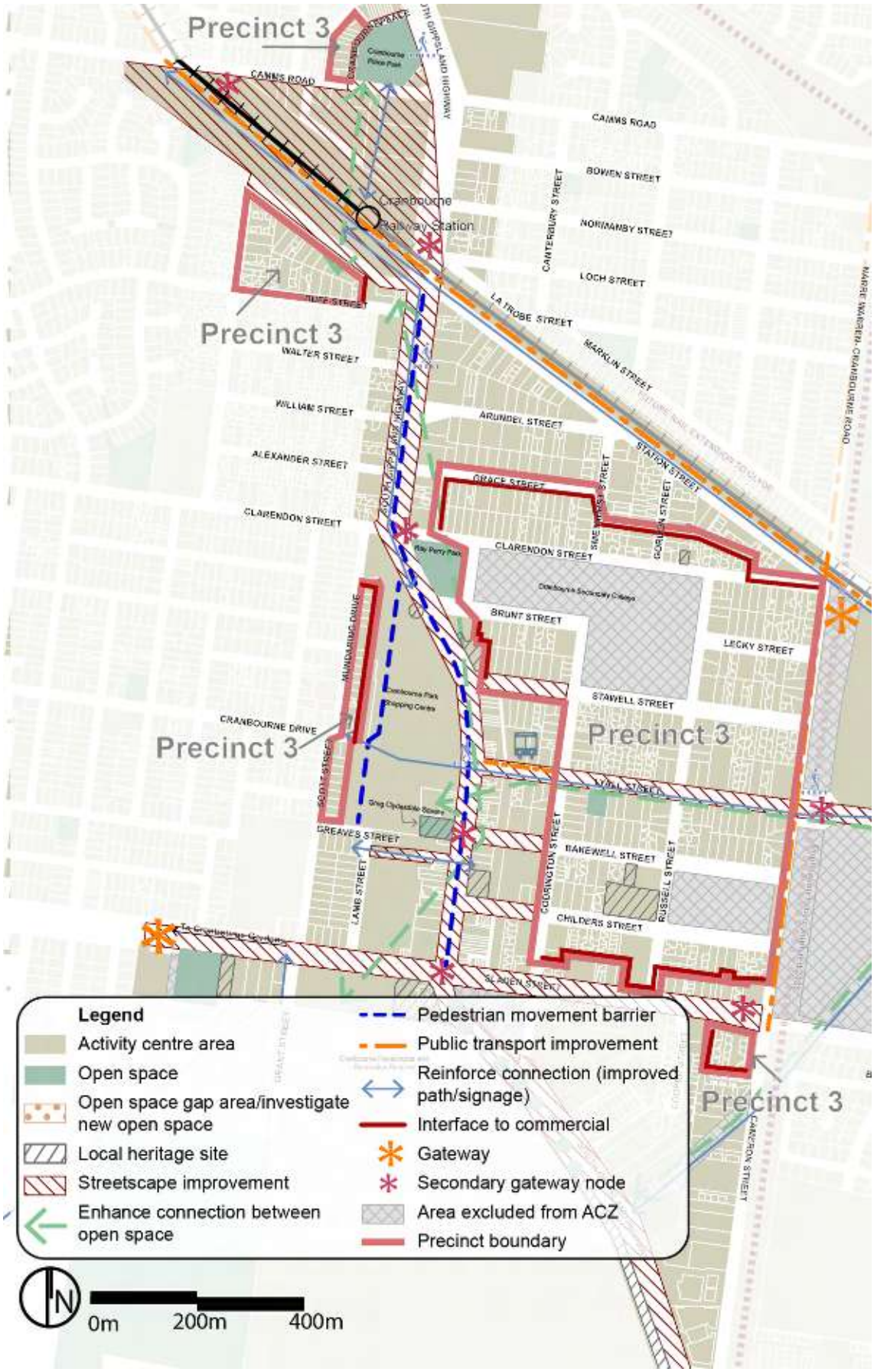
- Commercial development should provide a high level of internal amenity including through the provision of common spaces such as courtyards, balconies or rooftops.
- Development associated with an industrial use which adjoin Precinct 3 or a sensitive interface shown on the precinct map should address potential adverse amenity impacts and include appropriate measures such as landscaping, acoustic treatments, engineering and building siting and design to minimise impacts.
- Ensure buildings are appropriately setback from sensitive interfaces and include a landscape buffer which is at least 1 metre wide and capable of achieving adequate levels of solar access.

### 5.2-5 Any other requirements

None specified.

## 5.3 Precinct 3 - Residential growth

### 5.3-1 Precinct map



### 5.3-2 Precinct objectives

- To encourage a diversity of housing in terms of lot size, number of bedrooms and tenure.
- To limit non-residential uses within the precinct.
- To encourage landscaped front setbacks which improve the environmental amenity of the streetscape and provide a clear delineation between public and private space.
- To encourage site layout and building massing which preserves the future development potential of adjoining land.

### 5.3-3 Precinct requirements

| | |
|---|---|
| **Preferred maximum building height** | 14 metres |
| **Preferred front setback** | 5 metres |
| **Preferred side and rear setbacks** | None specified |

### 5.3-4 Precinct guidelines

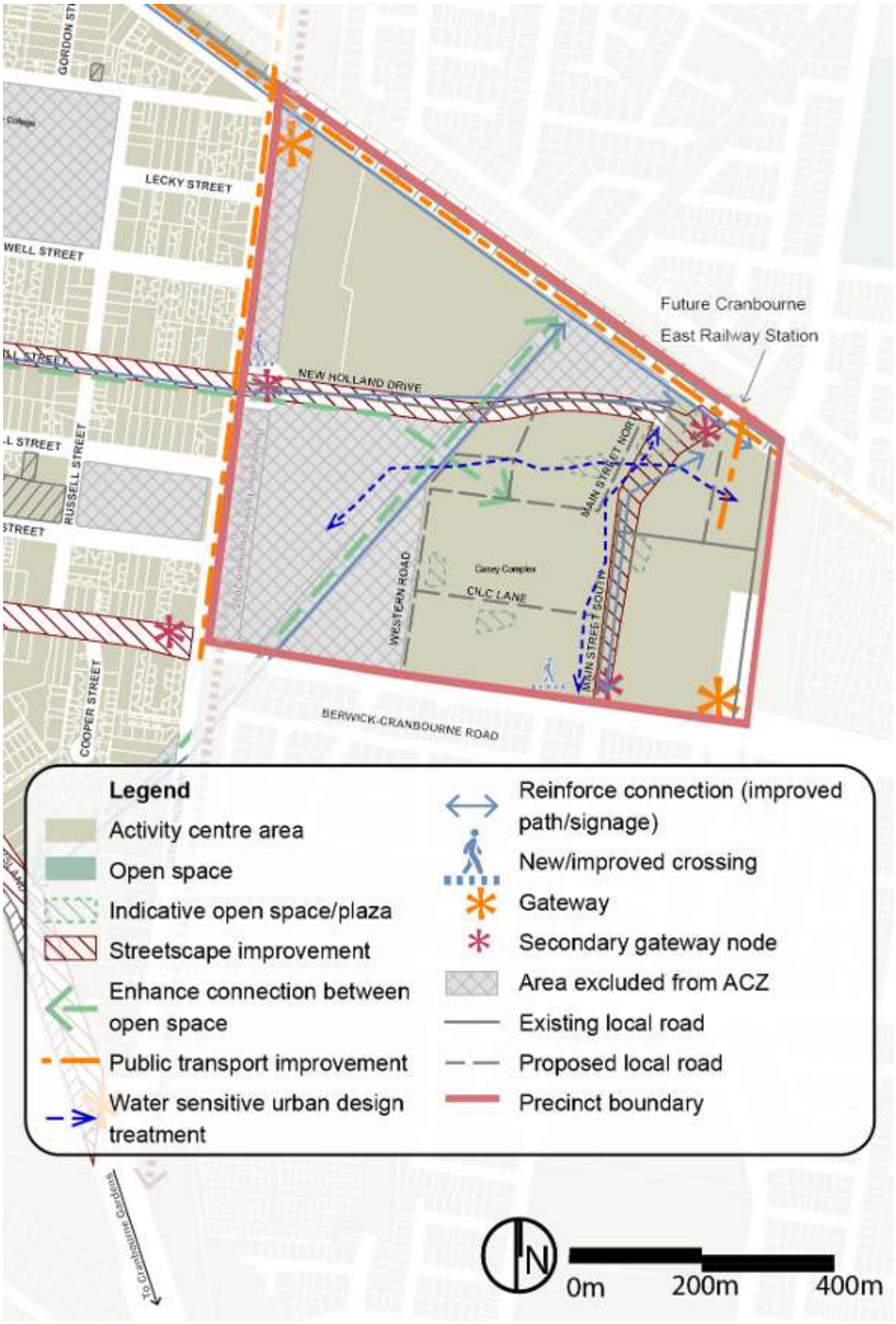
- Avoid south-facing habitable rooms and where this cannot be avoided, design solutions such as light courts, sky lights and natural ventilation should be implemented to allow for maximum solar access and air circulation.
- Non-residential uses may be included as part of an apartment development where there are minimum on and off-site adverse amenity impacts.
- Discourage stand-alone non-residential uses unless off-site amenity impacts can be minimised.

### 5.3-5 Any other requirements

- One medium canopy tree capable of reaching a height of 7 metres at maturity should be provided in the front setback.

## 5.4 Precinct 4 - Casey Complex and surrounds

### 5.4-1 Precinct map



### 5.4-2 Precinct objectives

- To support mixed-use transit-oriented development near the future Cranbourne East Railway Station, adjoining gateways and secondary gateway nodes.
- To ensure the future Cranbourne East Railway Station and grade separation responds to its surrounds through appropriate siting and design.
- To create improved connections within and to the Casey Complex.
- To improve the Berwick-Cranbourne Road interface of the Casey Complex through the development of new and expanded buildings with active frontages.
- To develop the street network with a hierarchy of roads and ensure the sequencing of development supports interim and permanent access.

### 5.4-3 Precinct requirements

| | |
|---|---|
| **Preferred maximum building height** | 20 metres |
| **Preferred front setback** | 0 metres |
| **Preferred street wall height** | 11 metres |
| **Preferred setback above street wall** | 3 metres |
| **Preferred side and rear setback** | None specified |

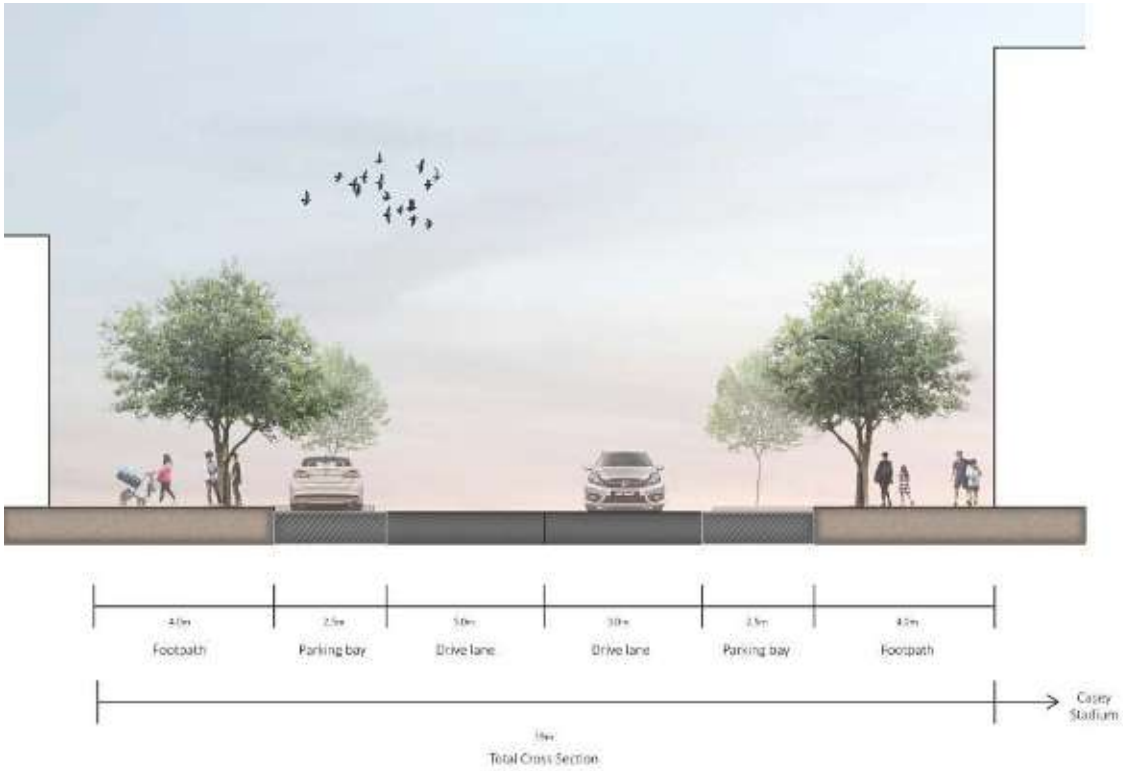
### 5.4-4 Precinct guidelines

- Prioritise seamless pedestrian movement along the Main Street by locating parking so that it is away from Main Street, accessible from the surrounding road network.
- Improve legibility and wayfinding through the Casey Complex by establishing a local street network complemented by signage, lighting and designated pedestrian and cycle paths.

### 5.4-5 Any other requirements

- Modifications to the existing road network, subdivision or development should allow for road reserves to be provided generally in accordance with the cross-sections below and to the satisfaction of the responsible authority.

## CILC Lane




## Main Street North



## Main Street South



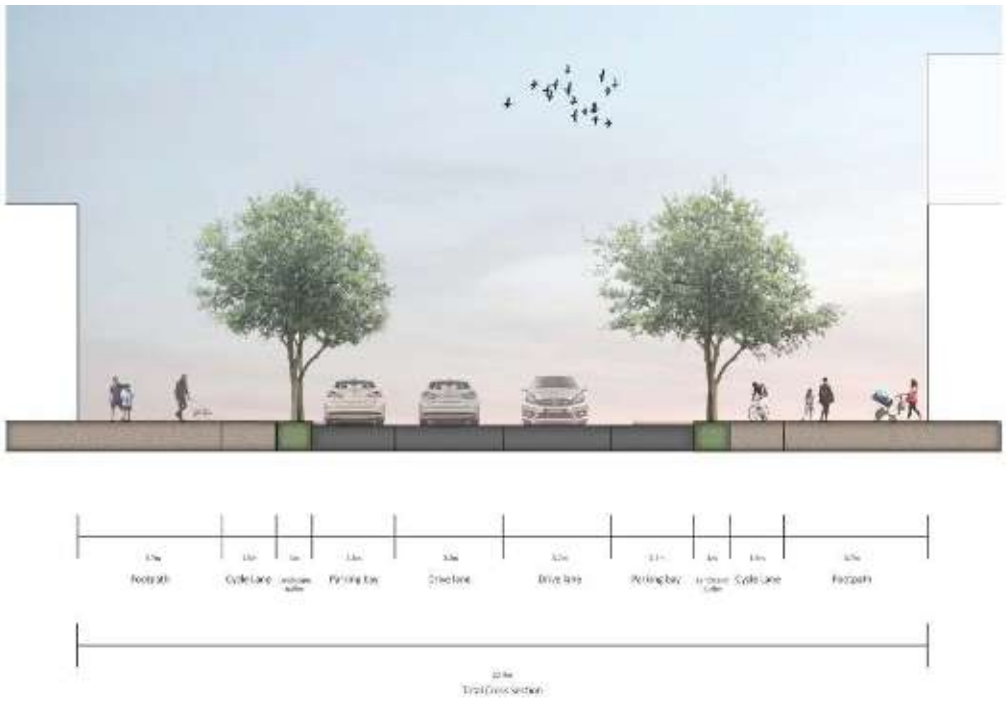

## New Holland Drive (east of Main Street)




## New Holland Drive (west of Main Street)



**Western Road**



## 6.0 Application requirements

28/11/2023
C275case

The following application requirements apply to an application for a permit under Clause 37.08, in addition to those specified in Clause 37.08 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority.

### Use

An application to use land must specify how it is consistent with and achieves the centre-wide and precinct objectives and guidelines in Clause 5 of this schedule.

### Buildings and works

An application to construct a building or construct or carry out works must be accompanied by the following information:

- A statement which explains how a development makes efficient use of land and reasonably preserves the future development potential of adjoining land.
- For the construction of new dwellings in buildings of four storeys or less, an assessment against the relevant provisions of Clause 54 or Clause 55.
- An arboricultural assessment prepared by a suitably qualified professional where it is proposed to remove a tree of 5 metres or greater and a trunk diameter of 0.3 metres or greater at 1.2 metres above ground level. This requirement does not apply to environmental weed species.
- Evidence that the proposal can achieve a 25 percent annual reduction in storm water runoff having regard to the provisions of clause 53.18.
- For residential development in Precinct 1, 3 (where the site adjoins Precinct 1 or 2) and 4 an acoustic assessment prepared by a suitably qualified professional demonstrating how the proposal includes appropriate noise attenuation measures to reasonably protect the amenity of future residents from nearby commercial or industrial uses.

- An application for development up to four storeys should include a 3D model and an application for development of four or more storeys must include a 3D model which shows:
  - The potential overshadowing impact of the development on the open space and habitable rooms of adjoining properties and within the proposed development and how the design of the development minimises overshadowing impacts and ensures maximum solar access internally for dwellings, to neighbouring properties and public spaces.
  - The potential overshadowing impact of the development on public spaces adjoining the proposal, ensuring that overshadowing of boulevards, heritage sites, parks and other public open space is minimised. Reasonable solar access should also be maintained to the ground floor of buildings opposite in winter, where practical.
- For a staged development, a masterplan which includes future indicative built form and likely uses for the balance of the land.

## 7.0 Notice and review

28/11/2023
C275case

The following applications are not exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act:

- An application to construct a building or construct or carry out works that exceed the preferred height or encroach into the preferred setback requirements contained in Clause 5.0 of this schedule and which does not meet the additional building height criteria in clause 4.4 of this schedule.
- An application to use land or to construct a building or construct or carry out works in Precinct 1 or 2 within 30 metres of Precinct 3, a residential zone, land used for a hospital, a primary school or secondary school or land in a Public Acquisition Overlay to be acquired for a hospital, primary school or secondary school.
- An application to use land or construct a building or construct or carry out works in Precinct 3.

## 8.0 Decision guidelines

28/11/2023
C275case

The following decision guidelines apply to an application for a permit under Clause 37.08, in addition to those specified in Clause 37.08 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

### Use

- For a staged development, whether a future indicative use for the balance of the land is nominated in a site masterplan or similar.
- The extent to which the proposal contributes to the provision of affordable housing.

### Subdivision

- Whether an application to subdivide land is accompanied by a suitable development proposal that achieves the centre-wide objectives in Clause 2.0 and the precinct objectives in Clause 5.0 of this schedule.

### Design and built form

- The extent to which a proposal addresses and achieves the centre-wide objectives in Clause 2.0 and the precinct objectives in Clause 5.0 of this schedule.

- The extent to which the proposal makes efficient use of land and allows for the reasonable future development potential of adjoining land.
- Whether a proposal is designed to enable a change in use over time to support the centre to become more resilient to changes in the social, physical and economic environment.
- Whether a proposal contributes to making the centre more sustainable by including vegetation where possible and incorporating environmentally sustainable design features.

## 9.0 Signs

28/11/2023
C275case

Sign requirements are at Clause 52.05. All land located within Precinct 1 and 4 is in Category 1, all land located within Precinct 2 is in Category 2 and all land in Precinct 3 is in Category 3.

## 10.0 Other provisions of the scheme

28/11/2023
C275case

None specified.

## 11.0 Background documents

28/11/2023
C275case

*Casey Complex Urban Design Framework* (City of Casey, 2019)

*Cranbourne Major Activity Centre Structure Plan* (City of Casey, 2020)

25/07/2019
C224case

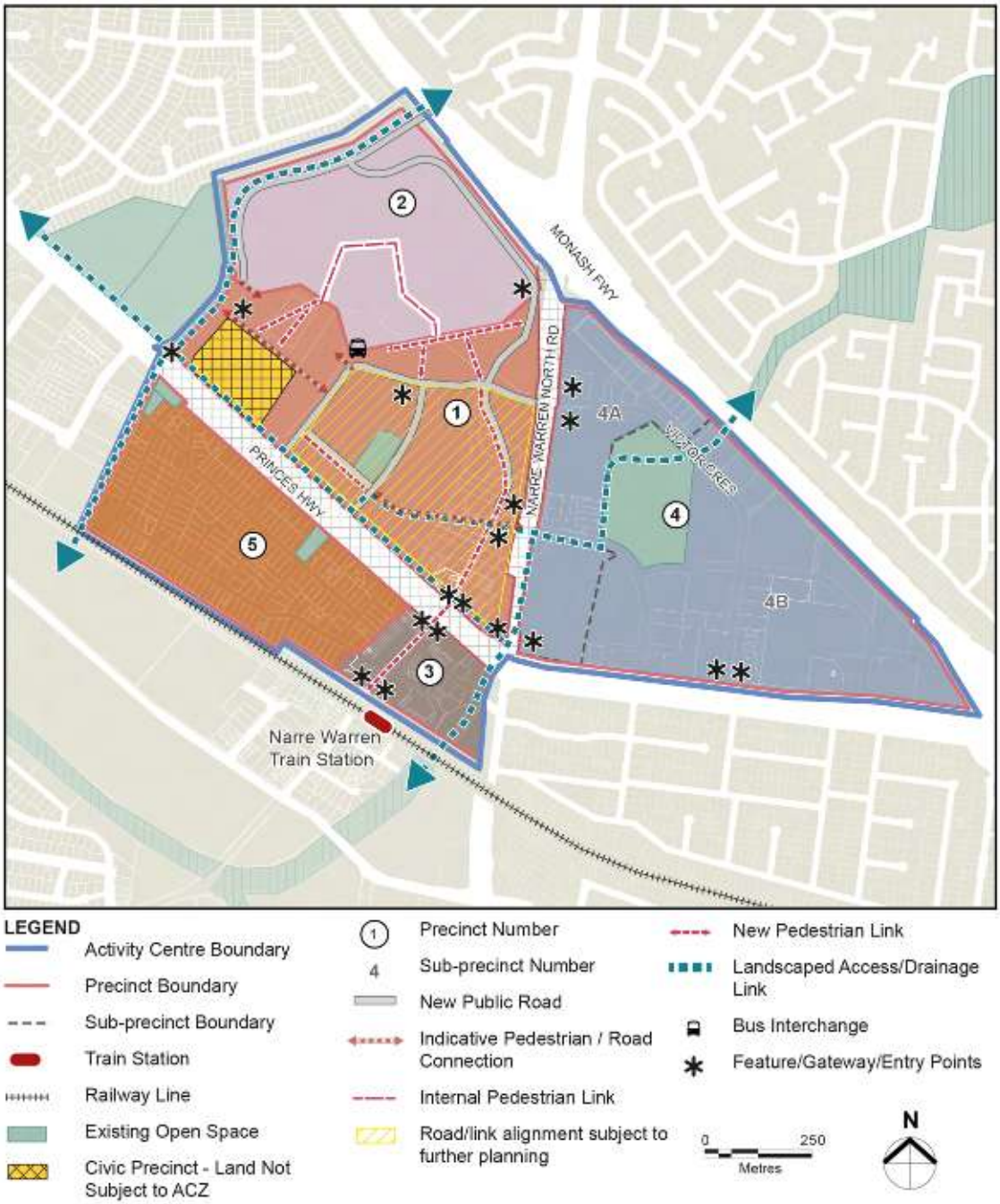
# SCHEDULE 2 TO CLAUSE 37.08 ACTIVITY CENTRE ZONE

Shown on the planning scheme map as **ACZ2**.

## FOUNTAIN GATE-NARRE WARREN CBD METROPOLITAN ACTIVITY CENTRE

## 1.0 Fountain Gate-Narre Warren CBD Framework Plan

25/07/2019
C224case




## 2.0 Land use and development objectives to be achieved

25/07/2019
C224case

### Land use

- To encourage more intensive use of under-utilised land which supports the CBD as a Metropolitan Activity Centre.
- To promote land uses that create high levels of activity (both day time and extended night time) around key activity hubs identified as Bunjil Place, entries to the Fountain Gate Shopping

Centre, Brechin Gardens and other plazas, Narre Warren Train Station and the business park open space area.

- To promote Bunjil Place as the focus of civic, culture and community uses while reinforcing integrated community services around Webb Street, particularly with appropriate provision for people with disabilities and the elderly.

**Built form**

- To facilitate development that provides appropriate articulation, architectural rhythm and massing, with strong sight lines to street level for passive surveillance.
- To create highly transparent, active and visually engaging building façades at ground floor level, where practicable, particularly fronting streets and public open spaces.
- To deliver a variety of strong character precincts that reflect the objectives of each precinct, and provide distinctive built form and public realm treatments.
- To deliver buildings that include ecologically sustainable development principles that reduce energy, water and waste impacts and manage stormwater runoff so that existing flood risks are not exacerbated.
- To encourage the integration of business identification signage into the design of buildings that is appropriate in scale and adaptable.

**Public realm**

- To deliver a variety of high quality public realm spaces that are human-scaled, flexible and cater for a range of social interactions.
- To enhance streetscapes through consistent tree planting and furniture that provides the street with attractive physical and visual amenity outcomes, including the provision of public art.
- To ensure that new developments front onto and improve the public realm.
- To provide safe and accessible spaces that are designed having regard to the principles of Crime Prevention Through Environmental Design and Universal Design.

**Accessibility and circulation**

- To prioritise pedestrians in the design of all new developments, carparks, roads and public spaces to ensure easy, safe, comfortable and high amenity connections to activity hubs, public transport facilities and activities throughout the CBD.
- To instigate a mode shift towards cycling by including adequate storage and after-trip provisions in all new developments and connecting cycle links throughout the CBD to nearby residents, the Hallam Main Drain and Monash Freeway regional cycle networks.
- To strengthen public transport as a preferred transit mode in the CBD by upgrading facilities and services and linking all precincts to the Narre Warren Train Station.
- To develop a legible, fine-grain street network that manages car-based movements and parking efficiently and discreetly and provides for a safe pedestrian environment.
- To ensure parking areas are, where practicable, integrated, shared and screened from public view, including appropriate separation and buffer landscaping.

## 3.0 Table of uses

08/05/2026
C304case

### Section 1 - Permit not required

| Use | Condition |
|---|---|
| **Accommodation (other than Camping and caravan park, Corrective institution, Dwelling, Host farm and Residential hotel)** | Must not be located within Precinct 5.<br>Any frontage at ground floor level must not exceed 4 metres. |
| **Animal keeping** | Must be no more than 2 animals. |
| **Automated collection point** | Must meet the requirements of Clause 52.13-3 and 52.13-5.<br>The gross floor area of all buildings must not exceed 50 square metres. |
| **Betting agency** | In Precinct 5, the site must adjoin a road in a Transport Zone 2 or a Transport Zone 3 or associated service road. |
| **Child care centre** | Any frontage at ground floor level must not exceed 2 metres and access must not be shared with a dwelling. |
| **Cinema** | Must be in Precinct 1 or 2. |
| **Cinema based entertainment facility** | Must be in Precinct 1 or 2. |
| **Dwelling** | In Precinct 1, 2, 3, 4A and 4B, any frontage at ground floor level must not exceed 4 metres. |
| **Education centre** | Must not be located within Precinct 5. |
| **Electoral office** | Must not be located within Precinct 5.<br>Must be used for only 4 months before an election and 2 weeks after an election. |
| **Food and drink premises (other than Hotel and Tavern)** | In Precinct 4A, the use must be in conjunction with either a Shop (other than an adult sex bookshop) or Office use.<br>In Precinct 4B, the use must be in conjunction with an Office use.<br>In Precinct 5, the site must adjoin a road in a Transport Zone 2 or a Transport Zone 3 or associated service road. |
| **Home based business** | Must meet the requirements of Clause 52.11. |
| **Hotel** | Must be located within Precinct 1, 2 or 3. |
| **Informal outdoor recreation** | |
| **Market** | Must be located within Precinct 1, 2 or 3. |
| **Motor vehicle, boat or caravan sales** | Must be located in Precinct 4A. |
| **Office (other than Electoral office)** | In Precincts 1, 3 or 5, any frontage to a Priority pedestrian link at ground floor level must not exceed 6 metres, unless the floor space adjoining the frontage is a customer service area accessible to the public. |

| Use | Condition |
|---|---|
| | In Precinct 5, the site must adjoin a road in a Transport Zone 2 or a Transport Zone 3 or associated service road. |
| **Place of assembly (other than Cinema, Nightclub and Place of worship)** | Must not be located within Precinct 5. |
| **Place of worship** | The gross floor area of all buildings must not exceed 250 square metres.<br>In Precinct 5, the site must adjoin a road in a Transport Zone 2 or a Transport Zone 3 or associated service road. |
| **Railway station** | |
| **Railway** | |
| **Residential hotel** | Must not be in Precinct 5. |
| **Retail premises (other than Food and drink premises, Gambling premises, Landscape gardening supplies, Manufacturing sales, Market, Motor vehicle, boat or caravan sales, Shop and Trade supplies)** | Must be located within Precinct 1, 2 or 3. |
| **Restricted retail premises** | Must be located within Precinct 1, 2 or sub-Precinct 4A.<br>In Precinct 1, the use must be in conjunction with either a Shop (other than an Adult sex bookshop) or Office use. |
| **Shop (other than Adult sex book shop, Bottle shop and Restricted retail premises)** | Must be located within Precinct 1, 2, 3 or 5.<br>In Precinct 5, the site must adjoin a road in a Transport Zone 2 or a Transport Zone 3 or associated service road and the leasable floor area must not exceed 100 square metres. |
| **Trade supplies** | Must be located within Precinct 4A. |
| **Tramway** | |
| **Any use listed in Clause 62.01** | Must meet requirements of Clause 62.01. |

### Section 2 - Permit required

| Use | Condition |
|---|---|
| **Adult sex book shop** | Must not be in Precinct 5.<br>Must be at least 200 metres (measured by the shortest route reasonably accessible on foot) from a residential zone, land used for a Hospital, Primary school or Secondary school, or land in a Public Acquisition Overlay to be acquired for a Hospital, Primary school or Secondary school. |
| **Bottle shop** | Must not be in Precinct 5. |

| Use | Condition |
|---|---|
| | Must be at least 200 metres (measured by the shortest route reasonably accessible on foot) from a residential zone, land used for a Hospital, Primary school or Secondary school or land in a Public Acquisition Overlay to be acquired for a Hospital, Primary school or Secondary school. |
| **Gambling premises (other than Betting agency)** | Must not be in Precinct 3 or 5.<br>Must be at least 200 metres (measured by the shortest route reasonably accessible on foot) from a residential zone, land used for a Hospital, Primary school or Secondary school or land in a Public Acquisition Overlay to be acquired for a Hospital, Primary school or Secondary school. |
| **Industry (other than Rural industry, Service industry and Transfer station)** | Must not be a purpose listed in the table to Clause 52.10.<br>Must be in conjunction with a Shop use or Manufacturing sales use.<br>Must not be located in Precinct 5. |
| **Landscape gardening supplies (other than Plant nursery)** | Must be located in Precincts 1, 2 or 3. |
| **Leisure and recreation facility (other than Informal outdoor recreation, Major sports and recreation facility and Motor racing track)** | |
| **Motor vehicle, boat or caravan sales – if the Section 1 condition is not met** | Must not be located in Precinct 3 or 5.<br>In Precinct 1 or 2, must be in conjunction with either a Shop (other than an Adult sex bookshop) or Office use. |
| **Manufacturing sales** | Must not be located in Precinct 5. |
| **Nightclub** | Must not be located in Precinct 5. |
| **Place of assembly (other than Carnival, Cinema, Circus, Exhibition centre, Nightclub and Place of worship)** | Must be located in Precinct 5. |
| **Retail premises (other than Landscape gardening supplies, Manufacturing sales, Motor vehicle, boat or caravan sales and Shop) – if the Section 1 condition is not met** | In Precinct 5, the site must adjoin a road in a Transport Zone 2 or a Transport Zone 3 or associated service road and the combined leasable floor area for all shops on the same land must not exceed 1,000 square metres. |
| **Restricted retail premises – if the Section 1 condition is not met** | In Precinct 3, any frontage at ground floor level must not exceed 10 metres.<br>In Precinct 5, the site must adjoin a road in a Transport Zone 2 or a Transport Zone 3 or associated service road and any frontage at ground floor level must not exceed 10 metres. |
| **Shop (other than Adult sex book shop, Bottle shop and Restricted retail premises) – if the Section 1 condition is not met** | The combined leasable floor area for all shops on the same land must not exceed 1,000 square metres.<br>In Precinct 4B, must be in conjunction with an Office use. |

| Use | Condition |
|---|---|
| | In Precinct 5, the site must adjoin a road in a Transport Zone 2 or a Transport Zone 3 or associated service road. |
| **Warehouse** | Must be located within Precinct 4B.<br>Must not be a purpose listed in the table to Clause 52.10. |
| **Any other use not in Section 1 or 3** | |

**Section 3 – Prohibited**

| Use |
|---|
| **Agriculture (other than Animal keeping, Apiculture and Crop raising)** |
| **Camping and caravan park** |
| **Cemetery** |
| **Corrective institution** |
| **Crematorium** |
| **Earth and energy resources industry** |
| **Host farm** |
| **Motor racing track** |
| **Rural industry** |
| **Saleyard** |
| **Transfer station (other than Automated collection point)** |

## 4.0 Centre-wide provisions

25/07/2019
C224case

The following provisions apply to the Fountain Gate-Narre Warren CBD.

## 4.1 Use of land

25/07/2019
C224case

A permit is not required to use land where the use is conducted by or on behalf of a public land manager or Parks Victoria under the relevant provisions of the *Local Government Act 1989,* the *Reference Areas Act 1978,* the *National Parks Act 1975,* the *Fisheries Act 1995*, the *Wildlife Act 1975,* the *Forest Act 1958,* the *Water Industry Act 1994,* the *Water Act 1989,* the *Marine Act 1988,* the *Port of Melbourne Authority Act 1958* or the *Crown Land (Reserves) Act 1978*.

## 4.2 Subdivision

25/07/2019
C224case

Subdivision should create road networks and lots that promote walkability and, where appropriate, provide mid-block access through lanes, pedestrian-only streets and other open spaces.

## 4.3 Buildings and works

25/07/2019
C224case

No permit is required to construct a building or construct or carry out works for the following:

- The installation of an automatic teller machine.
- Alterations to an existing building façade provided:

  - The alteration does not include the installation of an external roller shutter.
  - At least 75 per cent of the building façade at ground floor level is maintained as an entry or window with clear glazing.

- An awning that projects over a road if it is authorised by the relevant public land manager.
- Buildings and works for the purposes of Local Government, Education or Transport, provided the use is carried out by, or on behalf of, the public land manager.

No permit is required to construct a building or construct or carry out works for the following within Precinct 5:

- A single dwelling on a lot greater than 300 square metres.
- Works normal to a dwelling.
- An outbuilding (other than a garage or carport) on a lot, provided the gross floor area of the outbuilding does not exceed 10 square metres and the maximum building height is not more than 3 metres above ground level.
- A front fence that does not exceed the maximum height specified in Clause 54.06-2.
- Construct one dependent person's unit on a lot.

## 4.4 Design and development

25/07/2019
C224case

The following design and development requirements apply to an application to construct a building or construct or carry out works:

**Dwellings and residential buildings**

On a lot of less than 300 square metres, a development must meet the requirements of Clause 54 if it proposes to:

- Construct or extend one dwelling; or
- Construct or extend a front fence.

A development up to four storeys, excluding a basement, must meet the requirements of Clause 55 if it proposes to:

- Construct a dwelling if there is at least one dwelling existing on the lot.
- Construct two or more dwellings on a lot.
- Extend a dwelling if there are two or more dwellings on the lot.
- Construct or extend a dwelling if it is on common property.
- Construct or extend a residential building.
- Construct or extend a front fence within 3 metres of a street if the fence is associated with two or more dwellings on a lot or a residential building.

**Public realm**

New development should:

- Enhance public spaces and limit off-site impacts.
- Create visual interest through articulation and materials on frontages to all streets, plazas and open space.
- Create facades that are designed with clear and frequent entries and openable sections providing opportunities for activation and passive surveillance and allow for balconies and roof terraces on upper levels.

- Be visually prominent to corners, particularly Gateway/Entry Points, through architectural features that create landmarks and bookend street blocks.
- Take their primary address from the primary highest order street, where located on a corner.
- Maximise safety through the application of Crime Prevention Through Environmental Design principles to public realm interfaces at ground and upper levels, taking into consideration surveillance, activation, lighting, landscaping and security.
- Consider the land use and development expectations on adjacent sites in the design of the development proposed.
- Include shopping trolley parking areas and containment systems in new retail developments to reduce the proliferation of loose shopping trolleys in the public realm.

**Building height**

Buildings and works should not exceed the preferred heights specified in the precinct provisions at Clause 5 of this schedule.

For the purposes of this schedule, the preferred height does not apply to service equipment, including plant rooms, lift overruns, solar collectors and other such equipment, provided the following criteria are met:

- No more than 50% of the roof area is occupied by the equipment.
- The equipment is located in a position on the roof so as to minimise additional overshadowing of neighbouring properties and public spaces.
- The equipment is designed, screened and finished in a non-reflective material and of a colour to the satisfaction of the responsible authority.

**Street wall heights, upper level setbacks, overshadowing and overlooking**

New development should provide street wall heights and upper level setbacks in accordance with:

- The precinct requirements specified in Clause 5.0 of this schedule; and
- Clause 55 Standards B17, B21 and B22 for the development of land adjoining a residential property or Precinct 5.

All buildings and works should be designed to minimise casting shadows on the public realm and public spaces, including those outlined in Table 1 of this schedule and existing residential zoned land.

**Table 1: Overshadowing requirements**

| Location shown on Precinct map | Overshadowing requirement |
|---|---|
| Brechin Gardens | Avoid overshadowing Brechin Gardens (as defined by the extent of the Heritage Overlay HO153) for no more than 7 metres, between 11am and 2pm on 22 June. |
| Plazas | Avoid overshadowing more than 50 per cent of the space for at least three hours between 9:00am and 3:00pm on 22 September. |
| Footpaths on the south side of east-west streets | Avoid overshadowing for at least three hours between 9:00am and 3:00pm on 22 September. |

All buildings should be designed to address roads and public spaces for passive surveillance, to minimise overlooking of private spaces and maximise solar access.

**Active frontages**

New development should:

- Avoid large expanses of blank wall, where practicable, otherwise articulate through the use of material and finishes.
- Screen external-facing service areas, garbage storage areas, car parking, garage doors and loading areas, from public view using buildings, vegetation or architectural features.
- Provide clear glazing to at least 60 per cent of ground floor retail and office frontages.
- Avoid dark or obscure glazing on ground floor and upper level facades.
- Provide well-articulated building entrances through architectural elements on primary streets to make them clearly legible and create a sense of address.
- Provide individual entry doors to ground floor tenancies that have frontages to a street, where practicable (except for Precinct 4 and Precinct 2, where ground floor tenancies may be accessed from shared lobbies).
- Provide opportunities for alfresco dining and openable facades on the ground level where appropriate to the proposed land use, particularly at activity hubs.
- Maximise the activation of upper levels, including residential or commercial spaces, through visible windows and balconies to facilitate visual interaction and passive surveillance, while retaining privacy where appropriate.
- Strategically locate lift core and stair wells within the floor plate of buildings to achieve efficient and attractive architectural form. If positioned on the building façade, the lift core or stair well should form part of an architectural feature element and incorporate clear glazing to create sight lines to and from the street.

**Pedestrian amenity and streetscape improvements**

New development should:

- Include continuous and generous weather protection for pedestrians where adjacent to key pedestrian routes.
- Avoid the use of reflective materials along ground level facades.
- Upgrade adjacent footpaths and laneways, to the satisfaction of the responsible authority and to DDA compliance where practicable.
- Include spaces that cater for a range of social interactions from large community festivals to temporary activities and meeting points to encourage people to linger, participate, engage and enjoy the centre.

Where a development includes road, car park or nature strip works, new or upgraded footpaths should be a minimum of 3 metres wide on both sides of streets and shared bicycle paths provided, as shown on the precinct maps in Clause 5.0.

**Services and loading**

New development should:

- Minimise vehicle and building services access points and screen loading facilities.
- Conceal services, plant and equipment from view through integration into the architectural form or set behind architectural elements and roof valleys.

**Landscaping**

New development should:

- Include Water Sensitive Urban Design (WSUD) elements with rain gardens and tree pits, and irrigation that utilises recycled water.

- Provide extensive tree planting within unenclosed car park areas and setback areas to shade and improve the microclimate.
- Include green/vegetated walls and feature planting to enhance the presentation and environmental performance of the precinct, where practicable.
- Utilise upper landscaping on terraces and balconies.
- Enhance the amenity of the public realm through themed tree planting, landscaping and high-quality material finishes.
- Include design features to reduce vehicle conflict with pedestrians, particularly around plaza spaces.

**Circulation, transport and parking**

New development should:

- Locate secure car parking in basements. If located at or above ground level, secure car parking should be concealed from view and integrated within the overall design of the building through continued architectural façade treatment, where practicable.
- Be designed so that car parking areas do not dominate street frontages or diminish opportunities for street activity.
- Be designed to promote walkability within the CBD and provide mid-block access where appropriate to create a fine grain pedestrian network.
- Provide activation, opportunities for passive surveillance and weather protection where adjacent to key public transport infrastructure.

**Environmentally sustainable development**

New development should:

- Ensure best practice environmentally sustainable design is met in relation to building energy management, water sensitive urban design, construction materials, indoor environment quality, canopy cover, waste management and transport.
- Maximise energy efficiency through the orientation, siting and layout of buildings, and the location of openings to achieve high levels of natural ventilation and light penetration within the constrained urban form.
- Maximise summer shade and winter sun through tree-lined streets and open spaces, deciduous plantings and built form that is responsive to solar access through height limits and setbacks.
- Reduce the Urban Heat Island effect through extensive canopy tree cover, green roofs, green/vegetated walls and WSUD.
- Maximise access to sustainable transport modes.

# 5.0 Precinct provisions

04/05/2022
VC210

## 5.1 Precinct 1 - Civic and Mixed Use

### 5.1-1 Precinct map




### 5.1-2 Precinct objectives

- To encourage the development of a recognisable hierarchy of east-west and north-south boulevards, streets, shared paths and pedestrian links prioritising walking, cycling and bus use.

- To promote high density development that incorporates a mix of land uses and provides for active street frontages.
- To protect and enhance the heritage, health and amenity of Brechin Gardens, heritage buildings, significant trees and vegetation elements within the precinct and immediate surrounds.
- To discourage large at-grade car parking and to design future parking areas to be integrated into the existing built form, with a pedestrian focus throughout.
- To avoid standalone isolated buildings.

### 5.1-3 Precinct requirements

| Street | Preferred setback | Preferred maximum street wall height | Preferred minimum upper level setback |
|---|---|---|---|
| **Priority frontages (identified on Precinct map)** | 0 metres | 11.5 metres | 4 metres |
| **All other streets and roads** | 0 metres | 14.5 metres | 4 metres |

### 5.1-4 Precinct guidelines

- Works within the area identified as 'road/link alignment subject to further planning' on the Precinct Map at Clause 5.1-1 should provide for access and movement to and through the precinct.
- Built-form surrounding Brechin Gardens should provide high quality architectural design and articulation, activate the ground level and provide passive surveillance to the gardens from upper levels.
- Overshadowing of Brechin Gardens and the heritage trees along Princes Highway should be minimised to reduce health impacts on trees.
- Upper levels should be designed to offer opportunities for balconies, roof terraces and glazing with strong sight lines to the street for passive surveillance.
- Developments along Webb Street should create opportunities for activation.
- The public realm should be upgraded to create a high amenity pedestrian environment connecting Bunjil Place to the activity hubs and public transport nodes.
- Intensified urban development is encouraged along Princes Highway, ensuring buildings address the highway and Narre Warren North Road.
- New buildings should frame views and create vistas from Princes Highway into the CBD and views of Brechin Gardens from adjacent areas.
- Subdivision and development should create street blocks with pedestrian connections, especially through to Brechin Gardens and along Princes Highway, to allow for direct pedestrian access to Narre Warren Train Station.
- Residential and large restricted retail developments are discouraged at ground floor level where activation of frontages to pedestrian areas cannot be achieved.

### 5.1-5 Any other requirements

None specified.

## 5.2 Precinct 2 - Retail core

### 5.2-1 Precinct map




### 5.2-2 Precinct objectives

- To encourage a wide range of uses, including retail, entertainment, office, leisure and hospitality, where appropriate.
- To facilitate the expansion of retail services through the provision of a second department store, an improved and expanded entertainment and hospitality precinct, and by accommodating new and emerging retail formats.
- To avoid standalone isolated buildings.

- To integrate the existing built form into new and adjacent street-based built form, where practicable, and encourage greater activation at the periphery of the shopping centre, emphasising interfaces to public open spaces.
- To enhance car parking areas through landscaping, covered walkways and integration into built form, providing convenient pedestrian access from parking areas to main building entrances.
- To provide a sensitive interface to residential development north of the CBD through a stepping down of the built form within close proximity to dwellings.

### 5.2-3 Precinct requirements

| Street | Preferred setback | Preferred maximum street wall height | Preferred maximum upper level setbacks |
|---|---|---|---|
| **Priority frontages (identified on Precinct map)** | 0 metres | 11.5 metres | 4 metres |
| **All other streets** | 0 metres | 14.5 metres | 4 metres |

### 5.2-4 Precinct guidelines

- Visual connections to the Civic and Mixed Use Precinct and activity hubs should be maximised to achieve a strong sense of place and orientation throughout the precinct.
- Vertical expansion of the internal mall is encouraged, where practicable.
- A greater mix of uses and active edges should be introduced at the mall entry points and building frontages.
- New buildings and the public realm should be designed to create a seamless transition from the internal malls to external streets, key pedestrian routes, pedestrian-only streets and plazas.
- Excellent urban design outcomes should be delivered through high quality building interfaces to the public realm and by reducing the visual dominance of car parks.

### 5.2-5 Any other requirements

None specified.

## 5.3 Precinct 3 - Narre Warren Village

### 5.3-1 Precinct map




### 5.3-2 Precinct objectives

- To promote intensive, multi-storey transit-oriented use and development close to the Narre Warren Train Station, encompassing commercial, accommodation and community uses.
- To reinforce the importance of the Narre Warren Train Station as a key transport node in the CBD and improve the bus interchange, cycle and pedestrian links to the area.
- To reduce through traffic in the precinct and minimise existing risks at the level crossing.

- To support the established street-based character of Webb Street as a high amenity, higher density, mixed use, tree-lined boulevard while retaining the local convenience function of the village.
- To improve the amenity of the public realm in a manner that supports the 'village' atmosphere and creates more orderly, efficient and safe pedestrian and vehicle movement throughout the precinct.
- To avoid standalone isolated buildings.
- To support high density residential development integrated with other land uses, including fine-grain shop-top housing and Small Office Home Office (SOHO) development, while providing a sensitive interface to adjoining residential areas.

### 5.3-3 Precinct requirements

| Preferred maximum building height | Preferred street setbacks | Preferred maximum street wall height | Preferred minimum upper level setbacks |
|---|---|---|---|
| 23 metres within the area identified on Precinct map<br>No maximum limit for all other areas | 0 metres; or<br>Where land adjoins Precinct 5, the standards for side and rear setbacks specified in Clause 55.04-1 are to be met | 11.5 metres | 4 metres |

### 5.3-4 Precinct guidelines

- The Narre Warren Creek drainage corridor should be integrated into any proposals along its length, to support greater usage of the open space along this corridor.
- The coordinated redevelopment of fragmented lots is encouraged to provide cohesive developments.
- Development should be designed to minimise the visual dominance of carparks.
- Small, intimate public spaces should be developed that connect to each other by a network of high quality laneways and pedestrian links.
- Individual tenancy/shop widths should be contained to not more than 10 metres along a main street.
- Development should include no more than 6 metres continuous glazing without a tenancy entry.
- New development should not compromise existing or future rail operations within the railway corridor, including the potential for future grade-separation of the Webb Street railway crossing.

### 5.3-5 Any other requirements

None specified.

## 5.4 Precinct 4 - Business Park

### 5.4-1 Precinct map




### 5.4-2 Precinct objectives

- To promote employment and job creation, particularly with office and higher order employment functions.
- To support a range of complementary land uses, including child care, food and drink premises, gymnasiums, and small-scale retailing.
- To ensure any retail development is complementary to the office/commercial uses and designed to support the retailing function of Precincts 1, 2 and 3.

- To develop a service road fronting Narre Warren North Road with adjacent multi-level development addressing the streetscape and framing view lines towards streets and open spaces.
- To ensure that development that abuts the existing open space areas provides a well-considered built form interface that delivers appropriate activation, integration and passive surveillance to the open space.
- To improve the amenity of the area through public realm improvements to streets, pedestrian links and open spaces, including street tree planting and landscaping.

### 5.4-3 Precinct requirements

| Street | Preferred setback | Preferred maximum street wall height | Preferred minimum upper level setback | Access and parking |
|---|---|---|---|---|
| **Type 1** | Minimum 16 metres and maximum 20 metres to Narre Warren North Road<br>Maximum 3 metres to all other streets | 14.5 metres | 4 metres | Provision of 16 metre-wide service road adjacent to Narre Warren North Road with on street parking |
| **Type 2** | Preferred 0 metres to street<br>Maximum 3 metres to street (except where not allowed by an easement or by curvilinear frontages) | 11.5 metres | 4 metres | |

### 5.4-4 Precinct guidelines

- Development should be of a contemporary architectural style in keeping with the significant commercial role of the precinct.
- At-grade car parking or deck car parking should be provided behind proposed building frontages.

### 5.4-5 Any other requirements

None specified.

## 5.5 Precinct 5 - Residential Intensification

### 5.5-1 Precinct map




### 5.5-2 Precinct objectives

- To provide a diverse mix of housing and increased density ensuring a range of housing options for future residents close to transport links, employment and services.
- To encourage the development of the Princes Highway frontage for higher density housing and ancillary commercial uses, providing an active frontage facing the commercial areas of the CBD.
- To promote a high standard of residential amenity for new development, including optimum solar access and privacy through design.
- To encourage the consolidation of sites to facilitate a broader range of medium and higher density residential developments.

### 5.5-3 Precinct requirements

| Preferred maximum building height | Preferred street setbacks | Side and rear setbacks |
|---|---|---|
| 13.5 metres, or<br>16.8 metres where the site adjoins a road in a Transport Zone 2 or a Transport Zone 3 or an associated service road | The construction of two or more dwellings on a lot should meet Clause 55 Standard B6 or 5 metres, whichever is lesser | All buildings and works (including non-residential buildings) sharing a property boundary with an existing residential dwelling should meet Clause 55 Standards B17, B21 and B22 |

### 5.5-4 Precinct guidelines

- Translucent elements such as balconies and glazing should provide building articulation.
- Consideration will be given to higher built form and residential density for consolidated sites.
- Larger developments should include a range of dwelling sizes and types to provide housing choices for future residents, including one- and two-bedroom dwellings.
- On-site parking should not be located forward of the front building alignment.
- Tree planting should form part of the front setback treatment, including canopy trees, for new residential developments.
- Tree planting buffers should be provided at the rear boundary on multi-level apartment developments.
- Front fences should be transparent to allow passive surveillance of the street.
- New residential development adjoining the Vesper Drive industrial and commercial precinct should include acoustic protection from these uses, where practicable.
- New residential development fronting Princes Highway should enhance pedestrian movement through the use of landscaping and low, transparent front fences.

### 5.5-5 Any other requirements

None specified.

## 6.0 Application requirements

25/07/2019
C224case

The following application requirements apply to an application for a permit under Clause 37.08, in addition to those specified in Clause 37.08 and elsewhere in the planning scheme, and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- For applications four or more storeys in height, a 3D model that shows:
  - The potential overshadowing impact of the development on the open space and habitable rooms of adjoining properties and within the proposed development, and how the development design minimises impacts and ensures maximum solar access internally for dwellings, to neighbouring properties and the public realm.
  - The potential impact of the development on the public realm adjacent to the proposal, ensuring that overshadowing of major pedestrian routes, heritage sites, parks and other public spaces is minimised. Reasonable solar access should also be maintained to the ground floor of buildings opposite in winter, where practicable.
- For the construction or extension of a building:

- A Sustainable Design Assessment for all non-residential developments with a gross floor area of between 500m2 and 1,000m2 or developments of 3-9 dwellings to include:
  - a simple assessment of the development, which may use relevant tools such as BESS or STORM, or an assessment approach to the satisfaction of the responsible authority; and,
  - the identification of environmentally sustainable development measures proposed, having regard to the site's opportunities and constraints.
- A Sustainable Management Plan for all non-residential developments with a gross floor area of more than 1,000m2 or developments of 10 or more dwellings to include:
  - a detailed assessment of building energy management, WSUD, construction materials, indoor environment quality, waste management, and transport, which may use relevant tools such as BESS, STORM, MUSIC or Green Star or an alternative assessment approach to the satisfaction of the responsible authority; and,
  - the identification of achievable environmental performance outcomes, having regard to the site's opportunities and constraints, documentation of the means by which they can be achieved, and demonstration that the building has the design potential to achieve these outcomes; and,
  - a Green Travel Plan.
- For all developments with a gross floor area over 5000m2, in addition to a Sustainable Management Plan, it must be demonstrated that the development has the ability to achieve a 4-star rating or above under a current version of Green Star rating tool or equivalent.
- For all mixed use developments, the above listed information is required as most applicable to each use component of the development.

The above ESD requirements will expire if superseded by equivalent assessment requirements in a Local Policy, the Victoria Planning Provisions or the Building Code of Australia Regulations.

- A report which demonstrates that development will achieve the following:
  - Reduction in the volume of stormwater runoff from new roof areas of 5% from the calculated annual runoff volume.
  - Stormwater runoff and proposed drainage discharge rates to be equal or less than pre-development conditions, to minimise flood risks within the broader catchment.
  - Response to designated 1% Annual Exceedance Probability (AEP) flood levels, where applicable, including heights of floor levels and access into basement carparks.
  - Make provision for the safe and effective passage of stormwater flows up to and including the 1% AEP storm.
- A transport assessment that includes the impact of generated traffic on the existing road network, parking generation rates and traffic management recommendations. The assessment must also include, where appropriate, a demonstration of how the proposal seeks to enhance the opportunities for increased public transport usage, addressing pedestrian accessibility, weather protection, safety measures and commuter information.
- Where an application proposes a building that does not meet the minimum setbacks, maximum street wall height or overshadowing standards set out in this schedule, an Urban Context Report submitted with the application must demonstrate how the proposed development achieves the relevant objectives, requirements and guidelines of this schedule.
- For applications in Precinct 1 on land shown on Precinct Map at Clause 5.1-1 as 'road/link alignment subject to further planning', an Access and Movement Strategy that demonstrates the development provides for, or contributes to, a cohesive road and pedestrian network.

## 7.0 Notice and review

25/07/2019
C224case

An application to:

- Construct a building or construct or carry out works that exceed the preferred maximum building heights contained within Clause 5 of this schedule
- Use land or construct a building or construct or carry out works in Precinct 5
- Construct a building or construct or carry out works within 150 metres of the Residential Interface in Precinct 2 (identified on the Precinct map at Clause 5.2-1 to this schedule) in which the height of building or works is in excess of a 1:2 height-to setback ratio from this boundary

is not exempt from the notice requirements of Section 52(1) (a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 8.0 Decision guidelines

25/07/2019
C224case

The following decision guidelines apply to an application for a permit under Clause 37.08, in addition to those specified in Clause 37.08 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

**General**

- The interface with adjoining zones, especially the relationship with residential areas.

**Subdivision**

- The effect the subdivision will have on the potential of the area to accommodate future development opportunities and transport links.
- Whether the subdivision promotes lot consolidation, where practicable.

**Design and built form**

- The effect the proposed development will have on solar access to existing public spaces.
- Whether the scale and intensity of a development would result in the underdevelopment of the site.
- The extent to which the development prioritises walking, cycling and public transport use, and provides car parking that responds to anticipated demand, does not dominate the street frontage, and is functional and well-designed.
- The extent to which the development is consistent with the principles of Environmentally Sustainable Development.
- The extent to which the development is consistent with the principles of WSUD.
- The extent to which the development provides for the surveillance of public spaces and creates a safe environment.
- The extent to which the development encourages activity within public streets and spaces.
- For properties designated as Gateway/Entry Points on the Precinct maps contained within this schedule, whether future built form:
  - Highlights the built form through the use of projections, detailing and massing that presents to the surroundings and street frontages.
  - Complements rather than dominates the existing built form through height form and scale.
  - Provides a key point of reference for users of the activity centre.
  - Provides an iconic built form that differentiates itself from surrounding buildings.

## 9.0 Signs

25/07/2019
C224case

Advertising sign requirements are located at Clause 52.05. All land located within Precincts 1, 2, 3, 4A and 4B is in Category 1 and all land within Precinct 5 is in Category 3.

## 10.0 Other provisions of the scheme

25/07/2019
C224case

None specified.

## 11.0 Background documents

25/07/2019
C224case

*Fountain Gate-Narre Warren CBD Structure Plan* (City of Casey, 2018)

## 40 OVERLAYS

19/01/2006
VC37

This section sets out the overlays which apply in this scheme.

## 41 [NO CONTENT]

31/07/2018
VC148

# 42 ENVIRONMENTAL AND LANDSCAPE OVERLAYS

19/01/2006
VC37

# 42.01 ENVIRONMENTAL SIGNIFICANCE OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **ESO** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify areas where the development of land may be affected by environmental constraints.

To ensure that development is compatible with identified environmental values.

## 42.01-1 Environmental significance and objectives

31/07/2018
VC148

A schedule to this overlay must contain:

- A statement of environmental significance.
- The environmental objectives to be achieved.

## 42.01-2 Permit requirement

16/10/2025
VC288

A permit is required to:

- Construct a building or construct or carry out works. This does not apply if a schedule to this overlay specifically states that a permit is not required.
- Construct a fence if specified in a schedule to this overlay.
- Construct bicycle pathways and trails.
- Subdivide land. This does not apply if a schedule to this overlay specifically states that a permit is not required.
- Remove, destroy or lop any vegetation, including dead vegetation. This does not apply:
  - If a schedule to this overlay specifically states that a permit is not required.
  - If the table to Clause 42.01-3 specifically states that a permit is not required.
  - To the removal, destruction or lopping of native vegetation in accordance with a native vegetation precinct plan specified in the schedule to Clause 52.16.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Subdivide land to realign the common boundary between two lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within five years prior to the application for a permit for subdivision. | Clause 59.02 |

| Class of application | Provision |
|---|---|
| Subdivide land into two lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land:<br>– Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | Clause 59.02 |
| Subdivide land into two lots if:<br>▪ A permit has been issued under a provision of a residential zone to construct up to two dwellings on the land and the permit has not expired.<br>▪ Each lot will contain either:<br>– one existing dwelling; or<br>– one dwelling permitted to be constructed in accordance with the permit. | Clause 59.02 |
| Construct a fence. | Clause 59.05 |
| Remove, destroy or lop one tree provided:<br>▪ A permit has not been granted for a VicSmart application to remove, destroy or lop a tree on the same land within the last 12 months.<br>▪ There is no other current VicSmart application to remove, destroy or lop a tree on the same land. | Clause 59.06 |
| Construct a building or construct or carry out works for:<br>▪ A carport, garage, pergola, verandah, deck, shed or similar structure.<br>▪ A rainwater tank.<br>The buildings and works must be associated with a dwelling or a small second dwelling. | Clause 59.05 |

## 42.01-3 Table of exemptions

16/08/2024
VC262

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Emergency works** | Vegetation that is to be removed, destroyed or lopped:<br>▪ in an emergency by, or on behalf of, a public authority or municipal council to create an emergency access or to enable emergency works; or<br>▪ where it presents an immediate risk of personal injury or damage to property. Only that part of the vegetation that presents the immediate risk may be removed, destroyed or lopped under this exemption. |
| **Extractive industry** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of extractive industry in accordance with a work plan approved under the *Mineral Resources (Sustainable Development) Act 1990* and authorised by a work authority granted under that Act. |
| **Fire protection** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of any of the following fire protection activities:<br>▪ fire fighting;<br>▪ planned burning; |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | ▪ making or maintenance of a fuelbreak or fire fighting access track (or any combination thereof) that does not exceed a combined width of 6 metres;<br>▪ making of a strategic fuelbreak up to 40 metres wide by, or on behalf of, a public authority in accordance with a strategic fuelbreak plan approved by the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*);<br>▪ is ground fuel within 30 metres of a building and is vegetation other than native vegetation;<br>▪ in accordance with a fire prevention notice issued under either:<br>– section 87 of the *Fire Rescue Victoria Act 1958*;<br>– section 65 of the *Forests Act 1958*; or<br>– section 41 of the *Country Fire Authority Act 1958*.<br>▪ keeping vegetation clear of, or minimising the risk of bushfire ignition from, an electric line in accordance with a code of practice prepared under Part 8 of the *Electricity Safety Act 1998*;<br>▪ minimising the risk to life and property from bushfire on a roadside of a public road managed by the relevant responsible road authority, and carried out by, or on behalf of that authority in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). In this exemption, roadside, public road and responsible road authority have the same meanings as in section 3 of the *Road Management Act 2004*.<br>*Note: Additional permit exemptions for bushfire protection are provided at Clause 52.12.* |
| **Geothermal energy exploration and extraction** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Geothermal Energy Resources Act 2005*. |
| **Greenhouse gas sequestration and exploration** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Greenhouse Gas Geological Sequestration Act 2008*. |
| **Land management or directions notice** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land management notice or directions notice served under the *Catchment and Land Protection Act 1994*. |
| **Land use conditions** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land use condition served under the *Catchment and Land Protection Act 1994*. |
| **Mineral exploration and mining** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by the holder of an exploration, mining, prospecting, or retention licence issued under the *Mineral Resources (Sustainable Development) Act 1990*:<br>▪ that is low impact exploration within the meaning of Schedule 4A of the *Mineral Resources (Sustainable Development) Act 1990*; or<br>▪ in accordance with a work plan approved under Part 3 of the *Mineral Resources (Sustainable Development) Act 1990*.<br>*Note: Schedule 4A of the Mineral Resources (Sustainable Development) Act 1990 specifies limits on the extent of native vegetation that may be removed as part of low impact exploration.* |
| **Noxious weeds** | Vegetation that is a noxious weed subject of a declaration under section 58 or section 58A of the *Catchment and Land Protection Act 1994*. This exemption does not apply to Australian Dodder (*Cuscuta australis*). |
| **Pest animal burrows** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the removal of pest animal burrows.<br>In the case of native vegetation the written agreement of an officer of the department responsible for administering the *Flora and Fauna Guarantee Act 1988* is required before the vegetation can be removed, destroyed or lopped. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Planted vegetation** | Vegetation that is to be removed, destroyed or lopped that was either planted or grown as a result of direct seeding for Crop raising or Grazing animal production. |
| **Railways** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to maintain the safe and efficient function of an existing railway, or railway access road, in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Regrowth** | Vegetation that is to be removed, destroyed or lopped that has naturally established or regenerated on land lawfully cleared of naturally established vegetation, and is:<br>▪ bracken (Pteridium esculentum); or<br>▪ within the boundary of a timber production plantation, as indicated on a Plantation Development Notice or other documented record, and has established after the plantation.<br>This exemption does not apply to land on which vegetation has been destroyed or otherwise damaged as a result of flood, fire or other natural disaster. |
| **Road safety** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of a public authority or municipal council to maintain the safe and efficient function of an existing public road in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Stone exploration** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of Stone exploration.<br>The maximum extent of vegetation removed, destroyed or lopped under this exemption on contiguous land in the same ownership in a five year period must not exceed any of the following:<br>▪ 1 hectare of vegetation which does not include a tree.<br>▪ 15 trees with a trunk diameter of less than 40 centimetres at a height of 1.3 metres above ground level.<br>▪ 5 trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.<br>This exemption does not apply to costeaning and bulk sampling activities. |
| **Surveying** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by, or on behalf of, a licenced surveyor (within the meaning of section 3 of the *Surveying Act 2004*) using hand-held tools to establish a sightline for the measurement of land. |
| **Traditional owners** | Vegetation that is to be removed, destroyed or lopped by a person acting under, and in accordance with:<br>▪ a natural resources agreement under Part 6 of the *Traditional Owners Settlement Act 2010*; or<br>▪ an authorisation order made under sections 82 or 84 of the *Traditional Owner Settlement Act 2010* as those sections were in force immediately before the commencement of section 24 of the *Traditional owners Settlement Amendment Act* in 2016 (1 May 2017). |
| **Tram stops** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of the Head, Transport for Victoria to construct a tram stop, including a tram stop shelter. |
| **Transport land** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of the Head, Transport for Victoria on land in a Transport Zone, or in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority, to construct or maintain transport system infrastructure. |

## 42.01-4 Application requirements

31/07/2018
VC148

An application must be accompanied by any information specified in a schedule to this overlay.

## 42.01-5 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and Planning Policy Framework.
- The statement of environmental significance and the environmental objective contained in a schedule to this overlay.
- The need to remove, destroy or lop vegetation to create a defendable space to reduce the risk of bushfire to life and property.
- Any other matters specified in a schedule to this overlay.

11/06/2020
C265case

## SCHEDULE 1 TO CLAUSE 42.01 ENVIRONMENTAL SIGNIFICANCE OVERLAY

Shown on the planning scheme map as **ESO1**.

**COASTAL ENVIRONS**

### 1.0 Statement of environmental significance

11/06/2020
C265case

Western Port is noted for its ecological diversity in terms of terrestrial and marine species, some of which are protected by international agreements to which Australia is a party. These species occupy a wide range of habitats including salt marshes, mangroves, inter- tidal mudflats and seagrass beds. Western Port is also noted for its coastal landscapes and extensive areas of remnant coastal vegetation.

The conservation of these values is promoted by the MSS. This can be assisted by placing controls on the expansion of urban settlements, the removal of native vegetation, the treatment of waste water and on the extent and appearance of buildings and works.

### 2.0 Environmental objective to be achieved

11/06/2020
C265case

To conserve and enhance the ecological values of environmentally sensitive land fringing Western Port.

To maintain and enhance the rural character of areas fringing Western Port.

### 3.0 Permit requirement

11/06/2020
C265case

A permit is not required to remove, destroy or lop:

- exotic vegetation
- the following environmental weed species:
  - Coast Wattle (*Acacia longifolia subsp. Sophorae*).
  - Sweet Pittosporum (*Pittosporum undulatum)*;
  - Sallow Wattle (*Acacia longifolia subsp. Longifolia*);

### 4.0 Application requirements

11/06/2020
C265case

None specified.

### 5.0 Decision guidelines

19/06/2025
C284case

The following decision guidelines apply to an application for a permit under Clause 42.01, in addition to those specified in Clause 42.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The need to ensure that the sensitive areas of open space along the edge of Western Port and the environmentally sensitive areas of the bay are not compromised by the use.
- The capacity of the soil and water to absorb wastes and the design of the effluent disposal system.
- The impact of plant life, animal habitats and the landscape.
- Whether the buildings or works will be detrimental to the natural physical features or resources of the area.
- The design, location and colour of proposed buildings and works and their impact on the landscape.
- The extent of any proposed removal of vegetation and in particular:

  - The desirability of retaining or establishing a buffer of native vegetation adjoining watercourses and natural drainage lines and any existing vegetation along ridges, road and property boundaries.
  - Whether the vegetation has been identified as being of landscape or environmental significance.
- The location, dimensions, and levels of any excavations or alterations to the natural surface including details or works to stabilise buffers in areas of fill or excavation. The works to control drainage and stormwater run-off from all buildings, access roads and driveways.
- The views, if any, of the Department of Energy, Environment and Climate Action.
- Whether the location of buildings and works take advantage of the topography and landscaping of the area to provide screening from adjoining properties and surrounding areas.

11/06/2020
C265case

## SCHEDULE 2 TO CLAUSE 42.01 ENVIRONMENTAL SIGNIFICANCE OVERLAY

Shown on the planning scheme map as **ESO2**.

**CRANBOURNE GARDENS**

### 1.0 Statement of environmental significance

11/06/2020
C265case

The Cranbourne Gardens is special because of its ecological integrity and its location. Within an area that has been extensively modified since European settlement, it is one of the last tracts of native bushland that has remained relatively intact.

It is noted for its diverse ecosystems found in tea tree heathlands, swamps, sedgelands and wet heathlands. Many species of native plants and animals not often seen in urbanised areas find refuge in the Cranbourne Gardens. The Gardens are also sited over ancient sand dunes which have geological and geomorphological significance.

The Cranbourne Gardens is valued by the community because of its accessibility and proximity to built up areas. It needs careful nurturing so that its special environmental qualities can be appreciated by future residents of the South Eastern Growth Area.

### 2.0 Environmental objective to be achieved

11/06/2020
C265case

To protect sites of zoological, geological and botanical significance within the Cranbourne Gardens from inappropriate use and development.

### 3.0 Permit requirement

11/06/2020
C265case

A permit is not required to remove, destroy or lop:

- vegetation associated with the maintenance of the Cranbourne Gardens;
- vegetation specifically grown and harvested for domestic or agricultural purposes;
- the following environmental weed species:
  - Sweet Pittosporum (*Pittosporum undulatum*);
  - Sallow Wattle (*Acacia longifolia subsp. Longifolia*);
  - Coast Wattle (*Acacia longifolia subsp. Sophorae*).

### 4.0 Application requirements

11/06/2020
C265case

None specified.

### 5.0 Decision guidelines

19/06/2025
C284case

The following decision guidelines apply to an application for a permit under Clause 42.01, in addition to those specified in Clause 42.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The advice of the Department of Energy, Environment and Climate Action.
- The need to conserve and enhance sites of scientific and environmental significance.
- Alternative means of using land or locating buildings and works that ensure the integrity of sites of scientific and environmental significance is not compromised.

11/06/2020
C265case

# SCHEDULE 3 TO CLAUSE 42.01 ENVIRONMENTAL SIGNIFICANCE OVERLAY

Shown on the planning scheme map as **ESO3**.

**CRANBOURNE GARDENS, CRANBOURNE**

## 1.0 Statement of environmental significance

11/06/2020
C265case

The Cranbourne Gardens is valued by the community because of its ecological integrity and its location close to built up areas. Within an area that has been extensively modified since European settlement, it is one of the last tracts of native bushland that has remained relatively intact.

It is noted for its diverse ecosystems found in tea tree heathlands, swamps, sedgelands and wet heathlands. Many species of native plants and animals not often seen in urbanised areas find refuge in the Cranbourne Gardens. Parts of the Cranbourne Gardens are elevated as they are sited over ancient sand dunes. This facilitates higher visual exposure of the gardens from surrounding areas and vice versa.

The proximity of the Cranbourne Gardens to built up areas provides strong justification for a buffer zone to be established on immediately surrounding land. Without this buffer, there is potential for visual intrusion into the Gardens and for the introduction of both feral animals and pest plants. Development within this buffer zone should be carefully assessed to ensure their compatibility with the Cranbourne Gardens.

## 2.0 Environmental objective to be achieved

11/06/2020
C265case

To protect the biological values, landscape quality and amenity of the nearby Cranbourne Gardens for the purpose of scientific investigation and for the benefit and enjoyment of the public.

To ensure that development in the vicinity of the Cranbourne Gardens is compatible with the maintenance of the values referred to above.

## 3.0 Permit requirement

11/06/2020
C265case

A permit is not required to remove, destroy or lop:

- exotic vegetation;
- the following environmental weed species:
  - Sweet Pittosporum (*Pittosporum undulatum*);
  - Sallow Wattle (*Acacia longifolia subsp. Longifolia*);
  - Coast Wattle (*Acacia longifolia subsp. Sophorae*).

## 4.0 Application requirements

11/06/2020
C265case

None specified.

## 5.0 Decision guidelines

19/06/2025
C284case

The following decision guidelines apply to an application for a permit under Clause 42.01, in addition to those specified in Clause 42.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The effect any development could have on the biological integrity and amenity of the Cranbourne Gardens by reason of noise, smell, dust, fumes, vermin, noxious weeds, polluted waters and changes to natural drainage flows.

- The effect of any development on visitors' enjoyment of the Cranbourne Gardens in terms of the extent of visual impact of the use or development and or any significant change to the natural topography of the area.
- The extent to which any building or works would be visible from within any part of the Cranbourne Gardens.
- The desirability of maintaining a rural landscape and the need to limit fringe urban activities in the environs of the Cranbourne Gardens.
- The need to retain natural vegetation in the environs of the Cranbourne Gardens as habitat for native fauna and as an important landscape element.
- The desirability of using species of plants indigenous to the area in any landscaping works in the environs of the Cranbourne Gardens.
- The effect of any development in terms of fire hazard.
- The views of the Cranbourne Gardens and of any other agency the responsible authority considers relevant.
- The views, if any, of the Department of Energy, Environment and Climate Action.

11/06/2020
C265case

# SCHEDULE 4 TO CLAUSE 42.01 ENVIRONMENTAL SIGNIFICANCE OVERLAY

Shown on the planning scheme map as **ESO4**.

**CRANBOURNE SOUTH CONSERVATION AREA**

## 1.0 Statement of environmental significance

11/06/2020
C265case

Cranbourne South is noted for its undulating landscape and its remnant woodland vegetation that provides a natural vegetation link and wildlife corridor extending from the urban areas of Cranbourne, particularly the Cranbourne Gardens to Western Port Bay.

The woodlands' sandy soil supports a variety of indigenous flora species including a range of eucalyptus and banksias as well as numerous grass species. The area also supports a number of fauna species, including the New Holland Mouse and the Grey-crowned Babble which are considered endangered in Victoria. A number of other species found in the area are also regarded as rare.

## 2.0 Environmental objective to be achieved

11/06/2020
C265case

To conserve, enhance and extend the ecological values of environmentally sensitive land in Cranbourne South.

To maintain and enhance the rural character of the area.

## 3.0 Permit requirement

11/06/2020
C265case

A permit is not required to remove, destroy or lop:

- exotic vegetation;
- the following environmental weed species:
  - Sweet Pittosporum (*Pittosporum undulatum*);
  - Sallow Wattle (*Acacia longifolia subsp. Longifolia*);
  - Coast Wattle (*Acacia longifolia subsp. Sophorae*).

A permit is not required for buildings more than 20 metres from any boundary of the land or the bank of any creek or watercourse.

## 4.0 Application requirements

11/06/2020
C265case

None specified.

## 5.0 Decision guidelines

19/06/2025
C284case

The following decision guidelines apply to an application for a permit under Clause 42.01, in addition to those specified in Clause 42.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The impact of the use or development on any environmentally sensitive areas.
- The capacity of the soil and water to absorb wastes and the design of the effluent disposal system.
- The impact on plant life, animal habitats and the landscape.
- Whether the use, buildings or works will be detrimental to the natural environment or resources of the area.
- The design, location and colour of proposed buildings and works and their impact on the landscape.

- The extent of any vegetation removal proposed, in particular:
  - The desirability of retaining or establishing a buffer of native vegetation adjoining watercourses and natural drainage lines and any existing vegetation along ridges, road and property boundaries.
  - Whether the vegetation has been identified as being of environmental significance.
- The location, dimensions, and levels of any excavations or alterations to the natural surface including details or works to stabilise buffers in areas of fill or excavation. The works to control drainage and stormwater run-off from all buildings, access roads and driveways.
- Whether the location of buildings and works take advantage of the topography and landscaping of the area to provide screening from adjoining properties and surrounding areas.
- The views, if any, of the Department of Energy, Environment and Climate Action.

11/06/2020
C265case

# SCHEDULE 5 TO CLAUSE 42.01 ENVIRONMENTAL SIGNIFICANCE OVERLAY

Shown on the planning scheme map as **ESO5**.

**CRANBOURNE GARDENS ENVIRONS (SETTLERS RUN AND BOTANIC RIDGE ESTATES)**

## 1.0 Statement of environmental significance

11/06/2020
C265case

The Cranbourne Gardens is valued by the community because of its ecological integrity and its location close to built up areas. Within an area that has been extensively modified since European settlement, it is one of the last tracts of native bushland that has remained relatively intact.

It is noted for its diverse ecosystems found in tea tree heathlands, swamps, sedgelands and wet healthlands. Many species of native plants and animals not often seen in urbanized areas find refuge in the Cranbourne Gardens. Parts of the Cranbourne Gardens are elevated as they are sited over ancient sand dunes. This facilitates higher visual exposure of the gardens from surrounding areas and vice versa.

The proximity of the Cranbourne Gardens to built up areas provides strong justification or a buffer zone to be established on immediately surrounding land. Without this buffer, there is potential for visual intrusion into the Gardens and for the introduction of both feral animals and pest plants. Development within this buffer zone should be carefully assessed to ensure their compatibility with the Cranbourne Gardens.

The sensitive development of the land to the south-west of the Cranbourne Gardens (Settlers Run and Botanic Ridge Estates) for urban and related purposes provides an opportunity to further enhance and reinforce the environmental attributes of the Cranbourne Gardens. Any development will incorporate a significant replanting program with locally indigenous vegetation to be incorporated into the residential, recreational and open space areas throughout the estate. It is expected that over time, this replanting will result in the extension and reinforcement of the significant biological values, landscapes quality and amenity of the Cranbourne Gardens.

## 2.0 Environmental objective to be achieved

11/06/2020
C265case

To protect the biological values, landscape quality and amenity of the nearby Cranbourne Gardens for the purpose of scientific investigation and for the benefit and enjoyment of the public.

To ensure that development in the vicinity of the Cranbourne Gardens takes proper account of the opportunities to accommodate urban growth while at the same time ensuring that such development is compatible with the maintenance of the values referred to above.

To visually integrate the Cranbourne Gardens with the surrounding landscape and to screen and soften views of the precinct from the Cranbourne Gardens.

To protect and further develop the indigenous woodlands, grasslands, wetlands and significant habitat areas that link with the Cranbourne Gardens.

To encourage the planting and retention of locally indigenous native vegetation wherever possible, and to ensure native vegetation corridors within the estate are retained, particularly along ridgelines and drainage lines.

To establish and maintain a native vegetation buffer along the perimeters of the precinct.

To encourage and protect the planting of appropriate native vegetation within private property.

## 3.0 Permit requirement

11/06/2020
C265case

A permit is not required to remove, destroy or lop any of the following vegetation:

- The removal, destruction or lopping of native vegetation which has a trunk circumference of less than 150 millimetres, measured at a height of 1 metre above ground level.

- The removal, destruction or lopping of native vegetation which presents an immediate risk of personal injury or damage to property (including vegetation overhanging a dwelling or within 2 metres of a dwelling).
- The pruning, removal or root pruning of vegetation to prevent damage to works when in the opinion of the responsible authority, damage to a pipeline, electricity or telephone transmission line, cable or other service has occurred or is likely to occur.
- The pruning of vegetation (including street trees) to maintain or improve their health or appearance.
- The removal of vegetation recognised by the City of Casey as an environmental weed.

A permit is not required for buildings and works associated with a dwelling, provided the following requirements are met:

- No more than one dwelling is constructed on the lot.
- The total area of outbuildings on the lot does not exceed 80 square metres.
- All external cladding of buildings and structures, including roofing is painted or finished in non-reflective muted natural tones which blend with the surrounding landscape to the satisfaction of the responsible authority.
- No building or structure (including an ancillary outbuilding, tennis court or swimming pool) is located within any Tree Planting Zone, as may be nominated on a section 173 Agreement on the title of the land.
- All buildings and works comply with any building and siting requirements of a section 173 Agreement that may be registered on the title of the land.
- If the land is within the Viewshed area defined on Map 1 to this schedule, and the buildings and works satisfy the following requirements:
  - Within Precinct 1, as shown on Map 1, any building or structure has a maximum height of 4 metres or onestorey.
  - Within Precinct 2, as shown on Map 1 (being land known as 245S Smiths Lane, Botanic Ridge and described as Lot A on Plan of Subdivision No. 637134), the height of any dwelling does not exceed 8.5 metres and height of any outbuildings does not exceed 3.6 metres. Any excavation or filling results in a difference of 1 metre or less between existing and finished levels.
  - The total site coverage of all buildings and ancillary structures (including all outbuildings, tennis courts and swimming pools) does not exceed 40 per cent of the total site area within Precinct 1 and 60 per cent of the total site area in Precinct 2.
- If the land is outside the Viewshed area defined on Map 1 to this schedule, and the buildings and works satisfy the following requirements:
  - No building or other structure exceeds a maximum height of 7.5 metres or two storeys above natural ground level.

## 4.0 Application requirements

11/06/2020
C265case

None specified.

## 5.0 Decision guidelines

19/06/2025
C284case

The following decision guidelines apply to an application for a permit under Clause 42.01, in addition to those specified in Clause 42.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

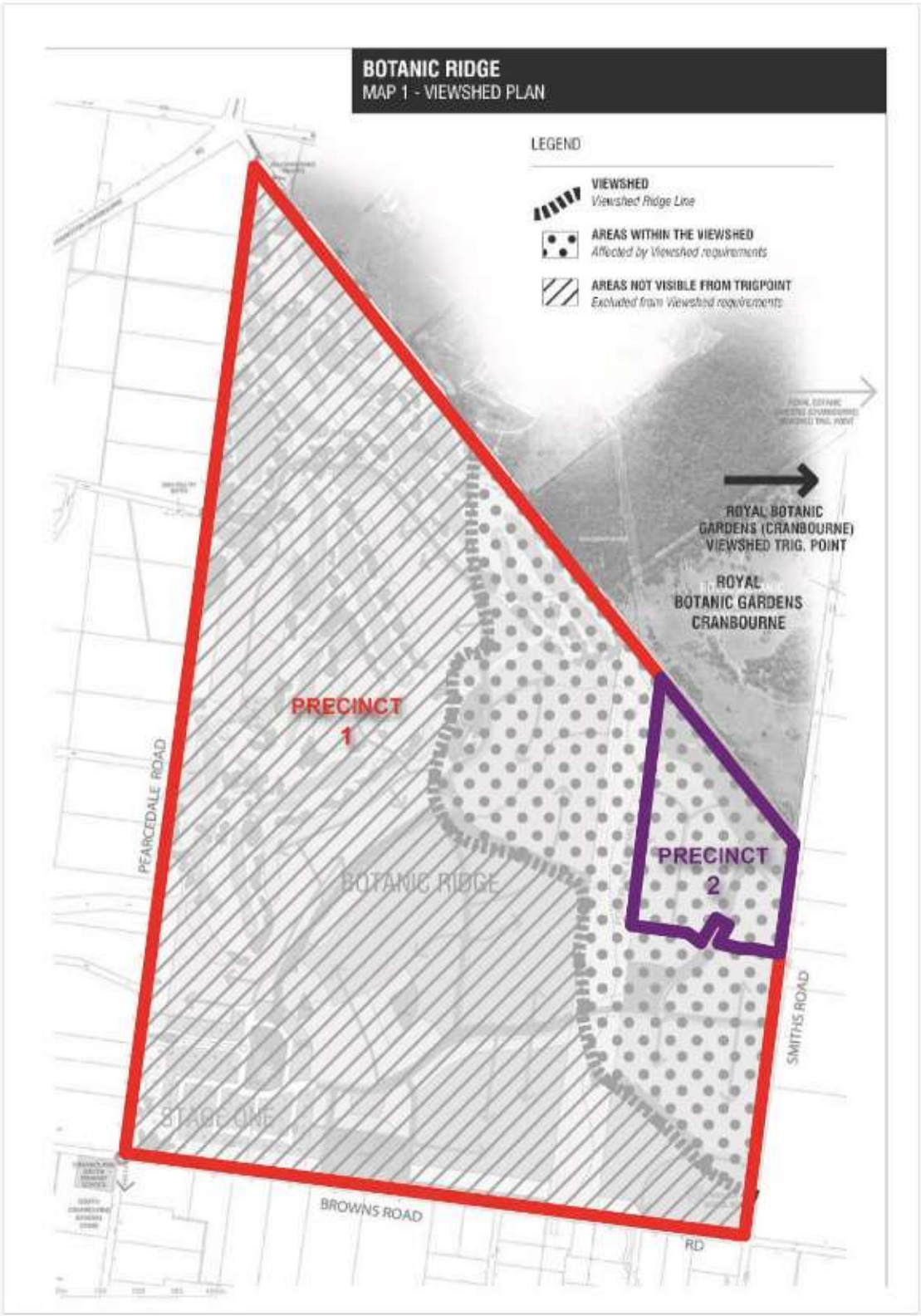
**Applications for removal, destruction or lopping of vegetation**

- The scenic value of the native vegetation.
- The habitat value of the vegetation.
- The views of the Cranbourne Gardens where the vegetation is located within the viewshed of the Cranbourne Gardens, or in the opinion of the responsible authority the removal, destruction or lopping of the vegetation may have some impact on the biological values, landscape quality or amenity of the Cranbourne Gardens.
- The views, if any, of the Department Energy, Environment and Climate Action.
- Whether the vegetation is located along a ridgeline or drainage line.
- Whether the vegetation is located within a designated planting zone, as identified on a section 173 Agreement registered on the title of the land.
- Alternative means of using the land or locating buildings and works so that the retention and protection of native vegetation is not compromised.
- The extent of replacement planting proposed.

**Applications for buildings and works**

- The effect any development may have on the biological integrity and amenity of the Cranbourne Gardens by reason of noise, smell, dust, fumes, vermin, noxious weeds, polluted waters and changes to natural drainage flows.
- The effect of any development on visitors enjoyment of the Cranbourne Gardens in terms of the extent of visual impact of the use or development and or any significant change to the natural topography of the area.
- The extent to which any building or works would be visible from within any part of the Cranbourne Gardens.
- The desirability of maintaining a rural landscape and the need to limit fringe urban activities in the environs of the Cranbourne Gardens.
- The suitability of Precinct 2, as shown on Map 1, to be developed for urban purposes in a manner which is compatible with the environmental objectives for development within the Botanic Ridge Precinct Structure Plan area.
- The need to retain natural vegetation in the environs of the Cranbourne Gardens as habitat for native fauna and as an important landscape element.
- The degree of compliance with any relevant siting and/or design guidelines, as identified on a section 173 Agreement registered on the title of the land.
- The desirability of using species of plants indigenous to the area in any landscaping works in the environs of the Cranbourne Gardens.
- The effect of any development in terms of fire hazard.
- The views of the Cranbourne Gardens and of any other agency the responsible authority considers relevant.

## Map 1 to Schedule 5 to Clause 42.01



17/01/2019
C221Pt1

# SCHEDULE 6 TO CLAUSE 42.01 ENVIRONMENTAL SIGNIFICANCE OVERLAY

Shown on the planning scheme map as **ESO6**.

**URBAN CONSERVATION AREA**

## 1.0 Statement of environmental significance

17/01/2019
C221Pt1

The development of Melbourne has caused significant impacts to the environment. Melbourne's footprint has resulted in the removal of most native vegetation, and retained habitat areas only support flora and fauna that can survive in a highly fragmented and urbanised landscape. The overall biodiversity of Melbourne is a fraction of what it was prior to European settlement.

As part of the delivery of Melbourne's Newest Sustainable Communities Program, the Victorian Government established a process to identify, permanently protect and manage biodiversity assets that are important within the greater Melbourne region.

This process has determined the location of significant biodiversity assets and identified areas where these can be retained and where urban development is not appropriate and to which this overlay has been applied.

The areas covered by this overlay include some existing conservation reserves, areas of significant remnant native vegetation and a number of areas that provide habitat for threatened flora and fauna.

The areas include but are not limited to:

- Important grasslands.
- Grassy eucalypt woodlands.
- Waterways and riparian areas.
- Other important habitat for threatened flora and fauna.

It is important that these areas are retained and managed to ensure that their biodiversity values and any habitat links are protected and enhanced.

## 2.0 Environmental objective to be achieved

02/12/2022
C259case

To protect and improve the viability of habitats, ecological communities, flora and fauna and genetic diversity.

To enhance the environmental and landscape values of the area.

To ensure that any use, development or management of land within and adjacent to areas of biological significance are compatible with their long-term maintenance and conservation and will not have detrimental impacts on biodiversity values.

To encourage ecological restoration, regeneration and revegetation with indigenous species within the site.

To maintain and enhance habitat connectivity for listed threatened species.

To prevent a decline in the extent and quality of native vegetation and native fauna habitat.

To ensure that the siting and design of any buildings and works maintains the environmental integrity of the land.

To maintain and enhance the integrity of sites of environmental significance.

To provide for the long term preservation of the flora and fauna and associated habitat of environmentally significant areas.

## 3.0 Permit requirement

02/12/2022
C259case

A permit is not required to:

- Construct a building or construct or carry out works or to remove, destroy or lop vegetation (including dead vegetation) in accordance with an agreement under Section 69 of the *Conservation, Forests and Lands Act 1987*.
- Construct or carry out works or to remove, destroy or lop vegetation (including dead vegetation) by or on behalf of a public authority or public land manager involving revegetation, or preparatory works associated with revegetation.
- Extend or alter an existing dwelling provided that the gross floor area of that extension or alteration does not exceed 50 square metres and the extension or alteration is more than 5 metres from any existing native vegetation.
- Remove, destroy or lop any vegetation, including dead vegetation:
  - Where the vegetation comprises one or more of the following environmental weed species:
  - Sweet Pittosporum (*Pittosporum undulatum*);
  - Sallow Wattle (*Acacia longifolia subsp. Longifolia*);
  - Coast Wattle (Acacia longifolia subsp. Sophorae).
  - Where the vegetation is a plant proclaimed as a weed under the *Catchment and Land Protection Act 1994*.
  - In order to enable the use and maintenance of a building constructed or approved by a planning permit granted under this planning scheme or by a building permit granted under the *Building Act 1993*, before 6 August 2010. This exemption does not apply to vegetation located more than 10 metres from a building.
  - Where the vegetation has been planted or grown for aesthetic or amenity purposes, including agroforestry (the simultaneous and substantial production of forest and other agricultural products from the same land unit), shelter belts, woodlots, street trees, gardens or the like. This exemption does not apply if public funding was provided to assist in planting or managing the vegetation for conservation purposes and the terms of the funding did not anticipate removal or harvesting of the vegetation.
  - For the purpose of maintenance, where no more than one third of the foliage is removed from any individual plant. This exemption does not apply to the pruning or lopping of the trunk of a tree or shrub or to native vegetation within a road or railway reservation.
  - To mow or slash grass in a lawn, garden or other planted area for maintenance only.
  - To maintain an existing fence where the removal of vegetation is within a combined maximum width of 4 metres either side of the fence.

## 4.0 Application requirements

17/01/2019
C221Pt1

The following application requirments apply to an application for a permit under Clause 42.01, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- A description of any proposed disturbance of surface soil or rocks associated with the proposal.
- The total extent of vegetation on the property and the extent of native vegetation proposed to be cleared.
- A description of the steps that have been taken to avoid and minimise the removal of native vegetation including the practicality of alternative options which do not require removal of the native vegetation.

An application must also be accompanied by, as appropriate:

- A flora and fauna assessment of the land prepared by a suitably qualified and experienced person to the satisfaction of the responsible authority. The assessment must include:

  - A flora and fauna survey.
  - A habitat hectare assessment.
  - Identification of the vegetation and habitat significance of the property.
  - A description of the effect of the proposed development in relation to other areas of native vegetation or native fauna habitat, including any proposed reserves, strategic reserves, conservation reserves, streams and waterways.
- A land and environmental management plan prepared by a suitably qualified person identifying, as appropriate:
  - Any proposals for revegetation, including proposed species, and ground stabilisation.
  - How any vegetation removal will be offset (an offset plan), in accordance with Victoria's Native Vegetation Management: A Framework For Action (Department of Natural Resources and Environment 2002).
  - Weed management, including species to be targeted and proposed management techniques.
  - Pest animal management, including species to be targeted and proposed management techniques.

If in the opinion of the responsible authority a flora and fauna assessment of the land or a land and environmental management plan is not relevant to the assessment of an application, the responsible authority may waive or reduce the requirement.

## 5.0 Decision guidelines

17/01/2019
C221Pt1

The following decision guidelines apply to an application for a permit under Clause 42.01, in addition to those specified in Clause 42.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The conservation significance of any vegetation to be removed and its habitat value for native fauna.
- The reason for removing any vegetation and the practicality of any alternative options.
- Measures to protect and enhance native vegetation and native fauna habitat including the retention of land form, surface soils and rocks.
- Measures to maintain contiguous areas of native vegetation or native fauna habitat.
- Measures to encourage ecological restoration, regeneration and revegetation with indigenous species.
- Any park management plan, including the potential impact of management activities, such as burning, on any proposed development.
- The impact of the development on any proposed or existing conservation reserves, streams and waterways, including the potential impacts of nutrient and water run-off, increased weed and pest invasion or recreational impacts.
- The impact on the integrity of the site from the proposed development, disturbance and removal of rock, indiscriminate weed control, habitat fragmentation and isolation and disturbance and destruction of habitat of threatened species.
- The proposed management practices for the land including:
  - The linking and enlarging of areas of significant flora and fauna habitats.
  - Effective and targeted weed control.
  - Programs to control or eliminate introduced predatory and pest animal species, in particular foxes, rabbits and hares.

  - Rehabilitation of degraded areas through fencing, revegetation with appropriate native species and ongoing management.
  - Collection of seed and other plant propagules for rehabilitation projects on and off site.
- The results of any flora and fauna survey and assessment of the land.
- Any Native Vegetation Precinct Plan, Conservation Management Plan, Precinct Structure Plan or other management plan approved for the area by the Minister for Planning or Minister for Environment and Climate Change.

11/06/2020
C265case

# SCHEDULE 7 TO CLAUSE 42.01 ENVIRONMENTAL SIGNIFICANCE OVERLAY

Shown on the planning scheme map as **ESO7**.

**SIGNIFICANT RIVER RED GUMS IN CASEY**

## 1.0 Statement of environmental significance

19/06/2025
C284case

There are many significant old-growth River Red Gums (*Eucalyptus camaldulensis*) in the City of Casey, some which are hundreds of years old and pre-date European settlement. These tend to be located in the low-lying areas of the municipality, which form part of the Gippsland Plain Bioregion, and include Doveton, Eumemmering, Hampton Park and Lynbrook and along the Dandenong and Eumemmerring Creeks corridors.

River Red Gums are important to Casey, both individually and collectively, for their intrinsic environmental, scientific, landscape and cultural heritage values. Many of these large old trees are readily accommodated in Council's parks, reserves and roadsides, while a small number are also located on private land, including small residential lots. Casey is experiencing rapid urban growth, being located in Casey-Cardinia Growth Area, and the pressures associated with this, along with limited planning controls to protect and conserve these trees, makes them vulnerable to degradation or even loss.

The *Casey Significant Tree Strategy (incorporating The Significant Tree Register)* (City of Casey) identifies those large River Red Gums that should be protected. In particular, those older trees containing hollows which are rare and add to the genetic diversity of flora and fauna of the area. These River Red Gums play an important role in the survival of a wide range of native fauna by providing a food source, shelter, refuges and nesting sites. Some River Red Gums provide a link with our past and have intrinsic Aboriginal cultural heritage value. Collectively, these trees are recognised for their distinctive and attractive form that contributes to the landscape quality and identity of the area.

## 2.0 Environmental objective to be achieved

19/06/2025
C284case

To protect and conserve all significant River Red Gums (*Eucalyptus camaldulensis*) for their intrinsic environmental, ecological, scientific, landscape and cultural heritage values.

To protect and enhance the River Red Gums to provide a source of genetic diversity, fauna habitat and to enhance habitat connectivity within the municipality.

To protect and enhance the environmental and landscape values of a local area where significant River Red Gums have been identified.

To ensure that any use or development of land within the identified Tree Protection Zone of a significant River Red Gum, as identified in the *Casey Significant Tree Strategy (incorporating The Significant Tree Register)* (City of Casey) does not compromise its long-term conservation.

## 3.0 Permit requirement

19/06/2025
C284case

A permit is required for the construction of a building or the construction or carrying out of works listed in Clause 62.02-2 within the Tree Protection Zone of any significant tree identified in the *Casey Significant Tree Strategy (incorporating The Significant Tree Register)* (City of Casey).

A permit is not required:

- To remove, destroy or lop any vegetation which is not listed in the *Casey Significant Tree Strategy (incorporating The Significant Tree Register)* (City of Casey).
- To construct a building or construct or carry out works outside of the Tree Protection Zone of any significant tree identified in the *Casey Significant Tree Strategy (incorporating The Significant Tree Register)* (City of Casey). The Tree Protection Zone is calculated by using the

diameter at breast height (DBH), which is the diameter of the tree at 1.4 metres above ground level, multiplied by 12 to give a measurable distance from the tree.

- To construct a fence outside the Tree Protection Zone of any significant tree identified in the C*asey Significant Tree Strategy (incorporating The Significant Tree Register)* (City of Casey).
- To undertake maintenance of a significant tree(s), including dead wooding and broken limb removal on public land by the public land manager to maintain the integrity of the tree or reduce the risk of personal injury or damage to property.
- To prune limbs less than 75 millimetres in diameter (measured at the pruning point), of any significant tree listed in the C*asey Significant Tree Strategy (incorporating The Significant Tree Register)* (City of Casey) for:
- - maintaining access to existing roads, driveways and footpaths.
  - clearing within two metres of an existing permanent structure.
  - reducing overhang to neighbouring properties.
- For construction and maintenance works for municipal purposes within the Tree Protection Zone, subject to such works being carried out in accordance with a Tree Management Plan approved by a suitably qualified arborist.

Pruning works must be undertaken in accordance with the *Australian Standard - Pruning of Amenity Trees, AS 4373-2007*.

## 4.0 Application requirements

19/06/2025
C284case

The following application requirements apply to an application for a permit under Clause 42.01, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- A report from a suitably qualified arborist to the satisfaction of the responsible authority, detailing the reason and need for the proposed works, options for alternative treatments and any remedial or restorative action proposed.

## 5.0 Decision guidelines

19/06/2025
C284case

The following decision guidelines apply to an application for a permit for removal, destruction or lopping of vegetation under Clause 42.01, in addition to those specified in Clause 42.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The impact of the proposal on the intrinsic, environmental, ecological, landscape or cultural heritage significance of any identified significant tree.
- The impact of the proposal on the health, appearance and stability of any identified significant tree.
- The habitat value for native fauna of any identified significant tree, including hollow bearing trees.
- Any recommendations or management guidelines relating to the relevant identified significant tree(s) contained in the *Casey Significant Tree Strategy (incorporating The Significant Tree Register*) (City of Casey).
- The recommendations of any report provided by a suitably qualified arborist relating to the relevant identified significant tree(s).
- Whether any proposed pruning of a significant tree(s) is in accordance with the *Australian Standard – Pruning of Amenity Trees, AS 4373-2007.*
- Whether the minimum tree protection requirements of *Australian Standard – Protection of Trees on Development Sites, AS 4970-2009* are met.

- Whether all alternative options, including the redesign or relocation of buildings has been considered to reduce impacts on the significant trees.
- Whether the planting of appropriate replacement tree(s) or vegetation is warranted, and consistent with the *Guidelines for the removal, destruction or lopping of native vegetation* (DELWP, 2017).
- Whether a long-term maintenance program is required for any identified significant tree impacted by building works.

11/06/2020
C265case

# SCHEDULE 8 TO CLAUSE 42.01 ENVIRONMENTAL SIGNIFICANCE OVERLAY

Shown on the planning scheme map as **ESO8**.

## SIGNIFICANT EXOTIC AND NATIVE TREES IN CASEY

## 1.0 Statement of environmental significance

19/06/2025
C284case

The City of Casey boasts many individual native and exotic trees and groups of trees with special significance. Collectively, these trees add to the diversity of vegetation in the municipality and have ecological importance, while on an individual level they may contribute to the character of a local area, or have particular cultural values. The *Casey Significant Tree Strategy (incorporating The Significant Tree Register)* (City of Casey) identifies those exotic and native trees considered to be of most significance in the municipality. Their selection is attributed to one or more factors, including landscape context, aesthetic value, rarity, localised distribution, age, outstanding size or species example, curious growth form or cultural and heritage linkages.

Casey has lost many of its significant trees over the years as a result of urban development, either through direct vegetation removal or poor care and maintenance practices. This has been further exacerbated through limited controls protecting such vegetation. The application of planning controls to safeguard the future of Casey's significant exotic and native trees provides a positive step that will benefit the environment and the community.

## 2.0 Environmental objective to be achieved

19/06/2025
C284case

To protect and conserve significant exotic and native trees for their intrinsic, environmental, ecological, scientific, landscape and cultural heritage values.

To ensure that any use or development of land within the Tree Protection Zone of a significant tree, as identified in the C*asey Significant Tree Strategy (incorporating The Significant Tree Register)* (City of Casey), does not compromise its long-term conservation.

## 3.0 Permit requirement

19/06/2025
C284case

A permit is required for the construction of a building or the construction or carrying out of works listed in Clause 62.02-2 within the Tree Protection Zone of any significant tree identified in the *Casey Significant Tree Strategy (incorporating The Significant Tree Register)* (City of Casey).

A permit is not required:

- To remove, destroy, or lop any vegetation which is not listed in the *Casey Significant Tree Strategy (incorporating The Significant Tree Register)* (City of Casey).
- To construct a building or construct or carry out works outside the Tree Protection Zone of any significant tree identified in the *Casey Significant Tree Strategy (incorporating The Significant Tree Register)* (City of Casey). The Tree Protection Zone is calculated by using the diameter at breast height (DBH), which is the diameter of the tree at 1.4 metres above ground level, multiplied by 12 to give a measurable distance from the tree.
- To construct a fence outside the Tree Protection Zone of any significant tree identified in the *Casey Significant Tree Strategy (incorporating The Significant Tree Register)* (City of Casey).
- To undertake maintenance of a significant tree(s) on public land by the public land manager, including dead wooding and broken limb removal, to maintain the integrity of the tree or reduce the risk of personal injury or damage to property.
- To prune limbs less than 75 millimetres in diameter (measured at the pruning point) of any significant tree listed in the *Casey Significant Tree Strategy (incorporating The Significant Tree Register)* (City of Casey) for:
  - maintaining access to existing roads, driveways and footpaths

  - clearing within two metres of an existing permanent structure
  - reducing overhang to neighbouring properties.
- For construction and maintenance works for municipal purposes within the Tree Protection Zone, subject to such works being carried out in accordance with a Tree Management Plan approved by a suitably qualified arborist.

Pruning works must be undertaken in accordance with the *Australian Standard - Pruning of Amenity Trees, AS 4373-2007*.

## 4.0 Application requirements

19/06/2025
C284case

The following application requirements apply to an application for a permit under Clause 42.01, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- A report from a suitably qualified arborist to the satisfaction of the responsible authority, detailing the reason and need for the proposed works, options for alternative treatments and any remedial or restorative action proposed.

## 5.0 Decision guidelines

19/06/2025
C284case

The following decision guidelines apply to an application for a permit for removal, destruction or lopping of vegetation under Clause 42.01, in addition to those specified in Clause 42.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The impact of the proposal on the intrinsic, environmental, ecological, landscape or cultural heritage significance of the identified significant tree.
- The impact of the proposal on the health, appearance and stability of the identified significant tree.
- The habitat value for native fauna of any identified significant tree, including hollow bearing trees.
- Any recommendations or management guidelines relating to the relevant identified significant tree(s) contained in the *City of Casey Significant Trees Strategy*, incorporating the *Casey Significant Tree Strategy (incorporating The Significant Tree Register)* (City of Casey).
- The recommendations of any report provided by a suitably qualified arborist relating to the relevant identified significant tree(s).
- Whether any proposed pruning of a significant tree(s) is in accordance with the *Australian Standard – Pruning of Amenity Trees, AS 4373-2007*.
- Whether the minimum tree protection requirements of *Australian Standard – Protection of Trees on Development Sites, AS 4970-2009* are met.
- Whether all alternative options, including the redesign or relocation of buildings has been considered to reduce impacts on the significant trees.
- Whether the planting of appropriate replacement tree(s) or vegetation is warranted, consistent with the principles of *Guidelines for the removal, destruction or lopping of native vegetation* (DELWP, 2017).
- Whether a long-term maintenance program is required for any identified significant tree impacted by building works.

## 42.02 VEGETATION PROTECTION OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **VPO** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To protect areas of significant vegetation.

To ensure that development minimises loss of vegetation.

To preserve existing trees and other vegetation.

To recognise vegetation protection areas as locations of special significance, natural beauty, interest and importance.

To maintain and enhance habitat and habitat corridors for indigenous fauna.

To encourage the regeneration of native vegetation.

## 42.02-1 Vegetation significance and objectives

31/07/2018
VC148

A schedule to this overlay must contain:

- A statement of the nature and significance of the vegetation to be protected.
- The vegetation protection objectives to be achieved.

## 42.02-2 Permit requirement

28/10/2022
VC224

A permit is required to remove, destroy or lop any vegetation specified in a schedule to this overlay.

This does not apply:

- If the table to Clause 42.02-3 specifically states that a permit is not required.
- To the removal, destruction or lopping of native vegetation in accordance with a native vegetation precinct plan specified in the schedule to Clause 52.16.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Remove, destroy or lop one tree provided:<br>- A permit has not been granted for a VicSmart application to remove, destroy or lop a tree on the same land within the last 12 months.<br>- There is no other current VicSmart application to remove, destroy or lop a tree on the same land. | Clause 59.06 |

## 42.02-3 Table of exemptions

16/08/2024
VC262

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Emergency works** | Vegetation that is to be removed, destroyed or lopped: |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | ▪ in an emergency by, or on behalf of, a public authority or municipal council to create an emergency access or to enable emergency works; or<br>▪ where it presents an immediate risk of personal injury or damage to property. Only that part of the vegetation that presents the immediate risk may be removed, destroyed or lopped under this exemption. |
| **Extractive industry** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of extractive industry in accordance with a work plan approved under the *Mineral Resources (Sustainable Development) Act 1990* and authorised by a work authority granted under that Act. |
| **Fire protection** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of any of the following fire protection activities:<br>▪ fire fighting;<br>▪ planned burning;<br>▪ making or maintenance of a fuelbreak or fire fighting access track (or any combination thereof) that does not exceed a combined width of 6 metres;<br>▪ making a strategic fuelbreak up to 40 metres wide by, or on behalf of, a public authority in accordance with a strategic fuelbreak plan approved by the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*);<br>▪ is ground fuel within 30 metres of a building and is vegetation other than native vegetation;<br>▪ in accordance with a fire prevention notice issued under either:<br>– section 87 of the *Fire Rescue Victoria Act 1958*;<br>– section 65 of the *Forests Act 1958*; or<br>– section 41 of the *Country Fire Authority Act 1958*.<br>▪ keeping vegetation clear of, or minimising risk of bushfire ignition from, an electric line in accordance with a code of practice prepared under Part 8 of the *Electricity Safety Act 1998*;<br>▪ minimising the risk to life and property from bushfire on a roadside of a public road managed by the relevant responsible road authority, and carried out by, or on behalf of that authority in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). In this exemption, roadside, public road and responsible road authority have the same meanings as in section 3 of the *Road Management Act 2004*.<br>*Note: Additional permit exemptions for bushfire protection are provided at Clause 52.12.* |
| **Geothermal energy exploration and extraction** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Geothermal Energy Resources Act 2005*. |
| **Greenhouse gas sequestration and exploration** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Greenhouse Gas Geological Sequestration Act 2008*. |
| **Land management and directions notice** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land management notice or directions notice served under the *Catchment and Land Protection Act 1994*. |
| **Land use conditions** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land use condition served under the *Catchment and Land Protection Act 1994*. |
| **Mineral exploration and extraction** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by the holder of an exploration, mining, prospecting, or retention licence issued under the *Mineral Resources (Sustainable Development) Act* 1990: |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | ▪ that is low impact exploration within the meaning of Schedule 4A of the *Mineral Resources (Sustainable Development) Act 1990*; or<br>▪ in accordance with a work plan approved under Part 3 of the *Mineral Resources (Sustainable Development) Act 1990*.<br>*Note: Schedule 4A of the Mineral Resources (Sustainable Development) Act 1990 specifies limits on the extent of native vegetation that may be removed as part of low impact exploration.* |
| **Noxious weeds** | Vegetation that is a noxious weed subject of a declaration under section 58 or section 58A of the *Catchment and Land Protection Act 1994*. This exemption does not apply to Australian Dodder (*Cuscuta australis*). |
| **Pest animal burrows** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the removal of pest animal burrows.<br>In the case of native vegetation the written agreement of an officer of the department responsible for administering the *Flora and Fauna Guarantee Act 1988* is required before the vegetation can be removed, destroyed or lopped. |
| **Planted vegetation** | Vegetation that is to be removed, destroyed or lopped that was either planted or grown as a result of direct seeding for Crop raising or Grazing animal production. |
| **Railways** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to maintain the safe and efficient function of an existing railway, or railway access road, in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Regrowth** | Vegetation that is to be removed, destroyed or lopped that has naturally established or regenerated on land lawfully cleared of naturally established vegetation, and is:<br>▪ bracken (*Pteridium esculentum*); or<br>▪ within the boundary of a timber production plantation, as indicated on a Plantation Development Notice or other documented record, and has established after the plantation.<br>This exemption does not apply to land on which vegetation has been destroyed or otherwise damaged as a result of flood, fire or other natural disaster. |
| **Road safety** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by and on behalf of a public authority or municipal council to maintain the safe and efficient function of an existing public road in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Stone exploration** | Vegetation is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of Stone exploration.<br>The maximum extent of vegetation removed, destroyed or lopped under this exemption on contiguous land in the same ownership in a five year period must not exceed any of the following:<br>▪ 1 hectare of vegetation which does not include a tree.<br>▪ 15 trees with a trunk diameter of less than 40 centimetres at a height of 1.3 metres above ground level.<br>▪ 5 trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.<br>This exemption does not apply to costeaning and bulk sampling activities. |
| **Surveying** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by, or on behalf of, a licenced surveyor (within the meaning of section 3 of the *Surveying Act 2004*) using hand-held tools to establish a sightline for the measurement of land. |
| **Traditional owners** | Vegetation that is to be removed, destroyed or lopped by a person acting under, and in accordance with: |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | ▪ a natural resources agreement under Part 6 of the *Traditional Owners Settlement Act 2010*; or<br>▪ an authorisation order made under sections 82 or 84 of the *Traditional Owner Settlement Act 2010* as those sections were in force immediately before the commencement of section 24 of the *Traditional owners Settlement Amendment Act* in 2016 (1 May 2017). |
| **Tram stops** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of the Head, Transport for Victoria to construct a tram stop, including a tram stop shelter. |
| **Transport land** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of the Head, Transport for Victoria on land in a Transport Zone, or in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority, to construct or maintain transport system infrastructure. |

## 42.02-4 Application requirements

31/07/2018
VC148

An application must be accompanied by any information specified in a schedule to this overlay.

## 42.02-5 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The statement of the nature and significance of the vegetation to be protected and the vegetation protection objective contained in a schedule to this overlay.
- The effect of the proposed use, building, works or subdivision on the nature and type of vegetation to be protected.
- The role of native vegetation in conserving flora and fauna.
- The need to retain native or other vegetation if it is rare, supports rare species of flora or fauna or forms part of a wildlife corridor.
- The need to retain vegetation which prevents or limits adverse effects on ground water recharge.
- The need to retain vegetation:
  - Where ground slopes exceed 20 percent.
  - Within 30 metres of a waterway or wetland.
  - On land where the soil or subsoil may become unstable if cleared.
  - On land subject to or which may contribute to soil erosion, slippage or salinisation.
  - In areas where the removal, destruction or lopping of vegetation could adversely affect the integrity or long term preservation of an identified site of scientific, nature conservation or cultural significance.
  - Which is of heritage or cultural significance.
- The need to remove, destroy or lop vegetation to create a defendable space to reduce the risk of bushfire to life and property.
- Any relevant permit to remove, destroy or lop vegetation in accordance with a land management plan or works program.
- Whether the application includes a land management plan or works program.

- Whether provision is made or is to be made to establish and maintain vegetation elsewhere on the land.
- Any other matters specified in a schedule to this overlay.

11/06/2020
C265case

# SCHEDULE 1 TO CLAUSE 42.02 VEGETATION PROTECTION OVERLAY

Shown on the planning scheme map as **VPO1**.

**BROOKLAND GREENS – NATIVE VEGETATION**

## 1.0 Statement of nature and significance of vegetation to be protected

11/06/2020
C265case

A number of significant stands of remnant vegetation exist on the "Brookland Greens" Estate, with the two Grassy Woodland communities in the south-east corner of the land having regional significance. The Grassy Woodland community further to the north west has high local significance and the Heathy Woodland community on the eastern boundary to the north of the drainage reserve also has high local significance.

## 2.0 Vegetation protection objectives to be achieved

11/06/2020
C265case

To retain and protect remnant native vegetation so as to:

- Provide habitat and movement corridors for native fauna.
- Visually integrate the Cranbourne Gardens with the surrounding landscape and to screen and soften views of the site from the Cranbourne Gardens.

## 3.0 Permit requirement

11/06/2020
C265case

A permit is required to remove, destroy or lop any native vegetation. This does not apply to the following environmental weed species:

- Sweet Pittosporum (*Pittosporum undulatum*);
- Sallow Wattle (*Acacia longifolia subsp. Longifolia*);
- Coast Wattle (*Acacia longifolia subsp. Sophorae*).

## 4.0 Application requirements

11/06/2020
C265case

None specified.

## 5.0 Decision guidelines

11/06/2020
C265case

The following decision guidelines apply to an application for a permit under Clause 42.02, in addition to those specified in Clause 42.02 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The significance of the vegetation.
- The habitat value of the vegetation.
- The advice of the Director of Cranbourne Gardens.
- Alternative means of using the land or locating buildings and works so that the retention and protection of native vegetation is not compromised.

02/12/2022
C259case

# SCHEDULE 2 TO CLAUSE 42.02 VEGETATION PROTECTION OVERLAY

Shown on the planning scheme map as **VPO2**.

**CARDINIA CREEK PARKLANDS ENVIRONS**

## 1.0 Statement of nature and significance of vegetation to be protected

02/12/2022
C259case

A number of significant stands of remnant vegetation exist on the rear of the properties at 62-70 and 72-80 Manuka Road, Berwick. The valley slopes support remnants of Grassy Forest, while Swamp Riparian Woodland and Swamp Scrub are located along the tributary of Cardinia Creek and its associated floodplains. The highest quality examples of Swamp Riparian Woodland are upstream of the existing dam.

Swamp Riparian Woodland, Swamp Scrub and Grassy Forest are endangered ecological vegetation communities in the Gippsland Plains Bioregion (i.e. less than ten per cent of pre-European extent remains). In the case of Swamp Scrub, less than two per cent of pre-European extent remains.

## 2.0 Vegetation protection objectives to be achieved

02/12/2022
C259case

To retain and protect remnant native vegetation so as to:

- Provide habitat and movement corridors for native fauna.
- Visually integrate the Cardinia Creek Parklands with the surrounding landscape and to screen and soften views of the site from the Parklands.

## 3.0 Permit requirement

02/12/2022
C259case

A permit is required to remove, destroy or lop any native vegetation. This does not apply to the following environmental weed species:

- Sweet Pittosporum (*Pittosporum undulatum*);
- Sallow Wattle (*Acacia longifolia subsp. Longifolia*);
- Coast Wattle (*Acacia longifolia subsp. Sophorae*).

## 4.0 Application requirements

02/12/2022
C259case

None specified.

## 5.0 Decision guidelines

02/12/2022
C259case

The following decision guidelines apply to an application for a permit under Clause 42.02, in addition to those specified in Clause 42.02 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- The significance of the vegetation.
- The habitat value of the vegetation.
- The advice of Parks Victoria.
- Alternative means of using the land or locating buildings and works so that the retention and protection of native vegetation is not compromised.

## 42.03 SIGNIFICANT LANDSCAPE OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **SLO** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify significant landscapes.

To conserve and enhance the character of significant landscapes.

## 42.03-1 Landscape character and objectives

31/07/2018
VC148

A schedule to this overlay must contain:

- A statement of the nature and key elements of the landscape.
- The landscape character objectives to be achieved.

## 42.03-2 Permit requirement

14/12/2023
VC253

A permit is required to:

- Construct a building or construct or carry out works. This does not apply:
  - If a schedule to this overlay specifically states that a permit is not required.
  - To the conduct of agricultural activities including ploughing and fencing (but not the construction of dams) unless a specific requirement for that activity is specified in a schedule to this overlay.
- Construct a fence if specified in the schedule to this overlay.
- Remove, destroy or lop any vegetation specified in a schedule to this overlay. This does not apply:
  - If the table to Clause 42.03-3 specifically states that a permit is not required.
  - To the removal, destruction or lopping of native vegetation in accordance with a native vegetation precinct plan specified in the schedule to Clause 52.16.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct a fence. | Clause 59.05 |
| Remove, destroy or lop one tree provided:<br>▪ A permit has not been granted for a VicSmart application to remove, destroy or lop a tree on the same land within the last 12 months.<br>▪ There is no other current VicSmart application to remove, destroy or lop a tree on the same land. | Clause 59.06 |
| Construct a building or construct or carry out works for:<br>▪ A carport, garage, pergola, verandah, deck, shed or similar structure.<br>▪ A rainwater tank. | Clause 59.05 |

| Class of application | Information requirements and decision guidelines |
|---|---|
| The buildings and works must be associated with a dwelling. | |
| Construct a building or construct or carry out works for a small second dwelling. | Clause 59.05 |

## 42.03-3 Table of exemptions

16/08/2024
VC262

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Emergency works** | Vegetation that is to be removed, destroyed or lopped:<br>▪ in an emergency by, or on behalf of, a public authority or municipal council to create an emergency access or to enable emergency works; or<br>▪ where it presents an immediate risk of personal injury or damage to property. Only that part of the vegetation that presents the immediate risk may be removed, destroyed or lopped under this exemption. |
| **Extractive industry** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of extractive industry in accordance with a work plan approved under the *Mineral Resources (Sustainable Development) Act 1990* and authorised by a work authority granted under that Act. |
| **Fire protection** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of any of the following fire protection activities:<br>▪ fire fighting;<br>▪ planned burning;<br>▪ making or maintaining of a fuelbreak or fire fighting access track (or any combination thereof) that does not exceed a combined width of 6 metres;<br>▪ making of strategic fuelbreak up to 40 metres wide by, or on behalf of, a public authority in accordance with a strategic fuelbreak plan approved by the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*);<br>▪ is ground fuel within 30 metres of a building and is vegetation other than native vegetation;<br>▪ in accordance with a fire prevention notice issued under either:<br>– section 87 of the *Fire Rescue Victoria Act 1958*;<br>– section 65 of the *Forests Act 1958*; or<br>– section 41 of the *Country Fire Authority Act 1958*.<br>▪ keeping vegetation clear of, or minimising the risk of bushfire ignition from, an electric line in accordance with a code of practice prepared under Part 8 of the *Electricity Safety Act 1998*;<br>▪ minimising the risk to life and property from bushfire of a roadside of a public road managed by the relevant responsible road authority, and carried out by or on behalf of that authority, in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). In this exemption, roadside, public road and responsible road authority have the same meanings as in section 3 of the *Road Management Act 2004*.<br>*Note: Additional permit exemptions for bushfire protection are provided at Clause 52.12.* |
| **Geothermal energy exploration and extraction** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with operation plan approved under the *Geothermal Energy Resources Act 2005*. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Greenhouse gas sequestration and exploration** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Greenhouse Gas Geological Sequestration Act 2008*. |
| **Land management or directions notice** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land management notice or directions notice served under the *Catchment and Land Protection Act 1994*. |
| **Land use conditions** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land use condition served under the *Catchment and Land Protection Act 1994*. |
| **Mineral exploration and extraction** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by the holder of an exploration, mining, prospecting, or retention licence issued under the *Mineral Resources (Sustainable Development) Act 1990*:<br>▪ that is low impact exploration within the meaning of Schedule 4A of the *Mineral Resources (Sustainable Development) Act 1990*; or<br>▪ in accordance with a work plan approved under Part 3 of the *Mineral Resources (Sustainable Development) Act 1990*.<br>*Note: Schedule 4A of the Mineral Resources (Sustainable Development) Act 1990 specifies limits on the extent of native vegetation that may be removed as part of low impact exploration.* |
| **Noxious weeds** | Vegetation that is a noxious weed subject of a declaration under section 58 or section 58A of the *Catchment and Land Protection Act 1994*. This exemption does not apply to Australian Dodder (*Cuscuta australis*). |
| **Pest animal burrows** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the removal of pest animal burrows.<br>In the case of native vegetation the written agreement of an officer of the department responsible for administering the *Flora and Fauna Guarantee Act 1988* is required before the vegetation can be removed, destroyed or lopped. |
| **Planted vegetation** | Vegetation that is to be removed, destroyed or lopped that was either planted or grown as a result of direct seeding for Crop raising or Grazing animal production. |
| **Railways** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to maintain the safe and efficient function of an existing railway, or railway access road, in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Regrowth** | Vegetation that is to be removed, destroyed or lopped that has naturally established or regenerated on land lawfully cleared of naturally established vegetation, and is<br>▪ bracken (*Pteridium esculentum*); or<br>▪ within the boundary of a timber production plantation, as indicated on a Plantation Development Notice or other documented record, and has established after the plantation.<br>This exemption does not apply to land on which vegetation has been destroyed or otherwise damaged as a result of flood, fire or other natural disaster. |
| **Road safety** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by and on behalf of a public authority or municipal council to maintain the safe and efficient function of an existing public road in accordance with written agreement of the Secretary of the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Stone exploration** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of Stone exploration.<br>The maximum extent of vegetation removed, destroyed or lopped under this exemption on contiguous land in the same ownership in a five year period must not exceed any of the following:<br>▪ 1 hectare of vegetation which does not include a tree. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | ▪ 15 trees with a trunk diameter of less than 40 centimetres at a height of 1.3 metres above ground level.<br>▪ 5 trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.<br>This exemption does not apply to costeaning and bulk sampling activities. |
| **Surveying** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by, or on behalf of, a licenced surveyor (within the meaning of section 3 of the *Surveying Act 2004*) using hand-held tools to establish a sightline for the measurement of land. |
| **Traditional owners** | Vegetation that is to be removed, destroyed or lopped by a person acting under, and in accordance with:<br>▪ a natural resources agreement under Part 6 of the *Traditional Owners Settlement Act 2010*; or<br>▪ an authorisation order made under sections 82 or 84 of the *Traditional Owner Settlement Act 2010* as those sections were in force immediately before the commencement of section 24 of the *Traditional owners Settlement Amendment Act* in 2016 (1 May 2017). |
| **Tram stops** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of the Head, Transport for Victoria to construct a tram stop, including a tram stop shelter. |
| **Transport land** | Vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of the Head, Transport for Victoria on land in a Transport Zone, or in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority, to construct or maintain transport system infrastructure. |

## 42.03-4 Application requirements

31/07/2018
VC148

An application must be accompanied by any information specified in a schedule to this overlay.

## 42.03-5 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The statement of the nature and key elements of the landscape and the landscape character objective contained in a schedule to this overlay.
- The conservation and enhancement of the landscape values of the area.
- The need to remove, destroy or lop vegetation to create a defendable space to reduce the risk of bushfire to life and property.
- The impact of the proposed buildings and works on the landscape due to height, bulk, colour, general appearance or the need to remove vegetation.
- The extent to which the buildings and works are designed to enhance or promote the landscape character objectives of the area.
- The impact of buildings and works on significant views.
- Any other matters specified in a schedule to this overlay.

11/06/2020
C265case

# SCHEDULE 1 TO CLAUSE 42.03 SIGNIFICANT LANDSCAPE OVERLAY

Shown on the planning scheme map as **SLO1**.

**CASEY FOOTHILLS**

## 1.0 Statement of nature and key elements of landscape

11/06/2020
C265case

The hilly terrain of the Casey Foothills provides breathtaking views to and from the ridges and other vantage points. The terrain offers topographical and scenic relief from the low- lying built up areas of Casey.

The rural nature, characterised by open pasture and hedge row plantings, as well as bush remnants, provide a green backdrop to the city that contributes to a positive image of the municipality as a desirable place to live.

## 2.0 Landscape character objectives to be achieved

11/06/2020
C265case

To conserve and enhance the existing pattern of vegetation to maintain landscape quality and remaining natural ecosystems.

To encourage development that is in harmony with the hilly terrain and rural landscape of the Casey Foothills.

To encourage land management practices compatible with landscape conservation.

To protect the rural character of land surrounding the settlements of Harkaway and Narre Warren North.

## 3.0 Permit requirement

11/06/2020
C265case

None specified.

## 4.0 Application requirements

11/06/2020
C265case

Any application to construct a building or works must include the following information:

- A comprehensive site analysis plan with an emphasis on visual matters show the key influences on the site and the relationship of the proposed development to its immediate surroundings, giving consideration, where appropriate, to:
  - Access, driveway connection points and main roads.
  - Vegetation including indigenous species, exotic species and specimen trees.
  - Topography including contours, drainage, orientation/solar access, highpoints, ridge lines and valleys.
  - Services including easements, transmission lines, electricity and gas water mains.
  - Visual access including filtered views to and from the site, internal views, vistas/views from public viewing points and visually exposed areas.
  - Adjoining land uses.
  - Open space connections.
  - Fences and boundaries.
  - Notable features.
  - Microclimate.
  - Contaminated soils and filled areas.

- A professionally prepared landscape and management plan that demonstrates how the subject land can be revegetated over time, giving consideration, where appropriate, to:
  - A plant schedule including botanic name, common name, height and spread, quality and a key/legend.
  - Revegetation of slopes greater than 1-in-5 (20 per cent), drainage lines, hill tops and visually exposed areas.
  - Species that existed pre settlement.
  - Provision for fencing off a section land for revegetation.
  - Enhancement of existing and proposed public space areas and vegetation corridors.
- Development envelopes based on site analysis findings. In areas of high visual exposure proposals need to demonstrate that buildings within the proposed envelopes will be fully screened from external view, in particular from sensitive view corridors and points.

## 5.0 Decision guidelines

11/06/2020
C265case

The following decision guidelines apply to an application for a permit under Clause 42.01, in addition to those specified in Clause 42.01 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether the development will be detrimental to the natural physical features or resources of the area.
- Whether the proposal is located in an area of high fire risk or is flood prone.
- Whether the development will require significant earthworks.
- Whether buildings and works are suitable for a slope of greater than 1-in-5 (20 per cent).
- Whether the development will be visible from public roads and other vantage points.
- The impact on plant life, animal habitats and the landscape.
- The impact on the character and appearance of any area or feature of architectural, historic or scientific significance or of natural beauty, interest or importance.
- Whether vegetation will be removed, and the proximity of this vegetation to a watercourse.
- The need to revegetate or landscape the site.

02/12/2022
C259case

## SCHEDULE 2 TO CLAUSE 42.03 SIGNIFICANT LANDSCAPE OVERLAY

Shown on the planning scheme map as **SLO2**.

**WESTERN PORT COAST**

### 1.0 Statement of nature and key elements of landscape

02/12/2022
C259case

The Western Port coastal area is one of 42 sites deemed to be a Wetland of International Significance in Australia. The Western Port coastal landscape is ecologically diverse supporting a variety of fauna and flora species. The wetlands consist of swamps, salt marshes, mangroves, mud flats, floodplains, deltas, inlets and deep channels. Inland there is a mix of rural landscapes some with pockets of remnant vegetation which provide an important pre-European settlement landscape.

There are two sites of international geological/geomorphological significance, 3 of national significance, 27 of state significance and 19 of regional significance along the coast. The quality of Western Port's landscapes have been recorded and classified by the National Trust and by inclusion of some on the Register of the National Estate.

### 2.0 Landscape character objectives to be achieved

02/12/2022
C259case

To conserve and enhance the existing pattern of vegetation to maintain landscape quality and remaining natural ecosystems.

To encourage development that is in harmony with the coastal landscape of Western Port.

To encourage land management practices compatible with landscape conservation.

To protect the coastal character of land surrounding the settlements of Blind Bight, Cannons Creek, Tooradin and Warneet.

### 3.0 Permit requirement

02/12/2022
C259case

None specified.

### 4.0 Application requirements

02/12/2022
C259case

The following application requirements apply to an application for a permit under Clause 42.03, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- Proposed external colours, materials and finishes.
- Any vegetation to be removed.
- Any earthworks to be carried out.
- Any existing buildings and works.

### 5.0 Decision guidelines

19/06/2025
C284case

The following decision guidelines apply to an application for a permit under Clause 42.03, in addition to those specified in Clause 42.03 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether the development will be detrimental to the natural physical features or resources of the area.
- Whether the development will require significant earthworks.
- Whether the development will be visible from public roads and other vantage points.
- The impact on plant life, animal habitats and landscape of the coastal environment (terrestrial and marine).

- The impact on the character and appearance of any area or feature of architectural, historic or scientific significance or of natural beauty, interest or importance.
- Whether vegetation will be removed.
- The need to revegetate or landscape the site.
- The views of the Department of Energy, Environment and Climate Action.

02/12/2022
C259case

# SCHEDULE 3 TO CLAUSE 42.03 SIGNIFICANT LANDSCAPE OVERLAY

Shown on the planning scheme map as **SLO3**.

**CARDINIA STRATEGY PLAN AREA**

## 1.0 Statement of nature and key elements of landscape

02/12/2022
C259case

The gently undulating topography of the area forms a transition from the Foothills in the north west to flatter land around Cardinia Creek to the south east.

It provides both a landscape context for the Foothills and a picturesque landscape setting for the Cardinia Creek Park.

The area is in part cleared for pasture and has in part a rural residential character.

## 2.0 Landscape character objectives to be achieved

02/12/2022
C259case

To conserve and enhance the existing pattern of vegetation to maintain landscape quality and remaining natural ecosystems.

To encourage development that is in harmony with the landscape of the Casey Foothills and compatible with protection of the picturesque landscape setting for Cardinia Creek Park.

To encourage protection and enhancement of riparian vegetation.

To encourage land management practices compatible with landscape conservation.

To protect the landscape value of Cardinia Creek Park.

## 3.0 Permit requirement

02/12/2022
C259case

None specified.

## 4.0 Application requirements

02/12/2022
C259case

None specified.

## 5.0 Decision guidelines

19/06/2025
C284case

The following decision guidelines apply to an application for a permit under Clause 42.03, in addition to those specified in Clause 42.03 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether the development will be detrimental to the natural physical features or resources of the area, the Foothills or Cardinia Creek Park.
- Whether the development will detract from the views and landscape setting of Cardinia Creek Park.
- The impact on plant life, animal habitats and the landscape.
- The impact on the character and appearance of any area or feature of architectural, historic or scientific significance or of natural beauty, interest or importance.
- Whether vegetation will be removed.
- The need to revegetate or landscape the site.
- The views of the public land manager responsible for Cardinia Creek Park.

02/12/2022
C259case

# SCHEDULE 4 TO CLAUSE 42.03 SIGNIFICANT LANDSCAPE OVERLAY

Shown on the planning scheme map as **SLO4**.

**BERWICK TOWNSHIP AND ENVIRONS**

## 1.0 Statement of nature and key elements of landscape

02/12/2022
C259case

The Berwick Township and environs possess "a special landscape character". The special landscape character of the Berwick Township and its environs is attributable to a predominance of tall, mature Australian and exotic trees on both private properties and the roadway. These trees are visually dominant in long distance views, streetscape views and views to private gardens. The boundary between private and public property is blurred in many areas due to the lack of front fences, with wide road verges blending with deep front setbacks and mature trees in front gardens and along the road reserves.

## 2.0 Landscape character objectives to be achieved

02/12/2022
C259case

To ensure that the tree dominated landscape character of the Berwick Township and its environs is protected and enhanced.

To ensure that new development is sited and designed to allow for the retention of existing trees that contribute to the character of the area and that provide wildlife habitat.

To ensure that new buildings and works are designed to ensure they do not dominate the treed landscape character of the area.

To ensure that new development is sympathetic to the natural characteristics of the area.

To ensure that new development provides opportunities for additional tree and screen planting to enhance the treed character of the area.

To ensure that the distinctive avenues of street trees are protected and retained.

To ensure that front fences are sympathetic to the open, garden character of the area.

## 3.0 Permit requirement

02/12/2022
C259case

A permit is required to:

- Remove, destroy or lop any tree if the trunk circumference is greater than 0.5 metres, or the trunk diameter is greater than 16 centimetres, at one metre above ground level. This does not apply to the pruning of a tree for regeneration or ornamental shaping or the removal of dead trees or dead limbs or the partial removal of limbs and branches directly overhanging dwellings, garages and outbuildings.
- Construct a front fence.

A permit is not required to construct a building or construct or carry out works which are more than 5 metres from the drip line of any tree, or which are within 5 metres of the drip line of any tree with a trunk circumference that is less than 0.5 metres at one metre above ground level.

## 4.0 Application requirements

02/12/2022
C259case

None specified.

## 5.0 Decision guidelines

19/06/2025
C284case

The following decision guidelines apply to an application for a permit under Clause 42.03, in addition to those specified in Clause 42.03 and elsewhere in the scheme which must be considered, as appropriate, by the responsible authority:

- Whether the proposed building and works are designed and sited to protect existing trees, both on the site or on adjoining land, that have trunk circumferences greater than 0.5 metres at one metre above ground level.
- Whether the proposed buildings and works are designed and sited to provide opportunities for additional tree planting on the site that contributes to the identified character of the area.
- Whether the proposed front fence is sympathetic to the open garden character of the area.
- Whether the proposed building or works retain a built form profile for the site as a whole that does not dominate the landscape.
- The tree species, its age, health and growth characteristics.
- The location of trees on the land and their contribution to the character of the site, streetscape and neighbourhood.
- Whether the tree is isolated or part of a grouping.
- The impact of the tree on the structural integrity of existing buildings including foundations.

# 43 HERITAGE AND BUILT FORM OVERLAYS

19/01/2006
VC37

## 43.01 HERITAGE OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **HO** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To conserve and enhance heritage places of natural or cultural significance.

To conserve and enhance those elements which contribute to the significance of heritage places.

To ensure that development does not adversely affect the significance of heritage places.

To conserve specified heritage places by allowing a use that would otherwise be prohibited if this will demonstrably assist with the conservation of the significance of the heritage place.

### Scope

The requirements of this overlay apply to heritage places specified in the schedule to this overlay. A heritage place includes both the listed heritage item and its associated land. Heritage places may also be shown on the planning scheme map.

## 43.01-1 Permit requirement

16/10/2025
VC288

A permit is required to:

- Subdivide land.
- Demolish or remove a building.
- Construct a building or construct or carry out works, including:
  - Domestic services normal to a dwelling if the services are visible from a street (other than a lane) or public park.
  - A solar energy system attached to a building that primarily services the land on which it is situated if the system is visible from a street (other than a lane) or public park and if the schedule to this overlay specifies the heritage place as one where solar energy system controls apply.
  - A rainwater tank if the rainwater tank is visible from a street (other than a lane) or public park.
  - A fence, if the fence is visible from a street (other than a lane) or public park.
  - Roadworks which change the appearance of a heritage place or which are not generally undertaken to the same details, specifications and materials.
  - Buildings or works associated with a railway, railway station or tramway constructed or carried out by or on behalf of the Head, Transport for Victoria.
  - Street furniture other than:
    - Traffic signals, traffic signs, bus shelters, fire hydrants, parking meters, post boxes and seating.
    - Speed humps, pedestrian refuges and splitter islands.
  - A domestic swimming pool or spa and associated mechanical and safety equipment, if the swimming pool or spa and associated equipment are visible from a street (other than a lane) or public park.
  - A pergola or verandah, including an open-sided pergola or verandah to a dwelling with a finished floor level not more than 800mm above ground level and a maximum building height of 3 metres above ground level.

  - A deck, including a deck to a dwelling with a finished floor level not more than 800mm above ground level, if the deck is visible from a street (other than a lane) or public park
  - Non-domestic disabled access, excluding a non-domestic disabled access ramp if the ramp is not visible from a street (other than a lane) or public park.
  - An electric vehicle charging station if the charging station is visible from a street (other than a lane) or public park.
  - Services normal to a building other than a dwelling or small second dwelling, including chimneys, flues, skylights, heating and cooling systems, hot water systems, security systems and cameras, downpipes, window shading devices, or similar, if the works are visible from a street (other than a lane) or public park.
- Externally alter a building by structural work, rendering, sandblasting or in any other way.
- Construct or display a sign.
- Externally paint a building if the schedule to this overlay specifies the heritage place as one where external paint controls apply.
- Externally paint an unpainted surface.
- Externally paint a building if the painting constitutes an advertisement.
- Internally alter a building if the schedule to this overlay specifies the heritage place as one where internal alteration controls apply.
- Carry out works, repairs and routine maintenance which change the appearance of a heritage place or which are not undertaken to the same details, specifications and materials.
- Remove, destroy or lop a tree if the schedule to this overlay specifies the heritage place as one where tree controls apply. This does not apply:
  - To any action which is necessary to keep the whole or any part of a tree clear of an electric line provided the action is carried out in accordance with a code of practice prepared under Section 86 of the *Electricity Safety Act 1998*.
  - If the tree presents an immediate risk of personal injury or damage to property.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| ▪ Subdivide land to realign the common boundary between two lots where the area of either lot is reduced by less than 15 percent and the general direction of the common boundary does not change. | Clause 59.07 |
| ▪ Subdivide land into lots each containing an existing building or car parking space where:<br>– The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>– An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within five years prior to the application for a permit for subdivision. | |
| ▪ Subdivide land into two lots if: | |

| Class of application | Provision |
|---|---|
| – The construction of a building or the construction or carrying out of works on the land is approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– The construction or carrying out of the approved building or works on the land has started lawfully.<br>– The subdivision does not create a vacant lot.<br>▪ Demolish or remove an outbuilding (including a carport, garage, pergola, verandah, deck, shed or similar structure) unless the outbuilding is specified in the schedule to the Heritage Overlay.<br>▪ Demolish or remove a fence unless the fence is specified in the schedule to the Heritage Overlay.<br>▪ Externally alter a non-contributory building.<br>▪ External painting.<br>▪ Construct a fence.<br>▪ Construct a carport, garage, pergola, verandah, deck, shed or similar structure.<br>▪ Construct and install domestic services normal to a dwelling.<br>▪ Construct and install a non-domestic disabled access ramp.<br>▪ Construct a vehicle crossover.<br>▪ Construct a domestic swimming pool or spa and associated mechanical equipment and safety fencing.<br>▪ Construct a rainwater tank.<br>▪ Construct or display a sign.<br>▪ Lop a tree.<br>▪ Construct or install a solar energy system attached to a dwelling or small second dwelling.<br>▪ Construct and install an electric vehicle charging station.<br>▪ Construct and install services normal to a building other than a dwelling or small second dwelling, including chimneys, flues, skylights, heating and cooling systems, hot water systems, security systems and cameras, downpipes, window shading devices, or similar. | |
| Subdivide land into two lots if:<br>▪ A permit has been issued under a provision of a residential zone to construct up to two dwellings on the land and the permit has not expired.<br>▪ Each lot will contain either:<br>– one existing dwelling; or<br>– one dwelling permitted to be constructed in accordance with the permit. | Clause 59.07 |

## 43.01-2 Places in the Victorian Heritage Register

21/11/2017
VC141

A heritage place which is included in the Victorian Heritage Register is subject to the requirements of the *Heritage Act 2017*.

### Permit requirement

A permit is required under this overlay to subdivide a heritage place which is included in the Victorian Heritage Register. This includes the subdivision or consolidation of land including any building or airspace.

### Referral of applications

An application to subdivide a heritage place which is included in the Victorian Heritage Register must be referred to the relevant referral authority under Section 55 of the Act in accordance with Clause 66 of this scheme.

## 43.01-3 No permit required

14/12/2023
VC253

No permit is required under this overlay:

- For anything done in accordance with an incorporated plan specified in a schedule to this overlay.
- To internally alter a church for liturgical purposes if the responsible authority is satisfied that the alterations are required for liturgical purposes.
- For interments, burials and erection of monuments, re-use of graves, burial of cremated remains and exhumation of remains in accordance with the *Cemeteries and Crematoria Act 2003*.
- To develop a heritage place which is included in the Victorian Heritage Register, other than an application to subdivide a heritage place of which all or part is included in the Victorian Heritage Register.
- To construct a building or construct or carry out works for a small second dwelling if all the following requirements are met:
  - The building height must not exceed 5 metres.
  - The building must be finished using muted tones and colours.

## 43.01-4 Exemption from notice and review

14/01/2025
VC237

An application under this overlay for any of the following classes of development is exempt from the notice requirements of section 52(1) (a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act:

- Demolition or removal of an outbuilding (including a carport, garage, pergola, verandah, deck, shed or similar structure) unless the outbuilding is specified in the schedule to this overlay.
- Demolition or removal of a fence unless the fence is specified in the schedule to this overlay.
- External alteration of a building.
- External painting.
- Construction of a fence.
- Construction of a carport, garage, pergola, verandah, deck, shed or similar structure.
- Domestic services normal to a dwelling.
- Carry out works, repairs and routine maintenance.
- Internally alter a building.
- Non-domestic disabled access ramp.
- Construction of a vehicle crossover.
- Construction of a domestic swimming pool or spa and associated mechanical equipment and safety fencing.

- Construction of a tennis court.
- Construction of a rainwater tank.
- Construction or display of a sign.
- Lopping of a tree.
- Construction of seating, picnic tables, drinking taps, barbeques, rubbish bins, security lighting, irrigation, drainage or underground infrastructure, bollards, telephone boxes.
- Roadworks.
- An electric vehicle charging station.
- Services normal to a building other than a dwelling or a small second dwelling, including chimneys, flues, skylights, heating and cooling systems, hot water systems, security systems and cameras, downpipes, window shading devices, or similar.

## 43.01-5 Statements of significance

24/01/2020
VC160

The schedule to this overlay must specify a statement of significance for each heritage place included in the schedule after the commencement of Amendment VC148. This does not apply to:

- A heritage place included in the schedule to this overlay by an amendment prepared or authorised by the Minister under section 8(1)(b) or section 8A(4) of the Act before or within three months after the commencement of Amendment VC148.
- A registered heritage place included in the Victorian Heritage Register established under Part 3 of the *Heritage Act 2017*.
- A heritage place included in the schedule to this overlay on an interim basis.

## 43.01-6 Heritage design guidelines

31/07/2018
VC148

The schedule to this overlay may specify heritage design guidelines for any heritage place included in the schedule. A heritage design guideline must not contain any mandatory requirements.

## 43.01-7 Application requirements

31/07/2018
VC148

An application must be accompanied by any information specified in the schedule to this overlay.

## 43.01-8 Decision guidelines

24/01/2020
VC160

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The significance of the heritage place and whether the proposal will adversely affect the natural or cultural significance of the place.
- Any applicable statement of significance (whether or not specified in the schedule to this overlay), heritage study and any applicable conservation policy.
- Any applicable heritage design guideline specified in the schedule to this overlay.
- Whether the location, bulk, form or appearance of the proposed building will adversely affect the significance of the heritage place.
- Whether the location, bulk, form and appearance of the proposed building is in keeping with the character and appearance of adjacent buildings and the heritage place.
- Whether the demolition, removal or external alteration will adversely affect the significance of the heritage place.

- Whether the proposed works will adversely affect the significance, character or appearance of the heritage place.
- Whether the proposed subdivision will adversely affect the significance of the heritage place.
- Whether the proposed subdivision may result in development which will adversely affect the significance, character or appearance of the heritage place.
- Whether the proposed sign will adversely affect the significance, character or appearance of the heritage place.
- Whether the lopping or development will adversely affect the health, appearance or significance of the tree.
- Whether the location, style, size, colour and materials of the proposed solar energy system will adversely affect the significance, character or appearance of the heritage place.

## 43.01-9 Use of a heritage place

31/07/2018
VC148

A permit may be granted to use a heritage place (including a heritage place which is included in the Victorian Heritage Register) for a use which would otherwise be prohibited if all of the following apply:

- The schedule to this overlay specifies the heritage place as one where prohibited uses may be permitted.
- The use will not adversely affect the significance of the heritage place.
- The benefits obtained from the use can be demonstrably applied towards the conservation of the heritage place.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider the effect of the use on the amenity of the area.

## 43.01-10 Aboriginal heritage places

31/07/2018
VC148

A heritage place specified in the schedule to this overlay as an Aboriginal heritage place is also subject to the requirements of the *Aboriginal Heritage Act 2006*.

25/07/2019
C224case

# SCHEDULE TO CLAUSE 43.01 HERITAGE OVERLAY

## 1.0 Application requirements

19/06/2025
C284case

The following application requirements apply to an application under Clause 43.01, in addition to those specified elsewhere in the planning scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- Where it is proposed to demolish or remove significant fabric or subdivide a heritage place, a heritage impact assessment prepared by a suitably qualified heritage consultant.
- An application to subdivide a heritage place isto be accompanied by an application for buildings or works. Where this is not possible, building envelopes for any lots created from the proposed subdivision must accompany the subdivision application.
- Where it is proposed to demolish or remove significant fabric of a heritage place, a report prepared by a structural engineerwith specialist knowledgeof heritage buildings that justifies the proposed demolition and also includes a schedule of works and a cost breakdown of the works required to enable the building to be re-used.
- Where the relevant statement of significance does not clearly identify the contributory elements, a report prepared by a suitably qualified heritage consultant that identifies the contributory elements of a heritage place and justifies how the proposal respects the significance of the place.
- Where it is proposed to remove, destroy or lop a tree located in a heritage place which this schedule specifies as one where tree controls apply, an arboricultural report prepared by a suitably qualified arborist with specialist knowledge of heritage trees or heritage landscapes.
- For all applications in growth areas and for all subdivision applications for all other heritage places, a conservation management plan prepared by a suitably qualified heritage consultant.

## 2.0 Heritage places

13/03/2026
C296case

The requirements of this overlay apply to both the heritage place and its associated land.

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO1 | "Roads End"<br>198-238 Beaumont Road, Berwick | Yes | No | Yes | Yes | Yes | No | No | No |
| HO2 | Nerre Nerre Warren (Dandenong Police Paddocks)<br>Churchill Park Drive, Endeavour Hills | - | - | - | - | - | Yes<br>Ref: H2348 | Yes | Yes |
| HO3 | "The Springs"<br>3 Stockyard Court, Narre Warren South (former 2 Stockyard Court, Narre Warren South) | Yes | Yes | Yes | Yes | Yes | No | No | No |
| HO4 | "Edrington"<br>6 Melville Park Drive, Berwick | - | - | - | - | - | Yes<br>Ref: H653 | Yes | No |
| HO5 | "Springfield Homestead" and The Old Cheese Factory<br>34-66 Homestead Road, Berwick | Yes | Yes | Yes | Yes | Yes | No | No | No |
| HO7 | Narre Warren North Primary School<br>15-31 A'Beckett Road, Narre Warren North | Yes | No | No | Yes | Yes | No | No | No |
| HO8 | "Wallerview"<br>101 A'Beckettt Road, Narre Warren North | Yes | No | No | Yes | Yes | No | No | No |
| HO10 | Uniting Church<br>1-13 Main Street, Narre Warren North | Yes | Yes | No | Yes | Yes | No | No | No |
| HO11 | Dwelling (former post office and store) | Yes | No | No | Yes | Yes | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | 15 Main Street, Narre Warren North | | | | | | | | |
| HO13 | “Balla Balla”<br>1300 Baxter-Tooradin Road, Cannons Creek | Yes | No | Yes | Yes | No | No | No | No |
| HO14 | "Fisherman’s Cottage"<br>13 Mickle Street, Tooradin | Yes | Yes | Yes | Yes | No | No | No | No |
| HO15 | "Tooradin Estate"<br>300 Lynes Road, Tooradin | Yes | No | Yes | Yes | No | No | No | No |
| HO16 | "St Germains"<br>95 McCormacks Road, Clyde North | Yes | No | Yes | Yes | No | No | Yes | No |
| HO17 | Cranbourne Shire Offices, Public Hall, Court House and Post Office Complex (former)<br>156-160 Sladen Street, Cranbourne<br>**Statement of Significance:**<br>*Statement of Significance: Cranbourne Shire Offices, Public Hall, Court House and Post Office Complex (former), August 2020.* | Yes | Yes<br>- Cranbourne Shire Offices, Public Hall, Court House and Post Office | Yes - Norfolk Island Pines, Flowering Gums and Willow Myrtle trees | Yes | No | No | No | No |
| HO18 | St John the Evangelist Church of England Complex<br>27-31 Childers Street, Cranbourne<br>**Statement of Significance:** | No | No | Yes - Turkey Oak tree and Red Oak tree to west of the church | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | *Statement of Significance: St John the Evangelist Church of England Complex, August 2020.* | | | | | | | | |
| HO20 | "Isles View"<br>40 Bayview Road, Tooradin | Yes | No | Yes | Yes | No | No | No | No |
| HO21 | "Quilly Park" (former)<br>Part 55 Craigs Lane, Pearcedale<br>**Statement of significance:**<br>*Statement of Significance: 'Quilly Park', November 2020* | No | No | No | Yes | No | No | No | No |
| HO22 | Lyndhurst Primary School (former)<br>310 Dandenong-Hastings Road, Lyndhurst | Yes | Yes | Yes | Yes | No | No | No | No |
| HO24 | Rusty Gum Myrtle tree<br>South side of Reserve Street, near corner Gloucester Avenue, Berwick | No | No | Yes | Yes | No | No | No | No |
| HO25 | Rusty Gum Myrtle tree<br>Near Clyde Road intersection with Reserve Street, Berwick | No | No | Yes | Yes | No | No | No | No |
| HO26 | Row of Oak trees<br>North side of Princes Highway, Narre Warren | No | No | Yes | Yes | No | No | No | No |
| HO27 | Narre Warren North Avenue of Honour | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | Memorial Drive and Main Street, Narre Warren North | | | | | | | | |
| HO28 | Cardinia Creek Area<br>Between Inglis Road, Berwick and Chadwick Road, Harkaway | No | No | Yes | Yes | No | No | No | No |
| HO29 | Berwick Post Office and Courthouse (former)<br>102-104 High Street, Berwick and 1 Gloucester Avenue, Berwick | Yes | Yes | No | Yes | Yes | No | No | No |
| HO30 | Berwick Inn<br>1-9 High Street, Berwick | Yes | No | Yes | Yes | No | No | No | No |
| HO32 | "Kilfera"<br>76-80 King Road, Harkaway<br>The heritage place comprises:<br>*Mud and timber homestead and land within 10 metres of the perimeter of the dwelling, and Cupressus macrocarpa trees and land beneath and beyond the canopy edge, if within the property boundary, for a distance of five metres from the canopy edge or to the property boundary.* | No | No | Yes - Lily Pilly, Holly and the Windrow of Cupressus macrocarpa | Yes | No | No | No | No |
| HO33 | "Cloverdale Cottage"<br>4 Cloverdale Lane, Lysterfield South (former 4/324 Hallam North Road, Lysterfield South)<br>The heritage place comprises: | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | *Cloverdale Cottage and land within 10 metres of the perimeter of the cottage.* | | | | | | | | |
| HO34 | "Aranmore"<br>Part 17I and 19 Aranmore Crescent and part 94W Crawley Road, Narre Warren North | No | No | Yes | Yes | No | No | No | No |
| HO35 | The Studio<br>7-13 Baker Road, Harkaway | No | No | Yes | Yes | No | No | No | No |
| HO36 | "Burnbank"<br>64-72 Beaumont Road, Berwick | No | No | Yes | Yes | No | No | No | No |
| HO37 | "Beaumont Farm"<br>115-129 Beaumont Road, Berwick<br>The heritage place comprises:<br>*Beaumont Farm farmhouse and land within 10 metres of the perimeter of the building, the driveway and land within five metres of the driveway.* | No | No | Yes | Yes | No | No | No | No |
| HO38 | Mary Blackwood House<br>76-80 Brisbane Street, Berwick | Yes | No | Yes | Yes | No | No | No | No |
| HO39 | St Margaret's School<br>27-47 Gloucester Avenue, Berwick<br>The heritage place comprises the following buildings: | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | ▪ *Kippenross;*<br>▪ *Campbell House;*<br>▪ *the Doll's House;*<br>▪ *the Cottage; and,*<br>▪ *Gloucester House.*<br>The heritage place also comprises:<br>▪ *Four English Elm trees (Ulmus procera) west of the Cottage;*<br>▪ *Four Golden Elm trees (Ulmus procera "Louis Van Houtte") south of Gloucester House;*<br>▪ *One River Red Gum tree (Eucalyptus camaldulensis) east of the Dolls House;*<br>▪ *One English Oak tree (Quercus robur) and two River Red Gum trees (Eucalyptus camaldulensis) in the junior playground; and,*<br>▪ *One English Oak tree (Quercus robur) and two River Red Gum trees (Eucalyptus camaldulensis) north of the junior tennis courts.* | | | | | | | | |
| HO41 | "Melrose"<br>137-163 Harkaway Road, Harkaway | Yes | No | Yes | Yes | No | No | No | No |
| HO42 | "Piney Ridge"<br>82 Heatherton Road, Endeavour Hills | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | The heritage places comprises:<br>*All trees on the property.* | | | | | | | | |
| HO43 | "Westbourne"<br>315 Hessell Road, Harkaway | No | No | Yes | Yes | No | No | No | No |
| HO44 | "Inveresk"<br>93 High Street and 2 Rutland Road, Berwick | Yes | No | Yes | Yes | No | No | No | No |
| HO46 | St Andrew's Uniting Church<br>105-109 High Street, Berwick | No | Yes | Yes | Yes | No | No | No | No |
| HO47 | "Wickham"<br>37-39 King Road, Harkaway | No | No | Yes | Yes | No | No | No | No |
| HO48 | "Kingussie"<br>42 Langmore Lane, Berwick | No | No | Yes | Yes | No | No | No | No |
| HO49 | "Clover Cottage and Garden"<br>54-60 Manuka Road, Berwick<br>**Statement of significance:**<br>Statement of Significance: 'Clover Cottage and Garden', 54-60 Manuka Road, Berwick, February 2021 | No | No | Yes | Yes | No | No | Yes | No |
| HO50 | "Minard"<br>62-70 Manuka Road, Berwick<br>**Statement of significance:** | No | No | No | Yes | No | No | Yes | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | Statement of Significance: 'Minard', 62-70 Manuka Road, Berwick, March 2019 | | | | | | | | |
| HO51 | "Oatlands"<br>15 The Elms and The Elms road reserve, Narre Warren<br>The heritage place comprises:<br>*The whole lot that contains the heritage homestead, the stables and land within two metres of the perimeter of the stables, the cool store and the old cottage home and land within five metres of the perimeter of the cottage.*<br>*The heritage place also consists of the trees that line the present driveway which will form a road reserve off Ryelands Drive when the land is subdivided.* | No | No | Yes | Yes | No | No | No | No |
| HO52 | "Araluen (former)"<br>30-50I Jacksons Road, Narre Warren (former 38S London Crescent, Narre Warren)<br>The heritage place comprises:<br>*The heritage park which is depicted as Reserve No. 3 for public open space on PS 649053J in accordance with Planning Permit PlnA01188/11.A.* | No | No | Yes | Yes | No | No | No | No |
| HO53 | *"Kilkieran"*<br>2-6 Kilkieran Place, Berwick | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | The heritage place comprises:<br>*The Edwardian dwelling and the Magnolia grandiflora tree.* | | | | | | | | |
| HO54 | "Dhuringa"<br>59 Peel Street, 4 Elgin Street, part 6 Elgin Street and part 17 Scanlan Street, Berwick | No | No | Yes | Yes | No | No | No | No |
| HO55 | "Quarry Hills"<br>31 Quarry Hills Drive, Berwick | No | No | Yes | Yes | No | No | No | No |
| HO56 | "Glen Cairn"<br>21-27 Robinson Road, Narre Warren North | No | No | Yes | Yes | No | No | No | No |
| HO57 | "Hillsley" homestead complex and garden<br>Part 90-92 and part 94-104 Robinson Road, Narre Warren North<br>**Statement of significance:**<br>*Statement of Significance: 'Hillsley', November 2020* | No | No | Yes | Yes | No | No | No | No |
| HO58 | Wilson Botanic Park<br>668 Princes Highway, Berwick | No | No | Yes | Yes | No | No | No | No |
| HO60 | "Forres Farm"<br>186-190 A'Beckett Road, Narre Warren North<br>The heritage place comprises: | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | *Forres Farm farmhouse and land within 10 metres of the perimeter of the house.* | | | | | | | | |
| HO61 | "Essex Park Homestead"<br>13 Aquila Crescent and part 14-16 Essex Park Drive, Endeavour Hills | Yes | No | Yes | Yes | No | No | No | No |
| HO62 | "The Grattons"<br>8-10 Bailey Road, Narre Warren North<br>The heritage place comprises:<br>*The Grattons Edwardian brick farmhouse and land within 10 metres of the perimeter of the house.* | No | No | Yes | Yes | No | No | No | No |
| HO63 | "Glenlea"<br>Part 32-42 Baker Road, Harkaway (Lot 1 TP513415)<br>**Statement of significance:**<br>*Statement of Significance: 'Glenlea', November 2020* | No | No | Yes | Yes | No | No | No | No |
| HO65 | "Caseldene"<br>31 Brisbane Street, Berwick | No | No | Yes | Yes | No | No | No | No |
| HO66 | House and garden<br>Part 8, 9 and 10/11-15 Brisbane Street, Berwick | No | No | Yes | Yes | No | No | No | No |
| HO67 | House and garden | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | 64-70 Brisbane Street, Berwick | | | | | | | | |
| HO68 | “Glenfalloch”<br>88-92 Brisbane Street, Berwick | No | No | Yes | Yes | No | No | No | No |
| HO69 | “Burr Hill”<br>3 Burr Hill Court, Berwick | No | No | Yes | Yes | No | No | No | No |
| HO70 | “Four Oaks” homestead (former) and Oak trees<br>13 Cardigan Street and part 10 and 12 Aldridge Street, Endeavour Hills | No | No | Yes - Oak trees | Yes | No | No | No | No |
| HO71 | Christians’ Meeting House (former)<br>108 High Street, Berwick | Yes | No | No | Yes | No | No | No | No |
| HO72 | Christ Church Vicarage<br>1 Church Street, Berwick | No | No | Yes | Yes | No | No | No | No |
| HO73 | “Clyde Cottage”<br>11 Clyde Road, Berwick | Yes | No | No | Yes | No | No | No | No |
| HO75 | "Doveton Heights"<br>24 Doveton Avenue, Eumemmerring | No | No | No | Yes | No | No | No | No |
| HO76 | House<br>37-39 Doveton Avenue, Eumemmerring | No | No | Yes | Yes | No | No | No | No |
| HO77 | “Alrose”<br>45 Elgin Street, Berwick | Yes | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO78 | "Gloucester Cottage"<br>1, 2 & 3/66 (and Common Property SP:28672P) Gloucester Avenue, Berwick | Yes | No | No | Yes | No | No | No | No |
| HO79 | "Glencairn"<br>159 and part 165 Greaves Road, Narre Warren South (former 159-165 Greaves Road, Narre Warren South | No | No | Yes | Yes | No | No | No | No |
| HO80 | "Wandeen Farm"<br>191-207 Harkaway Road, Harkaway | No | No | Yes | Yes | No | No | No | No |
| HO83 | "Greenacres"<br>178 Hessell Road, Harkaway<br>The heritage place comprises:<br>*The existing bungalow built in the 1930s and land within 50 metres of the perimeter of this building.* | No | No | Yes | Yes | No | No | No | No |
| HO84 | Mechanics Institute and Free Library<br>13-15 High Street, Berwick | Yes | No | No | Yes | No | No | No | No |
| HO85 | Shops<br>71-75 High Street, Berwick | Yes | No | No | Yes | No | No | No | No |
| HO87 | Rechabite Hall<br>106 High Street, Berwick | Yes | No | No | Yes | No | No | No | No |
| HO88 | House and garden | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | 123 High Street, Berwick | | | | | | | | |
| HO89 | St Michaels Church and School<br>125 High Street, Berwick<br>The heritage place comprises:<br>The 1934 Church only. | No | No | No | Yes | No | No | No | No |
| HO90 | "Lumeah"<br>163 High Street, Berwick | No | No | Yes | Yes | No | No | No | No |
| HO91 | Berwick Cemetery<br>16 Inglis Road, Berwick | No | No | Yes | Yes | No | No | No | No |
| HO92 | "Quorn Cottage"<br>26-30 Inglis Road, Berwick | No | No | Yes | Yes | No | No | No | No |
| HO93 | "Grasmere"<br>27 Inglis Road, Berwick<br>The heritage place comprises:<br>*All land and buildings included in a rectangle extending from the south-western corner of the 1950s implement shed, along the western edge of that building for a distance of 65 metres, and along the southern edge of that building for a distance of 85 metres. The heritage place also includes the Golden Oak tree and land beneath and beyond the canopy edge for a distance of five metres from the canopy edge.* | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO94 | "Treverbyn"<br>38 King Road, Harkaway | No | No | Yes | Yes | No | No | No | No |
| HO95 | "Kalimna"<br>13-25 King Road, Harkaway | No | No | Yes | Yes | No | No | No | No |
| HO96 | "Harkaway Hall"<br>56-68 King Road, Harkaway | Yes | No | No | Yes | No | No | No | No |
| HO97 | "Nichol House"<br>63 King Road, Harkaway | No | No | No | Yes | No | No | No | No |
| HO98 | Harkaway Primary School<br>65 King Road, Harkaway<br>The heritage place comprises:<br>*A single room brick building built circa. 1876 and land within 10 metres of the perimeter of the building.* | Yes | Yes | Yes | Yes | No | No | No | No |
| HO99 | Post Office (former)<br>68-70 King Road, Harkaway | No | No | No | Yes | No | No | No | No |
| HO100 | "Pine Lodge"<br>146-168 King Road, Harkaway | No | No | Yes | Yes | No | No | No | No |
| HO101 | House and garden (former Doctor's Surgery and Residence)<br>26-30 Langmore Lane, Berwick | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO102 | “Yarrimbah”<br>1-11 (part) and 11-12 Tanika Lane, and 1 (part), 1-6 (part), 2 (part), 3 (part) and 4 (part) Boyd Way, Narre Warren (former 238-334 Narre Warren North Road, Narre Warren North) | No | No | Yes – Monterey Cypress and Deodar Cedar (at 11-12 Tanika Lane), 3 x Spotted Gums (at 1-11 Tanika Lane; 1,2 and 1-6 Tanika Lane; 3 and 4 Tanika Lane) | Yes | No | No | No | No |
| HO103 | "Myuna Farm"<br>182 Kidds Road, Doveton | Yes | No | Yes | Yes | No | No | No | No |
| HO104 | “Strathard”<br>6 Oldhome Court, Narre Warren South<br>The heritage place comprises:<br>Strathard 1930 homestead and land within 10 metres of the building to the north, east and west and land within five metres to the south. | No | No | Yes | Yes | No | No | No | No |
| HO105 | Christ Church (Anglican) (former)<br>Part 2-6 and 8 Palmerston Street and 9 Church Street, Berwick | Yes | No | No | Yes | No | No | No | No |
| HO106 | “Kinross”<br>41-43 Palmerston Street, Berwick | No | No | Yes | Yes | No | No | No | No |
| HO107 | Berwick Primary School (former) | Yes | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | 1-11 Peel Street, Berwick<br>The heritage place comprises:<br>*The brick building on the south-western corner of the site, which includes the 1869-70 brick classroom and circa 1920 additions. The heritage place also includes the English Oak tree (*Quercus robur*), two Italian Cypress trees (*Cupressus sempervirens*) and the Arizona Cypress tree (*Cupressus glabra*) at the corner of Lyall and Peel Street, and land beneath the canopy edge of these trees for a distance of five metres from the canopy edge.* | | | | | | | | |
| HO108 | House and garden (former "Sunbury")<br>61 Peel Street, Berwick | No | No | Yes | Yes | No | No | No | No |
| HO109 | Hallam's Road Hotel<br>241-245 Princes Highway, Hallam | Yes | No | No | Yes | No | No | No | No |
| HO110 | House and garden (former Treeby)<br>31-35 Robinson Road, Narre Warren North<br>**Incorporated plan:**<br>*Treeby Cottage Incorporated Plan, August 2019* | No | No | Yes | Yes | No | No | Yes | No |
| HO111 | "Harkaway Farm"<br>2-30 Rowallan Avenue, Harkaway | No | No | Yes | Yes | No | No | No | No |
| HO112 | "Rowallan Farm" | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | 21- 25 Rowallan Avenue, Harkaway (former 15-25 Rowallan Avenue, Harkaway) | | | | | | | | |
| HO113 | "Sweeney House"<br>8-10 Scanlan Street, Berwick | No | No | No | Yes | No | No | No | No |
| HO115 | House and garden (former 60-62 Shrives Road)<br>5 (part), 7 (part) and 9 Dargo Close and Shrives Road reserve (part), Narre Warren South | No | No | Yes – Bhutan Cypress, Wych Elm, Mediterranean Cypress, Deodar Cedar and Atlas Cedar (at 9 Dargo Close) and Monterey Cypress, Sugar Gums and Monterey Pine located (on Shrives Road Reserve) | Yes | No | No | No | No |
| HO116 | Mechanics Institute<br>59 Webb Street, Narre Warren | Yes | Yes | Yes | Yes | No | No | No | No |
| HO117 | House and garden (Chadwick Farm)<br>68-84 Chadwick Road, Harkaway | No | No | Yes | Yes | No | No | No | No |
| HO118 | New Ardblair<br>65 Beaumont Road, Berwick | No | No | No | Yes | No | No | No | No |
| HO119 | Robertson's property (former) | No | No | No | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | 456 Belgrave-Hallam Road, Narre Warren North | | | | | | | | |
| HO120 | Harkaway Cemetery and Bell Tower<br>Hessell Road, Harkaway | No | No | Yes | Yes | No | No | No | No |
| HO122 | Lysterfield Lake Weir and Reservoir<br>15 Reservoir Road, Narre Warren North<br>The heritage place comprises:<br>*The weir located within Lysterfield Lake Park.* | No | No | No | Yes | No | No | No | No |
| HO123 | "Wingilla"<br>1-5 Bluff Road, Cannons Creek | No | No | Yes | Yes | No | No | No | No |
| HO124 | House and garden<br>4 Central Road, Hampton Park | No | No | Yes | Yes | No | No | No | No |
| HO125 | Hill Farm<br>415 Clyde-Fiveways Road, Clyde | No | No | Yes | Yes | No | No | Yes | No |
| HO126 | Menenia Park<br>71 Craig Road, Cranbourne South | No | No | Yes | Yes | No | No | No | No |
| HO127 | Valentine Park Moreton Bay Fig tree<br>17I Waterbush Crescent, Lyndhurst<br>The heritage place comprises: | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | *The Moreton Bay Fig tree and land beneath and beyond the canopy edge for a distance of 10 metres from the canopy edge.* | | | | | | | | |
| HO128 | Eclipse Park Stud<br>21S Biscay Grove , Lyndhurst<br>The heritage place comprises:<br>Eclipse Park Stud farmhouse and land within 10 metres of its perimeter. | No | No | Yes | Yes | No | No | No | No |
| HO129 | “Eyrecourt”<br>221S Grices Road, Clyde North<br>**Statement of significance:**<br>*Statement of Significance: 'Eyrecourt', November 2020* | No | Yes | Yes | Yes | No | No | Yes | No |
| HO130 | Southside Lodge (former “Kurrajong”)<br>465 Pattersons Road, Clyde | No | No | Yes | Yes | No | No | Yes | No |
| HO131 | "Maratala" (former "Farnham")<br>130 Sladen Street, Cranbourne<br>**Statement of Significance:**<br>*Statement of Significance: Maratala, August 2020* | Yes | Yes - entrance hall, living room and dining room | Yes - Camphor Laurel on Sladen Street boundary | Yes | No | No | No | No |
| HO133 | “Willandra”<br>130 Tuckers Road, Clyde | No | No | Yes | Yes | No | No | Yes | No |
| HO134 | “Fernlea” | No | No | Yes | Yes | No | No | Yes | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | 75S Tuckers Road, Clyde<br>The heritage place comprises:<br>*The farmhouse, workshop, underground domed water tank, driveway, fruit trees to the north and mature trees to the east.* | | | | | | | | |
| HO135 | St Agatha's Catholic Church (former)<br>150-156 & 158 (part) South Gippsland Highway, Cranbourne<br>**Statement of Significance:**<br>*Statement of Significance: St Agatha's Catholic Church (former), August 2020* | Yes | No | Yes - row of eight Bhutan Cypress trees | Yes | No | No | No | No |
| HO137 | "Springmont"<br>1450 Thompsons Road, Cranbourne East<br>**Statement of significance:**<br>Springmont, 1450 Thompsons Road, Cranbourne East, (Victorian Planning Authority, October 2025) | No | No | Yes | Yes | No | No | Yes | No |
| HO138 | Royal Botanic Gardens Cranbourne<br>1000 Ballarto Road, Cranbourne | No | No | Yes | Yes | No | No | No | No |
| HO139 | McMorran's Oak Tree<br>125 (part) South Gippsland Highway, Cranbourne (opposite Brunt Street)<br>**Statement of Significance:**<br>*Statement of Significance: McMorran's Oak Tree, August 2020* | No | No | Yes - Oak tree | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO140 | Gum trees<br>Near 71 Pound Road, Hampton Park | No | No | Yes | Yes | No | No | No | No |
| HO141 | Cranbourne Cemetery and monuments<br>80 Sladen Street, Cranbourne | No | No | Yes | Yes | No | No | No | No |
| HO142 | Avenue of Honour<br>South Gippsland Highway, Cranbourne | - | - | - | - | - | Yes<br>Ref: H2345 | Yes | No |
| HO143 | Part of Avenue of Honour (Flowering Gum trees)<br>South Gippsland Highway, Tooradin | No | No | Yes | Yes | No | No | No | No |
| HO144 | "Warren Park"<br>319 Hallam North Road, Lysterfield South | No | No | Yes | Yes | No | No | No | No |
| HO145 | Churchill National Park (part of former Police Paddocks)<br>Churchill Park Drive, Lysterfield<br>The heritage place comprises:<br>*The northern boundary dam, aqueduct, siphon, the granite quarry located off Stonemasons Track, the Dandenong Shire Quarry located off Boundary Track and five metres of land surrounding these artifacts.* | No | No | Yes | Yes | No | No | No | No |
| HO147 | St John's Church of England Vicarage (former)<br>34 Bakewell Street, Cranbourne | No | No | Yes - Peppercorn tree | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | **Statement of Significance:**<br>*Statement of Significance: St John's Church of England Vicarage (former), August 2020* | | | | | | | | |
| HO148 | House<br>10 Ballarto Road, Clyde | No | No | No | Yes | No | No | No | No |
| HO149 | Perry (Male) Cottage<br>103 Baxter-Tooradin Road, Pearcedale | Yes | No | No | Yes | No | No | No | No |
| HO150 | St Peter's Church of England<br>46 Baxter-Tooradin Road, Pearcedale | No | Yes | No | Yes | Yes | No | No | No |
| HO151 | Farmhouse and trees<br>305 Berwick-Cranbourne Road, Cranbourne<br>The heritage place comprises:<br>*The farmhouse and Italian Cypress and all land*<br>*within the mapped overlay.* | No | No | Yes | Yes | No | No | Yes | No |
| HO152 | "Tulliallan"<br>1/805, Berwick-Cranbourne Road, Cranbourne North<br>The heritage place comprises:<br>*The circa 1860 cottage and associated gardens, together with the avenue of English Elm trees along the former driveway extending to Berwick-Cranbourne Road* | No | No | Yes | Yes | Yes | No | Yes | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | **Incorporated plan:** Tulliallan Incorporated Plan, June 2013 | | | | | | | | |
| HO153 | "Brechin Gardens"<br>Brechin Drive, Narre Warren<br>The heritage place comprises:<br>*All elements of particular significance, as identified in the Brechin Gardens Incorporated Plan.*<br>**Incorporated plan:** Brechin Gardens Incorporated Plan, April 2019 | No | No | Yes | Yes | No | No | No | No |
| HO154 | House<br>65-67 Brisbane Street, Berwick | No | No | No | Yes | No | No | No | No |
| HO155 | Avenue of Honour (Berwick Boys Grammar School)<br>Church Street, part common area 11 Church Street, part 1/11 Church Street, part 4/11 Church Street and part 72-74 Brisbane Street, Berwick<br>The heritage place comprises:<br>*The memorial plaque and memorial row planting of seven oak trees comprising the Avenue, together with the land covered by each tree's canopy and the land beyond the edge of each canopy for a distance of five metres.* | No | No | Yes | Yes | No | No | No | No |
| HO156 | "Anunaka Mansion" | No | No | No | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | 37 Churchill Park Drive, Endeavour Hills<br>The heritage place comprises:<br>*The circa 1945 house and land from a distance of metres behind the house to the street frontage and the property's eastern boundary.* | | | | | | | | |
| HO157 | Graham family home<br>119a Clarendon Street, Cranbourne<br>**Statement of Significance:**<br>*Statement of Significance: Graham family home, August 2020* | Yes | No | No | Yes | No | No | No | No |
| HO160 | House<br>71 East Road, Pearcedale<br>The heritage place comprises:<br>*The 1922 house and land extending to East Road and on other sides for a distance of five metres from the walls of the house.* | No | No | No | Yes | No | No | No | No |
| HO161 | Tooradin Foreshore Reserve Precinct<br>Foreshore Reserve, Tooradin | No | No | Yes | Yes | No | No | No | No |
| HO162 | Fountain Gate Estate Precinct<br>The heritage place comprises:<br>*The entry feature to the estate, the estate layout and the houses at 5 Fountain Drive, 7 Fountain Drive, 11 Fountain Drive, 15 Fountain Drive, 7 Green Ridge Avenue, 7* | No | No | No | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | *Hollydene Court, 2 Oakwood Court, 7 Oakwood Court, 2 Pinelands Court, 3 Pinelands Court, 9 Pinelands Court, and 6 and 6A Prospect Hill Road.* | | | | | | | | |
| HO163 | Ercildoune<br>15i Ercildoune Court, Cranbourne West (Former Hayton Park, 2/660 Hall Road, Cranbourne) | No | No | No | Yes | Yes | No | Yes | No |
| HO164 | Farmhouse<br>280S Hardys Road, Clyde North (former 272 Hardys Road, Clyde North)<br>**Statement of Significance:**<br>Statement of Significance: Farmhouse, 280S Hardys Road, Clyde North, August 2023 | No | No | Yes – Tortured Willow, Lilly Pilly and 2 x Oriental Planes | Yes | No | No | Yes | No |
| HO165 | Avenue of Honour<br>Harkaway Road, Harkaway | No | No | Yes | Yes | No | No | No | No |
| HO166 | “Tandderwen”<br>369 Heatherton Road, Narre Warren North | No | No | Yes | Yes | No | No | No | No |
| HO167 | House<br>191 High Street, Berwick | No | No | Yes | Yes | No | No | No | No |
| HO168 | Cranbourne War Memorial<br>Greg Clydesdale Square, 125 (part) South Gippsland Highway, Cranbourne | No | No | No | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | **Statement of Significance:**<br>*Statement of Significance: Cranbourne War Memorial, August 2020* | | | | | | | | |
| HO169 | Motor Club Hotel<br>38-56 South Gippsland Highway, Cranbourne<br>**Statement of Significance:**<br>*Statement of Significance: Motor Club Hotel, August 2020* | No | No | No | Yes | No | No | No | No |
| HO170 | "Wilga"<br>40 King Road, Harkaway | No | No | Yes | Yes | Yes | No | No | No |
| HO172 | Tooradin Railway Station Precinct (former)<br>Off Langtree Road, Tooradin | No | No | Yes | Yes | No | No | No | No |
| HO174 | Kernot's house<br>23 Mickle Street, Tooradin | No | No | No | Yes | No | No | No | No |
| HO176 | House<br>3 Mundaring Drive, Cranbourne | No | No | Yes | Yes | No | No | No | No |
| HO177 | Pearcedale Public Hall<br>45 Pearcedale Road, Pearcedale | No | Yes | Yes | Yes | No | No | No | No |
| HO178 | Henry Joseph Moran Reserve<br>Pound Road, Hampton Park | No | No | Yes | Yes | No | No | No | No |
| HO179 | House | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | 3-5 Princes Domain Drive, Hallam | | | | | | | | |
| HO180 | Pearcedale Methodist Church (former)<br>12 Queens Road, Pearcedale | No | No | No | Yes | No | No | No | No |
| HO181 | Clyde Methodist Church (former)<br>26 Railway Road, Clyde | No | No | No | Yes | No | No | No | No |
| HO182 | Clyde General Store and Post Office<br>18 Railway Road, Clyde | No | No | No | Yes | No | No | No | No |
| HO185 | Foreshore Pavilions<br>Rutherford Parade, Warneet<br>The heritage place comprises:<br>*The two foreshore pavilions, including the buildings and surrounding land to a minimum extent of five metres, together with the land between the pavilions and Rutherford Parade.* | Yes | Yes | No | Yes | No | No | No | No |
| HO186 | House<br>15 Rutland Road, Berwick | No | No | No | Yes | No | No | No | No |
| HO188 | Hampton Park Primary School<br>32 Somerville Road, Hampton Park<br>The heritage place comprises:<br>*The 1922 school building and surrounding land to a minimum extent of five metres, extending to the frontage of the property.* | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO189 | Christ Church of England<br>61 South Gippsland Highway, Tooradin | No | Yes | Yes | Yes | No | No | No | No |
| HO190 | "Stella Maris" (former) Canary Island Palm trees<br>127-135 South Gippsland Highway, Tooradin<br>The heritage place comprises:<br>*The three Canary Island Palm trees and associated land extending to the edge of each tree's canopy and beyond for a distance of five metres.* | No | No | Yes | Yes | No | No | No | No |
| HO191 | Farm complex<br>2645 South Gippsland Highway, Tooradin<br>The heritage place comprises:<br>*To the extent of the house and interwar outbuildings and sheds and associated land upto the property boundary along the South Gippsland Highway and to a distance of 20 meters from the outer wall of the house on all other sides.* | No | No | Yes | Yes | Yes | No | No | No |
| HO194 | Tooradin Public Hall<br>11 Tooradin Station Road, Tooradin | No | No | Yes | Yes | No | No | No | No |
| HO195 | Former Tooradin State School site and trees<br>50 Tooradin Station Road, Tooradin | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO196 | Former Narre Warren Primary School<br>53-55 Webb Street, Narre Warren<br>The heritage place comprises:<br>*The 1920s former school, the mature English Oak at 53 Webb Street and the two mature Elm Trees at 55 Webb Street.* | No | No | Yes | Yes | No | No | No | No |
| HO197 | "Arborea"<br>1 Williamson Street, Berwick<br>The heritage place comprises:<br>*The house and all the land as defined by the title boundaries excluding the rear shed, the spa enclosure and the cat enclosure.* | No | No | No | Yes | No | No | No | No |
| HO198 | High Street Avenue of Honour<br>High Street (Old Princes Highway), Berwick<br>The heritage place comprises:<br>*All trees comprising the row, together with the land covered by each tree's canopy and the land beyond the edge of each tree for a distance of five metres insofar as the land is wholly contained within the High Street (Old Princes Highway) road reserve.* | No | No | Yes | Yes | No | No | No | No |
| HO199 | Avenue of Honour<br>Wilson and Scanlon Streets, Berwick<br>The heritage place comprises: | No | No | Yes | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| | *All trees comprising the row, together with the land covered by each tree's canopy and the land beyond the edge of each tree for a distance of five metres, insofar as this area is wholly contained within the Wilson and Scanlon Streets road reserve.* | | | | | | | | |
| HO200 | Fallen tree<br>Road reserve, May Gibbs Crescent, Lynbrook | No | No | Yes | Yes | No | No | No | Yes |
| HO201 | Tree stump<br>Council reserve, Durack Avenue, Lynbrook | No | No | Yes | Yes | No | No | No | Yes |
| HO202 | Clyde Primary School<br>13 Oroya Grove, Clyde | No | No | No | Yes | No | No | No | No |
| HO203 | 32 Railway Road, Clyde | No | No | No | Yes | No | No | No | No |
| HO204 | Glenara<br>10 Viridian Boulevard, Clyde (former 30 Tuckers Road, Clyde)<br>**Statement of Significance:**<br>Statement of Significance: Glenara, 10 Viridian Boulevard, Clyde, April 2024 | No | No | Yes – Spotted Gum southeast of the farmhouse | Yes | No | No | Yes | No |
| HO205 | House<br>20 Railway Road, Clyde | No | No | No | Yes | No | No | No | No |
| HO206 | House<br>14 Railway Road, Clyde | No | No | No | Yes | No | No | No | No |

| PS map ref | Heritage place | External paint controls apply? | Internal alteration controls apply? | Tree controls apply? | Solar energy system controls apply? | Outbuildings or fences not exempt under Clause 43.01-4 | Included on the Victorian Heritage Register under the Heritage Act 2017? | Prohibited uses permitted? | Aboriginal heritage place? |
|---|---|---|---|---|---|---|---|---|---|
| HO207 | House<br>2 Railway Road, Clyde | No | No | No | Yes | No | No | No | No |
| HO208 | Avenue of Honour (local significance)<br>Road reserve (west side) South Gippsland Highway, Cranbourne<br>**Statement of Significance:**<br>*Statement of Significance: World War Two Memorial Planting and Plaque Cranbourne, August 2020* | No | No | Yes - Turkey Oaks and English Oaks in road reserve only | Yes | No | No | No | No |
| HO209 | “The Meadows”<br>10 Smiths Lane, Clyde North | Yes | No | No | Yes | No | No | Yes | No |
| HO210 | "Myer House"<br>2-106 Soldiers Road, Berwick | No | No | No | Yes | No | No | Yes | No |

# 43.02 DESIGN AND DEVELOPMENT OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **DDO** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify areas which are affected by specific requirements relating to the design and built form of new development.

## 43.02-1 Design objectives

19/01/2006
VC37

A schedule to this overlay must contain a statement of the design objectives to be achieved for the area affected by the schedule.

## 43.02-2 Buildings and works

20/04/2026
VC307

### Permit requirement

A permit is required to:

- Construct a building or construct or carry out works. This does not apply:
  - If a schedule to this overlay specifically states that a permit is not required.
  - To the construction of an outdoor swimming pool associated with a dwelling unless a specific requirement for this matter is specified in a schedule to this overlay.
  - To the construction of a building or construction or carrying out of works for a small second dwelling if all the following requirements are met:
    - The building height must not exceed 5 metres.
    - The building must be finished using muted tones and colours.
- Construct a fence if specified in a schedule to this overlay.

Buildings and works must be constructed in accordance with any requirements in a schedule to this overlay. A schedule may include requirements relating to:

- Building setbacks.
- Building height.
- Plot ratio.
- Landscaping.
- Any other requirements relating to the design or built form of new development.

A permit may be granted to construct a building or construct or carry out works which are not in accordance with any requirement in a schedule to this overlay, unless the schedule specifies otherwise.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct a fence. | Clause 59.05 |
| Construct a building or construct or carry out works for: | Clause 59.05 |

| Class of application | Provision |
|---|---|
| ▪ A carport, garage, pergola, verandah, deck, shed or similar structure.<br>▪ An outdoor swimming pool.<br>The buildings and works must be associated with a dwelling. | |
| Construct a building or construct or carry out works with an estimated cost of up to $1,400,000 where the land is in an industrial zone. | Clause 59.05 |
| Construct a building or construct or carry out works with an estimated cost of up to $700,000 where the land is in a commercial zone or a Special Use Zone, Comprehensive Development Zone, Capital City Zone, Docklands Zone, Priority Development Zone, Activity Centre Zone or Precinct Zone. | Clause 59.05 |

### Exemption from notice and review

A schedule to this overlay may specify that an application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 43.02-3 Subdivision

16/10/2025
VC288

### Permit requirement

A permit is required to subdivide land.

This does not apply if a schedule to this overlay specifically states that a permit is not required.

Subdivision must occur in accordance with any lot size or other requirement specified in a schedule to this overlay.

A permit may be granted to subdivide land which is not in accordance with any lot size or other requirement in a schedule to this overlay, unless the schedule specifies otherwise.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Subdivide land to realign the common boundary between two lots where:<br>▪ The area of either lot is reduced by less than 15 percent.<br>▪ The general direction of the common boundary does not change. | Clause 59.01 |
| Subdivide land into lots each containing an existing building or car parking space where:<br>▪ The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>▪ An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within five years prior to the application for a permit for subdivision. | Clause 59.02 |
| Subdivide land into two lots if:<br>▪ The construction of a building or the construction or carrying out of works on the land: | Clause 59.02 |

| Class of application | Provision |
|---|---|
| – Has been approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– Has started lawfully.<br>▪ The subdivision does not create a vacant lot. | |
| Subdivide land into two lots if:<br>▪ A permit has been issued under a provision of a residential zone to construct up to two dwellings on the land and the permit has not expired.<br>▪ Each lot will contain either:<br>– one existing dwelling; or<br>– one dwelling permitted to be constructed in accordance with the permit. | Clause 59.02 |

**Exemption from notice and review**

A schedule to this overlay may specify that an application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 43.02-4 Signs

31/07/2018
VC148

Sign requirements are at Clause 52.05 unless otherwise specified in a schedule to this overlay.

## 43.02-5 Application requirements

31/07/2018
VC148

An application must be accompanied by any information specified in a schedule to this overlay.

## 43.02-6 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The design objectives of the relevant schedule to this overlay.
- The provisions of any relevant policies and urban design guidelines.
- Whether the bulk, location and appearance of any proposed buildings and works will be in keeping with the character and appearance of adjacent buildings, the streetscape or the area.
- Whether the design, form, layout, proportion and scale of any proposed buildings and works is compatible with the period, style, form, proportion, and scale of any identified heritage places surrounding the site.
- Whether any proposed landscaping or removal of vegetation will be in keeping with the character and appearance of adjacent buildings, the streetscape or the area.
- The layout and appearance of areas set aside for car parking, access and egress, loading and unloading and the location of any proposed off street car parking
- Whether subdivision will result in development which is not in keeping with the character and appearance of adjacent buildings, the streetscape or the area.
- Any other matters specified in a schedule to this overlay.

02/12/2022
C259case

# SCHEDULE 1 TO CLAUSE 43.02 DESIGN AND DEVELOPMENT OVERLAY

Shown on the planning scheme map as **DDO1**.

**7-9 & 11 FULLARD ROAD, NARRE WARREN**

## 1.0 Design objectives

02/12/2022
C259case

To ensure that development integrates with the surrounding area and does not negatively impact on the aesthetic amenity of the Hallam Valley Floodplain, which currently provides for significant landscape values.

To provide for safe and efficient vehicular access/egress to/from the site off Fullard Road.

## 2.0 Buildings and works

02/12/2022
C259case

### Building Design and Site Layout

- Buildings must be setback from Fullard Road and Centre Road to provide for appropriate landscaping.
- Buildings must be setback from the Hallam Valley Floodplain to allow for the development of an appropriate landscape buffer.
- Buildings that front the Hallam Valley Floodplain should be designed with high quality building facades that complement the open landscape of the area.
- Building facades must be broken into smaller vertical sections using variations in wall articulation, window sizes, blank wall areas, materials, colours and textures.
- Building services and loading areas are to be visually screened from the public realm, including the Hallam Valley Floodplain.
- Front fencing must be integrated with the design of the building and/or screened with landscaping.
- Any fencing or walls erected for security purposes that front the Hallam Valley Floodplain must not have a negative visual impact on the landscape values of the area.

### 3.0 Carparking and Access

- A maximum of one vehicle crossover will be allowed onto the site from Fullard Road.

## 4.0 Subdivision

02/12/2022
C259case

None specified.

## 5.0 Signs

02/12/2022
C259case

None specified.

## 6.0 Application requirements

02/12/2022
C259case

None specified.

## 7.0 Decision guidelines

02/12/2022
C259case

None specified.

02/12/2022
C259case

# SCHEDULE 2 TO CLAUSE 43.02 DESIGN AND DEVELOPMENT OVERLAY

Shown on the planning scheme map as **DDO2**.

**POUND - SHRIVES ROADS, HAMPTON PARK RESIDENTIAL AREA**

## 1.0 Design objectives

02/12/2022
C259case

To ensure buildings are designed to respond to and integrate with the local character and built form in terms of building height, scale, built form and siting.

To ensure that the traffic generated by medium density residential development does not detrimentally affect the safety, efficiency or amenity of the local road network.

To provide for safe and efficient vehicular access/egress to/from properties adjoining Pound Road and Shrives Road.

To protect the amenity of residents by providing substantive landscape buffers to adjoining arterial roads.

## 2.0 Buildings and works

02/12/2022
C259case

### No permit required

A permit is not required to construct a building or construct or carry out works for any of the following uses provided that it is set back at least 10 metres from the road frontage, which includes provision for a 6-metre-wide tree reserve across the property frontage:

- A single dwelling.
- Alterations or additions to an existing dwelling.
- A dependent person's unit.

A permit is not required to construct a fence.

### Permit required

An application to construct a building or construct or carry out works should meet the following requirements:

- Buildings that front Pound Road or Shrives Road should be set back at least 10 metres, which includes provision for a 6-metre-wide tree reserve across the property frontage.
- Any multi-dwelling development on lots with dual frontage to Pound and Shrives Roads, must restrict vehicular access to Shrives Road only.

## 3.0 Subdivision

02/12/2022
C259case

A permit is required to subdivide land.

The subdivision of land that fronts Pound Road or Shrives Road must provide for a 6-metre-wide tree reserve.

## 4.0 Signs

02/12/2022
C259case

None specified.

## 5.0 Application requirements

02/12/2022
C259case

None specified.

## 6.0 Decision guidelines

02/12/2022
C259case

None specified.

## 43.03 INCORPORATED PLAN OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **IPO** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify areas which require:

- The form and conditions of future use and development to be shown on an incorporated plan before a permit can be granted to use or develop the land.
- A planning scheme amendment before the incorporated plan can be changed.

To exempt an application from notice and review if it is generally in accordance with an incorporated plan.

## 43.03-1 Requirement before a permit is granted

19/01/2006
VC37

A permit must not be granted to use or subdivide land, construct a building or construct or carry out works until an incorporated plan has been incorporated into this scheme.

This does not apply if a schedule to this overlay specifically states that a permit may be granted before an incorporated plan has been incorporated into this scheme.

A permit granted must:

- Be generally in accordance with the incorporated plan, unless a schedule to this overlay specifies otherwise.
- Include any conditions or requirements specified in a schedule to this overlay.

## 43.03-2 Exemption from notice and review

31/07/2018
VC148

An application under any provision of this planning scheme which is generally in accordance with the incorporated plan is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 43.03-3 Decision guidelines

31/07/2018
VC148

Before deciding on an application under any provision of this scheme which is not generally in accordance with the incorporated plan, in addition to the decision guidelines in Clause 65, the responsible authority must consider:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The incorporated plan.
- Any other matters specified in a schedule to this overlay.

## 43.03-4 Preparation of the incorporated plan

25/02/2025
VC257

The incorporated plan may consist of plans or other documents and may, with the agreement of the planning authority, be prepared and implemented in stages.

An incorporated plan that provides for residential subdivision in the Neighbourhood Residential Zone, General Residential Zone, Housing Choice and Transport Zone, Residential Growth Zone, Mixed Use Zone, Township Zone, Comprehensive Development Zone and Priority Development Zone must meet the requirements of Clause 56 as specified in the zone.

The incorporated plan must describe:

- The land to which the plan applies.

- The proposed use and development of each part of the land.
- Any other requirements specified for the plan in a schedule to this overlay.

17/01/2019
C221Pt1

# SCHEDULE 2 TO CLAUSE 43.03 INCORPORATED PLAN OVERLAY

Shown on the planning scheme map as **IPO2**.

**CARDINIA CREEK SOUTH PRECINCT STRUCTURE PLAN**

## 1.0 Requirement before a permit is granted

17/01/2019
C221Pt1

None specified.

## 2.0 Permits not generally in accordance with incorporated plan

17/01/2019
C221Pt1

A permit may be granted which is not generally in accordance with the *Cardinia Creek South Precinct Structure Plan* if the responsible authority and the Secretary to the Department of Environment, Land, Water and Planning are satisfied that the permit will not prejudice the orderly planning of the area having regard to the objectives of the *Cardinia Creek South Precinct Structure Plan*.

## 3.0 Conditions and requirements for permits

14/07/2022
VC213

The requirements of the *Cardinia Creek South Precinct Structure Plan* must be included in a permit.

Any permit to subdivide land, construct a building or construct or carry out works must contain the following conditions and requirements:

### Condition - Construction environmental management plans

A planning permit to subdivide land, construct a building, or construct or carry out works on or within 50 metres of land shown as a conservation area in the incorporated *Cardinia Creek South Precinct Structure Plan* must include the following condition:

Before works start, a Construction Environmental Management Plan consistent with *DELWP requirements for Construction Environmental Management Plans under the Melbourne Strategic Assessment* (Department of Environment, Land, Water and Planning, November 2020) must be submitted to and approved by the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the Conservation, Forests and Lands Act 1987) and the responsible authority, demonstrating how the conservation area will be protected during works.

Once approved the plan will form part of the permit and must be implemented to the satisfaction of the Secretary and the responsible authority.

### Condition - Fencing of conservation areas

A permit granted to subdivide land where works are required to carry out the subdivision, or a permit granted to construct a building or carry out works, on land including or abutting a conservation area as shown in the *Cardinia Creek South Precinct Structure Plan*, must include the following condition:

Prior to the commencement of development, a conservation area fencing plan must be submitted to and approved by the Secretary to the Department of Environment, Land, Water, and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) (Secretary) to ensure the conservation area is adequately protected. The fencing plan must contain the following:

- The boundaries of any conservation area, and the location of any scattered tree and the boundaries of any patch of native vegetation within the conservation area.
- The location and alignment of temporary protection fencing showing the following minimum distance from the element to be protected:

| Element | Distance |
|---|---|
| Conservation area | 0.5 metres |
| Scattered tree | 12 x diameter at a height of 1.3 metres |
| Patch of native vegetation | 2 metres |

- The timing of installation and removal of temporary protection fencing.
- The timing of installation of permanent fencing.
- Location and details of ongoing maintenance vehicle access points.
- The type of temporary and permanent fencing including materials, heights and spacing of uprights.
- Frequency of inspections and rectification works for temporary protection fencing.

Once approved the plan will form part of the permit and must be implemented to the satisfaction of the Secretary to the Department of Environment, Land, Water and Planning and the responsible authority.

Stockpiles, fill, machinery, vehicle parking, excavation and construction activity of any kind must not be bought into, or be undertaken within, the area to be fenced, except with the prior written consent from the Secretary.

**Condition - Correct alignment of protective fencing**

Buildings and works must not commence until written evidence that protection fencing has been erected in accordance with the approved Conservation Area Fencing Plan is provided by a suitably qualified land surveyor to the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) (Secretary), and the Secretary confirms it is satisfied by the evidence.

**Condition - Land management plan for conservation areas**

A permit to subdivide land containing a conservation area as shown in the *Cardinia Creek South Precinct Structure Plan* must include the following condition:

Prior to the commencement of development, a land management plan for the conservation area land must be prepared by a suitably qualified consultant, submitted to, and approved by the Secretary to the Department of Environment, Land, Water, and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) (Secretary). The land management plan must outline how the biodiversity values for the land identified in the *Biodiversity Conservation Strategy for Melbourne's Growth Corridors* (Department of Environment and Primary Industries, 2013) will be maintained, managed, and improved, including:

- How environmental weeds will be managed up until the securing of the conservation area.
- How any revegetation will be undertaken in coordination with weed management activities to prevent re-colonisation of weed species.
- How rubbish and hazards will be removed, and any contaminated material managed up until the securing of the conservation area.

Once approved the plan will form part of the permit and must be implemented to the satisfaction of the Secretary and the responsible authority.

**Condition - Security of conservation land**

A permit to subdivide land containing a 'conservation area' as shown in the *Cardinia Creek South Precinct Structure Plan* must include the following condition:

The owner of the land must, as part of the plan of subdivision (or the first plan of subdivision submitted for registration, in the case of any staged subdivision), create the 'conservation area' as a separate lot or reserve. The boundaries of the lot or reserve on the plan of subdivision are subject to the prior satisfaction of the Secretary to the Department of Environment, Land, Water and Planning as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987* (Secretary). The owner must further secure the conservation area, by causing that lot or reserve to be vested, transferred, or protected in perpetuity in one of the following ways:

- Prior to a statement of compliance being issued for the plan of subdivision (or, in the case of a staged subdivision, the plan of subdivision or masterplan which implements the first stage of the subdivision), enter into an agreement under section 173 of the *Planning and Environment Act 1987* by which the owner agrees to transfer ownership of the conservation area to, or to vest the conservation area in, the Minister responsible for section 5 of the *Crown Land (Reserves) Act 1978*, the Council or Melbourne Water. The transfer or vesting must either be for no or nominal consideration. The Secretary and the person or body to whom the land is to be transferred or vested must also be a party to the agreement. The terms of the agreement must include that the owner pays the reasonable costs of the other parties to the agreement that were incurred for the preparation, execution, and registration of the agreement. The owner must cause the agreement to be registered prior to lodgement of the plan of subdivision for registration; or
- Prior to a statement of compliance being issued for the plan of subdivision (or, in the case of a staged subdivision, the plan of subdivision or masterplan which implements the first stage of the subdivision), enter into an agreement with the Secretary under section 69 of the *Conservation, Forests and Lands Act 1987*, which provides for the conservation and management of the conservation area by or on behalf of the owner in perpetuity. The terms of the agreement must include that the owner pays the reasonable costs of the Secretary incurred for the preparation, execution, and registration of the agreement. The owner must cause the agreement to be registered prior to lodgement of the plan of subdivision for registration.

The requirement to include the above condition does not apply if the permit applicant provides the responsible authority with a statement in writing from the Secretary, as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*, that the condition is not required because the Secretary is satisfied that either:

- the land containing the conservation area is expected to be further subdivided and a further planning permit will be required for that subdivision (to which the above condition requirement will apply); or
- the conservation area has been or will be otherwise secured in perpetuity.

## 4.0 Decision guidelines

14/07/2022
VC213

Before deciding on an application the responsible authority must consider as appropriate:

- The consistency of the use or development with:
  - The *Biodiversity Conservation Strategy for Melbourne's Growth Corridors* (Department of Environment and Primary Industries, 2013).
  - The incorporated *Cardinia Creek South Precinct Structure Plan*, March 2018.
  - Any relevant approval under Part 10 of the *Environment Protection and Biodiversity Conservation Act 1999* (Cth).
  - Any management plan applying to the land under an agreement under section 69 of the *Conservation Forest and Lands Act 1987*.
- *Delivering Melbourne's Newest Sustainable Communities: Program Report* (Victorian Government, 2009).

- Whether use or development protects and enhances the biodiversity and other environmental values of the site and its surrounds.
- Any impacts from the construction or operation of the use or development on biodiversity and other environmental values and the ability for the land to be revegetated or rehabilitated.

## 5.0 Preparation of the incorporated plan

17/01/2019
C221Pt1

None specified.

17/01/2019
C228

# SCHEDULE 3 TO CLAUSE 43.03 INCORPORATED PLAN OVERLAY

Shown on the planning scheme map as **IPO3**.

**MINTA FARM PRECINCT STRUCTURE PLAN**

## 1.0 Requirement before a permit is granted

17/01/2019
C228

None specified.

## 2.0 Permits not generally in accordance with incorporated plan

02/12/2022
C259case

A permit granted must be generally in accordance with the incorporated plan as they apply to the land unless otherwise agreed in writing by the Secretary to the Department of Environment, Land Water and Planning and the responsible authority is satisfied that the development will not prejudice the orderly planning of the area having regard to the objectives of the *Minta Farm Precinct Structure Plan.*

## 3.0 Conditions and requirements for permits

14/07/2022
VC213

The following conditions and/or requirements apply to permits:

### Condition – Construction environmental management plan

A planning permit to subdivide land, construct a building, or construct or carry out works on or within 50 metres of land shown as a conservation area in the incorporated *Minta Farm Precinct Structure Plan* must include the following condition:

Before works start, a Construction Environmental Management Plan consistent with *DELWP requirements for Construction Environmental Management Plans under the Melbourne Strategic Assessment* (Department of Environment, Land, Water and Planning, November 2020) must be submitted to and approved by the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the Conservation, Forests and Lands Act 1987) and the responsible authority, demonstrating how the conservation area will be protected during works.

Once approved the plan will form part of the permit and must be implemented to the satisfaction of the Secretary and the responsible authority.

### Condition – Fencing of conservation areas

A permit granted to subdivide land where works are required to carry out the subdivision, or a permit granted to construct a building or carry out works, on land including or abutting a conservation area as shown in the *Minta Farm Precinct Structure Plan*, must include the following condition:

Prior to the commencement of development, a conservation area fencing plan must be submitted to and approved by the Secretary to the Department of Environment, Land, Water, and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) (Secretary) to ensure the conservation area is adequately protected. The fencing plan must contain the following:

- The boundaries of any conservation area, and the location of any scattered tree and the boundaries of any patch of native vegetation within the conservation area.
- The location and alignment of temporary protection fencing showing the following minimum distance from the element to be protected:

| Element | Distance |
|---|---|
| Conservation area | 0.5 metres |
| Scattered tree | 12 x diameter at a height of 1.3 metres |
| Patch of native vegetation | 2 metres |

- The timing of installation and removal of temporary protection fencing.
- The timing of installation of permanent fencing.
- Location and details of ongoing maintenance vehicle access points.
- The type of temporary and permanent fencing including materials, heights and spacing of uprights.
- Frequency of inspections and rectification works for temporary protection fencing.

Once approved the plan will form part of the permit and must be implemented to the satisfaction of the Secretary to the Department of Environment, Land, Water and Planning and the responsible authority.

Stockpiles, fill, machinery, vehicle parking, excavation and construction activity of any kind must not be bought into, or be undertaken within, the area to be fenced, except with the prior written consent from the Secretary.

**Condition – Correct alignment of protective fencing**

Buildings and works must not commence until written evidence that protection fencing has been erected in accordance with the approved Conservation Area Fencing Plan is provided by a suitably qualified land surveyor to the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) (Secretary), and the Secretary confirms it is satisfied by the evidence.

**Condition – Land management plan for conservation area**

A permit to subdivide land containing a conservation area as shown in the *Minta Farm Precinct Structure Plan* must include the following condition:

Prior to the commencement of development, a land management plan for the conservation area land must be prepared by a suitably qualified consultant, submitted to, and approved by the Secretary to the Department of Environment, Land, Water, and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) (Secretary). The land management plan must outline how the biodiversity values for the land identified in the *Biodiversity Conservation Strategy for Melbourne's Growth Corridors* (Department of Environment and Primary Industries, 2013) will be maintained, managed, and improved, including:

- How environmental weeds will be managed up until the securing of the conservation area.
- How any revegetation will be undertaken in coordination with weed management activities to prevent re-colonisation of weed species.
- How rubbish and hazards will be removed, and any contaminated material managed up until the securing of the conservation area.

Once approved the plan will form part of the permit and must be implemented to the satisfaction of the Secretary and the responsible authority.

**Condition – Security of conservation land**

A permit to subdivide land containing a 'conservation area' as shown in the *Minta Farm Precinct Structure Plan* must include the following condition:

The owner of the land must, as part of the plan of subdivision (or the first plan of subdivision submitted for registration, in the case of any staged subdivision), create the 'conservation area' as a separate lot or reserve. The boundaries of the lot or reserve on the plan of subdivision are subject to the prior satisfaction of the Secretary to the Department of Environment, Land, Water and Planning as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987* (Secretary). The owner must further secure the conservation area, by causing that lot or reserve to be vested, transferred, or protected in perpetuity in one of the following ways:

- Prior to a statement of compliance being issued for the plan of subdivision (or, in the case of a staged subdivision, the plan of subdivision or masterplan which implements the first stage of the subdivision), enter into an agreement under section 173 of the *Planning and Environment Act 1987* by which the owner agrees to transfer ownership of the conservation area to, or to vest the conservation area in, the Minister responsible for section 5 of the *Crown Land (Reserves) Act 1978*, the Council or Melbourne Water. The transfer or vesting must either be for no or nominal consideration. The Secretary and the person or body to whom the land is to be transferred or vested must also be a party to the agreement. The terms of the agreement must include that the owner pays the reasonable costs of the other parties to the agreement that were incurred for the preparation, execution, and registration of the agreement. The owner must cause the agreement to be registered prior to lodgement of the plan of subdivision for registration; or
- Prior to a statement of compliance being issued for the plan of subdivision (or, in the case of a staged subdivision, the plan of subdivision or masterplan which implements the first stage of the subdivision), enter into an agreement with the Secretary under section 69 of the *Conservation, Forests and Lands Act 1987*, which provides for the conservation and management of the conservation area by or on behalf of the owner in perpetuity. The terms of the agreement must include that the owner pays the reasonable costs of the Secretary incurred for the preparation, execution, and registration of the agreement. The owner must cause the agreement to be registered prior to lodgement of the plan of subdivision for registration.

The requirement to include the above condition does not apply if the permit applicant provides the responsible authority with a statement in writing from the Secretary, as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*, that the condition is not required because the Secretary is satisfied that either:

- the land containing the conservation area is expected to be further subdivided and a further planning permit will be required for that subdivision (to which the above condition requirement will apply); or
- the conservation area has been or will be otherwise secured in perpetuity.

## 4.0 Decision guidelines

02/12/2022
C259case

Before deciding on an application the responsible authority must consider as appropriate:

- The consistency of the use or development with:
  - The *Biodiversity Conservation Strategy for Melbourne's Growth Corridors* (Department of Environment and Primary Industries, 2013).
  - The incorporated *Minta Farm Precinct Structure Plan*, October 218 (Amended April 2021).
  - Any relevant approval under Part 10 of the *Environment Protection and Biodiversity Conservation Act 1999* (Cth).
  - Any management plan applying to the land under an agreement under section 69 of the *Conservation Forest and Lands Act 1987*.
- *Delivering Melbourne's Newest Sustainable Communities: Program Report* (Victorian Government, 2009).
- Whether use or development protects and enhances the biodiversity and other environmental values of the site and its surrounds.
- Any impacts from the construction or operation of the use or development on biodiversity and other environmental values and the ability for the land to be revegetated or rehabilitated.

## 5.0 Preparation of the incorporated plan

17/01/2019
C228

None specified.

## 43.04 DEVELOPMENT PLAN OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **DPO** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify areas which require the form and conditions of future use and development to be shown on a development plan before a permit can be granted to use or develop the land.

To exempt an application from notice and review if a development plan has been prepared to the satisfaction of the responsible authority.

## 43.04-1 Objectives

31/07/2018
VC148

A schedule to this overlay may specify objectives to be achieved for the area affected by the overlay.

## 43.04-2 Requirement before a permit is granted

31/07/2018
VC148

A permit must not be granted to use or subdivide land, construct a building or construct or carry out works until a development plan has been prepared to the satisfaction of the responsible authority.

This does not apply if a schedule to this overlay specifically states that a permit may be granted before a development plan has been prepared to the satisfaction of the responsible authority.

A permit granted must:

- Be generally in accordance with the development plan.
- Include any conditions or requirements specified in a schedule to this overlay.

## 43.04-3 Exemption from notice and review

31/07/2018
VC148

If a development plan has been prepared to the satisfaction of the responsible authority, an application under any provision of this planning scheme is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 43.04-4 Preparation of the development plan

25/02/2025
VC257

The development plan may consist of plans or other documents and may, with the agreement of the responsible authority, be prepared and implemented in stages.

A development plan that provides for residential subdivision in the Neighbourhood Residential Zone, General Residential Zone, Housing Choice and Transport Zone, Residential Growth Zone, Mixed Use Zone, Township Zone, Comprehensive Development Zone and Priority Development Zone must meet the requirements of Clause 56 as specified in the zone.

The development plan must describe:

- The land to which the plan applies.
- The proposed use and development of each part of the land.
- Any other requirements specified for the plan in a schedule to this overlay.

The development plan may be amended to the satisfaction of the responsible authority.

02/12/2022
C259case

# SCHEDULE 1 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO1**.

**RESIDENTIAL AREAS**

## 1.0 Objectives

02/12/2022
C259case

None specified.

## 2.0 Requirement before a permit is granted

02/12/2022
C259case

A permit may be granted before a development plan has been prepared to the satisfaction of the responsible authority to subdivide land to create a lot for an existing building.

## 3.0 Conditions and requirements for permits

02/12/2022
C259case

None specified.

## 4.0 Requirements for development plan

02/12/2022
C259case

The development plan should show:

- The existing and proposed road network;
- The location of existing and proposed open space including open space linkages; and
- The location of any existing or proposed community facilities including school sites.

02/12/2022
C259case

# SCHEDULE 2 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO2**.

**INTERMEDIATE DENSITY RESIDENTIAL AREAS**

## 1.0 Objectives

02/12/2022
C259case

None specified.

## 2.0 Requirement before a permit is granted

02/12/2022
C259case

A permit may be granted before a development plan has been prepared to the satisfaction of the responsible authority to subdivide land to create a lot for an existing building.

## 3.0 Conditions and requirements for permits

02/12/2022
C259case

The following requirements should be met before a permit may be granted:

- A lot size for the subdivision that appropriately reflects the low density residential character envisaged in the development plan; or
- A minimum lot size of 2,000 square metres for all residential lots.

## 4.0 Requirements for development plan

02/12/2022
C259case

The development plan should show:

- The existing and proposed road network;
- The location of existing and proposed open space including open space linkages; and
- The location of any existing or proposed community facilities including school sites.

02/12/2022
C259case

# SCHEDULE 4 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO4**.

**CARDINIA STRATEGY PLAN AREA**

## 1.0 Objectives

02/12/2022
C259case

None specified.

## 2.0 Requirement before a permit is granted

02/12/2022
C259case

A permit may be granted before a development plan has been prepared to the satisfaction of the responsible authority to subdivide land to create a lot for an existing building.

## 3.0 Conditions and requirements for permits

02/12/2022
C259case

The following requirements should be met before a permit can be granted to subdivide land, to create an additional lot:

- A lot size for the subdivision that appropriately reflects the low density residential character envisaged in the development plan; or
- An average lot size of 1.2 hectares for all residential lots for land north of Grasmere Creek; and an average lot size of 0.7 hectares for all residential lots for land south of Grasmere Creek.
- All residential lots must be provided with reticulated sewerage, unless the land owner enters into a Section 173 Agreement under the *Planning and Environment Act 1987* with the authority responsible for effluent disposal in the area, which agreement ensures that any costs of extending and connecting the reticulated sewer to allotments are borne by the owner, should any septic tank system on these allotments prove to be inadequate.

*Note 1: No lot created north of Grasmere Creek must be less than 1.0 hectare in area.*

*Note 2: No lot created south west of Grasmere Creek must be less than 0.4 hectares in area or greater than 1.0 hectares in area*

## 4.0 Requirements for development plan

02/12/2022
C259case

The development plan should show:

- The existing and proposed road network.
- The location of existing and proposed open space including open space linkages.
- The location of any existing or proposed community facilities including school sites.

02/12/2022
C259case

## SCHEDULE 5 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO5**.

**NARRE WARREN NORTH STRATEGY PLAN AREA**

### 1.0 Objectives

02/12/2022
C259case

None specified.

### 2.0 Requirement before a permit is granted

02/12/2022
C259case

A permit may be granted before a development plan has been prepared to the satisfaction of the responsible authority to subdivide land to create a lot for an existing building.

### 3.0 Conditions and requirements for permits

02/12/2022
C259case

The following requirement should be met before a permit can be granted:

- A lot size for the subdivision that appropriately reflects the low density residential character envisaged in the development plan; or, a minimum lot size of 1,000 square metres for all residential lots for land in the Township Zone.

### 4.0 Requirements for development plan

02/12/2022
C259case

The development plan should show:

- The existing and proposed road network;
- The location of existing and proposed open space including open space linkages;
- The location of any existing or proposed community facilities including school sites;

02/12/2022
C259case

# SCHEDULE 8 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO8**.

**COMMERCIAL AREAS**

## 1.0 Objectives

02/12/2022
C259case

None specified.

## 2.0 Requirement before a permit is granted

02/12/2022
C259case

A permit may be granted before a development plan has been prepared to the satisfaction of the responsible authority to subdivide land to create a lot for an existing building.

## 3.0 Conditions and requirements for permits

02/12/2022
C259case

None specified.

## 4.0 Requirements for development plan

02/12/2022
C259case

The development plan should show:

- The existing and proposed road network.
- The preferred land uses and land use objectives for different precincts within the plan.
- Streetscape concepts including road reserve widths and building and/or landscaping setbacks.

02/12/2022
C259case

## SCHEDULE 10 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO10**.

**LYSTERFIELD SOUTH**

### 1.0 Objectives

02/12/2022
C259case

None specified.

### 2.0 Requirement before a permit is granted

02/12/2022
C259case

A permit may be granted before a development plan has been prepared to the satisfaction of the responsible authority to subdivide land to create a lot for an existing building.

### 3.0 Conditions and requirements for permits

02/12/2022
C259case

The following requirements should be met before a permit can be granted:

- A lot size for the subdivision that appropriately reflects the low density residential character envisaged in the development plan; or,
- A minimum lot size of 2,000 square metres for all residential lots that do not abut Hallam North Road and Lysterfield Park; and
- A minimum lot size of 4,000 square metres for all residential lots abutting Hallam North Road and Lysterfield Park.
- An application for subdivision of land be referred to the Department of Natural Resources and Environment for comment.

### 4.0 Requirements for development plan

02/12/2022
C259case

The development plan should show:

- Landscape buffers of planted indigenous vegetation of local provenance that surround proposed development, including to Lysterfield Park and the row of existing lots fronting Churchill Park Drive.
- A central ‘spine’ through the development that incorporating the extension of Churchill Park Drive to Hallam North Road, a public open space feature and significant landscaping on public land using indigenous vegetation of local provenance.
- The location of any existing or proposed community facilities including school sites.

02/12/2022
C259case

## SCHEDULE 11 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO11**.

### GOLF LINKS ROAD RESIDENTIAL AREA

## 1.0 Objectives

02/12/2022
C259case

None specified.

## 2.0 Requirement before a permit is granted

02/12/2022
C259case

None specified.

## 3.0 Conditions and requirements for permits

02/12/2022
C259case

Any planning application for a subdivision that creates an additional lot should satisfy the following requirements:

- Does not create a lot that backs on to the Hallam Valley Flood Plain.
- Retains an open vista to the south across the Hallam Valley Flood Plain from Golf Links Road.
- Demonstrates that the subdivision will not result in additional land not subject of the application being made liable to flooding.
- Provides for development floor levels that are in accordance with Melbourne Water requirements.
- Does not result in any loss of flood storage volume, to the satisfaction of Melbourne Water.
- Includes a Stormwater Management Plan for the subdivision that has regard to the 'best practice' measures contained in the Urban Stormwater Best Practice Environmental Management Guidelines (CSIRO, 1999) and Water Sensitive Urban Design.
- Provides a north-south drainage reserve through the residential subdivision linking the municipal reserve to the north and the proposed wetland area to the south, to the satisfaction of Melbourne Water and the responsible authority.

Any permit for a subdivision that creates an additional lot should include a condition that requires the owner to enter into an agreement under Section 173 of the *Planning and Environment Act 1987*, to provide for the following matters:

- The construction of Golf Links Road relative to the frontage of the subject land, or any realignment of the road, to be carried out by the owner of the land to the following standard:
  - 10.1 metre-wide sealed pavement.
  - Concrete footpath and kerb and channel on the northern side of the road.
  - 1.2 metre-wide gravel shoulder on the southern side of the road.
  - 2.3 metre-wide indented parking bays on the northern side of the road.
  - Any additional traffic management measures required by the responsible authority.
- The construction and landscaping of the proposed wetland area to the south, to the satisfaction of Melbourne Water and the responsible authority.
- The provision of a 20 metre-wide east-west cycle/pedestrian path corridor through the proposed wetland area, to the satisfaction of the responsible authority.
- All costs associated with any closure of Golf Links Road resulting from the subdivision to be borne by the owner of the land.

- Following the subdivision of the land, all costs associated with amending the Casey Planning Scheme to remove the Land Subject to Inundation Overlay to be borne by the owner of the land.
- All costs associated with the preparation of the agreement and its registration on title to be borne by the owner of the land.

## 4.0 Requirements for development plan

02/12/2022
C259case

The development plan should show:

- The existing and approved surrounding development.
- The existing and future levels/contours of the land.
- An indicative local road network, including the closure and realignment of Golf Links Road as required.
- The location of existing and proposed open space, including appropriate open space linkages.
- The proposed wetland area and nominal cycle/pedestrian path corridor.
- The alignment of the remaining Urban Floodway Zone.

02/12/2022
C259case

## SCHEDULE 12 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO12**.

**FORMER AMSTEL GOLF COURSE**

## 1.0 Objectives

02/12/2022
C259case

None specified.

## 2.0 Requirement before a permit is granted

02/12/2022
C259case

A permit may be granted before a development plan has been prepared for:

- Minor buildings and works;
- Subdivision of the land into superlots or to realign property boundaries.

In considering an application, the responsible authority must have regard to whether:

- The proposal will prejudice the desired outcomes for the land and the surrounding land, as set out in this schedule and envisaged by the Municipal Planning Strategy and Planning Policy Framework;
- The proposal is generally consistent with the Amstel Concept Development Plan contained at Clause 5.0 of this schedule, except as agreed by the responsible authority;
- The proposal implements the recommendations of the Section 53V Environmental Audit of Risk of Landfill gas, EPA service order no. 8003972 (ERM, 2014) or recommendations contained within any subsequent update to the audit.

## 3.0 Conditions and requirements for permits

19/06/2025
C284case

### Application requirements

An application for the subdivision, use and development of land, must include, where relevant, the following:

- A report that demonstrates that the proposal is generally in accordance with the approved development plan.
- A Vegetation Management Plan which illustrates:
  - Structural Root Zones, Tree Protection Zones and tree protection fencing for all trees which are to be retained;
  - Detailed measures for the management and protection of any trees to be retained in line with Australian Standards and to the satisfaction of the responsible authority. This should include cross-section diagrams where natural surface levels are altered and where future roads, footpaths, crossovers or the like are located within the Tree Protection Zone of any tree to be retained. When approved, the plan will be endorsed and will then form part of the planning permit.
- A landscape master plan that shows, consistent with the Amstel Concept Development Plan in Map 1 to this schedule and the landscape concept plan forming part of the approved development plan:
  - The location of trees and any other vegetation proposed to be retained and removed;
  - The location and details of any new planting, including street trees;
  - The location and layout of areas of public open space, including details of any facilities to be incorporated into such areas;
  - The location and details of water bodies and topographic features to be retained.

- A development staging plan, showing:
  - The development of any previous relevant stage;
  - Proposed staging of development over the land;
  - Appropriate connectivity between stages, having regard to completed stages, the local road network, public open space and the delivery of infrastructure;
  - Early delivery of key infrastructure to meet the needs of the development.
- A Flora and Fauna Assessment.
- A copy of any approved Cultural Heritage Management Plan.
- A copy of any approved Environmental Audit for the site.
- A report demonstrating how the recommendations of the Section 53V Environmental Audit of Risk of Landfill Gas, EPA service order no. 8003972 (ERM, 2014), or recommendations contained within any subsequent update to the audit, will be implemented.
- In relation to Area 3, a report demonstrating how (any) recommendations of the most recent environmental audit will be implemented.

**Development requirements**

A permit for the subdivision, use or development of land must ensure that:

- Where residential uses are proposed there is a mix of lot sizes and density, as shown or specified in the approved development plan.
- All public roads (including upgrades of any existing roads) are provided and designed in accordance with the *Engineering Design and Construction Manual for Subdivision in Growth Areas* and *Engineering Design and Construction Manual Standard Drawing Index*, except where otherwise agreed to by the responsible authority.
- Pedestrian paths and shared paths are provided within new public open space areas, to the satisfaction of the responsible authority.
- Any public land that is created is appropriately landscaped and provided with the relevant facilities, to the satisfaction of the responsible authority.
- Areas of identified environmental and heritage significance are protected and managed (including during any construction phase) in accordance with a management plan approved by the responsible authority.
- Trees and other vegetation to be retained, as shown on the landscape concept plan forming part of the approved development plan, are incorporated into public open space and other public land, consistent with the objectives of this schedule and to the satisfaction of the responsible authority.
- A storm water management plan is prepared to the satisfaction of Melbourne Water and the responsible authority.
- Land required for drainage purposes is transferred to the drainage authority or municipal council at no cost.
- Where it is proposed to have a subdivisional road intersect with a declared main road, the intersection is designed, constructed and controlled to the satisfaction of The Head, Transport for Victoria and the responsible authority. The cost of any such intersection works are to be at the full cost of the developer.

- Any permit issued allowing subdivision which creates an additional residential lot for Areas 2 and 3, as shown within the Amstel Concept Development Plan in Map 1 to this schedule, includes a condition that requires the owner of the land to enter into an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987* in respect to this land to provide for the following:
  - A payment to Casey City Council of $900 per residential lot for community infrastructure;
  - Payment to Casey City Council of $9,466 (subject to annual indexation by applying the Building Price Index as published in the latest edition of Rawlinson's Australian Construction Handbook) per residential lot for funding towards public development infrastructure.
- In relation to that part of Area 1 shown as 'Future Development' on the Amstel Concept Development Plan in Map 1 to this schedule:
  - Any permit must provide for the payment of a public open space contribution equivalent to 8 per cent of the site value of the land within the development plan area, as specified in this clause;
  - For the purposes of determining the public open space requirement, public open space does not include:
    - land required by, or vested in, Melbourne Water for drainage-related purposes
    - any encumbered land that forms part of land transferred to, or vested in, the municipal council that is otherwise intended for public open space purposes;
  - Where the amount of land shown as public open space on a proposed plan of subdivision is less than 8 per cent in respect of any particular stage of the development, then the shortfall in the public open space contribution must be made in cash as a percentage of the site value of the land comprising that stage, based on an agreed independent valuation prepared within three months of the release of the lots in that stage;
  - Where the amount of land shown as public open space in the approved development plan exceeds 8 per cent in respect of any particular stage of the development, such land must also be shown on a proposed plan of subdivision as a reserve for public open space and transferred to, or vested in, the municipal council, the developer/owner being entitled to be reimbursed or credited (at the owner's option) to the value of that excess land.
- Recommendations of the Section 53V Environmental Audit of Risk of Landfill Gas, EPA service order no. 8003972 (ERM, 2014), or recommendations contained within any subsequent update to the audit, will be implemented.
- In relation to Area 3, an environmental audit is undertaken by an appropriately qualified person in accordance with Part IXD of the *Environment Protection Act 1970* to determine the risk of landfill gas and the suitability of the land to be developed for residential purposes, including that the outcome of completed remediation works demonstrate that methane and carbon dioxide levels are below the Environmental Protection Authority's adopted criteria.
- In relation to Area 3, any recommendations of most recent environmental audit will be implemented.
- In relation to Areas 2 and 3, as designated on the Amstel Concept Development Plan in Map 1 to the schedule:

  - A minimum of 20 per cent of the total area of Areas 2 and 3 (excluding the clubhouse expansion area but including both unencumbered and encumbered land) must be provided as public open space, including the provision of areas of unencumbered open space for formal and informal recreation;
  - Public open space should be located generally in accordance with the areas shown on the Amstel Concept Development Plan, except as agreed by the responsible authority.
- Any other matters as required in the development plan.

## 4.0 Requirements for development plan

19/06/2025
C284case

The Development Plan must meet the following objectives:

- To encourage a range of dwelling densities and housing types that meet existing and future housing needs that takes advantage of the key landscape feature of the site.
- To provide built form and landscape outcomes that provide an appropriate transition that complements the amenity of existing residential properties abutting the site.
- To facilitate a high quality landscape outcome over the entire site by incorporating existing trees of high or moderate 'retention value' (and trees of low 'retention value', where practicable) into areas of public open space and other public land, in addition to new plantings that integrate with the overall layout and design of the site.
- To provide a safe, efficient and convenient road network that achieves a high level of connectivity based around walking and cycling.
- To provide for an interconnected and accessible public open space network that incorporates natural and cultural heritage features, including existing trees, remnant vegetation, habitat values and important infrastructure such as stormwater management facilities.
- To provide well designed subdivision and development that incorporates high architectural standards, implements innovative Environmentally Sustainable Design features, and demonstrates best practice in environmental management.

### Procedure for approving or amending the development plan

Prior to approval or amendment (other than a minor amendment), the development plan must be publicly displayed for at least 21 days. The responsible authority must take account of any public comments received in response to the display of the development plan.

### Consistency with Amstel Concept Development Plan

The development plan must be generally in accordance with the Amstel Concept Development Plan contained in Map 1 to this schedule, except as agreed by the responsible authority.

### Components of the Development Plan

The development plan must be accompanied by, or include details, in text or diagrammatic form, or both, of the following, as appropriate:

- Identification of Areas 1, 2 and 3 consistent with the Amstel Concept Development Plan contained in Map 1 to this schedule.
- An Aboriginal Cultural Heritage Management Plan, or a cultural heritage assessment of the site prepared by an appropriately qualified person.
- A Flora and Fauna assessment of the site by a suitably qualified person that identifies any areas of biodiversity conservation significance.
- A report that assesses the 'retention value' (high, moderate, low) of all trees on the site prepared by an appropriately qualified person(s). Such a report should be based on and include a detailed arboricultural assessment that considers, among other things, a tree's health, condition and longevity, together with an assessment of its landscape significance that considers a tree's amenity and aesthetic values.
- A landscape concept plan that shows, consistent with the Amstel Concept Development Plan in Map 1 to this schedule:
  - the location of trees and any other vegetation proposed to be retained and removed, having regard to a tree's 'retention value' and the objectives of this schedule;

  - water bodies and any other topographic features to be retained;
  - the location and layout of areas of public open space.
- Urban design principles and guidelines that identify:
  - the development objectives and outcomes that apply to each area;
  - the preferred neighbourhood character over the development plan area;
  - the key elements of the public realm, with particular emphasis on its safety, legibility and usability;
  - a diversity of lot sizes, residential types and density;
  - the relationship between areas supporting varied land use and development outcomes.
- An Urban Structure Plan that identifies:
  - The nominated land uses and development outcomes;
  - The delivery of a safe, efficient and functional road network and hierarchy;
  - How allotments have been designed to maximise solar access;
  - Connectivity and responsiveness to adjoining and surrounding land, including the use of active frontages in accordance with the Amstel Concept Development Plan in Map 1 to this schedule.
- The interim and longer term land use and built form outcomes for the Amstel Golf Club clubhouse.
- The interface treatment between the existing Amstel Golf Club clubhouse and the residential subdivision and development.
- A traffic impact assessment report which includes, but is not limited to, details of anticipated traffic volumes, the proposed local road hierarchy and layout, connection to the external road network, and typical cross sections of internal roads indicating provision for pedestrians, tree planting, emergency access and car parking, and including traffic calming devices.
- The proposed methods to achieve bicycle priority at intersections of minor streets and connector roads with dedicated off-road bicycle, paths which must be achieved through strong and consistent visual and physical cues and supportive directional and associated road signs.
- The proposed methods to deal with the site boundary interfaces, including:
  - The presentation of the development to Cranbourne-Frankston Road;
  - The relationship between the development and the Amstel Golf Club clubhouse and car parking areas;
  - The presentation of any development to the major electricity easement adjoining the eastern boundary and the existing residential land adjoining the southern boundary.
- Details of the land use and development relationship along the interface of Areas 1 and 2.
- Provision of a 12-metre-wide tree reserve along the Cranbourne-Frankston Road frontage of the site, or as otherwise approved by the responsible authority.
- A drainage and servicing assessment indicating how all relevant flooding, drainage and water quality issues are to be addressed, to the satisfaction of Melbourne Water, South East Water and the responsible authority.
- Details of infrastructure which is to be provided as part of the development, including timing, standards and funding.

## Map 1 to Schedule 12 to Clause 43.04 - Amstel Concept Development Plan



02/12/2022
C259case

## SCHEDULE 13 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO13**.

**FREEWAY SPORTS CENTRE**

## 1.0 Objectives

02/12/2022
C259case

None specified.

## 2.0 Requirement before a permit is granted

02/12/2022
C259case

None specified.

## 3.0 Conditions and requirements for permits

02/12/2022
C259case

None specified.

## 4.0 Requirements for development plan

02/12/2022
C259case

The development plan must show:

- The location of existing buildings and car parking areas.
- Proposed building envelopes and car parking areas, including boundary setbacks.
- Preferred land uses and land use objectives for different areas within the site.
- Streetscape concepts for both Princes Highway and Doveton Avenue frontages, including building elevations and landscaping themes.

02/12/2022
C259case

# SCHEDULE 14 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO14**.

**CRANBOURNE NORTH DEVELOPMENT PLAN AREA**

## 1.0 Objectives

02/12/2022
C259case

None specified.

## 2.0 Requirement before a permit is granted

02/12/2022
C259case

None specified.

## 3.0 Conditions and requirements for permits

02/12/2022
C259case

### 3.1 Application requirements

The following information must be provided with any permit applications, as appropriate:

- A response as to how the permit application is consistent with the provisions set out in the approved development plan and the Cranbourne North Development Contributions Plan.
- A plan showing on the general layout of the proposed use, subdivision or development.
- An indicative staging layout plan.
- Details of the existing and proposed use and development of surrounding land and an assessment of interface issues with the subject land.
- A diversity of lot sizes, dwelling types and densities.
- Areas of existing vegetation, with identification of vegetation proposed to be retained and removed.
- An environmental management plan.
- A Public Infrastructure Plan describing how the application responds to the approved development plan and which addresses the following:
  - Staging, timing and provision of infrastructure, including traffic works and the provision of telecommunication infrastructure including optical fibre.
  - The provision, staging and timing of stormwater drainage works.
  - The timely provision of connector roads and/or any roads required to provide access to adjoining properties.
  - The landscaping of any land.
  - The provision of public open space and land for any community facilities.
  - Any other matter relevant to the provision of public infrastructure required by the responsible authority.
- A Traffic Impact Assessment Report to include the following:
  - An assessment of the compatibility of the proposal with the overall road hierarchy shown in the approved development plan.
  - The movement network showing the overall road hierarchy, local street network and proposed cross-sections for each street type.
  - The layout and treatment of all vehicle and pedestrian routes and access points to and from the land.

- Indicative bus stop locations on the Local Bus Network and/or the Principal Public Transport Network (PPTN), if applicable.
- Traffic management and control works in adjoining and nearby roads when the development or any stage of the development is completed.

## 3.2 Permit requirements

Any planning permit and the plans endorsed under that permit must show or require the following to the satisfaction of the responsible authority, as appropriate:

### General

- A condition or conditions which ensure that any requirements or conditions set out in the approved development plan are implemented as part of the planning permit or the plans endorsed under the permit.

### Building envelope restrictions

- Before a plan is certified for a subdivision (or a relevant stage of a subdivision) where building envelopes are proposed, each lot in area must contain a building envelope (in accordance with the approved development plan and Part 4 of the Building Regulations), to the satisfaction of the responsible authority.
- A restriction must be imposed in the form of the approved building envelopes on the plan of subdivision or through an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987* that is registered on the title to the land. The restriction or the agreement must provide for the following:
  - The building envelope to apply to each relevant lot.
  - All buildings to conform to the building envelope on the relevant lot.
  - The construction of a building outside of a building envelope only with the consent of the responsible authority.
  - A building envelope to cease to apply to any building on the lot affected by the envelope after the issue of a occupancy permit for the whole of a dwelling on the land.

Where the building envelope is to be applied to the land through an agreement with the responsible authority under Section 173 of the *Planning and Environment Act 1987*, the building envelope plan may be approved after the plan of subdivision is certified.

### Water infrastructure, including third pipe

- Irrespective of whether the relevant water authority has entered into an agreement as contemplated, any plan of subdivision must contain a restriction which provides that no dwelling or commercial building may be constructed on any lot unless the building incorporates dual plumbing for recycled water supply for toilet flushing and garden watering use if it is to become available.
- Irrespective of whether the relevant water authority has entered into an agreement as contemplated, connection points for the third pipe are to be provided by the developer/landowner to all public open space at no cost to the relevant water authority or Council to facilitate irrigation of public open space using recycled water if it is to become available.

### Electricity infrastructure

- All existing above ground electricity powerlines must be removed and placed underground before the issue of a Statement of Compliance.
- The design of electricity and other related infrastructure for the development abutting or in proximity to Thompsons Road must provide for alternative electricity transmission through the new development so as to render the existing above ground assets along the roadway on the same side of the road as the development redundant and, subject to the relevant utility authority consenting, those assets must be removed as part of the development works for the relevant stage of the subdivision at no cost to the relevant utility authority or Council.

### Tree reserves

- Upon the issue of a Statement of Compliance, land required for tree reserves, as set out in the approved Development Plan, must be transferred to or vested in Council at no cost to Council.
- Within 6 months of the issue of a Statement of Compliance, land required for tree reserves must be developed and landscaped to the satisfaction of the responsible authority. Tree planting to arterial roads is to be provided in accordance with the Casey Arterial Roads Tree Strategy.

### Land for community facilities

Land required for community facilities, as set out in the approved development plan or the Cranbourne North Development Contributions Plan, must be transferred to or vested in Council at no cost to Council unless the land is funded by the Cranbourne North Development Contributions Plan. This must be completed prior to the issue of a Statement of Compliance to the satisfaction of responsible authority.

### Land for road widening

Land required for road widening including right of way flaring for the ultimate design of any intersection within an existing or proposed arterial road must be referred to or vested in Council at no cost to the acquiring agency unless funded by the Cranbourne North Development Contributions Plan. Development and landscape of the land must be completed to the satisfaction of the responsible authority prior to it being transferred or vested.

### Land for public open space

- Land required for public open space as a local or district park, as set out in the approved development plan or the Cranbourne North Development Contributions Plan, must be transferred to or vested in Council at no cost to Council unless the land is funded by the Cranbourne North Development Contributions Plan.
- All public land must be developed and landscaped in accordance with the approved development plan to the satisfaction of the responsible authority.

### Public Open Space

- Land identified in the approved development plan as being required for public open space must be transferred to Council at no cost.
- In the event that a percentage of land required for public open space in the approved development plan is less than the amount specified in the Schedule to Clause 53.01, the residual amount of contribution required must be provided to Council by way of monetary contribution of the land value.

- Where the land required for public open space is more than the amount specified in the Schedule to Clause 53.01, Council will pay an amount equivalent to the additional land being provided by that property. Council will not pay an amount for land which is in excess of the land specified to be set aside in the development plan.
- For the purposes of this clause, the equalisation of open space and Clause 53.01, public open space does not include the following:
  - Land required by, or vested in, Melbourne Water for drainage-related purposes, where otherwise agreed by Council.
  - Any encumbered land transferred to, or vested in, Council.

**Credits for stormwater facilities**

Land required for drainage purposes must be transferred to the drainage authority or municipal council at no cost to the drainage authority or Council.

## 4.0 Requirements for development plan

02/12/2022
C259case

### 4.1 Procedure for approving or amending the development plan

Prior to approval or amendment (other than a minor amendment), the development plan must be displayed for at least 14 days, but no longer than 28 days. The responsible authority must take account of any public comments received in response to the display of the development plan.

### 4.2 Components of the development plan

A development plan must be generally in accordance with the Cranbourne North Development Contributions Plan that is incorporated in the planning scheme.

The development plan must contain, or make provision for, the following to the satisfaction of the responsible authority:

- A local context and site analysis.
- A vision and an urban structure that identifies:
  - A concept layout of the preferred use and development.
  - Key community and development infrastructure.
- A land use budget.
- An element of housing that sets objectives and identifies the location of various housing densities.
- Planning and design guidelines for housing specifying:
  - Density requirements and distribution.
  - Building envelope restrictions as appropriate.
  - Development requirements for land encumbered by uses with adverse amenity potential along Thompsons Road.
- An element of community facilities that sets objectives and identifies the location of community facilities.
- An element of open space and natural systems that sets objectives and identifies:
  - The provision of public open space, including a preliminary indication of the spatial configuration of active and passive open space areas.

  - A public open space network which provides linkages to any neighbouring public open space.
  - A mechanism for equalisation of public open space contributions that are required by Clause 53.01.
- Planning and design guidelines for open space and natural systems specifying:
  - Environmentally sustainable design principles.
  - The key elements of the public realm, with particular emphasis on its safety, accessibility, legibility and usability.
- An element of transport and movement that sets objectives and identifies the road hierarchy and network, key intersections, tree reserves and networks of pedestrian, cycle and public transport.
- Planning and design guidelines for transport and movement specifying construction / design requirements of arterial roads, non-arterial roads, intersections, pedestrian and cycle paths and bus stops.
- An element of utilities and development staging that sets objectives and includes planning and design guidelines.
- Public infrastructure delivery strategies.

02/12/2022
C259case

## SCHEDULE 16 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO16**.

### HEATHERTON ROAD MIXED USE PRECINCT

## 1.0 Objectives

02/12/2022
C259case

None specified.

## 2.0 Requirement before a permit is granted

02/12/2022
C259case

A permit may be granted before a development plan has been prepared for any of the following, to the satisfaction of the responsible authority:

- Subdivide land to create a lot for an existing building.
- Externally alter a building by structural work, rendering, sandblasting or in any other way, provided it does not result in an increase in leasable floor area.
- Remove, destroy or lop native vegetation.
- Construct, display or remove a sign.

## 3.0 Conditions and requirements for permits

19/06/2025
C284case

### Application requirements

In addition to any other requirements of the planning scheme, the following information must be provided with any permit application, as appropriate:

- A traffic report, prepared by a suitably qualified person, that addresses, among other things:
  - traffic management and control works in adjoining and nearby roads when the development or any stage of the development is completed;
  - the means of vehicular ingress and egress to the existing arterial and/or local road network;
  - the means of internal circulation, including details of any internal access roads;
  - the timing of proposed traffic works relative to the staging of the development; and
  - public transport arrangements and access routes.
- A landscape plan that shows, in relation to the proposed development:
  - the provision of appropriate landscape buffers, including fencing where the land directly abuts a residential area;
  - the landscape treatment of any adjoining arterial roads, having regard to the City of Casey Arterial Roads Tree Strategy (City of Casey, 2003);
  - the treatment of car parking areas; and,
  - a staging strategy for the implementation of landscape works, including a detailed planting schedule and an ongoing management strategy.

### Permit conditions

All permits to construct a building or construct or carry out works must include the following requirement as a condition:

- A management plan must be prepared to the satisfaction of the responsible authority that provides for:
  - the proposed hours of construction of buildings and works;

- measures to minimise and control noise from construction works;
- measures to minimise the impact of construction vehicles arriving at and departing from the land;
- measures to minimise the off-site effect of external lighting;
- measures to minimise the creation of conditions liable to be a nuisance;
- measures to minimise the impact upon local amenity of operations such as waste collection, vehicle loading and unloading times, management and maintenance of car parking areas, and collection and control of shopping trolleys (where relevant);
- the management and maintenance of existing landscaped areas;
- the operation of waste collection; and,
- litter management.

## 4.0 Requirements for development plan

19/06/2025
C284case

The development plan must include, in text or diagrammatic form, or both:

- An explanation of the strategic directions and planning principles of the proposal, addressing:
  - its hierarchical role in the context of Clause 11.03-1L Activity centres and centre hierarchy in Casey;
  - the urban design outcomes sought, including built form, streetscape, land use, ecologically sustainable development, the management of public space, and accessibility;
  - how it is proposed to achieve a diversity of land uses;
  - the integration of the centre with surrounding areas;
  - general constraints and opportunities;
  - the key elements of the public realm, with particular emphasis on its legibility and usability;
  - the integration of pedestrian, bicycle and vehicular routes on the land;
  - how landscaping, building massing, setbacks, and heights will avoid unreasonable impact on the amenity of the adjoining residential uses; and
  - measures taken to ensure the proposed uses, particularly uses operating after 10:00pm, do not have an unreasonable impact on the amenity of adjoining residential uses.
- A physical framework plan that identifies the main elements of the development plan and shows:
  - the relationship between activities on the site;
  - the location of the internal and external pedestrian system and public spaces, including weather protection and safety measures, and accessibility to public transport facilities;
  - the location of active street frontage areas, where an ‘active street frontage’ is defined as a frontage that provides access, egress and views to and from internal active areas so as to enhance the public realm and provide a sense of comfort and safety;
  - the road network and car parking system, including the designation of a road hierarchy, where appropriate, and intersection requirements;
  - general landscaping principles;

  - the general built form/massing; and
  - an indication of how the activity system, vehicle and pedestrian network, connect to adjacent areas outside the land covered by the development plan.
- A staging plan, where relevant, that shows the sequence of major development on the land.
- The identification of floor space used, and proposed to be used, for retail purposes.

02/12/2022
C259case

# SCHEDULE 18 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO18**.

## POUND ROAD/SHRIVES ROAD, HAMPTON PARK RESIDENTIAL AREA

## 1.0 Objectives

02/12/2022
C259case

None specified.

## 2.0 Requirement before a permit is granted

02/12/2022
C259case

The Responsible Authority may grant a permit before a development plan has been prepared to:

- Subdivide land located north of Shrives Road provided that each lot is not less than 10,000 square metres (1 hectare) in area (No's. 175, 177, 1/179, 2/179, 181, 183 Pound Road, Hampton Park, No's. 100, 102 104 & 106 Shrives Road, Hampton Park and No's. 2, 3, 4, 5, 5A, 6, 7 & 8 Wethersdane Drive, Hampton Park).
- Remove or lop native vegetation.
- Carry out minor extensions or alterations to existing buildings and works.

Any permit granted before a development plan has been prepared must not compromise the strategic objectives of the development plan.

## 3.0 Conditions and requirements for permits

19/06/2025
C284case

### Application requirements

The following information must be provided with any permit application for subdivision, as appropriate:

- A site analysis plan.
- The proposed subdivision layout for the development.
- A plan showing existing and proposed levels to Australian Height Datum (AHD), including levels at the top and base of any cut and fill.
- An assessment demonstrating that the proposal is generally in accordance with the approved development plan.
- An assessment against the requirements of Clause 56.
- A stormwater management plan, to the satisfaction of Melbourne Water and the responsible authority.
- A traffic report.
- A landscape plan, which identifies existing vegetation proposed to be retained and removed.
- A Cultural Heritage Management Plan if required by the *Aboriginal Heritage Act 2006*.
- Any other relevant requirements.

### Development requirements

The following development requirements should be achieved with a permit application for subdivision, as appropriate:

- The subdivision shall not create any lot that backs on to the Hallam Valley Floodplain.
- The subdivision shall not cause any land outside of the application area to be liable to flooding.
- The subdivision shall not result in any loss of flood storage volume in the Hallam Valley Floodplain, to the satisfaction of Melbourne Water.

- The subdivision shall provide for a 6-metre-wide tree reserve for lots that front Pound Road and Shrives Road, Hampton Park.
- Any land required for drainage purposes must be transferred to the drainage authority or municipal council at no cost and will not be credited as public open space.
- A suitable buffer, to the satisfaction of the responsible authority, must be provided between the subdivision and the Hallam Main Drain.
- Development should not encroach on the Hallam Valley Floodplain, and the edge of development must be set back at least 60 metres from the boundary of the Hallam Main Drain.

### Permit conditions

All permits to subdivide the land must include a condition to satisfy the following requirements:

### Environmental Management Plan

- Provision of an Environmental Management Plan to the satisfaction of the responsible authority, that outlines methods to be adopted on site during the construction stage addressing public safety, amenity, site security, vegetation protection, threatened species protection, operating hours, noise and emission control, stormwater and sediment runoff, waste, material reuse, and traffic management.

### Landscaping of public land

- Prior to the issue of a Statement of Compliance for any subdivision of the land, all public land (this includes public open space and tree, road and drainage reserves) is to be landscaped to a standard to the satisfaction of the responsible authority which includes, but is not limited to, the following:
  - earthworks to create the final form of the land;
  - seeding of grass on all exposed surfaces; and
  - tree planting and understory in accordance with a landscape plan approved by the responsible authority, and Melbourne Water where planting is proposed within the Hallam Valley Floodplain.
- Street tree planting is provided having regard to the Casey Arterial Roads Tree Strategy (or as amended) and the Casey Local Roads Tree Strategy (or as amended).

### Bicycle and pedestrian paths

- Prior to the issue of a Statement of Compliance for any subdivision of the land, shared use paths (providing for bicycles and pedestrians) must be provided to the following specifications:
  - constructed of concrete with a minimum width of 2.5 metres and to the satisfaction of the responsible authority.
  - connected externally to other development in the area to avoid paths being isolated.
  - any shared use paths constructed within the Hallam Valley Floodplain must be designed and constructed to the satisfaction of Melbourne Water.

## 4.0 Requirements for development plan

19/06/2025
C284case

### Procedure for approving or amending the development plan

Prior to approval or amendment (other than a minor amendment), the development plan must be displayed for at least 28 days. The Responsible Authority must take account of any public comments received in response to display of the development plan.

**Components of the development plan**

The development plan should show:

- The opportunities and constraints of the land based on a site analysis, that gives consideration to:
  - topography and other natural features;
  - existing and new contours and levels;
  - existing easements including the overhead electricity transmission lines;
  - the Urban Floodway Zone and adjacent Hallam Main Drain and the Hallam Valley Floodplain to the north;
  - adjacent land use and development patterns;
  - views to and from the land; and
  - existing open space, road, bicycle and pedestrian networks.
- The proposed lot and layout pattern that demonstrates:
  - the provision of a safe and practical road hierarchy network showing connections to local and arterial roads;
  - a variety of lot sizes to cater for a diversity of housing type and design opportunities;
  - consideration of the existing Urban Floodway Zone located in the northern portion of the subject area;
  - the retention of primary view lines from various vantage points along Pound Road and Shrives Road looking north towards the Hallam Valley Flood Plain;
  - the provision of public open space;
  - the provision of a bicycle and pedestrian path network that is legible and permeable throughout the area; and
  - the location of any land required for drainage purposes.
- A road network which is supported by a Traffic Impact Assessment and gives consideration to the location of local roads, road access points onto arterial roads and vehicular access/egress points for properties fronting Pound Road and Shrives Road.
- Land that is to be set aside for road widening along Pound Road and Shrives Road generally in accordance with any proposed future upgrade to Pound-Shrives Road.
- A hydraulic report that identifies all flow paths, flood extents, flood levels and velocities for existing and proposed conditions.
- A geotechnical assessment of the land.
- An assessment of the Aboriginal heritage values of the land and evidence indicating the means by which any findings will be protected and managed.
- Urban and landscape design guidelines that include preferred siting, built form and landscape outcomes, to achieve:
  - streets that are safe and friendly for residents and users;
  - building setbacks that will allow for canopy tree planting within the front and rear areas of lots;
  - buildings located on corner lots that are designed to address both street frontages;
  - development that avoids solid front fencing on corner lots;

  - planting themes that are suitable to the area and will help establish a local identity; and
  - landscape design, buffers, and active frontages that preserve or enhance the safety and amenity of the Hallam Valley Floodplain.
- Consideration of the findings of a flora and fauna assessment for the land, including a consideration of Dwarf Galaxias.
- The staging of development.

02/12/2022
C259case

# SCHEDULE 19 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO19**.

**CRANBOURNE NORTH SERVICE BUSINESS PRECINCT**

## 1.0 Objectives

02/12/2022
C259case

None specified.

## 2.0 Requirement before a permit is granted

02/12/2022
C259case

A permit may be granted before a development plan has been prepared to the satisfaction of the responsible authority to subdivide land to create a lot for an existing building, or to construct or carry out minor building or works.

## 3.0 Conditions and requirements for permits

02/12/2022
C259case

Any permit and the plans endorsed under that permit must show or require the following to the satisfaction of the responsible authority, where appropriate:

### General requirement

- A planning permit must include a condition or conditions which ensure that any requirements or conditions set out in the approved development plan are implemented as part of the planning permit or the plans endorsed under the permit.

### Electricity infrastructure

- All existing above ground electricity powerlines must be removed and placed underground before the issue of a Statement of Compliance.
- The design of electricity and other related infrastructure for the development abutting or in proximity to Thompsons Road must provide for alternative electricity transmission through the new development so as to render the existing above ground assets along the roadway on the same side of the road as the development redundant and, subject to the relevant utility authority consenting, those assets must be removed as part of the development works for the relevant stage of the subdivision at no cost to the relevant utility authority or the City of Casey.

### Public open space

- The land identified in the approved development plan as being required for public open space must be transferred to Council at no cost, unless one of the following exceptions apply:
  - Where the land identified in the approved development plan is less than the amount specified in Clause 53.01, the residual amount of contribution required must be provided to Council by way of monetary contribution of the land value.
  - Where the land identified in the approved development plan is more than the amount specified in Clause 53.01, Council will pay an amount equivalent to the additional land being provided by that property. Council will not pay an amount for land provided which is in excess of the land identified in the development plan.
- For the purposes of this clause, the equalisation of open space and Clause 53.01, public open space does not include:
  - Land required by, or vested in, Melbourne Water for drainage-related purposes.
  - Any encumbered land transferred to, or vested in, Council.

### 3.1 Application requirements

Any planning permit application must be accompanied by, where appropriate:

- Details of the existing and proposed use and development of surrounding land and an assessment of interface issues with the subject land.
- An indicative Staging Plan.
- A diversity of lot sizes.
- An Infrastructure Plan describing how the application responds to the approved development plan and which addresses:
  - Staging and provision of infrastructure, including traffic works and the provision of telecommunication infrastructure including optical fibre.
  - Drainage and stormwater management
  - The timely provision of connector roads and/or any roads required to provide access to adjoining properties.
- A Traffic Impact Assessment Report to include:
  - An assessment of the compatibility of the proposal with the overall road hierarchy shown in the approved development plan.
  - The movement network showing the overall road hierarchy, local street network and proposed cross-sections for each street type.
  - The layout and treatment of all vehicle and pedestrian routes and access points to and from the land.
  - Indicative bus stop locations on the Local Bus Network and/or Principal Public Transport Network (PPTN), if applicable.
  - Traffic management and control works in adjoining and nearby roads when the development or any stage of the development is completed.
- A Geotechnical Report for the property located at 1545 Thompsons Road, Cranbourne North, confirming any works required to facilitate development of the land.
- A Landscape Concept Plan that shows:
  - Indicative design principles and a species palette.
  - Treatment of interfaces with residential areas, open space and any adjoining roads.
  - Any native vegetation to be retained within the public or private realm.

## 4.0 Requirements for development plan

02/12/2022
C259case

### 4.1 Procedure for approving or amending the development plan

Prior to approval or amendment (other than a minor amendment), the development plan must be publicly exhibited for at least 14 days, but no longer than 28 days. The responsible authority must take into account any public comments received in response to the display of the development plan.

### 4.2 Components of the development plan

A development plan must be generally in accordance with the Cranbourne North Development Contributions Plan as an Incorporated Document in the planning scheme.

The development plan must contain or make provision for the following to the satisfaction of the responsible authority:

- A vision and outcomes statement indicating principles and guidance for planning outcomes sought, including key planning, design and infrastructure components.
- Identification of how industrial and service business uses of land will be accommodated and facilitated within the precinct.
- Development staging.
- A mechanism for equalisation of public open space contributions that are required by Clause 53.01.
- Urban design principles and guidelines that identify:
  - The development principles that apply to each part of the precinct.
  - The location of active street frontages.
  - Key building locations and the general built form/massing.
  - The key elements of the public realm, with particular emphasis on its safety, legibility and usability.
  - A diversity of lot sizes.
- An Urban Structure Plan that identifies:
  - Preferable uses for each part of the precinct.
  - Key elements of public open space and transport and movement.
- A Transport and Movement Plan that identifies:
  - Public transport.
  - A road network and hierarchy.
  - Pedestrian and cycling networks which provide linkages to the public open space network within and adjoining the precinct.
  - A tree reserve along Thompsons Road, except where access to Thompsons Road or a service road is proposed. The minimum width of a tree reserve must be 12 metres, in accordance with the *Casey Arterial Roads Tree Strategy*.
- An Open Space Plan that identifies:
  - A public open space network which provides linkages to any neighbouring public open space.
  - A linear reserve along the southern boundary of the sports facility identified in the Cranbourne North Development Contributions Plan. The minimum width of the reserve must range from 12 metres to 6 metres (west to east).

02/12/2022
C259case

# SCHEDULE 20 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO20**.

## SURPLUS EDUCATION LAND

### Site Description

This schedule applies to land generally known as:

- 58 Doveton Avenue, Doveton – Eumemmerring Primary School
- 25-35 Rowan Drive, Doveton – Doveton North Primary School

## 1.0 Objectives

02/12/2022
C259case

None specified.

## 2.0 Requirement before a permit is granted

02/12/2022
C259case

A permit may be granted before a development plan has been prepared for:

- Bulk excavation, site preparation and retention works including piling, footings, ground beams and ground slab, and minor buildings and works provided that interim treatments are to the satisfaction of the responsible authority and any works required to satisfy environmental clean up or audit requirements.
- Subdivision of the land into superlots or to realign property boundaries, or create a road, or create or remove easements.

Before granting a permit the responsible authority must be satisfied that the permit will not prejudice the future use and development of the land in an integrated manner.

## 3.0 Conditions and requirements for permits

19/06/2025
C284case

### Application requirements

An application to subdivide or develop the land must be accompanied by the following information, as appropriate:

- A subdivision plan.
- A development staging plan.
- An Aboriginal cultural heritage assessment/archaeological survey.
- An environmental assessment prepared by an appropriately qualified person(s) that identifies any areas of environmental significance on the land.
- An arboricultural assessment of any significant native vegetation on the land.

The responsible authority may waive the need to provide any of the information detailed above that is not relevant to a particular application.

### Development requirements

A permit for the subdivision or development of land must ensure that:

- Appropriate landscape buffers or edges are provided, as shown or specified in the development plan.
- Where residential uses are proposed, there is a mix of lot sizes as shown or specified in the development plan.

- New roads are designed having regard to the standard cross sections in the *Engineering Design and Construction Manual for Subdivision in Growth Areas* and *Engineering Design and Construction Manual Standard Drawing Index*.
- Pedestrian paths are provided within new public open space areas.
- Any public land that is created is appropriately landscaped.

## 4.0 Requirements for development plan

19/06/2025
C284case

The development plan must be prepared for the whole site, and should:

- Where residential uses are proposed, provide a range of dwelling types to cater for a variety of housing needs.
- Where non-residential uses are proposed, details of the nature of the proposed use, including hours of operation, stall and visitor numbers, and traffic and parking management plan.
- Incorporate sustainable design features to address water and waste management, solar access and energy saving initiatives, to deliver lower living costs for future residents.
- Create a composition of varied building forms and heights across the site.
- Provide for a high quality of internal amenity for future residents.
- Respect the amenity of adjoining interfaces for providing for a maximum of 2 storey built form adjacent to or opposite any existing single storey residential development.
- Any taller buildings across the balance of the site should be carefully graduated with reference to analysis of shadow, visual amenity impacts and the character of the area.
- Apply appropriate buffer treatments at the interface with any non-residential uses on adjoining properties.
- Create a positive interface to adjacent public open space giving appropriate consideration to issues of safety and surveillance.
- Identify the location of any public open space and locate open space adjacent to pedestrian/cycle pathways.
- Create opportunities for improved local permeability through provision of new pedestrian/cycle pathways or new local street networks where appropriate that link to the existing networks.
- Incorporate any significant native vegetation into the design of the development including maintaining the long term, sustainable health and condition of existing vegetation.
- Ensure the layout and design of development avoids the ‘dripline’ of any retained River Red Gum trees.

### Development plan components

The development plan must include the following information:

- Existing conditions plan, showing surrounding land uses and development, adjoining roads and pedestrian links, public transport routes, topography, and infrastructure provision.
- Concept plans for the site which show:
  - New building orientation and location, indicative uses for each building, car parking areas, public roads, vehicle access locations, pedestrian and bike paths and areas and locations of private and public open space.
  - Three-dimensional building envelope plans including maximum building heights and setbacks.

  - The design philosophy for the site and indicative architectural themes including car parking areas and garages so that they do not dominate the street or any public open space.
  - Shadow diagrams of proposed building envelope conditions at 10.00am, 1.00pm and 3.00pm at 22 September.
- An indicative development schedule including the minimum number, type and density of dwellings and the floor area of any proposed non-residential uses.
- A traffic management report and car parking plan, which includes:
  - Identification of roads, pedestrian, cyclist and vehicle access locations, including parking areas, both internal and external to the site.
  - Any traffic management measures, where required.
  - Location and linkages to public transport.
  - Car parking rates for all uses, including visitor parking.
  - Provision for bicycle facilities.
- A landscaping plan which shows:
  - The landscape concept for the site.
- An Environmentally Sustainable Design (ESD) statement which includes:
  - Proposed initiatives that demonstrate sustainable design features not limited to energy and greenhouse gas emissions reduction, integrated water management, waste and materials, and achievement towards best practice ESD.

The development plan for any part of the development area or for any stage of development may be amended from time to time to the satisfaction of the responsible authority.

### Display of development plan

Before deciding to approve a development plan, the responsible authority must display the plan for public comment.

Notice of the development plan must be given to the owners and occupiers of adjoining land.

A development plan must be displayed or further information required within 28 days after the plan is received by the responsible authority. The plan must be displayed within 14 days of satisfactory further information being received.

The development plan must be displayed for at least 14 days but no longer than 28 days.

### Decision guidelines

Before deciding whether a development plan, or amendment to a development plan, is satisfactory, the responsible authority must consider:

- The provisions of this planning scheme including relevant local policies and the objectives set out in Clauses 54 and 55 of the scheme.
- The orderly development of land including management of traffic, car parking, the provision of pedestrian ways and open space.
- The overall objective for the land to achieve an integrated medium density residential development offering a choice and diversity of housing opportunities and types, appropriate to its setting and achieving a high quality of amenity and urban design.

02/12/2022
C259case

# SCHEDULE 21 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO21**.

**FORMER DOVETON SECONDARY COLLEGE**

**64-70 Box Street, Doveton**

## 1.0 Objectives

02/12/2022
C259case

None specified.

## 2.0 Requirement before a permit is granted

02/12/2022
C259case

A permit may be granted before a development plan has been prepared for:

- Bulk excavation, site preparation and retention works including piling, footings, ground beams and ground slab, and minor buildings and works provided that interim treatments are to the satisfaction of the responsible authority and any works required to satisfy environmental clean up or audit requirements.
- Subdivision of the land into superlots or to realign property boundaries, or create a road, or to create or remove easements.

Before granting a permit the responsible authority must be satisfied that the permit will not prejudice the future use and development of the land in an integrated manner.

## 3.0 Conditions and requirements for permits

19/06/2025
C284case

### Application requirements

An application to subdivide or develop the land must be accompanied by the following information, as appropriate:

- A subdivision plan.
- A development staging plan
- An Aboriginal cultural heritage assessment/archaeological survey.
- An environmental assessment prepared by an appropriately qualified person(s) that identifies any areas of environmental significance on the land.
- An arboricultural assessment of any significant native vegetation on the land.

The responsible authority may waive the need to provide any of the information detailed above that is not relevant to a particular application.

### Development requirements

A permit for the subdivision or development of land must ensure that:

- Appropriate landscape buffers or edges are provided, as shown or specified in the development plan.
- Where residential uses are proposed, there is a mix of lot sizes as shown or specified in the development plan.
- New roads are designed having regard to the standard cross sections in the *Engineering Design and Construction Manual for Subdivision in Growth Areas* and *Engineering Design and Construction Manual Standard Drawing Index*.
- Pedestrian paths are provided within new public open space areas.
- Any public land that is created is appropriately landscaped.

## 4.0 Requirements for development plan

19/06/2025
C284case

The development plan must be prepared for the whole site, and should:

- Where residential uses are proposed, provide a range of dwelling types to cater for a variety of housing needs.
- Where non-residential uses are proposed, provide details of the nature of proposed use.
- Incorporate any proposed non-residential uses along Box Street to the south of the site.
- Incorporate sustainable design features to address water and waste management, solar access and energy saving initiatives, to deliver lower living costs for future residents.
- Create a composition of varied building forms and heights across the site.
- Provide for a high quality of internal amenity for future residents.
- Respect the amenity of adjoining interfaces for providing for a maximum of 2 storey built form adjacent to or opposite any existing single story residential development.
- Any taller buildings across the balance of the site should be carefully graduated with reference to analysis of shadow, visual amenity impacts and the character of the area.
- Apply appropriate buffer treatments at the interface with any non-residential uses on adjoining properties.
- Create a positive interface to adjacent public open space giving appropriate consideration to issues of safety and surveillance.
- Identify the location of any public open space and locate open space adjacent to pedestrian/cycle pathways.
- Create opportunities for improved local permeability through provision of new pedestrian/cycle pathways and a new local street network that links to the existing networks and includes a north south road link with a connection to Ficifolia Drive.
- Incorporate any significant native vegetation into the design of the development including maintaining the long term, sustainable health and condition of existing vegetation.
- Ensure the layout and design of development avoids the 'dripline' of any retained River Red Gum trees.

### Development plan components

The development plan must include the following information:

- Existing conditions plan, showing surrounding land uses and development, adjoining roads and pedestrian links, public transport routes, topography, and infrastructure provision.
- Concept plans for the site which show:
  - New building orientation and location, indicative uses for each building, car parking areas, public roads, vehicle access locations, pedestrian and bike paths and areas and locations of private and public open space;
  - Three-dimensional building envelope plans including maximum building heights and setbacks.
  - The design philosophy for the site and indicative architectural themes including car parking areas and garages so that they do not dominate the street or any public open space.
  - Shadow diagrams of proposed building envelope conditions at 10.00am, 1.00pm and 3.00pm at 22 September.
- An indicative development schedule including the minimum number, type and density of dwellings and the floor area of any proposed non-residential uses.

- A traffic management report and car parking plan, which includes:
  - Identification of roads, pedestrian, cyclist and vehicle access locations, including parking areas, both internal and external to the site.
  - Any traffic management measures, where required.
  - Location and linkages to public transport.
  - Car parking rates for all uses, including visitor parking.
  - Provision for bicycle facilities.
- A landscaping plan which shows:
  - The landscape concept for the site.
- An Environmentally Sustainable Design (ESD) statement which includes:
  - Proposed initiatives that demonstrate sustainable design features not limited to energy and greenhouse gas emissions reduction, integrated water management, waste and materials, and achievement towards best practice ESD.

The development plan for any part of the development area or for any stage of development may be amended from time to time to the satisfaction of the responsible authority.

### Display of development plan

Before deciding to approve a development plan, the responsible authority must display the plan for public comment.

Notice of the development plan must be given to the owners and occupiers of adjoining land.

A development plan must be displayed or further information required within 28 days after the plan is received by the responsible authority. The plan must be displayed within 14 days of satisfactory further information being received.

The development plan must be displayed for at least 14 days but no longer than 28 days.

### Decision guidelines

Before deciding whether a development plan, or amendment to a development plan, is satisfactory, the responsible authority must consider:

- The provisions of this planning scheme including relevant local policies and the objectives set out in Clauses 54 and 55 of the scheme.
- The orderly development of land including management of traffic, car parking, the provision of pedestrian ways and open space.
- The overall objective for the land to achieve an integrated medium density residential development offering a choice and diversity of housing opportunities and types, appropriate to its setting and achieving a high quality of amenity and urban design.

02/12/2022
C259case

# SCHEDULE 22 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO22**.

**COLLISON ESTATE**

## 1.0 Objectives

02/12/2022
C259case

None specified.

## 2.0 Requirement before a permit is granted

12/09/2025
C286case

None specified.

## 3.0 Conditions and requirements for permits

12/09/2025
C286case

### Application requirements

An application to subdivide or develop the land must be accompanied by the following information, as appropriate:

- A site analysis plan.
- The proposed subdivision layout for the development.
- An assessment demonstrating that the proposal is generally in accordance with the approved development plan.
- A Cultural Heritage Management Plan if required by the *Aboriginal Heritage Act 2006*.
- An environmental assessment prepared by an appropriately qualified person(s) that identifies any areas of environmental significance on the land.
- An arboricultural assessment of any significant native vegetation on the land.

The responsible authority may waive the need to provide any of the information detailed above that is not relevant to a particular application.

### Development requirements

A permit for the subdivision or development of land must ensure that:

- Appropriate landscape buffers or edges are provided, as shown or specified in the development plan.
- Where residential uses are proposed, there is a mix of lot sizes as shown or specified in the development plan.
- Any land required for drainage purposes must be transferred to the drainage authority or municipal council at no cost and will not be credited as public open space.
- New roads are designed having regard to the standard cross sections in the *Engineering Design and Construction Manual for Subdivision in Growth Areas* and *Engineering Design and Construction Manual Standard Drawing Index*.
- Pedestrian paths are provided within new public open space areas.
- Any public land that is created is appropriately landscaped.

## 4.0 Requirements for development plan

12/09/2025
C286case

A development plan should:

- Where residential uses are proposed, provide a range of dwelling types to cater for a variety of housing needs.

- Where non-residential uses are proposed, provide details of the nature of proposed use.
- Incorporate sustainable design features to address water and waste management, solar access and energy saving initiatives, to deliver lower living costs for future residents.
- Create a composition of varied building forms and heights across the site.
- Provide for a high level of internal amenity for future residents.
- Respect the amenity of adjoining interfaces both outside the development plan area, areas of individual stages, by providing for a maximum of 2 storey built form adjacent to or opposite any existing single story residential development.
- Any taller buildings across the balance of the site should be graduated with reference to analysis of shadow, visual amenity impacts and the character of the area.
- Apply appropriate buffer treatments at the interface with any non-residential uses on adjoining properties.
- Create a positive interface to adjacent public open space giving appropriate consideration to issues of safety and surveillance.
- Identify the location of any public open space and locate open space adjacent to pedestrian/cycle pathways.
- Create opportunities for improved access through provision of new pedestrian/cycle pathways and street network that links to the existing networks.
- Incorporate any significant native vegetation into the design of the development including maintaining the long term, sustainable health and condition of existing vegetation.
- Ensure that electricity and telecommunications infrastructure (excluding satellite dishes and mobile phone towers) are placed underground.

**Development plan components**

The development plan must include the following information:

- An indicative development schedule including the minimum number, type and density of dwellings and the floor area of any proposed non-residential uses.
- A landscape concept plan for the site.
- An Environmentally Sustainable Design (ESD) statement which includes:
  - Proposed initiatives that demonstrate sustainable design features not limited to energy and greenhouse gas emissions reduction, integrated water management, waste and materials, and achievement towards best practice ESD.
- A traffic management report and car parking plan, which includes:
  - Identification of roads, pedestrian, cyclist and vehicle access locations, including parking areas, both internal and external to the site.
  - Any traffic management measures, where required.
  - Location and linkages to public transport.
  - Car parking rates for all uses, including visitor parking.
  - Provision for bicycle facilities.

The following background reports must be produced to inform the development plan:

- An existing conditions plan identifying current land uses, ownership and tenure and subdivision patterns, surrounding land uses and development, adjoining roads and pedestrian links, public transport routes, topography, and infrastructure provision.

- An assessment against State and local planning policy and strategic frameworks.
- An Aboriginal cultural heritage assessment/archaeological survey.
- An arboricultural assessment of any significant native vegetation on the land.
- A biodiversity assessment identifying native vegetation and threatened species of flora and fauna.
- An environmental report identifying environmental quality, contamination and uses with adverse amenity potential.
- A hydraulic report that identifies existing drainage and groundwater conditions, flow paths, flood extents, flood levels and velocities for existing and proposed conditions.
- A geomorphological study of the land topography and stability.
- A landscape assessment identifying visual setting, features, quality, character, views and vistas.
- A post-contact heritage assessment.
- A social assessment of current and projected housing needs.
- A review of existing and proposed community facilities, services and local and regional infrastructure.
- A passive and active open space needs assessment.
- A transport assessment of existing and proposed roads, public transport routes and interchanges and pedestrian and bicycle paths.
- A utilities capacity assessment including existing and proposed water, sewerage, electricity, gas and telecommunications infrastructure and services.

The development plan for any part of the development area or for any stage of development may be amended from time to time to the satisfaction of the responsible authority.

11/06/2020
C265case

# SCHEDULE 3 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO3**.

**BOTANIC RIDGE AREA - BROWNS ROAD, CRANBOURNE SOUTH**

## 1.0 Objectives

11/06/2020
C265case

None specified.

## 2.0 Requirement before a permit is granted

11/06/2020
C265case

None specified.

## 3.0 Conditions and requirements for permits

11/06/2020
C265case

In relation to Precinct 1 and Precinct 2 shown on Map 1 to this schedule:

### Access

Before the issue of a Statement of Compliance for the subdivision of land the following requirements must be met:

- Access roads must be constructed to a standard so that they are accessible in all weather conditions and capable of accommodating a vehicle of 15 tonnes for the trafficable road width.
- The average grade of a road must be no more than 1 in 7 (14.4 per cent) (8.1 degrees) with a maximum of no more than 1 in 5 (20 per cent) (11.3 degrees) for no more than 50 metres and dips must have no more than a 1 in 8 (12 per cent) (7.1 degree) entry and exit angle.
- Constructed dead-end roads more than 60 metres in length from the nearest intersection must have a turning circle with a minimum radius of 8 metres (including roll-over kerbs when kerbs are provided)
- Constructed roads must provide a minimum trafficable width of 3.5 metres, be clear of encroachments 4 metres vertically and have no obstructions within 0.5 metres either side of the formed width of the road.

### Water supply

Operable hydrants, above or below ground must be provided.

The maximum distance between these hydrants and the rear of all building envelopes (or in the absence of the building envelope, the rear of all lots) must be 120 metres and hydrants must be no more than 200 m apart.

Hydrants must be identified as specified in 'Identification of Street Hydrants for Firefighting purposes' available under publications on the Country Fire Authority web site (www.cfa.vic.gov.au).

In relation to Precinct 1 shown on Map 1 to this schedule:

Any permit for a subdivision which creates an additional lot should include a condition that requires:

- A lot size for the subdivision that appropriately reflects the low density residential character envisaged within the viewshed west of the electricity easement.
- Generally a width of about 35 metres for any lot that is adjacent to either Pearcedale Road or Browns Road in Cranbourne South or to reserves along these roads.
- The owner should enter into an agreement under section 173 of the Act to the satisfaction of the responsible authority to provide for:
  - The upgrade of Browns Road to a sealed (7.0 metres) rural standard road, with the work to relate only to the unsealed section.

- A contribution to the cost of intersection works (e.g. Pearcedale Road / Cranbourne Frankston Road).
- Traffic management works (including land acquisition costs if required, eg. at intersection of Browns Road and Pearcedale Road) and turn lanes as required.
- Enhanced setbacks and street lighting on Pearcedale Road (east side) and Browns Road (north side) in accordance with the responsible authority's objectives for the area.
- The landscaping of all roads (including the east side of Pearcedale Road and the north side of Browns Road) to the satisfaction of the responsible authority and in accordance with the responsible authority's objectives for the area.
- The landscaping of all public open space areas in accordance with the responsible authority's objectives for the area, including the provision of playgrounds.
- A contribution on a proportional basis to a community facility.
- A contribution on a proportional basis to an ongoing environmental education program, including the employment of an environmental officer. In addition, in the short term, up to five years from the development of the first dwellings, an environmental officer be directly funded by the developer for approximately one day a week.
- The contribution for the community facility and the environmental education program to be equal to $450 per lot.
- The owner to gain agreement from Melbourne Water for the ongoing management of wetland areas.

Any other relevant requirements.

In relation to Precinct 2 shown on Map 1 contained in this schedule:

- Before a permit is granted, the existing Section 173 Agreement (reference AC755822E registered on 23 March 2004) must be amended in relation to the land comprising Precinct 2 in accordance with the requirements set out in the Planning and Environment Act 1987 to remove:
  - The lot cap of 950 total lots within Section B as shown on the Lot Yield Plan at Schedule 5 to the existing Section 173 Agreement; and,
  - The 1,000 square metres average lot size from applying within Precinct 2 as shown on Map 1 contained in this Schedule.
- Subject to the Bushfire Management Area Provisions set out in this schedule, the landscaping of all roads and public open space areas must be to the satisfaction of the responsible authority. The Cranbourne Gardens must be consulted in the preparation of the landscape plan for the public open space areas for the purpose of promoting the ecological, landscape and amenity objectives of the Cranbourne Gardens, as relevant, to bushfire management issues.
- Any permit for a subdivision which creates an additional lot should include a condition that requires:
  - The landscaping of all public open space areas in accordance with the responsible authority's objectives for the area, including the provision of playgrounds.
  - The owner to enter into an agreement under Section 173 of the Act to the satisfaction of the responsible authority to provide for:
    - A payment to the City of Casey of $900 per residential lot within Precinct 2 for community infrastructure;
    - An additional payment to the City of Casey in relation to each of the approved lots within Precinct 1 that increases their contribution from $450 to $900 per lot for community infrastructure; and

- Payment to the City of Casey of $14,000 (indexed against CPI from September 2013) in relation to each additional residential lot (over and above the 950 lot cap shown on the Lot Yield Plan at Schedule 5 to the existing Section 173 Agreement) created within Precinct 2 to be applied towards the cost of public development infrastructure.

### Bushfire Management Area Provisions

Any subdivision creating a residential lot within the Bushfire Management Area (as shown on Map 2) must meet the following requirements:

### Layout

- Incorporate an area of open space abutting the southern boundary of the Cranbourne Gardens between the western edge of the Smiths Lane road reserve and the electricity easement with a minimum depth taken from the property boundary of the Gardens of 70 metres including the perimeter road to provide a buffer between the Cranbourne Gardens and residential lots. The public open space must be shown on a landscape plan that is submitted to and approved by the responsible authority and the relevant fire authority prior to the issue of a Statement of Compliance. The plan must:
  - Demonstrate how the open space will be designed for the purpose of providing defendable space (and may include shared paths and occasional park furniture); and
  - How the open space will be managed and maintained for the purpose of providing defendable space; and
  - Be incorporated directly or indirectly into the Council's Municipal Fire Prevention Plan.
  - When approved, the plans will be endorsed and then form part of the permit.
  - Incorporate a perimeter road along the southern edge of this open space area.

### Defendable space (private land)

- The owner must enter into an agreement under section 173 of the Act to the satisfaction of the responsible authority to provide for notification to the owner of the lot on which the agreement is registered that:
  - The Cranbourne Gardens is a potential bushfire hazard; and
  - Any vegetation on the lot should be managed for the purpose of providing defendable space; and
  - Guidance on defendable space can be obtained from the relevant fire authority.

This agreement must be registered on the title.

The preparation and execution of the agreement must be at no cost to the responsible authority.

### Guidelines

- Trees in streets and public spaces should be species capable of being pruned and managed to achieve clean trunks and raised canopies 4m or more from the ground at maturity.
- Ground level and shrub planting that is combined with street tree planting should generally be restricted to species with mature heights not more than 1 metre unless otherwise shown on cross-sections.
- Subdivision design should be informed by:
  - "CFA Guidelines for Water Supplies and Access for Subdivisions in Residential 1, 2 and Township Zones" - available under Publications on the CFA website (www.cfa.vic.gov.au),
  - "Landscaping for Bushfire – Garden Design and Plant Selection", CFA, November 2011

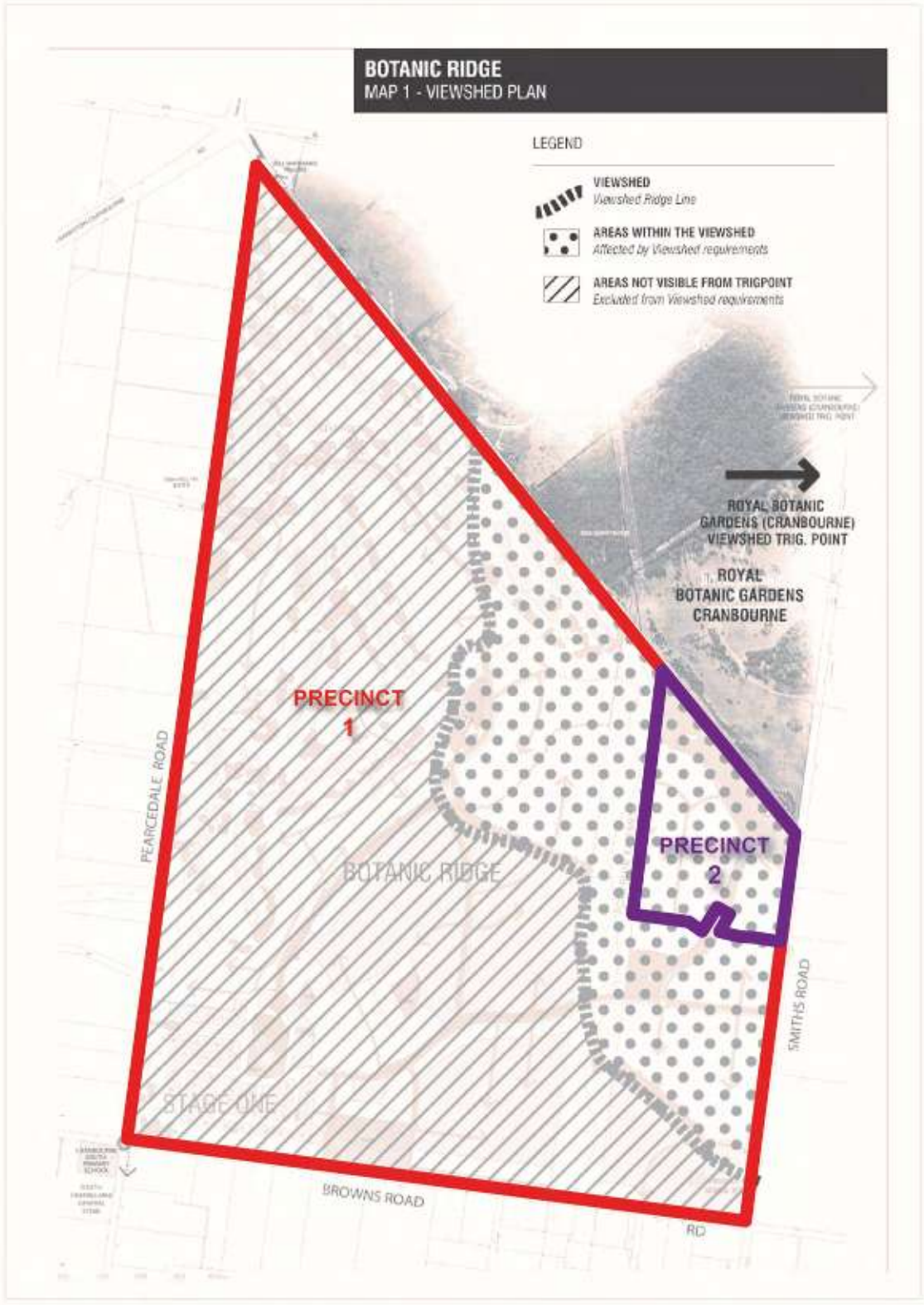
- "Planning for Bushfire Victoria – Guidelines for meeting Victoria's Bushfire Planning Requirement", CFA, November 2012
- "Municipal Council Neighbourhood Safer Places Plan" (Municipal Association of Victoria 2010).

## 4.0 Requirements for development plan

11/06/2020
C265case

- A maximum of 1450 lots within Precinct 1.
- An average lot size of between 550 and 650 square metres for all residential lots within Precinct 2.
- Any lot that is adjacent to either Pearcedale Road or Browns Road in Cranbourne South or to reserves along these roads is to generally have a width of 35 metres to the satisfaction of the responsible authority.
- Any lot that is adjacent to either Pearcedale Road or Browns Road in Cranbourne South or to reserves along these roads is to generally have a minimum setback for buildings and works of 20 metres from the lot boundary that is closest to Pearcedale Road or Browns Road to the satisfaction of the Responsible authority. The owner should enter into an agreement under section 173 of the Act to place this requirement on the title of affected lots.

## Map 1 to Schedule 3 to Clause 43.04



## Map 2 to Schedule 3 to Clause 43.04



11/06/2020
C265case

# SCHEDULE 15 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO15**.

**RESIDENTIAL REDEVELOPMENT AREAS**

## 1.0 Objectives

11/06/2020
C265case

None specified.

## 2.0 Requirement before a permit is granted

11/06/2020
C265case

A permit may be granted to use or subdivide land, construct a building or construct or carry out works before a development plan has been prepared provided the use, subdivision or development does not prejudice the future use and development of the land as envisaged by the Local Planning Policy Framework or any relevant strategic plan prepared and adopted by the Minister, public authority or municipal council for that area.

## 3.0 Conditions and requirements for permits

19/06/2025
C284case

### Application requirements

All applications for the use and development of land must be accompanied by the following information, to the satisfaction of the responsible authority:

- A land use budget that defines the range and location of uses proposed.
- A public open space budget that defines the amount and location of proposed public open space.
- A development staging plan.
- An Aboriginal cultural heritage assessment/archaeological survey.
- An environmental assessment prepared by an appropriately qualified person(s) that identifies any areas of environmental significance on the land.

The responsible authority may waive the need to provide any of the information detailed above that is not relevant to a particular application.

### Development requirements

A permit for the subdivision or development of land must ensure that:

- wherever practicable, public land is fronted by housing;
- appropriate landscape buffers or edges are provided, as shown or specified in the development plan;
- on sites greater than one hectare, there is a mix of lot sizes as shown or specified in the development plan;
- new roads are designed having regard to the Casey Standard Drawings;
- pedestrian paths and bicycle lanes within road reserves are provided having regard to the Casey Standard Drawings;
- pedestrian paths are provided within new public open space areas;
- any public land that is created is appropriately landscaped;
- tree planting to key roads is provided having regard to the Casey Arterial Roads Tree Strategy;
- dual plumbing systems are introduced into the design of subdivisions over 250 lots;
- there is pedestrian connectivity between activity centres, learning centres, community places and parkland, having regard to the Neighbourhood Principles contained in *Melbourne 2030: Planning for sustainable growth* (Department of Infrastructure, October 2002);

- soil erosion control measures are employed throughout the construction stage of the subdivision and/or development;
- electricity and telecommunications infrastructure (excluding satellite dishes and mobile phone towers) are placed underground;
- for a staged subdivision, a progressive total for the provision of public open space must be submitted to, and approved by, the responsible authority;
- any tree planting zones identified in the development plan are planted with trees, including large canopy trees, in accordance with a landscape plan approved by the responsible authority;
- areas of environmental significance identified by an environmental assessment are protected and managed (including during any construction phase), in accordance with a management plan approved by the responsible authority.

## 4.0 Requirements for development plan

19/06/2025
C284case

The development plan must be generally in accordance with the *Fountain Gate-Narre Warren CBD Structure Plan* (City of Casey, 2018).

A development plan must include the following to the satisfaction of the responsible authority:

- Increased housing densities to take advantage of access to the Narre Warren Railway Station;
- A variety of housing choices;
- Development that takes advantage of the amenity of the Hallam Valley Floodplain;
- The general subdivisional layout and design, including:
  - a land use budget that defines the range and location of uses proposed;
  - a public open space budget that defines the amount and location of proposed public open space;
  - community places;
  - buffer areas between sensitive land uses and those uses with the potential to have an adverse impact on the amenity of those sensitive land uses;
  - urban and landscape design principles;
  - connections to the arterial and local road network;
  - public transport planning and design;
  - pedestrian connectivity;
  - entrance features;
  - major easements;
  - identification of any areas of environmental significance;
  - development sequencing;
- Surface water management measure, having regard to the *City of Casey Stormwater Management Plan* (City of Casey, 2004).

11/06/2020
C265case

# SCHEDULE 17 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO17.**

**COMMERCIAL DEVELOPMENT - 55 KANGAN DRIVE, BERWICK**

## 1.0 Objectives

11/06/2020
C265case

None specified.

## 2.0 Requirement before a permit is granted

11/06/2020
C265case

A permit may be granted to use or subdivide land, construct a building or construct or carry out works before a development plan has been prepared provided the use, subdivision or development does not prejudice the future use and development of the land as envisaged by the Local Planning Policy Framework or any relevant strategic plan prepared and adopted by the Minister, public authority or municipal council for that area.

## 3.0 Conditions and requirements for permits

19/06/2025
C284case

### Application requirements

The following information must be provided with any permit application, as appropriate:

- A development report that demonstrates how the proposal meets the following:
  - The relevant objectives and strategies of the Municipal Planning Strategy and Planning Policy Framework, including the Activity Centres and Centres Hierarchy policy at Clause 11.03-1L.
  - The designation of land on the Casey Established Area 3 - Berwick Plan in Clause 02.04-7.
  - The approved development plan.
- Details of proposed buildings and works, including:
  - Details of the use and development of surrounding land and any inter-relationship with the subject land.
  - Details of the location, height, dimensions, elevation, floor area and setbacks of all buildings and works.
  - Details of the external finishes and design of all buildings and works, including the colours and details of materials to be used for external walls.
  - The proposed uses within all buildings.
  - The layout and treatment of all vehicle and pedestrian routes and access points to and from the land.
  - The location and layout of all car parking areas, including proposed disabled spaces and bicycle parking areas.
  - The location of public transport facilities, access to them and passenger facilities.
  - Details of site drainage, including the nature and location of litter retention systems and measures and trapping devices, pollutant reduction effectiveness, flow attenuation measures and identification of the flows within the site estimated to occur as a result of a 1-in-100-year storm event.
  - Provision for loading and unloading facilities of vehicles and means of access to them.
  - Details of the location of waste collection, storage and removal facilities and areas.

  - The stages, if any, in which the land is to be developed.
  - Measures to facilitate accessibility to and within the site for the elderly and disabled.
- A traffic report, prepared by a suitably qualified person, that addresses, among other things:
  - Traffic management and control works in adjoining and nearby roads when the development or any stage of the development is completed;
  - The means of vehicular ingress and egress to the existing arterial and/or local road network;
  - The means of internal circulation, including details of any internal access roads;
  - The timing of proposed traffic works relative to the staging of the development; and
  - Public transport arrangements and access routes.
- For proposals greater than 5,000 square metres of gross floor area, a public transport plan that demonstrates how the proposal seeks to enhance the opportunities for increased public transport usage, addressing:
  - Any modifications or additions to infrastructure required for service provision;
  - Pedestrian accessibility, including weather protection and safety measures; and,
  - Commuter information.
- A landscape plan that shows, in relation to the proposed development:
  - The provision of appropriate landscape buffers;
  - Traffic management and control works in adjoining and nearby roads to be completed by the time the development or any stage of the development is completed;
  - The treatment of car parking areas, including any roof top and decked parking areas;
  - The provision of any outdoor areas for use by staff and customers;
  - All other proposed landscaping on the land;
  - Any landscaping proposed for streets, roads and public areas, including pedestrian and cycle paths;
  - A staging strategy for the implementation of landscape works, including a detailed planting schedule and an ongoing management strategy; and,
  - Any water sensitive urban design (WSUD) measures proposed for the development.
- The landscape plan must take into account the effects of shadowing on neighbouring areas.

**Development requirements**

A permit for the subdivision or development of land must ensure that:

- Appropriate landscape buffers or edges are provided, as shown or specified in the development plan;
- New roads are designed having regard to the Casey Standard Drawings;
- Pedestrian paths and bicycle lanes within road reserves are provided having regard to the Casey Standard Drawings;
- Pedestrian paths are provided within new public open space areas;
- Any public land that is created is appropriately landscaped;
- Tree planting to key roads is provided having regard to the City of Casey Arterial Roads Tree Strategy (City of Casey, 2003);

- There is pedestrian connectivity in the form of a pedestrian crossing between the subject land and hospital, having regard to neighbourhood principles ;
- Electricity and telecommunication infrastructure (excluding satellite dishes and mobile phone facilities) are placed underground; and,
- Any tree planting zones identified in the development plan are planted with trees, including large canopy trees, in accordance with a landscape plan approved by the responsible authority.

### Permit conditions

All permits to construct a building or construct or carry out works must include the following requirement as a condition:

A management plan must be prepared to the satisfaction of the responsible authority that provides for:

- The proposed hours of construction of buildings and works;
- Measures to minimise and control noise from construction works;
- Measures to minimise the impact of construction vehicles arriving at and departing from the land;
- Measures to minimise the off-site effect of external lighting;
- Measures to minimise the creation of conditions liable to be a nuisance;
- Measures to minimise the impact of noise and traffic upon local amenity;
- Measures to minimise the impact upon local amenity of operations such as waste collection, vehicle loading and unloading times, management and maintenance of car parking areas, and collection and control of shopping trolleys (where relevant);
- The operation of waste collection;
- Site sediment control;
- Litter management; and,
- Any other matters the responsible authority may reasonably require.

## 4.0 Requirements for development plan

19/06/2025
C284case

A development plan must provide the following requirements:

- An explanation of the strategic directions and planning principles of the proposal, addressing:
  - The urban design outcomes sought, including built form, streetscape, land use, ecologically sustainable development, social and civic/public space, safety and accessibility and liveability;
  - The activity outcomes sought;
  - How it is proposed to achieve a diversity of land uses;
  - The integration of the centre with surrounding areas;
  - General constraints and opportunities;
  - The role and composition of the public transport network;
  - The key elements of the public realm, with particular emphasis on its legibility and usability;
  - The integration and maximisation of pedestrian, bicycle and vehicular accessibility as part of the road network.
- A physical framework plan that identifies the main elements of the development plan and shows:

  - The relationship between activities, including the type and location of major and minor tenancies;
  - The location of the internal and external pedestrian system and public space, including the purpose of each space (e.g. play, social/family recreation, sport, visual amenity, etc.) and the setting (e.g. paved area, open parkland etc.);
  - The location of active street frontage areas where an 'active street frontage' is defined as a frontage that provides access, egress and views to and from internal active areas so as to enhance the public realm and provide a sense of comfort and safety;
  - The road network and car parking system, including the designation of a road hierarchy, where appropriate, intersection requirements and the cross-section of all roads;
  - General landscaping principles, including recommendations for street furniture, the location of public transport infrastructure and the identification of bus routes, both existing and proposed;
  - The general built form/massing; and
  - An indication of how the activity system, pedestrian network, transport guidelines, open space network and urban design elements relate to adjacent areas outside the land covered by the development plan.
- A staging plan, where relevant, that shows the sequence of major development on the land.
- The identification of floorspace used, and proposed to be used, for retail purposes.

20/05/2021
C231case

## SCHEDULE 24 TO CLAUSE 43.04 DEVELOPMENT PLAN OVERLAY

Shown on the planning scheme map as **DPO24**.

**MANUKA ROAD, PRECINCT**

## 1.0 Objectives

20/05/2021
C231case

To ensure that the development of the land establishes high quality housing with density and lot sizes that are generally compatible with the surrounding residential areas, has proper regard to the nearby Cardinia Creek Parklands and provides heritage and environmental conservation outcomes.

To recognise the predominant residential character of surrounding areas that includes tall, mature trees in private gardens and along road reserves.

## 2.0 Requirement before a permit is granted

20/05/2021
C231case

A permit may be granted to use land, construct a building or construct or carry out works before a development plan has been prepared provided it can be demonstrated that the use or development does not prejudice the future use and development of the land in an integrated manner, as set out in this schedule.

## 3.0 Conditions and requirements for permits

05/05/2026
VC248

The following conditions and/or requirements apply to permits:

***General***

- The subdivision layout and building envelopes must ensure that residential lots front public land. For the purpose of this requirement, public land includes all existing and proposed roads (including arterial roads), parkland, drainage reserves, and any easements that are available for public use (including the Melbourne Water pipetrack).
- Pedestrian and vehicular connectivity must be legible and permeable throughout the site and with external linkages.
- Areas of identified environmental and heritage significance must be protected and managed, including during the construction phase to the satisfaction of the responsible authority.
- Existing indigenous trees and shrubs must be retained, where possible, and incorporated into public open space.
- Existing trees of high arboricultural and/or ecological value should be retained where practical.
- New buildings and works must be designed to ensure they do not dominate the treed landscape character of the area.
- New development must provide opportunities for additional trees and screen planting to enhance the treed character of the area.
- During construction, clean imported fill and topsoil must be used to avoid encroachment of weeds into retained areas of native vegetation.
- Appropriate public access throughout the site must be provided to avoid a ‘gated’ residential area.
- New points of road access must to be restricted to one access point on Manuka Road and one access point on Allan Street. Any other access point to the land must be removed upon development of the site, unless otherwise agreed by the responsible authority or required for fire access purposes.
- A centrally located passive open space reserve must be provided.
- Lots that share an interface with a heritage site (HO49 and HO50), where not separated by a road, must provide semi-permeable fencing (minimum 50 per cent permeability) or demonstrate

other means, including vegetation, that will be implemented to retain a visual connection to the heritage place from the public realm.

- Any other matters set out in the approved development plan.

***Stormwater management***

- Land required for drainage purposes must be transferred to the drainage authority or municipal council at no cost, such land not to be credited as public open space.
- All land transferred to or vested in the municipal council under this requirement must be developed and landscaped in accordance with any approved landscape plan to the satisfaction of the responsible authority.

***Water infrastructure***

- Operable hydrants must be provided in accordance with the requirements of the relevant fire authority and Clause 56.09-3 of this scheme.
- If recycled water has been, or is to be, made available to the land, the owner must enter into an agreement with the relevant water authority requiring the subdivision to be reticulated/serviced with a 'third-pipe system' for the supply of treated waste water to all new lots and public open space (to enable the irrigation of parkland) from the Eastern Irrigation Scheme, or similar scheme.

***Road design and construction standards***

- All public roads (including upgrades of any existing roads) must be provided and designed to the satisfaction of the responsible authority.
- Variations to the standards may be considered only to the extent that they can incorporate water sensitive urban design initiatives to the satisfaction of the responsible authority.
- Slow points must be installed on the local road network, which can be intersection treatments, deflection points, or other treatments or visual elements that indicate to motorists they are in a low-speed environment. The treatments will be determined by the responsible authority after consideration of the recommendations of an independent road safety audit.
- An internal perimeter road must be provided along the northern and eastern boundaries, and internal loop roads along Manuka Road and Allan Street, with appropriate reserves for landscaping and visitor parking adjacent to public open space.
- Appropriate intersection treatment must be provided for the new Manuka Road access road to the satisfaction of the responsible authority.
- Appropriate intersection treatment must be provided for the Manuka Road/Allan Street intersection to the satisfaction of the responsible authority.
- An upgrade of Allan Street to urban standards must be provided to the satisfaction of the responsible authority.

***Bicycle and pedestrian paths***

- Footpaths and shared use paths (for bicycles and pedestrians) must be provided, prior to the issue of a Statement of Compliance for any further subdivision of the land:
  - Of concrete with a minimum width of 2.5 metres.
  - The length of all linear public open space and key 'desire lines' through non-linear open space, also providing reasonable connections from the path to the surrounding streets and development.
  - Along the length of the site's frontage to external roads.
  - To connect externally to the other development in the area to avoid paths being isolated.

- Additional concrete and non-concrete footpaths and shared use paths may be approved in circumstances where a specific design objective warrants such provision.
- Footpaths on public land (including any laneway) must be provided, prior to the issue of a statement of compliance.

***Bushfire management***

Any subdivision creating a residential lot must meet the following requirements:

- All new lots must either include a building envelope that is capable of achieving a setback from a bushfire hazard to enable construction standard of BAL 12.5 (equivalent to a radiant heat exposure of 12.kilowatts/square metre) under AS 3959-2018 *Construction of Buildings in Bushfire-prone Areas* (Standards Australia, 2018) or be located a sufficient distance from the hazard vegetation that a building may be sited anywhere on the lot to achieve compliance with a BAL 12.5 construction standard.
- Any vegetation located in the setback between a future dwelling and a bushfire hazard must be managed in accordance with defendable space standards as per Table 4 of Clause 53.02.
- A perimeter road must be incorporated along the northern and eastern boundaries.
- Where a road forms part of the nominated defendable space area, it must be designed, landscaped and managed for the purpose of providing defendable space.
- Areas of public open space must provide a buffer between the identified bushfire hazard and any residential lots. The public open space must be shown on a landscape plan that is submitted to and approved by the responsible authority and the relevant fire authority prior to the issue of a statement of compliance. The plan must:
  - Demonstrate how the public open space will be designed for the purpose of providing defendable space (and may include shared paths and occasional park furniture).
  - Demonstrate how the open space will be managed and maintained for the purpose of providing defendable open space.
  - Be incorporated directly or indirectly into the council's *Municipal Fire Prevention Plan.*

    When approved the plan will be endorsed and then form part of the permit.

    The bushfire report prepared under section 4.0 of the schedule must be endorsed and form part of the permit.

## 4.0 Requirements for development plan

05/05/2026
VC248

A development plan must include the following requirements:

- Only one development plan for the entire area covered by this schedule.
- A local context and site analysis that shows:
  - Topography, vegetation and natural features.
  - Identification of any areas of environmental significance.
  - Existing easements including electricity transmission lines.
  - Adjacent land use and development patterns.
  - Existing and proposed open space, road, bicycle and pedestrian networks.
  - Areas that may be subject to contamination.
  - A bushfire report prepared by a suitably qualified person that:

    - Identifies the areas of bushfire hazard within 150 metres of the site, including classifiable vegetation and the slope, under AS 3959-2018 *Construction of Buildings in Bushfire-prone Areas* (Standards Australia, 2018).
    - Shows the required setbacks to building envelopes from any area of bushfire hazard to ensure a construction standard of BAL 12.5 can be met.
    - Shows the required areas of defendable space on private and public land.
    - Identifies the vegetation management requirements for areas of defendable space generally in accordance with Table 4 of Clause 53.02-5, with the exception of canopy tree separation that can be reduced to two metres.
    - Shows the location of public open space.
    - Shows the road layout and provision of a perimeter road on the northern and eastern boundaries.
  - An Aboriginal cultural heritage assessment or archaeological survey of the land prepared by a suitably qualified person.
  - A heritage report prepared by a suitably qualified person that includes the future urban design treatment of the residential interface with identified heritage elements.
  - A flora and fauna assessment prepared by a suitably qualified person;.
  - A landscape impact assessment to identify sensitive views to and from the land and interfaces with public parklands.
- An urban structure plan that responds to the local context and site analysis and identifies:
  - The key planning and design principles and infrastructure components of the development.
  - Lot layout and dimensions consistent with the existing subdivision pattern of the surrounding area and appropriate as transition lots on the urban edge.
  - The proposed lot layout, size and density, including building envelopes where appropriate.
  - The orientation of lots to maximise solar access.
  - Entrance features, where appropriate.
  - Shared path (pedestrians and cyclists) connections to adjacent community, recreational and educational facilities.
  - The preferred neighbourhood character, including building materials, articulation and heights.
  - The proposed treatment of site boundary interfaces, including the presentation of development to Manuka Road.
  - A centrally located passive open space reserve.
  - Strategies and permit requirements in response to areas identified in the bushfire report.
- A traffic impact assessment report prepared by a suitably qualified person that includes:
  - A detailed assessment of the expected traffic generation and traffic impacts associated with the development on the internal and external road network and any recommended works or measures within and external to the site.
  - An internal road layout and external road access.
  - Any recommendations of an independent traffic safety audit.
  - Details of road widths to ensure that all streets are designed to allow for service and emergency vehicles to appropriately manoeuvre.

  - Typical cross sections of internal roads indicating provision for pedestrians, tree planting and car parking.
  - An internal perimeter road along the northern and eastern boundaries and an internal loop along the western boundary with appropriate reserves for landscaping.
  - A cross section of the perimeter road to allow for appropriate parallel or indented parking adjacent to public open space.
  - The intersection treatment at Manuka Road, having regard to access to the school and community facilities on the western side of Manuka Road.
  - The intersection treatment at Allan Street/Manuka Road.
  - The upgrade of Allan Street to urban standards, to the satisfaction of the responsible authority.
  - The location of all pedestrian crossings on Manuka Road and Allan Street.
  - The proposed internal cycle and pedestrian path network and connection to the Casey Trail Network (shared user path and equestrian trails), including public access through the site.
  - The identification of visitor car parking within the proposed street network.
- A landscape concept plan that includes:
  - Design principles and a proposed species palette to complement existing landscaping in the surrounding area.
  - Landscaping concepts for public areas.
  - The identification of vegetation to be retained and removed based on an arborist's report and bushfire management requirements.
  - The designation of appropriate tree protection zones of trees to be retained.
  - limited understorey planting along road frontages to improve visual surveillance.
  - The retention of existing avenues of trees, where possible, to frame view lines.
  - A demonstration of how tree planting zones are to be established and managed on new residential lots, including details of species to be used, envelope requirements that enable viable setbacks from buildings, services and roads, and timing of tree planting and their ongoing management.
  - Demonstration how vegetation will be planted to minimise bushfire risk and create a low threat bushfire landscape in sympathy with defendable space principles.
- A servicing report that includes:
  - A drainage and servicing assessment indicating how all relevant flooding, drainage and water quality issues are to be addressed.
  - A report that details infrastructure that is to be provided as part of the development, including timing triggers, standards and funding.
  - Water sensitive urban design measures to improve the quality of water discharged into existing waterways.
- A development staging plan that identifies:
  - The stages, if any, in which the land is to be subdivided and developed.
  - A land use and public open space budget for each stage.
  - Dwelling density calculations for each stage.

# 44 LAND MANAGEMENT OVERLAYS

19/01/2006
VC37

# 44.04 LAND SUBJECT TO INUNDATION OVERLAY

06/09/2021
VC171

Shown on the planning scheme map as **LSIO** with a number (if shown).

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify flood prone land in a riverine or coastal area affected by the 1 in 100 (1 per cent Annual Exceedance Probability) year flood or any other area determined by the floodplain management authority.

To ensure that development maintains the free passage and temporary storage of floodwaters, minimises flood damage, responds to the flood hazard and local drainage conditions and will not cause any significant rise in flood level or flow velocity.

To minimise the potential flood risk to life, health and safety associated with development.

To reflect a declaration under Division 4 of Part 10 of the *Water Act, 1989*.

To protect water quality and waterways as natural resources by managing urban stormwater, protecting water supply catchment areas, and managing saline discharges to minimise the risks to the environmental quality of water and groundwater.

To ensure that development maintains or improves river, marine, coastal and wetland health, waterway protection and floodplain health.

## 44.04-1 Land subject to inundation objectives and statement of risk

24/01/2020
VC160

A schedule to this overlay may contain:

- Land subject to inundation management objectives to be achieved.
- A statement of risk.

## 44.04-2 Buildings and works

14/12/2023
VC253

A permit is required to construct a building or to construct or carry out works, including:

- A fence.
- Roadworks, if the water flow path is redirected or obstructed.
- Bicycle pathways and trails.
- Public toilets.
- A domestic swimming pool or spa and associated mechanical and safety equipment if associated with one dwelling on a lot.
- Rainwater tank with a capacity of not more than 10,000 litres.
- A pergola or verandah, including an open-sided pergola or verandah to a dwelling or a small second dwelling with a finished floor level not more than 800mm above ground level and a maximum building height of 3 metres above ground level.
- A deck, including a deck to a dwelling or a small second dwelling with a finished floor level not more than 800mm above ground level.
- A disabled access ramp.

This does not apply:

- If a schedule to this overlay specifically states that a permit is not required.
- To roadworks or bicycle paths and trails constructed or carried out by or on behalf of the Head, Transport for Victoria, to the satisfaction of the relevant floodplain management authority.

- To flood mitigation works carried out by the responsible authority or floodplain management authority.
- To the following works in accordance with plans prepared to the satisfaction of the responsible authority:
  - The laying of underground sewerage, water and gas mains, oil pipelines, underground telephone lines and underground power lines provided they do not alter the topography of the land.
  - The erection of telephone or power lines provided they do not involve the construction of towers or poles.
- To post and wire and post and rail fencing.

### 44.04-3 Subdivision

31/07/2018
VC148

A permit is required to subdivide land.

### 44.04-4 Application requirements

31/07/2018
VC148

An application must be accompanied by any information specified in a schedule to this overlay.

### 44.04-5 Local floodplain development plan

31/07/2018
VC148

If a local floodplain development plan has been developed for the area and has been incorporated into this scheme, an application must be consistent with the plan.

### 44.04-6 Exemption from notice and review

31/07/2018
VC148

An application under this overlay is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### 44.04-7 Referral of applications

31/07/2018
VC148

An application must be referred to the relevant floodplain management authority under Section 55 of the Act unless in the opinion of the responsible authority, the proposal satisfies requirements or conditions previously agreed in writing between the responsible authority and the floodplain management authority.

### 44.04-8 Decision guidelines

06/09/2021
VC171

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any local floodplain development plan.
- Any comments from the relevant floodplain management authority.
- The existing use and development of the land.
- Whether the proposed use or development could be located on flood-free land or land with a lesser flood hazard outside this overlay.
- Alternative design or flood proofing responses.
- The susceptibility of the development to flooding and flood damage.
- The potential flood risk to life, health and safety associated with the development. Flood risk factors to consider include:

  - The frequency, duration, extent, depth and velocity of flooding of the site and accessway.
  - The flood warning time available.
  - Tidal patterns.
  - Coastal inundation and erosion.
  - The danger to the occupants of the development, other floodplain residents and emergency personnel if the site or accessway is flooded.
- The effect of the development on redirecting or obstructing floodwater, stormwater or drainage water and the effect of the development on reducing flood storage and increasing flood levels and flow velocities.
- The effect of the development on river, marine and coastal health values including wetlands, natural habitat, stream stability, erosion, environmental flows, water quality, estuaries and sites of scientific significance.
- Any other matters specified in a schedule to this overlay.

02/12/2022
C259case

# SCHEDULE TO CLAUSE 44.04 LAND SUBJECT TO INUNDATION OVERLAY

Shown on the planning scheme map as **LSIO**.

## 1.0 Land subject to inundation objectives to be achieved

02/12/2022
C259case

None specified.

## 2.0 Statement of risk

02/12/2022
C259case

None specified.

## 3.0 Permit requirement

02/12/2022
C259case

A permit is not required to construct or carry out:

- A dwelling on a lot of 1,500 square metres or less in a General Residential Zone, Residential Growth Zone, Urban Growth Zone (where a precinct structure plan applies to the land) or Township Zone shown on a plan of subdivision registered after 8 February 2007.
- If in the Koo Wee Rup Flood Mitigation District:
  - a new dwelling and ancillary outbuildings, provided the floor levels are at least 600 millimetres and on a fill pad at least 150 millimetres above the flood level;
  - an extension to an existing dwelling, provided the proposed floor level is at or above the existing floor level;
  - where the depth of flooding at the site of the proposed development is no greater than 500 millimetres.
- Roadworks within the declared road boundary of the Princes Freeway, limited to routine repair and maintenance works, including resurfacing of the existing road, or any works agreed to in writing by the relevant Floodplain Management Authority.
- An extension to an existing dwelling, provided the floor level of the proposed extension is not less than the existing floor level and the gross floor area of the extension does not exceed 20 square metres.
- Works ancillary to an existing dwelling, including landscaping, a pergola, driveway, verandah, barbeques and water tank.
- An open building with no walls.
- An open-style fence.
- A tennis court at natural surface level with curtain fencing.
- A below-ground swimming pool.
- A non-habitable building or extension to a non-habitable building, with concrete floors, where floor levels are at least 300 millimetres above the flood level.
- A non-habitable building or extension to a non-habitable building, with dirt floors, where floor levels are at least 150 millimetres above the flood level.
- A footpath, bicycle path or elevated boardwalk, at 300 millimetres above the applicable flood level.
- A radio mast.
- Signs on posts or attached to buildings.
- Upper storey extensions or alterations to existing buildings.
- Replacement fences of the same materials as the existing fence.

- Aviaries and other enclosures for domestic animals.
- Agricultural and farm buildings with permanent openings, such as hay sheds, cattleyards, covered horse stables or yards.
- Earthworks associated with the construction of a dam, where no fill is imported to the site and where no embankment is above ground level.
- A picnic shelter.

## 4.0 Application requirements

02/12/2022
C259case

An application to construct a building or construct or carry out works must be accompanied by four sets of plans, drawn to scale, which show:

- The boundaries and dimensions of the site.
- Relevant ground levels, to Australian Height Datum, taken by or under the direction or supervision of a licensed land surveyor.
- The layout of existing and proposed buildings and works.
- Floor levels of any existing and proposed buildings, to Australian Height Datum, taken by a licensed surveyor.

## 5.0 Referral of Applications

An application to construct a building or construct or carry out works, or an application to amend a permit, does not have to be referred to the floodplain management authority if the application satisfies one of the following:

- Is accompanied by the relevant floodplain management authority's written approval, which must:
  - be granted not more than three months prior to lodging the application with the responsible authority;
  - quote the reference number of the approved plans; and
  - state the applicable flood level and any required floor levels.
- Is in accordance with an adopted local floodplain development plan.
- Complies with a building envelope, filling levels and floor levels specified by Melbourne Water in the previous six months.

## 6.0 Decision guidelines

02/12/2022
C259case

None specified.

## 44.05 SPECIAL BUILDING OVERLAY

01/07/2021
VC203

Shown on the planning scheme map as **SBO** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify land in urban areas liable to inundation by overland flows from the urban drainage system as determined by, or in consultation with, the floodplain management authority.

To ensure that development maintains the free passage and temporary storage of floodwaters, minimises flood damage, is compatible with the flood hazard and local drainage conditions and will not cause any significant rise in flood level or flow velocity.

To protect water quality and waterways as natural resources by managing urban stormwater, protecting water supply catchment areas, and managing saline discharges to minimise the risks to the environmental quality of water and groundwater.

### 44.05-1 Flooding management objectives and statement of risk

31/07/2018
VC148

A schedule to this overlay may contain:

- Flooding management objectives to be achieved.
- A statement of risk.

### 44.05-2 Buildings and works

16/10/2025
VC288

A permit is required to construct a building or to construct or carry out works, including:

- A fence.
- Roadworks, if the water flow path is redirected or obstructed.
- Bicycle pathways and trails.
- Public toilets.
- A domestic swimming pool or spa and associated mechanical and safety equipment if associated with one dwelling on a lot.
- A rainwater tank with a capacity of not more than 10,000 litres.
- A pergola or verandah, including an open-sided pergola or verandah to a dwelling or small second dwelling with a finished floor level not more than 800mm above ground level and a maximum building height of 3 metres above ground level.
- A deck, including a deck to a dwelling or small second dwelling with a finished floor level not more than 800mm above ground level.
- A disabled access ramp.

This does not apply:

- If a schedule to this overlay specifically states that a permit is not required.
- To roadworks or bicycle paths and trails constructed or carried out by or on behalf of the Head, Transport for Victoria, to the satisfaction of the relevant floodplain management authority.
- To flood mitigation works carried out by the responsible authority or floodplain management authority.
- To the following works in accordance with plans prepared to the satisfaction of the responsible authority:

  - The laying of underground sewerage, water and gas mains, oil pipelines, underground telephone lines and underground power lines provided they do not alter the topography of the land.
  - The erection of telephone or power lines provided they do not involve the construction of towers or poles designed to operate at more than 66,000 volts.

- To landscaping, driveways, vehicle cross overs, footpaths or bicycle paths if there is no significant change to existing surface levels, or if the relevant floodplain management authority has agreed in writing that the flowpath is not obstructed.
- To an extension of less than 20 square metres in floor area to an existing building (not including an out-building), where the floor levels are constructed to at least 300mm above the flood level or if the relevant floodplain management authority has agreed in writing that the flowpath is not obstructed.
- To an upper storey extension to an existing building.
- To an alteration to an existing building where the original building footprint remains the same and floor levels are constructed to at least 300mm above flood level.
- To an out-building (including replacement of an existing building) if the out-building is less than 10 square metres in floor area and constructed to at least 150mm above the flood level or the relevant floodplain management authority has agreed in writing that the flowpath is not obstructed.
- To a replacement building (not including an out-building) if it is constructed to at least 300mm above the flood level and the original building footprint remains the same. The responsible authority may require evidence of the existing building envelope.
- To fencing with at least 25% openings and with the plinth at least 300mm above the flood level.
- To a replacement fence in the same location and of the same type and materials as the existing fence.
- To a pergola or an open deck area with unenclosed foundations.
- To a carport constructed over an existing carspace.
- To an in-ground swimming pool and associated security fencing, where the perimeter edging of the pool is constructed at natural surface levels and excavated material is removed from the flowpath.
- To a tennis court at existing surface level with fencing designed to minimise obstruction to flows.
- To an aviary or other enclosure for a domestic animal if it is less than 10 square metres in floor area at ground level.
- To open sided verandahs, open sided picnic shelters, barbeques and park furniture (excluding playground equipment) if there is less than 30mm change to existing surface levels.
- To radio masts, light poles or signs on posts or attached to buildings.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Construct a building or construct or carry out works. | Clause 59.08 |

## 44.05-3 Subdivision

16/10/2025
VC288

A permit is required to subdivide land.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Provision |
|---|---|
| Any of the following classes of subdivision:<br>▪ Subdivide land to realign the common boundary between two lots where the area of either lot is reduced by less than 15 per cent and the general direction of the common boundary does not change.<br>▪ Subdivide land into lots each containing an existing building or car parking space where:<br>– The buildings or car parking spaces have been constructed in accordance with the provisions of this scheme or a permit issued under this scheme.<br>– An occupancy permit or a certificate of final inspection has been issued under the Building Regulations in relation to the buildings within five years prior to the application for a permit for subdivision.<br>▪ Subdivide land into two lots if:<br>– The construction of a building or the construction or carrying out of works on the land is approved under this scheme or by a permit issued under this scheme and the permit has not expired.<br>– The construction or carrying out of the approved building or works on the land has started lawfully.<br>– The subdivision does not create a vacant lot. | Clause 59.08 |
| Subdivide land into two lots if:<br>▪ A permit has been issued under a provision of a residential zone to construct up to two dwellings on the land and the permit has not expired.<br>▪ Each lot will contain either:<br>– one existing dwelling; or<br>– one dwelling permitted to be constructed in accordance with the permit. | Clause 59.08 |

## 44.05-4 Application requirements

31/07/2018
VC148

Unless otherwise agreed in writing by the relevant floodplain management authority, an application to construct a building or construct or carry out works must be accompanied by a site plan which shows, as appropriate:

- The boundaries and dimensions of the site.
- Relevant existing and proposed ground levels, to Australian Height Datum, taken by or under the direction or supervision of a licensed land surveyor.
- The layout, size and use of existing and proposed buildings and works, including vehicle parking areas.
- Floor levels of any existing and proposed buildings to Australian Height Datum.

- Cross sectional details of any basement entry ramps and other basement entries to Australian Height Datum, showing floor levels of entry and exit areas and drainage details.
- Any other application requirements specified in a schedule to this overlay.

**Local floodplain development plan**

If a local floodplain development plan has been developed for the area and has been incorporated into this scheme, an application must be consistent with the plan.

## 44.05-5 Exemption from notice and review

31/07/2018
VC148

An application under this overlay is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 44.05-6 Referral of applications

31/07/2018
VC148

An application must be referred to the relevant floodplain management authority under Section 55 of the Act unless in the opinion of the responsible authority, the proposal satisfies requirements or conditions previously agreed to in writing between the responsible authority and the floodplain management authority.

## 44.05-7 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any local floodplain development plan.
- Any comments from the relevant floodplain management authority.
- The existing use and development of the land.
- Whether the proposed use or development could be located on flood-free land or land with a lesser flood hazard outside this overlay.
- The susceptibility of the development to flooding and flood damage.
- Flood risk factors to consider include:
  - The frequency, duration, extent, depth and velocity of flooding of the site and accessway.
  - The flood warning time available.
  - The danger to the occupants of the development, other floodplain residents and emergency personnel if the site or accessway is flooded.
- The effect of the development on redirecting or obstructing floodwater, stormwater or drainage water and the effect of the development on reducing flood storage and increasing flood levels and flow velocities.
- Any other matters specified in a schedule to this overlay.

02/12/2022
C259case

# SCHEDULE TO CLAUSE 44.05 SPECIAL BUILDING OVERLAY

Shown on the planning scheme map as **SBO.**

## 1.0 Flooding management objectives to be achieved

02/12/2022
C259case

None specified.

## 2.0 Statement of risk

02/12/2022
C259case

None specified.

## 3.0 Permit requirement

02/12/2022
C259case

None specified.

## 4.0 Application requirements

02/12/2022
C259case

An application to construct a building or construct or carry out works must be accompanied by four sets of plans, drawn to scale, which show:

- The boundaries and dimensions of the site.
- Relevant ground levels, to Australian Height Datum, taken by or under the direction or supervision of a licensed land surveyor.
- The layout of existing and proposed buildings and works.
- Floor levels of any existing and proposed buildings, to Australian Height Datum, taken by a licensed surveyor

## 5.0 Referral of Applications

An application to construct a building or construct or carry out works, or an application to amend a permit, does not have to be referred to the floodplain management authority if the application satisfies one of the following:

- Is accompanied by the relevant floodplain management authority's written approval, which must:
  - be granted not more than three months prior to lodging the application with the responsible authority;
  - quote the reference number of the approved plans; and
  - state the applicable flood level and any required floor levels.
- Is in accordance with an adopted local floodplain development plan.
- Complies with a building envelope, filling levels and floor levels specified by Melbourne Water in the previous six months.

## 6.0 Decision guidelines

02/12/2022
C259case

None specified.

# 44.06 BUSHFIRE MANAGEMENT OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **BMO** with a number (if shown).

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To ensure that the development of land prioritises the protection of human life and strengthens community resilience to bushfire.

To identify areas where the bushfire hazard warrants bushfire protection measures to be implemented.

To ensure development is only permitted where the risk to life and property from bushfire can be reduced to an acceptable level.

## 44.06-1 Bushfire management objectives and application of schedules

19/09/2017
VC132

A schedule to this overlay must contain a statement of the bushfire management objectives to be achieved for the area affected by the schedule and when the requirements within it apply.

## 44.06-2 Permit requirement

05/05/2026
VC248

### Subdivision

A permit is required to subdivide land. This does not apply if a schedule to this overlay specifically states that a permit is not required.

### Buildings and works

A permit is required to construct a building or construct or carry out works associated with the following uses:

- Accommodation (including a moveable unit as defined under the *Housing Act 1983*)
- Education centre
- Hospital
- Industry
- Leisure and recreation
- Office
- Place of assembly
- Retail premises
- Service station
- Timber production
- Warehouse.

This does not apply to any of the following:

- If a schedule to this overlay specifically states that a permit is not required.
- A building or works consistent with an agreement under section 173 of the Act prepared in accordance with a condition of permit issued under the requirements of clause 44.06-5.
- An alteration or extension to an existing dwelling or small second dwelling provided the gross floor area of the building is not increased by more than 50 percent.
- A building or works with a floor area of less than 100 square metres not used for accommodation and ancillary to a dwelling.

- The construction or carrying out works associated with the use of land for an existing dwelling or small second dwelling, other than works associated with the construction of a building for which a permit is required under this clause or a vehicle accessway.
- An alteration or extension to an existing building (excluding a dwelling and a small second dwelling) provided the gross floor area is not increased by more than 10 percent.
- A building or works associated with Timber production provided the buildings or works are not within 150 metres of Accommodation or land zoned for residential or rural residential purposes.

## 44.06-3 Application requirements

05/05/2026
VC248

Unless a schedule to this overlay specifies different requirements, an application must be accompanied by:

- A **bushfire hazard site assessment** including a plan that describes the bushfire hazard within 150 metres of the proposed development. The description of the hazard must be prepared in accordance with Sections 2.2.3 to 2.2.5 of AS3959:2018 *Construction of buildings in bushfire prone areas* (Standards Australia) excluding paragraph (a) of section 2.2.3.2. Photographs or other techniques may be used to assist in describing the bushfire hazard.
- A **bushfire hazard landscape assessment** including a plan that describes the bushfire hazard of the general locality more than 150 metres from the site. Photographs or other techniques may be used to assist in describing the bushfire hazard. This requirement does not apply to a dwelling that includes all of the approved measures specified in clause 53.02-3.
- A **bushfire management statement** describing how the proposed development responds to the requirements in this clause and clause 53.02. If the application proposes an alternative measure, the bushfire management statement must explain how the alternative measure meets the relevant objective.
- A **bushfire management plan** showing the bushfire protection measures that are to be applied to the development.

If in the opinion of the responsible authority any part of these requirements is not relevant to the assessment of an application, the responsible authority may waive, vary or reduce the requirement.

## 44.06-4 Requirements of Clause 53.02

05/05/2026
VC248

An application must meet the requirements of clause 53.02 unless the application meets all of the requirements specified in a schedule to this overlay.

A schedule to this overlay may specify substitute approved measures, additional alternative measures and additional or substitute decision guidelines for the purposes of clause 53.02.

## 44.06-5 Mandatory condition

05/05/2026
VC248

### Subdivision

A permit which creates a lot for a single dwelling on land zoned for residential or rural residential purposes must include the following condition:

*"Before the statement of compliance is issued under the Subdivision Act 1988 the owner must enter into an agreement with the responsible authority under section 173 of the Planning and Environment Act 1987. The agreement must:*

- *State that it has been prepared for the purpose of an exemption from a planning permit under clause 44.06-2 of the [*insert name of applicable planning scheme] Planning Scheme.*

- *Incorporate the plan prepared in accordance with clause 53.02-4.4 of this planning scheme and approved under this permit.*
- *State that if a dwelling is constructed on the land without a planning permit that the bushfire protection measures set out in the plan incorporated into the agreement must be implemented and maintained to the satisfaction of the responsible authority on a continuing basis.*

*The land owner must pay the reasonable costs of the preparation, execution and registration of the section 173 Agreement."*

This does not apply:

- If a schedule to this overlay specifies that a section 173 Agreement is not required.
- Where the relevant fire authority states in writing the preparation of an agreement under section 173 of the Act is not required for the subdivision.
- For the subdivision of the land into lots each containing an existing dwelling or car parking space.

A permit to subdivide land must include any condition specified in a schedule to this overlay.

#### Buildings and works

A permit to construct a building or construct or carry out works must include the following condition:

*"The bushfire protection measures forming part of this permit or shown on the endorsed plans, including those relating to construction standards, defendable space, water supply and access, must be maintained to the satisfaction of the responsible authority on a continuing basis. This condition continues to have force and effect after the development authorised by this permit has been completed."*

A permit allowing a dwelling to be constructed to the next lower bushfire attack level in accordance with AM1.4 in clause 53.02-3 must include the following condition:

*"Before the development starts, the owner must enter into an agreement with the responsible authority under section 173 of the Planning and Environment Act 1987 to provide for the following:*

- *A dwelling constructed in accordance with planning permit [*insert planning permit reference] must not be occupied until a private bushfire shelter (a Class10c building within the meaning of the Building Regulations 2006) is:*
  - *Constructed on the same land as the dwelling.*
  - *Available for use by the occupants of the dwelling at all times.*
  - *Maintained in accordance with the requirements of the building permit issued for that private bushfire shelter.*

*The land owner must pay the reasonable costs of the preparation, execution and registration of the section 173 Agreement."*

A permit to construct a building or construct or carry out works must include any condition specified in a schedule to this overlay.

## 44.06-6 Referral of applications

05/05/2026
VC248

An application must be referred under section 55 of the Act to the person or body specified as the referral authority in clause 66.03, unless a schedule to this overlay specifies otherwise.

## 44.06-7 Notice and review

31/07/2018
VC148

An application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act, unless a schedule to this overlay specifies otherwise.

A schedule to this overlay may specify that notice be given to any person or body in accordance with section 52(1)(c) of the Act.

## 44.06-8 Decision guidelines

05/05/2026
VC248

Before deciding on an application, in addition to the decision guidelines in clause 53.02 and clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- Any other matters specified in a schedule to this overlay.

## 44.06-9 Transitional arrangements

05/05/2026
VC248

The requirements of clause 44.06 Bushfire Management Overlay do not apply to a single dwelling, or a dependent person's unit, when a permit under the *Building Act 1993* was issued before the commencement of Amendment GC13, if:

- vegetation is managed to accord with the bushfire attack level assessment undertaken at the time the building permit was issued; and
- a static water supply of:
  - 2500 litres on lots of 500 square metres or less
  - 5000 litres on lots of more than 500 square metres,
    is provided to the satisfaction of the responsible authority.
- no permit was required for such development under clause 44.06 before the commencement of Amendment GC13.

11/06/2020
C265case

## SCHEDULE 1 TO CLAUSE 44.06 BUSHFIRE MANAGEMENT OVERLAY

Shown on the planning scheme map as **BMO1**.

**CRANBOURNE GARDENS AND SURROUNDS**

## 1.0 Statement of the bushfire management objectives to be achieved

11/06/2020
C265case

To locate new development in accordance with the bushfire management provisions of the Botanic Ridge Precinct Structure Plan where precinct structure plan applies.

To ensure the provision and adequate supply of water to facilitate fire fighting and property protection during and after the passage of a bushfire.

To ensure that the construction of a dwelling or dependent person's unit has regard to the nature of the bushfire hazard of the site and surrounding area and that the necessary area of defendable space is provided.

## 2.0 Application

11/06/2020
C265case

None specified.

## 3.0 Permit requirement

11/06/2020
C265case

A permit is not required to subdivide land where the land is also shown as UGZ4 on the planning scheme maps.

A permit is not required to construct a building or carry out works associated with

one dwelling on a lot where the land is also shown as UGZ4 on the planning scheme maps and the following requirements are met before a certificate of occupation is issued for the dwelling:

- The installation of a non-combustible static water supply for fire fighting purposes and meet the minimum size specified in Table 1 to this schedule; and
- The dwelling or extension to a dwelling is constructed to a Bushfire Attack Level as specified in Table 2 to this schedule that meets the requirements of the Building Act 1993 and Australian Standard 3959 Construction of building in bushfire prone areas; and
- For lots fronting a perimeter road adjacent to the Cranbourne Gardens, all dwellings and extensions are no less than 13 metres from the front of the lot.

**Table 1**

| Lot area (square metres) | Water supply size (litres) |
|---|---|
| < 500 | 2,000 |
| 500 or greater | 5,000 |

**Table 2**

| Distance of closest part of dwelling from fire hazard identified on Plan 5 of the incorporated Botanic Ridge Precinct Structure Plan (metres) | Bushfire attack Level (BAL) |
|---|---|
| Less then 69 | 19 |
| 69 or greater | 12.5 |

## 4.0 Application requirements

11/06/2020
C265case

None specified.

## 5.0 Requirements to be met

11/06/2020
C265case

None specified.

## 6.0 Substitute approved measures for Clause 53.02

11/06/2020
C265case

| Approved Measure | Substitute approved measure |
|---|---|
| AM2.1 | None specified |
| AM2.2 | None specified |
| AM2.3 | None specified |
| AM3.1 | None specified |
| AM3.2 | None specified |
| AM4.1 | None specified |
| AM4.2 | None specified |
| AM5.1 | None specified |
| AM5.2 | None specified |
| AM5.3 | None specified |
| AM5.4 | None specified |

## 7.0 Additional alternative measures for Clause 53.02

11/06/2020
C265case

| Clause | Additional alternative measures |
|---|---|
| None specified | None specified |

## 8.0 Mandatory Condition

11/06/2020
C265case

None specified.

## 9.0 Referral of application not required

11/06/2020
C265case

None specified.

## 10.0 Notice and review

11/06/2020
C265case

None specified.

## 11.0 Decision guidelines

11/06/2020
C265case

None specified.

11/06/2020
C265case

## SCHEDULE 2 TO CLAUSE 44.06 BUSHFIRE MANAGEMENT OVERLAY

Shown on the planning scheme map as **BMO2**.

**BOTANIC RIDGE STAGE 1 ESTATE**

## 1.0 Statement of the bushfire management objectives to be achieved

11/06/2020
C265case

To locate new development in accordance with the bushfire management provisions where Schedule 3 to the Development Plan Overlay (DPO3) applies.

To ensure the provision and adequate supply of water to facilitate fire fighting and property protection during and after the passage of a bushfire.

To ensure that the construction of a dwelling or dependent person's unit has regard to the nature of the bushfire hazard of the site and surrounding area and that the necessary area of defendable space is provided.

## 2.0 Application

11/06/2020
C265case

None specified.

## 3.0 Permit requirement

11/06/2020
C265case

A permit is not required to subdivide land where the land is also shown as subject to DPO3 on the planning scheme maps.

A permit is not required to construct a building or carry out works associated with one dwelling on a lot where the land is also shown as subject to DPO3 on the planning scheme maps and the following requirements are met before an occupancy permit is issued for the dwelling:

- The installation of a non-combustible static water supply for fire fighting purposes that meets the minimum size specified in Table 1 to this schedule; and
- The dwelling or extension to a dwelling is constructed to a Bushfire Attack Level as specified in Table 2 to this schedule that meets the requirements of the Building Act 1993 and Australian Standard 3959 Construction of building in bushfire prone areas; and

**Table 1**

| Lot area (square metres) | Water supply size (litres) |
|---|---|
| < 500 | 2,000 |
| 500 or greater | 5,000 |

| Distance of closest part of dwelling from the Cranbourne Gardens Fire Hazard identified on Map 2 of DPO3 (metres) | Bushfire Attack Level (BAL) |
|---|---|
| 29-41 | 29 |
| 42-56 | 19 |
| 57 or greater | 12.5 |

## 4.0 Application requirements

11/06/2020
C265case

None specified.

## 5.0 Requirements to be met

11/06/2020
C265case

None specified.

## 6.0 Substitute approved measures for Clause 53.02

11/06/2020
C265case

None specified.

## 7.0 Additional alternative measures for Clause 53.02

11/06/2020
C265case

None specified.

## 8.0 Mandatory Condition

11/06/2020
C265case

None specified.

## 9.0 Referral of application not required

11/06/2020
C265case

None specified.

## 10.0 Notice and review

11/06/2020
C265case

None specified.

## 11.0 Decision guidelines

11/06/2020
C265case

None specified.

11/06/2020
C265case

# SCHEDULE 3 TO CLAUSE 44.06 BUSHFIRE MANAGEMENT OVERLAY

Shown on the planning scheme map as **BMO3**.

**CASEY BAL-12.5 AREAS**

## 1.0 Statement of the bushfire management objectives to be achieved

11/06/2020
C265case

To specify bushfire protection measures to construct or extend one dwelling on a lot.

To specify referral requirements for applications to construct or extend one dwelling on a lot.

## 2.0 Application

11/06/2020
C265case

An application to construct or extend one dwelling on a lot must include all the requirements set out in this schedule.

Clause 53.02 applies in all other circumstances.

## 3.0 Permit requirement

11/06/2020
C265case

None specified.

## 4.0 Application requirements

11/06/2020
C265case

An application must be accompanied by a bushfire management plan that:

- Shows all of the required bushfire protection measures specified in this schedule,
- Includes written conditions that implement the required bushfire protection measures,
- Identifies water supply including the location of any fire hydrant within 120 metres of the rear of the building, and
- Details vehicle access.

## 5.0 Requirements to be met

11/06/2020
C265case

The following requirements apply to an application to construct a single dwelling on a lot:

- The dwelling must be constructed to BAL-12.5
- Defendable space is to be provided for a distance of 30 metres around the dwelling or to the property boundary, whichever is the lesser and maintained in accordance with the vegetation management requirements of Clause 53.02 with the following variation:
  - The canopy of trees must be separated by at least 2 metres.
- A static water supply must be provided in accordance with Clause 53.02, and
- Vehicle access must be provided in accordance with Clause 53.02.

If these requirements are not met, the requirements of Clause 53.02 apply.

## 6.0 Substitute approved measures for Clause 53.02

11/06/2020
C265case

None specified.

## 7.0 Additional alternative measures for Clause 53.02

11/06/2020
C265case

None specified.

## 8.0 Mandatory Condition

11/06/2020
C265case

An application must include the mandatory conditions as specified in Clause 44.06-5.

## 9.0 Referral of application not required

11/06/2020
C265case

An application for a single dwelling on a lot meeting all of the required bushfire protection measures is not required to be referred under Section 55 of the Act to the person or body specified as the referral authority in Clause 66.03.

## 10.0 Notice and review

11/06/2020
C265case

None specified.

## 11.0 Decision guidelines

11/06/2020
C265case

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider whether all of the bushfire protection measures in this schedule have been met.

# 45 OTHER OVERLAYS

19/01/2006
VC37

## 45.01 PUBLIC ACQUISITION OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **PAO** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify land which is proposed to be acquired by a Minister, public authority or municipal council.

To reserve land for a public purpose and to ensure that changes to the use or development of the land do not prejudice the purpose for which the land is to be acquired.

To designate a Minister, public authority or municipal council as an acquiring authority for land reserved for a public purpose.

## 45.01-1 Permit required

14/12/2023
VC253

A permit is required to:

- Use land for any Section 1 or Section 2 use in the zone.
- Construct a building or construct or carry out works, including:
  - A domestic swimming pool or spa and associated mechanical and safety equipment if associated with one dwelling on a lot.
  - A pergola or verandah, including an open-sided pergola or verandah to a dwelling or a small second dwelling with a finished floor level not more than 800mm above ground level and a maximum building height of 3 metres above ground level.
  - A deck, including a deck to a dwelling or a small second dwelling with a finished floor level not more than 800mm above ground level.
- Damage, demolish or remove a building or works.
- Damage, remove, destroy or lop any vegetation. This does not apply:
  - If the vegetation has been planted for pasture, timber production or any other crop.
  - To any action which is necessary to keep the whole or any part of a tree clear of an electric line provided the action is carried out in accordance with a code of practice prepared under Section 86 of the *Electricity Safety Act 1998*.
  - If the vegetation presents an immediate risk of personal injury or damage to property.
- Subdivide land.

This does not apply:

- To the acquiring authority for the land if the land has been acquired and any of the above matters for which a permit is required is consistent with the purpose for which the land was acquired.
- To an authority or a municipal council if the responsible authority, after consulting with the acquiring authority for the land, is satisfied that any of the above matters for which a permit is required is consistent with the purpose for which the land is to be acquired.

## 45.01-2 Exemption from notice and review

31/07/2018
VC148

An application under this overlay is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 45.01-3 Referral of applications

28/10/2013
VC102

An application must be referred under Section 55 of the Act to the acquiring authority for the land.

## 45.01-4 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The effect of the proposed use or development on the purpose for which the land is to be acquired as specified in the schedule to this overlay.

A permit granted under this clause may be conditional on:

- The extent of alterations and extensions to an existing building and works, and the materials that may be used.
- The location, dimensions, design and material or a new building or works.
- The demolition, removal or alteration of any buildings or works.
- The demolition or removal of buildings or works constructed or carried out in accordance with a permit under this clause.
- No compensation being payable for the demolition or removal of any buildings or works constructed under the permit.

## 45.01-5 Land not to be spoiled or wasted

19/01/2006
VC37

Land must not be spoiled or wasted so as to adversely affect the use of the land for the purpose for which it is to be acquired.

## 45.01-6 Reservation for public purpose

19/01/2006
VC37

Any land included in a Public Acquisition Overlay is reserved for a public purpose within the meaning of the *Planning and Environment Act 1987*, the *Land Acquisition and Compensation Act 1986* or any other act.

## 45.01-7 Acquiring authority

28/10/2013
VC102

An acquiring authority is the Minister, public authority or municipal council specified in the schedule to this overlay as the acquiring authority for the land.

14/11/2019
GC99

# SCHEDULE TO CLAUSE 45.01 PUBLIC ACQUISITION OVERLAY

## 1.0

14/04/2023
GC204

## Public acquisition

| PS map ref | Acquiring Authority | Purpose of acquisition |
|---|---|---|
| **PAO1** | Head, Transport for Victoria | Road purposes |
| **PAO2** | Department of Education | Construction of a primary school or a secondary school or a combination of both |
| **PAO3** | Casey City Council | Municipal purposes |
| **PAO4** | Melbourne Water | Drainage purposes |
| **PAO5** | The Minister responsible for administering Part 2 of the *Crown Land (Reserves) Act 1978* | Cardinia Creek Parklands |
| **PAO6** | South East Water Corporation | Water supply purposes |
| **PAO7** | Minister for Energy, Environment and Climate Change | Delivery of the Clyde Regional Park |

## 45.03 ENVIRONMENTAL AUDIT OVERLAY

01/07/2021
VC203

Shown on the planning scheme map as **EAO.**

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To ensure that potentially contaminated land is suitable for a use which could be significantly adversely affected by any contamination.

### Application

This provision applies to land in an Environmental Audit Overlay and applies whether or not a permit is required.

## 45.03-1 Requirement

04/05/2022
VC210

Before a sensitive use (residential use, child care centre, kindergarten, pre-school centre, primary school, even if ancillary to another use), children's playground or secondary school commences or before the construction or carrying out of buildings and works in association with these uses commences:

- A preliminary risk screen assessment statement in accordance with the *Environment Protection Act 2017* must be issued stating that an environmental audit is not required for the use or the proposed use; or
- An environmental audit statement under Part 8.3 of the *Environment Protection Act 2017* must be issued stating that the land is suitable for the use or proposed use; or
- A certificate of environmental audit must be issued for the land in accordance with Part IXD of the Environment Protection Act 1970; or
- A statement of environmental audit must be issued for the land in accordance with Part IXD of the Environment Protection Act 1970 stating that the environmental conditions of the land are suitable for the use or proposed use.

### Exemption from requirement

The requirement for a preliminary risk screen assessment statement, an environmental audit statement, a certificate of environmental audit or a statement of environmental audit in this provision does not apply to the construction or carrying out of buildings and works if:

- The buildings and works are associated with an existing sensitive use, secondary school or children’s playground, included in Clause 62.02-1 or 62.02-2, and the soil is not disturbed;
- The buildings and works are required by the Environment Protection Authority or an environmental auditor appointed under the *Environment Protection Act 2017* to make the site suitable for use; or
- The buildings and works are reasonably required by environmental auditor appointed under the *Environment Protection Act 2017* or the *Environment Protection Act 1970* to undertake a preliminary risk screen assessment or environmental audit.

## 45.04 ROAD CLOSURE OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **RXO**.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify a road that is closed by an amendment to this planning scheme.

## 45.04-1 Road closure

19/01/2006
VC37

A road included in this overlay is closed on the date notice of approval of the amendment is published in the Government Gazette.

## 45.04-2 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- That the road is closed.

## 45.06 DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **DCPO** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify areas which require the preparation of a development contributions plan for the purpose of levying contributions for the provision of works, services and facilities before development can commence.

## 45.06-1 Development contributions plan

19/01/2006
VC37

A permit must not be granted to subdivide land, construct a building or construct or carry out works until a development contributions plan has been incorporated into this scheme.

This does not apply to the construction of a building, the construction or carrying out of works or a subdivision specifically excluded by a schedule to this overlay.

A permit granted must:

- Be consistent with the provisions of the relevant development contributions plan.
- Include any conditions required to give effect to any contributions or levies imposed, conditions or requirements set out in the relevant schedule to this overlay.

## 45.06-2 Preparation of a development contributions plan

19/01/2006
VC37

The development contributions plan may consist of plans or other documents and may, with the agreement of the planning authority, be prepared and implemented in stages.

The development contributions plan must:

- Specify the area to which the plan applies.
- Set out the works, services and facilities to be funded through the plan, including the staging of the provision of those works, services and facilities.
- Relate the need for the works, services or facilities to the proposed development of land in the area.
- Specify the estimated costs of each of the works, services and facilities.
- Specify the proportion of the total estimated costs of the works, services and facilities which is to be funded by a development infrastructure levy or community infrastructure levy or both.
- Specify the land in the area and the types of development in respect of which a levy is payable and the method for determining the levy payable in respect of any development of land.
- Provide for the procedures for the collection of a development infrastructure levy in respect to any development for which a permit is not required.

The development contributions plan may:

- Exempt certain land or certain types of development from payment of a development infrastructure levy or community infrastructure levy or both.
- Provide for different rates or amounts of levy to be payable in respect of different types of development of land or different parts of the area.

02/12/2022
C259case

# SCHEDULE 3 TO CLAUSE 45.06 DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY

Shown on the planning scheme map as **DCPO3.**

## LOCAL STRUCTURE PLAN 1 (LYNDHURST) DEVELOPMENT CONTRIBUTIONS PLAN

## 1.0 Area covered by this development contributions plan

05/02/2009
C99

Land in Lyndhurst and Lynbrook within the DCPO3 area.

## 2.0 Summary of costs

02/12/2022
C259case

| Facility | Total cost $ | Time of provision (years after beginning of development) | Actual cost contribution attributable to development $ | Proportion of cost attributable to development % |
|---|---|---|---|---|
| Distributor roads | 13,694,952 | 20 yrs | 13,694,952 | 100% |
| Traffic management works | 4,265,140 | 20 yrs | 4,265,140 | 100% |
| Streetscape & environment | None specified | None specified | None specified | None specified |
| Parks | None specified | None specified | None specified | None specified |
| Active open space | None specified | None specified | None specified | None specified |
| Community activity centres | 2,098,656 | 20 yrs | 2,098,656 | 100% |
| Railway infrastructure | 1,795,100 | None specified | 1,795,100 | 100% |
| **TOTAL** | **21,853,848** | **20 yrs** | **21,853,848** | **100%** |

## 3.0 Summary of contributions

02/12/2022
C259case

| Facility | Levies payable by the development ($) | | | | | |
|---|---|---|---|---|---|---|
| | Development infrastructure | | Community infrastructure | | All infrastructure | |
| | residential | non-residential $ | residential | non-residential $ | residential | non-residential $ |
| Distributor roads | 1,906 | None specified | None specified | None specified | 1,906 | None specified |
| Traffic management works | 593 | None specified | None specified | None specified | 593 | None specified |
| Streetscape & environment | None specified | None specified | None specified | None specified | None specified | None specified |
| Parks | None specified | None specified | None specified | None specified | None specified | None specified |
| Active open space | None specified | None specified | None specified | None specified | None specified | None specified |
| Community activity centres | 292 | None specified | None specified | None specified | 292 | None specified |
| Railway infrastructure | 250 | None specified | None specified | None specified | 250 | None specified |
| **TOTAL** | **3,041** | **20,040/ha** | **None specified** | **None specified** | **3,041** | **20,040/ha** |

The levies payable by the development are specified in dollars per lot of all the land in the subdivision.

The amounts in this schedule are in September 2002 dollars. The responsible authority will adjust these amounts quarterly for inflation, starting on 1 October 2002, based on the General Consumer Price Index for Capital Cities.

## 4.0 Land or development excluded from the development contributions plan

02/12/2022
C259case

None specified.

*Note: This schedule sets out a summary of the costs and contributions prescribed in the development contributions plan. Refer to the incorporated development contributions plan for full details.*

02/12/2022
C259case

## SCHEDULE 4 TO CLAUSE 45.06 DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY

Shown on the planning scheme map as **DCPO4.**

### LOCAL STRUCTURE PLAN 3 (CRANBOURNE EAST) DEVELOPMENT CONTRIBUTIONS PLAN

## 1.0 Area covered by this development contributions plan

02/12/2022
C259case

Land in Cranbourne East shown on the Planning Scheme maps as within Schedule 4 to the Development Contributions Plan Overlay.

## 2.0 Summary of costs in 2008 dollars

02/12/2022
C259case

| Facility | Total cost $M | Time of provision | Actual cost contribution attributable to development $M | Proportion of cost attributable to development % |
|---|---|---|---|---|
| *Distributor roads* | 3.5 | 20 years | 3.5 | 100 |
| *Traffic management works* | None specified | None specified | None specified | None specified |
| *Streetscape & environment* | None specified | None specified | None specified | None specified |
| *Parks* | None specified | None specified | None specified | None specified |
| *Active open space* | 2.4* | 20 years | 2.4* | 100 |
| *Community activity centres* | 2.0 | 20 years | 2.0 | 100 |
| *Drainage* | None specified | None specified | None specified | None specified |
| *Railway infrastructure* | 2.9 | None specified | 2.9 | 100 |
| *State road infrastructure* | 2.3 | None specified | 2.3 | 100 |
| **TOTAL** | **$13.1** | **20 years** | **$13.1** | **100** |

*Note: *This figure is in 2015 dollars*

## 3.0 Summary of contributions in 2008 dollars

02/12/2022
C259case

| Facility | Levies payable by the development ($) | | | | | |
|---|---|---|---|---|---|---|
| | Development infrastructure | | Community infrastructure | | All infrastructure | |
| | residential $ per lot | non-residential $ per hectare | residential $ per lot | non-residential $ per hectare | residential $ per lot | non-residential $ per hectare |
| *Distributor roads* | 1,709 | 24,053 | None specified | None specified | 1,709 | 24,053 |

| Facility | Levies payable by the development ($) | | | | | |
|---|---|---|---|---|---|---|
| | Development infrastructure | | Community infrastructure | | All infrastructure | |
| | residential $ per lot | non-residential $ per hectare | residential $ per lot | non-residential $ per hectare | residential $ per lot | non-residential $ per hectare |
| *Traffic management works* | None specified | None specified | None specified | None specified | None specified | None specified |
| *Streetscape & environment* | None specified | None specified | None specified | None specified | None specified | None specified |
| *Parks* | None specified | None specified | None specified | None specified | None specified | None specified |
| *Active open space* | None specified | None specified | None specified | None specified | None specified | None specified |
| *Community activity centres* | 977 | None specified | None specified | None specified | 977 | None specified |
| *Drainage* | None specified | None specified | None specified | None specified | None specified | None specified |
| *Railway infrastructure* | 722 | None specified | None specified | None specified | 722 | None specified |
| *State road infrastructure* | 601 | None specified | None specified | None specified | 601 | None specified |
| **TOTAL** | **4,009** | **24,053** | **None specified** | **None specified** | **4,009** | **24,053** |

The levies payable by the development are specified in dollars per lot for all the land in the subdivision.

The amounts in this schedule are in December 2008 dollars. The Collecting Agency will adjust these amounts quarterly for inflation, starting on 1 January 2009, based on the Consumer Price Index – All Groups Melbourne, published by the Australian Bureau of Statistics.

## 4.0 Land or development excluded from development contributions plan

02/12/2022
C259case

None specified.

*Note: This schedule sets out a summary of the costs and contributions prescribed in the development contributions plan. Refer to the incorporated development contributions plan for full details.*

02/12/2022
C259case

# SCHEDULE 10 TO CLAUSE 45.06 DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY

Shown on the planning scheme map as **DCPO10.**

## CRANBOURNE EAST PRECINCT STRUCTURE PLAN DEVELOPMENT CONTRIBUTIONS PLAN

## 1.0 Area covered by this development contributions plan

21/05/2010
C119

Land in Cranbourne East and Clyde North within the DCPO10 area.

## 2.0 Summary of costs in 1 January 2010 dollars

02/12/2022
C259case

| Facility | Total cost $ | Time of provision | Actual cost contribution attributable to development $ | Proportion of cost attributable to development % |
|---|---|---|---|---|
| *Roads* | $20,116,736 | As required. | $16,459,534 | 82% |
| *Intersections* | $24,218,004 | As required. | $22,512,031 | 93% |
| *Community Facilities* | $9,713,490 | As required. | $8,540,616 | 88% |
| *Land for Active Open Space* | $10,935,000 | As required. | $7,219,190 | 66% |
| *Outdoor Active Recreation* | $10,356,838 | As required. | $10,356,838 | 100% |
| *Local Town Centre Square* | $1,396,560 | As required. | $1,396,560 | 100% |
| *Structure Planning* | $1,234,000 | As required. | $1,234,000 | 100% |
| **TOTAL** | **$77,970,628** | **As required.** | **$67,646,434** | **87%** |

## 3.0 Summary of contributions in 1 January 2010 dollars

02/12/2022
C259case

| Facility | Levies payable by the development ($) | | | |
|---|---|---|---|---|
| | Development infrastructure | | | Community infrastructure |
| | Residential | Non-Government Education | Employment Land South of Ballarto Rd | Residential |
| *Roads* | $41,593 | $10,398 | $41,593 | $ - |
| *Intersections* | $56,888 | $14,222 | $56,888 | $ - |
| *Community Facilities* | $23,608 | $5,902 | - | $ - |
| *Land for Active Open Space* | $19,956 | $4,989 | - | $ - |

| Facility | Levies payable by the development ($) | | | |
|---|---|---|---|---|
| | Development infrastructure | | | Community infrastructure |
| | Residential | Non-Government Education | Employment Land South of Ballarto Rd | Residential |
| *Outdoor Active Recreation* | $17,458 | $4,365 | - | $735.00 per dwelling |
| *Local Town Centre Square* | $3,829 | $957 | - | - |
| *Structure Planning* | $3,093 | $773 | $3,093 | $ - |
| **TOTAL** | **$166,426 per net developable hectare** | **$41,607 per net developable hectare** | **$101,575 per net developable hectare** | **$735.00 per dwelling** |

The capital cost for each infrastructure item will be adjusted by applying the Building Price Index, as published in the latest edition of Rawlinsons Australian Construction Handbook on 1st January and 1st July each year;

The land values for each infrastructure item, where applicable, will be adjusted on 1 July each year following site specific land valuations undertaken by a registered valuer.

The cost of the strategic planning for the preparation of the Cranbourne East Precinct Structure Plan and the Development Contributions Plan will be indexed quarterly in line with the Commonwealth Statisticians' Consumer Price Index (All Groups) for Melbourne (CPI).

## 4.0 Land or development excluded from development contributions plan

15/01/2024
VC249

Land required for the following (as set out in the Cranbourne East Precinct Structure Plan):

- 6 and 4 lane arterial roads, railway reservations, municipal community facilities, Government schools.
- Melbourne Water drainage reserves and retarding basins.
- Heritage and conservation areas.
- Open space (active and passive).

The development of land for a small second dwelling is exempt from the requirement to pay a development infrastructure levy and a community infrastructure levy.

*Note:* *This schedule sets out a summary of the costs and contributions prescribed in the Cranbourne East Precinct Structure Plan Development Contributions Plan incorporated document. Refer to this document for full details.*

09/11/2017
GC75

# SCHEDULE 11 TO CLAUSE 45.06 DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY

Shown on the planning scheme maps as **DCPO11.**

## CRANBOURNE NORTH PRECINCT STRUCTURE PLAN DEVELOPMENT CONTRIBUTIONS PLAN

## 1.0 Area covered by this development contributions plan

18/08/2011
C125

Land in Cranbourne North within the DCPO11 area.




## 2.0 Summary of costs

02/12/2022
C259case

| Facility | Total cost $ (2010 dollars) | Time of provision | Actual cost contribution attributable to development $ (2010 dollars) | Proportion of cost attributable to development % |
|---|---|---|---|---|
| Roads and Intersections (including land for roads) | 48,043,494 | As Required | 43,929,645 | 91.44% |
| Land Acquisition (active open space and community facilities) | 29,143,000 | As Required, generally as the relevant land is subdivided | 29,143,000 | 100% |
| Active Open Space (construction) | 20,052,058 | As Required | 20,052,058 | 100% |
| Community Facilities (construction) | 3,218,158 | As Required | 3,218,158 | 100% |
| Precinct Structure Plan and Development Contributions Plan | 1,225,000 | As Required | 1,225,000 | 100% |

| Facility | Total cost $ (2010 dollars) | Time of provision | Actual cost contribution attributable to development $ (2010 dollars) | Proportion of cost attributable to development % |
|---|---|---|---|---|
| **TOTAL** | **101,681,710** | | **97,567,861** | |

**3.0**
02/12/2022
C259case

## Summary of contributions for Charge Area 1 (Residential)

| Facility | Levies payable by the development ($) | |
|---|---|---|
| | Development infrastructure | Community infrastructure |
| | Per Developable Hectare (in 2010 dollars) | Per Developable Hectare (Per Dwelling) |
| Roads | $100,580 | None specified |
| Open Space | $97,160 | None specified |
| Community Facilities | $21,502 | $1,150 Per Dwelling |
| Plan Preparation | $2,795 | None specified |
| **TOTAL** | **$222,037** | **$1,150 Per Dwelling** |

### Summary of contributions for Charge Area 2 (Employment)

| Facility | Levies payable by the development ($) | |
|---|---|---|
| | Development infrastructure | Community infrastructure |
| | Per Developable Hectare (in 2010 dollars) | Per Developable Hectare (Per Dwelling) |
| Roads | $100,580 | None specified |
| Open Space | None specified | None specified |
| Community Facilities | None specified | None specified |
| Plan Preparation | None specified | None specified |
| **TOTAL** | **$100,580** | **None specified** |

**Summary of contributions for Charge Area 3 (Stage 1- Developed)**

| Facility | Levies payable by the development ($) | |
|---|---|---|
| | Development Infrastructure | Community Infrastructure |
| | Per Developable Hectare (in 2010 dollars) | Per Developable Hectare (Per Dwelling) |
| Roads | None specified | None specified |
| Open Space | None specified | None specified |
| Community Facilities | None specified | $1,150 Per Dwelling |
| Plan Preparation | None specified | None specified |
| **TOTAL** | **None specified** | **$1,150 Per Dwelling** |

The capital cost for each infrastructure item will be adjusted by applying the Building Price

Index, as published in the latest edition of Rawlinsons Australian Construction Handbook on 1st January and 1st July each year.

The land values for each infrastructure item, where applicable, will be adjusted on 1 July each year following site specific land valuations undertaken by a registered valuer.

The cost of the strategic planning for the preparation of the Cranbourne North and Cranbourne North Stage 2 Precinct Structure Plan and the Development Contributions Plan will be indexed quarterly in line with the Commonwealth Statisticians' Consumer Price Index (All Groups) for Melbourne (CPI).

**The Community Infrastructure Levy (CIL) payable under this Development Contributions Plan (DCP)**

Section 46L of the *Planning and Environment Act 1987* sets the maximum CIL amount that can be collected under an approved DCP

If the maximum amount of the CIL which may be collected under an approved DCP is varied under section 46L of the *Planning and Environment Act 1987*, the collecting agency may adjust the amount of the CIL payable under this DCP in accordance with section 46L of the *Planning and Environment Act 1987*.

If the collecting agency adjusts the amount of the CIL payment under this DCP, the collecting agency will publish the adjusted amount of the CIL payable under this DCP on its website.

## 4.0 Land or development excluded from development contributions plan

15/01/2024
VC249

Land required for the following (as set out in the Cranbourne North Stage 2 Precinct Structure Plan):

- 6 and 4 lane arterial roads, railway reservations, municipal community facilities, government schools.
- Melbourne Water drainage reserves and retarding basins.
- Heritage areas.
- Open space (active and passive).
- Buildings and works that do not increase the floor space or storage area associated with the existing concrete batching plant on 1545 and 1575 Thompsons Road, Cranbourne North.

The development of land for a small second dwelling is exempt from the requirement to pay a development infrastructure levy and a community infrastructure levy.

*Note: This schedule sets out a summary of the costs and contributions prescribed in the Cranbourne North Development Contributions Plan incorporated document. Refer to this document for full details.*

09/11/2017
GC75

# SCHEDULE 12 TO CLAUSE 45.06 DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY

Shown on the planning scheme map as **DCPO12.**

## CRANBOURNE WEST DEVELOPMENT CONTRIBUTIONS PLAN

## 1.0 Area covered by this development contributions plan

10/03/2016
C206

Land in Cranbourne West within the DCPO12 area.

## 2.0 Summary of costs for Charge Area 1 to 3

10/03/2016
C206

| Facility | Total cost $ | Time of provision | Actual cost contribution attributable to development | Proportion of cost attributable to development |
|---|---|---|---|---|
| Roads Works | $34,256,988 | Refer to Development Contributions Plan | $17,379,634 | 51% |
| Roads Land | 15,760,449 | Refer to Development Contributions Plan | 14,427,063 | 92% |
| Planning | $2,172,500 | Refer to Development Contributions Plan | $2,172,500 | 100% |
| Open Space Works | $12,673,625 | Refer to Development Contributions Plan | $12,355,411 | 97% |
| Open Space Land | 24,375,000 | Refer to Development Contributions Plan | 23,781,250 | 98% |
| Community Facilities Land | 1,656,525 | Refer to Development Contributions Plan | 1,656,525 | 100% |
| Community Facilities (Development Infrastructure) | 4,385,888 | Refer to Development Contributions Plan | 4,385,888 | 100% |
| Community Facilities (Community Infrastructure) | 4,349,165 | Refer to Development Contributions Plan | 3,913,489 | 90% |
| **TOTAL** | **99,630,141** | | **80,071,760** | **88%** |

*Note: These figures exclude GST.*

## 3.0 Equivalence Ratios for Charge Area 1 to 3

10/03/2016
C206

As the Development Contributions Plan relates to four development types, it is necessary to express non-residential development in terms of equivalent developable hectares of residential land.

| Development type | Equivalent to one developable hectare of residential land (demand unit) |
|---|---|
| **For Roads** | |
| Activity Centre | 0.2 developable hectare |
| Business Activity Centre | 0.164 developable hectare |
| Industrial | 0.307 developable hectare |

| Development type | Equivalent to one developable hectare of residential land (demand unit) |
|---|---|
| **For Roads Land** | |
| Activity Centre | 0.2 developable hectare |
| Business Activity Centre | 0.164 developable hectare |
| Industrial | 0.307 developable hectare |
| **For Open Space Land** | |
| Activity Centre | 1 developable hectare |
| Business Activity Centre | Not applicable |
| Industrial | 1 developable hectare |
| **For Open Space Works** | |
| Activity Centre | 1 developable hectare |
| Business Activity Centre | Not applicable |
| Industrial | 1 developable hectare |
| **For Planning** | |
| Activity Centre | 1 developable hectare |
| Business Activity Centre | 1 developable hectare |
| Industrial | 1 developable hectare |
| **For Community Facilities Land** | |
| Activity Centre | 1 developable hectare |
| Business Activity Centre | 1 developable hectare |
| Industrial | 1 developable hectare |
| **For Community Facilities (DI)** | |
| Activity Centre | 1 developable hectare |
| Business Activity Centre | 1 developable hectare |
| Industrial | 1 developable hectare |
| **For Community Facilities (CI)** | |
| Activity Centre | Not applicable |
| Business Activity Centre | Not applicable |
| Industrial | Not applicable |

## 4.0 Summary of Contributions for Charge Area 1 to 3

09/11/2017
GC75

*Notes:* *Residential developments are subject to all levies below.*
*Non-residential developments are exempt from charges relating to Community Infrastructure.*

### Levies per demand unit payable by the development

| Community infrastructure | | Development infrastructure | | | | | |
|---|---|---|---|---|---|---|---|
| **Charge area** | **Community facilities (per dwelling)** | **Community facilities** | **Community facilities land** | **Open space land** | **Open space works** | **Planning** | **Roads (works & land)** |
| **Area 001** | $0.00 | $1,101.32 | $61.55 | $0.00 | $0.00 | $3,554.54 | $21,458.52 |
| **Area 002** | $15,406.22 | $15,749.69 | $6,436.50 | $93,619.60 | $54,826.96 | $3,554.54 | $24,897.83 |
| | ($794.54 per dwelling)* | | | | | | |
| **Area 003** | $15.012.00 | $15,749.69 | $6,436.50 | $93,619.60 | $45,301.88 | $3,554.54 | $22,433.32 |
| | ($923.63 per dwelling)** | | | | | | |

*Note:* *These figures exclude GST.*
**Based on an average density of 19.4 dwellings per hectare in Area 002*
***Based on a density of 16.6 dwellings per developable hectare in Area 003.*

### The Community Infrastructure Levy (CIL) payable under this Development Contributions Plan (DCP)

Section 46L of the *Planning and Environment Act 1987* sets the maximum CIL amount that can be collected under an approved DCP

If the maximum amount of the CIL which may be collected under an approved DCP is varied under section 46L of the *Planning and Environment Act 1987*, the collecting agency may adjust the amount of the CIL payable under this DCP in accordance with section 46L of the *Planning and Environment Act 1987*.

If the collecting agency adjusts the amount of the CIL payment under this DCP, the collecting agency will publish the adjusted amount of the CIL payable under this DCP on its website.

## 5.0 Land or development excluded from development contributions plan for Charge Area 1 to 3

15/01/2024
VC249

Exemptions from payment of development contributions apply in the following circumstances:

- The development of land for a small second dwelling.
- Land required by Melbourne Water for drainage purposes
- Land at Merinda Park Station owned by the Department of Transport and developed predominantly for public transport purposes
- Construction of a building or the construction or carrying out of works or subdivision by or on behalf of Casey City Council that implements infrastructure funded by the Development Contributions Plan.

## 6.0 Summary of Costs and Contributions for Charge Area 1.1

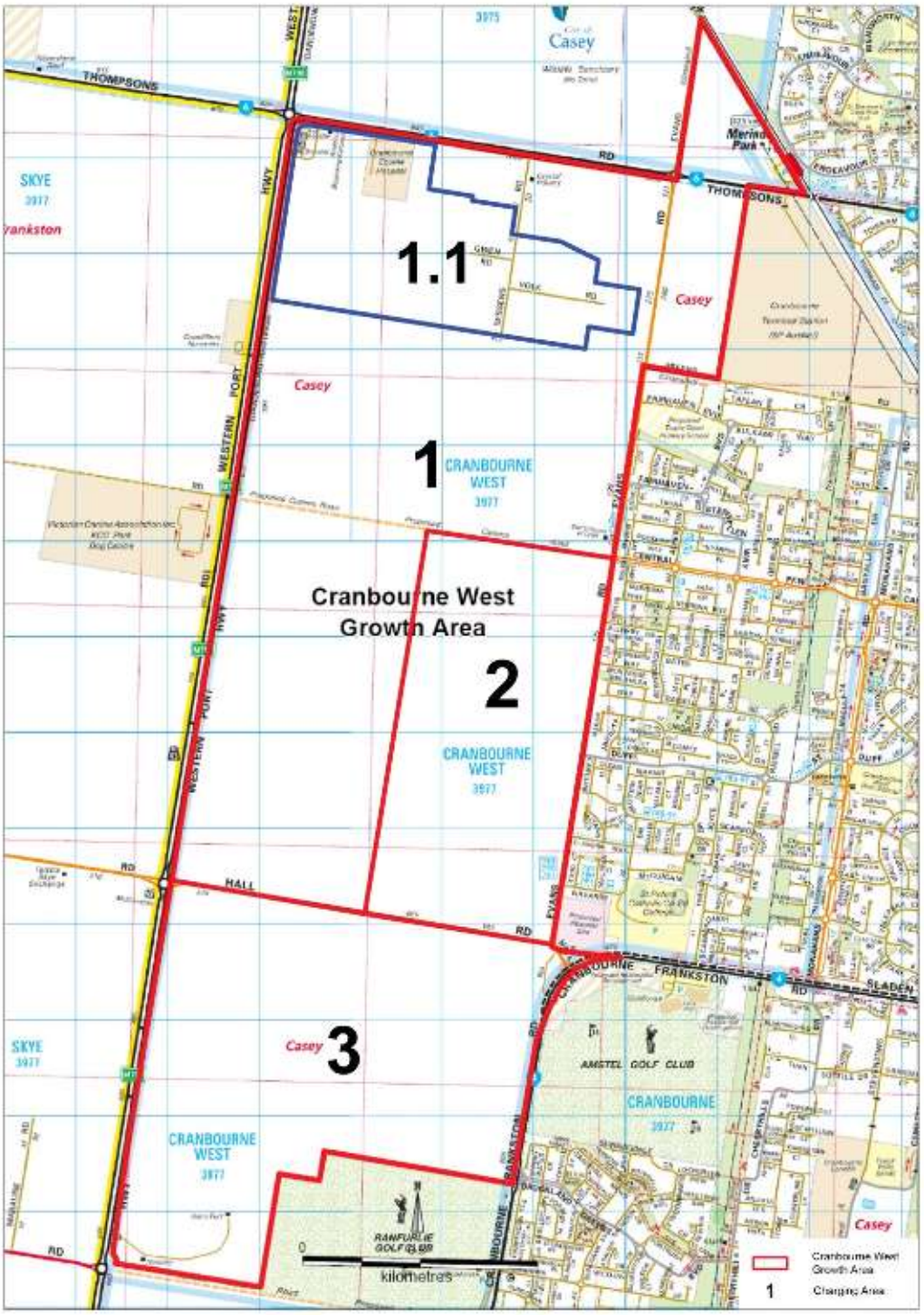
09/11/2017
GC75

| Project Category | Total cost $ | Indicative provision trigger | % Apportioned to DCP (Internal Use) | Total cost recovered by DCP | $ Contribution per NDHa |
|---|---|---|---|---|---|
| Transport | 20,517,860 | Refer to Development Contributions Plan | 100% | $ 20,517,860 | $251,167 |
| Planning | 70,000 | Refer to Development Contributions Plan | 100% | $70,000 | $857 |
| **Total** | **20,587,860** | | **100%** | **$ 20,587,860** | **$ 252,024** |

*Notes:* *These figures exclude GST.*

*This schedule sets out a summary of the costs and contributions prescribed in the Cranbourne West Development Contributions Plan incorporated document. Refer to this document for full details.*

## Charge Areas



02/12/2022
C259case

# SCHEDULE 13 TO CLAUSE 45.06 DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY

Shown on the planning scheme map as **DCPO13.**

## CLYDE NORTH PRECINCT STRUCTURE PLAN DEVELOPMENT CONTRIBUTIONS PLAN

## 1.0 Area covered by this development contributions plan

02/12/2022
C259case

Land in Clyde North within the DCPO13 area as shown on the planning scheme maps.

## 2.0 Summary of costs

02/12/2022
C259case

| Facility | Total cost $ | Time of provision | Actual cost contribution attributable to development $ | Proportion of cost attributable to development % |
|---|---|---|---|---|
| *Roads and Intersections (including land for roads)* | $45,887,818 | Refer to DCP. | $45,887,818 | 100% |
| *Land Acquisition (active open space and community facilities)* | $39,584,000 | Refer to DCP. | $39,584,000 | 100% |
| *Active open space (construction)* | $21,331,404 | Refer to DCP. | $21,331,404 | 100% |
| *Community Facilities (construction)* | $10,850,945 | Refer to DCP. | $10,416,907 | 96% |
| *Precinct Plan and Development Contributions Plan* | $1,100,000 | Refer to DCP. | $1,100,000 | 100% |
| **TOTAL** | **$118,754,167** | | **$118,320,129** | |

## 3.0 Summary of contributions

02/12/2022
C259case

| Facility | Levies payable by the development ($) | | |
|---|---|---|---|
| | Development infrastructure | Development infrastructure | Community infrastructure |
| | Employment | Residential | Residential |
| *Roads and Intersections (including land for roads)* | $106,169.45 | $106,169.45 | $0 |
| *Land Acquisition (active open space and community facilities)* | $0 | $92,845.21 | $0 |
| *Active open space (construction)* | $0 | $26,838.83 | $1,150 |
| *Community Facilities (construction)* | $0 | $38,586.08 | $0 |

| Facility | Levies payable by the development ($) | | |
|---|---|---|---|
| | **Development infrastructure** | **Development infrastructure** | **Community infrastructure** |
| | **Employment** | **Residential** | **Residential** |
| *Precinct Plan and Development Contributions Plan* | $2,545.04 | $2,545.04 | $0 |
| **TOTAL** | **$108,714.49**<br>**per net developable hectare** | **$253,849.69**<br>**per net developable hectare** | **$1,150**<br>**per dwelling** |

The capital cost for each infrastructure item will be adjusted by applying the Building Price Index, as published in the latest edition of Rawlisons Australian Construction Handbook on 1st January and 1st July each year;

The land values for each infrastructure item, where applicable, will be adjusted on 1 July each year following site specific land valuations undertaken by a registered valuer.

**The Community Infrastructure Levy (CIL) payable under this Development Contributions Plan (DCP)**

Section 46L of the *Planning and Environment Act 1987* sets the maximum CIL amount that can be collected under an approved DCP

If the maximum amount of the CIL which may be collected under an approved DCP is varied under section 46L of the *Planning and Environment Act 1987*, the collecting agency may adjust the amount of the CIL payable under this DCP in accordance with section 46L of the *Planning and Environment Act 1987*.

If the collecting agency adjusts the amount of the CIL payment under this DCP, the collecting agency will publish the adjusted amount of the CIL payable under this DCP on its website.

## 4.0 Land or development excluded from development contributions plan

02/12/2022
C259case

None specified.

*Note: This schedule sets out a summary of the costs and contributions prescribed in the development contributions plan. Refer to the incorporated development contributions plan for full details.*

09/11/2017
GC75

# SCHEDULE 14 TO CLAUSE 45.06 DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY

Shown on the planning scheme map as **DCPO14.**

## BOTANIC RIDGE DEVELOPMENT CONTRIBUTIONS PLAN

## 1.0 Area covered by this development contributions plan

11/06/2020
C265case

Land within the Botanic Ridge growth area precinct generally bounded by Browns Road, Craig Road, Smiths Lane, Cranbourne Gardens and Ballarto Road in Botanic Ridge and Junction Village.

## 2.0 Summary of costs

07/03/2013
C133

| Facility | Total cost $ | Time of provision | Actual cost contribution attributable to development $ | Proportion of cost attributable to development % |
|---|---|---|---|---|
| Road Projects | $11,667,368.00 | As specified in the DCP | $11,667,368.00 | 100 |
| Intersection Projects | $5,128,274.00 | As specified in the DCP | $5,128,274.00 | 100 |
| Recreation | $27,764,804.00 | As specified in the DCP | $19,435,716.00 | 95 |
| Community Centres | $6,236,246.00 | As specified in the DCP | $4,427,735.00 | 71 |
| Contingency | $3,648,648.00 | As specified in the DCP | $3,648,648.00 | 100 |
| **TOTAL** | **$54,445,340.00** | | **$44,307,741.00** | **94** |

## 3.0 Summary of contributions

09/11/2017
GC75

| FACILITY | LEVIES PAYABLE BY THE DEVELOPMENT | | | | |
|---|---|---|---|---|---|
| | Development Infrastructure | Community infrastructure | | All infrastructure | |
| | residential & non-residential (per NDHa) | Residential (Per dwelling) | non-residential (Per dwelling) | residential | non-residential |
| Road Projects | $48,369 | Refer to DCP | Refer to DCP | $48,369 | $48,369 |
| Intersection Projects | $21,260 | Refer to DCP | Refer to DCP | $21,260 | $21,260 |
| Recreation | $80,574 | Refer to DCP | Refer to DCP | $80,574 | $80,574 |
| Community Centres | $18,356 | Refer to DCP | Refer to DCP | $18,356 | $18,356 |
| Contingency | $16,080 | Refer to DCP | Refer to DCP | $16,080 | $16,080 |
| **TOTAL** | **$184,639** | **$1,150** | **$1,150** | **$184,639 per NDHa + 1,150 per dwelling** | **$184,639 per NDHa + 1,150 per dwelling** |

*Note Levies payable by the development should be specified appropriately, e.g. in $ per lot or $ per hectare.*

### The Community Infrastructure Levy (CIL) payable under this Development Contributions Plan (DCP)

Section 46L of the *Planning and Environment Act 1987* sets the maximum CIL amount that can be collected under an approved DCP

If the maximum amount of the CIL which may be collected under an approved DCP is varied under section 46L of the *Planning and Environment Act 1987*, the collecting agency may adjust the amount of the CIL payable under this DCP in accordance with section 46L of the *Planning and Environment Act 1987*.

If the collecting agency adjusts the amount of the CIL payment under this DCP, the collecting agency will publish the adjusted amount of the CIL payable under this DCP on its website.

## 4.0 Land or development excluded from development contributions plan

15/01/2024
VC249

The development of land for a small second dwelling is exempt from the requirement to pay a development infrastructure levy and a community infrastructure levy.

The development of land for a non-government school (as defined in section 1.1.3 of the *Education and Training Reform Act 2006*).

*Note: This schedule sets out a summary of the costs and contributions prescribed in the development contributions plan. Refer to the incorporated development contributions plan for full details*

09/11/2017
GC75

# SCHEDULE 15 TO CLAUSE 45.06 DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY

Shown on the planning scheme map as **DCPO15.**

## CLYDE DEVELOPMENT CONTRIBUTIONS PLAN

## 1.0 Area covered by this development contributions plan

20/11/2014
C187

All land within the Clyde Development Contributions Plan area shown as DCPO15 on the planning scheme maps.

## 2.0 Summary of costs in Sep 2015 dollars

14/07/2016
C208

| Facility | Total cost $ | Time of provision | Actual cost contribution attributable to development $ | Proportion of cost attributable to development % |
|---|---|---|---|---|
| *Roads* | $77,327,151 | Refer to details in the Clyde Development Contributions Plan. | $74,772,958 | 97% |
| *Intersections* | $145,417,302 | Refer to details in the Clyde Development Contributions Plan. | $134,036,634 | 92% |
| *Bridges* | $4,446,653 | Refer to details in the Clyde Development Contributions Plan. | $4,446,653 | 100% |
| *Community Facilities* | $53,395,471 | Refer to details in the Clyde Contributions Plan. | $53,395,471 | 100% |
| *Active recreation* | $116,549,103 | Refer to details in the Clyde Development Contributions Plan. | $114,428,704 | 98% |
| **TOTAL** | **$397,135,680** | | **$381,080,420** | **96%** |

## 3.0 Summary of contributions for Charge Area 1 (Residential)

09/11/2017
GC75

| Facility | LEVIES PAYABLE BY THE DEVELOPMENT | |
|---|---|---|
| | Development Infrastructure | Community infrastructure |
| | All development | Residential |
| | Per net developable hectare (in Sep 2015 dollars) | Per dwelling |
| *Roads* | $51,914 | $0 |
| *Intersections* | $93,061 | $0 |
| *Bridges* | $3,087 | $0 |
| *Community facilities* | $27,008 | $1,150 |
| *Active recreation* | $73,981 | |
| **TOTAL** | **$249,051** | **$1,150** |

## 3.1 Summary of contributions for Charge Area 2 (Commercial)

09/11/2017
GC75

| Facility | LEVIES PAYABLE BY THE DEVELOPMENT | |
|---|---|---|
| | Development Infrastructure | Community infrastructure |
| | All development | Residential |
| | Per net developable hectare (in Sep 2015 dollars) | Per dwelling |
| *Roads* | $51,914 | $0 |
| *Intersections* | $93,061 | $0 |
| *Bridges* | $3,087 | $0 |
| *Community centres* | $0 | $0 |
| *Active recreation* | $0 | $0 |
| **TOTAL** | **$148,062** | **$0** |

The development infrastructure levy is payable by all development per net developable hectare as set out in the *Clyde Development Contributions Plan*.

**The Community Infrastructure Levy (CIL) payable under this Development Contributions Plan (DCP)**

Section 46L of the *Planning and Environment Act 1987* sets the maximum CIL amount that can be collected under an approved DCP

If the maximum amount of the CIL which may be collected under an approved DCP is varied under section 46L of the *Planning and Environment Act 1987*, the collecting agency may adjust the amount of the CIL payable under this DCP in accordance with section 46L of the *Planning and Environment Act 1987*.

If the collecting agency adjusts the amount of the CIL payment under this DCP, the collecting agency will publish the adjusted amount of the CIL payable under this DCP on its website.

## 4.0 Indexation

20/11/2014
C187

All capital costs of infrastructure items (with the exception of land) will be adjusted quarterly in the following manner:

- Roads, intersections and bridges/culverts will be indexed in line with the Australian Bureau of Statistics Producer Price Indexes, Road and Bridge Construction Index, Victoria.
- All other infrastructure items will be indexed in line with the Australian Bureau of Statistics Producer Price Indexes, Non-Residential Construction Index, Victoria.

## 5.0 Land or development excluded from development contributions plan

15/01/2024
VC249

Land required for the following is exempt from the provisions of this overlay:

- Use and development for a non government school.
- Use and development associated with a dwelling that is existing or approved at the approval date of this provision.
- Railway reservations.

The development of land for a small second dwelling is exempt from the requirement to pay a development infrastructure levy and a community infrastructure levy.

*Note: This schedule sets out a summary of the costs and contributions prescribed in the development contributions plan. Refer to the incorporated development contributions plan for full details.*

09/11/2017
GC75

# SCHEDULE 18 TO CLAUSE 45.06 DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY

Shown on the planning scheme map as **DCPO18.**

## BERWICK WATERWAYS DEVELOPMENT CONTRIBUTIONS PLAN

## 1.0 Area covered by this development contributions plan

20/11/2014
C188

All land within the Berwick Waterways Development Contributions Plan area shown as DCPO18 on the planning scheme maps.

## 2.0 Summary of costs for conventional infrastructure items

09/11/2017
GC75

| Facility | Total cost $ (2014 dollars) | Time of provision | Actual cost contribution attributable to development $ (2014 dollars) | Proportion of cost attributable to development % |
|---|---|---|---|---|
| Arterial roads | 3,888,931 | Consistent with the DCP | 3,888,931 | 100 |
| Intersections | 5,147,558 | Consistent with the DCP | 1,801,645 | 35 |
| Sports facilties | 7,655,211 | Consistent with the DCP | 7,655,211 | 100 |
| Community facilities | 1,698,466 | Consistent with the DCP | 1,698,466 | 100 |
| **TOTAL** | **18,390,166** | | **15,044,254** | |

## 2.1 Summary of contributions for conventional infrastructure items

09/11/2017
GC75

| FACILITY | LEVIES PAYABLE BY THE DEVELOPMENT per net developable hectare (NDHa) otherwise unless specified | | |
|---|---|---|---|
| | Development Infrastructure (in 2014 dollars) | Community infrastructure | All infrastructure |
| Arterial roads | $67,376 | -- | $67,376 per NDHa |
| Intersections | $31,214 | -- | $31,214 per NDHa |
| Sports facilties | $132,627 | -- | $132,627 per NDHa |
| Community facilities | $29,426 | $857 per dwelling | $29,426 per NDHa |
| **TOTAL** | | **$857 per dwelling** | **$260,643 per NDHa + $857 per dwelling** |

### The Community Infrastructure Levy (CIL) payable under this Development Contributions Plan (DCP)

Section 46L of the *Planning and Environment Act 1987* sets the maximum CIL amount that can be collected under an approved DCP

If the maximum amount of the CIL which may be collected under an approved DCP is varied under section 46L of the *Planning and Environment Act 1987*, the collecting agency may adjust the amount of the CIL payable under this DCP in accordance with section 46L of the *Planning and Environment Act 1987*.

If the collecting agency adjusts the amount of the CIL payment under this DCP, the collecting agency will publish the adjusted amount of the CIL payable under this DCP on its website.

## 3.0 Summary of costs for supplementary infrastructure items in 2014 $

09/11/2017
GC75

| Facility | Total cost $ | Time of provision | Actual cost contribution attributable to development $ | Proportion of cost attributable to development % |
|---|---|---|---|---|
| Local roads | 9,645,977 | Consistent with the DCP | 9,645,977 | 100 |
| Local parks | 3,679,160 | Consistent with the DCP | 3,679,160 | 100 |
| **TOTAL** | **13,325,137** | | **13,325,137** | |

## 3.1 Summary of contributions for supplementary infrastructure items in 2014 $

09/11/2017
GC75

| FACILITY | LEVIES PAYABLE BY THE DEVELOPMENT per net developable hectare (NDHa) otherwise unless specified | | |
|---|---|---|---|
| | Development Infrastructure | Community infrastructure | All infrastructure |
| Local roads | $167,117 | -- | $167,117 per NDHa |
| Local parks | $63,742 | -- | $63,742 per NDHa |
| **TOTAL** | **$230,859** | **--** | **$230,859 per NDHa** |

The development infrastructure levy is payable by all development per net developable hectare as set out in the *Berwick Waterways Development Contributions Plan*.

## 4.0 Indexation

20/11/2014
C188

All capital costs of infrastructure items will be adjusted quarterly in the following manner:

- Roads, intersections and bridges / culverts will be indexed in line with the Australian Bureau of Statistics Road and Bridge Construction Index – Victoria.
- All other items will be indexed in line with the Australian Bureau of Statistics Non Residential Construction Index.

## 5.0 Land or development excluded from development contributions plan

15/01/2024
VC249

Land required for the following is exempt from the provisions of this overlay:

- Use and development for a non-government school.
- Use and development associated with a dwelling that is existing or approved at the approval date of this provision.

The development of land for a small second dwelling is exempt from the requirement to pay a development infrastructure levy and a community infrastructure levy.

*Note: This schedule sets out a summary of the costs and contributions prescribed in the development contributions plan. Refer to the incorporated development contributions plan for full details.*

09/11/2017
GC75

# SCHEDULE 19 TO CLAUSE 45.06 DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY

Shown on the planning scheme map as **DCPO19.**

## BROMPTON LODGE DEVELOPMENT CONTRIBUTIONS PLAN

## 1.0 Area covered by this development contributions plan

15/12/2016
C190

All land within the *Brompton Lodge Development Contributions Plan* area shown as DCPO19 on the planning scheme maps.

## 2.0 Summary of costs for conventional infrastructure items in October 2015 dollars

15/12/2016
C190

| Facility | Total cost $ | Time of provision | Actual cost contribution attributable to development $ | Proportion of cost attributable to development % |
|---|---|---|---|---|
| Roads | $6,080,301 | Refer to details in the Brompton Lodge Development Contributions Plan. | $5,714,273 | 94% |
| Intersections | $12,731,367 | Refer to details in the Brompton Lodge Development Contributions Plan. | $12,731,367 | 100% |
| Community centres | $12,354,000 | Refer to details in the Brompton Lodge Development Contributions Plan. | $3,782,834 | 31% |
| Sports fields | $13,185,691 | Refer to details in the Brompton Lodge Development Contributions Plan. | $4,815,238 | 37% |
| **TOTAL** | **$44,351,359** | | **$27,043,713** | **61%** |

## 2.1 Summary of contributions for conventional infrastructure items

09/11/2017
GC75

| FACILITY | LEVIES PAYABLE BY THE DEVELOPMENT | |
|---|---|---|
| | **Development Infrastructure** | **Community infrastructure** |
| | **All development** | **Residential** |
| | **Per net developable hectare (in Oct 2015 dollars)** | **Per dwelling** |
| *Roads* | $73,143 | $0 |
| *Intersections* | $162,963 | $0 |
| *Community facilities* | $48,421 | $690 |
| *Sports Reserve* | $48,526 | $0 |
| **TOTAL** | $333,053 | **$690** |

The development infrastructure levy is payable by all development per net developable hectare as set out in the *Brompton Lodge Development Contributions Plan*.

### The Community Infrastructure Levy (CIL) payable under this Development Contributions Plan (DCP)

Section 46L of the *Planning and Environment Act 1987* sets the maximum CIL amount that can be collected under an approved DCP

If the maximum amount of the CIL which may be collected under an approved DCP is varied under section 46L of the *Planning and Environment Act 1987*, the collecting agency may adjust the amount of the CIL payable under this DCP in accordance with section 46L of the *Planning and Environment Act 1987*.

If the collecting agency adjusts the amount of the CIL payment under this DCP, the collecting agency will publish the adjusted amount of the CIL payable under this DCP on its website.

## 3.0 Indexation

15/12/2016
C190

All capital costs of infrastructure items will be adjusted quarterly in the following manner:

- Roads, intersections and bridges / culverts will be indexed in line with the Australian Bureau of Statistics Road and Bridge Construction Index – Victoria.
- All other items will be indexed in line with the Australian Bureau of Statistics Non Residential Construction Index.

## 4.0 Land or development excluded from development contributions plan

15/01/2024
VC249

Land required for the following is exempt from the provisions of this overlay:

- Use and development for a non-government school.
- Use and development associated with a dwelling that is existing or approved at the approval date of this provision.

The development of land for a small second dwelling is exempt from the requirement to pay a development infrastructure levy and a community infrastructure levy.

*Note: This schedule sets out a summary of the costs and contributions prescribed in the development contributions plan. Refer to the incorporated Brompton Lodge Development Contributions Plan for full details.*

25/07/2019
C224case

# SCHEDULE 20 TO CLAUSE 45.06 DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY

Shown on the planning scheme map as **DCPO20.**

## FOUNTAIN GATE-NARRE WARREN CBD DEVELOPMENT CONTRIBUTIONS PLAN – AREA A

## 1.0 Area covered by this development contributions plan

25/07/2019
C224case

All land within the Fountain Gate-Narre Warren CBD, north of Princes Highway and west of Narre Warren North Road.

## 2.0 Summary of costs

02/12/2022
C259case

| Facility | Total cost $ | Time of provision | Actual cost contribution attributable to development $ | Proportion of cost attributable to development % |
|---|---|---|---|---|
| Distributor roads | $2,800,000 | Refer Development Contributions Plan | $2,800,000 | 100% |
| Traffic management works | $5,250,000 | Refer Development Contributions Plan | $3,609,929 | 68% |
| Streetscape & environment | $1,450,000 | Refer Development Contributions Plan | - | 0% |
| **TOTAL** | **$9,500,000** | | **$6,409,929** | **67%** |

## 3.0 Summary of contributions

02/12/2022
C259case

| Facility | Levies payable by the development ($) | | | | | |
|---|---|---|---|---|---|---|
| | Development infrastructure | | Community infrastructure | | All infrastructure | |
| | residential | non-residential | residential | non-residential | residential | non-residential |
| Distributor roads | $241.54/ dwelling | High Intensity $12.71/ square metre floor space<br>Low Intensity $4.04/ square metre floor space | | | $241.54/ dwelling | High Intensity $12.71/ square metre floor space<br>Low Intensity $4.04/ square metre floor space |
| Traffic management works | $311.40/ dwelling | High Intensity $16.39/ square metre floor space<br>Low Intensity $5.20/ square metre floor space | | | $311.40/ dwelling | High Intensity $16.39/ square metre floor space<br>Low Intensity $5.20/ square metre floor space |

| Facility | Levies payable by the development ($) | | | | | |
|---|---|---|---|---|---|---|
| | Development infrastructure | | Community infrastructure | | All infrastructure | |
| | residential | non-residential | residential | non-residential | residential | non-residential |
| TOTAL | $552.94/ dwelling | High Intensity $29.10/ square metre floor space<br>Low Intensity $9.24/ square | | | $552.94/ dwelling | High Intensity $29.10/ square metre floor space<br>Low Intensity $9.24/ square meter floor space |

*Note: These contribution amounts are current as at 1st July 2004 prices. They will be adjusted annually on July 1 each year to cover inflation, by applying: Building Price Index June Quarter for Melbourne in Rawlinsons Australian Construction Handbook.*

## 4.0 Land or development excluded from development contributions plan

25/07/2019
C224case

None specified.

*Note: This schedule sets out a summary of the costs and contributions prescribed in the development contributions plan. Refer to the incorporated development contributions plan for full details.*
*High Intensity Development is defined as Retail Development. Low Intensity Development is defined as Peripheral Sales/Bulky Goods Retail, Commercial/Office and Civic Development.*

25/07/2019
C224case

# SCHEDULE 21 TO CLAUSE 45.06 DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY

Shown on the planning scheme map as **DCPO21.**

## FOUNTAIN GATE-NARRE WARREN CBD DEVELOPMENT CONTRIBUTIONS PLAN – AREA B

## 1.0 Area covered by this development contributions plan

25/07/2019
C224case

All land within the Fountain Gate-Narre Warren CBD, north of Princes Highway and east of Narre Warren North Road.

## 2.0 Summary of costs

02/12/2022
C259case

| Facility | Total cost $ | Time of provision | Actual cost contribution attributable to development $ | Proportion of cost attributable to development % |
|---|---|---|---|---|
| Distributor roads | $2,800,000 | Refer Development Contributions Plan | - | - |
| Traffic management works | $5,250,000 | Refer Development Contributions Plan | $1,597,071 | 30% |
| Streetscape & environment | $1,450,000 | Refer Development Contributions Plan | $1,450,000 | 100% |
| **TOTAL** | **$9,500,000** | | **$3,047,071** | **32%** |

## 3.0 Summary of contributions

02/12/2022
C259case

| Facility | Levies payable by the development ($) | | | | | |
|---|---|---|---|---|---|---|
| | Development infrastructure | | Community infrastructure | | All infrastructure | |
| | residential | non-residential | residential | non-residential | residential | non-residential |
| Traffic management works | | High Intensity $19.95/ square metre floor space<br>Low Intensity $6.33/ square metre floor space | | | | High Intensity $19.95/ square metre floor space<br>Low Intensity $6.33/ square metre floor space |
| Streetscape & environment | | High Intensity $18.11/ square metre floor space<br>Low Intensity $5.75/ square metre floor space | | | | High Intensity $18.1/ square metre floor space<br>Low Intensity $5.75/ square metre floor space |

| Facility | Levies payable by the development ($) | | | | | |
|---|---|---|---|---|---|---|
| | Development infrastructure | | Community infrastructure | | All infrastructure | |
| | residential | non-residential | residential | non-residential | residential | non-residential |
| **TOTAL** | | **High Intensity $38.06/ square metre floor space**<br>**Low Intensity $12.08/ square metre floor space** | | | | **High Intensity $38.06/ square metre floor space**<br>**Low Intensity $12.08/ square metre floor space** |

*Note: These contribution amounts are current as at 1st July 2004 prices. They will be adjusted annually on July 1 each year to cover inflation, by applying: Building Price Index June Quarter for Melbourne in Rawlinsons Australian Construction Handbook.*

## 4.0 Land or development excluded from development contributions plan

25/07/2019
C224case

None specified.

*Note: This schedule sets out a summary of the costs and contributions prescribed in the development contributions plan. Refer to the incorporated development contributions plan for full details.*
*High Intensity Development is defined as Retail Development. Low Intensity Development is defined as Peripheral Sales/Bulky Goods Retail, Commercial/Office and Civic Development.*

12/09/2025
C286case

## SCHEDULE 22 TO CLAUSE 45.06 DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY

Shown on the planning scheme map as **DCPO22.**

### COLLISON ESTATE DEVELOPMENT CONTRIBUTIONS PLAN

## 1.0 Area covered by this development contributions plan

12/09/2025
C286case

All land within Collison Estate Development Contributions Plan area within the DCPO22.

## 2.0 Summary of levies payable

12/09/2025
C286case

| Charge area | Levies payable by all development ($) | | |
|---|---|---|---|
| | Development infrastructure per net developable hectare | Community infrastructure per net developable hectare | All infrastructure per net developable hectare |
| Main Charge Area. | $945,577.66 | $0 | $945,577.66 |
| **TOTAL** | **$945,577.66** | **$0** | **$945,577.66** |

*Note: These contribution amounts are per net developable hectare, shown at 1st July 2024 prices. They will be adjusted annually on the 1st of July each year to cover inflation, by applying indexation in accordance with section 6.1 of the Collison Estate Development Contributions Plan:*

- *Roads, intersections and bridges – in line with the Australia Bureau of Statistics Producer Price Indexes, Road and Bridge Construction Index, Victoria.*
- *All other infrastructure items – in line with the Australia Bureau of Statistics Producer Price Indexes, Non-Residential Building Construction Index, Victoria.*
- *Land values will be adjusted on 1 July every year following a revaluation by a registered valuer of properties with land required by the Collison Estate Development Contributions Plan. The valuation must be undertaken using the same method and principles as the Collison Estate Development Contributions Plan.*

## 3.0 Land or development excluded from development contributions plan

12/09/2025
C286case

Any levy imposed by the Collison Estate Development Plan does not apply to:

- Development of land for a non-government school.
- Development of land for housing provided by or on behalf of the Chief Executive Officer of Homes Victoria.
- Renovation or alteration to an existing dwelling.
- Reinstatement of a building which has been unintentionally damaged or destroyed.
- Outbuildings no more than 10 square metres in floor area, which are normal to an existing dwelling.
- Fences normal to an existing dwelling.
- Development of land for a small second dwelling.

*Note: This schedule sets out a summary of the contributions prescribed in the development contributions plan. Refer to the incorporated development contributions plan for full details.*

# 45.09 PARKING OVERLAY

09/06/2026
VC311

Shown on the planning scheme map as **PO** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To facilitate an appropriate provision of car parking spaces in an area.

To identify areas and uses where local car parking requirements apply.

To identify areas where financial contributions are to be made for the provision of shared car parking.

## 45.09-1 Operation

09/06/2026
VC311

This overlay operates in conjunction with clause 52.06.

A schedule to this overlay may:

- Vary the requirements of clause 52.06 as allowed by this overlay.
- Specify additional requirements to the requirements of clause 52.06 as allowed by this overlay.
- Specify requirements for the provision of a financial contribution as a way of meeting the car parking requirements of clause 52.06 or this overlay.

## 45.09-2 Parking objectives

19/04/2013
VC95

A schedule to this overlay must specify the parking objectives to be achieved for the area affected by the schedule.

## 45.09-3 Permit requirement

09/06/2026
VC311

A schedule to this overlay may specify that:

- The exemption from the requirement for a permit in clause 52.06-3 does not apply. If the exemption does not apply, a permit is required for any of the matters set out in clause 52.06-3.
- A permit must not be granted to reduce (including reduce to zero) the number of car parking spaces required under clause 52.06-5 or this overlay.
- A permit must not be granted to provide some or all of the car parking spaces required under clause 52.06-5 or this overlay on another site.
- A permit must not be granted to provide more than the maximum parking provision specified in a schedule to this overlay.
- A permit is not required under clause 52.06-3.

## 45.09-4 Car parking requirement

09/06/2026
VC311

A schedule to this overlay included in this planning scheme before the commencement of VC311 may:

- Vary the car parking rate and measure for any use listed in Table 1 of clause 52.06-5.
- Specify the car parking requirements for any use of land not listed in Table 1 of clause 52.06-5.
- Specify maximum and minimum car parking requirements for any use of land.
- For any use listed in Table 1 of clause 52.06-5, apply Column B in the Table to that use.

A schedule to this overlay included in this planning scheme after the commencement of Amendment VC311 may specify a minimum and/or maximum car parking requirement for a use based on the land category identified in the *Car Parking Requirement Maps* (Department of Transport and Planning, 2025).

## 45.09-5 Application requirements and decision guidelines for permit applications

09/06/2026
VC311

Before deciding on an application under clause 52.06-3, in addition to the relevant decision guidelines in clause 52.06-7, the responsible authority must consider, as appropriate:

- The parking objectives of the relevant schedule to this overlay.
- Any application requirements and decision guidelines specified in a schedule to this overlay.

## 45.09-6 Financial contribution requirement

09/06/2026
VC311

A schedule to this overlay may allow a responsible authority to collect a financial contribution in accordance with the schedule as a way of meeting the car parking requirements that apply under this overlay or clause 52.06.

A schedule must specify:

- The area to which the provisions allowing the collection of financial contributions applies.
- The amount of the contribution that may be collected in lieu of each car parking space that is not provided, including any indexation of that amount.
- When any contribution must be paid.
- The purposes for which the responsible authority must use the funds collected under the schedule. Such purposes must be consistent with the objectives in section 4 of the Act.

## 45.09-7 Requirements for a car parking plan

09/06/2026
VC311

A schedule to this overlay may specify additional matters that must be shown on plans prepared under clause 52.06-8.

## 45.09-8 Design standards for car parking

09/06/2026
VC311

A schedule to this overlay may specify:

- Additional design standards.
- Other requirements for the design and management of car parking.

Plans prepared in accordance with clause 52.06-8 must meet any design standards and requirements specified in a schedule to this overlay.

## 45.09-9 Decision guidelines for car parking plans

09/06/2026
VC311

Before deciding whether a plan prepared under clause 52.06-8 is satisfactory, in addition to the decision guidelines in clause 52.06-10, the responsible authority must consider, as appropriate, any other matter specified in a schedule to this overlay.

02/12/2022
C259case

## SCHEDULE 1 TO CLAUSE 45.09 PARKING OVERLAY

Shown on the planning scheme map as **PO1**.

**BERWICK VILLAGE COMMERCIAL CENTRE**

### 1.0 Parking objectives to be achieved

02/12/2022
C259case

To ensure the appropriate provision of car parking spaces in the Berwick Village Commercial Centre.

To facilitate the construction of approximately 246 additional at-grade car parking spaces for the Berwick Village Commercial Centre on land designated for that purpose located west of Gloucester Avenue and south of Richardson Grove to Langmore Lane.

To ensure car parking provision more accurately reflects actual demand rates for the uses of Shop, Restricted retail premises, Restaurant, Hotel, Office and Medical centre.

To restrict the case by case approach to car parking supply and provision.

To enable new uses and developments that generate new car parking demand to proceed.

To achieve an appropriate balance between the demand and supply of parking spaces while allowing new and intensified development.

To enable a cash-in-lieu contribution for car parking provision to be validly imposed on planning permits for land currently within the Commercial 1 Zone (C1Z) within the overlay.

To require car parking provision to be satisfied on site for land within the Commercial 1 Zone (C1Z) and Commercial 2 Zone (C2Z).

To spread the cost of the infrastructure on an equitable basis.

### 2.0 Permit requirement

02/12/2022
C259case

A permit cannot be granted to reduce the car parking requirement for the uses specified in part 3.0 of this Schedule unless car parking entitlements or credits exist.

A permit cannot be granted to reduce the car parking requirement for any other use determined by undertaking an empirical analysis under Clause 52.06, except in accordance with this Schedule.

A permit cannot be granted to reduce the car parking requirement for any other use on the basis of:

- The availability of car parking in the locality.
- The availability of public transport in the locality.
- Any reduction in car parking demand due to the sharing of car spaces by multiple uses, either because of variation of car parking demand over time or because of efficiencies gained from the consolidation of shared car parking spaces.
- Any empirical assessment; or
- Any other relevant consideration.

In any permit that authorises or results in the extension of floor space or an increase in patron numbers, the amount of car parking spaces determined by the responsible authority must be consistent with the amount specified in the scheme for that use.

Where car parking entitlements or credits exist:

- The reduction in the amount of carparking must not be greater than the extent of the credit; and
- The quantum of the credit must be determined having regard to the rates set out in this scheme.

## 3.0 Number of car parking spaces required

02/12/2022
C259case

If a use is specified in the Table below, the number of car parking spaces required for the use is calculated by multiplying the *Rate* specified for the use by the accompanying *Measure*.

**Table: Car parking spaces**

| Use | Rate | Measure |
|---|---|---|
| Hotel | 7.0 | Car spaces per 100 square metres of net leasable floor area |
| Medical centre | 5 | Car spaces per one practitioner, plus |
| | 4 | Car spaces per additional practitioner |
| Office | 3.5 | Car spaces per 100 sq m of net floor area |
| Restaurant | 0.3 | Car spaces to each seat available to the public |
| Restricted retail premises | 1.5 | Car spaces per 100 sq m of leasable floor area |
| Shop (small format - per single occupancy less than 2,000 square metres) | 4.0 | Car spaces per 100 sq m of leasable floor area |
| Shop (large format - per single occupancy greater than 2,000 square metres) | 6.0 | Car spaces per 100 sq m of leasable floor area |

For all other uses listed in Table 1 of Clause 52.06-5, the *Rate* in Column B of Table 1 in Clause 52.06-5 applies.

## 4.0 Application requirements and decision guidelines for permit applications

02/12/2022
C259case

None specified.

## 5.0 Financial contribution requirement

02/12/2022
C259case

For any application for use or development of land in a B1Z within the Parking Overlay (PO) including:

- the use of land for Shop, Restricted retail premises, Restaurant, Hotel, Office or Medical centre;
- the reduction of car parking spaces in connection with any use;
- the expansion of floor area of any use which results in more useable space for patrons;
- the issue of a new permit for an existing use which authorises a higher number of patrons within an existing or redeveloped building, or modifies the hours of use of an existing use; or
- the development of any land for a use in section 1 or 2 of the B1Z,

where car parking is not wholly satisfied on site (net of any car parking credits or entitlements) Council may accept a cash contribution in lieu of parking.

The cash contribution is $16,935 (excl. GST) in respect of each car parking space or part thereof which is required under this Scheme and which is not provided on the land (but net of car parking entitlements and credits) and must be paid to the responsible authority.

These contribution amounts are current as at 1 July 2006.

The land component of the contribution, being $13,650 will be adjusted quarterly from 1 October 2006 by applying the Consumer Price Index, Melbourne, in Rawlinsons Australian Construction Handbook.

The capital works component of the contribution, being $3285 will be adjusted quarterly from 1 October 2006 by applying the Building Price Index, Melbourne, in Rawlinsons Australian Construction Handbook.

Until Council is paid the cash contributions and/or an agreement has, or agreements have been made under section 173 of the Act guaranteeing future payments of the cash contributions for 246 car parking spaces, any permit must contain a condition to the following effect:

*Prior to the commencement of the use or development allowed under this permit, a payment of $16,935 excluding GST, (subject to indexation according to the Scheme), must be paid to the responsible authority in respect of each car parking space required under this Scheme, but which is not provided on the land (net of car spaces provided and parking entitlements and credits) to which the application relates.*

or alternatively;

*Prior to the commencement of the use or development allowed under this permit, the owner of the land must enter into an agreement under section 173 of the Planning and Environment Act 1987 in which the owner agrees to pay a contribution of $16,935 excluding GST (subject to indexation according to the Scheme) in respect of each car parking space which is required under this Scheme, or where a rate is not specified then as determined by the responsible authority, but cannot be provided on the land (net of car spaces provided and parking entitlements and credits) to which the application relates.*

*The agreement may provide for the payment of the contribution in instalments, plus an interest component equivalent to the interest payable on unpaid rates and charges under the Local Government Act 1989 and it must provide that all instalments and accrued interest are paid within 5 years of the first instalment.*

The agreement must allow for the contribution amounts to be indexed from 1 October 2006 in the following manner:

- The responsible authority will adjust the land cost component every quarter, from 1 October 2006, by applying the Consumer Price Index, Melbourne, in Rawlinsons Australian Construction Handbook.
- The responsible authority will adjust the capital works cost component every quarter, from 1 October 2006, by applying the Building Price Index, Melbourne, in Rawlinsons Australian Construction Handbook.

The agreement must also provide for the owner to pay Council's costs of preparing, registering and then upon its ending, removing the agreement from title.

## 6.0 Requirements for a car parking plan

02/12/2022
C259case

None specified.

## 7.0 Design standards for car parking

02/12/2022
C259case

None specified.

## 8.0 Decision guidelines for car parking plans

02/12/2022
C259case

None specified.

## 9.0 Background document

02/12/2022
C259case

Berwick Village Commercial Centre Parking Precinct Plan – 5 September 2006 (Revised 3 February 2009)

28/11/2023
C275case

## SCHEDULE 2 TO CLAUSE 45.09 PARKING OVERLAY

Shown on the planning scheme map as **PO2**.

### CRANBOURNE MAJOR ACTIVITY CENTRE

### 1.0 Parking objectives to be achieved

28/11/2023
C275case

To minimise parking dominating the streetscape by locating it to the side or rear of new development.

To require access to parking areas and loading and service access located within parking areas to be clearly signed to minimise unnecessary vehicle circulation.

To minimise development of at-grade car parking, and where it is provided, encourage parking layouts to be designed so they can be shared between sites.

To minimise reliance on on-street or other publicly accessible parking to improve demand generated by a new use or an intensification of an existing use.

To encourage parking structures (excluding basements or garages integrated within a dwelling or residential building and carports) to be designed with adaptive re-use capabilities including a minimum floor to ceiling height of 3 metres.

### 2.0 Permit requirement

28/11/2023
C275case

The requirements of Clause 52.06-3 apply.

### 3.0 Number of car parking spaces required

28/11/2023
C275case

The *Rate* in Column B of Table 1 in Clause 52.06-5 applies.

### 4.0 Application requirements and decision guidelines for permit applications

28/11/2023
C275case

None specified.

### 5.0 Financial contribution requirement

28/11/2023
C275case

None specified.

### 6.0 Requirements for a car parking plan

28/11/2023
C275case

None specified.

### 7.0 Design standards for car parking

28/11/2023
C275case

None specified.

### 8.0 Decision guidelines for car parking plans

28/11/2023
C275case

None specified.

### 9.0 Background document

28/11/2023
C275case

*Cranbourne Major Activity Centre Structure Plan* (City of Casey, 2020)

*Cranbourne Town Centre Movement and Access Strategy* (GTA Consultants, 2017)

## 45.11 INFRASTRUCTURE CONTRIBUTIONS OVERLAY

31/07/2018
VC148

Shown on the planning scheme map as **ICO** with a number.

### Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To identify the area where an infrastructure contributions plan applies for the purpose of imposing contributions for the provision of infrastructure.

To identify the infrastructure contribution imposed for the development of land.

### 45.11-1 Infrastructure contributions plan

15/05/2018
VC146

A schedule to this overlay must specify the name of the infrastructure contributions plan to which it applies.

The requirements of the relevant infrastructure contributions plan incorporated into this scheme apply to the development of land covered by this overlay.

### 45.11-2 Permit requirement

15/05/2018
VC146

A permit must not be granted to subdivide land, construct a building or construct or carry out works until an infrastructure contributions plan has been incorporated into this scheme.

This does not apply to the construction of a building, the construction or carrying out of works or a subdivision specifically excluded by a schedule to this overlay.

A permit granted must:

- Be consistent with the provisions of the relevant infrastructure contributions plan.
- Include any conditions required to give effect to any levies set out in the relevant schedule to this overlay.

### 45.11-3 Monetary component

15/05/2018
VC146

A schedule to this overlay must specify, if applicable:

- The standard levy rate payable.
- The supplementary levy rate payable.

### 45.11-4 Land component

15/05/2018
VC146

A schedule to this overlay must specify, if applicable:

- The infrastructure contributions plan land contribution percentage for each class of development.
- The parcel contribution percentage for each parcel of land in the infrastructure contributions plan area.
- The land credit amount or land equalisation amount in respect of each parcel of land in the infrastructure contributions plan area.

### 45.11-5 Indexation

15/05/2018
VC146

A schedule to this overlay must specify:

- The method and timing of indexation to be applied to the standard levy rate and any supplementary levy rate of the monetary component.
- The method and timing of adjustment to be applied to the land credit amounts and land equalisation amounts of the land component.

## 45.11-6 Land or development exempt from infrastructure contributions

20/03/2023
VC229

The following land or development of land is exempt from an infrastructure contribution:

- A non-government school.
- Housing provided by or on behalf of the Department of Families, Fairness and Housing.
- For any other land or development of land specified in a schedule to this overlay.

18/04/2019
C261case

# SCHEDULE 1 TO CLAUSE 45.11 INFRASTRUCTURE CONTRIBUTIONS OVERLAY

Shown on the planning scheme map as **ICO1.**

**CARDINIA CREEK SOUTH INFRASTRUCTURE CONTRIBUTIONS PLAN, MARCH 2019**

## 1.0 Permit requirement

18/04/2019
C261case

None specified.

## 2.0 Monetary component – Standard levy

18/04/2019
C261case

| Class of development | Infrastructure category | Levy rate payable |
|---|---|---|
| Residential development | Community and recreation construction | $86,627 |
| | Transport construction | $114,062 |
| | **Total standard levy rate payable** | **$200,689** |

## 3.0 Monetary component – Supplementary levy

18/04/2019
C261case

| Class of development | Infrastructure category | Levy rate payable |
|---|---|---|
| None specified | None specified | None specified |
| | **Total supplementary levy rate payable** | **None specified** |

## 4.0 Infrastructure Contribution Plan (ICP) land contribution percentage

18/04/2019
C261case

| Class of development | ICP land contribution percentage |
|---|---|
| Residential | 13.01% |

## 5.0 Land component

18/04/2019
C261case

| Precinct Structure Plan (PSP) parcel ID | Class of development | Parcel contribution percentage | Land credit amount | Land equalisation amount |
|---|---|---|---|---|
| 1 | Residential | 0.00% | $0.00 | $476,510.59 |
| 2 | Residential | 13.45% | $182,338.61 | $0.00 |
| 3 | Residential | 0.00% | $0.00 | $0.00 |
| 4 | Residential | 15.64% | $2,530,086.95 | $0.00 |
| 5 | Residential | 12.34% | $0.00 | $1,786,462.89 |
| 6 | Residential | 0.00% | $0.00 | $0.00 |
| 7 | Residential | 9.29% | $0.00 | $3,696,541.30 |
| 8 | Residential | 8.42% | $0.00 | $3,201,210.64 |
| 9 | Residential | 0.00% | $0.00 | $258,850.34 |
| 10 | Residential | 22.28% | $8,454,136.60 | $0.00 |
| 11 | Residential | 1.22% | $0.00 | $2,435,959.10 |
| 12 | Residential | 5.22% | $0.00 | $5,446,391.23 |

| Precinct Structure Plan (PSP) parcel ID | Class of development | Parcel contribution percentage | Land credit amount | Land equalisation amount |
|---|---|---|---|---|
| 13 | Residential | 5.01% | $0.00 | $4,948,570.08 |
| 14 | Residential | 12.92% | $0.00 | $1,827.71 |
| 15 | Residential | 0.08% | $0.00 | $2,054,541.78 |
| 16 | Residential | 14.90% | $185,618.26 | $0.00 |
| 17 | Residential | 10.96% | $0.00 | $744,982.80 |
| 18 | Residential | 8.45% | $0.00 | $2,052,551.56 |
| 19 | Residential | 30.01% | $9,584,813.81 | $0.00 |
| 20 | Residential | 22.07% | $11,080,056.89 | $0.00 |
| 21 | Residential | 4.93% | $0.00 | $7,824,652.75 |
| R2 | Residential | 0.00% | $0.00 | $160,869.68 |
| R3 | Residential | 0.00% | $0.00 | $32,850.66 |

*Notes: Refer to Plan 01 of the incorporated Cardinia Creek South Infrastructure Contributions Plan for PSP parcel ID numbers.*

## 6.0 Method and timing of indexation – Standard levy rate

18/04/2019
C261case

| Infrastructure category | Indexation method | Timing |
|---|---|---|
| Community and recreation construction | Australian Bureau of Statistics Producer Price Index for Non-Residential Building Construction - Victoria (Catalogue 6427.0, Table 17, Output of the Construction Industries, subdivision and class index numbers). | 1 July each year |
| Transport construction | Australian Bureau of Statistics Producer Price Index for Road and Bridge Construction - Victoria (Catalogue 6427.0, Table 17, Output of the Construction Industries, subdivision and class index numbers) | 1 July each year |

## 7.0 Method and timing of indexation – Supplementary levy rate

18/04/2019
C261case

| Infrastructure category | Indexation method | Timing |
|---|---|---|
| None Specified | None Specified | None Specified |

## 8.0 Method and timing of adjustment – Land component

18/04/2019
C261case

| Adjustment method | Timing |
|---|---|
| A revised estimate of inner public purpose land value report prepared in accordance with the methodology specified in the Ministerial Direction on the Preparation and Content of Infrastructure Contributions Plans | 1 July each third year |
| Relevant public land index prepared by Valuer-General Vicotria for the 12 month period occuring immeidately before the beginning of the financial year in respect of which the indexted rate is being determined | 1 July each year a revised estiamte is not being prepared |

## 9.0 Land or development exempt from payment of an infrastructure contribution

18/04/2019
C261case

- Use and development associated with a dwelling that is existing or approved at the approval date of this provision.
- Use and development for a non-government school.
- Use and development for accommodation provided by or on behalf of the Department of Health and Human Services.

*Notes:* *This schedule sets out the levies prescribed in the infrastructure contributions plan. Refer to the incorporated Cardinia Creek South Infrastructure Contributions Plan for full details.*

24/06/2021
C269case

# SCHEDULE 2 TO CLAUSE 45.11 INFRASTRUCTURE CONTRIBUTIONS OVERLAY

Shown on the planning scheme map as **ICO2.**

**MINTA FARM INFRASTRUCTURE CONTRIBUTIONS PLAN, APRIL 2021**

## 1.0 Permit requirement

18/07/2019
C266case

None specified.

## 2.0 Monetary component – Standard levy

24/06/2021
C269case

| Class of development | Infrastructure category | Levy rate payable |
|---|---|---|
| Residential development | Community and recreation construction | $91,050 |
| | Transport construction | $126,713 |
| | **Total standard levy rate payable** | **$217,763** |
| Commercial and industrial development | Community and recreation construction | None specified |
| | Transport construction | $126,713 |
| | **Total standard levy rate payable** | **$126,713** |

## 3.0 Monetary component – Supplementary levy

24/06/2021
C269case

| Class of development | Infrastructure category | Levy rate payable |
|---|---|---|
| Residential development | Community and recreation construction | None specified |
| | Transport construction | $112,694.97 |
| | **Total supplementary levy rate payable** | **$112,694.97** |
| Commercial and industrial development | Community and recreation construction | None specified |
| | Transport construction | $112,694.97 |
| | **Total supplementary levy rate payable** | **$112,694.97** |

## 4.0 Infrastructure Contribution Plan (ICP) land contribution percentage

24/06/2021
C269case

| Class of development | ICP land contribution percentage |
|---|---|
| Residential | 15.07% |
| Commercial and industrial | 8.13% |

## 5.0 Land component

24/06/2021
C269case

| Precinct Structure Plan (PSP) parcel ID | Class of development | Parcel contribution percentage | Land credit amount | Land equalisation amount |
|---|---|---|---|---|
| 1-E | Employment | 10.26% | $1,626,988.81 | $0.00 |
| 1-R | Residential | 0.00% | $0.00 | $1,351,996.41 |

| Precinct Structure Plan (PSP) parcel ID | Class of development | Parcel contribution percentage | Land credit amount | Land equalisation amount |
|---|---|---|---|---|
| 2 | Residential | 0.00% | $0.00 | $0.00 |
| 3 | Residential | 36.17% | $1,740,145.63 | $0.00 |
| 4-E | Employment | 10.74% | $2,522,225.34 | $0.00 |
| 4-R | Residential | 22.56% | $13,778,766.05 | $0.00 |
| 5 | Residential | 8.97% | $0.00 | $18,316,129.43 |
| 6 | Residential | 0.00% | $0.00 | $0.00 |

*Notes* *Refer to Plan 01 of the incorporated Minta Farm Infrastructure Contributions Plan for PSP parcel ID numbers.*

## 6.0 Method and timing of indexation – Standard levy rate

18/07/2019
C266case

| Infrastructure category | Indexation method | Timing |
|---|---|---|
| Community and recreation construction | Australian Bureau of Statistics Producer Price Index for Non-Residential Building Construction - Victoria (Catalogue 6427.0, Table 17, Output of the Construction Industries) | 1 July each year |
| Transport construction | Australian Bureau of Statistics Producer Price Index for Road and Bridge Construction - Victoria (Catalogue 6427.0, Table 17, Output of the Construction Industries) | 1 July each year |

## 7.0 Method and timing of indexation – Supplementary levy rate

18/07/2019
C266case

| Infrastructure category | Indexation method | Timing |
|---|---|---|
| Transport construction | Australian Bureau of Statistics Producer Price Indexes Road & Bridge Construction Index, Victoria (Catalogue 6427.0, Table 17 Output of the Construction Industries). | 1 July each year |

## 8.0 Method and timing of adjustment – Land component

18/07/2019
C266case

| Adjustment method | Timing |
|---|---|
| A revised estimate of inner public purpose land value report prepared in accordance with the methodology specified in the Ministerial Direction on the Preparation and Content of Infrastructure Contributions Plan. | 1 July each third year |
| Relevant public land index prepared by Valuer-General Victoria for the 12 month period occurring immediately before the beginning of the financial year in respect of which the indexed rate is being determined. | 1 July each year a revised estimate is not being prepared. |

## 9.0 Land or development exempt from payment of an infrastructure contribution

18/07/2019
C266case

- Use and development for a non-government school.
- Use and development associated with a dwelling that is existing or approved at the approval date of this provision.
- Use and development for accommodation provided by or on behalf of the Department of Health and Human Services.

*Notes:* *This schedule sets out the levies prescribed in the infrastructure contributions plan. Refer to the incorporated infrastructure contributions plan for full details.*

13/03/2026
C296case

# SCHEDULE 3 TO CLAUSE 45.11 INFRASTRUCTURE CONTRIBUTIONS OVERLAY

Shown on the planning scheme map as **ICO3.**

**CROSKELL (EMPLOYMENT) INFRASTRUCTURE CONTRIBUTIONS PLAN, OCTOBER 2025**

## 1.0 Permit requirement

13/03/2026
C296case

None specified

## 2.0 Monetary component – Standard levy

13/03/2026
C296case

| Class of development | Infrastructure category | Levy rate payable |
|---|---|---|
| Residential development | Community and recreation construction | $115, 453 |
| | Transport construction | $150,295 |
| | **Total standard levy rate payable** | **$265,748** |
| Commercial and Industrial development | Transport construction | $150,295 |
| | **Total standard levy rate payable** | **$150,295** |

## 3.0 Monetary component – Supplementary levy

13/03/2026
C296case

| Class of development | Infrastructure category | Levy rate payable |
|---|---|---|
| Residential development | Transport construction | $46,498 |
| | **Total supplementary levy rate payable** | **$46,498** |
| Commercial and Industrial development | Transport construction | $46,498 |
| | **Total supplementary levy rate payable** | **$46,498** |

## 4.0 Infrastructure Contribution Plan (ICP) land contribution percentage

13/03/2026
C296case

| Class of development | ICP land contribution percentage |
|---|---|
| Residential development | 12.40% |
| Commercial and Industrial development | 4.61% |

## 5.0 Land component

13/03/2026
C296case

| Precinct Structure Plan (PSP) parcel ID | Class of development | Parcel contribution percentage | Land credit amount | Land equalisation amount |
|---|---|---|---|---|
| CK-01 | Employment | 4.47% | - | $185,828.24 |
| CK-02 | Employment | - | - | $127,679.14 |
| CK-03 | Employment | - | - | $102,778.16 |
| CK-04 | Employment | - | - | $295,006.80 |
| CK-05 | Employment | 17.07% | $1,796,115.16 | |
| CK-06 | Employment | 2.94% | - | $2,092,048.94 |

| Precinct Structure Plan (PSP) parcel ID | Class of development | Parcel contribution percentage | Land credit amount | Land equalisation amount |
|---|---|---|---|---|
| CK-07 | Employment | - | - | $3,111,312.79 |
| CK-08 | Employment | 3.66% | - | $1,022,566.75 |
| CK-09 | Employment | 0.75% | - | $115,778.56 |
| CK-10 | Employment | 4.81% | $308,470.01 | - |
| CK-11 | Employment | 100% | $433,943.96 | - |
| CK-12 | Employment | 4.32% | - | $9,297.01 |
| CK-13E | Employment | 3.14% | - | $1,788,224.61 |
| CK-13R | Residential | 10.96% | - | $78,935.18 |
| CK-14 | Employment | 5.68% | $3,101,660.98 | $5,593,612.00 |
| CK-15E | Employment | 6.50% | $1,346,025.55 | - |
| CK-15R | Residential | - | - | $3,868,674.42 |
| CK-16 | Residential | - | - | - |
| CK-17 | Residential | 100% | $359,042.48 | - |
| CK-18 | Residential | - | - | - |
| CK-19 | Residential | 9.91% | - | $555,003.94 |
| CK-20 | Residential | 21.61% | $3,427,222.08 | - |
| CK-21 | Residential | 100% | $3,302,548.00 | - |
| CK-22 | Residential | - | - | $2,219,072.60 |
| CK-23 | Residential | - | - | $555,996.38 |
| CK-24 | Residential | 100% | $5,764,006.47 | - |
| CK-25 | Residential | - | - | - |
| CK-26 | Residential | - | - | $1,807,316.32 |
| CK-R01 | Residential | - | - | - |
| CK-R02 | Residential | - | - | - |
| CK-R03 | Residential | - | - | - |
| CK-R04 | Residential | - | - | - |
| CK-R05 | Residential | - | - | - |
| CK-R06 | Residential | - | - | - |
| CK-R07 | Residential | - | - | - |
| CK-R08 | Residential | - | - | - |
| CK-R09 | Residential | - | - | - |
| CK-R10 | Residential | - | - | - |
| CK-R11 | Residential | - | - | - |
| CK-R12 | Residential | - | - | - |
| CK-R13 | Residential | - | - | - |

| Precinct Structure Plan (PSP) parcel ID | Class of development | Parcel contribution percentage | Land credit amount | Land equalisation amount |
|---|---|---|---|---|
| CK-R14 | Residential | - | - | - |
| CK-R15 | Residential | - | - | - |
| CK-R16 | Residential | - | - | - |
| CK-R17 | Residential | - | - | - |
| CK-R18 | Residential | - | - | - |

## 6.0 Method and timing of indexation – Standard levy rate

13/03/2026
C296case

| Infrastructure category | Indexation method | Timing |
|---|---|---|
| Community and recreation construction | Australian Bureau of Statistics Producer Price Index for Non-Residential Building Construction - Victoria (Catalogue 6427.0, Table 17, Output of the Construction Industries) | 1 July each year |
| Transport construction | Australian Bureau of Statistics Producer Price Index for Road and Bridge Construction - Victoria (Catalogue 6427.0, Table 17, Output of the Construction Industries | 1 July each year |

## 7.0 Method and timing of indexation – Supplementary levy rate

13/03/2026
C296case

| Infrastructure category | Indexation method | Timing |
|---|---|---|
| Transport construction | Australian Bureau of Statistics Producer Price Index for Road and Bridge Construction - Victoria (Catalogue 6427.0, Table 17, Output of the Construction Industries) | 1 July each year |

## 8.0 Method and timing of adjustment – Land component

13/03/2026
C296case

| Adjustment method | Timing |
|---|---|
| A revised estimate of inner public purpose land value report prepared in accordance with the methodology specified in the Ministerial Direction on the Preparation and Content of Infrastructure Contributions Plans | 1 July each year |
| Relevant public land index prepared by Valuer-General Victoria for the 12 month period occurring immediately before the beginning of the financial year in respect of which the indexed rate is being determined | 1 July each year a revised estimate is not being prepared |

## 9.0 Land or development exempt from payment of an infrastructure contribution

13/03/2026
C296case

- Use and development associated with a dwelling that is existing or approved at the approval date of this provision.
- Use and development of land for a non-government school.
- Use and development of land for accommodation provided by or on behalf of the Chief Executive Officer of Homes Victoria.
- Use and development of land for a small second dwelling.

*Notes: This schedule sets out the levies prescribed in the infrastructure contributions plan. Refer to the incorporated infrastructure contributions plan for full details.*

## 45.12 SPECIFIC CONTROLS OVERLAY

04/05/2022
VC210

Shown on the planning scheme map as **SCO** with a number.

### Purpose

To apply specific controls designed to achieve a particular land use and development outcome in extraordinary circumstances.

## 45.12-1 Use or development

31/07/2018
VC148

Land affected by this overlay may be used or developed in accordance with a specific control contained in the incorporated document corresponding to the notation on the planning scheme map (as specified in the schedule to this overlay). The specific control may:

- Allow the land to be used or developed in a manner that would otherwise be prohibited or restricted.
- Prohibit or restrict the use or development of the land beyond the controls that may otherwise apply.
- Exclude any other control in this scheme.

## 45.12-2 Expiry of a specific control

31/07/2018
VC148

If a specific control contained in an incorporated document identified in the schedule to this clause allows a particular use or development, that control will expire if any of the following circumstances applies:

- The use and development is not started within two years of the approval date of the incorporated document or another date specified in the incorporated document.
- The development is not completed within one year of the date of commencement of works or another date specified in the incorporated document.

The responsible authority may extend the periods referred to if a request is made in writing before the expiry date or within three months afterwards.

Upon expiry of the specific control, the land may be used and developed only in accordance with the provisions of this scheme.

04/04/2019
GC120

# SCHEDULE TO CLAUSE 45.12 SPECIFIC CONTROLS OVERLAY

## 1.0

14/05/2026
GC148

## Specific controls

| PS Map Ref | Name of incorporated document |
|---|---|
| SCO1 | Monash Freeway Upgrade Project (Stage 2) Incorporated Document, August 2018 |
| SCO2 | '2-106 Soldiers Road, Berwick' Incorporated Document, March 2019 |
| SCO3 | Evans Road, Lyndhurst Level Crossing Removal Project, Incorporated Document June 2019 |
| SCO4 | South Gippsland Highway, Dandenong South Level Crossing Removal Project Incorporated Document, September 2019 |
| SCO5 | Hallam North Road Upgrade (Heatherton Road to James Cook Drive) February 2019 |
| SCO6 | Narre Warren - Cranbourne Road (Thompsons Road to South Gippsland Highway) Upgrade Project Incorporated Document, June 2023 |
| SCO7 | Advertising Signs, 950 Ballarto Road, Botanic Ridge, May 2014 |
| SCO8 | Victorian Desalination Project – Infrastructure Protection Incorporated Document, Minister for Planning, January 2026 |
| SCO9 | Clyde Road, Berwick Level Crossing Removal Project Incorporated Document, February 2020 |
| SCO10 | Cranbourne Line Upgrade Incorporated Document, February 2020 |
| SCO11 | Hall Road (McCormicks Road to Cranbourne-Frankston Road) Upgrade Project Incorporated Document, August 2021 |
| SCO12 | Western Port Highway Upgrade Incorporated Document, August 2021 |
| SCO13 | Rosemaur, 193-209 King Road, Harkaway, Incorporated Document, May 2022 |

## 50 PARTICULAR PROVISIONS

19/01/2006
VC37

This section sets out Particular Provisions which apply to the matters specified.

# 51 PROVISIONS THAT APPLY ONLY TO A SPECIFIED AREA

31/07/2018
VC148

# 51.01 SPECIFIC SITES AND EXCLUSIONS

31/07/2018
VC148

## Purpose

To recognise specific controls designed to achieve a particular land use and development outcome existing on the approval date.

To provide in extraordinary circumstances specific controls designed to achieve a particular land use and development outcome.

## 51.01-1 Use or development

31/07/2018
VC148

Land identified in the schedule to this clause may be used or developed in accordance with the specific controls contained in the incorporated document corresponding to that land. The specific controls may:

- allow the land to be used or developed in a manner that would otherwise be prohibited or restricted;
- prohibit or restrict the use or development of the land beyond the controls that may otherwise apply;
- exclude any other control in this scheme.

## 51.01-2 Expiry of a specific control

31/07/2018
VC148

If a specific control contained in an incorporated document identified in the schedule to this clause allows a particular use or development, that control will expire if any of the following circumstances applies:

- The development and use is not started within two years of the approval date or another date specified in the incorporated document.
- The development is not completed within one year of the date of commencement of works or another date specified in the incorporated document.

The responsible authority may extend the periods referred to if a request is made in writing before the expiry date or within three months afterwards.

Upon expiry of the specific control, the land may be used and developed only in accordance with the provisions of this scheme.

11/10/2018
GC96

# SCHEDULE TO CLAUSE 51.01 SPECIFIC SITES AND EXCLUSIONS

## 1.0

11/06/2020
C265case

## Specific sites and exclusions

| Address of land | Title of incorporated document |
|---|---|
| The Victorian Desalination Project Land as identified in the incorporated document | Victorian Desalination Project Incorporated Document, June 2009 |
| Units 2 & 3/270 South Gippsland Highway, Cranbourne. | Site-Specific Control – Units 2 & 3/270 South Gippsland Highway, Cranbourne, Use of the land as a shop for the sale of fishing supplies, November 2010. |
| The Caulfield Dandenong Rail Upgrade Project land as shown on the maps in the incorporated document. | Caulfield Dandenong Rail Upgrade Project, Incorporated Document. April 2016 |
| Land at 340-350 Princes Highway and adjoining sections of Road Reserve as identified in the incorporated document. | Casey Cultural Precinct Incorporated Document, August 2014 |
| The Monash Freeway Upgrade Project as shown on the project area maps in the incorporated document. | Monash Freeway Upgrade Project Incorporated Document, March 2016 |
| Land required for the Abbotts Road Level Crossing Removal Project land as shown on the maps in the incorporated document. | Abbotts Road Level Crossing Removal Project, Incorporated Document, November 2017 (amended December 2017) |
| Land required for the Hallam Road Upgrade Project as identified in project area map in the incorporated document. | Hallam Road Upgrade (Ormond Road to South Gippsland Highway) Incorporated Document, March 2018 |
| The land identified in Clause 3.0 of the Melbourne Metro Rail Project: Upgrades to the Rail Network Incorporated Document, May 2018. | Melbourne Metro Rail Project: Upgrades to the Rail Network Incorporated Document, May 2018. |

# 51.02 METROPOLITAN GREEN WEDGE LAND: CORE PLANNING PROVISIONS

31/07/2018
VC148

## Purpose

To protect metropolitan green wedge land from uses and development that would diminish its agricultural, environmental, cultural heritage, conservation, landscape natural resource or recreation values.

To protect productive agricultural land from incompatible uses and development.

To ensure that the scale of use is compatible with the non-urban character of metropolitan green wedge land.

To encourage the location of urban activities in urban areas.

To provide transitional arrangements for permit applications made to the responsible authority before 19 May 2004.

To provide deeming provisions for metropolitan green wedge land.

## 51.02-1 Application

25/02/2025
VC257

These provisions apply to land in Metropolitan Melbourne that is outside an Urban Growth Boundary as shown on a planning scheme map in this scheme, unless any of the following apply:

- The land is in a Neighbourhood Residential Zone, General Residential Zone, Residential Growth Zone, Housing Choice and Transport Zone, Low Density Residential Zone, Mixed Use Zone, Township Zone, Industrial 1 Zone, Industrial 2 Zone, Industrial 3 Zone, Commercial 1 Zone, Commercial 2 Zone, Commercial 3 Zone, Public Use Zone, Public Park and Recreation Zone, Public Conservation and Resource Zone, Transport Zone or Urban Floodway Zone.
- The land is identified in the schedule to this clause.

## 51.02-2 Use of land

01/01/2024
VC250

A use listed in the table to this clause is prohibited. This does not apply if a condition opposite the use is met.

### Table to Clause 51.02-2

| Use | Condition |
|---|---|
| **Accommodation (other than Camping and caravan park, Dwelling, Group accommodation, Host farm, Residential building and Small second dwelling)** | |
| **Cinema based entertainment facility** | |
| **Display home centre** | |
| **Dwelling** | Must be the only dwelling on the lot. This does not apply to the replacement of an existing dwelling if the existing dwelling is removed or altered (so it can no longer be used as a dwelling) within one month of the occupation of the replacement dwelling. |
| **Education centre (other than Primary school and Secondary school)** | |
| **Freeway service centre** | |

| Use | Condition |
|---|---|
| **Freezing and cool storage** | The goods stored must be agricultural produce, or products used in agriculture. |
| **Function centre** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>No more than 150 patrons may be present at any time. If used in conjunction with Restaurant, the total number of patrons present at any time must not exceed 150. |
| **Funeral parlour** | |
| **Group accommodation** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>Must be no more than 40 dwellings. |
| **Hospital** | |
| **Indoor recreation facility** | Must be for equestrian based leisure, recreation or sport. |
| **Industry (other than Materials recycling, Refuse disposal, Transfer station, Research and development centre, and Rural industry)** | |
| **Major sports and recreation facility** | Must be for outdoor leisure, recreation or sport. |
| **Manufacturing sales** | Must be an incidental part of Rural industry. |
| **Materials recycling** | Must be used in conjunction with Refuse disposal or Transfer station. |
| **Motor racing track**<br>**Nightclub**<br>**Office** | |
| **Place of assembly (other than Carnival, Cinema based entertainment facility, Circus, Exhibition centre, Function centre, Hall, Nightclub, Place of worship and Restricted place of assembly)** | Must not be used for more than 10 days in a calendar year. |
| **Research and development centre** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery. |
| **Research centre** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery. |

| Use | Condition |
|---|---|
| **Residential building (other than Residential hotel)** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>Must be used to provide accommodation for persons away from their normal place of residence. |
| **Residential hotel** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>Must be no more than 80 bedrooms. |
| **Restaurant** | Must be used in conjunction with Agriculture, Natural systems, Outdoor recreation facility, Rural industry or Winery.<br>No more than 150 patrons may be present at any time. If used in conjunction with Function centre, the total number of patrons present at any time must not exceed 150. |
| **Restricted place of assembly** | Must not be used for more than 30 days in a calendar year. |
| **Retail premises (other than Manufacturing sales, Market, Plant nursery, Primary produce sales and Restaurant)**<br>**Service station** | |
| **Small second dwelling** | Must be no more than one dwelling existing on the lot.<br>Must be the only small second dwelling on the lot.<br>Reticulated natural gas must not be supplied to the building, or part of a building, used for the small second dwelling. |
| **Warehouse (other than Freezing and cool storage, Milk depot, Rural store, Solid fuel depot and Vehicle store)** | |
| **Wind energy facility** | Must not be on land in a Rural Conservation Zone. |

## 51.02-3 Subdivision

31/07/2018
VC148

The subdivision of land to create a lot that is smaller in area than the minimum area specified for the land in the zone is prohibited unless:

- The subdivision is the re-subdivision of existing lots, the number of lots is not increased, and the number of dwellings that the land could be used for does not increase.
- The subdivision is by a public authority or utility service provider to create a lot for a utility installation.

## 51.02-4 Existing uses

31/07/2018
VC148

If an existing use right is established by these provisions, Clauses 63.05 and 63.08 apply to the use as if the use were in Section 3 of a zone.

## 51.02-5 Transitional arrangements for permit applications

31/07/2018
VC148

The requirements of the planning scheme as in force immediately before 19 May 2004, continue to apply to a permit application made before that date to the extent that, but for this clause, Clauses 35.04, 35.05, 35.06 or this clause would apply to such an application. This does not apply to a permit application to subdivide land.

## 51.02-6 Deeming provisions for land outside an urban growth boundary

31/07/2018
VC148

Any reference in this planning scheme to a Rural Zone or a schedule to a Rural Zone as it applies to land outside an Urban Growth Boundary is deemed to be a reference to a Green Wedge Zone or a schedule to a Green Wedge Zone.

Any reference in this planning scheme to a Rural Living Zone or a schedule to a Rural Living Zone as it applies to land outside an Urban Growth Boundary is deemed to be a reference to a Green Wedge A Zone or a schedule to a Green Wedge A Zone.

Any reference in this planning scheme to an Environmental Rural Zone or a schedule to an Environmental Rural Zone as it applies to land outside an Urban Growth Boundary is deemed to be a reference to a Rural Conservation Zone or a schedule to a Rural Conservation Zone.

02/12/2022
C259case

# SCHEDULE TO CLAUSE 51.02 METROPOLITAN GREEN WEDGE LAND: CORE PLANNING PROVISIONS

## 1.0 Land where core planning provisions do not apply

02/12/2022
C259case

| Land |
| --- |
| None specified |

# 52 PROVISIONS THAT REQUIRE, ENABLE OR EXEMPT A PERMIT

31/07/2018
VC148

# 52.01 COMBUSTIBLE CLADDING RECTIFICATION EXEMPTIONS

05/11/2020
VC191

## Purpose

To facilitate the rectification of combustible cladding on buildings.

## 52.01-1 Permit exemption

05/11/2020
VC191

Any requirement of this planning scheme to obtain a permit does not apply to the rectification of combustible cladding on a building:

- In accordance with an emergency order, building notice or building order made under Part 8 of the *Building Act 1993*.
- Owned by the Crown, a Minister, municipal council or public authority, including a public authority established for a public purpose under a Commonwealth Act.

## 52.01-2 Exemption from notice and review

05/11/2020
VC191

An application to amend a permit to allow the rectification of combustible cladding on a building:

- In accordance with an emergency order, building notice or building order made under Part 8 of the *Building Act 1993*; or
- Owned by the Crown, a Minister, municipal council or public authority, including a public authority established for a public purpose under a Commonwealth Act,

is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

# 52.02 EASEMENTS, RESTRICTIONS AND RESERVES

04/02/2026
VC265

## Purpose

To enable the removal and variation of an easement or restrictions to enable a use or development that complies with the planning scheme after the interests of affected people are considered.

## Permit requirement

A permit is required before a person proceeds:

- Under Section 23 of the *Subdivision Act 1988* to create, vary or remove an easement or restriction, or vary or remove a condition in the nature of an easement in a Crown grant.
- Under Section 24A of the *Subdivision Act 1988*.
- Under Section 36 of the *Subdivision Act 1988* to acquire or remove an easement or remove a right of way.

This does not apply:

- If the action is required or authorised by the schedule to this clause.
- In the circumstances set out in Section 6A(3) of the *Planning and Environment Act 1987*.
- If the person proceeds under Section 362A of the *Land Act 1958*.
- In the case of a person proceeding under Section 36 of the *Subdivision Act 1988*, if the council or a referral authority gives a written statement in accordance with Section 36(1)(a) or (b) of the *Subdivision Act 1988*.

In this clause, **restriction** has the same meaning as in the *Subdivision Act 1988*.

## Decision guidelines

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider the interests of affected people.

*Note: Section 23 of the Subdivision Act 1988 provides that either the council or the person benefiting from the direction must lodge a certified plan at the Titles Office for registration.*

02/12/2022
C259case

# SCHEDULE TO CLAUSE 52.02 EASEMENTS, RESTRICTIONS AND RESERVES

## 1.0

13/03/2014
C91

## Under Section 23 of the Subdivision Act 1988

| Land | Easement or restriction | Requirement |
|---|---|---|
| Part Crown Section 13, Vol 5303 Fol 1060584 | Restrictive Covenant contained in Instrument of Transfer No. 1286817 | Remove |
| Lot 1 on Lodged Plan 222038B, Vol 10021 Fol 769 (No. 69 Caserta Drive, Berwick) and Lot 2 on Lodged Plan 222038B, Vol 10021 Fol 770 (No. 67 Caserta Drive, Berwick) | Restrictive covenant contained in Instrument of Transfer No. N294685R | Vary the restrictive covenant to allow for the construction of a dwelling on each lot |
| Lot 822 on Registered Plan No. LP211707U contained in Certificate of Title Volume 5822 Folio 249 (91 Fleetwood Drive, Narre Warren). | Restrictive covenant contained in Instrument of Transfer No. N697335A | Vary the restrictive covenant to allow moveable or dependent person's units to be constructed of materials other than those listed in the covenant. |

## 2.0

19/01/2006
VC37

## Under Section 24A of the Subdivision Act 1988

| Land | Person | Action |
|---|---|---|
| Reserve No. 1 on Plan of Subdivision 339029K | Casey City Council | Remove |
| Recreation Reserve on Part Crown Portion 38, Lodged Plan 54141 | Casey City Council | Remove |
| Reserve for drainage shown on Lodged Plan 14237 | Casey City Council | Remove |

## 3.0

02/12/2022
C259case

## Under Section 36 of the Subdivision Act 1988

| Land | Easement or right of way | Requirement |
|---|---|---|
| None specified | | |

# 52.03 STATE RAIL PROJECTS

25/11/2025
VC298

## Purpose

To facilitate the delivery of projects carried out by or on behalf of VIDA Rail.

## 52.03-1 Application

25/11/2025
VC298

This clause applies to the use and development of land (other than the subdivision of land) for projects carried out by or on behalf of VIDA Rail and declared under section 10(1)(b) of the *Major Transport Projects Facilitation Act 2009*.

This clause does not apply to a project for which a document has been incorporated into this planning scheme expressly for that project.

## 52.03-2 Exemption from planning scheme requirements

25/11/2025
VC298

Any requirement of this planning scheme to obtain a permit or any provision of this planning scheme that prohibits the use or development of land, requires the use or development of land to be carried out in a particular manner, or requires a specified thing to be done to the satisfaction of a specified person or body, does not apply to any use or development carried out pursuant to Clause 52.03 if the requirements of Clause 52.03 are met.

The provisions of this clause prevail over any inconsistent provision in this planning scheme.

## 52.03-3 Use and development requirements

20/01/2022
VC205

The use and development of land must be undertaken in accordance with the plans and documents approved under this clause, to the satisfaction of the Minister for Planning.

The construction of a building or the construction or carrying out of works in a Floodway Overlay, Land Subject to Inundation Overlay, Special Building Overlay or Urban Floodway Zone must be undertaken to the satisfaction of the relevant floodplain management authority.

The creation or alteration of access to a road in a Transport Zone 2 or land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority and the purpose of acquisition is for a road, must be undertaken to the satisfaction of the Head, Transport for Victoria.

The use and development of land in a Public Acquisition Overlay must be undertaken to the satisfaction of the relevant acquiring authority.

## 52.03-4 Consultation requirement

31/01/2020
VC170

Prior to the commencement of the use or development:

- Public consultation, and consultation with the relevant municipal council, must be undertaken to the satisfaction of the Minister for Planning.
- A report that summarises the feedback provided during consultation and explains how the feedback has been considered and responded to must be prepared to the satisfaction of the Minister for Planning.

## 52.03-5 Project boundary requirement

31/01/2020
VC170

Prior to the commencement of the use or development, a plan that shows the boundary of the land on which the use or development will be undertaken must be prepared to the satisfaction of the Minister for Planning.

## 52.03-6 Other pre-commencement requirements

04/05/2022
VC210

The following requirements may be satisfied for separate components or stages of a project but each requirement must be satisfied prior to the commencement of the use or development for that component or stage.

The following requirements may be varied or waived by the Minister for Planning.

Prior to the commencement of the use or development (other than a preparatory use or development), the following plans and documents must be prepared to the satisfaction of the Minister for Planning:

- An environmental management framework, prepared in consultation with each relevant municipal council, that includes:
  - A summary of key construction methodologies.
  - An overarching framework of measures to reduce and manage environmental and amenity effects during construction.
  - A summary of performance monitoring and reporting processes, including auditing, to ensure environmental and amenity effects are reduced and managed during construction.
  - A summary of how each relevant municipal council, the community and other stakeholders will be engaged during construction, including enquiries and complaints management.

  The environmental management framework must be accompanied by a summary of the consultation with each relevant municipal council that informed the preparation of the environmental management framework.
- If the land is in the Heritage Overlay and the development would require a permit under the overlay were it not for the exemption in Clause 52.03-2:
  - A report that addresses the impact of that development on the heritage significance of the heritage place.
  - Site plans and elevations showing the extent of that development on the land.
  - Photographs of any buildings or works to be demolished or removed, including photographs of the exterior and interior of the building and contextual images of the building's environs and setting.
- If the land is in an Environmental Significance Overlay, a Significant Landscape Overlay or a Vegetation Protection Overlay and the development would require a permit under the overlay were it not for the exemption in Clause 52.03-2, a report that addresses the impact of the development on any environmental, vegetation or landscape significance or objective specified in a schedule to the overlay.
- Any other information the Minister for Planning considers necessary to assist the Minister's assessment of the plans and documents required to be submitted under this clause.

Prior to the commencement of the use of any new open space, an environmental assessment (or similar) that demonstrates that the environmental conditions of the land are suitable for that use must be undertaken to the satisfaction of the Minister for Planning.

## 52.03-7 Native vegetation requirements

04/02/2026
VC265

In this clause:

- ***Guidelines*** means the *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025);
- ***Secretary*** means the Secretary to the Department of Environment, Land, Water and Planning *(as constituted under Part 2 of the Conservation, Forests and Lands Act 1987)*.

The following requirements may be satisfied for separate components or stages of a project. However, each requirement must be satisfied prior to the removal, destruction or lopping of native vegetation for that component or stage.

Prior to the removal, destruction or lopping of native vegetation to enable a preparatory use or development, information about that native vegetation must be submitted to the Secretary. The information must include a description of, and maps showing, the native vegetation to be removed, destroyed or lopped in accordance with application requirement 1 in Table 4 of the Guidelines.

Prior to the removal, destruction or lopping of native vegetation (other than to enable a preparatory use or development):

- Information about that native vegetation in accordance with application requirements 1, 5 and 9 in Table 4 of the Guidelines must be provided to the satisfaction of the Secretary. The information provided to the Secretary must include information about any native vegetation that has been or is to be removed, destroyed or lopped to enable a preparatory use or development.
- The biodiversity impacts from the removal, destruction or lopping of that native vegetation must be offset in accordance with the Guidelines. The biodiversity impacts from the removal, destruction or lopping of native vegetation to enable a preparatory use or development must be included in the total biodiversity impacts when determining the offset.
- Evidence that the required offset has been secured must be provided to the satisfaction of the Secretary.

The Secretary may vary the timing of the above offset requirement if the Secretary considers there are exceptional circumstances to warrant the variation.

The secured offset for the project may be reconciled at the completion of a project in accordance with the *Assessor's handbook – Applications to remove, destroy or lop native vegetation* (Department of Energy, Environment, and Climate Action, 2025).

## 52.03-8 Preparatory use and development

31/01/2020
VC170

For the purposes of Clause 52.03, a preparatory use or development is a use or development required to prepare for the construction of a project. It is limited to the following:

- Use and development that would not require a permit under a provision of this planning scheme were it not for the exemption in Clause 52.03-2.
- Works associated with investigating, testing and surveying land.
- Creation and use of construction access points, accessways and working platforms.
- Site establishment works including construction of temporary site fencing and hoarding, site offices, and hardstand and laydown areas.
- Construction and use of temporary car parking.
- Construction or installation of environment and traffic controls.
- Construction, protection, modification, removal or relocation of utility services, rail signalling, and overhead and associated infrastructure.
- Salvage and relocation of cultural heritage material and other management actions required to be undertaken in compliance with:
  - a cultural heritage management plan approved under the *Aboriginal Heritage Act 2006* or otherwise in compliance with that Act; or
  - the conditions of any permit or consent granted under the *Heritage Act 2017* or otherwise in compliance with that Act.

- Demolition or removal of a building (other than a building in a Heritage Overlay) or works to the minimum extent necessary to enable another preparatory use or development.
- Removal, destruction or lopping of vegetation (other than a tree in the Heritage Overlay specified below) to the minimum extent necessary to enable another preparatory use or development.

For the purposes of Clause 52.03, preparatory development does not include:

- Demolition or removal of a building in a Heritage Overlay.
- Removal, destruction or lopping of a tree in a Heritage Overlay if the schedule to the overlay specifies the heritage place as one where tree controls apply.

# 52.04 TRANSITIONAL PROVISIONS FOR A DEPENDENT PERSONS UNIT

14/12/2023
VC253

## 52.04-1 Purpose

28/03/2024
VC259

To provide transitional provisions for the use or development of land for a dependent person's unit.

## 52.04-2 Application

28/03/2024
VC259

This clause applies to the use and development of land for a dependent person's unit.

For the purposes of clause 52.04 and any reference to a dependent person's unit in this planning scheme, a dependent person's unit means:

*A movable building on the same lot as an existing dwelling and used to provide accommodation for a person dependent on a resident of the existing dwelling.*

## 52.04-3 Exemption from planning scheme requirements

28/03/2024
VC259

Any requirement of this planning scheme to obtain a permit for the use of land or the construction or carrying out of buildings and works, or any provision of this planning scheme that prohibits the use of land or the construction or carrying out of buildings and works, requires the use of land or the construction or carrying out of buildings and works to be carried out in a particular manner, or requires a specified thing to be done to the satisfaction of a specified person or body, does not apply to a dependent person's unit, if the requirements of clause 52.04 are met.

The requirements of clause 52.04 are met if any of the following apply:

- No permit is required under this clause, and any requirement or condition of this clause is met.
- A permit is required under this clause, and a permit has been issued.

The provisions of this clause prevail over any inconsistent provision in this planning scheme.

## 52.04-4 Operation of use of land requirements

03/03/2025
VC266

The following requirements apply to the use of land for a dependent person's unit, as specified in clause 52.04-5.

### Table 1 zones

The use of land for a dependent person's unit in a zone listed in Table 1 does not require a permit. Any condition opposite the zone listed in Table 1 must be met. If the condition is not met, the use of land for a dependent person's unit requires a permit under this clause unless the zone is specifically included in Table 3 as a zone that does not meet the Table 1 condition.

### Table 2 zones

The use of land for a dependent person's unit in a zone listed in Table 2 requires a permit under this clause. Any condition opposite the zone must be met. If the condition is not met, the use of land for a dependent person's unit is prohibited.

### Table 3 zones

The use of land for a dependent person's unit in a zone listed in Table 3 is prohibited.

## 52.04-5 Use of land requirements

25/02/2025
VC257

### Table 1 - Permit not required

| Zone | Condition |
|---|---|
| **Low Density Residential Zone** | Must be the only dependent person's unit on the lot. |
| **Township Zone** | Must meet the requirements of clause 52.04-7. |
| **Mixed Use Zone**<br>**Residential Growth Zone**<br>**General Residential Zone**<br>**Neighbourhood Residential Zone**<br>**Housing Choice and Transport Zone** | Must be the only dependent person's unit on the lot. |
| **Rural Living Zone** | Must be the only dependent person's unit on the lot. |
| **Rural Activity Zone** | Must meet the requirements of clause 52.04-8.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Farming Zone** | Must be the only dependent person's unit on the lot.<br>Must meet the requirements of clause 52.04-8.<br>Must be located more than one kilometre from the nearest title boundary of land subject to:<br>▪ A permit for a wind energy facility; or<br>▪ An application for a permit for a wind energy facility; or<br>▪ An incorporated document approving a wind energy facility; or<br>▪ A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*.<br>Must be located more than 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |
| **Commercial 1 Zone** | Any frontage at ground floor level must not exceed 2 metres |
| **Public Use Zone** | The use must be for the purpose described in the table to clause 36.01-6 which corresponds to the notation on the planning scheme map.<br>The use must be carried out by or on behalf of the public land manager. |
| **Public Park and Recreation Zone** | Must be either of the following: |

| Zone | Condition |
|---|---|
| | ▪ A use conducted by or on behalf of a public land manager, Parks Victoria or the Great Ocean Road Coast and Parks Authority, under the relevant provisions of the *Local Government Act 2020*, the *Reference Areas Act 1978*, the *National Parks Act 1975*, the *Fisheries Act 1995*, the *Wildlife Act 1975*, the *Forest Act 1958*, the *Water Industry Act 1994*, the *Water Act 1989*, the *Marine Safety Act 2010*, the *Port Management Act 1995*, or the *Crown Land (Reserves) Act 1978*.<br>▪ A use specified in an Incorporated plan in a schedule to clause 36.02. |
| **Public Conservation and Resource Zone** | Must be a use conducted by or on behalf of a public land manager, Parks Victoria or the Great Ocean Road Coast and Parks Authority, under the relevant provisions of the *Local Government Act 2020*, the *Reference Areas Act 1978*, the *National Parks Act 1975*, the *Fisheries Act 1995*, the *Wildlife Act 1975*, the *Forests Act 1958*, the *Water Industry Act 1994*, the *Water Act 1989*, the *Marine Safety Act 2010*, the *Port Management Act 1995* or the *Crown Land (Reserves) Act 1978*. |
| **Urban Growth Zone** | Must be the only dependent person's unit on the lot.<br>Must meet the requirements of clause 52.04-8. |

**Table 2 - Permit required**

| Zone | Condition |
|---|---|
| **Low Density Residential Zone**<br>**Township Zone** | Must meet the requirements of clause 52.04-7. |
| **Green Wedge Zone**<br>**Green Wedge A Zone**<br>**Rural Conservation Zone** | Must be the only dependent person's unit on the lot.<br>Must meet the requirements of clause 52.04-8. |
| **Rural Living Zone**<br>**Farming Zone**<br>**Rural Activity Zone** | Must meet the requirements of clause 52.04-8. |
| **Transport Zone** | The use must be for a transport purpose and carried out by or on behalf of a relevant transport manager. |
| **Urban Growth Zone** | Must meet the requirements of clause 52.04-8. |

**Table 3 - Prohibited**

| Zone |
|---|
| **Industrial 1 Zone** |
| **Industrial 2 Zone** |
| **Industrial 3 Zone** |
| **Commercial 2 Zone** |
| **Commercial 3 Zone** |
| **Port Zone** |
| **Public Conservation and Resource Zone – If the table 1 condition is not met** |
| **Urban Floodway Zone** |

## 52.04-6 Use of land requirements in a specified special purpose zone

28/02/2025
VC274

If land is in a Special Use Zone, Comprehensive Development Zone, Capital City Zone, Docklands Zone, Priority Development Zone, Activity Centre Zone or Precinct Zone, the permit requirement in that zone for use of land applies as specified in the schedule to the zone.

If dependent person's unit is not specified in a schedule to the zone, the use of land for a dependent person's unit is subject to the use of land requirements for 'Accommodation'.

## 52.04-7 Use of land requirements in a Low Density Residential Zone and a Township Zone

28/03/2024
VC259

A lot used for a dependent person's unit in a Low Density Residential Zone and a Township Zone must meet the following requirements:

- Each dependent person's unit must be connected to reticulated sewerage, if available. If reticulated sewerage is not available, all wastewater from each dependent person's unit must be treated and retained within the lot in accordance with the requirements in the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system.
- Each dependent person's unit must be connected to a reticulated potable water supply or have an alternative potable water supply, with appropriate storage capacity.
- Each dependent person's unit must be connected to a reticulated electricity supply or have an alternative energy supply.

## 52.04-8 Use of land requirements in a rural zone and an Urban Growth Zone

28/03/2024
VC259

A lot used for a dependent person's unit in a Rural Living Zone, Green Wedge Zone, Green Wedge A Zone, Rural Conservation Zone, Farming Zone, Rural Activity Zone and Urban Growth Zone must meet the following requirements:

- Access to the dependent person's unit must be provided via an all-weather road with dimensions adequate to accommodate emergency vehicles.
- Each dependent person's unit must be connected to reticulated sewerage, if available. If reticulated sewerage is not available, all wastewater from each dwelling must be treated and retained within the lot in in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system.

- The dependent person's unit must be connected to a reticulated potable water supply or have an alternative potable water supply with adequate storage for domestic use as well as for fire fighting purposes.
- The dependent person's unit must be connected to a reticulated electricity supply or have an alternative energy source.

## 52.04-9 Use of land requirements in an Airport Environs Overlay and Melbourne Airport Environs Overlay

28/03/2024
VC259

A permit is required under this clause to use land in an Airport Environs Overlay or a Melbourne Airport Environs Overlay for a dependent person's unit.

Land in an Airport Environs Overlay or a Melbourne Airport Environs Overlay must not be used for:

- More than one dependent person's unit.
- A dependent person's unit if there is an existing small second dwelling on the lot.
- A dependent person's unit if the size of the lot is less than 600 square metres.

## 52.04-10 Buildings and works requirements in a specified overlay

03/03/2025
VC266

A permit is required under the following overlays to construct a building or construct or carry out works for a dependent person's unit:

- Erosion Management Overlay. This does not apply if a schedule to the overlay specifically states that a permit is not required for a dependent person's unit.
- Floodway Overlay. This does not apply if a schedule to the overlay specifically states that a permit is not required for a dependent person's unit.
- Land Subject to Inundation Overlay. This does not apply if a schedule to the overlay specifically states that a permit is not required for a dependent person's unit.
- Special Building Overlay. This does not apply if a schedule to the overlay specifically states that a permit is not required for a dependent person's unit.
- Bushfire Management Overlay. This does not apply to any of the following:
  - If a schedule to the overlay specifically states that a permit is not required for a dependent person's unit.
  - An alteration or extension to an existing building used for a dependent person's unit that is less than 50 percent of the gross floor area of the existing building.

An application under a Bushfire Management Overlay must meet the requirements of clause 53.02-4, unless the application meets all of the requirements specified in a schedule to clause 44.06.

Any other requirement for a dependent person's unit specified in a schedule to an overlay applies.

## 52.04-11 Decision guidelines

28/03/2024
VC259

Before deciding on an application for a permit under clauses 52.04-5, 52.04-6, 52.04-9 or 52.04-10 the responsible authority must consider the decision guidelines of clause 65, including the decision guidelines of the zone or overlay, as appropriate.

## 52.04-12 Expiry

23/03/2026
VC304

Clauses 52.04-1 to 52.04-11 inclusive do not have effect after 28 March 2027.

## 52.04-13 Transitional provisions

23/03/2026
VC304

**VC253**

The requirements of the planning scheme that applied to the use or development of land (other than subdivision) for a dependent person's unit before the approval date of Amendment VC253 continue to apply:

- To a planning permit application for the use or development of land (other than subdivision) for a dependent person's unit lodged before the approval date of Amendment VC253.
- Where a planning permit was not required for the use or development of land (other than subdivision) for a dependent person's unit before the approval date of Amendment VC253 if one of the following applies:
  - A building permit was issued for the development of land (other than subdivision) for a dependent person's unit before the approval date of Amendment VC253.
  - A building surveyor has been appointed to issue a building permit for the development of land (other than subdivision) for a dependent person's unit before the approval date of Amendment VC253. A building permit must be issued within 3 months of the approval date of Amendment VC253.
  - A building surveyor is satisfied, and certifies in writing, that substantial progress was made on the design of the dependent person's unit before the approval date of Amendment VC253. A building permit must be issued within 3 months of the approval date of Amendment VC253.

**VC259**

Despite clause 52.04-12, the requirements of clause 52.04 of the planning scheme continue to apply:

- To a planning permit application for the use or development of land (other than subdivision) for a dependent person's unit lodged after the approval date of VC259 and before 28 March 2027.
- Where a planning permit was not required for the use or development of land (other than subdivision) for a dependent person's unit after the approval date of VC259 and before 28 March 2027, if one of the following applies:
  - A building permit was issued for the development of land (other than subdivision) for a dependent person's unit after the approval date of VC259 and before 28 March 2027.
  - A building surveyor has been appointed to issue a building permit for the development of land (other than subdivision) for a dependent person's unit after the approval date of VC259 and before 28 March 2027, and a building permit is issued by 28 June 2027.

# 52.05 SIGNS

31/07/2018
VC148

## Purpose

To regulate the development of land for signs and associated structures.

To ensure signs are compatible with the amenity and visual appearance of an area, including the existing or desired future character.

To ensure signs do not contribute to excessive visual clutter or visual disorder.

To ensure that signs do not cause loss of amenity or adversely affect the natural or built environment or the safety, appearance or efficiency of a road.

## 52.05-1 Application

31/07/2018
VC148

This clause applies to the development of land for signs.

## 52.05-2 Requirements

28/02/2025
VC274

### Sign categories

Clauses 52.05-11 to 52.05-14 specify categories of sign control. The zone provisions specify which category of sign control applies to the zone.

Each category is divided into three sections.

If a sign can be interpreted in more than one way, the most restrictive requirement must be met.

### Section 1

A sign in Section 1 of the category may be constructed or put up for display without a permit, but all the conditions opposite the sign must be met. If the conditions are not met, the sign is in Section 2.

Some overlays require a permit for Section 1 signs.

### Section 2

A permit is required to construct or put up for display a sign in Section 2.

This does not apply to a sign specified in Clause 52.05-10.

All the conditions opposite the sign must be met. If the conditions are not met, the sign is prohibited.

### Section 3

A sign in Section 3 is prohibited and must not be constructed or put up for display.

### VicSmart applications

Subject to Clause 71.06, an application under this clause for a development specified in Column 1 is a class of VicSmart application and must be assessed against the provision specified in Column 2.

| Class of application | Information requirements and decision guidelines |
|---|---|
| Construct or put up for display a sign in an industrial zone, commercial zone, Special Use Zone, Comprehensive Development Zone, Docklands Zone, Priority Development Zone, Activity Centre Zone or Precinct Zone if:<br>▪ The sign is not within 30 metres of land (not a road) which is in a residential zone. | Clause 59.09 |

| Class of application | Information requirements and decision guidelines |
|---|---|
| ▪ The sign is not a pole sign, a sky sign, a reflective sign, internally illuminated sign, floodlit sign, electronic sign or animated sign.<br>▪ The display area of the sign does not exceed 10 square metres. | |

## 52.05-3 Referral of applications

31/07/2018
VC148

An application to construct or put up for display an animated or electronic sign within 60 metres of a freeway or arterial road declared under the *Road Management Act 2004* must be referred in accordance with section 55 of the Act to the referral authority specified in Clause 66.03 or a schedule to that clause.

## 52.05-4 Expiry of permits

27/10/2025
VC294

A permit for a major promotion sign expires on the date specified in the permit in accordance with clause 52.05-9. If no date is specified, the expiry date is 15 years from the date of issue of the permit.

A permit for a promotion sign that promotes goods, services, an event or any other matter not provided, undertaken or sold on the land or in the building on which the sign is sited expires on the date specified in the permit. If no date is specified, the expiry date is 15 years from the date of issue of the permit.

## 52.05-5 Existing signs

31/07/2018
VC148

A sign that was lawfully displayed on the approval date or that was being constructed or put up for display on that date may be displayed or continue to be displayed and may be repaired and maintained.

The content of a lawfully displayed sign may be renewed or replaced. However, a permit is required if:

- The display area is to be increased.
- The renewal or replacement would result in a different type of sign.

A sign that is reconstructed must meet the relevant sign requirements.

A major promotion sign displayed in accordance with a permit granted between 19 September 1995 and 18 September 1997 may continue to be displayed:

- until 31 December 2008; or
- where a permit application seeking permission to display the sign is lodged before 31 December 2008, until the permit application is finally determined.

## 52.05-6 Application requirements

20/01/2022
VC205

An application must be accompanied by the following information, as appropriate:

### Site context

- A site context report, using a site plan, photographs or other methods to accurately describe:
  - The location of the proposed sign on the site or building and distance from property boundaries.
  - The location and size of existing signage on the site including details of any signs to be retained or removed.

- The location and form of existing signage on abutting properties and in the locality.
- The location of closest traffic control signs.
- Identification of any view lines or vistas that could be affected by the proposed sign.

**Sign details**

- The location, dimensions, height above ground level and extent of projection of the proposed sign.
- The height, width, depth of the total sign structure including method of support and any associated structures such as safety devices and service platforms.
- Details of associated on-site works.
- Details of any form of illumination, including details of baffles and the times at which the sign would be illuminated.
- The colour, lettering style and materials of the proposed sign.
- The size of the display (total display area, including all sides of a multi-sided sign).
- The location of any logo box and proportion of display area occupied by such a logo box.
- For animated or electronic signs, a report addressing the decision guidelines at Clause 52.05-8 relating to road safety.
- Any landscaping details.

**Signs with a display area of 18 square metres or more**

- For a sign with a display area of 18 square metres or more:
  - A description of the existing character of the area including built form and landscapes.
  - The location of any other signs over 18 square metres, or scrolling, electronic or animated signs within 200 metres of the site.
  - Any existing identifiable advertising theme in the area.
  - Photo montages or a streetscape perspective of the proposed sign.
  - Level of illumination including:
    - Lux levels for any sign on or within 60 metres of a Transport Zone 2, Transport Zone 3, a residential zone or public land zone.
    - The dwell and change time for any non-static images.
  - The relationship to any significant or prominent views and vistas.

## 52.05-7 Exemption from notice and review

31/07/2018
VC148

An application for a sign is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act provided the sign:

- Is to be constructed or displayed on land specified in the schedule to this clause.
- Meets any condition specified in the schedule to this clause.

## 52.05-8 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

### All signs

- The character of the area including:
  - The sensitivity of the area in terms of the natural environment, heritage values, waterways and open space, rural landscape or residential character.
  - The compatibility of the proposed sign with the existing or desired future character of the area in which it is proposed to be located.
  - The cumulative impact of signs on the character of an area or route, including the need to avoid visual disorder or clutter of signs.
  - The consistency with any identifiable outdoor advertising theme in the area.
- Impacts on views and vistas:
  - The potential to obscure or compromise important views from the public realm.
  - The potential to dominate the skyline.
  - The potential to impact on the quality of significant public views.
  - The potential to impede views to existing signs.
- The relationship to the streetscape, setting or landscape:
  - The proportion, scale and form of the proposed sign relative to the streetscape, setting or landscape.
  - The position of the sign, including the extent to which it protrudes above existing buildings or landscape and natural elements.
  - The ability to screen unsightly built or other elements.
  - The ability to reduce the number of signs by rationalising or simplifying signs.
  - The ability to include landscaping to reduce the visual impact of parts of the sign structure.
- The relationship to the site and building:
  - The scale and form of the sign relative to the scale, proportion and any other significant characteristics of the host site and host building.
  - The extent to which the sign displays innovation relative to the host site and host building.
  - The extent to which the sign requires the removal of vegetation or includes new landscaping.
- The impact of structures associated with the sign:
  - The extent to which associated structures integrate with the sign.
  - The potential of associated structures to impact any important or significant features of the building, site, streetscape, setting or landscape, views and vistas or area.
- The impact of any illumination:
  - The impact of glare and illumination on the safety of pedestrians and vehicles.
  - The impact of illumination on the amenity of nearby residents and the amenity of the area.
  - The potential to control illumination temporally or in terms of intensity.
- The impact of any logo box associated with the sign:
  - The extent to which the logo box forms an integral part of the sign through its position, lighting and any structures used to attach the logo box to the sign.

  - The suitability of the size of the logo box in relation to its identification purpose and the size of the sign.

- The need for identification and the opportunities for adequate identification on the site or locality.
- The impact on road safety. A sign is a safety hazard if the sign:
  - Obstructs a driver's line of sight at an intersection, curve or point of egress from an adjacent property.
  - Obstructs a driver's view of a traffic control device, or is likely to create a confusing or dominating background that may reduce the clarity or effectiveness of a traffic control device.
  - Could dazzle or distract drivers due to its size, design or colouring, or it being illuminated, reflective, animated or flashing.
  - Is at a location where particular concentration is required, such as a high pedestrian volume intersection.
  - Is likely to be mistaken for a traffic control device, because it contains red, green or yellow lighting, or has red circles, octagons, crosses, triangles or arrows.
  - Requires close study from a moving or stationary vehicle in a location where the vehicle would be unprotected from passing traffic.
  - Invites drivers to turn where there is fast moving traffic or the sign is so close to the turning point that there is no time to signal and turn safely.
  - Is within 100 metres of a rural railway crossing.
  - Has insufficient clearance from vehicles on the carriageway.
  - Could mislead drivers or be mistaken as an instruction to drivers.

**Major promotion signs**

- The effect of the proposed major promotion sign on:
  - Significant streetscapes, buildings and skylines.
  - The visual appearance of a significant view corridor, viewline, gateway location or landmark site identified in a framework plan or local policy.
  - Residential areas and heritage places.
  - Open space and waterways.
- When determining the effect of a proposed major promotion sign, the following locational principles must be taken into account:
  - Major promotion signs are encouraged in commercial and industrial locations in a manner that complements or enhances the character of the area.
  - Major promotion signs are discouraged along forest and tourist roads, scenic routes or landscaped sections of freeways.
  - Major promotion signs are discouraged within open space reserves or corridors and around waterways.
  - Major promotion signs are discouraged where they will form a dominant visual element from residential areas, within a heritage place or where they will obstruct significant viewlines.

- In areas with a strong built form character, major promotion signs are encouraged only where they are not a dominant element in the streetscape and except for transparent feature signs (such as neon signs), are discouraged from being erected on the roof of a building.

## 52.05-9 Mandatory conditions

31/07/2018
VC148

### All signs

A permit for a sign that includes an expiry date must include a condition that provides that on expiry of the permit the sign and structures built specifically to support and illuminate it must be removed.

### Major promotion signs

A permit for a major promotion sign must include conditions that specify:

- That the sign must not:
  - Dazzle or distract drivers due to its colouring.
  - Be able to be mistaken for a traffic signal because it has, for example, red circles, octagons, crosses or triangles.
  - Be able to be mistaken as an instruction to drivers.
- An expiry date that is 15 years from the date the permit is issued unless otherwise specified in this clause. This does not apply to a permit for major promotion sign for a special event or temporary building shrouding.

A permit for a major promotion sign may specify an expiry date other than 15 years, but the date must not be less than 10 years or more than 25 years from the date the permit is issued. Before deciding to alter the specified expiry date of 15 years, the responsible authority must consider, as appropriate:

- The purpose of the sign.
- The existing or desired character of the area.
- The Municipal Planning Strategy and the Planning Policy Framework in terms of the extent to which the proposed sign is consistent with any relevant policy direction and the extent to which the area may be expected to change over time.
- The extent to which the signage is physically and visually integrated into the architecture of the building.

## 52.05-10 Signs not requiring a permit

27/10/2025
VC294

Despite any provision in a zone, overlay, or other particular provision of this scheme, a permit is not required to construct or put up for display any of the following signs:

- A sign identifying the functions or property of a government department, public authority or municipal council, but not a promotion sign displayed at the direction of any of these bodies.
- A sign controlling traffic on a public road, railway, tramway, water or in the air, provided it is displayed at the direction of a government department, public authority or municipal council.
- A sign at a hospital that gives direction to emergency facilities.
- A sign that provides information, warning or direction about weather conditions, public safety, a natural event or an emergency displayed by or with the agreement of a government department, public authority or municipal council.

- A sign in a road reserve that gives direction or guidance about a tourist attraction, service or facility of interest to road users. The sign must be displayed to the satisfaction of the road authority.
- A sign required by statute or regulation, provided it is strictly in accordance with the requirement.
- A sign at a railway station or bus terminal that provides information or direction for people using the station or terminal.
- A sign on a showground, on a motor racing track or on a major sports and recreation facility, provided the sign's display cannot be seen from nearby land.
- A sign with a display area not exceeding 1 square metre to each premises that provides information about a place of worship. It must not be an animated or internally illuminated sign.
- A sign inside a building that cannot generally be seen outside.
- A sign with a display area not exceeding 2 square metres that provides information about a building permit or workplace health and safety. Only one sign may be displayed unless:
  - the land is on a corner allotment, in which case one sign may be erected on each street frontage
  - the land has a street frontage of more than 150 metres, in which case one sign may be erected every 150 metres of each street frontage, with a total of not more than 4 signs.

  The sign must be removed when the work is completed.
- A sign on a hoarding, building shrouding or fence associated with a development that is, or is proposed to be, under construction on the site. The total display area on each street frontage must not exceed 25 percent of the combined area of the hoarding, building shrouding or fence on that street frontage.

  The sign must not be:
  - animated
  - electronic
  - internally illuminated or floodlit
  - displayed for more than two years.

  The sign must be removed when the construction work is complete.
- A flag sign at an Alpine resort (as defined by the *Alpine Resorts Management Act 1997*) that gives direction or information about wayfinding, events, safety and snow sport or mountain bike use, if it is displayed at the direction of Alpine Resorts Victoria. A sign may include a business logo and must only be displayed on a temporary basis.
- A sign with a display area not exceeding 5 square metres publicising a local educational, cultural, political, religious, social or recreational event not held for commercial purposes. Only one sign may be displayed on the land, it must not be an animated or internally illuminated sign and it must not be displayed longer than 14 days after the event is held or 3 months, whichever is sooner. A sign publicising a local political event may include information about a candidate for an election.
- A sign publicising a special event on the land or in the building on which it is displayed, provided no more than 8 signs are displayed in a calendar year and the total number of days the signs are displayed does not exceed 28 in that calendar year. The sign must be removed when the event is finished.

- A sign with a display area not exceeding 2 square metres publicising the sale of goods or livestock on the land or in the building on which it is displayed, provided the land or building is not normally used for that purpose. Only one sign may be displayed, it must not be an animated or internally illuminated sign and it must not be displayed longer than 3 months without a permit.
- A sign with a display area not exceeding 10 square metres publicising the sale or letting of the land on which it is displayed. A permit may be granted for:
  - The display area to exceed 10 square metres if the sign concerns more than 20 lots.
  - The sign to be displayed on land excised from the subdivision and transferred to the municipal council.
  - The sign to be displayed longer than 7 days after the sale date.
- A sign publicising or providing information about Victoria's container deposit scheme under the *Circular Economy (Waste and Recycling) Act 2021*. The sign must be attached to an automated collection point, or a building used for a Container deposit scheme centre. The display area for the sign must not exceed 8 square metres. The sign must not be an animated, floodlit or internally illuminated sign.

No permit is required to fly the Australian flag or to display the flag on a building, painted or otherwise represented, provided it is correctly dimensioned and coloured in accordance with the *Flags Act 1953*.

## 52.05-11 Category 1 - Commercial areas

03/02/2022
VC199

Minimum limitation

### Purpose

To provide for identification and promotion signs and signs that add vitality and colour to commercial areas.

### Section 1 - Permit not required

| Sign | Condition |
|---|---|
| **Bed and breakfast sign**<br>**Business identification sign**<br>**Home based business sign**<br>**Promotion sign** | The total display area of all signs to each premises must not exceed 8 sqm. This does not include a sign with a display area not exceeding 1.5 sqm that is below a verandah or, if no verandah, that is less than 3.7 m above pavement level. |
| **Direction sign** | None specified |
| **Internally illuminated sign** | The total display area to each premises must not exceed 1.5 sqm.<br>No part of the sign may be above a verandah or, if no verandah, more than 3.7 m above pavement level.<br>The sign must be more than 30 m from a residential zone or pedestrian or traffic lights. |

### Section 2 - Permit required

| Sign | Condition |
|---|---|
| **Any sign not in Section 1** | None specified |

### Section 3 - Prohibited

| Sign |
|---|
| Nil |

## 52.05-12 Category 2 - Office and industrial

27/10/2025
VC294

Low limitation

### Purpose

To provide for adequate identification signs and signs that are appropriate to office and industrial areas.

### Section 1 - Permit not required

| Sign | Condition |
|---|---|
| **Bed and breakfast sign**<br>**Business identification sign**<br>**Home based business sign**<br>**Pole sign** | The total display area of all signs to each premises must not exceed 8 sqm. This does not include a direction sign. |
| **Direction sign** | Only one to each premises. |
| **Internally illuminated sign** | The display area must not exceed 1.5 sqm. The sign must be more than 30 m from a residential zone or pedestrian or traffic lights. |
| **Promotion sign** | A promotion sign must promote goods, services, an event or any other matter, that is provided, undertaken or sold or for hire on the land or in the building on which the sign is sited. |

### Section 2 - Permit required

| Sign | Condition |
|---|---|
| **Any sign not in Section 1** | None specified |

### Section 3 - Prohibited

| Sign |
|---|
| Nil |

## 52.05-13 Category 3 - High amenity areas

03/02/2022
VC199

Medium limitation

### Purpose

To ensure that signs in high-amenity areas are orderly, of good design and do not detract from the appearance of the building on which a sign is displayed or the surrounding area.

### Section 1 - Permit not required

| Sign | Condition |
|---|---|
| **Bed and breakfast sign** | Only one to each premises. |
| **Home based business sign** | The display area must not exceed 0.2 sqm. |
| **Direction sign** | None specified |

### Section 2 - Permit required

| Sign | Condition |
|---|---|
| **Above-verandah sign**<br>**Business identification sign** | None specified |
| **Electronic sign** | The display area must not exceed 3 sqm. |
| **Floodlit sign** | None specified |
| **High-wall sign** | Must be a business logo or street number. |
| **Internally illuminated sign**<br>**Pole sign** | None specified |
| **Promotion sign** | The display area must not exceed 3 sqm. |
| **Reflective sign** | None specified |

### Section 3 - Prohibited

| Sign |
|---|
| **Any sign not in Sections 1 or 2** |

## 52.05-14 Category 4 - Sensitive areas

17/10/2023
VC241

Maximum limitation

### Purpose

To provide for unobtrusive signs in areas requiring strong amenity control.

### Section 1 - Permit not required

| Sign | Condition |
|---|---|
| **Bed and breakfast sign** | Only one to each premises. |
| **Home based business sign** | The display area must not exceed 0.2 sqm. |
| **Direction sign** | None specified |

### Section 2 - Permit required

| Sign | Condition |
|---|---|
| **Business identification sign** | The total display area to each premises must not exceed 3 sqm. This does not apply to a Business identification sign on land used for a Freeway service centre or Service station. |
| **Floodlit sign** | Must not be a Promotion sign on land used for an Open sports ground. |
| **Above-verandah sign**<br>**High-wall sign**<br>**Internally illuminated sign**<br>**Pole sign** | Must be on land used for a Freeway service centre or Service station. |
| **Electronic sign** | Must be on land used for a Freeway service centre or Service station.<br>The display area must not exceed 3 sqm. |
| **Promotion sign** | Must be on land used for a Freeway service centre, Service station or Open sports ground.<br>Must promote goods, services, events or matters provided, undertaken or sold on land used for a Freeway service centre or Service station. |

### Section 3 - Prohibited

| Sign |
|---|
| **Any sign not in Sections 1 or 2** |

02/12/2022
C259case

# SCHEDULE TO CLAUSE 52.05 SIGNS

## 1.0

02/12/2022
C259case

## Exemption from notice and review

| Land | Condition |
|---|---|
| None specified | |

# 52.06 CAR PARKING

31/07/2018
VC148

## Purpose

To ensure that car parking is provided in accordance with the Municipal Planning Strategy and the Planning Policy Framework.

To ensure the provision of an appropriate number of car parking spaces having regard to the demand likely to be generated, the activities on the land and the nature of the locality.

To support sustainable transport alternatives to the motor car.

To promote the efficient use of car parking spaces through the consolidation of car parking facilities.

To ensure that car parking does not adversely affect the amenity of the locality.

To ensure that the design and location of car parking is of a high standard, creates a safe environment for users and enables easy and efficient use.

## 52.06-1 Application

18/12/2025
VC277

Clause 52.06 applies to:

- a new use; or
- an increase in the floor area or site area of an existing use; or
- an increase to an existing use specified in Table 1 to clause 52.06-5 by the corresponding measure specified in Table 1 to clause 52.06-5.

This clause does not apply to:

- the extension of one dwelling on a lot in the Neighbourhood Residential Zone, General Residential Zone, Residential Growth Zone, Housing Choice and Transport Zone, Mixed Use Zone or Township Zone; or
- the construction and use of one dwelling on a lot in the Neighbourhood Residential Zone, General Residential Zone, Residential Growth Zone, Housing Choice and Transport Zone, Mixed Use Zone or Township Zone unless the zone or a schedule to the zone specifies that a permit is required to construct or extend one dwelling on a lot; or
- the construction and use of a small second dwelling.

## 52.06-2 Provision of car parking spaces

18/12/2025
VC277

Before:

- a new use commences; or
- the floor area or site area of an existing use is increased; or
- an existing use specified in Table 1 to clause 52.06-5 is increased by the corresponding measure specified in Table 1 to clause 52.06-5,

the minimum number of car parking spaces required under clause 52.06-5 or in a schedule to the Parking Overlay for a use must be provided to the satisfaction of the responsible authority in one or more of the following ways:

- on the land; or
- in accordance with a permit issued under clause 52.06-3; or
- in accordance with a financial contribution requirement specified in a schedule to the Parking Overlay.

If Table 1 to clause 52.06-5, or a schedule to the Parking Overlay, specifies a maximum car parking requirement, the maximum requirement must not be exceeded except in accordance with a permit issued under clause 52.06-3.

## 52.06-3 Permit requirement

18/12/2025
VC277

A permit is required to:

- Reduce (including reduce to zero) the minimum number of car parking spaces required under clause 52.06-5 or in a schedule to the Parking Overlay.
- Provide some or all of the car parking spaces required under clause 52.06-5 or in a schedule to the Parking Overlay on another site.
- Provide more than the maximum parking requirement specified in clause 52.06-5 or in a schedule to the Parking Overlay.

A permit is not required if a schedule to the Parking Overlay specifies that a permit is not required under this clause.

A permit is not required to reduce the minimum number of car parking spaces required for a new use if the following requirements are met:

- The number of car parking spaces required under clause 52.06-5 or in a schedule to the Parking Overlay for the new use is less than or equal to the number of car parking spaces required under clause 52.06-5 or in a schedule to the Parking Overlay for the existing use of the land.
- The number of car parking spaces currently provided in connection with the existing use is not reduced after the new use commences.

A permit is not required to reduce the required number of car parking spaces for a new use of an existing building if the following requirements are met:

- The building is in the Commercial 1 Zone, Commercial 2 Zone, Commercial 3 Zone, Activity Centre Zone or Precinct Zone.
- The gross floor area of the building is not increased.
- The reduction does not exceed 10 car parking spaces.
- The building is not in a Parking Overlay with a schedule that allows a financial contribution to be paid in lieu of the provision of the required car parking spaces for the use.

A permit is not required to provide more car parking spaces than the maximum car parking requirement in clause 52.06-5 if the existing number of car parking spaces on the land exceeds the maximum car parking requirement and no new additional car parking spaces will be provided.

### VicSmart applications

Subject to clause 71.06, an application under this clause to reduce the required number of car parking spaces by no more than 10 car parking spaces is a class of VicSmart application and must be assessed against clause 59.10.

## 52.06-4 Exemption from notice and review

09/06/2026
VC311

An application under clause 52.06-3 is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if:

- the application is only for a permit under clause 52.06-3; or
- the application is also for a permit under another provision of the planning scheme and in respect of all other permissions sought, the application is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act.

## 52.06-5 Car parking requirement calculation

09/06/2026
VC311

Table 1 of this clause sets out the minimum and maximum car parking requirements that apply to a use specified in the table based on the land category identified in the *Car Parking Requirement Maps* (Department of Transport and Planning, 2025) (CPR maps).

A schedule to the Parking Overlay may also specify a minimum and/or maximum car parking requirement that applies to a use based on the land category identified in the CPR maps.

A schedule to the Parking Overlay may specify a car parking requirement for a use by reference to a requirement specified for that use in Table 1.

If the land is shown in two or more categories on the CPR maps, the car parking requirements for the higher category applies to all of the land.

A car parking requirement in Table 1 or a schedule to a Parking Overlay is calculated as either:

- a number of car parking spaces; or
- a percentage of the total site area that must be set aside for car parking.

If a measure refers to a number of people, it means the maximum number of people permitted on the site at any one time.

The car parking requirement for a use specified in Table 1 or a schedule to the Parking Overlay is calculated by multiplying the corresponding number specified in Category 1, 2, 3 or 4 (as applicable) by the corresponding measure. If the measure is specified as a per cent of the site area, the corresponding number specified in Category 1, 2, 3 or 4 is the per cent of the site area to be set aside for car parking.

Where an existing use specified in Table 1 or a schedule to the Parking Overlay is increased by the corresponding measure, the car parking requirement only applies to the increase, provided the existing number of car parking spaces currently being provided in connection with the existing use is not reduced.

If in calculating the number of car parking spaces the result is not a whole number, the required number of car parking spaces is to be rounded down to the nearest whole number.

Where the car parking requirement specified in Table 1 or schedule to the Parking Overlay is calculated as a percentage of the total site area, the area to be provided for car parking includes an accessway that directly abuts any car parking spaces, but does not include any accessway or portion of an accessway that does not directly abut any car parking spaces.

The car parking requirement specified in Table 1 or a schedule to the Parking Overlay includes disabled car parking spaces. The proportion of spaces to be allocated as disabled spaces must be in accordance with Australian Standard AS2890.6-2009 (disabled) and the Building Code of Australia.

A minimum car parking requirement specified in Table 1 does not apply if a schedule to the Parking Overlay specifies a minimum car parking requirement for that use in the same land category.

A maximum car parking requirement specified in Table 1 does not apply if a schedule to the Parking Overlay specifies a maximum car parking requirement for that use in the same land category.

The car parking requirement specified for a use specified in Table 1 does not apply if:

- a car parking requirement for the use is specified under another provision of the planning scheme; or
- a schedule to the Parking Overlay included in this planning scheme before the commencement of Amendment VC311 specifies the number of car parking spaces required for the use.

**Table 1: Car parking requirement**

| Land use | Measure | Category 1 (Minimum Requirement) | Category 2 (Minimum Requirement) | Category 3 (Minimum and Maximum Requirement) | Category 4 (Maximum Requirement) |
|---|---|---|---|---|---|
| Amusement parlour | To each 100 square metres of net floor area | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Art and craft centre | To each 100 square metres of net floor area | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Betting agency | To each 100 square metres of net floor area | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Bowling green | To each rink | 6 | 3 | 0 - minimum<br>3 - maximum | 1.5 |
| Child care centre | To each employee | 1 | 0.5 | 0.25 - minimum<br>No maximum | No maximum |
| Convenience restaurant | To each patron | 0.3 | 0.15 | 0 - minimum<br>0.15 - maximum | 0.08 |
| Display home centre | To each dwelling | 5 | 2.5 | 0 - minimum<br>2.5 - maximum | 1.25 |
| Dwelling | To each dwelling | 1.2 | 1 | 0 - minimum<br>2 - maximum | 2 |
| Education centre - other than specified in this table | To each student | 0.4 | 0.05 | 0 - minimum<br>0.1 - maximum | 0.05 |
| Food and drink premises - other than specified in this table | To each 100 square metres of net floor area | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Freezing and cool storage | To each 100 square metres of net floor area | 1.5 | 0.2 | 0 - minimum<br>0.4 - maximum | 0.2 |
| Fuel depot | Per cent of site area | 10 | 5 | 5 - minimum<br>10 - maximum | 5 |
| Funeral parlour | To each patron | 0.3 | 0.15 | 0 - minimum<br>0.15 - maximum | 0.08 |

| Land use | Measure | Category 1 (Minimum Requirement) | Category 2 (Minimum Requirement) | Category 3 (Minimum and Maximum Requirement) | Category 4 (Maximum Requirement) |
|---|---|---|---|---|---|
| Gambling premises - other than specified in this table | To each 100 square metres of net floor area | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Golf course | To each hole | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Home based business | To each employee not a resident of the dwelling | 1 | 0 | 0 - minimum<br>No maximum | No maximum |
| Industry - other than specified in this table | To each 100 square metres of leasable floor area | 2.9 | 0.4 | 0 - minimum<br>0.8 - maximum | 0.8 |
| Landscape gardening supplies | Per cent of site area | 10 | 5 | 5 - minimum<br>10 - maximum | 5 |
| Mail centre | To each 100 square metres of net floor area | 3.5 | 0.45 | 0 - minimum<br>0.9 - maximum | 0.45 |
| Manufacturing sales | To each 100 square metres of leasable floor area | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Market | To each 100 square metres of site area | 8 | 4 | 5 - minimum<br>6 - maximum | 6 |
| Materials recycling | Per cent of site area | 10 | 5 | 5 - min<br>10 - max | 5 |
| Medical centre | To each 100 square metres of leasable floor area | 5 | 3.5 | 0 - minimum<br>5 - maximum | 5 |
| Milk depot | Per cent of site area | 10 | 5 | 5 - minimum<br>10 - maximum | 5 |
| Motel | To each bedroom | 1 | 1 | 0 - minimum<br>0.5 - maximum | 0.2 |
| Office - other than specified in this table | To each 100 square metres of net floor area | 3.5 | 0.45 | 0 - minimum<br>0.9 - maximum | 0.45 |

| Land use | Measure | Category 1 (Minimum Requirement) | Category 2 (Minimum Requirement) | Category 3 (Minimum and Maximum Requirement) | Category 4 (Maximum Requirement) |
|---|---|---|---|---|---|
| Place of assembly - other than specified in this table | To each patron | 0.3 | 0.15 | 0 - minimum<br>0.15 - maximum | 0.08 |
| Postal agency | To each 100 square metres of net floor area | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Primary produce sales | To each 100 square metres of net floor area | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Primary school | To each employee | 1 | 0.5 | 0.25 - minimum<br>No maximum | No maximum |
| Research and development centre | To each 100 square metres of net floor area | 3.5 | 0.45 | 0 - minimum<br>0.9 - maximum | 0.45 |
| Residential aged care facility | To each bedroom | 0.3 | 0.25 | 0.25 - minimum<br>0.45 - maximum | 0.45 |
| Residential village | To each dwelling | 1.2 | 1 | 0 - minimum<br>2 - maximum | 2 |
| Retirement village | To each dwelling | 1.2 | 1 | 0 - minimum<br>2 - maximum | 2 |
| Restricted retail premises | To each 100 square metres of leasable floor area | 3 | 1.5 | 1.5 - minimum<br>2 - maximum | 2 |
| Rooming house | To each bedroom | 0.25 | 0.25 | 0 - minimum<br>0.15 - maximum | 0.1 |
| Saleyard | Per cent of site area | 10 | 5 | 5 - minimum<br>10 - maximum | 5 |
| Secondary school | To each employee | 1 | 0.5 | 0.25 - minimum<br>No maximum | No maximum |

| Land use | Measure | Category 1 (Minimum Requirement) | Category 2 (Minimum Requirement) | Category 3 (Minimum and Maximum Requirement) | Category 4 (Maximum Requirement) |
|---|---|---|---|---|---|
| Shop - other than specified in this table | To each 100 square metres of leasable floor area | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Squash court other than in conjunction with a dwelling | To each court | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Store - other than specified in this table | Per cent of site area | 10 | 5 | 5 - minimum<br>10 - maximum | 5 |
| Supermarket | To each 100 square metres of leasable floor area | 5 | 2.5 | 0 - minimum<br>2.5 - maximum | 1.25 |
| Swimming pool - other than in conjunction with a dwelling | To each 100 square metres of site area | 5.6 | 2.8 | 0 - minimum<br>2.8 - maximum | 2.1 |
| Tennis court - other than in conjunction with a dwelling | To each court | 4 | 2 | 0 - minimum<br>2 - maximum | 1 |
| Trade supplies | Per cent of site area | 10 | 5 | 5 - minimum<br>10 - maximum | 10 |
| Veterinary centre | To each 100 square metres of leasable floor area | 5 | 3.5 | 0 - minimum<br>5 - maximum | 5 |
| Warehouse - other than specified in this table | To each 100 square metres of net floor area | 2 | 0.25 | 0 - minimum<br>0.5 - maximum | 0.5 |
| Winery | To each patron | 0.4 | 0.2 | 0 - minimum<br>0.2 - maximum | 0.1 |

## 52.06-6 Number of car parking spaces required for other uses

16/01/2018
VC142

Where a use of land is not specified in Table 1 or where a car parking requirement is not specified for the use in another provision of the planning scheme or in a schedule to the Parking Overlay, before a new use commences or the floor area or site area of an existing use is increased, car parking spaces must be provided to the satisfaction of the responsible authority. This does not apply to the use of land for a temporary portable land sales office located on the land for sale.

## 52.06-7 Application requirements and decision guidelines for permit applications

18/12/2025
VC277

### For applications to reduce the car parking requirement

An application to reduce (including reduce to zero) the number of car parking spaces required under clause 52.06-5 or in a schedule to the Parking Overlay must be accompanied by a Car Parking Demand Assessment.

The Car Parking Demand Assessment must assess the car parking demand likely to be generated by the proposed:

- new use; or
- increase in the floor areas or site area of the existing use; or
- increase to the existing use by the measure specified in Table 1 to clause 52.06-5 for that use.

The Car Parking Demand Assessment must address the following matters, to the satisfaction of the responsible authority:

- The likelihood of multi-purpose trips within the locality which are likely to be combined with a trip to the land in connection with the proposed use.
- The variation of car parking demand likely to be generated by the proposed use over time.
- The short-stay and long-stay car parking demand likely to be generated by the proposed use.
- The availability of public transport in the locality of the land.
- The convenience of pedestrian and cyclist access to the land.
- The provision of bicycle parking and end of trip facilities for cyclists in the locality of the land.
- The anticipated car ownership rates of likely or proposed visitors to or occupants (residents or employees) of the land.
- Any empirical assessment or case study.

Before granting a permit to reduce the number of spaces, the responsible authority must consider the following, as appropriate:

- The Car Parking Demand Assessment.
- Any relevant local planning policy or incorporated plan.
- The availability of alternative car parking in the locality of the land, including:
  - Efficiencies gained from the consolidation of shared car parking spaces.
  - Public car parks intended to serve the land.
  - On street parking in non residential zones.
  - Streets in residential zones specifically managed for non-residential parking.
- On street parking in residential zones in the locality of the land that is intended to be for residential use.
- The practicality of providing car parking on the site, particularly for lots of less than 300 square metres.
- Any adverse economic impact a shortfall of parking may have on the economic viability of any nearby activity centre.
- The future growth and development of any nearby activity centre.
- Any car parking deficiency associated with the existing use of the land.
- Any credit that should be allowed for car parking spaces provided on common land or by a Special Charge Scheme or cash-in-lieu payment.

- Local traffic management in the locality of the land.
- The impact of fewer car parking spaces on local amenity, including pedestrian amenity and the amenity of nearby residential areas.
- The need to create safe, functional and attractive parking areas.
- Access to or provision of alternative transport modes to and from the land.
- The equity of reducing the car parking requirement having regard to any historic contributions by existing businesses.
- The character of the surrounding area and whether reducing the car parking provision would result in a quality/positive urban design outcome.
- Any other matter specified in a schedule to the Parking Overlay.
- Any other relevant consideration.

**For applications to allow some or all of the required car parking spaces to be provided on another site**

Before granting a permit to allow some or all of the car parking spaces required under clause 52.06-5 or in a schedule to the Parking Overlay to be provided on another site, the responsible authority must consider the following, as appropriate:

- The proximity of the car parking on the alternate site to the subject site.
- The likelihood of the long term provision and availability of the car parking spaces.
- Whether the location of the car parking spaces is consistent with any relevant local policy or incorporated plan.
- Any other matter specified in a schedule to the Parking Overlay.

**For applications to provide more than the maximum car parking provision**

An application to provide more than the maximum parking provision specified in clause 52.06-5 or a schedule to the Parking Overlay must be accompanied by a Car Parking Demand Assessment.

The Car Parking Demand Assessment must assess the car parking demand likely to be generated by the proposed use or increase to the existing use.

The Car Parking Demand Assessment must address the following matters, to the satisfaction of the responsible authority:

- The likelihood of multi-purpose trips within the locality which are likely to be combined with a trip to the land in connection with the proposed use.
- The variation of car parking demand likely to be generated by the proposed use over time.
- The short-stay and long-stay car parking demand likely to be generated by the proposed use.
- The availability of public transport in the locality of the land.
- The convenience of pedestrian and cyclist access to the land.
- The provision of bicycle parking and end of trip facilities for cyclists in the locality of the land.
- The anticipated car ownership rates of likely or proposed visitors to or occupants (residents or employees) of the land.
- Any empirical assessment or case study.

Before granting a permit to provide more than the maximum car parking spaces specified under clause 52.06-5 or in a schedule to the Parking Overlay, the responsible authority must consider the following, as appropriate:

- The Car Parking Demand Assessment.

- Any relevant local planning policy or incorporated plan.
- Whether additional car parking is required for disability parking.
- Any adverse economic impact a shortfall of parking may have on the economic viability of any nearby activity centre.
- The future growth and development of any nearby activity centre.
- Local traffic management in the locality of the land.
- The impact of additional car parking spaces on local amenity, including pedestrian amenity and the amenity of nearby residential areas.
- The need to create safe, functional and attractive parking areas.
- Access to, or provision of, alternative modes of transport to and from the land.
- The character of the surrounding area and whether increasing the car parking provision would result in a quality/positive urban design outcome.
- Any other matter specified in a schedule to the Parking Overlay.
- Any other relevant consideration.

## 52.06-8 Requirement for a car parking plan

18/12/2025
VC277

Plans must be prepared to the satisfaction of the responsible authority before any of the following occurs:

- a new use commences; or
- the floor area or site area of an existing use is increased; or
- an existing use is increased by the measure specified in Table 1 to clause 52.06-5 for that use.

The plans must show, as appropriate:

- All car parking spaces that are proposed to be provided (whether on the land or on other land).
- Access lanes, driveways and associated works.
- Allocation of car parking spaces to different uses or tenancies, if applicable.
- Any landscaping and water sensitive urban design treatments.
- Finished levels, if required by the responsible authority.
- Any other matter specified in a schedule to the Parking Overlay.

Plans must be provided to the responsible authority under clause 52.06-8 wherever clause 52.06 applies, whether or not a permit application is being made under clause 52.06-3 or any other provision of the planning scheme.

Where an application is being made for a permit under clause 52.06-3 or another provision of the planning scheme, the information required under clause 52.06-8 may be included in other plans submitted with the application.

Clause 52.06-8 does not apply where no car parking spaces are proposed to be provided.

## 52.06-9 Design standards for car parking

18/12/2025
VC277

Plans prepared in accordance with clause 52.06-8 must meet the design standards of clause 52.06-9, unless the responsible authority agrees otherwise.

Design standards 1, 3, 6 and 7 do not apply to an application to construct one dwelling on a lot.

### Design standard 1 – Accessways

Accessways must:

- Be at least 3 metres wide.
- Have an internal radius of at least 4 metres at changes of direction or intersection or be at least 4.2 metres wide.
- Allow vehicles parked in the last space of a dead-end accessway in public car parks to exit in a forward direction with one manoeuvre.
- Provide at least 2.1 metres headroom beneath overhead obstructions, calculated for a vehicle with a wheel base of 2.8 metres.
- If the accessway serves four or more car spaces or connects to a road in a Transport Zone 2 or Transport Zone 3, the accessway must be designed so that cars can exit the site in a forward direction.
- Provide a passing area at the entrance at least 6.1 metres wide and 7 metres long if the accessway serves ten or more car parking spaces and is either more than 50 metres long or connects to a road in a Transport Zone 2 or Transport Zone 3.
- Have a corner splay or area at least 50 per cent clear of visual obstructions extending at least 2 metres along the frontage road from the edge of an exit lane and 2.5 metres along the exit lane from the frontage, to provide a clear view of pedestrians on the footpath of the frontage road. The area clear of visual obstructions may include an adjacent entry or exit lane where more than one lane is provided, or adjacent landscaped areas, provided the landscaping in those areas is less than 900mm in height.

If an accessway to four or more car parking spaces is from land in a Transport Zone 2 or Transport Zone 3, the access to the car spaces must be at least 6 metres from the road carriageway.

If entry to the car space is from a road, the width of the accessway may include the road.

### Design standard 2 – Car parking spaces

Car parking spaces and accessways must have the minimum dimensions as outlined in Table 2.

**Table 2: Minimum dimensions of car parking spaces and accessways**

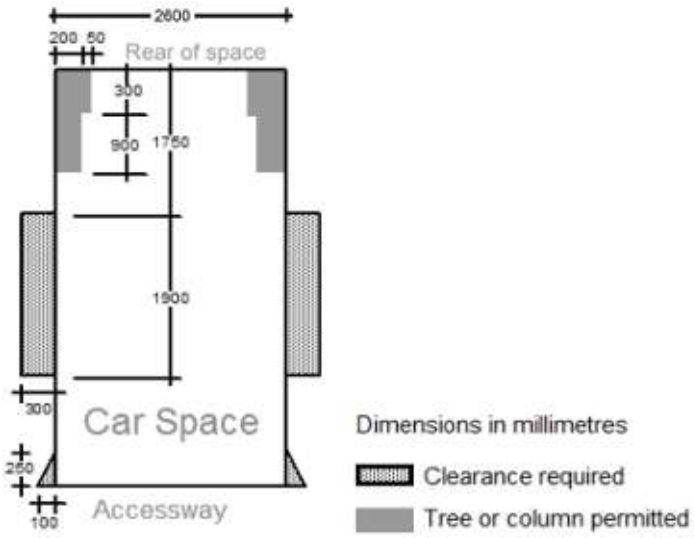
| Angle of car parking spaces to access way | Accessway width | Car space width | Car space length |
|---|---|---|---|
| **Parallel** | 3.6 m | 2.3 m | 6.7 m |
| **45º** | 3.5 m | 2.6 m | 4.9 m |
| **60º** | 4.9 m | 2.6 m | 4.9 m |
| **90º** | 6.4 m | 2.6 m | 4.9 m |
| | 5.8 m | 2.8 m | 4.9 m |
| | 5.2 m | 3.0 m | 4.9 m |
| | 4.8 m | 3.2 m | 4.9 m |

*Note* *Some dimensions in Table 2 vary from those shown in the Australian Standard AS2890.1-2004 (off street). The dimensions shown in Table 2 allocate more space to aisle widths and less to marked spaces to provide improved operation and access. The dimensions in Table 2 are to be used in preference to the Australian Standard AS2890.1-2004 (off street) except for disabled spaces which must achieve Australian Standard AS2890.6-2009 (disabled).*

A wall, fence, column, tree, tree guard or any other structure that abuts a car space must not encroach into the area marked 'clearance required' on Diagram 1, other than:

- A column, tree or tree guard, which may project into a space if it is within the area marked 'tree or column permitted' on Diagram 1.
- A structure, which may project into the space if it is at least 2.1 metres above the space.

**Diagram 1 Clearance to car parking spaces**




Car spaces in garages or carports must be at least 6 metres long and 3.5 metres wide for a single space and 5.5 metres wide for a double space measured inside the garage or carport.

Where parking spaces are provided in tandem (one space behind the other) an additional 500 mm in length must be provided between each space.

Where two or more car parking spaces are provided for a dwelling, at least one space must be under cover.

Disabled car parking spaces must be designed in accordance with Australian Standard AS2890.6-2009 (disabled) and the Building Code of Australia. Disabled car parking spaces may encroach into an accessway width specified in Table 2 by 500mm.

**Design standard 3: Gradients**

Accessway grades must not be steeper than 1:10 (10 per cent) within 5 metres of the frontage to ensure safety for pedestrians and vehicles. The design must have regard to the wheelbase of the vehicle being designed for; pedestrian and vehicular traffic volumes; the nature of the car park; and the slope and configuration of the vehicle crossover at the site frontage. This does not apply to accessways serving three dwellings or less.

Ramps (except within 5 metres of the frontage) must have the maximum grades as outlined in Table 3 and be designed for vehicles travelling in a forward direction.

**Table 3: Ramp gradients**

| Type of car park | Length of ramp | Maximum grade |
|---|---|---|
| **Public car parks** | 20 metres or less | 1:5 (20%) |
| | longer than 20 metres | 1:6 (16.7%) |
| **Private or residential car parks** | 20 metres or less | 1:4 (25%) |
| | longer than 20 metres | 1:5 (20%) |

Where the difference in grade between two sections of ramp or floor is greater that 1:8 (12.5 per cent) for a summit grade change, or greater than 1:6.7 (15 per cent) for a sag grade change, the ramp must include a transition section of at least 2 metres to prevent vehicles scraping or bottoming.

Plans must include an assessment of grade changes of greater than 1:5.6 (18 per cent) or less than 3 metres apart for clearances, to the satisfaction of the responsible authority.

### Design standard 4: Mechanical parking

Mechanical parking may be used to meet the car parking requirement provided:

- At least 25 per cent of the mechanical car parking spaces can accommodate a vehicle height of at least 1.8 metres.
- Car parking spaces that require the operation of the system are not allocated to visitors unless used in a valet parking situation.
- The design and operation is to the satisfaction of the responsible authority.

### Design standard 5: Urban design

Ground level car parking, garage doors and accessways must not visually dominate public space.

Car parking within buildings (including visible portions of partly submerged basements) must be screened or obscured where possible, including through the use of occupied tenancies, landscaping, architectural treatments and artworks.

Design of car parks must take into account their use as entry points to the site.

Design of new internal streets in developments must maximise on street parking opportunities.

### Design standard 6: Safety

Car parking must be well lit and clearly signed.

The design of car parks must maximise natural surveillance and pedestrian visibility from adjacent buildings.

Pedestrian access to car parking areas from the street must be convenient.

Pedestrian routes through car parking areas and building entries and other destination points must be clearly marked and separated from traffic in high activity parking areas.

### Design standard 7: Landscaping

The layout of car parking areas must provide for water sensitive urban design treatment and landscaping.

Landscaping and trees must be planted to provide shade and shelter, soften the appearance of ground level car parking and aid in the clear identification of pedestrian paths.

Ground level car parking spaces must include trees planted with flush grilles. Spacing of trees must be determined having regard to the expected size of the selected species at maturity.

## 52.06-10 Decision guidelines

18/12/2025
VC277

Before deciding that a plan prepared under clause 52.06-8 is satisfactory the responsible authority must consider, as appropriate:

- The role and function of nearby roads and the ease and safety with which vehicles gain access to the site.
- The ease and safety with which vehicles access and circulate within the parking area.
- The provision for pedestrian movement within and around the parking area.
- The provision of parking facilities for cyclists and disabled people.
- The protection and enhancement of the streetscape.
- The provisions of landscaping for screening and shade.
- The measures proposed to enhance the security of people using the parking area particularly at night.

- The amenity of the locality and any increased noise or disturbance to dwellings and the amenity of pedestrians.
- The workability and allocation of spaces of any mechanical parking arrangement.
- The design and construction standards proposed for paving, drainage, line marking, signage, lighting and other relevant matters.
- The type and size of vehicle likely to use the parking area.
- Whether the layout of car parking spaces and access lanes is consistent with the specific standards or an appropriate variation.
- The need for the required car parking spaces to adjoin the premises used by the occupier/s, if the land is used by more than one occupier.
- Whether the layout of car spaces and accessways are consistent with Australian Standards AS2890.1-2004 (off street) and AS2890.6-2009 (disabled).
- The relevant standards of clauses 56.06-2, 56.06-4, 56.06-5, 56.06-7 and 56.06-8 for residential developments with accessways longer than 60 metres or serving 16 or more dwellings.
- Any other matter specified in a schedule to the Parking Overlay.

## 52.06-11 Construction of car parking

18/12/2025
VC277

Where a plan is required under clause 52.06-8, the car parking spaces, access lanes, driveways and associated works and landscaping shown on the plan must be:

- constructed and available for use in accordance with the plan approved by the responsible authority; and
- formed to such levels and drained so that they can be used in accordance with the plan; and
- treated with an all-weather seal or some other durable surface; and
- line-marked or provided with some other adequate means of showing the car parking spaces,

before any of the following occurs:

- the new use commences; or
- the floor area or site area of the existing use is increased; or
- the existing use is increased by the measure specified in Table 1 to clause 52.06-5 for that use.

## 52.06-12 Transitional provisions

09/06/2026
VC311

### Meaning of terms

**In clause 52.06-12:**

- ***current clause*** means clause 52.06-5 as currently in force;
- ***former clause*** means clause 52.06-5 as in force immediately before the day Amendment VC277 came into operation;
- ***transition date*** means the day that is 180 days after the day Amendment VC277 came into operation;
- ***transitional proposal*** means:
  - an application to use or develop land made before the transition date; or
  - an application to use or develop land amended under section 50, 50A or 57A of the Act if the original application was made before the transition date; or
  - an application under clause 52.06 made before the transition date; or

- an application under clause 52.06 amended under section 50, 50A or 57A of the Act if the original application was made before the transition date; or
- a plan provided to the responsible authority under clause 52.06-8 before the transition date; or
- a use for which parking is provided in accordance with a plan approved under clause 52.06-8 if the plan was provided to the responsible authority before the transition date; or
- a new use commenced before the transition date; or
- an increase in the floor area or site area of an existing use before the transition date; or
- an increase to an existing use specified in Table 1 to the current clause by the corresponding measure specified in Table 1 to the current clause before the transition date.

**Transitional provision A**

A reference to 'clause 52.06-5' in the current clause is taken to be a reference to 'clause 52.06-5' in the former clause in respect of a transition proposal (except in relation to a maximum car parking requirement) if both of the following apply:

- The transition proposal is for a use specified in Table 1 to the current clause.
- The number of car parking spaces that would be required for the transition proposal under the former clause is less than the minimum number of car parking spaces required under the current clause.

**Transitional provision B**

The maximum car parking requirement in clause 52.06-2 (other than a maximum parking requirement specified in a schedule to a Parking Overlay) does not apply to, and a permit is not required under clause 52.06-3 to provide more than the maximum parking provision specified in clause 52.06-5 in respect of, the following:

- An application to use or develop land made before the day Amendment VC277 came into operation.
- An application to use or develop land amended under section 50, 50A or 57A of the Act if the original application was made before the day Amendment VC277 came into operation.
- An application under clause 52.06 made before the day Amendment VC277 came into operation.
- An application under clause 52.06 amended under section 50, 50A or 57A of the Act if the original application was made before the day Amendment VC277 came into operation.
- A plan provided to the responsible authority under clause 52.06-8 before the day Amendment VC277 came into operation.
- Car parking provided in accordance with a plan approved under clause 52.06-8 if the plan was provided to the responsible authority before the day Amendment VC277 came into operation.

**Transitional provision C**

Any reference in a schedule to the Parking Overlay to 'clause 52.06-5' is taken to be a reference to the former clause if the schedule was included in this planning scheme before the commencement of Amendment VC311.

# 52.07 EMERGENCY RECOVERY

22/11/2022
VC228

## Purpose

To facilitate and support recovery from emergencies.

To facilitate the construction and use of temporary accommodation following an emergency.

To enable businesses and services to continue operating following an emergency.

To support the provision of materials and infrastructure required for emergency recovery.

## 52.07-1 Exemption from planning scheme requirements

04/11/2022
VC226

Any requirement of this planning scheme to obtain a permit or any provision of this planning scheme that prohibits the use or development of land, requires the use or development of land to be carried out in a particular manner, or requires a specified thing to be done to the satisfaction of a specified person or body, does not apply to any of the following uses or developments if the requirements of clause 52.07 are met:

- The use of land or the construction of a building or the construction or carrying out of works:
  - Associated with recovery carried out by or on behalf of a municipal council or public authority; or
  - For accommodation; or
  - For a use (other than accommodation) that was lawfully carried out in a building immediately before that building was damaged or destroyed by an emergency.
- The removal, destruction or lopping of vegetation.

This exemption does not apply to:

- The requirement in clause 45.03-1.
- The use or development of land to which clause 52.14 applies.

The provisions of this clause prevail over any inconsistent provision in this planning scheme.

## 52.07-2 Information to responsible authority

04/11/2022
VC226

The following requirement does not apply to the use or development of land associated with recovery carried out by or on behalf of a municipal council or public authority.

Before the commencement of a use or the construction of a building under clause 52.07, the following information must be given in writing to the responsible authority and to the satisfaction of the responsible authority:

- A description of the proposed use.
- A description of the proposed building.
- A description of the land on which the use will be carried out or the building will be constructed by:
  - Stating the address of the land; or
  - Stating the title particulars of the land; or
  - Including a plan showing the land; or
  - Any combination of these.

## 52.07-3 Temporary accommodation requirements

04/11/2022
VC226

The following requirements do not apply to the use or development of land associated with recovery carried out by or on behalf of a municipal council or public authority.

Land must only be used for accommodation under this clause to accommodate a person whose principal place of residence was damaged or destroyed by a bushfire on the same land or contiguous land in the same ownership.

Land used for accommodation under this clause must meet the following requirements:

- Access to the accommodation must be provided via an all-weather road with dimensions adequate to accommodate emergency vehicles.
- The accommodation must be connected to reticulated sewerage, if available. If reticulated sewerage is not available, all wastewater from the accommodation must be treated and retained within the lot in accordance with the requirements in the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system or treated and disposed of to the satisfaction of the responsible authority.
- The accommodation must be connected to a reticulated potable water supply or have an alternative potable water supply.
- The accommodation must be connected to a reticulated electricity supply or have an alternative energy source.

The use of land for accommodation under this clause must not continue after 3 years of the commencement of the use unless in accordance with the requirements of this planning scheme.

A building or works constructed or carried out under this clause for accommodation must be on the same land, or on contiguous land in the same ownership, as a building used for accommodation that was damaged or destroyed by a bushfire and must be completed within 18 months of the date that building was damaged or destroyed.

Unless in accordance with the written agreement of the responsible authority, the combined gross floor area of all buildings constructed for accommodation under this clause on contiguous land in the same ownership must not exceed 60 square metres.

## 52.07-4 Continuation of use requirements

04/11/2022
VC226

The following requirements do not apply to the use or development of land:

- For accommodation; or
- Associated with recovery carried out by or on behalf of a municipal council or public authority.

Unless in accordance with the written agreement of the responsible authority, the use of land under this clause for a use that was carried out in a building immediately before that building was damaged or destroyed by an emergency must be carried out on the same land, or on contiguous land in the same ownership, as the damaged or destroyed building.

A use commenced under this clause must not continue after 3 years of its commencement unless in accordance with this planning scheme.

A building or works constructed or carried out under this clause for a use that was carried out in a building damaged or destroyed by an emergency, must be on the same land, or on contiguous land in the same ownership, as the damaged or destroyed building and must be completed within 18 months of the date that building was damaged or destroyed by an emergency.

Unless in accordance with the written agreement of the responsible authority, the combined gross floor area of all buildings constructed under this clause on contiguous land in the same ownership must not exceed 100 square metres.

## 52.07-5 Vegetation removal requirement

04/11/2022
VC226

Vegetation must only be removed, destroyed or lopped to the minimum extent necessary:

- To enable the removal of a building, equipment or other material that was damaged or destroyed by an emergency within 3 years of the date it was damaged or destroyed; or
- To enable the repair or reconstruction of a fence that was damaged or destroyed by an emergency within 3 years of the date it was damaged or destroyed for a combined maximum width of 4 metres either side of the fence.

This requirement does not apply to:

- The removal, destruction or lopping of vegetation within 10 metres of a building constructed for accommodation under this clause; or
- The removal, destruction or lopping of vegetation (other than a tree) within 30 metres of a building constructed for accommodation under this clause; or
- The removal, destruction or lopping of vegetation (other than a tree) within 50 metres of a building constructed for accommodation under this clause in a Bushfire Management Overlay.

## 52.07-6 Other development requirements

04/11/2022
VC226

Development of land in a Bushfire Management Overlay or Erosion Management Overlay that would require a permit, or would be prohibited, under the overlay were it not for the exemption in clause 52.07-1, must be sited to the satisfaction of the responsible authority.

Development of land in a Heritage Overlay that would require a permit, or would be prohibited, under the overlay were it not for the exemption in clause 52.07-1, must be carried out to the satisfaction of the responsible authority.

Development of land in an Urban Floodway Zone, Floodway Overlay, Land Subject to Inundation Overlay or Special Building Overlay that would require a permit, or would be prohibited, under the overlay were it not for the exemption in clause 52.07-1, must be sited to the satisfaction of the relevant floodplain management authority.

## 52.07-7 Exemptions for extractive industry

06/10/2023
VC247

Any requirement of a planning permit, including any condition, or any provision of this planning scheme, that limits, or has the effect of limiting, the hours or days during which an extractive industry may be carried out, does not apply to the quarrying and processing of materials and the dispatch, delivery, loading or unloading of materials if:

- The materials are directly associated with recovery; and
- The quarrying and processing of materials and the dispatch, delivery, loading or unloading of materials occurs within 24 months of an emergency.

## 52.07-8 Meaning of terms

22/11/2022
VC228

In this clause:

- ***emergency*** means:
  - a bushfire; or
  - an earthquake, flood, wind-storm or other natural event;
- ***recovery*** means the assisting of persons and communities affected by emergencies to achieve a proper and effective level of functioning.

# 52.08 EARTH AND ENERGY RESOURCES INDUSTRY

24/01/2020
VC160

## Purpose

To encourage land to be used and developed for exploration and extraction of earth and energy resources in accordance with acceptable environmental standards.

To ensure that geothermal energy extraction, greenhouse gas sequestration, mining and petroleum production are not prohibited land uses.

To ensure that planning controls for the use and development of land for the exploration and extraction of earth and energy resources are consistent with other legislation governing these land uses.

## 52.08-1 Permit requirement

24/01/2020
VC160

A permit is required to use and develop land for earth and energy resources industry unless the table to this clause specifically states that a permit is not required.

### Table of exemptions

| No permit is required to use or develop land for earth and energy resources industry if the following conditions are met: | |
|---|---|
| Extractive industry | Complies with Section 77T of the *Mineral Resources (Sustainable Development) Act 1990*. |
| Geothermal energy exploration | Complies with the *Geothermal Energy Resources Act 2005*. |
| Geothermal energy extraction | Complies with Section 62 of the *Geothermal Energy Resources Act 2005*. |
| Greenhouse gas sequestration exploration | Complies with Section 189 of the *Greenhouse Gas Geological Sequestration Act 2008*. |
| Greenhouse gas sequestration | Complies with Section 191 of the *Geological Sequestration Act 2008*. |
| Mineral exploration | Complies with Section 43(3) of the *Mineral Resources (Sustainable Development) Act 1990*. |
| Mining | Complies with Section 42(7) or Section 42A *Mineral Resources (Sustainable Development) Act 1990*; or<br>Complies with Section 47A of the *Electricity Industry Act 1993*. |
| Petroleum exploration | Complies with Section 118 of the *Petroleum Act 1998*. |
| Petroleum production | Complies with Section 120 of the *Petroleum Act 1998*. |
| Stone exploration | Must not be costeaning or bulk sampling. |

## 52.08-2 Application requirements for mining

24/01/2020
VC160

An application to use and develop land for mining must be accompanied by:

- A copy of a work plan or a variation to an approved work plan that has received statutory endorsement under section 77TD of the *Mineral Resources (Sustainable Development) Act 1990*.
- The written notice of statutory endorsement under section 77TD(1) of the *Mineral Resources (Sustainable Development) Act 1990*.
- Any conditions specified under section 77TD(3) of the *Mineral Resources (Sustainable Development) Act 1990*.

## 52.08-3 Referral requirements for mining

14/05/2021
VC198

An application to use or develop land for mining must be referred under section 55 of the Act to the person or body specified as the referral authority in Clause 66.

Unless the referral authority is the Head, Transport for Victoria, the referral requirement in Clause 66 does not apply if a copy of a work plan or variation to an approved work plan accompanying the application was given to the referral authority under section 77TE of the *Mineral Resources (Sustainable Development) Act 1990*.

# 52.09 EXTRACTIVE INDUSTRY AND EXTRACTIVE INDUSTRY INTEREST AREAS

24/01/2020
VC160

## Purpose

To ensure that use and development of land for extractive industry does not adversely affect the environment or amenity of the area during or after extraction.

To ensure that excavated areas can be appropriately rehabilitated.

To ensure that stone resources, which may be required by the community for future use, are protected from inappropriate use and development.

## 52.09-1 Application

24/01/2020
VC160

This clause applies to an application to use or develop land:

- For extractive industry;
- Within an Extractive Industry Interest Area; or
- Within 500 metres of an existing or proposed extractive industry operation.

## 52.09-2 Application requirements

24/01/2020
VC160

An application to use and develop land for extractive industry must be accompanied by:

- A copy of a work plan or a variation to an approved work plan that has received statutory endorsement under section 77TD of the *Mineral Resources (Sustainable Development) Act 1990.*
- The written notice of statutory endorsement under section 77TD(1) of the *Mineral Resources (Sustainable Development) Act 1990.*
- Any conditions specified under section 77TD(3) of the *Mineral Resources (Sustainable Development) Act 1990.*

These requirements do not apply if the proposed extractive industry is exempt from:

- The requirement to obtain a work plan under section 77G of the *Mineral Resources (Sustainable Development) Act 1990;* or
- The provisions of the *Mineral Resources (Sustainable Development) Act 1990* under section 5AA of that Act.

## 52.09-3 Referral of applications

22/03/2022
VC219

An application must be referred under section 55 of the Act to the person or body specified as the referral authority in Clause 66, if the application is to use or develop land for:

- Extractive industry; or
- Accommodation in a rural zone is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

Unless the referral authority is the Head, Transport for Victoria, the referral requirement in Clause 66 does not apply if a copy of a work plan or variation to an approved work plan accompanying the application was given to the referral authority under section 77TE of the *Mineral Resources (Sustainable Development) Act 1990*.

## 52.09-4 Decision guidelines

24/01/2020
VC160

Before deciding on an application to use and develop land for extractive industry, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The effect of the proposed extractive industry on any native flora and fauna on and near the land.
- The impact of the proposed extractive industry on sites of cultural and historic significance, including any effects on Aboriginal places.
- The effect of the proposed extractive industry on the natural and cultural landscape of the surrounding land and the locality generally.
- The ability of the proposed extractive industry to contain any emissions within the boundaries of the land in accordance with relevant legislation.
- The effect of vehicular traffic, noise, blasting, dust and vibration on the amenity of the surrounding area.
- The ability to rehabilitate the affected land to a form or for a use which is compatible with the natural systems or visual appearance of the surrounding area.
- The ability to rehabilitate the land so it can be used for a purpose or purposes beneficial to the community.
- The effect of the proposed extractive industry on groundwater quality and the impact on any affected water uses.
- The impact of the proposed extractive industry on surface drainage and surface water quality.
- Any proposed provisions, conditions or requirements in a work plan that has received statutory endorsement under the *Mineral Resources (Sustainable Development) Act 1990*.

## 52.09-5 Permit conditions for extractive industry

24/01/2020
VC160

A permit to use and develop land for extractive industry must not include conditions which require the use to cease by a specified date unless either:

- The subject land is situated in or adjoins land which is being developed or is proposed to be developed for urban purposes.
- Such condition is suggested by the applicant.

A permit to use and develop land for extractive industry must include:

- A condition that allows for a period of not less than five years for the use and development to commence before the permit expires under section 68 of the Act.
- Conditions that are consistent with the requirements specified in Clause 52.09-6.

## 52.09-6 Requirements for extractive industry

24/01/2020
VC160

The use and development of land for extractive industry must comply with the following requirements, to the satisfaction of the responsible authority:

- Except in accordance with a permit, no alteration may be made to the natural condition or topography of the land within 20 metres of the boundary of land. This does not apply to driveways, drains, bund walls or landscaping.
- Shrubs and trees must be planted and maintained to screen activity on the land.
- Parking areas must be provided for employees' cars and all vehicles used on the land.

## 52.09-7 Notice of an application

22/03/2022
VC219

Notice of the following kinds of applications must be given in accordance with section 52(1)(c) of the Act to the person or body specified as the person or body to be notified in Clause 66.05:

- An application to use or subdivide land or construct a building for accommodation, child care centre, education centre or hospital:

  - Within an Extractive Industry Interest Area.
  - On land which is within 500 metres of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

- An application to construct a building or construct or carry out works on land for which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.
- An application to use or develop land for accommodation in a rural zone if the building or works associated with the accommodation is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.

This requirement does not apply to:

- An application to extend a building or works.
- An application that is required to be referred to the Secretary under section 55 of the Act.

# 52.10 RECONSTRUCTION AFTER AN EMERGENCY

05/10/2021
VC208

## Purpose

To facilitate the reconstruction of buildings and works damaged or destroyed as a result of an emergency.

To facilitate the re-establishment of businesses and services after an emergency.

To facilitate the continued use of land for dwellings after an emergency.

## 52.10-1 Use exemptions - dwelling

18/12/2024
VC272

Any requirement of this planning scheme to obtain a permit or any provision of this planning scheme that prohibits the use of land, requires the use of land to be carried out in a particular manner, or requires a specified thing to be done to the satisfaction of a specified person or body, does not apply to the use of land (other than land in the Urban Floodway Zone) for a dwelling if the following requirements are met:

- A dwelling on the land must have been damaged or destroyed as a result of an emergency after 1 January 2019.
- The use must commence within 7 years after the date the dwelling was damaged or destroyed.
- The dwelling must not be a building that was constructed under clause 52.07.
- The land must not be used for more than the number of dwellings the land was lawfully used for before the dwelling was damaged or destroyed.
- Access to the dwelling must be provided via an all-weather road with dimensions adequate to accommodate emergency vehicles.
- The dwelling must be connected to reticulated sewerage, if available. If reticulated sewerage is not available, all wastewater from the dwelling must be treated and retained within the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017* for an on-site wastewater management system.
- The dwelling must be connected to a reticulated potable water supply or have an alternative potable water supply with adequate storage for domestic use as well as for fire fighting purposes.
- The dwelling must be connected to a reticulated electricity supply or have an alternative energy source.

## 52.10-2 Exemption from notice and review

18/12/2024
VC272

An application under any provision of this planning scheme to use or develop land (other than the subdivision of land) is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if the following requirements are met:

- A building or works on the land must have been damaged or destroyed as a result of an emergency after 1 January 2019.
- A use must be a use that was lawfully carried out on the land immediately before the building or works was damaged or destroyed and cannot continue without the building or works being reconstructed.
- A development must be for:
  - The repair of the damaged or destroyed building or works; or
  - The construction of a building, or the construction or carrying out of works, to replace the damaged or destroyed building or works.

- The application must be lodged within 7 years of the date the building was damaged or destroyed.
- If the application is to use or develop land for a dwelling:
  - A dwelling on the land must have been damaged or destroyed as a result of an emergency after 1 January 2019.
  - The application must only be for the number of dwellings that were damaged or destroyed.

## 52.10-3 Meaning of terms

05/10/2021
VC208

In this clause, ***emergency*** means:

- a bushfire; or
- an earthquake, flood, wind-storm or other natural event.

## 52.10-4 Transitional provision

05/10/2021
VC208

Clause 52.10-2 of this planning scheme, as in force immediately before the approval date of Amendment VC208, continues to apply to an application lodged before that date for land on which a building was damaged or destroyed by a bushfire after 1 January 2019.

## 52.11 HOME BASED BUSINESS

31/07/2018
VC148

### Purpose

To ensure that the amenity of the neighbourhood is not adversely affected by a business conducted in or from a dwelling.

## 52.11-1 Requirements to be met

15/03/2024
VC256

A home based business must meet the following requirements:

- The person conducting the home based business must use the dwelling as their principal place of residence.
- No more than two persons who does not live in the dwelling may work in the home based business at any one time.
- The net floor area used in conducting the business including the storage of any materials or goods must not exceed 100 square metres or one-third of the net floor area of the dwelling, whichever is the lesser. This does not apply to the education or care of children. The net floor area includes out-buildings and works normal to a dwelling.
- The business must not impose a load on any utility greater than normally required for domestic use.
- The business must not adversely affect the amenity of the neighbourhood in any way including:
  - The appearance of any building, works or materials used.
  - The parking of motor vehicles.
  - The transporting of materials or goods to or from the dwelling.
  - The hours of operation.
  - Electrical interference.
  - The storage of chemicals, gasses or other hazardous materials.
  - Emissions from the site.
- No motor vehicle may be adjusted, modified, serviced or repaired for gain.
- Only one commercial vehicle associated with a home business not exceeding 2 tonnes capacity and with or without a trailer registered to a resident of the dwelling may be present at any time. The vehicle must not be fuelled or repaired on the site.
- No goods other than goods manufactured or serviced in the home based business may be offered for sale. This requirement does not apply to goods offered for sale online.
- Materials used or goods manufactured, serviced or repaired in the home based business must be stored within a building.
- No goods manufactured, serviced or repaired may be displayed so that they are visible from outside the site.
- Any goods offered for sale online must not be collected from the dwelling.

In this clause, a **commercial vehicle** means:

- any motor vehicle which is used or intended to be used for carrying goods in the course of any business; or
- a commercial motor vehicle within the meaning of the Road Safety Act 1986.

## 52.11-2 Permit requirement

15/03/2024
VC256

Despite the requirements of Clause 52.11-1, a permit may be granted for a home based business:

- Which allows no more than three people who do not live in the dwelling to work in the business at any one time; or
- Which has a floor area not exceeding 200 square metres or one-third of the net floor area of the dwelling, whichever is the lesser.
- Which allows no more than one additional commercial vehicle, not exceeding two tonnes capacity and with or without a trailer registered to a resident of the dwelling, to be present at any time.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- Whether there is a need for additional parking or loading facilities.
- The effect of any vehicle parking, storage or washing facilities on the amenity and character of the street.
- Whether the site is suitable for the particular home based business and is compatible with the surrounding use and development.
- Whether there is a need for landscaping to screen any outbuildings or car parking or loading areas or any other area relating to the home based business.

## 52.12 BUSHFIRE PROTECTION EXEMPTIONS

05/08/2020
VC176

### Purpose

To facilitate the removal of vegetation in specified circumstances to support the protection of human life and property from bushfire.

To facilitate the construction and protection of community fire refuges and private bushfire shelters.

### 52.12-1 Exemptions to create defendable space around buildings used for accommodation

05/08/2020
VC176

Any requirement of a planning permit, including any condition, which has the effect of prohibiting the removal, destruction or lopping of vegetation, or any requirement of this planning scheme to obtain a planning permit, or any provision of this planning scheme that prohibits the removal, destruction or lopping of vegetation or requires the removal, destruction or lopping of vegetation to be carried out in a particular manner, does not apply to any of the following:

- The removal, destruction or lopping of any vegetation within 10 metres of an existing building used for accommodation if all of the following requirements are met:
  - The building must be located in an area that is designated as a bushfire prone area under the *Building Act 1993*.
  - The building must have been:
    - constructed before 10 September 2009; or
    - approved by a planning permit or a building permit issued before 10 September 2009; or
    - constructed to replace a dwelling or dependent persons unit that was damaged or destroyed by a bushfire that occurred between 1 January 2009 and 31 March 2009.
- The removal, destruction or lopping of any vegetation, except trees, within 30 metres of an existing building used for accommodation if all of the following requirements are met:
  - The building must be located in an area that is designated as a bushfire prone area under the *Building Act 1993*.
  - The building must have been:
    - constructed before 10 September 2009; or
    - approved by a planning permit or a building permit issued before 10 September 2009; or
    - constructed to replace a dwelling or dependent persons unit that was damaged or destroyed by a bushfire that occurred between 1 January 2009 and 31 March 2009.
- The removal, destruction or lopping of any vegetation, except trees, within 50 metres of an existing building used for accommodation if all of the following requirements are met:
  - The building must be located in the Bushfire Management Overlay.
  - The building must have been:
    - constructed before 10 September 2009; or
    - lawfully constructed without a planning permit before 18 November 2011; or
    - approved by a planning permit or a building permit issued before 10 September 2009 and constructed before 18 November 2011; or
    - constructed to replace a dwelling or dependent persons unit that was damaged or destroyed by a bushfire that occurred between 1 January 2009 and 31 March 2009.

### 52.12-2 Exemption for vegetation removal along a fenceline

05/08/2020
VC176

Any requirement of a planning permit, including any condition, which has the effect of prohibiting the removal, destruction or lopping of vegetation, or any requirement of this planning scheme to obtain a planning permit, or any provision of this planning scheme that prohibits the removal, destruction or lopping of vegetation or requires the removal, destruction or lopping of vegetation to be carried out in a particular manner, does not apply to the removal, destruction or lopping of any vegetation along a boundary fence between properties in different ownership if all of the following requirements are met:

- The fence must be located in an area that is designated as a bushfire prone area under the *Building Act 1993*.
- The fence must have been constructed before 10 September 2009.
- The clearing alongside both sides of the fence when combined must not exceed 4 metres in width, except where land has already been cleared 4 metres or more along one side of the fence, then up to 1 metre can be cleared along the other side of the fence.

### 52.12-3 Exemption for buildings and works associated with a community fire refuge

05/08/2020
VC176

Any requirement in this scheme relating to the construction of a building or the construction or carrying out of works does not apply to modifying an existing building to create a community fire refuge in accordance with Ministerial Direction No. 4, Construction Requirements for a Community Fire Refuge (1 October 2015) of the *Project Development and Construction Management Act 1994*.

### 52.12-4 Exemption for buildings and works associated with a private bushfire shelter

05/08/2020
VC176

Any requirement in this planning scheme relating to the construction of a building or the construction or carrying out of works does not apply to buildings and works associated with a private bushfire shelter (a Class 10c building within the meaning of the Building Regulations 2018), provided the total area of all buildings and works does not exceed 30 square metres.

This clause does not apply to land in the Urban Floodway Zone, Erosion Management Overlay, Floodway Overlay, Land Subject to Inundation Overlay, Special Building Overlay or Heritage Overlay.

### 52.12-5 Exemption to create defendable space for a dwelling under Clause 44.06 of this planning scheme

25/02/2025
VC257

Any requirement of a planning permit, including any condition, which has the effect of prohibiting the removal, destruction or lopping of vegetation, or any requirement of this planning scheme to obtain a planning permit, or any provision of this planning scheme that prohibits the removal, destruction or lopping of vegetation or requires the removal, destruction or lopping of vegetation to be carried out in a particular manner, does not apply to the removal, destruction or lopping of vegetation to enable the construction of a dwelling, or the alteration or extension of an existing dwelling, and create its defendable space if all of the following requirements are met:

- Land is in the Bushfire Management Overlay.
- Land is in the General Residential Zone, Residential Growth Zone, Neighbourhood Residential Zone, Housing Choice and Transport Zone, Urban Growth Zone, Low Density Residential Zone, Township Zone, Rural Living Zone, Farming Zone or Rural Activity Zone.
- The removal, destruction or lopping of vegetation:
  - Does not exceed the distance specified in Table 1 to Clause 53.02-3 of this planning scheme, based on the bushfire attack level determined by a relevant building surveyor in deciding an application for a building permit under the *Building Act 1993* for a dwelling or alteration or extension to the dwelling; or

- Is required to be undertaken by a condition in a planning permit issued after 31 July 2014 under Clause 44.06 of this scheme for a dwelling or an alteration or extension to the dwelling.

*Note: The effect of clause 52.12-5 is that if an application for building and works is made and all requirements of the clause are met, that application is not required to be accompanied by a permit application to remove the vegetation covered by this clause.*

# 52.13 VICTORIA'S CONTAINER DEPOSIT SCHEME

14/11/2022
VC227

## 52.13-1 Purpose

26/09/2023
VC246

To facilitate an automated collection point and a container deposit scheme centre to support waste reduction and recycling under Victoria's container deposit scheme.

To ensure an automated collection point and a container deposit scheme centre are designed and sited to minimise impacts on the land and surrounding land uses.

## 52.13-2 Application

26/09/2023
VC246

This clause applies to the use or development of an automated collection point and a container deposit scheme centre.

## 52.13-3 Automated collection point requirements

26/09/2023
VC246

An automated collection point should not:

- Be attached to another building.
- Be more than 3 metres in height. This includes an attached sign.
- Restrict a vehicular or pedestrian accessway to or from the land or an entry or exit to a building.

## 52.13-4 Container deposit scheme centre requirements

26/09/2023
VC246

A container deposit scheme centre should collect, consolidate, store, sort or recover materials in a fully enclosed and roofed building.

In an industrial zone, Commercial 2 Zone or Port Zone, a container deposit scheme centre should be at least 30 metres from land (not a road):

- In a residential zone (other than a Mixed Use Zone or Township Zone) or a Rural Living Zone.
- Used for, or in a Public Acquisition Overlay to be acquired for, a hospital, an education centre or a corrective institution.

In any other zone, a container deposit scheme centre should:

- Be at least 60 metres from land (not a road):
  - Used for accommodation, child care centre, pre-school centre, primary school, secondary school, education centre, informal outdoor recreation, hospital or a corrective institution.
  - To be acquired for a hospital, an education centre or a corrective institution.
- Not operate machinery to collect, consolidate, store, sort or recover materials between 5pm and 8am the following day.
- Not have more than 4 vehicle movements by the operator collecting or delivering materials to the container deposit scheme centre between 5pm and 8am the following day.

## 52.13-5 Permit exemption for an automated collection point

26/09/2023
VC246

Any requirement in a zone or overlay, or a schedule to a zone or overlay, to obtain a permit to construct a building or construct or carry out works does not apply to an automated collection point if the requirements of clause 52.13-3 and clause 52.13-6 are met.

This exemption does not apply to a requirement in any of the following overlays if an application for one or more automated collection points has a combined gross floor area of 2 square metres or more, and a building height of 2.5 metres or more:

Other than for a maximum of two automated collection points that are no greater than 2 square metres in total area and less than 2.5 metres in height, this exemption does not apply to a requirement in a:

- Bushfire Management Overlay if the automated collection point is located less than 10 meters from a building used for accommodation, education centre, hospital, leisure and recreation, or place of assembly.
- Environmental Significance Overlay.
- Floodway Overlay.
- Heritage Overlay.
- Land Subject to Inundation Overlay.
- Public Acquisition Overlay.
- Significant Landscape Overlay.
- Special Building Overlay.

## 52.13-6 Permit exemption requirement for an automated collection point

26/09/2023
VC246

For the purposes of clause 52.13-5, an automated collection point with a gross floor area less than 2 square metres, and a building height less than 2.5 metres must:

- Be set back at least 30 metres from land (not a road) not in the same ownership in a residential zone (other than a Mixed Use Zone or Township Zone) or a Rural Living Zone.
- Be set back at least 30 metres from a dwelling in a Township Zone.
- Not be located on vacant land in a residential or rural zone.
- Not be located in an area set aside for vehicle access or occupy a car parking space.
- Be of muted, non-reflective external colours and finishes.

For the purposes of clause 52.13-5, an automated collection point with a gross floor area of 2 square metres or more, and a building height of 2.5 metres or more must:

- Occupy no more than:
  - 4 existing car parking spaces on the land; or,
  - 5 existing car parking spaces on the land if the land contains 50 or more car parking spaces.
- Be set back at least 4 metres from the frontage.
- Be set back at least 30 metres from land (not a road) not in the same ownership in a residential zone, Rural Living Zone or Urban Growth Zone.
- Not be located on vacant land in a residential or rural zone.
- Be of muted, non-reflective external colours and finishes.

## 52.13-7 Exemption from car parking requirements for an automated collection point

26/09/2023
VC246

An automated collection point is exempt from the requirements of clause 52.06.

## 52.13-8 Exemption from permit conditions for an automated collection point

26/09/2023
VC246

Any requirement of a permit, or any permit condition, that requires the provision of car parking, or requires land to be set aside for vehicle access or car parking, does not apply to the use or development of land for an automated collection point if the requirements of clause 52.13-3 are met.

## 52.13-9 Application requirements

26/09/2023
VC246

An application must be accompanied by the following information as appropriate:

- A site context plan that specifies the location and nature of land use within 100 metres of site boundaries.
- A site and layout plan that includes:
  - Design for safe pedestrian and vehicle movements.
  - Any additional lighting to be included and any proposed baffling.
  - Any existing automated collection points on the site.
- An operational plan that includes:
  - Operating days and hours.
  - Noise, emissions and amenity attenuation measures. This may include a report on how noise and amenity impacts from the use will be reduced.
  - Safety and access details including how the use will be serviced, emptied and how materials will be moved to and from the site.
  - Details and methods of managing the collection, consolidation, storage sorting and recovery of materials within a building to reduce noise and amenity impacts on surrounding land.
  - Details of traffic and car parking requirements generated by the use.

## 52.13-10 Decision guidelines

26/09/2023
VC246

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider, as appropriate:

- The effect on existing car parking provision if an automated collection point is located on existing car parking spaces.
- The setback of the development from a frontage and from land (not a road) not in the same ownership in a residential zone, Rural Living Zone or Urban Growth Zone.
- The effect of siting an automated collection point on vacant land in a residential or rural zone.
- The effect of external colours and finishes.
- The size, density and number of automated collection points including the cumulative impact of automated collection points on the land.
- Whether a proposed operational plan reduces noise and other impacts on nearby land uses.
- Safe pedestrian and vehicle movements on the land.
- The effect of noise, emissions, traffic movements and other amenity impacts on adjoining land uses.
- In a zone other than an industrial zone, Commercial 2 Zone or Port Zone the effect of noise, emissions, traffic movements and other amenity impacts of a container deposit scheme centre on adjacent and nearby sensitive land uses.

## 52.13-11 Exemption from notice and review

26/09/2023
VC246

An application to use or develop land for an automated collection point including the construction of or putting up for display a sign in conjunction with an automated collection point is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

An application to use or develop a container deposit scheme centre, including the construction of or putting up for display a sign in conjunction with a container deposit scheme centre is exempt from:

- In an industrial zone, Commercial 2 Zone and Port Zone, the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.
- In any other zone, the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 52.13-12 Transitional provisions

26/09/2023
VC246

The requirements of this clause introduced by Amendment VC246 do not apply to:

- An application for an automated collection point or container deposit scheme centre lodged before the approval date of Amendment VC246.
- An application for an amendment of a permit for an automated collection point or container deposit scheme centre under section 72 of the Act if the original permit application was lodged before the approval date of Amendment VC246.

## 52.14 2009 BUSHFIRE - REPLACEMENT BUILDINGS

31/07/2018
VC148

### Purpose

To support the rebuilding of dwellings, dependent persons' units and buildings used for agriculture damaged or destroyed by the 2009 Victorian bushfires.

## 52.14-1 Scope

14/12/2020
VC188

This clause applies to:

- The construction of a building or the construction and carrying out of works, associated with rebuilding:
  - a dwelling or dependent person's unit; or
  - a building used for agriculture,

  that was damaged or destroyed by a bushfire that occurred between 1 January 2009 and 31 March 2009.
- The use of land for:
  - a dwelling or dependent person's unit that is rebuilt in accordance with this clause; or
  - agriculture to the extent that the use relates to a building that was destroyed by a bushfire that occurred between 1 January 2009 and 31 March 2009 and that use cannot continue unless that building is rebuilt.
- The removal, destruction or lopping of vegetation to enable the construction, use and maintenance of a building rebuilt in accordance with this Clause.

This clause does not apply to land in a Heritage Overlay.

For the avoidance of doubt, any planning permit exemption provided by the scheme continues to apply to the use and development specified in this Clause.

## 52.14-2 Exemption from planning scheme requirements

20/01/2022
VC205

Any requirement of the scheme to obtain a permit or any provision in the scheme which prohibits the use or development of land or requires the use or development of land to be carried out in a particular manner does not apply to the use and development specified in Clause 52.14-1 provided the following requirements are met:

### Site plan

Before the commencement of construction of a building or the construction or carrying out of works, a site plan must be provided to and approved by the responsible authority. The site plan must show:

- The boundaries of the property.
- The location of any damaged or destroyed dwelling, dependent person's unit or building used for agriculture.
- The proposed location of the replacement dwelling, dependent person's unit or building used for agriculture.
- The existing and proposed access to the lot.

- Vegetation to be removed destroyed or lopped to enable rebuilding including construction of vehicle access, water storage and waste water treatment.
- For replacement dwellings and dependent persons' units on land in a Farming Zone, Rural Conservation Zone, Rural Activity Zone, Green Wedge Zone, Green Wedge A Zone or the Rural Living Zone:
  - The location and dimensions of vehicle access.
  - The location and storage of water for potable and fire fighting purposes if the dwelling or dependent person's unit cannot be connected to a reticulated potable water supply.
  - The location of the waste water treatment system if waste water is to be retained and treated on site.

The site plan must be submitted to the responsible authority by 30 September 2017.

**Commencement of development**

- The development must commence within two years after the approval of a site plan by the responsible authority and must be completed within two years after the development commences. The responsible authority may allow an extension of time on the request of the owner or the occupier of the land to which the approved site plan applies, provided that request is made before the expiry of the applicable period or within three months of the expiry of the applicable period.

**Compliance with site plan**

- The development must comply with the approved site plan.

**Use and development conditions**

- The land must not be used for more than the number of dwellings or dependent persons' units that were damaged or destroyed.
- The removal, destruction or lopping of vegetation to enable the maintenance of a building must not exceed 10 metres beyond the building.
- For land in the Farming Zone, Rural Conservation Zone, Rural Activity Zone, Green Wedge Zone, Green Wedge A Zone or the Rural Living Zone:
  - Access to the dwelling or dependent person's unit must be provided via an all weather road with dimensions adequate to accommodate emergency vehicles.
  - The dwelling or dependent person's unit must be connected to a reticulated sewerage system or if not available, the waste water must be managed to the satisfaction of the responsible authority.
  - The dwelling or dependent person's unit must be connected to a reticulated potable water supply or have an alternative potable water supply with adequate storage for domestic use as well as for fire fighting purposes.
  - The dwelling or dependent person's unit must be connected to a reticulated electricity supply or have an alternative energy source.
- A building must be constructed of materials that are non-reflective and of muted tones in the following locations:
  - Land in an Environmental Significance Overlay, Design and Development Overlay or Significant Landscape Overlay.
  - Land in a Green Wedge Zone, Green Wedge A Zone or Rural Conservation Zone in the municipal districts of the Shire of Yarra Ranges and the Shire of Nillumbik.

- For land in a Restructure Overlay, a building must be consistent with any Restructure Plan.
- For land adjacent to a Transport Zone 2 or Land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority and the purpose of the acquisition is for a road, access must not be created or altered.

### 52.14-3 Land in an Erosion Management Overlay

31/07/2018
VC148

For land in an Erosion Management Overlay in the municipal district of the Shire of Yarra Ranges, in addition to the requirements specified in Clause 52.14-2, the written authorisation of the responsible authority must be obtained prior to:

- Constructing a building or constructing and carrying out works; or
- Removing, destroying or lopping vegetation.

### 52.14-4 Land in a Floodway Overlay, Land Subject to Inundation Overlay or Special Building Overlay

31/07/2018
VC148

For land in a Floodway Overlay, Land Subject to Inundation Overlay or Special Building Overlay, in addition to the requirements specified in Clause 52.14-2, the written authorisation of the relevant flood plain management authority must be obtained prior to the commencement of construction of a building or the construction or carrying out of works.

### 52.14-5 Decision guidelines

31/07/2018
VC148

Before deciding on approval of the site plan, in addition to the decision guidelines in Clause 65 and any other requirements of the Act, the responsible authority must consider, as appropriate:

- The extent to which the siting of the building and associated development can reasonably achieve compliance with other relevant requirements of this scheme.
- The extent to which the replacement dwelling or dependent person's unit can be located on the land to assist the minimisation of risk to life and property from bushfire.

# 52.15 HELIPORT AND HELICOPTER LANDING SITE

29/10/2015
VC101

## Purpose

To ensure the amenity impacts of a heliport and a helicopter landing site on surrounding areas is considered.

## 52.15-1 Permit requirement

20/03/2023
VC229

A permit is required to use or develop any land for a heliport or a helicopter landing site even if it is ancillary to another use on the land, unless the table to this Clause specifically states that a permit is not required.

### Table of exemptions for use

| No permit is required to use land for a helicopter landing site if any of the following apply: | |
|---|---|
| **Emergency services** | The helicopter landing site is used by a helicopter engaged in the provision of emergency service operations. |
| **Agriculture** | The helicopter landing site is used by a helicopter engaged in agricultural activity in conjunction with the use of any land for agriculture. |
| **Public land management** | The helicopter landing site is used by a helicopter engaged in the provision of public land management activities conducted by or on behalf of any of the following:<br>▪ Department of Energy, Environment and Climate Action;<br>▪ The Department of Transport and Planning;<br>▪ Parks Victoria; or<br>▪ The Great Ocean Road Coast and Parks Authority,<br>whether on private land or not. |
| **General** | The helicopter landing site where either:<br>▪ The landing point is located more than 500 metres from a building used for a sensitive use (accommodation, child care centre, education centre and hospital) that is not associated with the helicopter operation and more than 200 metres from a shipping channel in the Port of Melbourne, provided:<br>– The number of flight movements does not exceed eight in a 30 day period and four in a 24 hour period (for the purposes of this provision the take off and landing of a helicopter are separate flight movements).<br>– Flight movements do not take place before 7am or after sunset on a weekday.<br>– Flight movements do not take place before 8am or after sunset on a weekend or holiday; or<br>▪ The landing point is located more than 1000 metres from a building used for a sensitive use that is not associated with the helicopter operation and more than 200 metres from a shipping channel in the Port of Melbourne. |

## 52.15-2 Application requirements

18/12/2012
VC93

An application to use or develop land for a heliport or a helicopter landing site must be accompanied by the following information, as appropriate:

- A site plan, including:
  - Site boundaries and dimensions.
  - The current land use.
  - The existing siting and layout of buildings and works.
  - The proposed siting and layout of buildings and works.
  - Existing vegetation and proposed vegetation removal.

- Vehicle and pedestrian access.

An application to use land for a heliport or a helicopter landing site must be accompanied by the following information:

- A location plan, including:
  - The siting and use of buildings on adjacent properties.
  - The direction and distance to any building used for a sensitive use (accommodation, child care centre, education centre and hospital) that is not associated with the helicopter operation and is located within 500 metres of the proposed heliport or helicopter landing site.
- A written report which:
  - Demonstrates a suitable separation distance between the landing point of a heliport or helicopter landing site and any building used for a sensitive use that is not associated with the helicopter operation by either:
  - Locating the proposed heliport or helicopter landing site at least 150 metres for helicopters of less than 2 tonnes all-up weight, or 250 metres for helicopters of less than 15 tonnes all-up weight, or
  - Providing an acoustic report by a suitably qualified consultant.
  - Includes details of the proposed frequency of flight movements.
  - Includes the proposed hours of operation.

## 52.15-3 Decision guidelines

18/12/2012
VC93

Before deciding on an application to use land for a heliport or a helicopter landing site, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- Whether the proposal achieves a suitable separation distance from a nearby sensitive use, having regard to the Noise Control Guidelines (Environment Protection Authority, 2008).
- The effect of the proposal on nearby sensitive uses in terms of the proposed frequency of flight movements and hours of operation.

# 52.16 NATIVE VEGETATION PRECINCT PLAN

30/10/2025
VC291

## Purpose

To provide for the protection, management and removal of native vegetation through the use of a native vegetation precinct plan incorporated into this scheme.

To ensure that there is no net loss to biodiversity as a result of the removal, destruction or lopping of native vegetation. This is achieved by applying the following three step approach in accordance with the *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025) (the Guidelines):

1. Avoid the removal, destruction or lopping of native vegetation.
2. Minimise impacts from the removal, destruction or lopping of native vegetation that cannot be avoided.
3. Provide an offset to compensate for the biodiversity impact if a permit is granted to remove, destroy or lop native vegetation.

To manage the removal, destruction or lopping of native vegetation to minimise land and water degradation.

## 52.16-1 Application

12/12/2017
VC138

This clause applies to land if a native vegetation precinct plan corresponding to that land is incorporated into this scheme and listed in the schedule to this clause.

## 52.16-2 Native vegetation precinct plans

14/07/2022
VC213

A native vegetation precinct plan is a plan relating to native vegetation within a defined area which is incorporated into this scheme and listed in the schedule to this clause.

A native vegetation precinct plan may form part of a more general strategic or precinct structure plan.

A native vegetation precinct plan must include the information and provide for the matters set out in section 10.1 of the Guidelines.

## 52.16-3 Permit requirement

12/12/2017
VC138

A permit is required to remove, destroy or lop any native vegetation, including dead native vegetation. This does not apply:

- If the removal, destruction or lopping of native vegetation is in accordance with a native vegetation precinct plan incorporated into this scheme. Any conditions or requirements specified in the plan must be met.
- To the removal, destruction or lopping of native vegetation specified in the table to Clause 52.16-8, unless a native vegetation precinct plan specifies otherwise.

## 52.16-4 Application requirements

14/07/2022
VC213

An application to remove, destroy or lop native vegetation must comply with the application requirements specified in the Guidelines.

## 52.16-5 Decision guidelines

14/07/2022
VC213

Before deciding on an application, in addition to the decision guidelines at Clause 65, the responsible authority must consider the decision guidelines specified in the Guidelines as appropriate.

## 52.16-6 Offset requirements

14/07/2022
VC213

If a permit is required to remove, destroy or lop native vegetation, the biodiversity impacts from the removal, destruction or lopping of native vegetation must be offset in accordance with the Guidelines. The conditions on the permit for the removal, destruction or lopping of native vegetation must specify the offset requirement and timing to secure the offset.

## 52.16-7 Transitional provisions

20/03/2023
VC229

The requirements of this clause in force immediately before the commencement of Amendment VC138 continue to apply to an application for:

- A permit lodged before that date.
- An amendment to a permit if:
  - the original permit application was lodged before that date; or
  - the original permit application was one that benefited from the following transitional provision.
- A permit lodged within 12 months after that date, if the Secretary to the Department of Environment, Land Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) has stated in writing that a report about the proposed removal, destruction or lopping of native vegetation has been generated by the Department's native vegetation information systems within 12 months before that date.

## 52.16-8 Table of exemptions

16/08/2024
VC262

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Conservation work** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of conservation work:<br>▪ which provides an overall improvement for biodiversity; and<br>▪ with written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Crown land** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to manage Crown land:<br>▪ by or on behalf of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*), the Great Ocean Road Coast and Parks Authority or Parks Victoria, and in accordance with the *Procedure for the removal, destruction or lopping of native vegetation on Crown land*; or<br>▪ with written permission from the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Emergency works** | Native vegetation that is to be removed, destroyed or lopped:<br>▪ in an emergency by or on behalf of a public authority or municipal council to create an emergency access associated with emergency works; or<br>▪ where it presents an immediate risk of personal injury or damage to property. Only that part of the vegetation that presents the immediate risk may be removed, destroyed or lopped under this exemption. |
| **Extractive industry** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of extractive industry in accordance with a work plan approved under the *Mineral Resources (Sustainable Development) Act 1990* and authorised by a work authority under that Act. |
| **Fire protection** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out any of the following fire protection activities: |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | ▪ fire fighting;<br>▪ planned burning;<br>▪ making or maintenance of a fuelbreak or fire fighting access track (or any combination thereof) that does not exceed a combined width of 6 metres;<br>▪ making a strategic fuelbreak up to 40 metres wide by, or on behalf of, a public authority in accordance with a strategic fuelbreak plan approved by the Secretary to the Department of Environment, Land, Water and Planning (as constituted under *Part 2 of the Conservation, Forests and Lands Act 1987*);<br>▪ in accordance with a fire prevention notice issued under either:<br>– section 87 of the *Fire Rescue Victoria Act 1958*;<br>– section 65 of the *Forests Act 1958*; or<br>– section 41 of the *Country Fire Authority Act 1958*.<br>▪ keeping native vegetation clear of, or minimising the risk of bushfire ignition from, an electric line in accordance with a code of practice prepared under Part 8 of the *Electricity Safety Act 1998*;<br>▪ minimising the risk to life and property from bushfire on a roadside of a public road managed by the relevant responsible road authority, and carried out by or on behalf of that authority, in accordance with written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the Conservation, Forest and Lands Act 1987). In this exemption, roadside, public road and responsible road authority have the same meanings as in section 3 of the *Road Management Act 2004*.<br>*Note: Additional permit exemptions for bushfire protection are provided at Clause 52.12.* |
| **Geothermal energy exploration and extraction** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Geothermal Energy Resources Act 2005*. |
| **Greenhouse gas sequestration and exploration** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Greenhouse Gas Geological Sequestration Act 2008*. |
| **Land management or directions notice** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land management notice or directions notice served under the *Catchment and Land Protection Act 1994*. |
| **Land use conditions** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land use condition served under the *Catchment and Land Protection Act 1994*. |
| **Mineral exploration and mining** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by the holder of an exploration mining, prospecting, or retention license issued under the *Mineral Resources (Sustainable Development) Act 1990*:<br>▪ that is low impact exploration within the meaning of Schedule 4A of the *Mineral Resources (Sustainable Development) Act 1990*; or<br>▪ in accordance with a work plan approved under Part 3 of the *Mineral Resources (Sustainable Development) Act 1990*.<br>*Note: Schedule 4A of the Mineral Resources (Sustainable Development) Act 1990 specifies limits on the extent of native vegetation that may be removed as part of low impact exploration.* |
| **Pest animal burrows** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the removal of pest animal burrows in accordance with the written agreement of an officer of the department responsible for administering the *Flora and Fauna Guarantee Act 1988*. |
| **Planted vegetation** | Native vegetation that is to be removed, destroyed or lopped that was either planted or grown as a result of direct seeding for Crop raising or Grazing animal production. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | This exemption does not apply to native vegetation planted or managed with public funding for the purpose of land protection or enhancing biodiversity unless the removal, destruction or lopping of the native vegetation is in accordance with written permission of the agency (or its successor) that provided the funding. |
| **Railways** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to maintain the safe and efficient function of an existing railway, or railway access road, in accordance with written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Regrowth** | Native vegetation that is to be removed, destroyed or lopped that has naturally established or regenerated on land lawfully cleared of naturally established native vegetation, and is:<br>▪ bracken (*Pteridium esculentum*); or<br>▪ within the boundary of a timber production plantation, as indicated on a Plantation Development Notice or other documented record, and has established after the plantation.<br>This exemption does not apply to land where native vegetation has been destroyed or otherwise damaged as a result of flood, fire or other natural disaster. |
| **Road safety** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of a public authority or municipal council to maintain the safe and efficient function of an existing road in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Stone exploration** | ▪ Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of Stone exploration.<br>The maximum extent of native vegetation that may be removed, destroyed or lopped under this exemption on contiguous land in the same ownership in a five year period must not exceed any of the following:<br>▪ 1 hectare of native vegetation which does not include a tree.<br>▪ 15 native trees with trunk diameter of less than 40 centimetres at a height of 1.3 metres above ground level.<br>▪ 5 native trees with trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.<br>This exemption does not apply to costeaning and bulk sampling activities. |
| **Surveying** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by, or on behalf of, a licensed surveyor (within the meaning of section 3 of the *Surveying Act 2004*) using hand-held tools to establish a sightline for the measurement of land. |
| **Traditional owners** | Native vegetation that is to be removed, destroyed or lopped by a person acting under, and in accordance with:<br>▪ a natural resource agreement under Part 6 of the *Traditional Owner Settlement Act 2010*; or<br>▪ an authorisation order made under sections 82 or 84 of the *Traditional Owner Settlement Act 2010* as those sections were in force immediately before the commencement of section 24 of the *Traditional Owner Settlement Amendment Act in 2016* (1 May 2017). |
| **Utility installations** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary:<br>▪ to maintain the safe and efficient function of a Minor utility installation; or<br>▪ by or on behalf of a utility service provider to maintain or construct a utility installation in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |

## 52.16-9 Melbourne Strategic Assessment Levy Area

14/07/2022
VC213

The following provisions apply to the removal, destruction or lopping of native vegetation in the levy area within the meaning of the *Melbourne Strategic Assessment (Environment Mitigation Levy) Act 2020*.

Despite clauses 52.16-4, 52.16-5, 52.16-6 and anything in the Guidelines:

- An application to remove, destroy or lop native vegetation is not required to be accompanied by an offset statement providing evidence that an offset that meets the offset requirements for the native vegetation to be removed has been identified and can be secured in accordance with the Guidelines.
- Before deciding on an application, a responsible authority is not required to consider whether an offset that meets the offset requirements for the native vegetation to be removed has been identified and can be secured in accordance with the Guidelines.
- The biodiversity impacts of the removal, destruction or lopping of native vegetation are not required to be offset in accordance with the Guidelines.

02/12/2022
C259case

# SCHEDULE TO CLAUSE 52.16 NATIVE VEGETATION PRECINCT PLAN

1.0
13/03/2026
C296case

## Native vegetation precinct plan

| Name of plan |
|---|
| Cranbourne East Precinct Structure Plan (including Cranbourne East Native Vegetation Precinct Plan) (May 2010). |
| Cranbourne North Stage 2 Precinct Structure Plan (including the Cranbourne North Stage 2 Native Vegetation Precinct Plan) (June 2011) |
| Clyde North Precinct Structure Plan (including Clyde North Native Vegetation Precinct Plan) (August 2011) |
| Botanic Ridge Native Vegetation Precinct Plan (December 2012) |
| Brompton Lodge Native Vegetation Precinct Plan (August 2016) |
| Croskell (Employment) Native Vegetation Precinct Plan (October 2025) |

# 52.17 NATIVE VEGETATION

30/10/2025
VC291

## Purpose

To ensure that there is no net loss to biodiversity as a result of the removal, destruction or lopping of native vegetation. This is achieved by applying the following three step approach in accordance with the *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025) (the Guidelines):

1. Avoid the removal, destruction or lopping of native vegetation.

2. Minimise impacts from the removal, destruction or lopping of native vegetation that cannot be avoided.

3. Provide an offset to compensate for the biodiversity impact if a permit is granted to remove, destroy or lop native vegetation.

To manage the removal, destruction or lopping of native vegetation to minimise land and water degradation.

## 52.17-1 Permit requirement

12/12/2017
VC138

A permit is required to remove, destroy or lop native vegetation, including dead native vegetation. This does not apply:

- If the table to Clause 52.17-7 specifically states that a permit is not required.
- If a native vegetation precinct plan corresponding to the land is incorporated into this scheme and listed in the schedule to Clause 52.16.
- To the removal, destruction or lopping of native vegetation specified in the schedule to this clause.

## 52.17-2 Application requirements

14/07/2022
VC213

An application to remove, destroy or lop native vegetation must comply with the application requirements specified in the Guidelines.

## 52.17-3 Property vegetation plans

12/12/2017
VC138

A permit granted to remove, destroy or lop native vegetation in accordance with a property vegetation plan must include the following condition:

"This permit will expire if one of the following circumstances applies:

- The removal, destruction or lopping of native vegetation does not start within two years of the date of this permit.
- The removal, destruction or lopping of native vegetation is not completed within ten years of the date of this permit."

## 52.17-4 Decision guidelines

12/12/2017
VC138

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider the decision guidelines specified in the Guidelines as appropriate.

## 52.17-5 Offset requirements

14/07/2022
VC213

If a permit is required to remove, destroy or lop native vegetation, the biodiversity impacts from the removal, destruction or lopping of native vegetation must be offset, in accordance with the Guidelines. The conditions on the permit for the removal, destruction or lopping of native vegetation must specify the offset requirement and the timing to secure the offset.

## 52.17-6 Transitional provisions

20/03/2023
VC229

The requirements of this clause in force immediately before the commencement of Amendment VC138 continue to apply to an application for:

- A permit lodged before that date.
- An amendment to a permit if:
  - the original permit application was lodged before that date; or
  - the original permit application was one that benefited from the following transitional provision.
- A permit lodged within 12 months after that date, if the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) has stated in writing that a report about the proposed removal, destruction or lopping of native vegetation has been generated by the Department's native vegetation information systems within 12 months before that date.

## 52.17-7 Table of exemptions

16/08/2024
VC262

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Conservation work** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of conservation work:<br>▪ which provides an overall improvement for biodiversity; and<br>▪ with written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Crown land** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to manage Crown land:<br>▪ by or on behalf of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*), the Great Ocean Road Coast and Parks Authority or Parks Victoria, and in accordance with the *Procedure for the removal, destruction or lopping of native vegetation on Crown land*; or<br>▪ with written permission from the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Dead native vegetation** | Native vegetation that is dead.<br>This exemption does not apply to a standing dead tree with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level. |
| **Emergency works** | Native vegetation that is to be removed, destroyed, or lopped:<br>▪ in an emergency by, or on behalf of, a public authority or municipal council to create an emergency access associated with emergency works; or<br>▪ where it presents an immediate risk of personal injury or damage to property. Only that part of the vegetation that presents the immediate risk may be removed, destroyed or lopped under this exemption. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Existing buildings** | Native vegetation that is to be removed, destroyed, or lopped to the minimum extent necessary to enable the use or maintenance of a building constructed in accordance with a planning or building permit issued before 15 September 2008.<br>This exemption does not apply to:<br>▪ the operation or maintenance of a fence; or<br>▪ native vegetation located more than 10 metres measured from the outermost point of the building. |
| **Existing buildings and works in the Farming Zone and Rural Activity Zone** | Native vegetation that is to be removed, destroyed, or lopped to the minimum extent necessary to enable the use or maintenance of an existing building or works used for Agricultural production, including a dam, utility service, bore, horticultural trellising and accessway in the Farming Zone or the Rural Activity Zone.<br>This exemption does not apply to:<br>▪ the use or maintenance of a Dwelling; or<br>▪ the operation or maintenance of a fence; or<br>▪ native vegetation located more than 10 metres measured from the outermost point of the building or works. |
| **Extractive industry** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of extractive industry in accordance with a work plan approved under the *Mineral Resources (Sustainable Development) Act 1990* and authorised by a work authority under that Act. |
| **Fences** | Native vegetation that is to be removed, destroyed, or lopped to the minimum extent necessary to enable:<br>▪ the operation or maintenance of an existing fence; or<br>▪ the construction of a boundary fence between properties in different ownership.<br>The clearing along both sides of the fence when combined must not exceed 4 metres in width, except where land has already been cleared 4 metres or more along one side of the fence, then up to 1 metre can be cleared along the other side of the fence. |
| **Fire protection** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to carry out any of the following fire protection activities:<br>▪ fire fighting;<br>▪ planned burning;<br>▪ making or maintenance of a fuelbreak or firefighting access track (or any combination thereof) that does not exceed a combined width of 6 metres;<br>▪ making a strategic fuelbreak up to 40 metres wide by, or on behalf of, a public authority in accordance with a strategic fuelbreak plan approved by the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*);<br>▪ in accordance with a fire prevention notice issued under either:<br>– section 87 of the *Fire Rescue Victoria Act 1958*;<br>– section 65 of the *Forests Act 1958*; or<br>– section 41 of the *Country Fire Authority Act 1958*. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | ▪ keeping native vegetation clear of, or minimising the risk of bushfire ignition from, an electric line in accordance with a code of practice prepared under Part 8 of the *Electricity Safety Act 1998*;<br>▪ minimising the risk to life and property from bushfire on a roadside of a public road managed by the relevant responsible road authority, and carried out by or on behalf of that authority, in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). In this exemption, roadside, public road and responsible road authority have the same meanings as in section 3 of the *Road Management Act 2004*.<br>*Note: Additional permit exemptions for bushfire protection are provided at Clause 52.12.* |
| **Geothermal energy exploration and extraction** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Geothermal Energy Resources Act 2005*. |
| **Grasses** | Native grass that is to be mowed or slashed for maintenance only, provided that the grass is:<br>▪ located within a lawn, garden or other landscaped area; or<br>▪ maintained at a height of at least 10 centimetres above ground level. |
| **Grazing** | Native vegetation that is to be removed, destroyed or lopped by domestic stock grazing on:<br>▪ freehold land; or<br>▪ Crown land in accordance with a license, permit or lease granted under applicable legislation. |
| **Greenhouse gas sequestration and exploration** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Greenhouse Gas Geological Sequestration Act 2008*. |
| **Harvesting for timber production – naturally established native vegetation** | Naturally established native vegetation that is to be removed, destroyed or lopped to enable timber harvesting operations and associated activities that are in accordance with the *Code of Practice for Timber Production 2014 (as amended 2022)* (Department of Environment, Land, Water and Planning, 2022) and are:<br>▪ undertaken on public land under a licence or permit issued under section 52 of the *Forests Act 1958*; or<br>▪ authorised in accordance with Part 5 of the *Sustainable Forests (Timber) Act 2004*. |
| **Land management or directions notice** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land management notice or directions notice served under the *Catchment and Land Protection Act 1994*. |
| **Land use conditions** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land use condition served under the *Catchment and Land Protection Act 1994*. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Lopping and pruning for maintenance** | Lopping or pruning native vegetation, for maintenance only, provided no more than 1/3 of the foliage of each individual plant is lopped or pruned.<br>This exemption does not apply to:<br>▪ the pruning or lopping of the trunk of a native tree; or<br>▪ native vegetation on a roadside or railway reservation. |
| **Mineral exploration and extraction** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by the holder of an exploration, mining, prospecting, or retention license issued under the *Mineral Resources (Sustainable Development) Act 1990*:<br>▪ that is low impact exploration within the meaning of Schedule 4A of the *Mineral Resources (Sustainable Development) Act 1990*; or<br>▪ in accordance with a work plan approved under Part 3 of the *Mineral Resources (Sustainable Development) Act 1990*.<br>*Note: Schedule 4A of the Mineral Resources (Sustainable Development) Act 1990 specifies limits on the extent of native vegetation that may be removed as part of low impact exploration.* |
| **New buildings and works in the Farming Zone and Rural Activity Zone** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the construction of a building or works used for Agricultural production, including a dam, utility service, bore and accessway, in the Farming Zone or the Rural Activity Zone.<br>The maximum extent of native vegetation that may be removed, destroyed or lopped under this exemption on contiguous land in the same ownership in a five year period must not exceed any of the following:<br>▪ 1 hectare of native vegetation which does not include a tree.<br>▪ 15 native trees with a trunk diameter of less than 40 centimetres at a height of 1.3 metres above ground level.<br>▪ 5 native trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.<br>This exemption does not apply to the construction or operation of a pivot irrigation system or horticultural trellising. |
| **New dwellings in the Farming Zone and Rural Activity Zone** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the construction of a dwelling in the Farming Zone or Rural Activity Zone.<br>The maximum extent of native vegetation removed, destroyed or lopped under this exemption on contiguous land in the same ownership in a five year period must not exceed any of the following:<br>▪ 300 square metres of native vegetation which does not include a tree.<br>▪ 5 native trees with a trunk diameter of less than 40 centimetres at a height of 1.3 metres above ground level.<br>▪ 1 native tree with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.<br>This exemption does not apply native vegetation removed, destroyed or lopped to enable the construction of a swimming pool, tennis court or horse ménage. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Personal use** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to obtain reasonable amounts of wood for personal use by the owner or lawful occupier of the land.<br><br>For the purpose of this exemption personal use means uses such as heating and cooking, building and fence construction on land, and hobbies such as arts and craft.<br><br>This exemption does not apply to:<br>▪ contiguous land in one ownership that has an area of less than 10 hectares;<br>▪ the removal, destruction or lopping of native vegetation by means other than cutting or chopping; or<br>▪ a standing native tree (including a dead tree) with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level. |
| **Pest animal burrows** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the removal of pest animal burrows in the Farming Zone or the Rural Activity Zone:<br>▪ in accordance with written agreement of an officer of the department responsible for administering the *Flora and Fauna Guarantee Act 1988*; or<br>▪ provided the maximum extent of native vegetation removed, destroyed or lopped on contiguous land in the same ownership in a five year period does not exceed any of the following:<br>– 1 hectare of native vegetation which does not include a tree; or<br>– 15 native trees with a trunk diameter of less than 20 centimetres at a height of 1.3 metres above ground level. |
| **Planted vegetation** | Native vegetation that is to be removed, destroyed or lopped that was either planted or grown as a result of direct seeding.<br><br>This exemption does not apply to native vegetation planted or managed with public funding for the purpose of land protection or enhancing biodiversity unless the removal, destruction or lopping of the native vegetation is in accordance with written permission of the agency (or its successor) that provided the funding. |
| **Railways** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to maintain the safe and efficient function of an existing railway, or railway access road, in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Regrowth** | Native vegetation that is to be removed, destroyed or lopped that has naturally established or regenerated on land lawfully cleared of naturally established native vegetation, and is:<br>▪ less than 10 years old; or<br>▪ bracken (*Pteridium esculentum*); or |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | ▪ within the boundary of a timber production plantation, as indicated on a Plantation Development Notice or other documented record, and has established after the plantation; or<br>▪ less than ten years old at the time of a property vegetation plan being signed by the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*), and is:<br>– shown on that plan as being 'certified regrowth'; and<br>– on land that is to be used or maintained for cultivation or pasture during the term of that plan.<br>This exemption does not apply to land where native vegetation has been destroyed or otherwise damaged as a result of flood, fire or other natural disaster. |
| **Road safety** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by and on behalf of a public authority or municipal council to maintain the safe and efficient function of an existing road in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Site area** | Native vegetation that is to be removed, destroyed or lopped on land, together with all contiguous land in one ownership, which has an area of less than 0.4 hectares.<br>This exemption does not apply to native vegetation on a roadside or rail reservation. |
| **Stock movements on roads** | Native vegetation that is to be removed, or destroyed by stock being moved along a road.<br>This exemption does not apply to grazing as a result of holding stock in a temporary fence (including an electric fence) on a roadside for the purpose of feeding. |
| **Stone exploration** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of Stone exploration.<br>The maximum extent of native vegetation that may be removed, destroyed or lopped under this exemption on contiguous land in the same ownership in a five year period must not exceed any of the following:<br>▪ 1 hectare of native vegetation which does not include a tree.<br>▪ 15 native trees with a trunk diameter of less than 40 centimetres at a height of 1.3 metres above ground level.<br>▪ 5 native trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.<br>This exemption does not apply to costeaning and bulk sampling activities. |
| **Surveying** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by, or on behalf of, a licenced surveyor (within the meaning of section 3 of the *Surveying Act 2004*) using hand-held tools to establish a sightline for the measurement of land. |
| **Traditional owners** | Native vegetation that is to be removed, destroyed or lopped by a person acting under, and in accordance with: |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | ▪ a natural resource agreement under Part 6 of the *Traditional Owner Settlement Act 2010*; or<br>▪ an authorisation order made under sections 82 or 84 of the *Traditional Owner Settlement Act 2010* as those sections were in force immediately before the commencement of section 24 of the *Traditional Owner Settlement Amendment Act* in 2016 (1 May 2017). |
| **Tram stops** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of the Head, Transport for Victoria to construct a tram stop, including a tram stop shelter. |
| **Transport land** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of the Head, Transport for Victoria on land in a Transport Zone, or land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority, to construct or maintain transport system infrastructure, in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Utility installations** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary:<br>▪ to maintain the safe and efficient function a Minor utility installation; or<br>▪ by or on behalf of a utility service provider to maintain or construct a utility installation in accordance with the written agreement of the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*). |
| **Vehicle access from public roads** | Native vegetation that is to be removed, destroyed, or lopped to the minimum extent necessary to enable the construction or maintenance of a vehicle access across a road reserve from a property boundary to a public road.<br>This exemption only applies to properties which share a common boundary with the road reserve, and the total width of clearing must not exceed 6 metres.<br>This exemption does not apply where there is a practical opportunity to site the accessway to avoid the removal, destruction or lopping of native vegetation.<br>In this exemption, roadside and public road have the same meanings as in section 3 of the *Road Management Act 2004*.<br>*Note: Under the Road Management Act 2004 the written consent of the coordinating road authority is required to conduct any works, including removing a tree or other vegetation, in, on, under or over a road.* |
| **Weeds** | Native vegetation that is to be removed, destroyed or lopped to the minimum extent necessary to enable the removal or destruction of a weed listed in the schedule to Clause 52.17.<br>The maximum extent of native vegetation that may be removed, destroyed or lopped under this exemption on contiguous land in the same ownership in a five year period must not exceed any of the following:<br>▪ 1 hectare of native vegetation which does not include a tree.<br>▪ 15 native trees with a trunk diameter of less than 20 centimetres at a height of 1.3 metres above ground level. |

## 52.17-8 Melbourne Strategic Assessment Levy Area

14/07/2022
VC213

The following provisions apply to the removal, destruction or lopping of native vegetation in the levy area within the meaning of the *Melbourne Strategic Assessment (Environment Mitigation Levy) Act 2020*.

Despite clauses 52.17-2, 52.17-4, 52.17-5 and anything in the Guidelines:

- An application to remove, destroy or lop native vegetation is not required to be accompanied by an offset statement providing evidence that an offset that meets the offset requirements for the native vegetation to be removed has been identified and can be secured in accordance with the Guidelines.
- Before deciding on an application, a responsible authority is not required to consider whether an offset that meets the offset requirements for the native vegetation to be removed has been identified and can be secured in accordance with the Guidelines.
- The biodiversity impacts of the removal, destruction or lopping of native vegetation are not required to be offset in accordance with the Guidelines.

17/01/2019
C228

# SCHEDULE TO CLAUSE 52.17 NATIVE VEGETATION

## 1.0

13/03/2026
C296case

## Scheduled area

| Area | Description of native vegetation for which no permit is required to remove, destroy or lop |
|---|---|
| All land in a Public Acquisition Overlay or a Transport Zone 2 or a Transport Zone 3 for the Pakenham Bypass. | All native vegetation provided the works are undertaken in accordance with a Project Environment Protection Strategy, which is consistent with the Minister's Assessment under the Environment Effects Act 1978 for the Pakenham Bypass Project, to the satisfaction of the responsible authority. |
| All land in the area to which Schedule 1 of the Urban Growth Zone (Cranbourne West Precinct Structure Plan) applies. | All native vegetation which is shown as to be removed in a Native Vegetation Plan approved by the Department of Sustainability and Environment provided any conditions or requirements of the approved Native Vegetation Plan are met. |
| Land in a Transport Zone 1 for the Lynbrook Railway Station and associated facilities. | Native vegetation required to be removed, destroyed or lopped to enable the land to be developed for the Lynbrook Railway Station and associated facilities. |
| Land shown as UGZ9 on the planning scheme maps. | All native vegetation in the levy area within the meaning of the *Melbourne Strategic Assessment (Environmental Mitigation Levy) Act 2020*. |
| Land shown as UGZ6, UGZ7, UGZ8, UGZ10, UGZ14, SUZ4 & UGZ15. | All native vegetation in the levy area within the meaning of the *Melbourne Strategic Assessment (Environmental Mitigation Levy) Act 2020*.<br>This does not apply to native vegetation, habitat or scattered trees identified as to be retained or reinstated in:<br>▪ Plan 6 in the incorporated Casey Fields South Residential Precinct Structure Plan;<br>▪ Plan 7 in the incorporated Thompsons Road Precinct Structure Plan;<br>▪ Plan 6 in the incorporated Clyde Creek Precinct Structure Plan;<br>▪ Plan 7 in the incorporated Casey Central Town Centre Precinct Structure Plan;<br>▪ Plan 8 in the incorporated Minta Farm Precinct Structure Plan; and<br>▪ Plan 8 in the incorporated Croskell (Employment) Precinct Structure Plan. |
| Land shown as UGZ12 or IPO2 on the planning scheme maps. | All native vegetation in the levy area within the meaning of the *Melbourne Strategic Assessment (Environmental Mitigation Levy) Act 2020*.<br>This does not apply to native vegetation or scattered trees identified as to be retained in Plan 6 in the *Cardinia Creek South Precinct Structure Plan*. |
| All land. | Sweet Pittosporum (*Pittosporum undulatum*).<br>Sallow Wattle (*Acacia longifolia* subsp. *Longifolia*).<br>Coast Wattle (*Acacia longifolia* subsp. *Sophorae*). |

## 2.0 Scheduled weed

15/09/2008
VC49

| Area | Description of weed |
|---|---|
| None specified | |

# 52.18 CORONAVIRUS (COVID-19) PANDEMIC AND RECOVERY EXEMPTIONS

28/10/2022
VC224

## Purpose

To support Victoria's social and economic recovery from the coronavirus (COVID-19) pandemic through exemptions that enable outdoor dining and facilitate the reopening and safe operation of hospitality and other businesses.

## 52.18-1 Operation

17/10/2025
VC296

This clause contains exemptions from the requirements of this planning scheme and exemptions from conditions of permits.

The exemptions in this clause prevail over any inconsistent provision in this planning scheme or condition of a permit.

The exemptions in this clause do not apply to a requirement in the Heritage Overlay relating to the construction or carrying out of works to an existing building, the alteration of an existing building, or the painting of an existing building, other than a building constructed or placed under an exemption in this clause.

A use or development carried out under an exemption in this clause must comply with the requirements in clause 52.18-6.

In this clause:

- ***drink*** includes liquor;
- ***exemption period*** means the period when a pandemic declaration under the *Public Health and Wellbeing Act 2008* in relation to coronavirus (COVID-19) is in force and until 30 June 2027;
- ***hospitality*** means:
  - the preparation or sale of food or drink for immediate consumption on, or off, the land; or
  - the consumption of food or drink;
- ***public land*** means Crown land and land that is owned by, vested in or controlled by a Minister, government department, public authority or municipal council.

## 52.18-2 Public land exemptions

28/10/2022
VC224

Any requirement in this planning scheme relating to the use of land does not apply to the use of public land for an art and craft centre, education centre, hospitality, leisure and recreation, office, place of assembly, market or shop during the exemption period if the requirements of clause 52.18-6 are met.

Any requirement in this planning scheme relating to the construction of a building or the construction or carrying out of works on public land does not apply to a temporary building or moveable building associated with the use of land for an art and craft centre, education centre, hospitality, leisure and recreation, office, place of assembly, market or shop during the exemption period if the requirements of clause 52.18-6 are met.

## 52.18-3 Food and drink business extension exemptions

28/10/2022
VC224

Any requirement in this planning scheme relating to the use of land does not apply to the use of land for hospitality during the exemption period if the use is associated with the existing use of adjoining land for a food and drink premises, function centre, nightclub or winery, and the requirements of clause 52.18-6 are met.

Any requirement in this planning scheme relating to the construction of a building or the construction or carrying out of works does not apply to a temporary building or moveable building associated with the use of the land for hospitality during the exemption period if the requirements of clause 52.18-6 are met.

## 52.18-4 Car parking exemption

28/10/2022
VC224

Any requirement of this planning scheme relating to the provision of car parking does not apply to a use commenced under an exemption in this clause, or the existing use of land for a food and drink premises, function centre, nightclub or winery, during the exemption period.

## 52.18-5 Permit condition exemptions

28/10/2022
VC224

The following exemptions apply to permits issued before the approval date of Amendment VC193 and which allow:

- the use or development of land for a food and drink premises, function centre, nightclub or winery; or
- the use or development of land for the sale or consumption of liquor associated with the use of the land for a food and drink premises, function centre, nightclub or winery.

Any requirement of a permit, including any condition, relating to the layout or location of the preparation, sale or consumption of food or drink on the land does not apply during the exemption period if the requirements of clause 52.18-6 are met. This exemption does not apply to a condition relating to the maximum number of patrons, hours of operation (including any condition that applies to a particular outdoor area), location or playing of music, or noise levels.

Any requirement of a permit, including any condition, relating to the layout or location of development on the land does not apply to the construction or placing of a temporary building or moveable building, or the construction or carrying out of works, under an exemption in this clause if the requirements of clause 52.18-6 are met.

Any requirement of a permit, including any condition, that requires the provision of car parking, or requires land to be set aside for vehicle access or car parking, does not apply to the alteration of an existing use of land under an exemption in this clause during the exemption period if the requirements of clause 52.18-6 are met.

## 52.18-6 Use and development requirements

15/03/2024
VC256

The following requirements apply to the use and development of land carried out under an exemption in this clause.

The use of the land must not:

- Continue after the exemption period unless in accordance with the requirements of this planning scheme.
- Unreasonably affect the amenity of the neighbourhood, including through:
  - Transport of materials, goods or commodities to or from the land.
  - Appearance of any building, works or materials.
  - Emission of noise, artificial light, vibration, smell, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil.

Land in, or within 30 metres of, a residential zone must not be used for the outdoor consumption of food or drink between the hours of 10.00pm and 7.00am. The responsible authority may vary this requirement to extend the hours of the use.

The use or development of land must not impede access required by emergency services or for waste collection.

The height of a building constructed or placed under an exemption in this clause must not exceed 3.6 metres.

A building must not be constructed or placed under an exemption in this clause within 1 metre of adjacent land in a residential zone if the height of the building exceeds 1.8 metres.

The siting of a building in a Bushfire Management Overlay or Erosion Management Overlay that would require a permit under the overlay were it not for an exemption in this clause must be to the satisfaction of the responsible authority.

The siting of a building in a Floodway Overlay, Land Subject to Inundation Overlay or Special Building Overlay that would require a permit under the overlay were it not for an exemption in this clause must be to the satisfaction of the relevant floodplain management authority.

A building constructed or placed under an exemption in this clause must be removed from the land before the end of the exemption period.

## 52.19 TELECOMMUNICATIONS FACILITY

04/11/2022
VC226

### Purpose

To ensure that telecommunications infrastructure is provided in an efficient and cost-effective manner to meet community needs.

To facilitate an effective state-wide telecommunications network consistent with proper and orderly planning.

To support the provision of telecommunications facilities with minimal impact on the amenity of the area.

### 52.19-1 Permit requirement

04/11/2022
VC226

A permit is required to construct a building or construct or carry out works for a telecommunications facility. This does not apply to the construction of a building or the construction or carrying out of works for any of the following:

- A low-impact facility specified in the *Telecommunications (Low-impact Facilities) Determination 2018* (Cth).
- The inspection and maintenance of a facility as defined in the *Telecommunications Act 1997* (Cth).
- A facility authorised by a facility installation permit issued under the *Telecommunications Act 1997* (Cth).
- An activity authorised under clause 6(2) of Division 3 of Schedule 3 of the *Telecommunications Act 1997* (Cth).
- An activity carried out by a body listed in sections 46 to 51 (inclusive) of the *Telecommunications Act 1997* (Cth) pursuant to legislation applying to that body.
- A temporary defence facility.
- A telecommunications facility equipment shelter.
- A telecommunications line forming part of a telecommunications network connected to a building, caravan or mobile home.
- An optical fibre ground wire that replaces an electricity ground wire on a high-voltage transmission tower that supports powerlines designed to operate at 222,000 volts or greater.
- A telecommunications facility located underground if any ground disturbed in constructing or installing the facility is reinstated.
- A telecommunications dish with a diameter of 1.2 metres or less.
- A telecommunications dish with a diameter of more than 1.2 metres and less than or equal to 2.4 metres if the following requirements are met:
  - If the dish is in a Heritage Overlay, it must not be visible from a street (other than a lane) or public park.
  - If the dish is in a residential zone, it must:
    - Be set back from the side or rear boundary 1 metre, plus 0.3 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres.
    - Be set back at least 3 metres from a boundary opposite an existing habitable room window.
    - Not be visible from the street (other than a lane) or a public park.

- A telecommunications tower that replaces an existing light pole on public land if the following requirements are met:
  - The public land manager must be a municipal council.
  - The tower must not be more than 8 metres higher than the light pole.
- A telecommunications tower that replaces an existing telecommunications tower on the same land if the following requirements are met:
  - The tower must not be in a residential zone, or a Significant Landscape Overlay, Heritage Overlay or Neighbourhood Character Overlay.
  - The tower must not be more than 8 metres higher than the existing tower.
  - The tower must not be a lattice tower.
  - The tower must be located within 20 metres of the existing tower.
  - The existing tower must be removed within 60 days of the new tower commencing operation.
- The extension of an existing telecommunications tower if the following requirements are met:
  - The tower must not be in a residential zone.
  - The height of the extension must not exceed 8 metres.
  - The tower must not have been previously extended without a permit.
  - The tower must have been constructed for 12 months before the extension.
- A telecommunications facility on a building if the following requirements are met:
  - If the building is in a residential zone, the height of the facility must not be more than 1 metre higher than the building height of the building.
  - If the building is in a zone other than a residential zone, the height of the facility must not be more than 8 metres higher than the building height of the building.
- A telecommunications facility that provides service coverage during routine or emergency maintenance of an existing facility, construction or installation of a new facility, or additional service coverage for an event, if the following requirements are met:
  - The height of the facility must not exceed 25 metres above its base or the height of the existing facility, whichever is the greater.
  - The facility must not be located on the land for more than a total of 4 months in any 12 month period.

## 52.19-2 Land in public ownership

04/11/2022
VC226

An application affecting land in a public land zone must be accompanied by written confirmation from the public land manager that the public land manager consents generally or conditionally:

- To the application being made; or
- To the application being made and to the proposed development.

This requirement does not apply if the applicant is the public land manager.

## 52.19-3 Exemptions from notice and review

04/11/2022
VC226

An application under any provision of this planning scheme to construct a building or construct or carry out works for a telecommunications facility is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act. This exemption does not apply to:

- An application under a Significant Landscape Overlay, a Heritage Overlay, or Neighbourhood Character Overlay.
- An application under a public land zone if the responsible authority is not the public land manager.
- An application for any of the following:
  - A telecommunications dish.
  - A telecommunications facility on a building within 100 metres of a residential zone.
  - A telecommunications facility on a building within 100 metres of a dwelling not on the same land or land in contiguous ownership.
  - A telecommunications tower in a residential zone.
  - A telecommunications tower within 100 metres of a residential zone.
  - A telecommunications tower within 100 metres of a dwelling not on the same land or land in contiguous ownership.

An application under any provision of this planning scheme to use or develop land for a telecommunications facility is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if the telecommunications facility is funded, or partly funded, by the Commonwealth through the Mobile Black Spot Program or the State of Victoria.

## 52.19-4 Application requirements

04/11/2022
VC226

An application must be accompanied by the following information as appropriate:

- A site analysis and design response explaining the design, siting, construction and operation of the telecommunications facility.
- Site boundaries and dimensions.
- The purpose and location of all buildings and works required in the construction of the facility.
- The location of all existing buildings and works to be retained and demolished.
- The location of all proposed buildings and works including dimensions, elevations, materials, colours and finishes.
- The location and use of all buildings on adjoining properties.
- The location of all adjoining streets and access ways.
- Australian Height Datum levels.
- Natural drainage lines, watercourses, coastal dunes, beach systems and wetlands.
- Proposals for the rehabilitation of the land on which development is to occur.
- Roads and parking areas.
- Materials, landscaping, external lighting, colour and reflectivity.

## 52.19-5 Decision guidelines

04/11/2022
VC226

Before deciding on an application, in addition to the decision guidelines of clause 65, the responsible authority must consider, as appropriate:

- The design, siting, construction and operation of the telecommunications facility.
- The effect of the telecommunications facility on adjacent land.

# 52.20 GOVERNMENT FUNDED HOUSING DEVELOPMENT

19/12/2024
VC273

## Purpose

To facilitate the use and development of land for housing projects funded wholly or partly, by the Victorian or Commonwealth Government.

To ensure that development does not unreasonably impact on the amenity of adjoining dwellings or small second dwellings.

## 52.20-1 Application

19/12/2024
VC273

This clause applies to the use or development of land that is:

- Funded wholly or partly, by the Victorian or Commonwealth Government; and
- Carried out by or on behalf of the Chief Executive Officer, Homes Victoria.

This clause does not apply to:

- The subdivision of land.
- The use or development of land in an industrial zone, rural zone or Port Zone.
- The use or development of land in a Bushfire Management Overlay.
- A use or development to which Clause 51.01 - Specific Site and Exclusions, or Clause 45.12 - Specific Controls Overlay, or any schedule to the clauses apply.
- A use or development that would not require a permit under a provision of this planning scheme were it not for the exemption in Clause 52.20-2.
- A use or development that is inconsistent with an applicable Statement of Planning Policy.
- A development for which an environment effects statement has been, or is required to be, prepared under the *Environment Effects Act 1978*.

In this clause, ***Chief Executive Officer, Homes Victoria*** means 'Chief Executive Officer, Homes Victoria' as defined in the *Housing Act 1983* and the body corporate established under the *Housing Act 1983*.

The provisions of this clause prevail over any inconsistent provision in this planning scheme.

## 52.20-2 Exemption from planning scheme requirements

20/12/2021
VC207

Any requirement of this planning scheme to obtain a permit or any provision of this planning scheme that prohibits the use or development of land, requires the use or development of land to be carried out in a particular manner, or requires a specified thing to be done to the satisfaction of a specified person or body, does not apply to any use or development Clause 52.20 applies to if requirements of this clause are met.

This exemption does not apply to a requirement in Clauses 45.03 (Environmental Audit Overlay), 45.07 (City Link Project Overlay), 45.08 (Melbourne Airport Environs Overlay), 51.03 (Upper Yarra Valley & Dandenong Ranges Regional Strategy Plan) or 52.02 (Easements, Restrictions and Reserves), or in any schedule to those clauses.

## 52.20-3 Use and development requirements

19/12/2024
VC273

The use and development of land must be carried out in accordance with the plans and documents approved under this clause, to the satisfaction of the Minister for Planning. Plans and documents may be amended to the satisfaction of the Minister for Planning.

The use and development of land to be carried out to the satisfaction of the Minister for Planning must not commence until funding from the Victorian or Commonwealth Government is approved.

## 52.20-4 Consultation requirements

14/07/2022
VC230

Before plans, documents and information required under Clause 52.20-5 are submitted:

- Public consultation, and consultation with the relevant municipal council, on the plans, documents and information proposed to be submitted under Clause 52.20-5; and
- A report that summarises the consultation undertaken, feedback received, and explains how the feedback has been considered and responded to, must be completed.

The requirements of Clause 52.20-4 must be undertaken to the satisfaction of the Minister for Planning and may be varied or waived by the Minister for Planning.

## 52.20-5 Requirements for plans and documents

31/03/2025
VC267

The following plans, documents and information must be prepared and submitted to the satisfaction of the Minister for Planning:

- Written confirmation from Homes Victoria or the Chief Executive Officer, Homes Victoria that the application is funded, either wholly or partly, by the Victorian or Commonwealth Government.
- A project boundary plan that shows the boundary of the land on which the use or development will be undertaken.
- A site description and analysis plan that accurately describes the natural, physical, cultural heritage, built heritage, landscape, vegetation, access and any other notable features, characteristics and significance of the site and surrounding area including the existing use and development of the site and surrounding land.
- A description of the proposed use including:
  - The activities that will be carried out.
  - The likely effects, if any, on the site and surrounding land and land uses, including noise levels, traffic, air-borne emissions, emissions to land and water, light spill, glare, solar access and hours of operation.
- Detailed plans and elevations of the proposed development drawn to scale and dimensioned, including details of any buildings or works proposed to be demolished or removed, and any vegetation proposed to be retained or removed.
- Explanation of how the proposed use or development derives from and responds to the site description and analysis plan.
- A report that addresses the proposed use or development and how:
  - It responds to the purposes, objectives, decision guidelines or statements of significance or risk of any zone, overlay, or other provision that would apply to the use or development were it not for the exemptions in Clause 52.20-2. This does not include Clauses 54, 55, 57, 58 and 59.
  - A proposed use that is not a dwelling or residential building is in conjunction with that use.
  - It complies with Clause 52.20-8 Native vegetation requirement.
- A design review report prepared by a suitably qualified architect or urban designer that demonstrates how the project achieves good quality design outcomes.
- A schedule of works and development including staging and the expected commencement and completion times.
- A report that details how the proposed development responds to the development standards of:
  - Clause 52.20-6 for the construction or extension of a dwelling.

  - Clause 52.20-6 and Clause 52.20-7 for the construction or extension of an apartment development or residential building or the construction or extension a dwelling in or forming part of an apartment development or residential building. The development standards of Clause 52.20-6.8 does not apply to an apartment development or residential building of 5 or more storeys. The development standards of Clauses 52.20-6.5, 52.20-6.14, 52.20-6.18 and 52.20-6.21 do not apply to an apartment development or residential building.

- If the Minister for Planning has decided that an assessment through an environment effects statement under the Environment Effects Act 1978 is not required for the proposed development and the decision is subject to conditions:
  - A report that details how each condition has been considered and addressed in the design, construction and operation of the proposed development.
  - A copy of any report, plan or other document required to be prepared under those conditions.
- A plan for the management or mitigation of potential adverse effects or impacts on the environment or amenity from the proposed use or development, during and following construction.
- If the use or development would require a permit were it not for the exemption in Clause 52.20-2 and a copy of the application for that permit would be required to be given to a referral authority under section 55 of the Act, the comments of that referral authority on the proposed use or development.
- Any other plan, document or information the Minister for Planning considers necessary to assist the assessment of the proposed use or development or the plans and documents required to be prepared under this clause. This may include street elevations, three dimensional modelling or other methods to describe the proposal.
- A report that demonstrates that the environmental conditions of the land are or will be suitable for the use and development including any significant effects which the use or development may have on the environment or which the environment may have on the use or development including water, noise, air or land pollution impacts on the environment, amenity or human health.

The requirements of this clause may be:

- Satisfied for separate components or stages of a use or development, but each requirement must be satisfied prior to the commencement of that component or stage.
- Varied or waived by the Minister for Planning.

## 52.20-6 Development standards for dwellings and buildings

01/01/2024
VC250

### 52.20-6.1 Infrastructure

Development should be connected to reticulated services, including reticulated sewerage, drainage and electricity.

Development should not unreasonably exceed the capacity of utility services and infrastructure, including reticulated services and roads.

In areas where utility services or infrastructure have little or no spare capacity, developments should provide for the upgrading of or mitigation of the impact on services or infrastructure.

### 52.20-6.2 Street setback

Walls of buildings should be set back from streets at least the distance specified in Table 1. Porches, pergolas and verandahs that are less than 3.6 metres high and eaves may encroach not more than 2.5 metres into the setbacks of this standard.

**Table 1 Street setback**

| Development context | Minimum setback from front street (metres) | Minimum setback from a side street (metres) |
|---|---|---|
| There is an existing building on both the abutting allotments facing the same street, and the site is not on a corner. | The same distance as the setback of the front wall of either existing building on the abutting allotments facing the front street or 7 metres, whichever is the lesser. | Not applicable. |
| There is an existing building on one abutting allotment facing the same street and no existing building on the other abutting allotment facing the same street, and the site is not on a corner. | The same distance as the setback of the front wall of the existing building on the abutting allotment facing the front street or 7 metres, whichever is the lesser. | Not applicable. |
| There is no existing building on either of the abutting allotments facing the same street, and the site is not on a corner. | 6 metres for streets in a Transport Zone 2 and 4 metres for other streets. | Not applicable. |
| The site is on a corner. | If there is a building on the abutting allotment facing the front street, the same distance as the setback of the front wall of the existing building on the abutting allotment facing the front street or 7 metres, whichever is the lesser.<br>If there is no building on the abutting allotment facing the front street, 6 metres for streets in a Transport Zone 2 and 4 metres for other streets. | Front walls of new development fronting the side street of a corner site should be setback at least the same distance as the setback of the front wall of any existing building on the abutting allotment facing the side street or 3 metres, whichever is the lesser.<br>Side walls of new development on a corner site should be setback the same distance as the setback of the front wall of any existing building on the abutting allotment facing the side street or 2 metres, whichever is the lesser. |

### 52.20-6.3 Permeability

The site area covered by the pervious surfaces should be at least 20 percent of the site.

### 52.20-6.4 Safety

Entrances to dwellings should not be obscured or isolated from the street and internal accessways.

Planting which creates unsafe spaces along streets and accessways should be avoided.

Developments should be designed to provide good lighting, visibility and surveillance of car parks and internal accessways.

Private spaces within developments should be protected from inappropriate use as public thoroughfares.

### 52.20-6.5 Access

The width of accessways or car spaces that front existing streets should not exceed:

- 33 per cent of the street frontage, or
- if the width of the street frontage is less than 20 metres, 40 per cent of the street frontage.

No more than one single-width crossover should be provided for each dwelling fronting a street.

The location of crossovers should maximise the retention of on-street car parking spaces.

The number of access points to a road in a Transport Zone 2 or a Transport Zone 3 should be minimised.

Developments must provide for access for service, emergency and delivery vehicles.

### 52.20-6.6 Parking location

Car parking facilities should:

- Be reasonably close and convenient to dwellings.
- Be secure.
- Be well ventilated if enclosed.

Shared accessways or car parks of other dwellings should be located at least 1.5 metres from the windows of habitable rooms. This setback may be reduced to 1 metre where there is a fence at least 1.5 metres high or where window sills are at least 1.4 metres above the accessway.

### 52.20-6.7 Car parking

A minimum 0.6 car spaces should be provided to each dwelling. A minimum 1 car space should be provided to each 4 bedrooms of a residential building.

Car parking for other land uses must be to the satisfaction of the Minister for Planning.

Car spaces may be covered or uncovered.

If in calculating the number of car parking spaces the result is not a whole number, the required number of car parking spaces is to be rounded down to the nearest whole number greater than 1.

#### Accessway design

Accessways must:

- Be at least 3 metres wide.
- Have an internal radius of at least 4 metres at changes of direction or intersection or be at least 4.2 metres wide.
- Allow vehicles parked in the last space of a dead-end accessway in public carparks to exit in a forward direction with one manoeuvre.
- Provide at least 2.1 metres headroom beneath overhead obstructions, calculated for a vehicle with a wheel base of 2.8 metres.

- If the accessway serves four or more car spaces or connects to a road in a Transport Zone 2 or a Transport Zone 3, the accessway must be designed so that cars can exit the site in a forward direction.
- Provide a passing area at the entrance at least 6.1 metres wide and 7 metres long if the accessway serves ten or more carparking spaces and is either more than 50 metres long or connects to a road in a Transport Zone 2 or a Transport Zone 3.
- Have a corner splay or area at least 50 percent clear of visual obstructions extending at least 2 metres along the frontage road from the edge of an exit lane and 2.5 metres along the exit lane from the frontage, to provide a clear view of pedestrians on the footpath of the frontage road. The area clear of visual obstructions may include an adjacent entry or exit lane where more than one lane is provided, or adjacent landscaped areas, provided the landscaping in those areas is less than 900mm in height.

### Car parking spaces

Car parking spaces and accessways must have the minimum dimensions as outlined in Table 2.

**Table 2: Minimum dimensions of car parking spaces and accessways**

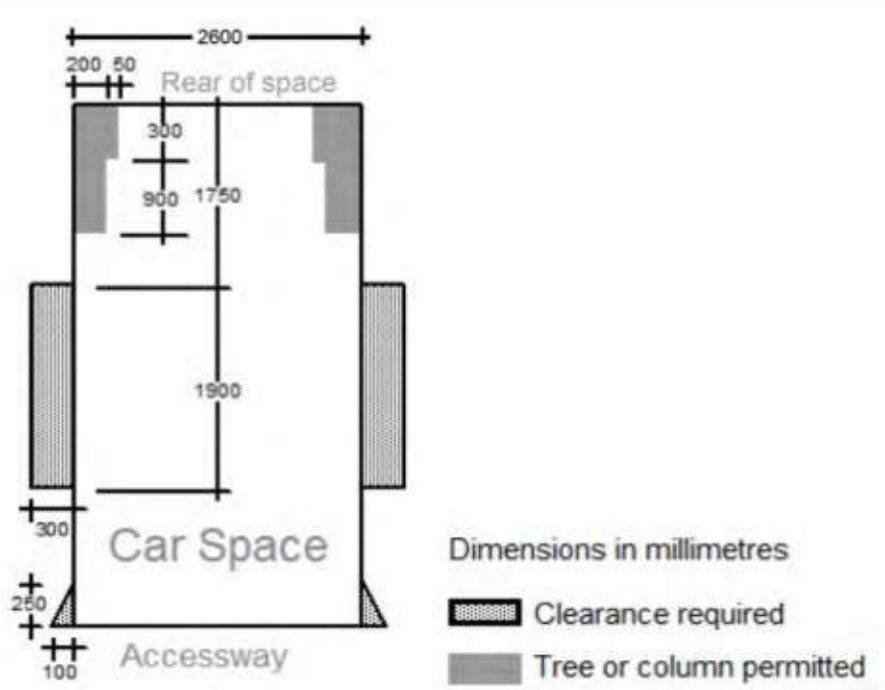
| Angle of car parking spaces to access way | Accessway width | Car space width | Car space length |
|---|---|---|---|
| **Parallel** | 3.6 m | 2.3 m | 6.7 m |
| **45º** | 3.5 m | 2.6 m | 4.9 m |
| **60º** | 4.9 m | 2.6 m | 4.9 m |
| **90º** | 6.4 m | 2.6 m | 4.9 m |
| | 5.8 m | 2.8 m | 4.9 m |
| | 5.2 m | 3.0 m | 4.9 m |
| | 4.8 m | 3.2 m | 4.9 m |

*Note: Some dimensions in Table 2 vary from those shown in the Australian Standard AS2890.1-2004 (off street). The dimensions shown in Table 2 allocate more space to aisle widths and less to marked spaces to provide improved operation and access. The dimensions in Table 2 are to be used in preference to the Australian Standard AS2890.1-2004 (off street) except for disabled spaces which must achieve Australian Standard AS2890.6-2009 (disabled).*

A wall, fence, column, tree, tree guard or any other structure that abuts a car space must not encroach into the area marked 'clearance required' on Diagram 1, other than:

- A column, tree or tree guard, which may project into a space if it is within the area marked 'tree or column permitted' on Diagram 1.
- A structure, which may project into the space if it is at least 2.1 metres above the space.

**Diagram 1 Clearance to car parking spaces**




Car spaces in garages or carports must be at least 6 metres long and 3.5 metres wide for a single space and 5.5 metres wide for a double space measured inside the garage or carport.

Where parking spaces are provided in tandem (one space behind the other) an additional 500mm in length must be provided between each space.

Disabled car parking spaces must be designed in accordance with Australian Standard AS2890.6-2009 (disabled) and the Building Code of Australia. Disabled carparking spaces may encroach into an accessway width specified in Table 2 by 500mm.

### Gradients

Accessway grades must not be steeper than 1:10 (10 percent) within 5 metres of the frontage to ensure safety for pedestrians and vehicles. The design must have regard to the wheel base of the vehicle being designed for; pedestrian and vehicular traffic volumes; the nature of the carpark; and the slope and configuration of the vehicle crossover at the site frontage. This does not apply to accessways serving three dwellings or less.

Ramps (except within 5 metres of the frontage) must have the maximum grades as outlined in Table 3 and be designed for vehicles travelling in a forward direction.

**Table 3: Ramp gradients**

| Type of car park | Length of ramp | Maximum grade |
|---|---|---|
| **Public car parks** | 20 metres or less | 1:5 (20%) |
| | longer than 20 metres | 1:6 (16.7%) |
| **Private or residential car parks** | 20 metres or less | 1:4 (25%) |
| | longer than 20 metres | 1:5 (20%) |

Where the difference in grade between two sections of ramp or floor is greater than 1:8 (12.5 per cent) for a summit grade change, or greater than 1:6.7 (15 percent) for a sag grade change, the ramp must include a transition section of at least 2 metres to prevent vehicles scraping or bottoming.

Plans must include an assessment of grade changes of greater than 1:5.6 (18 percent) or less than 3 metres apart for clearances, to the satisfaction of the Minister for Planning.

**Mechanical parking**

Mechanical parking may be used to meet the carparking standard provided:

- At least 25 percent of the mechanical carparking spaces can accommodate a vehicle height of at least 1.8 metres.
- Carparking spaces that require the operation of the system are not allocated to visitors unless used in a valet parking situation.
- The design and operation is to the satisfaction of the Minister for Planning.

**Urban design**

Ground level carparking, garage doors and accessways must not visually dominate public space.

Carparking within buildings (including visible portions of partly submerged basements) must be screened or obscured where possible, including through the use of occupied tenancies, landscaping, architectural treatments and art works.

Design of carparks must take into account their use as entry points to the site.

Design of new internal streets in developments must maximise on street parking opportunities.

**Safety**

Car parking must be well lit and clearly signed.

The design of carparks must maximise natural surveillance and pedestrian visibility from adjacent buildings.

Pedestrian access to carparking areas from the street must be convenient.

Pedestrian routes through car parking areas and building entries and other destination points must be clearly marked and separated from traffic in high activity parking areas.

**Landscaping**

The layout of car parking areas must provide for water sensitive urban design treatment and landscaping.

Landscaping and trees must be planted to provide shade and shelter, soften the appearance of ground level car parking and aid in the clear identification of pedestrian paths.

Ground level carparking spaces must include trees planted with flush grilles. Spacing of trees must be determined having regard to the expected size of the selected species at maturity.

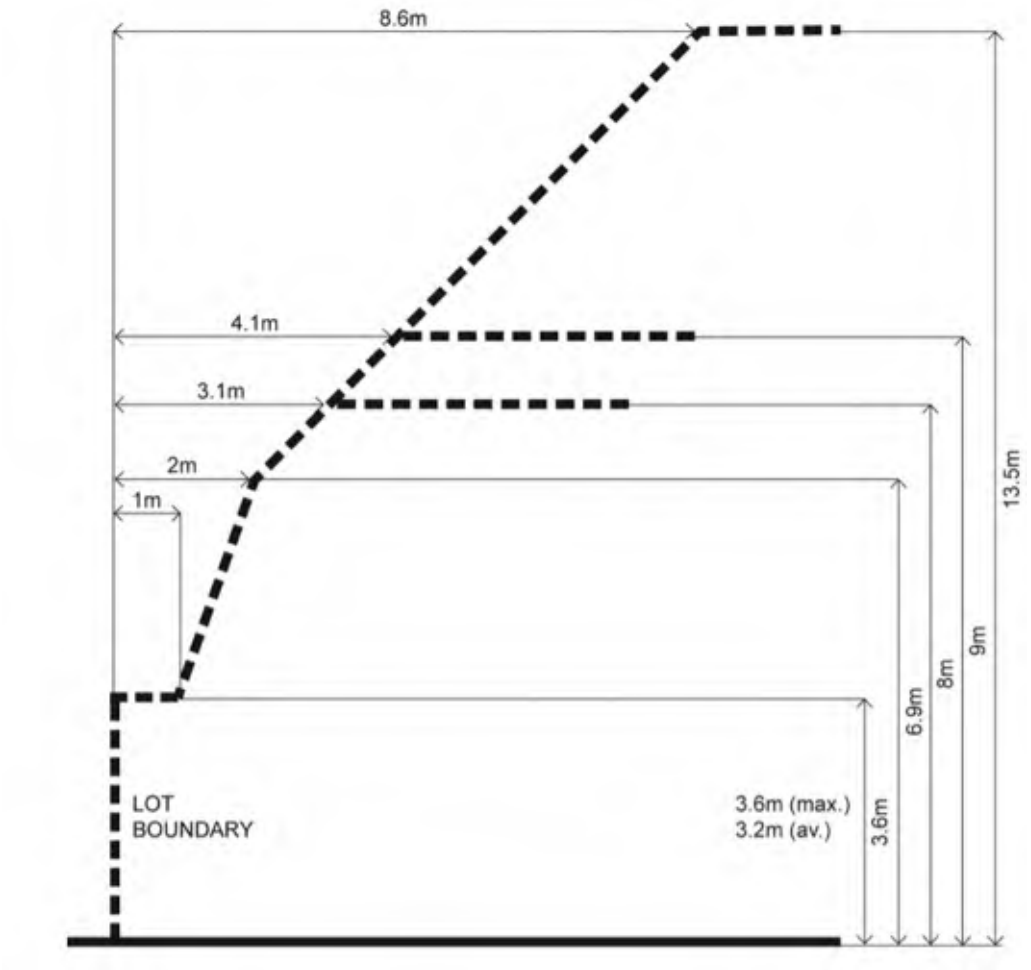
### 52.20-6.8 Side and rear setbacks

A new building not on or within 200mm of a boundary to a residential zone should be set back from side or rear boundaries 1 metre, plus 0.3 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres. Diagram 2 details the standard.

Sunblinds, verandahs, porches, eaves, fascias, gutters, masonry chimneys, flues, pipes, domestic fuel or water tanks, and heating or cooling equipment or other services may encroach not more than 0.5 metres into the setbacks of this standard.

Landings having an area of not more than 2 square metres and less than 1 metre high, stairways, ramps, pergolas, shade sails and carports may encroach into the setbacks of this standard.

**Diagram 2 Side and rear setbacks**




## 52.20-6.9 Walls on boundaries

A new wall constructed on or within 200mm of a side or rear boundary of a lot or a carport constructed on or within 1 metre of a side or rear boundary of lot should not abut the boundary for a length of more than:

- 10 metres plus 25 per cent of the remaining length of the boundary of an adjoining lot, or
- Where there are existing or simultaneously constructed walls or carports abutting the boundary on an abutting lot, the length of the existing or simultaneously constructed walls or carports whichever is the greater.

A new wall or carport may fully abut a side or rear boundary where slope and retaining walls or fences would result in the effective height of the wall or carport being less than 2 metres on the abutting property boundary.

A building on a boundary includes a building set back up to 200mm from a boundary.

The height of a new wall constructed on or within 200mm of a side or rear boundary or a carport constructed on or within 1 metre of a side or rear boundary should not exceed an average of 3.2 metres with no part higher than 3.6 metres unless abutting a higher existing or simultaneously constructed wall.

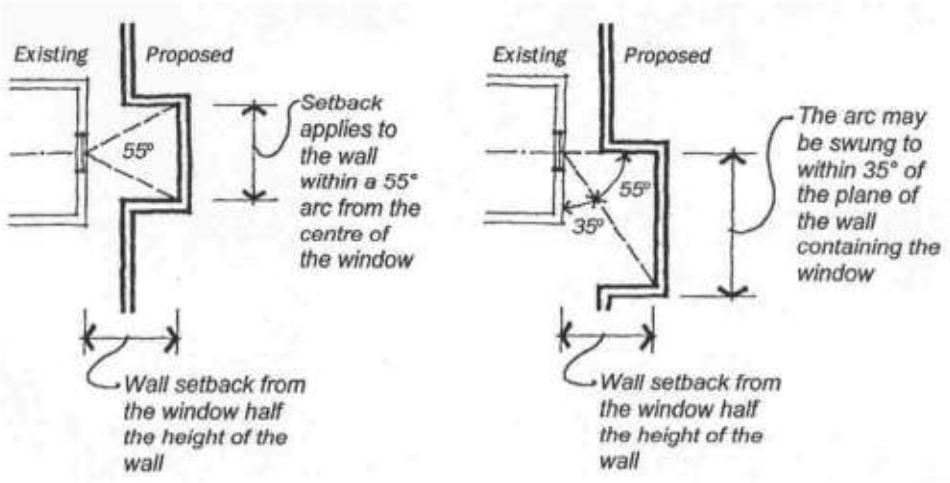
### 52.20-6.10 Daylight to existing windows

Buildings opposite an existing habitable room window should provide for a light court to the existing window that has a minimum area of 3 square metres and minimum dimension of 1 metre clear to the sky. The calculation of the area may include land on the abutting lot.

Walls or carports more than 3 metres in height opposite an existing habitable room window should be set back from the window at least 50 per cent of the height of the new wall if the wall is within a 55 degree arc from the centre of the existing window. The arc may be swung to within 35 degrees of the plane of the wall containing the existing window.

Where the existing window is above ground floor level, the wall height is measured from the floor level of the room containing the window.

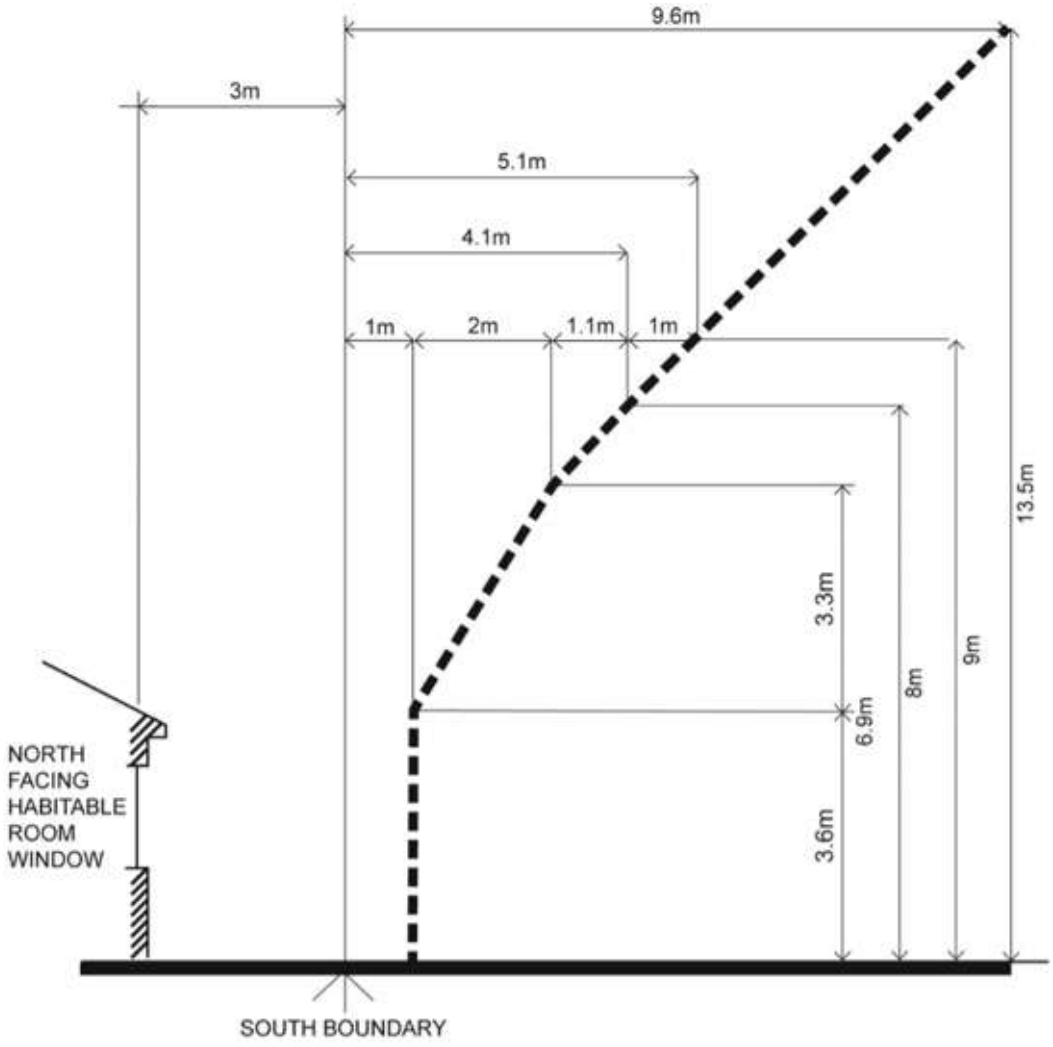
**Diagram 3 Daylight to existing windows**




### 52.20-6.11 North-facing windows

If a north-facing habitable room window of an existing dwelling or small second dwelling is within 3 metres of a boundary on an abutting lot, a building should be setback from the boundary 1 metre, plus 0.6 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres, for a distance of 3 metres from the edge of each side of the window. A north-facing window is a window with an axis perpendicular to its surface oriented north 20 degrees west to north 30 degrees east.

**Diagram 4 North-facing windows**




## 52.20-6.12 Overshadowing open space

Where sunlight to the secluded private open space of an existing dwelling or small second dwelling is reduced, at least 75 per cent, or 40 square metres with minimum dimension of 3 metres, whichever is the lesser area, of the secluded private open space should receive a minimum of five hours of sunlight between 9 am and 3 pm on 22 September.

If existing sunlight to the secluded private open space of an existing dwelling or small second dwelling is less than the requirements of this standard, the amount of sunlight should not be further reduced.

## 52.20-6.13 Overlooking

A habitable room window, balcony, terrace, deck or patio should be located and designed to avoid direct views into the secluded private open space of an existing dwelling or small second dwelling within a horizontal distance of 9 metres (measured at ground level) of the window, balcony, terrace, deck or patio. Views should be measured within a 45 degree angle from the plane of the window or perimeter of the balcony, terrace, deck or patio, and from a height of 1.7 metres above floor level.

A habitable room window, balcony, terrace, deck or patio with a direct view into a habitable room window of an existing dwelling or a small second dwelling within a horizontal distance of 9 metres (measured at ground level) of the window, balcony, terrace, deck or patio should be either:

- Offset a minimum of 1.5 metres from the edge of one window to the edge of the other.
- Have sill heights of at least 1.7 metres above floor level.
- Have fixed, obscure glazing in any part of the window below 1.7 metre above floor level.
- Have permanently fixed external screens to at least 1.7 metres above floor level and be no more than 25 per cent transparent.

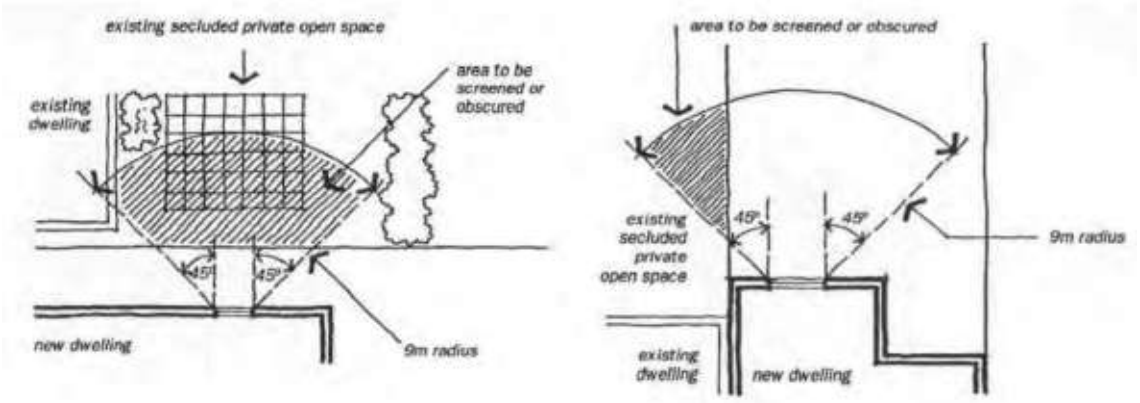
Obscure glazing in any part of the window below 1.7 metres above floor level may be openable provided that there are no direct views as specified in this standard.

Screens used to obscure a view should be:

- Perforated panels or trellis with a maximum of 25 per cent openings or solid translucent panels.
- Permanent, fixed and durable.
- Designed and coloured to blend in with the development.

This standard does not apply to a new habitable room window, balcony, terrace, deck or patio which faces a property boundary where there is a visual barrier at least 1.8 metres high and the floor level of the habitable room, balcony, terrace, deck or patio is less than 0.8 metres above ground level at the boundary.

**Diagram 5 Overlooking open space**




### 52.20-6.14 Noise impacts

Noise sources, such as mechanical plant, should not be located near bedrooms of immediately adjacent existing dwellings or small second dwellings.

Noise sensitive rooms and secluded private open spaces of new dwellings and residential buildings should take account of noise sources on immediately adjacent properties.

Dwellings and residential buildings close to busy roads, railway lines or industry should be designed to limit noise levels in habitable rooms.

### 52.20-6.15 Daylight to new windows

A window in a habitable room should be located to face:

- An outdoor space clear to the sky or a light court with a minimum area of 3 square metres and minimum dimension of 1 metre clear to the sky, not including land on an abutting lot, or
- A verandah provided it is open for at least one third of its perimeter, or
- A carport provided it has two or more open sides and is open for at least one third of its perimeter.

### 52.20-6.16 Private open space

A dwelling (other than an apartment) should have private open space consisting of:

- An area of secluded private open space with a minimum area of 25 square metres, a minimum dimension of 3 metres and convenient access from a living room; or
- A balcony of 8 square metres with a minimum width of 1.6 metres and convenient access from a living room; or
- A roof-top area of 10 square metres with a minimum width of 2 metres and convenient access from a living room.

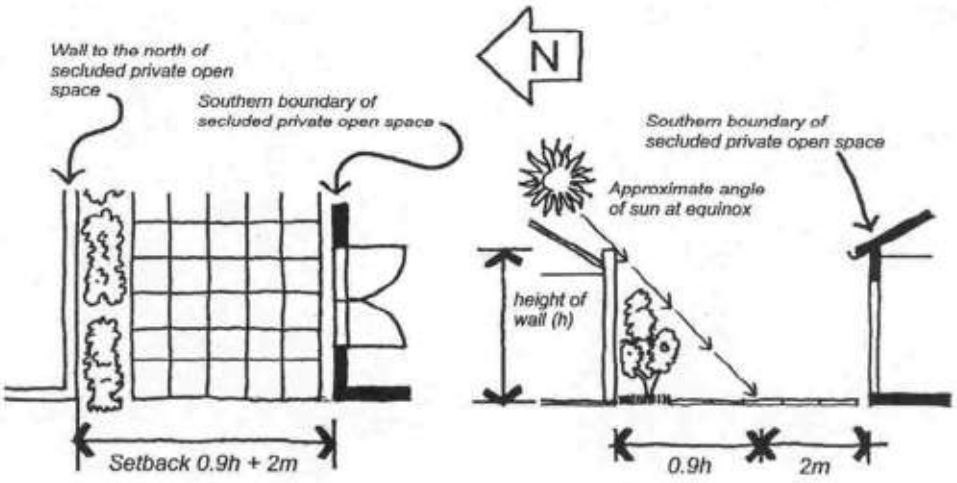
Secluded private open space may be located in the front setback if it is no more than 30% of the street frontage.

### 52.20-6.17 Solar access to open space

The private open space should be located on the north side of the dwelling if appropriate.

The southern boundary of secluded private open space should be set back from any wall on the north of the space at least (2 + 0.9h) metres, where 'h' is the height of the wall.

**Diagram 6 Solar access to open space**




### 52.20-6.18 Storage

A dwelling should have convenient access to at least 6 cubic metres of externally accessible, secure storage space.

### 52.20-6.19 Front fence

A front fence within 3 metres of a street should not exceed a maximum height of:

- 2 metres for streets in a Transport Zone 2, and
- 1.5 metres in other streets or where secluded private open space is proposed within the front setback, the front fence may reach a height of up to 1.8 metres for not more than 30% of the length of the boundary.

### 52.20-6.20 Common property

Developments should clearly delineate public, communal and private areas.

Common property, where provided, should be functional and capable of efficient management.

### 52.20-6.21 Site services

The design and layout of buildings should provide sufficient space (including easements where required) and facilities for services to be installed and maintained efficiently and economically.

Bin and recycling enclosures, mailboxes and other site facilities should be adequate in size, durable, waterproof and blend in with the development.

Bin and recycling enclosures should be located for convenient access by residents.

Mailboxes should be provided and located for convenient access as required by Australia Post.

## 52.20-7 Development standards for apartments

04/02/2026
VC265

### 52.20-7.1 Energy efficiency

Buildings should be:

- Oriented to make appropriate use of solar energy.
- Sited and designed to ensure that the energy efficiency of existing dwellings or small second dwellings on adjoining lots is not unreasonably reduced.
- Sited and designed to ensure that the performance of existing rooftop solar energy systems on dwellings or small second dwellings on adjoining lots in a General Residential Zone, Neighbourhood Residential Zone or Township Zone are not unreasonably reduced. The existing rooftop solar energy system must exist at the date the application is lodged.

Living areas and private open space should be located on the north side of the development, if practicable.

Developments should be designed so that solar access to north-facing windows is optimised.

Dwellings located in a climate zone identified in Table 4 should not exceed the maximum NatHERS annual cooling load.

**Table 4 Cooling load**

| NatHERS climate zone | NatHERS maximum cooling load<br>MJ/M$^2$ per annum |
|---|---|
| Climate zone 21 Melbourne | 30 |
| Climate zone 22 East Sale | 22 |
| Climate zone 27 Mildura | 69 |
| Climate zone 60 Tullamarine | 22 |
| Climate zone 62 Moorabbin | 21 |
| Climate zone 63 Warrnambool | 21 |
| Climate zone 64 Cape Otway | 19 |
| Climate zone 66 Ballarat | 23 |

*Note: Refer to NatHERS zone map, Nationwide House Energy Rating Scheme (Commonwealth Department of Environment and Energy).*

### 52.20-7.2 Communal open space

A development of 10 or more dwellings should provide a minimum area of communal outdoor open space of 30 square metres.

If a development contains 13 or more dwellings, the development should also provide an additional minimum area of communal open space of 2.5 square metres per dwelling or 220 square metres, whichever is the lesser. This additional area may be indoors or outdoors and consist of multiple separate areas of communal open space.

Each area of communal open space should be:

- Accessible to all residents.
- A useable size, shape and dimension.
- Capable of efficient management.
- Located to:
  - Provide passive surveillance opportunities, where appropriate.
  - Provide outlook for as many dwellings as practicable.
  - Avoid overlooking into habitable rooms and private open space of new dwellings.
  - Minimise noise impacts to new and existing dwellings or small second dwellings.

Any area of communal outdoor open space should be landscaped and include canopy cover and trees.

### 52.20-7.3 Solar access to communal outdoor open space

The communal outdoor open space should be located on the north side of a building, if appropriate.

At least 50 per cent or 125 square metres, whichever is the lesser, of the primary communal outdoor open space should receive a minimum of two hours of sunlight between 9am and 3pm on 21 June.

### 52.20-7.4 Landscaping

Development should retain existing trees and canopy cover.

Development should provide for the replacement of any significant trees that have been removed in the 12 months prior to the application being made.

Development should:

- Provide the canopy cover and deep soil area specified in Table 5. Existing trees can be used to meet the canopy cover requirements of Table 5.
- Provide canopy cover through canopy trees that are:
  - Located in an area of deep soil specified in Table 6. Where deep soil cannot be provided, trees should be provided in planters specified in Table 6.
  - Consistent with the canopy diameter and height at maturity specified in Table 7.
  - Located in communal outdoor open space or common areas or street frontages.
- Comprise smaller trees, shrubs and ground cover, including flowering native species.
- Include landscaping, such as climbing plants or smaller plant in planters, in the street frontage and in outdoor areas, including communal outdoor open space.
- Shade outdoor areas exposed to summer sun through landscaping or shade structures and use paving and surface materials that lower surface temperatures and reduce heat absorption.

- Be supported by irrigation systems which utilise alternative water sources such as rainwater, stormwater, and recycled water.
- Protect any predominant landscape features of the area.
- Take into account the soil type and drainage pattern of the site.
- Provide a safe, attractive and functional environment for residents.
- Specify landscape themes, vegetation (location and species), irrigation systems, paving and lighting.

**Table 5 Canopy cover and deep soil requirements**

| Site area | Canopy cover | Deep soil |
|---|---|---|
| 1000 square metres or less | 5% of site area<br>Include at least 1 Type A tree | 5% of site area or 12 square metres whichever is the greater |
| 1001 - 1500 square metres | 50 square metres plus 20% of site area above 1,000 square metres<br>Include at least 1 Type B tree | 7.5% of site area |
| 1501 - 2500 square metres | 150 square metres plus 20% of site area above 1,500 square metres<br>Include at least 2 Type B trees or 1 Type C tree | 10% of site area |
| 2501 square metres or more | 350 square metres plus 20% of site area above 2,500 square metres<br>Include at least 2 Type B trees or 1 Type C tree | 15% of site area |

**Table 6 Soil requirements for trees**

| Tree type | Tree in deep soil<br>Area of deep soil | Tree in planter<br>Volume of planter | Depth of planter soil |
|---|---|---|---|
| A | 12 square metres<br>(min. plan dimension 2.5 metres) | 12 cubic metres<br>(min. plan dimension 2.5 metres) | 0.8 metre |
| B | 49 square metres<br>(min. plan dimension 4.5 metres) | 28 cubic metres<br>(min. plan dimension 4.5 metres) | 1 metre |
| C | 121 square metres<br>(min. plan dimension 6.5 metres) | 64 cubic metres<br>(min. plan dimension 6.5 metres) | 1.5 metre |

*Note: Where multiple trees share the same section of soil the total required amount of soil can be reduced by 5% for every additional tree, up to a maximum reduction of 25%.*

**Table 7 Tree types**

| Tree types | Minimum canopy diameter at maturity | Minimum height at maturity |
|---|---|---|
| A | 4 metres | 4 metres |
| B | 8 metres | 8 metres |
| C | 12 metres | 12 metres |

### 52.20-7.5 Integrated water and stormwater management

Buildings should be connected to a non-potable dual pipe reticulated water supply, where available from the water authority.

The stormwater management system should be:

- Designed to meet the current best practice performance objectives for stormwater quality as contained in the *Urban stormwater management guidance* (Environment Protection Authority - Publication 1739.1, 2021).
- Designed to maximise infiltration of stormwater, water and drainage of residual flows into permeable surfaces, tree pits and treatment areas.

### 52.20-7.6 Building setback

The built form of the development should respect the existing urban context and respond to the features of the site.

Buildings should be set back from side and rear boundaries, and other buildings within the site to:

- Ensure adequate daylight into new habitable room windows.
- Avoid direct views into habitable room windows and private open space of new and existing dwellings or small second dwellings. Developments should avoid relying on screening to reduce views.
- Provide an outlook from dwellings that creates a reasonable visual connection to the external environment.

### 52.20-7.7 Noise impacts

Noise sources, such as mechanical plants should not be located near bedrooms of immediately adjacent existing dwellings or small second dwellings.

The layout of new dwellings and buildings should minimise noise transmission within the site.

Noise sensitive rooms (such as living areas and bedrooms) should be located to avoid noise impacts from mechanical plants, lifts, building services, non-residential uses, car parking, communal areas and other dwellings or small second dwellings.

New dwellings should be designed and constructed to include acoustic attenuation measures to reduce noise levels from off-site noise sources.

Buildings within a noise influence area specified in Table 8 should be designed and constructed to achieve the following noise levels:

- Not greater than 35dB(A) for bedrooms, assessed as an LAeq,8h from 10pm to 6am.
- Not greater than 40dB(A) for living areas, assessed LAeq,16h from 6am to 10pm.

Buildings, or part of a building screened from a noise source by an existing solid structure, or the natural topography of the land, do not need to meet the specified noise level requirements.

Noise levels should be assessed in unfurnished rooms with a finished floor and the windows closed.

**Table 8 Noise influence area**

| Noise Source | Noise influence area |
|---|---|
| **Zone interface** | |
| Industry | 300 metres from the Industrial 1, 2 and 3 zone boundary |
| **Roads** | |
| Freeways, tollways and other roads carrying 40,000 Annual Average Daily Traffic Volume | 300 metres from the nearest trafficable lane |
| **Railways** | |
| Railway servicing passengers in Victoria | 80 metres from the centre of the nearest track |
| Railway servicing freight outside Metropolitan Melbourne | 80 metres from the centre of the nearest track |
| Railway servicing freight in Metropolitan Melbourne | 135 metres from the centre of the nearest track |

*Note: The noise influence area should be measured from the closest part of the building to the noise source.*

### 52.20-7.8 Accessibility

At least 50 per cent of dwellings should have:

- A clear opening width of at least 850mm at the entrance to the dwelling and main bedroom.
- A clear path with a minimum width of 1.2 metres that connects the dwelling entrance to the main bedroom, an adaptable bathroom and the living area.
- A main bedroom with access to an adaptable bathroom.
- At least one adaptable bathroom that meets all of the requirements of either Design A or Design B specified in Table 9.

**Table 9 Bathroom design**

| | Design option A | Design option B |
|---|---|---|
| Door opening | A clear 850mm wide door opening. | A clear 820mm wide door opening located opposite the shower |
| Door design | Either:<br>▪ A slide door, or<br>▪ A door that opens outwards, or<br>▪ A door that opens inwards that is clear of the circulation area and has readily removable hinges. | Either:<br>▪ A slide door, or<br>▪ A door that opens outwards, or<br>▪ A door that opens inwards and has readily removable hinges. |

| | Design option A | Design option B |
|---|---|---|
| Circulation area | A clear circulation area that is:<br>▪ A minimum area of 1.2 metres by 1.2 metres.<br>▪ Located in front of the shower and the toilet.<br>▪ Clear of the toilet, basin and the door swing.<br>The circulation area for the toilet and shower can overlap. | A clear circulation area that is:<br>▪ A minimum width of 1 metre.<br>▪ The full length of the bathroom and a minimum length of 2.7 metres.<br>▪ Clear of the toilet and basin.<br>The circulation area can include a shower area. |
| Path to circulation area | A clear path with a minimum width of 900mm from the door opening to the circulation area. | Not applicable. |
| Shower | A hobless (step-free) shower. | A hobless (step-free) shower that has a removable shower screen and is located on the furthest wall from the door opening. |
| Toilet | A toilet located in the corner of the room. | A toilet located closest to the door opening and clear of the circulation area. |

### 52.20-7.9 Building entry and circulation

Entries to dwellings and buildings should:

- Be visible and easily identifiable.
- Provide shelter, a sense of personal address and a transitional space around the entry.

The layout and design of buildings should:

- Clearly distinguish entrances to residential and non-residential areas.
- Provide windows to building entrances and lift areas.
- Provide visible, safe and attractive stairs from the entry level to encourage use by residents.
- Provide common areas and corridors that:
  - Include at least one source of natural light and natural ventilation.
  - Avoid obstruction from building services.
  - Maintain clear sight lines.

### 52.20-7.10 Private open space

A dwelling should have private open space consisting of at least one of the following:

- An area at ground level of at least 25 square metres, with a minimum dimension of 3 metres and convenient access from a living room.
- A balcony with an area and dimensions specified in Table 10 and convenient access from a living room. If a cooling or heating unit is located on a balcony, the balcony should provide an additional area of 1.5 square metres.

- An area on a podium or other similar base of at least 15 square metres, with a minimum dimension of 3 metres and convenient access from a living room.
- An area on a roof of at least 10 square metres, with a minimum dimension of 2 metres and convenient access from a living room.

If the finished floor level of a dwelling is 40 metres or more above ground level, the requirements of Table 10 do not apply if at least the area specified in Table 11 is provided as living area or bedroom area in addition to the minimum area specified in Table 13 or Table 14.

**Table 10 Balcony size**

| Orientation of dwelling | Dwelling type | Minimum area | Minimum dimension |
|---|---|---|---|
| North (between north 20 degrees west to north 30 degrees east) | All | 8 square metres | 1.7 metres |
| South (between south 30 degrees west to south 20 degrees east) | All | 8 square metres | 1.2 metres |
| Any other orientation | Studio or 1 bedroom dwelling | 8 square metres | 1.8 metres |
| | 2 bedroom dwelling | 8 square metres | 2 metres |
| | 3 or more bedroom dwelling | 12 square metres | 2.4 metres |

**Table 11 Additional living area or bedroom area**

| Dwelling type | Additional area |
|---|---|
| Studio or 1 bedroom dwelling | 8 square metres |
| 2 bedroom dwelling | 8 square metres |
| 3 or more bedroom dwelling | 12 square metres |

### 52.20-7.11 Storage

Each dwelling should have convenient access to usable and secure storage space.

The total minimum storage space (including kitchen, bathroom and bedroom storage) should meet the requirements specified in Table 12.

**Table 12 Storage**

| Dwelling type | Total minimum storage volume | Minimum storage volume within the dwelling |
|---|---|---|
| Studio | 8 cubic metres | 5 cubic metres |
| 1 bedroom dwelling | 10 cubic metres | 6 cubic metres |
| 2 bedroom dwelling | 14 cubic metres | 9 cubic metres |

| Dwelling type | Total minimum storage volume | Minimum storage volume within the dwelling |
|---|---|---|
| 3 or more bedroom dwelling | 18 cubic metres | 12 cubic metres |

### 52.20-7.12 Waste and recycling

Developments should include dedicated areas for:

- Waste and recycling enclosures which are:
  - Adequate in size, durable, waterproof and blend in with the development.
  - Adequately ventilated.
  - Located and designed for convenient access by residents and made easily accessible to people with limited mobility.
- Adequate facilities for bin washing. These areas should be adequately ventilated.
- Collection, separation and storage of waste and recyclables, including where appropriate opportunities for on-site management of food waste through composting or other waste recovery as appropriate.
- Collection, storage and reuse of garden waste, including opportunities for on-site treatment, where appropriate, or off-site removal for reprocessing.
- Adequate circulation to allow waste and recycling collection vehicles to enter and leave the site without reversing.
- Adequate internal storage space within each dwelling to enable the separation of waste, recyclables and food waste where appropriate.

Waste and recycling management facilities should be designed and managed in accordance with a Waste Management Plan approved by the Minister for Planning and:

- Be designed to meet the better practice design options specified in *Waste Management and Recycling in Multi-unit Developments* (Sustainability Victoria, 2019).
- Protect public health and amenity of residents and adjoining premises from the impacts of odour, noise and hazards associated with waste collection vehicle movements.

### 52.20-7.13 Functional layout

Bedrooms should:

- Meet the minimum internal room dimensions specified in Table 13.
- Provide an area in addition to the minimum internal room dimensions and area to accommodate a wardrobe.

Living areas (excluding dining and kitchen areas) should meet the minimum internal room dimension and area specified in Table 14.

**Table 13 Bedroom dimensions**

| Bedroom type | Minimum width | Minimum depth | Minimum area |
|---|---|---|---|
| Main bedroom | 3 metres | 3.4 metres | 10.2 sqm |
| All other bedrooms | 3 metres | 3 metres | 9 sqm |

**Table 14 Living area dimensions**

| Dwelling type | Minimum width | Minimum area |
|---|---|---|
| Studio and 1 bedroom dwelling | 3.3 metres | 10 sqm |
| 2 or more bedroom dwelling | 3.6 metres | 12 sqm |

### 52.20-7.14 Room depth

Single aspect habitable rooms should not exceed a room depth of 2.5 times the ceiling height.

The depth of a single aspect, open plan, habitable room may be increased to 9 metres if all the following requirements are met:

- The room combines the living area, dining area and kitchen.
- The kitchen is located furthest from the window.
- The ceiling height is at least 2.7 metres measured from finished floor level to finished ceiling level. This excludes where services are provided above the kitchen.

The room depth should be measured from the external surface of the habitable room window to the rear wall of the room

### 52.20-7.15 Windows

Habitable rooms should have a window in an external wall of the building.

A window may provide daylight to a bedroom from a smaller secondary area within the bedroom where the window is clear to the sky. The secondary area should be:

- A minimum width of 1.2 metres.
- A maximum depth of 1.5 times the width, measured from the external surface of the window.

### 52.20-7.16 Natural ventilation

The design and layout of dwellings should maximise openable windows, doors or other ventilation devices in external walls of the building, where appropriate.

At least 40 per cent of dwellings should provide effective cross ventilation that has:

- A maximum breeze path through the dwelling of 18 metres.
- A minimum breeze path through the dwelling of 5 metres.
- Ventilation openings with approximately the same area.

The breeze path is measured between the ventilation openings on different orientations of the dwelling.

### 52.20-7.17 Integration with the street

Development should be oriented to front existing and proposed streets.

Along street frontages, development should:

- Incorporate pedestrian entries, windows, balconies or other active spaces.
- Limit blank walls.
- Limit high front fencing, unless consistent with the existing urban context.

- Provide low and visually permeable front fences, where proposed.
- Conceal car parking and internal waste collection areas from the street.

Development next to existing public open space should be designed to complement the open space and facilitate passive surveillance.

### 52.20-7.18 Access

Vehicle crossovers should be minimised.

Car parking entries should be consolidated, minimised in size, integrated with the façade and where practicable located at the side or rear of the building.

Pedestrian and cyclist access should be clearly delineated from vehicle access.

The location of crossovers should maximise pedestrian safety and the retention of on-street car parking spaces and street trees.

Development must provide access for service, emergency and delivery vehicles.

### 52.20-7.19 Site services

Development should provide adequate space (including easements where required) for site services to be installed and maintained efficiently and economically.

Meters and utility services should be designed as an integrated component of the building or landscape.

Mailboxes and other site facilities should be adequate in size, durable, weather-protected, located for convenient access and integrated into the overall design of the development.

### 52.20-7.20 External walls and materials

External walls should be finished with materials that:

- Do not easily deteriorate or stain.
- Weather well over time.
- Are resilient to the wear and tear from their intended use.

External wall design should facilitate safe and convenient access for maintenance.

### 52.20-7.21 Wind impacts

Development of five or more storeys should:

- not cause unsafe wind conditions specified in Table 15 in public land, publicly accessible areas on private land, private open space and communal open space; and
- achieve comfortable wind conditions specified in Table 15 in public land and publicly accessible areas on private land

within a distance of half the greatest length of the building, or half the total height of the building measured outwards on the horizontal plane from the ground floor building façade, whichever is greater.

Trees and landscaping should not be used to mitigate wind impacts. This does not apply to sitting areas, where trees and landscaping may be used to supplement fixed wind mitigation elements.

Wind mitigation elements, such as awnings and screens should be located within the site boundary, unless consistent with the existing urban context or preferred future development of the area.

**Table 15 Wind conditions**

| Unsafe | Comfortable |
|---|---|
| Annual maximum 3 second gust wind speed exceeding 20 metres per second with a probability of exceedance of 0.1% considering at least 16 wind directions. | Hourly mean wind speed or gust equivalent mean speed (3 second gust wind speed divided by 1.85), from all wind directions combined with probability of exceedance less than 20% of the time, equal to or less than:<br>▪ 3 metres per second for sitting areas.<br>▪ 4 metres per second for standing areas.<br>▪ 5 metres per second for walking areas. |

## 52.20-8 Native vegetation requirements

04/02/2026
VC265

In this clause:

- **Guidelines** means the *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025);
- ***levy area*** has the same meaning as in the *Melbourne Strategic Assessment (Environment Mitigation Levy) Act 2020*;
- ***Secretary*** means the Secretary to the Department of Environment, Land, Water and Planning as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*.

Before the removal, destruction or lopping of native vegetation outside the levy area:

- Information about the native vegetation in accordance with the application requirements 1, 5 and 9 in Table 4 of the Guidelines must be provided to the satisfaction of the Secretary.
- The biodiversity impacts from the native vegetation must be offset in accordance with the *Guidelines*.
- Evidence that the required offset has been secured must be provided to the satisfaction of the Secretary.

The requirements of Clause 52.20-8 do not apply to any native vegetation identified in the table of exemptions to Clause 52.17-7.

The Secretary may vary the timing of the offset requirement if the Secretary considers there are exceptional circumstances to warrant the variation.

The secured offset for a project may be reconciled at the completion of a project in accordance with the *Assessor's handbook – Applications to remove, destroy or lop native vegetation* (Department of Energy, Environment, and Climate Action, 2025) to the satisfaction of Secretary.

Before the removal, destruction or lopping of native vegetation inside the levy area, information about the native vegetation in accordance with the application requirements 1 and 5 in Table 4 of the Guidelines must be provided to the satisfaction of the Secretary.

The requirements of this clause may be satisfied for separate components or stages of a development. However, each requirement must be satisfied prior to the removal, destruction or lopping of native vegetation for that component or stage.

## 52.20-9 Transitional provision

20/03/2023
VC229

The development standards at Clause 52.20-7 for apartment developments and residential buildings in force immediately before the approval date of Amendment VC207 continue to apply to a use or development that has received written confirmation from the Chief Executive Officer, Homes Victoria that an application is funded, either wholly or partly, under Victoria's Big Housing Build program, signed before 30 June 2022.

# 52.21 PRIVATE TENNIS COURT

31/07/2018
VC148

## Purpose

To ensure that tennis courts used in association with a dwelling are sited and constructed to minimise the effects of the development on nearby properties.

To ensure that the use of tennis courts in association with a dwelling does not cause unreasonable disturbance to adjoining residents or adversely affect the residential amenity of adjoining areas.

## 52.21-1 Application

31/07/2018
VC148

This clause applies to any private tennis court which is used in association with a dwelling.

## 52.21-2 Permit requirement

19/01/2006
VC37

A permit is not required under any provision of this scheme to construct, use or illuminate a private tennis court if the performance requirements specified in the Code of Practice - Private Tennis Court Development Revision 1 March 1999 are met.

A permit is required to construct, use or illuminate a private tennis court:

- If any of the performance requirements specified in the Code of Practice - Private Tennis Court Development Revision 1 March 1999 are not met.
- If the land is in an Environmental Significance Overlay, a Vegetation Protection Overlay, a Significant Landscape Overlay, a Heritage Overlay, an Urban Floodway Zone, a Floodway Overlay or a Land Subject to Inundation Overlay and a permit is required for any of the following:
  - To construct a building or construct or carry out works.
  - To remove, destroy, prune or lop a tree or vegetation.

## 52.21-3 Application requirements

19/01/2006
VC37

Unless the circumstances do not require, an application under this clause must be accompanied by the following information:

- A copy of title of the land.
- A layout plan to a scale of not less than 1:200.
- The location of dwellings on adjoining land within 10 metres of the court site showing habitable room windows.
- Existing and proposed site levels.
- Location of vegetation to be removed.
- Proposed landscaping.
- Illumination levels and the position and height of light poles and fencing.
- Description of fencing material.
- The location of easements.
- Volume of excavated material to be brought to or removed from the site.
- Means of access to the site.
- Construction method and timing.

## 52.21-4 Notice provisions

31/07/2018
VC148

An application for a permit to construct, use or illuminate a private tennis court under any provision of this scheme is exempt from the notice requirements of section 52(1)(a), (b) and (d) of the Act.

In accordance with section 52(1)(c) of the Act notice of an application to construct, use or illuminate a private tennis court under any provision of this scheme must be given by ordinary post to the owners and occupiers of adjoining and opposite properties.

## 52.21-5 Decision guidelines

19/01/2006
VC37

Before deciding on an application under this Clause, in addition to the decision guidelines in Clause 65, the responsible authority must consider the relevant objectives and considerations specified in the Code of Practice - Private Tennis Court Development Revision 1 March 1999.

## 52.22 COMMUNITY CARE ACCOMMODATION

26/10/2018
VC152

### Purpose

To facilitate the establishment of community care accommodation.

To support the confidentiality of community care accommodation.

### 52.22-1 Application

26/10/2018
VC152

This clause applies to the use and development of land for community care accommodation.

### 52.22-2 Use exemption

28/02/2025
VC274

Any requirement in the Activity Centre Zone, Capital City Zone, Commercial 1 Zone, General Residential Zone, Housing Choice and Transport Zone, Low Density Residential Zone, Mixed Use Zone, Neighbourhood Residential Zone, Precinct Zone, Residential Growth Zone, Rural Living Zone or Township Zone to obtain a permit to use land for community care accommodation does not apply if all of the following requirements are met:

- Any condition opposite the use 'community care accommodation' in the table of uses in the zone or schedule to the zone is met.
- The use is:
  - funded by, or carried out by or on behalf of, a government department or public authority, including a public authority established for a public purpose under a Commonwealth Act; or
  - funded by, or carried out by, a registered National Disability Insurance Scheme (NDIS) provider if the design of the building is certified to the NDIS Specialist Disability Accommodation Design Standard by an accredited third party NDIS Specialist Disability Accommodation assessor.
- No more than 20 clients are accommodated. This does not include staff.
- No more than 5 persons at any one time who are not accommodated on the land may access support services provided on the land.

### 52.22-3 Buildings and works exemption

31/03/2025
VC267

Any requirement in the General Residential Zone, Housing Choice and Transport Zone, Low Density Residential Zone, Mixed Use Zone, Neighbourhood Residential Zone, Residential Growth Zone, Rural Living Zone or Township Zone to obtain a permit to construct a building or construct or carry out works for community care accommodation does not apply if all of the following requirements are met:

- The development is:
  - funded by, or carried out by or on behalf of, a government department or public authority, including a public authority established for a public purpose under a Commonwealth Act; or
  - funded by, or carried out by, a registered NDIS provider if the design of the building is certified to the NDIS Specialist Disability Accommodation Design Standard by an accredited third party NDIS Specialist Disability Accommodation assessor.

- The development is in the General Residential Zone or Neighbourhood Residential Zone, a garden area must be provided in accordance with the minimum garden area requirement specified in the zone.
- The development is in the General Residential Zone, Housing Choice and Transport Zone, Mixed Use Zone, Neighbourhood Residential Zone, Residential Growth Zone or Township Zone, the standards B2-1, B2-3, B2-4, B4-1, B4-2, B4-3, B4-4 and B5-2 of clause 55 must be met.

## 52.22-4 Exemption from notice and review

04/11/2022
VC226

An application under any provision of this planning scheme to use land or construct a building or construct or carry out works for community care accommodation is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if the application is made by or on behalf of:

- A government department or public authority, including a public authority established for a public purpose under a Commonwealth Act; or
- A registered NDIS provider if the design of the building is certified to the NDIS Specialist Disability Accommodation Design Standard by an accredited third party NDIS Specialist Disability Accommodation assessor.

## 52.22-5 Meaning of terms

04/11/2022
VC226

In this clause:

- National Disability Insurance Scheme has the same meaning as part 4 section 9 of the *National Disability Insurance Scheme Act 2013*.
- Registered NDIS provider has the same meaning as part 4 section 9 of the *National Disability Insurance Scheme Act 2013*.

# 52.23 ROOMING HOUSE

26/10/2018
VC152

## Purpose

To facilitate the establishment of domestic-scale rooming houses.

## 52.23-1 Application

26/10/2018
VC152

This clause applies to use and development of land for a rooming house.

## 52.23-2 Use exemption

28/02/2025
VC274

Any requirement in the Activity Centre Zone, Capital City Zone, Commercial 1 Zone, General Residential Zone, Housing Choice and Transport Zone, Mixed Use Zone, Neighbourhood Residential Zone, Precinct Zone, Residential Growth Zone or Township Zone to obtain a permit to use land for a rooming house does not apply if all of the following requirements are met:

- Any condition opposite the use 'rooming house' in the table of uses in the zone or schedule to the zone is met.
- The total floor area of all buildings on the land, measured from the outside of external walls or the centre of party walls, does not exceed 300 square metres, excluding outbuildings.
- No more than 12 persons are accommodated.
- No more than 9 bedrooms are provided.

## 52.23-3 Buildings and works exemption

25/02/2025
VC257

Any requirement in the General Residential Zone, Housing Choice and Transport Zone, Mixed Use Zone, Neighbourhood Residential Zone, Residential Growth Zone or Township Zone to obtain a permit to construct a building or construct or carry out works for a rooming house does not apply if all of the following requirements are met:

- No more than 9 bedrooms are developed on the land.
- Bedrooms can only be accessed from within the building.
- The total floor area of all buildings on the land, measured from the outside of external walls or the centre of party walls, does not exceed 300 square metres, excluding outbuildings.
- If the development is in the General Residential Zone or Neighbourhood Residential Zone, a garden area is provided in accordance with the minimum garden area requirement specified in the zone.
- Shared entry facilities and common areas, including a kitchen and living area, are provided.

## 52.25 CREMATORIUM

19/01/2006
VC37

### Purpose

To ensure that crematoria in cemeteries are developed and used in an appropriate manner.

### Permit required

A permit is required to develop and use a crematorium on land that is used for cemetery purposes.

This does not apply to land in the Springvale Crematorium.

### Decision guidelines

Before deciding on an application to use and develop land for a crematorium, in addition to the decision guidelines in Clause 65, the responsible authority must consider:

- The provision of landscaping and screen planting.
- The location and design of the buildings to be constructed.
- The effect on traffic movement generated by the use.
- The provision of parking facilities.

## 52.26 [NO CONTENT]

31/07/2018
VC148

## 52.27 [NO CONTENT]

01/07/2025
VC286

# 52.28 GAMING

31/07/2018
VC148

## 52.28-1 Purpose

18/10/2006
VC39

To ensure that gaming machines are situated in appropriate locations and premises.

To ensure the social and economic impacts of the location of gaming machines are considered.

To prohibit gaming machines in specified shopping complexes and strip shopping centres.

## 52.28-2 Gaming objectives

31/07/2018
VC148

A schedule to this clause may specify objectives to be achieved in relation to the installation or use of a gaming machine.

## 52.28-3 Permit requirement

31/07/2018
VC148

A permit is required to install or use a gaming machine.

This does not apply in either of the following circumstances:

- Clause 52.28-4 or Clause 52.28-5 specifically prohibit a gaming machine.
- the gaming machine is in an approved venue under the *Gambling Regulation Act 2003* on 18 October 2006 and the maximum number of gaming machines for the approved venue on 18 October 2006 is not exceeded.

## 52.28-4 Prohibition of a gaming machine in a shopping complex

31/07/2018
VC148

Installation or use of a gaming machine is prohibited on land specified in a schedule to this clause.

This does not apply to a gaming machine in an approved venue under the *Gambling Regulation Act 2003* on 18 October 2006; and the maximum number of gaming machines for the approved venue on 18 October 2006 is not exceeded.

## 52.28-5 Prohibition of a gaming machine in a strip shopping centre

31/07/2018
VC148

Installation or use of a gaming machine is prohibited in a strip shopping centre if:

- the strip shopping centre is specified in the schedule to this clause.
- the schedule provides that a gaming machine is prohibited in all strip shopping centres on land covered by this planning scheme.

This does not apply to a gaming machine in an approved venue under the *Gambling Regulation Act 2003* on 18 October 2006; and the maximum number of gaming machines for the approved venue on 18 October 2006 is not exceeded.

A strip shopping centre is an area that meets all of the following requirements:

- it is zoned for commercial use;
- it consists of at least two separate buildings on at least two separate and adjoining lots;
- it is an area in which a significant proportion of the buildings are shops;
- it is an area in which a significant proportion of the lots abut a road accessible to the public generally;

but it does not include the Capital City Zone in the Melbourne Planning Scheme.

## 52.28-6 Locations for gaming machines

31/07/2018
VC148

A schedule to this clause may specify guidelines relating to locations for gaming venues and machines.

## 52.28-7 Venues for gaming machines

31/07/2018
VC148

A schedule to this clause may specify guidelines relating to venues for gaming machines.

## 52.28-8 Application requirements

31/07/2018
VC148

An application must be accompanied by any information specified in a schedule to this overlay.

## 52.28-9 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines of Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The compatibility of the proposal with adjoining and nearby land uses.
- The capability of the site to accommodate the proposal.
- Whether the gaming premises provides a full range of hotel facilities or services to patrons or a full range of club facilities or services to members and patrons.
- Any other matters specified in the schedule to this clause.

02/12/2022
C259case

# SCHEDULE TO CLAUSE 52.28 GAMING

## 1.0 Objectives

19/06/2025
C284case

To avoid the concentration of gaming machines in socio-economic disadvantaged areas.

To ensure gaming forms only one aspect of the facilities and activities offered by venues.

To ensure that new proposals for gaming machines result in net social and economic community benefit.

## 2.0 Prohibition of a gaming machine in a shopping complex

19/06/2025
C284case

Installation or use of a gaming machine as specified in Clause 52.28-4 is prohibited on land described in Table 1 below.

**Table 1**

| Name of shopping complex and locality | Land description |
|---|---|
| Fountain Gate Shopping Centre, Narre Warren | Land bounded by Princes Highway, Narre Warren North Road, and the Monash Freeway and Magid Drive, Narre Warren, but excluding the premises known as Part of Lot 7, PS 334589V, Overland Drive, Narre Warren. |
| Cranbourne Major Activity Centre, Cranbourne | Land on the west side of High Street between Clarendon Street and Greaves Street, and a line extending east of Greaves Street to High Street, Cranbourne. |
| Endeavour Hills Shopping Centre, Endeavour Hills | Land generally bounded by Heatherton Road, Matthew Flinders Avenue and Raymond Boulevard, Endeavour Hills including Lots 1 and 2 on Plan of Subdivision 316105A and lots on Subdivision Plan 28113. |
| Hampton Park Shopping Centre, Hampton Park | Land bounded by Hallam Road, Somerville Road, Stuart Avenue and Fordholm Road, Hampton Park, excluding land at 10 Enterprise Avenue, being Lot 10 Plan of Subdivision 212296, known as the Hampton Park Tavern. |
| Autumn Place Shopping Centre, Eumemmering | Land bounded by Power Road, Autumn Place and Hawthorn Road, Eumemmering |
| Thompsons Parkway Shopping Centre, Cranbourne North | Land on the northeast corner of South Gippsland Highway and Thompsons Road, Cranbourne being Lots 1, 2 and 3 Plan of Subdivision 213531 and Lot 4 Plan of Subdivision 213583. |
| Spring Square Shopping Centre, Hallam | Land on the north and east sides of Spring Square, Hallam. |

## 3.0 Prohibition of a gaming machine in a strip shopping centre

19/06/2025
C284case

A gaming machine as specified in Clause 52.28-5 is prohibited in all strip shopping centres on land covered by this planning scheme.

## 4.0 Locations for gaming machines

19/06/2025
C284case

Gaming venues and machines should be located:

- Only in suburbs where the electronic gaming machine density is below the State average.

- Not on Council land, other than those covered by an existing agreement with the City of Casey.
- Not in or adjacent to facilities where the primary use focuses on children and people under 18 years of age, including childcare, education facilities, playgrounds or any areas specifically used for children's activities, such as sporting activities for young people.

## 5.0 Venues for gaming machines

19/06/2025
C284case

Gaming machines should be located:

- In venues that provide a range of non-gaming entertainment and recreation activities.

## 6.0 Application requirements

19/06/2025
C284case

The following application requirements apply to an application for a permit under Clause 52.28, in addition to those specified elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- Plans detailing the design and layout of the venue including demonstrating how internal and external exposure to the gaming area is minimised.
- A socio-economic impact assessment of the gaming proposal, including:
  - The relevant socio-economic disadvantage of the local neighbourhood, suburb and broader catchment of the venue.
  - The latest SEIFA index of relative socio-economic disadvantage.
  - The projected growth, housing affordability and housing stress, income levels, unemployment rates, educational retention and attainment levels, and the percentage of social security recipients.
  - Details of the venue's distance to shopping complexes, strip shopping centres, major areas of community congregation, proximity to areas of normal daily activity e.g. public transport, shops, community facilities, proximity to welfare and counselling services.
  - Details of currently available social support services e.g., specific problem gambling services, financial counselling services, material and financial aid services, etc.
  - Details of existing and proposed gambling and non-gambling entertainment and recreation facilities at the venue.
  - Details and justification of how the venue establishes itself as an entertainment destination alongside a range of other non-gaming related entertainment and recreational activities in and around the development.
  - Details of surrounding venues, including existing and proposed electronic gaming machine density and location of other gambling venues including those in adjoining municipalities proximate to the venue.
  - Details of the venue's distance from facilities where the primary use focuses on children and people under18 years of age, including childcare, education facilities or any area specifically used for children's activities such as sporting activities.
  - A detailed overall assessment that shows and summarises the economic and social impacts of the proposal and location and their effect on the community wellbeing and health including:
    - Evidence of the impact of the proposal on the community, including through a community survey or other qualitative measure.

- Pedestrian counts for venues which are close to places where large numbers of pedestrians are likely to pass in the course of their daily activities. Pedestrian counts to be taken on different days and at a variety of times.
- Social impact surveys that measure current and anticipated levels of community satisfaction from living in the local area.

- A statement detailing how any benefit will be secured and distributed to the community.

## 7.0 Decision guidelines

19/06/2025
C284case

None specified.

## 52.29 LAND ADJACENT TO THE PRINCIPAL ROAD NETWORK

20/01/2022
VC205

### Purpose

To ensure appropriate access to the Principal Road Network or land planned to form part of the Principal Road Network.

To ensure appropriate subdivision of land adjacent to Principal Road Network or land planned to form part of the Principal Road Network.

### 52.29-1 Application

20/01/2022
VC205

This clause applies to land adjacent to a road in the Transport Zone 2 or land in a Public Acquisition Overlay if a transport manager (other than a municipal council) is the acquiring authority, and the purpose of the acquisition is for a road.

### 52.29-2 Permit requirement

20/01/2022
VC205

A permit is required to:

- Create or alter access to:
  - A road in a Transport Zone 2.
  - Land in a Public Acquisition Overlay if a transport manager (other than a municipal council) is the acquiring authority and the acquisition is for the purpose of a road.
- Subdivide land adjacent to:
  - A road in a Transport Zone 2.
  - Land in a Public Acquisition Overlay if a transport manager (other than a municipal council) is the acquiring authority and the acquisition is for the purpose of a road.

### 52.29-3 Permit not required

14/05/2021
VC198

A permit is not required to:

- Create or alter access, or subdivide land, if carried out by or on behalf of the Head, Transport for Victoria.
- Realign a boundary.
- Subdivide an existing building, provided the building is already connected to services and no new access is required.
- Subdivide land into two lots, provided no new access is required.

### 52.29-4 Referral of applications

20/01/2022
VC205

An application must be referred under section 55 of the Act to the person or body specified as the referral authority in clause 66.03.

### 52.29-5 Exemption from notice and review

31/07/2018
VC148

An application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### 52.29-6 Decision guidelines

20/01/2022
VC205

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider:

- The Municipal Planning Strategy and the Planning Policy Framework.

- The views of the relevant road authority.
- The effect of the proposal on the operation of the road and on public safety.
- Any policy made by the relevant road authority pursuant to schedule 2, clause 3 of the *Road Management Act 2004* regarding access between a controlled access road and adjacent land.

# 52.30 STATE PROJECTS

12/02/2024
VC254

## Purpose

To facilitate the development and delivery of projects by or on behalf of, or jointly or in partnership with, or funded by the State of Victoria or a public authority, or on Crown land.

## 52.30-1 Application

04/02/2026
VC265

This clause applies to any project decided by the Minister for Planning under clause 52.30-2 to be a state project.

In this clause:

- ***Chief Executive Officer, Homes Victoria*** means 'Chief Executive Officer, Homes Victoria' as defined in the *Housing Act 1983* and the body corporate established under the *Housing Act 1983*;
- ***green wedge land*** has the same meaning as in Division 1 of Part 3AA of the Act;
- ***Guidelines*** means the *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025);
- ***levy area*** has the same meaning as in the *Melbourne Strategic Assessment (Environment Mitigation Levy) Act 2020;*
- ***project*** means:
  - use or development of land; or
  - creation or alteration of access to a road in a Transport Zone; or
  - creation, variation or removal of an easement or restriction; or
  - variation or removal of a condition in the nature of an easement in a Crown grant;
- ***restriction*** has the same meaning as in the *Subdivision Act 1988;*
- ***Secretary*** means the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*).

The provisions of this clause prevail over any inconsistent provision in this planning scheme.

## 52.30-2 State project decision

12/02/2024
VC254

The exemption in clause 52.30-3 applies if the Minister for Planning is satisfied that a proposed project is a state project which:

- will be:
  - carried out by or on behalf of, or jointly or in partnership with, the State of Victoria or a public authority; or
  - funded, or partly funded by, the State of Victoria or a public authority; or
  - carried out on Crown land;
- is consistent with any Great Ocean Road strategic framework plan, Statement of Planning Policy or Yarra Strategic Plan that applies to the land;
- will not subdivide green wedge land into more lots or into smaller lots than allowed for by this planning scheme;

- is consistent with any approved regional strategy plan under Part 3A of the Act and any approved strategy plan under Part 3C or Part 3D of the Act; and
- does not form part of public works declared under section 3, or works subject to a notice under section 8B(4)(a)(i), or does not require an environment effects statement under the *Environment Effects Act 1978*.

In deciding whether a proposed project is a state project, the Minister for Planning may, where relevant:

- Consider the objectives of planning in Victoria.
- Have regard to any relevant Minister's directions.
- Have regard to the *Victoria Planning Provisions*.
- Take into account any significant effects which the Minister considers the proposed use or development may have on the environment or which the Minister considers the environment may have on the proposed use or development.
- Take into account any significant social effects and economic effects which the Minister considers the proposed use or development may have.
- Consider any existing specific control under clause 45.12 or 51.01 that applies to the proposed use or development.

## 52.30-3 Exemption from planning scheme requirements

12/02/2024
VC254

Any requirement of this planning scheme to obtain a permit or any provision of this planning scheme that prohibits a project, requires a project to be carried out in a particular manner, or requires a specified thing to be done to the satisfaction of a specified person or body, does not apply to a project decided by the Minister for Planning under clause 52.30-2 to be a state project if the requirements of clause 52.30 are met.

This exemption does not apply to the following:

- The subdivision of green wedge land into more lots or into smaller lots than allowed for by this planning scheme.
- A development for which an environment effects statement has been, or is required to be, prepared under the *Environment Effects Act 1978*.
- A use or development carried out by or on behalf of, or jointly or in partnership with, the Chief Executive Officer, Homes Victoria.
- A use or development to which clauses 52.03, 52.35 or 52.36 apply.
- A requirement in clauses 45.07, 45.08 or 51.03, or in any schedule to those clauses.

## 52.30-4 Project requirement

29/09/2022
VC222

The project must be carried out generally in accordance with the plans and documents approved under this clause, to the satisfaction of the Minister for Planning.

## 52.30-5 Consultation requirements

29/09/2022
VC222

Before the project commences:

- Public consultation, including consultation with relevant public authorities and the municipal council for the municipal district within which the proposed project will be carried out, must be carried out to the satisfaction of the Minister for Planning.
- A report that summarises the consultation undertaken and the feedback received, and explains how the feedback has been considered and responded to must be prepared to the satisfaction of the Minister for Planning.

The requirements of this clause may be varied or waived by the Minister for Planning.

## 52.30-6 Other pre-commencement requirements

12/02/2024
VC254

Before the project commences, the following plans, documents and information must be prepared and submitted to the satisfaction of the Minister for Planning:

- A plan that shows the boundary of the land on which the project will be carried out.
- A site and context description that accurately describes and analyses the natural, physical, cultural heritage, built heritage, landscape, vegetation, access and any other notable features, characteristics and significance of the land and surrounding area, including any existing use and development.
- A description of the proposed use including:
  - The activities that will be carried out.
  - The likely effects, if any, on the land, and surrounding land and land uses, including noise levels, traffic, air-borne emissions, emissions to land and water, light spill, glare, solar access and hours of operation.
- Detailed plans and elevations of the proposed development drawn to scale and dimensioned, including details of any buildings or works proposed to be demolished or removed, and any vegetation proposed to be retained or removed.
- A report that addresses how the proposed project responds to purposes, objectives, or statements of significance or risk of any zone, overlay, or other provision that would apply to the proposed project but for the exemption in clause 52.30-3.
- A schedule of works and development including staging and the expected commencement and completion times.
- If the Minister for Planning has decided that an assessment under the *Environment Effects Act 1978* is not required for the proposed development and the Minister's decision is subject to conditions:
  - A report that details how each condition has been considered and addressed in the design, construction and operation of the proposed development.
  - A copy of any report, plan or other document required to be prepared under those conditions.
- A plan for the management or mitigation of potential adverse effects or impacts on the environment or amenity from the proposed use or development, during and following construction.
- If the proposed project would require a permit but for the exemption in clause 52.30-3 and a copy of the application for that permit would be required to be given to a referral authority under section 55 of the Act, the comments of that referral authority on the proposed project.
- A report that demonstrates that the environmental conditions of the land are or will be suitable for the proposed use or development including any significant effects which the use or development may have on the environment or which the environment may have on the use or development including water, noise, air or land pollution impacts on the environment, amenity or human health.
- Any other plan, document or information the Minister for Planning considers necessary to assist the Minister's assessment of the proposed project or the plans and documents required to be prepared under this clause.

The requirements of this clause may be:

- Satisfied in separate components or stages of a project, but each requirement must be satisfied prior to the commencement of that component or stage.
- May be varied or waived by the Minister for Planning.

The plans and other documents required by this clause may be amended during the project to the satisfaction of the Minister for Planning.

## 52.30-7 Native vegetation requirements

25/03/2021
VC194

Before the removal, destruction or lopping of native vegetation outside the levy area:

- Information about the native vegetation in accordance with application requirements in Tables 4 and 5 of the Guidelines must be prepared to the satisfaction of the Secretary.
- The biodiversity impacts from the removal, destruction or lopping of that native vegetation must be offset in accordance with the Guidelines.
- Evidence that the required offset has been secured must be provided to the satisfaction of the Secretary.

The Secretary may vary the timing of the offset requirement.

The secured offset for a state project to which this clause applies may be reconciled at the completion of a project to the satisfaction of the Secretary.

Before the removal, destruction or lopping of native vegetation inside the levy area, information about the native vegetation in accordance with application requirements in Tables 4 and 5 (other than requirement 9) of the Guidelines must be prepared to the satisfaction of the Secretary.

The information requirements of this clause may be varied or waived by the Secretary.

The requirements of this clause may be satisfied in separate components or stages of a development, but each requirement must be satisfied before the removal, destruction or lopping of native vegetation for that component or stage.

# 52.31 LOCAL GOVERNMENT PROJECTS

25/03/2021
VC194

## Purpose

To facilitate the development of land by or on behalf of municipal councils.

## 52.31-1 Permit exemptions

25/03/2021
VC194

Any requirement in a zone or a schedule to a zone to obtain a permit to construct a building or construct or carry out works does not apply to the development of land carried out by or on behalf of a municipal council. This exemption does not apply to:

- A development with an estimated cost of more than $10 million.
- A development in the Urban Floodway Zone unless the development is carried out to the satisfaction of the relevant floodplain management authority.
- A development associated with the use of land for accommodation, earth and energy resources industry, energy generation facility, industry or warehouse.
- A development for which an environment effects statement has been, or is required to be, prepared under the *Environment Effects Act 1978*.
- A development for which the Minister for Planning has decided that an assessment through an environment effects statement under the *Environment Effects Act 1978* is not required if the Minister's decision is subject to conditions.

Any requirement in the Floodway Overlay, Land Subject to Inundation Overlay and Special Building Overlay to obtain a permit to construct a building or construct or carry out works does not apply to the development of land carried out by or on behalf of a municipal council to the satisfaction of the relevant floodplain management authority.

This clause prevails over any inconsistent provision in this planning scheme.

## 52.31-2 Exemption from notice and review

25/03/2021
VC194

An application under any provision of this planning scheme to develop land by or on behalf of a municipal council is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act. This exemption does not apply to:

- An application for a development with an estimated cost of more than $10 million.
- An application for a development associated with the use of land for accommodation, earth and energy resources industry, energy generation facility, industry or warehouse.
- An application to remove, destroy or lop more than:
  - 0.5 hectares of native vegetation other than a tree; or
  - 15 native trees with a trunk diameter of less than 40 centimetres at a height of 1.3 metres above ground level; or
  - 5 native trees with a trunk diameter of 40 centimetres or more at a height of 1.3 metres above ground level.

# 52.32 WIND ENERGY FACILITY

31/07/2018
VC148

## Purpose

To facilitate the establishment and expansion of wind energy facilities, in appropriate locations, with minimal impact on the amenity of the area.

## 52.32-1 Application

03/08/2021
VC206

This clause applies to land used and developed or proposed to be used and developed for a wind energy facility.

## 52.32-2 Use and development of land

03/08/2021
VC206

A permit is required to use and develop land for a wind energy facility.

The use and development of land for a wind energy facility is prohibited at a location listed in the table to this clause unless the condition opposite the location specified in the table is met.

**Table to Clause 52.32-2**

| Location | Condition |
|---|---|
| **On land where any turbine (measured from the centre of the tower at ground level) that forms part of the facility is located within one kilometre of an existing dwelling. This does not apply to a wind energy facility that is located on land in a residential zone, an industrial zone, a commercial zone or a special purpose zone.** | Must meet the requirements of clause 52.32-3. |
| **Land described in a schedule to the *National Parks Act 1975*** | Must be principally used to supply electricity to a facility used in conjunction with conservation, recreation, administration or accommodation use of the land. |
| **Land declared a Ramsar wetland as defined under section 17 of the *Environment Protection and Biodiversity Conservation Act 1999* (Cwth)** | |
| **Land listed in a schedule to Clause 52.32-2** | Must be on land in a residential zone, industrial zone, commercial zone or special purpose zone and must be integrated as part of the development of the land. |

## 52.32-3 Turbine within one kilometre of a dwelling

03/08/2021
VC206

An application that includes a proposed turbine within one kilometre of an existing dwelling must be accompanied by:

- A plan showing all dwellings within one kilometre of a proposed turbine (measured from the centre of the tower at ground level).
- Evidence of the written consent of any owner as at the date of that application of an existing dwelling located within one kilometre of a proposed turbine (measured from the centre of the tower at ground level) that forms part of a wind energy facility. This does not apply to an application to amend such a permit under section 72 or section 97I of the Act unless the amendment of the permit would:

- increase the number of turbines; or
- change the location of a turbine so that the centre of the tower (at ground level) is located closer to an existing dwelling (within one kilometre of a permitted turbine) than the centre of the tower (at ground level) of the closest permitted turbine to that dwelling.

This does not apply to a wind energy facility that is located on land in a residential zone, an industrial zone, a commercial zone or a special purpose zone.

## 52.32-4 Application requirements

04/07/2023
VC234

An application must be accompanied by the following information as appropriate:

### Site and context analysis

A site and context analysis may use a site plan, photographs or other techniques to accurately describe the site and surrounding area and must include the following information:

- In relation to the site:
  - Site shape, dimensions and size
  - Orientation and contours
  - Current land use
  - The existing use and siting of buildings or works on the land
  - Existing vegetation types, condition and coverage
  - The landscape of the site
  - Species of flora and fauna listed under the *Flora and Fauna Guarantee Act 1988* and the *Environment Protection and Biodiversity Conservation Act 1999* (Cwth)
  - Sites of cultural heritage significance
  - Wind characteristics
  - Any other notable features, constraints or other characteristics of the site.
- In relation to the surrounding area:
  - Existing land uses
  - Above-ground utilities
  - Access to infrastructure
  - Direction and distances to nearby dwellings, townships, urban areas, significant conservation and recreation areas, water features, tourist routes and walking tracks, major roads, airports, aerodromes and existing and proposed wind energy facilities
  - The siting and use of buildings on adjacent properties
  - Views to and from the site, including views from existing dwellings and key vantage points including major roads, walking tracks, tourist routes and regional population growth corridors
  - Sites of flora and fauna listed under the *Flora and Fauna Guarantee Act 1988* and *Environment Protection and Biodiversity Conservation Act 1999* (Cwth), including significant habitat corridors, and movement corridors for these fauna
  - Sites of cultural heritage significance
  - National Parks, State Parks, Coastal Reserves and other land subject to the *National Parks Act 1975*

- Land declared a Ramsar wetland as defined under section 17 of the *Environment Protection and Biodiversity Conservation Act 1999* (Cwth)
- Location of any land included in the schedule to clause 52.32-2 of the planning scheme
- Any other notable features or characteristics of the area
- Bushfire risks.

**Design response**

- Detailed plans of the proposed development.
- Plans and elevations of transmission infrastructure and electricity utility works required to connect the facility to the electricity network, and access road options.
- Accurate visual simulations illustrating the development in the context of the surrounding area and from key public view points.
- A rehabilitation plan for the site.
- A written report(s), including:
  - A description of the proposal.
  - An explanation of how the proposed design derives from and responds to the site analysis.
  - A description of how the proposal responds to any significant landscape features for the area identified in the planning scheme.
  - An assessment of:
    - the visual impact of the proposal on the surrounding landscape.
    - the visual impact on abutting land that is described in a schedule to the *National Parks Act 1975* and Ramsar wetlands and coastal areas.
    - the impact of the proposal on any species (including birds and bats) listed under the *Flora and Fauna Guarantee Act 1988* or the *Environment Protection and Biodiversity Conservation Act 1999* (Cwth).
    - the impacts upon Aboriginal or non-Aboriginal cultural heritage.
  - A statement of why the site is suitable for the wind energy facility.
  - An environmental management plan including any rehabilitation and monitoring requirements.
- A pre-construction (predictive) noise assessment report prepared by a suitably qualified and experienced acoustician that:
  - Reports on a pre-construction (predictive) noise assessment conducted in accordance with *New Zealand Standard NZS6808:2010, Acoustics - Wind Farm Noise*.
  - Provides an assessment of whether the proposed wind energy facility will comply with the noise limit for that facility under Division 5 Part 5.3 of the *Environment Protection Regulations 2021*.

  - Where the proposed wind energy facility will be the subject of a wind turbine noise agreement under Division 5 of Part 5.3 of the *Environment Protection Regulations 2021,* specifies the premises of the relevant landowner (including any particular buildings) to which the agreement relates and provides an assessment of whether the proposed wind energy facility will comply with the modified noise limit for that facility specified in the agreement.
  - Is prepared on the basis that the relevant noise standard under Division 5 of Part 5.3 of the *Environment Protection Regulations 2021* will be *New Zealand Standard NZS6808:2010, Acoustics - Wind Farm Noise* and includes an assessment of whether a high amenity noise limit is applicable under Section 5.3 of the standard.

- A report prepared by an environmental auditor appointed under Part 8.3 of the *Environment Protection Act 2017* that verifies whether or not the pre-construction (predictive) noise assessment was conducted in accordance with *New Zealand Standard NZS6808:2010, Acoustics - Wind Farm Noise*.

If in the opinion of the responsible authority a requirement of the site and context analysis or design response is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement.

## 52.32-5 Decision guidelines

04/07/2023
VC234

Before deciding on an application, in addition to the decision guidelines of Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The effect of the proposal on the surrounding area in terms of noise, blade glint, shadow flicker and electromagnetic interference.
- The impact of the development on significant views, including visual corridors and sightlines.
- The impact of the facility on the natural environment and natural systems.
- The impact of the facility on cultural heritage.
- The impact of the facility on aircraft safety.
- *Policy and Planning Guidelines for Development of Wind Energy Facilities in Victoria* (Department of Environment, Land, Water and Planning, November 2021).

## 52.32-6 Anemometer

03/08/2021
VC206

Despite anything to the contrary in this scheme a permit may be granted to use and develop land for the purpose of wind measurement by an anemometer for a period of more than three years.

## 52.32-7 Application to amend a permit under section 72 of the Act

03/08/2021
VC206

An application to amend a permit made under section 72 of the Act is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if the amendment of the permit does not:

- increase the number of turbines; or
- increase the maximum height of a turbine.

## 52.32-8 Application to amend a permit under section 97I of the Act

03/08/2021
VC206

An application to amend a referred wind energy facility permit made under section 97I of the Act is wholly exempt from the requirements of section 97E(1) of the Act if the application does not seek to:

- increase the total number of turbines; or
- increase the maximum height of a turbine.

The requirements of section 97E(1) of the Act are modified so as to require referral of objections and submissions to an advisory committee established under section 151 of the Act if an application to amend a referred wind energy facility permit made under section 97I of the Act does not seek to:

- increase the total number of turbines by more than 15%; or
- increase the maximum height of a turbine by more than 20%.

31/07/2018
VC148

# SCHEDULE TO CLAUSE 52.32 WIND ENERGY FACILITY

## 1.0 Wind energy facility prohibition

31/07/2018
VC148

| Land where a Wind energy facility is prohibited |
| --- |
| None specified |

## 52.33 POST BOXES AND DRY STONE WALLS

31/07/2018
VC148

### Purpose

To conserve historic post boxes and dry stone walls.

### Permit requirement

A permit is required to demolish or remove a post box constructed before 1930.

A permit is required to demolish, remove or alter a dry stone wall constructed before 1940 on land specified in the schedule to this provision. This does not apply to:

- Dry stone structures other than walls and fences.
- The demolition or removal of a section of a dry stone wall to install a gate.
- The reconstruction of damaged or collapsing walls which are undertaken to the same specifications and using the same materials as the existing walls.

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The significance of the post box or dry stone wall.
- Any applicable heritage study, statement of significance and conservation policy.
- Whether the proposal will adversely affect the significance of the post box or dry stone wall.
- Whether the proposal will adversely affect the significance, character or appearance of the area.

31/07/2018
VC148

# SCHEDULE TO CLAUSE 52.33 POST BOXES AND DRY STONE WALLS

## 1.0 Permit requirement for dry stone walls

31/07/2018
VC148

| Land |
| --- |
| None specified |

# 52.34 BICYCLE FACILITIES

31/07/2018
VC148

## Purpose

To encourage cycling as a mode of transport.

To provide secure, accessible and convenient bicycle parking spaces and associated shower and change facilities.

## 52.34-1 Provision of bicycle facilities

19/01/2006
VC37

A new use must not commence or the floor area of an existing use must not be increased until the required bicycle facilities and associated signage has been provided on the land.

Where the floor area occupied by an existing use is increased, the requirement for bicycle facilities only applies to the increased floor area of the use.

## 52.34-2 Permit requirement

31/07/2018
VC148

A permit may be granted to vary, reduce or waive any requirement of Clause 52.34-5 and Clause 52.34-6.

## 52.34-3 Exemption from notice and review

31/07/2018
VC148

An application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 52.34-4 Decision guidelines

14/01/2025
VC237

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- Whether the proposed number, location and design of bicycle facilities meets the purpose of this clause.
- The location of the proposed land use and the distance a cyclist would need to travel to reach the land.
- The users of the land and their opportunities for bicycle travel.
- Whether showers and change rooms provided on the land for users other than cyclists are available to cyclists.
- The opportunities for sharing of bicycle facilities by multiple uses, either because of variation of bicycle parking demand over time or because of efficiencies gained from the consolidation of shared bicycle facilities.
- *Australian Standard AS2890.3:2015, Parking Facilities Part 3: Bicycle Parking* (Standards Australia, 2015)
- Any relevant bicycle parking strategy or equivalent.

## 52.34-5 Required bicycle facilities

28/02/2025
VC274

Tables 1, 2 and 3 to this clause set out the number and type of bicycle facilities required. Bicycle facilities are required if the use is listed in column 1 of the table. The number of bicycle facilities required for a use is the sum of columns 2 and 3 of the tables.

If a schedule to the Precinct Zone specifies the number of bicycle spaces required for a use listed in column 1 of Table 1, that requirement is taken to be the required number of bicycle spaces for that use for the purpose of this clause.

If a schedule to the Precinct Zone specifies the number of bicycle spaces required for a use not listed in column 1 of Table 1, that use is deemed to be a use listed in column 1 of the table and the corresponding required number of spaces is deemed to be a requirement specified in column 2 or 3 of the table, as applicable.

If in calculating the number of bicycle facilities the result is not a whole number, the required number of bicycle facilities is the nearest whole number. If the fraction is one-half, the requirement is the next whole number.

A bicycle space for an employee or resident must be provided:

- Either in a bicycle locker or at a bicycle rail in a lockable compound.
- In accordance with any requirement specified in a schedule to the Precinct Zone.

A bicycle space for a visitor, shopper or student must be provided:

- At a bicycle rail.
- In accordance with any requirement specified in a schedule to the Precinct Zone.

**Table 1 to Clause 52.34-5 Bicycle spaces**

| Use | Employee/Resident | Visitor/Shopper/Student |
|---|---|---|
| **Amusement parlour** | None | 2 plus 1 to each 50 sq m of net floor area |
| **Convenience restaurant** | 1 to each 25 sq m of floor area available to the public | 2 |
| **Dwelling** | In developments of four or more storeys, 1 to each 5 dwellings | In developments of four or more storeys, 1 to each 10 dwellings |
| **Education centre (excluding Child care centre) other than specified in this table** | 1 to each 20 employees | 1 to each 20 full-time students |
| **Hospital** | 1 to each 15 beds | 1 to each 30 beds |
| **Hotel** | 1 to each 25 sq m of bar floor area available to the public, plus 1 to each 100 sq m of lounge floor area available to the public | 1 to each 25 sq m of bar floor area available to the public, plus 1 to each 100 sq m of lounge floor area available to the public |
| **Industry other than specified in this table** | 1 to each 1000 sq m of net floor area | None |
| **Library** | 1 to each 500 sq m of net floor area | 4 plus 2 to each 200 sq m of net floor area |
| **Major sports and recreation facility** | 1 to each 1500 spectator places | 1 to each 250 spectator places |
| **Market** | 1 to each 50 stalls | 1 to each 10 stalls |
| **Medical centre** | 1 to each 8 practitioners | 1 to each 4 practitioners |
| **Minor sports and recreation facility** | 1 per 4 employees | 1 to each 200 sq m of net floor area |
| **Motel** | 1 to each 40 rooms | None |
| **Office other than specified in this table** | 1 to each 300 sq m of net floor area if the net floor area exceeds 1000 sq m | 1 to each 1000 sq m of net floor area if the net floor area exceeds 1000 sq m |
| **Place of assembly other than specified in this table** | 1 to each 1500 sq m of net floor area | 2 plus 1 to each 1500 sq m of net floor area |
| **Primary school** | 1 to each 20 employees | 1 to each 5 pupils over year 4 |

| Use | Employee/Resident | Visitor/Shopper/Student |
|---|---|---|
| **Residential building other than specified in this table** | In developments of four or more storeys, 1 to each 10 lodging rooms | In developments of four or more storeys, 1 to each 10 lodging rooms |
| **Restaurant** | 1 to each 100 sq m of floor area available to the public | 2 plus 1 to each 200 sq m of floor area available to the public if the floor area available to the public exceeds 400 sq m. |
| **Retail premises other than specified in this table** | 1 to each 300 sq m of leasable floor area | 1 to each 500 sq m of leasable floor area |
| **Secondary school** | 1 to each 20 employees | 1 to each 5 pupils |
| **Service industry** | 1 to each 800 sq m of net floor area | None |
| **Shop** | 1 to each 600 sq m of leasable floor area if the leasable floor area exceeds 1000 sq metres | 1 to each 500 sq m of leasable floor area if the leasable floor area exceeds 1000 sq metres |
| **Take-away food premises** | 1 to each 100 sq m of net floor area | 1 to each 50 sq m of net floor area |

**Table 2 to Clause 52.34-5 Showers**

| USE | Employee/Resident | Visitor/Shopper/Student |
|---|---|---|
| **Any use listed in Table 1** | If 5 or more employee bicycle spaces are required, 1 shower for the first 5 employee bicycle spaces, plus 1 to each 10 employee bicycle spaces thereafter. | None |

**Table 3 to Clause 52.34-5 – Change rooms**

| USE | Employee/Resident | Visitor/Shopper/Student |
|---|---|---|
| **Any use listed in Table 1** | 1 change room or direct access to a communal change room to each shower. The change room may be a combined shower and change room. | None |

## 52.34-6 Design of bicycle spaces

31/07/2018
VC148

Bicycle spaces should:

- Provide a space for a bicycle of minimum dimensions of 1.7 metres in length, 1.2 metres in height and 0.7 metres in width at the handlebars.
- Be located to allow a bicycle to be ridden to within 30 metres of the bicycle parking space.
- Be located to provide convenient access from surrounding bicycle routes and main building entrances.
- Not interfere with reasonable access to doorways, loading areas, access covers, furniture, services and infrastructure.
- Not cause a hazard.
- Be adequately lit during periods of use.

### Bicycle rails

A bicycle rail must:

- Be securely fixed to a wall or to the floor or ground.
- Be in a highly visible location for bicycle security (when not in a compound).
- Be of a shape that allows a cyclist to easily lock the bicycle frame and wheels.
- Be located to allow easy access to park, lock and remove the bicycle.

### Bicycle compounds and lockers

A bicycle compound or a bicycle locker must:

- Be located to provide convenient access to other bicycle facilities including showers and change rooms.
- Be fully enclosed.
- Be able to be locked.
- If outside, provide weather protection for the bicycle.

A bicycle locker must provide a bicycle parking space for at least one bicycle.

A bicycle compound must:

- Include wall or floor rails for bicycle parking.
- Provide an internal access path of at least 1.5 metres in width.

## 52.34-7 Bicycle signage

31/07/2018
VC148

If bicycle facilities are required by this clause, bicycle signage that directs the cyclists to the bicycle facilities must be provided to the satisfaction of the responsible authority.

Bicycle signage should:

- Be at least 0.3 metres wide and 0.45 metres high.
- Display a white bicycle on a blue background on the top half of the sign.
- Display information about the direction of facilities on the bottom half of the sign.

# 52.35 ROAD PROJECTS

07/11/2025
VC295

## 52.35-1 Purpose

07/11/2025
VC295

To facilitate the delivery of projects carried out by or on behalf of VIDA Roads.

## 52.35-2 Application

07/11/2025
VC295

This clause applies to the use and development of land for a project carried out by or on behalf of VIDA Roads.

This clause does not apply to:

- The subdivision of land.
- The use or development of land for a promotion sign or a major promotion sign.
- A use or development that would not require a permit under a provision of this planning scheme but for the provisions of clause 52.35.
- A use or development to which clause 52.03 applies.
- A use or development for a project if a document has been incorporated into this planning scheme expressly for the project and the use and development is carried out on land to which the specific control contained in the document applies.
- A use or development carried out in accordance with a permit issued on or before the approval date of Amendment VC198.
- A use or development for which a planning permit is granted by the responsible authority in accordance with the provisions of this planning scheme which would apply in the absence of the exemption in clause 52.35-3.
- A development for which an environment effects statement has been, or is required by the Minister for Planning to be, prepared under the *Environment Effects Act 1978*.

The provisions of clause 52.35 prevail over any inconsistent provision in this planning scheme.

## 52.35-3 Exemption from planning scheme requirements

14/05/2021
VC198

Any requirement of this planning scheme to obtain a permit or any provision of this planning scheme that prohibits or restricts the use or development of land, requires the use or development of land to be carried out in a particular manner, or requires a specified thing to be done to the satisfaction of a specified person or body, does not apply to a use or development to which this clause 52.35 applies if the requirements of clause 52.35 are met.

This exemption does not apply to a requirement in clauses 45.08 or 51.03, or in any schedule to those clauses.

## 52.35-4 Use and development requirements

14/05/2021
VC198

The use and development of land must be carried out generally in accordance with the plans and documents approved by the Minister for Planning under clause 52.35, to the satisfaction of the Minister for Planning.

The construction of a building or the construction or carrying out of works in a Floodway Overlay, Land Subject to Inundation Overlay, Special Building Overlay or Urban Floodway Zone must be carried out to the satisfaction of the relevant floodplain management authority.

The use and development of land in a Public Acquisition Overlay must be carried out to the satisfaction of the relevant acquiring authority.

## 52.35-5 Consultation requirements

14/05/2021
VC198

Before the commencement of the use or development:

- Public consultation, including consultation with relevant public authorities and the municipal council for the municipal district within which the proposed use or development will be carried out, must be carried out to the satisfaction of the Minister for Planning.
- A report that summarises the consultation undertaken and feedback received, and explains how the feedback has been considered and responded to must be prepared to the satisfaction of the Minister for Planning.

The requirements of this clause may be varied or waived by the Minister for Planning.

## 52.35-6 Project boundary requirement

14/05/2021
VC198

Before the use or development commences, a plan that shows the boundary of the land on which the use or development will be carried out must be prepared to the satisfaction of the Minister for Planning.

The plan may be prepared in stages and may be amended to the satisfaction of the Minister for Planning.

## 52.35-7 Other pre-commencement requirements

14/05/2021
VC198

Before the use or development (other than a preparatory use or development) commences, the following plans, documents and information must be prepared to the satisfaction of the Minister for Planning:

- A description of the natural, physical, cultural heritage, built heritage, landscape, vegetation, access and any other notable features, characteristics and significance of the site and surrounding area including the existing use and development of the site and surrounding land.
- A description of the project.
- An explanation of how the proposed use or development responds to the decision guidelines in this planning scheme that would have applied to an application for a permit for the proposed use or development but for the provisions of this clause 52.35.
- If the land is in the Heritage Overlay and the proposed development would require a permit under the overlay but for the exemption in clause 52.35-3:
  - An assessment of the impact of the proposed development on the heritage significance of the heritage place.
  - Site plans and elevations showing the extent of the proposed development on the land.
  - Photographs of any buildings or works to be demolished or removed, including photographs of the exterior and interior of the building and contextual images of the building's environs and setting.
- If the land is in an Environmental Significance Overlay, a Significant Landscape Overlay or a Vegetation Protection Overlay and the proposed development would require a permit under the overlay but for the exemption in clause 52.35-3, an explanation of how the proposed development responds to any environmental, vegetation or landscape significance or objective specified in a schedule to the overlay.
- An explanation of how the proposed use or development is consistent with any applicable Statement of Planning Policy.
- A statement outlining landscape and urban design measures or treatments required to address any amenity impacts as part of the project.

- An environmental management framework, prepared having regard to consultation undertaken with each relevant municipal council on environmental management for the use or development or measures to avoid or minimise adverse environmental impacts, that includes:
  - A summary of key construction methodologies.
  - An overarching framework of measures to reduce and manage environmental and amenity effects during construction.
  - A summary of performance monitoring and reporting processes, including any auditing, to ensure environmental and amenity impacts are reduced and managed during construction.
  - A plan for engagement with each relevant municipal council, the community and other stakeholders during construction, including enquiries and complaints management.

  The environmental management framework must be accompanied by a summary of the consultation with each relevant municipal council that informed the preparation of the environmental management framework.
- If the Minister for Planning has decided that an assessment under the *Environment Effects Act 1978* is not required for the proposed development and the decision is subject to conditions:
  - A report that details how each condition has been considered and addressed in the design, construction and operation of the proposed development.
  - A copy of any report, plan or other document required to be prepared under those conditions.
- Any other information the Minister for Planning considers necessary to assist the Minister's assessment of the plans and documents required to be submitted under this clause.

The requirements of this clause:

- May be satisfied in separate components or stages of a project, but each requirement must be satisfied before the commencement of the use and development for that component or stage.
- May be varied or waived by the Minister.

The plans and other documents required by this clause may be amended to the satisfaction of the Minister for Planning.

## 52.35-8 Native vegetation requirements

04/02/2026
VC265

In this clause:

- ***Guidelines*** means the *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025);
- ***levy area*** has the same meaning as in the *Melbourne Strategic Assessment (Environment Mitigation Levy) Act 2020*;
- ***Secretary*** means the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*).

Before the removal, destruction or lopping of native vegetation outside the levy area to enable a preparatory use or development, information about that native vegetation in accordance with application requirements 1, 5, 9, 10 and 11 in Tables 4 and 5 to the Guidelines must be prepared to the satisfaction of the Secretary.

Before the removal, destruction or lopping of native vegetation outside the levy area (other than to enable a preparatory use or development):

- Information about the native vegetation in accordance with the application requirements 1, 5, 9, 10, and 11 in Tables 4 and 5 of the Guidelines must be prepared to the satisfaction of the Secretary.

- The biodiversity impacts from the removal, destruction or lopping of that native vegetation must be offset in accordance with the Guidelines to the satisfaction of the Secretary. The biodiversity impacts from the removal, destruction or lopping of native vegetation outside the levy area to enable a preparatory use or development must be included in the total biodiversity impacts when determining the offset to the satisfaction of the Secretary.
- Evidence that the required offset has been secured must be provided to the satisfaction of the Secretary.

The timing of the offset requirement may be varied by the Secretary. The secured offset for a project may be reconciled at the completion of a project to the satisfaction of the Secretary.

Before the removal, destruction or lopping of native vegetation inside the levy area, information about the native vegetation in accordance with the application requirements 1, 5, 10 and 11 in Tables 4 and 5 of the Guidelines must be prepared to the satisfaction of the Secretary.

The requirements of this clause may be satisfied in separate components or stages of a development, but each requirement must be satisfied before the removal, destruction or lopping of native vegetation for that component or stage.

## 52.35-9 Preparatory use and development

14/05/2021
VC198

For the purposes of clause 52.35, a preparatory use or development is a use or development required to prepare for the construction of a project or a component or stage of a project. It is limited to the following:

- Use and development that would not require a permit under a provision of this planning scheme but for the exemption in clause 52.35-3.
- Works associated with investigating, testing and surveying land.
- Creation and use of construction access points, accessways and working platforms.
- Site establishment works including construction of temporary site fencing and hoarding, site offices, and hardstand and laydown areas.
- Construction and use of temporary car parking.
- Construction or installation of environment and traffic controls, including designated ‘no-go' zones.
- Construction, protection, modification, removal or relocation of utility services, rail signalling, overhead and associated infrastructure.
- Salvage and relocation of cultural heritage material and other management actions required to be carried out in compliance with:
  - a cultural heritage management plan prepared and/or approved under the *Aboriginal Heritage Act 2006* or otherwise in compliance with that Act; or
  - the conditions of any permit or consent granted under the *Heritage Act 2017* or otherwise in compliance with that Act.
- Demolition or removal of a building (other than a building in a Heritage Overlay) or works to the minimum extent necessary to enable another preparatory use or development.
- Removal, destruction or lopping of vegetation (other than a tree in the Heritage Overlay specified below) to the minimum extent necessary to enable another preparatory use or development.

For the purposes of clause 52.35, preparatory development does not include:

- Demolition or removal of a building in a Heritage Overlay.
- Removal, destruction or lopping of a tree in a Heritage Overlay if the schedule to the overlay specifies the heritage place as one where tree controls apply.

# 52.36 RAIL PROJECTS

14/05/2021
VC198

## 52.36-1 Purpose

14/05/2021
VC198

To facilitate the delivery of projects carried out by or on behalf of Rail Projects Victoria.

## 52.36-2 Application

14/05/2021
VC198

This clause applies to the use and development of land for a project carried out by or on behalf of Rail Projects Victoria.

This clause does not apply to:

- The subdivision of land.
- The use or development of land for a promotion sign or a major promotion sign.
- A use or development that would not require a permit under a provision of this planning scheme but for the provisions of clause 52.36.
- A use or development to which clause 52.03 applies.
- A use or development for a project if a document has been incorporated into this planning scheme expressly for the project and the use and development is carried out on land to which the specific control contained in the document applies.
- A use or development carried out in accordance with a permit issued on or before the approval date of Amendment VC198.
- A use or development for which a planning permit is granted by the responsible authority in accordance with the provisions of this planning scheme which would apply in the absence of the exemption in clause 52.36-3.
- A development for which an environment effects statement has been, or is required by the Minister for Planning to be, prepared under the *Environment Effects Act 1978*.

The provisions of clause 52.36 prevail over any inconsistent provision in this planning scheme.

## 52.36-3 Exemption from planning scheme requirements

14/05/2021
VC198

Any requirement of this planning scheme to obtain a permit or any provision of this planning scheme that prohibits or restricts the use or development of land, requires the use or development of land to be carried out in a particular manner, or requires a specified thing to be done to the satisfaction of a specified person or body, does not apply to a use or development to which this clause 52.36 applies if the requirements of clause 52.36 are met.

This exemption does not apply to a requirement in clauses 45.08 or 51.03, or in any schedule to those clauses.

## 52.36-4 Use and development requirements

20/01/2022
VC205

The use and development of land must be carried out generally in accordance with the plans and documents approved by the Minister for Planning under clause 52.36, to the satisfaction of the Minister for Planning.

The construction of a building or the construction or carrying out of works in a Floodway Overlay, Land Subject to Inundation Overlay, Special Building Overlay or Urban Floodway Zone must be carried out to the satisfaction of the relevant floodplain management authority.

The creation or alteration of access to a road in a Transport Zone 2, or land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority and the purpose of the acquisition is for a road, must be carried out to the satisfaction of the Head, Transport for Victoria.

The use and development of land in a Public Acquisition Overlay must be carried out to the satisfaction of the relevant acquiring authority.

## 52.36-5 Consultation requirements

14/05/2021
VC198

Before the commencement of the use or development:

- Public consultation, including consultation with relevant public authorities and the municipal council for the municipal district within which the proposed use or development will be carried out, must be carried out to the satisfaction of the Minister for Planning.
- A report that summarises the consultation undertaken and feedback received, and explains how the feedback has been considered and responded to must be prepared to the satisfaction of the Minister for Planning.

The requirements of this clause may be varied or waived by the Minister for Planning.

## 52.36-6 Project boundary requirement

14/05/2021
VC198

Before the use or development commences, a plan that shows the boundary of the land on which the use or development will be carried out must be prepared to the satisfaction of the Minister for Planning.

The plan may be prepared in stages and may be amended to the satisfaction of the Minister for Planning.

## 52.36-7 Other pre-commencement requirements

14/05/2021
VC198

Before the use or development (other than a preparatory use or development) commences, the following plans, documents and information must be prepared to the satisfaction of the Minister for Planning:

- A description of the natural, physical, cultural heritage, built heritage, landscape, vegetation, access and any other notable features, characteristics and significance of the site and surrounding area including the existing use and development of the site and surrounding land.
- A description of the project.
- An explanation of how the proposed use or development responds to the decision guidelines in this planning scheme that would have applied to an application for a permit for the proposed use or development but for the provisions of this clause 52.36.
- If the land is in the Heritage Overlay and the proposed development would require a permit under the overlay but for the exemption in clause 52.36-3:
  - An assessment of the impact of the proposed development on the heritage significance of the heritage place.
  - Site plans and elevations showing the extent of the proposed development on the land.
  - Photographs of any buildings or works to be demolished or removed, including photographs of the exterior and interior of the building and contextual images of the building's environs and setting.
- If the land is in an Environmental Significance Overlay, a Significant Landscape Overlay or a Vegetation Protection Overlay and the proposed development would require a permit under the overlay but for the exemption in clause 52.36-3, an explanation of how the proposed development responds to any environmental, vegetation or landscape significance or objective specified in a schedule to the overlay.
- An explanation of how the proposed use or development is consistent with any applicable Statement of Planning Policy.

- An environmental management framework, prepared having regard to consultation undertaken with each relevant municipal council on environmental management for the use or development or measures to avoid or minimise adverse environmental impacts, that includes:
  - A summary of key construction methodologies.
  - An overarching framework of measures to reduce and manage environmental and amenity effects during construction.
  - A summary of performance monitoring and reporting processes, including any auditing, to ensure environmental and amenity impacts are reduced and managed during construction.
  - A plan for engagement with each relevant municipal council, the community and other stakeholders during construction, including enquiries and complaints management.

  The environmental management framework must be accompanied by a summary of the consultation with each relevant municipal council that informed the preparation of the environmental management framework.
- If the Minister for Planning has decided that an assessment under the *Environment Effects Act 1978* is not required for the proposed development and the decision is subject to conditions:
  - A report that details how each condition has been considered and addressed in the design, construction and operation of the proposed development.
  - A copy of any report, plan or other document required to be prepared under those conditions.
- Any other information the Minister for Planning considers necessary to assist the Minister's assessment of the plans and documents required to be submitted under this clause.

The requirements of this clause:

- May be satisfied in separate components or stages of a project, but each requirement must be satisfied before the commencement of the use and development for that component or stage.
- May be varied or waived by the Minister.

The plans and other documents required by this clause may be amended to the satisfaction of the Minister for Planning.

## 52.36-8 Native vegetation requirements

04/02/2026
VC265

In this clause:

- ***Guidelines*** means the *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025);
- ***levy area*** has the same meaning as in the *Melbourne Strategic Assessment (Environment Mitigation Levy) Act 2020*;
- ***Secretary*** means the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*).

Before the removal, destruction or lopping of native vegetation outside the levy area to enable a preparatory use or development, information about that native vegetation in accordance with application requirements 1, 5, 9, 10 and 11 in Tables 4 and 5 to the Guidelines must be prepared to the satisfaction of the Secretary.

Before the removal, destruction or lopping of native vegetation outside the levy area (other than to enable a preparatory use or development):

- Information about the native vegetation in accordance with application requirements 1, 5, 9 10, and 11 in Tables 4 and 5 of the Guidelines must be prepared to the satisfaction of the Secretary.

- The biodiversity impacts from the removal, destruction or lopping of that native vegetation must be offset in accordance with the Guidelines to the satisfaction of the Secretary. The biodiversity impacts from the removal, destruction or lopping of native vegetation outside the levy area to enable a preparatory use or development must be included in the total biodiversity impacts when determining the offset to the satisfaction of the Secretary.
- Evidence that the required offset has been secured must be provided to the satisfaction of the Secretary.

The timing of the offset requirement may be varied by the Secretary. The secured offset for a project may be reconciled at the completion of a project to the satisfaction of the Secretary.

Before the removal, destruction or lopping of native vegetation inside the levy area, information about the native vegetation in accordance with the application requirements 1, 5, 10 and 11 in Tables 4 and 5 of the Guidelines must be prepared to the satisfaction of the Secretary.

The requirements of this clause may be satisfied in separate components or stages of a development, but each requirement must be satisfied before the removal, destruction or lopping of native vegetation for that component or stage.

## 52.36-9 Preparatory use and development

14/05/2021
VC198

For the purposes of clause 52.36, a preparatory use or development is a use or development required to prepare for the construction of a project or a component or stage of a project. It is limited to the following:

- Use and development that would not require a permit under a provision of this planning scheme but for the exemption in clause 52.36-3.
- Works associated with investigating, testing and surveying land.
- Creation and use of construction access points, accessways and working platforms.
- Site establishment works including construction of temporary site fencing and hoarding, site offices, and hardstand and laydown areas.
- Construction and use of temporary car parking.
- Construction or installation of environment and traffic controls, including designated ‘no-go' zones.
- Construction, protection, modification, removal or relocation of utility services, rail signalling, overhead and associated infrastructure.
- Salvage and relocation of cultural heritage material and other management actions required to be carried out in compliance with:
  - a cultural heritage management plan prepared and/or approved under the *Aboriginal Heritage Act 2006* or otherwise in compliance with that Act; or
  - the conditions of any permit or consent granted under the *Heritage Act 2017* or otherwise in compliance with that Act.
- Demolition or removal of a building (other than a building in a Heritage Overlay) or works to the minimum extent necessary to enable another preparatory use or development.
- Removal, destruction or lopping of vegetation (other than a tree in the Heritage Overlay specified below) to the minimum extent necessary to enable another preparatory use or development.

For the purposes of clause 52.36, preparatory development does not include:

- Demolition or removal of a building in a Heritage Overlay.
- Removal, destruction or lopping of a tree in a Heritage Overlay if the schedule to the overlay specifies the heritage place as one where tree controls apply.

# 52.37 CANOPY TREES

15/09/2025
VC289

## PURPOSE

To protect and enhance canopy tree cover to support greener and cooler residential areas.

To maximise the retention of existing canopy tree cover where no development is proposed.

To ensure that development is designed to maximise the retention and long-term health of existing and new canopy trees and contributes to increasing canopy tree cover.

To balance the retention of existing canopy trees and residential development to meet the housing needs of Victoria's growing population.

To encourage canopy tree cover that is site and climate responsive and supports the local environment.

## 52.37-1 Meaning of terms

15/09/2025
VC289

In clause 52.37:

- ***canopy tree*** means a tree that has:
  - a height of more than 5 metres above ground level; and
  - a trunk circumference of more than 0.5 metres, measured at 1.4 metres above ground level; and
  - a canopy diameter of at least 4 metres;
- ***boundary canopy tree*** means a canopy tree if any part of its trunk is within:
  - 6 metres of the narrowest street frontage of a lot; or
  - 4.5 metres of the rear boundary of a lot;
- ***new canopy tree*** means a canopy tree proposed to be planted. It must be a species and type that will, at maturity, have:
  - an expected height of at least 6 metres above ground level; and
  - an expected canopy diameter of at least 4 metres.

## 52.37-2 Permit requirement

15/09/2025
VC289

A permit is required to remove, destroy or lop a canopy tree in the Mixed Use Zone, Township Zone, Residential Growth Zone, General Residential Zone, Neighbourhood Residential Zone, and Housing Choice and Transport Zone.

This does not apply:

- If the table of exemptions in clause 52.37-8 specifically states that a permit is not required.
- To the removal, destruction or lopping of a canopy tree (other than a boundary canopy tree) identified for assessment in an application to which clause 54, 55, 57 or 58 applies and the tree is not removed, destroyed or lopped until the permit is issued.
- To the removal, destruction or lopping of a canopy tree (other than a boundary canopy tree) if the site is developed with an existing dwelling.

### VICSMART APPLICATION

Subject to clause 71.06, an application under this clause is a class of VicSmart application and must be assessed against this clause (excluding clause 52.37-4 and 52.37-5).

## 52.37-3 Canopy tree requirement

15/09/2025
VC289

The number of canopy trees on the site should meet the minimum canopy tree requirements specified in Table 1.

If the site has an area of more than 1000 square metres and the existing total canopy cover within the site is more than 20 per cent of the site area, the canopy trees on the site should achieve a total canopy cover within the site that is equal to at least 20 per cent of the site area plus 50 per cent of the area of existing canopy cover that exceeds 20 per cent.

**Example:**

If the site area is 2000 square metres and the existing total canopy cover within the site is 30 per cent of the site area, the required total canopy cover is 25 per cent (20% + [(0.5 x (30% -20%)] = 25%).

The minimum canopy tree requirement may be met with either an existing canopy tree, by planting a new canopy tree, or a combination of both.

A new canopy tree should be planted in:

- a minimum deep soil area of at least 12 square metres with a minimum dimension of at least 2.5 metres; or
- in a planter with a minimum volume of 12 cubic metres with a minimum depth of at least 0.8 metres of planter soil; or
- if the proposed canopy tree has an expected canopy diameter of more than 8 metres at maturity, deep soil area or a planter area that is to the satisfaction of the responsible authority.

**Table 1 - Minimum canopy tree requirement**

| Site area | Canopy tree requirement |
|---|---|
| 100 square metres or less | 1 tree |
| 101 sqm to 200 sqm | 2 trees |
| 201 sqm to 500 sqm | 3 trees |
| 501 sqm to 700 sqm | 4 trees |
| 701 sqm to 1000 sqm | 6 trees |
| Above 1001 sqm | A total canopy cover within the site that is equal to at least 20 per cent of the site area. |

## 52.37-4 Decision exemptions

15/09/2025
VC289

Despite any other provision of this planning scheme, in determining applications to which this clause applies, the responsible authority is exempt from and is not required to consider the decision guidelines in Clause 65.

An application to which this clause applies is exempt from the requirements of:

- Section 60(1)(b), (c), (e) and (f) and (1A) of the Act.
- Section 84B(2)(b) to (ja) of the Act.

## 52.37-5 Exemption from notice and review

15/09/2025
VC289

An application is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 52.37-6 Application requirements

15/09/2025
VC289

An application must be accompanied by the following information, as appropriate:

- A site plan, photographs or other techniques that accurately describe:
  - The location of all canopy trees and other vegetation on the site.
  - The canopy trees proposed to be removed, destroyed or lopped, including species, height and canopy diameter.
  - The location and details of existing and new canopy trees, including species, type, expected height and expected canopy diameter at maturity, soil conditions and proposed irrigation.
- An explanation of why the canopy tree is proposed to be removed, destroyed or lopped and, if applicable, an explanation of why the proposal does not meet the canopy tree requirement.
- Details of the proposed buildings or works, including plans of the development, if the canopy tree is proposed to be removed, destroyed or lopped to enable construction of a building or the construction or carrying out of works.
- An assessment of the canopy tree prepared by a suitably qualified person, if the canopy tree is proposed to be removed or lopped due to its health or stability.

If in the opinion of the responsible authority an application is not relevant to deciding the application, the responsible authority may waive or reduce the requirement.

## 52.37-7 Decision guidelines

15/09/2025
VC289

Before deciding on an application the responsible authority must consider, as appropriate:

### GENERAL

- The purpose of the clause 52.37.
- The extent to which the existing and new canopy trees contribute to a greener environment and reduce urban heat.
- The existing, proposed or likely future development of the site and adjacent land.
- The species, type and growth characteristics of existing and new canopy trees.
- Whether existing or new canopy tree will adversely impact or be impacted by pedestrian and vehicle access to the site, easements, overhead power cables, buried infrastructure such as sewer pipes, building foundations and other structures.
- Any physical constraints, such as topography, soil and drainage conditions which may prevent the planting or growth of the required number of trees.
- The impact of existing or new canopy trees on solar access to windows on the site and any existing solar energy system.
- If the site is in a designated bushfire prone area as determined under section 192A of the *Building Act 1993*, the need to create a defendable space to reduce the risk of bushfire to life and property.

### REMOVAL OF CANOPY TREES

- The health and stability of the canopy tree proposed to be removed.
- Whether the canopy tree is causing, or at risk of causing, damage to an existing building, works or infrastructure.
- The number, size and location of the canopy trees to be retained on the site.

- If the removal of the canopy tree is associated with the development of the site, whether the proposed development has been sited or designed to minimise the impact on canopy trees.
- The cumulative impact of reducing existing canopy trees, if canopy trees on the site have been removed, destroyed or lopped within the past 12 months.

**NEW CANOPY TREES**

- The suitability of the proposed deep soil areas or planter soil volume or depth. A deep soil area may be shared with other canopy trees and other vegetation where it does not affect the viability of the canopy tree growth.
- Whether the species of the canopy tree is suited to the soil conditions of the site.
- Whether landscaping or design measures are required to provide structural protection of buildings.

## 52.37-8 Table of exemptions

21/11/2025
VC301

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Dead canopy tree** | A canopy tree that is dead. |
| **Emergency works** | A canopy tree that is to be removed, destroyed or lopped:<br>▪ in an emergency by, or on behalf of, a public authority or municipal council to create an emergency access or to enable emergency works; or<br>▪ where it presents an immediate risk of personal injury or damage to property.<br>Only that part of the canopy tree that presents the immediate risk may be removed, destroyed or lopped under this exemption. |
| **Extractive industry** | A canopy tree that is to be removed, destroyed or lopped to the minimum extent necessary to enable the carrying out of extractive industry in accordance with a work plan approved under the *Mineral Resources (Sustainable Development) Act 1990* and authorised by a work authority granted under that Act. |
| **Fire protection** | A canopy tree that is to be removed, destroyed or lopped to the minimum extent necessary to carry out the following fire protection activities:<br>▪ fire fighting;<br>▪ planned burning;<br>▪ making or maintenance of a fuel break or fire fighting access track (or any combination thereof) that does not exceed a combined width of 6 metres;<br>▪ the making of a strategic fuel break up to 40 metres wide by, or on behalf of, a public authority in accordance with a strategic fuel break plan |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| | approved by the Secretary to the Department of Energy, Environment and Climate Action (as constituted under Part 2 of the Conservation, Forests and Lands Act 1987);<br>▪ in accordance with a fire prevention notice issued under either:<br>– section 87 of the Fire Rescue Victoria Act 1958;<br>– section 65 of the Forests Act 1958; or<br>– section 41 of the Country Fire Authority Act 1958; or<br>▪ keeping a canopy tree clear of, or minimising risk of bushfire ignition from, an electric line in accordance with a code of practice prepared under Part 8 of the Electricity Safety Act 1998;<br>▪ minimising the risk to life and property from bushfire on a roadside of a public road managed by the relevant responsible road authority, and carried out by, or on behalf of that authority, in accordance with the written agreement of the Secretary to the Department of Energy, Environment and Climate Action (as constituted under Part 2 of the Conservation, Forests and Lands Act 1987 ). In this exemption, roadside, public road and responsible road authority have the same meanings as in section 3 of the Road Management Act 2004.<br>**Note:**<br>Additional permit exemptions for bushfire protection are provided at Clause 52.12. |
| **Geothermal energy exploration and extraction** | A canopy tree that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Geothermal Energy Resources Act 2005*. |
| **Greenhouse gas sequestration and exploration** | A canopy tree that is to be removed, destroyed or lopped to the minimum extent necessary in accordance with an operation plan approved under the *Greenhouse Gas Geological Sequestration Act 2008*. |
| **Land management and directions notice** | A canopy tree that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land management notice or directions notice served under the *Catchment and Land Protection Act 1994*. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Land use conditions** | A canopy tree that is to be removed, destroyed or lopped to the minimum extent necessary to comply with a land use condition served under the *Catchment and Land Protection Act 1994*. |
| **Lopping and pruning for maintenance** | Lopping or pruning a canopy tree, for maintenance only, provided no more than 1/3 of the foliage of the tree is lopped or pruned.<br>This exemption does not apply to:<br>▪ the pruning or lopping of the trunk of a canopy tree;<br>▪ pruning or lopping that would reduce the height of the tree to less than 5 metres or the canopy diameter of the tree to less than 4 metres. |
| **Mineral exploration and extraction** | A canopy tree that is to be removed, destroyed or lopped to the minimum extent necessary by the holder of an exploration, mining, prospecting, or retention licence issued under the Mineral Resources (Sustainable Development) Act 1990:<br>▪ that is low impact exploration within the meaning of Schedule 4A of the Mineral Resources (Sustainable Development) Act 1990; or<br>▪ in accordance with a work plan approved under Part 3 of the Mineral Resources (Sustainable Development) Act 1990.<br>**Note:**<br>Schedule 4A of the Mineral Resources (Sustainable Development) Act 1990 specifies limits on the extent of a native tree that may be removed as part of low impact exploration. |
| **Noxious and environmental weeds** | A canopy tree that is identified as a noxious weed in:<br>▪ a declaration under section 58 or section 58A of the *Catchment and Land Protection Act 1994*. This exemption does not apply to Australian Dodder (Cuscuta australis); or<br>▪ a planning scheme. |
| **Public land manager** | A canopy tree that is to be removed, destroyed or lopped by or on behalf of a public land manager. |
| **Railways** | A canopy tree that is to be removed, destroyed or lopped to the minimum extent necessary to maintain the safe and efficient function of an existing railway, or railway access road. |

| The requirement to obtain a permit does not apply to: | |
|---|---|
| **Traditional owners** | A canopy tree that is to be removed, destroyed or lopped by a person acting under, and in accordance with:<br>▪ a natural resources agreement under Part 6 of the Traditional Owner Settlement Act 2010; or<br>▪ an authorisation order made under sections 82 or 84 of the *Traditional Owner Settlement Act 2010* as those sections were in force immediately before the commencement of section 24 of the *Traditional Owners Settlement Amendment Act in 2016 (1 May 2017)*. |
| **Transport system** | A canopy tree that is to be removed, destroyed or lopped to the minimum extent necessary by or on behalf of the Head, Transport for Victoria, a public authority or a municipal council to construct or maintain the transport system. |

**52.37-9**
**15/09/2025**
**VC289**

## Transitional provisions

The requirements of clause 52.37 do not apply to:

- The removal, destruction or lopping of a canopy tree associated with the construction of a building or the construction or carrying out of works in accordance with a building permit that was issued either:
  - before the approval date of Amendment VC289; or
  - within 12 months after the approval date of Amendment VC289 and either:
    - a relevant building surveyor (within the meaning of the *Building Act 1993*) was appointed to issue the building permit before the approval date of Amendment VC289; or
    - a relevant building surveyor (within the meaning of the *Building Act 1993*) is satisfied, and certifies in writing, that substantial progress was made on the design proposal before the approval date of Amendment VC289.
- The removal, destruction or lopping of a canopy tree associated with the construction of a building or the construction or carrying out works in accordance with a permit granted before the approval date of Amendment VC289.
- The removal, destruction or lopping of a canopy tree associated with the construction of a building or the construction or carrying out works in accordance with a permit if the application for that permit was made before the approval date of Amendment VC289.
- The removal, destruction or lopping of a canopy tree in accordance with a permit granted under another provision of this planning scheme before the approval date of Amendment VC289.
- The removal, destruction or lopping of a canopy tree on land in a Development Plan Overlay if a development plan was prepared to the satisfaction of the responsible authority under clause 43.04 before the approval date of Amendment VC289 and a permit is not required to remove, destroy or lop the tree under another provision of this planning scheme.
- The removal, destruction or lopping of a canopy tree on land included in an Incorporated Plan Overlay before the approval date of Amendment VC289 and a permit is not required to remove, destroy or lop the tree under another provision of this planning scheme.

# 53 GENERAL REQUIREMENTS AND PERFORMANCE STANDARDS

31/07/2018
VC148

## 53.01 PUBLIC OPEN SPACE CONTRIBUTION AND SUBDIVISION

25/02/2025
VC257

A person who proposes to subdivide land must make a contribution to the council for public open space in an amount specified in the schedule to this clause (being a percentage of the land intended to be used for residential, industrial or commercial purposes, or a percentage of the site value of such land, or a combination of both). If no amount is specified, a contribution for public open space may still be required under section 18 of the *Subdivision Act 1988*.

This requirement does not apply if a public open space contribution requirement is specified in a schedule to the Built Form Overlay.

### 53.01-1 Exemption from public open space requirement specified in the scheme

31/07/2018
VC148

A subdivision is exempt from a public open space requirement specified in this scheme if:

- It is one of the following classes of subdivision:
  - Class 1: The subdivision of a building used for residential purposes provided each lot contains part of the building. The building must have been constructed or used for residential purposes immediately before 30 October 1989 or a planning permit must have been issued for the building to be constructed or used for residential purposes immediately before that date.
  - Class 2: The subdivision of a commercial or industrial building provided each lot contains part of the building.
- It is for the purpose of excising land to be transferred to a public authority, council or a Minister for a utility installation.
- It subdivides land into two lots and the council considers it unlikely that each lot will be further subdivided.

### 53.01-2 Exemption from public open space requirement under section 18(8)(a) of the Subdivision Act 1988

31/07/2018
VC148

For the purposes of section 18(8)(a) of the *Subdivision Act 1988*, the following classes of subdivision are exempt from the public open space requirement:

- Class 1: The subdivision of a building used for residential purposes provided each lot contains part of the building. The building must have been constructed or used for residential purposes immediately before 30 October 1989 or a planning permit must have been issued for the building to be constructed or used for residential purposes immediately before that date.
- Class 2: The subdivision of a commercial or industrial building provided each lot contains part of the building.

*Note: Check section 18A of the Subdivision Act 1988 for other requirements that apply to a public open space requirement specified in the planning scheme.*

31/07/2018
VC148

# SCHEDULE TO CLAUSE 53.01 PUBLIC OPEN SPACE CONTRIBUTION AND SUBDIVISION

## 1.0 Subdivision and public open space contribution

19/06/2025
C284case

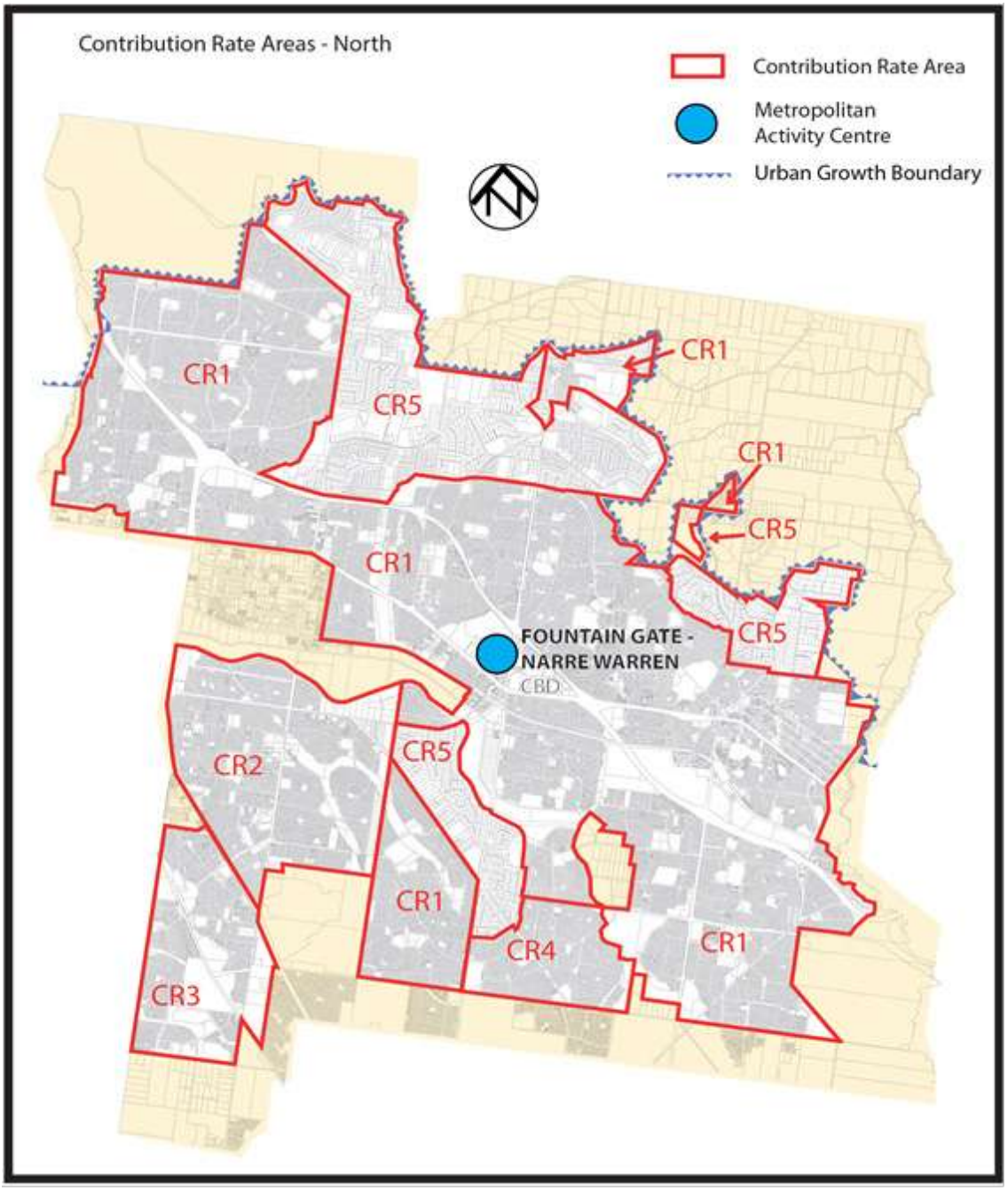
| Type or location of subdivision | | Amount of contribution for public open space |
|---|---|---|
| All land shown on Maps 1 and 2 forming part of this schedule | | |
| CR1: | | 10%; or<br>5% for land within Schedule 2 to the Comprehensive Development Zone (CDZ2) and that is subdivided for a purpose other than residential. |
| CR2: | | 8% |
| CR3: | | 7.5% |
| CR4: | | 7% |
| CR5: | | 5% |
| CR6: | | 11% |
| CR7: | | 3.08% |
| CR8: | | 3.75% |
| CR9: | | 5.9% |
| CR10: | (Land north of Ballarto Road) | 7.52% |
| | (Land south of Ballarto Road) | 1.61% |
| CR11: | | 3.54% |
| CR12: | | 1.5% |
| CR13: | | 4.04%<br>As to the composition of the contribution, it must be made in the manner set out and explained in the Cranbourne North Stage 2 Precinct Structure Plan (June 2011). |
| CR14: | | 4.21%<br>As to the composition of the contribution, it must be made in the manner set out and explained in the Botanic Ridge Precinct Structure Plan (December 2012). |
| CR15 | | 1.85% Employment<br>4.25% Residential<br>As to the composition of the contribution, it must be made in the manner set out and explained in the Thompsons Road Precinct Structure Plan (October 2015). |
| CR16 | | 3.99% |

| Type or location of subdivision | Amount of contribution for public open space |
|---|---|
| | As to the composition of the contribution, it must be made in the manner set out and explained in the Clyde Creek Precinct Structure Plan (October 2015). |
| CR17 | 4.01%<br>As to the composition of the contribution, it must be made in the manner set out and explained in the Casey Fields South Residential Precinct Structure Plan (October 2015). |
| CR18 | 20%<br>As to the composition of the contribution, it must be made in the manner set out and explained in the Former Amstel Golf Course Development Plan. |
| CR19 | 5.32%<br>As to the composition of the contribution, it must be made in the manner set out and explained in the Brompton Lodge Precinct Structure Plan (August 2016). |
| CR20 | 6.51%<br>As to the composition of the contribution, it must be made in the manner set out and explained in the Casey Central Town Centre Precinct Structure Plan (May 2016). |

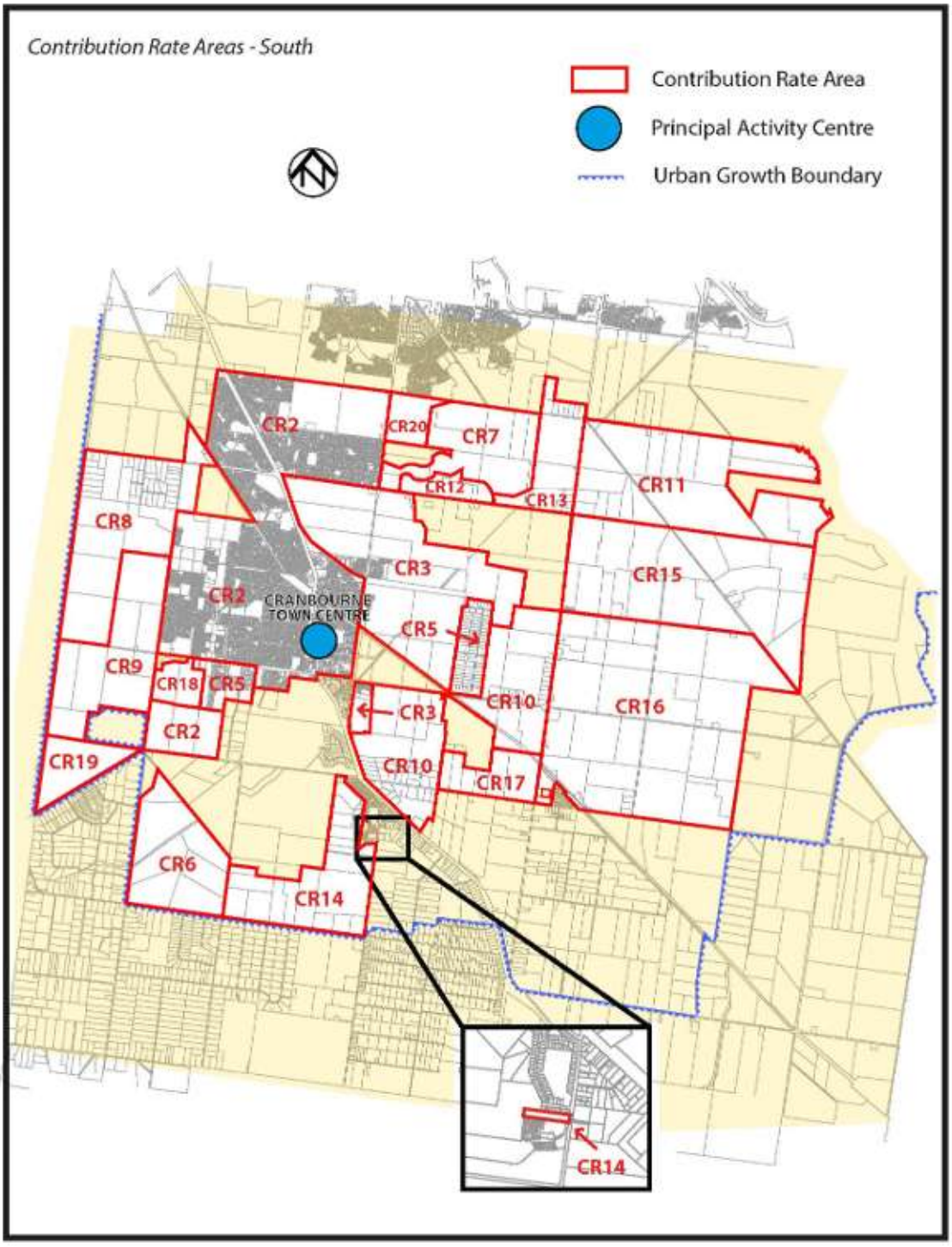
These amounts do not apply to:

- The subdivision of any land not in a residential zone, Urban Growth Zone or Precinct Structure Plan area. This exemption does not apply to:
- - Land in Cranbourne North Service Business Precinct (CR12).
  - Land within Schedule 2 to the Comprehensive Development Zone.
  - Land in Precinct 3 of Schedule 1 and Precinct 5 of Schedule 2 to the Activity Centre Zone.
  - The residential portion of a development of land in Schedule 1 and 2 to the Activity Centre Zone.

**Map 1 to Clause 53.01**



**Map 2 to Clause 53.01**



# 53.02 BUSHFIRE PLANNING

31/07/2018
VC148

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To ensure that the development of land prioritises the protection of human life and strengthens community resilience to bushfire.

To ensure that the location, design and construction of development appropriately responds to the bushfire hazard.

To ensure development is only permitted where the risk to life, property and community infrastructure from bushfire can be reduced to an acceptable level.

To specify location, design and construction measures for a single dwelling that reduces the bushfire risk to life and property to an acceptable level.

## 53.02-1 Application

05/05/2026
VC248

This clause applies to the following types of applications:

- An application under clause 44.06 (Bushfire Management Overlay), other than an application that meets all of the applicable requirements specified in a schedule to that clause.
- An application under any provision of this planning scheme to subdivide land in a bushfire prone area that is not in a Bushfire Management Overlay.
- An application under any provision of this planning scheme to construct a building or construct or carry out works associated with the use of land for accommodation, education centre, hospital, indoor recreation facility, major sports and recreation facility or place of assembly in a bushfire prone area that is not in a Bushfire Management Overlay.

The provisions of this clause apply to an application specified above, in the manner set out in the following table.

| Type of application | Applicable provisions |
|---|---|
| An application under clause 44.06 to construct a single dwelling or construct or carry out works associated with a single dwelling if all of the following requirements are met:<br>▪ The land is zoned Neighbourhood Residential Zone, General Residential Zone, Residential Growth Zone, Housing Choice and Transport Zone, Urban Growth Zone, Low Density Residential Zone, Township Zone or Rural Living Zone.<br>▪ There is only one dwelling on the lot.<br>▪ The application meets all of the approved measures contained in clause 53.02-3. | Clause 53.02-3 |
| An application under clause 44.06 to construct a non-habitable outbuilding ancillary to a dwelling that meets all of the requirements specified in Table 5.<br>*Note: The objectives or measures specified for other kinds of applications under clause 53.02 do not apply to this kind of application.* | Clause 53.02-5 - Table 5 |
| All other applications under clause 44.06 to construct a building or construct or carry out works. | Clause 53.02-4.1<br>Clause 53.02-4.2<br>Clause 53.02-4.3<br>Clause 53.02-4.5<br>Clause 53.02-4.6 |
| An application under clause 44.06 to subdivide land. | Clause 53.02-4.4<br>Clause 53.02-4.6 |
| An application to subdivide land, or to construct a building or construct or carry out works associated with the use of land for accommodation, education centre, hospital, indoor recreation facility, major sports and recreation facility or a place of assembly, in a bushfire prone area that is not in a Bushfire Management Overlay. | Clause 53.02-6 |

If an applicable provision specified in the table above refers to another provision, that provision also applies.

If another provision of this planning scheme applies, or requires compliances with, a provision in clause 53.02, including in relation to an application specified above, the provision applies as specified in that other provision.

## 53.02-2 Operation

05/05/2026
VC248

The provisions of clauses 53.02-3 and 53.02-4 contain:

- Objectives. An objective describes the outcome that must be achieved in a completed development.
- Approved measures (AM). An approved measure meets the objective.

- Alternative measures (AltM). An alternative measure may be considered where the responsible authority is satisfied that the objective can be met. The responsible authority may consider other unspecified alternative measures. Alternative measures do not apply to an application under clause 53.02-3.
- Decision guidelines. The decision guidelines set out the matters that the responsible authority must consider before deciding on an application, including whether any proposed alternative measure is appropriate.

A schedule to clause 44.06 may specify substitute approved measures, additional alternative measures and additional or substitute decision guidelines.

A substitute approved measure specified in a schedule to clause 44.06 substitutes the applicable approved measure contained in this clause.

## 53.02-3 Dwellings in existing settlements – Bushfire protection objective

05/05/2026
VC248

To specify bushfire design and construction measures for a single dwelling or alteration and extension to an existing dwelling that reduces the risk to life and property to an acceptable level.

### Approved measures

| Measure | Requirement |
|---|---|
| **AM 1.1** | A building is sited to ensure the site best achieves the following:<br>▪ The maximum separation distance between the building and the bushfire hazard.<br>▪ The building is close to a public road.<br>▪ Access can be provided to the building for emergency service vehicles. |
| **AM 1.2** | A building is setback from the bushfire hazard in accordance with the vegetation type and slope set out in Table 1 to clause 53.02-5 in accordance with the corresponding distances. |
| **AM 1.3** | The setback between the building and the bushfire hazard is managed as an area of defendable space in accordance with the vegetation management requirements specified at Table 4 to clause 53.02-5 for the distance that satisfies AM 1.2 and the area is capable of being maintained in accordance with these requirements.<br>If adjoining land is included in the setback, there is a reasonable assurance that the adjoining land will remain or continue to be managed in accordance with Table 4 to clause 53.02-5. |
| **AM 1.4** | A building is constructed to the bushfire attack level that corresponds to a setback that satisfies either:<br>▪ AM 1.2.<br>▪ The next lower bushfire attack level in accordance with Table 1 to clause 53.02-5 where all of the following apply:<br>– A private bushfire shelter (a Class 10c building within the meaning of the Building Regulations 2018) is constructed on the same land as the dwelling.<br>– A minimum bushfire attack level of BAL12.5 is provided in all circumstances. |
| **AM 1.5** | A building is provided with:<br>▪ A static water supply for fire fighting and property protection purposes specified in Table 2 to clause 53.02-5. The water supply may be in the same tank as other water supplies provided that a separate outlet is reserved for fire fighting water supplies.<br>▪ Vehicle access that is designed and constructed as specified in Table 3 to clause 53.02-5. |

### Decision guidelines

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The bushfire hazard site assessment, bushfire management statement and bushfire management plan submitted with the application.
- Whether all of the approved measures have been incorporated into the application and can be practically implemented and maintained in conjunction with the ongoing use of the land.

## 53.02-4 Bushfire protection objectives

05/05/2026
VC248

### 53.02-4.1 Landscape, siting and design objectives

To ensure development is appropriate having regard to the nature of the bushfire risk arising from the surrounding landscape.

To site development to minimise the risk from bushfire.

To site development to provide safe access for vehicles, including emergency vehicles.

To ensure building design minimises vulnerability to bushfire attack.

#### Approved measures

| Measure | Requirement |
|---|---|
| **AM 2.1** | The bushfire risk to the development from the landscape beyond the site can be mitigated to an acceptable level. |
| **AM 2.2** | A building is sited to ensure the site best achieves the following:<br>▪ The maximum separation distance between the building and the bushfire hazard.<br>▪ The building is close to a public road.<br>▪ Access can be provided to the building for emergency service vehicles. |
| **AM 2.3** | A building is designed to be responsive to the landscape risk and reduce the impact of bushfire on the building. |

### 53.02-4.2 Setbacks, defendable space and construction objective

The setbacks, defendable space and building construction mitigate the effect of flame contact, radiant heat and embers on buildings.

#### Approved measures

| Measure | Requirement |
|---|---|
| **AM 3.1** | A building is setback from the bushfire hazard in accordance with the vegetation type and slope set out in Table 1 to clause 53.02-5 and one of the following distances is met, for:<br>▪ a dwelling (including an extension or alteration to a dwelling), small second dwelling, industry, office, retail premises or warehouse, either: |

| Measure | Requirement |
|---|---|
| | – Columns A, B or C.<br>– Column D if there are significant siting constraints.<br>▪ accommodation (other than a dwelling or small second dwelling), education centre, hospital, leisure and recreation or place of assembly, Column 0.<br>The setback is provided wholly within the title boundaries of the land. |
| **AM 3.2** | The setback between the building and the bushfire hazard is managed as an area of defendable space in accordance with the vegetation management requirements specified at Table 4 to clause 53.02-5 for the distance that satisfies AM 3.1 and the area is capable of being maintained in accordance with these requirements. |
| **AM 3.3** | A building is constructed to the bushfire attack level that corresponds to the setback which satisfies AM 3.1.<br>If the setback of more than one column in Table 1 to clause 53.02-5 applies, a building is constructed to the highest of the corresponding bushfire attack levels.<br>If a higher bushfire attack level than specified above is required to respond to clause 53.02-4.1, a building is constructed to that higher bushfire attack level. |

### Alternative measures

| Measure | Requirement |
|---|---|
| **AltM 3.4** | Adjoining land may be included within the setback where there is a reasonable assurance that the land will remain or continue to be managed in accordance with the defendable space vegetation management requirements at Table 4 to clause 53.02-5. |
| **AltM 3.5** | The setback and the bushfire attack level are determined using Method 2 of *AS3959:2018 Construction of buildings in bushfire prone areas* (Standards Australia) subject to any guidance published by the relevant fire authority. |
| **AltM 3.6** | A building used for a dwelling (including an extension or alteration to a dwelling) may provide a setback to the title boundary where it can be demonstrated that:<br>▪ The lot has access to urban, township or other areas where:<br>– Protection can be provided from the impact of extreme bushfire behaviour.<br>– Fuel is managed in a minimum fuel condition.<br>– There is sufficient distance or shielding to protect people from direct flame contact or harmful levels of radiant heat.<br>▪ A lesser setback and a higher construction standard are appropriate having regard to the bushfire hazard landscape assessment.<br>▪ The dwelling is constructed to a bushfire attack level of BAL FZ.<br>This alternative measure only applies where the requirements of AM 3.1, 3.2 and 3.3 cannot be met. |
| **AltM 3.7** | A building used for accommodation (other than a dwelling or small second dwelling), education centre, hospital, leisure and recreation or place of assembly may provide a setback in accordance with Table 1 at clause 53.02-5 for the distances provided at Columns A, B or C where it can be demonstrated that:<br>▪ The requirements of AM 6.1 have been satisfied. |

| Measure | Requirement |
|---|---|
| | ▪ A lesser setback and a higher construction standard are appropriate having regard to the bushfire hazard landscape assessment.<br>▪ The setback is managed as defendable space that meets the defendable space vegetation management requirements at Table 4 to clause 53.02-5 and is capable of being maintained in accordance with these requirements. |

### 53.02-4.3 Water supply and access objectives

A static water supply is provided to assist in protecting property.

Vehicle access is designed and constructed to enhance safety in the event of a bushfire.

#### Approved measures

| Measure | Requirement |
|---|---|
| **AM 4.1** | A building used for a dwelling (including an extension or alteration to a dwelling), a small second dwelling, industry, office, retail premises or warehouse is provided with:<br>▪ A static water supply for fire fighting and property protection purposes as specified at Table 2 to clause 53.02-5.<br>▪ Vehicle access that is designed and constructed as specified in Table 3 to clause 53.02-5.<br>The water supply may be in the same tank as other water supplies provided that a separate outlet is reserved for fire fighting water supplies. |
| **AM 4.2** | A building used for accommodation (other than a dwelling or small second dwelling), education centre, hospital, leisure and recreation or place of assembly is provided with:<br>▪ A static water supply for fire fighting and property protection purposes of 10,000 litres per 1,500 square metres of floor space up to 40,000 litres.<br>▪ Vehicle access that is designed and constructed as specified at Table 3 to clause 53.02-5.<br>▪ An integrated approach to risk management that ensures the water supply and access arrangements will be effective based on the characteristics of the likely future occupants including their age, mobility and capacity to evacuate during a bushfire emergency.<br>The water supply may be in the same tank as other water supplies provided that a separate outlet is reserved for fire fighting water supplies. |
| **AM 4.3** | All other development, other than where AM 4.1 or AM 4.2 applies, is provided with a static water supply with adequate capacity for fire fighting and property protection purposes and vehicle access in accordance with the relevant fire authority requirement. |

### 53.02-4.4 Subdivision objectives

To provide lots that are capable of being developed in accordance with the objectives of clauses 53.02-4.1, 53.02-4.2 and 53.02-4.3.

To specify at the subdivision stage bushfire protection measures to develop a lot with a single dwelling on land zoned for residential or rural residential purposes.

### Approved measures

| Measure | Requirement |
|---|---|
| **AM 5.1** | An application to subdivide land, other than where AM 5.2 applies, demonstrates that each proposed lot is capable of meeting:<br>▪ The setback from the bushfire hazard in accordance with the vegetation type and slope set out in Table 1 to clause 53.02-5 for the distances provided at Columns A, B or C.<br>▪ AM 2.1, AM 2.2 and the approved measures at clause 53.02-4.3.<br>The setback distance is capable of being managed as an area of defendable space in accordance with the defendable space vegetation management requirements specified at Table 4 and the area is capable of being maintained in accordance with these requirements. |
| **AM 5.2** | An application to subdivide land zoned for residential or rural residential purposes must be accompanied by a plan that shows:<br>▪ Each lot satisfies AM 2.1.<br>▪ A building envelope for a single dwelling on each lot that complies with AM 2.2 and is setback from the bushfire hazard in accordance with the vegetation type and slope set out in Table 1 to clause 53.02-5 for the distance provided at either:<br>– Columns A or B of Table 1 to clause 53.02-5 for a subdivision that creates 10 or more lots.<br>– Columns A, B or C of Table 1 to clause 53.02-5 for a subdivision that creates less than 10 lots.<br>▪ The bushfire attack level that corresponds to the setback in accordance with Table 1 to clause 53.02-5 is noted on the building envelope.<br>▪ Water supply and vehicle access that complies with AM 4.1.<br>The setback distance is:<br>▪ Wholly contained within the boundaries of the proposed subdivision. The setback may be shared between lots within the subdivision and may utilise communal areas, such as roads.<br>▪ Managed as an area of defendable space that meets the defendable space vegetation management requirements specified at Table 4 to clause 53.02-5 and the area is capable of being maintained in accordance with these requirements. This includes any shared or communal areas within the setback. |
| **AM 5.3** | A subdivision of land to create 10 or more lots provides a perimeter road adjoining the bushfire hazard to separate future development from the bushfire hazard and to support fire fighting. |
| **AM 5.4** | A subdivision of land manages the bushfire risk to future development from existing or proposed landscaping, public open space, conservation areas (including vegetation links and corridors) and communal areas. |
| **AM 5.5** | A subdivision of land is provided with no fuel or low fuel features such as accessways, parking areas, hardstand areas, managed open spaces at the bushfire hazard interface and is oriented to protect future buildings from being impacted by a moving bushfire front. |
| **AM 5.6** | A staged subdivision of land manages interim bushfire hazards during the construction or staging. |

**Alternative measure**

| Measure | Requirement |
|---|---|
| **AltM 5.7** | A building envelope for a subdivision that creates 10 or more lots required under AM 5.2 may show a setback from the bushfire hazard in accordance with the vegetation type and slope set out in Table 1 to clause 53.02-5 for the distances at Column C where it can be demonstrated that:<br>▪ All other requirements of AM 5.2 have been met.<br>▪ The setback is managed as an area of defendable space that meets the defendable space vegetation management requirements at Table 4 to clause 53.02-5 and the area is capable of being maintained in accordance with these requirements.<br>▪ A lesser setback and a higher construction standard are appropriate having regard to the bushfire hazard landscape assessment. |

### 53.02-4.5 Planning for vulnerable people objective

To ensure the bushfire risk associated with vulnerable people is managed effectively.

**Approved measure**

| Measure | Requirement |
|---|---|
| **AM 6.1** | An application for accommodation (other than a dwelling or small second dwelling), education centre, hospital, leisure and recreation or place of assembly assesses the impact of bushfire on vulnerable people and provides emergency management arrangements that respond to:<br>▪ The risk arising from AM 2.1, the protection (if any) provided by the location in the broader landscape, and the need for a response that exceeds any of the measures of this clause.<br>▪ The characteristics of the likely future occupants including their age, mobility and capacity to evacuate during a bushfire emergency.<br>▪ The intended frequency and nature of occupation, including whether vulnerable people should avoid occupying development in bushfire affected areas at certain times.<br>▪ The risk reduction provided through bushfire protection measures included within a bushfire and emergency management plan.<br>▪ The mechanisms to secure ongoing implementation of bushfire protection measures. |

### 53.02-4.6 Decision guidelines

Before deciding on an application, in addition to the decision guidelines in clause 65, the responsible authority must consider:

**GENERAL**

- The Municipal Planning Strategy and the Planning Policy Framework.
- The bushfire hazard landscape assessment, the bushfire hazard site assessment, bushfire management statement and bushfire management plan submitted with the application.
- The impact of any State, regional or local bushfire management and prevention actions occurring around the site and in the wider area on the bushfire hazard and the level of risk to the proposed development.
- Whether the risk arising from the broader landscape can be mitigated to an acceptable level.

- Whether there is reliable access to areas of land where human life can be better protected from the effects of bushfire.
- The risk to property and community infrastructure from bushfire.
- Whether the proposed development meets the objectives of clause 53.02-4 regardless of other measures which may be available, including private bushfire shelters, community shelters and the presence of places of last resort.
- Whether the proposed measures can be practically implemented and maintained in conjunction with the ongoing use of the land.
- Whether the use of an alternative measure meets the relevant objective having regard to the bushfire hazard and the nature of any constraint that prevents the applicable approved measure from being implemented.
- If one or more of the objectives in clause 53.02-4 will not be achieved in the completed development, whether the development will, taking all relevant factors into account, reduce the bushfire risk to a level that warrants it proceeding.
- Whether bushfire protection measures can be implemented without unacceptable biodiversity impacts.
- Whether the water supply and access arrangements are appropriate for the bushfire risk.

**VEGETATION**

- Whether the existing and proposed vegetation, and other fuel sources, respond to the separation distance between the bushfire hazard interface and the development.
- If vegetation is proposed, if it will cause or contribute to the bushfire hazard and increase the risk to life, property, or community infrastructure.

**VULNERABLE PEOPLE**

For a building used for accommodation (other than a dwelling or small second dwelling), education centre, hospital, leisure and recreation or place of assembly the responsible authority must also consider:

- The capacity for vulnerable occupants to evacuate.
- Whether the water supply and access arrangements have regard to the characteristics of the vulnerable occupants.
- Whether there is reasonable assurance that the emergency management arrangements will be ongoing and protect human life.
- Whether the risk to vulnerable occupants warrants the closure of the use or development on days of elevated fire danger.
- Whether measures to shelter in place are warranted and whether the measures will protect human life.
- The net benefit provided to any existing vulnerable people.

**SUBDIVISION**

- Whether a staged subdivision manages interim bushfire hazard during the construction or staging.

## 53.02-5 Tables of bushfire planning requirements

05/05/2026
VC248

### Table 1 Bushfire hazard setbacks

| Slope | Vegetation Types | Column 0 | Column A | Column B | Column C | Column D | Column E |
|---|---|---|---|---|---|---|---|
| All upslopes and flat land (0 degrees) | Forest | 60 | 48 | 35 | 25 | 19 | < 19 |
| | Woodland | 40 | 33 | 24 | 16 | 12 | < 12 |
| | Scrub | 35 | 27 | 19 | 13 | 10 | < 10 |
| | Shrubland | 25 | 19 | 13 | 9 | 7 | < 7 |
| | Mallee/ Mulga | 23 | 17 | 12 | 8 | 6 | < 6 |
| | Rainforest | 30 | 23 | 16 | 11 | 8 | < 8 |
| | Grassland | 35 | 19 | 13 | 9 | 6 | < 6 |
| Downslope >0 to 5 degrees | Forest | 70 | 57 | 43 | 32 | 24 | < 24 |
| | Woodland | 50 | 41 | 29 | 21 | 15 | < 15 |
| | Scrub | 40 | 31 | 22 | 15 | 11 | < 11 |
| | Shrubland | 28 | 22 | 15 | 10 | 7 | < 7 |
| | Mallee/ Mulga | 26 | 20 | 13 | 9 | 7 | < 7 |
| | Rainforest | 36 | 29 | 20 | 14 | 10 | < 10 |
| | Grassland | 40 | 22 | 15 | 10 | 7 | < 7 |
| Downslope >5 to 10 degrees | Forest | 85 | 69 | 53 | 39 | 31 | < 31 |
| | Woodland | 62 | 50 | 37 | 26 | 20 | < 20 |
| | Scrub | 45 | 35 | 24 | 17 | 12 | < 12 |
| | Shrubland | 32 | 25 | 17 | 11 | 8 | < 8 |
| | Mallee/ Mulga | 30 | 23 | 15 | 10 | 7 | < 7 |
| | Rainforest | 46 | 36 | 26 | 18 | 13 | < 13 |
| | Grassland | 45 | 25 | 17 | 11 | 8 | < 8 |
| Downslope >10 to 15 degrees | Forest | 105 | 82 | 64 | 49 | 39 | < 39 |
| | Woodland | 75 | 60 | 45 | 33 | 25 | < 25 |
| | Scrub | 50 | 39 | 28 | 19 | 14 | < 14 |
| | Shrubland | 36 | 28 | 19 | 13 | 9 | < 9 |
| | Mallee/ Mulga | 35 | 26 | 18 | 11 | 8 | < 8 |
| | Rainforest | 60 | 45 | 33 | 23 | 17 | < 17 |
| | Grassland | 50 | 28 | 20 | 13 | 9 | < 9 |
| Downslope >15 to 20 degrees | Forest | 125 | 98 | 78 | 61 | 50 | < 50 |
| | Woodland | 95 | 73 | 56 | 41 | 32 | < 32 |
| | Scrub | 55 | 43 | 31 | 21 | 15 | < 15 |
| | Shrubland | 41 | 31 | 22 | 15 | 10 | < 10 |

| Slope | Vegetation Types | Column 0 | Column A | Column B | Column C | Column D | Column E |
|---|---|---|---|---|---|---|---|
| | Mallee/ Mulga | 40 | 29 | 20 | 13 | 9 | < 9 |
| | Rainforest | 70 | 56 | 42 | 29 | 22 | < 22 |
| | Grassland | 55 | 32 | 23 | 15 | 11 | < 11 |
| | | **BAL 12.5** | **BAL 12.5** | **BAL 19** | **BAL 29** | **BAL 40** | **BAL FZ** |
| Downslope >20 degrees | All vegetation | The setback and the bushfire attack level is determined using Method 2 of AS3959:2018 *Construction of buildings in bushfire prone areas* (*Standards Australia*) subject to any guidance published by the relevant fire authority. | | | | | |
| All slopes | Low threat vegetation | A setback is provided for a distance of 50 metres, or the property boundary whichever is the lesser, for buildings constructed to all bushfire attack levels. The minimum construction standard is BAL 12.5. | | | | | |
| All slopes | Modified vegetation | A setback is to be provided for a distance of 50 metres, or the property boundary whichever is the lesser, for buildings constructed to all bushfire attack levels. The minimum construction standard is BAL 29. | | | | | |

*Table 1 notes*

1. *The setback is measured from the building façade and is managed or meets the requirements of Table 4 to clause 53.02-5.*
2. *Slope and vegetation type are determined through the bushfire hazard site assessment.*
3. *Modified vegetation is vegetation that does not fit into the vegetation classifications in AS3959:2018 Construction of buildings in bushfire prone areas because it:*
   - *Has been modified, altered or is managed due to urban development, or gardening,*
   - *Has different fuel loads from those assumed in the standard,*
   - *Has limited or no understorey vegetation, or*
   - *Is not low-threat or low-risk vegetation as defined in the standard.*

**Table 2 Water supply capacity, fittings and access requirements**

| Lot sizes (square meters) | Hydrant available | Capacity (litres) | Fire authority fittings and access required |
|---|---|---|---|
| Less than 500 | Not applicable | 2,500 | No |
| 500-1,500 | Yes | 5,000 | No |
| 500-1,500 | No | 10,000 | Yes |
| 1,501 and above | Not applicable | 10,000 | Yes |

*Table 2 note* *A hydrant is available if it is located within 120 metres of the rear of the building.*

**Table 2 Water supply fire authority requirements**

Unless otherwise agreed in writing by the relevant fire authority, the water supply must:

- Be stored in an above ground water tank constructed of concrete or metal.
- Have all fixed above ground water pipes and fittings required for firefighting purposes made of corrosive resistant metal.
- Include a separate outlet for occupant use.

Where a 10,000 litre water supply is required, fire authority fittings and access must be provided as follows:

- Be readily identifiable from the building or appropriate identification signs to the satisfaction of the relevant fire authority.
- Be located within 60 metres of the outer edge of the approved building.
- The outlet/s of the water tank must be within 4 metres of the accessway and unobstructed.
- Incorporate a separate ball or gate valve (British Standard Pipe (BSP 65 millimetre) and coupling (64 millimetre Country Fire Authority (CFA) 3 thread per inch male fitting).
- Any pipework and fittings must be a minimum of 65 millimetres (excluding the CFA coupling).

**Table 3 Vehicle access design and construction requirements**

| Access | Design and construction |
|---|---|
| Length of access is less than 30 metres and no fire authority access is required at Table 2. | Not required |
| Length of access is one of the following:<br>- less than 30 metres and fire authority access is required at Table 2.<br>- greater than 30 metres. | The following design and construction requirements apply:<br>- All-weather construction.<br>- A load limit of at least 15 tonnes.<br>- Provide a minimum trafficable width of 3.5 metres.<br>- Be clear of encroachments for at least 0.5 metres on each side and at least 4 metres vertically.<br>- Curves must have a minimum inner radius of 10 metres.<br>- The average grade must be no more than 1 in 7 (14.4%) (8.1°) with a maximum grade of no more than 1 in 5 (20%) (11.3°) for no more than 50 metres.<br>- Dips must have no more than a 1 in 8 (12.5%) (7.1°) entry and exit angle. |
| Length of access is greater than 100 metres. | A turning area for fire fighting vehicles must be provided close to the building by one of the following:<br>- A turning circle with a minimum radius of eight metres.<br>- A driveway encircling the dwelling.<br>- The provision of other vehicle turning heads – such as a T or Y head – which meet the specification of Austroads Design for an 8.8 metre Service Vehicle. |
| Length of access is greater than 200 metres. | - Passing bays must be provided at least every 200 metres.<br>- Passing bays must be a minimum of 20 metres long with a minimum trafficable width of 6 metres. |

*Table 3 note* *The length of access should be measured from a public road to either the building or the water supply outlet, whichever is longer.*

**Table 4 Defendable space vegetation management requirements**

Defendable space is provided and is managed on a continuing basis in accordance with the following requirements:

- Grass must be short cropped and maintained during the declared fire danger period.
- All leaves and vegetation debris must be removed at regular intervals during the declared fire danger period.
- Within 10 metres of a building, flammable objects must not be located close to the vulnerable parts of the building.

- Plants greater than 10 centimetres in height must not be placed within 3 metres of a window or glass feature of the building.
- Shrubs must not be located under the canopy of trees.
- Individual and clumps of shrubs must not exceed 5 square metres in area and must be separated by at least 5 metres.
- Trees must not overhang or touch any elements of the building.
- The canopy of trees must be separated by at least 5 metres. For a non-habitable outbuilding ancillary to a dwelling, the canopy of trees must be separated by at least 2 metres.
- There must be a clearance of at least 2 metres between the lowest tree branches and ground level.

These requirements apply unless an alternative defendable space vegetation management requirement is specified in a schedule in this planning scheme and the application meets all of the requirements of the schedule or is otherwise agreed in writing to the satisfaction of the relevant fire authority.

**Table 5 Non-habitable outbuilding requirements**

The outbuilding must meet all of the following requirements:

- The outbuilding is non-habitable and ancillary to a dwelling.
- The defendable space vegetation management requirements, in accordance with Table 4 to clause 53.02-5, must be provided for 10 metres around the outbuilding or to the title boundary, whichever is the lesser distance.
- If the outbuilding is located within 10 metres of a dwelling:
  - The proposed outbuilding is separated from the adjacent building by a wall that extends to the underside of a non-combustible roof covering and either:
    - has a Fire Resistance Level (FRL) of not less than 60/60/60 for loadbearing walls and -/60/60 for non-load bearing walls when tested from the attached structure side.
    - is of masonry, earth wall or masonry-veneer construction with the masonry leaf of not less than 90 millimetres in thickness.
  - Any openings in the wall shall be protected in accordance with the following:
    i. Doorways – by FRL -/60/30 self-closing fire doors.
    ii. Windows – by FRL -/60/- fire windows permanently fixed in the closed position.
    iii. Other openings – by construction with a FRL of not less than -/60/-.

*Table 5 notes*

1. *Control and construction joints, subfloor vents, weepholes and penetrations for pipes and conduits need not comply with Item iii.*
2. *Applications that meet Table 5 to clause 53.02-5 do not require referral to the relevant fire authority. Applications for non-habitable outbuildings can also use the bushfire protection measures in clause 53.02 however referral to the relevant fire authority will be required.*

## 53.02-6 Bushfire prone area decision guidelines

16/06/2026
VC312

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

### General

- The Municipal Planning Strategy and the Planning Policy Framework.

- The impact of any State, regional or local bushfire management and prevention actions occurring around the site and in the wider area on the bushfire hazard and the level of risk to the proposed development.
- The risk of bushfire to people, property and community infrastructure.
- Whether the risk arising from the broader landscape can be mitigated to an acceptable level.
- Whether bushfire protection measures to address the identified bushfire risk are required and can be practically implemented, including any measure set out in clause 53.02-4.
- Whether bushfire protection measures can be implemented without unacceptable biodiversity impacts.

### Proposed vegetation

- If vegetation is proposed, whether it will cause or contribute to the bushfire hazard or increase the risk to life, property, or community infrastructure.

### Dwellings and Small Second Dwellings

- Whether a static water supply for bushfire firefighting is required having regard to the size of the lot, proximity to a hydrant and connection to reticulated water.
- If a vehicle accessway is greater than 30 metres in length or the relevant fire authority requires access to the static water supply on the land, whether the access design and construction requirements set out in Table 3 to clause 53.02-5 should be met.

### Vulnerable people

For a building used for accommodation (other than a dwelling or small second dwelling), education centre, hospital, indoor recreation facility, major sports and recreation facility or place of assembly the responsible authority must also consider:

- The capacity for vulnerable occupants to evacuate.
- Whether emergency management arrangements are provided and are sufficient for the site.
- Whether the risk to vulnerable occupants warrants the closure of the use or development on days of elevated fire danger.
- Whether measures to shelter in place are warranted and whether the measures will protect human life.
- The net benefit provided to any existing vulnerable people.

### Subdivision

- Whether each lot can achieve the setback from the bushfire hazard in accordance with the vegetation type and slope set out in Table 1 to clause 53.02-5 for the corresponding distance specified in Column C of that Table.
- Whether a staged subdivision manages interim bushfire hazard during the construction or staging.

# 53.03 RESIDENTIAL RETICULATED GAS SERVICE CONNECTION

01/01/2024
VC250

## Purpose

To prohibit residential reticulated gas connections to new dwellings, new apartment developments and new residential subdivisions.

## 53.03-1 Application

01/01/2024
VC250

This clause applies to an application for a permit under any provision of this scheme that is for or includes:

- construction of a new dwelling (other than a caretaker's house) or a new apartment development.
- the subdivision of land where the subdivision provides for or is for one or more purposes that include residential development.

This clause does not apply to an application for a permit that is solely for:

- the alteration or extension of an existing dwelling or apartment development.
- the subdivision of land or a building to create lots each containing an existing dwelling or apartment.
- the subdivision of land or a building to create lots each of which are intended to contain a dwelling or an apartment authorised by a planning permit that has been issued for the land.

## 53.03-2 Building and works requirement

01/01/2024
VC250

A permit must not be granted for construction of a new dwelling or a new apartment development that is to be connected to a reticulated gas service.

A permit granted for buildings and works in relation to an application to which this clause applies must include the following mandatory condition(s) as relevant:

For a dwelling:

*"Any new dwelling allowed by this permit must not be connected to a reticulated gas service (within the meaning of clause 53.03 of the relevant planning scheme). This condition continues to have force and effect after the development authorised by this permit has been completed."*

For an apartment development:

*"Any new apartment development allowed by this permit must not be connected to a reticulated gas service (within the meaning of clause 53.03 of the relevant planning scheme). This condition continues to have force and effect after the development authorised by this permit has been completed."*

## 53.03-3 Subdivision requirement

01/01/2024
VC250

A permit must not be granted for a subdivision that includes a lot that is to be connected to a reticulated gas service. This does not apply to:

- a lot that will not be used for, or include, a dwelling; or
- a lot that contains an existing dwelling or apartment; or
- a lot where a permit has been granted for a dwelling or apartment on the land in the lot.

A permit granted for subdivision in relation to an application to which this clause applies must include the following mandatory condition:

*"Any lot shown on the endorsed plan must not be connected to a reticulated gas service (within the meaning of clause 53.03 of the relevant planning scheme). This does not apply to:*

- *a lot that will not be used for, or include, a dwelling; or*

- *a lot that contains an existing dwelling or apartment; or*
- *a lot where a permit has been granted for a dwelling or apartment on the land in the lot.*

*This condition continues to have force and effect after a statement of compliance under the Subdivision Act 1988 has been issued and the subdivision authorised by this permit has been completed."*

## 53.03-4 Application requirements

01/01/2024
VC250

An application for a permit to which this clause applies must, in addition to those application requirements specified elsewhere in the scheme, be accompanied by details of the proposed energy provision other than a connection to a reticulated gas service, as appropriate, to the satisfaction of the responsible authority.

## 53.03-5 Transitional provisions

01/01/2024
VC250

The requirements of this clause introduced by Amendment VC250 do not apply to:

- An application lodged before the approval date of Amendment VC250.
- An application for an amendment to a permit under section 72 of the Act with respect to a permit issued in accordance with the above transitional provision.

## 53.03-6 Definitions

01/01/2024
VC250

In this clause:

**Connected to a reticulated gas service** means:

- In the case of a building, reticulated natural gas is directly supplied to the building. This does not include liquefied petroleum gas (LPG).
- In the case of a subdivision for residential purposes, reticulated natural gas is directly supplied to a lot. This does not include liquefied petroleum gas (LPG).

**New dwelling** means:

- A new building, buildings, or part of a building, constructed to be used as a dwelling (other than a caretaker's house) not including the alteration or extension of an existing dwelling.
- A new building, buildings, or part of a building, connected to an existing dwelling and constructed to be used as a separate dwelling (other than a caretaker's house), provided the use does not incorporate any part of what was the gross floor area (excluding external or party walls) of the existing dwelling.
- A new outbuilding or swimming pool associated with an existing or proposed dwelling, provided it is not within the gross floor area (excluding external or party walls) of an existing dwelling.

It does not include a new apartment development.

**New apartment development** means a new building, buildings, or part of a building, constructed to contain one or more apartments, whether or not any other use is provided for, but does not include the extension or alteration of, or the addition of new apartments to, an existing apartment development.

# 53.04 CONVENIENCE RESTAURANT AND TAKE-AWAY FOOD PREMISES

31/07/2018
VC148

## 53.04-1 Application

31/07/2018
VC148

These requirements only apply to land in a residential zone.

## 53.04-2 Decision guidelines

20/01/2022
VC205

Before deciding on an application to use land for a convenience restaurant or take-away food premises or to construct a building or construct or carry out works associated with a convenience restaurant or take-away food premises, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- Any policy in this scheme relating to convenience restaurants or take-away food premises.
- Whether the location is appropriate for a convenience restaurant or take-away food premises having regard to:
  - Amenity of the neighbourhood.
  - Proximity of the land to non-residential uses and zones.
  - Effect of the use on heritage and environment features.
  - Capacity of the land to contain significant off-site effects.
  - Access to land in a Transport Zone 2 or Transport Zone 3.
  - The suitability of the land for a residential use.
- The effect on the amenity or character of the street or neighbourhood having regard to:
  - Massing and proportions of any building.
  - Ground floor height above ground level.
  - Ceiling heights.
  - Roof form and pitch.
  - Facade articulation.
  - Window and door proportions.
  - Building features including verandas, towers, eaves, parapets and decorative elements.
  - Building materials, patterns textures and colours.
- Whether the site layout and the design of buildings, noise attenuation measures, landscaping, car parking, vehicle access lanes, loading bays, rubbish bins, plant and equipment, lights, signs, drive through facilities and playgrounds are designed to prevent significant loss of amenity to adjoining land due to noise, emission of noise, emission of light or glare, loss of privacy, litter or odour.
- Whether any special measure may be necessary to protect the amenity of adjoining land in residential use, including buffer planting, noise attenuation measures and litter collection arrangements.
- The adequacy of traffic measures to:
  - Provide safe pedestrian movement.
  - Achieve safe, efficient vehicle movement on site and access to and egress from the land.

  - Avoid disruption to traffic flow on land in a Transport Zone 2 or Transport Zone 3.
  - Prevent inappropriate use of local residential streets.
- The adequacy of car parking, loading and drive through queuing spacing to accommodate customers at peak periods and employee requirements on the land.

# 53.05 FREEWAY SERVICE CENTRE

14/05/2021
VC198

## Purpose

To ensure that freeway service centres are appropriately designed and located.

To ensure that access to a freeway service centre from a freeway is designed to the requirements of the Head, Transport for Victoria.

To ensure that freeway service centres with access to a rural freeway provide only essential services and facilities which encourage drivers to stop and take an effective break at appropriate intervals in the interests of driver safety.

To ensure that any new freeway service centre meets an identifiable need to provide essential services and facilities along a freeway where those services and facilities are not readily available.

To ensure that the use of land for a freeway service centre does not adversely affect the amenity of surrounding land uses.

## 53.05-1 Requirements to be met

14/08/2023
VC236

### Facilities and services

A freeway service centre must provide only essential services and facilities. These essential services and facilities must be available at all times. Essential services and facilities that a freeway service centre must include are:

- Designated parking areas.
- Undercover fuel sales area.
- An area of not more than 240 square metres for the sale of food, drinks and other convenience goods.
- An indoor sit-down eating area.
- A safe play area for children.
- Public toilets.
- A public telephone.

A freeway service centre with access to a rural freeway must also provide local and regional tourist information.

A freeway service centre must not include:

- Mechanical repairs (other than the emergency repair of vehicles).
- Retail facilities of more than 240 square metres.
- Video hire.
- Post office services or facilities.
- Entertainment facilities, amusement machines or gaming machines.
- The sale, distribution or consumption of alcohol unless associated with a residential hotel/motel.
- Car or truck wash facilities.

A freeway service centre with access to a rural freeway must not include overnight accommodation (other than for a caretaker or site manager).

### Access to freeway service centres

No vehicular access between a freeway service centre with access to a metropolitan freeway and the local road network may be permitted.

An application to use or develop land for a freeway service centre must be referred under section 55 of the Act to the person or body specified as the referral authority in Clause 66.02.

A permit must not be granted for a freeway service centre until approval for access to the freeway has been given by the person or body specified as the referral authority in Clause 66.02.

In accordance with section 62(1)(a) of the Act, a permit granted for a freeway service centre must include the condition:

"This permit will expire if one of the following circumstances applies:

- The development is not commenced within two years of the date of this permit.
- The development is not completed within four years of the date of this permit.

The responsible authority may extend the periods referred to if a request is made in writing before the permit expires or within three months afterwards."

#### Metropolitan freeway service centre adjoining a residential zone

If the site for a freeway service centre with access to a metropolitan freeway adjoins a residential zone:

- A landscape buffer at least 3 metres wide must be provided on the site along the common boundary and must be planted and maintained to the satisfaction of the responsible authority.
- Except for the landscape buffer strip, all of the site not occupied by buildings must be sealed to prevent dust.
- External lights must be directed away from the residential zone to prevent light spill and glare.

## 53.05-2 Decision guidelines

31/07/2018
VC148

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The Freeway Service Centres Design Guidelines, May 1997.

# 53.06 LIVE MUSIC ENTERTAINMENT VENUES

28/09/2020
VC183

## Purpose

To recognise that live music is an important part of the State's culture and economy.

To encourage the retention of existing and the development of new live music entertainment venues.

To protect live music entertainment venues from the encroachment of noise sensitive residential uses.

To ensure that noise sensitive residential uses are satisfactorily protected from unreasonable levels of live music and entertainment noise.

To ensure that the primary responsibility for noise attenuation rests with the agent of change.

## 53.06-1 Application

28/09/2020
VC183

This clause applies to an application required under any zone of this scheme to use land for, or to construct a building or construct or carry out works associated with:

- A live music entertainment venue.
- A noise sensitive residential use that is within 50 metres of a live music entertainment venue.
- A noise sensitive residential use that is in an area specified in clause 1.0 of the schedule to this clause

This clause does not apply to:

- The extension of an existing dwelling.
- A noise sensitive residential use that is in an area specified in clause 2.0 of the schedule to this clause.

## 53.06-2 Meaning of terms

14/12/2023
VC253

In this clause:

- ***live music entertainment venue*** means:
  - a food and drink premises, nightclub, function centre or residential hotel that includes live music entertainment
  - a rehearsal studio
  - any other venue used for the performance of music and specified in clause 3.0 of the schedule to this clause, subject to any specified condition or limitation.
- ***noise sensitive residential use*** means a community care accommodation, dwelling, residential aged care facility, residential village, retirement village, rooming house or small second dwelling.

## 53.06-3 Requirements to be met

04/05/2022
VC210

A live music entertainment venue must be designed, constructed and managed to minimise noise emissions from the premises and provide acoustic attenuation measures that would protect a noise sensitive residential use within 50 metres of the venue.

A noise sensitive residential use must be designed and constructed to include acoustic attenuation measures that will reduce noise levels from any:

- Indoor live music entertainment venue to below the noise limits specified in the Environment Protection Regulations under the *Environment Protection Act 2017* and the incorporated Noise Protocol (Publication 1826, Environment Protection Authority, November 2020)
- Outdoor live music entertainment venue to below 45dB(A), assessed as an $L_{eq}$ over 15 minutes.

For the purpose of assessing whether the above noise standards are met, the noise measurement point may be located inside a habitable room of a noise sensitive residential use with windows and doors closed (consistent with EPA Publication 1826).

A permit may be granted to reduce or waive these requirements if the responsible authority is satisfied that an alternative measure meets the purpose of this clause.

## 53.06-4 Application requirements

28/09/2020
VC183

An application must be accompanied by the following information, as appropriate:

- A site analysis, including plans detailing:
  - the existing and proposed layout of the use, buildings or works, including all external windows and doors
  - the location of any doors, windows and open space areas of existing properties in close proximity to the site.
- If the application is associated with a noise sensitive residential use:
  - the location of any live music entertainment venues within 50 metres of the site
  - the days and hours of operation of identified venues.
- If the application is associated with a live music entertainment venue:
  - the location of any noise sensitive residential uses within 50 metres of the site
  - the days and hours of operation of that venue
  - the times during which live music will be performed.
- Details of existing and proposed acoustic attenuation measures.
- An assessment of the impact of the proposal on the functioning of live music venues.

If in the opinion of the responsible authority an application requirement is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement.

## 53.06-5 Decision guidelines

28/09/2020
VC183

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The extent to which the siting, layout, design and construction minimise the potential for noise impacts.
- Whether existing or proposed noise sensitive residential uses will be satisfactorily protected from unreasonable live music and entertainment noise.
- Whether the proposal adversely affects any existing uses.
- The social and economic significance of an existing live music entertainment venue.
- The impact of the proposal on the functioning of live music venues.

18/02/2021
GC175

# SCHEDULE TO CLAUSE 53.06 LIVE MUSIC ENTERTAINMENT VENUES

## 1.0 Areas to which Clause 53.06 does apply

04/05/2022
VC210

| Name of area | Description |
|---|---|
| None specified | |

## 2.0 Areas to which Clause 53.06 does not apply

04/05/2022
VC210

| Name of area | Description |
|---|---|
| None specified | |

## 3.0 Other venues to which Clause 53.06 applies

04/05/2022
VC210

| Name of venue | Address | Condition or limitation |
|---|---|---|
| None specified | | |

# 53.07 SHIPPING CONTAINER STORAGE

31/07/2018
VC148

## Application

This clause applies to all land except land which is in a Special Use Zone established for the purpose of port and port-related activities, or is in a Port Zone.

## 53.07-1 Decision guidelines

20/01/2022
VC205

Before deciding on an application to use land for shipping container storage, or construct a building or construct or carry out works associated with shipping container storage, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- Whether the location is appropriate for shipping container storage having regard to:
  - The zoning of the land.
  - Amenity of the neighbourhood.
  - Proximity of the land to residential uses and zones or other sensitive uses.
  - Access to a road in a Transport Zone 2 or a Transport Zone 3.
  - Access to rail facilities.
  - Capacity and suitability of the road network to accommodate the type and volume of vehicle traffic generated by the use.
  - Capacity of the site to accommodate the proposed use.
- The effect on the environment and the amenity and character of the neighbourhood having regard to:
  - Existing and planned use of land in the neighbourhood.
  - Location, height and setback of shipping container stacks, particularly near road boundaries.
  - Location of facilities for the cleaning, repair, servicing, painting or fumigation of shipping containers.
  - Hours of operation.
  - Design, construction and maintenance of external storage and vehicle movement areas.
  - Treatment and disposal of wastewater.
- Whether the site layout and the design of buildings, landscaping, vehicle access lanes, loading bays, wash bays, lighting and fencing are designed to avoid or minimise any significant off-site impacts due to the emission of noise, light, glare, dust, fumes or drainage.
- Whether any special measure may be necessary to protect the environment and the amenity of nearby sensitive uses, including noise attenuation measures, dust minimisation measures and waste storage arrangements.
- The need for landscaping and fencing to screen or soften the appearance of shipping container storage areas, particularly near road boundaries.
- The adequacy and effect of the landscaping on the appearance of the site, taking into account the streetscape character, the size of the site, and the height, mass and scale of shipping container stacks on the site.
- The adequacy of traffic measures to:

  - Achieve safe, efficient vehicle movement on site and access to and egress from the land.
  - Prevent inappropriate use of local residential streets.
- The adequacy of truck parking, loading and truck queuing spacing to accommodate truck movements at peak periods and employee requirements on the land.

## 53.08 CATTLE FEEDLOT

31/07/2018
VC148

### Purpose

To facilitate the establishment and expansion of cattle feedlots in Victoria in a manner which is consistent with orderly and proper planning and the protection of the environment.

## 53.08-1 Requirements to be met

31/07/2018
VC148

All use and development of cattle feedlots must comply with the Victorian Code for Cattle Feedlots - August 1995.

The Code must be complied with to the satisfaction of the responsible authority.

# 53.09 POULTRY FARM

11/04/2019
VC156

## Purpose

To facilitate the establishment and expansion of poultry farms, including broiler farms, in a manner that is consistent with orderly and proper planning and the protection of the environment.

## 53.09-1 Application

21/09/2018
VC150

This clause applies to permit applications to use land or construct a building or construct or carry out works for a poultry farm, including to increase the farm capacity of an existing poultry farm.

## 53.09-2 Permit not required – Outdoor range area for existing broiler farm

21/09/2018
VC150

Any requirement of this scheme relating to the use of land or to the construction of a building or the construction or carrying out of works does not apply to the use and development of land for an outdoor range area in association with an existing broiler farm provided the following requirements are met:

- There are no more than 150,000 chickens permitted on the land at any time.
- The number of chickens on the land is not increased.

This exemption does not apply to the requirements of any overlay that applies to the land.

## 53.09-3 Requirement – Broiler farm

21/09/2018
VC150

An application to use land or construct a building or construct or carry out works for a broiler farm must comply with the *Victorian Code for Broiler Farms 2009 (plus 2018 amendments)*.

This requirement does not apply if:

- There are no more than 10,000 chickens permitted on the land at any time; or
- The number of chickens on the land is not increased.

## 53.09-4 Exemption from notice and review

11/04/2019
VC156

The following applications are exempt from the notice requirements of section 52 (1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act:

- An application to use land or construct a building or construct or carry out works for a new broiler farm, or to increase the farm capacity of an existing broiler farm, if the application meets the requirements of a "Class A Broiler Farm", as specified in the *Victorian Code for Broiler Farms 2009 (plus 2018 amendments)*.
- An application to use land or construct a building or construct or carry out works for a poultry farm for the production of chicken meat or chicken eggs, if the application meets the following requirements:
  - The number of chickens does not exceed 5,000 for egg production or 10,000 for meat production.
  - The outdoor stocking density does not exceed 1,500 chickens per hectare.
  - A Nutrient Management Plan demonstrates chickens are kept outdoors on paddocks with:
    - A minimum of 50% ground cover; and
    - Mobile housing and feeding infrastructure that is relocated at least every two weeks.
  - An area used as a poultry range, including associated buildings and works, meets the setback requirements specified in Table 1.

**Table 1 Minimum setbacks**

| Chicken numbers | Minimum distance to a building used for a sensitive use (accommodation, child care centre, education centre and hospital) | Minimum distance to land in a residential zone |
|---|---|---|
| 1,000 chickens or less | 50 metres | 200 metres |
| More than 1,000 chickens | 100 metres | 400 metres |

## 53.09-5 Notice of an application

21/09/2018
VC150

Notice of an application to use or develop land to establish a new broiler farm, or to increase the farm capacity of an existing broiler farm, that meets the requirements of a Special Class Broiler Farm or Farm Cluster as specified in the *Victorian Code for Broiler Farms 2009 (plus 2018 amendments)*, must be given under Section 52(1)(c) of the Act to the person or body specified as a person or body to be notified in Clause 66.05.

## 53.09-6 Decision guidelines

21/09/2018
VC150

Before deciding on an application to use land or construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The purpose of the relevant zone.
- The design, height, setback and appearance of the proposed buildings and works.
- The proposed landscaping.
- The need to protect amenity of existing uses on adjoining land.
- The impact of the use of the land on the surrounding area, including from the emission of noise, light, vibration, odour, dust, or waste products.
- The impact of the proposal on any wetlands, waterways or water bodies.
- The likely environmental impact on the natural physical features and biodiversity of the land, including consideration of any Nutrient Management Plan submitted with the application.
- Whether the development will support and enhance agricultural production.
- The requirements of the *Victorian Low Density Mobile Outdoor Poultry Farm Planning Permit Guidelines* (June 2018).

## 53.10 USES AND ACTIVITIES WITH POTENTIAL ADVERSE IMPACTS

26/05/2020
VC175

### Purpose

To identify those types of uses and activities, which if not appropriately designed and located, may cause offence or unacceptable risk to the neighbourhood.

## 53.10-1 Threshold distance

26/09/2023
VC246

The threshold distance referred to in the table to this clause is the shortest distance from any part of the land to:

- land (not a road) in an Activity Centre Zone, Capital City Zone, Commercial 1 Zone, Docklands Zone, residential zone or Rural Living Zone; or
- land used for a hospital, an education centre or a corrective institution; or
- land in a Public Acquisition Overlay to be acquired for a hospital, an education centre or a corrective institution.

An application to use land for an industry, utility installation or warehouse for a purpose listed in the table to this clause must be referred to the Environment Protection Authority under section 55 of the Act if the threshold distance is not to be met or no threshold distance is specified.

**Table to Clause 53.10-1**

| Type of use or activity (purpose) | Threshold distance (metres) |
|---|---|
| **Basic metal products** | |
| Iron or steel production: | |
| ▪ up to 1,000,000 tonnes per year | 500 |
| ▪ exceeding 1,000,000 tonnes per year | 1,000 |
| Non-ferrous metal production: | |
| ▪ up to 100 tonnes per year | 100 |
| ▪ between 100 and 2,000 tonnes per year | 300 |
| ▪ exceeding 2,000 tonnes per year | 500 |
| ▪ aluminium by electrolysis | 2,000 |
| **Chemical, petroleum and coal products** | |
| Ammunition, explosives and fireworks production | 1,000 |
| Biocides production and storage | 1,000 |
| Briquette production | 300 |
| Chemical product manufacture other than listed within this group | 300 |
| Coke processing | 500 |
| Cosmetics and toiletries production | 100 |

| Type of use or activity (purpose) | Threshold distance (metres) |
|---|---|
| Fertiliser production | 1,000 |
| Gasworks | 1,000 |
| Industrial gases production | 1,000 |
| Organic and inorganic industrial chemicals production other than those listed within this group | 2,000 |
| Other petroleum or coal production | 500 |
| Paints and inks manufacture, blending and mixing exceeding 2,000 tonnes per year | 500 |
| Petroleum refinery | 2,000 |
| Pharmaceutical and veterinary chemical production | 1,000 |
| Polyester and synthetic resins production, exceeding 2,000 tonnes per year | 1,000 |
| Rubber production: | |
| ▪ synthetic rubber, exceeding 2,000 tonnes per year | 1,000 |
| ▪ using either organic solvents or carbon black | 300 |
| ▪ using sulphur | 1,000 |
| Soap and detergent production | 500 |
| **Fabricated metal products** | |
| Abrasive blast cleaning | 500 |
| Boiler maker | 100 |
| Metal coating and finishing | 500 |
| Structural or sheet metal production | 500 |
| **Food and beverages** | |
| Alcoholic and non-alcoholic beverage production, exceeding 5,000 litres per day | 500 |
| Animal processing | 1,000 |
| Bakery (other than one ancillary to a shop): | |
| ▪ exceeding 200 tonnes per year | 100 |
| ▪ night-time operations, exceeding 200 tonnes per year | 500 |
| Flour mill, exceeding 200 tonnes per year | 250 |
| Food production other than those listed within this group: | |
| ▪ exceeding 200 tonnes per year | 250 |

| Type of use or activity (purpose) | Threshold distance (metres) |
|---|---|
| ▪ including frying, drying or roasting, exceeding 200 tonnes per year | 500 |
| Grain and stockfeed mill and handling facility | |
| ▪ with meat meals or tallow | 500 |
| ▪ no meat meals or tallow | 250 |
| Maltworks, exceeding 200 tonnes per year | 500 |
| Manufacture of milk products, exceeding 200 tonnes per year | 300 |
| Milk depot | 100 |
| Pet food production | 500 |
| Production of vegetable oils and animal fats using solvents, exceeding 200 tonnes per year | 500 |
| Seafood processor, exceeding 200 tonnes per year | 500 |
| Smallgoods production: | |
| ▪ exceeding 200 tonnes per year | 100 |
| ▪ including smoking and drying, exceeding 200 tonnes per year | 500 |
| **Miscellaneous manufacturing** | |
| Printing and coating works with heated curing ovens | 500 |
| Rendering and casings works | 1,000 |
| **Non-metallic mineral products** | |
| Bitumen batching plant | 1,000 |
| Cement production in amounts: | |
| ▪ up to 5,000 tonnes per year | 300 |
| ▪ between 5,000 and 150,000 tonnes per year | 500 |
| ▪ exceeding 150,000 tonnes per year | 1,000 |
| Cement, lime, clay bricks, tiles and pipe refractories, with a design production rate exceeding 10,000 tonnes per year: | 500 |
| Concrete batching plant, with a production rate exceeding 5,000 tonnes per year | 300 |
| Glass and glass production including glass wool and fibreglass | 500 |
| Plaster or plaster articles production, exceeding 5,000 tonnes per year | 200 |
| Rock wool manufacture | 500 |

| Type of use or activity (purpose) | Threshold distance (metres) |
|---|---|
| Solar salt manufacture | 1,000 |
| **Other premises** | |
| Automotive body, paint and interior repair | 100 |
| Rural industry handling, processing or packing agricultural produce | 300 |
| **Paper and paper products** | |
| Paper or paper pulp production: | |
| ▪ involving combustion of sulphur or sulphur containing materials | 5,000 |
| ▪ from semi-processed materials | 100 |
| ▪ from prepared cellulose and rags | 200 |
| ▪ by other methods than above | None specified |
| **Recreational, personal and other services** | |
| Dry cleaning for commercial and institutional customers, or in bulk quantities | 100 |
| Laundry for commercial and institutional customers, or in bulk quantities | 100 |
| **Textiles** | |
| Carpet backing with latex | 500 |
| Dyeing or finishing of cotton, linen and woollen yarns and textiles | 300 |
| Leather and artificial leather goods production | 300 |
| Leather tanning and dressing: | |
| ▪ up to 250 tonnes per year | 300 |
| ▪ exceeding 250 tonnes per year | 2,000 |
| Rope, cordage and twine production | 100 |
| Treatment or production of natural and synthetic fibres and textiles | 1,000 |
| Treatment or production of textiles using carbon disulphide | 500 |
| Wool scouring | 200 |
| **Transport and storage** | |
| Bus depot | 200 |
| Depot for refuse collection vehicles | 100 |
| Storage of bulk volatile organic compounds in quantities greater than 1,000 tonnes | 1,000 |

| Type of use or activity (purpose) | Threshold distance (metres) |
|---|---|
| Storage of petroleum products and crude oil in tanks exceeding 2,000 tonnes capacity: | |
| ▪ with fixed roofs | 300 |
| ▪ with floating roofs | 100 |
| Storage of wet-salted or unprocessed hides | 250 |
| **Waste, recycling and resource recovery** | |
| Chemical or oil recycling | 1,000 |
| Combustion, treatment or bio-reaction of waste to produce energy | None specified |
| Composting and other organic materials recycling | None specified |
| Container deposit scheme centre exceeding 1,000 square metres gross floor area | 200 |
| Hazardous waste storage or treatment | 1,000 |
| Landfill | None specified |
| Other recourse recovery or recycling operations | None specified |
| Soil conditioning or blending | None specified |
| Transfer station (other than Automated collection point and Container deposit scheme centre): | |
| ▪ accepting organic wastes | 500 |
| ▪ other | 200 |
| Used plastics treatment or processing | 500 |
| Waste tyre recycling and re-treading | 1,000 |
| Vehicle recycling or disposal | 500 |
| **Water and wastewater** | |
| Sewage treatment plant, exceeding a design or actual flow rate of 5,000 litres per day | None specified |
| Water treatment plant | None specified |
| **Wood, wood products and furniture** | |
| Charcoal production: | |
| ▪ by the retort process | 500 |
| ▪ other than by the retort process | 1,000 |
| Joinery | 100 |

| Type of use or activity (purpose) | Threshold distance (metres) |
|---|---|
| Sawmill, wood products and furniture | 500 |
| Wood preservation plant: | |
| up to 10,000 cubic metres of timber per year | 100 |
| exceeding 10,000 cubic metres of timber per year | 300 |

# 53.11 TIMBER PRODUCTION

31/07/2018
VC148

## 53.11-1 Timber production on Crown land

31/07/2018
VC148

Any requirement of this scheme which:

- requires timber production to be conducted in a particular way
- requires that a permit be obtained to use or develop land for timber production or to carry out timber production in a particular way
- requires that some aspect of timber production be carried out to the satisfaction of the responsible authority

does not apply to timber production on unalienated land of the Crown managed and controlled by the Minister responsible for administering the *Forests Act 1958* and the *Sustainable Forests (Timber) Act 2004*, or the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forest and Lands Act 1987*), whether or not occupied under a licence or other right. All requirements of this scheme apply to Crown land which has been leased.

## 53.11-2 Timber production to comply with the Code of Practice for Timber Production

20/03/2023
VC229

All timber production activities (except agroforestry (the simultaneous and substantial production of forest and other agricultural products from the same land unit), windbreaks and commercial plantations of 5 hectares or less) must comply with the *Code of Practice for Timber Production 2014 (as amended 2022)* (Department of Environment, Land, Water and Planning, 2022). In accordance with Section 6(4A) of the *Planning and Environment Act 1987*, this applies whether the use of land for timber production is commenced before or after the coming into effect of this requirement.

The Code must be complied with to the satisfaction of the responsible authority.

A permit may require that matters required by the Code must be done to the satisfaction of the responsible authority or a Minister, public authority or referral authority, and may require the responsible authority to seek comments from any other person or authority before making a decision.

## 53.11-3 Road repairs

31/07/2018
VC148

After a Timber Harvesting Plan is lodged with the responsible authority under the Code and before the commencement of harvesting operations, the responsible authority, in consultation with the forest owner or manager, must establish the condition of any roads which are proposed to be used as a cartage route.

The forest owner or manager must advise the responsible authority when harvesting operations are complete. After receiving this advice, the responsible authority, in consultation with the forest owner or manager, must establish the condition of any roads which were used as a cartage route.

It is the responsibility of the forest owner or manager to restore any roads which were used as a cartage route to the same condition that they were in before the commencement of harvesting operations to the extent of any damage caused as a result of the harvesting operations.

The cartage of timber associated with harvesting operations is extraordinary traffic for the purpose of Section 112 of the *Road Management Act 2004*.

## 53.11-4 Decision guidelines

31/07/2018
VC148

Before deciding on an application to use or develop land for timber production, in addition to the decision guidelines in Clause 65, the responsible authority must consider:

- The need to encourage plantation establishment and timber production in locations where it is of significance to national, state and regional economies, and in areas affected by salinity and other forms of land degradation.
- The role of native forest and plantations in:
  - Protecting water quality.
  - Conserving flora and fauna.
  - Preventing land degradation, including soil erosion, salinisation and water logging.
  - Preventing adverse effects on groundwater recharge.
- The preservation of and impact on the natural environment, cultural heritage and visual amenity.
- Whether it is appropriate to require environmental protection standards greater than those in the Code.

## 53.12 RACING DOG HUSBANDRY

08/08/2019
VC159

### Purpose

To ensure the use and development of land for racing dog husbandry is consistent with orderly and proper planning.

### 53.12-1 Requirement

08/08/2019
VC159

An application to use land, or construct a building or construct or carry out works, for racing dog husbandry under a provision of a rural zone must comply with *Planning requirements for racing dog keeping and training* (Department of Environment, Land, Water and Planning, August 2017).

This requirement does not apply to an application to construct a building or construct or carry out works associated with a use that is a Section 1 use in the Table of uses of the zone.

### 53.12-2 Exemption from notice and review

31/07/2018
VC148

An application to which the requirement in Clause 53.12-1 applies is exempt from the notice requirements of section 52(1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if the approved measures specified in *Planning requirements for racing dog keeping and training* (Department of Environment, Land, Water and Planning, August 2017) are met.

# 53.13 RENEWABLE ENERGY FACILITY (OTHER THAN WIND ENERGY FACILITY)

17/09/2019
VC161

## Purpose

To facilitate the establishment and expansion of renewable energy facilities, in appropriate locations, with minimal impact on the amenity of the area.

## 53.13-1 Application

17/09/2019
VC161

This clause applies to an application under any provision of this planning scheme to use or develop land for a renewable energy facility (other than a wind energy facility).

## 53.13-2 Application requirements

01/07/2021
VC203

An application must be accompanied by the following information, as appropriate:

- A site and context analysis, including:
  - A site plan, photographs or other techniques to accurately describe the site and the surrounding area.
  - A location plan showing the full site area, local electricity grid, access roads to the site and direction and distance to nearby accommodation, hospital or education centre.
- A design response, including:
  - Detailed plans of the proposed development including, the layout and height of the facility and associated building and works, materials, reflectivity, colour, lighting, landscaping, the electricity distribution starting point (where the electricity will enter the distribution system), access roads and parking areas.
  - Accurate visual simulations illustrating the development in the context of the surrounding area and from key public view points.
  - The extent of vegetation removal and a rehabilitation plan for the site.
  - Written report and assessment, including:
    - An explanation of how the proposed design derives from and responds to the site analysis.
    - A description of the proposal, including the types of process to be utilised, materials to be stored and the treatment of waste.
    - Whether a Development Licence, Operating Licence, Permit or Registration is required from the Environment Protection Authority.
    - the potential amenity impacts such as noise, glint, light spill, emissions to air, land or water, vibration, smell and electromagnetic interference.
    - the effect of traffic to be generated on roads.
    - the impact upon Aboriginal or non-Aboriginal cultural heritage.
    - the impact of the proposal on any species listed under the *Flora and Fauna Guarantee Act 1988* or *Environment Protection and Biodiversity Conservation Act 1999*.
    - A statement of why the site is suitable for a renewable energy facility including, a calculation of the greenhouse benefits.
    - An environmental management plan including, a construction management plan, any rehabilitation and monitoring.

## 53.13-3 Decision guidelines

28/10/2022
VC224

Before deciding on an application, in addition to the decision guidelines of Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The effect of the proposal on the surrounding area in terms of noise, glint, light spill, vibration, smell and electromagnetic interference.
- The impact of the proposal on significant views, including visual corridors and sightlines.
- The impact of the proposal on strategically important agricultural land.
- The impact of the proposal on the protection of declared irrigation districts.
- The impact of the proposal on the natural environment and natural systems.
- The impact of the proposal on the road network.
- *Solar Energy Facilities Design and Development Guideline* (Department of Environment, Land, Water and Planning, October 2022).

## 53.13-4 Amendment VC161 transitional provisions

17/09/2019
VC161

Clauses 19.01-2S and 53.13 of this planning scheme, as in force immediately before the approval date of Amendment VC161, continue to apply to an application to use or develop land for a renewable energy facility (other than a wind energy facility) lodged before the approval date of Amendment VC161.

Clauses 14.02-3S and 66.02-12 of this planning scheme do not apply to an application to use or develop land for a renewable energy facility (other than a wind energy facility) lodged before the approval date of Amendment VC161.

# 53.14 RESOURCE RECOVERY

31/07/2018
VC148

## Purpose

To facilitate the establishment and expansion of a Transfer station and/or a Materials recycling facility in appropriate locations with minimal impact on the environment and amenity of the area.

## 53.14-1 Application

31/07/2018
VC148

This clause applies to all land used and developed or proposed to be used and developed for:

- A Transfer station;
- A Materials recycling facility.

## 53.14-2 Application requirements

01/07/2021
VC203

An application must be accompanied by the following information:

- A location plan showing the site and surrounding uses including distances to nearby sensitive uses such as residential, hospital or education uses.
- A detailed site plan showing the layout and height of buildings and works, materials, reflectivity, colour, lighting, landscaping, access roads and parking areas.
- Plans or other media showing anticipated views of the facility from sensitive use locations.
- A written report(s) including:
  - Identification of the purpose of the use.
  - A description of the proposal including the materials to be processed, the types of processes to be used and any materials to be stored and handled.
  - Proposed hours of operation.
  - Likely traffic generation including heavy vehicles.
  - Whether a Development Licence, Operating Licence, Permit or Registration is required from the Environment Protection Authority.
- An assessment of:
  - Potential amenity impacts such as noise, odour, emissions to air, land or water, vibration, dust, light spill, visual impact.
  - The impact of traffic generation on local roads.

## 53.14-3 Decision Guidelines

28/04/2026
VC232

Before deciding on an application, in addition to the Decision Guidelines of Clause 65, the responsible authority must consider:

- The contribution of the proposal to achieving resource recovery targets established by the Victorian Government.
- The impact of the proposal on the amenity of the surrounding area.
- The *Victorian Recycling Infrastructure Plan* (Department of Energy, Environment and Climate Action, October 2024).
- Relevant guidelines applicable to the application including the guideline for *Designing, Constructing and Operating Composting Facilities* (Environment Protection Authority, 2015), the *Guide to Best Practice for Organics Recovery* (Sustainability Victoria, 2009) and the *Guide to Best Practice at Resource Recovery Centres* (Sustainability Victoria, 2009).

## 53.15 STATEMENT OF UNDERLYING PROVISIONS

31/07/2018
VC148

### Purpose

To specify the planning scheme provisions which would have applied to land reserved for a public purpose pursuant to section 6(2)(i) of the *Planning and Environment Act 1987* if the land had not been reserved for that purpose.

## 53.15-01 Application

31/07/2018
VC148

In relation to any land identified in the schedule to this clause, the provisions of the planning scheme which would have applied to that land if it had not been reserved for a public purpose are the provisions which are contained in the relevant incorporated document, also identified in the schedule to this clause.

The incorporated document may contain some or all of the provisions which would have applied to the relevant land under this scheme if the land had not been reserved for a public purpose.

The incorporated document may also contain a statement or explanation of the strategic basis for those provisions. Alternatively, the incorporated document may make reference to a separate document, not forming part of the incorporated document, which contains a statement or explanation of the strategic basis for those provisions.

31/07/2018
VC148

# SCHEDULE TO CLAUSE 53.15 STATEMENT OF UNDERLYING PROVISIONS

## 1.0

02/12/2022
C259case

## Incorporated statement

| Land | Incorporated Document |
|---|---|
| None specified | |

# 53.16 PIG FARM

11/04/2019
VC156

## Purpose

To facilitate the establishment and expansion of pig farms in a manner that is consistent with orderly and proper planning and the protection of the environment.

## 53.16-1 Application

21/09/2018
VC150

This clause applies to permit applications to use land or construct a building or construct or carry out works for a pig farm, including to increase the farm capacity of an existing pig farm.

## 53.16-2 Exemption from notice and review

04/05/2022
VC210

An application to use land or construct a building or construct or carry out works for a pig farm is exempt from the notice requirements of section 52 (1)(a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act if the following requirements are met:

- The number of pigs does not exceed 150 sows or 1,000 Standard Pig Units as calculated in Table 1.
- The outdoor stocking density does not exceed 12 Standard Pig Units per hectare as calculated in Table 1.
- A Nutrient Management Plan demonstrates pigs are kept outdoors on paddocks with:
  - A minimum of 50% ground cover; and
  - Mobile housing and feeding infrastructure that is relocated at least every three months.
- Any area used as a pig range, including associated buildings and works, is setback a minimum distance of:
  - 100 metres from a building used for a sensitive use (accommodation, a child care centre, an education centre or a hospital), and
  - 400 metres from land in a residential zone.

**Table 1 Standard Pig Unit conversion factors**

| Pig Class | Mass Range (kg) | Age Range (weeks) | SPU Factor |
|---|---|---|---|
| **Gilt** | 100 – 160 | 24 -30 | 1.8 |
| **Boar** | 100 – 300 | 24 – 128 | 1.6 |
| **Gestating sow** | 160 – 230 | - | 1.6 |
| **Lactating sow** | 160 – 230 | - | 2.5 |
| **Sucker** | 1.4 – 8 | 0 – 4 | 0.1 |
| **Weaner** | 8 – 25 | 4 – 10 | 0.5 |
| **Grower** | 24 – 55 | 10 – 16 | 1.0 |
| **Finisher** | 55 – 100 | 16 – 24 | 1.6 |

| Pig Class | Mass Range (kg) | Age Range (weeks) | SPU Factor |
|---|---|---|---|
| **Heavy Finisher** | 100 – 130 | 24 -30 | 1.8 |

*Note: Adapted from the National Environmental Guidelines for Piggeries 2010*

## 53.16-3 Decision guidelines

21/09/2018
VC150

Before deciding on an application to use land or construct a building or construct or carry out works, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The purpose of the relevant zone.
- The design, height, setback and appearance of the proposed buildings and works.
- The proposed landscaping.
- The need to protect amenity of existing uses on adjoining land.
- The impact of the use of the land on the surrounding area, including from the emission of noise, light, vibration, odour, dust, or waste products.
- The impact of the proposal on any wetlands, waterways or water bodies.
- The likely environmental impact on the natural physical features and biodiversity of the land, including consideration of any Nutrient Management Plan submitted with the application.
- Whether the development will support and enhance agricultural production.
- The requirements of the *Victorian Low Density Mobile Outdoor Pig Farm Planning Permit Guidelines* (June 2018).

# 53.17 RESIDENTIAL AGED CARE FACILITY

14/12/2023
VC253

## Purpose

To facilitate the development of well-designed residential aged care facilities to meet existing and future needs.

To recognise that residential aged care facilities have a different scale and built form to the surrounding neighbourhood.

To ensure residential aged care facilities do not unreasonably impact on the amenity of adjoining dwellings or small second dwellings.

## 53.17-1 Application

25/02/2025
VC257

This clause applies to an application to construct a building or construct or carry out works for a residential aged care facility in the General Residential Zone, Housing Choice and Transport Zone, Mixed Use Zone, Neighbourhood Residential Zone, Residential Growth Zone or Township Zone.

## 53.17-2 Application requirements

26/10/2018
VC152

An application must be accompanied by:

- A site and context description.
- A design response.
- A landscape plan.

### Site and context description

The site and context description may use a site plan, photographs or other techniques and must include:

- Site shape, size, orientation and easements.
- Levels of the site and the difference in levels between the site and surrounding properties.
- The location of existing buildings on the site and on adjacent properties, including the location and height of walls built to the boundary of the site.
- The use of adjacent buildings and land.
- The location of secluded private open space and habitable room windows of adjacent properties which have an outlook to the site within 9 metres.
- Solar access to the site and to adjacent properties.
- Any contaminated soils and filled areas, where known.
- Location of significant trees existing on the site and any significant trees removed from the site in the 12 months prior to the application being made, where known.
- Street frontage features such as poles, street trees and kerb crossovers.
- Any other notable features or characteristics of the site.

If in the opinion of the responsible authority a requirement of the site and context description is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement.

### Design response

The design response must explain how the proposed design:

- Responds to the site and context description.
- Meets the requirements of this clause.

### Landscape plan

The landscape plan must include:

- Landscaping of communal open space for the enjoyment of residents and staff.
- Landscaping along the boundaries of the site.
- On-site management of run-off from paved areas.
- Retaining significant trees where possible.

## 53.17-3 Development requirements

25/02/2025
VC257

### Operation

If there is any inconsistency between a requirement in this clause and a requirement in another provision of this planning scheme, this clause prevails.

### Building height

In the Neighbourhood Residential Zone, General Residential Zone and Township Zone the maximum building height must not exceed 16 metres.

In the Mixed Use Zone and Residential Growth Zone the maximum building height should not exceed 16 metres.

In the Housing Choice and Transport Zone the maximum building height must not exceed:

- 21.5 metres for land shown on a planning scheme map as **HCTZ1**.
- 16 metres for land shown on a planning scheme map as **HCTZ2**.

### Street setback

Walls of buildings should be set back from streets the distance specified in the table:

| Development context | Minimum setback from front street (metres) | Minimum setback from a side street (metres) |
|---|---|---|
| There is an existing building on both the abutting allotments facing the same street, and the site is not on a corner. | The average distance of the setbacks of the front walls of the existing buildings on the abutting allotments facing the front street or 9 metres, whichever is the lesser. This does not include a porte cochère. | Not applicable |
| There is an existing building on one abutting allotment facing the same street and no existing building on the other abutting allotment facing the same street, and the site is not on a corner. | The same distance as the setback of the front wall of the existing building on the abutting allotment facing the front street or 9 metres, whichever is the lesser. This does not include a porte cochère. | Not applicable |
| There is no existing building on either of the abutting allotments facing the same street, and the site is not on a corner. | 6 metres for streets in a Transport Zone 2 and 4 metres for other streets. | Not applicable |
| The site is on a corner. | If there is a building on the abutting allotment facing the front street, the same distance as the setback of the front wall | Front walls of new development fronting the side street of a corner site should be setback at |

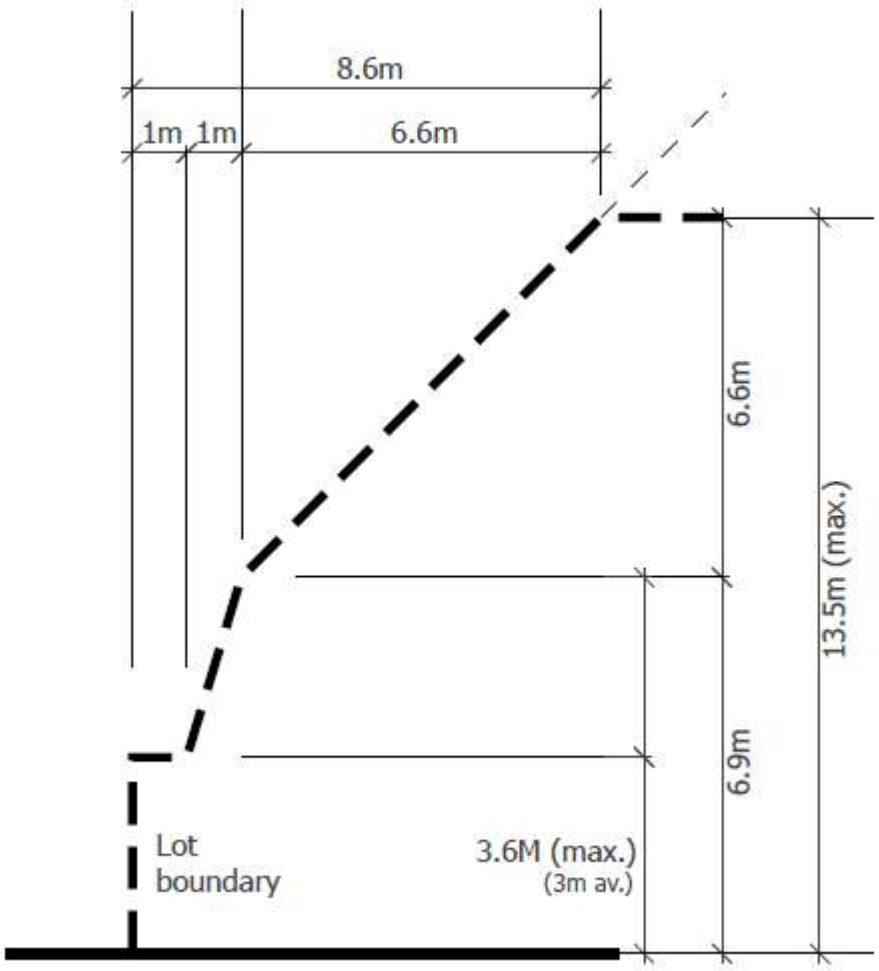
| Development context | Minimum setback from front street (metres) | Minimum setback from a side street (metres) |
|---|---|---|
| | of the existing building on the abutting allotment facing the front street or 9 metres, whichever is the lesser. This does not include a porte cochère.<br>If there is no building on the abutting allotment facing the front street, 6 metres for streets in a Transport Zone 2 and 4 metres for other streets. | least the same distance as the setback of the front wall of any existing building on the abutting allotment facing the side street or 4 metres, whichever is the lesser.<br>Side walls of new development on a corner site should be setback the same distance as the setback of the front wall of any existing building on the abutting allotment facing the side street or 2 metres, whichever is the lesser. |

**Side and rear setbacks**

A new building not on or within 200mm of a boundary should be set back from side or rear boundaries by 1metre, plus 0.3 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres.

Screens, sunblinds, verandahs, porches, eaves, fascias, gutters, masonry chimneys, flues, pipes, domestic fuel or water tanks, and heating or cooling equipment or other services may encroach not more than 0.5 metres into the setbacks of this standard.

Landings having an area of not more than 2 square metres and less than 1 metre high, stairways, ramps, pergolas, shade sails and carports may encroach into the setbacks of this standard.




**Walls on boundaries**

A new wall constructed on or within 200mm of a side or rear boundary of a lot or a carport constructed on or within 1 metre of a side or rear boundary of lot should not abut the boundary for a length of more than:

- 10 metres plus 25 per cent of the remaining length of the boundary of an adjoining lot, or
- Where there are existing or simultaneously constructed walls or carports abutting the boundary on an abutting lot, the length of the existing or simultaneously constructed walls or carports;

whichever is the greater.

A new wall or carport may fully abut a side or rear boundary where slope and retaining walls or fences would result in the effective height of the wall or carport being less than 2 metres on the abutting property boundary.

A building on a boundary includes a building set back up to 200mm from a boundary.

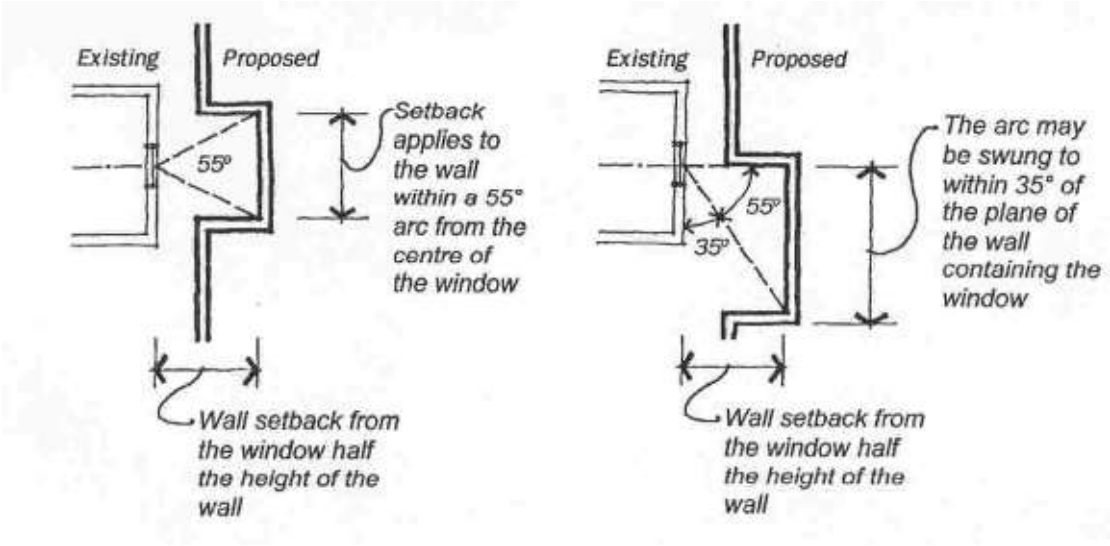
The height of a new wall constructed on or within 200mm of a side or rear boundary or a carport constructed on or within 1 metre of a side or rear boundary should not exceed an average of 3.2 metres with no part higher than 3.6 metres unless abutting a higher existing or simultaneously constructed wall.

**Daylight to existing windows**

Buildings opposite an existing habitable room window should provide for a light court to the existing window that has a minimum area of 3 square metres and minimum dimension of 1 metre clear to the sky. The calculation of the area may include land on the abutting lot.

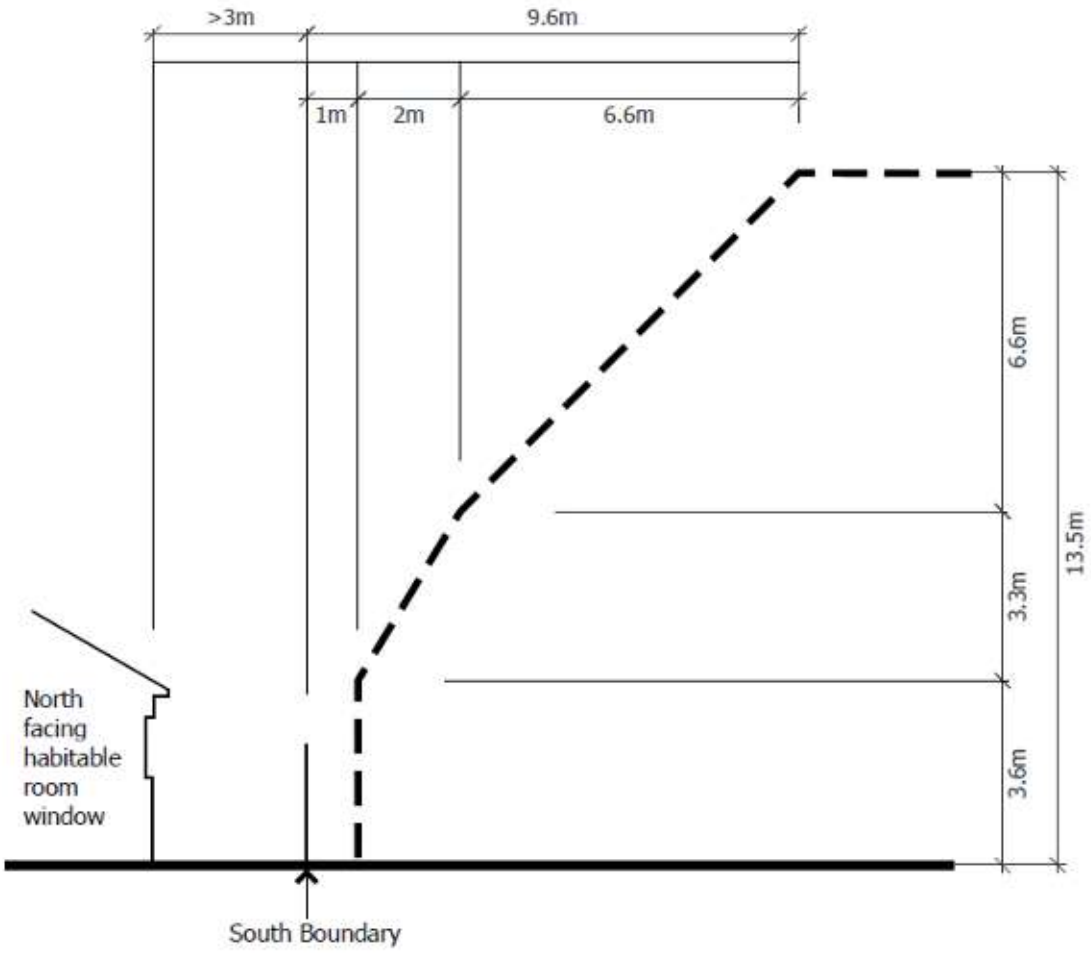
Walls or carports more than 3 metres in height opposite an existing habitable room window should be set back from the window at least 50 per cent of the height of the new wall if the wall is within a 55 degree arc from the centre of the existing window. The arc may be swung to within 35 degrees of the plane of the wall containing the existing window.

Where the existing window is above ground floor level, the wall height is measured from the floor level of the room containing the window.




**North-facing windows**

If a north-facing habitable room window of an existing dwelling or small second dwelling is within 3 metres of a boundary on an abutting lot, a building should be setback from the boundary 1 metre, plus 0.6 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres, for a distance of 3 metres from the edge of each side of the window. A north-facing window is a window with an axis perpendicular to its surface oriented north 20 degrees west to north 30 degrees east.




**Overshadowing open space**

Where sunlight to the secluded private open space of an existing dwelling or small second dwelling is reduced, at least 75 per cent, or 40 square metres with minimum dimension of 3 metres, whichever is the lesser area, of the secluded private open space should receive a minimum of five hours of sunlight between 9 am and 3 pm on 22 September.

If existing sunlight to the secluded private open space of an existing dwelling or small second dwelling is less than the requirements of this standard, the amount of sunlight should not be further reduced.

**Overshadowing solar energy systems**

Buildings should be sited and designed to ensure that the performance of existing rooftop solar energy systems on dwellings or small second dwellings on adjoining lots in a General Residential Zone, Neighbourhood Residential Zone or Township Zone are not unreasonably reduced. The existing rooftop solar energy system must exist at the date the application is lodged.

**Overlooking**

A habitable room window, balcony, terrace, deck or patio should be located and designed to avoid direct views into the secluded private open space of an existing dwelling or small second dwelling within a horizontal distance of 9 metres (measured at ground level) of the window, balcony, terrace, deck or patio. Views should be measured within a 45 degree angle from the plane of the window or perimeter of the balcony, terrace, deck or patio, and from a height of 1.7 metres above floor level.

A habitable room window, balcony, terrace, deck or patio with a direct view into a habitable room window of existing dwelling or small second dwelling within a horizontal distance of 9 metres (measured at ground level) of the window, balcony, terrace, deck or patio should be either:

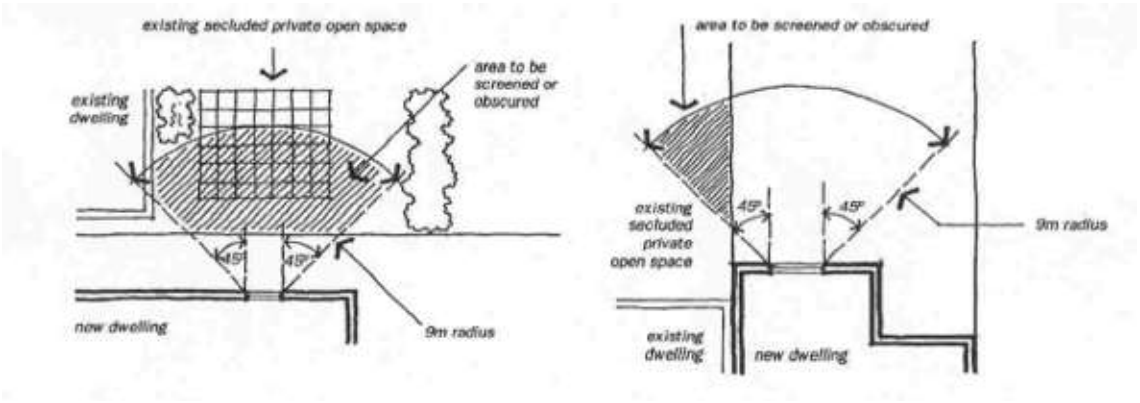
- Offset a minimum of 1.5 metres from the edge of one window to the edge of the other.
- Have sill heights of at least 1.2 metres above floor level.
- Have fixed, obscure glazing in any part of the window below 1.2 metres above floor level.
- Have permanently fixed external screens to at least 1.2 metres above floor level and be no more than 25 per cent transparent.

Obscure glazing in any part of the window below 1.2 metres above floor level may be openable provided that there are no direct views as specified in this standard.

Screens used to obscure a view should be:

- Perforated panels or trellis with a maximum of 25 per cent openings or solid translucent panels.
- Permanent, fixed and durable.
- Designed and coloured to blend in with the development.

This standard does not apply to a new habitable room window, balcony, terrace, deck or patio which faces a property boundary where there is a visual barrier at least 1.8 metres high and the floor level of the habitable room, balcony, terrace, deck or patio is less than 0.8 metres above ground level at the boundary.




### Noise impacts

Noise sources, such as mechanical plant, should not be located near bedrooms of immediately adjacent existing dwellings or small second dwellings.

### Daylight to new windows

A window in a habitable room should be located to face:

- An outdoor space clear to the sky or a light court with a minimum area of 3 square metres and minimum dimension of 1 metre clear to the sky, not including land on an abutting lot, or
- A verandah provided it is open for at least one third of its perimeter, or
- A carport provided it has two or more open sides and is open for at least one third of its perimeter.

### Site coverage

The site area covered by buildings should not exceed 80 percent.

### Access

Access ways should be designed to:

- Provide direct access to on-site designated areas for car and bicycle parking.
- Provide direct access to the building for emergency vehicles.
- Provide access for service and delivery vehicles to on-site loading bays and storage areas.

- Ensure vehicles can enter and exit a development in a forward direction.
- Provide a carriageway width of at least 5.5 metres and an internal radius of at least 4 metres at a change of direction.
- The number and location of access points from streets to the site and the design of crossovers must be to the requirements of the relevant road authority.
- Shared access ways or car parks should be located at least 1.5 metres from the windows of habitable rooms. This setback may be reduced by 1 metre where there is a fence at least 1.5 metres high or where window sills are at least 1.4 metres above the access way.

### Building entry

The main pedestrian entry to a building should:

- Have convenient access from a street.
- Be sheltered from the weather.
- Have convenient access from on-site car parking.
- Have a designated vehicle standing area suitable for use by a community bus and a disabled parking area should be provided in an area that is convenient for the drop-off and pick-up of residents.

### Communal open space

Accessible and useable communal open space should be provided for residents and staff.

### Front fence

A front fence within 3 metres of a street should not exceed:

- 2 metres in height in streets in a Transport Zone 2; and
- 1.5 metres in height on all other streets.

## 53.17-4 Decision guidelines

14/12/2023
VC253

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- The Municipal Planning Strategy and the Planning Policy Framework.
- How the proposed development responds to the site and context description.
- Where the requirements of this clause are not met, the impact on the amenity of the adjoining dwellings or small second dwellings.
- The proposed amenity for future residents of the residential aged care facility.
- The effect of overshadowing on an appropriately located existing rooftop solar energy system on an adjoining lot.

# 53.18 STORMWATER MANAGEMENT IN URBAN DEVELOPMENT

26/10/2018
VC154

## Purpose

To ensure that stormwater in urban development, including retention and reuse, is managed to mitigate the impacts of stormwater on the environment, property and public safety, and to provide cooling, local habitat and amenity benefits.

## 53.18-1 Application

28/10/2022
VC224

This clause applies to an application under a provision of a zone to subdivide land, construct a building, or construct or carry out works, other than the following applications:

- An application under a provision of the Farming Zone, Green Wedge Zone, Green Wedge A Zone, Low Density Residential Zone, Public Conservation and Resource Zone, Transport Zone 2, Transport Zone 3, Rural Activity Zone, Rural Conservation Zone, Rural Living Zone, Urban Floodway Zone or Urban Growth Zone (Part A – No precinct structure plan applies).
- A VicSmart application.
- An application to subdivide land in a residential zone for residential purposes.
- An application to construct or extend a dwelling, fence or residential building in a residential zone.
- An application for development associated with the use of land for agriculture or earth and energy resources industry.
- An application to construct a building or construct or carry out works associated with one dwelling on a lot.
- An application to alter, extend or make structural changes to an existing building provided the gross floor area of the building is not increased by more than 50 square metres.
- An application to construct a building with a gross floor area not exceeding 50 square metres.
- An application to construct or carry out works with an area not exceeding 50 square metres.
- An application to subdivide land into lots each containing an existing building or car parking space.
- An application to construct a building or to construct or carry out works on a lot if all of the following requirements are met:
  - The lot was created in accordance with a permit granted under this planning scheme.
  - The application for that permit was assessed against the requirements of this clause.
- An application for land affected by a development plan or incorporated plan that was approved or incorporated in this planning scheme before the approval date of Amendment VC154.
- An application lodged before the approval date of Amendment VC154.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before the approval date of Amendment VC154.

### Transitional provisions

Clause 53.18 of this scheme, as in force immediately before the approval date of Amendment VC224, continues to apply to:

- An application for a planning permit lodged before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was lodged before that date.

## 53.18-2 Operation

26/10/2018
VC154

The provisions of this clause contain:

- **Objectives**. An objective describes the desired outcome to be achieved in the completed development.
- **Standards**. A standard contains the requirements to meet the objective.

  A standard should normally be met. However, if the responsible authority is satisfied that an application for an alternative solution meets the objective, the alternative solution may be considered.

## 53.18-3 Requirements

26/10/2018
VC154

An application to subdivide land:

- Must meet all of the objectives of Clauses 53.18-4 and 53.18-6.
- Should meet all of the standards of Clauses 53.18-4 and 53.18-6.

An application to construct a building or construct or carry out works:

- Must meet all of the objectives of Clauses 53.18-5 and 53.18-6.
- Should meet all of the standards of Clauses 53.18-5 and 53.18-6.

An application must be accompanied by details of the proposed stormwater management system, including drainage works and retention, detention and discharges of stormwater to the drainage system.

## 53.18-4 Stormwater management objectives for subdivision

04/02/2026
VC265

To minimise damage to properties and inconvenience to the public from stormwater.

To ensure that the street operates adequately during major storm events and provides for public safety.

To minimise increases in stormwater and protect the environmental values and physical characteristics of receiving waters from degradation by stormwater.

To encourage stormwater management that maximises the retention and reuse of stormwater.

To encourage stormwater management that contributes to cooling, local habitat improvements and provision of attractive and enjoyable spaces.

### Standard W1

The stormwater management system should be:

- Designed and managed in accordance with the requirements and to the satisfaction of the relevant drainage authority.
- Designed and managed in accordance with the requirements and to the satisfaction of the water authority where reuse of stormwater is proposed.
- Designed to meet the current best practice performance objectives for stormwater quality as contained in the *Urban stormwater management guidance* (Environment Protection Authority - Publication 1739.1, 2021).
- Designed to ensure that flows downstream of the subdivision site are restricted to pre-development levels unless increased flows are approved by the relevant drainage authority and there are no detrimental downstream impacts.
- Designed to contribute to cooling, improving local habitat and providing attractive and enjoyable spaces.

The stormwater management system should be integrated with the overall development plan including the street and public open space networks and landscape design.

For all storm events up to and including the 20% Average Exceedance Probability (AEP) standard:

- Stormwater flows should be contained within the drainage system to the requirements of the relevant authority.
- Ponding on roads should not occur for longer than 1 hour after the cessation of rainfall.

For storm events greater than 20% AEP and up to and including 1% AEP standard:

- Provision must be made for the safe and effective passage of stormwater flows.
- All new lots should be free from inundation or to a lesser standard of flood protection where agreed by the relevant floodplain management authority.
- Ensure that streets, footpaths and cycle paths that are subject to flooding meet the safety criteria da Vave < 0.35 m2/s (where, da = average depth in metres and Vave = average velocity in metres per second).

The design of the local drainage network should:

- Ensure stormwater is retarded to a standard required by the responsible drainage authority.
- Ensure every lot is provided with drainage to a standard acceptable to the relevant drainage authority. Wherever possible, stormwater should be directed to the front of the lot and discharged into the street drainage system or legal point of discharge.
- Ensure that inlet and outlet structures take into account the effects of obstructions and debris build up. Any surcharge drainage pit should discharge into an overland flow in a safe and predetermined manner.
- Include water sensitive urban design features to manage stormwater in streets and public open space. Where such features are provided, an application must describe maintenance responsibilities, requirements and costs.

Any flood mitigation works must be designed and constructed in accordance with the requirements of the relevant floodplain management authority.

## 53.18-5 Stormwater management objectives for buildings and works

04/02/2026
VC265

To encourage stormwater management that maximises the retention and reuse of stormwater.

To encourage development that reduces the impact of stormwater on the drainage system and filters sediment and waste from stormwater prior to discharge from the site.

To encourage stormwater management that contributes to cooling, local habitat improvements and provision of attractive and enjoyable spaces.

To ensure that industrial and commercial chemical pollutants and other toxicants do not enter the stormwater system.

### Standard W2

The stormwater management system should be designed to:

- Meet the current best practice performance objectives for stormwater quality as contained in the *Urban stormwater management guidance* (Environment Protection Authority - Publication 1739.1, 2021).
- Minimise the impact of chemical pollutants and other toxicants including by, but not limited to, bunding and covering or roofing of storage, loading and work areas.
- Contribute to cooling, improving local habitat and providing attractive and enjoyable spaces.

## 53.18-6 Site management objectives

26/10/2018
VC154

To protect drainage infrastructure and receiving waters from sedimentation and contamination.

To protect the site and surrounding area from environmental degradation prior to and during construction of subdivision works.

### Standard W3

An application should describe how the site will be managed prior to and during the construction period and may set out requirements for managing:

- Erosion and sediment.
- Stormwater.
- Litter, concrete and other construction wastes.
- Chemical contamination.

## 53.18-7 Decision guidelines

26/10/2018
VC154

Before deciding on an application, in addition to the decision guidelines in Clause 65, the responsible authority must consider, as appropriate:

- Any relevant water and stormwater management objective, policy or statement set out in this planning scheme.
- The capacity of the site to incorporate stormwater retention and reuse and other water sensitive urban design features.
- Whether the development has utilised alternative water sources and/or incorporated water sensitive urban design.
- Whether stormwater discharge from the site will adversely affect water quality entering the drainage system.
- The capacity of the drainage network to accommodate additional stormwater.
- Whether the stormwater treatment areas can be effectively maintained.
- Whether the owner has entered into an agreement to contribute to off-site stormwater management in lieu of providing an on-site stormwater management system.

## 53.19 NON-GOVERNMENT SCHOOLS

03/12/2019
VC165

### Purpose

To facilitate new non-government schools.

To facilitate upgrades and extensions to existing non-government schools.

## 53.19-1 Application

04/12/2020
VC180

This clause applies to an application under any provision of this scheme, other than a VicSmart application, to use or develop land for a primary school, secondary school, or education centre that is ancillary to, carried out in conjunction with, and on the same land or contiguous land in the same ownership as, a primary school or secondary school.

## 53.19-2 Exemption from review

04/12/2020
VC180

An application to which Clause 53.19 applies is exempt from the decision requirements of section 64(1), (2), and (3), and the review rights of section 82(1) of the Act.

## 53.19-3 Transitional provisions

04/12/2020
VC180

Clause 53.19 of this scheme, as in force immediately before the approval date of Amendment VC180, continues to apply to:

- An application for a planning permit made before that date.
- An application for an amendment of a permit under section 72 of the Act, if the original permit application was made before that date.

# 53.20 HOUSING BY OR ON BEHALF OF HOMES VICTORIA

14/12/2023
VC253

## Purpose

To facilitate the development of well-designed social housing and affordable housing to meet existing and future needs.

To increase the social housing and affordable housing stock in Victoria.

To ensure the development of housing by or on behalf of the Chief Executive Officer, Homes Victoria does not unreasonably impact on the amenity of adjoining dwellings or small second dwellings.

## 53.20-1 Application

04/02/2026
VC265

This clause applies to an application under a provision of a residential zone (other than the Low Density Residential Zone) to construct or extend a dwelling, or to construct or extend a front fence, if the application is made by or on behalf of the Chief Executive Officer, Homes Victoria.

This clause does not apply to an application that meets the requirements of clause 53.23-1 or clause 53.24-1.

In this clause, ***Chief Executive Officer, Homes Victoria*** means 'Chief Executive Officer, Homes Victoria' as defined in the *Housing Act 1983* and the body corporate established under the *Housing Act 1983*.

## 53.20-2 Operation

14/12/2023
VC253

The provisions of this clause prevail over any inconsistent provision in this planning scheme.

An application to construct or extend a dwelling, or to construct or extend a front fence, should meet the standards in Clause 53.20-6.

An application to construct or extend an apartment development, or to construct or extend a dwelling in or forming part of an apartment development, should meet the standards in Clause 53.20-6 and Clause 53.20-7 except for the standard in:

- Clause 53.20-6.5.
- Clause 53.20-6.10 for an apartment development of 5 or more storeys.

The standards in Clause 53.20-6 and Clause 53.20-7 should normally be met. However, an alternative design solution may be considered if the responsible authority is satisfied that the proposal does not unreasonably impact on the amenity of an existing dwelling or small second dwelling on the site or on an adjacent site.

## 53.20-3 Exemption from planning scheme provisions

04/02/2026
VC265

The following provisions of this planning scheme do not apply:

- The Municipal Planning Strategy or Municipal Strategic Statement and the Planning Policy Framework.
- An application requirement or decision guideline of a zone.
- A requirement to meet Clauses 54, 55, 57 and 58.
- A schedule to a zone except for a specified building height requirement.
- Clauses 52.06 and 65.

## 53.20-4 Exemption from notice and review

20/12/2021
VC207

An application under any provision of this scheme is exempt from the notice requirements of section 52(1) (a), (b) and (d), the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

## 53.20-5 Application requirements

20/03/2023
VC229

An application must be accompanied by the following information, as appropriate:

- Where the application is made on behalf of the Chief Executive Officer, Homes Victoria, a letter from Homes Victoria confirming that the application is made on behalf of the Chief Executive Officer, Homes Victoria.
- An urban context report. The urban context report may use a site plan, photographs or other techniques and must include an accurate description of:
  - Lot boundaries, site shape, size, orientation and easements on the subject site.
  - Levels and contours of the site and the difference in levels between the site and adjoining properties.
  - The location and height of existing buildings on the site and adjoining properties.
  - The use of adjoining buildings.
  - The location of secluded private open space of adjoining properties and the location of trees, fences and other landscape elements.
  - Solar access to the site and to adjoining properties.
  - Street frontage features such as poles, street lights, street trees and kerb crossovers.
  - The location of local shops, public transport services and public open spaces within walking distance.
  - Movement systems through and around the site.
  - Any other notable feature or characteristic of the site.
  - An assessment of the characteristics of the area including:
    - Any environmental features such as vegetation, topography and significant views.
    - The pattern of subdivision.
    - Street design and landscape.
    - The pattern of development.
    - Building form, scale and rhythm.
    - Connection to the public realm.
    - Architectural style, building details and materials.
    - Significant off-site noise sources.
    - For an apartment application, the relevant NatHERS climate zones.
    - Social and economic activity.
    - Any other notable or cultural characteristics of the area.
- A design response. The design response must explain how the proposed design:
  - Responds to any relevant planning provision.
  - Derives from and responds to the urban context report.

- The design response must include correctly proportioned street elevations or photographs showing the development in the context of adjacent buildings.

## 53.20-6 Development standards

04/02/2026
VC265

### 53.20-6.1 Infrastructure

Development should be connected to reticulated services, including reticulated sewerage, drainage and electricity.

Development should not unreasonably exceed the capacity of utility services and infrastructure, including reticulated services and roads.

In areas where utility services or infrastructure have little or no spare capacity, developments should provide for the upgrading of or mitigation of the impact on services or infrastructure.

### 53.20-6.2 Street setback

Walls of buildings should be set back from streets at least the distance specified in Table 1. Porches, pergolas and verandahs that are less than 3.6 metres high and eaves may encroach not more than 2.5 metres into the setbacks of this standard.

**Table 1 Street setback**

| Development context | Minimum setback from front street (metres) | Minimum setback from a side street (metres) |
|---|---|---|
| There is an existing building on both the abutting allotments facing the same street, and the site is not on a corner. | The same distance as the setback of the front wall of either existing building on the abutting allotments facing the front street or 7 metres, whichever is the lesser. | Not applicable. |
| There is an existing building on one abutting allotment facing the same street and no existing building on the other abutting allotment facing the same street, and the site is not on a corner. | The same distance as the setback of the front wall of the existing building on the abutting allotment facing the front street or 7 metres, whichever is the lesser. | Not applicable. |
| There is no existing building on either of the abutting allotments facing the same street, and the site is not on a corner. | 6 metres for streets in a Transport Zone 2 and 4 metres for other streets. | Not applicable. |
| The site is on a corner. | If there is a building on the abutting allotment facing the front street, the same distance as the setback of the front wall of the existing building on the abutting allotment facing the front street or 7 metres, whichever is the lesser. | Front walls of new development fronting the side street of a corner site should be setback at least the same distance as the setback of the front wall of any existing building on the abutting allotment facing the side street or 3 metres, whichever is the lesser. |

| Development context | Minimum setback from front street (metres) | Minimum setback from a side street (metres) |
|---|---|---|
| | If there is no building on the abutting allotment facing the front street, 6 metres for streets in a Transport Zone 2, and 4 metres for other streets. | Side walls of new development on a corner site should be setback the same distance as the setback of the front wall of any existing building on the abutting allotment facing the side street or 2 metres, whichever is the lesser. |

### 53.20-6.3 Site coverage

The site area covered by buildings should not exceed 60 per cent.

### 53.20-6.4 Permeability

The site area covered by the pervious surfaces should be at least 20 percent of the site.

### 53.20-6.5 Energy efficiency

Buildings should be:

- Oriented to make appropriate use of solar energy.
- Sited and designed to ensure that the energy efficiency of existing dwellings or small second dwellings on adjoining lots is not unreasonably reduced.
- Sited and designed to ensure that the performance of existing roof top solar energy systems on dwellings or small second dwellings on adjoining lots in a General Residential Zone, Neighbourhood Residential Zone or Township Zone are not unreasonably reduced. The existing roof top solar energy system must exist at the date the application is lodged.

Living areas and private open space should be located on the north side of the development, if practicable.

Developments should be designed so that solar access to north-facing windows is maximised.

### 53.20-6.6 Safety

Entrances to dwellings should not be obscured or isolated from the street and internal accessways.

Planting which creates unsafe spaces along streets and accessways should be avoided.

Developments should be designed to provide good lighting, visibility and surveillance of car parks and internal accessways.

Private spaces within developments should be protected from inappropriate use as public thoroughfares.

### 53.20-6.7 Access

Vehicle crossovers should be minimised.

Car parking entries should be consolidated, minimised in size, integrated with the façade and where practicable located at the side or rear of the building.

Pedestrian and cyclist access should be clearly delineated from vehicle access.

The location of crossovers should maximise pedestrian safety and the retention of on-street car parking spaces and street trees.

Developments must provide for access for service, emergency and delivery vehicles.

### 53.20-6.8 Parking location

Car parking facilities should:

- Be reasonably close and convenient to dwellings.
- Be secure.
- Be well ventilated if enclosed.

Shared accessways or car parks of other dwellings should be located at least 1.5 metres from the windows of habitable rooms. This setback may be reduced to 1 metre where there is a fence at least 1.5 metres high or where window sills are at least 1.4 metres above the accessway.

### 53.20-6.9 Car parking

A minimum 0.6 car spaces should be provided to each dwelling. Car spaces may be covered or uncovered.

If in calculating the number of car parking spaces the result is not a whole number, the required number of car parking spaces is to be rounded down to the nearest whole number greater than 1.

#### Accessway design

Accessways must:

- Be at least 3 metres wide.
- Have an internal radius of at least 4 metres at changes of direction or intersection or be at least 4.2 metres wide.
- Allow vehicles parked in the last space of a dead-end accessway in public carparks to exit in a forward direction with one manoeuvre.
- Provide at least 2.1 metres headroom beneath overhead obstructions, calculated for a vehicle with a wheel base of 2.8 metres.
- If the accessway serves four or more car spaces or connects to a road in a Transport Zone 2 or a Transport Zone 3, the accessway must be designed so that cars can exit the site in a forward direction.
- Provide a passing area at the entrance at least 6.1 metres wide and 7 metres long if the accessway serves ten or more carparking spaces and is either more than 50 metres long or connects to a road in a Transport Zone 2 or a Transport Zone 3.
- Have a corner splay or area at least 50 percent clear of visual obstructions extending at least 2 metres along the frontage road from the edge of an exit lane and 2.5 metres along the exit lane from the frontage, to provide a clear view of pedestrians on the footpath of the frontage road. The area clear of visual obstructions may include an adjacent entry or exit lane where more than one lane is provided, or adjacent landscaped areas, provided the landscaping in those areas is less than 900mm in height.

#### Car parking spaces

Car parking spaces and accessways must have the minimum dimensions as outlined in Table 2.

**Table 2: Minimum dimensions of car parking spaces and accessways**

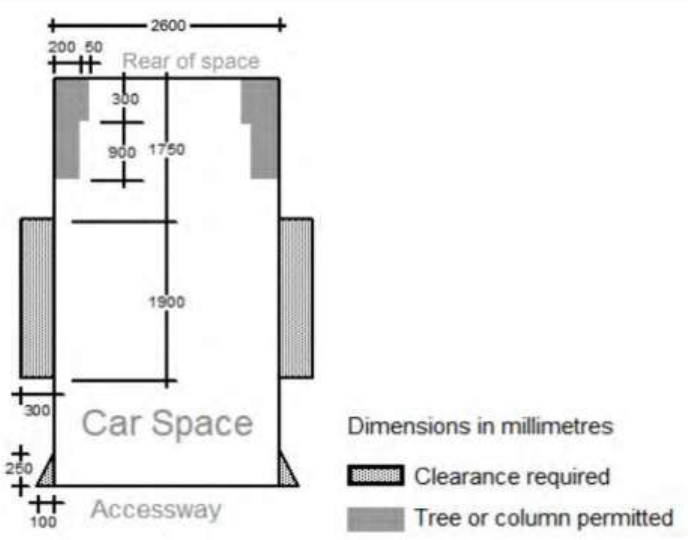
| Angle of car parking spaces to access way | Accessway width | Car space width | Car space length |
|---|---|---|---|
| **Parallel** | 3.6 m | 2.3 m | 6.7 m |
| **45º** | 3.5 m | 2.6 m | 4.9 m |
| **60º** | 4.9 m | 2.6 m | 4.9 m |
| **90º** | 6.4 m | 2.6 m | 4.9 m |
| | 5.8 m | 2.8 m | 4.9 m |
| | 5.2 m | 3.0 m | 4.9 m |
| | 4.8 m | 3.2 m | 4.9 m |

*Note: Some dimensions in Table 2 vary from those shown in the Australian Standard AS2890.1-2004 (off street). The dimensions shown in Table 2 allocate more space to aisle widths and less to marked spaces to provide improved operation and access. The dimensions in Table 2 are to be used in preference to the Australian Standard AS2890.1-2004 (off street) except for disabled spaces which must achieve Australian Standard AS2890.6-2009 (disabled).*

A wall, fence, column, tree, tree guard or any other structure that abuts a car space must not encroach into the area marked 'clearance required' on Diagram 1, other than:

- A column, tree or tree guard, which may project into a space if it is within the area marked 'tree or column permitted' on Diagram 1.
- A structure, which may project into the space if it is at least 2.1 metres above the space.

**Diagram 1 Clearance to car parking spaces**




Car spaces in garages or carports must be at least 6 metres long and 3.5 metres wide for a single space and 5.5 metres wide for a double space measured inside the garage or carport.

Where parking spaces are provided in tandem (one space behind the other) an additional 500mm in length must be provided between each space.

Disabled car parking spaces must be designed in accordance with Australian Standard AS2890.6-2009 (disabled) and the Building Code of Australia. Disabled carparking spaces may encroach into an accessway width specified in Table 2 by 500mm.

### Gradients

Accessway grades must not be steeper than 1:10 (10 percent) within 5 metres of the frontage to ensure safety for pedestrians and vehicles. The design must have regard to the wheel base of the vehicle being designed for; pedestrian and vehicular traffic volumes; the nature of the carpark; and the slope and configuration of the vehicle crossover at the site frontage. This does not apply to accessways serving three dwellings or less.

Ramps (except within 5 metres of the frontage) must have the maximum grades as outlined in Table 3 and be designed for vehicles travelling in a forward direction.

**Table 3: Ramp gradients**

| Type of car park | Length of ramp | Maximum grade |
|---|---|---|
| **Public car parks** | 20 metres or less | 1:5 (20%) |
| | longer than 20 metres | 1:6 (16.7%) |
| **Private or residential car parks** | 20 metres or less | 1:4 (25%) |
| | longer than 20 metres | 1:5 (20%) |

Where the difference in grade between two sections of ramp or floor is greater that 1:8 (12.5 per cent) for a summit grade change, or greater than 1:6.7 (15 percent) for a sag grade change, the ramp must include a transition section of at least 2 metres to prevent vehicles scraping or bottoming.

Plans must include an assessment of grade changes of greater than 1:5.6 (18 percent) or less than 3 metres apart for clearances, to the satisfaction of the responsible authority.

### Mechanical parking

Mechanical parking may be used to meet the carparking requirement provided:

- At least 25 percent of the mechanical carparking spaces can accommodate a vehicle height of at least1.8 metres.
- Carparking spaces that require the operation of the system are not allocated to visitors unless used in a valet parking situation.
- The design and operation is to the satisfaction of the responsible authority.

### Urban design

Ground level carparking, garage doors and accessways must not visually dominate public space.

Carparking within buildings (including visible portions of partly submerged basements) must be screened or obscured where possible, including through the use of occupied tenancies, landscaping, architectural treatments and art works.

Design of carparks must take into account their use as entry points to the site.

Design of new internal streets in developments must maximise on street parking opportunities.

### Safety

Car parking must be well lit and clearly signed.

The design of carparks must maximise natural surveillance and pedestrian visibility from adjacent buildings.

Pedestrian access to carparking areas from the street must be convenient.

Pedestrian routes through car parking areas and building entries and other destination points must be clearly marked and separated from traffic in high activity parking areas.

### Landscaping

The layout of car parking areas must provide for water sensitive urban design treatment and landscaping.

Landscaping and trees must be planted to provide shade and shelter, soften the appearance of ground level car parking and aid in the clear identification of pedestrian paths.

Ground level carparking spaces must include trees planted with flush grilles. Spacing of trees must be determined having regard to the expected size of the selected species at maturity.

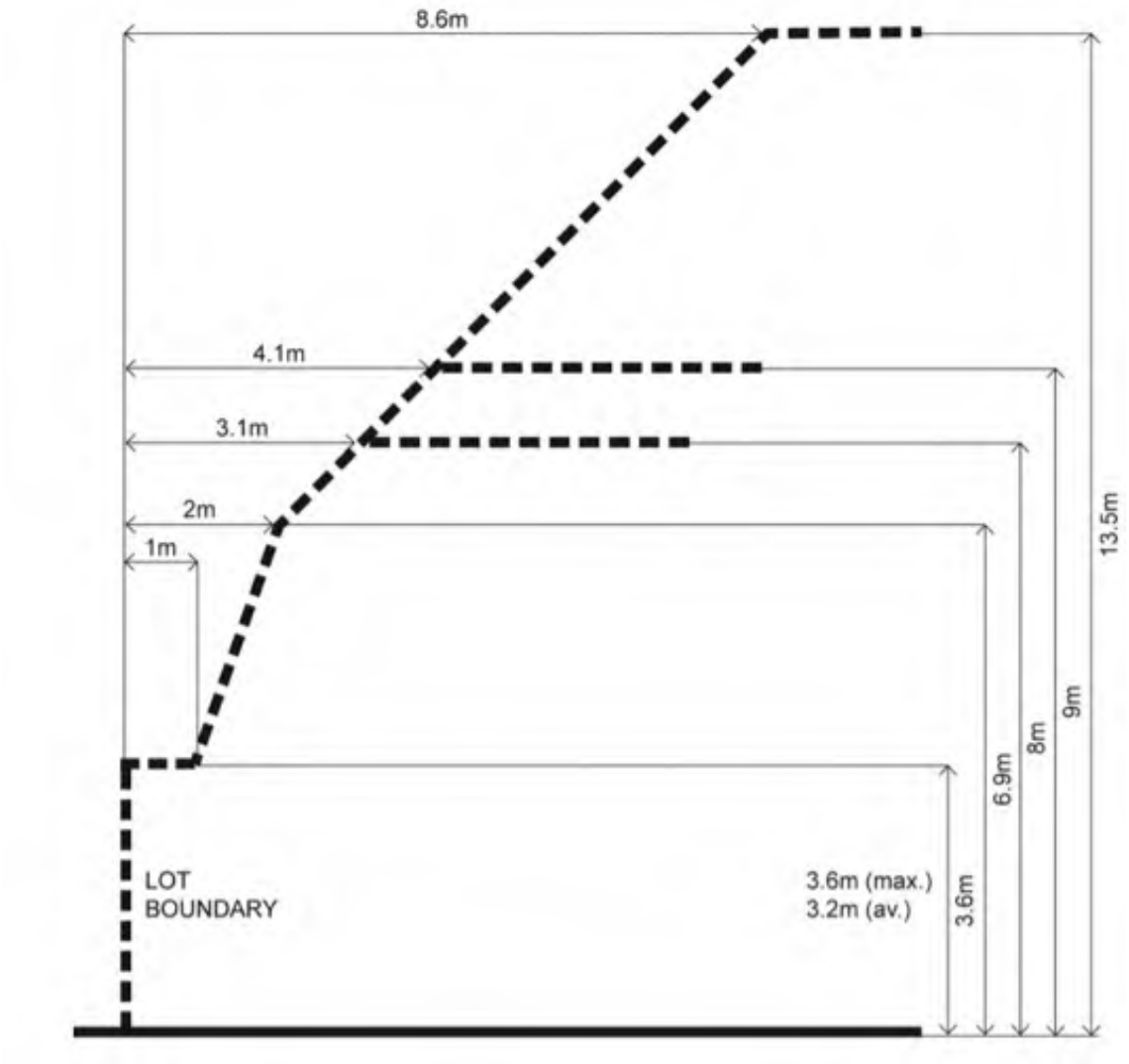
## 53.20-6.10 Side and rear setbacks

A new building not on or within 200mm of a boundary to a residential zone should be set back from side or rear boundaries 1 metre, plus 0.3 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres. Diagram 2 details the standard.

Sunblinds, verandahs, porches, eaves, fascias, gutters, masonry chimneys, flues, pipes, domestic fuel or water tanks, and heating or cooling equipment or other services may encroach not more than 0.5 metres into the setbacks of this standard.

Landings having an area of not more than 2 square metres and less than 1 metre high, stairways, ramps, pergolas, shade sails and carports may encroach into the setbacks of this standard.

**Diagram 2 Side and rear setbacks**




## 53.20-6.11 Walls on boundaries

A new wall constructed on or within 200mm of a side or rear boundary of a lot or a carport constructed on or within 1 metre of a side or rear boundary of lot should not abut the boundary for a length of more than:

- 10 metres plus 25 per cent of the remaining length of the boundary of an adjoining lot, or
- Where there are existing or simultaneously constructed walls or carports abutting the boundary on an abutting lot, the length of the existing or simultaneously constructed walls or carports whichever is the greater.

A new wall or carport may fully abut a side or rear boundary where slope and retaining walls or fences would result in the effective height of the wall or carport being less than 2 metres on the abutting property boundary.

A building on a boundary includes a building set back up to 200mm from a boundary.

The height of a new wall constructed on or within 200mm of a side or rear boundary or a carport constructed on or within 1 metre of a side or rear boundary should not exceed an average of 3.2 metres with no part higher than 3.6 metres unless abutting a higher existing or simultaneously constructed wall.

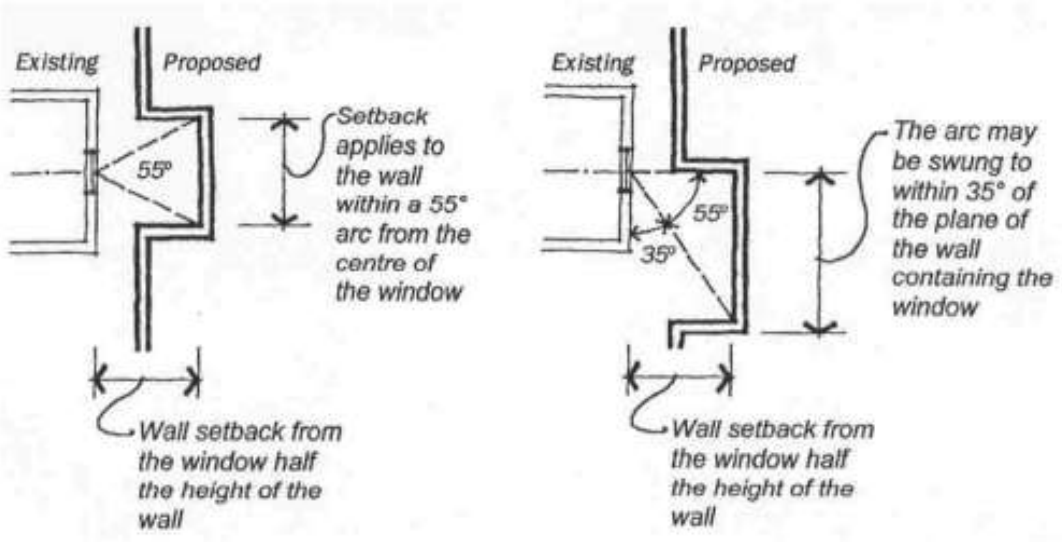
### 53.20-6.12 Daylight to existing windows

Buildings opposite an existing habitable room window should provide for a light court to the existing window that has a minimum area of 3 square metres and minimum dimension of 1 metre clear to the sky. The calculation of the area may include land on the abutting lot.

Walls or carports more than 3 metres in height opposite an existing habitable room window should be set back from the window at least 50 per cent of the height of the new wall if the wall is within a 55 degree arc from the centre of the existing window. The arc may be swung to within 35 degrees of the plane of the wall containing the existing window.

Where the existing window is above ground floor level, the wall height is measured from the floor level of the room containing the window.

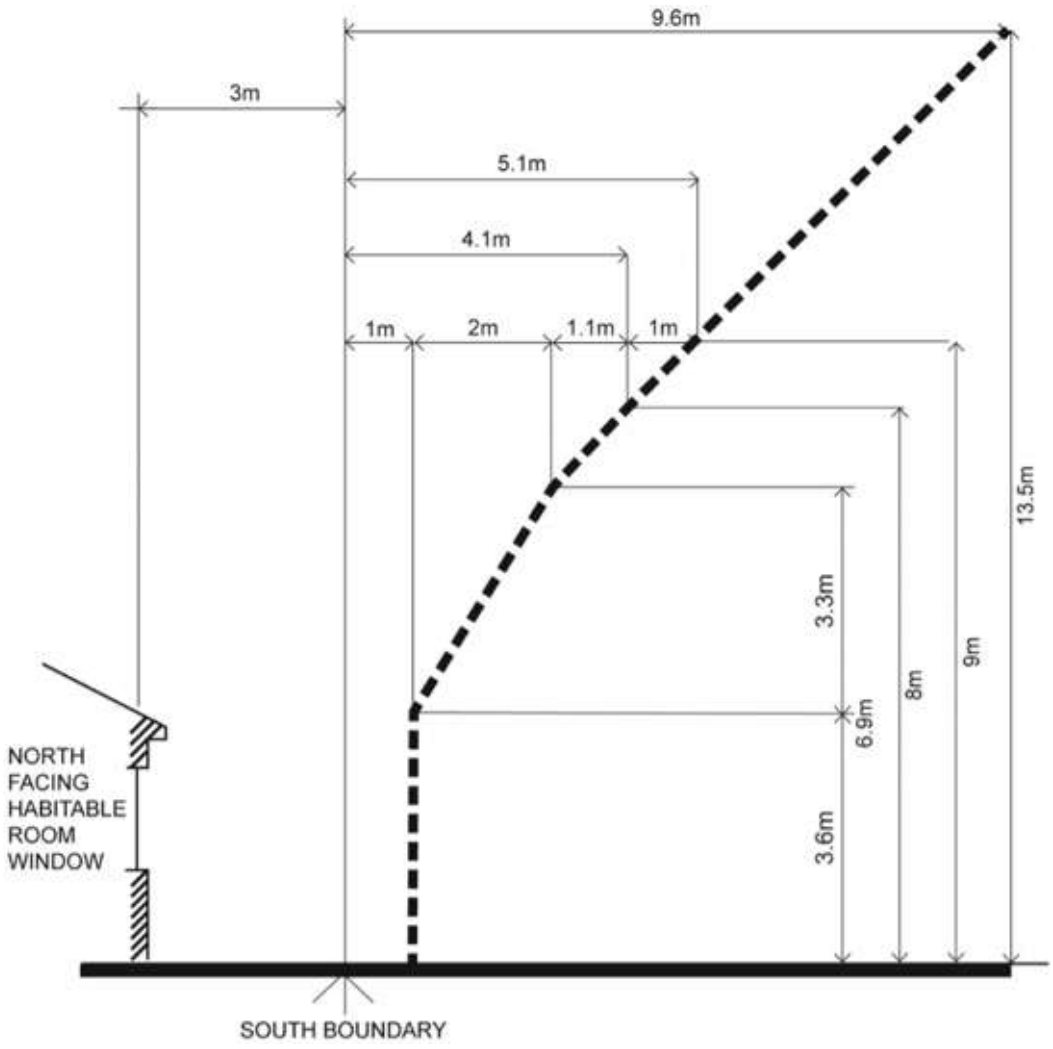
**Diagram 3 Daylight to existing windows**




### 53.20-6.13 North-facing windows

If a north-facing habitable room window of an existing dwelling or a small second dwelling is within 3 metres of a boundary on an abutting lot, a building should be setback from the boundary 1 metre, plus 0.6 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres, for a distance of 3 metres from the edge of each side of the window. A north-facing window is a window with an axis perpendicular to its surface oriented north 20 degrees west to north 30 degrees east.

**Diagram 4 North-facing windows**




## 53.20-6.14 Overshadowing open space

Where sunlight to the secluded private open space of an existing dwelling or small second dwelling is reduced, at least 75 per cent, or 40 square metres with minimum dimension of 3 metres, whichever is the lesser area, of the secluded private open space should receive a minimum of five hours of sunlight between 9 am and 3 pm on 22 September.

If existing sunlight to the secluded private open space of an existing dwelling or small second dwelling is less than the requirements of this standard, the amount of sunlight should not be further reduced.

## 53.20-6.15 Overlooking

A habitable room window, balcony, terrace, deck or patio should be located and designed to avoid direct views into the secluded private open space of an existing dwelling or small second dwelling within a horizontal distance of 9 metres (measured at ground level) of the window, balcony, terrace, deck or patio. Views should be measured within a 45 degree angle from the plane of the window or perimeter of the balcony, terrace, deck or patio, and from a height of 1.7 metres above floor level.

A habitable room window, balcony, terrace, deck or patio with a direct view into a habitable room window of an existing dwelling or small second dwelling within a horizontal distance of 9 metres (measured at ground level) of the window, balcony, terrace, deck or patio should be either:

- Offset a minimum of 1.5 metres from the edge of one window to the edge of the other.
- Have sill heights of at least 1.7 metres above floor level.
- Have fixed, obscure glazing in any part of the window below 1.7 metre above floor level.
- Have permanently fixed external screens to at least 1.7 metres above floor level and be no more than 25 per cent transparent.

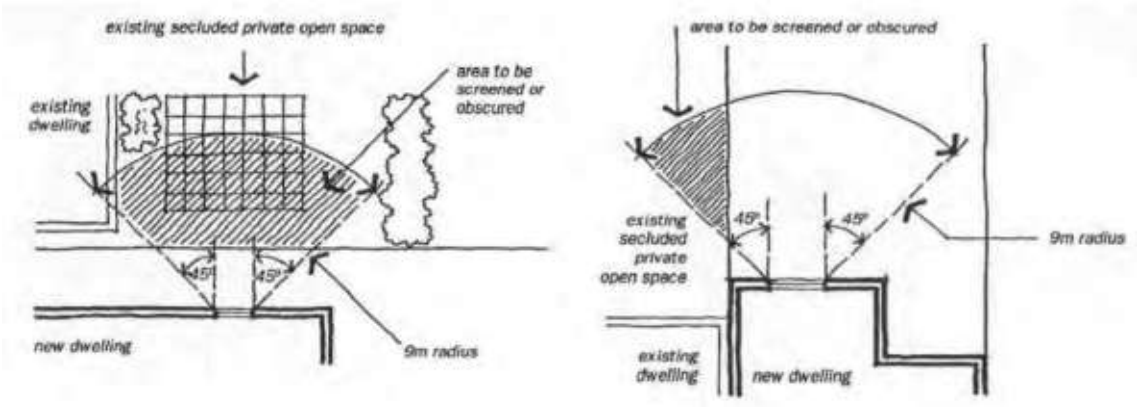
Obscure glazing in any part of the window below 1.7 metres above floor level may be openable provided that there are no direct views as specified in this standard.

Screens used to obscure a view should be:

- Perforated panels or trellis with a maximum of 25 per cent openings or solid translucent panels.
- Permanent, fixed and durable.
- Designed and coloured to blend in with the development.

This standard does not apply to a new habitable room window, balcony, terrace, deck or patio which faces a property boundary where there is a visual barrier at least 1.8 metres high and the floor level of the habitable room, balcony, terrace, deck or patio is less than 0.8 metres above ground level at the boundary.

**Diagram 5 Overlooking open space**




### 53.20-6.16 Noise impacts

Noise sources, such as mechanical plant, should not be located near bedrooms of immediately adjacent existing dwellings or small second dwellings.

Noise sensitive rooms and secluded private open spaces of new dwellings and residential buildings should take account of noise sources on immediately adjacent properties.

Dwellings and residential buildings close to busy roads, railway lines or industry should be designed to limit noise levels in habitable rooms.

### 53.20-6.17 Daylight to new windows

A window in a habitable room should be located to face:

- An outdoor space clear to the sky or a light court with a minimum area of 3 square metres and minimum dimension of 1 metre clear to the sky, not including land on an abutting lot, or
- A verandah provided it is open for at least one third of its perimeter, or
- A carport provided it has two or more open sides and is open for at least one third of its perimeter.

### 53.20-6.18 Private open space

A dwelling (other than an apartment) should have private open space consisting of:

- An area of secluded private open space with a minimum area of 25 square metres, a minimum dimension of 3 metres and convenient access from a living room; or
- A balcony of 8 square metres with a minimum width of 1.6 metres and convenient access from a living room; or
- A roof-top area of 10 square metres with a minimum width of 2 metres and convenient access from a living room.

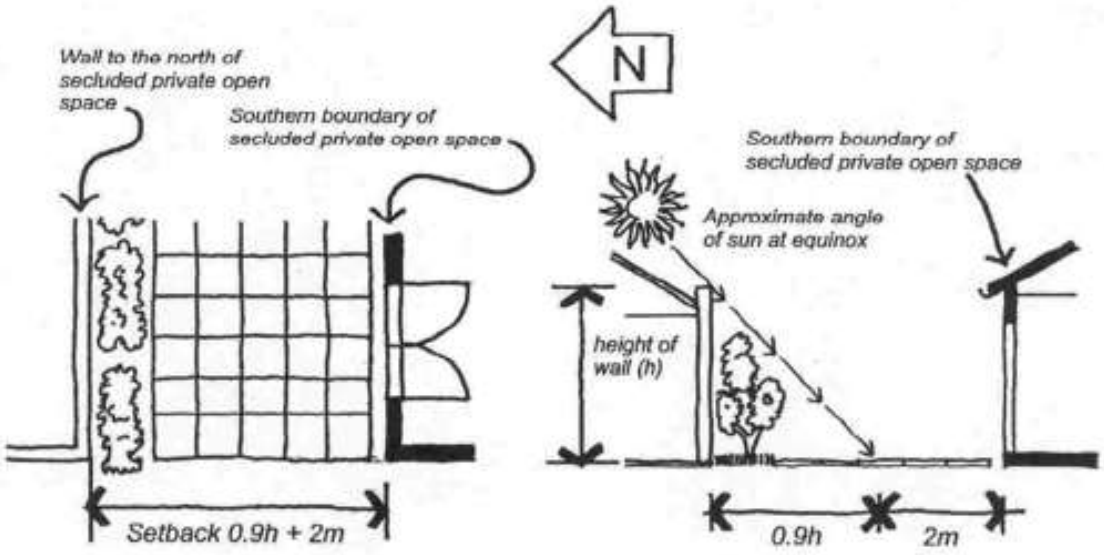
Secluded private open space may be located in the front setback if it is no more than 30% of the street frontage.

### 53.20-6.19 Solar access to open space

The private open space should be located on the north side of the dwelling if appropriate.

The southern boundary of secluded private open space should be set back from any wall on the north of the space at least (2 + 0.9h) metres, where 'h' is the height of the wall.

**Diagram 6 Solar access to open space**




### 53.20-6.20 Storage

Each dwelling should have convenient access to at least 6 cubic metres of externally accessible, secure storage space.

### 53.20-6.21 Front fence

A front fence within 3 metres of a street should not exceed a maximum height of:

- 2 metres for streets in a Transport Zone 2.
- 1.5 metres in other streets or where secluded private open space is proposed within the front setback, the front fence may reach a height of up to 1.8 metres for not more than 30% of the length of the boundary.

### 53.20-6.22 Common property

Developments should clearly delineate public, communal and private areas.

Common property, where provided, should be functional and capable of efficient management.

### 53.20-6.23 Site services

Development should provide space (including easements where required) for site services to be installed and maintained efficiently and economically.

Meters and utility services should be designed as an integrated component of the building or landscape.

Bin and recycling enclosures, mailboxes and other site facilities should be adequate in size, durable, waterproof and blend in with the development.

Mailboxes and other site facilities should be adequate in size, durable, weather-protected, located for convenient access and integrated into the overall design of the development.

## 53.20-7 Development standards for apartments

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### 53.20-7.1 Energy efficiency

Buildings should be:

- Oriented to make appropriate use of solar energy.
- Sited and designed to ensure that the energy efficiency of existing dwellings or small second dwellings on adjoining lots is not unreasonably reduced.
- Sited and designed to ensure that the performance of existing rooftop solar energy systems on dwellings or small second dwellings on adjoining lots in a General Residential Zone, Neighbourhood Residential Zone or Township Zone are not unreasonably reduced. The existing rooftop solar energy system must exist at the date the application is lodged.

Living areas and private open space should be located on the north side of the development, if practicable.

Developments should be designed so that solar access to north-facing windows is optimised.

Dwellings located in a climate zone identified in Table 4 should not exceed the maximum NatHERS annual cooling load.

**Table 4 Cooling load**

| NatHERS climate zone | NatHERS maximum cooling load<br>MJ/M$^2$ per annum |
|---|---|
| Climate zone 21 Melbourne | 30 |
| Climate zone 22 East Sale | 22 |
| Climate zone 27 Mildura | 69 |
| Climate zone 60 Tullamarine | 22 |
| Climate zone 62 Moorabbin | 21 |
| Climate zone 63 Warrnambool | 21 |

| NatHERS climate zone | NatHERS maximum cooling load<br>MJ/M$^2$ per annum |
|---|---|
| Climate zone 64 Cape Otway | 19 |
| Climate zone 66 Ballarat | 23 |

*Note: Refer to NatHERS zone map, Nationwide House Energy Rating Scheme (Commonwealth Department of Environment and Energy).*

### 53.20-7.2 Communal open space

A development of 10 or more dwellings should provide a minimum area of communal outdoor open space of 30 square metres.

If a development contains 13 or more dwellings, the development should also provide an additional minimum area of communal open space of 2.5 square metres per dwelling or 220 square metres, whichever is the lesser. This additional area may be indoors or outdoors and consist of multiple separate areas of communal open space.

Each area of communal open space should be:

- Accessible to all residents.
- A useable size, shape and dimension.
- Capable of efficient management.
- Located to:
  - Provide passive surveillance opportunities, where appropriate.
  - Provide outlook for as many dwellings as practicable.
  - Avoid overlooking into habitable rooms and private open space of new dwellings.
  - Minimise noise impacts to new and existing dwellings or small second dwellings.
- Any area of communal outdoor open space should be landscaped and include canopy cover and trees.

### 53.20-7.3 Solar access to communal outdoor open space

The communal outdoor open space should be located on the north side of a building, if appropriate.

At least 50 per cent or 125 square metres, whichever is the lesser, of the primary communal outdoor open space should receive a minimum of two hours of sunlight between 9am and 3pm on 21 June.

### 53.20-7.4 Landscaping

Development should retain existing trees and canopy cover.

Development should provide for the replacement of any significant trees that have been removed in the 12 months prior to the application being made.

Development should:

- Provide the canopy cover and deep soil areas specified in Table 5. Existing trees can be used to meet the canopy cover requirements of Table 5.
- Provide canopy cover through canopy trees that are:

  - Located in an area of deep soil specified in Table 6. Where deep soil cannot be provided trees should be provided in planters specified in Table 6.
  - Consistent with the canopy diameter and height at maturity specified in Table 7.
  - Located in communal outdoor open space or common areas or street frontages.
- Comprise smaller trees, shrubs and ground cover, including flowering native species.
- Include landscaping, such as climbing plants or smaller plants in planters, in the street frontage and in outdoor areas, including communal outdoor open space.
- Shade outdoor areas exposed to summer sun through landscaping or shade structures, and use paving and surface materials that lower surface temperatures and reduce heat absorption.
- Be supported by irrigation systems which utilise alternative water sources such as rainwater, stormwater and recycled water.
- Protect any predominant landscape features of the area.
- Take into account the soil type and drainage patterns of the site.
- Provide a safe, attractive and functional environment for residents.
- Specify landscape themes, vegetation (location and species), irrigation systems, paving and lighting.

**Table 5 Canopy cover and deep soil requirements**

| Site area | Canopy cover | Deep soil |
|---|---|---|
| 1000 square metres or less | 5% of site area<br>Include at least 1 Type A tree | 5% of site area or 12 square metres whichever is the greater |
| 1001 – 1500 square metres | 50 square metres plus 20% of site area above 1,000 square metres<br>Include at least 1 Type B tree | 7.5% of site area |
| 1501 – 2500 square metres | 150 square metres plus 20% of site area above 1,500 square metres<br>Include at least 2 Type B trees or 1 Type C tree | 10% of site area |
| 2501 square metres or more | 350 square metres plus 20% of site area above 2,500 square metres<br>Include at least 2 Type B trees or 1 Type C tree | 15% of site area |

**Table 6 Soil requirements for trees**

| Tree type | Tree in deep soil | Tree in planter | |
|---|---|---|---|
| | Area of deep soil | Volume of planter soil | Depth of planter soil |

| Tree type | Tree in deep soil | Tree in planter | |
|---|---|---|---|
| A | 12 square metres (min. plan dimension 2.5 metres) | 12 cubic metres (min. plan dimension of 2.5 metres) | 0.8 metre |
| B | 49 square metres (min. plan dimension 4.5 metres) | 28 cubic metres (min. plan dimension of 4.5 metres) | 1 metre |
| C | 121 square metres (min. plan dimension 6.5 metres) | 64 cubic metres (min. plan dimension of 6.5 metres) | 1.5 metres |

*Note: Where multiple trees share the same section of soil the total required amount of soil can be reduced by 5% for every additional tree, up to a maximum reduction of 25%*

**Table 7 Tree types**

| Tree type | Minimum canopy diameter at maturity | Minimum height at maturity |
|---|---|---|
| A | 4 metres | 6 metres |
| B | 8 metres | 8 metres |
| C | 12 metres | 12 metres |

### 53.20-7.5 Integrated water and stormwater management

Buildings should be connected to a non-potable dual pipe reticulated water supply, where available from the water authority.

The stormwater management system should be:

- Designed to meet the current best practice performance objectives for stormwater quality as contained in the *Urban stormwater management guidance* (Environment Protection Authority - Publication 1739.1, 2021).
- Designed to maximise infiltration of stormwater, water and drainage of residual flows into permeable surfaces, tree pits and treatment areas.

### 53.20-7.6 Building setback

The built form of the development should respect the existing urban context and respond to the features of the site.

Buildings should be set back from side and rear boundaries, and other buildings within the site to:

- Ensure adequate daylight into new habitable room windows.
- Avoid direct views into habitable room windows and private open space of new and existing dwellings or small second dwellings. Developments should avoid relying on screening to reduce views.
- Provide an outlook from dwellings that creates a reasonable visual connection to the external environment.

### 53.20-7.7 Noise impacts

Noise sources, such as mechanical plants should not be located near bedrooms of immediately adjacent existing dwellings or small second dwellings.

The layout of new dwellings and buildings should minimise noise transmission within the site.

Noise sensitive rooms (such as living areas and bedrooms) should be located to avoid noise impacts from mechanical plants, lifts, building services, non-residential uses, car parking, communal areas, and other dwellings or small second dwellings.

New dwellings should be designed and constructed to include acoustic attenuation measures to reduce noise levels from off-site noise sources.

Buildings within a noise influence area specified in Table 8 should be designed and constructed to achieve the following noise levels:

- Not greater than 35dB(A) for bedrooms, assessed as an LAeq,8h from 10pm to 6am.
- Not greater than 40dB(A) for living areas, assessed LAeq,16h from 6am to 10pm.

Buildings, or part of a building screened from a noise source by an existing solid structure, or the natural topography of the land, do not need to meet the specified noise level requirements.

Noise levels should be assessed in unfurnished rooms with a finished floor and the windows closed.

**Table 8 Noise influence area**

| Noise Source | Noise influence area |
|---|---|
| **Zone interface** | |
| Industry | 300 metres from the Industrial 1, 2 and 3 zone boundary |
| **Roads** | |
| Freeways, tollways and other roads carrying 40,000 Annual Average Daily Traffic Volume | 300 metres from the nearest trafficable lane |
| **Railways** | |
| Railway servicing passengers in Victoria | 80 metres from the centre of the nearest track |
| Railway servicing freight outside Metropolitan Melbourne | 80 metres from the centre of the nearest track |
| Railway servicing freight in Metropolitan Melbourne | 135 metres from the centre of the nearest track |

*Note: The noise influence area should be measured from the closest part of the building to the noise source.*

### 53.20-7.8 Accessibility

At least 50 per cent of dwellings should have:

- A clear opening width of at least 850mm at the entrance to the dwelling and main bedroom.
- A clear path with a minimum width of 1.2 metres that connects the dwelling entrance to the main bedroom, an adaptable bathroom and the living area.

- A main bedroom with access to an adaptable bathroom.
- At least one adaptable bathroom that meets all of the requirements of either Design A or Design B specified in Table 9.

**Table 9 Bathroom design**

| | Design option A | Design option B |
|---|---|---|
| Door opening | A clear 850mm wide door opening. | A clear 820mm wide door opening located opposite the shower |
| Door design | Either:<br>- A slide door, or<br>- A door that opens outwards, or<br>- A door that opens inwards that is clear of the circulation area and has readily removable hinges. | Either:<br>- A slide door, or<br>- A door that opens outwards, or<br>- A door that opens inwards and has readily removable hinges. |
| Circulation area | A clear circulation area that is:<br>- A minimum area of 1.2 metres by 1.2 metres.<br>- Located in front of the shower and the toilet.<br>- Clear of the toilet, basin and the door swing.<br>The circulation area for the toilet and shower can overlap. | A clear circulation area that is:<br>- A minimum width of 1 metre.<br>- The full length of the bathroom and a minimum length of 2.7 metres.<br>- Clear of the toilet and basin.<br>The circulation area can include a shower area. |
| Path to circulation area | A clear path with a minimum width of 900mm from the door opening to the circulation area. | Not applicable. |
| Shower | A hobless (step-free) shower. | A hobless (step-free) shower that has a removable shower screen and is located on the furthest wall from the door opening. |
| Toilet | A toilet located in the corner of the room. | A toilet located closest to the door opening and clear of the circulation area. |

### 53.20-7.9 Building entry and circulation

Entries to dwellings and buildings should:

- Be visible and easily identifiable.
- Provide shelter, a sense of personal address and a transitional space around the entry.

The layout and design of buildings should:

- Clearly distinguish entrances to residential and non-residential areas.

- Provide windows to building entrances and lift areas.
- Provide visible, safe and attractive stairs from the entry level to encourage use by residents.
- Provide common areas and corridors that:
  - Include at least one source of natural light and natural ventilation.
  - Avoid obstruction from building services.
  - Maintain clear sight lines.

### 53.20-7.10 Private open space

A dwelling should have private open space consisting of at least one of the following:

- An area at ground level of 25 square metres, with a minimum dimension of 3 metres and convenient access from a living room.
- An area on a podium or other similar base of at least 15 square metres, with a minimum dimension of 3 metres at a podium or other similar base and convenient access from a living room.
- A balcony with at least the area and dimensions specified in Table 10 and convenient access from a living room.
- An area on a roof of 10 square metres with a minimum dimension of 2 metres and convenient access from a living room.

If a cooling or heating unit is located on a balcony, the minimum balcony area specified in Table 10 should be increased by at least 1.5 square metres.

If the finished floor level of a dwelling is 40 metres or more above ground level, the requirements of Table 10 do not apply if at least the area specified in Table 11 is provided as living area or bedroom area in addition to the minimum area specified in Table 13 or Table 14.

**Table 10 Balcony size**

| Dwelling type | Minimum area | Minimum dimension |
|---|---|---|
| Studio or 1 bedroom dwelling | 8 square metres | 1.8 metres |
| 2 bedroom dwelling | 8 square metres | 2 metres |
| 3 or more bedroom dwelling | 12 square metres | 2.4 metres |

**Table 11 Additional living area or bedroom area**

| Dwelling type | Additional area |
|---|---|
| Studio or 1 bedroom dwelling | 8 square metres |
| 2 bedroom dwelling | 8 square metres |
| 3 or more bedroom dwelling | 12 square metres |

### 53.20-7.11 Storage

Each dwelling should have convenient access to usable and secure storage space.

The total minimum storage space (including kitchen, bathroom and bedroom storage) should meet the requirements specified in Table 9.

**Table 12 Storage**

| Dwelling type | Total minimum storage volume | Minimum storage volume within the dwelling |
|---|---|---|
| Studio | 8 cubic metres | 5 cubic metres |
| 1 bedroom dwelling | 10 cubic metres | 6 cubic metres |
| 2 bedroom dwelling | 14 cubic metres | 9 cubic metres |
| 3 or more bedroom dwelling | 18 cubic metres | 12 cubic metres |

### 53.20-7.12 Waste and recycling

Developments should include dedicated areas for:

- Waste and recycling enclosures which are:
  - Adequate in size, durable, waterproof and blend in with the development.
  - Adequately ventilated.
  - Located and designed for convenient access by residents and made easily accessible to people with limited mobility.
- Adequate facilities for bin washing. These areas should be adequately ventilated.
- Collection, separation and storage of waste and recyclables, including where appropriate opportunities for on-site management of food waste through composting or other waste recovery as appropriate.
- Collection, storage and reuse of garden waste, including opportunities for on-site treatment, where appropriate, or off-site removal for reprocessing.
- Adequate circulation to allow waste and recycling collection vehicles to enter and leave the site without reversing.
- Adequate internal storage space within each dwelling to enable the separation of waste, recyclables and food waste where appropriate.

Waste and recycling management facilities should be designed and managed in accordance with a Waste Management Plan approved by the responsible authority and:

- Be designed to meet the better practice design options specified in *Waste Management and Recycling in Multi-unit Developments* (Sustainability Victoria, 2019).
- Protect public health and amenity of residents and adjoining premises from the impacts of odour, noise and hazards associated with waste collection vehicle movements.

### 53.20-7.13 Functional layout

Bedrooms should:

- Meet the minimum internal room dimensions specified in Table 13.
- Provide an area in addition to the minimum internal room dimensions to accommodate a wardrobe.

Living areas (excluding dining and kitchen areas) should meet the minimum internal room dimension and area specified in Table 14.

**Table 13 Bedroom dimensions**

| Bedroom type | Minimum width | Minimum depth | Minimum area |
|---|---|---|---|
| Main bedroom | 3 metres | 3.4 metres | 10.2 sqm |
| All other bedrooms | 3 metres | 3 metres | 9 sqm |

**Table 14 Living area dimensions**

| Dwelling type | Minimum width | Minimum area |
|---|---|---|
| Studio and 1 bedroom dwelling | 3.3 metres | 10 sqm |
| 2 or more bedroom dwelling | 3.6 metres | 12 sqm |

### 53.20-7.14 Room depth

Single aspect habitable rooms should not exceed a room depth of 2.5 times the ceiling height.

The depth of a single aspect, open plan, habitable room may be increased to 9 metres if all the following requirements are met:

- The room combines the living area, dining area and kitchen.
- The kitchen is located furthest from the window.
- The ceiling height is at least 2.7 metres measured from finished floor level to finished ceiling level. This excludes where services are provided above the kitchen.

The room depth should be measured from the external surface of the habitable room window to the rear wall of the room.

### 53.20-7.15 Windows

Habitable rooms should have a window in an external wall of the building.

A window may provide daylight to a bedroom from a smaller secondary area within the bedroom where the window is clear to the sky. The secondary area should be:

- A minimum width of 1.2 metres.
- A maximum depth of 1.5 times the width, measured from the external surface of the window.

### 53.20-7.16 Natural ventilation

The design and layout of dwellings should maximise openable windows, doors or other ventilation devices in external walls of the building, where appropriate.

At least 40 per cent of dwellings should provide effective cross ventilation that has:

- A maximum breeze path through the dwelling of 18 metres.
- A minimum breeze path through the dwelling of 5 metres.
- Ventilation openings with approximately the same area.

The breeze path is measured between the ventilation openings on different orientations of the dwelling.

### 53.20-7.17 Integration with the street

Development should be oriented to front existing and proposed streets.

Along street frontages, development should:

- Incorporate pedestrian entries, windows, balconies or other active spaces.
- Limit blank walls.
- Limit high front fencing, unless consistent with the existing urban context.
- Provide low and visually permeable front fences, where proposed.
- Conceal car parking and internal waste collection areas from the street.

Development next to existing public open space should be designed to complement the open space and facilitate passive surveillance.

### 53.20-7.18 External walls and materials

External walls should be finished with materials that:

- Do not easily deteriorate or stain.
- Weather well over time.
- Are resilient to the wear and tear from their intended use.

External wall design should facilitate safe and convenient access for maintenance.

### 53.20-7.19 Wind impacts

Development should:

- not cause unsafe wind conditions specified in Table 15 in public land, publicly accessible areas on private land, private open space and communal open space; and
- achieve comfortable wind conditions specified in Table 15 in public land and publicly accessible areas on private land

within a distance of half the greatest length of the building, or half the total height of the building measured outwards on the horizontal plane from the ground floor building façade, whichever is greater.

Trees and landscaping should not be used to mitigate wind impacts. This does not apply to sitting areas, where trees and landscaping may be used to supplement fixed wind mitigation elements.

Wind mitigation elements, such as awnings and screens should be located within the site boundary, unless consistent with the existing urban context or preferred future development of the area.

**Table 15: Wind conditions**

| Unsafe | Comfortable |
|---|---|
| Annual maximum 3 second gust wind speed exceeding 20 metres per second with a probability of exceedance of 0.1% considering at least 16 wind directions. | Hourly mean wind speed or gust equivalent mean speed (3 second gust wind speed divided by 1.85), from all wind directions combined with probability of exceedance less than 20% of the time, equal to or less than: |

| Unsafe | Comfortable |
|---|---|
| | ▪ 3 metres per second for sitting areas.<br>▪ 4 metres per second for standing areas.<br>▪ 5 metres per second for walking areas. |

## 53.20-9 Transitional provision

20/03/2023
VC229

The development standards for apartments at clause 53.20-6 and clause 53.20-7 introduced by Amendment VC207, do not apply to an application to construct or extend a dwelling, or to construct or extend a front fence if:

- Funded wholly or partly, under Victoria's Big Housing Build program;
- The application is made by or on behalf of the Chief Executive Officer, Homes Victoria; and
- The written confirmation from Homes Victoria or the Chief Executive Officer, Homes Victoria that the application is funded, either wholly or partly, under Victoria's Big Housing Build program has been signed before 30 June 2022.

## 53.20-10 Decision guidelines

14/12/2023
VC253

Before deciding on an application, the responsible authority must consider, as appropriate:

- How the proposed development responds to the site and context description.
- Where a development standard of this clause is not met, the impact on the amenity of the adjoining dwellings or small second dwellings of varying the standard.
- The effect of overshadowing on an appropriately located existing rooftop solar energy system on an adjoining lot.

# 53.21 STATE TRANSPORT PROJECTS

17/02/2022
VC200

## Purpose

To facilitate the delivery of transport projects carried out by or on behalf of the State of Victoria.

## 53.21-1 Application

19/11/2025
VC297

This clause applies to an application under any provision of this planning scheme, other than a VicSmart application or an application to subdivide land, made by or on behalf of the Head, Transport for Victoria, the Secretary to the Department of Transport and Planning or the Suburban Rail Loop Authority.

## 53.21-2 Exemption from review

17/02/2022
VC200

An application to which clause 53.21 applies is exempt from the decision requirements of section 64(1), (2), and (3), and the review rights of section 82(1) of the Act.

## 53.22 SIGNIFICANT ECONOMIC DEVELOPMENT

20/09/2023
VC242

### Purpose

To prioritise and facilitate the planning, assessment and delivery of projects that will make a significant contribution to Victoria's economy and provide substantial public benefit, including jobs for Victorians.

To provide for the efficient and effective use of land and facilitate use and development with high quality urban design, architecture and landscape architecture.

### 53.22-1 Application

04/07/2025
VC258

The provisions of this clause prevail over any inconsistent provision in this planning scheme.

This clause applies to an application under any provision of this planning scheme if all the following are met:

- The applicant submits written confirmation that the application is an application to which this clause applies.
- The conditions corresponding to a category in Table 1 are met.

This clause does not apply to an application to subdivide land, other than an application to subdivide land that includes either:

- A renewable energy facility; or
- A utility installation used to:
  - Transmit or distribute electricity; or
  - Store electricity if the installed capacity is 1 megawatt or greater.

In this clause, ***Invest Victoria*** means the body called 'Invest Victoria', established as an Administrative Office in relation to the Department of Jobs, Skills, Industry and Regions under an Order made under section 11 of the *Public Administration Act 2004*.

**Table 1**

| Category | Condition |
|---|---|
| **Category 1** | The application must include a use specified in Table 2 and the conditions corresponding to that use must be met.<br><br>If the application includes more than one use in Table 2, only one use must meet the corresponding conditions, except where the application includes an energy generation facility or transport terminal, in which case all conditions corresponding to those uses must be met.<br><br>The application must not include a use that requires a permit if that use is not specified in Table 2.<br><br>Information demonstrating the likely feasibility of the proposed development is provided to the satisfaction of the Minister for Planning. This must include written advice from the Chief Executive Officer or delegate, Invest Victoria. This does not apply to an application for the use or development of land for an energy |

| Category | Condition |
|---|---|
| | generation facility, renewable energy facility, transport terminal, utility installation or warehouse (fuel depot). |
| **Category 2** | The application must include a use specified in Table 2. The conditions corresponding to that use do not need to be met. The application may also include a use that is not specified in Table 2.<br>The proposed use or development must be:<br>▪ carried out by or on behalf of, or jointly or in partnership with, the State of Victoria or a public authority; or<br>▪ funded, or partly funded, by the State of Victoria, the Commonwealth or a public authority; or<br>▪ carried out on Crown land. |
| **Category 3** | The application must include a use specified in Table 2. The conditions corresponding to that use do not need to be met. The application may also include a use that is not specified in Table 2.<br>The Minister for Planning has advised in writing that they are satisfied the proposed use or development of land is of significance having regard to the:<br>▪ Purpose of clause 53.22.<br>▪ Estimated cost of development.<br>▪ Extent to which the development supports or implements planning policy.<br>Information demonstrating the likely feasibility of the proposed development is provided to the satisfaction of the Minister for Planning. This must include written advice from the Chief Executive Officer or delegate, Invest Victoria. |

**Table 2**

| Use | Condition |
|---|---|
| **Camping and caravan park**<br>**Group accommodation**<br>**Food and drink premises (other than bar, convenience restaurant and take away food premises)**<br>**Leisure and recreation**<br>**Place of assembly**<br>**Recreational boat facility**<br>**Residential hotel** | The estimated cost of the proposed development as specified in a report prepared by a suitably qualified quantity surveyor must be one of the following to the satisfaction of the Minister for Planning:<br>▪ At least $10 million if any part of the land is in metropolitan Melbourne.<br>▪ At least $5 million if the land is not in metropolitan Melbourne. |

| Use | Condition |
|---|---|
| **Winery** | |
| **Agriculture**<br>**Data centre**<br>**Industry**<br>**Research centre**<br>**Saleyards** | The estimated cost of the proposed development as specified in a report prepared by a suitably qualified quantity surveyor must be one of the following to the satisfaction of the Minister for Planning:<br>▪ At least $20 million if any part of the land is in metropolitan Melbourne.<br>▪ At least $10 million if the land is not in metropolitan Melbourne. |
| **Hospital**<br>**Medical centre**<br>**Warehouse** | The estimated cost of the proposed development as specified in a report prepared by a suitably qualified quantity surveyor must be one of the following to the satisfaction of the Minister for Planning:<br>▪ At least $30 million if any part of the land is in metropolitan Melbourne; or<br>▪ At least $10 million if the land is not in metropolitan Melbourne. |
| **Tertiary institution** | The estimated cost of the proposed development as specified in a report prepared by a suitably qualified quantity surveyor must be one of the following to the satisfaction of the Minister for Planning:<br>▪ At least $30 million if any part of the land is in metropolitan Melbourne; or<br>▪ At least $20 million if the land is not in metropolitan Melbourne. |
| **Transport terminal** | Must only be used to transport gas. |
| **Retail premises (other than food and drink premises)** | The estimated cost of the proposed development as specified in a report prepared by a suitably qualified quantity surveyor must be one of the following to the satisfaction of the Minister for Planning:<br>▪ At least $100 million if any part of the land is in metropolitan Melbourne; or<br>▪ At least $20 million if the land is not in metropolitan Melbourne. |
| **Earth and energy resources industry (other than extractive industry, mining, mineral exploration, petroleum exploration, petroleum production and stone exploration)** | The estimated cost of the proposed development as specified in a report prepared by a suitably qualified quantity surveyor must be at least $30 million to the satisfaction of the Minister for Planning. |
| **Extractive industry** | The estimated value of the resource to be extracted must be at least $30 million to the satisfaction of the Minister for Planning. |

| Use | Condition |
|---|---|
| **Mining and mineral exploration** | The estimated cost of the proposed development as specified in a report prepared by a suitably qualified quantity surveyor must be at least $10 million to the satisfaction of the Minister for Planning. |
| **Office** | Must meet one of the following to the satisfaction of the Minister for Planning:<br>▪ The combined gross floor area of all buildings (excluding basement and above ground car parking facilities) associated with the proposed use or development must be at least 10,000 square metres if any part of the land is in metropolitan Melbourne; or<br>▪ The combined gross floor area of all buildings (excluding basement and above ground car parking facilities) associated with the proposed use or development must be at least 5,000 square metres if the land is not in metropolitan Melbourne. |
| **Renewable energy facility** | An installed capacity of 1 megawatt or greater must be proposed. |
| **Energy generation facility** | An installed capacity of 1 megawatt or greater must be proposed.<br>Must only be a gas-powered energy generation facility. |
| **Utility installation (other than data centre)** | A utility installation used to:<br>▪ Transmit or distribute electricity; or<br>▪ Store electricity if the installed capacity is 1 megawatt or greater; or<br>▪ Transmit or distribute gas.<br>must be proposed. |

## 53.22-2 Planning scheme requirements

04/07/2025
VC258

The responsible authority may waive or vary any of the following:

- Any building height or setback requirement.
- Any application requirement in this planning scheme if in the opinion of the responsible authority the requirement is not relevant to the assessment of the application.

This does not apply to the following:

- A decision that would be inconsistent with an approved Statement of Planning Policy for a declared area; and
- A requirement in clauses 45.07, 45.08 or 51.03, or in any schedule to those clauses.

## 53.22-3 Application requirements

04/07/2025
VC258

An application must be accompanied by the following information, as appropriate:

- A report or other documents demonstrating the likely feasibility of the development.
- A report prepared by a suitably qualified quantity surveyor which specifies the estimated cost of the development.
- For extractive industry, a report prepared by a suitably qualified person specifying the estimated value of the resource to be extracted.

## 53.22-4 Exemption from review

20/09/2023
VC242

An application under any provision of this planning scheme is exempt from the decision requirements of sections 64(1), (2) and (3), and the review rights of sections 82(1) of the Act.

## 53.22-5 Decision guidelines

04/07/2025
VC258

Before deciding on an application the responsible authority must consider, as appropriate:

- The purpose of the clause.
- The views of the Office of the Victorian Government Architect.

## 53.22-6 Transitional provision

20/09/2023
VC242

Clause 53.22 does not apply to:

- An application for a permit lodged before the approval date of Amendment VC242.
- An application for an amendment of a permit under section 72 of the Act if the original permit application was lodged before the approval date of Amendment VC242.

## 53.23 SIGNIFICANT RESIDENTIAL DEVELOPMENT WITH AFFORDABLE HOUSING

04/07/2025
VC258

### Purpose

To facilitate residential development that contributes to the provision of affordable housing to meet existing and future needs.

To facilitate the redevelopment and renewal of public housing stock to meet existing and future needs.

To facilitate residential development carried out by the State of Victoria or jointly or in partnership with the private sector, including via innovative funding, investment and partnership approaches.

To facilitate residential development with high quality urban design, architecture and landscape architecture.

To provide opportunities for non-residential use and development in association with residential development.

## 53.23-1 Application

04/07/2025
VC258

The provisions of this clause prevail over any inconsistent provision in this planning scheme.

This clause applies to an application under any provision of this planning scheme if all of the following are met:

- The applicant submits written confirmation that the application is an application to which this clause applies.
- The application includes the proposed use or development of land for accommodation (other than camping and caravan park, group accommodation, residential hotel and small second dwelling).
- The conditions corresponding to a category in Table 1 are met.

This clause does not apply to an application to subdivide land.

In this clause:

- ***Chief Executive Officer, Homes Victoria*** means 'Chief Executive Officer, Homes Victoria' as defined in the *Housing Act 1983* and the body corporate established under the *Housing Act 1983*.
- ***Invest Victoria*** means the body called 'Invest Victoria', established as an Administrative Office in relation to the Department of Jobs, Skills, Industry and Regions under an Order made under section 11 of the *Public Administration Act 2004*.

**Table 1**

| Category | Condition |
|---|---|
| **Category 1** | The estimated cost of the proposed development of land for accommodation (other than camping and caravan park, group accommodation, residential hotel and small second dwelling) as specified in a report prepared by a suitably qualified quantity surveyor must be one of the following to the satisfaction of the Minister for Planning:<br>▪ At least $50 million if any part of the land is in metropolitan Melbourne.<br>▪ At least $15 million if the land is not in metropolitan Melbourne. |

| Category | Condition |
|---|---|
| | The application includes an affordable housing report required under clause 53.23-3 that demonstrates how the affordable housing contribution specified in clause 53.23-4 (being at least 10 per cent of the total number of dwellings in the proposed development provided as affordable housing or an alternative contribution towards the provision of affordable housing) is intended to be provided if a permit is granted.<br><br>Information demonstrating the likely feasibility of the proposed development is provided to the satisfaction of the Minister for Planning. This must include written advice from the Chief Executive Officer or delegate, Invest Victoria. |
| **Category 2** | The proposed use or development of land for accommodation (other than camping and caravan park, group accommodation, residential hotel and small second dwelling) will be:<br><br>▪ carried out by or on behalf of, or jointly or in partnership with, the State of Victoria or a public authority; or<br><br>▪ funded, or partly funded, by the State of Victoria, the Commonwealth or a public authority; or<br><br>▪ carried out on Crown land.<br><br>If the application is made by or on behalf of the Chief Executive Officer, Homes Victoria, the proposed development includes at least 10 dwellings. |
| **Category 3** | The Minister for Planning has advised in writing that they are satisfied the proposed use or development of land for accommodation (other than camping and caravan park, group accommodation, residential hotel and small second dwelling) is of significance having regard to:<br><br>▪ The purpose of clause 53.23.<br><br>▪ Whether a contribution towards affordable housing is proposed.<br><br>▪ The estimated cost of the proposed development.<br><br>▪ The location of the proposed development and whether it has convenient access to jobs, services, infrastructure and community facilities.<br><br>▪ Whether the design, liveability and sustainability of the proposed development is exemplary. |

| Category | Condition |
|---|---|
| | Information demonstrating the likely feasibility of the proposed development is provided to the satisfaction of the Minister for Planning. This must include written advice from the Chief Executive Officer or delegate, Invest Victoria. |

## 53.23-2 Planning scheme requirements

16/06/2026
VC312

The responsible authority may waive or vary any of the following:

- A minimum garden area requirement.
- Any building height or setback requirement.
- A condition opposite a use in Section 2 in a zone or a schedule to a zone.
- Any application requirement in this planning scheme if in the opinion of the responsible authority the requirement is not relevant to the assessment of the application.

This does not apply to the following:

- A decision that would be inconsistent with an approved Statement of Planning Policy for a declared area; and
- A requirement in clauses 45.07, 45.08 or 51.03, or in any schedule to those clauses.

Clauses 45.09 and 52.06 of this planning scheme do not apply to a use or development proposed in an application where:

- the proposed development will be funded, or partly funded, by the State of Victoria or the Commonwealth; or
- the application is made by or on behalf of the Chief Executive Officer, Homes Victoria.

The provisions of clauses 54.02-2, 55.03-5, 57.03-4 and 58.05-3 of this planning scheme do not apply to:

- an application for a proposed development funded, or partly funded, by the State of Victoria or the Commonwealth; or
- an application made by or on behalf of the Chief Executive Officer, Homes Victoria.

An application for a proposed development that will be funded, or partly funded, by the State of Victoria or the Commonwealth, or an application made by or on behalf of the Chief Executive Officer, Homes Victoria should meet the following standards:

- A minimum 0.6 car parking spaces should be provided to each dwelling. Car parking spaces may be covered or uncovered. If in calculating the number of car parking spaces the result is not a whole number, the required number of car parking spaces is to be rounded down to the nearest whole number greater than 1. Car parking for other land uses in the proposed development must be to the satisfaction of the responsible authority.
- A dwelling (other than an apartment) should have private open space consisting of:
  - an area of secluded private open space with a minimum area of 25 square metres, a minimum dimension of 3 metres and convenient access from a living room; or

- a balcony of 8 square metres with a minimum width of 1.6 metres and convenient access from a living room; or
- a roof-top area of 10 square metres with a minimum width of 2 metres and convenient access from a living room.

- Secluded private open space may be located in the front setback if it is no more than 30 per cent of the street frontage.

## 53.23-3 Application requirements

04/07/2025
VC258

An application must be accompanied by the following information, as appropriate:

- A report prepared by a suitably qualified quantity surveyor which specifies the estimated cost of the proposed development of land for accommodation to the satisfaction of the Minister for Planning.
- A report (affordable housing report) that outlines how a proposed contribution to the provision of affordable housing is intended to be provided should a permit be granted, including the following:
  - The nature of the proposed contribution.
  - The methodology for the delivery of the proposed contribution.
  - The proposed monetary value of the contribution (as a percentage of the estimated cost of the proposed development of land for accommodation).
- If the application includes a non-residential use or development, information about the purpose of the use and the types of activities proposed to be carried out.
- An application for a use or development that will be funded, or partly funded, by Homes Victoria must be accompanied by a letter from the Chief Executive Officer or delegate, Homes Victoria, consenting generally or conditionally to the application being made.
- An application for a use or development that will be funded, or partly funded, by the Commonwealth, must be accompanied by a letter from the Chief Executive Officer, Housing Australia confirming the funding.

## 53.23-4 Permit condition requirement

04/07/2025
VC258

The responsible authority must include the following condition in deciding to grant a permit:

*"Before the use or development of the land begins, excluding demolition, excavation, piling, site preparation works, and works to remediate contaminated land, the owner of the land must enter into an agreement with the responsible authority under section 173 of the Act, in a form to the satisfaction of the responsible authority, that provides for a contribution towards affordable housing (affordable housing contribution) by way of either of the following options:*

- *At least 10 per cent of the total number of dwellings in the development must be provided as affordable housing for sale or lease to a registered housing agency or to Homes Victoria. The details of when and how the affordable housing will be delivered and the total value of the affordable housing contribution must be set out in the agreement. The affordable housing dwellings provided should be representative of the approved dwelling mix to the satisfaction of the responsible authority.*
- *An alternative contribution towards the provision of affordable housing must be provided to the satisfaction of the responsible authority. The details of when and how the alternative contribution is to be made and the total value of the affordable housing contribution must be set out in the agreement to the satisfaction of the responsible authority.*

*The land owner must pay the responsible authority's reasonable costs of the preparation, execution, registration and ending of the section 173 agreement (where applicable)."*

The above requirement to include a condition does not apply if any of the following apply:

- The responsible authority is satisfied that an agreement exists with the State of Victoria or a public authority for the provision of at least 10 per cent of the total number of dwellings in the development as affordable housing and:
  - the use or development will be carried out by or on behalf of, or jointly or in partnership with, the State of Victoria or a public authority; or
  - the development will be funded, or partly funded, by the State of Victoria, the Commonwealth or a public authority; or
  - the development will be carried out on Crown land.
- The conditions corresponding to Category 3 in Table 1 are met and a contribution towards affordable housing is not proposed.

## 53.23-5 Exemption from review

20/09/2023
VC242

An application under any provision of this planning scheme is exempt from the decision requirements of sections 64(1), (2) and (3), and the review rights of sections 82(1) of the Act.

## 53.23-6 Decision guidelines

04/07/2025
VC258

Before deciding on an application the responsible authority must consider, as appropriate:

- The purpose of the clause.
- The views of the Office of the Victorian Government Architect.

## 53.23-7 Transitional provision

20/09/2023
VC242

Clause 53.23 does not apply to:

- An application for a permit lodged before the approval date of Amendment VC242.
- An application for an amendment of a permit under section 72 of the Act if the original permit application was lodged before the approval date of Amendment VC242.

# 53.24 FUTURE HOMES

22/09/2023
VC243

## Purpose

To facilitate apartment developments that incorporate exemplar designs approved under the Future Homes project.

To facilitate apartment developments that increase the density and diversity of housing to respond to Victoria's population growth.

To facilitate apartment developments that are exemplary in their design, liveability and sustainability.

## 53.24-1 Application

28/02/2025
VC274

The provisions of this clause prevail over any inconsistent provision in this planning scheme.

This clause applies to an application under clause 32.08-7 of the General Residential Zone or clause 32.10-5 of the Housing Choice and Transport Zone to construct two or more dwellings on a lot, or to construct a front fence in association with the construction of two or more dwellings on a lot, if all of the following requirements are met:

- The development must be an apartment development.
- The design of the apartment development must use a licenced exemplar design approved under the Future Homes project overseen by the Department of Transport and Planning.
- Any part of the land:
  - Must be within 800 metres of a passenger railway station; or
  - Must be within 800 metres of a metropolitan, major or neighbourhood activity centre in Metropolitan Melbourne; or
  - Must be within 800 metres of an activity centre outside Metropolitan Melbourne; and
  - Must not be within a Heritage Overlay or Neighbourhood Character Overlay.

For the purposes of this clause, the distance from an activity centre must be measured from:

- the boundary of the activity centre specified, shown, described or otherwise indicated in this planning scheme; or
- if the boundary of the activity centre is not specified, shown, described or otherwise indicated in this planning scheme, the boundary of any Activity Centre Zone, commercial zone, Mixed Use Zone or Precinct Zone.

For the purposes of this clause, the distance from a passenger railway station must be measured from the closest point to a station platform.

## 53.24-2 Meaning of terms

26/09/2023
VC246

An activity centre outside Metropolitan Melbourne means a:

- Central Activity District
- Central Business District
- City Centre
- Major Activity Centre
- Primary Activity Centre
- Principal Activity Centre
- Principal Centre

- Regional Activity Centre
- Regional Centre
- Regional Retail Centre

## 53.24-3 Pre-application referral requirements

25/02/2025
VC257

If an application under clause 32.08-7 or 32.10-5 is required to be referred in accordance with section 55 of the Act to a referral authority specified in clause 66, the following requirements must be met:

- The development for which the application is made must have been considered by the referral authority within the past 3 months of the application being made to the responsible authority.
- The referral authority must have stated in writing that it does not object to the granting of the permit for the development.

If the proposed development requires a permit under a provision of this planning scheme other than clause 32.08-7 of the General Residential Zone or clause 32.10-5 of the Housing Choice and Transport Zone and an application for that permit is required to be referred in accordance with section 55 of the Act to a referral authority specified in clause 66, the following requirements must be met:

- The development for which the application is made must have been considered by the referral authority within the past 3 months of the application being made to the responsible authority.
- The referral authority must have stated in writing that it does not object to the granting of the permit for the development.

## 53.24-4 Application requirements

03/12/2024
VC269

An application must be accompanied by:

- A neighbourhood and site description.
- A design response.
- A landscape plan.

### Neighbourhood and site description

The neighbourhood and site description may use a site plan, photographs or other techniques and must include:

- Site shape, size, orientation, levels and easements.
- The location of existing buildings on the site and on surrounding properties, including the location and height of walls built to the boundary of the site.
- The use of surrounding buildings.
- The location of private open space and habitable room windows of surrounding properties that have an outlook to the site.
- Solar access to the site and adjoining properties.
- Views to and from the site.
- Street frontage features such as poles, street trees and kerb crossovers.
- The pattern of development of the neighbourhood, including the average street setback for the development site (approximately 150 metres either side).
- The location of local shops, public transport services and public open spaces within walking distance.

- Movement systems through and around the site.
- Any other notable features or characteristics of the site and area.

#### Design response

The design response must address the development standards of clause 53.24 and the principles, objectives, requirements and targets of the *Building future homes adaptation guide* (Department of Transport and Planning, 2023).

#### Landscape plan

The landscape plan must include:

- The location of significant trees existing on and adjacent to the site and any significant trees removed from the site 12 months prior to the application being made.
- The location and details of proposed vegetation, including canopy trees on the site.
- A planting schedule that demonstrates compliance with the deep soil and canopy cover requirements.
- Details of the soil type, drainage patterns and irrigation system of the site.

### 53.24-5 Exemption from planning scheme requirements

31/03/2025
VC267

The requirements of clauses 45.09, 52.06 and 52.34 of the planning scheme do not apply to a development under this clause.

An application is exempt from any application requirement in the General Residential Zone or any application requirements specified in a schedule to the General Residential Zone or the Housing Choice and Transport Zone.

An application is exempt from and is not required to meet the requirements of clauses 55, 57 and 58.

#### Matters to be considered

In deciding an application, the responsible authority must not consider, and is exempt from considering:

- The Municipal Planning Strategy and Planning Policy Framework.
- The purpose of the General Residential Zone or the Housing Choice and Transport Zone.
- Any decision guideline in the General Residential Zone, or a schedule to the General Residential Zone or the Housing Choice and Transport Zone.
- The decision guidelines in clause 65.

### 53.24-6 Exemption from review

25/02/2025
VC257

An application under clause 32.08-7 or 32.10-5 is exempt from the decision requirements of section 64(1), (2) and (3) and the review rights of section 82(1) of the Act.

### 53.24-7 Development standards

03/12/2024
VC269

A development must meet all of the following development standards.

### 53.24-7.1 Car parking

03/12/2024
VC269

Car parking spaces must be provided at:

- a rate of at least 0.6 spaces per dwelling; rounded down to the closest whole number or
- if the land is in a Parking Overlay and the overlay specifies a lower car parking rate for a dwelling, the applicable rate in the overlay.

Mechanical parking may be used to meet the car parking requirement provided the dimensions of the mechanical parking system meets the standards for a B99 vehicle in Australian Standard AS/NZS 2890.1:2004, Parking facilities - Off-street car parking (Standards Australia, 2004).

### 53.24-7.2 Bicycle parking

03/12/2024
VC269

Bicycle parking spaces must be provided at a rate of:

- at least 1 space per dwelling for residents.
- at least 1 space per 5 dwellings for visitors.

At least 20 percent of bicycle parking spaces for residents must be provided as horizontal spaces.

All visitor bicycle parking spaces must be provided as horizontal spaces and be located to provide convenient access from surrounding bicycle routes and main building entrances.

### 53.24-7.3 Communal open space

03/12/2024
VC269

A development of 10 or more dwellings must provide a minimum area of communal outdoor open space of 30 square metres.

If a development contains 13 or more dwellings, the development must also provide an additional minimum area of communal open space of 2.5 square metres per dwelling or 220 square metres, whichever is the lesser. This additional area may be indoors or outdoors and consist of multiple separate areas of communal open space.

Each area of communal open space must be:

- Accessible to all residents.
- Of a useable size, shape and dimension.
- Capable of efficient management.
- Located to:
  - Provide passive surveillance, where appropriate.
  - Provide outlook for as many dwellings as practicable.
  - Limit overlooking into habitable rooms and private open space of new dwellings.
  - Minimise noise impacts on new and existing dwellings.

Any area of communal outdoor open space must be landscaped and where possible include canopy cover and trees.

At least 50 per cent or 125 square metres, whichever is the lesser, of the primary area of communal outdoor open space must receive a minimum of two hours of sunlight between 9am and 3pm on 21 June.

### 53.24-7.4 Environmentally sustainable design

03/12/2024
VC269

A development must achieve:

- At least a 7.5 star NatHERS average (area-weighted across all dwellings).
- At least a 6.5 star NatHERS for an individual dwelling.
- An excellence, or equivalent score, in environmentally sustainable design as outlined in the Building Future Homes Adaptation Guide.

- 100 percent Stormwater Treatment Objective-Relative Measure (STORM) rating for the site.

## 53.24-7.5 Accessibility

03/12/2024
VC269

At least 50 per cent of dwellings must be designed to meet all of the following accessibility design standards.

### Dwelling access

- A slip resistant continuous step-free pathway must be provided from the street and car parking area to the dwelling entry door.
- The pathway must have a minimum clear width of 1.2 metres, no steps, a maximum gradient of 1:14 and a cross fall not steeper than 1:40.
- Where ramps with landings are required as part of the pathway, landings must be no less than 1.2 metres in length, and gate and door swings must not overlap this minimum landing requirements.
- Landings must be provided at the start and end of ramps.
- Where there is a change in height of 190 millimetres or less at an apartment entrance, a step ramp with a gradient not steeper than 1:10 may be used.
- Car parking spaces must provide:
  - A level surface with a gradient not exceeding 1:40 in any direction.
  - A vertical clearance over the parking space of at least 2.5 metres free of obstructions (the 2.5 m clearance is not required where mechanical parking is used).

### Dwelling entrance

- The entrance to the dwelling must have:
  - A clear opening width of at least 850 millimetres.
  - A level, and step-free transition and threshold.
  - A level landing on the arrival side of the entrance door of at least 1.35 metres x 1.35 metres.

### Internal doors and passageways

- Doorways to rooms must have a clear opening width of at least 850 millimetres.
- Doorways to rooms must have a level, step-free transition and threshold.
- The dwelling must have clear passageways and corridors with a minimum width of 1.2 metres.

### Toilets and showers

- At least one toilet must be located on the entry level of the dwelling and must have:
  - A secure fixing surface to enable future installation of grab rails.
  - A minimum 1.2 metre x 1.2 metre circulation area located in front of the toilet that is clear of the basin and the door swing.
- The toilet must be located in:
  - the corner of the room if it is in a bathroom with the centreline of the pan 450 to 460 millimetres from the adjacent wall; or
  - a room with a minimum width of 1.2 metres if it is in a room separate to the bathroom.
- A least one bathroom must be located on the entry level of the dwelling and must have a hobless, step-free shower that:

- Has a removable shower screen.
- Has a minimum clear internal dimensions of 900 millimetres x 900 millimetres.
- Has a minimum 1.2 metres x 1.2 metres clear circulation area located in front of the shower.
- Is located in the corner of the room to enable future installation of grab rails.

- A secure fixing surface must be provided at all toilets, showers and baths to enable future installation of grab rails. This requirement may be met by either:
  - walls that are constructed of solid masonry or concrete; or
  - providing additional wall framing or structure lining behind the finished wall surface.

**Kitchen laundry**

- The kitchen and laundry must have a minimum 1.2 metres clear circulation area in front of appliances and benches.
- Floor finishes must extend under appliances and cabinets to allow for future modifications.

## 53.24-7.6 Building entry and circulation

03/12/2024
VC269

Common corridors and passageways providing access to a dwelling entry must have a minimum width of 1.2 metres.

Entries to dwellings and buildings must:

- Be visible and easily identifiable.
- Provide shelter, a sense of personal address and a transitional space around the entry.

The layout and design of buildings must:

- Clearly distinguish entrances to residential and non-residential areas.
- Provide windows to building entrances and lift areas.
- Provide visible, safe and attractive stairs from the entry level to encourage use by residents.
- Provide common areas and corridors that:
  - Include at least one source of natural light and natural ventilation.
  - Avoid obstruction from building services.
  - Maintain clear sight lines.

## 53.24-7.7 Storage

03/12/2024
VC269

Each dwelling must have convenient access to usable and secure storage space.

The total minimum storage space (including kitchen, bathroom and bedroom storage) must meet the requirements specified in Table 1.

**Table 1: Storage**

| Dwelling type | Total minimum storage volume | Minimum storage volume within the dwelling |
|---|---|---|
| Studio | 8 cubic metres | 5 cubic metres |
| 1 bedroom dwelling | 10 cubic metres | 6 cubic metres |
| 2 bedroom dwelling | 14 cubic metres | 9 cubic metres |

| Dwelling type | Total minimum storage volume | Minimum storage volume within the dwelling |
|---|---|---|
| 3 or more bedroom dwelling | 18 cubic metres | 12 cubic metres |

## 53.24-7.8 Functional layout

03/12/2024
VC269

Bedrooms must:

- Meet the minimum internal room dimensions specified in Table 2.
- Provide an area in addition to the minimum internal room dimensions to accommodate a wardrobe.

**Table 2:Bedroom dimensions**

| Bedroom type | Minimum width | Minimum depth |
|---|---|---|
| Main bedroom | 3 metres | 3.4 metres |
| All other bedrooms | 3 metres | 3 metres |

Living areas (excluding dining and kitchen areas) must meet the minimum internal room dimensions specified in Table 3.

**Table 3: Living area dimension and area**

| Dwelling type | Minimum width | Minimum depht |
|---|---|---|
| Studio or 1 bedroom dwelling | 3.3 metres | 10 square metres |
| 2 or more bedroom dwelling | 3.6 metres | 12 square metres |

## 53.24-7.9 Room depth

03/12/2024
VC269

Single aspect habitable rooms must not exceed a room depth of 2.5 times the ceiling height.

The depth of a single aspect, open plan, habitable room may be increased to 9 metres if all the following requirements are met:

- The room combines the living area, dining area and kitchen.
- The kitchen is located furthest from the window.
- The ceiling height is at least 2.7 metres measured from finished floor level to finished ceiling level. This excludes where services are provided above the kitchen.

The room depth must be measured from the external surface of the habitable room window to the rear wall of the room.

## 53.24-7.10 Windows

03/12/2024
VC269

Habitable rooms must have a window in an external wall of the building.

A window may provide daylight to a bedroom from a smaller secondary area within the bedroom where the window is clear to the sky.

The secondary area must be:

- A minimum width of 1.2 metres.
- A maximum depth of 1.5 times the width, measured from the external surface of the window.

## 53.24-7.11 Natural ventilation

03/12/2024
VC269

The design and layout of dwellings must maximise openable windows, doors or other ventilation devices in external walls of the building.

All dwellings must provide effective natural ventilation. Effective natural ventilation includes cross ventilation, single sided ventilation or mechanically assisted ventilation.

For cross ventilation:

- A maximum breeze path through the dwelling of 18 metres.
- A minimum breeze path through the dwelling of 5 metres.
- Ventilation openings with approximately the same area.

The breeze path must be measured between the ventilation openings on different orientations of the dwelling.

## 53.24-7.12 Deep soil and canopy cover

03/12/2024
VC269

A development must:

- Provide the canopy cover and deep soil areas specified in Table 4 (existing trees can be used to meet the canopy cover requirements of Table 4).
- Provide canopy cover through canopy trees that are:
  - Located in an area of deep soil specified in Table 5, or where deep soil cannot be provided, located in planters specified in Table 5.
  - Consistent with the canopy diameter and height at maturity specified in Table 6.
  - Located in communal outdoor open space or common areas or street frontages.
  - Be supported by irrigation systems which utilise alternative water sources such as rainwater, stormwater and recycled water.
  - Take into account the soil type and drainage patterns of the site.

**Table 4: Canopy cover and deep soil requirements**

| Site area | Canopy area | Deep soil |
|---|---|---|
| 1000 square metres or less | 5% of site area<br>Include at least 1 Type A tree | 5% of site area or 12 square metres whichever is the greater |
| 1001 – 1500 square metres | 50 square metres plus 20% of site area above 1,000 square metres<br>Include at least 1 Type B tree | 7.5% of site area |
| 1501 – 2500 square metres | 150 square metres plus 20% of site area above 1,500 square metres<br>Include at least 2 Type B trees or 1 Type C tree | 10% of site area |
| 2501 square metres or more | 350 square metres plus 20% of site area above 2,500 square metres<br>Include at least 2 Type B trees or 1 Type C tree | 15% of site area |

**Table 5: Soil requirements for trees**

| Tree type | Tree in deep soil<br>Area of deep soil | Tree in planter | |
|---|---|---|---|
| | | Volume of soil planter | Depth of soil planter |
| A | 12 square metres<br>(min. plan dimension 2.5 metres) | 12 cubic metres<br>(min. plan dimension of 2.5 metres) | 0.8 metre |
| B | 49 square metres<br>(min. plan dimension 4.5 metres) | 28 cubic metres<br>(min. plan dimension of 4.5 metres) | 1 metre |
| C | 121 square metres<br>(min. plan dimension 6.5 metres) | 64 cubic metres<br>(min. plan dimension of 6.5 metres) | 1.5 metres |

*Note* *Where multiple trees share the same section of soil the total required amount of soil can be reduced by 5% for every additional tree, up to a maximum reduction of 25%.*

**Table 6: Tree types**

| Tree type | Minimum canopy diameter at maturity | Minimum height at maturity |
|---|---|---|
| A | 4 metres | 6 metres |
| B | 8 metres | 8 metres |
| C | 12 metres | 12 metres |

## 53.24-8 Decision guidelines

03/12/2024
VC269

Before deciding on an application the responsible authority must consider the purpose of this clause.

## 53.25 GREAT DESIGN FAST TRACK

07/04/2025
VC280

### Purpose

To facilitate innovative dwelling, apartment and mixed-use residential development.

To facilitate development that increases the density and diversity of dwellings to respond to Victoria's population growth.

To facilitate the development of dwellings with convenient access to public transport, and community, retail and other services.

To facilitate development that is of a high quality in its design, liveability and sustainability.

### 53.25-1 Application

16/06/2026
VC312

The provisions of this clause prevail over any inconsistent provision in this planning scheme.

This clause applies to an application under any provision of this planning scheme for the development of land, or the use and development of land, (other than the subdivision of land), if all of the following are met:

- The applicant submits written confirmation that the application is an application to which this clause applies.
- The application includes the construction of at least eight dwellings.
- Any proposed building contains at least two storeys and not more than eight storeys.
- The proposed development achieves a minimum NatHERS rating of:
  - 8.0 stars average, with no individual dwelling less than 6.5 stars for apartment developments.
  - 7.5 stars for all other dwellings.
- Each proposed dwelling provides effective natural ventilation, which includes cross ventilation, single sided ventilation or mechanically assisted ventilation.
- The Minister for Planning has advised in writing that they are satisfied the proposed use or development of land for accommodation (other than camping and caravan park, group accommodation, residential hotel and small second dwelling) is of significance having regard to:
  - The purpose of clause 53.25.
  - Whether the quality of the design, liveability and sustainability of the proposed development meets the design principles published by the Minister for Planning on the Department's Internet site for the purposes of clause 53.25 ('the design principles').
  - The location of the proposed development and whether it has convenient access to jobs, services, infrastructure and community facilities.
- Information demonstrating that the proposed development meets the design principles is provided to the satisfaction of the Minister for Planning. This must include written advice from the Office of the Victorian Government Architect to the satisfaction of the Minister for Planning.
- Information demonstrating the likely feasibility of the proposed development is provided to the satisfaction of the Minister for Planning. This must include written advice from a Deputy Secretary of the Department of Jobs, Skills, Industry and Regions or delegate to the satisfaction of the Minister for Planning.

### 53.25-2 Planning scheme requirements

07/04/2025
VC280

The responsible authority may waive or vary any of the following in relation to an application or a proposed use or development:

- A minimum garden area requirement.
- Any building height or setback requirement.
- A condition opposite a use in Section 2 in a zone or a schedule to a zone.

A decision to waive or vary any of the matters above does not apply:

- where it would be inconsistent with an approved Statement of Planning Policy for a declared area; or
- to a requirement in clauses 45.07, 45.08 or 51.03, or in any schedule to those clauses.

The responsible authority may waive or vary any of the requirements of clauses 45.09, 52.06 and 52.34 of this planning scheme in relation to an application or a proposed use or development.

An application is exempt from an application requirement in this planning scheme if in the opinion of the responsible authority the requirement is not relevant to the assessment of the application.

Clauses 52.20, 53.20, 53.23 and 53.24 of this planning scheme do not apply to an application to which this clause applies.

### 53.25-3 Application requirements

07/04/2025
VC280

If the application includes a non-residential use or development, information about the purpose of the use and the types of activities proposed to be carried out must accompany the application, as appropriate.

### 53.25-4 Exemption from review

07/04/2025
VC280

An application under any provision of this planning scheme is exempt from the decision requirements of sections 64(1), (2) and (3), and the review rights of section 82(1) of the Act.

### 53.25-5 Decision guidelines

07/04/2025
VC280

Before deciding on an application, in addition to the decision guidelines elsewhere in this planning scheme including in clause 65, the responsible authority must consider, as appropriate:

- The purpose of the clause.
- The views of the Office of the Victorian Government Architect.

### 53.25-6 Transitional provision

07/04/2025
VC280

Clause 53.25 does not apply to:

- An application for a permit lodged before the approval date of Amendment VC280.
- An application for an amendment of a permit under section 72 of the Act if the original permit application was lodged before the approval date of Amendment VC280.

# 54 ONE DWELLING ON A LOT OR A SMALL SECOND DWELLING ON A LOT

11/09/2025
VC292

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To encourage residential development that provides reasonable standards of amenity for existing and new residents.

To encourage residential development that responds to the site and the surrounding area.

## Application

Provisions in this clause apply to the classes of applications specified in clauses:

- 32.04-5 and 32.04-6, Mixed Use Zone,
- 32.05-6 and 32.05-7, Township Zone,
- 32.07-4 and 32.07-5, Residential Growth Zone,
- 32.08-5 and 32.08-6, General Residential Zone,
- 32.09-5 and 32.09-6, Neighbourhood Residential Zone,
- 32.10-3 and 32.10-4, Housing Choice and Transport Zone,
- 43.05-2, Neighourhood Character Overlay, associated with one dwelling on a lot, in a Neighbourhood Residential Zone, General Residential Zone, Residential Growth Zone, Housing Choice and Transport Zone, Mixed Use Zone or Township Zone.

The objectives contained in clauses 54.02-8 and 54.03-5 do not apply to one dwelling on a lot.

The objectives contained in clauses 54.02-7, 54.03-1, 54.03-3, 54.05-3 and 54.05-4 do not apply to a small second dwelling.

## Operation

The provisions of this clause contain:

- **Objectives**. An objective describes the outcome to be achieved in the completed development.
- **Standards**. A standard contains the requirements to meet the corresponding objective.

  If a zone or a schedule to a zone specifies a standard that modifies the standard set out in this clause, the modified standard in the zone or a schedule to the zone applies.

  If the land is included in a Neighbourhood Character Overlay and a schedule to the overlay specifies a standard that modifies the standard set out in this clause, or a modified standard in the zone or a schedule to the zone, the modified standard in the schedule to the overlay applies.

  If the land is included in an overlay, other than a Neighbourhood Character Overlay, and a schedule to the overlay specifies a standard that modifies the standard set out in this clause, or a modified standard in the zone or a schedule to the zone, the modified standard in the schedule to the overlay applies.
- **Decision guidelines.** If a standard is not met, the decision guidelines set out the matters that the responsible authority must consider before deciding if the corresponding objective is met.

## Requirements

A development must meet all of the applicable objectives contained in this clause.

If a development meets a standard:

- The corresponding objective is deemed to be met;
- The responsible authority is not required to consider the corresponding decision guidelines.

If a development does not meet a standard, the responsible authority must consider the applicable decision guidelines in determining whether the corresponding objective is met.

### Exemptions

Despite any other provision of this planning scheme, in determining applications to which this clause applies, the responsible authority is exempt from and is not required to consider:

- The Municipal Planning Strategy and Planning Policy Framework, unless an applicable decision guideline specifies otherwise.
- The purpose or decision guidelines of the relevant zone, unless an applicable decision guideline specifies otherwise.
- The decision guidelines in Clause 65, unless an applicable decision guideline specifies otherwise.

If there is any inconsistency between the requirements of this clause and another provision of this planning scheme, this clause prevails.

An application to which this clause applies is exempt from the requirements of:

- Section 60(1)(b), (e), (f), (1A) and (1B) of the Act; and
- Section 84B(2)(b) to (jb) of the Act.

## 54.01 APPLICATION REQUIREMENTS

08/09/2025
VC282

An application to which this clause applies must be accompanied by:

- A site description.
- A design response.
- A written statement outlining which standards are met and which are not met. If a standard is not met, the written statement must include an explanation of how the development meets the corresponding objective having regard to the corresponding decision guidelines.

### 54.01-1 Site description

08/09/2025
VC282

The neighbourhood and site description may use a site plan, photographs or other techniques and must accurately describe:

- The built form, scale and character of surrounding development including front fencing.
- Site shape, size, orientation and easements.
- Levels of the site and the difference in levels between the site and surrounding properties.
- The location of existing buildings on the site and on surrounding properties, including the location and height of walls built to the boundary of the site.
- The use of surrounding buildings.
- The location of secluded private open space and habitable room windows of surrounding properties which have an outlook to the site within 9 metres.
- Solar access to the site and to surrounding properties.
- Location of existing trees 5 metres in height or greater, with a trunk circumference of 0.5 metres or greater at 1.4 metres above ground level, on the site.
- Any cut and filled areas of soil, where known.
- Street frontage features such as poles, services, street trees and kerb crossovers.
- The location of any existing domestic solar energy system on the roof of a dwelling, apartment development or residential building on surrounding properties.

If in the opinion of the responsible authority a requirement of the site description is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement.

### 54.01-2 Design response

08/09/2025
VC282

The design response must explain how the proposed design derives from and responds to the site description.

The design response must include correctly proportioned street elevations or photographs showing the development in the context of adjacent buildings.

The design response must include a landscape plan that details the proposed:

- Retention and planting of canopy trees,
- Planting of other vegetation including location, species, number and size at maturity of vegetation,
- Where required, areas of deep soil and root barriers,
- Irrigation system to support existing and planted vegetation including details of any alternative water supply sources,
- Selection of vegetation that responds to the site's environment and geographic factors.

If in the opinion of the responsible authority a design response requirement is not relevant to the evaluation of an application, it may waive or reduce the requirement.

# 54.02 NEIGHBOURHOOD CHARACTER

08/09/2025
VC282

## 54.02-1 Street setback objective

08/09/2025
VC282

To ensure that the setbacks of buildings from a street respond to the existing or preferred neighbourhood character and make efficient use of the site.

### Standard A2-1

Walls of buildings are set back from streets:

- At least the distance specified in a schedule to the zone if the distance specified in the schedule is less than the distance specified in Table A2-1; or
- If no distance is specified in a schedule to the zone, the distance specified in Table A2-1.

Porches, pergolas and verandahs that are less than 3.6 metres high and eaves may encroach not more than 2.5 metres into the setbacks of this standard.

**Table A2-1 Street setback**

| Development context | Minimum setback from front street | Minimum setback from a side street |
|---|---|---|
| There is an existing building on both the abutting allotments facing the same street, and the site is not on a corner. | The same distance as the lesser front wall setback of the existing buildings on the abutting allotments facing the front street or 6 metres, whichever is the lesser. | Not applicable |
| There is an existing building on one abutting allotment facing the same street and no existing building on the other abutting allotment facing the same street, and the site is not on a corner. | The same distance as the setback of the front wall of the existing building on the abutting allotment facing the front street or 6 metres, whichever is the lesser. | Not applicable |
| There is no existing building on either of the abutting allotments facing the same street, and the site is not on a corner. | 6 metres for streets in a Transport Zone 2 and 4 metres for other streets. | Not applicable |
| The site is on a corner. | If there is a building on the abutting allotment facing the front street, the same distance as the setback of the front wall of the existing building on the abutting allotment facing the front street or 6 metres, whichever is the lesser.<br>If there is no building on the abutting allotment facing the front street, 6 metres for streets in a Transport Zone 2 and 4 metres for other streets. | Front walls of new development fronting the side street of a corner site are setback at least the same distance as the setback of the front wall of any existing building on the abutting allotment facing the side street or 3 metres, whichever is the lesser.<br>Side walls of new development on a corner site are setback the same distance as the setback of the front wall of any existing building on the abutting allotment facing the side street or 2 metres, whichever is the lesser. |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- Whether the siting of the building is constrained by the shape, dimensions, slope or other conditions of the site.
- Whether a different setback would be more appropriate taking into account the prevailing setbacks of existing buildings on nearby lots.
- The visual impact of the building when viewed from the street and from adjoining properties.
- Whether a different setback affects the ability to retain or plant canopy trees.

## 54.02-2 Building height objective

08/09/2025
VC282

To ensure that the height of buildings respond to the existing or preferred neighbourhood character.

### Standard A2-2

The maximum building height does not exceed the maximum height specified in the zone, schedule to the zone or an overlay that applies to the land.

If no maximum height is specified in the zone, schedule to the zone or an overlay, the maximum building height does not exceed 9 metres, unless the slope of the natural ground level at any cross section wider than 8 metres of the site of the building is 2.5 degrees or more, in which case the maximum building height does not exceed 10 metres.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- Any maximum building height specified in the zone, a schedule to the zone or an overlay applying to the land.
- The design response.
- The effect of the slope of the site on the height of the building.
- The relationship between the proposed building height and the height of existing adjacent buildings.
- The visual impact of the building when viewed from the street and from adjoining properties.

## 54.02-3 Side and rear setbacks objective

08/09/2025
VC282

To ensure that the height and setback of a building from a boundary responds to the existing or preferred neighbourhood character and limits the impact on the amenity of existing dwellings or small second dwellings.

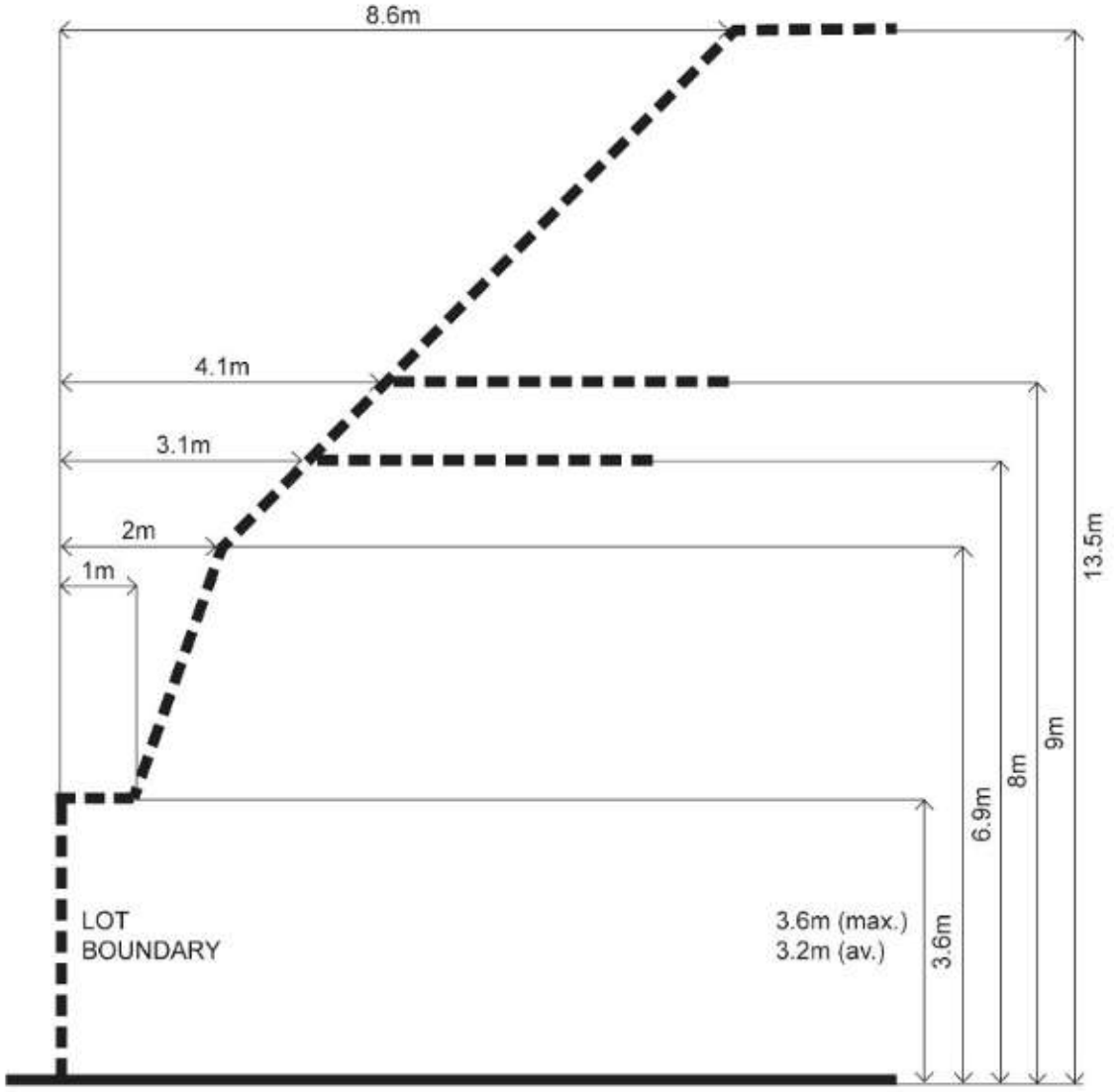
### Standard A2-3

A new building not on or within 200mm of a boundary is set back from side or rear boundaries at least 1 metre, plus 0.3 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres.

Sunblinds, verandahs, porches, eaves, facias, gutters, masonry chimneys, flues, pipes, domestic fuel or water tanks, and heating or cooling equipment or other services may encroach not more than 0.5 metres into the side and rear setbacks.

Landings that have an area of not more than 2 square metres and less than 1 metre high, stairways, ramps, pergolas, shade sails and carports may encroach into the side and rear setbacks.

**Diagram A2-3 Side and rear setbacks**




**Decision guidelines**

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- The impact on the amenity of the habitable room windows and private open space of existing dwellings or small second dwellings.
- Whether the wall is opposite an existing or simultaneously constructed wall built to the boundary.
- Whether the wall abuts a side or rear lane.
- Whether a different setback in a rear yard affects the ability to retain or plant canopy trees.

## 54.02-4 Walls on boundaries objective

08/09/2025
VC282

To ensure that the location, length and height of a wall on a boundary responds to the existing or preferred neighbourhood character and limits the impact on the amenity of existing dwellings and small second dwellings.

### Standard A2-4

A new wall constructed on or within 200mm of a side or rear boundary of a lot or a carport constructed on or within 1 metre of a side or rear boundary of a lot does not abut the boundary for a length that exceeds the greater of the following distances:

- 10 metres plus 25 per cent of the remaining length of the boundary of an adjoining lot, or
- The length of existing or simultaneously constructed walls or carports abutting the boundary on an abutting lot.

A new wall or carport may fully abut a side or rear boundary where slope and retaining walls or fences would result in the effective height of the wall or carport being less than 2 metres on the abutting property boundary.

A building on a boundary includes a building set back up to 200mm from a boundary.

The height of a new wall constructed on or within 200mm of a side or rear boundary or a carport constructed on or within 1 metre of a side or rear boundary does not exceed an average of 3.2 metres with no part higher than 3.6 metres unless abutting a higher existing or simultaneously constructed wall.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- The extent to which walls on boundaries are part of the neighbourhood character.
- The impact on the amenity of existing dwellings or small second dwellings.
- The opportunity to minimise the length of walls on boundaries by aligning a new wall on a boundary with an existing wall on a lot of an adjoining property.
- The orientation of the boundary that the wall is being built on.
- The width of the lot.
- The extent to which the slope and retaining walls or fences reduce the effective height of the wall.
- Whether the wall abuts a side or rear lane.
- The need to increase the wall height to screen a box gutter.

## 54.02-5 Site coverage objective

08/09/2025
VC282

To ensure that the site coverage responds to the existing or preferred neighbourhood character and responds to the features of the site.

### Standard A2-5

The site area covered by buildings does not exceed:

- The maximum site coverage specified in a schedule to the zone; or
- If no maximum site coverage is specified in a schedule to the zone, the percentage specified in Table A2-5.

If the maximum site coverage is specified in a schedule to a zone, it must be greater than the percentage specified in Table A2-5.

**Table A2-5 Site coverage**

| Zone | Area |
|---|---|
| Neighbourhood Residential Zone<br>Township Zone | 60 per cent |
| General Residential Zone | 65 per cent |
| Residential Growth Zone<br>Mixed Use Zone<br>Housing Choice and Transport Zone | 70 per cent |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- The existing site coverage and any constraints imposed by existing development or the features of the site.
- The site coverage of adjacent properties.
- The effect of the visual bulk of the building and whether this is acceptable in the neighbourhood.
- Whether a different area of site coverage affects the ability to retain or plant canopy trees.

## 54.02-6 Tree canopy objectives

08/09/2025
VC282

To provide tree canopy that responds to the neighbourhood character of the area and reduces the visual impact of buildings on the streetscape.

To preserve existing canopy cover and support the provision of new canopy cover.

To ensure new canopy trees are climate responsive, support biodiversity, wellbeing and amenity, and help reduce urban heat.

### Standard A2-6

Provide a minimum number of trees as specified in Table A2-6.

**Table A2-6 Minimum tree requirement**

| Site area | Tree |
|---|---|
| 100 square metres or less | One tree |
| Above 100 square metres to 200 square metres | Two trees |
| Above 200 square metres to 300 square metres | Three trees |

A tree must meet the following:

- Reach a height of at least 6 metres at maturity.

- Achieve a canopy width of at least 4 metres at maturity.
- Planted in a minimum deep soil area of 12 square metres with a minimum plan dimension 2.5 metres or in a planter with a minimum volume of 12 cubic metres with a minimum depth of 0.8 metres of planter soil.

Existing trees to be retained meet all of the following:

- Has a height of at least 5 metres,
- Has a trunk circumference of 0.5 metres or greater at 1.4 metres above ground level,
- Has a trunk that is located at least 4 metres from proposed buildings.

Existing trees that are retained can be used to satisfy the tree canopy requirement.

Any tree required to be planted under this standard must be of species to the satisfaction of the responsible authority, having regard to the location and relevant geographic factors.

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The site context and design response.
- The extent to which the existing and proposed canopy trees contribute to a greener environment and reduce urban heat.
- Whether the growth characteristics of existing trees and proposed canopy trees will provide the required canopy cover.
- The suitability of the planting location, deep soil areas and planter soil volume for proposed canopy trees.
- Whether the species of canopy tree is suited to the soil conditions of the site.
- Whether an alternative combination of the canopy trees will provide the required canopy cover.

## 54.02-7 Front fences objective

08/09/2025
VC282

To encourage front fence design that responds to the existing or preferred neighbourhood character.

#### Standard A2-7

A front fence within 3 metres of a street is:

- The maximum height specified in a schedule to the zone, or
- If no maximum height is specified in a schedule to the zone, the maximum height specified in Table A2-7.

#### Table A2-7 Maximum front fence height

| Street context | Maximum front fence height |
|---|---|
| Streets in a Transport Zone 2 | 2 metres |
| Other streets | 1.5 metres |

This standard does not apply to a small second dwelling.

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.

- The design response.
- The setback, height and appearance of front fences on adjacent properties.
- The extent to which slope and retaining walls reduce the effective height of the front fence.
- Whether the fence is needed to minimise noise intrusion.

## 54.02-8 Building setback for small second dwellings objective

08/09/2025
VC282

To ensure that small second dwellings are sited to respond to the existing or preferred neighbourhood character.

### Standard A2-8

Walls of a small second dwelling are set back behind the front wall of the existing dwelling on the lot, facing the frontage.

Porches, pergolas, verandahs, and eaves do not encroach into the setback of this standard.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- The visual impact of the building when viewed from the street and from adjoining properties.

# 54.03 LIVEABILITY

08/09/2025
VC282

## 54.03-1 Street integration objective

08/09/2025
VC282

To integrate the layout of development with the street to support the safety and amenity of residents.

### Standard A3-1

Where a development fronts a street, a vehicle accessway or abuts public open space, passive surveillance is provided by a direct view from a balcony or a habitable room window to each street, vehicle accessway and public open space.

This standard does not apply to a small second dwelling.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.

## 54.03-2 Private open space objective

08/09/2025
VC282

To provide adequate private open space for the reasonable recreation and service needs of residents.

### Standard A3-2

A dwelling or small second dwelling has private open space of an area and dimensions specified in a schedule to the zone.

If no area or dimension is specified in a schedule to the zone, a dwelling has private open space with direct access from a living area, dining area or kitchen consisting of:

- An area of 20 per cent of the area of the lot, but not less than 25 square metres. At least one part of the private open space consists of secluded private open space with a minimum area of 25 square metres and a minimum dimension of 3 metres width; or
- A balcony with at least the area and dimensions specified in Table A3-2; or
- An area on a roof of at least 10 square metres, with a minimum dimension of 2 metres width.

If the area and dimensions of the private open space or secluded private open space is specified in a schedule to the zone;

- The area and dimensions specified for private open space and secluded private open space must be less than the area and dimensions specified in this standard, and
- The area and dimensions specified for a balcony or an area on a roof must be less than the area and dimensions specified in this standard.

A small second dwelling has a secluded private open space consisting of an area of 8 square metres with a minimum dimension of 1.6 metres and convenient access from a living area, dining area or kitchen.

If a cooling or heating unit is located in the secluded private open space or private open space the required area is increased by 1.5 square metres.

Where ground level private open space is provided an area for clothes drying is provided.

**Table A3-2 Private open space for a balcony**

| Orientation of dwelling | Dwelling type | Minimum area | Minimum dimension |
|---|---|---|---|
| North (between north 20 degrees west to north 30 degrees east) | All | 8 square metres | 1.7 metres |
| South (between south 30 degrees west to south 20 degrees east) | All | 8 square metres | 1.2 metres |
| Any other orientation | 1 bedroom dwelling | 8 square metres | 1.8 metres |
| | 2 bedroom dwelling | 8 square metres | 2 metres |
| | 3 bedroom dwelling | 12 square metres | 2.4 metres |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability of the private open space, including its size and accessibility.
- The availability of and access to public open space.
- The orientation of the lot to the street and the sun.

## 54.03-3 Solar access to open space objective

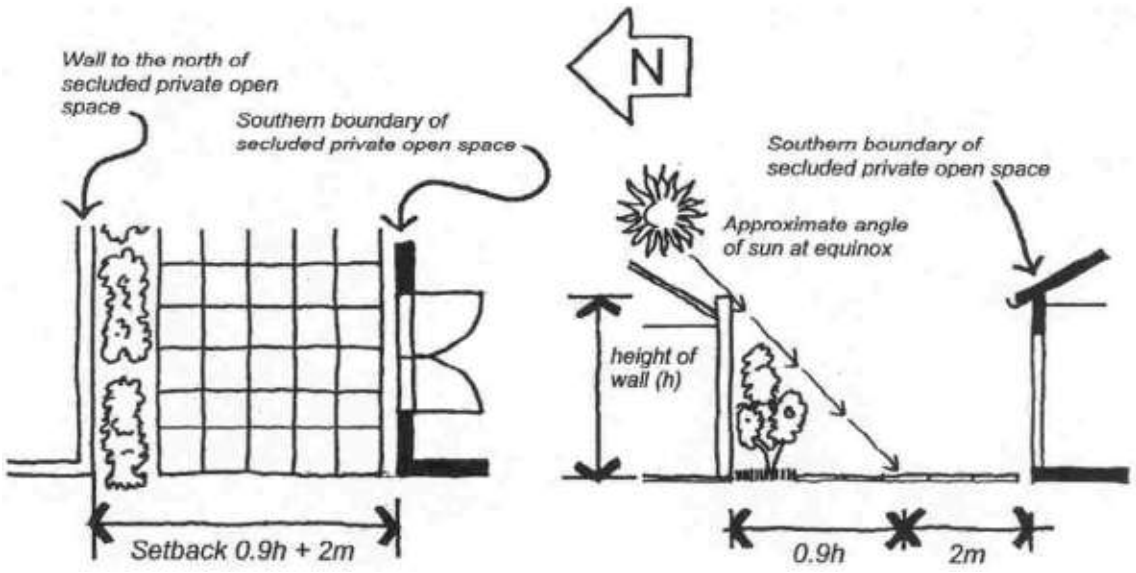
08/09/2025
VC282

To allow solar access into the secluded private open space of new dwellings.

### Standard A3-3

The southern boundary of secluded private open space is set back from any wall on the north of the space at least (2 + 0.9h) metres, where 'h' is the height of the wall.

**Diagram A3-3 Solar access to open space**




This standard does not apply to a small second dwelling.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability and amenity of the secluded private open space based on the sunlight it will receive.

## 54.03-4 Daylight to new windows objectives

08/09/2025
VC282

To allow adequate daylight into new habitable room windows.

### Standard A3-4

A window in an external wall of the building is provided to all habitable rooms.

Habitable rooms in a dwelling have a window that faces:

- An outdoor space clear to the sky or a light court with a minimum area of 3 square metres and minimum dimension of 1 metre clear to the sky, not including land on an abutting lot; or
- A verandah provided it is open for at least one third of its perimeter; or
- A carport provided it has two or more open sides and is open for at least one third of its perimeter.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The extent to which habitable rooms are provided with reasonable daylight access through the number, size, location and orientation of windows.
- The useability and amenity of the dwelling based on the layout, siting, size and orientation of habitable rooms.
- Whether there are other windows in the habitable room which have access to daylight.

## 54.03-5 Safety and accessibility for small second dwellings objective

08/09/2025
VC282

To ensure access to a small second dwelling is safe, convenient and meets the needs of residents.

### Standard A3-5

A small second dwelling is provided with a clear and unobstructed path from the frontage that:

- Has a minimum width of at least 1 metre, with no encroachments. If the path is longer than 30 metres, the minimum width of the path is at least 1.8 metres.
- Has a minimum clear height of at least 2 metres, with no encroachments.
- Has a gradient no steeper than 1 in 14.
- Has a cross fall no steeper than 1 in 40.
- Is sealed or has an all-weather access.

### Decision guidelines

Before deciding on an application, the responsible authority must consider the safety and accessibility of the small second dwelling.

# 54.04 EXTERNAL AMENITY

08/09/2025
VC282

## 54.04-1 Daylight to existing windows objective

08/09/2025
VC282

To allow adequate daylight into existing habitable room windows.

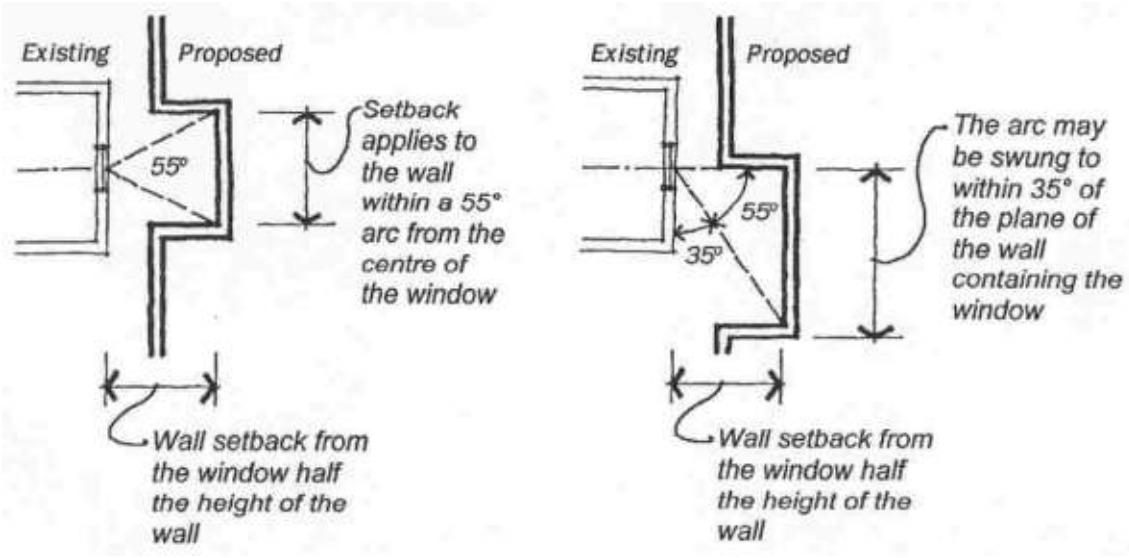
### Standard A4-1

Buildings opposite an existing habitable room window provide for a light court to the existing window that has a minimum area of 3 square metres and minimum dimension of 1 metre clear to the sky. The calculation of the area may include land on the abutting lot.

Walls or carports more than 3 metres in height opposite an existing habitable room window are set back from the window at least 50 per cent of the height of the new wall if the wall is within a 55 degree arc from the centre of the existing window. The arc may be swung to within 35 degrees of the plane of the wall containing the existing window.

Where the existing window is above ground floor level, the wall height is measured from the floor level of the room containing the window.

### Diagram A4-1 Daylight to existing windows




### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The extent to which the existing dwelling or small second dwelling has provided for reasonable daylight access to its habitable rooms through the siting and orientation of its habitable room windows.
- The impact on the amenity of existing dwellings or small second dwellings.

## 54.04-2 Existing north-facing windows objective

08/09/2025
VC282

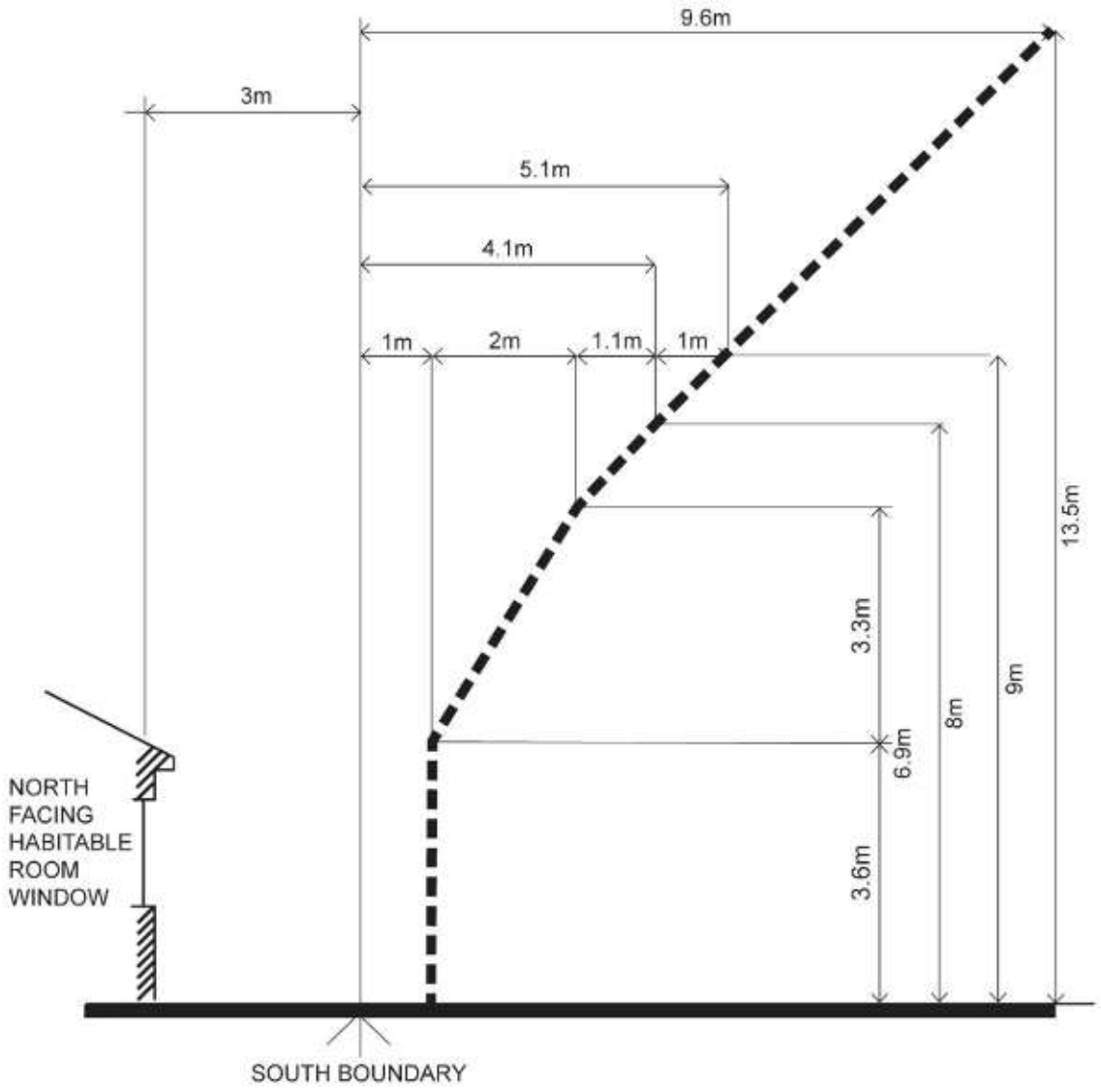
To allow adequate solar access to existing north-facing habitable room windows.

### Standard A4-2

Where a north-facing habitable room window of a neighbouring dwelling or small second dwelling is within 3 metres of a boundary on an abutting lot, a new building is to be set back from the boundary by at least 1 metre, plus 0.6 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres. This setback is to be provided for a distance of at least 3 metres from the edge of each side of the window.

For this standard a north-facing window is a window with an axis perpendicular to its surface oriented from north 20 degrees west to north 30 degrees east.

**Diagram A4-2 North-facing windows**




**Decision guidelines**

Before deciding on an application, the responsible authority must consider:

- The design response.
- Existing sunlight to the north-facing habitable room window of the existing dwelling or small second dwelling.
- The impact on the amenity of existing dwellings or small second dwellings.

## 54.04-3 Overshadowing secluded open space objective

08/09/2025
VC282

To ensure buildings do not significantly overshadow existing secluded private open space.

**Standard A4-3**

The area of secluded private open space that is not overshadowed by the new development is greater than 50 per cent, or 25 square metres with a minimum dimension of 3 metres, whichever is the lesser area, for a minimum of five hours between 9 am and 3 pm on 22 September.

If existing sunlight to the secluded private open space of an existing dwelling or small second dwelling is less than the requirements of this standard, the amount of sunlight will not be further reduced.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The impact on the amenity of existing dwellings or small second dwellings.
- Existing sunlight penetration to the secluded private open space of the existing dwelling or small second dwelling.
- The time of day that sunlight will be available to the secluded private open space of the existing dwelling or small second dwelling.
- The effect of a reduction in sunlight on the existing use of the existing secluded private open space.

## 54.04-4 Overlooking objective

08/09/2025
VC282

To limit views into existing secluded private open space and habitable room windows.

### Standard A4-4

In Clause 54.04-4 a habitable room does not include a bedroom.

A habitable room window, balcony, terrace, deck or patio is located and designed to avoid direct views into the secluded private open space of an existing dwelling or small second dwelling within a horizontal distance of 9 metres (measured at ground level) of the window, balcony, terrace, deck or patio. Views are measured within a 45 degree angle from the plane of the window or perimeter of the balcony, terrace, deck or patio, and from a height of 1.7 metres above floor level.

A habitable room window, balcony, terrace, deck or patio that is located with a direct view into a habitable room window of an existing dwelling or small second dwelling within a horizontal distance of 9 metres (measured at ground level) of the window, balcony, terrace, deck or patio:

- Is offset a minimum of 1.5 metres from the edge of one window to the edge of the other; or
- Has sill heights of at least 1.7 metres above floor level; or
- Has fixed, obscure glazing in any part of the window below 1.7 metre above floor level; or
- Has permanently fixed external screens to at least 1.7 metres above floor level and be no more than 25 per cent transparent; or
- Has fixed elements that prevent the direct view, such as horizontal ledges or vertical fins.

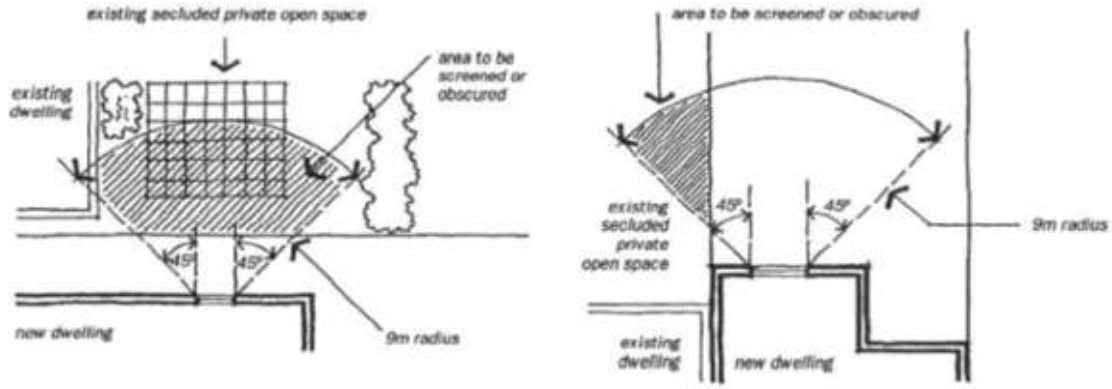
Obscure glazing in any part of the window below 1.7 metres above floor level may be openable provided that there are no direct views as specified in this standard.

Screens used to obscure a view are:

- Perforated panels or trellis with a maximum of 25 per cent openings or solid translucent panels.
- Permanent, fixed and durable.
- Designed and coloured to blend in with the development.

This standard does not apply to a new habitable room window, balcony, terrace, deck or patio which faces a property boundary where there is a visual barrier at least 1.8 metres high and the floor level of the habitable room, balcony, terrace, deck or patio is less than 0.8 metres above ground level at the boundary.

### Diagram A4-4 Overlooking




### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The impact on the amenity of the secluded private open space or habitable room window.
- The existing extent of overlooking into the secluded private open space and habitable room windows of existing dwellings or small second dwellings.
- The internal daylight to and amenity of the proposed dwelling or small second dwelling.

# 54.05 SUSTAINABILITY

08/09/2025
VC282

## 54.05-1 Permeability objectives

08/09/2025
VC282

To reduce the impact of increased stormwater run-off on the drainage system and downstream waterways.

To facilitate on-site stormwater infiltration.

To contribute to urban cooling.

### Standard A5-1

The site area covered by the pervious surfaces is at least 20 percent of the site.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The existing site coverage and any constraints imposed by existing development.
- The capacity of the drainage network to accommodate additional stormwater.
- The practicality of achieving the minimum site coverage of pervious surfaces.

## 54.05-2 Overshadowing domestic solar energy systems objective

08/09/2025
VC282

To ensure that the height and setback of a building from a boundary allows reasonable solar access to existing domestic solar energy systems on the roofs of buildings.

### Standard A5-2

Any part of a new building that will reduce the sunlight at any time between 9 am and 4 pm on 22 September to an existing domestic solar energy system on the roof of a building on an adjoining lot be set back from the boundary to that lot by at least 1 metre at 3.6 metres above ground level, plus 0.3 metres for every metre of building height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres.

This standard applies to an existing building in a Township Zone, General Residential Zone or Neighbourhood Residential Zone.

In Clause 54.05-2 domestic solar energy system means a domestic solar energy system that existed at the date the application was lodged.

### Decision guidelines

Before deciding on an application, the responsible authority must consider whether the domestic solar energy system has been sited to optimise efficiency and protection from overshadowing.

## 54.05-3 Rooftop solar energy generation area objective

08/09/2025
VC282

To support the future installation of appropriately sited rooftop solar energy systems for a dwelling.

### Standard A5-3

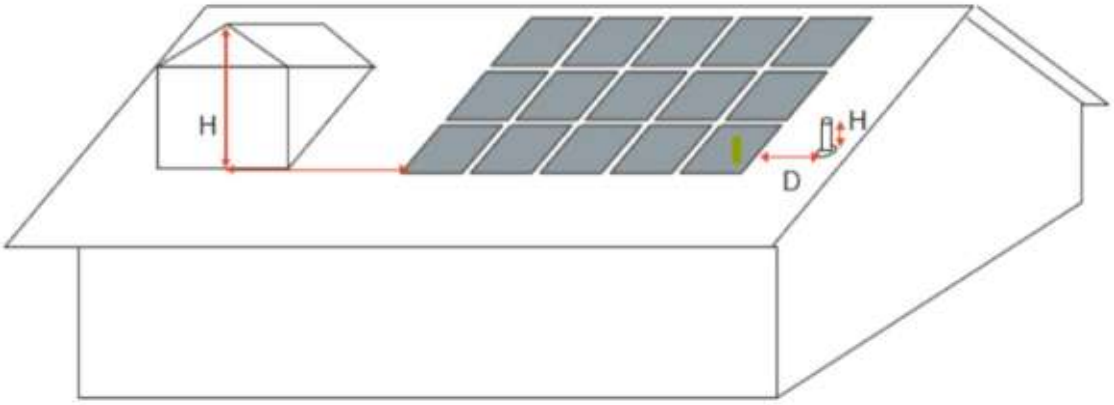
In Clause 54.05-3 rooftop solar energy area means an area provided on the roof of a dwelling to enable the future installation of a solar energy system.

An area on the roof is capable of siting a rooftop solar energy area for each dwelling which:

- Has a minimum dimension of 1.7 metres.
- Has a minimum area in accordance with Table A5-3.
- Is oriented to the north, west or east.

- Is positioned on the top two thirds of a pitched roof.
- Can be a contiguous area or multiple smaller areas.
- Is free of obstructions on the roof of the dwelling within twice the height of each obstruction (H), measured horizontally (D) from the centre point of the base of the obstruction to the nearest point of the rooftop solar energy area.

**Diagram A5-3 Allowable distance between obstructions and the rooftop solar energy area**




Obstructions located south of all points of the rooftop solar energy area are not subject to the horizontal distance requirements.

**Table A5-3 Minimum rooftop solar energy generation area**

| Number of bedrooms | Minimum roof area |
|---|---|
| 1 bedroom dwelling | 15 square metres |
| 2 or 3 bedroom dwelling | 26 square metres |
| 4 or more bedroom dwelling | 34 square metres |

This standard does not apply to a small second dwelling.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The size and orientation of the building.
- The availability of solar access to the rooftop.
- The extent to which the rooftop solar energy generation area is overshadowed by existing buildings, other permanent structures or equipment on the rooftop.

## 54.05-4 Solar protection to new north-facing windows objective

08/09/2025
VC282

To encourage external shading of north facing windows to minimise summer heat gain.

### Standard A5-4

North facing windows are shaded by eaves, fixed horizontal shading devices or fixed awnings with a minimum horizontal depth of 0.25 times the window height.

This standard does not apply to a small second dwelling.

### Decision guidelines

Before deciding on an application, the responsible authority considers:

- The design response.
- The size and orientation of the lot.
- The type and useability of external solar shading devices, including alternative design responses.

55
16/04/2026
VC300

# TWO OR MORE DWELLINGS ON A LOT AND RESIDENTIAL BUILDINGS OF THREE STOREYS OR LESS

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To encourage residential development that provides reasonable standards of amenity for existing and new residents.

To encourage residential development that responds to the site and the surrounding area.

## Application

Provisions in this clause apply to the classes of applications specified in clauses:

- 32.04-7, Mixed Use Zone,
- 32.05-8, Township Zone,
- 32.07-6, Residential Growth Zone,
- 32.08-7, General Residential Zone,
- 32.09-7, Neighbourhood Residential Zone,
- 32.10-5, Housing Choice and Transport Zone.

The objective contained in clause 55.03-1 does not apply to a development of less than 10 dwellings.

The objective contained in clause 55.05-3 does not apply to an apartment development or residential building.

The objectives contained in clauses 55.03-12 and 55.05-7 do not apply to the construction or extension of:

- A dwelling that is not in, or does not form part of, an apartment development; or
- A residential building.

## Operation

The provisions of this clause contain:

- **Objectives**. An objective describes the outcome to be achieved in the completed development.
- **Standards**. A standard contains the requirements to meet the corresponding objective.

  If a zone or a schedule to a zone specifies a standard that modifies the standard set out in this clause, the modified standard in the zone or a schedule to the zone applies.

  If the land is included in a Neighbourhood Character Overlay and a schedule to the overlay specifies a standard that modifies the standard set out in this clause, or a modified standard in the zone or a schedule to the zone, the modified standard in the schedule to the overlay applies.

  If the land is included in an overlay, other than a Neighbourhood Character Overlay, and a schedule to the overlay specifies a standard that modifies the standard set out in this clause, or a modified standard in the zone or a schedule to the zone, the modified standard in the schedule to the overlay applies.
- **Decision guidelines**. If a standard is not met, the decision guidelines set out the matters that the responsible authority must consider before deciding if the corresponding objective is met.

## Requirements

A development must meet all of the applicable objectives contained in this clause.

If a development meets a standard:

- The corresponding objective is deemed to be met;
- The responsible authority is not required to consider the corresponding decision guidelines.

If a development does not meet a standard, the responsible authority must consider the applicable decision guidelines in determining whether the corresponding objective is met.

### Exemptions

Despite any other provision of this planning scheme, in determining applications to which this clause applies, the responsible authority is exempt from and is not required to consider:

- The Municipal Planning Strategy and Planning Policy Framework, unless an applicable decision guideline specifies otherwise.
- The purpose or decision guidelines of the relevant zone, unless an applicable decision guideline specifies otherwise.
- The decision guidelines in Clause 65, unless an applicable decision guideline specifies otherwise.

If there is any inconsistency between the requirements of this clause and another provision of this planning scheme, this clause prevails.

An application to which this clause applies is exempt from the requirements of:

- Section 60(1)(b), (e), (f), (1A) and (1B) of the Act; and
- Section 84B(2)(b) to (jb) of the Act.

## 55.01 APPLICATION REQUIREMENTS

31/03/2025
VC267

An application to which this clause applies must be accompanied by:

- A site description.
- A design response.
- A written statement outlining which standards are met and which are not met. If a standard is not met, the written statement must include an explanation of how the development meets the corresponding objective having regard to the corresponding decision guidelines.

### 55.01-1 Site description

31/03/2025
VC267

The neighbourhood and site description may use a site plan, photographs or other techniques and must accurately describe:

- The built form, scale and character of surrounding development including front fencing.
- Site shape, size, orientation and easements.
- Levels of the site and the difference in levels between the site and surrounding properties.
- The location of existing buildings on the site and on surrounding properties, including the location and height of walls built to the boundary of the site.
- The use of surrounding buildings.
- The location of secluded private open space and habitable room windows of surrounding properties which have an outlook to the site within 9 metres.
- Solar access to the site and to surrounding properties.
- Location of existing trees 5 metres in height or greater, with a trunk circumference of 0.5 metres or greater at 1.4 metres above ground level, on the site.
- Any cut and filled areas of soil, where known.
- Street frontage features such as poles, services, street trees and kerb crossovers.
- The location of any existing domestic solar energy system on the roof of a dwelling, apartment development or residential building on surrounding properties.

If in the opinion of the responsible authority a requirement of the site description is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement.

### 55.01-2 Design response

31/03/2025
VC267

The design response must explain how the proposed design derives from and responds to the site description.

The design response must include correctly proportioned street elevations or photographs showing the development in the context of adjacent buildings.

The design response must include a landscape plan that details the proposed:

- Retention and planting of canopy trees,
- Planting of other vegetation including location, species, number and size at maturity of vegetation,
- Where required, areas of deep soil and root barriers,
- Irrigation system to support existing and planted vegetation including details of any alternative water supply sources,
- Selection of vegetation that responds to the site's environment and geographic factors,
- A plan showing the location of site services, clothes drying and storage.

If in the opinion of the responsible authority a design response requirement is not relevant to the evaluation of an application, it may waive or reduce the requirement.

# 55.02 NEIGHBOURHOOD CHARACTER

31/03/2025
VC267

## 55.02-1 Street setback objectives

31/03/2025
VC267

To ensure that the setbacks of buildings from a street respond to the existing or preferred neighbourhood character and make efficient use of the site.

### Standard B2-1

Walls of buildings are set back from streets:

- At least the distance specified in a schedule to the zone if the distance specified in the schedule is less than the distance specified in Table B2-1; or
- If no distance is specified in a schedule to the zone, the distance specified in Table B2-1.

Porches, pergolas and verandahs that are less than 3.6 metres high and eaves may encroach not more than 2.5 metres into the setbacks of this standard.

**Table B2-1 Street setback**

| Development context | Minimum setback from front street | Minimum setback from a side street |
|---|---|---|
| There is an existing building on both the abutting allotments facing the same street, and the site is not on a corner. | The same distance as the lesser front wall setback of the existing buildings on the abutting allotments facing the front street or 6 metres, whichever is the lesser. | Not applicable |
| There is an existing building on one abutting allotment facing the same street and no existing building on the other abutting allotment facing the same street, and the site is not on a corner. | The same distance as the setback of the front wall of the existing building on the abutting allotment facing the front street or 6 metres, whichever is the lesser. | Not applicable |
| There is no existing building on either of the abutting allotments facing the same street, and the site is not on a corner. | 6 metres for streets in a Transport Zone 2 and 4 metres for other streets. | Not applicable |
| The site is on a corner. | If there is a building on the abutting allotment facing the front street, the same distance as the setback of the front wall of the existing building on the abutting allotment facing the front street or 6 metres, whichever is the lesser.<br>If there is no building on the abutting allotment facing the front street, 6 metres for streets in a Transport Zone 2 and 4 metres for other streets. | Front walls of new development fronting the side street of a corner site are setback at least the same distance as the setback of the front wall of any existing building on the abutting allotment facing the side street or 3 metres, whichever is the lesser.<br>Side walls of new development on a corner site are setback the same distance as the setback of the front wall of any existing |

| Development context | Minimum setback from front street | Minimum setback from a side street |
|---|---|---|
| | | building on the abutting allotment facing the side street or 2 metres, whichever is the lesser. |

**Decision guidelines**

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- Whether the siting of the building is constrained by the shape, dimensions, slope or other conditions of the site.
- Whether a different setback would be more appropriate taking into account the prevailing setbacks of existing buildings on nearby lots.
- The visual impact of the building when viewed from the street and from adjoining properties.
- Whether a different setback affects the ability to retain or plant canopy trees.

## 55.02-2 Building height objective

31/03/2025
VC267

To ensure that the height of buildings respond to the existing or preferred neighbourhood character.

**Standard B2-2**

The maximum building height does not exceed the maximum height specified in the zone, schedule to the zone or an overlay that applies to the land.

If no maximum height is specified in the zone, schedule to the zone or an overlay, the maximum building height does not exceed 9 metres, unless the slope of the natural ground level at any cross section wider than 8 metres of the site of the building is 2.5 degrees or more, in which case the maximum building height does not exceed 10 metres.

**Decision guidelines**

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- Any maximum building height specified in the zone, a schedule to the zone or an overlay applying to the land.
- The design response.
- The effect of the slope of the site on the height of the building.
- The relationship between the proposed building height and the height of existing adjacent buildings.
- The visual impact of the building when viewed from the street and from adjoining properties.

## 55.02-3 Side and rear setbacks objective

02/04/2025
VC276

To ensure that the height and setback of a building from a boundary responds to the existing or preferred neighbourhood character and limits the impact on the amenity of existing dwellings or small second dwellings.

### Standard B2-3

A new building not on or within 200mm of a boundary is set back from side or rear boundaries in accordance with either B2-3.1 or B2-3.2.

Standard B2-3 is met if the building is set back in accordance with either B2-3.1 or B2-3.2, rather than needing to comply with both of these provisions:

- B2-3.1:
  The building is set back at least 1 metre, plus 0.3 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres.
- B2-3.2:
  If the boundary is not to the south of the building, the building is set back at least 3 metres up to a height not exceeding 11 metres and at least 4.5 metres for a height over 11 metres.
  If the boundary is to the south of the building, the building is set back at least 6 metres up to a height not exceeding 11 metres and at least 9 metres for a height over 11 metres between south 30 degrees west to south 30 degrees east.

Sunblinds, verandahs, porches, eaves, facias, gutters, masonry chimneys, flues, pipes, domestic fuel or water tanks, and heating or cooling equipment or other services may encroach not more than 0.5 metres into the side and rear setbacks.

Landings that have an area of not more than 2 square metres and less than 1 metre high, stairways, ramps, pergolas, shade sails and carports may encroach into the side and rear setbacks.

**Diagram B2-3.1 Side and rear setbacks**

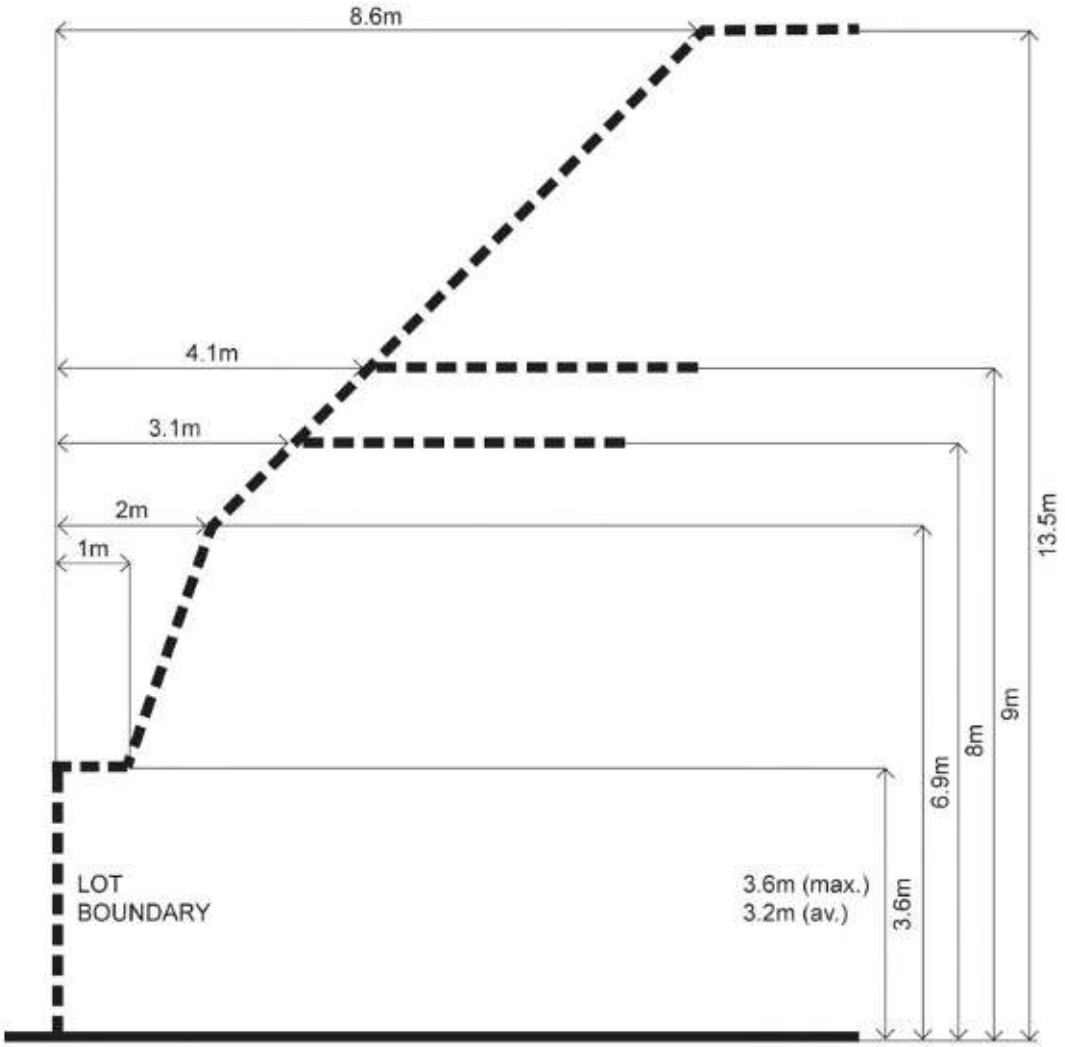
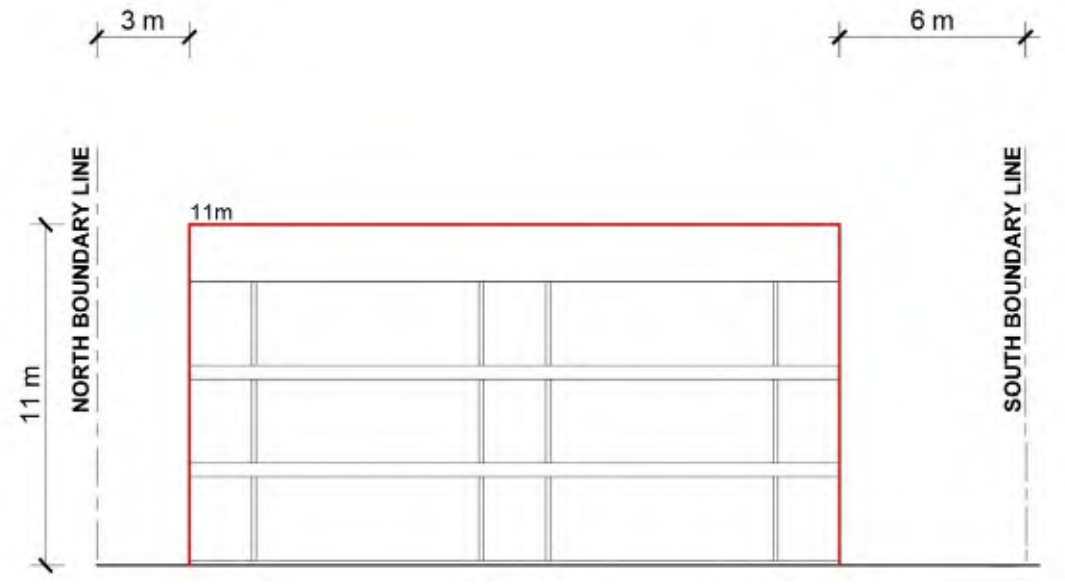



**Diagram B2-3.2 Side and rear setbacks**



### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- The impact on the amenity of the habitable room windows and private open space of existing dwellings or small second dwellings.
- Whether the wall is opposite an existing or simultaneously constructed wall built to the boundary.
- Whether the wall abuts a side or rear lane.
- Whether a different setback in a rear yard affects the ability to retain or plant canopy trees.

## 55.02-4 Walls on boundaries objectives

31/03/2025
VC267

To ensure that the location, length and height of a wall on a boundary responds to the existing or preferred neighbourhood character and limits the impact on the amenity of existing dwellings and small second dwellings.

### Standard B2-4

A new wall constructed on or within 200mm of a side or rear boundary of a lot or a carport constructed on or within 1 metre of a side or rear boundary of a lot does not abut the boundary for a length that exceeds the greater of the following distances:

- 10 metres plus 25 per cent of the remaining length of the boundary of an adjoining lot, or
- The length of existing or simultaneously constructed walls or carports abutting the boundary on an abutting lot.

A new wall or carport may fully abut a side or rear boundary where slope and retaining walls or fences would result in the effective height of the wall or carport being less than 2 metres on the abutting property boundary.

A building on a boundary includes a building set back up to 200mm from a boundary.

The height of a new wall constructed on or within 200mm of a side or rear boundary or a carport constructed on or within 1 metre of a side or rear boundary does not exceed an average of 3.2 metres with no part higher than 3.6 metres unless abutting a higher existing or simultaneously constructed wall.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- The extent to which walls on boundaries are part of the neighbourhood character.
- The impact on the amenity of existing dwellings or small second dwellings.
- The opportunity to minimise the length of walls on boundaries by aligning a new wall on a boundary with an existing wall on a lot of an adjoining property.
- The orientation of the boundary that the wall is being built on.
- The width of the lot.
- The extent to which the slope and retaining walls or fences reduce the effective height of the wall.

- Whether the wall abuts a side or rear lane.
- The need to increase the wall height to screen a box gutter.

## 55.02-5 Site coverage objective

31/03/2025
VC267

To ensure that the site coverage responds to the existing or preferred neighbourhood character and responds to the features of the site.

### Standard B2-5

The site area covered by buildings does not exceed:

- The maximum site coverage specified in a schedule to the zone; or
- If no maximum site coverage is specified in a schedule to the zone, the percentage specified in Table B2-5.

If the maximum site coverage is specified in a schedule to a zone, it must be greater than the percentage specified in Table B2-5.

**Table B2-5 Site coverage**

| Zone | Area |
|---|---|
| Neighbourhood Residential Zone<br><br>Township Zone | 60 per cent |
| General Residential Zone | 65 per cent |
| Residential Growth Zone<br>Mixed Use Zone<br>Housing Choice and Transport Zone | 70 per cent |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- The existing site coverage and any constraints imposed by existing development or the features of the site.
- The site coverage of adjacent properties.
- The effect of the visual bulk of the building and whether this is acceptable in the neighbourhood.
- Whether a different area of site coverage affects the ability to retain or plant canopy trees.

## 55.02-6 Access objective

31/03/2025
VC267

To ensure the number and design of vehicle crossovers responds to the neighbourhood character.

### Standard B2-6

The width of accessways or car spaces (other than to a rear lane) does not exceed:

- 33 per cent of the street frontage; or
- 40 per cent of the street frontage if the width of the street frontage is less than 20 metres.

The number of access points to a road in a Transport Zone 2 or a Transport Zone 3 is not increased.

The location of a vehicle crossover or accessway does not encroach the tree protection zone of an existing tree, that is proposed to be retained in a road by more than 10 per cent.

**Decision guidelines**

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- The reduction of on-street car parking spaces.
- Whether a different accessway width, number of access points or encroachment of an existing tree affects the ability to retain or plant canopy trees on the site or footpath.

## 55.02-7 Tree canopy objectives

31/03/2025
VC267

To provide tree canopy that responds to the neighbourhood character of the area and reduces the visual impact of buildings on the streetscape.

To preserve existing canopy cover and support the provision of new canopy cover.

To ensure new canopy trees are climate responsive, support biodiversity, wellbeing and amenity, and help reduce urban heat.

**Standard B2-7**

Provide a minimum canopy cover as specified in Table B2-7.1.

**Table B2-7.1 Canopy cover**

| Site area | Canopy cover |
|---|---|
| 1000 square metres or less | 10% of site area |
| More than 1000 square metres | 20% of site area |

Existing trees to be retained meet all of the following:

- Has a height of at least 5 metres,
- Has a trunk circumference of 0.5 metres or greater at 1.4 metres above ground level,
- Has a trunk that is located at least 4 metres from proposed buildings.

The minimum canopy cover is met using any combination of trees specified in Table B2-7.2.

Existing trees that are retained can be used in calculating canopy cover.

**Table B2-7.2 Tree type, canopy cover, deep soil and planter requirements**

| Tree type | Minimum canopy diameter at maturity | Minimum height at maturity | Minimum mature canopy cover | Tree in deep soil<br>Area of deep soil | Tree in planter<br>Volume of planter | Minimum depth of planter soil |
|---|---|---|---|---|---|---|
| A | 4 metres | 6 metres | 12.6 sqm | 12 square metres<br>(min. plan dimension 2.5 metres) | 12 cubic metres<br>(min. plan dimension 2.5 metres) | 0.8 metre |

| Tree type | Minimum canopy diameter at maturity | Minimum height at maturity | Minimum mature canopy cover | Tree in deep soil<br>Area of deep soil | Tree in planter<br>Volume of planter | Minimum depth of planter soil |
|---|---|---|---|---|---|---|
| B | 8 metres | 8 metres | 50.3 sqm | 49 square metres<br>(min. plan dimension 4.5 metres) | 28 cubic metres<br>(min. plan dimension 4.5 metres) | 1 metre |
| C | 12 metres | 12 metres | 113.1 sqm | 121 square metres<br>(min. plan dimension 6.5 metres) | 64 cubic metres<br>(min. plan dimension 6.5 metres) | 1.5 metre |

Provide at least one new or retained tree in the front setback and the rear setback.

Trees are located in either:

- An area of deep soil as specified in Table B2-7.2; or
- A planter as specified in Table B2-7.2.

Any tree required to be planted under this standard must be of species to the satisfaction of the responsible authority, having regard to the location and relevant geographic factors.

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The site context and design response.
- The extent to which the existing and proposed canopy trees contribute to a greener environment and reduce urban heat.
- Whether the growth characteristics of existing trees and proposed canopy trees will provide the required canopy cover.
- The suitability of the planting location, deep soil areas and planter soil volume for proposed canopy trees.
- Whether the species of canopy tree is suited to the soil conditions of the site.

## 55.02-8 Front fences objective

31/03/2025
VC267

To encourage front fence design that responds to the existing or preferred neighbourhood character.

#### Standard B2-8

A front fence within 3 metres of a street is:

- The maximum height specified in a schedule to the zone, or
- If no maximum height is specified in a schedule to the zone, the maximum height specified in Table B2-8.

**Table B2-8 Maximum front fence height**

| Street context | Maximum front fence height |
|---|---|
| Streets in a Transport Zone 2 | 2 metres |
| Other streets | 1.5 metres |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.
- The setback, height and appearance of front fences on adjacent properties.
- The extent to which slope and retaining walls reduce the effective height of the front fence.
- Whether the fence is needed to minimise noise intrusion.

# 55.03 LIVEABILITY

31/03/2025
VC267

## 55.03-1 Dwelling diversity objective

31/03/2025
VC267

To encourage a range of dwelling sizes and types in developments of ten or more dwellings.

### Standard B3-1

Developments include at least:

- One dwelling that contains a kitchen, bath or shower, bedroom and a toilet and wash basin at ground floor level for every 10 dwellings.
- One dwelling that includes no more and no less than 2 bedrooms for every 10 dwellings.
- One dwelling that includes no more and no less than 3 bedrooms for every 10 dwellings.

### Decision guidelines

Before deciding on an application, the responsible authority must consider whether the development provides a range of dwelling sizes and types to meet diverse household needs.

## 55.03-2 Parking location objective

31/03/2025
VC267

To minimise the impact of vehicular noise within developments on residents.

### Standard B3-2

Habitable room windows with sill heights of less than 3 metres above ground level are setback from accessways and car parks by at least:

- 1.5 metres; or
- If there is a solid fence with a height of at least 1.5 metres between the accessway or car park and the window, 1 metre; or
- 1 metre where window sills are at least 1.5 metres above ground level.

This standard is met if an accessway or relevant car parking space is used exclusively by the resident of the building with the habitable room.

### Decision guidelines

Before deciding on an application, the responsible authority must consider the design response.

## 55.03-3 Street integration objective

31/03/2025
VC267

To integrate the layout of development with the street to support the safety and amenity of residents.

### Standard B3-3

Where a development fronts a street, a vehicle accessway or abuts public open space:

- Passive surveillance is provided by a direct view from a balcony or a habitable room window to each street, vehicle accessway and public open space.
- The total cumulative width of all site services to be located within 3 metres of a street, do not take up more than 20 per cent of the width of the frontage and are screened from view from the street or located behind a fence. Screens or fences are to provide no more than 25 per cent transparency.

Lighting is provided to all external accessways and paths.

Mailboxes are provided for each dwelling and can be communally located.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character objective, policy or statement set out in this scheme.
- The design response.

## 55.03-4 Entry objectives

31/03/2025
VC267

To provide each dwelling, apartment development or residential building with its own sense of identity.

To provide entries with weather protection, safe design, natural light and ventilation.

### Standard B3-4

#### Dwellings (other than a dwelling in or forming part of an apartment development) and residential buildings

Each dwelling and each residential building has a ground level entry door that:

- Has a direct line of sight from a street, accessway or shared walkway.
- Is not accessed through a garage.
- Has an external covered area of at least 1.44 square metres with a minimum dimension of least 1.2 metres over the entry door.

#### Apartment development and residential building with a shared entry

An apartment development and each residential building has:

- A ground level entry door, gate or walkway with a direct line of sight from a street, accessway or shared walkway.
- An external covered area of at least 1.44 square metres with a minimum dimension of least 1.2 metres over the entry door to the building.
- Shared corridors and common areas have at least one source of natural light and natural ventilation.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Whether the entry is visible and easily identifiable from streets and other public areas.
- Whether the entry provides shelter, a sense of address and a transitional space around the entry.

## 55.03-5 Private open space objectives

31/03/2025
VC267

To provide adequate private open space for the reasonable recreation and service needs of residents.

### Standard B3-5

A dwelling or residential building has private open space of an area and dimensions specified in a schedule to the zone.

If no area or dimension is specified in a schedule to the zone, a dwelling or residential building has private open space with direct access from a living area, dining area or kitchen consisting of:

- An area of 25 square metres of secluded private open space, with a minimum dimension of 3 metres width; or
- A balcony with at least the area and dimensions specified in Table B3-5; or

- An area on a podium or similar of at least 15 square metres, with a minimum dimension of 3 metres width; or
- An area on a roof of at least 10 square metres, with a minimum dimension of 2 metres width.

If the area and dimensions of the private open space or secluded private open space is specified in a schedule to the zone;

- The area and dimensions specified in the schedule must be 25 square metres or less; and
- The area and dimensions specified for a podium, balcony or an area on a roof must be less than the area and dimensions specified in this standard.

If a cooling or heating unit is located in the secluded private open space or private open space the required area is increased by 1.5 square metres.

Where ground level private open space is provided an area for clothes drying is provided.

**Table B3-5 Private open space for a balcony**

| Orientation of dwelling | Dwelling type | Minimum area | Minimum dimension |
|---|---|---|---|
| North (between north 20 degrees west to north 30 degrees east) | All | 8 square metres | 1.7 metres |
| South (between south 30 degrees west to south 20 degrees east) | All | 8 square metres | 1.2 metres |
| Any other orientation | Studio or 1 bedroom dwelling | 8 square metres | 1.8 metres |
| | 2 bedroom dwelling | 8 square metres | 2 metres |
| | 3 bedroom dwelling | 12 square metres | 2.4 metres |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability of the private open space, including its size and accessibility.
- The availability of and access to public or communal open space.
- The orientation of the lot to the street and the sun.

## 55.03-6 Solar access to open space objective

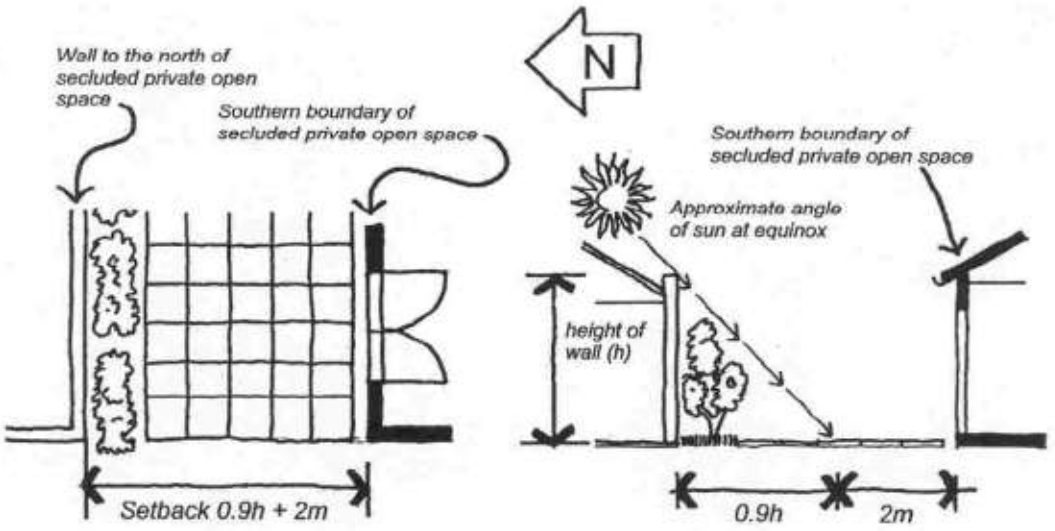
31/03/2025
VC267

To allow solar access into the secluded private open space of new dwellings and residential buildings.

### Standard B3-6

The southern boundary of secluded private open space is set back from any wall on the north of the space at least (2 + 0.9h) metres, where ‘h’ is the height of the wall.

**Diagram B3-6 Solar access to open space**




### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability and amenity of the secluded private open space based on the sunlight it will receive.

## 55.03-7 Functional layout objective

02/04/2025
VC276

To ensure dwellings provide functional areas that meet the needs of residents.

### Standard B3-7

Bedrooms:

- Meet the minimum internal room dimensions specified in Table B3-7.1; and
- Provide an additional area of at least 0.8 square metres to accommodate a wardrobe.

**Table B3-7.1 Bedroom dimensions**

| Bedroom type | Minimum width | Minimum depth |
|---|---|---|
| Main bedroom | 3 metres | 3.4 metres |
| All other bedrooms | 3 metres | 3 metres |

Living areas (excluding dining and kitchen areas) meet the minimum internal room dimensions specified in Table B3-7.2.

**Table B3-7.2 Living area dimensions**

| Dwelling type | Minimum width | Minimum area |
|---|---|---|
| Studio and 1 bedroom dwelling | 3.3 metres | 10 sqm |
| 2 or more bedroom dwelling | 3.6 metres | 12 sqm |

#### Decision guideline

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability and amenity of habitable rooms.

## 55.03-8 Room depth objective

31/03/2025
VC267

To allow adequate daylight into single aspect habitable rooms.

#### Standard B3-8

The depth of a single aspect habitable room does not exceed 2.5 times the ceiling height measured from the external surface of the habitable room window to the rear wall of the room.

The depth of a single aspect, open plan, habitable room may be increased to 9 metres if all the following requirements are met:

- The room combines the living area, dining area and kitchen; and
- The kitchen is located furthest from the window; and
- The ceiling height is at least 2.7 metres measured from finished floor level to finished ceiling level, this excludes where services are provided above the kitchen; and
- An overhang extends no more than 2m beyond the window of the single aspect habitable room.

In Clause 55.03-8 a single aspect habitable room is a habitable room with windows on only one wall.

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The extent to which the habitable room is provided with reasonable daylight access through the number, size, location and orientation of windows.
- The useability, functionality and amenity of the dwelling based on the layout, siting, size and orientation of habitable rooms.
- Any overhang above habitable room windows that limits daylight access.

## 55.03-9 Daylight to new windows objective

31/03/2025
VC267

To allow adequate daylight into new habitable room windows.

#### Standard B3-9

#### Dwelling (other than a dwelling in or forming part of an apartment development)

A window in an external wall of the building is provided to all habitable rooms.

Habitable rooms in a dwelling have a window that faces:

- An outdoor space clear to the sky or a light court with a minimum area of 3 square metres and minimum dimension of 1 metre clear to the sky, not including land on an abutting lot; or
- A verandah provided it is open for at least one third of its perimeter; or
- A carport provided it has two or more open sides and is open for at least one third of its perimeter.

#### Dwelling in or forming part of an apartment development

A window in an external wall of the building is provided to all habitable rooms.

Where daylight to a bedroom is provided from a smaller secondary area within the bedroom, the secondary area is to have:

- A minimum width of 1.2 metres.
- A maximum depth of 1.5 times the width, measured from the external surface of the window.
- A window clear to the sky.

**Decision guidelines**

Before deciding on an application, the responsible authority must consider:

- The design response.
- The extent to which habitable rooms are provided with reasonable daylight access through the number, size, location and orientation of windows.
- The useability and amenity of the dwelling based on the layout, siting, size and orientation of habitable rooms.
- Whether there are other windows in the habitable room which have access to daylight.

## 55.03-10 Natural ventilation objectives

31/03/2025
VC267

To encourage natural ventilation of dwellings.

To allow occupants to effectively manage natural ventilation of dwellings.

**Standard B3-10**

**Dwelling (other than a dwelling in or forming part of an apartment development)**

Dwellings have openable windows, doors or other ventilation devices in external walls of the building that provide:

- A maximum breeze path through the dwelling of 18 metres.
- A minimum breeze path through the dwelling of 5 metres.
- Ventilation openings with approximately the same size.

The breeze path is measured between the ventilation openings on different orientations of the dwelling.

**Dwelling in or forming part of an apartment development**

At least 40 per cent of dwellings have openable windows, doors or other ventilation devices in external walls of the building that provide:

- A maximum breeze path through the dwelling of 18 metres.
- A minimum breeze path through the dwelling of 5 metres.
- Ventilation openings with approximately the same size.

The breeze path is measured between the ventilation openings on different orientations of the dwelling.

**Decision guidelines**

Before deciding on an application, the responsible authority must consider:

- The design response.
- The size, orientation, slope and wind exposure of the site.

- The extent to which the orientation and layout of the dwelling maximises opportunities for cross ventilation.
- Whether an alternative design meets the relevant objectives having regard to the amenity of the dwelling and site context.

## 55.03-11 Storage objective

31/03/2025
VC267

To provide adequate storage facilities for each dwelling.

### Standard B3-11

#### Dwelling (other than a dwelling in or forming part of an apartment development)

Each dwelling has exclusive access to at least 6 cubic metres of externally accessible storage space.

#### Dwelling in or forming part of an apartment development

Each dwelling has exclusive access to storage at least the total minimum storage volume that is specified in Table B3-11.

**Table B3-11 Storage**

| Dwelling type | Total minimum storage volume | Minimum storage volume within the dwelling |
|---|---|---|
| Studio | 8 cubic metres | 5 cubic metres |
| 1 bedroom dwelling | 10 cubic metres | 6 cubic metres |
| 2 bedroom dwelling | 14 cubic metres | 9 cubic metres |
| 3 or more bedroom dwelling | 18 cubic metres | 12 cubic metres |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability, functionality and location of storage facilities provided for the dwelling.

## 55.03-12 Accessibility for apartment developments objective

31/03/2025
VC267

To ensure the design of dwellings meets the needs of people with limited mobility.

### Standard B3-12

At least 50 per cent of dwellings in or forming part of an apartment development have:

- A clear opening width of at least 850mm at the entrance to the dwelling and main bedroom.
- A clear path with a minimum width of 1.2 metres that connects the dwelling entrance to the main bedroom, an adaptable bathroom and the living area.
- A main bedroom with access to an adaptable bathroom.
- At least one adaptable bathroom that meets all of the requirements of either Design A or Design B specified in Table B3-12.

**Table B3-12 Bathroom design**

| | Design option A | Design option B |
|---|---|---|
| Door opening | A clear 850mm wide door opening. | A clear 820mm wide door opening located opposite the shower. |
| Door design | Either:<br>▪ A slide door, or<br>▪ A door that opens outwards, or<br>▪ A door that opens inwards that is clear of the circulation area and has readily removable hinges. | Either:<br>▪ A slide door, or<br>▪ A door that opens outwards, or<br>▪ A door that opens inwards and has readily removable hinges. |
| Circulation area | A clear circulation area that is:<br>▪ A minimum area of 1.2 metres by 1.2 metres.<br>▪ Located in front of the shower and the toilet.<br>▪ Clear of the toilet, basin and the door swing.<br>The circulation area for the toilet and shower can overlap. | A clear circulation area that is:<br>▪ A minimum width of 1 metre.<br>▪ The full length of the bathroom and a minimum length of 2.7 metres.<br>▪ Clear of the toilet and basin.<br>The circulation area can include a shower area. |
| Path to circulation area | A clear path with a minimum width of 900mm from the door opening to the circulation area. | Not applicable. |
| Shower | A hobless (step-free) shower. | A hobless (step-free) shower that has a removable shower screen and is located on the furthest wall from the door opening. |
| Toilet | A toilet located in the corner of the room. | A toilet located closest to the door opening and clear of the circulation area. |

## 55.04 EXTERNAL AMENITY

31/03/2025
VC267

### 55.04-1 Daylight to existing windows objective

31/03/2025
VC267

To allow adequate daylight into existing habitable room windows.

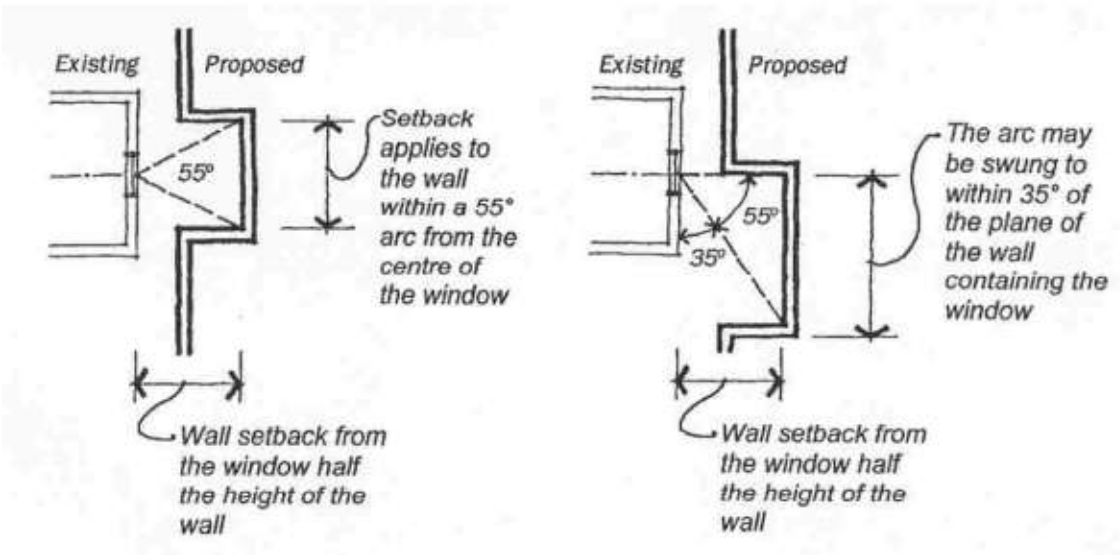
#### Standard B4-1

Buildings opposite an existing habitable room window provide for a light court to the existing window that has a minimum area of 3 square metres and minimum dimension of 1 metre clear to the sky. The calculation of the area may include land on the abutting lot.

Walls or carports more than 3 metres in height opposite an existing habitable room window are set back from the window at least 50 per cent of the height of the new wall if the wall is within a 55 degree arc from the centre of the existing window. The arc may be swung to within 35 degrees of the plane of the wall containing the existing window.

Where the existing window is above ground floor level, the wall height is measured from the floor level of the room containing the window.

#### Diagram B4-1 Daylight to existing windows




#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The extent to which the existing dwelling or small second dwelling has provided for reasonable daylight access to its habitable rooms through the siting and orientation of its habitable room windows.
- The impact on the amenity of existing dwellings or small second dwellings.

### 55.04-2 Existing north-facing windows objective

02/04/2025
VC276

To allow adequate solar access to existing north-facing habitable room windows.

#### Standard B4-2

Where a north-facing habitable room window of a neighbouring dwelling or small second dwelling is within 3 metres of a boundary on an abutting lot:

- A new building is to be set back from the boundary by at least 1 metre, plus 0.6 metres for every metre of height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres. This setback is to be provided for a distance of at least 3 metres from the edge of each side of the window.
- For new buildings that meet the Standard B2-3.2 setback, the building is set back from the boundary by at least 6 metres up to a height not exceeding 11 metres and at least 9 metres for a height over 11 metres between south 30 degrees west to south 30 degrees east. This setback is to be provided for a distance of at least 3 metres from the edge of each side of the window.

For this standard a north-facing window is a window with an axis perpendicular to its surface oriented from north 20 degrees west to north 30 degrees east.

**Diagram B4-2.1 North-facing windows**

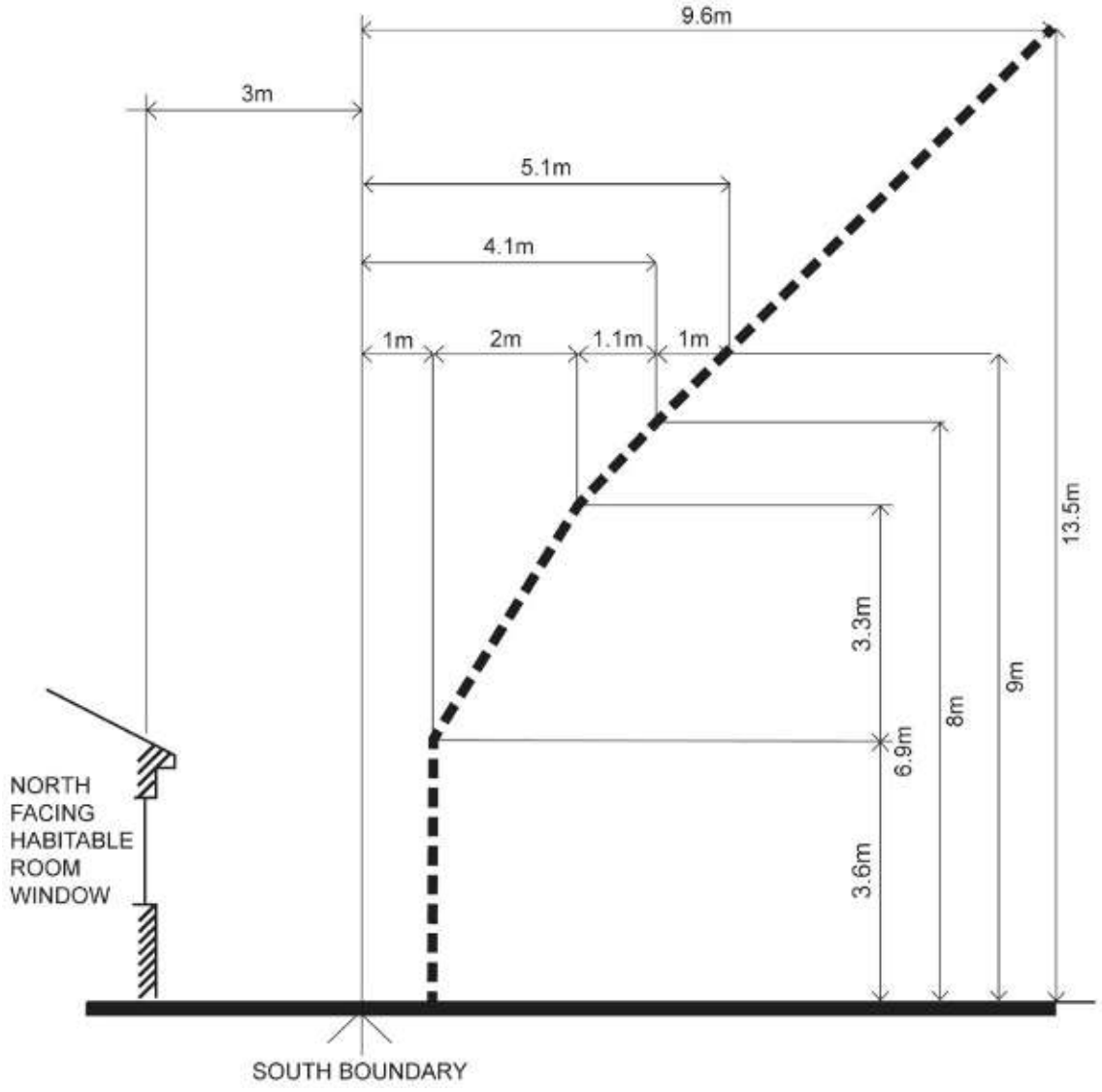
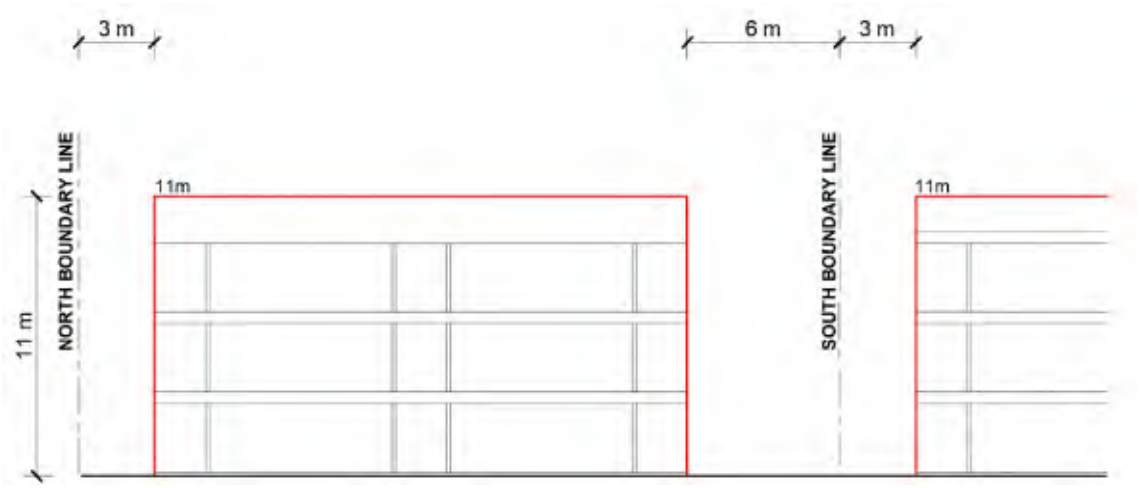


**Diagram B4-2.2 North-facing windows**




### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- Existing sunlight to the north-facing habitable room window of the existing dwelling or small second dwelling.
- The impact on the amenity of existing dwellings or small second dwellings.

## 55.04-3 Overshadowing secluded open space objective

02/04/2025
VC276

To ensure buildings do not significantly overshadow existing secluded private open space.

### Standard B4-3

The area of secluded private open space that is not overshadowed by the new development is greater than 50 per cent, or 25 square metres with a minimum dimension of 3 metres, whichever is the lesser area, for a minimum of five hours between 9 am and 3 pm on 22 September.

If existing sunlight to the secluded private open space of an existing dwelling or small second dwelling is less than the requirements of this standard, the amount of sunlight will not be further reduced.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The impact on the amenity of existing dwellings or small second dwellings.
- Existing sunlight penetration to the secluded private open space of the existing dwelling or small second dwelling.
- The time of day that sunlight will be available to the secluded private open space of the existing dwelling or small second dwelling.
- The effect of a reduction in sunlight on the existing use of the existing secluded private open space.

## 55.04-4 Overlooking objective

31/03/2025
VC267

To limit views into existing secluded private open space and habitable room windows.

### Standard B4-4

In Clause 55.04-4 a habitable room does not include a bedroom.

A habitable room window, balcony, podium, terrace, deck or patio is located and designed to avoid direct views into the secluded private open space of an existing dwelling or small second dwelling within a horizontal distance of 9 metres (measured at ground level) of the window, balcony, terrace, deck or patio. Views are measured within a 45 degree angle from the plane of the window or perimeter of the balcony, terrace, deck or patio, and from a height of 1.7 metres above floor level.

A habitable room window, balcony, terrace, deck or patio that is located with a direct view into a habitable room window of an existing dwelling or small second dwelling within a horizontal distance of 9 metres (measured at ground level) of the window, balcony, terrace, deck or patio:

- Is offset a minimum of 1.5 metres from the edge of one window to the edge of the other; or
- Has sill heights of at least 1.7 metres above floor level; or
- Has fixed, obscure glazing in any part of the window below 1.7 metre above floor level; or
- Has permanently fixed external screens to at least 1.7 metres above floor level and be no more than 25 per cent transparent; or
- Has fixed elements that prevent the direct view, such as horizontal ledges or vertical fins.

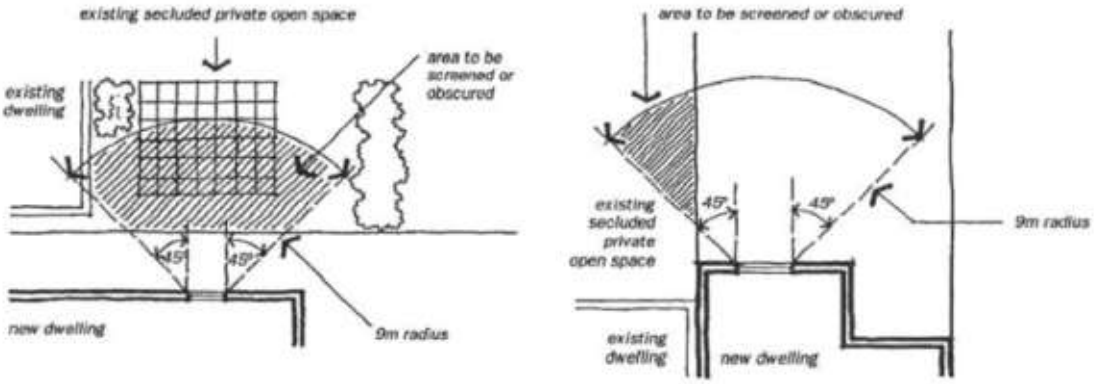
Obscure glazing in any part of the window below 1.7 metres above floor level may be openable provided that there are no direct views as specified in this standard.

Screens used to obscure a view are:

- Perforated panels or trellis with a maximum of 25 per cent openings or solid translucent panels.
- Permanent, fixed and durable.
- Designed and coloured to blend in with the development.

This standard does not apply to a new habitable room window, balcony, terrace, deck or patio which faces a property boundary where there is a visual barrier at least 1.8 metres high and the floor level of the habitable room, balcony, terrace, deck or patio is less than 0.8 metres above ground level at the boundary.

**Diagram B4-4 Overlooking**




### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The impact on the amenity of the secluded private open space or habitable room window.

- The existing extent of overlooking into the secluded private open space and habitable room windows of existing dwellings or small second dwellings.
- The internal daylight to and amenity of the proposed dwelling, residential building or small second dwelling.

## 55.04-5 Internal views objective

31/03/2025
VC267

To limit views into the secluded private open space and habitable room windows of dwellings and residential buildings within a development.

### Standard B4-5

In Clause 55.04-5 a habitable room does not include a bedroom.

Within the development, a habitable room window, balcony, terrace, deck or patio that is located with a direct view into the secluded private open space of another dwelling:

- Is offset a minimum of 1.5 metres from the edge of the secluded private open space; or
- Has a sill height of at least 1.7 metres above floor level; or
- Has a fixed, visually obscure balustrade to at least 1.7 metre above floor level; or
- Has permanently fixed external screens to at least 1.7 metres above floor level; or.
- Has fixed elements that prevent the direct view, such as horizontal ledges or vertical fins.

Direct views are measured at a height of 1.7 metres above floor level and within:

- A 45 degree horizontal angle from the edge of the new window or balcony.
- A 45 degree angle in the downward direction.

Screens provided for overlooking are no more than 25 per cent transparent. Screens may be openable provided that this does not allow direct views as specified in this standard.

### Decision guideline

Before deciding on an application, the responsible authority must consider the design response.

# 55.05 SUSTAINABILITY

31/03/2025
VC267

## 55.05-1 Permeability and stormwater management objective

04/02/2026
VC265

To reduce the impact of increased stormwater run-off on the drainage system and downstream waterways.

To facilitate on-site stormwater infiltration.

To encourage stormwater management that maximises the retention and reuse of stormwater.

To contribute to urban cooling.

### Standard B5-1

The site area covered by the pervious surfaces is at least 20 percent of the site.

The development includes a stormwater management system designed to:

- Meet the best practice quantitative performance objectives for stormwater quality specified in the *Urban stormwater management guidance* (EPA Publication 1739.1, 2021) of:
  - Suspended solids 80% reduction in mean annual load.
  - Total phosphorus and Total Nitrogen 45% reduction in mean annual load.
  - Litter 70% reduction of mean annual load.

  **Note:**

  A certificate generated from a stormwater assessment tool including Stormwater Treatment Objective - Relative Measurement (STORM), Model for Urban Stormwater Improvement Conceptualisation (MUSIC) or an equivalent product accepted by the responsible authority may be used to demonstrate the performance objectives for stormwater quality are met.

- Direct flows of stormwater into treatment areas, garden areas, tree pits and permeable surfaces, with drainage of residual flows to the legal point of discharge.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The capacity of the site to incorporate stormwater retention and reuse.
- The existing site coverage and any constraints imposed by existing development.
- The capacity of the drainage network to accommodate additional stormwater.

## 55.05-2 Overshadowing domestic solar energy systems objective

31/03/2025
VC267

To ensure that the height and setback of a building from a boundary allows reasonable solar access to existing domestic solar energy systems on the roofs of buildings.

### Standard B5-2

Any part of a new building that will reduce the sunlight at any time between 9am and 4 pm on 22 September to an existing domestic solar energy system on the roof of a building on an adjoining lot be set back from the boundary to that lot by at least 1 metre at 3.6 metres above ground level, plus 0.3 metres for every metre of building height over 3.6 metres up to 6.9 metres, plus 1 metre for every metre of height over 6.9 metres.

This standard applies to an existing building in a Township Zone, General Residential Zone or Neighbourhood Residential Zone.

In Clause 55.05-2 domestic solar energy system means a domestic solar energy system that existed at the date the application was lodged.

### Decision guidelines

Before deciding on an application, the responsible authority must consider whether the domestic solar energy system has been sited to optimise efficiency and protection from overshadowing.

## 55.05-3 Rooftop solar energy generation area objective

31/03/2025
VC267

To support the future installation of appropriately sited rooftop solar energy systems for a dwelling.

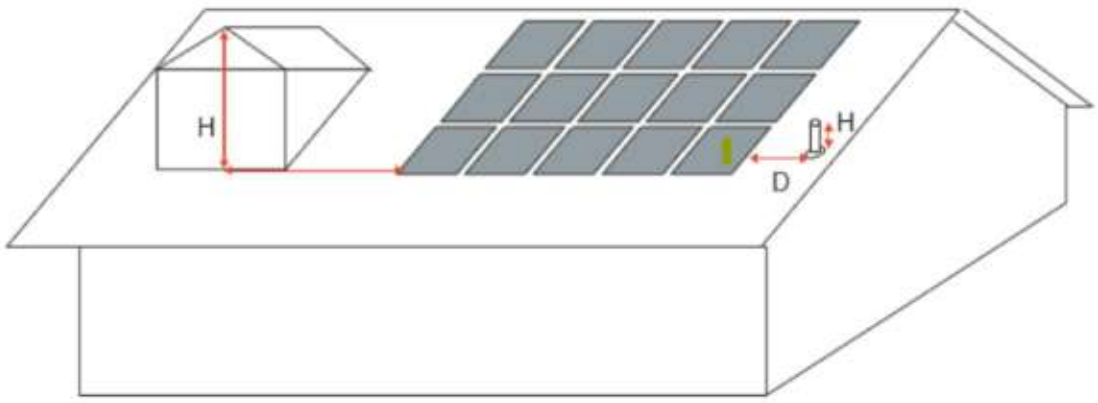
### Standard B5-3

In Clause 55.05-3 rooftop solar energy area means an area provided on the roof of a dwelling to enable the future installation of a solar energy system.

An area on the roof is capable of siting a rooftop solar energy area for each dwelling which:

- Has a minimum dimension of 1.7 metres.
- Has a minimum area in accordance with Table B5-3.
- Is oriented to the north, west or east.
- Is positioned on the top two thirds of a pitched roof.
- Can be a contiguous area or multiple smaller areas.
- Is free of obstructions on the roof of the dwelling within twice the height of each obstruction (H), measured horizontally (D) from the centre point of the base of the obstruction to the nearest point of the rooftop solar energy area.

**Diagram B5-3 Allowable distance between obstructions and the rooftop solar energy area**




Obstructions located south of all points of the rooftop solar energy area are not subject to the horizontal distance requirements.

**Table B5-3 Minimum rooftop solar energy generation area**

| Number of bedrooms | Minimum roof area |
|---|---|
| 1 bedroom dwelling | 15 square metres |
| 2 or 3 bedroom dwelling | 26 square metres |

| Number of bedrooms | Minimum roof area |
|---|---|
| 4 or more bedroom dwelling | 34 square metres |

This standard does not apply to apartments and residential buildings.

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The size and orientation of the building.
- The availability of solar access to the rooftop.
- The extent to which the rooftop solar energy generation area is overshadowed by existing buildings, other permanent structures or equipment on the rooftop.

## 55.05-4 Solar protection to new north-facing windows objective

31/03/2025
VC267

To encourage external shading of north facing windows to minimise summer heat gain.

#### Standard B5-4

North facing windows are shaded by eaves, fixed horizontal shading devices or fixed awnings with a minimum horizontal depth of 0.25 times the window height.

#### Decision Guidelines

Before deciding on an application, the responsible authority considers:

- The design response.
- The size and orientation of the lot.
- The type and useability of external solar shading devices, including alternative design responses.

## 55.05-5 Waste and recycling objectives

31/03/2025
VC267

To ensure dwellings are designed to facilitate waste recycling.

To ensure that waste and recycling facilities are accessible and are of sufficient size to manage organic and general waste, and mixed and glass recycling.

To ensure that waste and recycling facilities are designed and managed to minimise impacts on residential amenity.

#### Standard B5-5

#### Dwelling (other than a dwelling in or forming part of an apartment development)

The development includes an individual bin storage area for each dwelling, or a shared bin storage area for use by each dwelling, of at least the applicable area, depth and height specified in Table B5-5.1.

#### Table B5-5.1 Bin storage

| Type of bin storage area | Minimum area | Minimum depth | Minimum height |
|---|---|---|---|
| Individual bin storage area for a dwelling. | 1.8 square metres | 0.8 metre | 1.8 metres |

| Type of bin storage area | Minimum area | Minimum depth | Minimum height |
|---|---|---|---|
| Shared bin storage area for 3 dwellings or less. | 5.4 square metres | 0.8 metre | 1.8 metres |
| Shared bin storage area for 4 or more dwellings. | 1 square metre per dwelling plus 4 square metres | 0.8 metre | 1.8 metres |

If the development includes a shared bin storage area:

- The shared bin storage area:
  - Is located within 40 metres of a kerbside collection point.
  - Includes a tap for bin washing.
- There is a continuous path of travel free of steps and obstructions from dwellings to the bin storage area.

Where access is provided for private bin collection on the land the design of access ways must allow the vehicle to enter and exit in a forward direction.

Each dwelling includes an internal waste and recycling storage space of at least 0.07 cubic metres with a minimum depth of 250 millimetres.

**Dwelling in or forming part of an apartment development**

The development includes a shared bin storage area for use by each dwelling of at least the applicable area, depth and height specified in Table B5-5.2.

**Table B5-5.2 Apartment bin storage**

| Number of dwellings | Minimum area | Minimum depth | Minimum height |
|---|---|---|---|
| 15 or less dwellings | 0.7 square metres per dwelling in a shared waste storage area | 0.8 metres | 2.7 metres |
| 16 to 55 dwellings | 0.5 square metres per dwelling, plus 5 square metres in a shared waste storage area. | 1 metre | 2.7 metres |
| 56 or more dwellings | 0.5 square metres per dwelling in a shared waste storage area. | 1 metre | 2.7 metres |

Enclosed bin storage areas are ventilated by:

- Natural ventilation openings to the external air with an area of at least 5 per cent of the area for bin storage area; or
- A mechanical exhaust ventilation system.

A tap and drain is provided to wash bins.

A continuous path of travel is provided from each dwelling to bin storage areas.

Each dwelling includes an internal waste and recycling storage space of at least 0.07 cubic metres with a minimum depth of 250 millimetres.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response, including a Waste Management Plan.
- Any relevant waste and recycling objective, policy or statement set out in this planning scheme.
- The functionality and accessibility of waste and recycling facilities, including for people with limited mobility.
- Whether facilities are provided for on-site reuse or management of food and garden organics through composting or other waste recovery.
- Whether waste and recycling facilities are designed to meet the better practice design options specified in Waste management and recycling in multi-unit developments (Sustainability Victoria, 2019).

## 55.05-6 Noise impacts objective

31/03/2025
VC267

To minimise the impact of mechanical plant noise located in the development.

### Standard B5-6

Mechanical plant, including mechanical car storage and lift facilities are not located immediately adjacent to bedrooms of new or existing dwellings or small second dwellings, unless a solid barrier is in place to provide a line of sight barrier to transmission of noise and the location of all relevant bedrooms.

### Decision guideline

Before deciding on an application, the responsible authority must consider:

- The design response.
- Whether the impact of potential noise sources within a development have been mitigated through design, location and siting.
- Whether an alternative design meets the relevant objectives having regard to the amenity of the dwelling or small second dwelling and the site context.

## 55.05-7 Energy efficiency for apartment developments objectives

31/03/2025
VC267

To achieve energy efficient dwellings and buildings.

To ensure dwellings achieve adequate thermal efficiency.

### Standard B5-7

Dwellings in or forming part of an apartment development located in a climate zone identified in Table B5-7 do not exceed the maximum NatHERS annual cooling load.

| NatHERS climate zone | NatHERS maximum cooling load<br>MJ/M$^2$ per annum |
|---|---|
| Climate zone 21 Melbourne | 30 |
| Climate zone 22 East Sale | 22 |
| Climate zone 27 Mildura | 69 |
| Climate zone 60 Tullamarine | 22 |
| Climate zone 62 Moorabbin | 21 |

| NatHERS climate zone | NatHERS maximum cooling load<br>MJ/M$^2$ per annum |
|---|---|
| Climate zone 63 Warrnambool | 21 |
| Climate zone 64 Cape Otway | 19 |
| Climate zone 66 Ballarat | 23 |

**Note:**

Refer to NatHERS zone map, Nationwide House Energy Rating Scheme (Commonwealth Department of Environment and Energy).

### Decision Guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The size, orientation and layout of the site.
- The availability of solar access to north-facing windows on the site.
- The annual cooling load for each dwelling.

# 56 RESIDENTIAL SUBDIVISION

25/02/2025
VC257

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To create liveable and sustainable neighbourhoods and urban places with character and identity.

To achieve residential subdivision outcomes that appropriately respond to the site and its context for:

- Metropolitan Melbourne growth areas.
- Infill sites within established residential areas.
- Regional cities and towns.

To ensure residential subdivision design appropriately provides for:

- Policy implementation.
- Liveable and sustainable communities.
- Residential lot design.
- Urban landscape.
- Access and mobility management.
- Integrated water management.
- Site management.
- Utilities.

## Application

These provisions apply to an application to subdivide land in the Neighbourhood Residential Zone, General Residential Zone, Residential Growth Zone, Housing Choice and Transport Zone, Mixed Use Zone or Township Zone and any Comprehensive Development Zone or Priority Development Zone that provides for residential development.

These provisions do not apply to an application to subdivide land into lots each containing an existing dwelling or car parking space.

## Operation

The provisions of this clause contain:

- **Objectives.** An objective describes the desired outcome to be achieved in the completed subdivision.
- **Standards.** A standard contains the requirements to meet the objective.

A standard should normally be met. However, if the responsible authority is satisfied that an application for an alternative design solution meets the objective, the alternative design solution may be considered.

## Requirement

An application to subdivide land:

- Must be accompanied by a site and context description and a design response.
- Must meet all of the objectives included in the clauses specified in the zone.
- Should meet all of the standards included in the clauses specified in the zone.

### Certification of standards

A subdivision may be certified by a person authorised by the Minister for Planning as meeting the requirements of a standard in this clause.

A standard that is certified as met is deemed to have met the objective of that standard.

# 56.01 SUBDIVISION SITE AND CONTEXT DESCRIPTION AND DESIGN RESPONSE

16/01/2018
VC142

## 56.01-1 Subdivision site and context description

16/01/2018
VC142

The site and context description may use a site plan, photographs or other techniques and must accurately describe:

- In relation to the site:
  - Site shape, size, dimensions and orientation.
  - Levels and contours of the site.
  - Natural features including trees and other significant vegetation, drainage lines, water courses, wetlands, ridgelines and hill tops.
  - The siting and use of existing buildings and structures.
  - Street frontage features such as poles, street trees and kerb crossovers.
  - Access points.
  - Location of drainage and other utilities.
  - Easements.
  - Any identified natural or cultural features of the site.
  - Significant views to and from the site.
  - Noise and odour sources or other external influences.
  - Soil conditions, including any land affected by contamination, erosion, salinity, acid sulphate soils or fill.
  - Any other notable features or characteristics of the site.
  - Adjacent uses.
  - Any other factor affecting the capacity to develop the site including whether the site is affected by inundation.
- An application for subdivision of 3 or more lots must also describe in relation to the surrounding area:
  - The pattern of subdivision.
  - Existing land uses.
  - The location and use of existing buildings on adjacent land.
  - Abutting street and path widths, materials and detailing.
  - The location and type of significant vegetation.
- An application for subdivision of 60 or more lots must also describe in relation to the surrounding area:
  - Location, distance and type of any nearby public open space and recreational facilities.
  - Direction and distances to local shops and community facilities.
  - Directions and walking distances to public transport routes and stops.
  - Direction and walking distances to existing neighbourhood, major and principal activity centres and major employment areas.

- Existing transport routes, including freeways, arterial roads and streets connecting neighbourhoods.
- Local street network including potential connections to adjacent subdivisions.
- Traffic volumes and movements on adjacent roads and streets.
- Pedestrian, bicycle and shared paths identifying whether their primary role is neighbourhood or regional access.
- Any places of cultural significance.
- Natural features including trees and other significant vegetation, drainage lines, water courses, wetlands, ridgelines and hill tops.
- Proximity of any fire threats.
- Pattern of ownership of adjoining lots.

If in the opinion of the responsible authority a requirement of the site and context description is not relevant to the assessment of an application, the responsible authority may waive or reduce the requirement.

#### Satisfactory subdivision site and context description

If the responsible authority decides that the site and context description is not satisfactory, it may require more information from the applicant under Section 54 of the Act.

The responsible authority must not require notice of an application to be given or decide an application until it is satisfied that the site and context description meets the requirements of Clause 56.01-1 and is satisfactory.

This does not apply if the responsible authority refuses an application under Section 52(1A) of the Act.

## 56.01-2 Subdivision design response

09/10/2006
VC42

The design response must explain how the proposed design:

- Derives from and responds to the site and context description.
- Responds to any site and context features for the area identified in a local planning policy or a Neighbourhood Character Overlay.
- Responds to any relevant objective, policy, strategy or plan set out for the area in this scheme.
- Meets the relevant objectives of Clause 56.

The design response must include a dimensioned plan to scale showing the layout of the subdivision in context with the surrounding area. If in the opinion of the responsible authority this requirement is not relevant to the assessment of an application, it may waive or reduce the requirement.

An application for subdivision of 60 or more lots must also include a plan that meets the requirements of Standard C2. The plan must also show the:

- Proposed uses of each part of the site.
- Natural features of the site and identify any features proposed to be altered.
- Proposed integrated water management system.
- Proposed staging of the subdivision.

## 56.02 POLICY IMPLEMENTATION

09/10/2006
VC42

### 56.02-1 Strategic implementation objective

09/10/2006
VC42

To ensure that the layout and design of a subdivision is consistent with and implements any objective, policy, strategy or plan for the area set out in this scheme.

#### Standard C1

An application must be accompanied by a written statement that describes how the subdivision is consistent with and implements any relevant growth area, activity centre, housing, access and mobility, community facilities, open space and recreation, landscape (including any native vegetation precinct plan) and urban design objective, policy, strategy or plan for the area set out in this scheme.

# 56.03 LIVEABLE AND SUSTAINABLE COMMUNITIES

19/09/2017
VC132

## 56.03-1 Compact and walkable neighbourhoods objectives

09/10/2006
VC42

To create compact neighbourhoods that are oriented around easy walking distances to activity centres, schools and community facilities, public open space and public transport.

To allow easy movement through and between neighbourhoods for all people.

### Standard C2

A subdivision should implement any relevant growth area or any approved land-use and development strategy, plan or policy for the area set out in this scheme.

An application for subdivision must include a plan of the layout of the subdivision that:

- Meets the objectives (if relevant to the class of subdivision specified in the zone) of:
  - Clause 56.03-2 Activity centres
  - Clause 56.03-3 Planning for community facilities
  - Clause 56.04-1 Lot diversity and distribution
  - Clause 56.06-2 Walking and cycling network
  - Clause 56.06-3 Public transport network
  - Clause 56.06-4 Neighbourhood street network
- Shows the 400 metre street walking distance around each existing or proposed bus stop, 600 metres street walking distance around each existing or proposed tram stop and 800 metres street walking distance around each existing or proposed railway station and shows the estimated number of dwellings within those distances.
- Shows the layout of the subdivision in relation to the surrounding area.
- Is designed to be accessible for people with disabilities.

## 56.03-2 Activity centre objective

09/10/2006
VC42

To provide for mixed-use activity centres, including neighbourhood activity centres, of appropriate area and location.

### Standard C3

A subdivision should implement any relevant activity centre strategy, plan or policy for the area set out in this scheme.

Subdivision should be supported by activity centres that are:

- Accessible by neighbourhood and regional walking and cycling networks.
- Served by public transport that is connected to the regional public transport network.
- Located at public transport interchange points for the convenience of passengers and easy connections between public transport services.
- Located on arterial roads or connector streets.
- Of appropriate size to accommodate a mix of uses that meet local community needs.
- Oriented to support active street frontages, support street-based community interaction and pedestrian safety.

## 56.03-3 Planning for community facilities objective

20/03/2023
VC229

To provide appropriately located sites for community facilities including schools, libraries, preschools and childcare, health services, police and fire stations, recreation and sports facilities.

### Standard C4

A subdivision should:

- Implement any relevant regional and local community facility strategy, plan or policy for the area set out in this scheme.
- Locate community facilities on sites that are in or near activity centres and public transport.

School sites should:

- Be integrated with the neighbourhood and located near activity centres.
- Be located on walking and cycling networks.
- Have a bus stop located along the school site boundary.
- Have student drop-off zones, bus parking and on-street parking in addition to other street functions in abutting streets.
- Adjoin the public open space network and community sporting and other recreation facilities.
- Be integrated with community facilities.
- Be located on land that is not affected by physical, environmental or other constraints.

Schools should be accessible by the Principal Public Transport Network in Metropolitan Melbourne and on the regional public transport network outside Metropolitan Melbourne.

Primary schools should be located on connector streets and not on arterial roads.

New State Government school sites must meet the requirements of the Department of Education and abut at least two streets with sufficient widths to provide student drop-off zones, bus parking and on-street parking in addition to other street functions.

## 56.03-4 Built environment objective

09/10/2006
VC42

To create urban places with identity and character.

### Standard C5

The built environment should:

- Implement any relevant urban design strategy, plan or policy for the area set out in this scheme.
- Provide living and working environments that are functional, safe and attractive.
- Provide an integrated layout, built form and urban landscape.
- Contribute to a sense of place and cultural identity.

An application should describe the identity and character to be achieved and the elements that contribute to that identity and character.

## 56.03-5 Neighbourhood character objective

09/10/2006
VC42

To design subdivisions that respond to neighbourhood character.

### Standard C6

Subdivision should:

- Respect the existing neighbourhood character or achieve a preferred neighbourhood character consistent with any relevant neighbourhood character objective, policy or statement set out in this scheme.
- Respond to and integrate with the surrounding urban environment.
- Protect significant vegetation and site features.

# 56.04 LOT DESIGN

09/10/2006
VC42

## 56.04-1 Lot diversity and distribution objectives

09/10/2006
VC42

To achieve housing densities that support compact and walkable neighbourhoods and the efficient provision of public transport services.

To provide higher housing densities within walking distance of activity centres.

To achieve increased housing densities in designated growth areas.

To provide a range of lot sizes to suit a variety of dwelling and household types.

### Standard C7

A subdivision should implement any relevant housing strategy, plan or policy for the area set out in this scheme.

Lot sizes and mix should achieve the average net residential density specified in any zone or overlay that applies to the land or in any relevant policy for the area set out in this scheme.

A range and mix of lot sizes should be provided including lots suitable for the development of:

- Single dwellings.
- Two dwellings or more.
- Higher density housing.
- Residential buildings and Retirement villages.

Unless the site is constrained by topography or other site conditions, lot distribution should provide for 95 per cent of dwellings to be located no more than 400 metre street walking distance from the nearest existing or proposed bus stop, 600 metres street walking distance from the nearest existing or proposed tram stop and 800 metres street walking distance from the nearest existing or proposed railway station.

Lots of 300 square metres or less in area, lots suitable for the development of two dwellings or more, lots suitable for higher density housing and lots suitable for Residential buildings and Retirement villages should be located in and within 400 metres street walking distance of an activity centre.

## 56.04-2 Lot area and building envelopes objective

08/09/2025
VC282

To provide lots with areas and dimensions that enable the appropriate siting and construction of a dwelling, solar access, private open space, vehicle access and parking, water management, easements and the retention of significant vegetation and site features.

### Standard C8

An application to subdivide land that creates lots of less than 300 square metres should be accompanied by information that shows:

- That the lots are consistent or contain building envelope that is consistent with a development approved under this scheme, or
- That a dwelling may be constructed on each lot in accordance with the requirements of this scheme.

Lots of between 300 square metres and 500 square metres should:

- Contain a building envelope that is consistent with a development of the lot approved under this scheme, or
- If no development of the lot has been approved under this scheme, contain a building envelope and be able to contain a rectangle measuring 10 metres by 15 metres, or 9 metres by 15 metres if a boundary wall is nominated as part of the building envelope.

If lots of between 300 square metres and 500 square metres are proposed to contain dwellings that are built to the boundary, the long axis of the lots should be within 30 degrees east and 20 degrees west of north unless there are significant physical constraints that make this difficult to achieve.

Lots greater than 500 square metres should be able to contain a rectangle measuring 10 metres by 15 metres, and may contain a building envelope.

A building envelope may specify or incorporate any relevant siting and design requirement. Any requirement should meet the relevant standards of Clause 54, unless:

- The objectives of the relevant standards are met, and
- The building envelope is shown as a restriction on a plan of subdivision registered under the *Subdivision Act 1988*, or is specified as a covenant in an agreement under Section 173 of the Act.

Where a lot with a building envelope adjoins a lot that is not on the same plan of subdivision or is not subject to the same agreement relating to the relevant building envelope:

- The building envelope must meet Standards A2-3 and A2-4 of Clause 54 in relation to the adjoining lot, and
- The building envelope must not regulate siting matters covered by Standards A4-1 to A4-4 (inclusive) of Clause 54 in relation to the adjoining lot. This should be specified in the relevant plan of subdivision or agreement.

Lot dimensions and building envelopes should protect:

- Solar access for future dwellings and support the siting and design of dwellings that achieve the energy rating requirements of the Building Regulations.
- Existing or proposed easements on lots.
- Significant vegetation and site features.

## 56.04-3 Solar orientation of lots objective

09/10/2006
VC42

To provide good solar orientation of lots and solar access for future dwellings.

### Standard C9

Unless the site is constrained by topography or other site conditions, at least 70 percent of lots should have appropriate solar orientation.

Lots have appropriate solar orientation when:

- The long axis of lots are within the range north 20 degrees west to north 30 degrees east, or east 20 degrees north to east 30 degrees south.
- Lots between 300 square metres and 500 square metres are proposed to contain dwellings that are built to the boundary, the long axis of the lots should be within 30 degrees east and 20 degrees west of north.
- Dimensions of lots are adequate to protect solar access to the lot, taking into account likely dwelling size and the relationship of each lot to the street.

## 56.04-4 Street orientation objective

09/10/2006
VC42

To provide a lot layout that contributes to community social interaction, personal safety and property security.

### Standard C10

Subdivision should increase visibility and surveillance by:

- Ensuring lots front all roads and streets and avoid the side or rear of lots being oriented to connector streets and arterial roads.
- Providing lots of 300 square metres or less in area and lots for 2 or more dwellings around activity centres and public open space.
- Ensuring streets and houses look onto public open space and avoiding sides and rears of lots along public open space boundaries.
- Providing roads and streets along public open space boundaries.

## 56.04-5 Common area objectives

09/10/2006
VC42

To identify common areas and the purpose for which the area is commonly held.

To ensure the provision of common area is appropriate and that necessary management arrangements are in place.

To maintain direct public access throughout the neighbourhood street network.

### Standard C11

An application to subdivide land that creates common land must be accompanied by a plan and a report identifying:

- The common area to be owned by the body corporate, including any streets and open space.
- The reasons why the area should be commonly held.
- Lots participating in the body corporate.
- The proposed management arrangements including maintenance standards for streets and open spaces to be commonly held.

## 56.05 URBAN LANDSCAPE

01/10/2009
VC58

### 56.05-1 Integrated urban landscape objectives

09/10/2006
VC42

To provide attractive and continuous landscaping in streets and public open spaces that contribute to the character and identity of new neighbourhoods and urban places or to existing or preferred neighbourhood character in existing urban areas.

To incorporate natural and cultural features in the design of streets and public open space where appropriate.

To protect and enhance native habitat and discourage the planting and spread of noxious weeds.

To provide for integrated water management systems and contribute to drinking water conservation.

#### Standard C12

An application for subdivision that creates streets or public open space should be accompanied by a landscape design.

The landscape design should:

- Implement any relevant streetscape, landscape, urban design or native vegetation precinct plan, strategy or policy for the area set out in this scheme.
- Create attractive landscapes that visually emphasise streets and public open spaces.
- Respond to the site and context description for the site and surrounding area.
- Maintain significant vegetation where possible within an urban context.
- Take account of the physical features of the land including landform, soil and climate.
- Protect and enhance any significant natural and cultural features.
- Protect and link areas of significant local habitat where appropriate.
- Support integrated water management systems with appropriate landscape design techniques for managing urban run-off including wetlands and other water sensitive urban design features in streets and public open space.
- Promote the use of drought tolerant and low maintenance plants and avoid species that are likely to spread into the surrounding environment.
- Ensure landscaping supports surveillance and provides shade in streets, parks and public open space.
- Develop appropriate landscapes for the intended use of public open space including areas for passive and active recreation, the exercising of pets, playgrounds and shaded areas.
- Provide for walking and cycling networks that link with community facilities.
- Provide appropriate pathways, signage, fencing, public lighting and street furniture.
- Create low maintenance, durable landscapes that are capable of a long life.
- The landscape design must include a maintenance plan that sets out maintenance responsibilities, requirements and costs.

### 56.05-2 Public open space provision objectives

01/10/2009
VC58

To provide a network of quality, well-distributed, multi-functional and cost-effective public open space that includes local parks, active open space, linear parks and trails, and links to regional open space.

To provide a network of public open space that caters for a broad range of users.

To encourage healthy and active communities.

To provide adequate unencumbered land for public open space and integrate any encumbered land with the open space network.

To ensure land provided for public open space can be managed in an environmentally sustainable way and contributes to the development of sustainable neighbourhoods.

**Standard C13**

The provision of public open space should:

- Implement any relevant objective, policy, strategy or plan (including any growth area precinct structure plan) for open space set out in this scheme.
- Provide a network of well-distributed neighbourhood public open space that includes:
- Local parks within 400 metres safe walking distance of at least 95 percent of all dwellings. Where not designed to include active open space, local parks should be generally 1 hectare in area and suitably dimensioned and designed to provide for their intended use and to allow easy adaptation in response to changing community preferences.
- Additional small local parks or public squares in activity centres and higher density residential areas.
- Active open space of a least 8 hectares in area within 1 kilometre of 95 percent of all dwellings that is:
- Suitably dimensioned and designed to provide for the intended use, buffer areas around sporting fields and passive open space
- Sufficient to incorporate two football/cricket ovals
- Appropriate for the intended use in terms of quality and orientation
- Located on flat land (which can be cost effectively graded)
- Located with access to, or making provision for, a recycled or sustainable water supply
- Adjoin schools and other community facilities where practical
- Designed to achieve sharing of space between sports.
- Linear parks and trails along waterways, vegetation corridors and road reserves within 1 kilometre of 95 percent of all dwellings.

Public open space should:

- Be provided along foreshores, streams and permanent water bodies.
- Be linked to existing or proposed future public open spaces where appropriate.
- Be integrated with floodways and encumbered land that is accessible for public recreation.
- Be suitable for the intended use.
- Be of an area and dimensions to allow easy adaptation to different uses in response to changing community active and passive recreational preferences.
- Maximise passive surveillance.
- Be integrated with urban water management systems, waterways and other water bodies.
- Incorporate natural and cultural features where appropriate.

# 56.06 ACCESS AND MOBILITY MANAGEMENT

18/06/2010
VC62

## 56.06-1 Integrated mobility objectives

18/06/2010
VC62

To achieve an urban structure where compact and walkable neighbourhoods are clustered to support larger activity centres on the Principal Public Transport Network in Metropolitan Melbourne and on the regional public transport network outside Metropolitan Melbourne.

To provide for walking (including persons with impaired mobility), cycling, public transport and other motor vehicles in an integrated manner.

To contribute to reduced car dependence, improved energy efficiency, improved transport efficiency, reduced greenhouse gas emissions and reduced air pollution.

### Standard C14

An application for a subdivision must include a plan of the layout of the neighbourhood that meets the objectives of:

- Clause 56.06-2 Walking and cycling network.
- Clause 56.06-3 Public transport network.
- Clause 56.06-4 Neighbourhood street network.

## 56.06-2 Walking and cycling network objectives

09/10/2006
VC42

To contribute to community health and well being by encouraging walking and cycling as part of the daily lives of residents, employees and visitors.

To provide safe and direct movement through and between neighbourhoods by pedestrians and cyclists.

To reduce car use, greenhouse gas emissions and air pollution.

### Standard C15

The walking and cycling network should be designed to:

- Implement any relevant regional and local walking and cycling strategy, plan or policy for the area set out in this scheme.
- Link to any existing pedestrian and cycling networks.
- Provide safe walkable distances to activity centres, community facilities, public transport stops and public open spaces.
- Provide an interconnected and continuous network of safe, efficient and convenient footpaths, shared paths, cycle paths and cycle lanes based primarily on the network of arterial roads, neighbourhood streets and regional public open spaces.
- Provide direct cycling routes for regional journeys to major activity centres, community facilities, public transport and other regional activities and for regional recreational cycling.
- Ensure safe street and road crossings including the provision of traffic controls where required.
- Provide an appropriate level of priority for pedestrians and cyclists.
- Have natural surveillance along streets and from abutting dwellings and be designed for personal safety and security particularly at night.
- Be accessible to people with disabilities.

## 56.06-3 Public transport network objectives

09/10/2006
VC42

To provide an arterial road and neighbourhood street network that supports a direct, efficient and safe public transport system.

To encourage maximum use of public transport.

**Standard C16**

The public transport network should be designed to:

- Implement any relevant public transport strategy, plan or policy for the area set out in this scheme.
- Connect new public transport routes to existing and proposed routes to the satisfaction of the relevant public transport authority.
- Provide for public transport links between activity centres and other locations that attract people using the Principal Public Transport Network in Metropolitan Melbourne and the regional public transport network outside Metropolitan Melbourne.
- Locate regional bus routes principally on arterial roads and locate local bus services principally on connector streets to provide:
  - Safe and direct movement between activity centres without complicated turning manoeuvres.
  - Direct travel between neighbourhoods and neighbourhood activity centres.
  - A short and safe walk to a public transport stop from most dwellings.

## 56.06-4 Neighbourhood street network objective

14/05/2021
VC198

To provide for direct, safe and easy movement through and between neighbourhoods for pedestrians, cyclists, public transport and other motor vehicles using the neighbourhood street network.

**Standard C17**

The neighbourhood street network must:

- Take account of the existing mobility network of arterial roads, neighbourhood streets, cycle paths, shared paths, footpaths and public transport routes.
- Provide clear physical distinctions between arterial roads and neighbourhood street types.
- Comply with the Head, Transport for Victoria's arterial road access management policies.
- Provide an appropriate speed environment and movement priority for the safe and easy movement of pedestrians and cyclists and for accessing public transport.
- Provide safe and efficient access to activity centres for commercial and freight vehicles.
- Provide safe and efficient access to all lots for service and emergency vehicles.
- Provide safe movement for all vehicles.
- Incorporate any necessary traffic control measures and traffic management infrastructure.

The neighbourhood street network should be designed to:

- Implement any relevant transport strategy, plan or policy for the area set out in this scheme.
- Include arterial roads at intervals of approximately 1.6 kilometres that have adequate reservation widths to accommodate long term movement demand.
- Include connector streets approximately halfway between arterial roads and provide adequate reservation widths to accommodate long term movement demand.
- Ensure connector streets align between neighbourhoods for direct and efficient movement of pedestrians, cyclists, public transport and other motor vehicles.
- Provide an interconnected and continuous network of streets within and between neighbourhoods for use by pedestrians, cyclists, public transport and other vehicles.
- Provide an appropriate level of local traffic dispersal.

- Indicate the appropriate street type.
- Provide a speed environment that is appropriate to the street type.
- Provide a street environment that appropriately manages movement demand (volume, type and mix of pedestrians, cyclists, public transport and other motor vehicles).
- Encourage appropriate and safe pedestrian, cyclist and driver behaviour.
- Provide safe sharing of access lanes and access places by pedestrians, cyclists and vehicles.
- Minimise the provision of culs-de-sac.
- Provide for service and emergency vehicles to safely turn at the end of a dead-end street.
- Facilitate solar orientation of lots.
- Facilitate the provision of the walking and cycling network, integrated water management systems, utilities and planting of trees.
- Contribute to the area's character and identity.
- Take account of any identified significant features.

## 56.06-5 Walking and cycling network detail objectives

09/10/2006
VC42

To design and construct footpaths, shared path and cycle path networks that are safe, comfortable, well constructed and accessible for people with disabilities.

To design footpaths to accommodate wheelchairs, prams, scooters and other footpath bound vehicles.

### Standard C18

Footpaths, shared paths, cycle paths and cycle lanes should be designed to:

- Be part of a comprehensive design of the road or street reservation.
- Be continuous and connect.
- Provide for public transport stops, street crossings for pedestrians and cyclists and kerb crossovers for access to lots.
- Accommodate projected user volumes and mix.
- Meet the requirements of Table C1.
- Provide pavement edge, kerb, channel and crossover details that support safe travel for pedestrians, footpath bound vehicles and cyclists, perform required drainage functions and are structurally sound.
- Provide appropriate signage.
- Be constructed to allow access to lots without damage to the footpath or shared path surfaces.
- Be constructed with a durable, non-skid surface.
- Be of a quality and durability to ensure:
  - Safe passage for pedestrians, cyclists, footpath bound vehicles and vehicles.
  - Discharge of urban run-off.
  - Preservation of all-weather access.
  - Maintenance of a reasonable, comfortable riding quality.
  - A minimum 20 year life span.

- Be accessible to people with disabilities and include tactile ground surface indicators, audible signals and kerb ramps required for the movement of people with disabilities.

## 56.06-6 Public transport network detail objectives

09/10/2006
VC42

To provide for the safe, efficient operation of public transport and the comfort and convenience of public transport users.

To provide public transport stops that are accessible to people with disabilities.

### Standard C19

Bus priority measures must be provided along arterial roads forming part of the existing or proposed Principal Public Transport Network in Metropolitan Melbourne and the regional public transport network outside Metropolitan Melbourne to the requirements of the relevant roads authority.

Road alignment and geometry along bus routes should provide for the efficient, unimpeded movement of buses and the safety and comfort of passengers.

The design of public transport stops should not impede the movement of pedestrians.

Bus and tram stops should have:

- Surveillance from streets and adjacent lots.
- Safe street crossing conditions for pedestrians and cyclists.

Safe pedestrian crossings on arterial roads and at schools including the provision of traffic controls as required by the roads authority.

- Continuous hard pavement from the footpath to the kerb.
- Sufficient lighting and paved, sheltered waiting areas for forecast user volume at neighbourhood centres, schools and other locations with expected high patronage.
- Appropriate signage.

Public transport stops and associated waiting areas should be accessible to people with disabilities and include tactile ground surface indicators, audible signals and kerb ramps required for the movement of people with physical disabilities.

## 56.06-7 Neighbourhood street network detail objective

15/09/2008
VC49

To design and construct street carriageways and verges so that the street geometry and traffic speeds provide an accessible and safe neighbourhood street system for all users.

### Standard C20

The design of streets and roads should:

- Meet the requirements of Table C1. Where the widths of access lanes, access places, and access streets do not comply with the requirements of Table C1, the requirements of the relevant fire authority and roads authority must be met.
- Provide street blocks that are generally between 120 metres and 240 metres in length and generally between 60 metres to 120 metres in width to facilitate pedestrian movement and control traffic speed.
- Have verges of sufficient width to accommodate footpaths, shared paths, cycle paths, integrated water management, street tree planting, lighting and utility needs.
- Have street geometry appropriate to the street type and function, the physical land characteristics and achieve a safe environment for all users.
- Provide a low-speed environment while allowing all road users to proceed without unreasonable inconvenience or delay.

- Provide a safe environment for all street users applying speed control measures where appropriate.
- Ensure intersection layouts clearly indicate the travel path and priority of movement for pedestrians, cyclists and vehicles.
- Provide a minimum 5 metre by 5 metre corner splay at junctions with arterial roads and a minimum 3 metre by 3 metre corner splay at other junctions unless site conditions justify a variation to achieve safe sight lines across corners.
- Ensure streets are of sufficient strength to:
  - Enable the carriage of vehicles.
  - Avoid damage by construction vehicles and equipment.
- Ensure street pavements are of sufficient quality and durability for the:
  - Safe passage of pedestrians, cyclists and vehicles.
  - Discharge of urban run-off.
  - Preservation of all-weather access and maintenance of a reasonable, comfortable riding quality.
- Ensure carriageways of planned arterial roads are designed to the requirements of the relevant road authority.
- Ensure carriageways of neighbourhood streets are designed for a minimum 20 year life span.
- Provide pavement edges, kerbs, channel and crossover details designed to:
  - Perform the required integrated water management functions.
  - Delineate the edge of the carriageway for all street users.
  - Provide efficient and comfortable access to abutting lots at appropriate locations.
  - Contribute to streetscape design.
- Provide for the safe and efficient collection of waste and recycling materials from lots.
- Be accessible to people with disabilities.
- Meet the requirements of Table C1. Where the widths of access lanes, access places, and access streets do not comply with the requirements of Table C1, the requirements of the relevant fire authority and roads authority must be met. Where the widths of connector streets do not comply with the requirements of Table C1, the requirements of the relevant public transport authority must be met.

A street detail plan should be prepared that shows, as appropriate:

- The street hierarchy and typical cross-sections for all street types.
- Location of carriageway pavement, parking, bus stops, kerbs, crossovers, footpaths, tactile surface indicators, cycle paths and speed control and traffic management devices.
- Water sensitive urban design features.
- Location and species of proposed street trees and other vegetation.
- Location of existing vegetation to be retained and proposed treatment to ensure its health.
- Any relevant details for the design and location of street furniture, lighting, seats, bus stops, telephone boxes and mailboxes.

## 56.06-8 Lot access objective

18/06/2010
VC62

To provide for safe vehicle access between roads and lots.

### Standard C21

Vehicle access to lots abutting arterial roads should be provided from service roads, side or rear access lanes, access places or access streets where appropriate and in accordance with the access management requirements of the relevant roads authority.

Vehicle access to lots of 300 square metres or less in area and lots with a frontage of 7.5 metres or less should be provided via rear or side access lanes, places or streets.

The design and construction of a crossover should meet the requirements of the relevant road authority.

### Table C1 Design of roads and neighbourhood streets

#### Access Lane

A side or rear lane principally providing access to parking on lots with another street frontage.

| | |
|---|---|
| **Traffic volume**[1] | 300vpd |
| **Target speed**[2] | 10kph |
| **Carriageway width**[3] **& parking provision within street reservation** | 5.5m[6] wide with no parking spaces to be provided.<br>Appropriately signed. |
| **Verge width**[4] | No verge required. |
| **Kerbing**[5] | |
| **Footpath provision** | None<br>Carriageway designed as a shared zone and appropriately signed. |
| **Cycle path provision** | None |

#### Access Place

A minor street providing local residential access with shared traffic, pedestrian and recreation use, but with pedestrian priority.

| | |
|---|---|
| **Traffic volume**[1] | 300vpd to1000vpd |
| **Target speed**[2] | 15kph |
| **Carriageway width**[3] **& parking provision within street reservation** | 5.5m wide with 1 hard standing verge parking space per 2 lots.<br>or<br>5.5m wide with parking on carriageway - one side.<br>Appropriately signed. |
| **Verge width**[4] | 7.5m minimum total width.<br>For services provide a minimum of 3.5m on one side and a minimum of 2.5m on the other. |

| | |
|---|---|
| **Kerbing**[5] | Semi-mountable rollover or flush and swale or other water sensitive urban design treatment area. |
| **Footpath provision** | Not required if serving 5 dwellings or less and the carriageway is designed as a shared zone and appropriately signed.<br>or<br>1.5m wide footpath offset a minimum distance of 1m from the kerb. |
| **Cycle path provision** | None |

### Access Street - Level 1

A street providing local residential access where traffic is subservient, speed and volume are low and pedestrian and bicycle movements are facilitated.

| | |
|---|---|
| **Traffic volume**[1] | 1000vpd to 2000vpd |
| **Target speed**[2] | 30kph |
| **Carriageway width**[3] **& parking provision within street reservation** | 5.5m wide with1 hard standing verge parking space per 2 lots. |
| **Verge width**[4] | 4m minimum each side |
| **Kerbing**[5] | Semi-mountable rollover or flush and swale or other water sensitive urban design treatment area. |
| **Footpath provision** | 1.5m wide footpaths on both sides.<br>Footpaths should be widened to 2.0m in vicinity of a school, shop or other activity centre.<br>Be offset a minimum distance of 1m from the kerb. |
| **Cycle path provision** | Carriageway designed as a shared zone and appropriately signed. |

### Access Street - Level 2

A street providing local residential access where traffic is subservient, speed and volume are low and pedestrian and bicycle movements are facilitated.

| | |
|---|---|
| **Traffic volume**[1] | 2000vpd to 3000vpd |
| **Target speed**[2] | 40kph |
| **Carriageway width**[3] **& parking provision within street reservation** | 7m-7.5m wide with parking on both sides of carriageway |
| **Verge width**[4] | 4.5m minimum each side |
| **Kerbing**[5] | Semi-mountable rollover or flush and swale or other water sensitive urban design treatment area. |
| **Footpath provision** | 1.5m wide footpaths on both sides.<br>Footpaths should be widened to 2.0m in vicinity of a school, shop or other activity centre. |

| | |
|---|---|
| | Be offset a minimum distance of 1m from the kerb. |
| **Cycle path provision** | Carriageway designed as a shared zone and appropriately signed. |

### Connector Street - Level 1

A street that carries higher volumes of traffic. It connects access places and access streets through and between neighbourhoods.

| | |
|---|---|
| **Traffic volume**[1] | 3000 vpd |
| **Target speed**[2] | 50 kph[7] reduced to 40 kph at schools and 20 kph at pedestrian and cycle crossing points. |
| **Carriageway width**[3]**, cycle lane provision, parking provision and bus stops within street reservation** | ▪ 3.5m minimum lane width in each direction of travel.<br>▪ 4.0m minimum lane width at approaches to and departures from roundabouts and T-intersections.<br>▪ For on-street cycling, increase the minimum clear carriageway in each direction by:<br>– 0.7m where the trafficable carriageway is shared by cyclists but no dedicated bicycle lane is marked on the carriageway; or<br>– 1.5m where a trafficable carriageway is shared by cyclists but no dedicated bicycle lane is marked on the carriageway and there is a single lane in each direction separated by a raised trafficable median of at least 2.0m in width with mountable kerbs; or<br>– 1.7m where a dedicated 1.7m wide bicycle lane is marked on the carriageway.<br>▪ An additional dedicated parking lane or indented parking within the verge must be provided where street parking is required. A parking lane width of 2.3m is required where parallel parking is provided.<br>▪ Bus stops at the kerbside, not indented within the verge. |
| **Verge width**[4] | 4.5m minimum each side. |
| **Kerbing**[5] | Semi-mountable rollover or flush and swale or other water sensitive urban design treatment area. |
| **Footpath provision** | ▪ 1.5m wide footpaths on both sides.<br>▪ Footpath widened to a minimum 2.0m in the vicinity of a school, shop, public transport stop or other activity centre.<br>▪ Footpaths offset a minimum distance of 1m from the kerb. |

### Connector Street - Level 2

A street that carries higher volumes of traffic. It connects access places and access streets through and between neighbourhoods.

| | |
|---|---|
| **Traffic volume**[1] | 3,000 vpd to 7,000 vpd |
| **Target speed**[2] | 60 kph[8] or 50km/h reduced to 40kph at schools. |

| | |
|---|---|
| **Carriageway width[3], cycle lane provision, parking provision and bus stops within street reservation** | ▪ 3.5m minimum lane width in each direction of travel.<br>▪ 4.0m minimum lane width at approaches to and departures from roundabouts and T-intersections.<br>▪ 7.0m minimum carriageway width in each direction of travel where there are two lanes in each direction separated by a non-trafficable central medium.<br>▪ 8.0m minimum carriageway width at approaches to and departures from roundabouts and T-intersections where there are two lanes in each direction separated by an non-trafficable central medium.<br>▪ For on-street cycling, increase the minimum clear carriageway in each direction by:<br>– 0.7m where the trafficable carriageway is shared by cyclists but no dedicated bicycle lane is marked on the carriageway; or<br>– 1.7m where a dedicated 1.7m wide dedicated bicycle lane is marked on the carriageway<br>– 0.3m where there are two trafficable lanes in each direction separated by a non-trafficable central median and the carriageways are shared by cyclists but no dedicated bicycle lane is marked on the carriageway; or<br>– 0.5m where there are two trafficable lanes in each direction separated by a non-trafficable central median and a 1.7m wide dedicated bicycle lane is marked on the carriageway.<br>▪ An additional dedicated parking lane or indented parking within the verge must be provided where street parking is required. A parking lane width of 2.3m is required where parallel parking is provided.<br>▪ Bus stops located at the kerbside, not indented within the verge. |
| **Verge width[4]** | ▪ 6m minimum each side (plus central median). |
| **Kerbing[5]** | ▪ Semi-mountable rollover or flush and swale or other water sensitive urban design treatment area. |
| **Footpath and cycle path provision** | ▪ 1.5m wide footpath on each side and 1.7m bicycle lanes on the carriageway; or<br>▪ 2.5m wide shared foot and cycle path on both sides and no dedicate bicycle lanes marked on the carriageway.<br>▪ Footpaths widened to a minimum of 2.0m in the vicinity of a school, shop, public transport stop or other activity centre.<br>▪ Footpaths or shared foot and cycle paths offset a minimum distance of 1m from the kerb. |

## Arterial Road

| | |
|---|---|
| **Traffic volume[1]** | Greater than 7000vpd |
| **Target speed[2]** | Arterial road design as required by the relevant roads authority. |
| **Carriageway width[3] & parking provision within street reservation** | Arterial road design as required by the relevant roads authority. |

| | |
|---|---|
| **Verge width**[4] | Arterial road design as required by the relevant roads authority. |
| **Kerbing**[5] | Arterial road design as required by the relevant roads authority. |
| **Footpath & cycle path provision** | 3m wide shared path on each side or as otherwise required by the relevant roads authority. |

### Key to Table C1

1. Indicative maximum traffic volume for 24-hour period. These volumes depend upon location. Generation rates may vary between existing and newly developing areas.
2. Target speed is the desired speed at which motorists should travel. This is not necessarily the design speed and is not greater than the marked legal speed limit.
3. Width is measured from kerb invert to kerb invert. Widening may be required at bends to allow for wider vehicle paths using appropriate Australian Standards for on street and off-street parking but should not negate the function of bends serving as slow points.
4. Verge width includes footpaths. Additional width may be required to accommodate a bicycle path.
5. Where drainage is not required a flush pavement edge treatment can be used. Layback kerbs are preferred for safety reasons. Upright kerbs may be considered for drainage purposes or in locations where on-street parking should be clearly defined and parking within the verge is not desired.
6. Turning requirements to access and egress parking on abutting lots may require additional carriageway width. The recommended carriageway width of 5.5m will provide adequate access to a standard 3.5m wide single garage built to the property line.
7. 50kph is the default urban speed limit in Victoria.
8. Target speed must not exceed the legal speed limit.

# 56.07 INTEGRATED WATER MANAGEMENT

29/10/2015
VC101

## 56.07-1 Drinking water supply objectives

09/10/2006
VC42

To reduce the use of drinking water.

To provide an adequate, cost-effective supply of drinking water.

### Standard C22

The supply of drinking water must be:

- Designed and constructed in accordance with the requirements and to the satisfaction of the relevant water authority.
- Provided to the boundary of all lots in the subdivision to the satisfaction of the relevant water authority.

## 56.07-2 Reused and recycled water objective

20/03/2023
VC229

To provide for the substitution of drinking water for non-drinking purposes with reused and recycled water.

### Standard C23

Reused and recycled water supply systems must be:

- Designed, constructed and managed in accordance with the requirements and to the satisfaction of the relevant water authority, Environment Protection Authority and Department of Health.
- Provided to the boundary of all lots in the subdivision where required by the relevant water authority.

## 56.07-3 Waste water management objective

01/07/2021
VC203

To provide a waste water system that is adequate for the maintenance of public health and the management of effluent in an environmentally friendly manner.

### Standard C24

Waste water systems must be:

- Designed, constructed and managed in accordance with the requirements and to the satisfaction of the relevant water authority and the Environment Protection Authority.
- Consistent with a domestic waste water management plan adopted by the relevant council.

Reticulated waste water systems must be provided to the boundary of all lots in the subdivision where required by the relevant water authority.

## 56.07-4 Stormwater management objectives

04/02/2026
VC265

To minimise damage to properties and inconvenience to residents from stormwater.

To ensure that the street operates adequately during major storm events and provides for public safety.

To minimise increases in stormwater and protect the environmental values and physical characteristics of receiving waters from degradation by stormwater.

To encourage stormwater management that maximises the retention and reuse of stormwater.

To encourage stormwater management that contributes to cooling, local habitat improvements and provision of attractive and enjoyable spaces.

### Standard C25

The stormwater management system must be:

- Designed and managed in accordance with the requirements and to the satisfaction of the relevant drainage authority.
- Designed and managed in accordance with the requirements and to the satisfaction of the water authority where reuse of stormwater is proposed.
- Designed to meet the current best practice performance objectives for stormwater quality as contained in the *Urban stormwater management guidance* (Environment Protection Authority - Publication 1739.1, 2021).
- Designed to ensure that flows downstream of the subdivision site are restricted to pre-development levels unless increased flows are approved by the relevant drainage authority and there are no detrimental downstream impacts.
- Designed to contribute to cooling, improving local habitat and providing attractive and enjoyable spaces.

The stormwater management system should be integrated with the overall development plan including the street and public open space networks and landscape design.

For all storm events up to and including the 20% Average Exceedence Probability (AEP) standard:

- Stormwater flows should be contained within the drainage system to the requirements of the relevant authority.
- Ponding on roads should not occur for longer than 1 hour after the cessation of rainfall.

For storm events greater than 20% AEP and up to and including 1% AEP standard:

- Provision must be made for the safe and effective passage of stormwater flows.
- All new lots should be free from inundation or to a lesser standard of flood protection where agreed by the relevant floodplain management authority.
- Ensure that streets, footpaths and cycle paths that are subject to flooding meet the safety criteria $d_a V_{ave} < 0.35\ m^2/s$ (where, $d_a$ = average depth in metres and $V_{ave}$ = average velocity in metres per second).

The design of the local drainage network should:

- Ensure stormwater is retarded to a standard required by the responsible drainage authority.
- Ensure every lot is provided with drainage to a standard acceptable to the relevant drainage authority. Wherever possible, stormwater should be directed to the front of the lot and discharged into the street drainage system or legal point of discharge.
- Ensure that inlet and outlet structures take into account the effects of obstructions and debris build up. Any surcharge drainage pit should discharge into an overland flow in a safe and predetermined manner.
- Include water sensitive urban design features to manage stormwater in streets and public open space. Where such features are provided, an application must describe maintenance responsibilities, requirements and costs.

Any flood mitigation works must be designed and constructed in accordance with the requirements of the relevant floodplain management authority.

## 56.08 SITE MANAGEMENT

09/10/2006
VC42

### 56.08-1 Site management objectives

09/10/2006
VC42

To protect drainage infrastructure and receiving waters from sedimentation and contamination.

To protect the site and surrounding area from environmental degradation or nuisance prior to and during construction of subdivision works.

To encourage the re-use of materials from the site and recycled materials in the construction of subdivisions where practicable.

#### Standard C26

A subdivision application must describe how the site will be managed prior to and during the construction period and may set out requirements for managing:

- Erosion and sediment.
- Dust.
- Run-off.
- Litter, concrete and other construction wastes.
- Chemical contamination.
- Vegetation and natural features planned for retention.

Recycled material should be used for the construction of streets, shared paths and other infrastructure where practicable.

# 56.09 UTILITIES

22/08/2014
VC118

## 56.09-1 Shared trenching objectives

22/08/2014
VC118

To maximise the opportunities for shared trenching.

To minimise constraints on landscaping within street reserves.

### Standard C27

Reticulated services for water, gas, electricity and telecommunications should be provided in shared trenching to minimise construction costs and land allocation for underground services.

## 56.09-2 Electricity and telecommunications objectives

01/01/2024
VC250

To provide public utilities to each lot in a timely, efficient and cost effective manner.

To reduce greenhouse gas emissions by supporting generation and use of electricity from renewable sources.

### Standard C28

The electricity supply system must be designed in accordance with the requirements of the relevant electricity supply agency and be provided to the boundary of all lots in the subdivision to the satisfaction of the relevant electricity authority.

Arrangements that support the generation or use of renewable energy at a lot or neighbourhood level are encouraged.

The telecommunication system must be designed in accordance with the requirements of the relevant telecommunications servicing agency and should be consistent with any approved strategy, policy or plan for the provision of advanced telecommunications infrastructure, including fibre optic technology. The telecommunications system must be provided to the boundary of all lots in the subdivision to the satisfaction of the relevant telecommunications servicing authority.

## 56.09-3 Fire hydrants objective

15/09/2008
VC49

To provide fire hydrants and fire plugs in positions that enable fire fighters to access water safely, effectively and efficiently.

### Standard C29

Fire hydrants should be provided:

- A maximum distance of 120 metres from the rear of the each lot.
- No more than 200 metres apart.

Hydrants and fire plugs must be compatible with the relevant fire service equipment. Where the provision of fire hydrants and fire plugs does not comply with the requirements of standard C29, fire hydrants must be provided to the satisfaction of the relevant fire authority.

## 56.09-4 Public lighting objective

09/10/2006
VC42

To provide public lighting to ensure the safety of pedestrians, cyclists and vehicles.

To provide pedestrians with a sense of personal safety at night.

To contribute to reducing greenhouse gas emissions and to saving energy.

### Standard C30

Public lighting should be provided to streets, footpaths, public telephones, public transport stops and to major pedestrian and cycle paths including public open spaces that are likely to be well used at night to assist in providing safe passage for pedestrians, cyclists and vehicles.

Public lighting should be designed in accordance with the relevant Australian Standards.

Public lighting should be consistent with any strategy, policy or plan for the use of renewable energy and energy efficient fittings.

57
16/04/2026
VC300

# TWO OR MORE DWELLINGS ON A LOT AND RESIDENTIAL BUILDINGS OF FOUR TO SIX STOREYS

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To encourage residential development that provides reasonable standards of amenity for existing and new residents.

To support residential development consistent with the future urban development of the area.

## Application

Provisions in this clause apply to the classes of applications specified in clauses:

- 32.04-7, Mixed Use Zone,
- 32.05-8, Township Zone (on land within the urban growth boundary in metropolitan Melbourne),
- 32.07-6, Residential Growth Zone,
- 32.10-5, Housing Choice and Transport Zone.

The objectives contained in clause 57.04-1 do not apply to a development that meets standards E2-2 and E2-3.

The objectives contained in clause 57.04-2 do not apply to a development that meets standard E2-2.

## Operation

The provisions of this clause contain:

- **Objectives.** An objective describes the outcome to be achieved in the completed development.
- **Standards.** A standard contains the requirements to meet the corresponding objective.

  If a zone or a schedule to a zone specifies a standard that modifies the standard set out in this clause, the modified standard, as specified in the zone or schedule to the zone applies.

  If the land is included in an overlay, other than a Neighbourhood Character Overlay, and a schedule to the overlay specifies a standard that modifies the standard set out in this clause, or a modified standard in the zone or a schedule to the zone, the modified standard in the schedule to the overlay applies.
- **Decision guidelines.** If a standard is not met, the decision guidelines set out the matters that the responsible authority must consider before deciding if the corresponding objective is met.

## Requirements

A development must meet all of the applicable objectives contained in this clause.

If a development meets a standard:

- The corresponding objective is deemed to be met
- The responsible authority is not required to consider the corresponding decision guidelines.

If a development does not meet a standard, the responsible authority must consider the applicable decision guidelines in determining whether the corresponding objective is met.

## Exemptions

Despite any other provision of this planning scheme, in determining applications to which this clause applies, the responsible authority is exempt from and is not required to consider:

- The Municipal Planning Strategy and Planning Policy Framework, unless an applicable decision guideline specifies otherwise.
- The purpose or decision guidelines of the relevant zone, unless an applicable decision guideline specifies otherwise.
- The decision guidelines in clause 65, unless an applicable decision guideline specifies otherwise.

If there is any inconsistency between the requirements of this clause and another provision of this planning scheme, this clause prevails.

An application to which this clause applies is exempt from the requirements of:

- Section 60(1)(b), (e), (f), (1A) and (1B) of the Act; and
- Section 84B(2)(b) to (jb) of the Act.

## 57.01 APPLICATION REQUIREMENTS

16/04/2026
VC300

An application to which this clause applies must be accompanied by:

- A site description.
- A design response.
- A written statement outlining which standards are met and which are not met. If a standard is not met, the written statement must include an explanation of how the development meets the corresponding objective having regard to the corresponding decision guidelines.

### 57.01-1 Site description

16/04/2026
VC300

The site description may use a site plan, photographs or other techniques and must accurately describe:

- The built form and scale of surrounding development including front fencing.
- Site shape, size, orientation and easements.
- Levels of the site and the difference in levels between the site and surrounding properties.
- The location and height of existing buildings on the site and on surrounding properties, including the location and height of walls built to the boundary of the site.
- The use of surrounding buildings.
- The location of secluded private open space and habitable room windows of surrounding properties which have an outlook to the site within 6 metres.
- Solar access to the site and to surrounding properties.
- Location of existing trees 5 metres in height or greater, with a trunk circumference of 0.5 metres or greater at 1.4 metres above ground level, on the site.
- Any cut and filled areas of soil, where known.
- Street frontage features such as poles, services, street trees and kerb crossovers.
- Off-site noise sources.
- The relevant NatHERS climate zones (as identified in clause 57.05-4).

If in the opinion of the responsible authority a requirement of the site description is not relevant to the evaluation of an application, the responsible authority may waive or reduce the requirement.

### 57.01-2 Design response

16/04/2026
VC300

The design response must explain how the proposed design:

- Responds to the future urban development of the area.
- Derives from and responds to the site description.
- Specifies suitable materials and finish for the external walls.

The design response must include correctly proportioned street elevations or photographs showing the development in the context of adjacent buildings.

The design response must include a landscape plan that details the proposed:

- Retention and planting of canopy trees.
- Planting of other vegetation including location, species, number and size at maturity of vegetation.
- Where required, areas of deep soil and root barriers.

- Irrigation system to support existing and planted vegetation including details of any alternative water supply sources.
- Selection of vegetation that responds to the site's environment and geographic factors.
- Location of site services.

If in the opinion of the responsible authority a design response requirement is not relevant to the evaluation of an application, it may waive or reduce the requirement.

## 57.02 URBAN CONTEXT

16/04/2026
VC300

### 57.02-1 Street setback objectives

16/04/2026
VC300

To ensure that the setbacks of buildings from a street provide space for canopy trees and make efficient use of the site.

To ensure that the setbacks of buildings from a street respond to the future urban development of the area.

#### Standard E2-1

Walls of buildings are set back from streets:

- At least the distance specified in a schedule to the zone; or
- If no distance is specified in a schedule to the zone, the distance specified in Table E2-1.

Entry canopies, pergolas and awnings for windows or doors may encroach up to 1.5 metres into the setbacks of this standard.

**Table E2-1 Street setback**

| Minimum setback from front street | Minimum setback from side street |
|---|---|
| 4.5 metres | 3 metres |

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.
- Whether the siting of the building is constrained by the shape, dimensions, slope or other conditions of the site.
- Whether a different setback would be more appropriate taking into account the prevailing setbacks of existing buildings on nearby lots.
- Whether a different setback affects the ability to retain or plant canopy trees.

### 57.02-2 Side and rear setbacks objectives

17/04/2026
VC308

To ensure the setback of a building from a boundary provides sufficient space for canopy trees and landscaping.

To ensure the setback of a building from a boundary responds to the future urban development of the area and limits the impact on the amenity of existing dwellings and small second dwellings.

#### Standard E2-2

A new building not on or within 200mm of a boundary is set back from side or rear boundaries at least 4.5 metres.

If the boundary is to the south of the building, the building is set back at least 6 metres up to a height not exceeding 13.5 metres and at least 12 metres for a height over 13.5 metres between south 30 degrees west to south 30 degrees east.

Sunblinds, awnings, privacy screens, eaves, facias, gutters, rainwater goods, flues, pipes, domestic water tanks, heating or cooling equipment or other services may encroach not more than 0.5 metres into the side and rear setbacks.

Stairways and ramps (including landings) that are less than 1 metre above the ground level may encroach into the side and rear setbacks.

Pergolas and shade sails may encroach into the side and rear setbacks.

**Diagram E2-2.1 Side and rear setbacks**

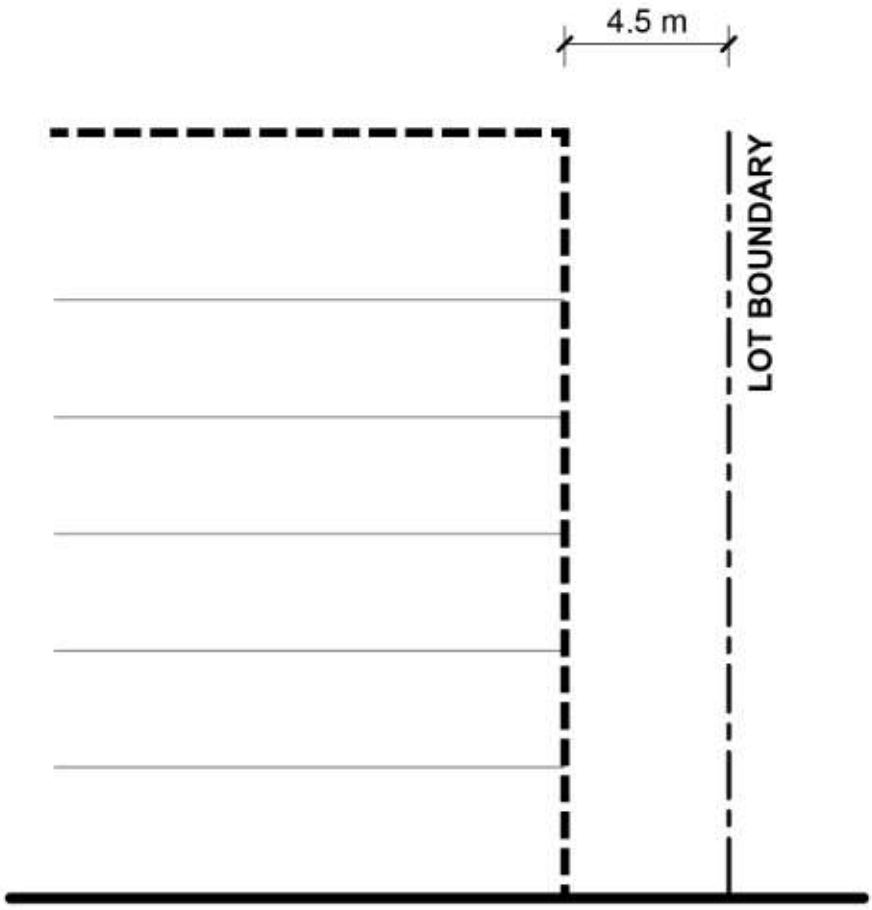
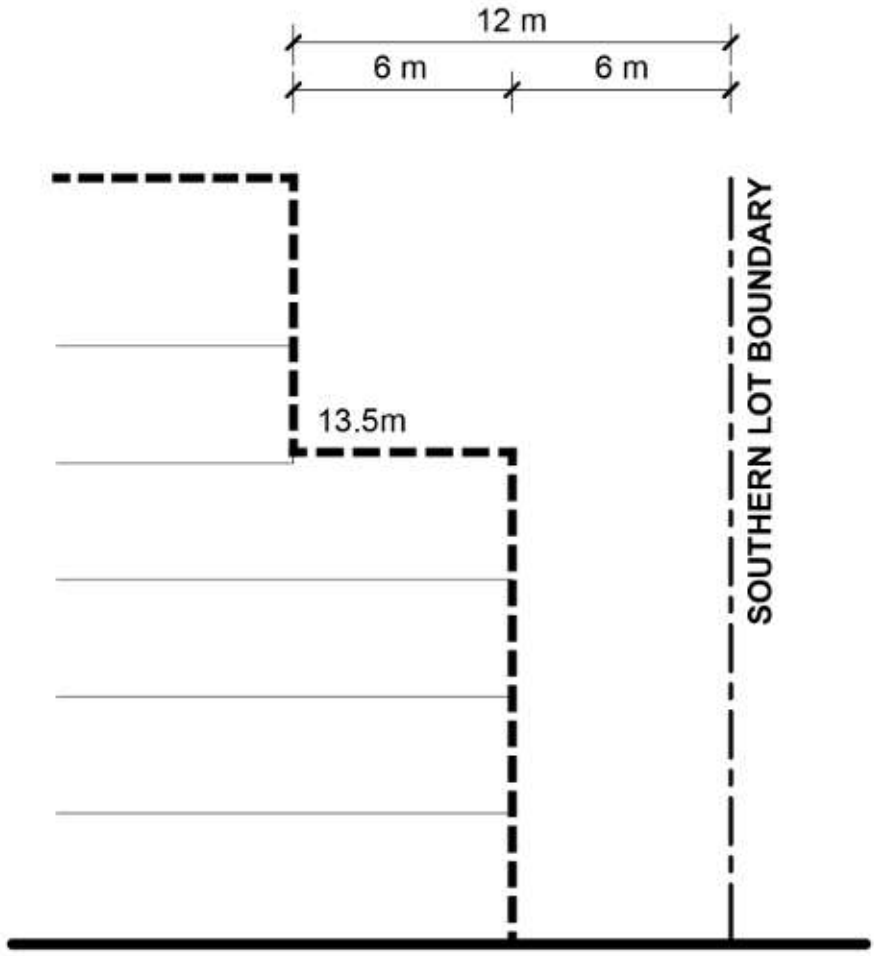


**Diagram E2-2.2 Side and rear setbacks to a southern boundary**




**Decision guidelines**

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.
- Whether the boundary abuts a public open space and how the interface responds to the public open space.
- The impact on the amenity of the habitable room windows and private open space of existing dwellings or small second dwellings.
- The relationship between the setbacks and those of existing adjacent buildings, including the interface with laneways.
- Whether a different setback would be more appropriate, considering the slope of the land and effective height of the building in relation to adjoining properties.
- Whether a different setback in a rear yard affects the ability to provide landscaping or retain or plant canopy trees.

## 57.02-3 Walls on boundaries objective

16/04/2026
VC300

To ensure that the location, length and height of a wall on a boundary responds to the future urban development of the area and limits the impact on the amenity of existing dwellings and small second dwellings.

### Standard E2-3

A new wall constructed on or within 200mm of a side or rear boundary of a lot or a carport constructed on or within 1 metre of a side or rear boundary of a lot does not abut the boundary for a length that exceeds the greater of the following distances:

- 10 metres plus 25 per cent of the remaining length of the boundary of an adjoining lot, or
- The length of existing or simultaneously constructed walls or carports abutting the boundary on an abutting lot.

A new wall or carport may fully abut a side or rear boundary where slope and retaining walls or fences would result in the effective height of the wall or carport being less than 2 metres on the abutting property boundary.

A building on a boundary includes a building set back up to 200mm from a boundary.

The height of a new wall constructed on or within 200mm of a side or rear boundary or a carport constructed on or within 1 metre of a side or rear boundary does not exceed 3.6 metres unless abutting a higher existing or simultaneously constructed wall.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.
- The extent to which walls on boundaries are part of the site context or contribute to the future urban development of the area.
- The orientation of the boundary.
- The impact on the amenity of existing dwellings or small second dwellings.
- The extent to which the slope and retaining walls or fences reduce the effective height of the wall.
- Whether the wall abuts a side or rear lane.
- The location of existing light courts and habitable room windows.

## 57.02-4 Site coverage objective

16/04/2026
VC300

To ensure that the site coverage responds to the future urban development of the area and to the features of the site.

### Standard E2-4

The site area covered by buildings does not exceed:

- The maximum site coverage specified in a schedule to the zone, or
- If no maximum site coverage is specified in a schedule to the zone, 70 per cent.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.

- Any constraints imposed by existing development or the features of the site.
- Whether a different area of site coverage affects the ability to retain or plant canopy trees.
- Whether the arrangement of buildings on the site is efficient and allows for separation between buildings.

## 57.02-5 Access objectives

16/04/2026
VC300

To ensure the number and design of vehicle crossovers responds to the future urban development of the area.

To ensure that vehicle crossovers are designed and located to provide safe access for pedestrians, cyclists and other vehicles.

### Standard E2-5

The width of accessways or car spaces (other than to a rear lane) does not exceed:

- 33 per cent of the street frontage; or
- 40 per cent of the street frontage if the width of the street frontage is less than 20 metres.

The number of access points to a road in a Transport Zone 2 or a Transport Zone 3 is not increased.

The location of a vehicle crossover or accessway does not encroach the tree protection zone of an existing tree that is proposed to be retained in a road by more than 10 per cent.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.
- The impact on the street.
- The impact on the safety of pedestrians or cyclists.
- The reduction of on-street car parking spaces.
- Whether a different accessway width, number of access points or encroachment of an existing tree affects the ability to retain or plant canopy trees on the site or footpath.

## 57.02-6 Tree canopy objectives

16/04/2026
VC300

To provide tree canopy and landscaping that responds to the future urban development of the area.

To preserve existing tree canopy cover and support the provision of new canopy cover.

To ensure new canopy trees are climate responsive, support biodiversity, wellbeing and amenity, and help reduce urban heat.

To ensure that basements allow for space for deep soil planting at the front of a site.

### Standard E2-6

Basements of a building are setback at least 3 metres from the frontage and at least one other boundary.

Provide a minimum canopy cover as specified in Table E2-6.1.

**Table E2-6.1 Canopy cover**

| Site area | Canopy cover |
|---|---|
| 1000 square metres or less | 10% of site area |

| Site area | Canopy cover |
|---|---|
| More than 1000 square metres | 20% of site area |

Existing trees to be retained meet all of the following:

- Has a height of at least 5 metres.
- Has a trunk circumference of 0.5 metres or greater at 1.4 metres above ground level.
- Has a trunk that is located at least 4 metres from proposed buildings.

The minimum canopy cover is met using any combination of trees specified in Table E2-6.2.

Existing trees that are retained can be used in calculating canopy cover.

**Table E2-6.2 Tree type, canopy cover, deep soil and planter requirements**

| Tree type | Minimum canopy diameter at maturity | Minimum height at maturity | Minimum mature canopy cover | Tree in deep soil<br>Area of deep soil | Tree in planter<br>Volume of planter | Minimum depth of planter soil |
|---|---|---|---|---|---|---|
| A | 4 metres | 6 metres | 12.6 square metres | 12 square metres<br>(min. plan dimension 2.5 metres) | 12 cubic metres<br>(min. plan dimension 2.5 metres) | 0.8 metres |
| B | 8 metres | 8 metres | 50.3 square metres | 49 square metres<br>(min. plan dimension 4.5 metres) | 28 cubic metres<br>(min. plan dimension 4.5 metres) | 1 metre |
| C | 12 metres | 12 metres | 113.1 square metres | 121 square metres<br>(min. plan dimension 6.5 metres) | 64 cubic metres<br>(min. plan dimension 6.5 metres) | 1.5 metres |

Provide at least one new or retained tree in the front setback and the rear setback.

Trees are located in either:

- An area of deep soil as specified in Table E2-6.2; or
- A planter as specified in Table E2-6.2

Any tree required to be planted under this standard must be of species to the satisfaction of the responsible authority, having regard to the location and relevant geographic factors.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, landscaping or environmental policy, objective, strategy or statement set out in this planning scheme.
- The site context and design response.
- The extent to which the existing and proposed canopy trees contribute to a greener environment and reduce urban heat.
- Whether the growth characteristics of existing trees and proposed canopy trees will provide the required canopy cover.
- The suitability of the proposed location and deep soil area for proposed canopy trees.

- Whether the species of canopy tree is suited to the soil conditions of the site.
- The suitability of the proposed landscaping in communal outdoor open space.

## 57.02-7 Front fences objective

16/04/2026
VC300

To encourage front fence design that responds to the future urban development of the area.

### Standard E2-7

A front fence within 3 metres of a street is:

- The maximum height and transparency specified in a schedule to the zone, or
- If no maximum height or transparency is specified in a schedule to the zone, the maximum height and transparency specified in Table E2-7.

Transparency is measured as the percentage of the fence that is open when viewed perpendicular to the fence line.

**Table E2-7 Maximum front fence height**

| Street context | Maximum front fence height | Minimum front fence transparency |
|---|---|---|
| Streets in a Transport Zone 2 | 2 metres | 25% |
| Other streets | 1.5 metres | 25% |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.
- The setback, height and appearance of front fences on adjacent properties.
- The extent to which slope and retaining walls reduce the effective height of the front fence.
- Whether the fence is needed to minimise noise intrusion.

# 57.03 LIVEABILITY

16/04/2026
VC300

## 57.03-1 Parking location objective

16/04/2026
VC300

To minimise the impact of vehicular noise within developments on residents.

### Standard E3-1

Habitable room windows with sill heights of less than 3 metres above ground level are setback from accessways and car parks by at least:

- 1.5 metres; or
- If there is a solid fence with a height of at least 1.5 metres between the accessway or car park and the window, 1 metre; or
- 1 metre where window sills are at least 1.5 metres above ground level.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The need for landscaping adjacent to the accessway and car park.

## 57.03-2 Street integration objectives

16/04/2026
VC300

To integrate the layout of development with the street and open spaces to support the safety and amenity of residents.

To support development that activates and provides passive surveillance to streets and public open spaces.

### Standard E3-2

Development is oriented to front a street.

Where a development fronts a street or abuts public open space:

- Passive surveillance is provided by a direct view from at least one balcony or habitable room window at each storey of the building to each street and public open space.
- The total cumulative width of all site services located within 3 metres of a street, do not take up more than 20 per cent of the width of the frontage.

Pedestrian entries are located on street frontages.

Car parking and internal waste collection areas are visually concealed from the street.

Lighting is provided to all external accessways and paths.

One mailbox is provided for each dwelling, and at least one parcel locker is provided for every five dwellings. Mailboxes and parcel lockers are communally located.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.
- The design of screening for services.
- Whether the pedestrian entry is to an active frontage.

## 57.03-3 Building entry and circulation objectives

16/04/2026
VC300

To provide safe, weather protected building entries with a sense of address.

To ensure the internal layout of buildings provide for the safe, functional and efficient movement of residents.

To ensure internal common circulation areas provide adequate access to daylight and natural ventilation.

### Standard E3-3

An apartment development or residential building has:

- A ground level entry door, gate or walkway with a direct line of sight from a street.
- An external covered area over the entry door to the building of at least 1.44 square metres with a minimum dimension of 1.2 metres.

Pedestrian building entries are separated from vehicle entry points.

Shared corridors and common areas:

- Have at least one source of natural light and natural ventilation.
- Are unobstructed by building services; and
- Have a clear sightline from the building entry to the lift lobby area at ground level.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Whether the building entry is visible and easily identifiable from streets and other public areas.
- Whether the entry provides shelter, a sense of address and a transitional space around the entry.
- The useability and amenity of internal common areas and circulation spaces based on daylight access and the natural ventilation they will receive.
- The level of passive surveillance to the street, public open space and communal space.
- The length of corridors and any concealed areas.

## 57.03-4 Private open space objective

17/04/2026
VC308

To provide adequate private open space for the reasonable recreation and service needs of residents.

### Standard E3-4

A dwelling or residential building has private open space with direct access from a living area, dining area or kitchen consisting of:

- An area of 15 square metres of private open space at ground level or on a podium, with a minimum dimension of 2.4 metres width; or
- A balcony with at least the area and dimensions specified in Table E3-4; or
- An area on a roof of at least 10 square metres, with a minimum dimension of 2 metres width.

If a cooling or heating unit is located in the private open space, the required area is increased by 1.5 square metres.

**Table E3-4 Private open space for a balcony**

| Dwelling type | Minimum area | Minimum length (parallel to the external wall) | Minimum width |
|---|---|---|---|
| Studio or 1 bedroom dwelling | 8 square metres | 3 metres | 1.8 metres |
| 2 bedroom dwelling | 8 square metres | 3 metres | 2 metres |
| 3 or more bedroom dwelling | 12 square metres | 3 metres | 2.4 metres |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability of the private open space, including its size and accessibility.
- The availability of and access to public or communal open space.
- The orientation of the lot to the street and the sun.

## 57.03-5 Communal space objectives

17/04/2026
VC308

To provide communal space that meets the recreation and amenity needs of residents.

To ensure that communal space is accessible, practical, attractive and easily maintained.

To ensure that communal space is integrated with the layout of the development and enhances resident amenity.

### Standard E3-5

A development of 10 or more dwellings includes communal space accessible to all residents of at least:

- 2.5 square metres per dwelling; or
- 25 per cent of the site area, whichever is the lesser.

This may consist of multiple separate areas of communal space.

This may include indoor communal space or outdoor communal space.

If outdoor communal space is provided, 50 per cent of the area or 25 square metres whichever is the greater, is not overshadowed for a minimum of two hours between 9 am and 3 pm on 22 September.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.
- The availability of and access to public open space.
- The useability of the communal space, including its size and accessibility.

## 57.03-6 Functional layout objective

17/04/2026
VC308

To ensure dwellings provide functional areas that meet the needs of residents.

### Standard E3-6

Bedrooms:

- Meet the minimum internal room dimensions specified in Table E3-6.1; and
- Provide an additional area of at least 0.8 square metres to accommodate a wardrobe.

**Table E3-6.1 Bedroom dimensions**

| Bedroom type | Minimum width | Minimum depth |
|---|---|---|
| Main bedroom | 3 metres | 3.4 metres |
| All other bedrooms | 3 metres | 3 metres |

Living areas (excluding dining and kitchen areas) meet the minimum internal room dimensions specified in Table E3-6.2.

**Table E3-6.2 Living area dimensions**

| Dwelling type | Minimum width | Minimum area |
|---|---|---|
| Studio and 1 bedroom dwelling | 3.3 metres | 10 square metres |
| 2 or more bedroom dwelling | 3.6 metres | 12 square metres |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability and amenity of habitable rooms

## 57.03-7 Room depth objective

16/04/2026
VC300

To allow adequate daylight into single aspect habitable rooms.

### Standard E3-7

The depth of a single aspect habitable room does not exceed 2.5 times the ceiling height measured from the external surface of the habitable room window to the rear wall of the room.

The depth of a single aspect, open plan, habitable room may be increased to 9 metres if all the following requirements are met:

- The room combines the living area, dining area and kitchen.
- The kitchen is located furthest from the window.
- The ceiling height is at least 2.7 metres measured from finished floor level to finished ceiling level. This excludes where services are provided above the kitchen.

The room depth is measured from the external surface of the habitable room window to the rear wall of the room.

For the purposes of clause 57.03-7 a single aspect habitable room is a habitable room with windows on only one wall.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The extent to which the habitable room is provided with reasonable daylight access through the number, size, location and orientation of windows.

- The useability, functionality and amenity of the dwelling based on the layout, siting, size and orientation of habitable rooms.
- Any overhang above habitable room windows that limits daylight access.

## 57.03-8 Daylight to new windows objective

16/04/2026
VC300

To allow adequate daylight into new habitable room windows.

### Standard E3-8

Habitable rooms are to have a window in an external wall of the building.

A habitable room window is not located in a basement.

Where daylight to a bedroom is provided from a smaller secondary area within the bedroom, the secondary area is to have:

- A minimum width of 1.2 metres.
- A maximum depth of 1.5 times the width, measured from the external surface of the window.
- A window clear to the sky.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The extent to which habitable rooms are provided with reasonable daylight access through the number, size, location and orientation of windows.
- The useability and amenity of the dwelling based on the layout, siting, size and orientation of habitable rooms.
- Whether there are other windows in the habitable room which have access to daylight.

## 57.03-9 Natural ventilation objectives

16/04/2026
VC300

To encourage natural ventilation of dwellings.

To allow occupants to effectively manage natural ventilation of dwellings.

### Standard E3-9

At least 40 per cent of dwellings have openable windows, doors or other ventilation devices in external walls of the building that provide:

- A maximum breeze path through the dwelling of 18 metres.
- A minimum breeze path through the dwelling of 5 metres.
- Ventilation openings with approximately the same size.

The breeze path is measured between the ventilation openings on different orientations of the dwelling.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The size, orientation, slope and wind exposure of the site.

- The extent to which the orientation and layout of the dwelling maximises opportunities for cross ventilation.
- Whether an alternative design meets the relevant objectives having regard to the amenity of the dwelling and site context.

## 57.03-10 Storage objective

16/04/2026
VC300

To provide adequate storage facilities for each dwelling.

### Standard E3-10

Each dwelling has exclusive access to storage at least the total minimum storage volume that is specified in Table E3-10.

**Table E3-10 Storage**

| Dwelling type | Total minimum storage volume | Minimum storage volume within the dwelling |
|---|---|---|
| Studio | 8 cubic metres | 5 cubic metres |
| 1 bedroom dwelling | 10 cubic metres | 6 cubic metres |
| 2 bedroom dwelling | 14 cubic metres | 9 cubic metres |
| 3 or more bedroom dwelling | 18 cubic metres | 12 cubic metres |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability, functionality and location of storage facilities provided for the dwelling.

## 57.03-11 Accessibility objective

16/04/2026
VC300

To ensure the design of dwellings meets the needs of people with limited mobility.

### Standard E3-11

At least 50 per cent of dwellings have:

- A clear opening width of at least 850mm at the entrance to the dwelling and main bedroom.
- A clear path with a minimum width of 1.2 metres that connects the dwelling entrance to the main bedroom, an adaptable bathroom and the living area.
- A main bedroom with access to an adaptable bathroom.
- At least one adaptable bathroom that meets all of the requirements of either Design A or Design B specified in Table E3-11

**Table E3-11 Bathroom design**

| | Design option A | Design option B |
|---|---|---|
| Door opening | A clear 850mm wide door opening. | A clear 820mm wide door opening located opposite the shower. |
| Door design | Either:<br>▪ A slide door, or | Either:<br>▪ A slide door, or |

| | Design option A | Design option B |
|---|---|---|
| | ▪ A door that opens outwards, or<br>▪ A door that opens inwards that is clear of the circulation area and has readily removable hinges. | ▪ A door that opens outwards, or<br>▪ A door that opens inwards and has readily removable hinges. |
| Circulation area | A clear circulation area that is:<br>▪ A minimum area of 1.2 metres by 1.2 metres.<br>▪ Located in front of the shower and the toilet.<br>▪ Clear of the toilet, basin and the door swing.<br>The circulation area for the toilet and shower can overlap. | A clear circulation area that is:<br>▪ A minimum width of 1 metre.<br>▪ The full length of the bathroom and a minimum length of 2.7 metres.<br>▪ Clear of the toilet and basin.<br>The circulation area can include a shower area. |
| Path to circulation area | A clear path with a minimum width of 900mm from the door opening to the circulation area. | Not applicable. |
| Shower | A hobless (step-free) shower. | A hobless (step-free) shower that has a removable shower screen and is located on the furthest wall from the door opening. |
| Toilet | A toilet located in the corner of the room. | A toilet located closest to the door opening and clear of the circulation area. |

### Decision guidelines

None specified.

## 57.03-12 Building separation within a site objective

16/04/2026
VC300

To ensure that the separation between buildings (other than a light court) within a site provides a reasonable outlook and adequate daylight to new dwellings, and sufficient space for canopy trees and landscaping.

### Standard E3-12

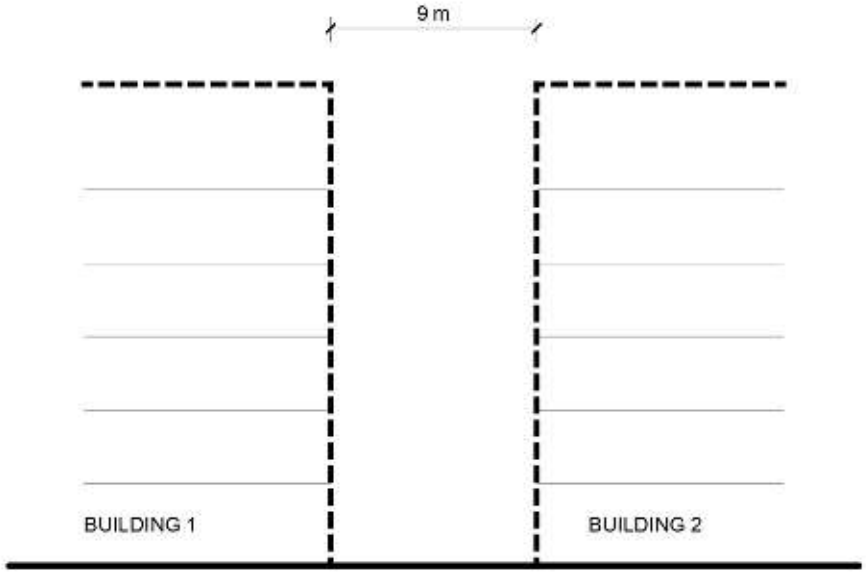
Walls of buildings that contain a habitable room window or balcony are set back from other walls of buildings on a site by at least 9 metres. This does not apply to a wall that forms part of a light court.

Sunblinds, awnings, privacy screens, eaves, facias, gutters, rainwater goods, flues, pipes, domestic water tanks, heating or cooling equipment or other services may encroach up to 0.5 metres into the building separation setback.

Stairways and ramps (including landings) that are less than 1 metre above the ground level may encroach into the building separation setback.

Pergolas and shade sails may encroach into the building separation setback.

**Diagram E3-12 Building separation within a site**




### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The design, function and layout of the building separation setback.
- Whether the building separation setback provides reasonable outlook and adequate daylight to new dwellings.
- Views between private open spaces and habitable room windows.
- Whether a different building separation setback affects the ability to retain or plant canopy trees.

## 57.03-13 Light courts objective

16/04/2026
VC300

To ensure that a light court provides adequate daylight into a new bedroom or non-habitable room window.

### Standard E3-13

A light court:

- Has a minimum dimension of at least 4.5 metres and an area of at least 20.25 square metres.
- Has a maximum dimension of 6 metres and a maximum area of 36 square metres.
- Is enclosed by the wall of a building for at least 75 per cent of its perimeter.
- Is clear to the sky.
- Is not the primary source of daylight to a living room or private open space.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.

- Whether the light court provides adequate daylight to a new bedroom or non-habitable room window.
- The arrangement of windows facing the light court.

## 57.04 EXTERNAL AMENITY

16/04/2026
VC300

### 57.04-1 Overshadowing secluded private open space objective

16/04/2026
VC300

To ensure that any part of a building that does not meet standards E2-2 and E2-3 does not significantly overshadow existing secluded private open space.

#### Standard E4-1

The area of secluded private open space that is not overshadowed by the new development is greater than 50 per cent, or 25 square metres with a minimum dimension of 3 metres, whichever is the lesser area, for a minimum of five hours between 9 am and 3 pm on 22 September.

If existing sunlight to the secluded private open space of an existing dwelling or small second dwelling is less than the requirements of this standard, the amount of sunlight is not further reduced.

This standard does not apply to any part of a new building that meets standards E2-2 and E2-3.

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The impact on the amenity of existing dwellings or small second dwellings.
- Existing sunlight penetration to the secluded private open space of the existing dwelling or small second dwelling.
- The time of day that sunlight will be available to the secluded private open space of the existing dwelling or small second dwelling.
- The effect of a reduction in sunlight on the existing use of the existing secluded private open space.

### 57.04-2 Overlooking objective

17/04/2026
VC308

To limit views from any part of a building that does not meet standard E2-2 into existing secluded private open space and habitable room windows.

#### Standard E4-2

A habitable room window, balcony, podium, terrace, deck or patio is located and designed to avoid direct views into the secluded private open space of an existing dwelling or small second dwelling within a horizontal distance of 6 metres (measured at ground level) of the window, balcony, terrace, deck or patio. Views are measured within a 45 degree angle from the plane of the window or perimeter of the balcony, terrace, deck or patio, and from a height of 1.5 metres above floor level.

A habitable room window, balcony, terrace, deck or patio located with a direct view into a habitable room window of an existing dwelling or small second dwelling within a horizontal distance of 6 metres (measured at ground level) of the window, balcony, terrace, deck or patio:

- Is offset a minimum of 1.5 metres from the edge of one window to the edge of the other; or
- Has a sill height of at least 1.5 metres above floor level; or
- Has fixed, obscure glazing in any part of the window below 1.5 metre above floor level; or
- Has permanently fixed external screens to at least 1.5 metres above floor level and be no more than 25 per cent transparent; or
- Has fixed elements that prevent the direct view, such as horizontal ledges or vertical fins.

Obscure glazing in any part of the window below 1.5 metres above floor level may be openable provided that there are no direct views as specified in this standard.

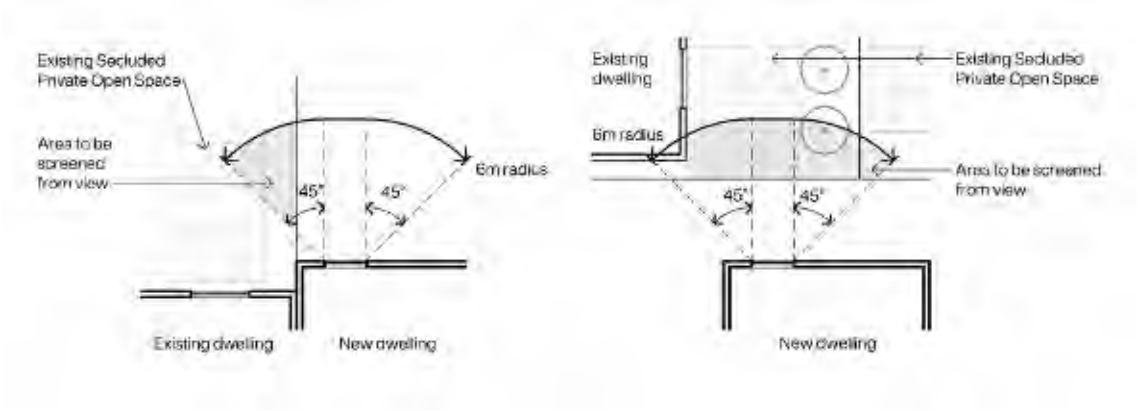
Screens used to obscure a view are:

- Perforated panels or trellis with a maximum of 25 per cent openings or solid translucent panels.
- Permanent, fixed and durable.
- Designed and coloured to blend in with the development.

This standard does not apply to a new habitable room window, balcony, terrace, deck or patio which faces a property boundary where there is a visual barrier at least 1.5 metres high and the floor level of the habitable room, balcony, terrace, deck or patio is less than 0.8 metres above ground level at the boundary.

This standard does not apply to a new habitable room window, balcony, terrace, deck or patio that is located in any part of a building that meets standard E2-2.

**Diagram E4-2 Overlooking**




**Decision guidelines**

Before deciding on an application, the responsible authority must consider:

- The design response.
- The impact on the amenity of the secluded private open space or habitable room window.
- The existing extent of overlooking into the secluded private open space and habitable room windows of existing dwellings or small second dwellings.
- The internal daylight to and amenity of the proposed dwelling, residential building or small second dwelling.
- The orientation and location of windows to limit views.

# 57.05 SUSTAINABILITY

16/04/2026
VC300

## 57.05-1 Permeability and stormwater management objectives

17/04/2026
VC308

To reduce the impact of increased stormwater run-off on the drainage system and downstream waterways.

To facilitate on-site stormwater infiltration.

To encourage stormwater management that maximises the retention and reuse of stormwater.

To contribute to urban cooling.

### Standard E5-1

The site area covered by the pervious surfaces is at least 20 percent of the site.

Buildings are connected to a non-potable dual pipe reticulate water supply, where available from the water authority.

The development includes a stormwater management system designed to:

- Meet the best practice quantitative performance objectives for stormwater quality specified in the *Urban stormwater management guidance* (EPA Publication 1739.1, 2021) of:
  - Suspended solids 80% reduction in mean annual load.
  - Total phosphorus and Total Nitrogen 45% reduction in mean annual load.
  - Litter 70% reduction of mean annual load.

  *Note: A certificate generated from a stormwater assessment tool including STORM, MUSIC or an equivalent product accepted by the responsible authority may be used to demonstrate the performance objectives for stormwater quality are met.*

- Direct flows of stormwater into treatment areas, garden areas, tree pits and permeable surfaces, with drainage of residual flows to the legal point of discharge.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The capacity of the site to incorporate stormwater retention and reuse.
- The existing site coverage and any constraints imposed by existing development.
- The capacity of the drainage network to accommodate additional stormwater.
- Whether the stormwater treatment areas can be effectively maintained.
- Whether the owner has entered into an agreement to contribute to off-site stormwater management in lieu of providing an on-site stormwater management system.

## 57.05-2 Waste and recycling objectives

16/04/2026
VC300

To ensure dwellings are designed to facilitate waste recycling.

To ensure that waste and recycling facilities are accessible and are of sufficient size to manage organic and general waste, and mixed and glass recycling.

To ensure that waste and recycling facilities are designed and managed to minimise impacts on residential amenity.

### Standard E5-2

The development includes a shared bin storage area for use by each dwelling of at least the applicable area, depth and height specified in Table E5-2.

**Table E5-2 Bin storage**

| Number of dwellings | Minimum area | Minimum depth | Minimum height |
|---|---|---|---|
| 15 or less dwellings | 0.7 square metres per dwelling in a shared waste storage area | 0.8 metres | 2.7 metres |
| 16 to 55 dwellings | 0.5 square metres per dwelling, plus 5 square metres in a shared waste storage area. | 1 metre | 2.7 metres |
| 56 or more dwellings | 0.5 square metres per dwelling in a shared waste storage area. | 1 metre | 2.7 metres |

Enclosed bin storage areas are ventilated by:

- Natural ventilation openings to the external air with an area of at least 5 per cent of the area for bin storage area; or
- A mechanical exhaust ventilation system.

A tap and drain are provided to wash bins.

A continuous path of travel is provided from each dwelling to bin storage areas.

Each dwelling includes an internal waste and recycling storage space of at least 0.07 cubic metres with a minimum depth of 250 millimetres.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response, including a Waste Management Plan.
- Any relevant waste and recycling objective, policy or statement set out in this planning scheme.
- The functionality and accessibility of waste and recycling facilities, including for people with limited mobility.
- Whether facilities are provided for on-site reuse or management of food and garden organics through composting or other waste recovery.
- Whether waste and recycling facilities are designed to meet the better practice design options specified in *Waste management and recycling in multi-unit developments* (Sustainability Victoria, 2019).

## 57.05-3 Noise impacts objectives

17/04/2026
VC308

To minimise the impact of mechanical plant noise located in the development.

To contain noise sources in developments that may affect existing dwellings.

To protect residents from external and internal noise sources.

### Standard E5-3

Mechanical plant, including mechanical car storage, lift facilities, building services, non-residential uses, car parking, communal areas are not located immediately adjacent to bedrooms of new or existing dwellings or small second dwellings, unless a solid barrier is in place to provide a line of sight barrier to transmission of noise and the location of all relevant bedrooms.

Buildings within a noise influence area specified in Table E5-3 are designed and constructed to achieve the following noise levels:

- Not greater than 35dB(A) for bedrooms, assessed as an LAeq,8h from 10pm to 6am.
- Not greater than 40dB(A) for living areas, assessed LAeq,16h from 6am to 10pm.

Buildings, or part of a building screened from a noise source by an existing solid structure, or the natural topography of the land, do not need to meet the specified noise level requirements.

Noise levels are assessed in unfurnished rooms with a finished floor and the windows closed.

**Table E5-3 Noise influence area**

| Noise source | Noise influence area |
|---|---|
| **Zone interface** | |
| Industry | 300 metres from the Industrial 1, 2 and 3 zone boundary |
| **Roads** | |
| Freeways, tollways and other roads carrying 40,000 Annual Average Daily Traffic Volume | 300 metres from the nearest trafficable lane |
| **Railways** | |
| Railways servicing passengers in Victoria | 80 metres from the centre of the nearest track |
| Railway servicing freight outside metropolitan Melbourne | 80 metres from the centre of the nearest track |
| Railway servicing freight in metropolitan Melbourne | 135 metres from the centre of the nearest track |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- Whether the impact of potential noise sources within a development have been mitigated through design, location and siting.
- Whether the layout of rooms within a dwelling mitigates noise transfer within and between dwellings.
- Whether it can be demonstrated that the design treatment incorporated into the development meets the specified noise levels or an acoustic report by a suitably qualified consultant submitted with the application.

## 57.05-4 Energy efficiency objectives

16/04/2026
VC300

To achieve energy efficient dwellings and buildings.

To ensure dwellings achieve adequate thermal efficiency.

### Standard E5-4

Dwellings located in a climate zone identified in Table E5-4 do not exceed the maximum NatHERS annual cooling load.

**Table E5-4 Cooling load**

| NatHERS climate zone | NatHERS maximum cooling load MJ/M$^2$ per annum |
|---|---|
| Climate zone 21 Melbourne | 30 |
| Climate zone 22 East Sale | 22 |

| NatHERS climate zone | NatHERS maximum cooling load<br>MJ/M$^2$ per annum |
|---|---|
| Climate zone 27 Mildura | 69 |
| Climate zone 60 Tullamarine | 22 |
| Climate zone 62 Moorabbin | 21 |
| Climate zone 63 Warrnambool | 21 |
| Climate zone 64 Cape Otway | 19 |
| Climate zone 66 Ballarat | 23 |

*Note: Refer to NatHERS zone map, Nationwide House Energy Rating Scheme (Commonwealth Department of Environment and Energy).*

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The size, orientation and layout of the site.
- The availability of solar access to north-facing windows on the site.
- The annual cooling load for each dwelling.

58
16/04/2026
VC300

# APARTMENT DEVELOPMENTS

## Purpose

To implement the Municipal Planning Strategy and the Planning Policy Framework.

To encourage apartment development that provides reasonable standards of amenity for existing and new residents.

To encourage apartment development that is responsive to the site and the surrounding area.

## Application

Provisions in this clause apply to an application to construct or extend an apartment development, or to construct or extend a dwelling in or forming part of an apartment development, if:

- The apartment development is seven storeys or more, excluding a basement, and is in the General Residential Zone, Residential Growth Zone, Housing Choice and Transport Zone, Mixed Use Zone or Township Zone, or
- The apartment development is in the Commercial 1 Zone, Commercial 3 Zone, Special Use Zone, Comprehensive Development Zone, Capital City Zone, Docklands Zone, Priority Development Zone, Activity Centre Zone or Precinct Zone.

## Operation

The provisions of this clause contain:

- **Objectives**. An objective describes the desired outcome to be achieved in the completed development.
- **Standards**. A standard contains the requirements to meet the objective.
  A standard should normally be met. However, if the responsible authority is satisfied that an application for an alternative design solution meets the objective, the alternative design solution may be considered.
- **Decision guidelines**. The decision guidelines set out the matters that the responsible authority must consider before deciding if an application meets the objectives.

## Requirements

A development:

- Must meet all of the objectives of this clause.
- Should meet all of the standards of this clause.

If a zone or a schedule to a zone, or a schedule to an overlay specifies a requirement different from a requirement of a standard set out in Clause 58 (excluding Clause 58.04-1), the requirement in Clause 58 applies.

For Clause 58.04-1 (Building setback):

- If a zone or a schedule to a zone specifies a building setback requirement different from a requirement set out in Clause 58.04-1, the building setback requirement in the zone or a schedule to the zone applies.
- If the land is included in an overlay and a schedule to the overlay specifies a building setback requirement different from the requirement set out Clause 58.04-1 or a requirement set out in the zone or a schedule to the zone, the requirement for building setback in the overlay applies.

# 58.01 URBAN CONTEXT REPORT AND DESIGN RESPONSE

16/01/2018
VC142

## 58.01-1 Application requirements

13/04/2017
VC136

An application must be accompanied by:

- An urban context report.
- A design response.

## 58.01-2 Urban context report

16/01/2018
VC142

The urban context report may use a site plan, photographs or other techniques and must include:

An accurate description of:

- Site shape, size, orientation and easements.
- Levels and contours of the site and the difference in levels between the site and surrounding properties.
- The location and height of existing buildings on the site and surrounding properties.
- The use of surrounding buildings.
- The location of private open space of surrounding properties and the location of trees, fences and other landscape elements.
- Solar access to the site and to surrounding properties.
- Views to and from the site.
- Street frontage features such as poles, street trees and kerb crossovers.
- The location of local shops, public transport services and public open spaces within walking distance.
- Movement systems through and around the site.
- Any other notable feature or characteristic of the site.

An assessment of the characteristics of the area including:

- Any environmental features such as vegetation, topography and significant views.
- The pattern of subdivision.
- Street design and landscape.
- The pattern of development.
- Building form, scale and rhythm.
- Connection to the public realm.
- Architectural style, building details and materials.
- Off-site noise sources.
- The relevant NatHERS climate zones (as identified in Clause 58.03-1).
- Social and economic activity.
- Any other notable or cultural characteristics of the area.

### Satisfactory urban context report

If the responsible authority decides that the urban context report is not satisfactory, it may require more information from the applicant under Section 54 of the Act.

The responsible authority must not require notice of an application to be given or decide an application until it is satisfied that the urban context report meets the requirements of Clause 58.01-2 and is satisfactory.

This does not apply if the responsible authority refuses an application under Section 52(1A) of the Act.

## 58.01-3 Design response

20/12/2021
VC174

The design response must explain how the proposed design:

- Responds to any relevant planning provision that applies to the land.
- Meets the objectives of Clause 58.
- Responds to any relevant housing, urban design and landscape plan, strategy or policy set out in this scheme.
- Selects materials and finishes for the external walls.
- Derives from and responds to the urban context report.

The design response must include correctly proportioned street elevations or photographs showing the development in the context of adjacent buildings. If in the opinion of the responsible authority this requirement is not relevant to the evaluation of an application, it may waive or reduce the requirement.

## 58.02 URBAN CONTEXT

31/07/2018
VC148

### 58.02-1 Urban context objectives

13/04/2017
VC136

To ensure that the design responds to the existing urban context or contributes to the preferred future development of the area.

To ensure that development responds to the features of the site and the surrounding area.

#### Standard D1

The design response must be appropriate to the urban context and the site.

The proposed design must respect the existing or preferred urban context and respond to the features of the site.

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The urban context report.
- The design response.

### 58.02-2 Residential policy objectives

31/07/2018
VC148

To ensure that residential development is provided in accordance with any policy for housing in the Municipal Planning Strategy and the Planning Policy Framework.

To support higher density residential development where development can take advantage of public and community infrastructure and services.

#### Standard D2

An application must be accompanied by a written statement to the satisfaction of the responsible authority that describes how the development is consistent with any relevant policy for housing in the Municipal Planning Strategy and the Planning Policy Framework.

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The Municipal Planning Strategy and the Planning Policy Framework.
- The design response.

### 58.02-3 Dwelling diversity objective

13/04/2017
VC136

To encourage a range of dwelling sizes and types in developments of ten or more dwellings.

#### Standard D3

Developments of ten or more dwellings should provide a range of dwelling sizes and types, including dwellings with a different number of bedrooms.

### 58.02-4 Infrastructure objectives

01/01/2024
VC250

To ensure development is provided with appropriate utility services and infrastructure.

To ensure development does not unreasonably overload the capacity of utility services and infrastructure.

### Standard D4

Development should be connected to reticulated services, including reticulated sewerage, drainage and electricity, if available.

Development should not unreasonably exceed the capacity of utility services and infrastructure, including reticulated services and roads.

In areas where utility services or infrastructure have little or no spare capacity, developments should provide for the upgrading of or mitigation of the impact on services or infrastructure.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The capacity of the existing infrastructure.
- In the absence of reticulated sewerage, a Land Capability Assessment on the risks to human health and the environment of an on-site wastewater management system constructed, installed or altered on the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017*.
- If the drainage system has little or no spare capacity, the capacity of the development to provide for stormwater drainage mitigation or upgrading of the local drainage system.

## 58.02-5 Integration with the street objective

20/12/2021
VC174

To integrate the layout of development with the street.

To support development that activates street frontage.

### Standard D5

Development should be oriented to front existing and proposed streets.

Along street frontage, development should:

- Incorporate pedestrian entries, windows, balconies or other active spaces.
- Limit blank walls.
- Limit high front fencing, unless consistent with the existing urban context.
- Provide low and visually permeable front fences, where proposed.
- Conceal car parking and internal waste collection areas from the street.

Development next to existing public open space should be designed to complement the open space and facilitate passive surveillance.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.

# 58.03 SITE LAYOUT

31/07/2018
VC148

## 58.03-1 Energy efficiency objectives

14/12/2023
VC253

To achieve and protect energy efficient dwellings and buildings.

To ensure the orientation and layout of development reduce fossil fuel energy use and make appropriate use of daylight and solar energy.

To ensure dwellings achieve adequate thermal efficiency.

### Standard D6

Buildings should be:

- Oriented to make appropriate use of solar energy.
- Sited and designed to ensure that the energy efficiency of existing dwellings or small second dwellings on adjoining lots is not unreasonably reduced.

Living areas and private open space should be located on the north side of the development, if practicable.

Developments should be designed so that solar access to north-facing windows is optimised.

Dwellings located in a climate zone identified in Table D1 should not exceed the maximum NatHERS annual cooling load specified in the following table.

### Table D1 Cooling load

| NatHERS climate zone | NatHERS maximum cooling load MJ/M² per annum |
|---|---|
| Climate zone 21 Melbourne | 30 |
| Climate zone 22 East Sale | 22 |
| Climate zone 27 Mildura | 69 |
| Climate zone 60 Tullamarine | 22 |
| Climate zone 62 Moorabbin | 21 |
| Climate zone 63 Warrnambool | 21 |
| Climate zone 64 Cape Otway | 19 |
| Climate zone 66 Ballarat | 23 |

*Note: Refer to NatHERS zone map, Nationwide House Energy Rating Scheme (Commonwealth Department of Environment and Energy).*

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The size, orientation and layout of the site.
- The existing amount of solar access to abutting properties.
- The availability of solar access to north-facing windows on the site.
- The annual cooling load for each dwelling.

## 58.03-2 Communal open space objective

14/12/2023
VC253

To provide communal open space that meets the recreation and amenity needs of residents.

To ensure that communal open space is accessible, practical, attractive, easily maintained.

To ensure that communal open space is integrated with the layout of the development and enhances resident amenity.

### Standard D7

A development of 10 or more dwellings should provide a minimum area of communal outdoor open space of 30 square metres.

If a development contains 13 or more dwellings, the development should also provide an additional minimum area of communal open space of 2.5 square metres per dwelling or 220 square metres, whichever is the lesser. This additional area may be indoors or outdoors and may consist of multiple separate areas of communal open space.

Each area of communal open space should be:

- Accessible to all residents.
- A useable size, shape and dimension.
- Capable of efficient management.
- Located to:
  - Provide passive surveillance opportunities, where appropriate.
  - Provide outlook for as many dwellings as practicable.
  - Avoid overlooking into habitable rooms and private open space of new dwellings.
  - Minimise noise impacts to new and existing dwellings and existing small second dwellings.

Any area of communal outdoor open space should be landscaped and include canopy cover and trees.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.
- The availability of and access to public open space.

## 58.03-3 Solar access to communal outdoor open space objective

13/04/2017
VC136

To allow solar access into communal outdoor open space.

### Standard D8

The communal outdoor open space should be located on the north side of a building, if appropriate.

At least 50 per cent or 125 square metres, whichever is the lesser, of the primary communal outdoor open space should receive a minimum of two hours of sunlight between 9am and 3pm on 21 June.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.

- The useability and amenity of the primary communal outdoor open space areas based on the urban context, the orientation of the building, the layout of dwellings and the sunlight it will receive.

## 58.03-4 Safety objective

13/04/2017
VC136

To ensure the layout of development provides for the safety and security of residents and property.

### Standard D9

Entrances to dwellings should not be obscured or isolated from the street and internal accessways.

Planting which creates unsafe spaces along streets and accessways should be avoided.

Developments should be designed to provide good lighting, visibility and surveillance of car parks and internal accessways.

Private spaces within developments should be protected from inappropriate use as public thoroughfares.

### Decision guideline

Before deciding on an application, the responsible authority must consider the design response.

## 58.03-5 Landscaping objectives

15/03/2024
VC256

To provide landscaping that supports the existing or preferred urban context of the area and reduces the visual impact of buildings on the streetscape.

To preserve existing canopy cover and support the provision of new canopy cover.

To ensure landscaping is climate responsive, supports biodiversity, wellbeing and amenity and reduces urban heat.

### Standard D10

Development should retain existing trees and canopy cover.

Development should provide for the replacement of any significant trees that have been removed in the 12 months prior to the application being made.

Development should:

- Provide the canopy cover and deep soil areas specified in Table D2. Existing trees can be used to meet the canopy cover requirements of Table D2.
- Provide canopy cover through canopy trees that are:
  - Located in an area of deep soil specified in Table D3. Where deep soil cannot be provided trees should be provided in planters specified in Table D3.
  - Consistent with the canopy diameter and height at maturity specified in Table D4.
  - Located in communal outdoor open space or common areas or street frontages.
- Comprise smaller trees, shrubs and ground cover, including flowering native species.
- Include landscaping, such as climbing plants or smaller plants in planters, in the street frontage and in outdoor areas, including communal outdoor open space.
- Shade outdoor areas exposed to summer sun through landscaping or shade structures and use paving and surface materials that lower surface temperatures and reduce heat absorption.
- Be supported by irrigation systems which utilise alternative water sources such as rainwater, stormwater and recycled water.
- Protect any predominant landscape features of the area.

- Take into account the soil type and drainage patterns of the site.
- Provide a safe, attractive and functional environment for residents.
- Specify landscape themes, vegetation (location and species), irrigation systems, paving and lighting.

**Table D2 Canopy cover and deep soil requirements**

| Site area | Canopy cover | Deep soil |
|---|---|---|
| 1000<br>square metres or less | 5% of site area<br>Include at least 1 Type A tree | 5% of site area or 12 square metres whichever is the greater |
| 1001 - 1500<br>square metres | 50 square metres plus 20% of site area above 1,000 square metres<br>Include at least 1 Type B tree | 7.5% of site area |
| 1501 - 2500 square metres | 150 square metres plus 20% of site area above 1,500 square metres<br>Include at least 2 Type B trees or 1 Type C tree | 10% of site area |
| 2501<br>square metres or more | 350 square metres plus 20% of site area above 2,500 square metres<br>Include at least 2 Type B trees or 1 Type C tree | 15% of site area |

**Table D3 Soil requirements for trees**

| Tree type | Tree in deep soil<br>Area of deep soil | Tree in planter<br>Volume of planter soil | Depth of planter soil |
|---|---|---|---|
| A | 12 square metres<br>(min. plan dimension 2.5 metres) | 12 cubic metres<br>(min. plan dimension of 2.5 metres) | 0.8 metre |
| B | 49 square metres<br>(min. plan dimension 4.5 metres) | 28 cubic metres<br>(min. plan dimension of 4.5 metres) | 1 metre |
| C | 121 square metres<br>(min. plan dimension 6.5 metres) | 64 cubic metres<br>(min. plan dimension of 6.5 metres) | 1.5 metre |

*Note: Where multiple trees share the same section of soil the total required amount of soil can be reduced by 5% for every additional tree, up to a maximum reduction of 25%.*

**Table D4 Tree type**

| Tree type | Minimum canopy diameter at maturity | Minimum height at maturity |
|---|---|---|
| A | 4 metres | 6 metres |
| B | 8 metres | 8 metres |
| C | 12 metres | 12 metres |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant neighbourhood character, landscaping or environmental policy, objective, strategy or statement set out in this planning scheme.
- The design response.
- The health of any trees to be removed.
- The suitability of the proposed location, deep soil area and planter volume for canopy trees.
- The suitability of the proposed landscaping in communal outdoor open space.
- The type and quantity of canopy cover, including any alternatives to trees.
- The soil type and drainage patterns of the site.
- The ongoing management of landscaping, including any irrigation systems.

## 58.03-6 Access objective

20/12/2021
VC174

To ensure that vehicle crossovers are designed and located to provide safe access for pedestrians, cyclists and other vehicles.

To ensure the vehicle crossovers are designed and located to minimise visual impact.

### Standard D11

Vehicle crossovers should be minimised.

Car parking entries should be consolidated, minimised in size, integrated with the façade and where practicable located at the side or rear of the building.

Pedestrian and cyclist access should be clearly delineated from vehicle access.

The location of crossovers should maximise pedestrian safety and the retention of on-street car parking spaces and street trees.

Developments must provide for access for service, emergency and delivery vehicles.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The impact on the street.
- The impact on the safety of pedestrians or cyclists.
- The reduction of on-street car parking spaces.
- The effect on any significant vegetation on the site and road reserve.

## 58.03-7 Parking location objectives

13/04/2017
VC136

To provide convenient parking for resident and visitor vehicles.

To protect residents from vehicular noise within developments.

### Standard D12

Car parking facilities should:

- Be reasonably close and convenient to dwellings.
- Be secure.
- Be well ventilated if enclosed.

Shared accessways or car parks of other dwellings should be located at least 1.5 metres from the windows of habitable rooms. This setback may be reduced to 1 metre where there is a fence at least 1.5 metres high or where window sills are at least 1.4 metres above the accessway.

#### Decision guideline

Before deciding on an application, the responsible authority must consider the design response.

## 58.03-8 Integrated water and stormwater management objectives

04/02/2026
VC265

To encourage the use of alternative water sources such as rainwater, stormwater and recycled water.

To facilitate stormwater collection, utilisation and infiltration within the development.

To encourage development that reduces the impact of stormwater run-off on the drainage system and filters sediment and waste from stormwater prior to discharge from the site.

#### Standard D13

Buildings should be designed to collect rainwater for non-drinking purposes such as flushing toilets, laundry appliances and garden use.

Buildings should be connected to a non-potable dual pipe reticulated water supply, where available from the water authority.

The stormwater management system should be:

- Designed to meet the current best practice performance objectives for stormwater quality as contained in the *Urban stormwater management guidance* (Environment Protection Authority - Publication 1739.1, 2021).
- Designed to maximise infiltration of stormwater, water and drainage of residual flows into permeable surfaces, tree pits and treatment areas.

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant water and stormwater management objective, policy or statement set out in this scheme.
- The design response.
- Whether the development has utilised alternative water sources and/or incorporated water sensitive urban design.
- Whether stormwater discharge from the site will adversely affect water quality entering the drainage system.
- The capacity of the drainage network to accommodate additional stormwater.
- Whether the stormwater treatment areas can be effectively maintained.
- Whether the owner has entered into an agreement to contribute to off-site stormwater management in lieu of providing an on-site stormwater management system.

# 58.04 AMENITY IMPACTS

13/04/2017
VC136

## 58.04-1 Building setback objectives

14/12/2023
VC253

To ensure the setback of a building from a boundary appropriately responds to the existing urban context or contributes to the preferred future development of the area.

To allow adequate daylight into new dwellings.

To limit views into habitable room windows and private open space of new and existing dwellings.

To provide a reasonable outlook from new dwellings and existing small second dwellings.

To ensure the building setbacks provide appropriate internal amenity to meet the needs of residents.

### Standard D14

The built form of the development must respect the existing or preferred urban context and respond to the features of the site.

Buildings should be set back from side and rear boundaries, and other buildings within the site to:

- Ensure adequate daylight into new habitable room windows.
- Avoid direct views into habitable room windows and private open space of new and existing dwellings and existing small second dwellings. Developments should avoid relying on screening to reduce views.
- Provide an outlook from dwellings that creates a reasonable visual connection to the external environment.
- Ensure the dwellings are designed to meet the objectives of Clause 58.

### Decision Guidelines

Before deciding on an application, the responsible authority must consider:

- The purpose of the zone and/or overlay that applies to the land.
- Any relevant urban design objective, policy or statement set out in this scheme.
- The urban context report.
- The design response.
- The relationship between the proposed building setback and the building setbacks of existing adjacent buildings, including the interface with laneways.
- The extent to which the proposed dwellings are provided with reasonable daylight access through the layout of rooms and the number, size, location and orientation of windows.
- The impact of overlooking on the amenity of existing and proposed dwellings and existing small second dwellings.
- The existing extent of overlooking into existing dwellings or small second dwellings and private open space.
- Whether the development meets the objectives of Clause 58.

## 58.04-2 Internal views objective

13/04/2017
VC136

To limit views into the private open space and habitable room windows of dwellings within a development.

### Standard D15

Windows and balconies should be designed to prevent overlooking of more than 50 per cent of the private open space of a lower-level dwelling directly below and within the same development.

### Decision guideline

Before deciding on an application, the responsible authority must consider the design response.

## 58.04-3 Noise impacts objectives

14/12/2023
VC253

To contain noise sources in developments that may affect existing dwellings or small second dwellings.

To protect residents from external and internal noise sources.

### Standard D16

Noise sources, such as mechanical plants should not be located near bedrooms of immediately adjacent existing dwellings or small second dwellings.

The layout of new dwellings and buildings should minimise noise transmission within the site.

Noise sensitive rooms (such as living areas and bedrooms) should be located to avoid noise impacts from mechanical plants, lifts, building services, non-residential uses, car parking, communal areas and other dwellings.

New dwellings should be designed and constructed to include acoustic attenuation measures to reduce noise levels from off-site noise sources.

Buildings within a noise influence area specified in Table D5 should be designed and constructed to achieve the following noise levels:

- Not greater than 35dB(A) for bedrooms, assessed as an LAeq,8h from 10pm to 6am.
- Not greater than 40dB(A) for living areas, assessed LAeq,16h from 6am to 10pm.

Buildings, or part of a building screened from a noise source by an existing solid structure, or the natural topography of the land, do not need to meet the specified noise level requirements.

Noise levels should be assessed in unfurnished rooms with a finished floor and the windows closed.

**Table D5 Noise influence area**

| Noise source | Noise influence area |
|---|---|
| **Zone interface** | |
| Industry | 300 metres from the Industrial 1, 2 and 3 zone boundary |
| **Roads** | |
| Freeways, tollways and other roads carrying 40,000 Annual Average Daily Traffic Volume | 300 metres from the nearest trafficable lane |
| **Railways** | |
| Railway servicing passengers in Victoria | 80 metres from the centre of the nearest track |
| Railway servicing freight outside Metropolitan Melbourne | 80 metres from the centre of the nearest track |
| Railway servicing freight in Metropolitan Melbourne | 135 metres from the centre of the nearest track |

*Note: The noise influence area should be measured from the closest part of the building to the noise source.*

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.

- Whether it can be demonstrated that the design treatment incorporated into the development meets the specified noise levels or an acoustic report by a suitably qualified consultant submitted with the application.
- Whether the impact of potential noise sources within a development have been mitigated through design, location and siting.
- Whether the layout of rooms within a dwelling mitigates noise transfer within and between dwellings.
- Whether an alternative design meets the relevant objectives having regard to the amenity of the dwelling or small second dwelling and the site context.

## 58.04-4 Wind impacts objective

04/05/2022
VC210

To ensure the built form, design and layout of development does not generate unacceptable wind impacts within the site or on surrounding land.

### Standard D17

Development of five or more storeys, excluding a basement should:

- not cause unsafe wind conditions specified in Table D6 in public land, publicly accessible areas on private land, private open space and communal open space; and
- achieve comfortable wind conditions specified in Table D6 in public land and publicly accessible areas on private land

within a distance of half the greatest length of the building, or half the total height of the building measured outwards on the horizontal plane from the ground floor building façade, whichever is greater.

Trees and landscaping should not be used to mitigate wind impacts. This does not apply to sitting areas, where trees and landscaping may be used to supplement fixed wind mitigation elements.

Wind mitigation elements, such as awnings and screens should be located within the site boundary, unless consistent with the existing urban context or preferred future development of the area.

### Table D6 Wind conditions

| Unsafe | Comfortable |
|---|---|
| Annual maximum 3 second gust wind speed exceeding 20 metres per second with a probability of exceedance of 0.1% considering at least 16 wind directions. | Hourly mean wind speed or gust equivalent mean speed (3 second gust wind speed divided by 1.85), from all wind directions combined with probability of exceedance less than 20% of the time, equal to or less than:<br>▪ 3 metres per second for sitting areas,<br>▪ 4 metres per second for standing areas,<br>▪ 5 metres per second for walking areas. |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The urban context report.
- The design response.

- The safety, functionality and amenity of public, private and communal open space areas.
- Whether it has been demonstrated by a suitably qualified specialist that the development will not generate unacceptable wind impacts within the site or on surrounding land.

## 58.05 ON-SITE AMENITY AND FACILITIES

13/04/2017
VC136

### 58.05-1 Accessibility objective

04/05/2022
VC210

To ensure the design of dwellings meets the needs of people with limited mobility.

#### Standard D18

At least 50 per cent of dwellings should have:

- A clear opening width of at least 850mm at the entrance to the dwelling and main bedroom.
- A clear path with a minimum width of 1.2 metres that connects the dwelling entrance to the main bedroom, an adaptable bathroom and the living area.
- A main bedroom with access to an adaptable bathroom.
- At least one adaptable bathroom that meets all of the requirements of either Design A or Design B specified in Table D7.

**Table D7 Bathroom design**

| | Design option A | Design option B |
|---|---|---|
| Door opening | A clear 850mm wide door opening. | A clear 820mm wide door opening located opposite the shower. |
| Door design | Either:<br>▪ A slide door, or<br>▪ A door that opens outwards, or<br>▪ A door that opens inwards that is clear of the circulation area and has readily removable hinges. | Either:<br>▪ A slide door, or<br>▪ A door that opens outwards, or<br>▪ A door that opens inwards and has readily removable hinges. |
| Circulation area | A clear circulation area that is:<br>▪ A minimum area of 1.2 metres by 1.2 metres.<br>▪ Located in front of the shower and the toilet.<br>▪ Clear of the toilet, basin and the door swing.<br>The circulation area for the toilet and shower can overlap. | A clear circulation area that is:<br>▪ A minimum width of 1 metre.<br>▪ The full length of the bathroom and a minimum length of 2.7 metres.<br>▪ Clear of the toilet and basin.<br>The circulation area can include a shower area. |
| Path to circulation area | A clear path with a minimum width of 900mm from the door opening to the circulation area. | Not applicable. |
| Shower | A hobless (step-free) shower. | A hobless (step-free) shower that has a removable shower screen and is located on the furthest wall from the door opening. |
| Toilet | A toilet located in the corner of the room. | A toilet located closest to the door opening and clear of the circulation area. |

### 58.05-2 Building entry and circulation objectives

04/05/2022
VC210

To provide each dwelling and building with its own sense of identity.

To ensure the internal layout of buildings provide for the safe, functional and efficient movement of residents.

To ensure internal communal areas provide adequate access to daylight and natural ventilation.

#### Standard D19

Entries to dwellings and buildings should:

- Be visible and easily identifiable.
- Provide shelter, a sense of personal address and a transitional space around the entry.

The layout and design of buildings should:

- Clearly distinguish entrances to residential and non-residential areas.
- Provide windows to building entrances and lift areas.
- Provide visible, safe and attractive stairs from the entry level to encourage use by residents.
- Provide common areas and corridors that:
  - Include at least one source of natural light and natural ventilation.
  - Avoid obstruction from building services.
  - Maintain clear sight lines.

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability and amenity of internal communal areas based on daylight access and the natural ventilation it will receive.

### 58.05-3 Private open space objective

04/05/2022
VC210

To provide adequate private open space for the reasonable recreation and service needs of residents.

#### Standard D20

A dwelling should have private open space consisting of at least one of the following:

- An area at ground level of at least 25 square metres, with a minimum dimension of 3 metres and convenient access from a living room.
- A balcony with at least the area and dimensions specified in Table D8 and convenient access from a living room.
- An area on a podium or other similar base of at least 15 square metres, with a minimum dimension of 3 metres and convenient access from a living room.
- An area on a roof of 10 square metres, with a minimum dimension of 2 metres and convenient access from a living room.

If a cooling or heating unit is located on a balcony, the minimum balcony area specified in Table D8 should be increased by at least 1.5 square metres.

If the finished floor level of a dwelling is 40 metres or more above ground level, the requirements of Table D8 do not apply if at least the area specified in Table D9 is provided as living area or bedroom area in addition to the minimum area specified in Table D11 or Table D12 in Standard D25.

**Table D8 Balcony size**

| Orientation of dwelling | Dwelling type | Minimum area | Minimum dimension |
|---|---|---|---|
| North (between north 20 degrees west to north 30 degrees east) | All | 8 square metres | 1.7 metres |
| South (between south 30 degrees west to south 30 degrees east) | All | 8 square metres | 1.2 metres |
| Any other orientation | Studio or 1 bedroom dwelling | 8 square metres | 1.8 metres |
| | 2 bedroom dwelling | 8 square metres | 2 metres |
| | 3 or more bedroom dwelling | 12 square metres | 2.4 metres |

**Table D9 Additional living area or bedroom area**

| Dwelling type | Additional area |
|---|---|
| Studio or 1 bedroom dwelling | 8 square metres |
| 2 bedroom dwelling | 8 square metres |
| 3 or more bedroom dwelling | 12 square metres |

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability and functionality of the private open space, including its size and accessibility.
- The amenity of the private open space based on the orientation of the lot, noise exposure, the wind conditions and the sunlight it will receive.
- The availability of and access to public or communal open space.
- The useability and functionality of any additional living area or bedroom area, including its size and layout.

## 58.05-4 Storage objective

04/05/2022
VC210

To provide adequate storage facilities for each dwelling.

### Standard D21

Each dwelling should have convenient access to usable and secure storage space.

The total minimum storage space (including kitchen, bathroom and bedroom storage) should meet the requirements specified in Table D10.

**Table D10 Storage**

| Dwelling type | Total minimum storage volume | Minimum storage volume within the dwelling |
|---|---|---|
| Studio | 8 cubic metres | 5 cubic metres |
| 1 bedroom dwelling | 10 cubic metres | 6 cubic metres |

| Dwelling type | Total minimum storage volume | Minimum storage volume within the dwelling |
|---|---|---|
| 2 bedroom dwelling | 14 cubic metres | 9 cubic metres |
| 3 or more bedroom dwelling | 18 cubic metres | 12 cubic metres |

**Decision guidelines**

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability, functionality and location of storage facilities provided for the dwelling.

## 58.06 DETAILED DESIGN

13/04/2017
VC136

### 58.06-1 Common property objectives

04/05/2022
VC210

To ensure that communal open space, car parking, access areas and site facilities are practical, attractive and easily maintained.

To avoid future management difficulties in areas of common ownership.

#### Standard D22

Developments should clearly delineate public, communal and private areas.

Common property, where provided, should be functional and capable of efficient management.

### 58.06-2 Site services objectives

04/05/2022
VC210

To ensure that site services are accessible and can be installed and maintained.

To ensure that site services and facilities are visually integrated into the building design or landscape.

#### Standard D23

Development should provide adequate space (including easements where required) for site services to be installed and maintained efficiently and economically.

Meters and utility services should be designed as an integrated component of the building or landscape.

Mailboxes and other site facilities should be adequate in size, durable, water-protected, located for convenient access and integrated into the overall design of the development.

#### Decision guideline

Before deciding on an application, the responsible authority must consider:

- Any relevant urban design objective, policy or statement set out in this scheme.
- The design response.

### 58.06-3 Waste and recycling objectives

04/05/2022
VC210

To ensure dwellings are designed to encourage waste recycling.

To ensure that waste and recycling facilities are accessible, adequate and attractive.

To ensure that waste and recycling facilities are designed and managed to minimise impacts on residential amenity, health and the public realm.

#### Standard D24

Developments should include dedicated areas for:

- Waste and recycling enclosures which are:
  - Adequate in size, durable, waterproof and blend in with the development.
  - Adequately ventilated.
  - Located and designed for convenient access by residents and made easily accessible to people with limited mobility.
- Adequate facilities for bin washing. These areas should be adequately ventilated.
- Collection, separation and storage of waste and recyclables, including where appropriate opportunities for on-site management of food waste through composting or other waste recovery as appropriate.

- Collection, storage and reuse of garden waste, including opportunities for on-site treatment, where appropriate, or off-site removal for reprocessing.
- Adequate circulation to allow waste and recycling collection vehicles to enter and leave the site without reversing.
- Adequate internal storage space within each dwelling to enable the separation of waste, recyclables and food waste where appropriate.

Waste and recycling management facilities should be designed and managed in accordance with a Waste Management Plan approved by the responsible authority and:

- Be designed to meet the better practice design options specified in *Waste Management and Recycling in Multi-unit Developments* (Sustainability Victoria, 2019).
- Protect public health and amenity of residents and adjoining premises from the impacts of odour, noise and hazards associated with waste collection vehicle movements.

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- Any relevant waste and recycling objective, policy or statement set out in this scheme.

## 58.06-4 External walls and materials objective

04/05/2022
VC210

To ensure external walls use materials appropriate to the existing urban context or preferred future development of the area.

To ensure external walls endure and retain their attractiveness.

#### Standard D25

External walls should be finished with materials that:

- Do not easily deteriorate or stain.
- Weather well over time.
- Are resilient to the wear and tear from their intended use.

External wall design should facilitate safe and convenient access for maintenance.

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- Any relevant building design and urban design objective, policy or statement set out in this scheme.
- The urban context report.
- The design response.

## 58.07 INTERNAL AMENITY

13/04/2017
VC136

### 58.07-1 Functional layout objective

04/05/2022
VC210

To ensure dwellings provide functional areas that meet the needs of residents.

#### Standard D26

Bedrooms should:

- Meet the minimum internal room dimensions specified in Table D11.
- Provide an area in addition to the minimum internal room dimensions to accommodate a wardrobe.

**Table D11 Bedroom dimensions**

| Bedroom type | Minimum width | Minimum depth |
|---|---|---|
| Main bedroom | 3 metres | 3.4 metres |
| All other bedrooms | 3 metres | 3 metres |

Living areas (excluding dining and kitchen areas) should meet the minimum internal room dimensions specified in Table D12.

**Table D12 Living area dimensions**

| Dwelling type | Minimum width | Minimum area |
|---|---|---|
| Studio and 1 bedroom dwelling | 3.3 metres | 10 sqm |
| 2 or more bedroom dwelling | 3.6 metres | 12 sqm |

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The useability, functionality and amenity of habitable rooms.

### 58.07-2 Room depth objective

04/05/2022
VC210

To allow adequate daylight into single aspect habitable rooms.

#### Standard D27

Single aspect habitable rooms should not exceed a room depth of 2.5 times the ceiling height.

The depth of a single aspect, open plan, habitable room may be increased to 9 metres if all the following requirements are met:

- The room combines the living area, dining area and kitchen.
- The kitchen is located furthest from the window.
- The ceiling height is at least 2.7 metres measured from finished floor level to finished ceiling level. This excludes where services are provided above the kitchen.

The room depth should be measured from the external surface of the habitable room window to the rear wall of the room.

#### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The extent to which the habitable room is provided with reasonable daylight access through the number, size, location and orientation of windows.
- The useability, functionality and amenity of the dwelling based on layout, siting, size and orientation of habitable rooms.
- Any overhang above habitable room windows that limits daylight access.

## 58.07-3 Windows objective

04/05/2022
VC210

To allow adequate daylight into new habitable room windows.

### Standard D28

Habitable rooms should have a window in an external wall of the building.

A window may provide daylight to a bedroom from a smaller secondary area within the bedroom where the window is clear to the sky.

The secondary area should be:

- A minimum width of 1.2 metres.
- A maximum depth of 1.5 times the width, measured from the external surface of the window.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The extent to which the habitable room is provided with reasonable daylight access through the number, size, location and orientation of windows.
- The useability and amenity of the dwelling based on the layout, siting, size and orientation of habitable rooms.

## 58.07-4 Natural ventilation objectives

04/05/2022
VC210

To encourage natural ventilation of dwellings.

To allow occupants to effectively manage natural ventilation of dwellings.

### Standard D29

The design and layout of dwellings should maximise openable windows, doors or other ventilation devices in external walls of the building, where appropriate.

At least 40 per cent of dwellings should provide effective cross ventilation that has:

- A maximum breeze path through the dwelling of 18 metres.
- A minimum breeze path through the dwelling of 5 metres.
- Ventilation openings with approximately the same area.

The breeze path is measured between the ventilation openings on different orientations of the dwelling.

### Decision guidelines

Before deciding on an application, the responsible authority must consider:

- The design response.
- The size, orientation, slope and wind exposure of the site.

- The extent to which the orientation of the building and the layout of dwellings maximises opportunities for cross ventilation.
- Whether an alternative design meets the relevant objectives having regard to the amenity of the dwelling and the site context.

# 59 VICSMART APPLICATIONS AND REQUIREMENTS

31/07/2018
VC148

## 59.01 REALIGN THE COMMON BOUNDARY BETWEEN TWO LOTS

31/07/2018
VC148

### 59.01-1 Information requirements

01/07/2021
VC203

An application must be accompanied by the following information as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- A layout plan, drawn to scale and fully dimensioned showing:
  - The location, shape and size of the site.
  - The location of any existing buildings, car parking area, driveways, storage areas, loading areas and private open space.
  - The location of any easements on the subject land.
  - The location of the approved stormwater discharge point.
  - The location and details of any significant vegetation.
  - The location of any street trees, poles, pits or other street furniture.
  - Existing and proposed vehicle access to the lots.
  - Any abutting roads.
  - The location of the existing and proposed common boundary between the lots and the proposed size and shape of the realigned lots.
  - Any proposed common property to be owned by a body corporate and the lots participating in the body corporate.
- If the land is in more than one ownership, the consent of the owners of the land.
- If common property is proposed, an explanation of why the common property is required.
- A written statement that describes:
  - The existing use of the land and its possible future development.
  - The reason for the realignment of the common boundary.
  - For land in an overlay, how the proposal responds to any statement of significance, objectives or requirements specified in the schedule to the overlay.
- If the land is in an area where reticulated sewerage is not provided, a plan which shows the location of any existing effluent disposal area for each lot or a Land Capability Assessment which demonstrates that each lot is capable of treating and retaining all wastewater and the risks to human health and the environment of a on-site wastewater management system constructed, installed or altered on the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017*.
- If the land is in a residential zone and the realignment of the common boundary will result in a vacant lot, information that shows that the vacant lot meets the requirements of Standard C8 of Clause 56.

### 59.01-2 Decision guidelines

31/07/2018
VC148

In assessing an application the responsible authority must consider as appropriate:

- The suitability of the subdivision including how the layout and dimensions of the subdivision:
  - Respond to and integrate with the surrounding urban or rural environment.
  - Protect significant vegetation.

  - Appropriately accommodate any existing or proposed easements on the lots.
  - Protect solar access for existing and any future dwellings on the lots.
  - Appropriately accommodate any existing waste storage areas, loading bays and vehicle standing areas on the site.
  - Appropriately accommodate private open space.
  - Appropriately accommodate the provision of utility services to each lot.
  - If the land is in an area where reticulated sewerage is not provided to each lot, whether the layout of the subdivision accommodates the effluent disposal area for each lot.
  - Appropriately accommodate the siting of buildings having regard to the risk of spread of fire.
  - Appropriately accommodate the existing use and possible future development of the land.
- Whether the provision of common property is appropriate for the purpose for which the land is to be commonly held.
- If the land is in a residential zone and the realignment of the common boundary will result in a vacant lot, the objective and standard of Clause 56.04-2.
- The statement of significance and the objectives contained in the schedule to the overlay and whether the subdivision will adversely affect that significance or the objectives.
- Whether the proposal meets any requirements specified in the overlay or the schedule to the overlay.

# 59.02 SUBDIVISION OF BUILDINGS AND CAR PARKING SPACES

31/07/2018
VC148

## 59.02-1 Information requirements

01/07/2021
VC203

An application must be accompanied by the following information as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- A copy of the relevant planning permit and approved plans for the development.
- A layout plan, drawn to scale and fully dimensioned showing:
  - The location, shape and size of the site.
  - The location of any existing buildings, car parking areas and private open space.
  - The location, shape and size of the proposed lots to be created.
  - The location of any easements on the subject land.
  - The location and details of any significant vegetation.
  - The location of the approved stormwater discharge point.
  - Any abutting roads.
  - The location of any street trees, poles, pits and other street furniture.
  - Existing and proposed vehicle access to the lots.
  - Any loading bays and vehicle standing areas.
  - Any waste storage areas.
  - Any proposed common property to be owned by a body corporate and the lots participating in the body corporate.
- For the subdivision of existing buildings and car parking spaces, a copy of the occupancy permit or a certificate of final inspection for the development.
- For the subdivision of land into two lots with an approved development currently under construction, evidence that the construction has commenced.
- If common property is proposed, an explanation of why the common property is required.
- If the land is in an area where reticulated sewerage is not provided, a plan which shows the location of any existing effluent disposal area for each lot or a Land Capability Assessment which demonstrates that each lot is capable of treating and retaining all wastewater and manage the risks to human health and the environment of an on-site wastewater management system constructed, installed or altered on the lot in accordance with the requirements of the Environment Protection Regulations under the *Environment Protection Act 2017*.
- For land in an overlay, a written statement that describes how the proposal responds to any statement of significance, objectives or requirements specified in the schedule to the overlay.

## 59.02-2 Decision guidelines

31/07/2018
VC148

In assessing an application the responsible authority must consider as appropriate:

- The suitability of the subdivision including how the layout and dimensions of the subdivision:
  - Are consistent with the approved plans and conditions of any relevant planning permit for the development.
  - Are consistent with the layout of existing buildings and car parking spaces on the land.
  - Appropriately accommodate any existing waste storage areas.

  - Appropriately accommodate any existing loading bay and vehicle storage area.
  - Appropriately accommodate significant vegetation.
  - Appropriately accommodate existing or proposed easements on the lots.
  - Appropriately accommodate the provision of utility services to each lot.
  - Appropriately accommodate the siting of buildings having regard to safety and the risk of spread of fire.
- If the land is in an area where reticulated sewerage is not provided to each lot, whether the layout of the subdivision accommodates the effluent disposal area for each lot.
- For the subdivision of existing buildings and car parking spaces, whether each new lot, other than common property, contains an existing building, part of an existing building or a car parking space.
- Whether the provision and location of common property is appropriate for the purpose for which the land is to be commonly held.
- Whether any public open space contribution is required under Clause 53.01 of this scheme or under Section 18 of the *Subdivision Act 1988*.
- The statement of significance and the objectives contained in the schedule to the overlay and whether the subdivision will adversely affect that significance or the objectives.
- Whether the proposal meets any requirements specified in the overlay or the schedule to the overlay.

# 59.03 FRONT FENCE IN A RESIDENTIAL ZONE

31/07/2018
VC148

## 59.03-1 Information requirements

31/07/2018
VC148

An application must be accompanied by the following information as appropriate:

- A copy of the title for the subject land and a copy of any registered restrictive covenant.
- A plan drawn to scale and fully dimensioned showing:
  - The location, shape and size of the site.
  - The location, length, height and design of the proposed fence including details of materials.
  - The location, height and design of any existing front fence on adjoining and nearby properties including details of materials.
- A photograph of the site and adjoining and nearby properties along the street frontage.
- The reason for the proposed height.

## 59.03-2 Decision guidelines

31/07/2018
VC148

In assessing an application the responsible authority must consider as appropriate:

- Whether the setback, height and design of the proposed fence are:
  - Appropriate to the neighbourhood character and the site.
  - Consistent with any relevant neighbourhood character objective or policy set out in the scheme.
  - Appropriate with the setback, height and appearance of front fences on adjoining and nearby properties.
  - Complement the design of the dwelling.
- The extent to which slope and retaining walls reduce the effective height of the proposed fence.
- Whether the proposed fence is needed to minimise noise intrusion.
- The reason for the proposed height.

## 59.04 BUILDINGS AND WORKS IN A ZONE (EXCEPT A RURAL ZONE)

31/07/2018
VC148

### 59.04-1 Information requirements

08/09/2025
VC282

An application must be accompanied by the following information as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- A description of the use of the land and the proposed buildings and works.
- A layout plan, drawn to scale and fully dimensioned showing:
  - The boundaries and dimensions of the site.
  - Adjoining roads.
  - The location, height and use of buildings and works on adjoining land.
  - Relevant ground levels.
  - Any contaminated soils and filled areas, where known.
  - The layout of existing and proposed buildings and works.
  - All existing and proposed driveways, car parking, bicycle parking and loading areas.
  - Existing and proposed landscape areas.
  - All external storage and waste treatment areas.
  - The location of easements and services.
- Elevation drawings to scale showing the height, colour and materials of all proposed buildings and works.
- A photograph of the building or area affected by the proposal.
- A written statement describing the proposal and if relevant:
  - The built form and character of adjoining and nearby buildings.
  - The heritage character of any adjoining heritage places.
  - Ground floor street frontages, including visual impacts and pedestrian safety.
- A written statement describing whether the proposed buildings and works meet:
  - The number of car parking spaces required under Clause 52.06 or in the schedule to Clause 45.09.
  - Any development requirement specified in the zone or the schedule to the zone.
- Any relevant requirement in an approved development plan or incorporated plan for the land.
- Any other information specified in the schedule to the zone.
- For land in a residential zone, a written statement, plan or diagram showing how the proposal meets:
  - The requirements in the following standards of Clause 54:
    - A2-3 Side and rear setbacks.
    - A2-4 Walls on boundaries.
    - A4-1 Daylight to existing windows.
    - A4-2 Existing north-facing windows.
    - A4-3 Overshadowing secluded open space.

- A4-4 Overlooking.
- A5-2 Overshadowing domestic solar energy systems.

If a schedule to the zone specifies a requirement of a standard different from a requirement set out in the Clause 54 standard the schedule to the zone applies.

## 59.04-2 Decision guidelines

31/07/2018
VC148

In assessing an application the responsible authority must consider as appropriate:

- Whether the proposal is consistent with any relevant urban design and built form policy set out in the scheme.
- Whether the movement of pedestrians and cyclists, and vehicles providing for supplies and waste removal are appropriately accommodated.
- Whether the design complements the built form of the surrounding properties and the streetscape, including the conservation of buildings, the design of verandahs, access from the street front, protecting active frontages to pedestrian areas, the treatment of the fronts and backs of buildings and their appurtenances, illumination of buildings or their immediate spaces and the landscaping of land adjoining a road.
- Whether the land and building have availability of and connection to services.
- Whether the proposed development adversely impacts the amenity of the land and the locality including existing dwellings on adjoining sites.
- Whether the proposed development appropriately provides for landscaping.
- Whether the proposed development adversely affects solar access to existing open spaces and public places.
- Whether the proposal meets the car parking requirements specified in Clause 52.06 or in the schedule to the Parking Overlay.
- Whether the proposal meets the maximum building height specified in the schedule to the zone.
- Whether the proposal meets any relevant requirements specified in the zone or the schedule to the zone.
- Whether the proposal is consistent with any relevant approved development plan or incorporated plan.
- The objectives set out in the schedule to the zone.
- Whether the proposal provides adequate vehicle loading and unloading facilities.
- For land in a residential zone:
  - Whether the proposed development is consistent with any neighbourhood character objectives set out in the schedule to the zone.
  - Whether the development is compatible with residential use.
  - The scale and intensity of the development.
  - The design, height, setback and appearance of the proposed buildings and works.

## 59.05 BUILDINGS AND WORKS IN AN OVERLAY

31/07/2018
VC148

### 59.05-1 Information requirements

08/09/2025
VC282

An application must be accompanied by the following information as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- A plan, drawn to scale and fully dimensioned showing:
  - The location, shape and size of the site.
  - The location, height and design of the proposed buildings and works including details of materials.
  - The location of any existing buildings, including fences and trees.
  - For land in a Neighbourhood Character Overlay, any buildings proposed to be demolished.
- For land in a Significant Landscape Overlay, a written description of the proposal including:
  - How the proposal responds to the landscape significance and objectives specified in a schedule to the overlay.
  - The impact of the proposed buildings and works on the significance of the landscape.
- For land in a Neighbourhood Character Overlay, a written description of the proposal including:
  - The built form and character of adjoining and nearby buildings.
  - How the proposal responds to the key features and objectives specified in the schedule to the overlay.
  - If demolition is proposed, the reason for the demolition.
  - How the proposal meets the requirements of Clauses 54.02-1, 54.02-2, 54.02-3, 54.02-4, 54.02-5, 54.02-7, 54.03-1, 54.04-1, 54.04-2, 54.05-1, including any Clause 54 modification specified in the schedule to the overlay.
- For land in a Design and Development Overlay, a written description of the proposal including:
  - How the proposal responds to the design objectives specified in a schedule to the overlay.
  - How the proposal meets the requirements specified in a schedule to the overlay.
  - The built form and character of adjoining and nearby buildings.
- A photograph of the building or area affected by the proposal.
- For land in an Erosion Management Overlay, information showing:
  - The extent of any proposed earthworks.
  - The means proposed to stabilise disturbed areas.
- For an application under the Salinity Management Overlay, written advice including plan references and any conditions from the referral authority demonstrating that the referral authority has considered the proposal for which the application is made within the past three months and does not object to the granting of the permit for the proposal.

### 59.05-2 Decision guidelines

31/07/2018
VC148

In assessing an application the responsible authority must consider as appropriate:

- The statement of significance and the objectives contained in the schedule to the overlay and whether the buildings and works will adversely affect that significance or the objectives.

- Whether the proposal meets any requirements specified in the overlay or the schedule to the overlay.
- For an application in a Salinity Management Overlay, any comments from the relevant referral authority.
- For an application in a Neighbourhood Character Overlay, the relevant objectives, standards and decision guidelines of Clause 54.
- Any relevant decision guideline specified in the overlay and the schedule to the overlay.

## 59.06 REMOVE, DESTROY OR LOP ONE TREE

20/03/2023
VC229

### 59.06-1 Information requirements

31/07/2018
VC148

An application must be accompanied by the following information as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- If the tree to be removed, destroyed or lopped is identified as a significant tree in a schedule to the overlay, a report prepared by an arborist.
- A layout plan, drawn to scale and fully dimensioned showing:
  - The location, shape, size and slope of the site.
  - The location of the tree to be removed, destroyed or lopped.
  - The location and type of other significant vegetation on the site.
  - The location, species and height of any significant trees on the site that have been removed or approved to be removed in the past 3 years.
- A written statement that describes:
  - The species, height and trunk girth of the tree to be removed, destroyed or lopped.
  - The reason the tree is to be removed, destroyed or lopped.
  - If provision is to be made to replace the tree elsewhere on the land.
  - If the tree is to be lopped, the extent of lopping proposed.
  - Any impacts on the significance of the area.
- A photograph of the tree to be removed, destroyed or lopped.

### 59.06-2 Decision guidelines

31/07/2018
VC148

In assessing an application the responsible authority must consider as appropriate:

- The statement of significance and the objectives contained in the schedule to the overlay and whether the proposal will adversely affect that significance or the objectives.
- Whether the tree proposed to be removed, destroyed or lopped contributes to the significance of the area and whether the proposal will adversely affect that significance.
- Whether the removal or lopping of the tree is needed because of the health of the tree.
- Whether the lopping of the tree will adversely affect the health, appearance or significance of the tree.
- Whether the removal of the tree will contribute to soil erosion, slippage or salinisation.
- Whether the removal or lopping of the tree is needed to create a defendable space to reduce the risk of bushfire to life and property.
- If the tree is a native tree, its role in conserving flora and fauna and whether the proposal will adversely affect the conservation of flora and fauna of the area.
- Whether provision is made to plant a new tree elsewhere on the land.
- The reasons for removing the tree including the health of the tree to be removed.
- The cumulative impact of the number of trees that have been removed or been approved for removal in the past 3 years.
- Any relevant decision guideline specified in the overlay or the schedule to the overlay.

# 59.07 APPLICATIONS UNDER A HERITAGE OVERLAY

31/07/2018
VC148

## 59.07-1 Information requirements

04/11/2022
VC226

An application must be accompanied by the following information as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- A plan, drawn to scale and fully dimensioned showing:
  - The location, shape and size of the site.
  - The location of any existing buildings, including fences and trees.
  - The location, height and design of the proposed building or works including details of proposed materials.
  - Any buildings to be demolished.
  - An elevation of the proposed building.
  - The size and design of any proposed sign, including details of the supporting structure and any proposed illumination.
  - The location, style, size, colour and materials of any proposed solar energy system (that is visible from the street frontage or any nearby public park), including details of the supporting structure.
- A written description of the proposal including:
  - Any impacts on the significance of the heritage place.
  - How the proposal responds to any relevant local heritage policy set out in the planning scheme.
  - If lopping of a tree is proposed, the reason for the lopping, the extent of lopping and an arborist report.
- The proposed colour schedule and nature of any materials and finishes.
- A photograph of the area affected by the proposal including any building, outbuilding, fence or tree which may be affected by the proposal.
- A photograph of the subject site and adjoining properties along the street frontage.
- If subdivision is proposed, the location, shape and size of the proposed lots to be created.
- If a sign is proposed:
  - The location, size and design of the proposed sign on the site or building.
  - The location and size of existing signage on the site including details of any signs to be retained or removed.
- If a solar energy system is proposed that is visible from a street (other than a lane) or public park, measures proposed to minimise the visibility of the system and protect the structural integrity of heritage features.

## 59.07-2 Decision guidelines

04/11/2022
VC226

In assessing an application the responsible authority must consider as appropriate:

### General

- The significance of the heritage place and whether the proposal will adversely affect that significance.

- Any applicable statement of significance, heritage study and any applicable conservation policy.
- Whether the proposal will adversely affect the character or appearance of the building or heritage place.
- Any relevant local heritage policy set out in the planning scheme.

**Demolition**

- Whether the outbuilding to be demolished contributes to the significance, character or appearance of the building or heritage place.

**Buildings and works**

- Whether the location, bulk, form and appearance of the proposed building or works will adversely affect the significance of the building or heritage place.
- Whether the proposed building or works will affect the health or appearance of a tree which is the subject of a Heritage Overlay.

**Alterations**

- Whether the proposed alterations will restore or reconstruct original fabric which has been removed or damaged.
- Whether the proposed alterations will adversely affect the significance, character and appearance of the heritage place.

**Fences**

- Whether the fence proposed to be demolished contributes to the significance, character and appearance of the building or heritage place.
- Whether the proposed fence, including its style, height and materials, is appropriate to the building or heritage place.

**Trees**

- Whether the proposed lopping will adversely affect the health, appearance or significance of the tree.

**Subdivision**

- Whether the proposed subdivision retains the significant setting (landscapes, landscape features and views) of the heritage place.
- Whether the proposed subdivision respects the rhythm and spacing of buildings in the streetscape.
- Whether the proposed subdivision will result in a new boundary fence, wall or structure that adversely affects the setting of the heritage place.

**Signage**

- Whether the proposed sign will adversely affect the significance, character or appearance of the heritage place.

**Solar energy systems**

- Any relevant building design or energy policy set out in the Planning Policy Framework.
- Whether the proposed solar energy system can be sited to minimise visibility from a street or public park without significantly impacting its performance.
- Whether the proposed solar energy system can be designed to minimise the impact on the significance, character or appearance of the heritage place.

## 59.08 APPLICATIONS UNDER A SPECIAL BUILDING OVERLAY

31/07/2018
VC148

### 59.08-1 Information requirements

31/07/2018
VC148

An application must be accompanied by the following information as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- A plan, drawn to scale and fully dimensioned showing:
  - The boundaries and dimensions of the site.
  - The layout, size and use of existing and proposed buildings and works, including floor plan layout and vehicle parking areas.
  - Setbacks between existing and proposed buildings and site boundaries.
  - Natural surface levels of the site to Australian Height Datum.
  - Floor and surface levels of any existing and proposed buildings and works to Australian Height Datum.
  - Cross sectional details of any basement entry ramps and other basement entries to Australian Height Datum, showing floor levels of entry and exit areas and drainage details.
  - If subdivision is proposed, the location, shape and size of the proposed lots to be created.
- If a referral to the floodplain management authority is required, written advice, including endorsed plans of the proposal and any conditions, from the relevant floodplain management authority demonstrating that the floodplain management authority has considered the proposal for which the application is made within the past three months and does not object to the granting of the permit for the proposal.

### 59.08-2 Decision guidelines

31/07/2018
VC148

In assessing an application the responsible authority must consider as appropriate:

- Clauses 13.01 and 13.03 of the Planning Policy Framework.
- Whether the proposal is consistent with any local floodplain development plan for the area incorporated into this scheme.
- If a referral to the floodplain management authority is required, any comments from the relevant floodplain management authority.
- The existing use and development of the land.
- Whether the proposed use or development could be located on flood-free land or land with a lesser flood hazard outside this overlay.
- The susceptibility of the development to flooding and flood damage.
- The flood risk including:
  - The frequency, duration, extent, depth and velocity of flooding of the site and accessways.
  - The flood warning time available.
  - The danger to the occupants of the development, other floodplain residents and emergency personnel if the site or accessway is flooded.
- The effect of the development redirecting or obstructing floodwater, stormwater or drainage water and the effect of the development on reducing flood storage and increasing flood levels and flow velocities.

# 59.09 SIGNS

31/07/2018
VC148

## 59.09-1 Information requirements

31/07/2018
VC148

An application must be accompanied by the following information, as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- A site context report, using a site plan, photographs or other methods to accurately describe:
  - The location of the proposed sign on the site or building and distance from property boundaries.
  - The location and size of existing signs on the site including details of any signs to be retained or removed.
  - The location and form of existing signs on adjoining properties and in the locality.
  - The location of closest traffic control signs.
  - Identification of any view lines or vistas that could be affected by the proposed sign.
- The dimensions, height above ground level and extent of projection of the proposed sign.
- The height, width and depth of the total sign structure including the method of support and any associated structures such as safety devices and service platforms.
- The colour, lettering style and materials of the proposed sign.
- The size of the proposed display (total display area including all sides of a multi-sided sign).

## 59.09-2 Decision guidelines

31/07/2018
VC148

In assessing an application the responsible authority must consider as appropriate:

- Whether the proposal is consistent with any relevant local advertising policy set out in the scheme.
- Whether the proposal will impact the character of the area including:
  - Natural environment, heritage, waterway, open space and rural landscape values.
  - The desired future character of the area.
  - The cumulative impact of signs on the character of an area.
  - The need to avoid visual disorder or clutter of signs.
- Whether the proposal will impact views and vistas including:
  - Important views from the public realm.
  - Significant public views.
  - Views to existing signs.
- Whether the proportion, scale and form of the proposed sign relates to the site, building, streetscape, setting or landscape including:
  - The position of the proposed sign, including if it protrudes above existing buildings or landscape and natural elements.
  - Screening of unsightly elements.
  - The number, scale and location of existing signs.
  - The ability to rationalise or simplify the number of signs.
  - The ability to include landscaping to reduce the visual impact of the proposed sign structure.

  - The extent to which the proposed sign requires the removal of vegetation.

- Whether the proposed sign is consistent with any outdoor advertising theme.
- Whether there is a need for identification and the opportunities for adequate identification on the site or locality.
- Whether the proposed sign will adversely impact road safety.

# 59.10 CAR PARKING

31/07/2018
VC148

## 59.10-1 Information requirements

31/07/2018
VC148

An application must be accompanied by the following information as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- A plan, drawn to scale and fully dimensioned showing:
  - The boundaries and dimensions of the site.
  - The location of existing buildings.
  - All car parking spaces and access lanes.
  - Allocation of car parking spaces to different uses or tenancies, if applicable.
  - Landscaping and sensitive water design treatments.
- A written statement that describes:
  - The proposed use of the site, number of employees and patrons and hours of operation.
  - The previous use of the site.
  - The site and floor area to be occupied.
  - The number of car parking spaces required under Clause 52.06-5 or in a schedule to the Parking Overlay.
  - The total number of car parking spaces provided.
  - The likely impact of a reduction in car parking on the amenity of the area and on the area's existing car parking.

## 59.10-2 Decision guidelines

31/07/2018
VC148

In assessing an application the responsible authority must consider as appropriate:

- Whether the reduction of the car parking requirement is consistent with any relevant local planning policy or incorporated plan.
- The objectives contained in the schedule to the Parking Overlay.
- Whether there is availability of alternative car parking in the locality including:
  - Efficiencies gained from the consolidation of shared car parking spaces.
  - Public car parks intended to serve the land.
  - On street parking in non-residential zones.
  - Streets in residential zones specifically managed for non-residential parking.
- The practicality of providing car parking on the site, particularly for lots of less than 300 square metres.
- Whether there is any car parking deficiency associated with the existing use of the land.
- Whether there is any credit that should be allowed for car parking spaces provided on common land or by a Special Charge Scheme or cash-in-lieu payment.
- Whether fewer car parking spaces will impact local amenity, including pedestrian amenity and the amenity of nearby residential areas.
- Whether there is a need to create safe, functional and attractive parking areas.
- The availability of public transport in the locality of the land.

- The convenience of pedestrian and cyclist access to the land.
- The likelihood of multi-purpose trips within the locality which are likely to be combined with a trip to the land in connection with the use.
- The equity of reducing the car parking requirement having regard to any historic contributions by existing businesses.
- On street parking in residential zones in the locality of the land that is intended to be for residential use.
- The future growth and development of any nearby activity centre.
- Local traffic management in the locality of the land.
- Access to or provision of alternative transport modes to and from the land.
- Whether any car parking spaces to be provided meet the design standards of Clause 52.06.
- Any relevant decision guideline specified in a schedule to the Parking Overlay.

# 59.11 TWO LOT RESIDENTIAL SUBDIVISION

16/10/2025
VC288

## 59.11-1 Information requirements

16/10/2025
VC288

An application must be accompanied by the following information as appropriate:

- A copy of title for the land and a copy of any registered restrictive covenant.
- A site and context description in accordance with clause 59.11-1.1.
- A design response in accordance with clause 59.11-1.2.

### 59.11-1.1 Site and context description

The site and context description may use a site plan, photographs or other techniques and must accurately describe in relation to the site:

- Site shape, size, dimensions and orientation.
- Levels and contours of the site.
- Location and details of trees and other significant vegetation.
- Location and use of existing buildings on the site.
- Location and dimensions of easements on the site.
- Location of vehicle and pedestrian access, car parking, storage areas (including waste bin storage) and private open space on the site.
- Soil conditions of the site, including any land affected by contamination, erosion, salinity, acid sulphate soils or fill.
- Location of adjacent roads and street frontage features such as poles, infrastructure pits, street trees and kerb crossovers.
- Location of drainage and other utilities.
- Noise and odour sources or other external influences.
- Adjacent uses.
- Any other factor affecting the capacity to develop the site including whether the site is affected by inundation.

### 59.11-1.2 Design response

The design response must explain how the proposed design:

- Derives from and responds to the site and context description.
- Meets the following objectives of clause 56:
  - Clause 56.04-2 Lot area and building envelopes objective.
  - Clause 56.04-5 Common area objective.
  - Clause 56.06-8 Lot access objective.
  - Clause 56.07-4 Stormwater management objective.

The design response must include a dimensioned plan to scale showing:

- The layout of the subdivision in context with the surrounding area, including the boundaries, dimensions and areas of the proposed lots.
- Proposed common property, easements, and vehicle and pedestrian access.
- If a proposed lot contains an existing dwelling proposed to be retained, the location and dimensions of the private open space, vehicle access and car parking for that dwelling.

## 59.11-2 Decision guidelines

16/10/2025
VC288

In assessing an application the responsible authority must consider as appropriate:

- The objectives and standards in the following clauses:
  - Clause 56.04-2 Lot area and building envelopes objective.
  - Clause 56.04-5 Common area objective.
  - Clause 56.06-8 Lot access objective.
  - Clause 56.07-4 Stormwater management objective.
- The area and dimensions of each lot in the subdivision.
- The suitability of the land for subdivision.
- The provision of private open space, car parking and access for a lot containing an existing dwelling proposed to be retained.
- The location, dimensions and gradient of proposed vehicle access.
- The effect of development on the use or development of other land which has a common means of drainage.
- The provision of off-street parking.
- The provision and location of common property.
- The effect on the environment, human health and amenity of the area.
- The degree of flood or erosion associated with the location of the land and the use, development or management of the land so as to minimise any such hazard.

## 59.12 TWO LOT SUBDIVISION IN A RURAL ZONE

31/07/2018
VC148

### 59.12-1 Information requirements

31/07/2018
VC148

An application must be accompanied by the following information as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- A layout plan, drawn to scale and fully dimensioned showing:
  - The location, shape and size of the site.
  - The location of any existing buildings and associated works.
  - The location, shape and size of the proposed lots to be created.
  - The location of any easements on the subject land.
  - The location of any significant vegetation, waterways and wetlands.
  - The location of the approved stormwater discharge point and effluent disposal areas.
  - Any abutting roads.
  - Existing and proposed vehicle access to the lots.

### 59.12-2 Decision guidelines

31/07/2018
VC148

In assessing an application the responsible authority must consider as appropriate:

- The suitability of the subdivision including how the layout and dimensions of the subdivision:
  - Are consistent with the layout of existing buildings and associated works on the land.
  - Appropriately accommodate significant vegetation.
  - Appropriately accommodate existing or proposed easements on the lots.
  - Appropriately accommodate the provision of utility services to each lot.
  - Appropriately accommodate existing and proposed vehicle access to the lots.
- If the land is in an area where reticulated sewerage is not provided to each lot, whether the layout of the subdivision accommodates the effluent disposal area for each lot.
- The location and design of existing and proposed infrastructure including roads, gas, water, drainage, telecommunications and sewerage facilities.
- Any Regional Catchment Strategy applying to the land.
- If the land is in an overlay, statement of significance and the objectives contained in the schedule to the overlay and whether the subdivision will adversely affect that significance or the objectives.
- Whether any public open space contribution is required under Clause 53.01 of this scheme or under Section 18 of the *Subdivision Act 1988*.

## 59.13 BUILDINGS AND WORKS IN A RURAL ZONE

31/07/2018
VC148

### 59.13-1 Information requirements

31/07/2018
VC148

An application must be accompanied by the following information as appropriate:

- A copy of title for the subject land and a copy of any registered restrictive covenant.
- A description of the use of the land and the proposed buildings and works.
- A layout plan, drawn to scale and fully dimensioned showing:
  - The boundaries and dimensions of the site.
  - Adjoining roads.
  - The location of any waterway or wetlands.
  - The location and use of buildings and works on adjoining land.
  - Relevant ground levels.
  - The layout of existing and proposed buildings and works.
  - All existing and proposed driveways, car parking and loading areas.
  - Existing and proposed landscape areas.
  - All external storage and waste treatment areas.
- Elevation drawings to scale showing the height, colour and materials of all proposed buildings and works.
- A photograph of the building or area affected by the proposal.

### 59.13-2 Decision guidelines

03/02/2022
VC199

In assessing an application the responsible authority must consider as appropriate:

- The impact of the siting, design, height, bulk, colours and materials to be used, on the natural environment, character and appearance of the area, landscape features, major roads, vistas and water features and the measures to be undertaken to minimise any adverse impacts.
- Whether the proposal will have an adverse impact on adjoining and nearby land uses.
- The need to protect amenity of existing residents.
- The need to locate buildings in one area to avoid any adverse impacts on surrounding agricultural uses.
- The likely environmental impact on the natural physical features and biodiversity of the area, including the need to retain vegetation and faunal habitat and the need to revegetate land including riparian buffers along waterways, gullies, ridgelines, property boundaries and saline discharge and recharge areas.
- The capability of the land to accommodate the proposed development.
- Whether the development will support and enhance agricultural production.
- The location of on-site effluent disposal areas to minimise the impact of nutrient loads on waterways and native vegetation.
- Any Regional Catchment Strategy and associated plan applying to the land.
- The impact of the proposal on any wetlands or waterways.
- Any integrated land management plan prepared for the site.

- Whether the development will require traffic management measures.
- For buildings and works associated with a dwelling:
  - Whether the dwelling will result in the loss or fragmentation of productive agricultural land.
  - Whether the dwelling will be adversely affected by agricultural activities on adjacent and nearby land due to dust, noise, odour, use of chemicals and farm machinery, traffic and hours of operation.
  - Whether the dwelling will adversely affect the operation and expansion of adjoining and nearby agricultural uses.
  - The potential for the proposal to lead to a concentration or proliferation of dwellings in the area and the impact of this on the use of the land for agriculture.

## 59.14 [NO CONTENT]

08/09/2025
VC282

## 59.15 LOCAL VICSMART APPLICATIONS

31/07/2018
VC148

The schedule to this clause may specify classes of application that are VicSmart applications to which Clause 71.06 applies. A class of application specified must not be a class of VicSmart application specified in another provision of this planning scheme.

The classes of VicSmart application are specified in three tables:

- Table 1 specifies classes VicSmart application under a zone.
- Table 2 specifies classes VicSmart application under an overlay.
- Table 3 specifies classes VicSmart application under a particular provision.

Each table in the schedule is divided into four columns:

- Column 1 specifies the name or class of zone or overlay or name of particular provision.
- Column 2 specifies the development.
- Column 3 specifies the provision of the planning scheme that contains the permit requirement applicable to the development.
- Column 4 specifies the information requirements and decision guidelines in Clauses 59.01 to 59.14 or the schedule to Clause 59.16 applicable to the class of VicSmart application.

Subject to Clause 71.06, an application under a provision specified in Column 3 for a use or development specified in Column 2 is a class of VicSmart application and must be assessed against the provision specified in Column 4.

31/07/2018
VC148

# SCHEDULE TO CLAUSE 59.15 LOCAL VICSMART APPLICATIONS

1.0
02/12/2022
C259case

## Table 1 Classes of VicSmart application under zone provisions

| Name of zone or class of zone | Class of application | Permit requirement provision | Information requirements and decision guidelines |
|---|---|---|---|
| None specified | | | |

2.0
02/12/2022
C259case

## Table 2 Classes of VicSmart application under overlay provisions

| Name of overlay or class of overlay | Class of application | Permit requirement provision | Information requirements and decision guidelines |
|---|---|---|---|
| None specified | | | |

3.0
02/12/2022
C259case

## Table 3 Classes of VicSmart application under particular provisions

| Name of particular provision | Class of application | Permit requirement provision | Information requirements and decision guidelines |
|---|---|---|---|
| None specified | | | |

## 59.16 INFORMATION REQUIREMENTS AND DECISION GUIDELINES FOR LOCAL VICSMART APPLICATIONS

31/07/2018
VC148

A schedule to this clause may set out information requirements and decision guidelines for a class of VicSmart application specified in the Schedule to Clause 59.15.

02/12/2022
C259case

# SCHEDULE 1 TO CLAUSE 59.16 INFORMATION REQUIREMENTS AND DECISION GUIDELINES FOR LOCAL VICSMART APPLICATIONS

## 1.0 Information requirements

02/12/2022
C259case

None specified.

## 2.0 Decision guidelines

02/12/2022
C259case

None specified.

## 60 GENERAL PROVISIONS

31/07/2018
VC148

This section sets out provisions about existing uses, decision guidelines, referral of applications and other matters.

## 61 [NO CONTENT]

31/07/2018
VC148

# 62 GENERAL EXEMPTIONS

31/07/2018
VC148

## 62.01 USES NOT REQUIRING A PERMIT

14/12/2023
VC253

Any requirement in this scheme relating to the use of land, other than a requirement in the Public Conservation and Resource Zone, does not apply to:

- The use of land for a Road except within the Urban Floodway Zone and a Public Conservation and Resource Zone.
- The use of land for Natural systems.
- The use of land in a road if the use is associated with the use of adjoining land and is authorised by the Council under a local law.
- The use of land in a road to trade from a stall, stand, motor vehicle, trailer, barrow or other similar device.
- The use of land for wind measurement by an anemometer for three years or less.
- The use of land for earth and energy resources industry if the conditions of Clause 52.08 are met.
- The use of land for a carnival or circus if the requirements of A 'Good Neighbour' Code of Practice for a Circus or Carnival, October 1997 are met.
- The use of land for apiculture if the requirements of the Apiary Code of Practice, May 2011 are met.
- The use of land for temporary portable land sales office located on the land for sale.
- The use of land for a telecommunications facility.
- The use of land for a helicopter landing site if the use meets the requirements of Clause 52.15-1.
- The use of land for a minor utility installation.
- The use of land to display a sign.
- The use of land for power lines and electrical sub-stations associated with an energy generation facility or geothermal energy extraction if a permit was issued for such use or development prior to the approval date of Amendment VC157.
- The use of land for environmental monitoring (including monitoring groundwater, noise or air quality) carried out by or on behalf of the Head, Transport for Victoria.
- The use of land for an Electorate office.
- The use of land for a moveable unit as defined in the *Housing Act 1983*, carried out by or on behalf of the Chief Executive Officer, Homes Victoria.

## 62.02 BUILDINGS AND WORKS

15/03/2019
VC157

Clauses 62.02-1 and 62.02-2 set out exemptions from permit requirements in this scheme relating to the construction of a building or the construction or carrying out of works. These exemptions do not apply to the removal, destruction or lopping of trees and the removal of vegetation. Exemptions for vegetation removal are set out in Clause 62.02-3.

### 62.02-1 Buildings and works not requiring a permit

14/12/2023
VC253

Any requirement in this scheme relating to the construction of a building or the construction or carrying out of works, other than a requirement in the Public Conservation and Resource Zone, does not apply to:

- Buildings or works which provide for fire protection under relevant legislation.
- Emergency works undertaken by, or on behalf of, a municipality, public authority or utility service provider in the exercise of any power conferred on them under any Act.
- Buildings or works with an estimated cost of $1,000,000 or less carried out by or on behalf of a municipality.
- Maintenance works carried out by a municipality or public authority to prevent or alleviate flood damage.
- An anemometer located on a site for three years or less.
- Buildings and works associated with a use on adjoining land or street trading if authorised under a local law.
- Gardening.
- Buildings and works associated with a minor utility installation.
- Power lines and electrical sub-stations associated with an Energy generation facility or Geothermal energy extraction if a permit was issued for such use or development prior to the approval date of Amendment VC157.
- Buildings or works which are a modification necessary to comply with a direction under the *Dangerous Goods Act 1985* or the *Occupational Health and Safety Act 2004* or a Development Licence, Operating Licence or notice under the *Environment Protection Act 2017*.
- Buildings and works for a telecommunications facility exempt from a permit under clause 52.19-1.
- Buildings and works associated with a dam if a licence is required to construct the dam or to take and use water from the dam under the *Water Act 1989*.
- Buildings and works associated with a carnival or circus if the requirements of A 'Good Neighbour' Code of Practice for a Circus or Carnival, October 1997 are met.
- Buildings and works associated with apiculture if the requirements of the Apiary Code of Practice, May 2011 are met.
- A temporary portable classroom associated with an education centre located on a site for three years or less.
- A temporary shed or temporary structure for construction purposes, or a temporary portable land sales office located on the land for sale.
- A children's cubbyhouse.
- External lighting normal to a dwelling or small second dwelling.
- The construction, alteration, removal or demolition of an observational bore where a licence has been issued for those works under Part 5 of the *Water Act 1989*.

- Any works associated with the use of land for earth and energy resources industry if the conditions of Clause 52.08 are met.
- A crop support or protection structure associated with horticulture, including a trellis, cloche, net and shadecloth. It does not include a structure with a solid roof or solid wall such as a glass house or igloo.
- An annexe attached to a movable caravan located on land used for a camping and caravan park.
- Works associated with geotechnical testing or service proving.
- Buildings and works associated with the use of land in a road to trade from a stall, stand, motor vehicle, trailer, barrow or other similar device.
- The construction of or putting up for display a sign consistent with the requirements of Clause 52.05-10.
- Temporary buildings and works associated with environmental monitoring (including monitoring groundwater, noise or air quality) constructed or carried out by or on behalf of the Head, Transport for Victoria.

## 62.02-2 Buildings and works not requiring a permit unless specifically required by the planning scheme

14/12/2023
VC253

Any requirement in this scheme relating to the construction of a building or the construction or carrying out of works, other than a requirement in the Public Conservation and Resource Zone, does not apply to:

- A fence.
- The construction of or putting up for display a sign (except for a sign consistent with the requirements of Clause 52.05-10 which is provided for in Clause 62.02-1).
- Roadworks.
- Buildings and works associated with a railway, railway station or tramway constructed or carried out by or on behalf of the Head, Transport for Victoria. If the buildings or works are on land in an Urban Floodway Zone, Floodway Overlay, Land Subject to Inundation Overlay, Special Building Overlay and will redirect or obstruct the water flow path, they must be constructed and carried out to the satisfaction of the relevant floodplain management authority.
- Street furniture including post boxes, telephone booths, fire hydrants, bus shelters, shade sails, traffic control devices and public toilets.
- Park furniture including seating, tables, shelters, rubbish bins, playground equipment, barbeques, shade sails, drinking fountains and public toilets.
- Furniture and works normally associated with an education centre including, but not limited to, outdoor furniture, playground equipment, art works, drinking fountains, rubbish bins and landscaping.
- Disability access and disability facilities associated with an education centre (not including a lift external to a building).
- Art work that is carried out by or on behalf of a public land manager.
- Oil pipelines.
- Buildings and works associated with a moveable unit as defined in the *Housing Act 1983*, carried out by or on behalf of the Chief Executive Officer, Homes Victoria.
- The internal rearrangement of a building or works provided the gross floor area of the building, or the size of the works, is not increased and the number of dwellings is not increased.
- Repairs and routine maintenance to an existing building or works.

- Domestic services normal to a dwelling or small second dwelling.
- A rainwater tank with a capacity of not more than 10,000 litres.
- Bicycle pathways and trails.
- A television antenna.
- A flagpole.
- A domestic swimming pool or spa and associated mechanical and safety equipment if associated with one dwelling on a lot.
- An open-sided pergola or verandah to a dwelling or small second dwelling with a finished floor level not more than 800 mm above ground level and a maximum building height of three metres above ground level.
- A deck to a dwelling or small second dwelling with a finished floor level not more than 800 mm above ground level.
- A disabled access ramp.
- Any works necessary to prevent soil erosion, or to ensure soil conservation or reclamation.
- A solar energy system attached to a building that primarily services the land on which it is situated.
- Buildings and works associated with cat cages and runs, bird cages, dog houses, and other domestic animal enclosures associated with the use of the land as a dwelling.
- Services normal to a building other than a dwelling or small second dwelling, including chimneys, flues, skylights, heating and cooling systems, hot water systems, security systems and cameras, downpipes, window shading devices, or similar.
- An electric vehicle charging station.

This does not apply if a permit is specifically required for any of these matters.

## 62.02-3 Vegetation removal

30/08/2006
VC40

Any requirement in this scheme relating to the construction or carrying out of works does not apply to the removal, destruction or lopping of trees and the removal of vegetation.

This does not apply if a permit is specifically required to remove, destroy or lop trees or to remove vegetation.

# 62.03 EVENTS AND OUTDOOR DINING ON PUBLIC LAND

27/06/2025
VC275

## 62.03-1 Events

27/06/2025
VC275

Any requirement in this scheme relating to the use of land or the construction of a building or the construction or carrying out of works does not apply to:

- an event on public land; or
- temporary buildings or works required for the event;

where that event has been authorised by the public land manager or by the council under a local law.

An event includes land used to provide temporary cultural or community activities and entertainment such as a concert, festival or exhibition.

This does not apply to public land where a local provision of this scheme specifically regulates an event for a particular site.

## 62.03-2 Outdoor dining

27/06/2025
VC275

In this clause:

***Dining*** means the consumption of food or drink, including liquor. It includes the preparation or sale of food or drink, including liquor, for immediate consumption on, or off, the land.

### Exemption from planning scheme requirements

Any requirement in this scheme relating to the use of land, the construction of a building, the construction or carrying out of works, or provision of car parking, including preparation of a car parking plan under Clause 52.06, does not apply to:

- The use of a road or other public land for outdoor dining if the use is associated with the use of adjoining land and is authorised under a local law or by the public land manager.
- Street and park furniture including, seats, tables, marquees, covered and uncovered pergolas or similar shade sails, bollards, traffic control devices and platforms associated with outdoor dining in a road or other public land on adjoining land and is authorised under a local law or by the public land manager.

## 62.04 SUBDIVISIONS NOT REQUIRING A PERMIT

28/03/2018
VC145

Any requirement in this scheme relating to the subdivision of land does not apply to:

- A subdivision by an authority acquiring the land which does not create an additional lot.
- A subdivision by a public authority or utility service provider which does not create an additional lot other than for the sole purpose of a minor utility installation. This does not apply if a permit is required to subdivide land under any overlay.
- A subdivision by an authority acquiring the land which creates additional lots if the additional lots are severed parcels of land without legal access to an existing road and the additional lots are retained by the acquiring authority or sold to an abutting land owner on the condition that the lot be consolidated with abutting land.
- A subdivision which realigns the common boundary between two lots if all the land is in one urban zone and any of the following apply:
  - Any lot that is reduced in area meets the minimum lot area and minimum dimensions (if any) specified for the zone. This does not apply if the area of the smaller lot is limited by a provision of this scheme, or by a condition of a planning permit.
  - There is no minimum lot area specified for the zone, the area of the smaller lot is more than 230 square metres, and the area of either lot is reduced by less than 30 square metres.
  - There is no minimum lot area specified for the zone, the area of the smaller lot is 230 square metres or less, and the area of either lot is reduced by less than 5 percent or by less than 30 square metres, which ever is lesser.
  - The new boundary coincides with a boundary fence that is more than five years old. This does not apply if all the land is in one ownership.
- A subdivision which realigns the common boundary between two lots if all the land is in one non-urban zone, the re-subdivision does not allow the number of dwellings the whole of the land could be used for under this scheme to increase, and any of the following apply:
  - Any lot that is reduced in area meets the minimum lot area and minimum dimensions (if any) specified for the zone. This does not apply if the area of the smaller lot is limited by a provision of this scheme, or by a condition of a planning permit.
  - There is no minimum lot area specified for the zone, and no part of the boundary is moved more than 1 metre. This does not apply if the area of the smaller lot would be less than the area specified by a condition of a planning permit.
  - There is no minimum lot area specified for the zone, the new boundary coincides with the location of a fence that is more than 5 years old, and no part of the boundary is moved more than three metres.

## 62.05 DEMOLITION

17/02/2022
VC200

A permit is not required for the demolition or removal of a building or works unless a permit is specifically required for demolition or removal.

Any requirement in this planning scheme (other than a requirement in a Heritage Overlay) relating to the demolition or removal of a building or works does not apply to the demolition of removal of a building or works associated with a car park, railway, railway station or tramway carried out by or on behalf of the Head, Transport for Victoria.

## 62.06 DELIVERY OF ESSENTIAL GOODS PERMIT CONDITION EXEMPTION

28/10/2022
VC224

The purpose of this exemption is to enable additional flexibility for deliveries of essential goods if the time within which a delivery may be carried out is regulated by a permit condition.

In this exemption, ***delivery*** includes loading, dispatching and unloading.

This exemption applies to the delivery of food, drink, groceries, medicine, or cleaning, sanitising, health, hygiene, medical or personal protection equipment, supplies, or products, or the like.

Despite any condition of a permit that specifies a period of time within which a delivery may be carried out, a delivery may be carried out for up to 1 hour before the start of the specified period and 1 hour after the end of the specified period.

*Example:* *If a condition of a permit only allows deliveries between the hours of 7am and 10pm, the delivery may be carried out under this exemption after 6am and up until 11pm.*

# 63 EXISTING USES

28/03/2018
VC145

## 63.01 EXTENT OF EXISTING USE RIGHTS

28/03/2018
VC145

An existing use right is established in relation to use of land under this scheme if any of the following apply:

- The use was lawfully carried out immediately before the approval date.
- A permit for the use had been granted immediately before the approval date and the use commences before the permit expires.
- A permit for the use has been granted under Clause 63.08 and the use commences before the permit expires.
- Proof of continuous use for 15 years is established under Clause 63.11.
- The use is a lawful continuation by a utility service provider or other private body of a use previously carried on by a Minister, government department or public authority, even where the continuation of the use is no longer for a public purpose.

## 63.02 CHARACTERISATION OF USE

31/07/2018
VC148

If a use of land is being characterised to assess the extent of any existing use right, the use is to be characterised by the purpose of the actual use at the relevant date, subject to any conditions or restrictions applying to the use at that date, and not by the classification in the table to Clause 73.03 or in Section 1, 2 or 3 of any zone.

## 63.03 EFFECT OF DEFINITIONS ON EXISTING USE RIGHTS

28/03/2018
VC145

The definition of a term in this scheme, or the amendment of any definition, does not increase or restrict the extent of any existing use right established prior to the inclusion of the definition or amendment.

## 63.04 SECTION 1 USES

28/03/2018
VC145

A use in Section 1 of a zone for which an existing use right is established may continue provided any condition or restriction to which the use was subject and which applies to the use in Section 1 of the zone continues to be met.

## 63.05 SECTIONS 2 AND 3 USES

28/03/2018
VC145

A use in Section 2 or 3 of a zone for which an existing use right is established may continue provided:

- No building or works are constructed or carried out without a permit. A permit must not be granted unless the building or works complies with any other building or works requirement in this scheme.
- Any condition or restriction to which the use was subject continues to be met. This includes any implied restriction on the extent of the land subject to the existing use right or the extent of activities within the use.
- The amenity of the area is not damaged or further damaged by a change in the activities beyond the limited purpose of the use preserved by the existing use right.

## 63.06 EXPIRATION OF EXISTING USE RIGHTS

28/03/2018
VC145

An existing use right expires if either:

- The use has stopped for a continuous period of 2 years, or has stopped for two or more periods which together total 2 years in any period of 3 years.
- In the case of a use which is seasonal in nature, the use does not take place for 2 years in succession.

## 63.07 COMPLIANCE WITH CODES OF PRACTICE

28/03/2018
VC145

A use for which an existing use right is established must comply with any relevant code of practice incorporated in this scheme if either:

- The code of practice has been incorporated or adopted in accordance with Section 39 of the Conservation Forests and *Lands Act 1987*.
- The code of practice is approved or ratified by Parliament under an Act.

## 63.08 ALTERNATIVE USE

28/03/2018
VC145

If land is used for a use in Section 3 of a zone for which an existing use right is established, a permit may be granted to use the land for an alternative use which does not comply with this scheme. The responsible authority must be satisfied that the use of the land for the alternative use will be less detrimental to the amenity of the locality.

## 63.09 SHOP CONDITIONS

28/03/2018
VC145

A permit must not be granted to:

- Construct or carry out a building or works under Clause 63.05 for a shop with a leasable floor area exceeding 500 square metres.
- Use land under Clause 63.08 for a shop with a leasable floor area exceeding 500 square metres.

## 63.10 DAMAGED OR DESTROYED BUILDINGS OR WORKS

28/03/2018
VC145

If at least 50 percent of the gross floor area of a building or at least 50 percent of the area of any works is damaged or destroyed so that the use cannot continue without the building or works being reconstructed, the land must be used in conformity with this scheme, unless a permit is granted to continue the use, and to construct or carry out buildings or works.

## 63.11 PROOF OF CONTINUOUS USE

12/02/2024
VC254

If, in relation to an application or proceeding under the Act or this scheme, including an application for a certificate of compliance under Section 97N of the Act, the extent of any existing use right for a period in excess of 15 years is in question, it is sufficient proof of the establishment of the existing use right if the use has been carried out continuously for a period of 15 years at any time before the date of the application or proceeding.

An existing use right may be established under this clause even if the use did not comply with the scheme immediately before or during the 15 year period, unless any of the following apply:

- At any time before or after commencement of the 15 year period the use has been held to be unlawful by a decision of a court or tribunal.
- During the 15 year period, the responsible authority has clearly and unambiguously given a written direction for the use to cease by reason of its non-compliance with the scheme.
- The use ceased between the end of the 15 year period and the date of the application or proceeding.

## 63.12 DECISION GUIDELINES

28/03/2018
VC145

Before deciding on an application under Clause 63.05, 63.08 or 63.10, in addition to the decision guidelines in Clause 65 and any other requirements of the Act, the responsible authority must consider the extent to which compliance can be achieved with all scheme requirements that can reasonably be met.

# 64 GENERAL PROVISIONS FOR USE AND DEVELOPMENT OF LAND

28/03/2018
VC145

## 64.01 LAND USED FOR MORE THAN ONE USE

28/03/2018
VC145

If land is used for more than one use and one is not ancillary to the other, each use must comply with this scheme.

## 64.02 LAND USED IN CONJUNCTION WITH ANOTHER USE

28/03/2018
VC145

If a provision of this scheme provides that a use of land must be used 'in conjunction with' another use of the land:

- there must be an essential association between the two uses; and
- the use must have a genuine, close and continuing functional relationship in its operation with the other use.

## 64.03 SUBDIVISION OF LAND IN MORE THAN ONE ZONE

28/03/2018
VC145

If a provision of this scheme provides that a permit is required to subdivide land and the land is in more than one zone a permit may be granted even if one of the lots does not comply with the minimum lot size requirements of a zone.

### Permit Requirement

A permit may be granted to create one lot smaller than specified in the scheme if all of the following are met:

- The lot to be subdivided is in more than one zone and cannot comply with the minimum lot area specified in the scheme.
- The proposed subdivision does not create lots where any lot extends into more than one zone. This does not apply to any lots created for the following purposes:
  - To comply with the requirements of the Urban Floodway Zone.
  - To provide access to a road.
- The remainder of the proposed lots must comply with the minimum lot area specified in the scheme.

## 65 DECISION GUIDELINES

28/03/2018
VC145

Because a permit can be granted does not imply that a permit should or will be granted. The responsible authority must decide whether the proposal will produce acceptable outcomes in terms of the decision guidelines of this clause.

## 65.01 APPROVAL OF AN APPLICATION OR PLAN

09/12/2021
VC204

Before deciding on an application or approval of a plan, the responsible authority must consider, as appropriate:

- The matters set out in section 60 of the Act.
- Any significant effects the environment, including the contamination of land, may have on the use or development.
- The Municipal Planning Strategy and the Planning Policy Framework.
- The purpose of the zone, overlay or other provision.
- Any matter required to be considered in the zone, overlay or other provision.
- The orderly planning of the area.
- The effect on the environment, human health and amenity of the area.
- The proximity of the land to any public land.
- Factors likely to cause or contribute to land degradation, salinity or reduce water quality.
- Whether the proposed development is designed to maintain or improve the quality of stormwater within and exiting the site.
- The extent and character of native vegetation and the likelihood of its destruction.
- Whether native vegetation is to be or can be protected, planted or allowed to regenerate.
- The degree of flood, erosion or fire hazard associated with the location of the land and the use, development or management of the land so as to minimise any such hazard.
- The adequacy of loading and unloading facilities and any associated amenity, traffic flow and road safety impacts.
- The impact the use or development will have on the current and future development and operation of the transport system.

This clause does not apply to a VicSmart application.

## 65.02 APPROVAL OF AN APPLICATION TO SUBDIVIDE LAND

15/03/2024
VC256

Before deciding on an application to subdivide land, the responsible authority must also consider, as appropriate:

- The suitability of the land for subdivision.
- The existing use and possible future development of the land and nearby land.
- The availability of subdivided land in the locality, and the need for the creation of further lots.
- The effect of development on the use or development of other land which has a common means of drainage.
- The subdivision pattern having regard to the physical characteristics of the land including existing vegetation.
- The density of the proposed development.
- The area and dimensions of each lot in the subdivision.
- The layout of roads having regard to their function and relationship to existing roads.
- The movement of pedestrians and vehicles throughout the subdivision and the ease of access to all lots.
- The provision and location of reserves for public open space and other community facilities.
- The staging of the subdivision.
- The design and siting of buildings having regard to safety and the risk of spread of fire.
- The provision of off-street parking.
- The provision and location of common property.
- The functions of any owners corporation.
- The availability and provision of utility services, including water, sewerage, drainage, electricity, and, where the subdivision is not a residential subdivision, gas.
- If the land is not sewered and no provision has been made for the land to be sewered, the capacity of the land to treat and retain all sewage and sullage within the boundaries of each lot.
- Whether, in relation to subdivision plans, native vegetation can be protected through subdivision and siting of open space areas.
- The impact the development will have on the current and future development and operation of the transport system.

This clause does not apply to a VicSmart application.

66
14/05/2021
VC198

# REFERRAL AND NOTICE PROVISIONS

## Scope

These provisions set out the kinds of applications which must be referred under section 55 of the Act or for which notice must be given under section 52(1)(c) of the Act. The provisions do not apply to the seeking of advice about an application or where a responsible authority may choose to give notice under another sub-section of section 52(1) of the Act.

These provisions also specify when a plan must be referred under section 8(1)(a) of the *Subdivision Act 1988*.

## Referrals

Applications of the kind listed in Clauses 66.01, 66.02, 66.03 and 66.04 must be referred to the person or body specified as a referral authority in accordance with section 55 of the Act.

Any requirement for referral under this or another clause does not apply if:

- In the opinion of the responsible authority, the proposal satisfies requirements or conditions previously agreed in writing between the responsible authority and the referral authority, or the referral authority has considered the proposal for which the application is made within the past three months and has stated in writing that it does not object to the granting of the permit for the proposal; or
- The application is for the use or development of land for extractive industry or mining and a copy of a work plan or variation to an approved work plan accompanying the application was given to the referral authority (other than the Head, Transport for Victoria) under section 77TE of the *Mineral Resources (Sustainable Development) Act 1990.*

## Notice

Notice of an application of the kind listed in Clauses 66.05 and 66.06 must be given in accordance with section 52(1)(c) of the Act to the person or body specified as a person or body to be notified.

Any requirement for notice under this or another clause does not apply if, in the opinion of the responsible authority, the proposal satisfies requirements or conditions previously agreed in writing between the responsible authority and the person or body to be notified.

## 66.01 SUBDIVISION REFERRALS

30/10/2025
VC291

An application of the kind listed in the table below must be referred to the person or body specified as the referral authority. The table below specifies whether the referral authority is a determining referral authority or a recommending referral authority.

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| To subdivide land other than:<br>▪ A boundary realignment.<br>▪ The subdivision of an existing building already connected to services.<br>▪ A two lot subdivision.<br>▪ The subdivision of land into lots each containing an existing dwelling or car parking space. | The relevant water, drainage or sewerage authority<br>The relevant electricity supply or distribution authority<br>The relevant gas supply authority only where the subdivision is proposed to connect a lot to a reticulated gas supply system. | Determining referral authority<br>Determining referral authority<br>Determining referral authority |
| To subdivide land outside the metropolitan fire district which creates a road, where the requirements of Clause 56.09-3 are not met. | The relevant fire authority | Determining referral authority |
| To subdivide land if the only access to a lot is over Crown land which has not been reserved or proclaimed as a road. | Minister administering the *Land Act 1958* | Determining referral authority |
| To subdivide land crossed by a gas transmission pipeline or a gas transmission pipeline easement. | The relevant gas supply authority | Determining referral authority |
| To subdivide land within 60 metres of a major electricity transmission line (220 Kilovolts or more) or an electricity transmission easement. | The relevant electricity transmission authority | Determining referral authority |
| To subdivide a heritage place of which all or part is included in the Victorian Heritage Register. | The Executive Director specified in the *Heritage Act 2017* | Determining referral authority |

*Note: A subdivision which does not require referral under Clause 66.01 must be referred if it is listed as a requirement under any other provision of Clause 66.*

## 66.01-1 Mandatory conditions for subdivision permits

04/08/2022
VC221

A permit for subdivision must contain the following conditions:

The owner of the land must enter into an agreement with:

- a telecommunications network or service provider for the provision of telecommunication services to each lot shown on the endorsed plan in accordance with the provider's requirements and relevant legislation at the time; and
- a suitably qualified person for the provision of fibre ready telecommunication facilities to each lot shown on the endorsed plan in accordance with any industry specifications or any standards set by the Australian Communications and Media Authority, unless the applicant can demonstrate that the land is in an area where the National Broadband Network will not be provided by optical fibre.

Before the issue of a Statement of Compliance for any stage of the subdivision under the *Subdivision Act 1988*, the owner of the land must provide written confirmation from:

- a telecommunications network or service provider that all lots are connected to or are ready for connection to telecommunications services in accordance with the provider's requirements and relevant legislation at the time; and
- a suitably qualified person that fibre ready telecommunication facilities have been provided in accordance with any industry specifications or any standards set by the Australian Communications and Media Authority, unless the applicant can demonstrate that the land is in an area where the National Broadband Network will not be provided by optical fibre.

This requirement does not apply to a permit granted to:

- Subdivide land in a rural zone, public land zone, Urban Floodway Zone or Special Use Zone if the responsible authority is satisfied that connection to telecommunication services is not warranted.
- Realign the common boundary between two lots (boundary realignment).
- Subdivide an existing building already connected to telecommunication services.

A permit granted to subdivide land in a manner that does not require referral under Clause 66.01 must contain the following conditions:

- The owner of the land must enter into agreements with the relevant authorities for the provision of water supply, drainage, sewerage facilities, electricity and gas (where it is proposed to be connected) services to each lot shown on the endorsed plan in accordance with the authority's requirements and relevant legislation at the time.
- All existing and proposed easements and sites for existing or required utility services and roads on the land must be set aside in the plan of subdivision submitted for certification in favour of the relevant authority for which the easement or site is to be created.
- The plan of subdivision submitted for certification under the *Subdivision Act 1988* must be referred to the relevant authority in accordance with Section 8 of that Act.

This requirement does not apply to a permit granted to subdivide land into lots each containing an existing dwelling or car parking space.

## 66.01-2 Referrals under the Subdivision Act – certification of plans

15/09/2008
VC49

For the purpose of Section 8(1)(a) of the *Subdivision Act 1988* referral of a plan is required if:

- A referral is required by a permit issued under this scheme. The plan must be referred to the relevant referral authority.
- A plan creates, varies or removes an easement or restriction likely to be of interest to a referral authority. The plan must be referred to the relevant referral authority.
- The only access to a lot on a plan is over Crown land and the Minister administering the *Land Act 1958* has not consented or provision has not been made for a road to be reserved or proclaimed. The plan must be referred to that Minister.
- In the opinion of the Council the plan may affect existing sewerage, water, drainage or other works. The plan must be referred to the referral authority responsible for those works.

## 66.02 USE AND DEVELOPMENT REFERRALS

31/07/2018
VC148

An application of the kind listed in the tables below must be referred to the person or body specified as the referral authority. The tables below specify whether the referral authority is a determining referral authority or a recommending referral authority.

### 66.02-1 Environment Protection Authority Licence

04/05/2022
VC210

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| For a use or development requiring any of the following:<br>▪ A Development Licence or Operating Licence in accordance with Part 4.4 of the *Environment Protection Act 2017*.<br>▪ Amendment of a licence in accordance with Part 4.3 of the *Environment Protection Act 2017*. | Environment Protection Authority | Determining referral authority |

### 66.02-2 Native vegetation

30/10/2025
VC291

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| ▪ To remove, destroy or lop native vegetation in the Detailed Assessment Pathway as defined in the *Guidelines for the removal, destruction or lopping of native vegetation* (Department of Energy, Environment and Climate Action, 2025).<br>▪ To remove, destroy or lop native vegetation if a property vegetation plan applies to the site.<br>▪ To remove, destroy or lop native vegetation on Crown land which is occupied or managed by the responsible authority. | Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) | Recommending referral authority |

### 66.02-3 Cattle feedlot

25/05/2017
VC133

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| To use or develop land for a cattle feedlot. | Minister for Agriculture | Determining referral authority |
| | If the site is located within a special water supply catchment area under the *Catchment and Land Protection Act 1994*, the relevant water authority under the *Water Act 1989* and the Secretary to the Department administering the *Catchment and Land Protection Act 1994* | Determining referral authority |
| | If the number of cattle is 5000 or more, the Environment Protection Authority | Determining referral authority |

## 66.02-4 Major electricity line or easement

25/05/2017
VC133

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| To construct a building or construct or carry out works on land within 60 metres of a major electricity transmission line (220 Kilovolts or more) or an electricity transmission easement. | The relevant electricity transmission authority | Determining referral authority |

## 66.02-5 Special water supply catchment area

22/11/2024
VC263

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| To use, subdivide or consolidate land, to construct a building or construct or carry out works, or to demolish a building or works that are within a declared Special Area classified as a Special Water Supply Catchment Area under the *Catchment and Land Protection Act 1994* and which provides water to a domestic supply.<br>This does not apply to an application for a sign, fence, roadworks or unenclosed building or works ancillary to a dwelling. | The relevant water board or water supply authority | Determining referral authority |

## 66.02-6 Timber production

25/05/2017
VC133

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| ▪ To use or develop land for timber production by establishing a plantation.<br>▪ To use or develop land for timber production by harvesting timber from native forest, including thinning, if the area of native forest to be subjected to timber production operations is 10 hectares or greater. | Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) | Determining referral authority |

## 66.02-7 Industry, utility installation or warehouse

14/01/2025
VC237

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| ▪ To use land for an industry, utility installation or warehouse for a purpose listed in the table to Clause 53.10 with no threshold distance specified or if the threshold distance is not to be met. | Environment Protection Authority | Determining referral authority |
| ▪ To use land for an industry, utility installation or warehouse if any of the following apply:<br>– A fire protection quantity is exceeded under the Dangerous Goods (Storage and Handling) Regulations 2022. | The Victorian WorkCover Authority | Determining referral authority |

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| – A notification is required under the Occupational Health and Safety Regulations 2017.<br>– A licence is required under the Dangerous Goods (Explosives) Regulations 2011.<br>– A licence is required under Dangerous Goods (HCDG) Regulations 2016 and the use is not associated with agriculture. | | |
| ▪ To construct a building or construct or carry out works on land used for an industry, utility installation or warehouse if the area of the buildings and works will increase by more than 25 per cent and any of the following apply:<br>– A fire protection quantity is exceeded under the Dangerous Goods (Storage and Handling) Regulations 2022.<br>– A notification is required under the Occupational Health and Safety Regulations 2017.<br>– A licence is required under the Dangerous Goods (Explosives) Regulations 2011.<br>– A licence is required under the Dangerous Goods (HCDG) Regulations 2016 and the use is not associated with agriculture. | The Victorian WorkCover Authority | Determining referral authority |

## 66.02-8 Extractive industry

22/03/2022
VC219

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| ▪ To use or develop land for extractive industry. | Secretary to the Department administering the *Heritage Act 2017*.<br>Secretary to the Department administering the *Mineral Resources (Sustainable Development) Act 1990* | Determining referral authority |
| ▪ To use or develop land for accommodation in a rural zone if the building or works associated with the accommodation is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. | Secretary to the Department administering the *Mineral Resources (Sustainable Development) Act 1990* | Recommending referral authority |
| ▪ To use or develop land for extractive industry on Crown land or land abutting Crown land, other than a government road. | Secretary to the Department administering the *Land Act 1958*, *Crown Land (Reserves) Act 1978*, *National Parks Act 1975* and *Forests Act 1958* | Determining referral authority |

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| ▪ To use or develop land for extractive industry:<br>– In Special Areas declared under Section 27 of the *Catchment and Land Protection Act 1994*.<br>– On land where the use or development involves the removal or destruction of native vegetation if the total area to be cleared is 10 hectares or greater.<br>– On land which has been identified in this scheme as being subject to high erosion risk or areas identified as being subject to salinity management. | Secretary to the Department administering the *Catchment and Land Protection Act 1994* | Determining referral authority |
| ▪ To use or develop land for extractive industry:<br>– In areas with communities or taxa listed or critical habitat determined under the *Flora and Fauna Guarantee Act 1988*.<br>– On land which has been identified in this scheme as containing sites of flora or fauna significance. | Secretary to the Department administering the *Flora and Fauna Guarantee Act 1988* | Determining referral authority |
| ▪ To use or develop land for extractive industry on land which has been identified in this scheme as flood prone. | Secretary to the Department administering Section 201 of the *Water Act 1989* | Determining referral authority |
| ▪ To use or develop land for extractive industry if the land is intended to be used for land fill at a future date. | Environment Protection Authority | Determining referral authority |
| ▪ To use or develop land for extractive industry:<br>– On land which abuts a local road which intersects with a road declared as a freeway or an arterial road under the *Road Management Act 2004* and if the development is expected to increase traffic movement at the intersection of the local road and the declared road by ten percent or more.<br>– On land which abuts a road declared as a freeway or an arterial road under the *Road Management Act 2004*. This does not apply to a development which generates less than one hundred commercial trips per day, with roadworks at the entrance to the site built in accordance with the requirements of the Head, Transport for Victoria and the declared road is not a freeway. | Head, Transport for Victoria | Determining referral authority |

## 66.02-9 Geothermal energy extraction

25/05/2017
VC133

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| To use or develop land for geothermal energy extraction. | Secretary to the Department administering the *Geothermal Energy Resources Act 2005* | Determining referral authority |

## 66.02-10 Greenhouse gas sequestration

25/05/2017
VC133

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| To use or develop land for greenhouse gas sequestration. | Secretary to the Department administering the *Greenhouse Gas Geological Sequestration Act 2008* | Determining referral authority |

## 66.02-11 Land use and transport integration

09/12/2021
VC204

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| An application to subdivide land, to construct a building or to construct or carry out works for any of the following:<br>▪ A residential development comprising 60 or more dwellings or lots.<br>▪ A residential building comprising 60 or more lodging rooms.<br>▪ A residential village comprising 60 or more dwellings.<br>▪ A retirement village comprising 60 or more dwellings or lots.<br>▪ A new retail premises of 4000 or more square metres of leasable floor area.<br>▪ An increase of more than 1000 square metres to the leasable floor area of an existing retail premises which is 4000 or more square metres leasable floor area.<br>▪ An office development of 10,000 or more square metres of leasable floor area.<br>▪ A place of assembly comprising 400 or more seats or 600 or more square metres of gross floor area.<br>▪ An education centre.<br>▪ A major sports and recreation facility.<br>▪ Any alteration or development of public transport infrastructure or stops, unless undertaken for the Head, Transport for Victoria.<br>This does not apply to:<br>▪ Buildings and works associated with an existing place of assembly, education centre, major sports and recreation facility or retirement village.<br>▪ A development consistent with an adopted Structure Plan that has been prepared in consultation with and endorsed by the Head, Transport for Victoria. | Head, Transport for Victoria | Determining referral authority |

## 66.02-12 Declared irrigation districts

17/09/2019
VC161

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| An application to use or develop land for a renewable energy facility located within an irrigation district declared under Part 6A of the *Water Act 1989.* | Secretary to the Department administering the *Water Act 1989.* | Recommending referral authority |

## 66.02-13 State transport projects

17/02/2022
VC200

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| An application to which clause 53.21 applies. | The municipal council for the municipal district within which the proposed use or development will be carried out. | Recommending referral authority. |

## 66.02-14 Freeway service centre

20/03/2023
VC229

| Kind of application | Referral authority | Type of referral authority |
|---|---|---|
| To use or develop land for a Freeway service centre. | Head, Transport for Victoria | Determining referral authority |

## 66.03 REFERRAL OF PERMIT APPLICATIONS UNDER OTHER STATE STANDARD PROVISIONS

05/05/2026
VC248

An application of the kind listed in the table below, where the planning scheme includes the specified clause, must be referred to the person or body specified as the referral authority. The table below specifies whether the referral authority is a determining referral authority or a recommending referral authority.

| Clause | Kind of application | Referral authority | Type of referral authority |
|---|---|---|---|
| Clause 36.03-5 (PCRZ) | An application for the use or development of an Emergency services facility. | Secretary to the Department of Energy, Environment and Climate Action | Determining referral authority |
| Clause 37.03-5 (UFZ) | An application under the zone within the waterway management district of Melbourne Water Corporation. | Melbourne Water Corporation | Determining referral authority |
| | An application under the zone outside the waterway management district of Melbourne Water Corporation. | Relevant floodplain management authority | Recommending referral authority |
| Clause 37.07-5 (UGZ) | An application under the zone within Metropolitan Melbourne. | Victorian Planning Authority | Determining referral authority |
| | An application under the zone outside Metropolitan Melbourne. | Secretary to the Department administering the *Planning and Environment Act 1987* | Determining referral authority |
| Clause 44.02-8 (SMO) | An application under the overlay and any site capability report. | Secretary to the Department of Energy, Environment and Climate Action | Determining referral authority |
| Clause 44.03-6 (FO) | An application under the overlay within the waterway management district of Melbourne Water Corporation. | Melbourne Water Corporation | Determining referral authority |
| | An application under the overlay outside the waterway management district of Melbourne Water Corporation. | Relevant floodplain management authority | Recommending referral authority |
| Clause 44.04-7 (LSIO) | An application under the overlay within the waterway management district of Melbourne Water Corporation. | Melbourne Water Corporation | Determining referral authority |
| | An application under the overlay outside the waterway management district of Melbourne Water Corporation. | Relevant floodplain management authority | Recommending referral authority |
| Clause 44.05-6 (SBO) | An application under the overlay within the waterway management district of Melbourne Water Corporation. | Melbourne Water Corporation | Determining referral authority |

| Clause | Kind of application | Referral authority | Type of referral authority |
|---|---|---|---|
| | An application under the overlay outside the waterway management district of Melbourne Water Corporation. | Relevant floodplain management authority | Recommending referral authority |
| Clause 44.06-6 (BMO) | An application to construct a building or carry out works associated with a dwelling.<br>This does not apply to a non-habitable outbuilding ancillary to a dwelling that meets the requirements of Table 5 to Clause 53.02-5. | Relevant fire authority | Recommending referral authority |
| | An application to subdivide land. | Relevant fire authority | Recommending referral authority |
| | An application under the overlay other than an application to construct a building or carry out works associated with a dwelling or an application to subdivide land. | Relevant fire authority | Determining referral authority |
| Clause 44.07-6 (SRO) | An application of the kind specified in a schedule to the overlay. | Referral authority specified in a schedule to the overlay | Determining referral authority |
| Clause 45.01-3 (PAO) | An application under the overlay. | Acquiring authority specified in the schedule to the overlay | Determining referral authority |
| Clause 45.07-6 (CLPO) | An application under the overlay. | Head, Transport for Victoria | Determining referral authority |
| Clause 52.05-3 | An application to display an animated or electronic sign within 60 metres of a freeway or arterial road declared under the *Road Management Act 2004.* | Head, Transport for Victoria | Determining referral authority |
| Clause 52.29-4 | An application to create or alter access to, or to subdivide land adjacent to, a road declared as a freeway or an arterial road under the *Road Management Act 2004*, land owned by the Head, Transport for Victoria for the purpose of a road, or land in a Public Acquisition Overlay if the Head, Transport for Victoria is the acquiring authority and the acquisition is for the purpose of a road. | Head, Transport for Victoria | Determining referral authority |
| | Any other application under the Clause. | Owner of, or the acquiring authority for, the adjacent land in the Transport Zone 2 or the Public Acquisition Overlay | Determining referral authority |

| Clause | Kind of application | Referral authority | Type of referral authority |
|---|---|---|---|
| Clause 52.32 | An application to amend a permit under section 72 or 97I of the *Planning and Environment Act 1987* for a wind energy facility if the application amends or removes conditions or requirements for operational wind turbine noise. | Environment Protection Authority Victoria | Recommending referral authority |
| Clause 53.24 | An application to which Clause 53.24 applies. | Secretary to the Department of Transport and Planning | Determining referral authority |

## 66.04 REFERRAL OF PERMIT APPLICATIONS UNDER LOCAL PROVISIONS

28/03/2018
VC145

In addition to the referral requirements of Clause 66.01, 66.02 and 66.03, an application of the kind listed in the schedule to this clause must be referred to the referral authority specified in the schedule. The table below specifies whether the referral authority is a determining referral authority or a recommending referral authority.

If a local provision of the scheme specifies a person or body as a referral authority for a kind of application or contains a referral requirement, and that specification or requirement is not included in the schedule to this clause, it is not a referral requirement under section 55 of the Act.

17/01/2019
C228

# SCHEDULE TO CLAUSE 66.04 REFERRAL OF PERMIT APPLICATIONS UNDER LOCAL PROVISIONS

1.0
14/05/2026
GC148

## Referral of permit applications under local provisions

| Clause | Kind of application | Referral authority | Referral authority type |
|---|---|---|---|
| Clause 4.0 to Schedule 2 to Clause 37.07 | Subdivision | Victorian Planning Authority | Determining referral authority |
| Clause 5.0 of Schedule 6 to Clause 42.01 (ESO) | An application required under Schedule 6 to Clause 42.01. | Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) | Determining referral authority |
| Clause 2.8 of Schedule 6 to Clause 37.07 (UGZ6) | Subdivision; and Construct a building or carry out works where the value of the building or works is in excess of $500,000. | Victorian Planning Authority | Determining referral authority |
| Clause 2.9 of Schedule 6 to Clause 37.07 (UGZ6) | To develop land for a sensitive use within 220 metres of the 415 Tuckers Road and 105 Hardys Road, Clyde North. | Secretary to the Department administering the *Mineral Resources (Sustainable Development) Act 1990* | Determining referral authority |
| Clause 2.9 of Schedule 7 to Clause 37.07 (UGZ7) | Subdivision; and<br>Construct a building or carry out works where the value of the building or works is in excess of $500,000. | Victorian Planning Authority | Determining referral authority |
| Clause 2.10 of Schedule 7 to Clause 37.07 (UGZ7) | To develop land for a sensitive use within 220 metres of the 415 Tuckers Road and 105 Hardys Road, Clyde North. | Secretary to the Department administering the *Mineral Resources (Sustainable Development) Act 1990* | Determining referral authority |
| Clause 6.0 of Schedule 5 to Clause 37.01 (SUZ5) | An application to develop land. | Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) | Determining referral authority |
| Clause 2.9 of Schedule 10 to Clause 37.07 (UGZ10) | Subdivision; and Construct a building or carry out works where the value of the building or works is in excess of $500,000. | Victorian Planning Authority | Determining referral authority |

| Clause | Kind of application | Referral authority | Referral authority type |
|---|---|---|---|
| Clause 2.8 of Schedule 11 to Clause 37.07 (UGZ11) | Subdivision; use or construct a building or carry out works | Secretary to the Department administering the *Mineral Resources (Sustainable Development) Act 1990* | Determining referral authority |
| Clause 2.9 of Schedule 11 to Clause 37.07 (UGZ11) | An application to subdivide land, or construct a building or carry out works (where the value of those works is in excess of $500,000) on land in a local town centre | Victorian Planning Authority | Determining referral authority |
| Schedule 12 to Clause 37.07 (UGZ12) | An application to subdivide land containing conservation area as shown in Plan 1 to Schedule 12 as ‘Conservation Area'. | Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) | Determining referral authority |
| Schedule 14 to Clause 37.07 (UGZ14) | An application to subdivide land, or construct a building or carry out works (where the value of those works is in excess of $500,000) on land identified on Plan 3 in the incorporated Minta Farm Precinct Structure Plan as ‘Local Town Centre’. | Victorian Planning Authority | Determining referral authority |
| Schedule 14 to Clause 37.07 (UGZ14) | An application to subdivide land containing conservation area as shown in Plan 1 to Schedule 14 as ‘BCS Growling Grass Frog Conservation Area'. | Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) | Determining referral authority |
| Schedule 15 to Clause 37.07 | An application to construct a building or carry out works (where the value of those works is in excess of $1,000,000) on land identified on Plan 1 to Schedule 15 of Clause 37.07 as ‘Industry’, ‘Retail’ or ‘Business’ | Melbourne Water Corporation | Determining referral authority |
| Clause 4.0 of Schedule 8 to Clause 37.01 | An application to construct a building or carry out works (where the value of those works is in excess of $1,000,000). | Melbourne Water Corporation | Determining referral authority |
| Schedule to Clause 45.12 (SCO8) - Victorian Desalination | All applications. | Melbourne Water Corporation | Determining referral authority |

| Clause | Kind of application | Referral authority | Referral authority type |
|---|---|---|---|
| Project – Infrastructure Protection Incorporated Document, Minister for Planning, January 2026 | | | |
| Schedule to Clause 45.12 (SCO8) - Victorian Desalination Project – Infrastructure Protection Incorporated Document, Minister for Planning, January 2026 | All applications. | Secretary to the Department of Energy, Environment and Climate Action | Determining referral authority |

## 66.05 NOTICE OF PERMIT APPLICATIONS UNDER STATE STANDARD PROVISIONS

01/07/2025
VC286

Notice of an application of the kind listed in the table below must be given to the person or body specified as a person or body to be notified.

| Clause | Kind of application | Person or body to be notified |
|---|---|---|
| Clause 35.07 | An application to use or develop land for accommodation within one kilometre from the nearest title boundary of land subject to:<br>▪ A permit for a wind energy facility; or<br>▪ An application for a permit for a wind energy facility; or<br>▪ An incorporated document approving a wind energy facility; or<br>▪ A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*. | The owners and occupiers of land subject to:<br>▪ A permit for a wind energy facility; or<br>▪ An application for a permit for a wind energy facility; or<br>▪ An incorporated document approving a wind energy facility; or<br>▪ A proposed wind energy facility for which an action has been taken under section 8(1), 8(2), 8(3) or 8(4) of the *Environment Effects Act 1978*. |
| Clause 45.08-6 | An application to use or subdivide land, or to construct a building or construct or carry out works. | The airport lessee company of Melbourne Airport in accordance with the Commonwealth *Airports Act 1996* |
| Clause 52.09-7 | An application to use or subdivide land or construct a building for accommodation, education centre or hospital:<br>▪ Within an Extractive Industry Interest Area.<br>▪ On land which is within 500 metres of land on which a work plan has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.<br>An application to construct a building or construct or carry out works on land for which a work plan has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*.<br>These requirements do not apply to:<br>▪ An application to extend a building or works.<br>▪ An application that is required to be referred to the Secretary of the Department administering the *Mineral Resources (Sustainable Development) Act 1990* under section 55 of the Act. | The Secretary of the Department administering the *Mineral Resources (Sustainable Development) Act 1990* |
| Clause 52.09-7 | An application to use or develop land for accommodation in a rural zone if the building or works associated with the accommodation is located within 500 metres from the nearest title boundary of land on which a work authority has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. | The owners and occupiers of land subject to a work authority that has been applied for or granted under the *Mineral Resources (Sustainable Development) Act 1990*. |

| Clause | Kind of application | Person or body to be notified |
|---|---|---|
| Clause 52.21 | An application to construct, use or illuminate a private tennis court under any provision of this scheme. | The owners and occupiers of adjoining and opposite properties |
| Clause 53.09 | An application to use or develop land to establish a new broiler farm, or to increase the farm capacity of an existing broiler farm, that meets the requirements of a Special Class Broiler Farm or Farm Cluster as specified in the Victorian Code for Broiler Farms 2009. | Environment Protection Authority |
| Clause 67.02-2 | An application which except for the provisions of clause 67.01, would be made to the Minister in accordance with section 96 of the Act. This does not apply to an application:<br>▪ To which the exemption from notice and review in clause 52.31-2 applies.<br>▪ To construct or put up for display a sign.<br>▪ To remove, destroy or lop native vegetation under clause 52.17.<br>▪ If a permit is only required under the Bushfire Management Overlay, Floodway Overlay, Land Subject to Inundation Overlay, Salinity Management Overlay or Special Building Overlay. | The owners and occupiers of adjoining land<br>The National Trust of Australia (Victoria), if the application relates to land on which there is a building classified by the Trust |
| Clause 67.02-2 | An application to remove, destroy or lop native vegetation under clause 52.17 which, except for the provisions of clause 67.01, would be made to the Minister in accordance with section 96 of the Act. This does not apply if the application must be referred to the Secretary under section 55 of the Act. | Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*) |

## 66.06 NOTICE OF PERMIT APPLICATIONS UNDER LOCAL PROVISIONS

28/03/2018
VC145

In addition to the notice requirements of Clause 66.05, notice of an application of the kind specified in the schedule to this clause must be given to the person or body specified in the schedule. If a local provision of the scheme specifies a notice requirement and that requirement is not included in the schedule to this clause, it is not a notice requirement under Section 52(1)(c) of the Act.

02/12/2022
C259case

# SCHEDULE TO CLAUSE 66.06 NOTICE OF PERMIT APPLICATIONS UNDER LOCAL PROVISIONS

1.0
06/05/2021
C207pt1case

## Notice of permit applications under local provisions

| Clause | Kind of application | Person or body to be notified |
|---|---|---|
| Section 1.0 of Schedule 2 to Clause 37.02 (CDZ2) | To use land within 50 metres of the Longford-Dandenong transmission pipeline shown on Plan 9 of the *Berwick Health and Education Precinct, Comprehensive Development Plan, April 2021* for:<br>▪ Accommodation<br>▪ Education centre<br>▪ Place of assembly<br>▪ Residential aged care facility<br>▪ Retail premises | Operators and Licencees of the Longford-Dandenong transmission pipeline under the *Pipelines Act 2005*. |

# 67 LAND OWNED OR PERMIT REQUIRED BY RESPONSIBLE AUTHORITIES

14/09/2021
VC211

## 67.01 EXEMPTIONS FROM SECTION 96(1) AND 96(2) OF THE ACT

24/01/2020
VC160

In accordance with section 6(2)(ka) of the Act, the following classes of use and development are exempted from section 96(1) and 96(2) of the Act:

### Class 1

Use of land for:

Car park, camping and caravan park, community facility (including child care centre, maternal and infant welfare centre, neighbourhood house, place of assembly and toilet block), dwelling, extractive industry, hospital, industry, leisure and recreation, office, residential village, retail premises or service station.

### Class 2

Development of land for:

A Class 1 use, demolition of a building or works, lighting and floodlighting of a recreation facility or building, sign or advertisement or subdivision.

### Class 3

Any other use or development.

## 67.02 NOTICE REQUIREMENTS AND EXEMPTION

14/09/2021
VC211

### 67.02-1 Application

14/09/2021
VC211

This clause applies to an application which, except for the provisions of clause 67.01, would be made to the Minister in accordance with section 96 of the Act.

### 67.02-2 Notice requirements

14/09/2021
VC211

In accordance with section 52(1)(c) of the Act, notice of an application must be given to:

- The owners and occupiers of adjoining land.
- The National Trust of Australia (Victoria), if the application relates to land on which there is a building classified by the Trust.

This does not apply to an application:

- To which the exemption from notice and review in clause 52.31-2 applies.
- To construct or put up for display a sign.
- To remove, destroy or lop native vegetation under clause 52.17.
- If a permit is only required under the Bushfire Management Overlay, Floodway Overlay, Land Subject to Inundation Overlay, Salinity Management Overlay or Special Building Overlay.

In accordance with section 52(1)(c) of the Act, notice of an application to remove, destroy or lop native vegetation under clause 52.17 must be given to the Secretary to the Department of Environment, Land, Water and Planning (as constituted under Part 2 of the *Conservation, Forests and Lands Act 1987*).

This does not apply if the application must be referred to the Secretary under section 55 of the Act.

### 67.02-3 Exemption from notice

14/09/2021
VC211

An application to construct or put up for display a sign on land managed, occupied or owned by the responsible authority is exempt from the notice requirement of section 52(1)(a) of the Act.

# 70 OPERATIONAL PROVISIONS

31/07/2018
VC148

This section sets out provisions about the operation, administration and enforcement of this planning scheme, the meaning of terms used in this planning scheme, and other matters.

# 71 OPERATION OF THIS PLANNING SCHEME

31/07/2018
VC148

# 71.01 OPERATION OF THE MUNICIPAL PLANNING STRATEGY

31/07/2018
VC148

## 71.01-1 Municipal Planning Strategy

24/01/2020
VC160

The Municipal Planning Strategy at Clause 02 provides an overview of important local planning issues in an introductory context, sets out the vision for future use and development in the municipality and establishes strategic directions about how the municipality is expected to change through the implementation of planning policy and the planning scheme.

A planning authority must take into account the Municipal Planning Strategy when it prepares an amendment to this planning scheme.

A responsible authority must take into account and give effect to the Municipal Planning Strategy when it makes a decision under this planning scheme.

## 71.01-2 Transitional

03/02/2022
VC199

If this planning scheme includes a Municipal Strategic Statement at Clause 21, the provisions of Clauses 23.01 and 23.02 apply.

# 71.02 OPERATION OF THE PLANNING POLICY FRAMEWORK

31/07/2018
VC148

## 71.02-1 Purpose of the Planning Policy Framework

31/07/2018
VC148

The Planning Policy Framework provides a context for spatial planning and decision making by planning and responsible authorities. The Planning Policy Framework is dynamic and will be built upon as planning policy is developed and refined, and changed as the needs of the community change.

The Planning Policy Framework seeks to ensure that the objectives of planning in Victoria (as set out in section 4 of the Act) are fostered through appropriate land use and development planning policies and practices that integrate relevant environmental, social and economic factors in the interests of net community benefit and sustainable development.

## 71.02-2 Operation

24/01/2020
VC160

The Planning Policy Framework sets out the planning policies that form part of this planning scheme. It comprises Clauses 10 to 19.

A planning policy applies to all land subject to this planning scheme unless the policy specifies otherwise.

A planning policy provides guidance for decision making and can help the community to understand how the responsible authority will consider a proposal.

The consistent application of planning policy over time should achieve a desired outcome.

A planning authority must take into account the Planning Policy Framework when it prepares an amendment to this planning scheme.

A responsible authority must take into account and give effect to the Planning Policy Framework when it makes a decision under this planning scheme. This does not apply to policy guidelines and policy documents.

### Policy guidelines

A planning policy may include policy guidelines. Policy guidelines indicate how objectives can be met and how strategies can be implemented.

A responsible authority must take a relevant policy guideline into account when it makes a decision under this planning scheme, but is not required to give effect to it. If the responsible authority is satisfied that an alternative approach meets the objective, the alternative may be considered.

### Policy documents

A planning policy may include reference to a policy document. A policy document may be an incorporated, background and other document.

A background document listed in the table or the schedule to Clause 72.08 that applies to Clauses 10 to 19 is a policy document for applicable planning policies.

## 71.02-3 Integrated decision making

03/02/2022
VC199

Victorians have various needs and expectations such as land for settlement, protection of the environment, economic wellbeing, various social needs, proper management of resources and infrastructure. Planning aims to meet these needs and expectations by addressing aspects of economic, environmental and social wellbeing affected by land use and development.

The Planning Policy Framework operates together with the remainder of the scheme to deliver integrated decision making. Planning and responsible authorities should endeavour to integrate the range of planning policies relevant to the issues to be determined and balance conflicting

objectives in favour of net community benefit and sustainable development for the benefit of present and future generations. However, in bushfire affected areas, planning and responsible authorities must prioritise the protection of human life over all other policy considerations.

Planning authorities should identify the potential for regional impacts in their decision making and coordinate strategic planning with their neighbours and other public bodies to achieve sustainable development and effective and efficient use of resources.

## 71.02-4 Transitional

31/07/2018
VC148

If this planning scheme includes a Municipal Strategic Statement at Clause 21 and local planning policies at Clause 22, the provisions of Clauses 23.01, 23.02 and 23.03 apply. To the extent of any inconsistency, Clauses 23.02 and 23.03 prevail over this clause.

## 71.03 OPERATION OF ZONES

31/07/2018
VC148

In each zone and schedule to a zone which contains a table of uses, the controls over the use of land are divided into three sections.

### 71.03-1 Section 1 uses

31/07/2018
VC148

A use in Section 1 does not require a permit. Any condition opposite the use must be met. If the condition is not met, the use is in Section 2 and requires a permit unless the use is specifically included in Section 3 as a use that does not meet the Section 1 condition.

### 71.03-2 Section 2 uses

31/07/2018
VC148

A use in Section 2 requires a permit. Any condition opposite the use must be met. If the condition is not met, the use is prohibited.

#### Making decisions about Section 2 uses

Because a use is in Section 2 does not imply that a permit should or will be granted. The responsible authority must decide whether the proposal will produce acceptable outcomes in terms of the Municipal Planning Strategy, the Planning Policy Framework, the purpose and decision guidelines of the zone and any of the other decision guidelines in Clause 65.

### 71.03-3 Section 3 uses

31/07/2018
VC148

A use in Section 3 is prohibited.

## 71.04 OPERATION OF OVERLAYS

31/07/2018
VC148

If an overlay is shown on the planning scheme map, the provisions of the overlay apply in addition to the provisions of the zone and any other provision of this scheme.

Because a permit can be granted does not imply that a permit should or will be granted. The responsible authority must decide whether the proposal will produce acceptable outcomes in terms of the Municipal Planning Strategy, the Planning Policy Framework, the purpose and decision guidelines of the overlay and any of the other decision guidelines in Clause 65.

## 71.05 OPERATION OF PARTICULAR PROVISIONS

31/07/2018
VC148

The requirements of particular provisions apply to the specified categories of use and development and other matters in addition to any provisions which apply due to any other provision of this planning scheme.

# 71.06 OPERATION OF VICSMART APPLICATIONS AND PROCESS

31/07/2018
VC148

## 71.06-1 VicSmart applications

16/10/2025
VC288

Any provision of this planning scheme may specify:

- Classes of application that are VicSmart applications to which clause 71.06 applies.
- Information and other requirements for each class of VicSmart application.
- Decision guidelines for each class of VicSmart application.

An application is a VicSmart application if all of the following requirements are met:

- The application is in a class or classes specified in a provision of this planning scheme.
- A permit is required only under the provisions of this planning scheme that are specified as a VicSmart application, and not under any other provision of this planning scheme.
- Nothing authorised by the grant of a permit would result in a breach of a registered restrictive covenant.
- If the application requires referral to a referral authority under clause 66, the referral requirements in clause 71.06-2 are met.

## 71.06-2 VicSmart process

16/10/2025
VC288

Despite any other provision of this planning scheme:

- A VicSmart application is exempt from the requirements of the Act and planning scheme specified in this clause.
- The responsible authority must assess a VicSmart application in accordance with the requirements of this clause.

If there is any inconsistency between the requirements of this clause and another provision of this planning scheme, this clause prevails.

### Referral requirements

If an application requires referral to a referral authority under clause 66:

- The application must have been considered by the referral authority within the past 3 months of the application being made to the responsible authority.
- The referral authority must have stated in writing that it does not object to the granting of the permit for the proposal.

### Information requirements

A VicSmart application must be accompanied by the information requirements specified for the relevant class of application. The information requirements of the relevant zone, overlay or particular provision, other than those specified for VicSmart applications, do not apply unless the information requirements for the relevant class of application specify otherwise.

If in the opinion of the responsible authority an information requirement is not relevant to the evaluation of a VicSmart application, the responsible authority may waive or reduce the information requirement.

### Exemption from notice and review

A VicSmart application is exempt from:

- The notice requirements of section 52(1)(a), (b), (c) and (d) of the Act.
- The decision requirements of section 64(1), (2) and (3) of the Act.
- The review rights of section 82(1) of the Act.

### Matters to be considered

In deciding a VicSmart application, the responsible authority:

- Must only consider:
  - The decision guidelines and requirements specified for the relevant class of application.
  - The following requirements that would otherwise be applicable to an application if it were not a VicSmart application:
    - A public open space requirement in clause 53.01 or clause 43.06-8 or a schedule to those clauses.
    - A minimum garden area requirement and a maximum building height requirement in a residential zone or a schedule to a residential zone.
- Is exempt from considering the following matters:
  - The requirements of section 60(1)(b), (c), (e) and (f) and (1A) (b) to (h) and (j) of the Act.
  - The Municipal Planning Strategy and Planning Policy Framework unless the decision guidelines for the relevant class of application specify otherwise.
  - The decision guidelines of the relevant zone, overlay or particular provision, other than those specified for VicSmart applications, unless the decision guidelines for the relevant class of application specify otherwise.
  - The decision guidelines in clause 65.
- In deciding an application for review in relation to a VicSmart application, the Tribunal is exempt from the matters specified in section 84B(2)(b) to (g) and (i) to (ja) of the Act.

### Decision guidelines

Before deciding a VicSmart application, the responsible authority must consider the decision guidelines specified for the relevant class of application unless in the opinion of the responsible authority a decision guideline is not relevant to the evaluation of the application.

Before deciding a VicSmart application to which clause 55 applies, the responsible authority must, if a standard in clause 55 is not met, consider the decision guidelines for the corresponding objective.

Before deciding a VicSmart application to which clause 54 applies, the responsible authority must, if a standard in clause 54 is not met, consider the decision guidelines for the corresponding objective.

# 72 ADMINISTRATION AND ENFORCEMENT OF THIS PLANNING SCHEME

31/07/2018
VC148

## 72.01 RESPONSIBLE AUTHORITY FOR THIS PLANNING SCHEME

17/09/2019
VC161

The responsible authority for the administration and enforcement of this planning scheme or a provision of this planning scheme is specified in this clause and the schedule to this clause.

The person nominated under section 198(1)(a) of the Act or the responsible authority under section 198(1)(b) of the Act, to whom a person may apply for a planning certificate, is specified in the schedule to this clause.

### 72.01-1 Minister is responsible authority

04/07/2025
VC258

The Minister for Planning is the responsible authority for matters under Divisions 1, 1A, 2 and 3 of Part 4 of the Act, and endorsement of, approval of or being satisfied with matters required by a permit or the scheme to be endorsed, approved or done to the satisfaction of the responsible authority, in relation to the use and development of land for a:

- Energy generation facility with an installed capacity of 1 megawatt or greater.
- Utility installation used to:
  - Transmit or distribute electricity.
  - Store electricity if the installed capacity is 1 megawatt or greater.
- Industry to manufacture hydrogen gas with a minimum production capacity of 410 kilograms of hydrogen per day, and any land use or development in conjunction with this use.
- Primary school or secondary school, or education centre that is ancillary to, carried out in conjunction with, and on the same land or contiguous land in the same ownership as, a primary school or secondary school, if any of the following apply:
  - There is no existing primary school or secondary school on the land.
  - The estimated cost of development is $3 million or greater.
- Primary school or secondary school for which an application was made to the Minister for Planning prior to the approval date of Amendment VC180.
- A use or development, other than the subdivision of land, carried out by or on behalf of the Head, Transport for Victoria or the Secretary to the Department of Transport and Planning.
- Use and development to which clause 52.20 applies.
- Development of 10 or more dwellings to which clause 53.20 applies.
- Construction or extension of an apartment development to which clause 53.20 applies.
- Construction or extension of a dwelling in or forming part of an apartment development to which clause 53.20 applies.
- Use or development to which clause 53.25 applies.

with the exception of the following:

- in relation to applications lodged, or permits issued, for the use and development of land for an energy generation facility (other than a renewable energy facility) or a utility installation (other than a utility installation used to store, transmit or distribute electricity generated by a renewable energy facility with an installed capacity of 1 megawatt or greater), under Division 1 of Part 4 of the Act prior to the approval date of Amendment VC192 , the Council is the responsible authority for matters under Divisions 1, 1A, 2 and 3 of Part 4 of the Act, and for matters required by the permit or the scheme to be endorsed, approved or done to the satisfaction of the responsible authority.

- in relation to permits for the use and development of land for a wind energy facility issued prior to 2 April 2015 under Division 1 of Part 4 of the Act, the Council is the responsible authority for matters under Divisions 1, 1A, 2 and 3 of Part 4 of the Act, and for matters required by the permit or the scheme to be endorsed, approved or done to the satisfaction of the responsible authority.
- in relation to permits for the use and development of land for a wind energy facility issued prior to 2 April 2015 under Division 6 of Part 4 of the Act, the Council is the responsible authority for matters required by the permit or the scheme to be endorsed, approved or done to the satisfaction of the responsible authority, subject to the operation of section 97H of the Act.
- in relation to applications lodged, or permits issued, for the use and development of land for a renewable energy facility (other than a wind energy facility) under Division 1 of Part 4 of the Act prior to the approval date of Amendment VC161, the Council is the responsible authority for matters under Divisions 1, 1A, 2 and 3 of Part 4 of the Act, and for matters required by the permit or the scheme to be endorsed, approved or done to the satisfaction of the responsible authority.
- in relation to applications lodged, or permits issued, for the use and development of land for a utility installation used to store, transmit or distribute electricity generated by a renewable energy facility, under Division 1 of Part 4 of the Act prior to the approval date of Amendment VC161, the Council is the responsible authority for matters under Divisions 1, 1A, 2 and 3 of Part 4 of the Act, and for matters required by the permit or the scheme to be endorsed, approved or done to the satisfaction of the responsible authority.
- in relation to an application made, or permit issued, for the use or development of land by the Head, Transport for Victoria or the Secretary to the Department of Transport and Planning, under Division 1 of Part 4 of the Act prior to the approval date of Amendment VC200, the Council is the responsible authority for matters under Divisions 1, 1A, 2 and 3 of Part 4 of the Act, and for matters required by the permit or the scheme to be endorsed, approved or done to the satisfaction of the responsible authority.
- in relation to an application made, or permit issued, under Division 1 of Part 4 of the Act for the use and development of land for a primary school, secondary school, or education centre that is ancillary to, carried out in conjunction with, and on the same land or contiguous land in the same ownership as, a primary school or secondary school:
  - prior to the approval date of Amendment VC180; and
  - where clause 53.19 immediately in force before the approval date of Amendment VC180 did not apply,

  the Council is the responsible authority for matters under Divisions 1, 1A, 2 and 3 of Part 4 of the Act, and for matters required by the permit or the scheme to be endorsed, approved or done to the satisfaction of the responsible authority.
- in relation to the use and development of land for a primary school, secondary school, or education centre that is ancillary to, carried out in conjunction with, and on the same land or contiguous land in the same ownership as, a primary school or secondary school, the Council is the responsible authority for matters required:
  - by clause 43.04 Development Plan Overlay to be done to the satisfaction of the responsible authority;
  - under Part 6 of the Act.

The Minister for Planning is the responsible authority for the following matters where clause 53.22 or 53.23 applies:

- matters under Divisions 1, 1A, 2 and 3 of Part 4 of the Act;

- matters under Division 2 of Part 9 of the Act where required under a permit in relation to the provision of the affordable housing contribution; and
- endorsement of, approval of or being satisfied with matters required by a permit or the scheme to be endorsed, approved or done to the satisfaction of the responsible authority.

11/10/2018
GC96

# SCHEDULE TO CLAUSE 72.01 RESPONSIBLE AUTHORITY FOR THIS PLANNING SCHEME

## 1.0 Responsible authority for administering and enforcing this planning scheme:

31/07/2018
VC148

The Casey City Council is the responsible authority for administering and enforcing the planning scheme, except for matters specified in Clause 72.01-1 and matters listed in this schedule.

## 2.0 Responsible authority for administering and enforcing a provision of this planning scheme:

02/12/2022
C259case

The Minister for Planning is the responsible authority for administering and enforcing:

- Clause 51.01 of the planning scheme in respect of the *Victorian Desalination Project Incorporated Document* (June 2009).
- Any other provision of the planning scheme as it applies to the use or development of land authorised by the State under an agreement between the State and the entity appointed to undertake the Victorian Desalination Project.
- Clause 51.01 of the scheme in respect of the *Melbourne Metro Rail Project: Upgrades to the Rail Network Incorporated Document* (May 2018).
- Any other provision of the scheme as it applies to the use or development of land for the Melbourne Metro Rail Project: Upgrades to the Rail Network.

## 3.0 Person or responsible authority for issuing planning certificates:

31/07/2018
VC148

Minister for Planning.

## 4.0 Responsible authority for VicSmart and other specified applications:

22/09/2023
VC243

The Chief Executive Officer of the Casey City Council is the responsible authority for considering and determining VicSmart applications to which Clause 71.06 applies, in accordance with Divisions 1, 1A, 2 and 3 of Part 4 of the Act.

The Chief Executive Officer of the Casey City Council is the responsible authority for considering and determining applications to which Clause 53.24 applies, in accordance with Divisions 1, 1A, 2 and 3 of Part 4 of the Act.

The Chief Executive Officer of the Casey City Council is the responsible authority for considering and determining any application that the notice and review exemption in Clause 52.10-2 applies to, in accordance with Divisions 1, 1A, 2 and 3 of Part 4 of the Act.

## 72.02 WHAT AREA IS COVERED BY THIS PLANNING SCHEME?

31/07/2018
VC148

This planning scheme applies to the municipal district or other area specified in the schedule to this clause.

31/07/2018
VC148

# SCHEDULE TO CLAUSE 72.02 WHAT AREA IS COVERED BY THIS PLANNING SCHEME?

## 1.0 Area covered by this planning scheme:

31/07/2018
VC148

Municipal District of the City of Casey.

## 72.03 WHAT DOES THIS PLANNING SCHEME CONSIST OF?

31/07/2018
VC148

This planning scheme consists of this document, any maps specified in the schedule to this clause, and any document incorporated in the scheme in accordance with the Act. A document is not incorporated in this scheme by reason only that it is referred to in the scheme.

This document consists of State standard provisions and local provisions. Local provisions are:

- If included in this planning scheme:
  - Clause 02 (Municipal Planning Strategy).
  - Clause 21 (Municipal Strategic Statement).
  - Clause 22 (Local Planning Policies).
- All clauses in the Planning Policy Framework that include the letter 'L' in the clause number.
- All schedules to zones, overlays, particular provisions, general provisions and operational provisions.

All other provisions are State standard provisions.

Maps specified in the schedule to this clause show how land is zoned and whether land is affected by an overlay. This information is indicated by a letter and/or number code that is explained on each map.

*Note: A clause numbered '11.01-1L' would be an example of a local provision in the Planning Policy Framework. 'C1Z' is an example of a code on a map that may be specified in the schedule to this clause. It stands for 'Commercial 1 Zone'.*

17/01/2019
GC116

# SCHEDULE TO CLAUSE 72.03 WHAT DOES THIS PLANNING SCHEME CONSIST OF?

## 1.0

13/03/2026
C296case

## Maps comprising part of this planning scheme:

- 1, 1ESO8, 1HO, 1LSIO, 1SBO, 1BMO
- 2, 2ESO7, 2DPO, 2HO, 2LSIO, 2SBO, 2SLO, 2BMO
- 3, 3ESO8, 3DPO, 3HO, 3LSIO, 3PAO, 3SBO, 3SCO, 3SLO, 3BMO
- 4, 4ESO7, 4ESO8, 4DPO, 4HO, 4LSIO, 4SBO, 4SCO, 4RXO
- 5, 5ESO7, 5ESO8, 5DCPO, 5DPO, 5HO, 5PAO, 5SBO, 5SLO, 5LSIO, 5BMO, 5RXO, 5SCO
- 6, 6ESO8, 6DPO, 6HO, 6LSIO, 6SBO, 6SCO, 6SLO, 6BMO
- 7, 7ESO7, 7ESO8, 7DCPO, 7DDO, 7DPO, 7HO, 7LSIO, 7PAO, 7SBO, 7SCO
- 8, 8ESO7, 8ESO8, 8DCPO, 8DDO, 8DPO, 8EAO, 8HO, 8LSIO, 8PAO, 8SBO, 8SCO
- 9, 9ESO7, 9ESO8, 9DPO, 9HO, 9ICO, 9LSIO, 9PAO, 9SBO, 9SLO, 9VPO, 9BMO, 9PO, 9SCO
- 10, 10ESO7, 10DCPO, 10DPO, 10HO, 10LSIO, 10PAO, 10SBO, 10SCO
- 11, 11ESO7, 11ESO8, 11DCPO, 11DPO, 11EAO, 11HO, 11ICO, 11LSIO, 11PAO, 11PO, 11SBO, 11SCO
- 12, 12ESO7, 12ESO8, 12DCPO, 12EAO, 12HO, 12ICO, 12LSIO, 12PAO, 12SCO
- 13, 13DCPO, 13EAO, 13ESO, 13ESO7, 13HO, 13ICO, 13IPO, 13LSIO, 13PAO, 13SCO
- 14, 14DCPO, 14DPO, 14EAO, 14ESO, 14ESO7, 14ESO8, 14HO, 14LSIO, 14PAO, 14SBO, 14SCO, 14VPO, 14BMO
- 15, 15DCPO, 15DPO, 15EAO, 15ESO, 15ESO7, 15ESO8, 15HO, 15LSIO, 15PAO, 15PO, 15SBO, 15BMO, 15SCO
- 16, 16ESO8, 16DCPO, 16EAO, 16HO, 16ICO, 16LSIO, 16PAO
- 17, 17ESO, 17ESO7, 17LSIO, 17PAO, 17BMO
- 18, 18ESO, 18ESO7, 18ESO8, 18HO, 18LSIO, 18PAO, 18SLO, 18BMO
- 19, 19ESO, 19ESO8, 19HO, 19LSIO, 19SLO, 19PAO, 19BMO
- 20, 20ESO, 20ESO8, 20HO, 20LSIO, 20PAO, 20SBO, 20SLO, 20BMO
- 21, 21ESO, 21HO, 21LSIO, 21PAO, 21SLO, 21BMO
- 22, 22ESO, 22ESO8, 22HO, 22LSIO, 22PAO, 22SLO, 22BMO

## 72.04 INCORPORATED DOCUMENTS

18/12/2025
VC277

The documents listed in the table and the schedule to this clause are incorporated documents under section 6(2)(j) of the *Planning and Environment Act 1987*.

An incorporated document forms part of this planning scheme.

If a document is not listed in the table or the schedule, it is not an incorporated document.

A document is not incorporated in this planning scheme by reason only that it is referred to in the scheme.

*Note: Clause 72.08 contains a list of background documents relevant to this planning scheme. A background document does not form part of the planning scheme.*

### Table to Clause 72.04

| Name of document | Introduced by: |
|---|---|
| *A 'Good Neighbour' Code of Practice for a Circus or Carnival* (Department of Infrastructure, October 1997) | NPS1 |
| *Apiary Code of Practice* (Department of Planning and Community Development, May 2011) | VC81 |
| *Australian Standard AS/NZS 2890.1:2004, Parking Facilities - Off-street Car Parking* (Standards Australia, 2004) | VC26 |
| *Australian Standard AS2890.3:2015, Parking Facilities Part 3: Bicycle Parking* (Standards Australia, 2015) | VC237 |
| *Building in Bushfire-Prone Areas* (Publication SAA HB36-1993, CSIRO & Standards Australia, May 1993) | NPS1 |
| *Car Parking Requirement Maps* (Department of Transport and Planning, December 2025) | VC277 |
| *Code of Practice for Bushfire Management on Public Land* (Department of Sustainability and Environment, June 2012) | VC101 |
| *Code of Practice for Timber Production 2014 (as amended 2022)* (Department of Environment, Land, Water and Planning, 2022) | VC229 |
| *Design Vehicles and Turning Path Templates* (Publication AP-34/95, Austroads, 1995) | VC12 |
| *Guide to Residential Streets and Paths* (Publication C&CCA T51-2004, Cement and Concrete Association of Australia, 2004) | VC26 |
| *Guide to Road Design, Part 6A: Pedestrian and Cycle Paths* (Austroads, 2021) | VC77 |
| *Guidelines for the Removal, Destruction or Lopping of Native Vegetation* (Department of Energy, Environment and Climate Action, 2025) | VC291 |
| *Industrial and Commercial Land Classifications* (Department of Transport and Planning, July 2025) | VC283 |
| *North Growth Corridor Plan* (Victorian Planning Authority, August 2012) | VC283 |
| *Local Government Planning Guide for Dry Land Salinity*(Department Conservation and Natural Resources, October 1995) | NPS1 |
| *Pavement Design - A Guide to the Structural Design of Road Pavements* (Austroads, 1992) | VC12 |
| *Planning Requirements for Racing Dog Keeping and Training* (Department of Environment, Land, Water and Planning, August 2017) | VC139 |
| *Principal Public Transport Network 2017* (Victorian Government, 2017) | VC132 |
| *Principal Public Transport Network Area Maps* (Victorian Government, August 2018) | VC151 |

| Name of document | Introduced by: |
|---|---|
| *Private Tennis Court Development Code of Practice* (Revision 1, Department of Infrastructure, March 1999) | VC5 |
| *South East Growth Corridor Plan* (Victorian Planning Authority, August 2012) | VC283 |
| *Sunbury Growth Corridor Plan* (Victorian Planning Authority, June 2012) | VC283 |
| *Victorian Code for Broiler Farms 2009 - Plus 2018 amendments* (Department of Primary Industries, 1999) | VC60 |
| *Victorian Code for Cattle Feedlots* (Department of Agriculture, Energy and Minerals, August 1995) | NPS1 |
| *Victorian Low Density Mobile Outdoor Poultry Farm Planning Permit Guidelines* (Department of Economic Development, Jobs, Transport and Resources, June 2018) | VC150 |
| *Victorian Low Density Mobile Outdoor Pig Farm Planning Permit Guidelines* (Department of Economic Development, Jobs, Transport and Resources, June 2018) | VC150 |
| *West Growth Corridor Plan* (Victorian Planning Authority, August 2012) | VC283 |

15/01/2024
VC249

# SCHEDULE TO CLAUSE 72.04 INCORPORATED DOCUMENTS

## 1.0 Incorporated documents

22/07/2026
C302case

| Name of document | Introduced by: |
|---|---|
| '2-106 Soldiers Road, Berwick' Incorporated Document, March 2019 | GC120 |
| Abbotts Road Level Crossing Removal Project, Incorporated Document, November 2017 (amended December 2017) | GC87 |
| *Advertising Signs, 950 Ballarto Road, Botanic Ridge* (City of Casey, May 2014) | C115 |
| Berwick Health and Education Precinct Comprehensive Development Plan, April 2021 | C207pt1case |
| *Berwick Waterways Development Contributions Plan* (Metropolitan Planning Authority, December 2023) | VC249 |
| Berwick Waterways Precinct Structure Plan, October 2014 (Amended December 2014) | C182 |
| *Botanic Ridge Development Contributions Plan* (Victorian Planning Authority, December 2023) | VC249 |
| Botanic Ridge Native Vegetation Precinct Plan, December 2012 | C133 |
| Botanic Ridge Precinct Structure Plan, December 2012 (amended May 2017) | C227 |
| Brechin Gardens Incorporated Plan, April 2019 | C224case |
| *Brompton Lodge Development Contributions Plan* (Metropolitan Planning Authority, December 2023) | VC249 |
| Brompton Lodge Native Vegetation Precinct Plan, August 2016 | C190 |
| Brompton Lodge Precinct Structure Plan, August 2016 | C190 |
| Cardinia Creek South Infrastructure Contributions Plan, March 2019 | C261case |
| Cardinia Creek South Precinct Structure Plan, March 2018 | C221Pt1 |
| Casey Central Town Centre Precinct Structure Plan, May 2016 | C189 |
| Casey Cultural Precinct Incorporated Document, August 2014 | C201 |
| Casey Fields South Residential Precinct Structure Plan, October 2015 | C208 |
| Caulfield Dandenong Rail Upgrade Project, Incorporated Document, April 2016 | GC37 |
| Clyde Creek Precinct Structure Plan, October 2015 | C208 |
| *Clyde Development Contributions Plan* (Metropolitan Planning Authority, December 2023) | VC249 |
| Clyde North Precinct Structure Plan (including the Clyde North Native Vegetation Precinct Plan) September 2011 | C153 |
| *Clyde North Precinct Structure Plan Development Contributions Plan* (Growth Areas Authority, December 2023) | VC249 |
| Clyde Road, Berwick Level Crossing Removal Project Incorporated Document, February 2020 | C270case |
| *Collison Estate Development Contributions Plan* (Urban Enterprise, February 2025) | C286case |
| Cranbourne East Precinct Structure Plan (including the Cranbourne East Native Vegetation Precinct Plan) May 2010 | C119 |
| *Cranbourne East Precinct Structure Plan Development Contributions Plan* (Growth Areas Authority, December 2023) | VC249 |

| Name of document | Introduced by: |
|---|---|
| Cranbourne Line Upgrade Incorporated Document, February 2020 | GC143 |
| *Cranbourne North Precinct Structure Plan Development Contributions Plan* (Growth Areas Authority, December 2023) | VC249 |
| Cranbourne North Stage 2 Precinct Structure Plan (including the Cranbourne North Stage 2 Native Vegetation Precinct Plan), June 2011 | C125 |
| Cranbourne Racing Complex and Surrounds Investment and Development Plan, City of Casey, January 2015 | C166 |
| *Cranbourne West Development Contributions Plan* (City of Casey, December 2023) | VC249 |
| Cranbourne West Precinct Structure Plan, City of Casey, May 2012 | C159 |
| Croskell (Employment) Infrastructure Contributions Plan (Victorian Planning Authority, October 2025) | c296case |
| Croskell (Employment) Native Vegetation Precinct Plan (Victorian Planning Authority, October 2025) | c296case |
| Croskell (Employment) Precinct Structure Plan (Victorian Planning Authority, October 2025) | c296case |
| *Development Contribution Plan for Local Structure Plan 3 - Cranbourne East* (City of Casey, June 2026) | C302case |
| Evans Road, Lyndhurst Level Crossing Removal Project Incorporated Document, June 2019 | C267case |
| *Fountain Gate - Narre Warren CBD Development Contributions Plan* (SGS Economics and Planning, December 2023) | VC249 |
| *Fountain Gate - Narre Warren CBD Incorporated Plan* (May 2013) | C179 |
| Hall Road (McCormicks Road to Cranbourne-Frankston Road) Upgrade Project Incorporated Document, August 2021 | GC181 |
| Hallam North Road (Heatherton Road to James Cook Drive) Upgrade Project Incorporated Document, February 2019 | C260case |
| *Lyndhurst Development Contributions Plan* (City of Casey, June 2026) | C302case |
| Lyndhurst Neighbourhood Activity Centre Comprehensive Development Plan, City of Casey, October 2009 | C102 |
| Melbourne Metro Rail Project: Upgrades to the Rail Network Incorporated Document, May 2018 | GC96 |
| Minta Farm Infrastructure Contributions Plan, April 2021 | C269case |
| Minta Farm Precinct Structure Plan, October 2018 (Amended April 2021) | C282case |
| Monash Freeway Upgrade Project Incorporated Document, March 2016 | GC47 |
| Monash Freeway Upgrade Project (Stage 2) Incorporated Document, August 2018 | GC103 |
| Narre Warren - Cranbourne Road (Thompsons Road to South Gippsland Highway) Upgrade Project Incorporated Document, June 2023 | C293case |
| Rosemaur, 193-209 King Road, Harkaway, Incorporated Document, May 2022 | C273case |
| *Small Lot Housing Code* (Victorian Planning Authority, November 2019) | GC150 |
| *Small Lot Housing Code* (Victorian Planning Authority, November 2024) | GC206 |
| South Gippsland Highway, Dandenong South Level Crossing Removal Project Incorporated Document, September 2019 | GC136 |

| Name of document | Introduced by: |
|---|---|
| Statement of Significance: 'Clover Cottage and Garden', 54-60 Manuka Road, Berwick, February 2021 | C231case |
| Statement of Significance: Cranbourne War Memorial (Casey City Council, August 2020) | C275case |
| Statement of Significance: 'Eyrecourt', 221S Grices Road, Clyde North, November 2020 | C230case |
| Statement of Significance: 'Glenlea', 32-42 Baker Road, Harkaway, November 2020 | C230case |
| Statement of Significance: Graham Family Home (Casey City Council, August 2020) | C275case |
| Statement of Significance: 'Hillsley', 90-104 Robinson Road, Narre Warren North, November 2020 | C230case |
| Statement of Significance: Maratala (Casey City Council, August 2020) | C275case |
| Statement of Significance: McMorran's Oak Tree (Casey City Council, August 2020) | C275case |
| Statement of Significance: 'Minard', 62-70 Manuka Road, Berwick, March 2019 | C231case |
| Statement of Significance: Motor Club Hotel (Casey City Council, August 2020) | C275case |
| Statement of Significance: Springmont, 1450 Thompsons Road, Cranbourne East, (Victorian Planning Authority, October 2025) | c296case |
| Statement of Significance: St Agatha's Catholic Church (former) (Casey City Council, August 2020) | C275case |
| Statement of Significance: St John's Church of England Vicarage (former) (Casey City Council, August 2020) | C275case |
| Statement of Significance: St John the Evangelist Church of England Complex (Casey City Council, August 2020) | C275case |
| Statement of Significance: The Cranbourne Shire Offices, Public Hall, Court House and Post Office Complex (former) (Casey City Council, August 2020) | C275case |
| Statement of Significance: 'Quilly Park', Part 55 Craigs Lane, Pearcedale, November 2020 | C230case |
| Statement of Significance: World War Two Memorial Planting and Plaque (Casey City Council, August 2020) | C275case |
| Statement of Significance: 'Farmhouse' 280S Hardy's Road, Clyde North (Casey City Council, August 2023) | C291case |
| Statement of Significance: 'Glenara' 10 Viridian Boulevard, Clyde (Casey City Council, November 2025) | C291case |
| Thompsons Road Precinct Structure Plan, October 2015 | C208 |
| Treeby Cottage Incorporated Plan, August 2019 | C192case |
| Tulliallan Incorporated Plan, June 2015 | C215 |
| Victorian Desalination Project Incorporated Document, June 2009 | C140 |
| *Victorian Desalination Project – Infrastructure Protection* (Minister for Planning, January 2026) | GC148 |
| Western Port Highway Upgrade Project Incorporated Document, August 2021 | GC182 |

## 72.05 WHEN DID THIS PLANNING SCHEME BEGIN?

31/07/2018
VC148

This planning scheme began on the date specified in the schedule to this clause.

31/07/2018
VC148

# SCHEDULE TO CLAUSE 72.05 WHEN DID THIS PLANNING SCHEME BEGIN?

## 1.0 Date this planning scheme began:

31/07/2018
VC148

26 August 1999

## 72.06 EFFECT OF THIS PLANNING SCHEME

31/07/2018
VC148

Land may be used or developed only in accordance with this planning scheme.

Land must not be developed unless the land as developed can be used in accordance with this planning scheme.

If this planning scheme allows a particular use of land, it may be developed for that use provided all requirements of the scheme are met.

## 72.07 DETERMINATION OF BOUNDARIES

31/07/2018
VC148

If a boundary in this planning scheme is not precisely shown on a planning scheme map or is not otherwise defined, the certificate issuing authority must determine the boundary if asked to do so and must notify the applicant within 60 days.

## 72.08 BACKGROUND DOCUMENTS

02/09/2025
VC283

The documents listed in the table and the schedule to this clause are background documents.

A background document may:

- Have informed the preparation of, or an amendment to, this planning scheme.
- Provide information to explain the context within which a provision has been framed.
- Assist the understanding of this planning scheme.

A background document does not form part of this planning scheme.

**Table to Clause 72.08**

| Name of background document | Amendment number - clause reference |
|---|---|
| *Central Highlands Regional Growth Plan* (Victorian Government, 2014) | VC106<br>Clauses 10 to 19 |
| *G21 Regional Growth Plan* (Geelong Region Alliance, 2013) | VC106<br>Clauses 10 to 19 |
| *Gippsland Regional Growth Plan* (Victorian Government, 2014) | VC106<br>Clauses 10 to 19 |
| *Great South Coast Regional Growth Plan* (Victorian Government, 2014) | VC106<br>Clauses 10 to 19 |
| *Hume Regional Growth Plan* (Victorian Government, 2014) | VC106<br>Clauses 10 to 19 |
| *Loddon Mallee North Regional Growth Plan* (Victorian Government, 2014) | VC106<br>Clauses 10 to 19 |
| *Loddon Mallee South Regional Growth Plan* (Victorian Government, 2014) | VC106<br>Clauses 10 to 19 |
| *Plan for Victoria* (Department of Transport and Planning, February 2025) | VC283<br>Clauses 10 to 19 |
| *Wimmera Southern Mallee Regional Growth Plan* (Victorian Government, 2014) | VC106<br>Clauses 10 to 19 |

31/07/2018
VC148

# SCHEDULE TO CLAUSE 72.08 BACKGROUND DOCUMENTS

1.0
19/06/2025
C284case

## Background documents

| Name of background document | Amendment number - clause reference |
|---|---|
| *Arboricultural Assessments: Clyde North, C21 Business Park and Cranbourne North (Stage 2) Precincts* (Treelogic Pty Ltd, 2008) | C153 - 37.07s3 |
| *Australian Standard - Protection of Trees on Development Sites AS 4970* (2009) | C148 - 42.01s7, 42.01s8 |
| *Australian Standard – Pruning of Amenity Trees, AS 4373* (2007) | C148 - 42.01s7, 42.01s8 |
| *Berwick Health and Education Precinct Environmental Site Assessment (*Ricardo, 2020) | C207pt1case - 37.08s2 |
| *Berwick Township Significant Landscape Strategy* (City of Casey, 2008) | C112 - 42.03s4 |
| *Berwick Village Commercial Centre Parking Precinct Plan* (City of Casey, 2009) | C083 - 45.09s1 |
| *Biodiversity Strategy* (City of Casey, 2017) | C284case - 02.03, 02.04, 12.01-1L |
| *Cardinia Parklands Strategy Plan* (City of Casey, 2014) | C013 - 42.02s2 |
| *Casey Central Phase 1 Environmental Site Assessment* (GHD, 2006) | C189 - 37.07s10 |
| *Casey Complex Urban Design Framework* (City of Casey, 2019) | C275 - 02.03, 02.04, 37.08s1 |
| *Casey Heritage Study (Post European Contact)* (City of Casey, in association with Context Pty Ltd, 2004) | C250 - 02.03, 15.03-1L, 43.01 |
| *Casey Image Strategy* (City of Casey, 2005) | C250 - 02.03 |
| *Casey Significant Tree Strategy (incorporating the Significant Tree Register)* (City of Casey) | C148 - 42.01s7, 42.01s8 |
| *Casey Standard Drawings* (City of Casey, 2012) | C265 - 43.04s15, 43.04s16, 43.04s17 |
| *City of Berwick Heritage Conservation Study* (City of Berwick, in association with Context Pty Ltd, 1993) | NFPS - 43.01 |
| *City of Casey Activity Centres Strategy* (City of Casey 2020) | C258 - 02.03, 02.04, 11.03-1L, 15.01-1L-01, 17.02-2L |
| *City of Casey Arterial Roads Tree Strategy* (City of Casey, 2003) | 43.04s15, 43.04s16, 43.04s17, 43.04s18 |
| *City of Casey Conservation Strategy* (City of Casey, in association with Environment Link Pty Ltd, 2002) | C250 02.03 |
| *City of Casey Council Plan 2021-25* (City of Casey, 2021) | C284case - 02.02 |
| *City of Casey (Cranbourne, Knox) Heritage Study* (Graeme Butler & Associates, 1998) | C265 - 43.01 |

| Name of background document | Amendment number - clause reference |
|---|---|
| *City of Casey Economic Development Strategy 2021-25* (City of Casey, 2021) | C284case - 02.03, 17.01-1L |
| *City of Casey Greenhouse Strategy – Local Action Plan* (City of Casey, 2002) | C250 - 02.03 |
| *City of Casey Health and Wellbeing Strategy 2021-25* (City of Casey, 2021) | C284case 02.03, 15.01-4L |
| *City of Casey Integrated Water Management Plan* (City of Casey and Melbourne Water, 2015) | C284case - 02.03, 15.01-2L-03, 19.03-3L, 43.04 |
| *City of Casey Landscape Policy* (City of Casey, 2010) | C284case - 02.03, 13.04-2L, 13.07-1L-01, 15.01-1L-03, 15.01-2L-01, 15.01-2L-02, 15.01-3L, 19.02-6L-01 |
| *City of Casey Long-Term Community Vision 2031* (City of Casey, 2021) | C284case - 02.02, 02.03 |
| *Cranbourne Major Activity Centre Structure Plan* (City of Casey, 2020) | C275 - 02.03, 02.04, 17.04-1L, 18.02-3L, 37.08s1, 45.09s2 |
| *Cranbourne Town Centre Heritage Overlays Review* (Plan Heritage, 2020) | C275 - 43.01 |
| *Cranbourne Town Centre Movement and Access Strategy* (GTA Consultants, 2017) | C275 - 45.09s2 |
| *Electronic Gaming Machines Strategy 2015-2020* (City of Casey, 2019) | C284case - 02.03, 52.28 |
| *Engineering Design and Construction Manual for Subdivision in Growth Areas* (Victorian Planning Authority, 2019) | C284case - 43.04s20, 43.04s21, 43.04s22 |
| *Engineering Design and Construction Manual Standard Drawing Index* (Victorian Planning Authority, 2015) | C284case - 43.04s20, 43.04s21, 43.04s22 |
| *Equestrian Strategy* (City of Casey, 2011) | C284case - 02.03, 19.02-6L-03 |
| *Fountain Gate-Narre Warren CBD Structure Plan* (City of Casey, 2018) | C224 - 02.03, 37.08s2 |
| *Geotechnical and Preliminary Environmental Contamination Assessment: Precinct Structure Plan No. 09 Berwick Waterways (*Aecom*,* 2011) | C188 - 37.07s9 |
| *Heritage Handbook : Practical Guidelines For Owners of Historic Buildings* (City of Casey, 2022) | C284case - 15.03-1L |
| *Heritage of the City of Casey – Historic Sites in the former Cranbourne Shire* (City of Casey, in association with Graeme Butler & Associates, 1996) | NFPS - 43.01 |
| *Housing Strategy* (City of Casey, 2019) | C198 - 02.03, 02.04, 16.01-1L |

| Name of background document | Amendment number - clause reference |
|---|---|
| *Implementing the Sustainable Design Assessment in the Planning Process Framework* (Organica Engineering, 2019) | C284case - 02.03, 15.01-2L-03 |
| *On-Site Stormwater Detention Policy* (City of Casey, 2018) | C284case - 02.03, 19.03-3L |
| *Open Space Strategy* (City of Casey, 2015) | C284case - 02.03, 19.02-6L-01, 19.02-6L-02 |
| *Phase 1 Environmental Site Assessment and Geotechnical Desktop Investigation, Brompton Lodge Precinct Structure Plan* (Coffey, April 2015) | C190 - 37.07s11 |
| *Port Phillip and Western Port Regional Catchment Strategy 2021-2027* (Port Phillip and Westernport Catchment Management Authority, 2021). | C250 - 02.03 |
| *Preliminary Environmental Contamination Assessment – 1345 – 1425 Ballarto Road and 365 – 385 Clyde-Five Ways Road, Clyde* (Beveridge Williams, 2012) | C186 - 37.07s8 |
| *Preliminary environmental contamination assessment - Clyde Creek & Thompsons Road, Clyde (PSP 53 & PSP 54)* (Beveridge Williams, 2013) | C185 - 37.07s6, 37.07s7 |
| *Register of Significant Trees in Victoria (*National Trust of Australia (Victoria)) | C148 - 42.018s |
| *Sites of Botanical Significance in the Western Port Region* (A.M. Opie et al, Department of Conservation Forests and Lands, 1984) | NFPS - 42.01s1, 42.01s2, 42.01s3, 42.01s5, 42.03s2 |
| *Sites of Geological and Geomorphological Significance in the Western Port Region* (N.J. Rosengren et al, Department of Conservation Forests and Lands, 1984) | NFPS - 42.01s1, 42.01s2, 42.01s3, 42.01s5, 42.03s2 |
| *Sites of Zoological Significance in the Western Port Region* (D.L. Andrew et al, Department of Conservation Forests and Lands, 1984) | NFPS - 42.01s1, 42.01s2, 42.01s3, 42.01s5, 42.03s2 |
| *Stage 1 and 2 – Desktop Environmental, Hydrogeological and Geotechnical Assessment* (SKM, 2011) | C228 - 37.07s14 |
| *Streets Ahead Integrated Transport Strategy* (City of Casey, 2017) | C284case - 02.03, 18.02-2L |
| *The Fauna and Flora Values of the City of Casey South of Ballarto Road* (Biosis Research Pty Ltd, 1997) | NFPS - 42.01s4 |
| *Urban Stormwater Best Practice Environmental Management Guidelines* (CSIRO, 1999) | VC37 - 42.03, 43.04 |
| *Walk and Ride in Casey 2019-2041* (City of Casey, 2019) | C284case - 02.03, 18.02-2L, 19.02-6L-03 |
| *Water Sensitive Urban Design Guidelines – South Eastern Councils* (Melbourne Water, 2013) | C284case - 15.01-2L-03, 19.03-3L |
| *Westernport Bay Strategy* (Westernport Regional Planning and Co-ordination Committee, 1992) | NFPS - 42.03s2 |

| Name of background document | Amendment number - clause reference |
|---|---|
| *Western Port Green Wedge Management Plan* (City of Casey, 2019) | C284case - 02.03, 11.01-1L-02 |

## 73 MEANING OF TERMS

11/04/2019
VC156

A term used in this planning scheme has its ordinary meaning unless that term is defined:

- In this planning scheme; or
- In the *Planning and Environment Act 1987* or the *Interpretation of Legislation Act 1984*, in which case the term has the meaning given to it in those Acts unless it is defined differently in this scheme.

## 73.01 GENERAL TERMS

05/05/2026
VC248

The following table lists general terms which may be used in this planning scheme. A term listed in the first column, under the heading "General term", has the meaning set out beside that term in the second column, under the heading "Definition".

| General term | Definition |
|---|---|
| **Act** | The *Planning and Environment Act 1987*. |
| **Agricultural production** | Any form of primary production of renewable commodities. It does not include extractive industry, Mineral extraction, or timber production from native forest. |
| **Anemometer** | A wind measuring device. |
| **Apartment** | A dwelling located above the ceiling level or below the floor level of another dwelling and is part of a building containing two or more dwellings. |
| **Approval date** | The date this scheme began, or the date of notice in the Victoria Government Gazette of approval of an amendment to this scheme. |
| **Basement** | A storey below ground level, or that projects no more than 1.2 metres above ground level. |
| **Building height** | The vertical distance from natural ground level to the roof or parapet at any point. |
| **Building Regulations** | The *Building Regulations 1994*. |
| **Bushfire** | An unplanned fire in vegetation. This includes fire in grasslands. |
| **Bushfire prone area** | An area that is designated bushfire prone as determined under section 192A of the *Building Act 1993*. |
| **Bushfire prone area map** | The map prepared under section 192A of the *Building Act 1993* describing all areas that are designated from time to time as bushfire prone areas by any determination, under that section. |
| **Carriageway** | The area of a street reserve which is provided for the movement or parking of vehicles. It is determined by the invert of a kerb and channel and the point adjacent to the pavement edge for kerb (only) and edge strips. |
| **Central Highlands region** | The area covered by the Ararat, Ballarat, Golden Plains, Hepburn, Moorabool and Pyrenees planning schemes. |
| **Clear to the sky** | An unroofed area or area roofed with material that transmits 90 per cent of light. |
| **Defendable space** | An area of land around a building where vegetation is modified and managed to reduce the effects of flame contact and radiant heat associated with bushfire. |
| **Deflection angle** | The angle between two tangent sections of a carriageway. |
| **Design speed** | The speed fixed for the design and correlation of the geometric features of a carriageway that influence vehicle operation. It is the speed which is not exceeded by 85 per cent of vehicles. |

| General term | Definition |
|---|---|
| **Domestic services normal to a dwelling or small second dwelling** | A domestic appliance or apparatus that is normal to and services a dwelling or small second dwelling. It includes disabled access ramps and handrails, an air conditioner, cooling or heating system, a hot water service, security systems and cameras, shade sails, a barbeque, downpipes and flues, a skylight, security screens, and the like. |
| **Earthworks** | Land forming, laser grading, levee banks, raised access roads and tracks, building pads, storage embankments, channel banks and drain banks and associated structures. |
| **Employment and innovation areas** | Dandenong, Fishermans Bend, La Trobe, Monash, Parkville, Sunshine and Werribee. |
| **Frontage** | The road alignment at the front of a lot. If a lot abuts two or more roads, the one to which the building, or proposed building, faces. |
| **Gaming** | The playing of a gaming machine. |
| **Gaming machine** | Has the same meaning as it has in the *Gambling Regulation Act 2003.* |
| **Garden area** | Any area on a lot with a minimum dimension of 1 metre that does not include:<br>a) a dwelling, small second dwelling or residential building, except for:<br>▪ an eave, fascia or gutter that does not exceed a total width of 600mm;<br>▪ a pergola;<br>▪ unroofed terraces, patios, decks, steps or landings less than 800mm in height;<br>▪ a basement that does not project above ground level;<br>▪ any outbuilding that does not exceed a gross floor area of 10 square metres; and<br>▪ domestic services normal to a dwelling, small second dwelling or residential building;<br>b) a driveway; or<br>c) an area set aside for car parking. |
| **Geelong G21 region** | The area covered by the Colac Otway, Golden Plains, Greater Geelong, Queenscliffe and Surf Coast planning schemes. |
| **Gippsland region** | The area covered by the Bass Coast, Baw Baw, East Gippsland, Latrobe, South Gippsland and Wellington planning schemes. |
| **Great South Coast region** | The area covered by the Corangamite, Glenelg, Moyne, Southern Grampians and Warrnambool planning schemes |
| **Gross floor area** | The total floor area of a building, measured from the outside of external walls or the centre of party walls, and includes all roofed areas. |
| **Ground level** | The natural level of a site at any point. |
| **Habitable room** | Any room of a dwelling, small second dwelling or residential building other than a bathroom, laundry, toilet, pantry, walk-in wardrobe, corridor, stair, lobby, photographic darkroom, clothes drying room and other space of a specialised nature occupied neither frequently nor for extended periods. |

| General term | Definition |
|---|---|
| **High quality productive agricultural land** | Land which is used for animal husbandry or crop raising, and is capable of continuing to sustain agricultural production, and:<br>a) is of prime, or very good, agricultural quality, having regard to soil type, growing season, and availability of infrastructure, and is of sufficient extent to support agricultural activities on an economically viable scale; or<br>b) has been identified through a regional, sub-regional, or local study as being of particularly good quality and strategic significance for agriculture in the regional or local context. |
| **Hume region** | The area covered by the Alpine, Benalla, Greater Shepparton, Indigo, Mansfield, Mitchell, Moira, Murrindindi, Strathbogie, Towong, Wangaratta and Wodonga planning schemes. |
| **Land capability assessment** | The assessment of the physical ability of the land to sustain specific uses having regard to its management, and without long term on-site detriment to the environment. |
| **Leasable floor area** | That part of the net floor area able to be leased. It does not include public or common tenancy areas, such as malls, verandahs, or public conveniences. |
| **Loddon Mallee North region** | The area covered by the Buloke, Campaspe, Gannawarra, Mildura and Swan Hill planning schemes. |
| **Loddon Mallee South region** | The area covered by the Central Goldfields, Greater Bendigo, Loddon, Macedon Ranges and Mount Alexander planning schemes. |
| **Lot** | A part (consisting of one or more pieces) of any land (except a road, a reserve, or common property) shown on a plan, which can be disposed of separately and includes a unit or accessory unit on a registered plan of strata subdivision and a lot or accessory lot on a registered cluster plan. |
| **Mean building height** | The vertical distance between the mean ground level and the finished roof height at its highest point. |
| **Mean ground level** | One half the sum of the highest and lowest levels along ground level of the outer surface of all external building walls. |
| **Metropolitan activity centres** | Box Hill (Suburban Rail Loop East Precinct), Broadmeadows, Cloverton (future), Cobblebank (future), Dandenong, Epping, Footscray, Fountain Gate-Narre Warren, Frankston, Ringwood and Sunshine. |
| **Metropolitan Melbourne** | The area covered by the Banyule, Bayside, Boroondara, Brimbank, Cardinia, Casey, Darebin, Frankston, Glen Eira, Greater Dandenong, Hobsons Bay, Hume, Kingston, Knox, Manningham, Maribyrnong, Maroondah, Melbourne, Melton, Merri-bek, Monash, Moonee Valley, Mornington Peninsula, Nillumbik, Port of Melbourne, Port Phillip, Stonnington, Whitehorse, Whittlesea, Wyndham, Yarra and Yarra Ranges Planning Schemes and the area within the urban growth boundary in the Mitchell Planning Scheme. |
| **Mineral** | Any substance which occurs naturally as part of the earth's crust, including:<br>a) oil shale and coal; and<br>b) hydrocarbons and mineral oils contained in oil shale or coal, or extracted from oil shale or coal by chemical or industrial processes.<br>It does not include water, stone, or petroleum. |

| General term | Definition |
|---|---|
| **Minister for Planning** | A Minister for the time being administering the Act. |
| **Movable building** | A structure, other than a tent, caravan, or vehicle, which is designed to be moved from place to place on more than one occasion. |
| **Native vegetation** | Plants that are indigenous to Victoria, including trees, shrubs, herbs, and grasses. |
| **Net floor area** | The total floor area of all floors of all buildings on a site. It includes half the width of any party wall and the full width of all other walls. It does not include the area of stairs, loading bays, accessways, or car parking areas, or any area occupied by machinery required for air conditioning, heating, power supply, or lifts. |
| **Plot ratio** | The gross floor area of all buildings on a site, divided by the area of the site. |
| **Potentially contaminated land** | Land:<br>a) used or known to have been used for industry or mining;<br>b) used or known to have been used for the storage of chemicals, gas, waste or liquid fuel (other than minor above-ground storage that is ancillary to another use of the land); or<br>c) where a known past or present activity or event (occurring on or off the land) may have cause contamination of the land. |
| **Priority precincts** | Arden, Docklands, East Werribee, Fishermans Bend, Footscray, La Trobe, Parkville, Richmond to Flinders, and Sunshine, and the SRL East Precincts at Box Hill, Burwood, Clayton, Cheltenham, Glen Waverley and Monash. |
| **Private open space** | An outdoor area of a dwelling, small second dwelling or residential building or land for the exclusive use of the occupants. |
| **Property vegetation plan** | A plan which relates to the management of native vegetation within a property, and which is contained within an agreement made pursuant to section 69 of the *Conservation, Forests and Lands Act 1987*. |
| **Public land manager** | The Minister, government department, public authority or municipal council having responsibility for the care or management of public land. In relation to Crown land reserved under an Act and managed or controlled by a committee of management, other than Parks Victoria, the Great Ocean Road Coast and Parks Authority or a municipal council, it means the Minister administering that Act and does not include the committee of management. |
| **Radio mast** | A mast, for radio transmission or reception in a dwelling or small second dwelling, that is:<br>a) with antenna, more than 14 metres above the ground;<br>b) if attached to a building, with antenna, more than 5 metres above the roof line;<br>c) including antenna, wider than 6 metres; or<br>d) excluding antenna, wider than 50 centimetres at any point exceeding 3 metres above the ground. |
| **Retail** | The sale of goods or materials, in any quantity or manner, other than by wholesale. |

| General term | Definition |
|---|---|
| **Secluded private open space** | That part of private open space primarily intended for outdoor living activities which enjoys a reasonable amount of privacy. |
| **Setback** | The minimum distance from any allotment boundary to a building. |
| **Site coverage** | The proportion of a site covered by buildings. |
| **Stone** | Basalt, freestone, granite, limestone, sandstone, or other building stone, or rock, ordinarily used for building, manufacturing, road making, or construction; or clay (not fine clay, bentonite, or kaolin), earth, gravel, quartz (not quartz crystals), sand, soil, slate, or other similar material. |
| **Storey** | That part of a building between floor levels. If there is no floor above, it is the part between the floor level and ceiling. It may include an attic, basement, built over car parking area, and mezzanine. |
| **Stormwater** | The net increase in run-off from urban development due to water not being able to seep into the ground because of impervious surfaces, such as roofs and roads. |
| **Street leg length** | The distance between street intersections or junctions, or points and locations where vehicles must slow down, usually to a maximum speed of 20 kilometres per hour. |
| **Street reserve** | Land set aside for a street pavement and verge. |
| **Sustainable agriculture** | The use of farming practices and systems which maintain or enhance:<br>a) the economic viability of agricultural production;<br>b) the natural resource base; and<br>c) other ecosystems which are influenced by agricultural activities. |
| **Telecommunications line** | A wire, cable, optic fibre, tube, conduit, waveguide or other physical medium used, or to be used, as a continuous artificial guide for or in connection with carrying communications by means of guided electromagnetic energy. |
| **Telecommunications network** | A system or series of systems that carries, or is capable of carrying, communications by means of guided and unguided electromagnetic energy. |
| **Telecommunications tower** | A free-standing tower, pole or mast used as part of a telecommunications network that is not mounted on, or affixed to, any other structure. |
| **Tenement** | Land comprised in:<br>a) a lot which does not adjoin another lot in the same ownership; or<br>b) lots in the same ownership and which adjoin each other.<br>Lots are considered to adjoin each other if they are separated only by a stream, stream reserve, or unmade or unused government road or rail reserve. |
| **Transport manager** | (a) a Minister; or<br>(b) government department; or<br>(c) Administrative Office under the *Public Administration Act 2004*; or<br>(d) public authority; or<br>(e) any person - |

| General term | Definition |
|---|---|
| | that has responsibility under an Act for the care or management of land that forms part of Victoria's transport system. |
| **Transport system** | All of the components that make up the system for the movement and transport of people and goods including:<br>▪ Movement networks including cycling paths, footpaths, roads, railways, shipping lanes, tramways and water transport routes.<br>▪ Transport interchanges for accessing, disembarking, unloading and interchange of people and goods, and for the storage of freight and vehicles. This includes transport terminals and public transport stops.<br>▪ Infrastructure required to operate movement networks and transport interchanges.<br>▪ Land reserved for the future development of movement networks and transport interchanges. |
| **Utility service provider** | A person, other than a public authority or municipal council, having responsibility under an Act for the generation, transmission, distribution or supply of electricity, gas, power, telecommunications, water supply, drainage or sewerage services. |
| **Verge** | The part of the street reserve between the carriageway and the boundary of adjacent lots or other limit to the street reserve. It may accommodate public utilities, a footpath, indented parking, stormwater flows, street lighting poles and planting. |
| **Wall height** | The vertical distance between the top of the eaves at the wall line, parapet or flat roof (not including a chimney), whichever is the highest, and the natural ground level. |
| **Wholesale** | The sale of goods or materials, to be sold by others. |
| **Wimmera Southern Mallee region** | The area covered by the Hindmarsh, Horsham, Northern Grampians, West Wimmera and Yarriambiack planning schemes. |

## 73.02 SIGN TERMS

31/07/2018
VC148

The following table lists terms which may be used in this planning scheme in relation to signs. A term listed in the first column, under the heading "Sign term", has the meaning set out beside that term in the second column, under the heading "Definition".

| Sign term | Definition |
|---|---|
| **Above-verandah sign** | A sign above a verandah or, if no verandah, that is more than 3.7 metres above pavement level, and which projects more than 0.3 metre outside the site. |
| **Display area** | The area of that part of a sign used to display its content, including borders, surrounds and logo boxes.<br>It does not include safety devices, platforms and lighting structures.<br>If the sign does not move or rotate, the area is one side only. |
| **Animated sign** | A sign that can move, contains moving or scrolling parts, changes its message, flashes, or has a moving or flashing border. |
| **Bed and breakfast sign** | A sign at a dwelling that advertises bed and breakfast accommodation in the dwelling. |
| **Bunting sign** | An advertisement that consists of bunting, streamers, flags, windvanes, or the like. |
| **Business identification sign** | A sign that provides business identification information about a business or industry on the land where it is displayed. The information may include the name of the business or building, the street number of the business premises, the nature of the business, a business logo or other business identification information. |
| **Direction sign** | A sign not exceeding 0.3 square metre that directs vehicles or pedestrians. It does not include a sign that contains commercial information. |
| **Electronic sign** | A sign that can be updated electronically. It includes screens broadcasting still or moving images. |
| **Floodlit sign** | A sign illuminated by external lighting provided for that purpose. |
| **High-wall sign** | A sign on the wall of a building so that part of it is more than 10 metres above the ground. |
| **Home based business sign** | A sign at a dwelling that advertises a home based business carried on in the dwelling, or on the land around the dwelling. |
| **Internally illuminated sign** | A sign illuminated by internal lighting or which contains lights or illuminated tubes arranged as an advertisement. |
| **Major promotion sign** | A sign which is 18 square metres or greater that promotes goods, services, an event or any other matter, whether or not provided, undertaken or sold or for hire on the land or in the building on which the sign is sited. |
| **Panel sign** | A sign with an advertisement area exceeding 10 square metres. |
| **Pole sign** | A sign:<br>a) on a pole or pylon that is not part of a building or another structure;<br>b) that is no more than 7 metres above the ground; |

| Sign term | Definition |
|---|---|
| | c) with an advertisement area not exceeding 6 square metres; and<br>d) that has a clearance under it of at least 2.7 metres. |
| **Promotion sign** | A sign of less than 18 square metres that promotes goods, services, an event or any other matter, whether or not provided, undertaken or sold or for hire on the land or in the building on which the sign is sited. |
| **Reflective sign** | A sign finished with material specifically made to reflect external light. |
| **Sign** | Includes a structure specifically built to support or illuminate a sign. |
| **Sky sign** | A sign:<br>a) on or above the roof of a building, but not a verandah;<br>b) fixed to the wall of a building and which projects above the wall; or<br>c) fixed to a structure (not a building) so that part of it is more than 7 metres above the ground. |

## 73.03 LAND USE TERMS

12/05/2026
VC309

The table to this clause lists terms which may be used in this planning scheme in relation to the use of land. A term describing a use or activity in relation to land which is not listed in the table must not be characterised as a separate use of land if the term is obviously or commonly included within one or more of the terms listed in the table.

### Meaning of terms

A term listed in the first column, under the heading "Land use term", has the meaning set out beside that term in the second column, under the heading "Definition".

### No definition of listed term indicates ordinary meaning

A term listed in the first column, under the heading "Land use term", which does not have a meaning set out beside that term in the second column, under the heading "Definition", has its ordinary meaning.

### Terms which specifically include other listed terms

A term listed in the first column, under the heading "Land use term", which has other terms listed beside it in the third column, under the heading "Includes", includes any term so listed in the third column and any term included within that term in the third column, but does not include any other term listed in the first column.

A term listed in the first column which has other terms listed beside it in the third column may also include other terms which are not listed in the first column.

All terms listed in the third column are also listed in the first column.

### Terms which do not specifically include other listed terms

If a term listed in the first column, under the heading "Land use term", does not have any term listed beside it in the third column, under the heading "Includes", that term does not include any term listed in the first column.

However, a term listed in the first column which does not have any term listed beside it in the third column may include other terms which are not listed in the first column.

### Terms which are included within other listed terms

A term listed in the first column, under the heading "Land use term", which has a term listed beside it in the fourth column, under the heading "Included in", is included within the term so listed in the fourth column and any term which includes that term in the fourth column.

All terms listed in the fourth column are also listed in the first column.

### Terms which are not included within other listed terms

If a term listed in the first column, under the heading "Land use term", does not have a term listed beside it in the fourth column, under the heading "Included in", that term is not included within any other term listed in the first column.

### Table to Clause 73.03

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Abattoir** | Land used to slaughter animals, including birds. It may include the processing of animal products. | | **Rural industry** |
| **Accommodation** | Land used to accommodate persons. | **Camping and caravan park** | |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | | **Corrective institution**<br>**Dwelling**<br>**Group accommodation**<br>**Host farm**<br>**Residential aged care facility**<br>**Residential building**<br>**Residential village**<br>**Retirement village**<br>**Small second dwelling** | |
| **Adult sex product shop** | Land used to sell or hire sexually explicit material, including:<br>a) publications classified as restricted under the *Classification (Publications, Films and Computer Games) (Enforcement) Act 1995*; and<br>b) materials and devices (other than contraceptives and medical treatments) used in conjunction with sexual behaviour. | | **Shop** |
| **Agriculture** | Land used to:<br>a) propagate, cultivate or harvest plants, including cereals, flowers, fruit, seeds, trees, turf, and vegetables;<br>b) keep, breed, board, or train animals, including livestock, and birds; or<br>c) propagate, cultivate, rear, or harvest living resources of the sea or inland waters. | **Animal husbandry**<br>**Aquaculture**<br>**Crop raising** | |
| **Airport** | | | **Transport terminal** |
| **Amusement park** | | | **Outdoor recreation facility** |
| **Amusement parlour** | A building that contains:<br>a) three or more coin, card, or token operated amusement machines; | | **Place of assembly** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | b) one or more coin, card, or token operated amusement machines with more than one screen or console that can be played by three or more people simultaneously; or<br>c) two or more coin, card, or token operated billiard, snooker, or pool tables.<br>It does not include coin, card, or token operated children's rides, amusement machines if there is the ability to receive a monetary reward, or premises used for a Bar or Hotel. | | |
| **Animal husbandry** | Land used to keep, breed, board, or train animals, including birds. | **Animal production**<br>**Animal training**<br>**Apiculture**<br>**Domestic animal husbandry**<br>**Horse husbandry**<br>**Racing dog husbandry** | **Agriculture** |
| **Animal production** | Land used to keep or breed farm animals for the production of livestock, eggs, fibre, meat, milk or other animal products. | **Grazing animal production**<br>**Intensive animal production**<br>**Pig farm**<br>**Poultry farm**<br>**Poultry hatchery** | **Animal husbandry** |
| **Animal training** | Land used to train animals, other than domestic animals, horses, or racing dogs. | | **Animal husbandry** |
| **Apiculture** | Land used to keep honeybee hives and to extract honey or other bee hive products. | | **Animal husbandry** |
| **Aquaculture** | Land used to keep or breed aquatic animals, or cultivate or propagate aquatic plants. | | **Agriculture** |
| **Art and craft centre** | Land used to manufacture, display, and sell, works of art or craft, such as handicrafts, paintings, and sculptures. | | |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Art gallery** | Land used to display works of art, including ceramics, furniture, glass, paintings, screen based art, sculptures, and textiles. | | **Exhibition centre** |
| **Automated collection point** | A building with a gross floor area of no more than 100 square metres, used as an automated collection point as defined in the *Circular Economy (Waste Reduction and Recycling) Act 2021*. | | **Transfer station** |
| **Bank** | | | **Office** |
| **Bar** | Land used to sell liquor for consumption on the premises. It may include accommodation, food for consumption on the premises, entertainment, dancing, amusement machines, and gambling. | | **Food and drink premises** |
| **Beauty salon** | | | **Shop** |
| **Bed and breakfast** | A dwelling used, by a resident of the dwelling, to provide accommodation for persons away from their normal place of residence. | | **Dwelling** |
| **Betting agency** | Land used for gambling by wagering, and where there is the ability to receive a monetary reward. | | **Gambling premises** |
| **Boat and caravan storage** | Land used to store boats, caravans, or vehicle-towed boat trailers. | | **Store** |
| **Boat launching facility** | Land used to launch boats into the water and to retrieve boats from the water. | **Boat ramp slipway** | **Recreational boat facility** |
| **Boat ramp** | | | **Boat launching facility** |
| **Bottle shop** | Land used to sell packaged liquor for consumption off the premises. | | **Shop** |
| **Broiler farm** | Land used to keep broiler chickens for the production of meat. | | **Poultry farm** |
| **Bus terminal** | | | **Transport terminal** |
| **Camping and caravan park** | Land used to allow accommodation in caravans, cabins, tents, or the like. | | **Accommodation** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Caretaker's house** | A dwelling on the same site as a building, operation, or plant, and occupied by a supervisor of that building, operation, or plant. | | **Dwelling** |
| **Carnival** | Land, other than an Exhibition centre or trade fair, used for a temporary fair or amusements which provide entertainment such as side shows, merry-go-rounds, and stalls for games or snacks. | | **Place of assembly** |
| **Car park** | Land used to park motor vehicles. It may include charging of electric vehicles. | | |
| **Car sales** | | | **Motor vehicle, boat, or caravan sales** |
| **Car wash** | | | **Service industry** |
| **Cattle feedlot** | Land used for a cattle feedlot as defined by the Victorian Code for Cattle Feedlots 1995. | | **Intensive animal production** |
| **Cemetery** | Land used to dispose of human remains by burial. It may include funeral chapels or the like. | | |
| **Child care centre** | Land used to care for five or more children who are not permanently resident on the land. | **Kindergarten** | **Education centre** |
| **Cinema** | Land used to provide screen based entertainment or information to the public. | | **Place of assembly** |
| **Cinema based entertainment facility** | Land used to provide screen based entertainment or information to the public, in association with the provision of meals or sporting, amusement, entertainment, leisure or retail facilities. | | **Place of assembly** |
| **Circus** | Land used, by performers, to provide entertainment such as acrobatic feats, tricks of skill, and exhibiting animals. | | **Place of assembly** |
| **Commercial display area** | Land used only to display goods. | | **Warehouse** |
| **Community care accommodation** | Land used to provide accommodation and care services. It includes permanent, temporary | | **Residential building** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | and emergency accommodation. It may include supervisory staff and support services for residents and visitors. | | |
| **Conference centre** | | | **Function centre** |
| **Container deposit scheme centre** | Land used to collect, consolidate, temporarily store, sort or recover materials under Victoria's Container Deposit Scheme by a network or collection point operator in accordance with the *Circular Economy (Waste Reduction and Recycling) Act 2021*. The centre may incorporate a reverse vending machine, automated collection point, drop off point and over the counter refunds. | | **Transfer station** |
| **Convenience restaurant** | Land used to prepare and sell food and drink for immediate consumption, where substantial provision is made for consumption both on and off the premises. | | **Food and drink premises** |
| **Convenience shop** | A building with a leasable floor area of no more than 240 square metres, used to sell food, drinks, and other convenience goods. It may also be used to hire convenience goods. | | **Shop** |
| **Corrective institution** | Land used to hold and reform persons committed to it by the courts, such as a prison, remand centre, and other type of detention facility. | | **Accommodation** |
| **Crematorium** | Land used to cremate human remains. It may include funeral chapels or the like. | | |
| **Crop raising** | Land used to propagate, cultivate or harvest plants, including cereals, flowers, fruit, seeds, trees, turf, and vegetables. | **Horticulture**<br>**Rice growing**<br>**Timber production** | **Agriculture** |
| **Dance studio** | | | **Indoor recreation facility** |
| **Data centre** | | | **Utility installation** |
| **Department store** | | | **Shop** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Display home centre** | One or more buildings constructed as a dwelling, but used for display, to encourage people to buy or construct similar dwellings. It may include a sales office. | | |
| **Dog breeding** | | | **Domestic animal husbandry** |
| **Domestic animal boarding** | Land used to board domestic animals, such as boarding kennels and a cattery. It includes domestic animal day care. | | **Domestic animal husbandry** |
| **Domestic animal husbandry** | Land used to keep, breed, board or train domestic animals. | **Dog breeding**<br>**Domestic animal boarding** | **Animal husbandry** |
| **Drive-in theatre** | | | **Place of assembly** |
| **Dry cleaner** | Land used to professionally clean or launder clothing or household articles. It may include the use of dry cleaning processes. | | **Service industry** |
| **Dry cleaning agent** | Land used to arrange for professional cleaning or laundering of clothing or household articles predominantly at another location. It does not include the use of dry cleaning processes on the land. | | **Shop** |
| **Dwelling** | A building used as a self-contained residence which must include:<br>a) a kitchen sink;<br>b) food preparation facilities;<br>c) a bath or shower; and<br>d) a toilet and wash basin.<br>It includes outbuildings and works normal to a dwelling. | **Bed and breakfast**<br>**Caretaker's house** | **Accommodation** |
| **Education centre** | Land used for education. | **Child care centre**<br>**Employment training centre**<br>**Primary school**<br>**Secondary school**<br>**Tertiary institution** | |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Earth and energy resources industry** | Land used for the exploration, removal or processing of natural earth or energy resources. It includes any activity incidental to this purpose including the construction and use of temporary accommodation. | **Extractive industry**<br>**Greenhouse gas sequestration**<br>**Greenhouse gas sequestration exploration**<br>**Geothermal energy exploration**<br>**Geothermal energy extraction**<br>**Mining**<br>**Mineral exploration**<br>**Petroleum exploration**<br>**Petroleum production**<br>**Stone exploration** | |
| **Electoral office** | An office used for electioneering by a candidate in a local, State, or Federal Government election. | | **Office** |
| **Electorate office** | An office used by a State or Federal Member of Parliament to conduct their representative duties. | | **Office** |
| **Emergency services facility** | Land used to provide facilities for emergency services, such as fire prevention and ambulance services. It may include administrative, operational or storage facilities associated with the provision of emergency services. | | |
| **Employment training centre** | | | **Education centre** |
| **Energy generation facility** | Land used to generate energy for use off site other than geothermal energy extraction. It includes any building or other structure or thing used in or in connection with the generation of energy. | **Renewable energy facility**<br>**Waste-to-energy facility** | |
| **Equestrian supplies** | | | **Restricted retail premises** |
| **Exhibition centre** | Land used to display works of art, artefacts, or historical, cultural, or other like works or artefacts. | **Art gallery**<br>**Museum** | **Place of assembly** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Extractive industry** | Land used for the extraction or removal of stone from land for commercial use, or to use the stone for building, construction, road or manufacturing works.<br>It includes:<br>▪ the rehabilitation of the land; and<br>▪ the treatment of stone (such as crushing and processing) or the manufacture of bricks, tiles, pottery, or cement or asphalt products on, or adjacent to, the land from which the stone is extracted or removed. | | **Earth and energy resources industry** |
| **Food and drink premises** | Land used to prepare and sell food and drink for immediate consumption on, or off, the premises. | **Bar**<br>**Convenience restaurant**<br>**Hotel**<br>**Restaurant**<br>**Take away food premises** | **Retail premises** |
| **Freeway service centre** | Land which has direct access to a freeway and is used to provide essential services and facilities which encourage drivers to stop and take an effective break in the interests of driver safety. | | |
| **Freezing and cool storage** | | | **Store** |
| **Fuel depot** | Land used to store, sell, and distribute fuel. | **Liquid fuel depot**<br>**Solid fuel depot** | **Warehouse** |
| **Function centre** | Land used, by arrangement, to cater for conferences, private functions, and in which food and drink may be served. It may include entertainment and dancing. | **Conference centre**<br>**Reception centre** | **Place of assembly** |
| **Funeral parlour** | Land used to organise and conduct funerals, memorial services, or the like. It includes the storage and preparation of bodies for burial or cremation. | | |
| **Gambling premises** | Land used for gambling by gaming or wagering, and where there is the ability to receive a monetary reward. | **Betting agency**<br>**Gaming premises** | **Retail premises** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Gaming premises** | Land used for gambling by gaming, and where there is the ability to receive a monetary reward. | | **Gambling premises** |
| **Garden supplies** | Land used to sell and distribute garden supplies such as sand, soil, railway sleepers, screenings, rock, and the like. | | **Landscape gardening supplies** |
| **Geothermal energy exploration** | Land used for geothermal energy exploration as defined in the Geothermal *Energy Resources Act 2005.* | | **Earth and energy resources industry** |
| **Geothermal energy extraction** | Land used for geothermal energy extraction as defined in the Geothermal *Energy Resources Act 2005.* | | **Earth and energy resources industry** |
| **Golf course** | | | **Outdoor recreation facility** |
| **Golf driving range** | | | **Outdoor recreation facility** |
| **Grazing animal production** | Land used for animal production where the animals' food is obtained by directly grazing, browsing or foraging plants growing on the land.<br>It includes:<br>▪ emergency, seasonal and supplementary feeding;<br>▪ the incidental penning, feeding and housing of animals for weaning or other husbandry purposes.<br>In this definition:<br>*Emergency feeding* means providing feed to animals when an emergency event such as a flood, bushfire or biosecurity event, restricts or prevents the animals from grazing, browsing or foraging plants growing on the land;<br>*Seasonal feeding* means providing feed to animals when seasonal conditions, including drought, restrict or prevent the animals from grazing, browsing or foraging plants growing on the land; | | **Animal production** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | *Supplementary feeding* means providing feed to animals to supplement the food the animals obtain by directly grazing, browsing or foraging plants growing on the land. | | |
| **Greenhouse gas sequestration** | Land used for greenhouse gas substance injection and monitoring as defined in the *Greenhouse Gas Geological Sequestration Act 2008.* | | **Earth and energy resources industry** |
| **Greenhouse gas sequestration exploration** | Land used for greenhouse gas sequestration formation exploration as defined in the *Greenhouse Gas Geological Sequestration Act 2008.* | | **Earth and energy resources industry** |
| **Group accommodation** | Land, in one ownership, containing a number of dwellings used to accommodate persons away from their normal place of residence. | | **Accommodation** |
| **Hairdresser** | | | **Shop** |
| **Hall** | | | **Place of assembly** |
| **Helicopter landing site** | Land used for the take-off and landing of a helicopter, with or without a permanent landing pad, but without permanent facilities for the assembly and distribution of goods or passengers. | | |
| **Heliport** | | | **Transport terminal** |
| **Home based business** | An occupation carried on in a dwelling, or on the land around a dwelling, by a resident of the dwelling. It may include a use defined elsewhere. | | |
| **Horse husbandry** | Land used to keep, breed, board or train horses. | **Horse riding school**<br>**Horse stables** | **Animal husbandry** |
| **Horse riding school** | | | **Horse husbandry** |
| **Horse stables** | | | **Horse husbandry** |
| **Horticulture** | Land used to propagate, cultivate, or harvest flowers, fruit, vegetables, vines, or the like. | **Market garden** | **Crop raising** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Hospital** | Land used to provide health services (including preventative care, diagnosis, medical and surgical treatment, and counselling) to persons admitted as in-patients. It may include the care or treatment of out-patients. | | |
| **Host farm** | An agricultural property used to provide accommodation for persons, away from their normal place of residence, to experience living on land used for agricultural purposes. | | **Accommodation** |
| **Hotel** | Land used to sell liquor for consumption on and off the premises. It may include accommodation, food for consumption on the premises, entertainment, dancing, amusement machines, and gambling. | | **Food and drink premises** |
| **Indoor recreation facility** | A building used for indoor leisure, recreation, or sport. | **Dancing studio** | **Minor sports and recreation facility** |
| **Industry** | Land used for any of the following operations:<br>a) any process of manufacture;<br>b) dismantling or breaking up of any article;<br>c) treating waste materials;<br>d) winning clay, gravel, rock, sand, soil, stone, or other materials;<br>e) laundering, repairing, servicing or washing any article, machinery, or vehicle, other than on-site work on a building, works, or land; or<br>f) any process of testing or analysis.<br>If on the same land as any of these operations, it also includes:<br>a) storing goods used in the operation or resulting from it;<br>b) providing amenities for people engaged in the operation;<br>c) selling by wholesale, goods resulting from the operation; and<br>d) accounting or administration in connection with the operation. | **Materials recycling**<br>**Refuse disposal**<br>**Transfer station**<br>**Research and development centre**<br>**Rural industry**<br>**Service industry** | |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | If Materials recycling, goods resulting from the operation may be sold by retail. | | |
| **Informal outdoor recreation** | Land open to the public and used by non-paying persons for leisure or recreation, such as a cycle track, park, picnic or barbecue area, playground, plaza, and walking or jogging track. | | **Minor sports and recreation facility** |
| **Intensive animal production** | Land used for animal production where the animals' food is imported from outside the immediate building, enclosure, paddock or pen.<br>It does not include:<br>▪ an abattoir or sale yard; or<br>▪ grazing animal production, pig farm, poultry farm or poultry hatchery. | **Cattle feedlot**<br>**Intensive dairy farm** | **Animal production** |
| **Intensive dairy farm** | Land used for intensive animal production where cattle are kept or bred for the production of milk. | | **Intensive animal production** |
| **Interpretation centre** | A facility that assists in the public understanding of the natural or cultural environment. | | |
| **Jetty** | | | **Marina** |
| **Kindergarten** | | | **Child care centre** |
| **Landscape gardening supplies** | Land used to propagate, grow, and sell plants, or sell and distribute garden supplies. | **Garden supplies**<br>**Plant nursery** | **Retail premises** |
| **Laundromat** | Land used to clean or launder clothing or household items using self-service machines. | | **Shop** |
| **Leisure and recreation** | Land used for leisure, recreation, or sport. | **Major sports and recreation facility**<br>**Minor sports and recreation facility**<br>**Motor racing track** | |
| **Library** | | | **Place of assembly** |
| **Liquid fuel depot** | Land used to store, sell by wholesale, and distribute fuel. | | **Fuel depot** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Mail centre** | Land used to sort mail for distribution. | | **Warehouse** |
| **Major sports and recreation facility** | Land used for leisure, recreation or sport, and where there is substantial provision made for spectators, such as a grandstand, and to which spectators are usually charged admission. | **Race course** | **Leisure and recreation** |
| **Manufacturing sales** | Land used, as an incidental part of an industry, to retail goods made materially different on the land by that industry. | | **Retail premises** |
| **Marina** | Land used to moor boats, or store boats above or adjacent to the water. It may include boat recovery facilities, and facilities to repair, fuel, and maintain boats and boat accessories. | **Jetty**<br>**Mooring pole**<br>**Pier**<br>**Pontoon** | **Recreational boat facility** |
| **Market** | Land used to sell goods, including foodstuffs, from stalls. | | **Retail premises** |
| **Market garden** | | | **Horticulture** |
| **Materials recycling** | Land used to dismantle, treat, process, store, recycle, or sell refuse, used or surplus materials. | | **Industry** |
| **Medical centre** | Land used to provide health or surgical services (including preventative care, diagnosis, medical and surgical treatment, pathology services, and counselling) to out-patients only. | | **Office** |
| **Milk depot** | Land used to receive milk and milk products for distribution to consumers, but where milk is not processed or pasteurised. | | **Warehouse** |
| **Mineral exploration** | Land used for exploration as defined in the *Mineral Resources (Sustainable Development) Act 1990.* | | **Earth and energy resources industry** |
| **Mining** | Land used for mining as defined in the *Mineral Resources (Sustainable Development) Act 1990.* | | **Earth and energy resources industry** |
| **Minor sports and recreation facility** | Land used for leisure, recreation, or sport, without substantial provision for spectators, and which is usually open to non-paying spectators. | **Indoor recreation facility** | **Leisure and recreation** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | | **Informal outdoor recreation**<br>**Open sports ground**<br>**Outdoor recreation facility**<br>**Restricted recreation facility** | |
| **Minor utility installation** | Land used for a utility installation comprising any of the following:<br>a) sewerage or water mains;<br>b) storm or flood water drains or retarding basins;<br>c) flow measurement device or a structure to gauge waterway flow;<br>d) siphons, water storage tanks, disinfection booster stations and channels;<br>e) gas mains providing gas directly to consumers;<br>f) a sewerage treatment plant, and any associated disposal works, required to serve a neighbourhood;<br>g) a pumping station required to serve a neighbourhood;<br>h) power lines designed to operate at less than 220,000 volts but excluding any power lines directly associated with an Energy generation facility or Geothermal energy extraction;<br>i) an electrical sub-station designed to operate at no more than 66,000 volts but excluding any sub-station directly associated with an Energy generation facility or Geothermal energy extraction; or<br>j) a battery with a storage capacity of no more than 5 megawatts. | **Water retarding basin** | **Utility installation** |
| **Mooring pole** | | | **Marina** |
| **Motel** | Land used to provide accommodation in serviced rooms for persons away from their normal place of residence, and where provision is made for parking guests' vehicles convenient to the rooms. | | **Residential hotel** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Motor racing track** | Land used to race, rally, scramble, or test, vehicles, including go-karts, motor boats, and motorcycles, and includes other competitive motor sports. It may include training. | | **Leisure and recreation** |
| **Motor repairs** | Land used to repair or service motor vehicles, and includes the fitting of accessories. | **Panel beating** | **Service industry** |
| **Motor vehicle, boat, or caravan sales** | Land used to sell or hire motor vehicles, boats, or caravans. It may include the minor repair or servicing of motor vehicles, boats, or caravans, and the sale or fitting of accessories. | **Car sales** | **Retail premises** |
| **Museum** | Land used to display archaeological, biological, cultural, geographical, geological, historical, scientific, or other like works or artefacts. | | **Exhibition centre** |
| **Natural systems** | Land in substantially its natural state which is used to maintain ecological systems, or to preserve an area of historic, scientific, aesthetic, or cultural significance. | | |
| **Nightclub** | A building used to provide entertainment and dancing. It may include the provision of food and drink for consumption on the premises. It does not include the sale of packaged liquor, or gaming. | | **Place of assembly** |
| **Office** | Land used for administration, or clerical, technical, professional or other like business activity. No goods or materials intended for manufacture, sale, or hire may be stored on the land. Other than electoral office and medical centre, it does not include any other defined use. | **Bank**<br>**Electoral office**<br>**Electorate office**<br>**Medical centre**<br>**Real estate agency**<br>**Travel agency** | |
| **Open sports ground** | Land used for organised games of sport, but which is available for informal outdoor leisure or recreation when not being used or prepared for an organised game. It may include lights, change rooms, pavilions, and shelters. | | **Minor sports and recreation facility** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Outdoor recreation facility** | Land used for outdoor leisure, recreation, or sport. It does not include an Open sports ground or Informal outdoor recreation. | **Amusement park**<br>**Golf course**<br>**Golf driving range**<br>**Paintball games facility**<br>**Zoo** | **Minor sports and recreation facility** |
| **Paintball games facility** | | | **Outdoor recreation facility** |
| **Panel beating** | Land used to repair or replace damaged motor vehicle bodies and panels, and carry out any associated mechanical work or spray painting. | | **Motor repairs** |
| **Party supplies** | | | **Restricted retail premises** |
| **Petroleum exploration** | Land used for petroleum exploration as defined in the *Petroleum Act 1998.* | | **Earth and energy resources industry** |
| **Petroleum production** | Land used for petroleum production as defined in the *Petroleum Act 1998.* | | **Earth and energy resources industry** |
| **Pier** | | | **Marina** |
| **Pig farm** | Land used to keep or breed pigs. | | **Animal production** |
| **Place of assembly** | Land where people congregate for religious, spiritual or cultural activities, entertainment, or meetings. | **Amusement parlour**<br>**Carnival**<br>**Cinema**<br>**Cinema-based entertainment facility**<br>**Circus**<br>**Drive-in theatre**<br>**Exhibition centre**<br>**Function centre**<br>**Hall**<br>**Library**<br>**Nightclub**<br>**Place of worship**<br>**Restricted place of assembly** | |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Place of worship** | Land used for religious activities, such as a church, chapel, mosque, synagogue, and temple. | | **Place of assembly** |
| **Plant nursery** | Land used to propagate, grow, and sell plants. It may include the sale of gardening equipment and horticultural products. | | **Landscape gardening supplies** |
| **Pontoon** | | | **Marina** |
| **Postal agency** | | | **Retail premises** |
| **Poultry farm** | Land used to keep or breed poultry. | **Broiler farm** | **Animal production** |
| **Poultry hatchery** | Land used to incubate and hatch poultry eggs. | | **Animal production** |
| **Primary produce sales** | Land used to display and sell primary produce, grown on the land or adjacent land. It may include processed goods made substantially from the primary produce. | | **Retail premises** |
| **Primary school** | | | **Education centre** |
| **Race course** | | | **Major sports and recreation facility** |
| **Racing dog husbandry** | Land used to keep, breed, board or train racing dogs. | **Racing dog training** | **Animal husbandry** |
| **Racing dog training** | | | **Racing dog husbandry** |
| **Railway station** | Land used to assemble and distribute goods and passengers and includes facilities to park and manoeuvre vehicles. It may include the selling of food, drinks and other convenience goods and services. | | **Transport terminal** |
| **Real estate agency** | | | **Office** |
| **Reception centre** | | | **Function centre** |
| **Recreational boat facility** | Land used to provide facilities for boats operated primarily for pleasure or recreation, including boats operated commercially for pleasure or recreation. | **Boat launching facility**<br>**Marina** | |
| **Refuse disposal** | Land used to dispose of refuse, by landfill, incineration, or other means. | | **Industry** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Renewable energy facility** | Land used to generate energy using resources that can be rapidly replaced by an ongoing natural process. Renewable energy resources include the sun, wind, the ocean, water flows, organic matter and the earth's heat.<br><br>It includes any building or other structure or thing used in or in connection with the generation of energy by a renewable resource.<br><br>It does not include a renewable energy facility principally used to supply energy for an existing use of the land. | **Wind energy facility**<br><br>**Solar energy facility** | **Energy generation facility** |
| **Research and development centre** | Land used to develop or test electronic technology, biotechnology, or any other scientific discipline. It may include administration, promotion, conference, display, laboratory, assembly, and manufacturing areas. | | **Industry** |
| **Research centre** | Land used only for scientific research. | | |
| **Reservoir** | A natural or artificial lake used as a source of water supply that is owned or managed by a public authority. | | **Utility installation** |
| **Residential aged care facility** | Land used to provide accommodation and personal or nursing care for the aged. It may include recreational, health or laundry facilities and services for residents of the facility. | | **Accommodation** |
| **Residential building** | Land used to accommodate persons, but does not include camping and caravan park, corrective institution, dwelling, group accommodation, host farm, residential village, retirement village or small second dwelling. | **Community care accommodation**<br><br>**Residential hotel**<br><br>**Rooming house**<br><br>**Rural worker accommodation** | **Accommodation** |
| **Residential hotel** | Land used to provide accommodation in serviced rooms for persons away from their normal place of residence. If it has at least 20 bedrooms, it may include the sale of liquor for consumption on, or off, the premises, function or conference | **Motel** | **Residential building** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | rooms, entertainment, dancing, amusement machines, and gambling. | | |
| **Residential village** | Land, in one ownership, containing a number of dwellings, used to provide permanent accommodation and which includes communal, recreation, or medical facilities for residents of the village. | | **Accommodation** |
| **Restaurant** | Land used to prepare and sell food and drink, for consumption on the premises. It may include:<br>a) entertainment and dancing; and<br>b) the supply of liquor other than in association with the serving of meals, provided that tables and chairs are set out for at least 75% of patrons present on the premises at any one time.<br>It does not include the sale of packaged liquor. | | **Food and drink premises** |
| **Restricted place of assembly** | Land used by members of a club or group, or by members' guests, for religious, spiritual or cultural activities, entertainment, or meetings. It may include food and drink for consumption on the premises, and gaming. | | **Place of assembly** |
| **Restricted recreation facility** | Land used by members of a club or group for leisure, recreation, or sport, such as a bowling or tennis club, gymnasium and fitness centre. It may include food and drink for consumption on the premises, and gaming. It may also include use by members' guests, or by the public on payment of a fee. | | **Minor sports and recreation facility** |
| **Restricted retail premises** | Land used to sell or hire:<br>a) automotive parts and accessories;<br>b) camping, outdoor and recreation goods<br>c) electric light fittings;<br>d) animal supplies including equestrian and pet goods;<br>e) floor and window coverings; | **Equestrian supplies**<br>**Party supplies** | **Shop** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | f) furniture, bedding, furnishings, fabric and manchester and homewares;<br>g) household appliances, household electrical goods and home entertainment goods;<br>h) party supplies;<br>i) swimming pools;<br>j) office equipment and supplies;<br>k) baby and children's goods, children's play equipment and accessories;<br>l) sporting, cycling, leisure, fitness goods and accessories; or<br>m) goods and accessories which:<br>▪ Require a large area for handling, display and storage of goods; or<br>▪ Require direct vehicle access to the building by customers for the purpose of loading or unloading goods into or from their vehicles after purchase or hire.<br>It does not include the sale of food, clothing and footwear unless ancillary to the primary use. | | |
| **Retail premises** | Land used to:<br>a) sell goods by retail, or by retail and wholesale;<br>b) sell services; or<br>c) hire goods. | **Food and drink premises**<br>**Gambling premises**<br>**Landscape gardening supplies**<br>**Manufacturing sales**<br>**Market**<br>**Motor vehicle, boat, or caravan sales**<br>**Postal agency**<br>**Primary produce sales**<br>**Shop**<br>**Trade supplies** | |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Retirement village** | Land used to provide permanent accommodation for retired people or the aged and may include communal recreational or medical facilities for residents of the village. | | **Accommodation** |
| **Rice growing** | | | **Crop raising** |
| **Road freight terminal** | | | **Transport terminal** |
| **Rooming house** | Land used for a rooming house as defined in the *Residential Tenancies Act 1997*. | | **Residential building** |
| **Rural industry** | Land used to:<br>a) handle, treat, process, or pack agricultural produce; or<br>b) service or repair plant, or equipment, used in agriculture; or<br>c) manufacture mud bricks, including bricks that contain hemp, straw or other fibrous substance. | **Abattoir**<br>**Sawmill** | **Industry** |
| **Rural store** | Land used to store unprocessed agricultural produce, or products used in agriculture. | | **Store** |
| **Rural worker accommodation** | Land used to accommodate a person engaged in agricultural production, away from their normal place of residence. | | **Residential building** |
| **Saleyard** | Land used to hold, sell, and buy farm animals. | | |
| **Sawmill** | Land used to handle, cut, and process timber from logs. | | **Rural industry** |
| **Secondary school** | | | **Education centre** |
| **Service industry** | Land used to launder, repair, service or wash articles, machinery, or vehicles. | **Car wash**<br>**Dry cleaner**<br>**Motor repairs** | **Industry** |
| **Service station** | Land used to sell motor vehicle fuel from bowsers or charge electric vehicles. It may include the:<br>a) selling of motor vehicle lubricants, accessories or parts;<br>b) selling of food, drinks and other convenience goods; | | |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | c) hiring of trailers;<br>d) servicing or washing of motor vehicles; and<br>e) installing of motor vehicle accessories or parts. | | |
| **Sex services premises** | Land used to sell services involving the use or display of the body of the person providing the service for the sexual arousal or sexual gratification of another person while they are present on the land.<br>It does not include:<br>▪ Live entertainment performed for an audience, by a person performing an act of an explicit sexual nature, such as lap dancing, nude dancing and striptease.<br>▪ Sexual activities engaged in by two or more people required to pay an admission fee or charge to enter the premises on the same terms and who do not receive any form of payment or reward, whether directly or indirectly, for engaging in the sexual activities. | | **Shop** |
| **Shipping container storage** | Land used to store shipping containers. It may include the cleaning, repair, servicing, painting or fumigation of the shipping containers. | | **Store** |
| **Shop** | Land used to sell goods or services, or to hire goods. It includes:<br>▪ the selling of bread, pastries, cakes or other products baked on the premises;<br>▪ demonstrations of products including music performances in shops selling recorded music.<br>It does not include:<br>▪ food and drink premises;<br>▪ gambling premises;<br>▪ landscape gardening supplies; | **Adult sex product shop**<br>**Beauty salon**<br>**Bottle shop**<br>**Convenience shop**<br>**Dry cleaning agent**<br>**Department store**<br>**Hairdresser**<br>**Laundromat**<br>**Restricted retail premises** | **Retail premises** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | ▪ manufacturing sales;<br>▪ market;<br>▪ motor vehicle, boat, or caravan sales;<br>▪ postal agency;<br>▪ primary produce sales; or<br>▪ trade supplies. | **Sex services premises**<br>**Supermarket** | |
| **Sign** | | | |
| **Slipway** | | | **Boat launching facility** |
| **Small second dwelling** | A building with a gross floor area of 60 square metres or less, on the same lot as an existing dwelling and used as a self-contained residence, which must include:<br>a) a kitchen sink;<br>b) food preparation facilities;<br>c) a bath or shower; and<br>d) a toilet and wash basin. | | **Accommodation** |
| **Solar energy facility** | Land used to generate electricity from solar energy using ground-mounted photovoltaic and thermal technology, where the primary role is to export power to the electricity network.<br>It does not include the generation of electricity principally used for an existing use of land. | | **Renewable energy facility** |
| **Solid fuel depot** | Land used to sell solid fuel, such as briquettes, coal, and fire wood. | | **Fuel depot** |
| **Stone exploration** | Land used to search for stone, including:<br>a) conducting geological, geophysical, and geochemical surveys;<br>b) costeaning and bulk sampling;<br>c) drilling; and<br>d) taking samples for chemical, physical, or other testing. | | **Earth and energy resources industry** |
| **Store** | Land used to store goods, machinery, or vehicles. | **Boat and caravan storage** | **Warehouse** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | | **Freezing and cool storage**<br>**Rural store**<br>**Shipping container storage**<br>**Vehicle store** | |
| **Supermarket** | | | **Shop** |
| **Take away food premises** | Land used to prepare and sell food and drink for immediate consumption off the premises. It may include up to 10 seats available for consumption on the premises. | | **Food and drink premises** |
| **Telecommunications facility** | Land used to accommodate any part of the infrastructure of a Telecommunications network. It includes any telecommunications line, equipment, apparatus, telecommunications tower, mast, antenna, tunnel, duct, hole, pit, pole, or other structure or thing used, or for use in or in connection with a Telecommunications network. | | **Utility installation** |
| **Tertiary institution** | | | **Education centre** |
| **Timber production** | Land used to propagate, cultivate, manage and harvest timber. | | **Crop raising** |
| **Timber yard** | Land used to sell sawn, dressed, and treated timber, wood fibre boards, and the like. It includes cutting the timber and boards to order, and selling hardware, paints, tools, and materials used in conjunction with the use and treatment of timber. | | **Trade supplies** |
| **Trade supplies** | Land used to sell by both retail and wholesale, or to hire, materials, tools, equipment, machinery or other goods for use in:<br>a) automotive repairs and servicing;<br>b) building;<br>c) commerce;<br>d) industry;<br>e) landscape gardening;<br>f) the medical profession; | **Timber yard** | **Retail premises** |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | g) primary production; or<br>h) local government, government departments or public institutions. | | |
| **Tramway** | Land used to provide a system of transport in vehicles connected to a network of tracks, and includes tram stops and shelters, shunting areas and associated passenger facilities. | | |
| **Transfer station** | Land used to collect, consolidate, temporarily store, sort or recover refuse, used or surplus materials before transfer for disposal, recycling or use elsewhere. | **Automated collection point**<br>**Container deposit scheme centre** | **Industry** |
| **Transport terminal** | Land used to assemble and distribute goods or passengers. It includes facilities to park and manoeuvre vehicles. It does not include a Tramway. | **Airport**<br>**Bus terminal**<br>**Heliport**<br>**Railway station**<br>**Road freight terminal**<br>**Wharf** | |
| **Travel agency** | | | **Office** |
| **Utility installation** | Land used:<br>a) for telecommunications;<br>b) to transmit or distribute gas or oil;<br>c) to transmit, distribute or store power;<br>d) to collect, treat, transmit, store, or distribute water; or<br>e) to collect, treat, or dispose of storm or flood water, sewage, or sullage.<br>It includes any associated flow measurement device or a structure to gauge waterway flow. | **Data centre**<br>**Minor utility installation**<br>**Reservoir**<br>**Telecommunications facility** | |
| **Vehicle store** | Land used to park or store vehicles in connection with a goods or passenger transport business. | | **Store** |
| **Veterinary centre** | Land used to:<br>a) diagnose animal diseases or disorders;<br>b) surgically or medically treat animals; or | | |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| | c) prevent animal diseases or disorders.<br><br>It may include keeping the animals on the premises for treatment. | | |
| **Warehouse** | Land used to store or display goods. It may include the storage and distribution of goods for wholesale and the storage and distribution of goods for online retail. It does not include premises allowing in-person retail or display of goods for retail, or allowing persons to collect goods that have been purchased online. | **Commercial display area**<br><br>**Fuel depot**<br><br>**Mail centre**<br><br>**Milk depot**<br><br>**Store** | |
| **Waste-to-energy facility** | Land used for the combustion, treatment or bio-reaction of waste to produce energy for use off site. It includes the activities to collect, temporarily store, process, or transfer waste materials for energy production. | | **Energy generation facility** |
| **Water retarding basin** | Land used to store storm or flood water on a temporary basis. | | **Minor utility installation** |
| **Wharf** | Land used to provide facilities for ships, such as bulk and container ships, passenger ships, and defence force marine craft. | | **Transport terminal** |
| **Wind energy facility** | Land used to generate electricity by wind force. It includes land used for:<br><br>a) any turbine, building or other structure or thing used in or in connection with the generation of electricity by wind force<br><br>b) an anemometer.<br><br>It does not include turbines principally used to supply electricity for domestic or rural use of the land. | | **Renewable energy facility** |
| **Winery** | Land used to display, and sell by retail, vineyard products, in association with the growing of grape vines and the manufacture of the vineyard products. It may include the preparation and sale of food and drink for consumption on the premises. | | |

| Land use term | Definition | Includes | Included in |
|---|---|---|---|
| **Zoo** | | | **Outdoor recreation facility** |

## 73.04 NESTING DIAGRAMS

08/08/2019
VC159

The information in the table to Clause 73.03 is set out in the following diagrams as a means of indicating the nesting of land use terms.

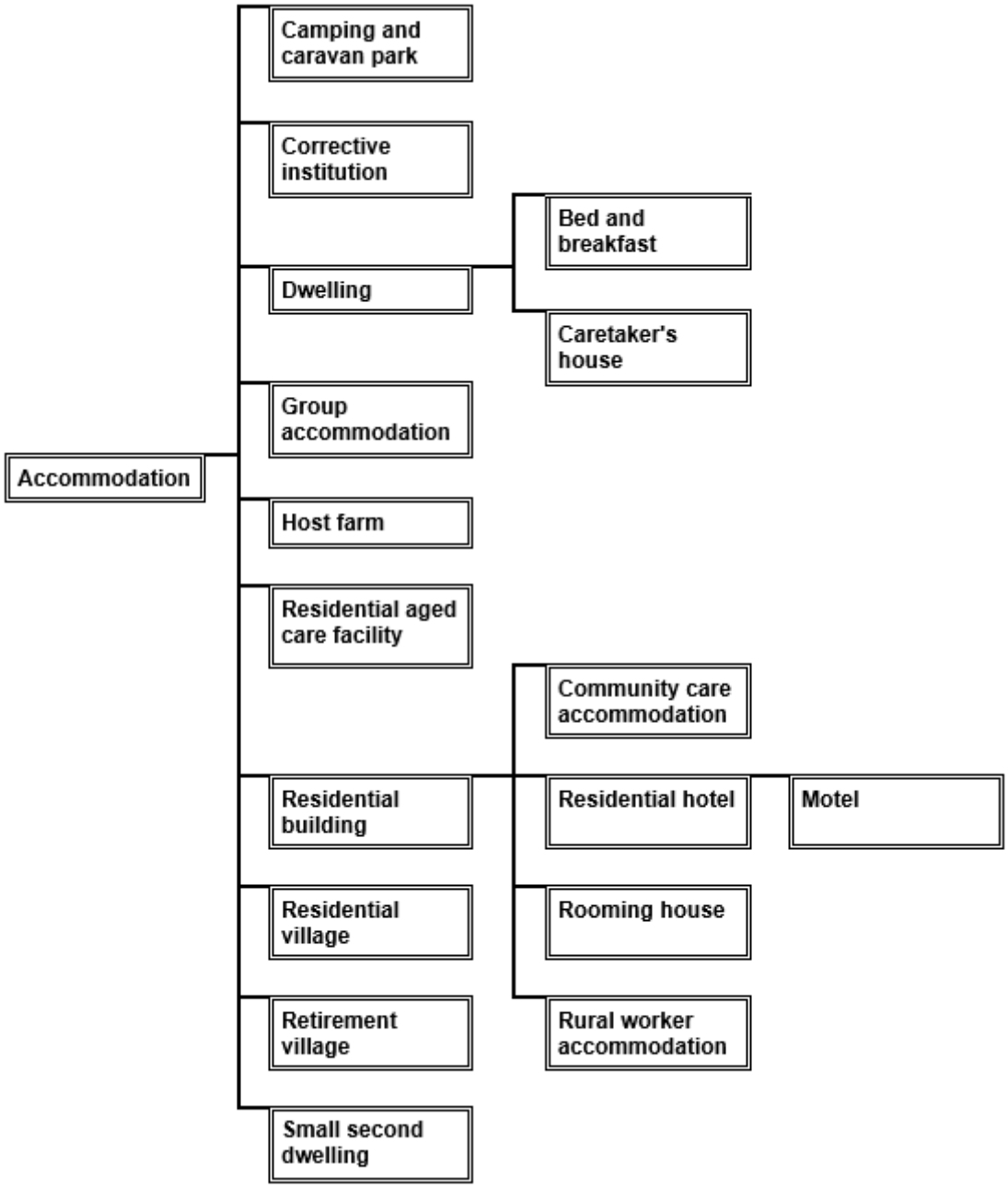
The table to Clause 73.03 prevails if there is any inconsistency between the table and the diagrams or list.

Land use terms that are not nested are listed at Clause 73.04-17.

Land use terms in bold font are defined in Clause 73.03.

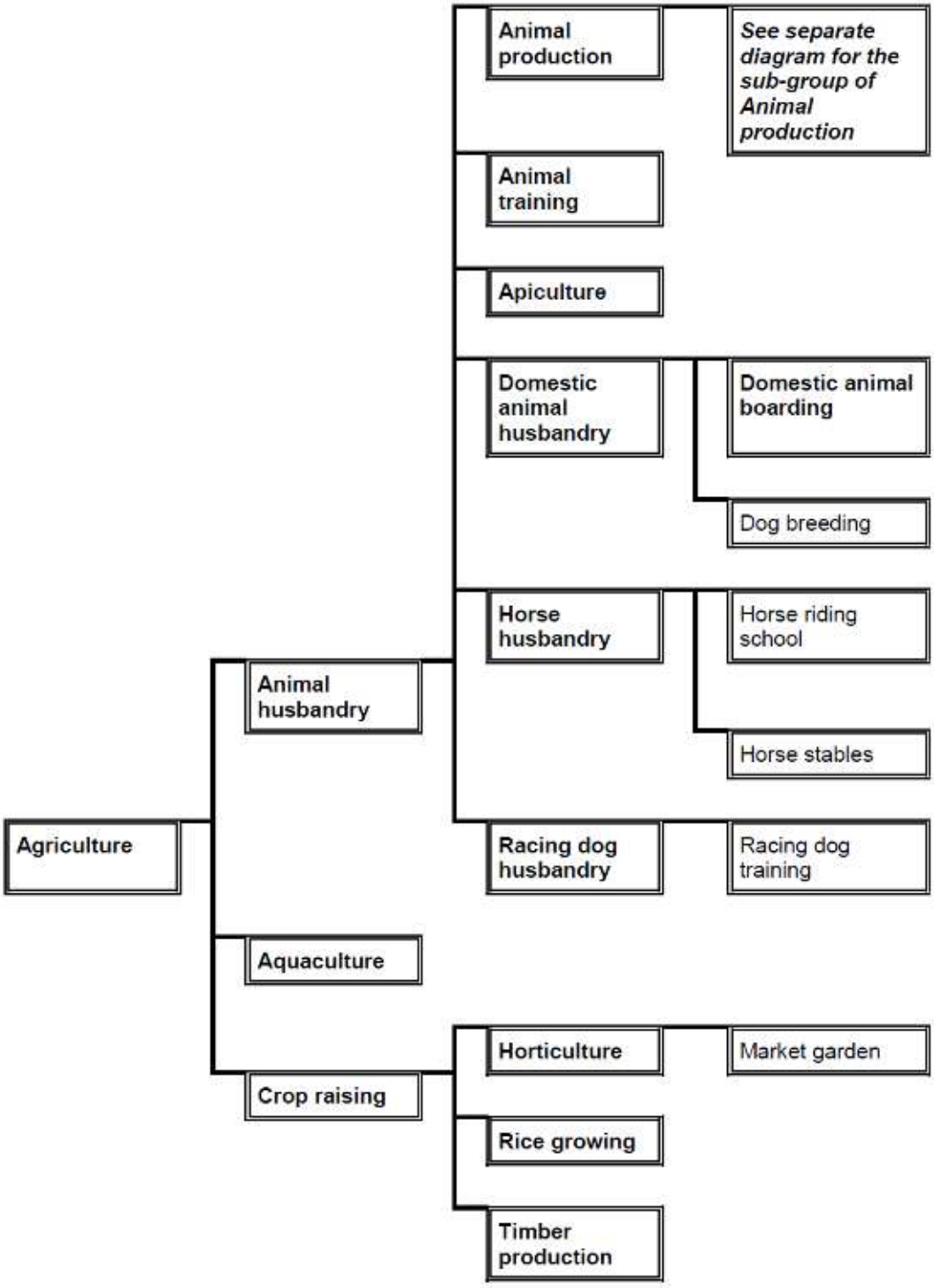
### 73.04-1 Accommodation group

14/12/2023
VC253



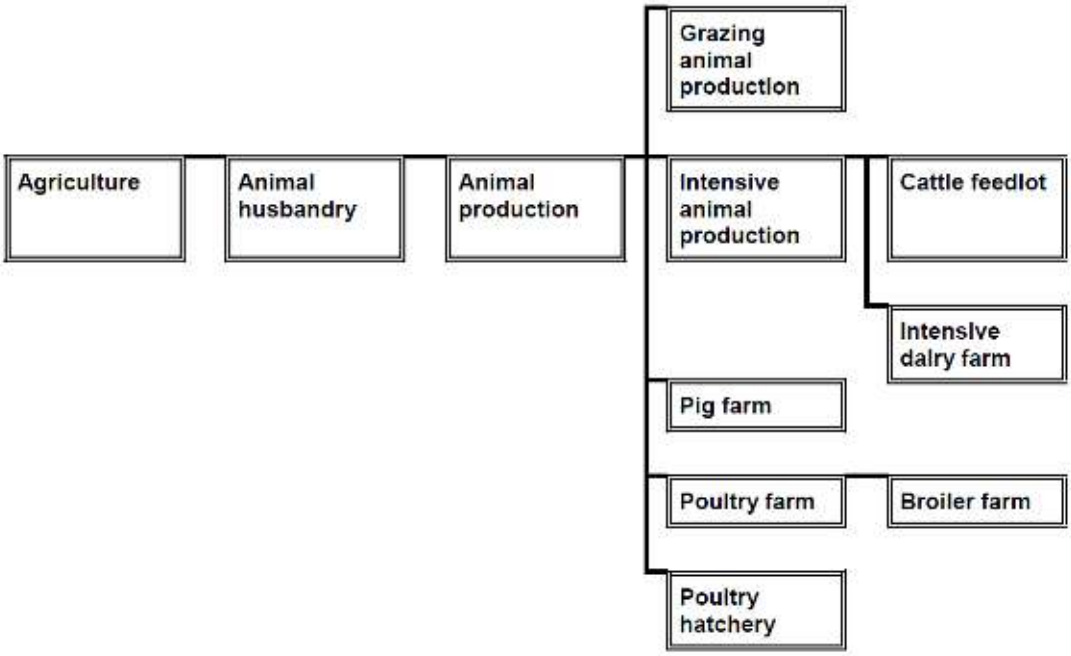
## 73.04-2 Agriculture group

08/08/2019
VC159



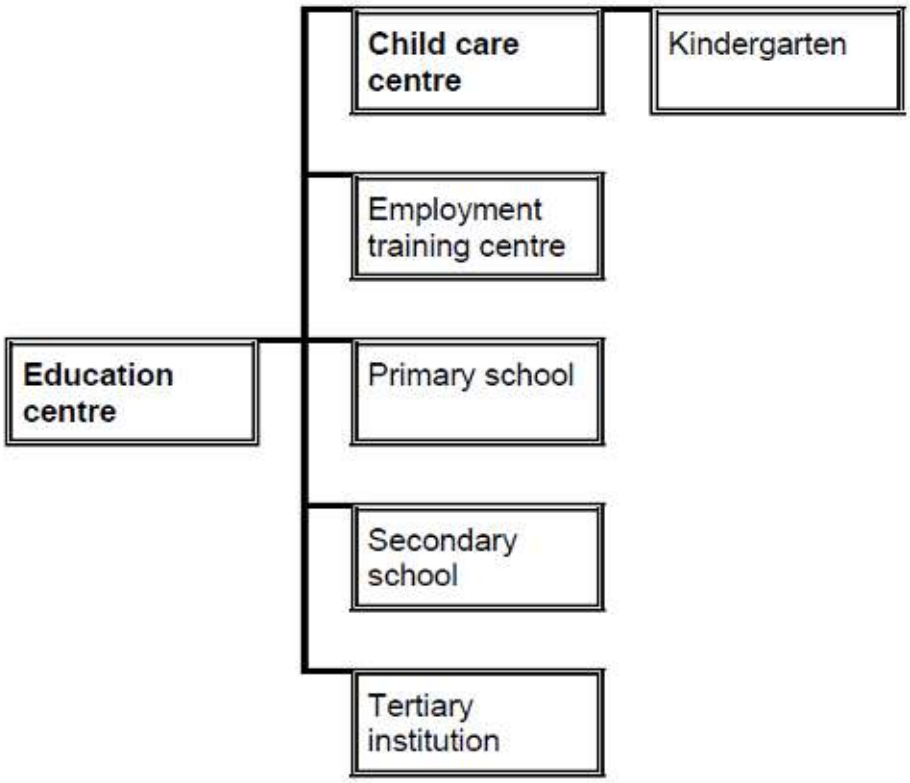
## 73.04-3 Agriculture group (sub-group of Animal production)

24/01/2020
VC160



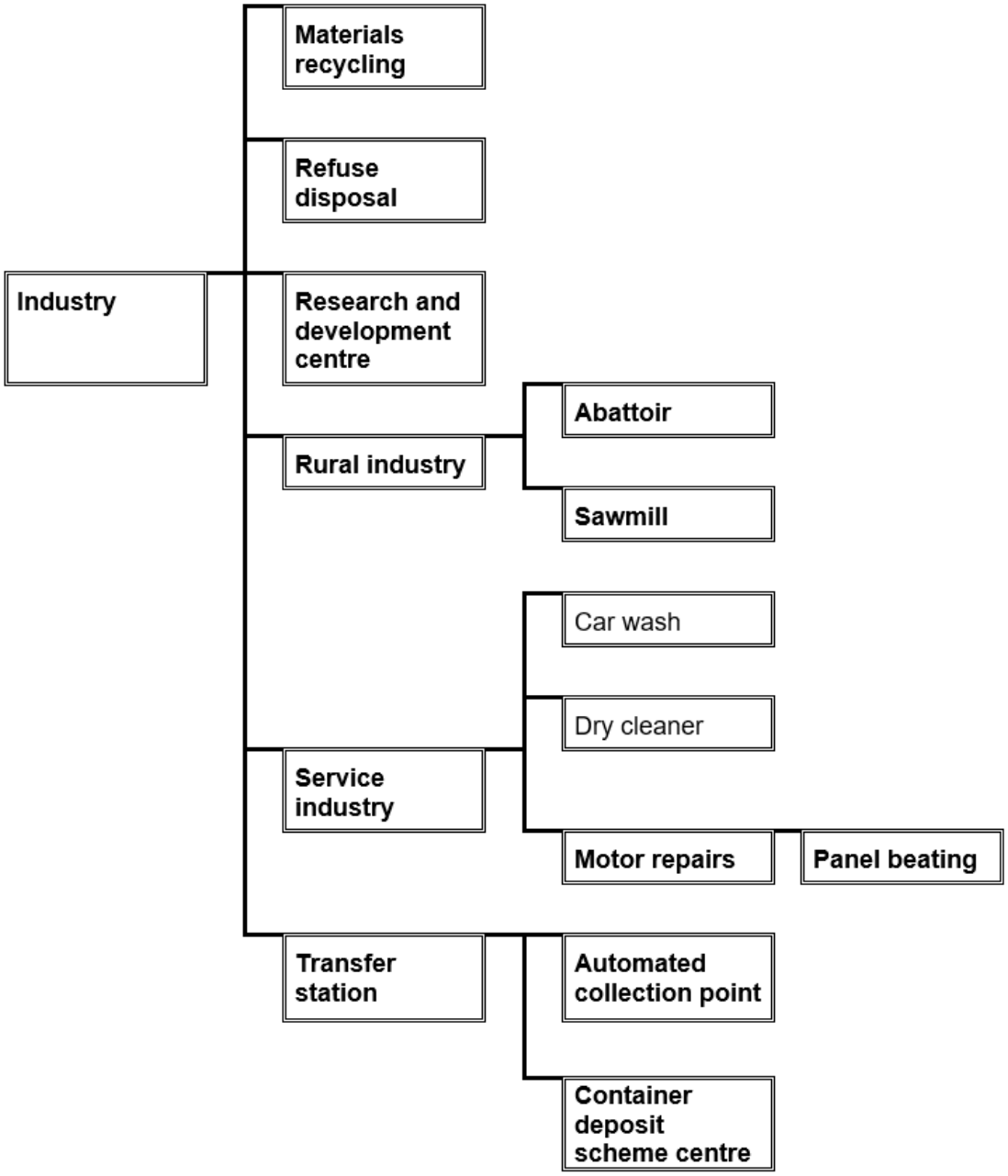

## 73.04-4 Education centre group

24/01/2020
VC160



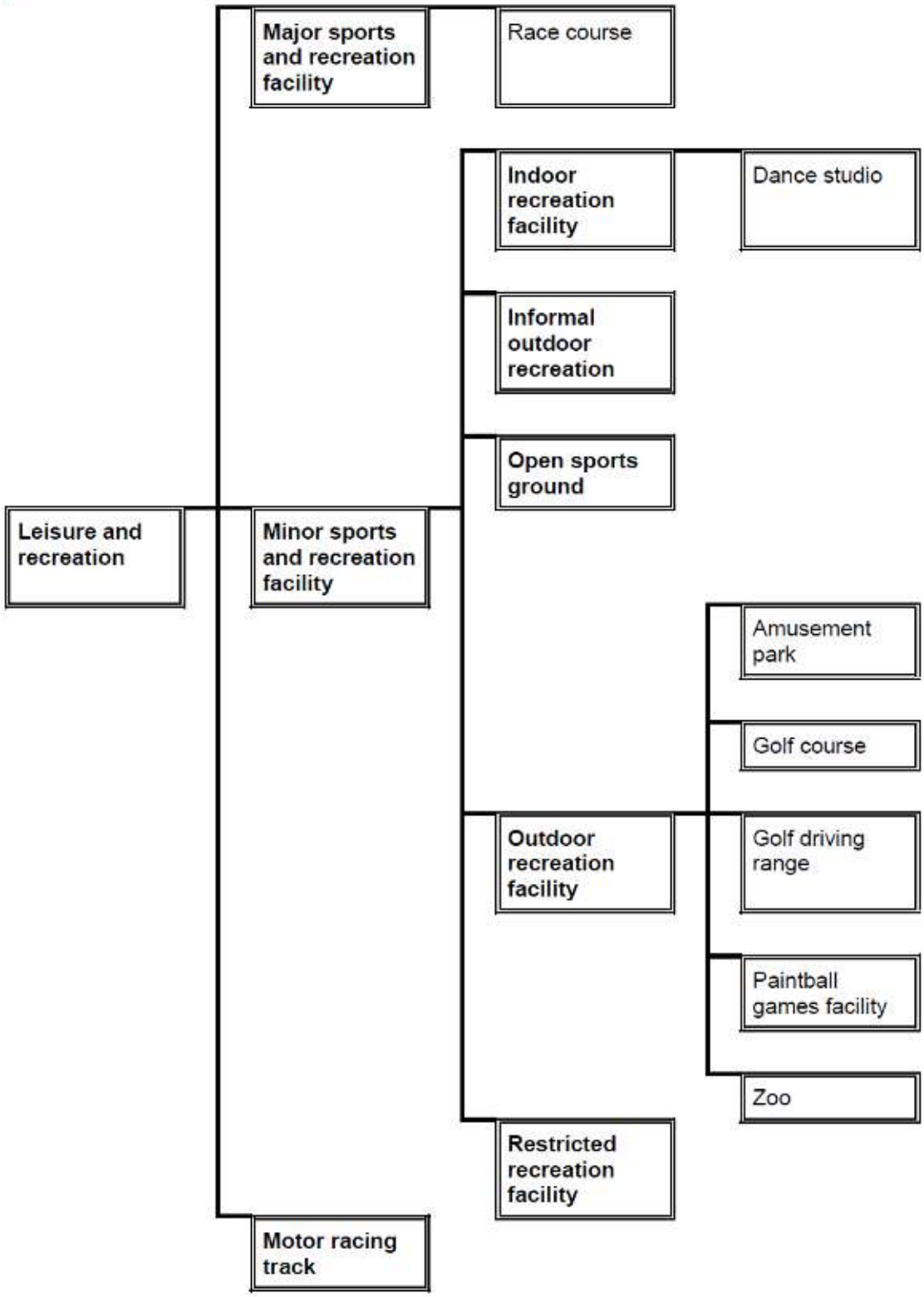
## 73.04-5 Industry group

26/09/2023
VC246



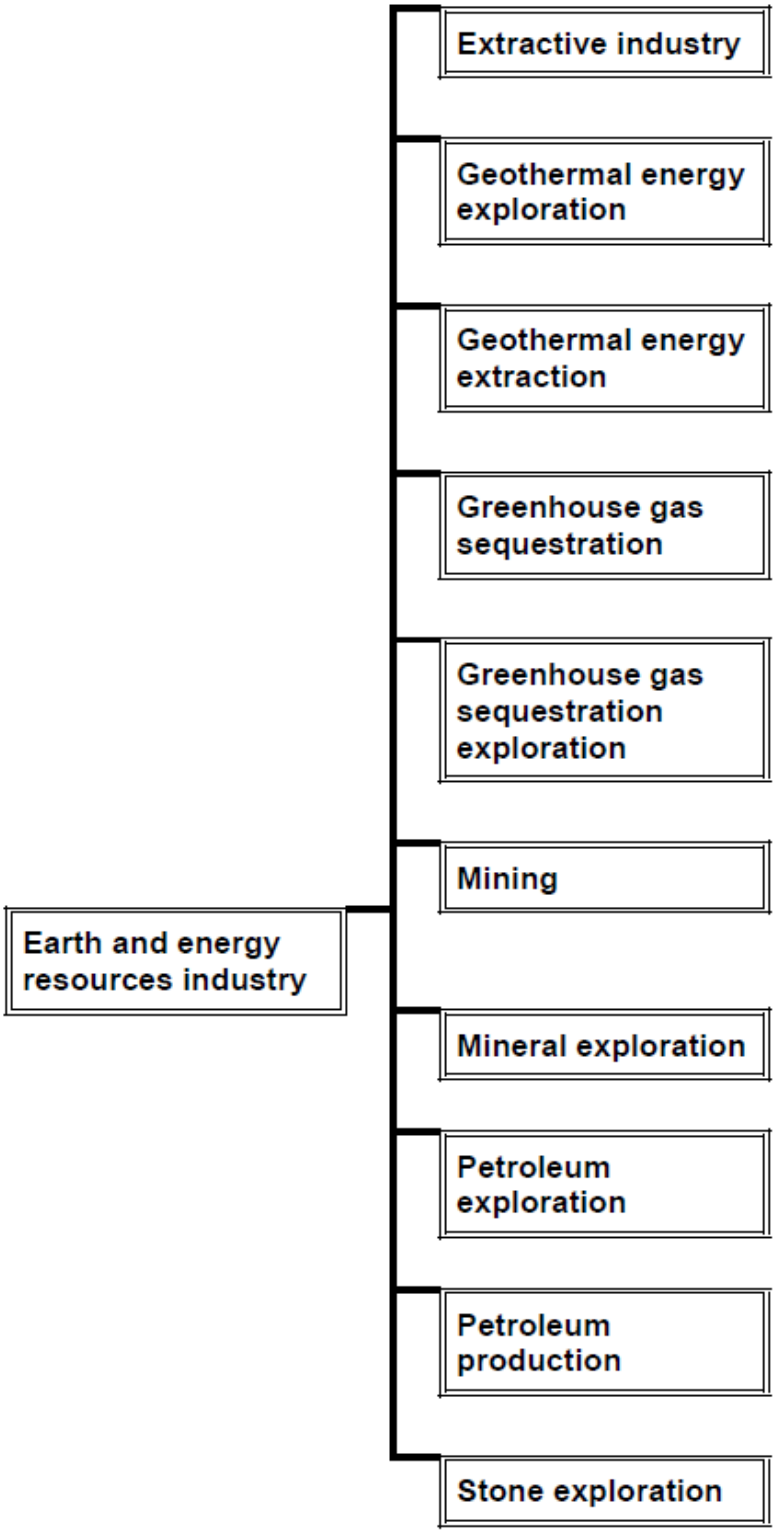
## 73.04-6 Leisure and recreation group

16/08/2019
VC163



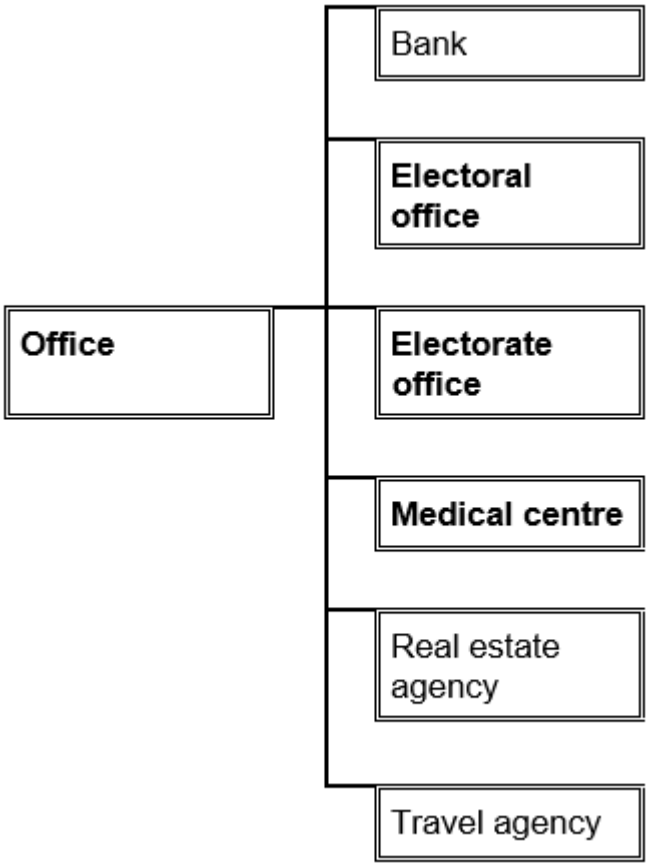
## 73.04-7 Earth and energy resources group

24/01/2020
VC160



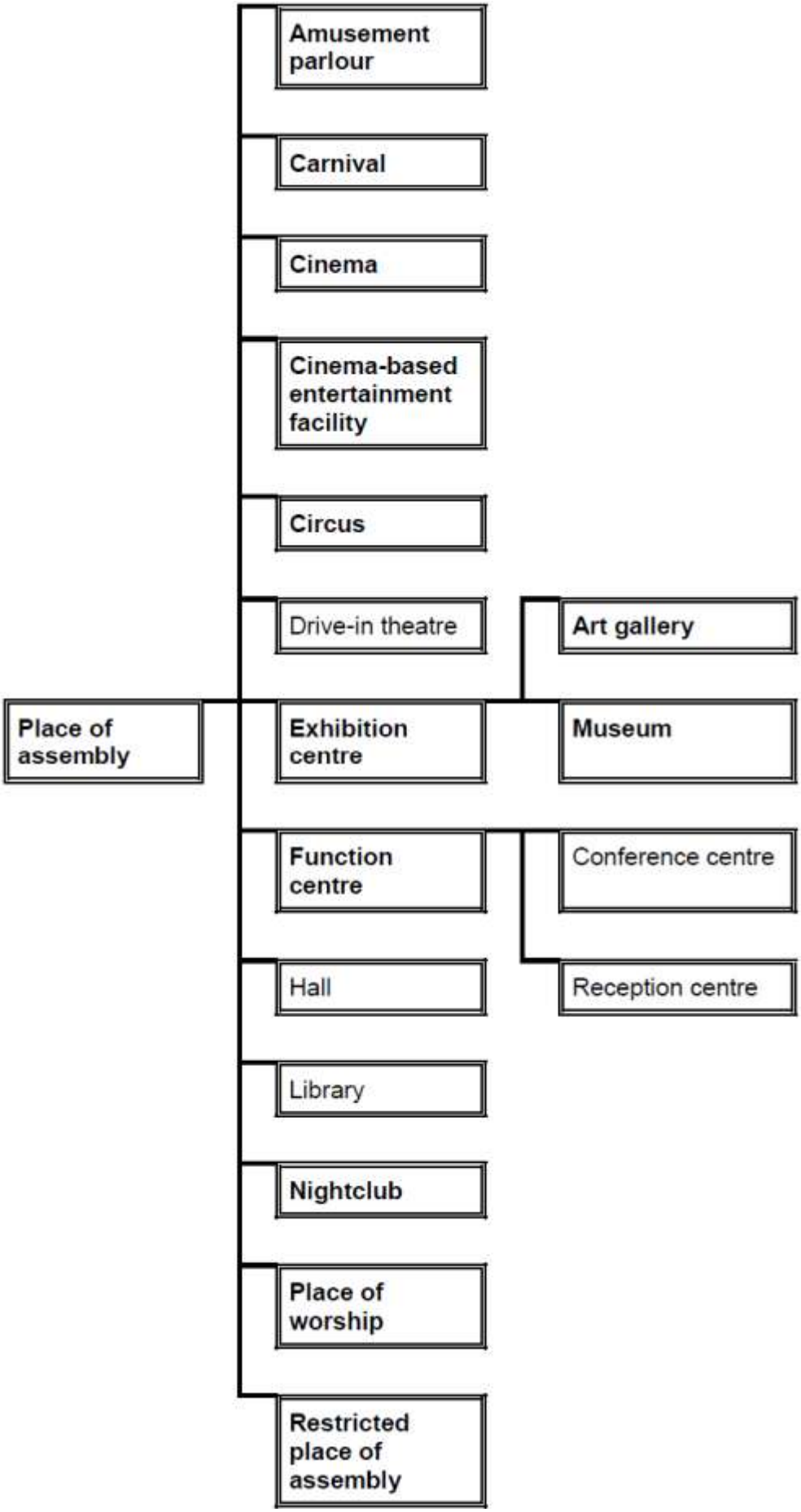
## 73.04-8 Office group

28/10/2022
VC224



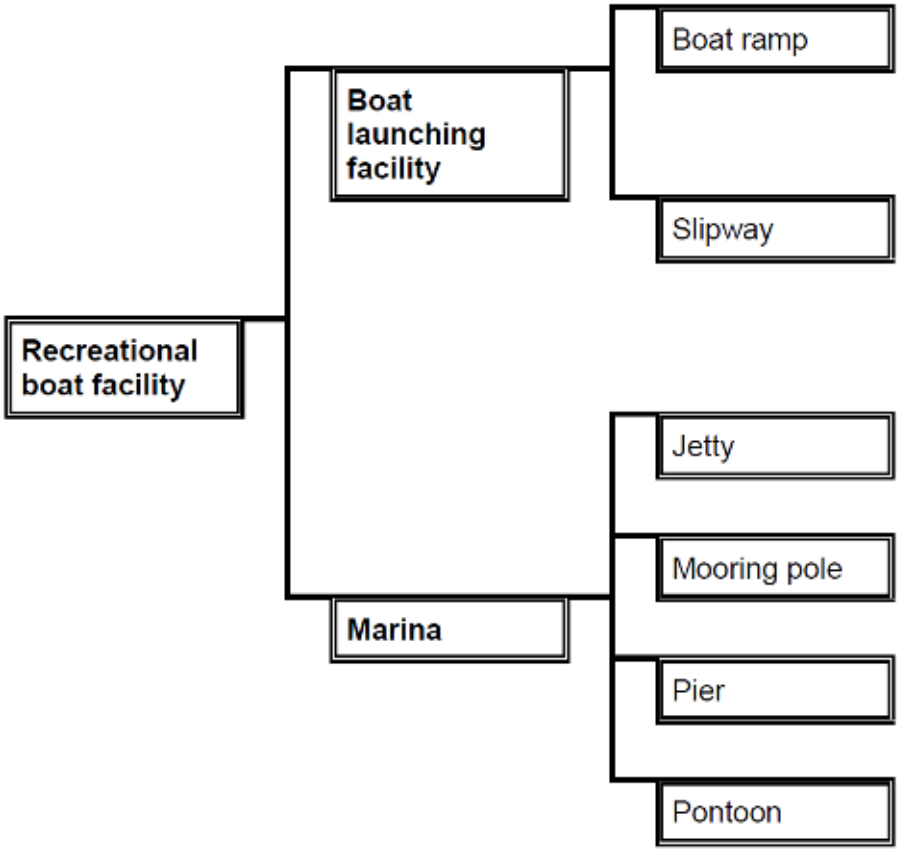
## 73.04-9 Place of assembly group

16/08/2019
VC163



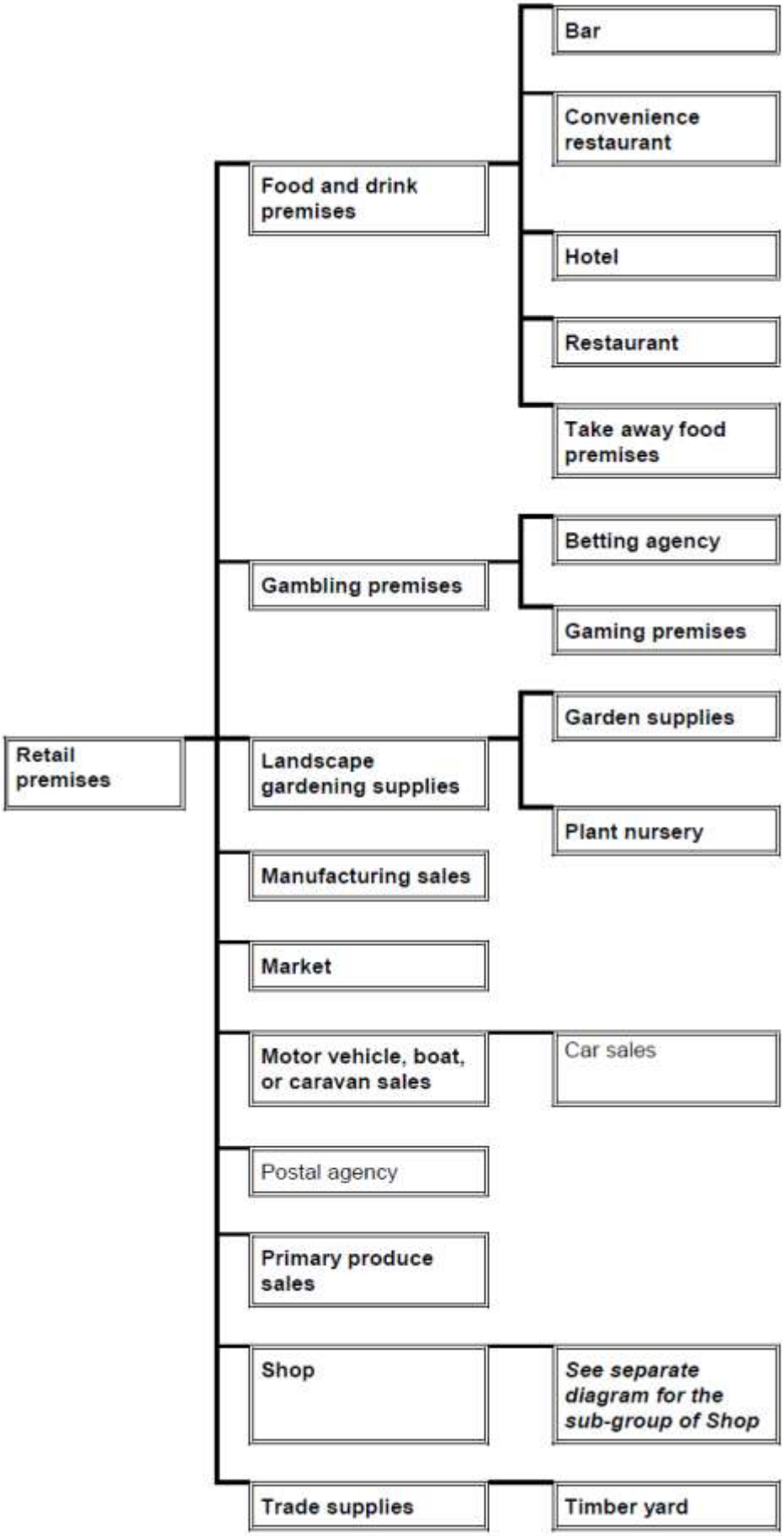
## 73.04-10 Recreational boat facility group

24/01/2020
VC160



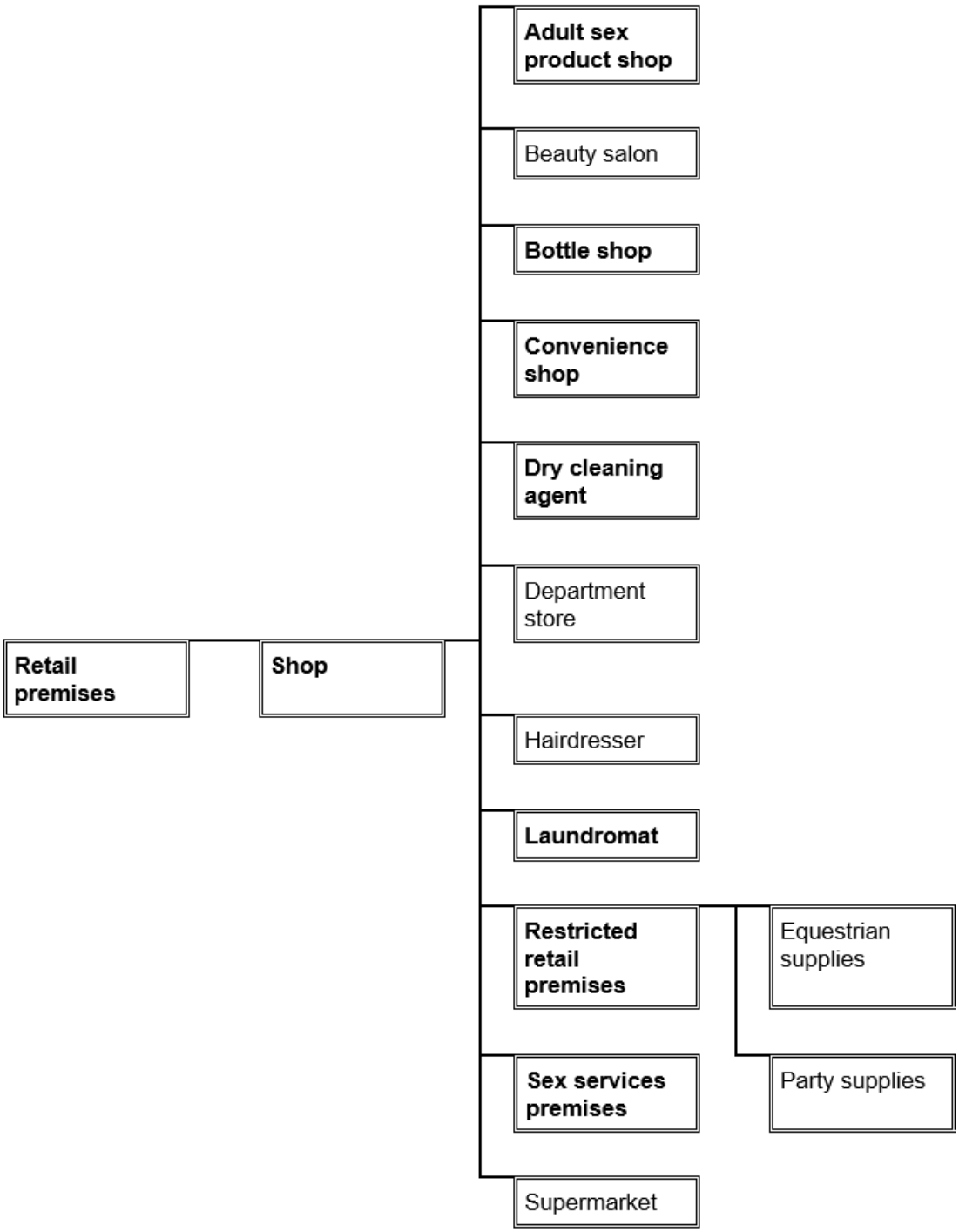
## 73.04-11 Retail premises group

16/08/2019
VC163



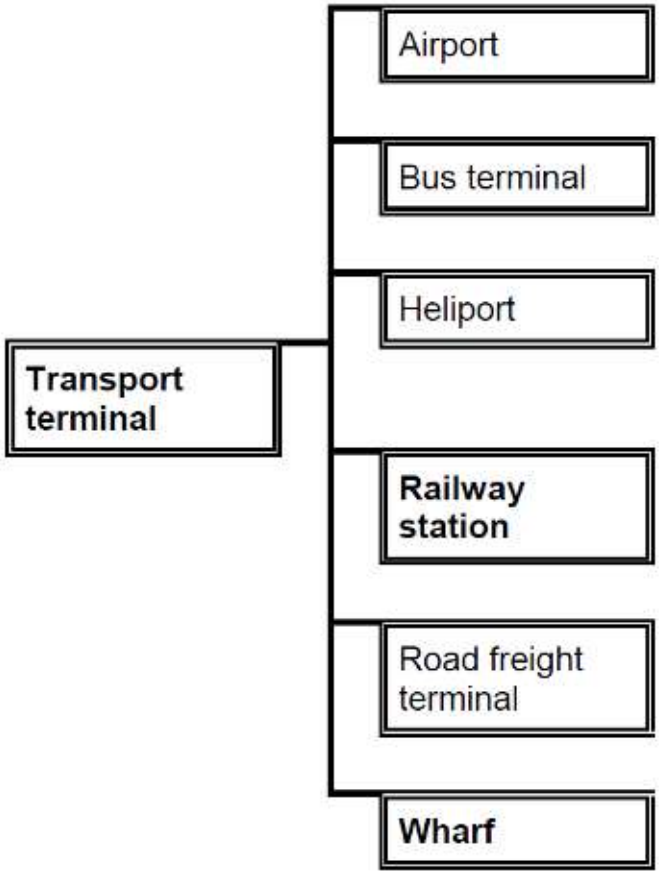
## 73.04-12 Retail premises group (sub-group of Shop)

01/12/2023
VC217



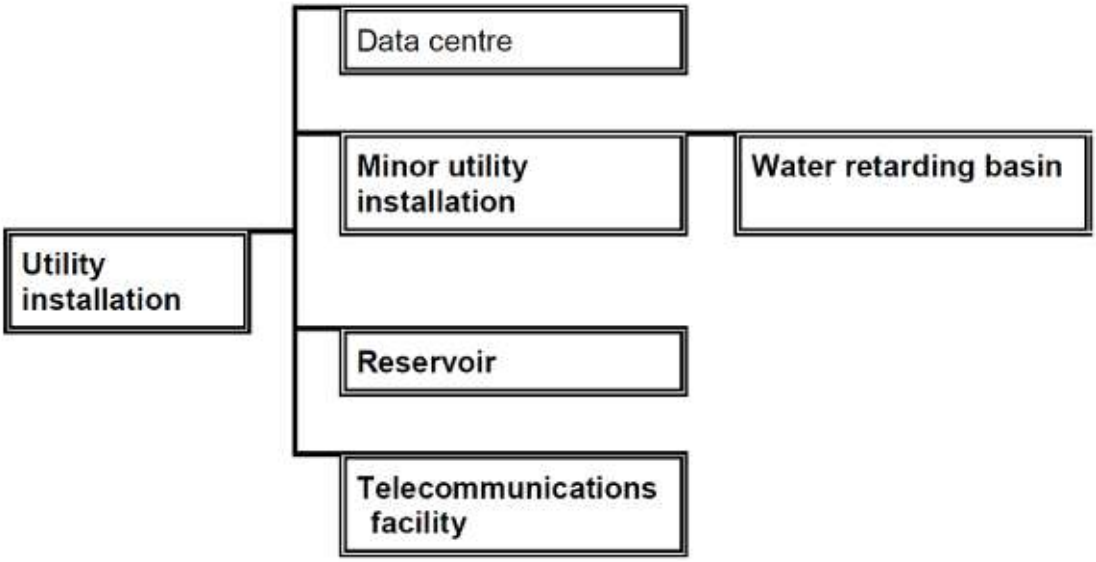
## 73.04-13 Transport terminal group

24/01/2020
VC160



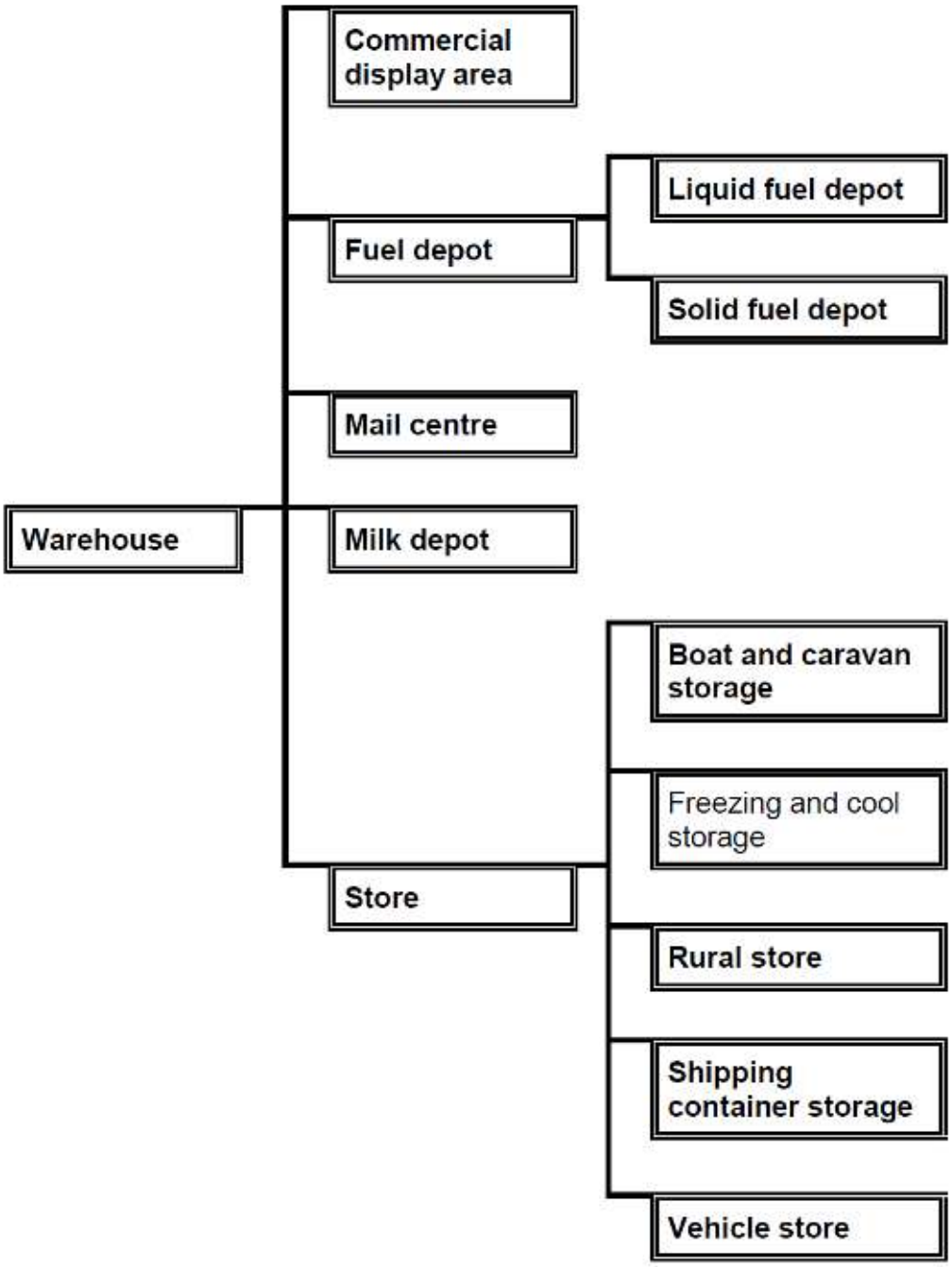

## 73.04-14 Utility installation group

08/08/2019
VC159



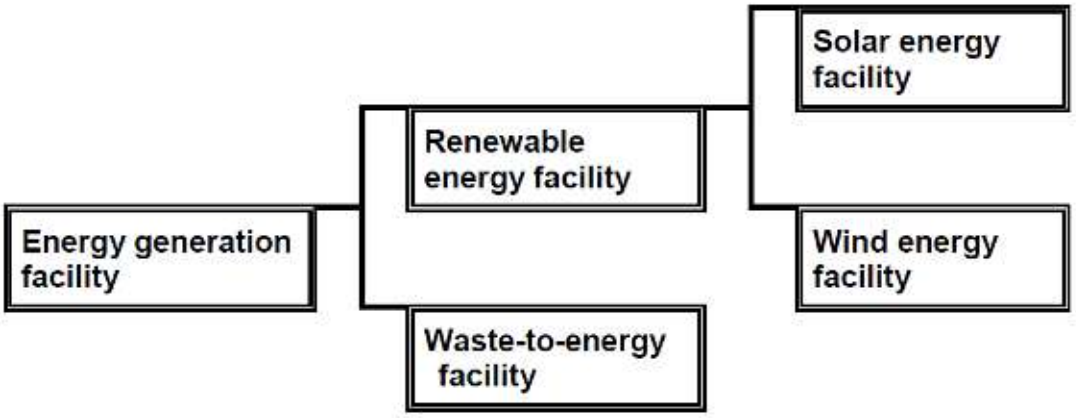
## 73.04-15 Warehouse group

24/01/2020
VC160



## 73.04-16 Energy Group

24/01/2020
VC160



## 73.04-17 Land use terms that are not nested

01/12/2023
VC217

**Art and craft centre**

**Car park**

**Cemetery**

**Crematorium**

**Display home centre**

**Emergency services facility**

**Freeway service centre**

**Funeral parlour**

**Helicopter landing site**

**Home based business**

**Hospital**

**Interpretation centre**

**Natural systems**

**Research centre**

**Saleyard**

**Service station**

**Sign**

**Tramway**

**Veterinary centre**

**Winery**

# 74 STRATEGIC IMPLEMENTATION

31/07/2018
VC148

## 74.01 APPLICATION OF ZONES, OVERLAYS AND PROVISIONS

31/07/2018
VC148

The schedule to this clause must include a general explanation of the relationship between the Municipal Planning Strategy, the objectives and strategies in Clauses 10 to 19 and the controls on the use and development of land in this planning scheme.

A planning authority must take into account the schedule to this clause when it prepares an amendment to this planning scheme.

A responsible authority must not take into account the schedule to this clause when it makes a decision under this planning scheme.

19/06/2025
C284case

# SCHEDULE TO CLAUSE 74.01 APPLICATION OF ZONES, OVERLAYS AND PROVISIONS

## 1.0 Application of zones, overlays and provisions

19/06/2025
C284case

This planning scheme applies the following zones, overlays and provisions to implement the Municipal Planning Strategy and the objectives and strategies in Clauses 11 to 19:

### Zones

- Low Density Residential Zone:
  - Schedule 1 to established low density residential areas that may not be fully serviced but can treat and retain all wastewater on-site, and that are affected by bushfire risk, significant landscape character values or biodiversity values.
  - Schedule 2 to established low density residential areas that have access to services, are, or can be, fully serviced with reticulated sewerage and that are not affected by bushfire risk, significant landscape character values or biodiversity values.
- Mixed Use Zone to:
  - Activity centres with a mixed use function, including employment centres and community activity clusters.
  - Land with mixed use functions, including part of the land within the future 'Casey Technology Park'.
  - The Freeway Sports Convenience Activity Centre.
  - Land on the north-western corner of Saffron Drive and Emily Drive to provide for the use of the land as a pharmacy.
- Township Zone to:
  - The coastal and rural settlements of Blind Bight, Cannons Creek, Harkaway, Narre Warren North and Warneet to provide for a range of appropriate residential, commercial and industrial uses.
  - Activity centres with a primary retail function, including The Arcade Convenience Activity Centre.
  - The coastal settlements of Blind Bight, Cannons Creek, and Warneet to provide for a range of appropriate uses in a township setting.
  - The rural settlements of Harkaway and Narre Warren North to provide for a range of appropriate residential and commercial uses.
- Residential Growth Zone:
  - Schedule 1 to areas identified for substantial change including land within approximately 400 metres walking distance of activity centres, train stations and strategic bus routes.
  - Schedule 2 to areas identified for substantial change on land adjacent to activity centres, train stations and strategic bus routes.
- General Residential Zone:
  - Schedule 1 to established residential areas, including land that is more than approximately 800 metres walking distance from activity centres and train stations and more than approximately 400 metres walking distance of a strategic bus route.
  - Schedule 2 to established residential areas, including land within an approximate walking distance of 400 to 800 metres from activity centres and train stations, and within approximately 400 metres walking distance of a strategic bus route.

- Neighbourhood Residential Zone:
  - Schedule 1 to land in the Berwick Township grid where there are identified significant neighbourhood, heritage, environmental and landscape character values.
  - Schedule 2 to minimal change areas where there are identified significant neighbourhood, heritage, environmental and landscape character values.
- Industrial 1 Zone to preserve industrial land for industrial uses and to protect against inappropriate commercial development.
- Industrial 3 Zone to industrial land adjacent to residential areas to protect these areas from inappropriate industrial uses, where appropriate.
- Commercial 1 Zone to activity centres with a primary retail function, or with an office and commercial function.
- Commercial 2 Zone to:
  - Activity centres with an office and manufacturing function, or with a restricted retail, manufacturing and service business function.
  - Land with a restricted retail, car sales and service business function.
- Rural Living Zone to provide for residential development and living opportunities in a rural environment that are already developed for this purpose.
- Green Wedge Zone to the rural areas of Casey outside the Urban Growth Boundary to:
  - Recognise local agricultural and environmental attributes.
  - Maintain the viability of rural industry.
  - Facilitate sustainable land management practices.
  - Reflect its non-urban status.
- Green Wedge A Zone to the rural areas of Casey outside the Urban Growth Boundary to:
  - Recognise local agricultural and environmental attributes.
  - Maintain the viability of rural industry.
  - Facilitate sustainable land management practices.
- Rural Conservation Zone to protect:
  - The sensitive coastal areas under private ownership.
  - The environmental values of Cardinia Creek and adjoining land.
- Farming Zone to non-urban land inside the Urban Growth Boundary, to protect it from use and development that may compromise any future use of the land for urban purposes.
- Public Use Zone to identify land required for the provision of public uses, services and facilities.
- Public Park and Recreation Zone to recognise, protect and conserve areas for recreation and open space.
- Public Conservation and Resource Zone to protect the natural environment of areas under public ownership, including:
  - the Cranbourne Gardens.
  - Churchill National Park.
  - Dandenong Police Paddocks Reserve.
  - Lysterfield Park and surrounding areas under public ownership.

- Transport Zone to selected major transport corridors controlled by the State authority, Transport for Victoria, and City of Casey as the local road authority.
- Special Use Zone to provide for the use and development of land for site-specific purposes, including:
  - Earth and energy resources industry.
  - Land in Soldiers Road, Clyde North for an Education Centre (Hillcrest Christian College).
  - Part of the land in the Thompsons Road Precinct Structure Plan for an electricity easement.
  - Conservation areas in growth corridors to protect populations of Growling Grass Frong.
  - The Cranbourne Racing Complex and surrounds.
  - Part of the land in the Cardina Creek South Precinct Structure Plan for an electricity easement.
- Comprehensive Development Zone to mixed use areas that are subject to the preparation of a comprehensive development plan, including:
  - Schedule 1 land in the Lyndhurst Neighbourhood Activity Centre.
  - Schedule 2 land in the Berwick Health and Education Precinct Comprehensive Development Plan.
- Urban Floodway Zone to protect identified waterways and drainage courses from inappropriate development that may be detrimental to water quality and impede overland flow paths.
- Urban Growth Zone to undeveloped land designated for future urban purposes, to manage the transition from non-urban to urban in accordance with a precinct structure plan as follows:
  - Schedule 1 - Cranbourne West Precinct Structure Plan
  - Schedule 2 - Cranbourne East Precinct Structure Plan
  - Schedule 3 - Clyde North Precinct Structure Plan
  - Schedule 4 - Botanic Ridge Precinct Structure Plan
  - Schedule 5 - Cranbourne North Stage 2 Precinct Structure Plan
  - Schedule 6 - Thompsons Road Precinct Structure Plan
  - Schedule 7 - Clyde Creek Precinct Structure Plan
  - Schedule 8 - Casey Fields South Residential Precinct Structure Plan
  - Schedule 9 - Berwick Waterways Precinct Structure Plan
  - Schedule 10 - Casey Central Town Centre Precinct Structure Plan
  - Schedule 11 - Brompton Lodge Precinct Structure Plan
  - Schedule 12 - Cardina Creek South Precinct Structure Plan
  - Schedule 14 - Minta Farm Precinct Structure Plan
- Activity Centre Zone to provide for the integrated use and development of land for activity centres of metropolitan and regional significance consistent with adopted structure plans to land in the:
  - Cranbourne Major Activity Centre (Schedule 1).
  - Fountain Gate-Narre Warren CBD Metropolitan Activity Centre (Schedule 2).

### Overlays

- Environmental Significance Overlay to areas of identified environmental significance, including significant native and exotic trees, the coastal environs and sites of geological and geomorphological significance to:
  - Protect the ecological diversity of Western Port.
  - Protect areas of identified environmental significance within and surrounding the Cranbourne Gardens.
  - Areas of identified environmental significance in Cranbourne South and Clyde North.
  - Protect and manage biodiversity assets within urban areas.
- Vegetation Protection Overlay to protect areas of significant vegetation:
  - To the east of Manuka Road in Berwick.
  - In the Brookland Greens estate.
- Significant Landscape Overlay to conserve and enhance areas of identified landscape character and value in the Casey Foothills, Western Port coast, Cardinia Creek and Berwick Village areas.
- Heritage Overlay to heritage places of national, state and local significance, as identified in Council's relevant heritage studies and strategic work.
- Design and Development Overlay to areas requiring specific development controls to achieve a preferred built form outcome.
- Incorporated Plan Overlay:
  - Schedule 2 to give effect to the Cardinia Creek South Precinct Structure Plan.
  - Schedule 3 to give effect to the Minta Farm Precinct Structure Plan.
- Development Plan Overlay to provide for the integrated and orderly planning of future and developing areas, including for:
  - Future and developing low density residential areas.
  - The Narre Warren North Township area.
  - Developing residential areas, mixed use areas and activity centres.
  - Surplus education land.
- Land Subject to Inundation Overlay to land affected by flooding along open watercourses, by tidal inundation and storm surge, and by flooding as a result of poor surface drainage.
- Special Building Overlay to land affected by overland flows in storm events that exceed the capacity of the underground drainage systems.
- Bushfire Management Overlay to areas that meet the threshold of applying the BMO Overlay.
- Public Acquisition Overlay to all land required for the future provision of public uses, services and facilities.
- Environmental Audit Overlay to ensure that sensitive uses are not significantly adversely affected by potentially contaminated land.
- Road Closure Overlay to a road that is closed by an amendment to the planning scheme.
- Development Contributions Plan Overlay to future and developing residential areas, employment areas and activity centres to facilitate the timely delivery of appropriate transport, physical and community infrastructure.

- Parking Overlay to the Berwick Village Commercial Centre to ensure that a lack of car parking does not constrain future development opportunities in the centre.
- Infrastructure Contributions Plan Overlay to future and developing residential and employment areas to facilitate the timely delivery of transport, physical and community infrastructure.
- Specific Controls Overlay to land to be developed in accordance with a specific control contained in a corresponding incorporated document.

## 74.02 FURTHER STRATEGIC WORK

31/07/2018
VC148

The schedule to this clause may specify the planning authority's approach to further strategic work.

A planning authority may take into account the schedule to this clause when it prepares an amendment to this planning scheme.

The responsible authority must not take into account the schedule to this clause when it makes a decision under this planning scheme.

19/06/2025
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# SCHEDULE TO CLAUSE 74.02 FURTHER STRATEGIC WORK

## 1.0 Further strategic work

19/06/2025
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- Undertake a municipal wide review of Development Plans and Development Plan Overlay Schedules to ensure these remain contemporary.
- Identify areas that have special neighbourhood characteristics, and prepare and implement neighbourhood character assessments and design guidelines for those areas.
- Investigate opportunities for rural residential development in areas with limited agricultural productivity.
- Prepare design guidelines for the siting of non-residential development in low density residential areas.
- Review flooding and inundation mapping and policy for all areas.
- Prepare a Southern Ranges Green Wedge Management Plan, including a Foothills Strategy in cooperation with adjoining municipalities.
- Identify and protect the Aboriginal cultural heritage and post-contact heritage of the Western Port Green Wedge.
- Review the environmental and landscape overlays to strengthen the protection of landscapes and trees, including for the Casey Coast and Casey Foothills area.
- Implement the relevant actions from the new Greening Casey Strategy and updated Landscape Policy.
- Investigate opportunities to map and, where relevant, apply appropriate planning controls such as the Buffer Area Overlay to industrial, landfill and quarry buffers to protect amenity and business operations.
- Review existing heritage sites and the Heritage Overlay Schedule to update citations.
- Undertake a heritage gap analysis to identify heritage places that are unprotected by a Heritage Overlay.
- Identify and protect geoheritage sites through the introduction of a policy and appropriate overlays.
- Investigate expansion opportunities for Springhill, Marshall Place, Saffron Drive and The Arcade Activity Centres.
- Develop place-based revitalisation strategies to unlock investment, facilitate economic growth and create community places.
- Investigate planning scheme mechanisms to protect employment land.
- Undertake a review of industrial land to determine suitable locations for smaller or larger lots.
- Implement the relevant actions from the new Electronic Gaming Machine Strategy.
- Prepare and implement township strategies for:
  - Harkaway.
  - Narre Warren North.
  - Pearcedale.
  - Tooradin.
  - Warneet.

  - Blind Bight.
  - Cannons Creek.

- Review the Berwick Village Structure Plan, including urban design guidelines.
- Implement the new Collison Estate Development Plan and Development Contribution Plan by applying the Development Contribution Plan Overlay.
- Implement the revised Hampton Park Hill Development Plan, including safety and amenity buffers.
- Undertake a review of future land use within the Cyril Beechey Lane precinct to acknowledge former landfill operations.
- Undertake a review of the triangular area of land south of Ballarto Road and west of the Cranbourne Gardens to identify future land use opportunities acknowledging any quarrying operations.